

CASES DECIDED

IN THE

COURT OF APPEALS

OF THE

STATE OF NEW YORK

[40 NE3d 560, 18 NYS3d 583]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DUPREE
HARRIS, Appellant.

Argued September 11, 2015; decided October 15, 2015

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Second Judicial Department, from an order of that Court, entered May 14, 2014. The Appellate Division affirmed a judgment of the Supreme Court, Kings County (Carolyn E. Demarest, J.), which had convicted defendant, upon a jury verdict, of bribing a witness (three counts).

People v Harris, 117 AD3d 847, affirmed.

HEADNOTE

Crimes — Evidence — Evidence of Eyewitness's Murder

In a bribery prosecution arising out of defendant's payment to three teen-aged girls after they recanted their prior identifications of defendant's brother as the shooter in a murder investigation, the trial court's decision to admit evidence of the murder of a fourth eyewitness, with which defendant was not involved but which caused the girls to reveal defendant's actions to police, was not an abuse of discretion. The evidence of the second murder showed the state of mind of the girls and provided an explanation as to why they abandoned their recantations and told police about their deal with defendant. It also explained why the girls were placed in protective custody prior to the trial, and allowed the jury to have all of the relevant facts before it to decide whether to credit defense counsel's arguments or the girls' testimony concerning the charges against defendant. While possible prejudice could arise from the testimony in that the jury might link defendant to the second murder, that prejudice was minimized by the court's limiting instruction, which made clear that defendant had not been charged with causing the

death of the fourth eyewitness. In addition, the prosecutor had stated plainly in his opening statement and summation that there was no evidence that defendant was involved.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Evidence §§ 409, 413, 414, 431, 434, 466.

CARMODY-WAIT 2d, Fundamentals of Criminal Evidence
§§ 193:11, 193:19, 193:29; CARMODY-WAIT 2d, Particular
Types of Evidence § 194:209.

NY JUR 2d, Criminal Law: Procedure §§ 2023, 2049, 2758.

ANNOTATION REFERENCE

See ALR Index under Evidence Rules; Eyewitnesses.

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Database: NY-ORCS

Query: witness /5 kill! murder! /p evidence & limiting /3
instruction

POINTS OF COUNSEL

Lynn W.L. Fahey, Appellate Advocates, New York City (*Mark W. Vorkink* of counsel), for appellant. Appellant, who was charged with bribing three homicide witnesses to change their accounts by giving them each \$500, was denied due process when, despite the total lack of evidence linking appellant to the apparently unrelated murder of another homicide witness, Bobby Gibson, by Travis Ragsdale, (A) the court allowed the People to elicit repeatedly on their case-in-chief that Gibson was murdered and that appellant had sought to contact him; and (B) after the defense presented Ragsdale's confession to killing Gibson over an unrelated dispute, the theory on which Ragsdale had been convicted of that murder, the court allowed the People to argue in summation that appellant was actually responsible for Gibson's murder. (*People v Primo*, 96 NY2d 351; *People v Mateo*, 2 NY3d 383; *People v Scarola*, 71 NY2d 769; *People v Robinson*, 68 NY2d 541; *People v Cook*, 42 NY2d 204; *People v Montanez*, 41 NY2d 53; *People v Stanard*, 32 NY2d 143; *People v Morris*, 21 NY3d 588; *People v Ventimiglia*, 52 NY2d 350; *People v Gines*, 36 NY2d 932.)

Kenneth P. Thompson, District Attorney, Brooklyn (*Morgan J. Dennehy, Leonard Joblove* and *Seth M. Lieberman* of counsel), for respondent. Defendant's claims—that the trial court improperly admitted testimony regarding Bobby Gibson's

murder and that the trial court improperly admitted testimony that defendant said that he wanted to talk to Gibson—are partially unpreserved. Moreover, defendant has not preserved any claim that particular summation remarks of the prosecutor suggested that defendant was involved in Gibson’s murder. Furthermore, all of defendant’s claims are meritless. (*People v Molineux*, 168 NY 264; *People v Arafet*, 13 NY3d 460; *People v Robinson*, 68 NY2d 541; *People v Delacruz*, 24 AD3d 109; *People v Garcia*, 19 AD3d 215; *People v Scarola*, 71 NY2d 769; *People v Wilder*, 93 NY2d 352; *People v Gonzalez*, 99 NY2d 76; *People v Becoats*, 17 NY3d 643; *People v Morris*, 21 NY3d 588.)

OPINION OF THE COURT

FIGOTT, J.

The order of the Appellate Division should be affirmed.

This case involves the interplay between two murders and three criminal trials; the third trial is the subject of this appeal.

In September 2001, defendant’s half brother, Wesley Sykes, fatally shot Dennis Brown. There were numerous witnesses to the crime, including three teenaged girls. Each girl gave a statement to the police identifying Sykes as the shooter.

While Sykes was awaiting trial, defendant began cultivating a relationship with each girl. Eventually, the girls agreed to go with defendant to Sykes’s attorney’s office and recant their prior identifications. Afterwards, defendant gave each of them money. It is these acts that led to defendant being charged with three counts each of witness tampering (Penal Law § 215.11 [2]) and bribery (Penal Law § 215.00).

As the trial of Sykes for the murder of Brown was about to begin, another eyewitness to the Brown shooting, Bobby Gibson, was shot and killed outside the apartment of one of the three girls. The shooting was so close, she heard the shots and saw Gibson’s body outside her window. Fearing a similar fate, the girls revealed to police that they had taken money from defendant who had asked them to recant their identifications and not testify against Sykes. The girls were then placed in protective custody. They all testified at the Sykes trial and a jury ultimately convicted Sykes of Brown’s murder.

A man named Travis Ragsdale later confessed to the murder of Gibson. He claimed the murder resulted from an alcohol-fueled dispute, and denied that the incident was related to the Brown murder. Ragsdale was ultimately convicted of murder in the second degree for the Gibson killing.

Prior to defendant's bribery and witness tampering trial, defense counsel moved to preclude evidence of the murder of the witness Gibson, asserting that it was entirely irrelevant to the charges in this case because defendant did not even know the man who shot and killed Gibson. She argued that the admission of the evidence would be prejudicial and make it impossible for defendant to have a fair trial. The prosecutor responded that the two cases were intertwined; that Gibson was killed on the eve of Sykes's trial; and that the three eyewitnesses at issue in defendant's trial had come forward because of Gibson's murder. The prosecutor also explained that all three girls had been relocated in response to Gibson's death and their bribery allegations against defendant.

The trial court ruled that evidence of Gibson's murder was necessary for the jury to consider the truthfulness and reliability of the three girls. During voir dire, the court instructed the venire that defendant was not involved in that murder; and at the start of trial, reminded the prosecutor not to "belabor" Gibson's murder, emphasizing that he was prohibited from bringing in any evidence suggesting that defendant was connected to Gibson's death. The defense introduced a video statement of Ragsdale wherein he stated that he shot Gibson out of anger and not because he was a witness to the Brown shooting.

In its charge to the jury during the trial, the court gave the following limiting instruction with respect to the Gibson murder:

"[D]efendant . . . has not been charged with causing the death of the witness Bobby Gibson. The People have introduced evidence regarding . . . Gibson's death for the purpose of explaining the state of mind of the three [teenage witnesses] . . . , and to provide the background for their participation in the witness protection program of the District Attorney's office.

"The defense has introduced the video statements of Travis Ragsdale who has been convicted of the murder of Bobby Gibson for the truth of that statement, and you will evaluate its credibility as you will evaluate the credibility of all the witnesses and determine what witnesses you will give such weight."

The jury acquitted defendant of all three tampering counts, but convicted him of the bribery counts.

Defendant appealed arguing, as relevant here, that he was deprived of a fair trial because the court allowed the People to elicit evidence of the Gibson murder. He asserted that this evidence was not probative and was extremely prejudicial. Defendant also argued that he was denied due process when the prosecutor suggested repeatedly in summation that he was responsible for Gibson's death. The Appellate Division, with one Justice dissenting, affirmed (117 AD3d 847 [2d Dept 2014]).

Generally, "all relevant evidence is admissible unless its admission violates some exclusionary rule" (*People v Scarola*, 71 NY2d 769, 777 [1988]). "Evidence is relevant if it has any tendency in reason to prove the existence of any material fact" (*id.* at 777). However, "[e]ven where relevant evidence is admissible, it may still be excluded in the exercise of the trial court's discretion if its probative value is substantially outweighed by the potential for prejudice" (*People v Mateo*, 2 NY3d 383, 424-425 [2004]; *see Scarola*, 71 NY2d at 777).

Here, the evidence of Gibson's murder was relevant for several reasons. It showed the state of mind of the three girls and provided an explanation as to why they abandoned their recantations and told police about their deal with defendant. It also explained why the girls were placed in protective custody prior to the trial. Additionally, it allowed the jury to have all of the relevant facts before it to decide whether to credit defense counsel's arguments or the three girls' testimony concerning the charges against defendant.

While possible prejudice could arise from the testimony in that the jury might link defendant to the Gibson murder, that prejudice was minimized by the court's limiting instruction. The court, in its final charge, made clear that defendant had not been charged with causing the death of Gibson. In addition, the prosecutor had stated plainly in his opening statement and summation that there was no evidence that defendant was involved. Thus, we conclude that the court's decision to admit the evidence of Gibson's murder was not an abuse of discretion.

Chief Judge LIPPMAN and Judges RIVERA, ABDUS-SALAAM, STEIN and FAHEY concur.

Order affirmed.

[41 NE3d 62, 19 NYS3d 205]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSE
MARTINEZ BAXIN, Appellant.

Argued September 8, 2015; decided October 15, 2015

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered April 29, 2014. The Appellate Division affirmed an order of the Supreme Court, New York County (Thomas A. Farber, J.), which had adjudicated defendant a risk level two sexually violent offender pursuant to the Sex Offender Registration Act (Correction Law art 6-C).

People v Baxin, 116 AD3d 628, affirmed.

HEADNOTES**Crimes — Sex Offenders — Sex Offender Registration Act — Hearing to Determine Risk Level — Due Process**

1. At a hearing to determine the Sex Offender Registration Act (SORA) risk level of defendant, who had pleaded guilty to one count of sodomy in satisfaction of a six-count indictment alleging that he had sexually abused his stepdaughter on multiple occasions, defendant's due process rights were violated when the hearing court relied, in part, upon grand jury minutes that were not disclosed to the defense to determine the appropriate score for the risk factor for continuing course of sexual misconduct. In order to satisfy due process concerns, a sex offender must be afforded prehearing discovery of the documentary evidence relating to his or her proposed risk level adjudication. The Correction Law expressly entitles an offender to documents relied upon by the Board of Examiners of Sex Offenders in reaching a risk level recommendation. Although it does not expressly entitle the offender to materials submitted by the District Attorney in meeting its burden of facts supporting a risk level determination by clear and convincing evidence, the same due process concerns are presented in that context. Notwithstanding the State's general policy of keeping grand jury proceedings secret, the absence of disclosure means that a defendant cannot formulate any meaningful argument against one that the prosecutor postulates is supported by the minutes. Although grand jury minutes are not required to be disclosed in every SORA proceeding as a matter of course, in determining whether due process requires disclosure, courts should keep in mind that the use of minutes against a defendant for SORA purposes presents a very strong countervailing interest in support of disclosure.

Crimes — Harmless and Prejudicial Error — Due Process Violation during Sex Offender Registration Act Risk Level Hearing

2. At a hearing to determine defendant's Sex Offender Registration Act risk level, the hearing court committed harmless error when, in violation of defendant's due process rights, it relied, in part, upon grand jury minutes that were not disclosed to the defense to determine the appropriate score for

the risk factor for continuing course of sexual misconduct. There was overwhelming, unchallenged evidence in the form of the case summary, the criminal court complaint and defendant's own confession, which provided the requisite clear and convincing evidence supporting the assessment of points for a continuing course of sexual misconduct and which had been properly disclosed to defendant.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Appellate Review §§ 658, 703; AM JUR 2d, Mentally Impaired Persons §§ 127, 137, 139.
CARMODY-WAIT 2d, Appeals in General §§ 70:443, 70:460.
NY JUR 2d, Appellate Review §§ 754, 766; NY JUR 2d, Penal and Correctional Institutions §§ 418, 420.

ANNOTATION REFERENCE

See ALR Index under Due Process; Harmless and Prejudicial Error; Sex Offender Registration and Notification.

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Query: sora /p due /2 process & grand /2 jury

POINTS OF COUNSEL

Robert S. Dean, Center for Appellate Litigation, New York City (Julia Busetti of counsel), for appellant. Jose Martinez Baxin was deprived of the constitutional and statutory due process rights to which he was entitled in his Sex Offender Registration Act hearing when the hearing court relied, in assessing the disputed points on the risk assessment instrument that were dispositive of the ultimate level two adjudication, upon grand jury minutes that it refused to disclose to the defense. (*Doe v Pataki*, 3 F Supp 2d 456; *People v David W.*, 95 NY2d 130; *People v Gutierrez-Lucero*, 103 AD3d 89; *Kent v United States*, 383 US 541; *People ex rel. Ryan v Warden, N.Y. City House of Detention*, 113 AD2d 116; *Matter of District Attorney of Suffolk County*, 58 NY2d 436; *People v Howard*, 52 AD3d 273; *People v Frosch*, 69 AD3d 699; *People v Szwalla*, 61 AD3d 1289; *People v Rosario*, 9 NY2d 286.)

Cyrus R. Vance, Jr., District Attorney, New York City (Brian R. Pouliot and Sylvia Wertheimer of counsel), for respondent. The Sex Offender Registration Act court properly reviewed the grand jury minutes in camera, where defendant never raised

any bona fide factual dispute regarding the risk factor assessment he challenged and where the court did not rely exclusively on the grand jury minutes to assess defendant the risk factor points. In any event, multiple disclosed sources independently established the risk factor. (*People v Mingo*, 12 NY3d 563; *People v Johnson*, 11 NY3d 416; *Doe v Pataki*, 3 F Supp 2d 456; *Matter of State of New York v Floyd Y.*, 22 NY3d 95; *Mathews v Eldridge*, 424 US 319; *People v David W.*, 95 NY2d 130; *People v Gutierrez-Lucero*, 103 AD3d 89; *People v Erb*, 59 AD3d 1020; *People v Johnson*, 16 AD3d 184; *People v Scalza*, 76 NY2d 604; *LaRossa, Axenfeld & Mitchell v Abrams*, 62 NY2d 583.)

OPINION OF THE COURT

Chief Judge LIPPMAN.

The issue presented by this appeal is whether defendant's due process rights were violated when the hearing court relied, in part, upon grand jury minutes that were not disclosed to the defense in reaching defendant's Sex Offender Registration Act (SORA) risk level determination. We hold that there was a due process violation, but that, given the overwhelming evidence which was disclosed to defendant in support of the same risk factor, the error was harmless.

Defendant was indicted for six counts of sodomy in the first degree, six counts of sexual abuse in the first degree and endangering the welfare of a child, based upon allegations that he had sexually abused his 10-year-old stepdaughter on at least three occasions. The abuse was alleged to have occurred between February 14, 2001 and February 28, 2001; between March 1, 2001 and March 15, 2001; and on or about April 8, 2001. In April 2009, defendant pleaded guilty to one count of sodomy, relating to conduct that had occurred in February 2001, in full satisfaction of the indictment.

In contemplation of defendant's release from incarceration, the Board of Examiners of Sex Offenders (Board) prepared a case summary and a risk assessment instrument, assigning defendant 85 points and recommending that he be adjudicated a level two sexually violent offender. As pertinent here, the Board assessed defendant 20 points under risk factor 4 for a continuing course of sexual misconduct. According to the case summary, "the instant offense occurred from February 2001 to April 2001" and there had been "several" incidents between defendant and the subject child.

At his risk level hearing, defendant objected to the assessment of points for a continuing course of sexual misconduct,

asserting that he had only pleaded guilty to a single count of sodomy and that the case summary did not provide the requisite clear and convincing evidence to support the imposition of points for that factor. The court reserved decision, but requested that the People provide a copy of the grand jury minutes.

Following the hearing, the People submitted the grand jury minutes, as well as a transcript of defendant's videotaped confession. The People did not disclose the grand jury minutes to defendant, however, stating their intention to do so only under court order. In the alternative, the People requested that if the court were to require disclosure, defense counsel be ordered to keep the minutes under seal and not to reproduce or disclose them.

In defendant's confession, he admitted to incidents occurring in February, March and April of 2001. Specifically, he related that he had masturbated in front of the victim on at least four occasions. He admitted that, on at least two occasions, he had the victim put her mouth on his penis. In addition, he stated that he had the victim place her hand on his penis. The record also contains the criminal court complaint, which includes the statement related to police by the victim, "that since the first week of February, 2001, defendant has masturbated in front of [victim] on several occasions, and [that] defendant made [victim] place her mouth on defendant's penis on three occasions, the last occasion being April 8, 2001."

At the ensuing court appearance, Supreme Court assessed defendant 85 points and adjudicated him a level two sexually violent offender. The court found sufficient evidence, consisting of the grand jury minutes, the criminal court complaint and defendant's confession, to support the imposition of points for continuing course of sexual misconduct. The court rejected defendant's argument that consideration of the grand jury minutes, which were not disclosed to the defense, should have been precluded.

The Appellate Division affirmed, concluding that there was no due process violation in Supreme Court's reliance, in part, on the grand jury minutes (*see* 116 AD3d 628 [1st Dept 2014]). The Court observed that the grand jury minutes were cumulative to other evidence that had been disclosed to defendant and that he had failed to establish prejudice. This Court granted defendant leave to appeal (24 NY3d 905 [2014]), and we now affirm, albeit on a different ground.

It is well established that sex offenders are entitled to certain due process protections at their risk level classification proceedings (see *People v Lashway*, 25 NY3d 478 [2015]; *People v David W.*, 95 NY2d 130 [2000]; *Doe v Pataki*, 3 F Supp 2d 456 [SD NY 1998]). *Doe*, for example, recognized that, although “the due process protections required for a risk level classification proceeding are not as extensive as those required in a plenary criminal or civil trial . . . the consequences of registration and notification under the Act are sufficiently serious to warrant more than mere summary process” (*Doe*, 3 F Supp 2d at 470 [internal quotation marks and citation omitted]). Accordingly, that court held that in order to satisfy due process concerns, the offender must be afforded prehearing discovery of the documentary evidence relating to his or her proposed risk level adjudication (see *Doe*, 3 F Supp 2d at 472).

Likewise, we have observed that “[t]he bedrock of due process is notice and opportunity to be heard” (*David W.*, 95 NY2d at 138, citing *Mathews v Eldridge*, 424 US 319, 333 [1976]). In that case, we held that the defendant was not accorded a meaningful opportunity to contest his SORA risk level where he was not provided notice that the risk level was being determined or what materials would be relied on in making the determination, and was not permitted to raise objections to the State’s evidence against him (see *David W.*, 95 NY2d at 138). We concluded that the procedures in place were insufficient to prevent an erroneous deprivation of the defendant’s liberty interest (see *David W.*, 95 NY2d at 138; *Mathews*, 424 US at 335).

In keeping with our precedent, the Correction Law requires that defendant is entitled to prehearing access to the documents relied upon by the Board in reaching a risk level recommendation (see Correction Law § 168-n [3]; *People v Lashway*, 25 NY3d at 483). Although the statute may not expressly state that defendant is likewise entitled to any materials submitted by the District Attorney in meeting its burden of establishing the facts supporting a risk level determination by clear and convincing evidence, the same due process concerns are presented in that context. Moreover, broad disclosure is consistent with *Doe*’s recognition that an offender should be accorded discovery “of all papers, documents, and other material relating to his proposed level and manner of notification” (3 F Supp 2d at 472).

Defendant maintains that he was deprived of due process when the hearing court relied on the grand jury minutes in

determining his risk level without disclosing those minutes to the defense. The People raise several arguments in opposition, pointing out the State's general policy of keeping grand jury proceedings secret in the absence of a compelling and particularized need for disclosure and observing that a SORA defendant does not have the right to confront his or her victim and thus cannot use the grand jury minutes to attempt to exploit any prior inconsistent statements.

The absence of disclosure, however, means that defendant simply cannot formulate any meaningful argument against one that the prosecutor postulates is supported by the minutes. And, while there are good reasons for keeping grand jury minutes confidential in the abstract, many of the arguments usually put forth in support of secrecy have much less force in this postconviction context. There is no concern that defendant will flee, that witnesses will be tampered with or that there will be interference with the process of the grand jury (*see People v Di Napoli*, 27 NY2d 229, 235 [1970]). The possibility of deterring future witnesses from providing grand jury testimony may exist, but is less pressing here, where the possibility of disclosure arises many years after the indictment and conviction, and where the testimony is being used as evidence in chief against the defendant in support of his adjudication as a sex offender.

[1] Given that defendant is entitled to broad discovery of the evidence that is used against him in order to be able to defend himself, we hold that the failure to disclose the grand jury minutes was a due process violation. This is not to say that grand jury minutes must be disclosed to the defendant in every SORA proceeding as a matter of course. It remains within the hearing court's discretion to limit the release of such minutes (*see People v Robinson*, 98 NY2d 755, 756 [2002]). Indeed, as the People had suggested in this matter, defense counsel can be instructed to keep the minutes under seal. But, in determining whether due process requires disclosure, courts should keep in mind that the use of the minutes against a defendant for SORA purposes presents a very strong countervailing interest in support of disclosure.

[2] The error here, however, was harmless (*see e.g. People v Lashway*, 25 NY3d 478, 484 [2015]). There was overwhelming, unchallenged evidence in the form of the case summary, the criminal court complaint and defendant's own confession, which provided the requisite clear and convincing evidence support-

ing the assessment of points for a continuing course of sexual misconduct and which had been properly disclosed to defendant.

Defendant's remaining contention is without merit.

Accordingly, the order of the Appellate Division should be affirmed, without costs.

Judges PIGOTT, RIVERA, ABDUS-SALAAM, STEIN and FAHEY concur.

Order affirmed, without costs.

[41 NE3d 333, 19 NYS3d 468]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v
MICHAEL SANS, Appellant.

Argued September 16, 2015; decided October 15, 2015

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Term of the Supreme Court in the Second Judicial Department, Second, Eleventh and Thirteenth Judicial Districts, entered August 30, 2013. The Appellate Term affirmed a judgment of the Criminal Court of the City of New York, Kings County (Linda Poust Lopez, J.), which had convicted defendant, upon his plea of guilty, of criminal possession of a weapon in the fourth degree.

People v Sans, 40 Misc 3d 141(A), 2013 NY Slip Op 51464(U), affirmed.

HEADNOTES

Crimes — Possession of Weapon — Gravity Knife — Sufficiency of Accusatory Instrument — Locking “Automatically” in Place

1. An accusatory instrument alleging possession of a gravity knife in violation of Penal Law § 265.01 (1) was sufficient where it stated that the police officer tested the knife and determined that it “locks automatically in place,” notwithstanding the absence of an express statement that the knife was “locked in place by means of a button, spring, lever or other device” (Penal Law § 265.00 [5]) as set forth in the statutory definition of a gravity knife. By stating that a knife, once opened, “locks automatically in place,” an accusatory instrument conveys to a defendant that his or her knife was observed to lock in an open position, rather than merely having a bias towards remaining open, and to lock by means of a built-in device, rather than manually. A mechanism that locks itself by means of such a device is naturally described as locking “automatically.” Moreover, because of the use of the generic term “device” in Penal Law § 265.00 (5), there can be no requirement that an officer specify any particular kind of mechanism on the knife that causes it to lock in place. Here, defendant could not justifiably claim that the language used in the accusatory instrument impaired his basic rights to fair notice sufficient to enable preparation of a defense and to prevent double jeopardy. A reasonable defendant would have understood that the prosecution would be required to prove that his knife, once opened, locked without further manual action.

Crimes — Possession of Weapon — Gravity Knife — Sufficiency of Accusatory Instrument — Application of Centrifugal Force

2. An accusatory instrument alleging possession of a gravity knife in violation of Penal Law § 265.01 (1) sufficiently alleged that the knife’s blade was “released from the handle or sheath . . . by the force of gravity or the application of centrifugal force” (Penal Law § 265.00 [5]) as set forth in the statutory definition of a gravity knife where the instrument specified that

the police officer tested the knife and determined that it opened “with centrifugal force.” Based upon that allegation, it could reasonably be inferred that the officer flicked the knife open with his wrist. In any event, the officer’s failure to specify the precise motion he used to open the knife did not prevent defendant from preparing his defense or avoiding double jeopardy.

Crimes — Possession of Weapon — Gravity Knife — Sufficiency of Accusatory Instrument — Police Officer Expertise in Identifying Gravity Knife

3. An accusatory instrument alleging possession of a gravity knife in violation of Penal Law § 265.01 (1) sufficiently pleaded that the police officer exercised his expertise by testing the knife and determining that it opened and locked in the manner proscribed by the gravity knife statute. As a general principle, when an allegation involves a conclusion drawn by an officer that involves the exercise of professional skill or experience, some explanation concerning the basis for that conclusion must be evident from the accusatory instrument. In an accusatory instrument alleging possession of a gravity knife, there is no mandate that the officer recite that he or she has training and experience in identifying gravity knives or expressly state the origin of his or her skills in that area. Rather, the officer is required to explain the basis of his or her conclusion that the defendant’s knife was a gravity knife.

RESEARCH REFERENCES

By the Publisher’s Editorial Staff

AM JUR 2d, Weapons and Firearms §§ 10, 40.
McKINNEY’S, Penal Law §§ 265.00 (5); 265.01 (1).
NY JUR 2d, Criminal Law: Substantive Principles and Offenses §§ 1861, 1866, 1869, 1872, 1876.

ANNOTATION REFERENCE

See ALR Index under Indictments and Informations;
Knives and Knifings.

FIND SIMILAR CASES ON WESTLAW®

Database: NY-ORCS
Query: gravity /2 knife & accus! /2 instr! /5 sufficient

POINTS OF COUNSEL

Seymour W. James, Jr., The Legal Aid Society, New York City (Denise Fabiano of counsel), for appellant. The accusatory instrument charging appellant with one count of criminal possession of a gravity knife was jurisdictionally defective where it made no reference to the officer’s training and experience and: (1) failed to include any factual allegations that the blade “locked into place by means of a button, spring, lever or other device”; and (2) stated only conclusory allegations that the knife opened with centrifugal force. (*People v Dreyden*, 15 NY3d

100; *People v Dumas*, 68 NY2d 729; *People v Alejandro*, 70 NY2d 133; *United States v Irizarry*, 509 F Supp 2d 198; *People v Terrance*, 101 AD3d 624; *People v Kin Kan*, 78 NY2d 54; *People v Best*, 57 AD3d 279; *Staples v United States*, 511 US 600; *People v Munoz*, 9 NY2d 51; *People v Wood*, 58 AD3d 242.)

Kenneth P. Thompson, District Attorney, Brooklyn (*Allison Ageyeva* and *Leonard Joblove* of counsel), for respondent. The accusatory instrument is facially sufficient because it satisfies the standards of facial sufficiency applicable to a misdemeanor complaint. (*People v Maldonado*, 86 NY2d 631; *People v Mercado*, 68 NY2d 874; *People v McRay*, 51 NY2d 594; *People v Suber*, 19 NY3d 247; *People v Alejandro*, 70 NY2d 133; *People v Dumay*, 23 NY3d 518; *People v Guaman*, 22 NY3d 678; *People v Casey*, 95 NY2d 354; *People v Dreyden*, 15 NY3d 100; *People v Terrance*, 101 AD3d 624.)

OPINION OF THE COURT

FAHEY, J.

In the accusatory instrument charging defendant, Michael Sans, with a misdemeanor, a police officer stated that he had “observed the defendant remove a knife from the defendant’s pocket, . . . recovered said knife from the defendant,” and “tested the . . . knife and determined that it was a gravity knife, in that it opens with centrifugal force and locks automatically in place.” Upon a guilty plea, the Criminal Court of the City of New York convicted defendant of criminal possession of a weapon in the fourth degree (Penal Law § 265.01 [1]). He waived prosecution by information.

On appeal, defendant contended that the accusatory instrument was jurisdictionally defective and sought its dismissal. The Appellate Term affirmed Criminal Court’s judgment, ruling that the accusatory instrument was facially sufficient (40 Misc 3d 141[A], 2013 NY Slip Op 51464[U] [App Term, 2d Dept, 2d, 11th & 13th Jud Dists 2013]). A Judge of this Court granted defendant leave to appeal (23 NY3d 1042 [2014]). We now affirm.

The accusatory instrument must be examined under the standard applicable to misdemeanor complaints, given defendant’s waiver of the filing of an information. Under the reasonable cause standard (*see generally People v Dumas*, 68 NY2d 729, 731 [1986]), the factual part of a misdemeanor complaint must allege “facts of an evidentiary character” (CPL 100.15 [3]) establishing “reasonable cause” to believe that the defendant committed the crime charged (CPL 100.40 [4] [b]).

Defendant principally contends that the accusatory instrument was insufficient under this test because it contained no allegation establishing a prima facie case that the blade of the knife, once released, was “locked in place by means of a button, spring, lever or other device” (Penal Law § 265.00 [5]), as required by the statutory definition of a gravity knife.

The statute provides that, to be prohibited as a gravity knife, a knife must have a blade that is locked into an open position by means of a device. This criterion “‘requires that the blade lock in place automatically upon its release and without further action by the user’” (*People v Dreyden*, 15 NY3d 100, 104 [2010], quoting *People v Zuniga*, 303 AD2d 773, 774 [2d Dept 2003], *lv withdrawn* 100 NY2d 567 [2003]). It distinguishes a gravity knife from one that “requires manual locking” (*Dreyden*, 15 NY3d at 104).

[1] Defendant argues that an accusatory instrument alleging possession of a gravity knife must expressly state that the knife locks by means of a device. We disagree. By stating that a knife, once opened, “locks automatically in place,” an accusatory instrument conveys to a defendant that his knife was observed (1) to lock in an open position, rather than merely having a bias towards remaining open, and (2) to lock by means of a built-in device, rather than manually. A mechanism that locks itself by means of such a device is naturally described as locking “automatically.” Indeed, many New York cases have treated locking “by means of a . . . device” (Penal Law § 265.00 [5]) as synonymous with “automatically” locking for these purposes (*see e.g. People v Terrance*, 101 AD3d 624, 625 [1st Dept 2012], *lv denied* 20 NY3d 1065 [2013]; *People v Neal*, 79 AD3d 523, 524 [1st Dept 2010], *lv denied* 16 NY3d 799 [2011]; *Zuniga*, 303 AD2d at 774). Moreover, because of the use of the generic term “device” in the statute, there can be no requirement that an arresting officer specify any particular kind of mechanism on the knife that causes it to lock in place.

Our decision in *Dreyden* is not to the contrary. There, the relevant part of the accusatory instrument stated only that the arresting officer had seen Dreyden “in possession of a gravity knife . . . in that [the officer] recovered said gravity knife . . . from defendant’s person” (brief and appendix for defendant-appellant in *People v Dreyden*, 15 NY3d 100 [2010], available at 2009 WL 6616034, *3 [emphasis omitted]). That conclusory language “failed to give any support or explanation whatsoever for the officer’s belief” (*Dreyden*, 15 NY3d at 103), thus deprive

ing Dreyden of due notice of the charged crime. Unlike Dreyden, defendant Sans cannot justifiably claim that the language used in the accusatory instrument impaired his “basic rights to fair notice sufficient to enable preparation of a defense and to prevent double jeopardy” (*People v Casey*, 95 NY2d 354, 366 [2000]). A reasonable defendant would have understood that the prosecution would be required to prove that his knife, once opened, locked without further manual action. We conclude that the language used in the accusatory instrument gave defendant “sufficient notice of the charged crime to satisfy the demands of due process and double jeopardy” (*Dreyden*, 15 NY3d at 103).

[2] Defendant also suggests that the accusatory instrument insufficiently alleged that the blade of the knife was “released from the handle or sheath . . . by the force of gravity or the application of centrifugal force” (Penal Law § 265.00 [5]). This contention lacks validity because the accusatory instrument specified that the officer tested the knife and determined that it opened “with centrifugal force.” Based upon that allegation, it can reasonably be inferred that the officer flicked the knife open with his wrist. In any event, the officer’s failure to specify the precise motion he used to open the knife did not prevent defendant from preparing his defense or avoiding double jeopardy, and therefore did not amount to a jurisdictional defect.

[3] Finally, defendant argues that, to be jurisdictionally valid, the accusatory instrument should have alleged the officer’s training or experience in the identification of gravity knives. He cites our directive in *Dreyden* that “[a]n arresting officer should, at the very least, explain briefly, with reference to his training and experience, how he or she formed the belief that the object observed in defendant’s possession was a gravity knife” (*Dreyden*, 15 NY3d at 104). Defendant misreads this prescription. We do not mandate that an officer recite that he or she has training and experience in identifying gravity knives or expressly state the origin of his or her skills in that area. Rather, *Dreyden* requires that an arresting officer explain the basis of his or her conclusion that the defendant’s knife was a gravity knife. The general principle applicable here is that “when an allegation involves a conclusion drawn by a police officer that involves the exercise of professional skill or experience, some explanation concerning the basis for that conclusion must be evident from the accusatory instrument” (*People v*

Jackson, 18 NY3d 738, 746 [2012])). Here, the accusatory instrument sufficiently pleaded that the police officer exercised his expertise by testing the knife and determining that it opened and locked in the manner proscribed by the gravity knife statute.

Accordingly, the order of the Appellate Term should be affirmed.

Chief Judge LIPPMAN and Judges PIGOTT, RIVERA, ABDUS-SALAAM and STEIN concur.

Order affirmed.

[41 NE3d 340, 19 NYS3d 475]

JACQUELINE EL-DEHDAN, Respondent, v SALIM EL-DEHDAN, Also
Known as SAM REED, Appellant.

Argued September 10, 2015; decided October 20, 2015

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the Second Judicial Department, from an order of that Court, entered December 18, 2013. The Appellate Division affirmed an order of the Supreme Court, Kings County (Eric I. Prus, J.), which had (1) granted plaintiff's motion to reject a referee's report, made after a hearing; and, (2) in effect, granted that branch of plaintiff's separate motion which was to hold defendant in civil contempt of court for failing to comply with the terms of an order of that court, dated January 29, 2010. The following question was certified by the Appellate Division: "Was the opinion and order of this Court dated December 18, 2013, properly made?"

El-Dehdan v El-Dehdan, 114 AD3d 4, affirmed.

HEADNOTES

Contempt — Civil Contempt — Lawful Court Order

1. In a matrimonial action, plaintiff satisfied her burden in support of her motion for civil contempt by establishing that defendant violated a lawful, clear mandate of the court requiring defendant to deposit in escrow the proceeds of the sale of real property that was the subject of a prior equitable distribution determination in favor of plaintiff, of which defendant had knowledge, and that such violation resulted in prejudice to plaintiff's rights. Defendant's counsel stipulated that defendant was previously served with the order and admitted that defendant had not complied. Additionally, defendant's conduct denied plaintiff equitable distribution in accordance with the determination awarding her title to the real property. The unambiguous directive in the order, describing the property and the exact amount of the proceeds, and directing defendant to immediately deposit those funds with counsel, left no doubt as to its requirements and time frame, and, therefore, constituted a lawful order of the court, clearly expressing an unequivocal mandate that was in effect. Plaintiff was not required to establish that defendant wilfully disobeyed the order, as wilfulness is not an element of civil contempt. Rather, civil contempt is established, regardless of the contemnor's motive, when disobedience of the court's order defeats, impairs, impedes, or prejudices the rights or remedies of a party. Moreover, defendant failed to proffer evidence of his inability to pay.

Contempt — Civil Contempt — Effect of Party's Invocation of Right against Self-Incrimination

2. In a matrimonial action in which defendant was held in civil contempt for failing to comply with an order requiring him to deposit in escrow the

proceeds of the sale of real property that was the subject of a prior equitable distribution determination in favor of plaintiff, Supreme Court did not violate defendant's constitutional rights in drawing a negative inference from his invocation at the contempt hearing of his Fifth Amendment right against self-incrimination with respect to questions regarding the location of the proceeds, where defendant failed to request to bifurcate the hearing so plaintiff's criminal contempt allegations would be considered first. A negative inference may be drawn in the civil context when a party invokes the right against self-incrimination. Defendant's invocation of the privilege did not relieve him of his burden to present adequate evidence of his financial inability to comply with the order so as to avoid civil contempt liability. Moreover, because defendant failed to request to bifurcate, he could not complain that Supreme Court erred in drawing negative inferences specifically allowed by the law.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Contempt §§ 5–6, 9–15, 116, 128, 182, 184, 191, 196, 210; AM JUR 2d, Divorce and Separation §§ 566, 841, 844, 897, 988, 990–993.

CARMODY-WAIT 2d, Enforcement of Judgments by Contempt Proceedings §§ 66:1, 66:3, 66:7; CARMODY-WAIT 2d, Spousal Support, Counsel Fees, Child Support, and Property Distribution in Matrimonial Actions §§ 118:337–118:339, 118:342, 118:348–118:350, 118:354; CARMODY-WAIT 2d, Contempt Proceedings §§ 140:90, 140:107, 140:111, 140:164, 140:166.

NY JUR 2d, Contempt §§ 9–10, 18, 41, 47, 50, 157, 204; NY JUR 2d, Domestic Relations §§ 499, 1097–1098, 2578, 2690–2693, 2698–2699, 2700, 2706, 2712.

NEW YORK MATRIMONIAL LAW AND PRACTICE §§ 8:3, 8:28–3:34.

SIEGEL, NY PRAC §§ 481–484.

ANNOTATION REFERENCE

Pleading and burden of proof, in contempt proceedings, as to ability to comply with order for payment of alimony or child support. 53 ALR2d 591.

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POINTS OF COUNSEL

Barket Marion Epstein & Kearon, LLP, Garden City (*Donna Aldea, Bruce A. Barket* and *Alexander R. Klein* of counsel), for

appellant. I. The Appellate Division's decision should be reversed and the matter remanded to the trial court, because a defendant charged with civil contempt must be permitted to collaterally attack an underlying court order that was invalid, stems from an irrefutable misrepresentation by the plaintiff, and which the trial court explicitly invited the defendant to collaterally attack. (*Blye v Globe-Wernicke Realty Co.*, 33 NY2d 15; *Fuentes v Shevin*, 407 US 67; *Leibowits v Leibowits*, 93 AD2d 535; *Matter of Department of Env'tl. Protection of City of N.Y. v Department of Env'tl. Conservation of State of N.Y.*, 70 NY2d 233; *Barrett v Third Ave. R.R. Co.*, 45 NY 628; *McCarthy v Port of N.Y. Auth.*, 21 AD2d 125; *Trapp v American Trading & Prod. Corp.*, 66 AD2d 515; *Peterson v Melchiona*, 269 AD2d 375; *Shaw v Shaw*, 97 AD2d 403; *Mount Sinai Hosp. v Davis*, 8 AD2d 361.) II. The Appellate Division's decision should be reversed, and the matter remanded to the trial court, because the Federal and New York State Constitutions do not permit a negative inference from a defendant's invocation of his Fifth Amendment rights where both civil and criminal penalties are being sought in the same proceeding. (*Griffin v California*, 380 US 609; *United States v Okatan*, 728 F3d 111; *United States v Certain Real Prop. & Premises Known as 4003-4005 Fifth Ave., Brooklyn, N.Y.*, 55 F3d 78; *Lefkowitz v Turley*, 414 US 70; *United States v United States Currency*, 626 F2d 11; *United States v Kordel*, 397 US 1; *Britt v International Bus Servs.*, 255 AD2d 143; *Anderson v Regan*, 53 NY2d 356; *People v Carroll*, 3 NY2d 686; *Sure Fire Fuel Corp. v Martinez*, 75 Misc 2d 714.) III. The Appellate Division's decision should be reversed because Salim El-Dehdan, also known as Sam Reed, may not be held in civil contempt without a showing that he willfully violated a lawful and unambiguous court order, and such showing could not be made in this case. (*Suiss v Baron*, 107 AD3d 690; *McCain v Dinkins*, 84 NY2d 216; *Matter of McCormick v Axelrod*, 59 NY2d 574; *United States v Big Crow*, 327 F3d 685; *Bearden v Georgia*, 461 US 660; *Sure Fire Fuel Corp. v Martinez*, 75 Misc 2d 714; *Matter of Hynes v Hartman*, 63 AD2d 1; *Matter of Farmer v Farmer*, 123 Misc 2d 298; *Department of Hous. Preserv. & Dev. of City of N.Y. v Ieraci*, 156 Misc 2d 646; *United States v Bobart Travel Agency, Inc.*, 699 F2d 618.)

Alomar & Associates PC, Ridgewood (*Karina E. Alomar* of counsel), for respondent. I. Defendant-appellant in this matter may not collaterally attack the validity of the mandate in a motion for contempt. (*Geller v Flamount Realty Corp.*, 260 NY 346; *Ketchum v Edwards*, 153 NY 534.) II. Defendant-appellant

failed to preserve for appeal the arguments the court erred in issuing the order of January 29, 2010 on the grounds that a hearing was required prior to the issuance of the order and the argument that the passage of time had invalidated the order of January 29, 2010. (*Glow-Brite Elec. Serv. Corp. v Frocol Rest. Corp.*, 56 AD2d 909.) III. Plaintiff-respondent met the burden necessary to prevail on both civil and criminal contempt. (*Matter of McCormick v Axelrod*, 59 NY2d 574; *Matter of Daniels v Guntert*, 256 AD2d 940; *Dwyer v De La Torre*, 279 AD2d 854; *Dalessio v Kressler*, 6 AD3d 57; *McCain v Dinkins*, 84 NY2d 216; *Matter of CBS Rubbish Removal v Town of Babylon Sanitation Commn.*, 249 AD2d 541; *Yeager v Yeager*, 38 AD3d 534; *Matter of Garbitelli v Broyles*, 257 AD2d 621; *Matter of Powers v Powers*, 86 NY2d 63; *Matter of Department of Envtl. Protection of City of N.Y. v Department of Envtl. Conservation of State of N.Y.*, 70 NY2d 233.) IV. The court properly drew an adverse inference from defendant-appellant's invocation of the Fifth Amendment. (*Carter-Wallace, Inc. v Hartz Mtn. Indus., Inc.*, 553 F Supp 45; *In re Master Key Litig.*, 507 F2d 292; *Matter of Kourakos v Tully*, 92 AD2d 1051; *United States v Neff*, 615 F2d 1235; *OSRecovery, Inc. v One Groupe Intl., Inc.*, 262 F Supp 2d 302; *Armstrong v Guccione*, 470 F3d 89; *United States v Rylander*, 460 US 752; *United States v Certain Real Prop. & Premises Known as 4003-4005 Fifth Ave., Brooklyn, N.Y.*, 55 F3d 78; *Kuriansky v Bed-Stuy Health Care Corp.*, 135 AD2d 160, 73 NY2d 875; *Marine Midland Bank v Russo Produce Co.*, 50 NY2d 31.)

OPINION OF THE COURT

RIVERA, J.

Defendant challenges a determination of civil contempt for his failure to comply with a January 2010 order issued in the course of the parties' matrimonial proceeding. That order requires him to deposit in escrow the proceeds of the sale of properties which are the subject of a prior equitable distribution determination in favor of plaintiff.

We conclude that plaintiff met her burden in support of her motion for civil contempt by establishing that defendant violated a lawful, clear mandate of the court, of which he had knowledge, and that such violation resulted in prejudice to her rights. We reject defendant's contentions that a civil contempt determination requires a finding of a contemnor's wilful violation of the underlying order, and that Supreme Court could not draw a negative inference from defendant's invocation of his

Fifth Amendment right against self-incrimination at the contempt hearing.

We, therefore, conclude that the evidence adduced at the hearing established a sufficient basis for the civil contempt judgment. Accordingly, we answer in the affirmative the certified question as to whether the Appellate Division properly affirmed Supreme Court.

I.

Defendant, Salim El-Dehdan, also known as Sam Reed, concedes that he has not complied with an order issued in a matrimonial proceeding commenced by plaintiff Jacqueline El-Dehdan, defendant's former spouse. To address the specific issue of the propriety of the contempt order challenged in this appeal, we begin with a review of the somewhat tortuous procedural history of the parties' matrimonial action.

A. The Matrimonial Action for Divorce and Equitable Distribution

In October 2008, plaintiff commenced an action for divorce and equitable distribution, and thereafter moved by order to show cause for pendente lite relief seeking, in part, to restrain defendant's transfer of any real property held jointly or individually by the parties. The signed order to show cause set a hearing date on the motion, but did not include a restraint on the transfer of defendant's property. Soon thereafter defendant cross-moved to dismiss the matrimonial action as barred on res judicata grounds, claiming the parties were divorced pursuant to a Lebanese judgment, and furthermore, that plaintiff's prior New York divorce action was dismissed with prejudice.

At an initial court appearance in January 2009, Supreme Court indicated that another hearing would likely be necessary on the question of the legality of the Lebanese divorce. The record of the hearing demonstrates that the court and the parties were under the impression that the October 2008 order to show cause mandated a restraint on defendant's properties, and that the court intended to extend that restraint into the future. Before adjourning to permit additional submissions by the parties, the following colloquy ensued.

“THE COURT: . . . I get the feeling I’m going to need a hearing. I get the feeling you’re going to need a lot of different people coming in to testify.

But I'm going to keep the status quo. All restraints will remain in full force and effect pending further order of this Court. . . .

"[DEFENDANT'S COUNSEL]: Just for clarification, as far as restraining orders, what is being restrained?

"THE COURT: All their assets.

"[DEFENDANT'S COUNSEL]: Joint assets, your Honor?

"THE COURT: Anything you have. Bank accounts, you can't close out any accounts. Any buildings, you can't sell, mortgage, can't do anything. And don't violate my order.

"THE DEFENDANT: Of course. I have nothing anymore, your Honor. I have no business anymore, because I been [sic] recovering from the expenses that I paid for the year 2000.

"THE COURT: Okay. We're going to see what expenses were paid."

Notwithstanding defendant's statements that he would comply with the court's directive and that he did not have any property that would be subject to restraint, within a few weeks of this court appearance, defendant contracted to transfer one of his real properties, which he then sold the following month. A week later, he contracted to sell another property. Specifically, he entered into a contract to sell 171 Ainslie Street, Brooklyn, New York, also known as 254/256 Leonard Street, on February 24, 2009, and then transferred this property on March 31, 2009. He also contracted to sell and transferred 60-17 60th Road, Maspeth, New York on April 6, 2009. Defendant would later concede that he transferred the Brooklyn property for \$950,000, and the Maspeth property for no consideration.

At the next hearing, held on February 4, 2009 and attended by defendant and his counsel, the court informed the parties that it was sending the legal validity of the Lebanese divorce and the equitable distribution matters to a referee for a hearing and recommended determination. The court then referenced property in defendant's control, saying, "I think there's some money out there. But right now, you want to hold on to your money, that's fine." The court continued, "[w]e are going to go

for a hearing. If, in fact, you are divorced, then we will move on to the next issue of equitable distribution. If you are not divorced, we are here anyway.”

Defendant failed to appear at the scheduled April 2009 date for the referee’s hearing. At that time, defendant’s counsel moved to be relieved from the case, and stated that she had told defendant that his appearance at the hearing was required, and that counsel would seek to be relieved. Supreme Court granted counsel’s motion.

The court then held defendant in default for failure to appear, and denied, with prejudice, defendant’s pending motion to dismiss plaintiff’s matrimonial proceeding. The court adjourned the referee’s inquest on equitable distribution, and modified the assignment to include consideration of plaintiff’s grounds for divorce.

Although served with notice, defendant failed to appear at the October 2009 rescheduled referee’s inquest. Nevertheless, the referee proceeded with the inquest, issued a decision granting plaintiff’s motion for divorce on grounds of cruel and inhuman treatment, awarded plaintiff exclusive title to the Brooklyn and Maspeth properties and awarded title to defendant in property located in Glendale, New York, and a dry-cleaning business he owned and operated.

Supreme Court subsequently denied defendant’s motions to vacate the April 2009 denial of his cross motion to dismiss plaintiff’s matrimonial action, as well as the referee’s decision granting a divorce and equitable distribution. The Appellate Division dismissed defendant’s appeal from this decision.

B. Plaintiff’s Motion for Civil Contempt and Deposit of the Transfer Proceeds

After plaintiff’s attorney learned defendant had transferred the Brooklyn and Maspeth properties, she filed an order to show cause seeking, inter alia, that defendant be held in civil contempt for violation of the October 2008 order, and that he be required to deposit the proceeds from the transfers with plaintiff’s attorney. Thereafter, in January 2010, Supreme Court signed the order to show cause, which in addition to scheduling a hearing on plaintiff’s contempt motion, directed defendant to immediately deposit with plaintiff’s counsel the net proceeds of the transfers, reduced by broker’s fees, taxes

and mortgage payments.¹ Defendant was personally served with this order to show cause.

As is clear from the record of the contempt hearing, the court and all the parties were under the mistaken belief that the October 2008 order to show cause prohibited the transfers. Supreme Court found defendant in contempt and ordered him incarcerated until he paid \$1,500,000 and returned the deeds and ownership of the Brooklyn and Maspeth properties and the dry-cleaning business to the marital estate. Defendant remained incarcerated for two weeks, until defendant's new counsel discovered that the October 2008 order to show cause contained no restraint provision and brought the matter to the court's attention, whereupon the court ordered defendant's immediate release.

C. Plaintiff's Motion for Civil and Criminal Contempt Based on the January 2010 Order

In August 2010, plaintiff filed a motion to hold defendant in civil and criminal contempt for his failure to deposit the proceeds with plaintiff's attorney as required by the January 2010 order. Defendant cross-moved to vacate that order, arguing that it was void because it was obtained by plaintiff's fraud upon the court, namely her misrepresentations that the October 2008 order prohibited defendant's transfer of the properties. Although defendant conceded he sold the Brooklyn property, he disputed the amount of the proceeds, claiming he received \$561,046.21, not \$950,000 as plaintiff alleged. He further asserted that he no longer had any of these funds. With respect to the Maspeth property, he claimed he received no money for the transfer, never had possession of the property, and, in fact, he only took title as a favor to friends so that they could secure a new mortgage. He also claimed that the property since had been transferred back to the owners through their son. He further contended that he did not act in wilful disobedience of a judicial mandate because no order was in place when he actually transferred the properties.

1. The order also placed a restraint on the business of defendant and on the Glendale, New York property; required defendant to provide plaintiff's attorney with copies of the contract and all closing documents for the transfers of the Brooklyn and Maspeth properties; restricted defendant from accessing any bank account or other financial account or fund that might be in his name or the name of his business or an agent; ordered defendant to submit his passport to the court; and ordered that defendant would be responsible for all tax consequences of the transfers of the Brooklyn and Maspeth properties.

At the hearing before the referee assigned to consider the parties' motions, defendant's counsel stipulated that defendant was served with a copy of the January 2010 order in February 2010, and that defendant failed to deposit the funds in plaintiff's counsel's escrow account as required by that order. He further stipulated to submission of the recorded deed that evidenced the transfer of the Brooklyn property.

Plaintiff testified on her own behalf that she received none of the proceeds from the transfer of the Brooklyn property and submitted into evidence proof of the transfer, including defendant's contract of sale and closing. Plaintiff further submitted into evidence an affidavit of personal service for the January 2010 order. Plaintiff also called defendant as a witness. During his testimony he refused to answer any questions related to the proceeds from the transfer, and invoked his Fifth Amendment right against self-incrimination. Specifically, he refused to explain what he did with the proceeds from the transfer and whether he was currently in possession of the money.

The referee found that defendant had actual knowledge of the terms of the January 2010 order, had dissipated marital assets after the commencement of the matrimonial action, namely the Brooklyn and Maspeth properties, and had not deposited the proceeds from the transfer. The referee found specifically that less than one month after he filed his affidavit in support of his motion to dismiss plaintiff's action for divorce, defendant executed a contract of sale for the Brooklyn property for \$950,000, received a \$150,000 deposit for the sale, wired \$516,046.21 to a bank from the sale proceeds, and that the deed was thereafter recorded. However, the referee concluded that plaintiff failed to establish that defendant could deposit the funds after the order was issued, and therefore recommended denial of the motion for civil contempt. The referee also recommended denial of the motion for criminal contempt, finding that plaintiff failed to establish defendant's wilful violation of the January 2010 order.

In September 2011, Supreme Court granted plaintiff's motion to set aside the referee's report, concluding that the referee's findings were not supported by the record. After finding that all the elements of civil contempt were satisfied in this case, the court noted that the Fifth Amendment did not relieve defendant of the usual evidentiary burden in a civil proceeding, and also found that defendant's actions were wilful. Supreme Court thus found defendant in contempt of court for

failing to comply with the January 2010 order, and provided that he “c[ould] purge himself of th[e] contempt” by depositing his passport and the proceeds from the Brooklyn property transfer within 20 days of the contempt order. Failure to do so would result in his incarceration.

The Appellate Division unanimously affirmed, treating Supreme Court’s decision as, in effect, granting only plaintiff’s motion for civil contempt because the court did not impose a definite jail term without opportunity to purge the contempt (114 AD3d 4 [2d Dept 2013]). In a comprehensive and insightful opinion, the Appellate Division broadly addressed and clarified the burdens of proof where the contemnor invokes the Fifth Amendment privilege against self-incrimination, as well as what the Court considered to be inconsistencies in the case law regarding the elements of civil contempt. The Appellate Division granted defendant leave to appeal, and certified the question whether its opinion and order was properly made. (2014 NY Slip Op 72178[U] [2d Dept 2014].)

II.

Defendant challenges the Appellate Division’s decision on three grounds: plaintiff failed to establish the necessary elements of civil contempt, including defendant’s wilful violation of a lawful court order;² he was denied the opportunity to collaterally attack the January 2010 order; and in the context of a hearing on a joint civil and criminal contempt motion, Supreme Court may not draw a negative inference from defendant’s invocation of his Fifth Amendment right to remain silent. We are unpersuaded by these arguments, and address each of them in turn.

A. Evidence of Defendant’s Civil Contempt

1. Elements of Civil Contempt and Plaintiff’s Burden of Proof

Under Judiciary Law § 753,

“[a] court of record has power to punish, by fine and imprisonment, or either, a neglect or violation of duty, or other misconduct, by which a right or remedy of a party to a civil action or special

2. Defendant does not challenge the Appellate Division’s determination that Supreme Court granted only the civil contempt branch of plaintiff’s motion, and requests specifically that we reverse and vacate the civil contempt judgment. Our review is therefore limited to the matter as briefed by defendant.

proceeding, pending in the court may be defeated, impaired, impeded, or prejudiced” (Judiciary Law § 753 [A]; *see generally* *People v Sweat*, 24 NY3d 348, 353-354 [2014] [discussing Judiciary Law § 753]).

In *Matter of McCormick v Axelrod* (59 NY2d 574 [1983]), this Court described the elements necessary to support a finding of civil contempt. First, “it must be determined that a lawful order of the court, clearly expressing an unequivocal mandate, was in effect” (*id.* at 583). Second, “[i]t must appear, with reasonable certainty, that the order has been disobeyed” (*id.*). Third, “the party to be held in contempt must have had knowledge of the court’s order, although it is not necessary that the order actually have been served upon the party” (*id.*). Fourth, “prejudice to the right of a party to the litigation must be demonstrated” (*id.*; *see Karg v Kern*, 125 AD3d 527, 528-529 [1st Dept 2015] [contempt requires a showing of a violation of a clear and unequivocal court mandate and that the movant was thereby prejudiced]; *Matter of Vernon D. [Tarah F.]*, 119 AD3d 784, 784 [2d Dept 2014] [civil contempt was properly found where the contemnor did not obey a clear and unequivocal order]; *Matter of North Tonawanda First v City of N. Tonawanda*, 94 AD3d 1537, 1538 [4th Dept 2012] [order violated must be an unequivocal mandate]; *Connors v Pallozzi*, 241 AD2d 719, 719 [3d Dept 1997] [evidence proving with a reasonable certainty that a prior court order has been violated will support a finding of civil contempt]; *N.A. Dev. Co. v Jones*, 99 AD2d 238, 242 [1st Dept 1984] [movant must establish a reasonable certainty]; *Power Auth. of State of N.Y. v Moeller*, 57 AD2d 380, 382 [3d Dept 1977] [personal service is not necessary if the party has actual knowledge of the order], *lv denied* 42 NY2d 806 [1977]).

In order to carry her burden, plaintiff had to establish by clear and convincing evidence defendant’s violation of the January 2010 order (*Town Bd. of Town of Southampton v R.K.B. Realty, LLC*, 91 AD3d 628, 629 [2d Dept 2012] [the movant bears the burden of establishing contempt with clear and convincing evidence]; *Tener v Cremer*, 89 AD3d 75, 78 [1st Dept 2011] [same]; *Town of Copake v 13 Lackawanna Props., LLC*, 73 AD3d 1308, 1309 [3d Dept 2010] [civil contempt requires clear and convincing evidence]; *Dietrich v Michii*, 57 AD3d 1527 [4th Dept 2008] [same]; *Raphael v Raphael*, 20 AD3d 463, 463-464 [2d Dept 2005] [same]; *Graham v Graham*, 152 AD2d 653, 654-655 [2d Dept 1989] [same]).

2. Plaintiff's Evidence

Here, there is no genuine dispute that plaintiff established, by clear and convincing evidence, defendant's requisite knowledge of the order and noncompliance. Defendant's counsel stipulated at the contempt hearing before the referee that defendant was previously served with the January 2010 order, and also admitted that defendant had not complied. Indeed, now five years after the order was signed and issued defendant has yet to comply.

Plaintiff also easily established that defendant's failure to deposit the proceeds was prejudicial to her interests. Defendant's conduct denied plaintiff equitable distribution in accordance with the 2009 determination awarding her title to the Brooklyn and Maspeth properties.

The real dispute between the parties centers on whether "a lawful order of the court, clearly expressing an unequivocal mandate, was in effect" (*McCormick*, 59 NY2d at 583). We conclude that the January 2010 order constitutes the lawful order which defendant failed to comply with, and defendant's efforts to distract our analysis from that central and obvious conclusion are without legal or record factual support.

[1] The signed January 2010 order explicitly states that the defendant

"shall deposit immediately with the Plaintiff's attorney the sum of nine hundred fifty thousand (\$950,000.00) dollars which is the sum of money he purportedly received from the transfer of [the property] 171 Ainslie Street, Brooklyn, New York and 64-17 60th Road, Maspeth, New York, minus the money paid [for] the real estate broker, transfer taxes and payment of the underlying mortgage."

This unambiguous directive, describing the property and the exact amount of the proceeds, and directing defendant to immediately deposit those funds with counsel, left no doubt as to its requirements and time frame, and, therefore, constitutes "a lawful order of the court, clearly expressing an unequivocal mandate, [that] was in effect" (*McCormick*, 59 NY2d at 583).

Nevertheless, defendant claims that the January 2010 order is not lawful. According to defendant, the order is a nullity because it was procured based on plaintiff's attorney's misrepresentations, and in violation of his due process rights to notice and a hearing. In essence what defendant seeks to do

is excise from the January 2010 order its mandatory language that he deposit the proceeds of the transfer. However, the fact that the January 2010 order contains plaintiff's request for contempt does not negate the order's clear directive that defendant deposit the proceeds. That portion of the order did not seek to penalize defendant but rather to preserve funds for plaintiff's benefit. As the referee's report on the contempt motion explained, part of the intent of the January 2010 order was "to preserve funds to protect the plaintiff's rights to equitable distribution as decided by the undersigned in the decision issued" in December 2009.

We further note that defendant's description of plaintiff's request for relief undermines his current argument that the January 2010 order sought only to address a violation of a (nonexistent) restraint provision in the October 2008 order. In his brief to this Court, defendant declares that plaintiff's order to show cause "sought multiple layers of relief—including (a) contempt, and (b) an immediate deposit of money," leading Supreme Court to "address[] only the first issue—namely, whether Mr. Reed should be held in contempt. It never addressed the separate and immediate order for Mr. Reed to convey money to the Plaintiff's attorney." Thus, defendant, in actuality, recognizes that the provisions of the January 2010 order reflect different, compartmentalized directives.

With respect to defendant's due process argument, the record does not support defendant's claim that he was denied notice and a hearing. To the contrary, the record establishes that he received notice of the hearing as he was personally served with the January 2010 order. Furthermore, his arguments in opposition to the motion for contempt, and in support of his cross motion to vacate the January 2010 order, were fully submitted and considered by Supreme Court prior to issuance of its civil contempt order.

To the extent defendant complains that the January 2010 order is invalid because it was issued *ex parte*, the law is clear that a court is authorized to issue an order to preserve marital property, both in advance of, and upon, a determination of equitable distribution. In accordance with Domestic Relations Law § 234, in an action for divorce the court may "(1) determine any question as to the title to property arising between the parties, and (2) make such direction, between the parties, concerning the possession of property, as in the court's discretion justice requires having regard to the circumstances of the

case and of the respective parties” (*see also* CPLR 2214 [d] [a “court in a proper case may grant an order to show cause, to be served in lieu of a notice of motion”]; CPLR 6313 [a] [allowing for a temporary restraining order]; 22 NYCRR 202.7 [f] [permitting the court to grant temporary injunctive relief upon an affirmation demonstrating significant prejudice to the party seeking the restraining order if prior notice is given to the adverse party]). Therefore, the January 2010 order to deposit the proceeds from the transfer was well within the court’s authority (*see e.g. Nederlander v Nederlander*, 102 AD3d 416, 416 [1st Dept 2013] [“in order to protect (the) expectancy (of spouses in marital property) pending equitable distribution, to maintain the status quo, and to prevent the dissipation of marital property, the court must be able to issue orders to ensure that such marital property is protected should it later become the subject of equitable distribution”]; *Maillard v Maillard*, 211 AD2d 963, 964 [3d Dept 1995] [“Domestic Relations Law § 234 allows courts to issue preliminary injunctions aimed at the preservation of marital assets pending equitable distribution. . . . Proper cause may be shown to exist by the admission . . . that there was a conversion and/or dissipation of marital assets” (citations omitted)]; *Nebot v Nebot*, 139 AD2d 635 [2d Dept 1988] [as defendant’s only claim to a property purchased with the separate funds of the plaintiff was to any part of the appreciation she might have contributed to, it was appropriate for the court to require that half of the proceeds of the sale be placed in escrow while the determination was pending]; *Palitz v Palitz*, 111 AD2d 119, 119 [1st Dept 1985] [Court found it appropriate to deposit half the assets of a dissolved corporation in an escrow account while the determination was made as to whether the corporation was marital property, and to allow for “other prudent investments yielding substantially greater returns”]; *Monroe v Monroe*, 108 AD2d 793, 794 [2d Dept 1985] [Domestic Relations Law § 234 allows courts to issue preliminary injunctions outside of the requirements of CPLR article 63]; *Leibowits v Leibowits*, 93 AD2d 535, 535-536 [2d Dept 1983] [“Section 234 of the Domestic Relations Law provides the authority for the issuance of an order restraining disposition of marital assets during the pendency of a divorce action. Therefore, compliance with the formalities and jurisprudential requirements of CPLR article 63 relative to preliminary injunctions is not a prerequisite to an order of restraint”]; *Perry v Perry*, 79 AD2d 851, 851 [4th Dept 1980] [“(i)n an action for

divorce the court may determine any question as to the title to property arising between the parties”]; *Weinstock v Weinstock*, 8 Misc 3d 221, 223 [Sup Ct, Nassau County 2005] [“Section 234 of the Domestic Relations Law specifically empowers the court to determine any question as to the title or possession of property as between the parties in a matrimonial action This power . . . necessarily includes the power to prevent a party from frustrating such delivery by improper disposition of assets”)].³

Defendant is also foreclosed from arguing to this Court that the equitable distribution determination itself is invalid. Having previously unsuccessfully challenged that decision, defendant should not be given a “second bite at the apple” in this appeal from the civil contempt judgment. Moreover, inasmuch as the court awarded plaintiff the Brooklyn and Maspeth properties in its equitable distribution determination, the propriety of which is not at issue on this appeal, it was perfectly lawful for the court to require defendant to deposit the proceeds of his transfer of those properties with plaintiff’s counsel, regardless of whether the initial transfer of the properties violated any court order.

3. Wilfulness is Not a Required Element of Civil Contempt

Defendant argues that Supreme Court’s finding of contempt is not supported by the record because the evidence failed to establish that he wilfully disobeyed the January 2010 order. According to defendant our case law establishes that wilful conduct is a necessary element of both civil and criminal contempt, and that what distinguishes the two is merely the

3. In 2009, the New York Legislature amended the Domestic Relations Law to provide upon commencement of a divorce action for automatic orders restraining the parties from transferring or disposing of marital assets, without written consent of the other party or consent of the court (Domestic Relations Law § 236 [B] [2] [b]). As described in a letter from the Chair of the Assembly Judiciary Committee to the Governor, the automatic orders were intended to address the hardship to one spouse caused by unilateral dissipation of marital assets upon commencement of divorce proceedings.

“Having standardized orders automatically in effect from the commencement of a case would ensure timely prevention of dissipation of assets and would eliminate the expense and delays involved in making applications for temporary restraining orders. It is not uncommon for parties to dissipate assets as soon as divorce papers are served. This results in extreme hardship to one party in the divorce action” (Letter from Chair of Assembly Jud Comm, June 10, 2009, Bill Jacket, L 2009, ch 72 at 5).

level of a contemnor's wilfulness. Defendant's arguments are contradicted by statute as well as our prior holdings (*McCormick*, 59 NY2d at 583).

Turning to the relevant statutory provision, nowhere in Judiciary Law § 753 (A) (3) is wilfulness explicitly set forth as an element of civil contempt (*see also McCain v Dinkins*, 84 NY2d 216, 226 [1994]). Indeed the only mention of wilfulness for civil contempt is in section 753 (A) (1), which is not at issue in this case as it applies only to "[a]n attorney, counsellor, clerk, sheriff, coroner," or someone otherwise selected or appointed for judicial or ministerial service. In contrast, Judiciary Law § 750, the criminal contempt provision, permits a court to impose punishment for criminal contempt only for "[w]ilful disobedience to its lawful mandate" (Judiciary Law § 750 [A] [3]; *see also Sweat*, 24 NY3d at 353-354). This statutory language makes clear that where the legislature intended to require wilfulness, it knew how to do so, and any omission of such element is intentional (McKinney's Cons Laws of NY, Book 1, Statutes § 74; *Pajak v Pajak*, 56 NY2d 394, 397 [1982] ["(t)he failure of the Legislature to include a matter within a particular statute is an indication that its exclusion was intended"]). We are, of course, not at liberty to read into the statute what is not mandated by the legislature (McKinney's Cons Laws of NY, Book 1, Statutes § 94; *Lederer v Wise Shoe Co.*, 276 NY 459, 465 [1938] ["(w)e do not by implication read into a clause of a rule or statute a limitation for which we find no sound reason and which would render the clause futile"]).

Apart from the statute, this Court has not imposed a wilfulness requirement for civil contempt (*McCain*, 84 NY2d at 226; *McCormick*, 59 NY2d at 583). Nevertheless, defendant relies on *McCormick* and *McCain v Dinkins* to persuade us that, absent a finding of wilfulness, civil contempt cannot be imposed. However, those cases stand for the opposite proposition.

In *McCormick* this Court explained that civil contempt seeks "the vindication of a private right of a party to litigation and any penalty imposed upon the contemnor is designed to compensate the injured private party for the loss of or interference with that right" (*McCormick*, 59 NY2d at 583, citing *State of New York v Unique Ideas*, 44 NY2d 345 [1978]). Whereas, criminal contempt "involves vindication of an offense against public justice and is utilized to protect the dignity of the judicial system and to compel respect for its mandates" (*id.*, citing *King*

v Barnes, 113 NY 476 [1889]). This Court then stated that “the element which serves to elevate a contempt from civil to criminal is the level of willfulness with which the conduct is carried out” (*id.*).

Defendant argues the Court must have meant that both forms of contempt require wilfulness, just in varying degrees. We reject this interpretation because it depends on reading the language in isolation, rather than as an integral part of the Court’s entire analysis. Read in context, it is clear that the language does not mean that wilfulness is required. Indeed, the Court’s analysis is devoid of any mention or application of wilfulness as a necessary element of civil contempt. Instead, the Court granted the motion for civil contempt, despite its conclusion that there was no evidence of wilfulness to support a finding of criminal contempt.

The meaning to be attached to the Court’s “level of wilfulness” language is that the contemnor’s action must connote an intentionality not otherwise indicative of wrongfulness (*McCormick*, 59 NY2d at 583). In other words, the contemnor must have a consciousness that reflects an awareness of the act that is other than “unwitting conduct” (*Bryan v United States*, 524 US 184, 191 [1998]; *see also* Black’s Law Dictionary 1834 [10th ed 2014] [defining willful as “(v)oluntary and intentional”]).

This Court again upheld a finding of civil contempt without requiring wilfulness in *McCain* (84 NY2d at 226-227). In that case, the Court cited to *McCormick*’s distinction between criminal and civil contempt as based on “the level of willfulness associated with the conduct” and, just as in *McCormick*, engaged in a civil contempt analysis without reference to wilfulness as a necessary element (*id.* at 226). As these cases establish, wilfulness is not an element of civil contempt. We, therefore, agree with the Appellate Division that civil contempt is established, regardless of the contemnor’s motive, when disobedience of the court’s order “defeats, impairs, impedes, or prejudices the rights or remedies of a party” (*El-Dehdan*, 114 AD3d at 17 [citation omitted]).

4. Defendant’s Response

Once plaintiff met her burden and established that defendant violated the order to deposit the proceeds from the transfer, it was incumbent upon defendant to proffer evidence of his inability to pay. Defendant’s argument to the contrary is unpersuasive because, as the contemnor, he is the party who is

charged with violating the court's order, and also the party with access to the relevant financial information regarding his ability to pay.

Nonetheless, defendant failed to submit evidence that he could not pay due to a lack of sufficient funds, economic distress or financial hardship, or some other obstacle to his compliance with the January 2010 order to deposit the proceeds. Instead, he submitted an affidavit containing bald face statements that by January 29, 2010, he "was no longer in possession of the proceeds of the March, 2009 sale," that he received less from the sale of the Brooklyn property than evidenced by the transfer documents, and that he received nothing from the transfer of the Maspeth property as he was merely holding it in his name for friends. Such "[v]ague and conclusory allegations of . . . inability to pay or perform are not acceptable" (*Matter of Storm*, 28 AD2d 290, 294 [1st Dept 1967]). Rather, courts have required a more specific showing of the contemnor's economic status (*see e.g. Yeager v Yeager*, 38 AD3d 534, 534-535 [2d Dept 2007] [plaintiff husband met his burden of showing his inability to comply with the judgment by establishing he had no additional source of funds after accounting for payments made in accordance with the pendente lite order and his reasonable needs, and where his investment account was frozen pursuant to court order]; *Ovsanikow v Ovsanikow*, 224 AD2d 786, 787 [3d Dept 1996] [an undocumented assertion of the inability to pay without any evidentiary support, will not suffice to provide the defense of a financial inability to pay]; *Bowie v Bowie*, 182 AD2d 1049, 1051 [3d Dept 1992] [contemnor failed to establish inability to pay where papers consisted of a brief two-page affidavit wherein he summarily denied the arrearages and asserted financial inability to pay, but lacked current documentation supporting his claims]; *Lake v Schuner*, 106 AD2d 893, 894 [4th Dept 1984] [record established that plaintiff was impoverished and therefore unable to comply with his support order]; *and compare Matter of Kainth v Kainth*, 36 AD3d 915, 916 [2d Dept 2007] ["(t)he evidence adduced at the hearing established that the father's income for the 12 months preceding the hearing was insufficient to permit payments in accordance with the order of support. Further, the father's loss of higher paying employment was not self-imposed, and the record contains evidence of his active, but unsuccessful, pursuit of similar employment"], *lv dismissed* 8 NY3d 1003 [2007]).

B. Collateral Attack on the January 2010 Order

Defendant's argument that he was entitled to collaterally challenge the January 2010 order in the contempt proceeding is simply another version of his claim that the October 2008 order did not prohibit his transfer of the properties. Defendant, however, ignores the fact that the October 2008 order is not the subject of the civil contempt order, and, consequently, the contents of the October 2008 order are not material to the issues before us.

Instead, the contempt order defendant challenges on this appeal is based on his failure to comply with the January 2010 order, which required that he deposit with the plaintiff's attorney the proceeds from the transfer. Whether his transfer of the property initially violated any order of the court is beside the point. Moreover, as we have already discussed, the court was well within its authority to issue the January 2010 order.

C. Defendant's Invocation of the Fifth Amendment

Defendant contends that Supreme Court improperly drew a negative inference from his invocation of his Fifth Amendment right against self-incrimination during the contempt hearing. He maintains that by holding one hearing on plaintiff's joint motion for civil and criminal contempt he was forced to choose between protecting himself against civil liability by testifying as to his lack of funds, and exercising his rights under the Fifth Amendment to remain silent so as to avoid criminal contempt. We find his argument unpersuasive and conclude that under the circumstances of this case, where defendant failed to take steps to avoid the alleged dilemma complained of here, Supreme Court acted within its authority to draw a negative inference, and in so doing did not violate defendant's constitutional rights.

[2] The Fifth Amendment of the United States Constitution provides that "[n]o person shall be . . . compelled in any criminal case to be a witness against himself." However, the right against self-incrimination does not automatically insulate a party to a civil action from potential liability. Both the United States Supreme Court, in *Baxter v Palmigiano* (425 US 308, 318 [1976]), and this Court, in *Marine Midland Bank v Russo Produce Co.* (50 NY2d 31, 42 [1980]), have held that a negative inference may be drawn in the civil context when a party invokes the right against self-incrimination. Here, defendant could invoke the privilege, but that did not relieve him of his

burden to present adequate evidence of his financial inability to comply with the January 2010 order so as to avoid civil contempt liability (*United States v Rylander*, 460 US 752, 758 [1983] [invocation of Fifth Amendment does not “substitute for evidence that would assist in meeting a burden of production”]; *Access Capital v DeCicco*, 302 AD2d 48, 51 [1st Dept 2002] [(w)hile a party may not be compelled to answer questions that might adversely affect his criminal interest, the privilege does not relieve the party of the usual evidentiary burden attendant upon a civil proceeding; nor does it afford any protection against the consequences of failing to submit competent evidence”]). As we have explained, defendant relied on his conclusory statements that he no longer has the proceeds of the transfers and that he has no funds to deposit with the respondent’s attorney. He cannot seek to avoid the consequences of this failure to proffer sufficient evidence by invoking his Fifth Amendment right.

We might view this case differently if defendant had sought relief from Supreme Court to avoid the prejudice he now claims was the result of a joint civil and criminal contempt hearing. If defendant was concerned about the spillover effect of invoking his Fifth Amendment right, he could have sought to bifurcate the hearing so that the court would first consider plaintiff’s criminal contempt allegations (CPLR 2201; *Britt v International Bus Servs.*, 255 AD2d 143, 144 [1st Dept 1998]). He chose not to do so. Instead, he seeks reversal of the contempt determination, or, in the alternative, that we grant a new hearing solely on civil liability. The latter is essentially a request for the very remedy he could have sought from Supreme Court if he had filed a request to bifurcate. Thus, because he failed to seek this relief before Supreme Court, in the first instance, he cannot complain that Supreme Court erred in drawing negative inferences specifically allowed by law.

We are especially reticent in the context of matrimonial proceedings to issue a decision that may, unintentionally, undermine legislative efforts to protect parties from unauthorized unilateral dissipation of marital assets. To permit defendant to avoid contempt by refusing to answer, even though he failed to request that the court hold the civil contempt branch of plaintiff’s motion in abeyance pending the outcome of the criminal contempt branch, would incentivize defendant, and those similarly situated, to refrain from seeking relief initially before the contempt court, and later argue on appeal that the

proceeding was constitutionally infirm. We decline to sanction this conduct where doing so will result in prejudice to those, like plaintiff, who have established the existence of conduct evincing civil contempt, and will thereby further delay and obstruct plaintiff's efforts to secure any remaining marital assets she may be entitled to under the prior equitable distribution determination.

III.

Accordingly, the Appellate Division order should be affirmed, with costs, and the certified question answered in the affirmative.

Chief Judge LIPPMAN and Judges PIGOTT, ABDUS-SALAAM, STEIN and FAHEY concur.

Order affirmed, with costs, and certified question answered in the affirmative.

[41 NE3d 353, 19 NYS3d 488]

NOMURA ASSET CAPITAL CORPORATION et al., Respondents-Appellants, v CADWALADER, WICKERSHAM & TAFT LLP, Appellant-Respondent.

Argued September 8, 2015; decided October 22, 2015

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, entered February 13, 2014. The Appellate Division modified, on the law, an order of the Supreme Court, New York County (Melvin L. Schweitzer, J.; op 35 Misc 3d 1222[A], 2012 NY Slip Op 50815[U] [2012]), which had denied defendant's motion for summary judgment dismissing the first cause of action. The modification consisted of granting the motion with respect to that part of plaintiff's first cause of action alleging that defendant failed to properly advise plaintiffs. The Appellate Division affirmed the order as modified. The following question was certified by the Appellate Division: "Was the order of this Court, which modified the order of Supreme Court, on the law, to grant defendant-appellant's motion with respect to that part of the cause of action alleging that defendant failed to properly advise plaintiffs, and otherwise affirmed, properly made?"

Nomura Asset Capital Corp. v Cadwalader, Wickersham & Taft LLP, 115 AD3d 228, modified.

HEADNOTE

Attorney and Client — Malpractice — Commercial Mortgage-Backed Securities — Advising Client Regarding Securitization Trust

Defendant law firm was entitled to summary judgment dismissing plaintiffs' legal malpractice cause of action alleging that defendant failed to provide appropriate legal advice and perform necessary due diligence concerning whether a series of plaintiffs' securitized commercial mortgage loans qualified as real estate mortgage investment conduit (REMIC) trusts under federal tax regulations, where defendant demonstrated that it exercised the ordinary reasonable skill and knowledge commonly possessed by a member of the legal profession in advising plaintiffs how to satisfy the REMIC 80% test and relying on plaintiffs' representations in issuing an opinion that the securitization was REMIC-qualified. The testimony from several of plaintiffs' employees that they did not know how to apply the REMIC 80% test showed that some employees did not understand REMIC principles, not that defendant failed to provide appropriate legal advice or refused to answer plaintiffs' questions about REMIC qualification. Moreover, defendant submitted evidence that it was plaintiffs' responsibility to review

the securitization appraisals, that defendant advised plaintiffs that it would not independently verify the accuracy of plaintiffs' representations and warranties unless asked to do so, and that plaintiffs did not make any such request. The record made clear that the parties understood that plaintiffs, pursuant to their own directives, were responsible for securing the appraisals; reviewing whether, based on those appraisals, the loans complied with the 80% test; and confirming the veracity and accuracy of plaintiffs' warranties as set forth in the mortgage loan purchase and sale agreement. Rather than establish that triable issues of fact existed, plaintiffs' evidence showed that the parties—sophisticated business entities in the securitization field—held similar views that the appraisal provided sufficient confidence that the property was REMIC-qualified.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Attorneys at Law §§ 139, 201–205, 208, 210, 218, 221–225, 227, 229, 234.
CARMODY-WAIT 2d, Officers of Court §§ 3:453, 3:457, 3:459, 3:467, 3:471; CARMODY-WAIT 2d, Complaints in Particular Actions §§ 29:233, 29:235, 29:240, 29:312–29:313.
DOBBS LAW OF TORTS §§ 245. 718–728.
NY JUR 2d, Malpractice §§ 41, 43, 48, 58, 60, 65, 69–76, 80, 84, 91–92, 95, 98.
NEW YORK LAW OF TORTS §§ 13:33–13:34, 13:37.

ANNOTATION REFERENCE

Legal malpractice: negligence or fault of client as defense. 10 ALR5th 828.

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POINTS OF COUNSEL

Cravath, Swaine & Moore, LLP, New York City (*David R. Marriott* of counsel), for appellant-respondent. I. The First Department erred in holding that the deal highlights document raised a potential red flag. (*AmBase Corp. v Davis Polk & Wardwell*, 8 NY3d 428; *Rosner v Paley*, 65 NY2d 736; *Darby & Darby v VSI Intl.*, 95 NY2d 308.) II. The First Department erred in finding a triable issue where the undisputed evidence shows that Cadwalader, Wickersham & Taft LLP met the standard of care. (*Alvarez v Prospect Hosp.*, 68 NY2d 320; *Schadoff v Russ*, 278 AD2d 222; *Orchard Motorcycle Distribs.*,

Inc. v Morrison Cohen Singer & Weinstein, LLP, 49 AD3d 292; *AmBase Corp. v Davis Polk & Wardwell*, 8 NY3d 428; *Rosner v Paley*, 65 NY2d 736; *Darby & Darby v VSI Intl.*, 95 NY2d 308.) III. The First Department erred in allowing Nomura Asset Capital Corporation's claim to proceed, because the alleged malpractice could not have caused the alleged injury. (*Dombrowski v Bulson*, 19 NY3d 347; *Rosner v Paley*, 65 NY2d 736; *Tinter v Rapaport*, 253 AD2d 588; *Darby & Darby v VSI Intl.*, 95 NY2d 308; *Town of N. Hempstead v Winston & Strawn, LLP*, 28 AD3d 746; *AmBase Corp. v Davis Polk & Wardwell*, 8 NY3d 428; *Williams v State of New York*, 18 NY3d 981.)

Hinman Straub P.C., Albany (James T. Potter of counsel), and *Constantine Cannon LLP*, New York City (Amianna Stovall and Joel A. Chernov of counsel), for respondents-appellants. I. Nomura Asset Capital Corporation's advice claim should be reinstated as there are genuine issues of material fact with respect to whether Cadwalader, Wickersham & Taft LLP gave Nomura proper REMIC advice. (*Vega v Restani Constr. Corp.*, 18 NY3d 499; *Jackson v Montefiore Med. Ctr.*, 109 AD3d 762; *Matter of Ostrander v Ostrander*, 280 AD2d 793; *People v Reger*, 13 AD2d 63; *Hill v Arnold*, 226 AD2d 232; *Schultz v Third Ave. R.R. Co.*, 89 NY 242.) II. Cadwalader, Wickersham & Taft LLP's failure to conduct the requisite due diligence presents an issue of fact for the jury. (*Food Pageant v Consolidated Edison Co.*, 54 NY2d 167; *Melendez v Dorville*, 93 AD3d 528; *Serradilla v Lords Corp.*, 50 AD3d 345; *Bistricher v Singer*; *Bienenstock*, *Zamansky*, *Ogele & Selengut, LLP*, 14 AD3d 468; *Estate of Nevelson v Carro*, *Spanbock*, *Kaster & Cuiffo*, 259 AD2d 282; *Freese v Schwartz*, 203 AD2d 513; *Selkowitz v County of Nassau*, 45 NY2d 97; *Forte v Weiner*, 200 AD2d 421; *People v Abney*, 31 Misc 3d 1231[A], 2011 NY Slip Op 50919[U]; *Weiss v Securities & Exch. Commn.*, 468 F3d 849.) III. Cadwalader, Wickersham & Taft LLP's purported justifications for blind reliance on Nomura Asset Capital Corporation's representations raise issues of fact. (*AmBase Corp. v Davis Polk & Wardwell*, 8 NY3d 428; *Garten v Shearman & Sterling LLP*, 52 AD3d 207.) IV. The deal highlights document raised "red flags" precluding Cadwalader, Wickersham & Taft LLP from relying on Nomura Asset Capital Corporation's representations. V. The record contains substantial evidence that Cadwalader, Wickersham & Taft LLP's negligence proximately caused Nomura Asset Capital Corporation's damages. (*Derdiarian v Felix Contr. Corp.*, 51 NY2d 308; *Sweeney v Bruckner Plaza Assoc.*, 57 AD3d 347; *Freese v Schwartz*, 203 AD2d 513; *Burgos v Aqueduct*

Realty Corp., 92 NY2d 544; *Barnett v Schwartz*, 47 AD3d 197; *Arnav Indus., Inc. Retirement Trust v Brown, Raysman, Millstein, Felder & Steiner*, 96 NY2d 300; *Boudreau v Ivanov*, 154 AD2d 638; *Utica Cutlery Co. v Hiscock & Barclay, LLP*, 109 AD3d 1161; *Equitable Life Assur. Socy. of U.S. v Nico Constr. Co.*, 245 AD2d 194; *Harding v Noble Taxi Corp.*, 182 AD2d 365.)

OPINION OF THE COURT

RIVERA, J.

On these cross appeals from an order granting partial summary judgment in a legal malpractice action, we conclude that no triable issues of fact exist with respect to the first cause of action, which alleges that counsel failed to properly advise and conduct requisite due diligence in a mortgage securitization matter. Therefore, we modify the Appellate Division order, grant summary judgment to dismiss the first cause of action in its entirety, and otherwise affirm.

I.

At times relevant to this appeal, plaintiffs, Nomura Asset Capital Corporation and Asset Securitization Corporation (Nomura), and defendant, the law firm of Cadwalader, Wickersham & Taft LLP, were working in the mortgage securitization field. In this industry, an investment bank sources and funds mortgages on properties with the objective of aggregating the mortgages into securitization pools. The loans are then sold to a trust, which issues securities in the form of certificates to investors. The certificates entitle the holders to a portion of the revenue stream produced by payments made by the mortgage borrowers.¹

Nomura established a commercial mortgage-backed securities business,² and engaged Cadwalader to advise and confirm that Nomura's securitized commercial mortgage loans qualified

1. See 5 Baxter Dunaway, *Distressed Real Estate* § 56:1 (“Asset Securitization and Commercial Mortgage-Backed Securities”).

2. Commercial mortgage-backed securities are “[s]ecurities collateralized by a pool of mortgages on commercial real estate in which all principal and interest from the mortgages flow to certificate holders.” (*Id.*) The pools are secured by loans on commercial properties. (*Id.*)

as real estate mortgage investment conduit (REMIC) trusts.³ Over the course of several years, Cadwalader’s work on Nomura REMIC securitizations garnered immense profits for Nomura and significant legal fees for Cadwalader. However, the professional relationship soured when a 1997 REMIC securitization, known as the series 1997-D5 securitization (D5 securitization), embroiled Nomura in federal litigation and demands for a buyback of a defaulted loan. In an attempt to recoup its losses associated with the federal lawsuit, Nomura commenced the underlying legal malpractice action against Cadwalader, alleging that Cadwalader failed to provide appropriate legal advice and perform necessary due diligence concerning the REMIC eligibility of the D5 securitization.

Now, almost two decades since the events leading to the original securitization, and almost 10 years since Nomura filed this action, the case has reached this Court, and we are presented with the question whether Cadwalader is entitled to summary judgment as to all or part of the first cause of action. For the reasons set forth below, we conclude that Cadwalader has established, as a matter of law, that summary judgment and dismissal of the legal malpractice cause of action are merited in this case.

II.

We begin our analysis with a discussion of the relevant legal requirements for REMIC qualification of the D5 securitization, and the events leading up to Cadwalader’s opinion as to the REMIC eligibility of the mortgage loan at the center of the parties’ dispute. The D5 securitization consists of 156 loans, secured by first liens on 220 commercial and multifamily properties. For these mortgage loans to be pooled in a REMIC-qualified trust they had to be in compliance with certain federal Internal Revenue Code requirements, including that substantially all of the assets be “qualified mortgages and permitted investments” within the meaning of the Code (26 USC § 860D [a] [4]).

Under the Internal Revenue Code, a “qualified mortgage” is “principally secured by an interest in real property” (26 USC § 860G [a] [3] [A]), which in accordance with federal tax regula-

3. REMIC qualification is advantageous because it allows the trust to be treated as a pass-through entity and claim certain tax exemptions (*see* 26 USC § 860A).

tions, requires that “the fair market value of the interest in real property securing” the mortgage is “at least equal to 80 percent of the adjusted issue price” of the loan, as of the loan origination date or when the REMIC sponsor contributes the loan to the trust (26 CFR 1.860G-2 [a] [1] [i]; [5]). This is known as the “80% test.”

Although pursuant to the federal regulations the 80% test is based on a value-to-loan ratio (VTL) (*see* 26 CFR 1.860G-2 [a] [1] [i]; [5]), the parties agree that mortgage lenders, such as Nomura, typically utilize a loan-to-value ratio (LTV) for underwriting purposes, and that Nomura understood that an 80% VTL is equal to a 125% LTV.⁴ However, the LTV is based on the overall value of property, whereas the regulations define REMIC real property as “land or improvements thereon, such as buildings or other inherently permanent structures” (26 CFR 1.856-3 [d]). It does not include personal property (*id.*).

One of the mortgages included in the D5 trust was a \$50 million loan secured by the Doctor’s Hospital of Hyde Park (hospital), an acute care facility located in Chicago. In order to be REMIC-qualified and in compliance with the warranties set forth in the pooling service agreement (PSA) and mortgage loan purchase and sale agreement (MLPSA), the real property value for the hospital had to be appraised at a minimum of \$40 million.⁵ Nomura’s appraiser estimated the hospital property’s market value at \$68 million, based on a valuation of \$3 million for the land, \$27,960,000 for improvements, \$9,640,000 for equipment, and \$27,400,000 for intangibles. Although not set forth in the appraisal, a property valued at \$68 million with a \$50 million mortgage has an LTV of 73%, and therefore appears to be REMIC-qualified.

The final appraisal was determined after a reconciliation of three valuation approaches: “income capitalization,” “sales comparison,” and “cost.” The “income capitalization approach” resulted in an estimated valuation of the hospital property at \$68 million, based on a 21.5% capitalization rate of the

4. Value-to-loan ratio is calculated by dividing the value of the property by the amount of the loan. The inverse, loan-to-value, is determined by dividing the loan amount by the property’s value. Based on the mathematical equations, a loan with a low LTV percentage presents less risk to the lender because the property securing the loan has a high value as compared to the loan amount.

5. The MLPSA and PSA are the agreements by which Nomura sold, pooled, and transferred the loans to the trust.

hospital's net operating income (\$14,547,499), determined by gross annual income, minus operating expenses. The "sales comparison" resulted in an estimated value of \$64 million, based on the cost of acquiring an equally desirable substitute property. The "cost approach" estimated the property at \$40.6 million, based on the value of the land as vacant (\$3 million), replacement costs of buildings (\$27,761,163), and depreciation of improvements and equipment (\$180,000 and \$9,640,000, respectively).

The appraisal lacked a detailed breakdown of the hospital equipment included in the property valuation, and instead applied figures for similar acute care hospitals. However, because not all types of equipment count for REMIC purposes, the lack of detail arguably left unclear whether the appraisal could provide a reasonable basis for determining REMIC qualification. Although the land, building, and improvements, valued by the appraiser at \$30,960,000, would count under the REMIC standards, they failed to meet the \$40 million minimum required under the 80% test. Nevertheless, Nomura relied on this appraisal, as written.

It is undisputed that prior to the closing on the D5 securitization, Nomura did not provide, Cadwalader did not request, and no one at Cadwalader ever reviewed or even saw the actual appraisal for the hospital, or, for that matter, for any other D5 securitization mortgage loan. Nomura did fax to an associate at Cadwalader, approximately 24 days before the D5 closing, a freestanding asset description report prepared by Nomura's bankers for credit purposes, titled "Doctor's Hospital of Hyde Park . . . Deal Highlights" (highlights document). The highlights document stated that the \$50 million loan was secured by "the land, building, and operations of the property" and that the collateral was the hospital's "land, building and property management (operations)." It set forth an LTV at 73.5%. It also listed the appraiser's reconciled valuation of \$68 million, as well as the three valuation approaches.

In preparation for the closing, Cadwalader provided an opinion letter to Nomura stating that the D5 series was REMIC-qualified. Cadwalader stated that its legal conclusion was based on the information contained in the PSA, MLPSA, prospectus, and two supplements. The letter also specifically stated that "as to any facts material to such opinions . . . not known to" Cadwalader, it relied on "statements, certificates and representations" of Nomura officers and representatives. There was no mention of the highlights document.

Cadwalader also drafted the D5 securitization's PSA and MLPSA. The PSA and the MLPSA stated specifically that Nomura warranted that each mortgage loan is a "qualified mortgage" within the meaning of the Internal Revenue Code, and that the loans in the trust were secured by mortgages on real property with a fair market value of at least 80% of the principal amount of the loan, as measured at the origination or closing date. In other words, that the mortgage loans in the D5 securitization complied with the 80% test.

III.

Approximately three years after the closing, the hospital went bankrupt and defaulted on its loan. Thereafter, the D5 securitization trustee notified Nomura that the hospital property was insolvent and that Nomura was in breach of the PSA and MLPSA warranties because the hospital's property value was below the 80% REMIC minimum. Nomura refused to repurchase the loans and submitted letters from Cadwalader and the appraiser stating that the hospital had an overall REMIC-qualified market value of \$45,080,000.

Unpersuaded by these representations, the trustee commenced a federal action against Nomura in the District Court for the Southern District of New York, for the alleged breach of the PSA and MLPSA. The District Court granted Nomura summary judgment, concluding that based on Cadwalader's opinion letter, Nomura reasonably believed the property met the 80% REMIC test (*see LaSalle Bank N.A. v Nomura Asset Capital Corp.*, 2004 WL 2072501, 2004 US Dist LEXIS 18599 [SD NY, Sept. 14, 2004, No. 00-Civ-8720(NRB)]). The Second Circuit Court of Appeals reversed, finding that Nomura could be liable, notwithstanding the opinion letter or other provisions in the PSA and MLPSA, and remanded the matter to district court for a factual determination of whether the fair market value of the hospital was less than 80% of the loan (*see LaSalle Bank N.A. v Nomura Asset Capital Corp.*, 424 F3d 195, 208 [2d Cir 2005]).⁶ Prior to trial, Nomura settled the federal action for \$67.5 million.

6. The Second Circuit held that the qualified mortgage warranty in the MLPSA needed to be satisfied without regard to what is known as a REMIC safe harbor provision. As set forth in the REMIC regulations, under this "safe harbor," an obligation is "deemed" to meet the 80% test if the REMIC "sponsor" "reasonably believes" that to be so at the time it contributes the loan to the REMIC trust (26 CFR 1.860G-2 [a] [3] [i]).

Nomura then commenced the instant legal malpractice action in state court to recoup the settlement costs. In its complaint, Nomura asserted three causes of action, only the first of which is at issue in this appeal.⁷ Nomura alleged that Cadwalader committed malpractice because it failed to advise Nomura that the D5 appraisals had to separately value real property, as defined in the REMIC regulations, and, furthermore, that Cadwalader failed to perform the necessary due diligence to confirm that the D5 securitization was REMIC-qualified before issuing its pre-closing opinion letter.

Cadwalader moved for summary judgment, which Supreme Court denied (35 Misc 3d 1222[A], 2012 NY Slip Op 50815[U] [2012]). The court concluded that with respect to Nomura's "failure to advise" claim, triable issues of fact existed because Cadwalader relied on deposition testimony that raised credibility issues more appropriately addressed through cross-examination. As to the due diligence claim, the court concluded that Cadwalader's evidence, including testimony from its own experts, was conflicting. The court also concluded that questions of fact existed as to whether Cadwalader's alleged malpractice proximately caused Nomura's damages.

The Appellate Division, in a 3-1 decision, modified the order of Supreme Court by dismissing the advice claim, and otherwise affirmed, but limited the due diligence claim to a factual issue related to the highlights document (115 AD3d 228 [2014]). The Court concluded that Cadwalader had met its *prima facie* burden on the advice claim, based on the testimony of two Cadwalader partners and Nomura representatives, which demonstrated that Cadwalader provided Nomura with the advice on REMIC qualification, and that Nomura failed to establish a triable issue of fact on this claim. Regarding the due diligence claim, the Court concluded that Cadwalader had no generalized duty to review all of the appraisals in the D5 securitization, but that triable issues of fact existed as to whether the highlights document contained warning signs that the hospital loan may not have been REMIC-qualified, requiring further inquiry by Cadwalader. The Court also rejected Cadwalader's argument that Nomura could not establish proximate cause.

7. The second cause of action, involving the drafting of a provision of the MLPSA, was dismissed on Cadwalader's pre-answer motion to dismiss. Nomura withdrew the third cause action alleging malpractice with respect to another D5 loan.

The dissent agreed with the Court’s analysis of the advice claim, but would have held that the due diligence claim was similarly without merit, and, therefore, Nomura’s malpractice cause of action should be dismissed in its entirety. The dissent would have found that the highlights document failed to demonstrate that the hospital loan was “more likely to be inappropriate . . . for inclusion in the securitization than any of the other 155 loans” (*id.* at 247) simply because the face of the document revealed appraised values exceeding the REMIC threshold (*id.* at 256-257). The dissent reasoned that had Cadwalader been required to further inquire based on the highlights document it would have had to “conduct the due diligence for which its highly sophisticated investment-banking client had deliberately declined to engage it” (*id.* at 260).

The Appellate Division granted Cadwalader and Nomura’s respective motions for leave to appeal to this Court, and certified the question whether the order, which modified the order of Supreme Court, was properly made (2014 NY Slip Op 75455[U] [2014]). We now answer the certified question in the negative, and modify.

IV.

On a motion for summary judgment, the moving party must “make a prima facie showing of entitlement to judgment as a matter of law, tendering sufficient evidence to demonstrate the absence of any material issues of fact” (*Alvarez v Prospect Hosp.*, 68 NY2d 320, 324 [1986]). If the moving party produces the requisite evidence, the burden then shifts to the nonmoving party “‘to establish the existence of material issues of fact which require a trial of the action’” (*Vega v Restani Constr. Corp.*, 18 NY3d 499, 503 [2012], quoting *Alvarez*, 68 NY2d at 324). Viewing the evidence “in the light most favorable to the non-moving party,” if the nonmoving party, nonetheless, fails to establish a material triable issue of fact, summary judgment for the movant is appropriate (*Ortiz v Varsity Holdings, LLC*, 18 NY3d 335, 339 [2011]; see *Alvarez*, 68 NY2d at 324).

To sustain its cause of action for legal malpractice, Nomura must “establish that [Cadwalader] failed to exercise the ordinary reasonable skill and knowledge commonly possessed by a member of the legal profession and that the attorney’s breach of this duty proximately caused plaintiff to sustain actual and ascertainable damages” (*Dombrowski v Bulson*, 19 NY3d 347, 350 [2012] [internal quotation marks and citations

omitted]). An attorney's conduct or inaction is the proximate cause of a plaintiff's damages if "but for" the attorney's negligence "the plaintiff would have succeeded on the merits of the underlying action" (*AmBase Corp. v Davis Polk & Wardwell*, 8 NY3d 428, 434 [2007]), or would not have sustained "actual and ascertainable" damages (*Dombrowski*, 19 NY3d at 350; *Brooks v Lewin*, 21 AD3d 731, 734 [1st Dept 2005], *lv denied* 6 NY3d 713 [2006]). Thus, in order for Cadwalader to prevail on its summary judgment motion, it must establish that it provided the advice, and conducted the due diligence expected of counsel "exercis[ing] the ordinary reasonable skill and knowledge commonly possessed by a member of the legal profession" (*Dombrowski*, 19 NY3d at 350). If Cadwalader fell short of this professional standard, it must demonstrate that its conduct was not the proximate cause of Nomura's damages.

V.

As discussed below, we conclude that Cadwalader established that it provided the proper advice regarding REMIC qualification, and that it conducted the due diligence required in the context of its representation of Nomura. Nomura has failed, in response, to establish the existence of a material triable issue of fact. Therefore, the Appellate Division should have granted Cadwalader summary judgment and dismissed Nomura's legal malpractice cause of action.

A. Failure to Advise

Nomura admits that Cadwalader advised it that the REMIC regulations required that mortgage loans be secured by real property equal to 80% of the loan. Yet, it contends that Cadwalader failed to properly advise it on the mechanics of *how* to apply the 80% test to the D5 securitization properties. However, Cadwalader's summary judgment submissions sufficiently belie this claim.

Cadwalader submitted deposition testimony from Charles Adelman and Anna Glick, two Cadwalader partners responsible for the D5 securitization. They testified that they advised Nomura regarding how to satisfy the REMIC 80% test, and what constituted real property for REMIC purposes.

Adelman testified that in the years before and during the D5 securitization, Cadwalader advised Nomura "as to each and every one of the matters described in" Cadwalader's advice sheet, which was included in Cadwalader's summary judgment

papers. The advice sheet specifically sets forth 12 bullet points concerning advice on REMIC qualification and Nomura's representations and warranties. Listed therein are the following advisements: "Personal property does not count towards satisfying the REMIC . . . test—only real property counts"; "real property includes land and improvements . . . [and] other inherently permanent structures" (internal quotation marks omitted); the REMIC test is "best proved by an independent third party appraisal and should measure real property separately"; "[i]t was Nomura's responsibility to confirm the accuracy of Nomura's representations and warranties in the MLPSA, including the 80% Warranty"; "Cadwalader would not independently verify the accuracy of any of Nomura's representations and warranties unless asked to do so by Nomura"; and the LTV ratios are "guidance on whether a loan is REMIC eligible, but [are] not a substitute for the due diligence required to ensure that a loan is secured by real property equal to 80% of the . . . loan."

Glick testified that Cadwalader repeatedly advised Nomura about how to comply with the 80% test. She stated that "[o]ver the course of the ten years or so that I did work for Nomura, we had numerous conversations about REMIC requirements, the 80 percent requirement, about what satisfied the 80 percent requirement." She noted that in working with Nomura "new questions would come up, and so we would be advising [Nomura] continuously over this entire ten-year period, we w[ould] be discussing REMIC related and 80 percent issues, as well as what type of collateral would satisfy the 80 percent."

Cadwalader also submitted Glick's affidavit, wherein she states that Cadwalader told Nomura prior to the D5 securitization closing that land and structural improvements should be added to determine REMIC real property:

"As part of that advice, a rule of thumb communicated by Cadwalader to Nomura was that the value of what was plainly real property (such as land and structural improvements, or 'sticks and bricks'), should be added up by Nomura to see if it amounted to at least 80% of the loan amount. If those items alone satisfied the 80% Test (and they usually did), then the 80% Test would be satisfied. If not, then Nomura needed to inquire further to determine whether the loan met the 80% Test."

Cadwalader also submitted testimony from Nomura's former vice-president and officer-in-charge of the D5 securitization, Perry Gershon. Gershon's testimony wholly confirmed Adelman and Glick's representations. He testified that Cadwalader fully informed Nomura about the REMIC requirements and how to ensure compliance with the 80% test. Like Adelman, he testified that Cadwalader provided all the advice listed on the Cadwalader advice sheet, and that Cadwalader advised Nomura that if it had any questions regarding whether a property contained sufficient real property in compliance with the REMIC regulations, Nomura needed to consult with outside counsel prior to making the loan.

When asked specifically about Nomura's understanding about the REMIC regulations and the 80% test, Gershon confirmed that Cadwalader advised Nomura: (1) REMIC eligibility required the mortgage loan to be principally secured by an interest in real property, meaning that at least 80% of the mortgage is secured by real property; (2) personal property does not count towards the 80% test; and (3) the 80% test is best proved by an independent third-party appraisal, which measures real property separately. According to Gershon, "Cadwalader definitely gave instructions to Nomura that . . . among the purposes of getting these properties appraised was to show that they would, in essence, be REMIC-eligible assets." The foregoing testimony was buttressed by documents relating to the hospital mortgage loan originated by Nomura that reflected Nomura's awareness of the applicable REMIC regulations.

This evidence sufficiently established that Cadwalader adequately advised Nomura concerning REMIC qualification as applicable to the D5 securitization. The burden then shifted to Nomura to set forth evidence to establish material issues of triable fact (*see Vega*, 18 NY3d at 503).

In an effort to meet its burden, Nomura argued that credibility issues foreclosed summary judgment. Specifically, Nomura sought to discredit Gershon's testimony based on bias, alleging that Gershon's spouse was a Cadwalader attorney who worked on the Nomura matters, and that after Gershon left Nomura, his spouse benefitted financially from securitization business Gershon continued to send to Cadwalader. We agree with the Appellate Division that this alleged credibility issue is speculative and unsupported by any evidence, and thus cannot be the basis for denying summary judgment.

Nomura also contends that a material issue of fact exists as to whether Cadwalader's advice was adequate because testimony from several Nomura employees reveals that they did not know how to apply the REMIC 80% test. As the Appellate Division properly concluded, this amounts to a showing that some Nomura employees did not understand REMIC principles, not that Cadwalader failed to provide appropriate legal advice, or that Cadwalader refused to answer Nomura's questions about REMIC qualification. Thus, Nomura failed to present triable issues of fact as to whether Cadwalader provided adequate advice and "exercise[d] the ordinary reasonable skill and knowledge commonly possessed by a member of the legal profession" (*Dombrowski*, 19 NY3d at 350). Therefore, Cadwalader is entitled to summary judgment with respect to Nomura's failure to advise claim.

B. Due Diligence

Nomura's other claim in support of its legal malpractice cause of action is that Cadwalader failed to conduct the requisite due diligence prior to issuing its pre-closing REMIC opinion letter. According to Nomura, in order to fulfill its professional responsibilities, Cadwalader could not simply rely on Nomura's representations, but instead had to review the appraisals for all the mortgage loans in the D5 securitization to ensure that each loan was REMIC-qualified.

In support of its summary judgment motion on this claim, Cadwalader argues that Nomura did not retain it to conduct or review appraisals, generally, or in its role as securitization counsel. Cadwalader submitted testimony from Adelman and Nomura's own representatives describing Cadwalader's role vis-à-vis the D5 securitization. Cadwalader also submitted testimony from experts regarding the accepted practice of attorneys dealing with REMIC qualification and securitization, which further supports the conclusion that a duty to review appraisals was beyond the scope of Cadwalader's representation.

For example, Adelman testified that it was Nomura's responsibility to review the D5 securitization appraisals. According to Adelman, Nomura told Cadwalader that it would review appraisals and that Cadwalader "was not to duplicate Nomura's work in that regard." Adelman also stated that Nomura's "direction was specific enough that we did not view it as a part of our normal process to have appraisals sent to us for review." Instead, as the Cadwalader opinion letter made

clear, Cadwalader relied on Nomura for the fact that the property was REMIC-qualified because it met the 80% test.

Gershon acknowledged that Nomura did not request or expect that Cadwalader review the appraisals for the D5 securitization. He further acknowledged that Cadwalader advised Nomura that it relied on Nomura's representations, and that Nomura was responsible for the accuracy of those representations, as well as the warranties in the MLPSA, specifically the 80% warranty. Most devastating was Gershon's acknowledgment that Cadwalader advised Nomura that it would not independently verify the accuracy of Nomura's representations and warranties unless asked to do so, and that Nomura did not make any such request. Gershon's understanding was confirmed by General Counsel for Nomura Asset Capital Corporation, Barry Funt, who testified that he "would not have requested or even thought it proper for Cadwalader to review every single appraisal."

The experts confirmed that this representation was in line with legal practice in the securitization field. James Peaslee, an expert for Cadwalader, opined that it was not standard practice for securitization counsel to review appraisals, absent a specific request from the client. David Rodgers, an expert on origination and securitization, stated that, subject to a specific agreement, "the role of securitization counsel relating to the determination of REMIC value does not include calculating or even recalculating real property value-to-loan ratios for loans."

This testimony, along with Cadwalader's clear statements in its opinion letter that it relied on Nomura's representations for its conclusions that the D5 securitization was REMIC-qualified, are sufficient to establish a *prima facie* showing in support of Cadwalader's motion for summary judgment. The burden then shifted to Nomura.

In response, Nomura disputes that this was the parties' understanding of Cadwalader's professional obligations, and relies on alleged discrepancies in the testimony to show otherwise. However, Nomura mischaracterizes the record, which, as we have described, makes abundantly clear that the parties understood that Nomura, pursuant to its own directives, was responsible for: securing the appraisals; reviewing whether, based on those appraisals, the loans complied with the 80% test; and confirming the veracity and accuracy of Nomura's warranties as set forth in the MLPSA.

Nomura also relies on expert testimony from Thomas J. Biafore and Arthur N. Field that Cadwalader could not rely on Nomura's representations to establish the property's value because that factual determination was tantamount to the legal representation required of Cadwalader. This testimony, however, focuses on general principles, and does not create a triable issue of fact concerning the parties' actual understanding of Cadwalader's responsibilities. As Gershon acknowledged, Nomura understood that Cadwalader would not request the appraisals in the course of its review of the D5 securitization documents, and Cadwalader would rely on Nomura's representations that the 80% test had been met unless Nomura asked it to look further.

Essentially Nomura seeks to have us ignore the fact that it assumed the responsibility for ensuring that the loans complied with the 80% test based on independent appraisals that Cadwalader did not conduct or review. However, we cannot ignore that Nomura chose to run its business in this way, and that Cadwalader acted upon and relied on that business model in its representation of Nomura.

Nomura argues, alternatively, that even if Cadwalader did not have a general duty to confirm Nomura's representations for all the D5 mortgage loans, it had such a duty in the case of the hospital loan. In support, Nomura relies on testimony from Adelman and Cadwalader's experts that Cadwalader had a legal responsibility to confirm REMIC qualification where a "red flag" suggested that the appraisal valuation of the real property was inconsistent with Nomura's representations. Cadwalader concedes this point, but argues that there was nothing in the D5 securitization to require that it confirm Nomura's representations of REMIC qualification.

Nomura contends that the highlights document was a red flag because it contained statements that the loan was "secured by the land, building, and operations," and that the collateral for the loan is the "land, building and property management (operations)." Nomura argues that this alerted Cadwalader to the possibility that the appraisal was based on the hospital's operations, and not land and buildings, as required for REMIC qualification. As a consequence, Cadwalader should have taken steps to confirm that the property satisfied the 80% test.

Despite Nomura's arguments to the contrary, the fact that the operational part of the hospital business may have factored

in some way into the appraisal did not mean that Cadwalader should have considered Nomura's representations unreliable. After all, the D5 securitization consisted of numerous commercial mortgages, all of which Nomura assessed in accordance with Cadwalader's advice about how to determine REMIC qualification based on the 80% test. Therefore, the hospital mortgage loan was no different from the others.

Moreover, what Nomura now identifies as a red flag—that a commercial property may be valued, in part, based on its business operations—had already been raised by Cadwalader with Nomura as something to monitor in the valuation process. Adelman testified that he communicated to Nomura representatives that REMIC real estate did not include what he called the “business element of the overall [property] value,” explaining that where the “income was from the operation of a business rather than from the receipt of rent, [it] required a distinction to be made between the real property value from being occupied by a going business as distinguished from the value of the business itself.”

Nomura also argues that Cadwalader should not have ignored the fact that the highlights document includes a cost approach valuation of the hospital that is dangerously close to the 80% REMIC minimum. While it is true that the cost approach valued the hospital property at \$40,600,000, that number is still above the \$40 million required to meet REMIC qualification. In any case, and more to the point is the fact that the highlights document placed the hospital's reconciled appraised value at \$68 million, \$28 million in excess of the \$40 million required under the 80% test. That final appraisal was established only after the reconciliation of the three valuation approaches, two of which (the “income” and “sales” approaches) valued the property at over \$60 million. Given such a large differential, Cadwalader did not have a basis to doubt Nomura's representation that the hospital loan complied with the 80% test. Indeed, Adelman testified that in his experience, even if a property valued at \$68 million included a significant amount of personal property, its real property valuation would not fall below \$40 million. Gershon similarly testified that in his experience in real estate, a \$68 million appraisal based on the income approach (which was the case here) means the real estate value likely exceeded \$40 million. Rather than establish that triable issues of fact exist, the evidence instead shows that these parties—sophisticated business entities in the

securitization field—held similar views that a \$68 million appraisal provided sufficient confidence that the property was REMIC-qualified.

Cadwalader, thus, met its burden to establish that it conducted the requisite due diligence, and that it “exercise[d] the ordinary reasonable skill and knowledge commonly possessed by a member of the legal profession” when it relied on Nomura’s representations in issuing an opinion that the D5 securitization was REMIC-qualified (*see Dombrowski*, 19 NY3d at 350). In contrast, Nomura failed to meet its burden to establish the existence of a triable issue of fact.

VI.

For the foregoing reasons, the Appellate Division’s order should be modified, with costs to Cadwalader, by granting Cadwalader’s motion for summary judgment dismissing the first cause of action in its entirety and, as so modified, affirmed and the certified question answered in the negative.

Chief Judge LIPPMAN and Judges PIGOTT, ABDUS-SALAAM, STEIN and FAHEY concur.

Order modified, with costs to defendant, by granting defendant’s motion for summary judgment dismissing the first cause of action in its entirety and, as so modified, affirmed and certified question answered in the negative.

[41 NE3d 760, 19 NYS3d 796]

REMET CORPORATION, Appellant, v ESTATE OF JAMES R. PYNE,
Deceased, et al., Respondents, et al., Defendant.

Argued September 9, 2015; decided October 20, 2015

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered December 27, 2013. The Appellate Division (1) reversed, on the law, a judgment (denominated order and judgment) of the Supreme Court, Oneida County (Patrick F. MacRae, J.), which, insofar as appealed from, had granted that part of plaintiff's motion that was for partial summary judgment on the issue of liability and declared that plaintiff "is entitled to indemnification for all past environmental losses that have occurred to date and for all future environmental losses that will occur due to and arising out of the DEC investigation and/or remediation of the Erie Canal Site in Utica"; (2) denied plaintiff's motion in its entirety; and (3) granted judgment in favor of defendants declaring that "plaintiff is not entitled to indemnification from defendants."

Remet Corp. v Estate of Pyne, 112 AD3d 1313, reversed.

HEADNOTE

Indemnity — Contractual Indemnification — Environmental Remediation Costs — Limitation of Indemnification to Measures Required by Law

The particular language of a letter from the Department of Environmental Conservation (DEC) notifying plaintiff indemnitee that it was a potentially responsible party for a site's environmental contamination was sufficiently coercive and adversarial as to have "required" plaintiff to take action "under or in connection with any Environmental Law" within the meaning of an indemnification clause contained in an agreement relating to the sale of real property abutting the site as the letter threatened litigation and imminent adverse legal and financial consequences pursuant to the ECL. Plaintiff was thus entitled to contractual indemnification for environmental losses incurred as a result of DEC's investigation and remediation of the site. The letter stated that it pertained to an "Urgent Legal Matter," indicated that a prompt reply was "necessary" and set forth the consequences that would flow from plaintiff's refusal to act. Regardless of whether plaintiff was designated a potentially responsible party or a responsible party, the letter demanded either a consent order or payment, and any language indicating that plaintiff's response was voluntary had to be read in terms of those demands. Additionally, the circumstances surrounding the execution of the indemnification clause included the parties' awareness that the purchaser of the property risked incurring substantial expenses, and that the seller accordingly

deposited a large sum in escrow to cover at least a portion of those potential expenses. The seller's attorneys began cooperating with DEC shortly after the letter was received, and only ceased to do so when their negotiations proved unsuccessful—indicating that the seller viewed the letter as requiring action.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Indemnity §§ 13, 23, 25.

NY JUR 2d, Contribution, Indemnity, and Subrogation
§§ 72, 75, 81.

ANNOTATION REFERENCE

See ALR Index under Indemnity.

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POINTS OF COUNSEL

Mayer Brown LLP, New York City (Scott A. Chesin, Michael E. Rayfield and Alex O. Kardon of counsel), *Mayer Brown LLP*, Chicago, Illinois (Kevin G. Desharnais and Fern C. Bomchill of counsel), and *Hancock Estabrook, LLP*, Syracuse (Janet D. Callahan and Timothy P. Murphy of counsel), for appellant. I. Remet Corporation is entitled to indemnification. (*National Railroad Passenger Corporation v Boston & Maine Corp.*, 503 US 407; *Laguna Hermosa Corp. v United States*, 671 F3d 1284; *Ragins v Hospitals Ins. Co., Inc.*, 22 NY3d 1019; *Railway Labor Executives' Assn. v United States R.R. Retirement Bd.*, 749 F2d 856; *Marine Midland Realty Credit Corp. v LLMD of Mich., Inc.*, 821 F Supp 370; *Aetna Cas. & Sur. Co., Inc. v Pintlar Corp.*, 948 F2d 1507; *Anderson Bros., Inc. v St. Paul Fire & Mar. Ins. Co.*, 729 F3d 923; *Avondale Indus., Inc. v Travelers Indem. Co.*, 887 F2d 1200; *Burt Rigid Box Inc. v Travelers Prop. Cas. Corp.*, 126 F Supp 2d 596; *Technicon Elecs. Corp. v American Home Assur. Co.*, 141 AD2d 124.) II. If this Court concludes that Remet Corporation is not entitled to summary judgment, it should at least reverse the Fourth Department's grant of summary judgment to the Pyne Estate. (*Mallad Constr. Corp. v County Fed. Sav. & Loan Assn.*, 32 NY2d 285.)

Law Office of Neil M. Gingold, Fayetteville (Neil M. Gingold of counsel), and *Steates, Remmell, Steates & Dziekan*, Utica

(*F. Paul Steates* of counsel), for respondents. I. Plaintiff/appellant is prohibited from arguing that the word “required,” as set forth and used within the purchase and sale agreement (PSA) at section 8.1 (a) (iii) (B) is ambiguous, for it has argued at the trial level and at the Appellate Division, as have the defendants/respondents, that the agreement is clear on its face and undisputed on its meaning as to what the parties intended in executing the purchase and sale agreement, and is raising for the first time in these proceedings, before the Court of Appeals, an issue that the meaning of the term “required” is ambiguous. Questions which are not raised in the court below are not to be considered in an appeal. (*Hugar v Damon & Morey LLP*, 51 AD3d 1387; *Collucci v Collucci*, 58 NY2d 834.) II. The indemnification provisions within the purchase and sale agreement do not cover the voluntary actions for which plaintiff Remet Corporation has filed claims and sought indemnification, for the actions it sought are not actions for which it was legally required to take under or in connection with any environmental law or environmental permit, and where such actions taken did not arise from communications by Remet with any governmental agency, except to the extent such communications were actually required under any environmental law or environmental permit, or any other law. (*Avondale, Indus., Inc. v Travelers Indem. Co.*, 887 F2d 1200; *Vargas v New York City Tr. Auth.*, 60 AD3d 438; *Burt Rigid Box Inc. v Travelers Prop. Cas. Corp.*, 126 F Supp 2d 596; *Ryan v Royal Ins. Co. of Am.*, 916 F2d 731; *Twitchell v Town of Pittsford*, 106 AD2d 903, 66 NY2d 824; *Klestinec v Thruway Terms.*, 124 AD2d 988; *Gray Mfg. Co. v Pathe Indus.*, 33 AD2d 739, 26 NY2d 1045; *Mallad Constr. Corp. v County Fed. Sav. & Loan Assn.*, 32 NY2d 285.) III. The indemnification provisions contained in article VIII of the PSA, Indemnification, require plaintiff to actually expend funds, or actually incur liability, as a prerequisite to an entitlement to indemnification. (*Orlikowski v Cornerstone Community Fed. Credit Union*, 55 AD3d 1245; *Allcity Ins. Co. v Fisch*, 32 AD3d 407; *Barnes v New York City Hous. Auth.*, 43 AD3d 842; *Pfizer, Inc. v Stryker Corp.*, 348 F Supp 2d 131; *MacArthur Bros. Co. v Kerr*, 213 NY 360; *McCabe v Queensboro Farm Prods.*, 22 NY2d 204; *Relyea v State of New York*, 59 AD2d 364; *Hobbs v Scorse*, 59 AD2d 1037; *State of New York v Travelers Prop. Cas. Ins. Co.*, 280 AD2d 756; *McDermott v City of New York*, 50 NY2d 211.)

OPINION OF THE COURT

STEIN, J.

On this appeal, we are asked to consider whether a letter from the Department of Environmental Conservation (DEC) notifying plaintiff Remet Corporation that it was a potentially responsible party for a site's environmental contamination required plaintiff to take action within the meaning of a contractual indemnification clause. We conclude that the particular language of the letter at issue threatened imminent adverse legal consequences and was, therefore, sufficiently coercive as to "require" action under the meaning of the indemnification clause.

I.

Decedent James R. Pyne was the founder and sole stockholder of Remet Corporation, a company that manufactures products for use in the investment casting industry. In a purchase and sale agreement entered into in March 1999, Pyne sold to Burmah Castrol Holding, Inc. all of Remet's stock and facilities, along with real property that he had been leasing to Remet. Because one of the parcels of real property abutted the Erie Canal site in Utica, which had been listed as an inactive hazardous waste site, the sales agreement contained an indemnification provision. In relevant part, that provision obligated Pyne to "indemnify, defend and hold [the] [b]uyer . . . harmless" for "Environmental Losses"

"that arise out of or relate to . . . any environmental remedial, investigatory or monitoring action taken or any other Losses under or relating to any Environmental Law with respect to any of the Company's Real Properties or the Company's assets or operations (past or present), as a result of conditions which exist (or previously existed) on or prior to the Closing Date, provided that Losses under this Section . . . shall only be indemnified by Seller if such Losses arise out of or result from actions by any Indemnified Party that such Indemnified Party *is required* to take *under or in connection with* any Environmental Law . . . (and such Loss shall not arise out of or result from communications by such Indemnified Party with any Governmental Entity (except to the extent *required* under any Environmental Law . . .))" (additional emphasis added).

By its terms, the indemnification obligation was to remain in effect for 10 years and “claims for indemnification asserted prior to the end of such period[] . . . [would] survive until final resolution thereof.” Pyne also entered into an environmental escrow agreement pursuant to which he deposited \$2.7 million into an escrow account to fund payments arising from his indemnification obligation for environmental losses under the sales agreement. Remet’s current management team ultimately acquired all of Remet’s stock and the indemnification rights under the sales agreement.

In October 2002, Remet received a letter from DEC that is at the heart of this dispute. Labeled “**NOTICE LETTER**” “**URGENT LEGAL MATTER—PROMPT REPLY NECESSARY**,” the letter informed Remet that DEC had documented a release of “hazardous substances” (see 42 USC §§ 9601 [14]; 9602) and the presence of “hazardous wastes” (see ECL 27-1301) at the Erie Canal site adjacent to Remet’s real property. The letter further stated that “[r]esponsible parties are liable for monies expended by the State in taking response actions” and that DEC had determined that Remet was “a potentially responsible party [PRP] for the site’s contamination.” In the letter, DEC requested that Remet implement and finance a remedial program for the site, to be memorialized in a consent order. DEC advised that, “if a signed Consent Order [was] not received within 30 days . . . , all further discussions [would] terminate,” and DEC would perform the necessary work itself and then seek recovery from Remet, as a PRP. In that event, the PRP letter “serve[d] as a demand for payment of all monies [DEC] may expend,” with interest accruing from the date of the letter.

Remet did not sign a consent order within the required time period, but began investigating DEC’s claims and gave notice to Pyne that it was asserting an indemnification claim under the sales agreement. Although Pyne did not assume defense of the claim, his attorneys contacted DEC and cooperated with Remet in undertaking investigative efforts with respect to the Erie Canal site. Pyne died in March 2003. Because none of the PRPs identified by DEC agreed to undertake remediation of the site, DEC determined that it would address the site’s contamination with State funds and seek recovery from the PRPs, ultimately adopting a \$12.5 million decontamination plan. Remet filed notices of claim against Pyne’s estate seeking indemnification for environmental liabilities under the sales

agreement, including approximately \$550,000 in costs already incurred by Remet. After the Estate objected to a release of funds from the escrow account and insisted that Remet refrain from dealing with DEC directly regarding Remet's potential liability for remediation of the site, Remet commenced this action, asserting claims for contractual and common-law indemnification.

Following joinder of issue, Remet moved for summary judgment, seeking indemnification in the amount of \$550,388.60, and a declaration that it was entitled to reimbursement for all future costs that could arise as a result of its investigation into and remediation of the site. Supreme Court, among other things, granted Remet summary judgment on liability and declared that Remet was entitled to indemnification for past and future environmental losses arising out of DEC's investigation and remediation of the Erie Canal site. On defendant's appeal, the Appellate Division unanimously reversed, denied Remet's motion and granted summary judgment to defendants, declaring that Remet "is not entitled to indemnification from defendants" (112 AD3d 1313, 1315 [4th Dept 2013]). The Court concluded that, because "DEC's letter merely informed . . . [Remet] of [its] potential liability and sought voluntary action on [its] part, . . . [the letter] did not require [Remet] to take action" (*id.* at 1314 [internal quotation marks and citations omitted]). We granted Remet's motion for leave to appeal (23 NY3d 907 [2014]).

II.

The plain language of the governing contractual indemnity provision, together with the language of the PRP letter and the surrounding facts and circumstances, demonstrate that Remet was entitled to indemnification because it was "required," within the meaning of the sales agreement, to act in response to the PRP letter (*see generally Drzewinski v Atlantic Scaffold & Ladder Co.*, 70 NY2d 774, 777 [1987]). The PRP letter stated that it pertained to an "Urgent Legal Matter," indicated that a prompt reply was "necessary," and set forth the consequences that would flow from Remet's refusal to act. Regardless of whether Remet was designated a *potentially* responsible party or a responsible party, the letter demanded either a consent order or payment, and any language indicating that Remet's response was voluntary must be read in terms of those demands. In other words, the PRP letter—by its terms—

effectively marked the beginning of a “legal” process against Remet pursuant to the ECL, in which DEC expressly sought recovery from Remet for any amounts expended in remediating the Erie Canal site.*

Additionally, the circumstances surrounding the execution of the indemnification clause include the parties’ awareness that, because the Erie Canal site was listed as an inactive hazardous waste site, the purchaser of the property at issue here risked incurring substantial expenses, and that Pyne accordingly deposited a large sum in escrow to cover at least a portion of those potential expenses. Pyne’s attorneys began cooperating with DEC shortly after the PRP letter was received, and only ceased to do so when their negotiations proved unsuccessful—indicating that Pyne, the actual signatory to the sales agreement, viewed the PRP letter as requiring action.

In short, the PRP letter issued to Remet was sufficiently coercive and adversarial as to “require” action “under or in connection with any Environmental Law” pursuant to the sales agreement, given that it threatened litigation and imminent adverse legal and financial consequences pursuant to the ECL (see *Borg-Warner Corp. v Insurance Co. of N. Am.*, 174 AD2d 24, 35 [3d Dept 1992], *lv denied* 80 NY2d 753 [1992]; see also *Carpentier v Hanover Ins. Co.*, 248 AD2d 579, 580 [2d Dept 1998]). Moreover, inasmuch as Remet asserted its claims within 10 years of the closing date of the sales agreement, those claims “shall survive until final resolution thereof.” Accordingly, based on the particular language of the PRP letter and the indemnification clause at issue here, Remet is entitled to contractual indemnification for past and future environmental losses incurred as a result of DEC’s investigation and remediation of the Erie Canal site, and Supreme Court properly granted sum-

* Other states’ courts have concluded that, given the adverse consequences—such as large fines, use of the PRP’s noncompliance against it in future litigation to apportion costs, and the potential that the administrative agency may remediate a site at a higher cost and then demand full reimbursement from the PRP—that can flow from a failure to respond to a PRP letter, “‘[i]t would be naive to characterize [a PRP] letter as a request for voluntary action. [There is] no practical choice other than to respond actively to the [PRP] letter’” (*R.T. Vanderbilt Co., Inc. v Continental Cas. Co.*, 273 Conn 448, 466, 870 A2d 1048, 1061 [2005], quoting *Hazen Paper Co. v United States Fid. & Guar. Co.*, 407 Mass 689, 697, 555 NE2d 576, 581-582 [1990]; see *Johnson Controls, Inc. v Employers Ins. of Wausau*, 264 Wis 2d 60, 113, 665 NW2d 257, 284 [2003], *cert denied* 541 US 1027 [2004]).

mary judgment to plaintiff on liability. Accordingly, the order of the Appellate Division should be reversed, with costs, and the judgment of Supreme Court reinstated.

Chief Judge LIPPMAN and Judges PIGOTT, RIVERA, ABDUS-SALAAM and FAHEY concur.

Order reversed, with costs, and judgment of Supreme Court, Oneida County, reinstated.

[41 NE3d 766, 19 NYS3d 802]

LEONARD HUTCHINSON, Appellant, v SHERIDAN HILL HOUSE
CORP., Respondent.

MATVEY ZELICHENKO, Appellant, v 301 ORIENTAL BOULEVARD,
LLC, Respondent.

MAUREEN ADLER, Appellant, v QPI-VIII LLC, et al., Respon-
dents.

Argued September 17, 2015; decided October 20, 2015

SUMMARY

APPEAL, in the first above-entitled action, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered October 22, 2013. The Appellate Division, with two Justices dissenting, affirmed an order of the Supreme Court, Bronx County (Lizbeth Gonzalez, J.; op 2012 NY Slip Op 33804[U] [2012]), which had granted defendant's motion for summary judgment dismissing the complaint.

APPEAL, in the second above-entitled action, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered May 28, 2014. The Appellate Division (1) reversed, on the law, an order of the Supreme Court, Kings County (Larry D. Martin, J.), which had denied defendant's motion for summary judgment dismissing the complaint; and (2) granted the motion.

APPEAL, in the third above-entitled action, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered January 14, 2015. The Appellate Division (1) reversed, on the law, an order of the Supreme Court, Queens County (Denis J. Butler, J.), which had denied defendants' motion for summary judgment dismissing the complaint; and (2) granted the motion.

Hutchinson v Sheridan Hill House Corp., 110 AD3d 552, affirmed.

Zelichenko v 301 Oriental Blvd., LLC, 117 AD3d 1038, reversed.

Adler v QPI-VIII, LLC, 124 AD3d 567, reversed.

HEADNOTES

Negligence — Maintenance of Premises — Trip and Fall — Trivial Defect — Review of Summary Judgment Motion

1. The defendant in an action arising out of a trip and fall on an allegedly trivial defect on a sidewalk or stairway cannot prevail on a summary judg-

ment motion solely on the basis of the dimensions of the defect, and the reviewing court is obliged to consider all the specific facts and circumstances presented in order to determine triviality. Accordingly, in a personal injury action commenced by plaintiff after his foot “caught” on a metal object protruding from the sidewalk and he fell, the defect was deemed trivial as a matter of law where the object, protruding only about a quarter of an inch above the sidewalk, was in a well-illuminated location approximately in the middle of the sidewalk and in a place where a pedestrian would not be obliged by crowds or physical surroundings to look only ahead. The object stood alone and was not hidden or covered in any way so as to make it difficult to see or to identify as a hazard. Its edge was not jagged and the surrounding surface was not uneven. Moreover, the characteristics of the object enumerated by plaintiff in seeking to show a triable issue of fact in opposition to defendant’s prima facie showing of triviality—the abruptness of the projecting edge, the alleged irregularity of its shape, and its rigidity and firm insertion into the sidewalk—were not dispositive, being true of many contours in a sidewalk, and the test was not whether the defect was capable of catching a pedestrian’s shoe.

Negligence — Maintenance of Premises — Trip and Fall — Applicability of Trivial Defect Doctrine

2. The trivial defect doctrine—grounded on the fundamental principle that, if a defect is so slight that no careful or prudent person would reasonably anticipate any danger from its existence, and yet an accident occurs that is traceable to the defect, there is no liability—is not limited to municipal defendants or cases involving accidents on sidewalks. The principle is equally applicable to private landlords and municipalities, and the doctrine has been applied to defects on stairways, including those that are inside privately owned buildings.

Negligence — Maintenance of Premises — Trip and Fall — Trivial Defect — Location of Defect on Walking Surface

3. In deciding whether the defendant in an action arising out of a trip and fall on an allegedly trivial defect on a sidewalk or stairway has met its burden of showing prima facie triviality, a court must—except in unusual circumstances—avoid interjecting the question whether the plaintiff might have avoided the accident simply by placing his or her feet elsewhere. Accordingly, in a personal injury action commenced by plaintiff after he fell while descending a stairway as he stepped on the part of a step tread’s nosing projecting over the riser below where there was a missing piece or “chip,” the Appellate Division erred in concluding that the defect was trivial as a matter of law because the “chip” was “not on the walking surface.” Plaintiff’s expert explained that, when descending a stairway, a human foot can make contact with the end of the nosing such that the walking surface of a step tread extends to the nosing. In the photograph in the record of a foot positioned next to the “chip,” the toe of the shoe extended across and over the nosing in a way that did not appear forced or unnatural. Even if there were room on the step for a person to place his or her foot behind the defect, it would not follow as a matter of law that the defect was “not on the walking surface.” After examining all the pertinent facts and circumstances, including that the step tread had a missing piece, of irregular shape, 3¼ inches in width and at least one-half inch in depth, on the nosing of the step tread, where a person might step, and that the record contained an expert affidavit explaining the necessity for step treads to be of uniform horizontal depth, a material triable issue of fact existed regarding triviality.

Negligence — Maintenance of Premises — Trip and Fall — Trivial Defect — Inconclusive Record

4. Summary judgment should not be granted to the defendant in an action arising out of a trip and fall on an allegedly trivial defect on a sidewalk or stairway where the dimensions of the defect are unknown and the photographs and descriptions in the record are inconclusive. Accordingly, in a personal injury action commenced by plaintiff after she tripped and fell while descending a stairway when her foot “got caught” on “a big clump in the middle of the stair”—a protrusion of some sort in the step tread—that had “been painted over,” the summary judgment record, which included deposition testimony and indistinct photographs, but no measurements of the alleged defect, was deemed inconclusive and could not support a ruling of triviality as a matter of law. Without evidence of the dimensions of the “clump,” it was not possible to determine whether it was the kind of physically small defect to which the trivial defect doctrine applies. Defendants thus failed to meet their initial burden of making a prima facie showing of entitlement to judgment as a matter of law, and the burden did not shift to plaintiff to establish the existence of a material triable issue of fact.

Negligence — Maintenance of Premises — Trip and Fall — Notice of Defective Condition

5. In a personal injury action commenced by plaintiff after she tripped and fell while descending a stairway when her foot “got caught” on “a big clump in the middle of the stair”—a protrusion of some sort in the step tread—that had “been painted over,” defendants failed to meet their burden to make a prima facie showing that they neither created nor had notice of the defect as a matter of law. The deposition testimony left significant doubt as to who painted the stairway, when it was painted, and whether the “clump” was visible and apparent and existed for a sufficient length of time prior to the accident to permit defendants’ employees to discover and remedy it.

RESEARCH REFERENCES

By the Publisher’s Editorial Staff

AM JUR 2d, Premises Liability §§ 16, 174, 482–483, 510–511, 513, 515, 540, 547, 709, 741.

CARMODY-WAIT 2d, Summary Judgment §§ 39:18, 39:71, 39:82–39:83, 39:88, 39:102, 39:115, 39:124, 39:190–39:191; CARMODY-WAIT 2d, Judgments §§ 63:345–63:346.

DOBBS LAW OF TORTS §§ 166, 276, 416.

NY JUR 2d, Highways, Streets, and Bridges §§ 402, 476–477; NY JUR 2d, Premises Liability §§ 30, 170, 177, 189–190, 199, 345–349, 409, 413, 440, 464–465; NY JUR 2d, Summary Judgment and Pretrial Motions to Dismiss §§ 35, 38, 60, 66–67.

NEW YORK LAW OF TORTS §§ 12:3, 12:9, 12:11, 12:14, 17:61.

SIEGEL, NY PRAC §§ 223, 279–282, 635.

ANNOTATION REFERENCE

Liability of abutting owner or occupant for condition of sidewalk. 88 ALR2d 331.

FIND SIMILAR CASES ON WESTLAW®

Database: NY-ORCS

Query: neglig! /s maint! & trip! /s (triv! /3 defect!)

POINTS OF COUNSEL

Pollack, Pollack, Isaac & DeCicco, LLP, New York City (Brian J. Isaac of counsel) and *Getz & Braverman, P.C.* (Michael Braverman of counsel), for appellant in the first above-entitled action. I. A defect which is not readily visible, and constitutes a trap or snare which can cause a person to trip, is not trivial as a matter of law, even where it is small. (*Loughran v City of New York*, 298 NY 320; *Pratt v Village of Seneca Falls*, 295 NY 690; *Lynch v City of Beacon*, 295 NY 872; *Dowd v City of Buffalo*, 290 NY 895; *Norbury v City of Buffalo*, 246 NY 605; *Wilson v Jaybro Realty & Dev. Co.*, 289 NY 410; *Trincere v County of Suffolk*, 90 NY2d 976; *Walker v City of New York*, 60 NY2d 557; *Delaney v Philhern Realty Holding Corp.*, 280 NY 461; *Taylor v New York City Tr. Auth.*, 48 NY2d 903.) II. When construed in a light most favorable to the plaintiff as the party opposing summary judgment, the record does not support defendant's assertion that it lacked notice of the metal remnant that caused plaintiff's accident as a matter of law; the defect existed for years prior to the accident, and was readily apparent, so that defendant's agents' failure to see it is inculpatory under the governing case law. (*Gordon v American Museum of Natural History*, 67 NY2d 836; *Negri v Stop & Shop*, 65 NY2d 625; *Sanchez v State of New York*, 99 NY2d 247; *Weigand v United Traction Co.*, 221 NY 39; *Blake v UTEC Constructors*, 48 NY2d 875; *Farrell v Prentice*, 206 AD2d 799; *Kirby v Montgomery Bros. & Co.*, 197 NY 27; *Adlam v Konvalinka*, 291 NY 40; *Kumkumian v City of New York*, 305 NY 167; *Woloszynowski v New York Cent. R.R. Co.*, 254 NY 206.)

Kaufman Dolowich & Voluck, LLP, Hackensack, New Jersey (Kevin J. O'Donnell of counsel), for respondent in the first above-entitled action. I. The courts below properly ruled that defendant met its prima facie burden establishing that it lacked notice of the alleged defect which plaintiff failed to rebut. (*Kraemer v K-Mart Corp.*, 226 AD2d 590; *Gordon v American Museum of Natural History*, 67 NY2d 836; *Goldman v Waldbaum, Inc.*, 248 AD2d 436; *Personius v Mann*, 20 AD3d 616; *Hayes v Riverbend Hous. Co., Inc.*, 40 AD3d 500; *Basso v Miller*, 40 NY2d 233; *Burko v Friedland*, 62 AD3d 462; *Arnold*

v New York City Hous. Auth., 296 AD2d 355; *Hayden v Waldbaum, Inc.*, 63 AD3d 679; *Denker v Century 21 Dept. Stores, LLC*, 55 AD3d 527.) II. The alleged defect was trivial and non-actionable as a matter of law. (*Trionfero v Vanderhorn*, 6 AD3d 903; *Trincere v County of Suffolk*, 90 NY2d 976; *Gaud v Markham*, 307 AD2d 845; *Burko v Friedland*, 62 AD3d 462; *Sokolovskaya v Zemnovitsch*, 89 AD3d 918; *Riley v City of New York*, 50 AD3d 344; *Taveras v City of New York*, 59 AD3d 178; *Schenpanski v Promise Deli, Inc.*, 88 AD3d 982; *Milewski v Washington Mut., Inc.*, 88 AD3d 853; *Meehan v David J. Hodder & Son, Inc.*, 13 AD3d 593.) III. The motion court and Appellate Division properly held that the report of plaintiff's engineering expert was inadmissible and unreliable. (*Grasso v Angerami*, 79 NY2d 813; *Kearse v New York City Tr. Auth.*, 16 AD3d 45; *Stuart v Ellis Hosp.*, 198 AD2d 559; *Papineau v Powell*, 251 AD2d 924; *Chase v Cayuga Med. Ctr. at Ithaca*, 2 AD3d 990; *Figueroa v Haven Plaza Hous. Dev. Fund Co.*, 247 AD2d 210; *Burko v Friedland*, 62 AD3d 462; *Young v Ai Guo Chen*, 294 AD2d 430; *Kruimer v National Cleaning Contrs.*, 256 AD2d 1; *Vazquez v JRG Realty Corp.*, 81 AD3d 555.)

Wingate, Russotti, Shapiro & Halperin, LLP, New York City (David M. Schwarz of counsel), for appellant in the second above-entitled action. I. The Appellate Division, Second Department, committed an error of law when it determined issues of fact rather than determining the existence of issues of fact. (*Sillman v Twentieth Century-Fox Film Corp.*, 3 NY2d 395; *Trincere v County of Suffolk*, 90 NY2d 976; *Glenbriar Co. v Lipsman*, 5 NY3d 388; *Buchholz v Trump 767 Fifth Ave., LLC*, 5 NY3d 1; *Grosskopf v 8320 Parkway Towers Corp.*, 88 AD3d 765; *Basso v Miller*, 40 NY2d 233; *Puma v New York City Tr. Auth.*, 55 AD3d 585; *Morehouse v Matthews*, 2 NY 514.) II. The trivial defect doctrine should not be applied to indoor private property to the extent that it has been. (*Terry v Village of Perry*, 199 NY 79; *Trincere v County of Suffolk*, 90 NY2d 976; *Peralta v Henriquez*, 100 NY2d 139.)

Gannon, Rosenfarb, Balletti & Drossman, New York City (Lisa L. Gokhulsingh of counsel), for respondent in the second above-entitled action. A dangerous condition did not exist at the building. (*Solomon v City of New York*, 66 NY2d 1026; *Basso v Miller*, 40 NY2d 233; *Nallan v Helmsley-Spear, Inc.*, 50 NY2d 507; *Putnam v Stout*, 38 NY2d 607; *Arnold v New York City Hous. Auth.*, 296 AD2d 355; *Moody v Woolworth Co.*, 288 AD2d

446; *Kotsakos v Tsirigotis*, 28 AD3d 426; *Mokszki v Pratt*, 13 AD3d 709; *Ianotta v Tishman Speyer Props., Inc.*, 46 AD3d 297; *Mochen v State of New York*, 57 AD2d 719.)

Margaret G. Klein, Defense Association of New York, Inc. (Andrew Zajac, Dawn C. DeSimone, Rona L. Platt and Jonathan T. Uejio of counsel), for Defense Association of New York, Inc., amicus curiae, in the second above-entitled action. Plaintiff's attempt to limit the trivial defect doctrine to open-air areas owned by municipalities should be rejected. (*Trincere v County of Suffolk*, 90 NY2d 976; *Guerrieri v Summa*, 193 AD2d 647; *Heeney v Topping*, 13 NY2d 1049; *Doerr v Goldsmith*, 25 NY3d 1114; *Loughran v City of New York*, 298 NY 320; *Beltz v City of Yonkers*, 148 NY 67; *Gastel v City of New York*, 194 NY 15; *Terry v Village of Perry*, 199 NY 79; *Aguayo v New York City Hous. Auth.*, 71 AD3d 926; *Peralta v Henriquez*, 100 NY2d 139.)

Law Offices of Vel Belushin, P.C., Brooklyn (Georgette Hamboussi of counsel), for appellant in the third above-entitled action. I. The Second Department improperly usurped the jury province when it determined based on its review of photographs alone that the defect was trivial as a matter of law. (*Kosson v Algaze*, 84 NY2d 1019; *Vega v Restani Constr. Corp.*, 18 NY3d 499; *Matter of Cuttitto Family Trust*, 10 AD3d 656; *Sillman v Twentieth Century-Fox Film Corp.*, 3 NY2d 395; *Roth v Barreto*, 289 AD2d 557; *O'Neill v Town of Fishkill*, 134 AD2d 487; *S.J. Capelin Assoc. v Globe Mfg. Corp.*, 34 NY2d 338; *Surdo v Albany Collision Supply, Inc.*, 8 AD3d 655; *Glover v City of New York*, 298 AD2d 428; *Speller v Sears, Roebuck & Co.*, 100 NY2d 38.) II. The Second Department erred when it failed, after finding based on a bare conclusory assertion that the defect was trivial, to consider whether respondents met their burden to show that they neither created the defective condition nor had actual or constructive notice of its existence. (*Johnson v Culinary Inst. of Am.*, 95 AD3d 1077; *Birnbaum v New York Racing Assn., Inc.*, 57 AD3d 598; *Lehman v North Greenwich Landscaping, LLC*, 16 NY3d 747; *Weller v Colleges of the Senecas*, 217 AD2d 280; *Joachim v 1824 Church Ave., Inc.*, 12 AD3d 409; *Van Steenburg v Great Atl. & Pac. Tea Co.*, 235 AD2d 1001; *Porco v Marshalls Dept. Stores*, 30 AD3d 284; *Sledge v Apple Maintenance & Servs., Inc.*, 23 Misc 3d 1114[U], 2009 NY Slip Op 50774[U]; *Winegrad v New York Univ. Med. Ctr.*, 64 NY2d 851.)

McGaw, Alventosa & Zajac, Jericho (*Joseph Horowitz* of counsel), for respondents in the third above-entitled action. The alleged defect on the stair was trivial in nature and had none of the characteristics of a trap or snare. (*Trincere v County of Suffolk*, 90 NY2d 976; *Copley v Town of Riverhead*, 70 AD3d 623; *Guerrieri v Summa*, 193 AD2d 647; *Heeney v Topping*, 13 NY2d 1049; *Schenpanski v Promise Deli, Inc.*, 88 AD3d 982; *DiNapoli v Huntington Hosp.*, 303 AD2d 359; *Marinaccio v Le-Chambord Rest.*, 246 AD2d 514; *Leon v Alcor Assoc., L.P.*, 96 AD3d 635; *Fisher v JRMR Realty Corp.*, 63 AD3d 677; *Maloid v New York State Elec. & Gas Corp.*, 257 AD2d 712.)

OPINION OF THE COURT

FAHEY, J.

These cases teach that it is usually more difficult to define what is trivial than what is significant. The common factual and procedural thread among the three appeals before us is that an individual tripped on a defect in a sidewalk or stairway, and was injured, but was foreclosed from going to trial on the ground that the defect was characterized as too trivial to be actionable. We hold that the Appellate Division erred in dismissing the complaint in two of the three cases.

I.

On April 23, 2009, plaintiff Leonard Hutchinson was walking on a concrete sidewalk in the Bronx when his right foot “caught” on a metal object protruding from the sidewalk and he fell, sustaining injuries. Hutchinson commenced this personal injury action against Sheridan Hill House Corp. The sidewalk where Hutchinson tripped abuts a building owned by Sheridan, which is responsible for maintaining the sidewalk in a reasonably safe condition under Administrative Code of the City of New York § 7-210 (a).

Discovery ensued. Hutchinson was deposed, along with a housing development director associated with Sheridan and two of its porters. Testimony was given that the sidewalk had been replaced in the summer of 2007. For his part, Hutchinson described the metal object as being “screwed on in the concrete” and gave rough estimates of its dimensions.

An employee of Sheridan’s counsel visited the sidewalk in December 2010 and photographed and measured the metal object. He concluded that the object, cylindrical in shape, projected “between one eighth of an inch . . . and one quarter

of an inch” above the sidewalk and was “approximately five eighths of an inch” in diameter.¹

Sheridan moved for summary judgment dismissing the complaint, asserting that the defect was trivial in nature and hence nonactionable and that Sheridan did not create, or have actual or constructive notice of, the defect. Sheridan submitted, among other documents, an affidavit of the law firm employee who had photographed the metal protrusion, giving his measurements; the photographs; the deposition testimony; and the engineer’s report. In response, Hutchinson contended that there are issues of fact regarding whether the metal object created a hazard in the nature of a trap or snare and whether Sheridan had constructive notice of its existence.

Supreme Court granted summary judgment in favor of Sheridan on the ground that it lacked notice of the defect (2012 NY Slip Op 33804[U] [2012]).² The Appellate Division affirmed, holding that Sheridan had demonstrated that it did not have notice of the defect and, in addition, that the metal object’s “minor height differential alone is insufficient to establish the existence of a dangerous or defective condition” (110 AD3d 552, 553 [1st Dept 2013]).

Two Justices dissented, reminding the majority that “‘there is no minimal dimension test or per se rule that a defect must be of a certain minimum height or depth in order to be actionable’” (*id.* at 554 [Acosta, J.P., and Saxe, J., dissenting], quoting *Trincere v County of Suffolk*, 90 NY2d 976, 977 [1997]). Moreover, the dissenters would have held that “an issue of fact remains as to whether the protruding piece of metal may be characterized as a trap or a snare such as could, without warning, snag a passerby’s shoe” (110 AD3d at 556 [Acosta, J.P., and Saxe, J., dissenting]).

Hutchinson appeals pursuant to CPLR 5601 (a). We affirm.

II.

On May 2, 2010, plaintiff Matvey Zelichenko fell while walking down a staircase in the lobby of a residential building in

1. A consulting engineer retained by Hutchinson’s counsel visited the accident site in May 2011, by which time the protruding object had been removed. In an unsworn report submitted by Hutchinson as an expert witness disclosure, the engineer stated, without explanation, his opinion that the diameter of the metal object had been about 1.25 inches.

2. In dicta, Supreme Court found the engineer’s report admissible under *Kearse v New York City Tr. Auth.* (16 AD3d 45, 47 n 1 [2d Dept 2005]), but inconclusive, and did not credit his estimate of the object’s diameter.

Brooklyn he was visiting for the first time. The staircase has five risers or vertical elements. It has four step treads, made of terrazzo, 12 inches in horizontal depth, each with a one-inch nosing that projects over the riser below. There are handrails on each side, and Zelichenko made use of one.

On the second step tread from the bottom, Zelichenko's right leg "got caught" when he stepped on a part of the nosing where there was a missing piece or "chip." His leg twisted and he fell, with resulting injuries. Zelichenko commenced this personal injury action against 301 Oriental Boulevard, LLC, the owner of the building.

During discovery, Zelichenko and the superintendent of the building gave deposition testimony. Zelichenko identified several photographs as fairly and accurately depicting the stairway and, in particular, the area of the missing "chip." In one such photograph, a shoe-clad foot is shown on the step tread in question, next to an indentation in the nosing of the step; the toe of the shoe projects over the nosing.

301 Oriental moved for summary judgment dismissing the complaint, contending that the alleged defect in the step was trivial and nonactionable as a matter of law and that it was not on notice of the defect. 301 Oriental relied on an affidavit of an engineering consultant, Jeffrey J. Schwalje, who had inspected, measured, and photographed the staircase in May 2011; the photographs; and the deposition testimony.

Schwalje measured the dimensions of the missing "chip" as 3.25 inches in width and one-half inch in depth. Schwalje stated that the chipped step tread in question "did not present a tripping or slipping hazard. The small chip in the nosing is forward of a person's foot contact area and would be safely negotiated. There was more than sufficient space behind the chip for an individual to safely plant his/her foot." He further opined that "[a] person descending the stairway would not bear any weight on the chipped space or any other part of the step edge in the subject step tread unless his/her foot completely overstepped the tread."

Zelichenko opposed the motion, relying on the photographs of the staircase and an affidavit of another engineer, Stuart K. Sokoloff. With regard to the size of the "chip," Sokoloff agreed with Schwalje's assessment of the width of the "chip" but, based on the photographs, he concluded that the depth of the missing area was one inch in places.

Sokoloff relied on a monograph entitled “The Staircase—Studies of Hazards, Falls and Safer Design” by architecture professor John Templer. According to Sokoloff, Professor Templer, after explaining the physical processes whereby a human being walks down stairs, “states that one of the factors that may cause a fall is a broken tread” on a stairway, because “[w]hen our gait on stairs is disrupted or altered we can lose our balance or stumble especially when a defect is unsuspected, unknown, unanticipated and unexpected.” Sokoloff added that “[i]t is necessary that all stair tread[s] be uniform without missing sections to support a person descending a stair in order for [the] person to maintain . . . balance when negotiating the steps.”

Sokoloff criticized Schwalje’s assertion that there was more than enough space behind the chip for an individual to place his or her foot. Citing Professor Templer, Sokoloff opined that “the foot can make contact with the end of the nosing.” Sokoloff explained the process as follows:

“As the other foot moves down the stairs, the foot currently in contact with the tip of the tread rolls forward until that second foot contacts the tread/step below. If a portion of the tip/nosing is missing during the stepping process . . . the contact area[] of the front of [the] foot is compromised/reduced to an extent that there would be insufficient tread area to support the ball/front of [the] foot with full body weight on it, and the foot could roll due to lack of support. This explains the mechanism of the plaintiff’s fall.”

Supreme Court denied 301 Oriental’s motion, ruling that issues of fact existed as to actual or constructive notice and as to whether the alleged defect was trivial as a matter of law. The Appellate Division reversed Supreme Court’s order and granted 301 Oriental’s motion.

The Appellate Division stated that

“[t]he evidence revealed that the alleged defect consisted of a chip measuring about 3.25 inches wide and about .5 inch deep, located almost entirely on the edge of the second to last step from the bottom, and not on the walking surface. Upon an examination of all of the facts presented, we find that the alleged defect was trivial, did not possess

the characteristics of a trap or nuisance, and, therefore, was not actionable” (117 AD3d 1038, 1040 [2d Dept 2014]).

We granted Zelichenko leave to appeal (24 NY3d 904 [2014]) and now reverse.

III.

On March 30, 2010, plaintiff Maureen Adler was injured in a fall on the interior staircase of the apartment building where she lived. As she recalled in her deposition testimony, she was walking down the stairs when her right foot “got caught” on “a big clump in the middle of the stair”—a protrusion of some sort in a step tread—which had “been painted over.” Adler commenced a personal injury action against QPI-VIII LLC and Vantage Management Services, LLC, the owner and manager of the building.

Adler’s counsel photographed the protrusion in the step, and at her deposition Adler acknowledged that the photographs fairly and accurately depicted the stairway and the “clump.” Adler testified that the stairway was illuminated by a 60-watt light bulb, that she was “[p]robably looking down” as she descended the stairs, that she did not recall any dirt or debris on the stairs, and that they were not slippery or cracked. She explained that she was very familiar with the stairway and in fact had seen the “clump” before on previous occasions.

The building superintendent testified that he had not noticed any uneven surface on the stairs prior to Adler’s accident nor received any complaints about such. He stated that the stairs had been painted some “three or four years before” the date of the accident.

Defendants moved for summary judgment dismissing the complaint, asserting that the alleged defect was trivial in nature and hence nonactionable and that they had not created the defect and did not have actual or constructive notice of its existence. They relied on Adler’s photographs as well as the deposition transcripts. Notably, defendants did not produce any measurements or other evidence of the dimensions of the “clump.”³

Supreme Court denied the motion, ruling that defendants had failed to establish as a matter of law that they neither cre-

3. Adler herself did not offer a measurement of the protrusion at any stage of this action.

ated the alleged defect nor had actual or constructive notice of it, or that the defect was trivial. The Appellate Division reversed and granted the motion, ruling that “[t]he evidence, and in particular the photographs, established that the alleged defect was trivial as a matter of law and did not possess the characteristics of a trap or nuisance, and, therefore, was not actionable. In opposition, the plaintiff failed to raise a triable issue of fact” (124 AD3d 567, 568-569 [2d Dept 2015] [citations omitted]). The Appellate Division did not pass on the issue of notice. We granted Adler leave to appeal (25 NY3d 903 [2015]) and now reverse.

IV.

In *Trincere v County of Suffolk* (90 NY2d 976 [1997]), this Court held that “there is no ‘minimal dimension test’ or per se rule that a defect must be of a certain minimum height or depth in order to be actionable” (*id.* at 977), and therefore that granting summary judgment to a defendant “based exclusively on the dimension[s] of the . . . defect is unacceptable” (*id.* at 977-978). Plaintiff Trincere tripped over a concrete paving slab, raised about a half inch in relation to the surrounding slabs in a plaza, and the lower courts dismissed her complaint, ruling the defect trivial as a matter of law. We held that a court must consider “all the facts and circumstances presented” (*id.* at 977) before concluding that no issue of fact exists, and emphasized that these factors will include, but should not be limited to, “the dimension[s] of the defect at issue” (*id.*). For this reason, we noted that “whether a dangerous or defective condition exists on the property of another so as to create liability . . . is generally a question of fact for the jury” (*id.* [internal quotation marks omitted]). Nevertheless, we noted that the Appellate Division had in fact considered all “the facts presented, including the width, depth, elevation, irregularity and appearance of the defect along with the time, place and circumstance of the injury” (*Trincere*, 90 NY2d at 978 [internal quotation marks omitted]), and we concluded that it had properly ruled that no issue of fact existed (*id.*).

[1] *Trincere* thus recognizes the doctrine that a defect alleged to have caused injury to a pedestrian may be trivial as a matter of law, but requires a holding of triviality to be based on all the specific facts and circumstances of the case, not size alone. In our opinion, we cited *Guerrieri v Summa* (193 AD2d 647 [2d Dept 1993]), which expressed the trivial defect doctrine

as the principle that a defendant “‘may not be cast in damages for negligent maintenance by reason of trivial defects on a walkway, not constituting a trap or nuisance, as a consequence of which a pedestrian might merely stumble, stub his toes, or trip over a raised projection’” (*id.* at 647, quoting *Liebl v Metropolitan Jockey Club*, 10 AD2d 1006, 1006 [2d Dept 1960], *rearg denied* 11 AD2d 946 [2d Dept 1960]; *see also e.g. Trionfero v Vanderhorn*, 6 AD3d 903, 903-904 [3d Dept 2004]; *Squires v County of Orleans*, 284 AD2d 990, 990 [4th Dept 2001]; *Morales v Riverbay Corp.*, 226 AD2d 271, 271 [1st Dept 1996]). *Trincere* and the line of cases in which it stands establish the principle that a small difference in height or other physically insignificant defect is actionable if its intrinsic characteristics or the surrounding circumstances magnify the dangers it poses, so that it “unreasonably imperil[s] the safety of” a pedestrian (*Wilson v Jaybro Realty & Dev. Co.*, 289 NY 410, 412 [1943]).

The repetition of the phrase “not constituting a trap” in many Appellate Division opinions should not be taken to limit the means by which a plaintiff may demonstrate a question of fact concerning the hazard posed by a physically small defect. Liability does not “turn[] upon whether the hole or depression, causing the pedestrian to fall, . . . constitutes ‘a trap’” (*Loughran v City of New York*, 298 NY 320, 321-322 [1948]). The case law provides numerous examples of factors that may render a physically small defect actionable, including a jagged edge (*see e.g. Lupa v City of Oswego*, 117 AD3d 1418, 1419 [4th Dept 2014]; *Jacobsen v Krumholz*, 41 AD3d 128, 128-129 [1st Dept 2007]); a rough, irregular surface (*see e.g. Tese-Milner v 30 E. 85th St. Co.*, 60 AD3d 458, 458 [1st Dept 2009]); the presence of other defects in the vicinity (*see e.g. Young v City of New York*, 250 AD2d 383, 384 [1st Dept 1998]); poor lighting (*see e.g. McKenzie v Crossroads Arena*, 291 AD2d 860, 860-861 [4th Dept 2002], *lv dismissed* 98 NY2d 647 [2002]); or a location—such as a parking lot, premises entrance/exit, or heavily traveled walkway—where pedestrians are naturally distracted from looking down at their feet (*see e.g. Brenner v Herricks Union Free Sch. Dist.*, 106 AD3d 766, 767 [2d Dept 2013]; *Wilson v Time Warner Cable*, 6 AD3d 801, 802 [3d Dept 2004]; *George v New York City Tr. Auth.*, 306 AD2d 160, 161 [1st Dept 2003]; *Glickman v City of New York*, 297 AD2d 220, 221 [1st Dept 2002]; *Argenio v Metropolitan Transp. Auth.*, 277 AD2d 165, 166 [1st Dept 2000], *rearg denied* 2001 NY App Div LEXIS 1472 [1st Dept 2001]; *Jacobsen*, 41 AD3d at 128-129; *Tesak v Marine Midland Bank*, 254 AD2d 717, 718 [4th Dept 1998]).

Our survey of such cases indicates that the lower courts, appropriately, find physically small defects to be actionable when their surrounding circumstances or intrinsic characteristics make them difficult for a pedestrian to see or to identify as hazards or difficult to traverse safely on foot. Attention to the specific circumstances is always required and undue or exclusive focus on whether a defect is a “trap” or “snare” is not in keeping with *Loughran* and *Trincere*.

Finally, the trivial defect doctrine is best understood with our well-established summary judgment standards in mind. In a summary judgment motion, the movant must make a prima facie showing of entitlement to judgment as a matter of law before the burden shifts to the party opposing the motion to establish the existence of a material issue of fact (*see Alvarez v Prospect Hosp.*, 68 NY2d 320, 324 [1986]). A defendant seeking dismissal of a complaint on the basis that the alleged defect is trivial must make a prima facie showing that the defect is, under the circumstances, physically insignificant and that the characteristics of the defect or the surrounding circumstances do not increase the risks it poses. Only then does the burden shift to the plaintiff to establish an issue of fact.

V.

We now apply these principles to the cases before us on appeal.

In *Hutchinson*, defendant Sheridan met its burden of making a prima facie showing that the cylindrical projection was trivial as a matter of law by producing measurements indicating that it was only about one quarter of an inch in height and about five eighths of an inch in diameter, together with evidence of the surrounding circumstances. The dimensions are set out in the record on appeal, which contains photographs showing ruler measurements of the object.

Plaintiff Hutchinson, seeking to show a triable issue of fact concerning features of the defect that would magnify the hazard it presents, asserts that the object had an abrupt edge, was irregular in shape, and was firmly inserted into the sidewalk, so that, in the words of the dissenting Justices at the Appellate Division, it “could, without warning, snag a passerby’s shoe” (110 AD3d at 556 [Acosta, J.P., and Saxe, J., dissenting]). Hutchinson also suggests that he was not required to look down at his feet while walking along the sidewalk.

The characteristics enumerated by Hutchinson—the abruptness of the projecting edge, the alleged irregularity of its shape,

and its rigidity and firm insertion into the sidewalk—are not dispositive, being true of many contours in a sidewalk. Moreover, contrary to the assertions of Hutchinson and the Appellate Division dissenters, the test established by the case law in New York is not whether a defect is *capable* of catching a pedestrian's shoe. Instead, the relevant questions are whether the defect was difficult for a pedestrian to see or to identify as a hazard or difficult to pass over safely on foot in light of the surrounding circumstances.

Here, the metal object that Hutchinson tripped over, protruding only about a quarter of an inch above the sidewalk, was in a well-illuminated location approximately in the middle of the sidewalk and in a place where a pedestrian would not be obliged by crowds or physical surroundings to look only ahead. The object stood alone and was not hidden or covered in any way so as to make it difficult to see or to identify as a hazard. Its edge was not jagged and the surrounding surface was not uneven. Taking into account all the facts and circumstances presented, including but not limited to the dimensions of the metal object, we conclude that the defect was trivial as a matter of law.

The Appellate Division properly ruled that the defect was not actionable. There is accordingly no need for us to address Sheridan's alternative contention based on lack of actual or constructive notice.

VI.

Plaintiff Zelichenko argues that the trivial defect doctrine should be limited to municipal defendants or to cases involving accidents on sidewalks, and does not apply to his fall on an interior staircase. He asserts that absent the trivial defect doctrine, a municipality would be burdened with inspecting, maintaining and repairing miles of sidewalk so as to rid public paths of every slight defect resulting from weathering and from expansion and contraction with changes in temperature. By contrast, Zelichenko points out, this policy consideration does not apply to owners of buildings, who may reasonably be required to ensure that interior walkways and staircases are safe. Moreover, he argues, expectations differ in varying locations and a person typically expects indoor surfaces to be more uniform and level, because they are not subject to so many changes due to the forces of nature.

[2] While it is true that pedestrian expectations differ between exterior and interior walking surfaces, and the trivial

defect doctrine may have salutary consequences for municipalities, we do not accept Zelichenko's invitation to reframe the law of personal injury liability so radically. The trivial defect doctrine is grounded on a fundamental principle that spans all types of liability: that if a "defect is so slight that no careful or prudent [person] would reasonably anticipate any danger from its existence," and yet an accident occurs that is traceable to the defect, there is no liability (*Beltz v City of Yonkers*, 148 NY 67, 70 [1895]). This principle is equally applicable to private landlords and municipalities. Moreover, the trivial defect doctrine has been applied to defects on stairways, including those that are inside privately owned buildings (see e.g. *Cassizzi v Fordham Univ.*, 101 AD3d 645, 646 [1st Dept 2012]; *Sawicki v Conklin Realty Co., LLC*, 94 AD3d 1083, 1083 [2d Dept 2012]; *Vachon v State of New York*, 286 AD2d 528, 530 [3d Dept 2001]; *Slate v Fredonia Cent. School Dist.*, 256 AD2d 1210, 1210-1211 [4th Dept 1998]).

[3] Zelichenko's further contentions, however, convince us that reversal is required. The Appellate Division in *Zelichenko*, in examining "all of the facts presented" (117 AD3d at 1040) as required by *Trincere*, concluded as a matter of law that the defect was trivial, stating in particular that the "chip" was "located almost entirely on the edge of the . . . step . . . and not on the walking surface" (*id.*). This was error.⁴

In particular, viewing the evidence in the light most favorable to Zelichenko, as we must in this procedural posture, we conclude that the Appellate Division erroneously decided that the "chip" was not on the walking surface of a step tread. Zeli-

4. The Second Department has attached significance to whether a defect was on "the walking surface" of a stairway in a number of recent cases. In *Maciaszek v Sloninski* (105 AD3d 1012, 1013 [2d Dept 2013]), the Second Department held a hole in a staircase to be trivial as a matter of law on the basis of circumstances that included that the hole "was one inch in diameter, half an inch deep, and located at the edge of the step." In *Grosskopf v 8320 Parkway Towers Corp.* (88 AD3d 765, 766 [2d Dept 2011]), the Court held that the alleged defect "consisted of a chip measuring less than two inches wide, located almost entirely on the nosing of the . . . step . . . and not on the walking surface," and concluded that the "chip" was trivial as a matter of law. In an earlier, distinguishable case, *Puma v New York City Tr. Auth.* (55 AD3d 585 [2d Dept 2008]), the Second Department held that there was no defective or dangerous condition because the plaintiff's fall in a subway station occurred when his foot became caught in a drainage canal "located at the extreme edge of the stairway tread, underneath the handrail" (*id.* at 585-586), rather than on a walking surface. We take no position on whether these cases were correctly decided.

chenko's expert, Sokoloff, citing Professor Templar, explained that, when descending a stairway, a human "foot can make contact with the end of the nosing" so that the walking surface of a step tread extends to the nosing. Indeed, in the photograph in the record of a foot positioned next to the "chip," the toe of the shoe extends across and over the nosing in a way that does not appear forced or unnatural.

Moreover, even if there were room on the step for a person to place his or her foot behind the defect, it would not follow as a matter of law that the defect is "not on the walking surface." That a person may place his or her foot on a step in such a way as to avoid the nosing does not imply that every person will always do so. What counts here is not whether a person could avoid the defect, but whether a person would invariably avoid the defect while walking in a manner typical of human beings descending stairs. A defect underneath a handrail (*see Puma*, 55 AD3d at 585-586) will presumably not be on the walking surface, but a defect in a place where a person may in the normal course of events place the weight of his or her body, resting on a foot, may be on the walking surface.

Here, the step tread had a missing piece, of irregular shape, 3.25 inches in width and at least one-half inch in depth, on the nosing of the step, where a person might step, and the record contains an expert affidavit explaining the necessity for step treads to be of uniform horizontal depth. After examining all the pertinent facts and circumstances of this case, as we are required to, we conclude that a material triable issue of fact exists regarding whether the defect was trivial.

For these reasons, the Appellate Division erred in concluding that the defect was nonactionable. Moreover, we agree with Supreme Court that an issue of fact exists as to actual or constructive notice (*see generally Gordon v American Museum of Natural History*, 67 NY2d 836, 837 [1986]; *Taylor v New York City Tr. Auth.*, 48 NY2d 903, 904 [1979]). Therefore, the Appellate Division erred in granting 301 Oriental's summary judgment motion.

VII.

[4] In *Adler*, the summary judgment record, which included deposition testimony and indistinct photographs, but no measurements of the alleged defect, is inconclusive. Without evidence of the dimensions of the "clump," it is not possible to determine whether it is the kind of physically small defect to

which the trivial defect doctrine applies. We hold that defendants failed to meet their initial burden of making a prima facie showing of entitlement to judgment as a matter of law. The burden therefore did not shift to Adler to establish the existence of a material triable issue of fact.

We do not imply that there are no cases in which a fact-finding court could examine photographs and justifiably infer from them as a matter of law that an elevation or depression or other defect is so slight as to be trivial as a matter of law (see e.g. *Outlaw v Citibank, N.A.*, 35 AD3d 564, 565 [2d Dept 2006] [“The photographs of the stair introduced into evidence by the plaintiff show the patch to be a small, worn, rectangular-shaped area on the metal safety treads at the edge of the step. It has no sharp edges and appears shallow”]; *Julian v Sementelli*, 234 AD2d 866, 867 [3d Dept 1996] [“Our examination of those photographs shows only a slight height differential between two slabs of the sidewalk”]). Photographs that are acknowledged to “fairly and accurately represent the accident site may be used to establish that a defect is trivial and not actionable” (*Schenpanski v Promise Deli, Inc.*, 88 AD3d 982, 984 [2d Dept 2011]). But we hold that the photographs in this case, whether alone or combined with the deposition testimony, cannot support a ruling of triviality as a matter of law.

For this reason, we agree with Adler’s principal argument that the Appellate Division erred in holding that the alleged defect was trivial. Contrary to Adler’s subsidiary contention, however, the Appellate Division committed no error in declining to rule on the notice issue, after it ruled in defendants’ favor on another basis. A defendant moving for summary judgment in a slip-and-fall case is not obliged to demonstrate lack of notice if it can prevail on another ground (see generally *Bachrach v Waldbaum, Inc.*, 261 AD2d 426, 426 [2d Dept 1999]; *Colt v Great Atl. & Pac. Tea Co.*, 209 AD2d 294, 294-295 [1st Dept 1994]).

[5] Nevertheless, because we rule against defendants on their other ground, we must consider the notice issue, and we hold that defendants failed to meet their burden to make a prima facie showing that they neither created nor had notice of the defect as a matter of law. The deposition testimony left significant doubt as to who painted the staircase, when it was painted, and whether the “clump” was “visible and apparent and . . . exist[ed] for a sufficient length of time prior to the accident to permit defendant’s employees to discover and remedy it” (*Gordon*, 67 NY2d at 837).

VIII.

Trincere stands for the proposition that a defendant cannot use the trivial defect doctrine to prevail on a summary judgment motion solely on the basis of the dimensions of an alleged defect, and that the reviewing court is obliged to consider all the facts and circumstances presented when it decides the motion. Summary judgment should not be granted to a defendant on the basis of “a mechanistic disposition of a case based exclusively on the dimension[s] of the . . . defect” (*Trincere*, 90 NY2d at 977-978), and neither should summary judgment be granted in a case in which the dimensions of the alleged defect are unknown and the photographs and descriptions inconclusive (see section VII, discussing *Adler*). Moreover, in deciding whether a defendant has met its burden of showing prima facie triviality, a court must—except in unusual circumstances not present here—avoid interjecting the question whether the plaintiff might have avoided the accident simply by placing his feet elsewhere (see section VI, discussing *Zelichenko*). In sum, there are no shortcuts to summary judgment in a slip-and-fall case.

Accordingly, in *Hutchinson*, the order of the Appellate Division should be affirmed, with costs; in *Zelichenko*, the order of the Appellate Division should be reversed, with costs, and defendant’s motion for summary judgment denied; and, in *Adler*, the order of the Appellate Division should be reversed, with costs, and defendants’ motion for summary judgment denied.

In *Hutchinson v Sheridan Hill House Corp.*: Order affirmed, with costs.

Opinion by Judge FAHEY. Chief Judge LIPPMAN and Judges PIGOTT, RIVERA, ABDUS-SALAAM and STEIN concur.

In *Zelichenko v 301 Oriental Blvd., LLC*: Order reversed, with costs, and defendant’s motion for summary judgment denied.

Opinion by Judge FAHEY. Chief Judge LIPPMAN and Judges PIGOTT, RIVERA, ABDUS-SALAAM and STEIN concur.

In *Adler v QPI-VIII LLC*: Order reversed, with costs, and defendants’ motion for summary judgment denied.

Opinion by Judge FAHEY. Chief Judge LIPPMAN and Judges PIGOTT, RIVERA, ABDUS-SALAAM and STEIN concur.

[41 NE3d 778, 19 NYS3d 814]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v
JENNIFER JORGENSEN, Appellant.

Argued September 8, 2015; decided October 22, 2015

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered January 22, 2014. The Appellate Division affirmed a judgment of the Supreme Court, Suffolk County (William J. Condon, J.), which had convicted defendant, upon a jury verdict, of manslaughter in the second degree.

People v Jorgensen, 113 AD3d 793, reversed.

HEADNOTE

Crimes — Manslaughter — Recklessly Causing Death of Another Person — Unborn Fetus

A woman cannot be convicted of manslaughter for reckless conduct that she engaged in while pregnant that caused injury to the fetus *in utero* where the child was born alive but died as a result of that injury days later. Accordingly, defendant could not be convicted of manslaughter in the second degree (Penal Law § 125.05 [1]) for the death of her child six days after being delivered by an emergency caesarean section following defendant's motor vehicle accident, which allegedly occurred because defendant, driving under the influence of a prescription drug and alcohol, without a seat belt and more than 20 miles per hour in excess of the speed limit, entered the oncoming lane of traffic and hit another car head on, causing injury to defendant's 34-week-old fetus. In enacting Penal Law § 125.05 (1), which defines a person as "a human being who has been born and is alive," and Penal Law § 125.15 (1), which defines second-degree manslaughter as recklessly causing the death of another "person," the legislature did not intend to hold pregnant women criminally responsible for conduct with respect to themselves and their unborn fetuses unless such conduct is done intentionally. Where the legislature has decided to criminalize a pregnant woman's conduct toward her unborn fetus, it has clearly established statutory prohibitions against such conduct and has determined that the punishment for intentional conduct is no greater than a misdemeanor. The legislature did not intend to impose greater punishment on pregnant women for their alleged reckless conduct toward a fetus than for their intentional conduct. Moreover, had defendant not consented to the caesarean section and her fetus died *in utero*, she could not have been prosecuted under the manslaughter statute because the fetus would not have fallen under the definition of a "person."

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Abortion and Birth Control § 118; AM JUR 2d,

Automobiles and Highway Traffic § 372; AM JUR 2d, Homicide §§ 9, 44, 47–48, 61; AM JUR 2d, Prenatal Injuries; Wrongful Life, Birth, or Conception §§ 22, 24, 26, 44–48.

CARMODY-WAIT 2d, Particular Types of Evidence § 194:6; CARMODY-WAIT 2d, Appeals in Criminal Cases §§ 207:115, 207:134–207:135.

McKINNEY'S, Penal Law §§ 125.05 (1); 125.15 (1).

NY JUR 2d, Criminal Law: Substantive Principles and Offenses §§ 299, 310, 451, 453, 467, 544, 549–550, 557, 579–582, 587, 604.

ANNOTATION REFERENCE

Homicide based on killing of unborn child. 64 ALR5th 671.

FIND SIMILAR CASES ON WESTLAW®

Database: NY-ORCS

Query: manslaughter hom! /p fetus!

POINTS OF COUNSEL

Mischel & Horn, P.C., New York City (*Richard E. Mischel* of counsel), for appellant. I. Defendant-appellant was convicted of a crime that was not legally possible for her to commit, under New York law. (*People v Boyd*, 12 NY3d 390; *People v Finch*, 23 NY3d 408; *People v Bradner*, 107 NY 1; *People v Correa*, 15 NY3d 213; *People v Nicometi*, 12 NY2d 428; *People v Lopez*, 45 AD3d 493; *People v Jackson*, 49 AD2d 680; *People v Campbell*, 72 NY2d 602; *People v Acevedo*, 32 NY2d 807; *People v Feingold*, 7 NY3d 288.) II. The evidence was not legally sufficient to establish defendant-appellant's guilt of manslaughter in the second degree. (*People v Ribowsky*, 77 NY2d 284; *People v Finch*, 23 NY3d 408; *People v Contes*, 60 NY2d 620; *People v Rayam*, 94 NY2d 557; *People v Yarrell*, 75 NY2d 828; *People v Cabrera*, 10 NY3d 370.) III. Defendant-appellant's federally and state guaranteed rights to a fair trial and due process were violated by the admission at trial of evidence pertaining to her legally prescribed medications and the prosecutor's exploitation of that evidence on summation. (*People v Moye*, 52 AD3d 1, 12 NY3d 743; *United States v Brown*, 597 F3d 399; *United States v Cole*, 537 F3d 923; *United States v Stevens*, 83 F3d 60; *United States v Jemal*, 26 F3d 1267; *People v Resek*, 3 NY3d 385; *People v Calvano*, 30 NY2d 199; *People v Arafet*, 13

NY3d 460; *People v Allweiss*, 48 NY2d 40; *People v Zackowitz*, 254 NY 192.) IV. The prosecutor's summation comments prejudiced defendant-appellant's rights to a fair trial. (*People v Zimmer*, 51 NY2d 390; *Berger v United States*, 295 US 78; *People v Steadman*, 82 NY2d 1; *People v Huntsman*, 96 AD3d 1387, 20 NY3d 1099; *People v Santorelli*, 95 NY2d 412; *People v Ashwal*, 39 NY2d 105; *People v Riback*, 13 NY3d 416; *People v Calabria*, 94 NY2d 519; *People v Grice*, 100 AD2d 419; *People v Steinhardt*, 9 NY2d 267.) V. The sentence imposed was illegal. (*People v Feingold*, 7 NY3d 288; *Brandes Meat Corp. v Cromer*, 146 AD2d 666; *United States v Watts*, 519 US 148; *People v Schrader*, 23 AD3d 585; *People v Black*, 33 AD3d 338; *People v Zowaski*, 31 Misc 3d 242.)

Thomas J. Spota, District Attorney, Riverhead (*Karla Lato* of counsel), for respondent. I. Jennifer Jorgensen can be guilty of reckless manslaughter with regard to the death of her baby. (*People v Williams*, 19 NY3d 100; *People v Finnegan*, 85 NY2d 53; *People v Quinto*, 77 AD3d 76; *Tompkins v Hunter*, 149 NY 117; *Matter of Roballo v Smith*, 63 NY2d 485; *People v Hall*, 158 AD2d 69; *People v Hardy*, 30 Misc 3d 967; *Roe v Wade*, 410 US 113; *Woods v Lancet*, 303 NY 349; *Matter of Gloria C. v William C.*, 124 Misc 2d 313.) II. The evidence presented at trial was legally sufficient to support Jennifer Jorgensen's conviction. (*People v Hines*, 97 NY2d 56; *People v Mendez*, 34 AD3d 697; *People v Contes*, 60 NY2d 620; *Jackson v Virginia*, 443 US 307; *People v Cintron*, 95 NY2d 329; *People v Tejeda*, 73 NY2d 958; *People v Rossey*, 89 NY2d 970; *People v Malizia*, 62 NY2d 755; *People v Danielson*, 9 NY3d 342; *People v Miller*, 286 AD2d 981.) III. The trial court did not abuse its discretion when it admitted evidence of Jennifer Jorgensen's prescription drug usage. Jennifer Jorgensen was not denied her right to a fair trial. (*People v Lewis*, 69 NY2d 321; *People v Scarola*, 71 NY2d 769; *People v Brown*, 97 NY2d 500; *People v Arafet*, 13 NY3d 460; *People v Crimmins*, 36 NY2d 230.) IV. The prosecutor's summation was proper and did not violate Jennifer Jorgensen's right to a fair trial. (*People v Romero*, 7 NY3d 911; *People v LaValle*, 3 NY3d 88; *People v Harris*, 98 NY2d 452; *People v Gray*, 86 NY2d 10; *People v Gonzalez*, 83 AD3d 1093; *People v Tonge*, 93 NY2d 838; *People v Tardbania*, 72 NY2d 852; *People v Scoon*, 303 AD2d 525; *People v Ashwal*, 39 NY2d 105; *People v Halm*, 81 NY2d 819.) V. This court is precluded from reviewing the imposed sentence. (*People v Cona*, 49 NY2d 26; *People v Nieves*, 2 NY3d 310; *People v Hurley*, 75 NY2d 887; *People v Samms*, 95 NY2d 52.)

Lynn M. Paltrow, National Advocates for Pregnant Women, New York City (*Farah Diaz-Tello* of counsel), for National Advocates for Pregnant Women and others, amici curiae. I. New York law does not permit prosecution of women in relation to their pregnancy outcomes. (*People v Allen*, 92 NY2d 378; *Matter of Scotto v Dinkins*, 85 NY2d 209; *People v Quinto*, 77 AD3d 76; *Matter of Brown v Wing*, 93 NY2d 517; *People v Ditta*, 52 NY2d 657; *People v Wood*, 8 NY2d 48; *People v Joseph*, 130 Misc 2d 377; *People v Hall*, 158 AD2d 69; *Byrn v New York City Health & Hosps. Corp.*, 31 NY2d 194; *People v Hardy*, 30 Misc 3d 967.) II. Rewriting the manslaughter law to punish neonatal losses renders it unconstitutional. (*People v Dietze*, 75 NY2d 47; *Matter of Gloria C. v William C.*, 124 Misc 2d 313; *Hughson v St. Francis Hosp. of Port Jervis*, 92 AD2d 131; *People v Vercelletto*, 135 Misc 2d 40; *People ex rel. Simpson v Wells*, 181 NY 252; *Ferguson v Charleston*, 532 US 67; *Matter of Sara Ashton McK. v Samuel Bode M.*, 111 AD3d 474; *Cramp v Board of Public Instruction of Orange Cty.*, 368 US 278; *People v Bright*, 71 NY2d 376; *Grayned v City of Rockford*, 408 US 104.) III. Prosecuting women for neonatal losses is cruel, unjust, and serves no state interest.

OPINION OF THE COURT

FIGOTT, J.

On May 30, 2008, defendant, driving eastbound on Whiskey Road in Suffolk County, entered the westbound lane and struck the vehicle of Robert and Mary Kelly head on, killing them both. At the time of the collision, defendant was 34 weeks' pregnant. She was taken to a local hospital where, due to signs of fetal distress, she consented to an emergency cesarean section. Despite the best efforts of hospital personnel, the baby died six days later. An autopsy confirmed that the cause of death was due to injuries sustained in the accident.

Thirteen months later, defendant was indicted on three counts of manslaughter in the second degree (Penal Law § 125.15 [1]), one count of aggravated vehicular homicide (Penal Law § 125.14), and one count of operating a motor vehicle while under the combined influence of drugs or of alcohol and any drug or drugs (Vehicle and Traffic Law § 1192 [4-a]).¹ After the first jury failed to reach a unanimous verdict, the parties proceeded to a second trial on all counts.

1. Prior to defendant's first trial, the defense successfully moved for the dismissal of the counts of operating a motor vehicle while using a mobile telephone, speeding, and endangering the welfare of a child, the last count

The People's theory was that defendant was traveling in excess of 50 miles per hour in a 30 mile-per-hour zone and, while under the influence of a prescription drug and alcohol, struck the Kelly vehicle in the Kellys' lane of traffic. As a result of the collision, defendant, who was not wearing a seat belt, struck the steering wheel, causing injury to her unborn fetus. The People's argument at trial was that defendant's reckless conduct not only resulted in the death of the Kellys, but also her six-day-old child.

Following deliberations, the jury returned a verdict finding the defendant not guilty on all counts except manslaughter in the second degree for the death of her child. The Appellate Division affirmed defendant's conviction (113 AD3d 793 [2d Dept 2014]). A Judge of this Court granted defendant leave to appeal (23 NY3d 1063 [2014]). We now reverse.

The underlying facts and circumstances of this appeal are tragic to all parties involved. The sole issue that we reach on this appeal, however, is whether a woman can be convicted of manslaughter for reckless conduct that she engaged in while pregnant that caused injury to the fetus *in utero* where the child was born alive but died as a result of that injury days later (*see People v Martinez*, 81 NY2d 810 [1993]).² We hold that it is evident from the statutory scheme that the legislature, in enacting Penal Law §§ 125.05 (1) and 125.15 (1), did not intend to hold pregnant women criminally responsible for conduct with respect to themselves and their unborn fetuses unless such conduct is done intentionally.

The issue is strictly one of statutory interpretation. As relevant here, "[a] person is guilty of manslaughter in the second degree when . . . [h]e [or she] recklessly causes the death of another person" (Penal Law § 125.15 [1]). Penal Law § 125.05 (1) provides that, when referring to the victim of a homicide, a person is "a human being who has been born and is alive." The question is, did the legislature, through its enactment of the two statutory provisions, intend to hold pregnant women criminally responsible for engaging in reckless conduct against themselves and their unborn fetuses, such that they should be subject to criminal liability for prenatal conduct that

being dismissed because the court held that the crime did not apply to an unborn fetus (26 Misc 3d 1232[A], 2010 NY Slip Op 50348[U] [Sup Ct, Suffolk County 2010]).

2. We have no occasion to reach the remaining issues raised by defendant.

results in postnatal death? Under the current statutory scheme, the answer to this question is no.

This is a case of first impression. The legislature's definition of the word "person," when referring to a homicide victim, as "a human being who has been born and is alive," is relatively broad. When it is read in conjunction with the manslaughter in the second degree provision at issue here, however, it is also ambiguous as to whether the legislature intended to criminalize a mother's own reckless conduct directed at herself and, consequently, the fetus. Consideration of the entire statutory scheme is necessary in order to divine whether the legislature intended to criminalize such conduct.

Where the legislature has decided to criminalize a pregnant woman's conduct towards her unborn fetus, it has clearly established statutory prohibitions against such conduct. In this regard, the legislature has made it a class B misdemeanor for a pregnant woman to "commit[] or submit[] to an [unjustifiable] abortional act upon herself" (Penal Law § 125.50 [self-abortion in the second degree]).³ According to Penal Law § 125.00, the crime of self-abortion in the second degree is not considered a "homicide." Further, the legislature has determined that a woman who is pregnant for more than 24 weeks, and who commits or submits to an unjustifiable "abortional act" that causes her to miscarry, is guilty of a class A misdemeanor (Penal Law § 125.55), not a felony.

Both "self-abortion" statutes require the mens rea of intent, and, yet, the legislature has determined that the punishment for such intentional conduct is no greater than a misdemeanor. In contrast, the manslaughter in the second degree statute under which defendant was charged and convicted is a class C felony, and requires that the People prove that defendant acted with the mental state of "recklessness," i.e., that she was "aware of and consciously disregard[ed] a substantial and unjustifiable risk" that a particular result would occur or circumstance existed (Penal Law § 15.05 [3]). We conclude that the legislature did not intend to impose greater punishment on

3. The Penal Law defines an "abortional act" as "an act committed upon or with respect to a female, whether by another person or by the female herself, whether she is pregnant or not, whether directly upon her body or by the administering, taking or prescription of drugs or in any other manner, *with intent to cause a miscarriage of such female*" (Penal Law § 125.05 [2] [emphasis supplied]).

pregnant women for their alleged reckless conduct toward a fetus than for their intentional conduct. While both first- and second-degree manslaughter statutes have provisions referencing pregnant women, those references are only in the context of non-justifiable “abortifacient acts” resulting in the death of the *mother* (as opposed to the child) (see Penal Law §§ 125.20 [3] [manslaughter in the first degree]; 125.15 [2] [manslaughter in the second degree]).

Had the legislature intended to include pregnant women in the class of individuals who may be guilty of manslaughter in the second degree for reckless acts committed while pregnant, resulting in the eventual death of their child, it could clearly have done so. Moreover, had defendant’s fetus died *in utero*, then, plainly, defendant could *not* have been prosecuted under the manslaughter statute because the fetus would not have fallen under the definition of a “person” (Penal Law § 125.05 [1]; see *People v Vercelletto*, 135 Misc 2d 40 [Ulster County Ct 1987] [dismissing the count of vehicular manslaughter in the second degree against a defendant who struck a car being operated by a pregnant woman, resulting in a stillbirth, holding that the stillborn fetus was not a “person” under the statute]; *People v Joseph*, 130 Misc 2d 377 [Orange County Ct 1985] [dismissing the counts of criminally negligent homicide and vehicular manslaughter against defendant for causing the death of an unborn child]).⁴

The People concede that, had defendant not consented to the cesarean section with the result that the child be born alive, she would not have been prosecuted for manslaughter in the second degree. Thus, if we accorded the word “person” the interpretation advocated by the People, it would create a perverse incentive for a pregnant woman to refuse a cesarean section out of fear that if her baby is born alive she would face criminal charges for her alleged reckless conduct, jeopardizing the health of the woman and the unborn fetus. This is plainly not what the legislature intended when it enacted the definition of “person” under section 125.05 (1) or the manslaughter in the second degree offense as delineated in Penal Law § 125.15 (1). To interpret the statutory provisions otherwise would enlarge their criminal reach beyond what the legislature

4. These cases and the present case are distinguishable from those cases where a third party has assaulted a pregnant woman, resulting in the death of the child after its birth (see e.g. *People v Hall*, 158 AD2d 69 [1st Dept 1990], *lv denied upon reconsideration* 76 NY2d 1021 [1990]).

intended (*see People v Wood*, 8 NY2d 48, 51 [1960] [providing that “(p)enal responsibility, unlike moral responsibility, cannot be extended beyond the fair scope of the statutory mandate”]).

The imposition of criminal liability upon pregnant women for acts committed against a fetus that is later born and subsequently dies as a result of injuries sustained while *in utero* should be clearly defined by the legislature, not the courts. It should also not be left to the whim of the prosecutor. Conceivably, one could find it “reckless” for a pregnant woman to disregard her obstetrician’s specific orders concerning bed rest; take prescription and/or illicit drugs; shovel a walkway; engage in a contact sport; carry groceries; or disregard dietary restrictions. Such conduct, if it resulted in premature birth and subsequent death of the child, could result in criminal liability for the mother. At present, such conduct, if it caused a stillbirth, would not result in criminal prosecution of the mother if the fetus died *in utero*. Any change in the law with regard to such matters would be within the province of the legislature.

Accordingly, the order of the Appellate Division should be reversed, and the remaining count of the indictment dismissed.

FAHEY, J. (dissenting). I respectfully dissent and would affirm the Appellate Division’s order. I cannot join in a result that analyzes our statutes to determine that a six-day-old child is not a person.¹

On the afternoon of May 30, 2008, defendant was the operator of a motor vehicle traveling on Whiskey Road, a curvy thoroughfare in a heavily wooded area of Suffolk County that was divided by a double-yellow line and that provided one lane of travel in each direction. According to the People, defendant, who was 34 weeks’ pregnant, was under the combined influence of alcohol and a prescription drug, using a mobile telephone, and speeding at the time. Undisputed is the fact that the vehicle operated by defendant crossed from its lane of travel into the path of an oncoming vehicle occupied by Robert and Mary Kelly. As a result of the collision that ensued, both of the Kellys died and defendant’s baby was delivered via an

1. Defendant raises several contentions on appeal, and in my view none has merit. Given the narrowness of the majority opinion, however, I will limit my discussion to the core question on this appeal, that is, whether the six-day-old child was a “person” within the meaning of Penal Law § 125.15 (1).

emergency cesarean section. Ultimately, however, the baby's respiratory, renal, and neurological problems proved insurmountable, and she died six days after her birth as a result of what the autopsy report characterized as "hypoxic encephalopathy and prematurity" due to "abruptio placentae," which in turn was attributed to "maternal blunt force trauma."² Following various events immaterial to the main issue on this appeal, defendant was charged by indictment with three counts of manslaughter in the second degree (Penal Law § 125.15 [1]) with respect to the deaths of each of the Kellys and the baby. The ensuing jury trial saw defendant acquitted of the manslaughter counts related to the Kellys³ but convicted of the manslaughter count pertaining to the baby, and on appeal the Appellate Division affirmed the judgment (113 AD3d 793 [2d Dept 2014]).

I agree with the majority that this issue is strictly one of statutory interpretation (majority op at 89), but I disagree with its reading of the pertinent statutes. My analysis begins with Penal Law § 125.05, which is entitled "Homicide, abortion and related offenses; definitions of terms." As its title suggests, section 125.05 contains "definitions . . . applicable to [Penal Law] article [125]." Included in the terms defined is "person" which, "when referring to the victim of a homicide, means a human being who has been born and is alive" (§ 125.05 [1]).

Based on that language alone, a reasonable mind perhaps could conclude that the Penal Law does not provide for criminal liability for manslaughter in the second degree in this context. However, section 125.05 is to be read in tandem (*see generally Matter of Wallach v Town of Dryden*, 23 NY3d 728, 744 [2014], *rearg denied* 24 NY3d 981 [2014]; McKinney's Cons Laws of NY, Book 1, Statutes § 97) with, inter alia, Penal Law § 125.00, which is entitled "Homicide defined" and which states that

2. Hypoxic encephalopathy is a condition that occurs when the brain is deprived of oxygen, whereas abruptio placentae (also known as placental abruption) is the premature separation of the placenta from the uterus.

3. To be clear, the trial considered the aforementioned manslaughter counts, as well as one count each of aggravated vehicular homicide (Penal Law § 125.14) and driving while ability impaired by the combined influence of drugs or of alcohol and any drug or drugs (Vehicle and Traffic Law § 1192 [4-a]) that were levied in a prior indictment. The latter counts survived defendant's motion to dismiss the prior indictment, and the jury acquitted defendant of those counts as well as of the counts of manslaughter in the second degree pertaining to the Kellys.

“[h]omicide means conduct which causes the death of a person or an unborn child with which a female has been pregnant for more than [24] weeks under circumstances constituting murder, manslaughter in the first degree, manslaughter in the second degree, criminally negligent homicide, abortion in the first degree or self-abortion in the first degree.”

Section 125.00 clearly states a legislative intent to protect both the born and “unborn child[ren] with which a female has been pregnant for more than [24] weeks.” With that precept in mind I turn to Penal Law § 125.15 (1), which embodies the crime of manslaughter in the second degree of which defendant was convicted. Pursuant to that section, “[a] person is guilty of manslaughter in the second degree when . . . [h]e [or she] recklessly causes the death of another person” (Penal Law § 125.15 [1].) “Recklessly” is defined in Penal Law § 15.05 (3), which states that

“[a] person acts recklessly with respect to a result or to a circumstance described by a statute defining an offense when he [or she] is aware of and consciously disregards a substantial and unjustifiable risk that such result will occur or that such circumstance exists. The risk must be of such nature and degree that disregard thereof constitutes a gross deviation from the standard of conduct that a reasonable person would observe in the situation. A person who creates such a risk but is unaware thereof solely by reason of voluntary intoxication also acts recklessly with respect thereto.”

Distilled to its essence, defendant’s contention, which the majority credits, is that because her allegedly reckless conduct did not occur while the baby was a person, that is, because the allegedly reckless conduct occurred before the baby was born alive, she cannot be convicted of a crime that requires her reckless actions to have caused the baby’s death. I disagree because I see no such temporal qualification in the relevant parts of the Penal Law. Where, as here, the baby-victim is born alive but subsequently dies, the Penal Law allows for the conviction of a defendant mother of manslaughter in the second degree where the acts causing that baby’s death occurred before that infant was born.

The pertinent parts of the Penal Law speak to victims as they *are*, not as they *were* at the time the acts giving rise to the crime were committed. There is no pregnant mother excep-

tion from criminal liability for reckless acts that result in the death of a mother's baby postpartum. Indeed, Penal Law § 125.15 (1) does not require that the reckless conduct contemplated therein have occurred while the victim was a person, and the definition of "recklessly" provided in section 15.05 (3) contemplates that a *present act* yielding a *future result* will come within its ambit.⁴

In so concluding I note that the Appellate Division reached a similar result in *People v Hardy* (128 AD3d 1453 [4th Dept 2015], *lv denied* 25 NY3d 1202 [2015]). There, the "conviction arose from an incident that began when [the defendant] fled the scene of an attempted petit larceny" in an automobile (*id.* at 1453).

"During that flight, [the defendant's] vehicle crossed the center line [of the road on which it traveled], side-swiped a car, then collided head-on with another vehicle driven by a woman who had been pregnant for approximately 23 weeks, causing her to sustain severe injuries. In order to save the mother's life, her female child was delivered by cesarean section," and "[t]he child's heart beat for about 2½ hours before she died" (*id.* at 1453-1454).

The Appellate Division determined that the evidence was legally sufficient to support the conviction of manslaughter in the second degree (Penal Law § 125.15 [1]) "inasmuch as the child 'was a "person" from the moment of her birth . . . , notwithstanding that [the] defendant may have perpetrated the act that caused the injury prior to her birth'" (*id.* at 1455, quoting *People v Hayat*, 235 AD2d 287, 287 [1st Dept 1997], *lv denied* 89 NY2d 1036 [1997]).

Similar to *Hardy* is *People v Hall* (158 AD2d 69 [1st Dept 1990], *lv denied upon reconsideration* 76 NY2d 1021 [1990]),

4. My conclusion does not defy the rule of lenity given my view that only one construction of the relevant statutes is plausible (*see People v Golb*, 23 NY3d 455, 468 [2014] ["if two constructions of a criminal statute are plausible, the one more favorable to the defendant should be adopted in accordance with the rule of lenity" (internal quotation marks omitted)], *cert denied* 574 US —, 135 S Ct 1009 [2015]). Similarly, my conclusion does not breach the principle articulated in Judge Jones's concurrence in *People v Valencia* (14 NY3d 927 [2010]) "'that the physical conduct and the state of mind must concur,'" and "'that there is concurrence when the defendant's mental state actuates the physical conduct'" (*id.* at 933-934 [Jones, J., concurring], quoting 1 LaFave, Substantive Criminal Law § 6.3 [a] at 451 [2d ed 2003] [footnotes omitted]) because here defendant's actions and her state of mind were one.

wherein the Appellate Division applied the “born alive” rule. That rule provides that “a person [cannot] be convicted of an offense involving homicide unless the victim, including a child whose death was the result of prenatal injuries, was first born alive” (*id.* at 76; *see People v Hayner*, 300 NY 171, 174 [1949] [enunciating the “born alive” rule]). In *Hall* the defendant had shot a pregnant woman in the abdomen, which caused that woman to give birth by cesarean section to a baby who lived for 36 hours before dying “from a series of [injuries] attributed to prematurity and oxygen deprivation” (*Hall*, 158 AD2d at 71). Based on those circumstances the defendant was convicted of, *inter alia*, manslaughter in the second degree (*see id.* at 72), and the Appellate Division affirmed that judgment of conviction, essentially reasoning that because the baby had been born alive, it constituted a “person” within the meaning of Penal Law §§ 125.05 (1) and 125.15 (*see Hall*, 158 AD2d at 73-77).

Hardy and *Hall* are factually different from this case in that the perpetrator in each of those matters was not the mother of the deceased child. The instant statutes, however, do not draw a distinction between violence perpetrated against an “unborn child” (Penal Law § 125.00) later born alive by that child’s mother and violence perpetrated against the same child by a third party (*cf.* majority *op* at 91).

I appreciate that my conclusion could promote the obtuse scenario of encouraging one situated similarly to defendant to allow her unborn child to die within her following like misconduct. Indeed, here, had defendant avoided a cesarean section following the collision and the death occurred *in utero*, she could not have been charged with manslaughter in the second degree, which is a class C felony (Penal Law § 125.15), for the simple reason that the “person” element of that crime could not have been met (*see* § 125.05 [1]). Had that scenario come to pass, defendant conceivably could have been charged with the class E felony of abortion in the second degree (§ 125.40) or the class D felony of abortion in the first degree (§ 125.45), but both of those crimes have an intent element that would likely have been impossible to prove in the context of this automobile accident. That hypothetical point notwithstanding, “a perpetrator of illegal conduct takes his [or her] victims as he [or she] finds them” (*Hall*, 158 AD2d at 79). The statutory scheme in question reflects a legislative prerogative that we have no legal basis to modify.

Here it is beyond dispute that the baby was born alive following the collision but died six days later as a result of injuries caused by the reckless conduct of her mother. Through Penal Law article 125 and, more particularly, Penal Law § 125.15 (1), the legislature consciously chose to place events such as these in the class of circumstances that may constitute manslaughter in the second degree. Based on those plain provisions of the Penal Law, I conclude that the baby was a person in the eyes of the Penal Law, that the mother can be held accountable under section 125.15 (1) for the baby's death, and that the Appellate Division's order should be affirmed.

Chief Judge LIPPMAN and Judges RIVERA, ABDUS-SALAAM and STEIN concur; Judge FAHEY dissents and votes to affirm in an opinion.

Order reversed and the remaining count in the indictment dismissed.

[42 NE3d 655, 21 NYS3d 158]

THE PEOPLE OF THE STATE OF NEW YORK, by ERIC T. SCHNEIDERMAN, Attorney General for the State of New York, et al.,
Respondents, v SPRINT NEXTEL CORP. et al., Appellants.

Argued September 9, 2015; decided October 20, 2015

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered February 27, 2014. The Appellate Division affirmed an order of the Supreme Court, New York County (O. Peter Sherwood, J.; op 41 Misc 3d 511 [2013]), which had denied defendants' motion to dismiss the complaint in its entirety. The following question was certified by the Appellate Division: "Was the order of the Supreme Court, as affirmed by . . . this Court, properly made?"

People v Sprint Nextel Corp., 114 AD3d 622, affirmed.

HEADNOTES

Statutes — Federal Preemption — Sales Tax on Fixed Mobile Telecommunications Charges

1. Tax Law § 1105 (b) (2) unambiguously imposes a tax on all voice services sold for a fixed periodic charge, including interstate and international calls, and is not preempted by the Federal Mobile Telecommunications Sourcing Act (MTSA) (4 USC § 116 *et seq.*). The MTSA establishes a uniform "sourcing" rule for state taxation of mobile telecommunications services: the only state that may impose a tax is the state of the customer's place of primary use. The MTSA bundling provision expressly opens by respecting and incorporating state authority, rather than restricting it, and anticipates disaggregation only of charges "not otherwise subject . . . to [state] taxation." Because the Tax Law imposes a tax on the entire amount of the fixed monthly charge for voice services, there is no exemption for any interstate and international component that would trigger section 123 (b)'s exception.

Taxation — Sales and Use Taxes — Knowingly Making False Statements Material to Sales Tax Obligation

2. In a civil tax enforcement action, the People stated a cause of action under the New York False Claims Act (State Finance Law § 187 *et seq.*) by alleging that defendant wireless telecommunications service provider arbitrarily allocated a percentage of its flat-rate monthly charge to interstate and international calls, failed to collect sales tax on that portion of the charge, and "knowingly ma[de] . . . a false record or statement material to" its obligation to pay sales tax (State Finance Law § 189 [1] [g]). The complaint contained allegations about agency guidance and industry compliance with the Attorney General's position that Tax Law § 1105 (b) (2) requires the payment of sales taxes on the full amount of fixed periodic charges for wireless voice services, defendant's prior payment of the proper amount of sales tax

and its undisclosed reversal of its practices, and explicit warnings that defendant received from the state tax department that defendant's sales tax practice was illegal.

Constitutional Law — Ex Post Facto Law — New York False Claims Act

3. Retroactive application of the New York False Claims Act (FCA) (State Finance Law § 187 *et seq.*) to impose damages and civil penalties against defendant wireless telecommunications service provider for “knowingly making] . . . a false record or statement material to” its obligation to pay sales tax with respect to the portion of its flat-rate monthly charge arbitrarily allocated to interstate and international calls (State Finance Law § 189 [1] [g]) was not barred by the Ex Post Facto Clause of the United States Constitution (US Const, art I, § 10). The penalty scheme does not impose an affirmative disability or restraint, and monetary penalties like those imposed by the FCA have not historically been viewed as punishment. Also, the FCA does not regulate conduct that was already a crime, and the penalty scheme may be rationally connected to the nonpunitive purposes of allowing the government to be made whole. Finally, given the compensatory, nonpunitive aims of the statute, the penalties are not unduly excessive.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Constitutional Law §§ 689, 692; AM JUR 2d, Sales and Use Taxes §§ 25, 46, 216, 217.
 MCKINNEY'S, State Finance Law §§ 187 *et seq.*; 189 (1) (g); Tax Law § 1105 (b) (2).
 NY JUR 2d, Constitutional Law §§ 310, 311, 317; NY JUR 2d, Taxation and Assessment §§ 1737, 1834, 1940.
 4 USCA §§ 116 *et seq.*; 123 (b).
 US Const, art I, § 10.

ANNOTATION REFERENCE

See ALR Index under Ex Post Facto Laws; Sales and Use Taxes; Telecommunications.

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the District of Columbia bar, admitted pro hac vice, of counsel), and *Pillsbury Winthrop Shaw Pittman LLP*, New York City (*E. Leo Milonas* and *David G. Keyko* of counsel), for appellants. I. The Tax Law does not impose sales tax on interstate mobile voice services sold as part of a fixed monthly charge. (*Matter of Albany Law School v New York State Off. of Mental Retardation & Dev. Disabilities*, 19 NY3d 106; *Debevoise & Plimpton v New York State Dept. of Taxation & Fin.*, 80 NY2d 657; *Expedia, Inc. v City of N.Y. Dept. of Fin.*, 22 NY3d 121; *American Locker Co. v City of New York*, 308 NY 264; *Matter of Grace v New York State Tax Commn.*, 37 NY2d 193; *Flores v Lower E. Side Serv. Ctr., Inc.*, 4 NY3d 363; *Matter of Albano v Kirby*, 36 NY2d 526; *Matter of Lloyd v Grella*, 83 NY2d 537; *Matter of Belmonte v Snashall*, 2 NY3d 560; *Matter of SIN, Inc. v Department of Fin. of City of N.Y.*, 71 NY2d 616; *Matter of Carey Transp. v Perrotta*, 34 AD2d 147.) II. The Attorney General's interpretation of the Tax Law, if correct, would be preempted by the Federal Mobile Telecommunications Sourcing Act. (*Lee v Astoria Generating Co., L.P.*, 13 NY3d 382; *Pacific Capital Bank, N.A. v Connecticut*, 542 F3d 341.) III. The complaint fails to state a claim under the New York False Claims Act. (*United States ex rel. Pervez v Beth Israel Med. Ctr.*, 736 F Supp 2d 804; *State of New York ex rel. Seiden v Utica First Ins. Co.*, 96 AD3d 67; *United States ex rel. Ramadoss v Caremark Inc.*, 586 F Supp 2d 668; *Safeco Ins. Co. of America v Burr*, 551 US 47; *United States ex rel. Hixson v Health Mgt. Sys., Inc.*, 613 F3d 1186; *Louisiana Mun. Police Employees' Retirement Sys. v Hesse*, 962 F Supp 2d 576; *Debevoise & Plimpton v New York State Dept. of Taxation & Fin.*, 80 NY2d 657; *Smith v Doe*, 538 US 84; *United States v Ward*, 448 US 242; *Kennedy v Mendoza-Martinez*, 372 US 144.)

Eric T. Schneiderman, Attorney General, New York City (*Steven C. Wu*, *Barbara D. Underwood* and *Won S. Shin* of counsel), for respondents. I. Sprint Nextel Corporation, Sprint Spectrum L.P., Nextel of New York, Inc. and Nextel Partners of Upstate New York, Inc. failed to collect sales taxes owed on mobile voice service sold for fixed monthly charges and falsely stated their taxable receipts. (*Matter of Jewish Home & Infirmary of Rochester v Commissioner of N.Y. State Dept. of Health*, 84 NY2d 252; *People v Velez*, 19 NY3d 642; *Lorillard Tobacco Co. v Roth*, 99 NY2d 316; *Matter of Greer v Wing*, 95 NY2d 676; *Barnhart v Thomas*, 540 US 20; *Matter of Chemical Specialties Mfrs. Assn. v Jorling*, 85 NY2d 382; *Matter of Fox v Board of Regents of State of N.Y.*, 140 AD2d 771, 72 NY2d 808; *Zanghi v*

Greyhound Lines, 234 AD2d 930; *Heard v Cuomo*, 80 NY2d 684; *Matter of 677 New Loudon Corp. v State of N.Y. Tax Appeals Trib.*, 19 NY3d 1058.) II. Sprint Nextel Corporation, Sprint Spectrum L.P., Nextel of New York, Inc. and Nextel Partners of Upstate New York, Inc. knowingly made false statements about their taxable receipts. (*Pludeman v Northern Leasing Sys., Inc.*, 10 NY3d 486; *Polonetsky v Better Homes Depot*, 97 NY2d 46; *People v Greenberg*, 21 NY3d 439; *Minnesota Assn. of Nurse Anesthetists v Allina Health Sys. Corp.*, 276 F3d 1032; *United States v R&F Props. of Lake County, Inc.*, 433 F3d 1349; *Overstock.com, Inc. v New York State Dept. of Taxation & Fin.*, 20 NY3d 586; *Matter of Spencer v Tax Appeals Trib. of State of N.Y.*, 251 AD2d 764; *Matter of Friesch-Groningsche Hypotheekbank Realty Credit Corp. v Tax Appeals Trib. of State of N.Y.*, 185 AD2d 466; *Oneida Nation of N.Y. v Cuomo*, 645 F3d 154.) III. The Ex Post Facto Clause does not bar retroactive application of the New York False Claims Act. (*Kellogg v Travis*, 100 NY2d 407; *Smith v Doe*, 538 US 84; *Kennedy v Mendoza-Martinez*, 372 US 144; *Hudson v United States*, 522 US 93; *United States ex rel. Marcus v Hess*, 317 US 537; *Helvering v Mitchell*, 303 US 391; *Stockwell v United States*, 80 US 531; *Kansas v Hendricks*, 521 US 346; *United States v Bornstein*, 423 US 303; *Cook County v United States ex rel. Chandler*, 538 US 119.)

Reed Smith LLP, New York City (*Jack Trachtenberg*, *Adam P. Beckerink* and *Jennifer S. Goldstein* of counsel), for Institute for Professionals in Taxation, amicus curiae. I. The lower courts erroneously failed to consider whether Sprint Nextel Corporation, Sprint Spectrum L.P., Nextel of New York, Inc. and Nextel Partners of Upstate New York, Inc.'s interpretation of the Tax Law was reasonable. (*United States, ex rel. Ramadoss v Caremark Inc.*, 586 F Supp 2d 668; *United States ex rel. Wilson v Kellogg Brown & Root, Inc.*, 525 F3d 370; *United States ex rel. Lamers v City of Green Bay*, 168 F3d 1013; *United States ex rel. Hopper v Anton*, 91 F3d 1261; *United States ex rel. Hixson v Health Mgt. Sys., Inc.*, 613 F3d 1186; *United States v Basin Elec. Power Co-op.*, 248 F3d 781; *United States ex rel. Oliver v Parsons Co.*, 195 F3d 457; *United States ex rel. Hochman v Nackman*, 145 F3d 1069; *United States ex rel. K & R Ltd. Partnership v Massachusetts Hous. Fin. Agency*, 456 F Supp 2d 46, 530 F3d 980.) II. The Supreme Court's failure to treat Tax Law § 1105 (b) as a tax imposition statute was erroneous and compounded its error in failing to consider the reasonableness of Sprint Nextel Corporation, Sprint Spectrum

L.P., Nextel of New York, Inc. and Nextel Partners of Upstate New York, Inc.'s conduct. (*Debevoise & Plimpton v New York State Dept. of Taxation & Fin.*, 80 NY2d 657.) III. The Court should provide clear guidance regarding the application of the False Claims Act to tax matters to prevent future violations of the rights and privileges granted to taxpayers under the Tax Law. (*Ryan v New York State Dept. of Taxation & Fin.*, 63 AD3d 816.)

McDermott Will & Emery LLP, New York City (*Arthur R. Rosen* and *Lindsay M. LaCava* of counsel), for Council on State Taxation, amicus curiae. I. The application of the New York False Claims Act to cases involving legitimate differences in statutory interpretation—which, by definition, do not constitute “knowingly . . . false records or statements”—undermines the efficiency and fairness of state tax administration. (*United States ex rel. Hixson v Health Mgt. Sys., Inc.*, 613 F3d 1186; *Matter of Consolidated Edison Co. of N.Y. v State Tax Commn. of State of N.Y.*, 24 NY2d 114; *New York State Cable Tel. Assn. v State Tax Commn.*, 59 AD2d 81; *Celestial Food of Massapequa Corp. v New York State Tax Commn.*, 98 AD2d 157, 63 NY2d 1020; *Matter of City of New York v New York State Tax Appeals Trib.*, 231 AD2d 267; *Debevoise & Plimpton v New York State Dept. of Taxation & Fin.*, 80 NY2d 657; *Matter of Easylink Servs. Intl., Inc. v New York State Tax Appeals Trib.*, 101 AD3d 1180; *State of N.Y. ex rel. Grupp v DHL Express [USA], Inc.*, 19 NY3d 278; *People v Bank of N.Y. Mellon Corp.*, 40 Misc 3d 1232[A], 2013 NY Slip Op 51394[U]; *In re AT & T Mobility Wireless Data Servs. Sales Tax Litig.*, 789 F Supp 2d 935.) II. Absent fraud-like or criminal conduct, the Department of Taxation and Finance is the only appropriate body to administer New York's taxes, particularly in situations such as this where an audit of appellants had already been commenced by the Department of Taxation and Finance. (*Ryan v New York State Dept. of Taxation & Fin.*, 63 AD3d 816; *Complete Auto Transit, Inc. v Brady*, 430 US 274; *Quill Corp. v North Dakota*, 504 US 298.)

Ingram Yuzek Gainen Carroll & Bertolotti, LLP, New York City (*John G. Nicolich* and *Roger Cukras* of counsel), for Broadband Tax Institute, amicus curiae. I. The *Matter of Helio* (2015 WL 4192425, 2015 NY City Tax LEXIS 8 [Tax Appeals Tribunal, July 2, 2015, DTA No. 825010]) proceeding undercuts the Attorney General's position. II. The Attorney General overstates Tax Law § 1105 (b) and the significance of the

Department of Taxation and Finance's technical memorandum. III. Unbundling is a well-accepted practice in the communications industry. (*Caprio v New York State Dept. of Taxation & Fin.*, 25 NY3d 744.)

Willens & Scarvalone LLP, New York City (*Jonathan A. Wilens* of counsel), and *Taxpayers Against Fraud Education Fund*, Washington, D.C. (*Cleveland Lawrence III* and *Jacklyn N. DeMar* of counsel), for Taxpayers Against Fraud Education Fund, amicus curiae. I. Sprint Nextel Corporation, Sprint Spectrum L.P., Nextel of New York, Inc. and Nextel Partners of Upstate New York, Inc.'s motion to dismiss on scienter grounds should be denied because the plaintiffs have alleged a knowing violation of the New York False Claims Act. (*United States ex rel. Pervez v Beth Israel Med. Ctr.*, 736 F Supp 2d 804; *United States ex rel. Bilotta v Novartis Pharms. Corp.*, 50 F Supp 3d 497; *State of New York ex rel. Seiden v Utica First Ins. Co.*, 96 AD3d 67; *Visiting Nurse Assn. of Brooklyn v Thompson*, 378 F Supp 2d 75; *Pludeman v Northern Leasing Sys., Inc.*, 10 NY3d 486; *United States v Incorporated Vil. of Is. Park*, 888 F Supp 419; *United States v Bollinger Shipyards, Inc.*, 775 F3d 255; *United States ex rel. Osmose, Inc. v Chemical Specialties, Inc.*, 994 F Supp 2d 353; *United States ex rel. Fox Rx, Inc. v Omnicare, Inc.*, 38 F Supp 3d 398; *Lerner v Fleet Bank, N.A.*, 459 F3d 273.) II. Retroactive application of the tax fraud provision of the New York False Claims Act does not violate the Ex Post Facto provision of the US Constitution. (*Smith v Doe*, 538 US 84; *United States ex rel. Drake v NSI, Inc.*, 736 F Supp 2d 489; *Calder v Bull*, 3 US 386; *United States ex rel. Bilotta v Novartis Pharms. Corp.*, 50 F Supp 3d 497; *United States ex rel. Augustine v Century Health Servs., Inc.*, 136 F Supp 2d 876; *Graham County Soil and Water Conservation Dist. v United States ex rel. Wilson*, 559 US 280; *Seling v Young*, 531 US 250; *Cook County v United States ex rel. Chandler*, 538 US 119; *United States v Halper*, 490 US 435; *State of N.Y. ex rel. Grupp v DHL Express [USA], Inc.*, 19 NY3d 278.)

Cleary Gottlieb Steen & Hamilton LLP, New York City (*Lewis J. Liman* of counsel), for Chamber of Commerce of the United States of America, amicus curiae. I. The New York False Claims Act is reserved for cases of a knowingly false claim, statement or record and is not the proper mechanism for addressing interpretations of the Tax Law that are not objectively unreasonable. (*New York State Socy. of Enrolled Agents v New York State Div. of Tax Appeals*, 161 AD2d 1; *Gold v Morrison-*

Knudsen Co., 68 F3d 1475; *Allison Engine Co. v United States ex rel. Sanders*, 553 US 662; *Vermont Agency of Natural Resources v United States ex rel. Stevens*, 529 US 765; *United States v Neifert-White Co.*, 390 US 228; *Rainwater v United States*, 356 US 590; *State of New York ex rel. Seiden v Utica First Ins. Co.*, 96 AD3d 67, 19 NY3d 810; *Matter of Plato's Cave Corp. v State Liq. Auth.*, 68 NY2d 791; *Safeco Ins. Co. of America v Burr*, 551 US 47; *United States ex rel. Hixson v Health Mgt. Sys., Inc.*, 613 F3d 1186.) II. Allowing the Attorney General to use the New York False Claims Act's treble damages regime to combat objectively reasonable interpretations of the law would chill the rights of citizens to challenge the views of the State and undermine development of the law. (*Marbury v Madison*, 5 US 137; *Matter of Council of City of N.Y. v Bloomberg*, 6 NY3d 380; *Lorillard Tobacco Co. v Roth*, 99 NY2d 316; *Matter of SIN, Inc. v Department of Fin. of City of N.Y.*, 71 NY2d 616; *Matter of Quotron Sys. v Irizarry*, 48 NY2d 795; *New York State Cable Tel. Assn. v State Tax Commn.*, 59 AD2d 81; *American Net & Twine Co. v Worthington*, 141 US 468; *Trump Vil. Section 3, Inc. v City of New York*, 24 NY3d 451; *Debevoise & Plimpton v New York State Dept. of Taxation & Fin.*, 80 NY2d 657; *Matter of Manhattan Cable Tel. v New York State Tax Commn.*, 137 AD2d 925.) III. Retroactive liability under the New York False Claims Act is not compatible with the Ex Post Facto Clause. (*Sanders v Allison Engine Co., Inc.*, 703 F3d 930; *United States ex rel. Miller v Bill Harbert Intl. Constr., Inc.*, 608 F3d 871; *United States v Rogan*, 517 F3d 449; *Landgraf v USI Film Products*, 511 US 244; *Cook County v United States ex rel. Chandler*, 538 US 119; *Doe v Pataki*, 120 F3d 1263; *Law v National Coll. Athletic Assn.*, 134 F3d 1438; *United States ex rel. Bilotta v Novartis Pharms. Corp.*, 50 F Supp 3d 497; *Louis Vuitton S.A. v Spencer Handbags Corp.*, 765 F2d 966.)

Heather C. Briccetti, The Business Council of New York State, Inc., Albany, for The Business Council of New York State, Inc., amicus curiae. I. The False Claims Act is an extraordinary measure that requires knowing, reckless, or deliberately ignorant intent. (*State of New York ex rel. Seiden v Utica First Ins. Co.*, 96 AD3d 67; *United States ex rel. Gross v AIDS Research Alliance-Chicago*, 415 F3d 601; *Hopper v Solvay Pharms., Inc.*, 588 F3d 1318; *United States ex rel. Clausen v Laboratory Corp. of Am., Inc.*, 290 F3d 1301; *Hagood v Sonoma County Water Agency*, 81 F3d 1465; *United States ex rel. Hixson v Health Mgt. Sys., Inc.*, 613 F3d 1186; *United States ex*

rel. Siewick v Jamieson Science & Eng'g, Inc., 214 F3d 1372; *Matter of General Elec. Capital Corp. v New York State Div. of Tax Appeals*, *Tax Appeals Trib.*, 2 NY3d 249.) II. The plaintiffs' asserted position turns the False Claims Act on its head. (*Matter of Suburban Carting Corp. v Tax Appeals Trib. of State of N.Y.*, 263 AD2d 793; *Matter of Kourakos v Tully*, 92 AD2d 1051; *Matter of Hwang v Tax Appeals Trib. of the State of N.Y.*, 105 AD3d 1151; *Matter of Lombard v Commissioner of Taxation & Fin.*, 197 AD2d 799; *Debevoise & Plimpton v New York State Dept. of Taxation & Fin.*, 80 NY2d 657; *Expedia, Inc. v City of N.Y. Dept. of Fin.*, 22 NY3d 121; *Matter of Grace v New York State Tax Commn.*, 37 NY2d 193; *American Locker Co. v City of New York*, 308 NY 264; *Matter of Gaied v New York State Tax Appeals Trib.*, 22 NY3d 592.) III. The Attorney General's position is infeasible. (*Hesse v Sprint Corp.*, 598 F3d 581; *In re AT & T Mobility Wireless Data Servs. Sales Tax Litig.*, 789 F Supp 2d 935.)

OPINION OF THE COURT

Chief Judge LIPPMAN.

We hold that: (1) the Tax Law imposes sales tax on interstate voice service sold by a mobile provider along with other services for a fixed monthly charge; (2) the statute is unambiguous; (3) the statute is not preempted by federal law; (4) the Attorney General's (AG) complaint sufficiently pleads a cause of action under the New York False Claims Act (FCA) (State Finance Law § 187 *et seq.*); and (5) the damages recoverable under the FCA are not barred by the Ex Post Facto Clause of the United States Constitution.

In 1989, the United States Supreme Court held that the dormant Commerce Clause of the Federal Constitution limited the states' authority to tax interstate telephone calls. A telephone call was taxable only if it originated or terminated within the state and was charged to an in-state billing or service address (*see Goldberg v Sweet*, 488 US 252, 256 n 6, 263 [1989]).

The *Goldberg* rule was easy to apply to landline telephones, which had fixed physical locations. But the next decade saw "an explosion of growth in the wireless telecommunications industry" (HR Rep 106-719, 106th Cong, 2d Sess at 7, reprinted in 2000 US Code Cong & Admin News at 509), and states and service providers struggled to adapt the *Goldberg* nexus requirement to mobile telephone calls. States developed differ-

ent methods to determine which mobile calls to tax. As a result, some mobile telephone calls were subject to taxation by multiple jurisdictions (HR Rep 106-719, 106th Cong, 2d Sess at 7-8, reprinted in 2000 US Code Cong & Admin News at 509).

A further complication was introduced as mobile carriers began to sell flat-rate voice plans that charged a fixed monthly price for access to a nationwide network, as opposed to charging calls by the minute, regardless of where the calls were placed or received. These flat-rate plans made it “virtually impossible to determine the portion of th[e] price charged for individual calls, each of which may be subject to tax by a different jurisdiction,” and thus “impossible to determine the amount of revenues to which each of the various state and local transaction taxes should be applied” (S Rep 106-326, 106th Cong, 2d Sess at 2).

Congress responded by enacting the Mobile Telecommunications Sourcing Act (MTSA) (4 USC § 116 *et seq.*) The MTSA establishes a uniform “sourcing” rule for state taxation of mobile telecommunications services: the only state that may impose a tax is the state of the customer’s “place of primary use”—either a residential or primary business address, as selected by the customer (4 USC §§ 117 [b]; 124 [8]).

The New York Legislature responded to the MTSA in 2002 by enacting multiple amendments to the Tax Law that clarified and amended the State’s treatment of mobile telecommunications services. Under the preexisting law that was enacted in 1965, New York did not tax any interstate or international calls. As relevant here, the 2002 amendments implemented a new set of rules—specifically, those applicable to voice services sold through flat-rate plans.

Another legislative amendment, this one from 2010, led directly to the issues posed by this litigation. The FCA provides for enforcement by both the AG (in civil enforcement actions) and private plaintiffs on behalf of the government (in “qui tam civil actions”), and the AG has the right to intervene and file a superceding complaint in a qui tam action (State Finance Law § 190 [1], [2], [5]). The Act provides for the imposition of treble damages and civil penalties against violators (*id.* § 189 [1]).

The FCA applies to any person who “knowingly makes, uses, or causes to be made or used, a false record or statement material to an obligation to pay or transmit money or property to” the government (*id.* § 189 [1] [g]). The statute provides that a

defendant acts “knowingly” when defendant has “actual knowledge” of a record’s or statement’s truth or falsity or “acts in deliberate ignorance” or “reckless disregard” of its truth or falsity (*id.* § 188 [3] [a]).

As originally enacted, the New York FCA did not apply to false tax claims. But, in 2010, the legislature amended it to cover “claims, records, or statements made under the tax law” in certain circumstances (L 2010, ch 379, § 3, codified at State Finance Law § 189 [4] [a]). The amendment was designed to “provide an additional enforcement tool against those who file false claims under the Tax Law,” and thus “deter the submission of false tax claims” while also “provid[ing] additional recoveries to the State and to local governments” (Letter from St Dept of Tax & Fin, Aug. 4, 2010 at 2, Bill Jacket, L 2010, ch 379 at 13).

Sprint is a wireless telecommunications service provider that does business in New York, and it sells wireless “flat-rate” plans that include a certain number of minutes of talk time for a fixed monthly charge. After the Tax Law amendments were enacted in 2002, Sprint paid sales tax on all of its receipts from its flat-rate plans.

In 2005, however, Sprint began a nationwide program of “unbundling” charges within these flat-rate monthly plans. Specifically, Sprint unbundled the portion of the fixed monthly charge that it attributed to intrastate mobile voice services, and did not collect taxes on the portion that it attributed to interstate and international calls. For the tax years at issue, the percentage of the fixed monthly charge on which Sprint collected sales tax ranged from 71.5% to 86.3%. Sprint did not separately state on customers’ bills the charges for interstate and international voice services included in the flat-rate plan.

On March 31, 2011, Empire State Ventures, LLC, filed suit against Sprint under the New York FCA. On April 19, 2012, the AG filed a superceding complaint, which converted the relator’s action into a civil enforcement action by the AG.

The AG’s complaint, as relevant here, alleges that section 1105 (b) (2) of the Tax Law “requires the payment of sales taxes on the *full amount* of fixed periodic charges for wireless voice services sold by companies like Sprint to New York customers.” It further alleges that section 1111 (*l*) permits wireless providers to “treat separately for sales tax purposes certain components of a bundled charge for mobile telecommunication

services, so long as the charges are *not* for voice services.” The complaint asserts that Sprint violated the Tax Law by failing to collect sales tax on the portion of its flat-rate charge that was attributable to interstate and international voice services. It further alleges that Sprint’s decision to unbundle its plans sold for a fixed monthly charge “was driven by its desire to gain an advantage over its competitors by reducing the amount of sales taxes it collected from its customers and, thereby, appearing to be a low-cost carrier.” According to the AG, the percentages of the flat-rate charges that Sprint allocated to interstate and international calls were completely arbitrary.

In support of its allegations that Sprint knowingly submitted false tax statements, the AG cites a Tax Department guidance memorandum published before the 2002 amendments became effective, which states that the sales tax is to be applied in the manner that the AG now advocates. The AG points out that Sprint adhered to this guidance until July 2005, when it changed its tax practices. Interestingly, Sprint did not seek a tax refund for the 2002-2005 tax years in which it paid those taxes.

The AG further alleges that Sprint also disregarded the statements of a Tax Department field auditor and enforcement official advising Sprint in 2009 and 2011, respectively, that its sales tax practice was illegal, and that it disregarded the fact that the other major wireless carriers, unlike Sprint, did not break their fixed monthly charges for voice services into intrastate and interstate subparts for sales tax purposes, but instead collected and paid sales tax on the full fixed periodic charge for voice services.

As relevant to this appeal, the complaint’s causes of action are all based on the same underlying contention that Sprint knowingly violated the Tax Law, engaged in fraudulent or illegal acts pursuant to Executive Law § 63 (12), and submitted false documents to the State pursuant to the FCA. The AG requests civil penalties and treble damages for each of the false tax documents submitted to the State.

Sprint moved to dismiss the complaint for failure to state a cause of action under CPLR 3211. As relevant here, Supreme Court denied the motion, holding that the Tax Law unambiguously imposes a tax on receipts from every sale of mobile telecommunications services that are voice services sold for a fixed periodic charge (*see People v Sprint Nextel Corp.*, 41 Misc

3d 511 [Sup Ct, NY County 2013]). Moreover, even if the Tax Law permitted Sprint to exclude from taxable receipts a portion of its fixed monthly mobile voice charge to account for interstate and international calls, the Tax Law also required Sprint to use an objective, reasonable, and verifiable standard for identifying the nontaxable components of the charge—but the complaint alleges that Sprint failed to comply with this requirement by using “arbitrary” figures that were “not related to any customer’s actual usage” (*id.* at 515). The court also concluded that the complaint “alleges in great detail” how Sprint knowingly submitted false tax statements to the Tax Department, in violation of the FCA (*id.* at 516). Supreme Court further held that New York’s Tax Law does not conflict with the federal MTSA, and rejected Sprint’s assertion that the Ex Post Facto Clause of the United States Constitution bars retroactive application of the FCA penalties and damages.

The Appellate Division unanimously affirmed the denial of Sprint’s motion to dismiss (114 AD3d 622 [1st Dept 2014]). The Court held that the AG’s complaint adequately alleges that Sprint violated the FCA, Executive Law § 63 (12), and the Tax Law “by knowingly making false statements material to an obligation to pay sales tax pursuant to Tax Law § 1105 (b) (2)” (*id.* at 622). In addition, the Court rejected Sprint’s claim that the Tax Law is preempted by the MTSA, and its claim that retroactive application of the FCA would be unconstitutional. The Appellate Division then certified the following question to this Court: “Was the order of the Supreme Court, as affirmed by . . . this Court, properly made?”

In *Matter of Helio, LLC* (2015 WL 4192425, 2015 NY City Tax LEXIS 8 [NY St Div of Tax Appeals DTA No. 825010, July 2, 2015]), the New York Tax Appeals Tribunal held that the language of Tax Law § 1105 (b) is unambiguous, and imposes sales tax on interstate voice service sold by a mobile provider along with other services for a fixed monthly charge. We agree.

Section 1105 (b) of the Tax Law provides that tax should be paid on:

“(1) [t]he receipts from every sale, other than sales for resale, of the following: . . . (B) telephony and telegraphy and telephone and telegraph service of whatever nature except interstate and international telephony and telegraphy and telephone and telegraph service and except any telecommunica-

tions service the receipts from the sale of which are subject to tax under paragraph two of this subdivision . . .

“(2) The receipts from every sale of mobile telecommunications service provided by a home service provider, other than sales for resale, that are voice services, or any other services that are taxable under subparagraph (B) of paragraph one of this subdivision, sold for a fixed periodic charge (not separately stated), whether or not sold with other services.”

The subject of the present dispute is the meaning of the phrase “or any other services that are taxable under subparagraph (B) of paragraph one of this subdivision” (Tax Law § 1105 [b] [2]). Sprint contends that this language excepts from sales tax its bundled charges from interstate and international calls. The AG, on the other hand, asserts that all mobile calls are subject to tax under subdivision (b) (2), unless they are separately stated on the customer’s bill.

First, subdivision (b) (1) does not affect the taxability of all mobile voice services under subdivision (b) (2) because (b) (2) is a specific provision under section 1105 which applies only to the sale of mobile telecommunications, whereas (b) (1) applies to telephony and telegraphy generally. “Whenever there is a general and a particular provision in the same statute, the general does not overrule the particular but applies only where the particular enactment is inapplicable” (McKinney’s Cons Laws of NY, Book 1, Statutes § 238).

[1] Here, the plain language of the statute subjects to tax all “voice services” that are “sold for a fixed periodic charge” (Tax Law § 1105 [b] [2]). Sprint does not contest that the services at issue are such services. No part of subdivision (b) (2) differentiates between intrastate or interstate and international voice service. The statute also taxes “any other services . . . taxable under subparagraph (B)” (*id.*). Sprint’s interpretation of the statute would make superfluous the words “voice services, or any other” in subdivision (b) (2) (*see Leader v Maroney, Ponzini & Spencer*, 97 NY2d 95, 104 [2001] [“meaning and effect should be given to every word of a statute”]). The phrase “any other services that are taxable under subparagraph (B)” must refer to services other than “voice services.” Accordingly, it is unambiguous that Tax Law § 1105 (b) (2) imposes taxation on

all voice services sold for a fixed periodic charge, including the interstate and international calls at issue here.

This interpretation of the statute is bolstered by Tax Law § 1111 (l) (2), which provides special rules for computing receipts from the sale of mobile telecommunications. This section allows for the separate accounting of bundled services which are non-taxable, if the provider can provide “an objective, reasonable and verifiable standard for identifying each of the components of the charge”—but specifically applies only if it is “*not a voice service*” (Tax Law § 1111 [l] [2] [emphasis added]).

Next, Sprint asserts that such an interpretation of the Tax Law is preempted by the MTSA. This argument is unavailing. Sprint cites 4 USC § 123 (b) for the presumption that taxes may not be applied to interstate and international calls which are bundled with intrastate calls where the service provider can reasonably identify charges not subject to the tax. Section 123 (b) provides:

“If a taxing jurisdiction does not otherwise subject charges for mobile telecommunications services to taxation and if these charges are aggregated with and not separately stated from charges that are subject to taxation, then the charges for nontaxable mobile telecommunications services may be subject to taxation unless the home service provider can reasonably identify charges not subject to such tax, charge, or fee from its books and records that are kept in the regular course of business” (emphasis added).

This bundling provision expressly opens by respecting and incorporating state authority, rather than restricting it. Section 123 (b) anticipates disaggregation only of charges “not otherwise subject . . . to [state] taxation.” Because the Tax Law imposes a tax on the entire amount of the fixed monthly charge for voice services, there is no exemption for any interstate and international component that would even trigger section 123 (b)’s exception here. However, no provision of the MTSA prohibits the taxation of interstate and international mobile calls. In fact, Congress eliminated this distinction in light of advances in mobile telecommunications technology. Section 117 (b) of the MTSA allows for the taxation of “[a]ll charges for mobile telecommunications services . . . subject[]

to tax . . . by the taxing jurisdictions whose territorial limits encompass the customer's place of primary use, regardless of where the mobile telecommunication services originate, terminate, or pass through." Accordingly, the AG's interpretation of the Tax Law is not preempted by the federal MTSA.

As to the AG's cause of action under the FCA, in order to be liable under the FCA, a party must knowingly make a false statement or knowingly file a false record. The FCA defines "knowingly" to mean "that a person, with respect to information: (i) has actual knowledge of the information; (ii) acts in deliberate ignorance of the truth or falsity of the information; or (iii) acts in reckless disregard of the truth or falsity of the information" (State Finance Law § 188 [3] [a]).

Sprint asserts that there is a reasonable interpretation of the Tax Law that does not subject bundled interstate and international calls to sales tax and, thus, there can be no knowingly false record or statement, and no valid FCA claim. This is not the stuff that a CPLR 3211 dismissal is made of. Even assuming there could be such a reasonable interpretation in the face of this unambiguous statute, it cannot shield a defendant from liability if, as the complaint alleges here, the defendant did not in fact act on that interpretation (*see United States ex rel. Oliver v Parsons Co.*, 195 F3d 457, 463 [9th Cir 1999]). Otherwise, "[a] defendant could submit a claim, knowing it is false or at least with reckless disregard as to falsity . . . but nevertheless avoid liability by successfully arguing that its claim reflected a 'reasonable interpretation' of the requirements" (*id.* at 463 n 3). Sprint will have to substantiate in further proceedings that it actually held such reasonable belief and actually acted upon it.

Sprint argues that in *Helio* (DTA No. 825010), upon the taxpayer's defeat at the Tax Appeals Tribunal on the issue of taxability of bundled interstate and international mobile telecommunications services, the Department of Taxation and Finance imposed only minimum interest because the audit report stated that "reasonable cause existed" for the taxpayer's position (2015 WL 4192425, *9, 2015 NY City Tax LEXIS 8). But here, the AG alleges that Sprint, which is a much larger service provider, did not act in good faith and that it did not rely on what it now calls "its reasonable interpretation of the statute" when it made its decision to alter its tax practices. Importantly, although the Tax Appeals Tribunal stated that *Helio's* similar position was reasonable, that case did not

involve the level of deception and fraud alleged on the part of Sprint here.

[2] Nevertheless, the AG has a high burden to surmount in this case. The FCA is certainly not to be applied in every case where taxes were not paid. Further, notice of a contrary administrative position alone is not nearly enough to prove fraud or recklessness under the FCA. There can be no doubt the AG will have to prove the allegations of fraud, that Sprint knew the AG's interpretation of the statute was proper, and that Sprint did not actually rely on a reasonable interpretation of the statute in good faith. But, given the complaint's allegations about the agency guidance and industry compliance with the AG's position, Sprint's payment of the proper amount of sales tax between 2002 and 2005, Sprint's undisclosed reversal of its practices in 2005, and the explicit warnings that Sprint received from the Tax Department, the AG has stated a cause of action for a false claim. On a CPLR 3211 motion to dismiss, the Court accepts facts as alleged in the complaint as true, accords the plaintiff the benefit of every possible favorable inference, and determines whether the facts as alleged fit within any cognizable legal theory (*Leon v Martinez*, 84 NY2d 83, 87-88 [1994]). It is premature to dismiss this complaint on such a motion. The AG is entitled to discovery, and there are factual issues that must be fleshed out in further proceedings.

[3] We also hold that retroactive application of the FCA is not barred by the Ex Post Facto Clause of the United States Constitution (US Const, art I, § 10). In analyzing whether such application of the statute is barred by the US Constitution, we must first consider whether the legislature intended the FCA to establish "civil" proceedings, and if so, whether it is "so punitive either in purpose or effect as to negate the State's intention to deem it civil" (*Smith v Doe*, 538 US 84, 92 [2003] [internal quotation marks, brackets and citations omitted]). The FCA provides that a person who

"knowingly conceals or knowingly and improperly avoids or decreases an obligation to pay or transmit money or property to the state or a local government, or conspires to do the same; shall be liable to the state . . . for a civil penalty of not less than six thousand dollars and not more than twelve thousand dollars" plus treble damages (State Finance Law § 189 [1] [h]).

To assess whether the FCA is punitive, we look to seven factors highlighted by the United States Supreme Court “to determine whether an Act . . . is penal or regulatory in character” (*Kennedy v Mendoza-Martinez*, 372 US 144, 168 [1963]). These include:

“[w]hether the sanction involves an affirmative disability or restraint, whether it has historically been regarded as a punishment, whether it comes into play only on a finding of *scienter*, whether its operation will promote the traditional aims of punishment—retribution and deterrence, whether the behavior to which it applies is already a crime, whether an alternative purpose to which it may rationally be connected is assignable for it, and whether it appears excessive in relation to the alternative purpose assigned” (*id.* at 168-169).

The balance of the factors here weighs in favor of permitting retroactive application. The penalty scheme does not impose an affirmative disability or restraint, and monetary penalties like those imposed by the FCA have not “historically been viewed as punishment” (*United States ex rel. Bilotta v Novartis Pharms. Corp.*, 50 F Supp 3d 497, 544 [SD NY 2014] [internal quotation marks omitted]).

Although this Court previously stated that the FCA’s penalty and damage scheme serves the aims of punishment, retribution, and deterrence (*State of N.Y. ex rel. Grupp v DHL Express [USA], Inc.*, 19 NY3d 278, 286-287 [2012]), federal courts have determined that the FCA’s provision imposing “treble damages carries a compensatory, remedial purpose alongside its punitive and deterrent goals” (*Kane ex rel. United States v Healthfirst, Inc.*, 2015 WL 4619686, *22, 2015 US Dist LEXIS 101778, *69 [SD NY, Aug. 3, 2015, No. 11 Civ 2325 (ER)]; *see also Bilotta*, 50 F Supp 3d at 545-546; *United States ex rel. Colucci v Beth Israel Med. Ctr.*, 603 F Supp 2d 677, 683 [SD NY 2009]). As a result, the penalty and damages scheme of the FCA “does not compel a conclusion that the statute is penal” (*Bilotta*, 50 F Supp 3d at 546).

Also, the FCA does not regulate conduct that was already a crime, and the penalty scheme may be rationally connected to the nonpunitive purposes of allowing the government to be made whole (*see Cook County v United States ex rel. Chandler*, 538 US 119, 130-132 [2003]). Finally, given the compensatory, nonpunitive aims of the statute, the penalties are not unduly excessive.

As the United States Supreme Court stated in *Smith*, “only the clearest proof will suffice” to “transform what has been denominated a civil remedy into a criminal penalty” (538 US at 92 [internal quotation marks and citations omitted]). Here, while the treble damages to be imposed are severe, Sprint’s arguments do not outweigh the *Mendoza* factors that weigh in favor of retroactive application, nor do they amount to the “clearest proof” required by *Smith*. Therefore, the retroactive application of the FCA does not trigger the Ex Post Facto Clause of the United States Constitution.

Accordingly, the order of the Appellate Division should be affirmed, with costs, and the certified question answered in the affirmative.

STEIN, J. (dissenting in part). In my view, Tax Law § 1105 (b) (2) is an ambiguous statute. Given the procedural course the People have charted here, we are required to interpret any ambiguity in favor of Sprint, as the taxpayer, for the purpose of resolving Sprint’s motion to dismiss. Because the Attorney General cannot establish that Sprint’s tax filings were actually false in light of this ambiguity, the complaint’s principal allegation—that Sprint violated the Tax Law by failing to collect sales tax due on interstate mobile voice services based upon its purportedly erroneous interpretation of the applicable statute—must fail and cannot form the basis of a cause of action pursuant to the False Claims Act, Executive Law § 63 (12) or Tax Law article 28. Therefore, I respectfully disagree with the majority insofar as its affirmative answer to the certified question is premised upon its conclusion that the complaint adequately alleges fraud by claiming “that Sprint knew the AG’s interpretation of the statute was proper, and that Sprint did not actually rely on a reasonable interpretation of the statute in good faith” (majority op at 113). To the contrary, the complaint has not sufficiently alleged a violation of the Tax Law on this basis in the first instance, let alone a knowing, fraudulent or “bad faith” violation.

However, while the complaint does not set forth viable claims arising out of Sprint’s interpretation of the statute, it does adequately allege actual falsity and illegality based upon the method used by Sprint in calculating the portion of its fixed monthly charges that were attributable to interstate mobile voice services. Accepting as true the complaint’s assertions that Sprint’s calculation of those charges was essentially

arbitrary—and, therefore, that Sprint’s tax filings bore no rational relation to the amount of interstate mobile calls that were actually made—the complaint sufficiently alleges that Sprint violated the Tax Law, engaged in persistent fraud and illegality under Executive Law § 63 (12) and knowingly made or used false records within the meaning of the False Claims Act. Thus, although I would answer the certified question in the negative—the orders below were not properly made—I would partially affirm the Appellate Division order insofar as it allowed the action to proceed on that narrow ground.

I.

Tax Law § 1105 (b) (2) is ambiguous because it lends itself to more than one plausible or reasonable interpretation (*see Matter of Golf v New York State Dept. of Social Servs.*, 91 NY2d 656, 662-663 [1998]). The language that the majority holds to be unambiguous reads as follows:

“[T]here is hereby imposed and there shall be paid a tax of four percent upon: . . .

“[t]he receipts from every sale of mobile telecommunications service provided by a home service provider . . . that are voice services, or any other services that are taxable under [subdivision (b) (1) (B)], sold for a fixed periodic charge (not separately stated), whether or not sold with other services” (Tax Law § 1105 [b] [2]).

The subparagraph referenced therein, Tax Law § 1105 (b) (1) (B), subjects to tax

“[t]he receipts from every sale . . . of . . . telephony and telegraphy and telephone and telegraph service of whatever nature except interstate and international telephony and telegraphy and telephone and telegraph service and except any telecommunications service the receipts from the sale of which are subject to tax under [subdivision (b) (2)].”

Applying the canon of construction that a provision of a statute that applies to a specific situation will override a general provision, the majority concludes that subdivision (b) (1) (B) applies to telephony and telegraphy, generally, whereas subdivision (b) (2) applies specifically to the sale of “mobile telecommunications” (majority op at 110). The majority and the Attorney General read subdivision (b) (2) as providing for the

taxation of “every sale of mobile telecommunications service . . . that are voice services . . . sold for a fixed periodic charge” (Tax Law § 1105 [b] [2]) (whether interstate or intrastate) and also allowing for the taxation of “other services that are taxable under [subdivision (b) (1) (B)]” (*id.*; see majority op at 110). The majority concludes that “it is unambiguous that Tax Law § 1105 (b) (2) imposes taxation on all voice services sold for a fixed periodic charge, including the interstate and international calls at issue here” because, to read the statute otherwise, “would make superfluous the words ‘voice services, or any other’ in subdivision (b) (2)” (majority op at 110-111.) The majority’s interpretation of the statute is unquestionably appealing in its simplicity. Under that reading, subdivision (b) (2) provides that mobile voice services are always taxable unless separately stated, regardless of whether they are interstate or intrastate, and the subdivision (b) (1) (B) limitation on taxation of interstate services does not govern mobile voice services at all.

While I cannot disagree that such interpretation is reasonable, I note that even the Attorney General concedes that subdivision (b) (1) (B), which differentiates between interstate and intrastate services, continues to exempt certain mobile voice services from taxation. Specifically, the Attorney General acknowledges that “[t]o be sure, (b)(2) itself provides that (b)(1)(B)’s tax rule persists for certain types of mobile service charges” and, therefore, “interstate mobile *calls* . . . that are not sold for a flat fee, but instead [are] ‘separately stated’ ” (emphasis added) remain taxable under subdivision (b) (1) (B). Similarly, the Attorney General’s complaint explains that, “[f]or overage minutes that are charged to customers on a per-minute usage basis, Sprint and other wireless carriers are required to collect and pay New York state and local sales taxes *only when such calls are intrastate, and are not required to collect and pay them on such calls that are interstate*” (emphasis added). Thus, although the majority notes that “[n]o part of subdivision (b) (2) differentiates between intrastate or interstate and international voice service” (majority op at 110), the Attorney General concedes that some interstate mobile voice services remain nontaxable under subdivision (b) (1) (B), and the statutory differentiation between intrastate and interstate service persists for such services.

Accepting the Attorney General’s concession that the limitation on interstate taxation in (b) (1) (B) continues to apply to at least some mobile voice services, I would hold that Sprint has

plausibly read the language in dispute—“voice services, or any other services that are taxable under [subdivision (b) (1) (B)]” (Tax Law § 1105 [b] [2])—as incorporating the (b) (1) (B) rule for both voice services and any other mobile services. Ultimately, the Attorney General reads subdivision (b) (2) as taxing all mobile voice services that are sold for a fixed periodic charge, while applying the (b) (1) (B) rule to other types of mobile telecommunications services, whereas Sprint reads the language at issue just slightly more broadly as applying the (b) (1) (B) rules to mobile “voice services, or any other [mobile] services” (Tax Law § 1105 [b] [2]). Under Sprint’s interpretation, the purpose of subdivision (b) (2) is to expressly provide that services that are taxable under subdivision (b) (1) (B)—text messaging, intrastate voice services, etc.—remain taxable even if bundled with nontaxable services. That reading of this less-than-clear statutory text—while perhaps not the most logical interpretation—is not unreasonable as a matter of law, particularly in light of the relatively small gap that exists between the parties’ interpretations.

Similarly, Tax Law § 1111 (l) (2) can be read in more than one reasonable manner. That section provides that certain enumerated categories of untaxed *nonvoice* services, which are bundled with taxable services, are subject to sales tax unless the provider uses “an objective, reasonable and verifiable standard for identifying” and quantifying the amount of each component charge (Tax Law § 1111 [l] [2]). The parties are in agreement that the statute applies only to nonvoice services. Applying the *expressio unius est exclusio alterius* canon of statutory construction (see *Matter of Jewish Home & Infirmary of Rochester v Commissioner of N.Y. State Dept. of Health*, 84 NY2d 252, 262 [1994]), the Attorney General argues that the legislature’s creation of an exception from the general rule for the category of nonvoice services would imply that the category of voice services was not to be excluded from the general rule. That interpretation certainly is reasonable, and reading section 1111 (l) (2) together with section 1105 (b) (2) supports the Attorney General’s assertion that the legislature intended to make all bundled voice services taxable, without permitting carriers to exclude the interstate portion as nontaxable. However, Sprint’s alternative construction of section 1111 (l) (2) is also reasonable. Sprint argues that the focus of section 1111 (l) (2) is on nonvoice services and that the purpose of that section is to enumerate the services—such as Internet access—

that are also nontaxable, in addition to interstate voice services. Under Sprint’s view, there is no need to include interstate voice services in the section 1111 (*l*) (2) list because they are already exempt from taxation under section 1105 (b) (1) (B).

In short, both the Attorney General and Sprint have advanced reasonable interpretations of the statutory language and, because that language is susceptible of more than one reasonable interpretation, it is inherently ambiguous. Indeed, the only other court to consider Sprint’s tax strategy under section 1105 (b) deemed the “legal concepts at issue” here “murky” (*Louisiana Mun. Police Employees’ Retirement Sys. v Hesse*, 962 F Supp 2d 576, 589 [US Dist Ct, SD NY 2013]).¹ I recognize that the shareholders’ derivative action with which that decision was concerned is distinguishable and involves a completely different body of law from that before us and, further, that the District Court expressly declined to rule on whether Sprint’s interpretation of the statute was “reasonable” (*id.* at 590 n 7). Notwithstanding those distinctions, I agree with the District Court that the legal concepts at issue here—as well as the statutory language—are murky at best, and I cannot join the majority decision holding that Tax Law § 1105 (b) is unambiguous.

II.

A finding that the statute is ambiguous has implications in the Tax Law context that are not present in other procedural contexts. Inasmuch as Sprint is not seeking a tax exemption but, arguing instead, that the “transaction or event is [not] subject to taxation” in the first instance (*Matter of Grace v New York State Tax Commn.*, 37 NY2d 193, 196 [1975]), the tax statute at issue “must be narrowly construed and . . . any doubts concerning its scope and application are to be resolved in favor of the taxpayer” (*Debevoise & Plimpton v New York State Dept. of Taxation & Fin.*, 80 NY2d 657, 661 [1993]). In contrast, if this case had proceeded through the usual administrative process and the same arguments were before us in the

1. That case involved a derivative action commenced by Sprint’s shareholders against its directors, alleging that they breached their fiduciary duties and wasted corporate assets by permitting Sprint to adopt the tax policy at issue here, which the shareholders alleged was clearly in violation of New York law. The District Court granted the directors’ motion to dismiss for failure to state a claim.

context of a CPLR article 78 proceeding involving a challenge to a Tax Department audit and assessment, we could “defer to” the Tax Department as “the governmental agency charged with the responsibility for administration of [a] statute in [a] case[] where interpretation or application involves knowledge and understanding of underlying operational practices or entails an evaluation of factual data and inferences to be drawn therefrom, and the agency’s interpretation is not irrational or unreasonable” (*Matter of New York State Superfund Coalition, Inc. v New York State Dept. of Envtl. Conservation*, 18 NY3d 289, 296 [2011] [internal quotation marks and citations omitted]; see *Lorillard Tobacco Co. v Roth*, 99 NY2d 316, 323 [2003]).

Here, however, the Tax Department is not before us as a party. Therefore, we cannot defer to its interpretation. Instead, the Attorney General has chosen to pursue Sprint in an action in which its interpretation of the statute is not entitled to deference and we are bound to resolve all ambiguities in Sprint’s favor, at least for the limited purpose of determining whether the complaint states a claim and, consequently, whether the courts below were correct in partially denying Sprint’s motion to dismiss.² In turn, resolving the ambiguity in Sprint’s favor and adopting its interpretation necessarily means that the complaint fails to adequately allege that Sprint’s tax returns were false simply because Sprint did not report receipts from the interstate component of its mobile voice services for sales tax purposes.

III.

As explained in *United States ex rel. Oliver v Parsons Co.* (195 F3d 457, 461 [1999], *cert denied* 530 US 1228 [2000]),

2. Resolution of the statutory ambiguities in Sprint’s favor is necessary only because the Attorney General has chosen to file a superseding complaint in this whistleblower action, rather than await the conclusion of the more typical administrative process. An acknowledgment of the facial ambiguities in the statute by this Court need not prevent the Tax Department from applying its expertise to the detailed labor of fitting tax filings into the language of Tax Law § 1105 (b) (2) (see *Lorillard*, 99 NY2d at 323) in other matters proceeding through the administrative pipeline, such as *Matter of Helio, LLC* (2015 WL 4192425, 2015 NY City Tax LEXIS 8 [NY St Div of Tax Appeals DTA No. 825010, July 2, 2015]). Nor would such acknowledgment require the Tax Department to grant refunds to other wireless carriers who adopted the interpretation advanced by the Attorney General and, therefore, collected and remitted sales tax on the receipts from all interstate mobile voice services.

upon which the majority relies, the complaint must adequately allege three elements in order to state a cause of action under the False Claims Act: (1) that Sprint filed the tax records at issue, (2) that those records were actually false—i.e., that Sprint made a false statement or filed a false record because it incorrectly stated the amount of sales tax owed under Tax Law § 1105 (b)—and (3) that Sprint acted knowingly in doing so. Due to the procedural posture of this action, a conclusion that the statute is ambiguous precludes a showing of actual falsity, the second element of the False Claims Act cause of action, as a matter of law. That is, if the statute is ambiguous, our precedent requires that we interpret it in Sprint’s favor in this plenary action, as explained above; and, if the statute is interpreted in Sprint’s favor, the complaint fails to adequately allege that Sprint’s tax filings were based upon an incorrect interpretation of the statute and, therefore, were actually false. For the same reason, the complaint has not sufficiently stated a claim under Executive Law § 63 (12) and Tax Law article 28 to the extent that those causes of action are based upon allegations that Sprint knowingly relied upon an unreasonable interpretation of Tax Law § 1105 (b).

Actual falsity is a threshold element of a False Claims Act cause of action (*see Parsons*, 195 F3d at 461). Actual falsity does not relate to Sprint’s mental state; rather, the statutes’ “meaning is ultimately the subject of judicial interpretation, and it is [Sprint’s] compliance with these [statutes], as interpreted by this [C]ourt, that determines whether its [tax strategy] resulted in the submission of a ‘false claim’ under the Act” (*Parsons*, 195 F3d at 463). In other words, “while the reasonableness of [Sprint’s] interpretation of the applicable [statutes] may be relevant to whether it *knowingly* submitted a false claim, the question of ‘falsity’ itself is determined by whether [Sprint’s] representations were accurate in light of the applicable law,” as construed by the Court for the purpose of determining whether the complaint states a cause of action (*id.* [emphasis added]).

The complaint alleges that Sprint’s sales tax filings were false because Sprint “asserted [therein] that it owed less in sales taxes [on interstate voice services] than it really did” based upon an alleged misinterpretation of Tax Law § 1105 (b). However, because the statute is ambiguous and its ambiguities must be resolved in Sprint’s favor, the complaint fails to adequately allege *any* misinterpretation, regardless of whether

Sprint acted knowingly, recklessly or with deliberate ignorance. Stated differently, the complaint does not identify any tax filings that satisfy the element of “falsity,” in relation to Sprint’s interpretation of the statute. Because the complaint does not adequately plead this threshold element, we need not reach the question on which the majority focuses, i.e., whether the complaint sufficiently alleges that Sprint acted “knowingly” in making its purportedly false statements.

IV.

That said, the determinations of the courts below should be affirmed, in part, on a different ground. As the Attorney General argues, even if the statutes at issue must be interpreted in this proceeding as permitting Sprint to exclude from its taxable receipts the portion of its flat-rate plans attributable to interstate mobile voice services, the complaint contains other allegations—sufficient to survive a motion to dismiss—that Sprint’s tax forms were false in another respect. Specifically, the complaint alleges that the arbitrary deduction that Sprint applied to its receipts from interstate mobile voice services did not, in fact, reflect the interstate calls of Sprint’s customers. The complaint sets forth detailed assertions that Sprint calculated the portion of its calls that were interstate by arbitrarily applying a percentage used to calculate an unrelated federal surcharge at times, but that Sprint did not modify its allocations when the federal government changed the percentage used to calculate the surcharge, nor did Sprint consistently adhere to the percentage allocations. In that regard, the Attorney General contends that Sprint did not even attempt to identify the interstate component of its mobile voice services, much less adhere to the disaggregation requirements set out in federal and state law and, thus, it violated the Tax Law in the manner in which it allocated the percentage of its fixed monthly charges that was attributable to interstate mobile voice service. On this appeal, which involves a CPLR 3211 motion to dismiss,

“[w]e accept the facts as alleged in the complaint as true, accord plaintiffs the benefit of every possible favorable inference, and determine only whether the facts as alleged fit within any cognizable legal theory . . . [because] the criterion is whether the proponent of the pleading has a cause of action, not whether [it] has stated one” (*Leon v Martinez*, 84

NY2d 83, 87-88 [1994] [internal quotation marks and citations omitted]).

While plaintiffs may not have expressly pleaded any claims based on Sprint's failure to use an objective standard as required by state and federal laws addressing the proper unbundling of its fixed monthly charges, the allegations to support such a claim are set forth in the complaint and establish that plaintiffs have viable causes of action under the False Claims Act, Executive Law § 63 (12) and Tax Law article 28.

V.

In sum, Tax Law § 1105 (b) (2) is ambiguous because it can be reasonably interpreted in more than one manner and, inasmuch as it is a tax statute, section 1105 (b) (2) must be interpreted in Sprint's favor for purposes of determining whether the complaint adequately states a cause of action. If Sprint's interpretation is deemed correct, as it must be, the complaint necessarily fails to state a cause of action by asserting that Sprint filed false returns simply by virtue of the fact that the returns are consistent with that interpretation (whether Sprint believed the interpretation to be correct or not). Therefore, the causes of action under the False Claims Act, Executive Law § 63 (12) and Tax Law article 28 cannot be sustained on the basis of the Attorney General's allegation that Sprint misinterpreted the Tax Law. Those causes of action could, however, proceed on the limited basis that Sprint's tax forms were knowingly false, illegal and violative of the Tax Law because Sprint's arbitrary method of calculating its deduction did not have any rational connection to the amount of interstate calls actually made by Sprint's customers. Accordingly, I would answer the certified question in the negative and would modify the Appellate Division's order by dismissing so much of the False Claims Act, Executive Law and Tax Law causes of action that were based upon Sprint's purportedly erroneous interpretation of Tax Law § 1105 (b), and insofar as modified, would affirm the order allowing the claims to proceed on the narrow ground set forth in this opinion.

Judges PIGOTT, ABDUS-SALAAM and FAHEY concur; Judge STEIN dissents in part in an opinion; Judge RIVERA taking no part.

Order affirmed, with costs, and certified question answered in the affirmative.

[41 NE3d 1119, 20 NYS3d 304]

THE PEOPLE OF THE STATE OF NEW YORK ex rel. LESLEY M. DELIA, as Director of Mental Hygiene Legal Service, on Behalf of STEPHEN S., Appellant, v DOUGLAS MUNSEY, Respondent.

Argued September 11, 2015; decided October 22, 2015

SUMMARY

APPEAL, on constitutional grounds, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered March 19, 2014. The Appellate Division reversed, on the law, a judgment (denominated order) of the Supreme Court, Queens County (Martin J. Schulman, J.), which had, in effect, without a hearing, (1) granted petitioner's application for a writ of habeas corpus; and (2) directed that Stephen S. be released from Holliswood Hospital, but stayed the discharge for five days.

People ex rel. DeLia v Munsey, 117 AD3d 84, reversed.

HEADNOTE

Incapacitated and Mentally Disabled Persons — Involuntary Commitment — Petition for Writ of Habeas Corpus — Challenge to Procedure by Which Patient Retained

Mental Hygiene Law § 33.15, which allows patients involuntarily committed under Mental Hygiene Law article 9 to seek a writ of habeas corpus when they are being held pursuant to a court order but believe they have sufficiently recovered to be released, does not preclude use of the common-law writ of habeas corpus available through CPLR article 70 for those patients whose detention is challenged for reasons other than their recovery. Accordingly, petitioner Mental Hygiene Legal Service was entitled to bring a CPLR article 70 habeas corpus proceeding seeking the immediate release of an article 9 patient on the ground that he was being illegally detained as a result of respondent hospital's failure to timely apply for court authorization of its continued involuntary retention of the patient. Nothing in the plain language of Mental Hygiene Law § 33.15 purports to limit the availability of the common-law writ in Mental Hygiene Law proceedings. Reading section 33.15 as governing all habeas corpus proceedings brought by article 9 patients would effectively eliminate the availability of the writ for patients wishing to challenge the procedural methods by which they have been involuntarily retained and to obtain release from an unlawful detention. By failing to seek continued retention, thereby prompting the patient to seek a writ of habeas corpus based on the facility's inaction, respondent would be able to shift the burden of proof to the patient to demonstrate his or her fitness in order to obtain release pursuant to section 33.15. The legislature did not intend an interpretation of section 33.15 that would render meaningless significant procedural due process protections provided in Mental Hygiene Law article 9.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Constitutional Law § 900; AM JUR 2d, Habeas Corpus and Postconviction Remedies § 67; AM JUR 2d, Mentally Impaired Persons §§ 8-9, 53, 66-68, 71, 85-88, 111, 130, 139; AM JUR 2d, Physicians, Surgeons, and Other Healers § 159.
CARMODY-WAIT 2d, Right to Jury Trial §§ 49:29, 49:77; CARMODY-WAIT 2d, Habeas Corpus §§ 139:74-139:77, 139:86, 139:131, 139:124, 139:131, 139:136.
MCKINNEY'S, CPLR art 70; Mental Hygiene Law § 33.15.
NY JUR 2d, Habeas Corpus §§ 18, 77, 86; NY JUR 2d, Hospitals and Related Health Care Facilities § 98; NY JUR 2d, Infants and Other Persons Under Legal Disability §§ 128, 391, 397, 446.

ANNOTATION REFERENCE

Modern status of rules as to standard of proof required in civil commitment proceedings. 97 ALR3d 780.

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POINTS OF COUNSEL

Michael D. Neville, Mental Hygiene Legal Service, Mineola (Lisa Volpe, Dennis B. Feld and Ana Vuk-Pavlovic of counsel), for appellant. The Supreme Court properly ordered Mr. S. released pursuant to the “great writ” of habeas corpus where Holliswood Hospital involuntarily retained him without legal authority. (Vitek v Jones, 445 US 480; Savastano v Nurnberg, 152 AD2d 290, 77 NY2d 300; Project Release v Prevost, 722 F2d 960; Matter of Coates, 9 NY2d 242; Matter of Winslow v O'Neill, 153 AD2d 563; O'Connor v Donaldson, 422 US 563; Addington v Texas, 441 US 418; Boumediene v Bush, 553 US 723; People ex rel. Tweed v Liscomb, 60 NY 559; People ex rel. Keitt v McMann, 18 NY2d 257.)

Abrams, Fensterman, Fensterman, Eisman, Formato, Ferrara & Wolf, LLP, Lake Success (Eric Broutman of counsel), for respondent. I. This Court lacks jurisdiction because the court below based its decision on statutory grounds and there was no direct involvement of the construction of the New York

or United States Constitution. (*Board of Educ. of Monroe-Woodbury Cent. School Dist. v Wieder*, 72 NY2d 174; *Matter of Twin Coast Newspapers v State Tax Commn.*, 64 NY2d 874.) II. The rules of statutory construction mandate that the procedures outlined in Mental Hygiene Law § 33.15 must be applied. (*Matter of Dandomar Co., LLC v Town of Pleasant Val. Town Bd.*, 86 AD3d 83; *State of N.Y. ex rel. Harkavy v Consilvio*, 29 AD3d 221.) III. The continued retention of Stephen S. past the time limitations delineated in Mental Hygiene Law article 9 does not result in the violation of his due process rights. (*Algarin v New York City Dept. of Correction*, 460 F Supp 2d 469; *People ex rel. Noel B. v Jones*, 230 AD2d 809; *Matter of Rebecca Y. [Brunswick Hall Psychiatric Ctr.]*, 76 AD3d 1028; *Matter of Harvey S.*, 38 AD3d 908; *Matter of Thomas S.*, 58 AD3d 1063; *State of N.Y. ex rel. Karur v Carmichael*, 41 AD3d 349; *Zinerman v Burch*, 494 US 113; *O'Connor v Donaldson*, 422 US 563; *Matter of Scopes*, 59 AD2d 203; *Rodriguez v City of New York*, 72 F3d 1051.) IV. Whether utilizing a writ pursuant to the Mental Hygiene Law or the CPLR, a hearing on the merits is the proper remedy.

OPINION OF THE COURT

STEIN, J.

In this appeal, we are asked to determine whether a patient who is involuntarily committed under article 9 of the Mental Hygiene Law and is unlawfully held beyond the authorized retention period may seek a writ of habeas corpus under article 70 of the CPLR. We answer this question in the affirmative, concluding that Mental Hygiene Law § 33.15 is not the exclusive habeas corpus provision available to article 9 patients and does not govern habeas corpus proceedings for those patients whose detention is challenged for reasons other than the patient's recovery.

I.

As relevant here, Mental Hygiene Law article 9 governs the procedures and standards for the involuntary commitment of mentally ill persons who are in need of inpatient care and treatment but are unable to understand the necessity of such treatment. Pursuant to the Mental Hygiene Law, "[t]he director of a hospital may receive and retain therein as a patient any person alleged to be mentally ill and in need of involuntary care and treatment upon the certificates of two examining physicians, accompanied by an application for the admission of

such person” executed by a qualified person (*id.* § 9.27 [a]; *see id.* § 9.27 [b] [1]-[11]).¹ When a patient is involuntarily admitted, the facility may hold that person for a limited period of time; if further retention is necessary, the director of the facility must apply to the court for an order authorizing continued retention within 60 days of the admission (*see id.* § 9.33 [a]). Upon request, the patient is entitled to a hearing on the application for a retention order (*see id.*). Once an order retaining the patient for a specific duration has been obtained, if the director believes that it is necessary to retain the patient beyond that time, the director “shall . . . apply *during the period of retention authorized by the last order of the court* . . . for an order authorizing further continued retention of such patient” (*id.* § 9.33 [d] [emphasis added]). The patient is, again, entitled to appear before the court on such an application (*see id.*).

The Mental Hygiene Law presents several specific avenues for a patient to challenge his or her retention. For example, Mental Hygiene Law § 9.31 allows the patient to request a hearing prior to the expiration of the 60-day admission period (*see id.* § 9.31 [a]). Section 9.35 permits a patient to seek a rehearing and review of a court’s order of retention within 30 days of the making of such an order. Additionally, and central to the present dispute, Mental Hygiene Law § 33.15 provides that “[a] person retained by a facility . . . is entitled to a writ of habeas corpus to question the cause and legality of detention upon proper application” (*id.* § 33.15 [a]). This section requires the court to “examine the facts concerning the person’s alleged mental disability and detention,” and the court may discharge the patient only “if it finds that he [or she] is not mentally disabled or . . . in need of further retention for in-patient care and treatment” (*id.* § 33.15 [b]).

More generally, article 70 of the CPLR governs special proceedings for a writ of habeas corpus, the historic common-law writ that protects individuals from unlawful restraint or imprisonment and provides a means for those illegally detained

1. Mental Hygiene Law § 9.39 sets forth an alternative procedure, to be used in emergency situations in which a person’s alleged mental illness “is likely to result in serious harm” to that person or another and immediate observation and treatment is appropriate (Mental Hygiene Law § 9.39 [a]). If retention beyond a specified time frame is required, the procedures governing admission and commitment pursuant to that section converge with those governing admission upon medical certification under section 9.33 (*see id.* § 9.39 [b]).

to obtain release (*see People ex rel. Duryee v Duryee*, 188 NY 440, 445 [1907]). CPLR 7001 provides that, “[e]xcept as otherwise prescribed by statute, the provisions of . . . article [70] are applicable to common[-]law or statutory writs of habeas corpus.” The CPLR does not specifically enumerate the circumstances in which a writ may be sought beyond providing that “[a] person illegally imprisoned or otherwise restrained in his [or her] liberty within the state, or one acting on his [or her] behalf . . . , may petition without notice for a writ of habeas corpus to inquire into the cause of such detention and for deliverance” (CPLR 7002 [a]). “If the person is illegally detained a final judgment *shall* be directed discharging him [or her] *forthwith*” (CPLR 7010 [a] [emphasis added]).

II.

In March 2012, Stephen S. was involuntarily admitted to Holliswood Hospital upon two medical certifications averring that, as a result of his paranoid delusions, Stephen S. was unable to care for himself and required mental health treatment. In May 2012, the Hospital applied to Supreme Court for authorization to continue his involuntary retention. In June 2012, Supreme Court granted the application upon the parties’ consent, extending his retention for a period not to exceed three months. The Hospital thereafter failed to apply for court authorization of its continued involuntary retention of Stephen S. on or before the expiration date of the existing order, as was required by Mental Hygiene Law § 9.33 (d).

In October 2012, Mental Hygiene Legal Service commenced this habeas corpus proceeding on behalf of Stephen S., seeking his immediate release from the Hospital on the ground that he was being illegally detained. In response, the Hospital applied for an order authorizing his continued involuntary retention for a period of six months pursuant to Mental Hygiene Law § 9.33. The Hospital conceded that it had erroneously retained Stephen S. without a court order for approximately six weeks, but it argued that, under Mental Hygiene Law § 33.15, he could not be released without a hearing and, then, only if the court found him to be mentally fit for discharge. Conversely, Stephen S. argued that he was entitled to immediate release upon a writ of habeas corpus under CPLR article 70.

Supreme Court granted the writ and directed the Hospital to discharge Stephen S., but stayed his discharge for five days in order to allow for appellate review. In directing the release of

Stephen S., the court reasoned that holding a hearing on his mental status would be a “non-remedy” for the violation of his due process rights because such a hearing would have been held had the Hospital filed a timely retention application. In other words, the court postulated that, if it merely granted the Hospital such a hearing, the Hospital’s failure to follow the Mental Hygiene Law would have had no effect on whether it could retain him without his consent.

The Hospital appealed. The Appellate Division, Second Department, initially stayed enforcement of the judgment pending its determination of the appeal (2012 NY Slip Op 90691[U] [2d Dept 2012]) and, thereafter, reversed (117 AD3d 84 [2d Dept 2014]). The Appellate Division determined that, although the matter had been rendered moot by the discharge of Stephen S. during the pendency of the appeal, the mootness exception applied. Despite the Hospital’s failure to comply with the Mental Hygiene Law, the Appellate Division held that Stephen S. was not entitled to immediate release without a determination of his mental fitness, reasoning that the habeas corpus petition was governed by Mental Hygiene Law § 33.15, not CPLR article 70.

Stephen S. appealed pursuant to CPLR 5601 (b) (1), and we now reverse.²

III.

The Hospital argues that Mental Hygiene Law § 33.15 governs *all* habeas corpus proceedings brought by article 9 patients and, therefore, a patient is not entitled to release unless a determination is made that further involuntary treatment is unnecessary. The Hospital contends that section 33.15 should be construed as the exclusive habeas corpus provision available to article 9 patients because the more general CPLR article 70 habeas provisions must yield to the specific mandate of section 33.15. According to the Hospital, such an interpretation is consistent with principles of due process because involuntary commitment of an individual is lawful so long as the individual is in need of treatment—without regard to whether the procedures of the Mental Hygiene Law were followed.

2. In light of the Hospital’s discharge of Stephen S., we convert the proceeding to a declaratory judgment action (*see People ex rel. McManus v Horn*, 18 NY3d 660, 666 [2012]; *Mental Hygiene Legal Servs. v Ford*, 92 NY2d 500, 505 [1998]).

We disagree on all counts. The construction of Mental Hygiene Law § 33.15 advanced by the Hospital and our dissenting colleague abrogates the common-law writ of habeas corpus for mentally ill patients and is not supported by our case law, the rules of statutory construction, or principles of due process. As explained below, section 33.15 does not supplant the common-law writ of habeas corpus available through CPLR article 70.

Although article 70 governs the procedure of the common-law writ of habeas corpus, “[r]elief from illegal imprisonment by means of this remedial writ is not the creature of any statute” (*People ex rel. Tweed v Liscomb*, 60 NY 559, 565 [1875]). As we have long emphasized, “the right to invoke habeas corpus, ‘the historic writ of liberty’, ‘the greatest of all writs’,” is a “primary and fundamental” one (*People v Schildhaus*, 8 NY2d 33, 36 [1960]; see US Const, art I, § 9; NY Const, art I, § 4). Due to its constitutional roots, “[t]his writ cannot be abrogated, or its efficiency curtailed, by legislative action,” except in certain emergency situations (*People ex rel. Tweed*, 60 NY at 566; see *Hoff v State of New York*, 279 NY 490, 492 [1939]; *People ex rel. Sabatino v Jennings*, 246 NY 258, 261 [1927]). Moreover, statutes pertaining to the writ of habeas corpus must be “construed in favor of, and not against, the liberty of the subject and the citizen” (*People ex rel. Tweed*, 60 NY at 569; see *People ex rel. Perkins v Moss*, 187 NY 410, 418 [1907]).

CPLR 7001 provides that article 70 applies to common-law and statutory writs of habeas corpus “[e]xcept as otherwise prescribed by statute.” However, nothing in the plain language of Mental Hygiene Law § 33.15 purports to limit the availability of the common-law writ in Mental Hygiene Law proceedings. Rather, section 33.15 enhances the efficacy of the writ of habeas corpus, as our case law dictates, and thereby ensures that patients are not committed and retained without due process of law. That is, Mental Hygiene Law § 33.15 allows patients to seek a writ of habeas corpus when they are being held pursuant to a court order but, nevertheless, believe they have sufficiently recovered from their mental illness so that their continued retention is unwarranted; in such cases, determining the legality of their retention would require an inquiry into their mental state. On the other hand, patients whose detention is otherwise unauthorized may proceed under the habeas corpus provisions of CPLR article 70 since the legal-

ity of their detention can be determined on the basis of, for example, whether the appropriate procedures have been followed, without the need for a hearing into their mental state.

This interpretation—which reads section 33.15 and article 70 consistently with one another—accords with the rules of statutory construction (*see generally Matter of Dutchess County Dept. of Social Servs. v Day*, 96 NY2d 149, 153 [2001] [“Statutes which relate to the same subject matter must be construed together unless a contrary legislative intent is expressed”]; *People v Epton*, 19 NY2d 496, 505 [1967]). Most significantly, it preserves the availability of the great writ of habeas corpus (*see People ex rel. Perkins*, 187 NY at 418; *People ex rel. Tweed*, 60 NY at 569; *see also Schildhaus*, 8 NY2d at 36 [“the right to invoke habeas corpus . . . is so primary and fundamental that it must take precedence over considerations of procedural orderliness and conformity”]). By contrast, the Hospital’s reading of section 33.15 would effectively eliminate the availability of the writ for patients wishing to challenge the procedural methods by which they have been involuntarily retained and to obtain release from an unlawful detention. Such diminution of the great writ is impermissible (*see People ex rel. Sabatino*, 246 NY at 261; *People ex rel. Tweed*, 60 NY at 566; *see also* Mental Hygiene Law § 33.01; *People ex rel. Thorpe v Von Holden*, 63 NY2d 546, 554 [1984] [habeas corpus proceeding available to criminal offenders found not guilty by reason of mental disease or defect and committed to the custody of the Commissioner of Mental Health where statutory time schedule was not followed]).

This is not the first time we have sanctioned a patient’s use of a writ of habeas corpus to obtain release where a facility failed to follow the appropriate procedures to lawfully retain the individual (*see e.g. People ex rel. Jacobs v Director of Gowanda State Hosp.*, 14 NY2d 663, 665 [1964], *affg* 19 AD2d 858, 858 [4th Dept 1963]; *People ex rel. Granskofski v Whitehead*, 8 NY2d 962, 963 [1960], *affg* 10 AD2d 801, 801 [4th Dept 1960]). Indeed, the express extension of the writ to involuntarily committed patients who have become mentally fit for discharge—rather than curtailment of the writ—has long been considered the purpose of section 33.15 and its predecessor provisions (*see Matter of Coates*, 9 NY2d 242, 246 [1961] [noting that a patient may pursue discharge under Mental Hygiene Law habeas provision “at any time” upon ground that “the patient is sane”]; *People ex rel. Sabatino*, 246 NY at 261

[indicating that the question under section 93 of the Insanity Law, from which section 33.15 of the Mental Hygiene Law is derived, “is whether one lawfully committed to an asylum has thereafter become sane”]; *People ex rel. Ledwith v Board of Trustees of Bellevue & Allied Hosps.*, 238 NY 403, 408 [1924] [where hospital failed to timely follow procedures, the patient “was entitled to the writ of habeas corpus, either under section 93 of the Insanity Law or, if that be inapplicable, under article 77 of the Civil Practice Act relating to habeas corpus”]; *Matter of Andrews*, 126 App Div 794, 799-800 [1st Dept 1908] [“In addition to the remedy for a discharge on writ of habeas corpus in case the detention is without lawful process, the Legislature . . . expressly extended the writ of habeas corpus to cases of lawful commitments of persons as insane who have subsequently, while held under such lawful commitments, recovered their reason”]). As these cases make clear, section 33.15 does not govern habeas proceedings where the right to release is premised upon unlawful process.

The dissent suggests that “there is no rational reason to determine that Mental Hygiene Law § 33.15 does not apply” in habeas proceedings alleging an unauthorized retention (dissenting op at 136). Yet, in addition to contravening the purpose of the historic writ, ratification of the Hospital’s interpretation of section 33.15 would undermine the procedural due process protections guaranteed by the various provisions of the Mental Hygiene Law requiring notice and regular judicial review in connection with a patient’s commitment (*see generally Epton*, 19 NY2d at 505). It is beyond dispute that “[t]he state ‘has authority under its police power to protect the community from the dangerous tendencies of some who are mentally ill,’ ” and that it “may rely on its parens patriae power to provide care to its citizens who are unable to care for themselves because of mental illness” (*Matter of K.L.*, 1 NY3d 362, 370 [2004], quoting *Addington v Texas*, 441 US 418, 426 [1979]). Nevertheless, it has long been recognized that involuntary civil commitment involves a “‘massive curtailment of liberty’ ” (*Vitek v Jones*, 445 US 480, 491 [1980], quoting *Humphrey v Cady*, 405 US 504, 509 [1972]) and, “therefore[,] [it] cannot permissibly be accomplished without due process of law” (*Rodriguez v City of New York*, 72 F3d 1051, 1061 [2d Cir 1995]; *see Savastano v Nurnberg*, 77 NY2d 300, 307 [1990]). Thus, contrary to the Hospital’s contention, a patient may be involuntarily committed only where the standards for commitment *and the proce-*

dures set forth in the Mental Hygiene Law—which satisfy the demands of due process—are met (see *Matter of K.L.*, 1 NY3d at 371; *Project Release v Prevost*, 722 F2d 960, 971 [2d Cir 1983]; see generally *Savastano*, 77 NY2d at 305-309 [recognizing that the Mental Hygiene Law procedures and regulations provide a “network of procedural safeguards” for “the due process rights of those involuntary patients”]). This is not to say that every violation of the Mental Hygiene Law amounts to a due process violation or will entitle a patient to a writ of habeas corpus but, “[w]ithout a court order of continued retention [in accordance with the Mental Hygiene Law], or the consent of the patient, the hospital must release the patient” (*Project Release*, 722 F2d at 967; see *People ex rel. Tweed*, 60 NY at 569 [“The law is no respecter of persons, and suffers no (person) . . . to be deprived of his (or her) liberty, except ‘by due process of law;’ and the writ of habeas corpus is as available . . . (to) he (or she) whom the popular voice would condemn” (emphasis omitted)])).

The dissent’s statement that “patients will still receive the procedural protections required by due process” if Mental Hygiene Law § 33.15 applies in a case such as this overlooks the fact that patients who are seeking a common-law writ under CPLR article 70 are alleging that they have *already been deprived of due process* by virtue of a violation of the procedural protections of the Mental Hygiene Law (dissenting op at 137). Thus, a conclusion that section 33.15, with its required hearing to determine the patient’s mental status, is the exclusive habeas corpus avenue available to article 9 patients would permit the flagrant disregard—either deliberately or through laxity—of the due process protections provided throughout the Mental Hygiene Law, and there would be no effective remedy available to a patient for a facility’s failure to comply with even the most basic of the statutory procedural requirements. Indeed, implicit in the dissent’s assertion that application of section 33.15 does not violate the due process rights of a patient who establishes that his or her detention is unauthorized by the court or the Mental Hygiene Law is the dissent’s conclusion that an article 9 patient has no *enforceable* due process rights so long as there exists proof that he or she could benefit from further treatment, regardless of whether that proof is presented six weeks or a matter of years after expiration of the court order authorizing the patient’s retention. Such a view of section 33.15 would essentially nullify the

procedural due process protections contained in other provisions of the Mental Hygiene Law, which are already defined by reference to the rights and interests at stake (*see generally Savastano*, 77 NY2d at 307). Moreover, under the dissent's reading, by failing to seek continued retention under section 9.33, thereby prompting the patient to seek a writ of habeas corpus, in cases such as this—where the patient's application is based on the facility's inaction—the Hospital would be able to shift the burden of proof to the patient to demonstrate his or her fitness in order to obtain release pursuant to section 33.15 (*see Matter of Mental Hygiene Legal Servs. ex rel. James U. v Rhodes*, 195 AD2d 160, 162 [3d Dept 1994]; *Matter of Winslow v O'Neill*, 153 AD2d 563, 564 [2d Dept 1989]). We cannot countenance, and the legislature surely did not intend, an interpretation of section 33.15 that would render meaningless such significant protections as are provided in Mental Hygiene Law article 9.

In sum, we declare that Mental Hygiene Law § 33.15 does not preclude use of the writ of habeas corpus under CPLR article 70. Rather, Mental Hygiene Law § 33.15 merely clarifies that an article 9 patient is entitled to bring a habeas proceeding where the commitment is authorized, but the patient believes that he or she has sufficiently recovered to be released. If a facility is of the opinion that a patient requires further treatment notwithstanding having been granted a writ of habeas pursuant to CPLR article 70 following an illegal detention, it is incumbent upon the facility to commence a new article 9 proceeding in compliance with the strictures of the Mental Hygiene Law (*compare People ex rel. Thorpe*, 63 NY2d at 555). The Hospital's remaining arguments are unavailing. Accordingly, the order of the Appellate Division should be reversed, without costs, the habeas corpus proceeding converted into a declaratory judgment action, and judgment granted in accordance with this opinion.

ABDUS-SALAAM, J. (dissenting). The majority holds that a mentally ill patient who was involuntarily committed under article 9 of the Mental Hygiene Law based on a court's determination that he was a danger to himself and to others should be released without a hearing to determine the status of his mental disability when a retention order has expired, despite the hospital's proffer of evidence that the patient remains a peril. Indeed, the majority believes that even a

mentally ill dangerous person must be automatically released, solely because the hospital, due to administrative oversight, failed to timely file an application seeking the patient's further retention pursuant to Mental Hygiene Law § 9.33.

The majority reaches this ominous and untenable conclusion in spite of the plain language of Mental Hygiene Law § 33.15 (b) which expressly directs that where a person retained by a facility brings a writ of habeas corpus to question the cause and legality of his or her detention, “[a] court *shall* examine the facts concerning the person’s alleged mental disability and detention” (emphasis added). The majority declares that Mental Hygiene Law § 33.15 neither applies upon the filing of a writ of habeas corpus nor requires the court to examine the facts concerning a person’s mental condition prior to release. This proclamation is incongruous on its own terms, and the reasoning behind it is perplexing. By the majority’s rationale, adherence to the statute is not required in cases such as this one because the statute does not in so many words expressly supplant the common-law writ of habeas corpus in the context of detentions under Mental Hygiene Law article 9. But surely that cannot be true, if “shall” means “is required to” (Black’s Law Dictionary [10th ed 2014], *shall*). To the contrary, the statute on its face absolutely requires a factual determination of the patient’s mental state and fitness for release “[u]pon the return of such a writ of habeas corpus” (Mental Hygiene Law § 33.15 [b]), and that unqualified statutory command is incompatible with the majority’s decision to grant automatic release to patients upon the filing of a common-law habeas writ. Because the majority declines to follow the unambiguous language of the statute or acknowledge its clear practical purpose, I must respectfully dissent.

The majority’s analysis is based on the premise that the habeas corpus provision of the Mental Hygiene Law “does not supplant the common-law writ of habeas corpus available through CPLR article 70” (majority op at 130) because the Mental Hygiene Law § 33.15 habeas provision applies *only* where patients are being held pursuant to a lawful order of retention and seek an early release. However, the statute, on its face, applies to a person retained who brings a writ of habeas corpus. It does not restrict this provision only to cases where a patient is lawfully retained and seeks an early release. Thus, the majority’s conclusion flies in the face of the clear, unambiguous language of Mental Hygiene Law § 33.15, and

runs afoul of the well-settled canon that “[t]he Legislature is presumed to mean what it says, and if there is no ambiguity in the act, it is generally construed according to its plain terms” (McKinney’s Cons Laws of NY, Book 1, Statutes § 94, Comment).

In my view, there is no rational reason to determine that Mental Hygiene Law § 33.15 does not apply in this instance, and thereby conclude that without any review by the court, and over objection by the hospital, a patient involuntarily retained must be released solely because a hospital has failed to comply with the statutory requirements of the Mental Hygiene Law. Courts have held to the contrary, and for good reason (see e.g. *State of N.Y. ex rel. Karur v Carmichael*, 41 AD3d 349 [1st Dept 2007] [although hospital failed to respond to patient’s request for a hearing challenging his commitment pursuant to Mental Hygiene Law § 9.31 and failed to timely apply for continued retention, granting of writ of habeas corpus and directing immediate release was error and matter remanded for a hearing pursuant to Mental Hygiene Law § 33.15]; see also *State of N.Y. ex rel. Harkavy v Consilvio*, 29 AD3d 221, 227-228 [1st Dept 2006] [Mental Hygiene Law § 33.15, “which is directed exclusively to those retained in psychiatric facilities,” is more specific than CPLR article 70 “and thus controlling in these mental hygiene cases” (citations omitted)], *revd on other grounds* 7 NY3d 607 [2006]; *People ex rel. Noel B. v Jones*, 230 AD2d 809 [2d Dept 1996] [upon habeas petition brought by patient whose involuntary commitment order had expired, court required to conduct hearing to determine patient’s mental status despite the hospital’s failure to comply with two statutory deadlines]).* The patient in this case, Stephen S., who is schizophrenic, had been hospitalized on several prior occasions for psychosis before he was involuntarily admitted to Holliswood Hospital. During his six-month admission, he struck and threatened staff members and patients numerous times, stabbed a staff member in the neck with a pen, assaulted his mother and attacked and choked his

* This Court’s terse opinions cited by the majority (*People ex rel. Jacobs v Director of Gowanda State Hosp.*, 14 NY2d 663, 665 [1964], *affg* 19 AD2d 858, 858 [4th Dept 1963]; *People ex rel. Granskofski v Whitehead*, 8 NY2d 962, 963 [1960], *affg* 10 AD2d 801, 801 [4th Dept 1960]) for the proposition that a patient may use a writ of habeas corpus to obtain release where a facility failed to follow appropriate procedures do not analyze the issue presented here.

treating psychiatrist. Yet, because the hospital inadvertently missed the deadline for filing a retention application, the majority concludes that a court must grant his habeas petition without any consideration of his mental condition. This does not advance the treatment and care of the mentally ill patient or protect society from one who poses a danger to others.

Holding a hearing upon return of the writ of habeas corpus will not “effectively eliminate the availability of the writ” (majority op at 131) for patients who seek to obtain release from an unlawful detention. Such patients will still receive the procedural protections required by due process. As this Court noted in *Savastano v Nurnberg* (77 NY2d 300 [1990]):

“Although there can be no doubt that an involuntarily admitted mentally ill patient does not abandon his or her constitutional rights at the facility door, it is equally true that the procedural protections required by due process must be determined with reference to the rights and interests at stake” (77 NY2d at 307 [citations omitted]).

The rights and interests of a mentally ill person who is dangerous, and who requires continued involuntary commitment, will only be promoted by such a hearing. Thus, contrary to the majority’s conclusion, adherence to the mandate of Mental Hygiene Law § 33.15 does in fact provide a patient with an effective remedy. If the patient should no longer be retained, he/she will be immediately released upon return of the writ. Requiring a hearing regarding the patient’s mental status does not, as suggested by the majority, somehow facilitate or encourage a hospital’s flagrant disregard for the due process protections embodied in the Mental Hygiene Law (majority op at 133). Rather, it protects the patient and the public.

Furthermore, contrary to the majority’s supposition, holding a hearing where a hospital brings a retention application in response to a patient’s habeas petition would not shift the burden of proof to the patient. Where a hospital seeks to retain a person for involuntary psychiatric care, “it must demonstrate, by clear and convincing evidence, that the patient is mentally ill and in need of continued, supervised care and treatment, and that the patient poses a substantial threat of physical harm to himself and/or others” (*New York City Health & Hosps. Corp. v Brian H.*, 51 AD3d 412, 415 [2008]). The cases cited by the majority for this “burden shifting” concern are inapposite as they involve situations different from the one here. *Matter*

of *Mental Hygiene Legal Servs. ex rel. James U. v Rhodes* (195 AD2d 160, 162 [3d Dept 1994]) involved a patient who pleaded not responsible by reason of mental disease or defect to charges of attempted murder and reckless endangerment, who was detained pursuant to a two-year retention order, and who sought early release. In *Matter of Winslow v O'Neill* (153 AD2d 563, 564 [2d Dept 1989]), a patient who was subject to a six-month retention order sought release prior to the expiration of the court order authorizing retention, but failed to submit any medical evidence to rebut the outstanding retention order that determined he was in need of inpatient care and treatment. Thus, in both of those cases, the patient was seeking to show that his mental condition had changed since the court had ordered him retained, whereas in this situation, there is no longer any court order in effect determining that the person required involuntary commitment.

In sum, the logical and plain interpretation of Mental Hygiene Law § 33.15 is that the legislature intended that a mentally ill person who poses a danger to himself and/or to others would not be released without court review even under circumstances where the person's commitment order had expired. Accordingly, I would affirm.

Chief Judge LIPPMAN and Judges PIGOTT, RIVERA and FAHEY concur; Judge ABDUS-SALAAM dissents and votes to affirm in an opinion.

Order reversed, without costs, the habeas corpus proceeding converted into a declaratory judgment action, and judgment granted in accordance with the opinion herein.

[41 NE3d 1111, 20 NYS3d 296]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v AN-
THONY BARKSDALE, Appellant.

Argued September 8, 2015; decided October 22, 2015

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered October 15, 2013. The Appellate Division order, insofar as appealed from, affirmed so much of a judgment of the Supreme Court, New York County (Analisa Torres, J., at hearing; Richard D. Carruthers, J., at plea and sentencing), as had convicted defendant, upon his plea of guilty, of criminal possession of a weapon in the third degree under count three of the indictment.

People v Barksdale, 110 AD3d 498, affirmed.

HEADNOTE

Crimes — Unlawful Search and Seizure — Police-Initiated Approach and Request for Information — Apartment Building Enrolled in Trespass Affidavit Program

In a prosecution for unlawful possession of a razor blade arising out of defendant's arrest for criminal trespass in the lobby of an apartment building that was enrolled in the Manhattan branch of the trespass affidavit program (TAP), a police assistance solicitation program rooted in tenant protection, the record supported the lower courts' determinations that the police had an objective credible reason to approach and request information from defendant, and thus to begin the encounter that culminated in his arrest and the seizure of the razor blade. The record reflected that the encounter occurred in a private space restricted by signage and a lock, and that police assistance in combating trespassing had been sought through the building's enrollment in the TAP. The coupling of defendant's presence in the building with the private and protected nature of that location supported the police intrusion giving rise to what became the seizure. Under the circumstances, a police officer could have identified a trespasser only by requesting information.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Searches and Seizures §§ 20, 67, 88-90.

CARMODY-WAIT 2d, Search and Seizure §§ 173:20-173:22,
173:66, 173:291.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 3.2, 3.6.

NY JUR 2d, Criminal Law: Procedure §§ 267, 458.

ANNOTATION REFERENCE

See ALR Index under Search and Seizure.

FIND SIMILAR CASES ON WESTLAW®

Database: NY-ORCS

Query: lobby /s apartment & police /s request! /4 info!
ident!

POINTS OF COUNSEL

Robert S. Dean, Center for Appellate Litigation, New York City (Jan Hoth of counsel), for appellant. Anthony Barksdale's mere presence in the lobby of a housing complex enrolled in the "trespass affidavit program" did not provide Officer Nieves with an "objective credible reason" to approach and question him. (People v Cantor, 36 NY2d 106; People v Berrios, 28 NY2d 361; People v Dodt, 61 NY2d 408; People v Misuis, 47 NY2d 979; People v Hodge, 44 NY2d 553; People v De Bour, 40 NY2d 210; People v Hollman, 79 NY2d 181; People v Leung, 68 NY2d 734; People v Bronston, 68 NY2d 880; People v Marine, 142 AD2d 368.)

Cyrus R. Vance, Jr., District Attorney, New York City (Sheila L. Bautista and Beth Fisch Cohen of counsel), for respondent. The record contains ample support for the Appellate Division's finding that police officers patrolling a trespass affidavit building for intruders had an objective credible reason to ask defendant whether he lived in the building. Because the decision involved a mixed question of law and fact, the Appellate Division's determination is outside the scope of this Court's review. (People v Martin, 19 NY3d 914; People v Francois, 14 NY3d 732; People v McIntosh, 96 NY2d 521; People v Wheeler, 2 NY3d 370; People v Damiano, 87 NY2d 477; People v McRay, 51 NY2d 594; People v Harrison, 57 NY2d 470; People v Centano, 76 NY2d 837; People v Johnson, 109 AD3d 449; People v De Bour, 40 NY2d 210.)

New York Civil Liberties Union Foundation, New York City (Jordan Wells, Alexis Karteron and Christopher Dunn of counsel), The Bronx Defenders, Bronx (Robin Steinberg, Johanna B. Steinberg, Marika Meis and Scott Levy of counsel), LatinoJustice PRLDEF, New York City (Foster Maer of counsel), New York Lawyers for the Public Interest, New York City (J. McGregor Smyth, Jr., of counsel), and Shearman & Sterling LLP, New York City (Jeffrey J. Resetarits of counsel), for New York Civil Liberties Union and others, amici curiae. I. The Appellate Division's opinion rests on the faulty assumption that enrollment in the trespass affidavit program signifies

that a building is the site of criminal activity. (*People v McIntosh*, 96 NY2d 521; *People v Hollman*, 79 NY2d 181; *Ligon v City of New York*, 925 F Supp 2d 478; *People v Roque*, 99 NY2d 50.) II. The intrusive and potentially incriminating questions posed to appellant exceeded the limits of a level one encounter and therefore required a founded suspicion of criminality. (*People v Hollman*, 79 NY2d 181; *People v Tinort*, 272 AD2d 206.)

OPINION OF THE COURT

FAHEY, J.

On this appeal we consider the admissibility of evidence seized following defendant's arrest in the lobby of an apartment building in Manhattan that was enrolled in the trespass affidavit program (TAP). Under the particular facts and circumstances of this case we conclude that the record supports the lower courts' determinations that the police had an objective credible reason to approach and request information from defendant, and thus to begin the encounter that culminated in his arrest and the seizure of the disputed evidence.

Defendant pleaded guilty to three counts of criminal possession of a weapon in the third degree, but on this appeal he challenges only one of those charges, which is based on the discovery of a razor blade on defendant's person following his arrest for criminal trespass in the third degree on April 21, 2009. Defendant sought suppression of the razor blade on the ground "that he was unlawfully stopped and arrested,"¹ and at the ensuing hearing the People presented the testimony of a police officer who participated in the seizure of that weapon.

On the date in question, the police officer was directed to conduct a foot patrol in a Manhattan neighborhood and, in furtherance of that assignment, he looked into buildings for

1. That request arguably implicates one of the higher levels of the multi-tiered framework for evaluating police-initiated encounters with private citizens, including those that occur in residential apartment buildings (see *People v Roque*, 99 NY2d 50, 52 [2002]), that this Court established in *People v De Bour* (40 NY2d 210, 223 [1976]) and *People v Hollman* (79 NY2d 181, 184-185 [1992]). But heretofore defendant has not approached this suppression question as implicating anything other than a level one *De Bour* inquiry, and we thus do not consider his belated request at oral argument to apply a different level of that framework (see generally *People v Lovett*, 25 NY3d 1088, 1091 [2015]). Nor do we have any cause to address the propriety of either of the police officers' hypothetical actions in the event defendant had refused to respond to his inquiry, as defendant advances no arguments in that respect.

the purpose of locating either trespassers or those committing other crimes. The officer targeted buildings enrolled in the TAP, which he characterized as a form of solicitation of police assistance for structures that are prone to trespassers.² The officer stated that buildings included in the TAP have signs denoting their enrollment, and that trespassers are subject to arrest. While on his foot patrol the officer observed such a sign at an apartment building on West 129th Street, and he and his police partner entered that building apparently for the purpose of conducting a “vertical patrol,” that is, a sweep of each floor of the building.

When they entered the building, the officers saw defendant standing in its lobby. Within a few minutes they asked defendant “what he was doing [there].” Defendant responded that he was visiting a friend but, upon further questioning, defendant acknowledged both that he could not identify that friend and that he did not live in the building. The officers then arrested defendant, whereupon the testifying officer’s police partner frisked defendant and found a razor blade in one of his pants pockets. Although there was no private security guard in front of the building, the testifying officer recalled that the door to the building had a lock on it, and that he saw a sign indicating that the building was enrolled in the TAP when he entered that structure.

2. This Court has similarly described the TAP:

“Often a building owner or manager files a ‘trespass affidavit’ with police stating that the building has been plagued by illegal drug trade and asks police to patrol the building for trespassers. Police then stop people they encounter in the halls to ask for identification and to inquire if they are residents or otherwise lawfully in the building” (*Roque*, 99 NY2d at 52).

We note, however, that *Roque*’s description of the TAP is not perfectly applicable here because the materials before us reflect that the New York County District Attorney’s Office, not the New York City Police Department (NYPD), controls the enrollment of buildings in the TAP in Manhattan. That distinction is arguably material to this matter given the reference by amici including the New York Civil Liberties Union to discovery in *Ligon v City of New York* (925 F Supp 2d 478 [SD NY 2013]), a class action brought against the City of New York and the NYPD challenging “stops made by the police on suspicion of trespass outside of certain privately-owned buildings in the Bronx” (*id.* at 483). Based on *Ligon*, the amici contend that the order appealed from “rests on the faulty assumption that enrollment in the [TAP] signifies that a building is the site of criminal activity.” We do not, however, credit that point here inasmuch as the materials before us reflect that the TAP is administered differently in Manhattan than it is in New York City’s other boroughs.

The hearing court denied suppression of the razor blade, concluding that “[b]ecause the building [was] part of the [TAP, the testifying officer] had an objective credible reason to ask defendant why he was there,” and defendant subsequently pleaded guilty to, inter alia, the relevant count of criminal possession of a weapon in the third degree. On appeal, the Appellate Division affirmed, writing that the testifying officer’s observation of “defendant standing in the lobby of a [TAP] building . . . gave [him] an ‘objective credible reason’ to ask defendant whether he lived there, which constituted a level one request for information” under this Court’s long-standing metric for evaluating police-initiated encounters with civilians (110 AD3d 498, 498 [1st Dept 2013], quoting *Hollman*, 79 NY2d at 190). The Appellate Division further concluded that the testifying officer’s

“inquiry was not based merely on the reputation of the area, but also on the fact[s] that the building was so prone to trespassing that the landlord had request[ed] police assistance in removing intruders[,] . . . that defendant was in a plainly nonpublic lobby of a posted trespass affidavit building, and that the officer was aware of this at the time he made his inquiry” (110 AD3d at 498-499 [internal quotation marks omitted]).

A Judge of this Court granted defendant leave to appeal (23 NY3d 1034 [2014]).

Our analysis begins with the points “that whether police conduct in any particular case conforms to *De Bour* is a mixed question of law and fact,” and that, in such circumstances, “our review is limited to whether there is evidence in the record supporting the lower courts’ determinations” (*People v McIntosh*, 96 NY2d 521, 524 [2001]). On the merits, our analysis proceeds under the first of the four levels of *De Bour*, which sets a low bar for an initial encounter: it “permits a police officer to request information from an individual and merely requires that the request be supported by an objective, credible reason, not necessarily indicative of criminality” (*People v Moore*, 6 NY3d 496, 498 [2006]; see *De Bour*, 40 NY2d at 223).

Here the record reflects that the encounter occurred in a private space restricted by signage and a lock, and that police assistance in combating trespassing had been sought through enrollment in the TAP. Put simply, the coupling of defendant’s

presence in the subject building with the private and protected nature of that location supports the intrusion giving rise to what became the seizure in question. We conclude that there is record support for the determination that the police had an objective credible reason to request information from defendant (see generally *People v Hendricks*, 43 AD3d 361, 362-363 [1st Dept 2007]; *People v Tinort*, 272 AD2d 206, 206-207 [1st Dept 2000], *lv denied* 95 NY2d 872 [2000]).³

In so concluding we note that the police patrol at issue here was intended in part to combat trespassing, that is, “knowingly enter[ing] or remain[ing] unlawfully in or upon premises” (Penal Law § 140.05), that the building at issue was enrolled in the TAP for the purpose of addressing that problem, and that this branch of the TAP is rooted in tenant protection throughout Manhattan. Under these circumstances a police officer could have identified a trespasser only by requesting information.

Accordingly, the order of the Appellate Division, insofar as appealed from, should be affirmed.

RIVERA, J. (dissenting). According to the undisputed facts, police officers entered a building, saw defendant standing in the lobby, immediately approached and stopped him, and asked what he was doing in the building. Based on his initial response, police continued questioning defendant and, upon finding his answers unsatisfactory, arrested him. He now challenges the officers’ initial approach and request for information as a violation of his right to be free from unwarranted police intrusions.

On the strength of our precedent, I disagree with the majority’s conclusion that the police may approach and request information from a person, who the police fail to observe doing anything other than standing still, simply because the area where the police find the person is the lobby of a building with an alleged history of criminal trespass activity. This conclusion is not supported by *De Bour* and its progeny, and compromises

3. Our decision herein does not conflict with *McIntosh* (96 NY2d 521), which teaches that geography alone, that is, *mere presence* in a high-crime location, does not provide a predicate for even a level one *De Bour* inquiry (see *id.* at 526-527). The intrusion here was borne of more than simply presence in a high-crime neighborhood, inasmuch as it was based on defendant’s presence in a private area of a building, to which access was restricted by signage and a lock, and which was enrolled in the TAP.

the privacy interests that first motivated this Court to adopt the four-tiered analytic framework for evaluating police-initiated encounters (see *People v Hollman*, 79 NY2d 181, 195 [1992]; *People v De Bour*, 40 NY2d 210 [1976]). Therefore, I dissent.

As in all cases implicating the *De Bour* analysis, our review of the issues must begin with an understanding that the holding in *De Bour*

“reflected our judgment that encounters that fall short of Fourth Amendment seizures still implicate the privacy interests of all [persons] and that the spirit underlying th[e] words [of the State or Federal Constitution] required the adoption of a State common-law method to protect the individual from arbitrary or intimidating police conduct” (*Hollman*, 79 NY2d at 195).

The approach in *De Bour* balances the rights of the individual to be free from investigative confrontations and the authority of the police to approach individuals in furtherance of their law enforcement function (40 NY2d at 219), and “is largely based upon considerations of reasonableness and sound State policy” (*Hollman*, 79 NY2d at 195).

As now well-established, *De Bour* provides “a four-tiered method for evaluating the propriety of encounters initiated by police officers in their criminal law enforcement capacity” (*Hollman*, 79 NY2d at 184). “Each progressive level . . . authorizes a separate degree of police interference with the liberty of the person approached and consequently requires escalating suspicion on the part of the investigating officer” (*id.* at 185). As relevant to the issues raised in this appeal, “a police officer, acting with the requisite level of suspicion, [who] approach[es] an individual for information” may request identification and ask “questions that relate to the person’s identity and reason for being in the area” (*id.* at 190-191; see *De Bour* 40 NY2d at 220). This type of police encounter, referred to as a level one or tier one intrusion, constitutes an interference with the individual’s liberty, and therefore must be justified by “an objective credible reason[,] not necessarily indicative of criminality” (*Hollman*, 79 NY2d at 185; *De Bour*, 40 NY2d at 223).

To ensure against arbitrary conduct, an officer’s actions cannot have resulted from “mere whim, caprice or idle curiosity” (*De Bour*, 40 NY2d at 217; *Hollman*, 79 NY2d at 190; see also *People v McIntosh*, 96 NY2d 521, 525 [2001]). Instead, the legal-

ity of an encounter under our *De Bour* jurisprudence depends on “whether a nexus to [defendant’s] conduct existed, that is, whether the police were aware of or observed conduct which provided a particularized reason to request information” (*McIntosh*, 96 NY2d at 527). The fact that the encounter occurs in an area with a reputation for criminal activity, alone, cannot provide the requisite justification for even “basic, nonthreatening questions regarding . . . identity, address or destination” (*Hollman*, 79 NY2d at 185; *see also McIntosh*, 96 NY2d at 527 [“fact that an encounter occurred in a high crime vicinity, without more,” fails to pass scrutiny under *De Bour* and *Hollman*], citing *People v Holmes*, 81 NY2d 1056, 1058 [1993]).

A court’s determination of the outer contours of a level one police encounter is further informed by this Court’s recognition of two limitations on police officers’ authority to approach and ask questions. First, is the *Hollman* Court’s instruction that “[t]he four-tiered method for analyzing police encounters gives officers acting in their law enforcement capacity leeway in approaching individuals for information. It does not, however, permit police officers to ask intrusive, potentially incriminating questions unless they have founded suspicion that criminality is afoot” (79 NY2d at 192). Second, is the well-established constitutional right of individuals “‘to be let alone’ and to refuse to respond to police inquiry” (*People v May*, 81 NY2d 725, 728 [1992], citing *People v Howard*, 50 NY2d 583, 590 [1980]). As the Court has explained, “while the police [have] the right to make the inquiry, defendant ha[s] a constitutional right not to respond” (*Howard*, 50 NY2d at 590; *Davis v Mississippi*, 394 US 721, 727 n 6 [1969]).

Here, the officers immediately approached defendant upon entering the lobby, after traveling directly from the building’s entrance. They had no prior information that defendant was trespassing or involved in some other illegal activity, which might justify a request for information (*see McIntosh*, 96 NY2d at 527 [officer might be justified under *De Bour* level one to request information based on a tip or other information about illegal activity in the area, including information that a fugitive or suspect had been reported in a specific area]). There were no “attendant circumstances . . . sufficient to arouse the officers’ interest” of the type recognized in *De Bour*, and our subsequent cases (*see De Bour*, 40 NY2d at 220 [where officers observed *De Bour* “cross() the street to avoid walking past” them, in a drug activity prone area]; *Hollman*, 79 NY2d at 193

[officer observed Hollman move his and a companion's bags several times after boarding a bus]; *McIntosh*, 96 NY2d at 527 [investigator observed defendant, seated in the back of the bus, pushing a black object between himself and a companion]). Nor did the officers personally observe conduct by defendant that would provide an objective, credible, particularized reason to request information, such as defendant walking around the lobby with no apparent purpose, or standing idle for a lengthy period of time, both of which would suggest he was neither tenant nor guest. Nor did the officers find defendant uncertain about the location of the elevator or staircase, or other common areas of the building, which are known to tenants and the building's employees, again providing an objective basis to inquire as to why he was in the lobby. Instead, the only information the officers had about the defendant was that he was standing in the lobby of a building, which was alleged by the landlord to have been the site of prior criminal trespass. However, under our law, even a minimal intrusion of defendant's liberty requires that the police officers have an objective credible reason that is not based solely on the alleged criminal activity of defendant's location (*McIntosh*, 96 NY2d at 527).

Nevertheless, the majority concludes that the police encounter here is not based solely on the alleged criminal activity in the building because defendant's presence in a trespass affidavit program (TAP)-enrolled building was coupled "with the private and protected nature of that location" (majority op at 144). I disagree with what is essentially the majority's "presence plus TAP" justification for a level one police intrusion, because the basis for TAP enrollment is the building's alleged history of criminal activity. A building participating in TAP is nothing other than an alleged "high crime vicinity," which, in turn, is the same proposed additional factor this Court explicitly rejected in *McIntosh* as insufficient to justify a request for information.

Of course, a location's reputation for criminal activity may be a factor, along with other information, that provides an officer with the credible objective reason to request information (see *McIntosh*, 96 NY2d at 526-527). Still, criminal activity cannot be coupled, as the majority concludes here, with such benign conduct as standing still. While the requisite objective credible reason need not indicate criminality (see *De Bour*, 40 NY2d at 223), it must, at least, suggest a reason to ask an individual for their identifying information (see *McIntosh*, 96

NY2d at 527 [request for information justified only if “a nexus to (defendant’s) conduct existed”]).

There is no way of escaping the simple truth that under the majority’s approach police officers are free to inquire of those who are not trespassers, such as tenants and their guests, on the assumption that they are breaking the law by their mere presence in a TAP-enrolled building. That type of over inclusive policing cannot be squared with our requirement that a nexus to the conduct exist, that is to say that the police must have a particularized reason to request information, based on the awareness of information or the observation of conduct (*see id.* at 527). It also ignores the “considerations of reasonableness and sound State policy” (*Hollman*, 79 NY2d at 195), namely, the privacy interests of all persons, and our commitment to the “protect[ion of] the individual from arbitrary or intimidating police conduct” that provide “continued vitality” to the *De Bour* analytic framework (*id.*; *see De Bour*, 40 NY2d at 218-220).

The majority seeks to rationalize its holding, and the impact of its decision on TAP-enrolled building residents and their guests, by its assertions that “the police patrol at issue here was intended in part to combat trespassing,” and that a police officer could have identified a trespasser only by requesting information (majority op at 144). The argument that routine police encounters, like the one at issue here, are necessary to facilitate law enforcement plainly ignores the *De Bour* Court’s warning that “the area of crime prevention” “is highly susceptible to subconstitutional abuses” (40 NY2d at 220). Indeed, the Court saw fit to “subject [this function] to the greatest scrutiny; for whereas a [police officer’s] badge may well be a symbol of the community’s trust, it should never be considered a license to oppress” (*id.* at 220; *see also id.* at 220 n 2 [noting that certain law enforcement techniques used “to create an atmosphere of security . . . may infringe on the privacy and freedom of individuals”])). The majority’s sanction of the blanket intrusion on the liberty of all persons encountered in a building, including those wholly innocent of any criminal activity, cannot meet such heightened review.

With respect to the contention that police can only determine whether someone is a trespasser by approaching and requesting information from an individual who is standing in a private area of a building, the same could be said of other crimes where a person could be standing in plain sight and be in violation of the law, such as, for example, crimes of possession (*see Penal*

Law § 265.02 [criminal possession of a weapon in the third degree]; Penal Law § 220.16 [criminal possession of a controlled substance in the third degree]). The majority's analysis thus results in the evisceration of level one of the *De Bour* framework as applied to other categories of crimes, not just trespassing.

Even if this were not the case, there are no facts in the record here, or case law, in support of the majority's premise. All that occurred here is that the officers entered the building and immediately approached the defendant and started asking him questions. However, where an officer or third party's safety is not implicated, an officer can become aware of information about a person that provides an articulable reason to initiate an encounter: a "nexus to conduct" (*McIntosh*, 96 NY2d at 527). Based on that nexus, the officer is justified in requesting information, as well as "in keeping defendant under observation" (*Howard*, 50 NY2d at 590).

Nevertheless, permitting an officer to request information from someone standing in a TAP-enrolled building would be problematic for another reason: the officer is not assured of a truthful answer. Based on the individual's response, the officer will either accept it as true, which may not be the case, or continue to ask questions, presumably because the officer suspects the person is not answering truthfully and is indeed trespassing. This very scenario reveals the fundamental problem with the majority's analysis. That is to say, that the initial police encounter, in practice, will, by necessity, escalate beyond a level one request for information. As this Court has explained, "[o]nce the officer asks more pointed questions that would lead the person approached reasonably to believe that [the person] is suspected of some wrongdoing and is the focus of the officer's investigation, the officer is no longer merely seeking information" (*Hollman*, 79 NY2d at 185). Rather than preserve the integrity of the *De Bour* analytic framework, this potential for the escalation of police encounters undermines the "continued vitality" of that analysis.

No less so because the request for information involved in this case is not a "general, nonthreatening encounter in which an individual is approached for an articulable reason and asked briefly about his or her identity, destination, or reason for being in the area" (*id.* at 191). Instead, it is a request for information that by its nature serves to incriminate, or potentially increase an officer's suspicion of criminal activity.

Along these same lines of concern, the majority fails to address what happens if the person approached refuses to answer, and remains silent, or says, “I do not have to talk to you.” Or, what if the individual simply walks away? Given that an individual in a police-initiated encounter may seek to exercise that person’s “right to be let alone” (*People v Moore*, 6 NY3d 496, 500 [2006]), and this Court’s previous statements that an individual need not talk to an officer and may walk away from the police in a noncustodial encounter (*see Howard*, 50 NY2d at 590-591; *May*, 81 NY2d at 728; *People v Holmes*, 81 NY2d 1056, 1058 [1993]; *Moore*, 6 NY3d at 500), the potential for escalation seems all too likely.

The majority fails to consider what this Court clearly recognized in *De Bour*, namely that police encounters are fraught with tension. Even a level one encounter can cause anxiety. For, “[i]t is certainly unsettling to be approached by a police officer and asked for identification. Even though [the Court] term[ed] this a request for information, [it] d[id] not mean to suggest that a reasonable person would not be taken aback by such a request” (*Hollman*, 79 NY2d at 192). Accordingly, we have developed legal rules sensitive to the reality “that the tone of police-initiated encounters with civilians can be subtle and ever-shifting, that words and gestures are susceptible to many varying interpretations, and that suspicion can grow based on intangibles evident only to the eyes of a trained police officer” (*id.* at 191).

As a final matter, although not specifically addressed by the majority, one of the People’s arguments warrants consideration, given that the argument relies on general notions of fairness and just treatment under the law. The People argue that residents of buildings in high-crime areas “are entitled . . . to feel safe in their homes” and “should not have to contend with intruders simply because they do not have a doorman, security guard, or other building employee to restrict access.” Certainly our law ensures that persons unable to afford the private security available to those with greater financial means are nonetheless guaranteed the full protection of our laws, regardless of their economic status. That is, of course, the promise of our legal system: all are equal under the law. However, TAP enrollment of a building known for criminal activity does not ensure for its residents an equal footing with persons living, visiting, or working in buildings with private security personnel. The experiences of these two groups during encounters

with the “security force” in their respective buildings are not similar. In a TAP-enrolled building the police do not know the tenants—otherwise they would have no reason to request information of those they encounter during their routine vertical sweeps. In contrast, in a building with private security personnel, the tenants, and often their guests, are known to the building employees and thus can avoid the indignity of being assumed to be trespassers. Moreover, in a building with private security personnel, it may be possible for the tenants to influence the application of security protocols, and choose how they want their building protected. Here, there is nothing to suggest that the tenants participated in deciding to enroll in TAP. Given these differences, tenants in TAP-enrolled buildings are not assured equal treatment by stripping them of their rights to be free from police encounters that fail to meet minimal standards.

Judges PIGOTT, ABDUS-SALAAM and STEIN concur; Judge RIVERA dissents in an opinion in which Chief Judge LIPPMAN concurs.

Order, insofar as appealed from, affirmed.

[41 NE3d 1130, 20 NYS3d 315]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v KENNETH NEALON, Respondent.

Argued September 10, 2015; decided October 27, 2015

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered April 16, 2014. The Appellate Division (1) reversed, on the law, a judgment of the Supreme Court, Queens County (Daniel Lewis, J.), which had convicted defendant, upon a jury verdict, of robbery in the first degree, robbery in the second degree, assault in the second degree, and criminal possession of stolen property in the fifth degree; and (2) ordered a new trial.

People v Nealon, 116 AD3d 886, reversed.

HEADNOTE

Crimes — Jurors — Meaningful Notice to Counsel of Substantive Jury Inquiry — Mode of Proceedings Error — Preservation Requirement

The trial court in defendant's robbery prosecution did not commit a mode of proceedings error by failing to first read substantive jury notes into the record and discuss them with counsel outside the presence of the jury before recalling the jury, where the court nonetheless read the precise contents of the notes into the record in the presence of counsel, defendant and the jury before providing its response. CPL 310.30 requires a trial court to provide "notice to both the people and counsel for the defendant" of a substantive jury inquiry. The court's notice to counsel must be meaningful, which means notice of the actual specific content of the jurors' request. This is because counsel cannot participate effectively or adequately protect the defendant's rights if this specific information is not given. In most cases, meaningful notice is best satisfied by adhering to the procedure set forth in *People v O'Rama* (78 NY2d 270 [1991]). When the court fails to provide counsel with meaningful notice of the precise content of a substantive juror inquiry, a mode of proceedings error occurs, and reversal is therefore required even in the absence of an objection. Here, the trial court deviated from the *O'Rama* procedure by failing to discuss the notes and the court's intended response with counsel before recalling the jury, but that deviation did not constitute a mode of proceedings error. By reading the notes verbatim into the record in the presence of counsel and the jury, the trial court complied with its core responsibility to give counsel meaningful notice of the jury's notes. Thus, counsel was required to object in order to preserve a claim of error for appellate review.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Appellate Review § 575; AM JUR 2d, Trial §§ 618, 1340, 1341.

CARMODY-WAIT 2d, Jury Conduct and Deliberation §§ 201:17, 201:19; CARMODY-WAIT 2d, Appeals in Criminal Cases §§ 207:18, 207:38, 207:39.
LAFAYE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 24.9, 27.5.
MCKINNEY'S, CPL 310.30.
NY JUR 2d, Criminal Law: Procedure §§ 2822-2824, 3469.

ANNOTATION REFERENCE

See ALR Index under Appeal and Error; Instructions to Jury.

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POINTS OF COUNSEL

Richard A. Brown, District Attorney, Kew Gardens (Christopher J. Blira-Koessler, Robert Masters, John M. Castellano and Johnnette Traill of counsel), for appellant. I. This Court should hold, consistent with the totality of its *O'Rama* jurisprudence, that there is no mode of proceedings error in cases such as this one, where the court reveals the full contents of jury notes to defendant, defense counsel, and the prosecutor in front of the jury, and defendant has ample opportunities to object and suggest responses to the notes. (*People v Malloy*, 55 NY2d 296; *People v Gonzalez*, 293 NY 259; *People v O'Rama*, 78 NY2d 270; *People v Kisoon*, 8 NY3d 129; *People v Starling*, 85 NY2d 509; *People v Alcide*, 21 NY3d 687; *People v Williams*, 21 NY3d 932; *People v Ramirez*, 15 NY3d 824; *People v Walston*, 23 NY3d 986; *People v Silva*, 24 NY3d 294.) II. The resettled record demonstrates that there was no *O'Rama* error in this case. (*Bohlen v Metropolitan El. Ry. Co.*, 121 NY 546; *People v O'Rama*, 78 NY2d 270; *People v Minaya*, 54 NY2d 360; *People ex rel. Hirschberg v Orange County Ct.*, 271 NY 151; *New York Rubber Co. v Rothery*, 112 NY 592; *People v Dekle*, 56 NY2d 835; *People v Walston*, 23 NY3d 986; *Dalrymple v Williams*, 63 NY 361; *People v Wright*, 56 NY2d 613; *People v Gammon*, 19 NY3d 893.)

Lynn W.L. Fahey, Appellate Advocates, New York City (Kendra L. Hutchinson of counsel), for respondent. I. As the Appellate Division correctly held, the trial court's failure to disclose the contents of substantive notes requiring counsel's input or

to afford counsel the opportunity to provide input on the record, prior to actually responding in a manner that did not repeat the final charge with the jury already present, was a mode of proceedings error, for this procedure unfairly surprised counsel and entirely prevented meaningful participation. (*People v O’Rama*, 78 NY2d 270; *People v Kisoan*, 8 NY3d 129; *People v Cruz*, 14 NY3d 814; *United States v Ronder*, 639 F2d 931; *People v Silva*, 24 NY3d 294; *People v Walston*, 23 NY3d 986; *People v Tabb*, 13 NY3d 852; *People v Cook*, 85 NY2d 928; *People v Alcide*, 21 NY3d 687; *People v DeRosario*, 81 NY2d 801.) II. The issues of resettlement and reconstruction are unappealable and unreviewable in this case; in any event, because a trial court is obligated to make a contemporaneous record of its compliance with *People v O’Rama* (78 NY2d 270 [1991]), the Appellate Division acted well within its discretion in refusing to consider the “resettlement” findings or “reconstruct” the record. (*People v Richardson*, 100 NY2d 847; *People v Walston*, 23 NY3d 986; *People v McRay*, 51 NY2d 594; *People v Gruttola*, 43 NY2d 116; *People v Gallina*, 66 NY2d 52; *People v Herman L.*, 83 NY2d 958; *People v Paz*, 158 AD2d 1008; *People v LaSalle*, 95 NY2d 827; *People v Santorelli*, 95 NY2d 412; *People v Minaya*, 54 NY2d 360.)

OPINION OF THE COURT

FAHEY, J.

On this appeal, we are asked to decide whether a trial court commits a mode of proceedings error when the court fails to discuss a substantive jury note with counsel outside the presence of the jury, but reads the note into the record in the presence of the parties, counsel, and the jury before providing a response. While that departure from the *O’Rama* procedure (see *People v O’Rama*, 78 NY2d 270, 277-278 [1991]) is generally error, our precedent compels the conclusion that it is not a mode of proceedings error, and the preservation rule therefore applies.

I.

In September 2007, defendant and an accomplice severely beat another man and stole his cell phones, cash, and other personal items. Defendant was charged with robbery in the first degree, robbery in the second degree, assault in the second degree, and criminal possession of stolen property in the fifth degree. Defendant proceeded to a jury trial in Supreme Court, Queens County. During deliberations, the jury sent three notes to the court that concern us on this appeal.

The first note requested instruction on the “difference between robbery in the [first] degree and [second] degree.” The second note, sent five minutes later, requested reinstruction “on all [four] charges.” An off-the-record sidebar discussion was held before the court marked these notes as court exhibits 2 and 3. The court then recalled the jury into the courtroom, and, in the presence of the parties, counsel, and the jury, read the notes verbatim into the record. The court then provided legal instructions to the jury. Defendant did not object, either to the court’s procedure or to its responses to the jury.

The jury’s third note stated: “Clarify if [first] count robbery in first degree includes assault and [second] count robbery in second degree does not include assault. Does the degree of injury count towards [first] or [second] degree?” An off-the-record sidebar discussion was held before the court marked the note as court exhibit 4. The court again recalled the jury into the courtroom and read the note into the record in the presence of the parties, counsel, and the jury. The court then provided a response to the jury’s inquiry, and after the foreperson stated that the court had answered the jury’s question, the jury returned to deliberations. Defendant again did not object, either to the court’s procedure or to its response to the jury’s note.

The next note sent by the jury stated that the jury had reached a verdict. Defendant was found guilty as charged.

On appeal, the Appellate Division unanimously reversed the judgment (116 AD3d 886 [2d Dept 2014]), holding that “Supreme Court violated the procedure set forth in *O’Rama* by reading the contents of the jury note for the first time in front of the jury and immediately providing a response” (*id.* at 887). The Court further held that because the record failed to demonstrate that the trial court complied with “its core responsibilities under CPL 310.30, a mode of proceedings error occurred requiring reversal . . . , despite defense counsel’s failure to object to the Supreme Court’s handling of the jury’s notes” (*id.* at 888 [internal quotation marks omitted]).

A Judge of this Court granted the People leave to appeal (23 NY3d 1065 [2014]). We now reverse.

II.

CPL 310.30 requires a trial court to provide “notice to both the people and counsel for the defendant” of a substantive jury

inquiry. In *O’Rama*, we held that the statute requires the court’s notice to counsel to be “meaningful,” and we clarified that this “means notice of the actual specific content of the jurors’ request” (*O’Rama*, 78 NY2d at 277). This is because “counsel cannot participate effectively or adequately protect the defendant’s rights if this specific information is not given” (*id.*). We further held that, “in most cases,” meaningful notice is best satisfied by adhering to the procedure outlined in *United States v Ronder* (639 F2d 931, 934 [2d Cir 1981]), which procedure is now commonly known as the *O’Rama* procedure:

“Under this procedure, jurors’ inquiries must generally be submitted in writing, since . . . written communications are the surest method for affording the court and counsel an adequate opportunity to confer. Further, whenever a substantive written jury communication is received by the Judge, it should be marked as a court exhibit and, before the jury is recalled to the courtroom, read into the record in the presence of counsel. Such a step would ensure a clear and complete record, thereby facilitating adequate and fair appellate review. After the contents of the inquiry are placed on the record, counsel should be afforded a full opportunity to suggest appropriate responses. As the court noted in *Ronder* (*supra*, at 934), the trial court should ordinarily apprise counsel of the substance of the responsive instruction it intends to give so that counsel can seek whatever modifications are deemed appropriate *before* the jury is exposed to the potentially harmful information. Finally, when the jury is returned to the courtroom, the communication should be read in open court so that the individual jurors can correct any inaccuracies in the transcription of the inquiry and, in cases where the communication was sent by an individual juror, the rest of the jury panel can appreciate the purpose of the court’s response and the context in which it is being made” (*O’Rama*, 78 NY2d at 277-278).

We made clear in *O’Rama* that a trial court does not satisfy its responsibility to provide counsel with meaningful notice of a substantive jury inquiry by summarizing the substance of the note (*see id.* at 275, 278-279). We held that “[a] court can

neither serve the goal of maximizing counsel's participation nor satisfy the CPL 310.30 requirement that meaningful notice be given when counsel is not afforded a verbatim account of a juror's communication" (*id.* at 279). Inasmuch as the trial court's "error in failing to disclose the contents of the note had the effect of entirely preventing defense counsel from participating meaningfully in this critical stage of the trial," we held that the failure to provide meaningful notice to counsel was a mode of proceedings error (*id.*).

Since *O'Rama* was decided, we have continued to hold that when a trial court paraphrases a jury note or omits a key term, thereby failing to provide counsel with meaningful notice of the precise content of a substantive juror inquiry, a mode of proceedings error occurs, and reversal is therefore required even in the absence of an objection (*see People v Walston*, 23 NY3d 986, 990 [2014]; *People v Tabb*, 13 NY3d 852, 853 [2009]; *People v Kisoona*, 8 NY3d 129, 135 [2007]). This rule is sensible because counsel cannot be expected to object to the court's response to the jury or to frame an intelligent suggested response if counsel lacks knowledge of the specific content of a substantive jury note. In other words, a trial court's "failure to read [a] note verbatim deprive[s] counsel of the opportunity to accurately analyze the jury's deliberations and frame intelligent suggestions for the court's response" (*Kisoona*, 8 NY3d at 135). Thus, "[w]here the record fails to show that defense counsel was apprised of the specific, substantive contents of the note . . . preservation is not required" (*Walston*, 23 NY3d at 990).

Here, by contrast, defendant does not dispute that his trial counsel was "apprised of the specific, substantive contents of the note[s]," inasmuch as the court read the precise contents of the notes into the record in the presence of counsel and the jury before responding to the jury (*id.*). Nevertheless, the trial court deviated from the *O'Rama* procedure by failing to first read the notes into the record in the presence of counsel and to provide counsel with "a full opportunity to suggest appropriate responses" outside the presence of the jury (*O'Rama*, 78 NY2d at 277-278). Although off-the-record sidebar discussions were held before the court recalled the jury, "we cannot assume that [an *O'Rama* error] was remedied at an off-the-record conference" (*Walston*, 23 NY3d at 990). We therefore assume for purposes of this appeal that no discussion of the jury's notes occurred between the court and counsel before the court recalled the jury into the courtroom.

We have repeatedly cautioned, however, that our decision in *O’Rama* “was not designed ‘to mandate adherence to a rigid set of procedures, but rather to delineate a set of guidelines calculated to maximize participation by counsel at a time when counsel’s input is most meaningful’” (*People v Silva*, 24 NY3d 294, 299 [2014], *rearg denied* 24 NY3d 1216 [2015], quoting *People v Alcide*, 21 NY3d 687, 692 [2013]). As such, we have recognized that “some departures from the procedures outlined in *O’Rama* may be subject to rules of preservation” (*Kisoon*, 8 NY3d at 135; *see Silva*, 24 NY3d at 299; *Walston*, 23 NY3d at 989).

The issue on this appeal is not whether the trial court deviated from the *O’Rama* procedure. Rather, the issue is whether this particular deviation from the *O’Rama* procedure—the trial court’s failure to have a discussion with counsel about the content of the notes and the court’s intended response before recalling the jury into the courtroom and providing a response—falls within the “tightly circumscribed class” of errors known as mode of proceedings errors, which are not subject to the preservation requirement (*People v Kelly*, 5 NY3d 116, 119–120 [2005]). Our precedent compels the conclusion that this particular deviation from the *O’Rama* procedure was not a mode of proceedings error, and that counsel was required to object to preserve any claim of error for appellate review.

III.

Our analysis begins with *People v Starling* (85 NY2d 509 [1995]). In *Starling*, defense counsel requested certain jury instructions during the charge conference pertaining to intent, which requests the trial court denied (*see id.* at 513). During deliberations, the jury sent out two notes requesting further legal instruction on the definition of intent (*see id.* at 514). “On both occasions, the court read the note verbatim in the presence of the jury, counsel and defendant and proceeded to reread the same definition of intent it had previously given” (*id.*). Thus, the court committed the same departure from *O’Rama* that is at issue here: the court did not discuss the notes or its intended response with counsel before recalling the jury. In *Starling*, as is the case here, defendant did not object, either “to the manner of proceeding or to the substance of the court’s responses” (*id.*).

On appeal, this Court upheld the judgment of conviction, concluding that

“[b]ecause the court read the entire content of the jury’s notes in open court prior to responding, this case is distinguishable from the situation presented in [*O’Rama*], where the trial court withheld from counsel the contents of a juror’s note, thereby depriving defendant of the opportunity to participate in formulating the court’s response” (*id.* at 516).

We noted that “defense counsel was given notice of the contents of the jury notes and had knowledge of the substance of the court’s intended response—a verbatim rereading of the intent charge previously given on several occasions” (*id.*). We therefore held that “counsel’s silence at a time when any error by the court could have been obviated by timely objection renders the claim unpreserved and unreviewable” by this Court (*id.*).

More recently, the Court decided *People v Ramirez* (15 NY3d 824 [2010]). In a brief memorandum decision, we wrote that “although the record is silent as to whether Supreme Court showed the jury note to counsel as required in [*O’Rama*], defense counsel had notice of the contents of the note and the court’s response, and failed to object at that time, when the error could have been cured” (*id.* at 825-826). Citing *Starling*, we therefore held that defendant’s claim was “unpreserved for review” (*id.* at 826, also citing *People v Kadarko*, 14 NY3d 426, 429-430 [2010]).

We reiterated this holding in *People v Williams* (21 NY3d 932 [2013]). In that case, as in this one, the jury sent a note requesting “clarification of a legal term, and after asking the jury to return to the courtroom, the court read the note out loud before responding directly to the jury” (*id.* at 934). On appeal, we rejected the defendant’s claim “that a mode of proceedings error occurred, when the trial court did not comply precisely with the requirements of [*O’Rama*]” (*id.* at 934-935). Rather, citing *Ramirez* and *Starling*, we held that “[w]here, as here, defense counsel had notice of a jury note and failed to object . . . when the error could have been cured, lack of preservation bars the claim” (*id.* at 935 [internal quotation marks omitted], also citing *People v Ippolito*, 20 NY3d 615 [2013]).

A few months later, we decided *People v Alcide* (21 NY3d 687 [2013]). In that case, the jury requested readbacks of the testimony of the first officer to arrive at the crime scene and a bystander who witnessed the shooting (*see id.* at 690).

“In the presence of defendant, counsel and the jury, the judge stated that he had received ‘notes requesting the reading of the testimony of the first officer at the crime scene. That will be Court Exhibit 3. And the reading of [the bystander’s] testimony, which will be Court Exhibit 4’ ” (*id.* at 691).

The Judge then explained that during the readbacks, he would read the direct examination questions and the court reporter would read the witness’s responses, and he would then reverse that procedure for the cross-examination testimony (*see id.*). “Neither party objected to this procedure for handling the readbacks” (*id.*).

On appeal, we rejected the defendant’s claim that a mode of proceedings error had occurred because the court failed to provide counsel with meaningful notice (*see id.* at 691-694). We held that *Starling* controlled, inasmuch as the two jury notes “were disclosed in their entirety in open court before the trial judge responded to them” (*id.* at 694). We further noted that “the judge explained exactly how he was going to conduct the readbacks” (*id.*). Citing *Ramirez*, we held that “[i]f defense counsel considered the judge’s intended approach prejudicial, he certainly had an opportunity to ask him to alter course, and it behooved him to do so” (*id.*).

These four cases are controlling here. In the present case, the trial court similarly departed from the *O’Rama* procedure by failing to have a discussion with counsel about the notes before recalling the jury into the courtroom, thereby depriving counsel of an opportunity to hear the precise contents of the notes and to suggest responses outside the presence of the jury. Nevertheless, as was the case in *Starling*, *Ramirez*, *Williams*, and *Alcide*, the trial court here read the precise contents of the notes into the record in open court in the presence of counsel, defendant, and the jury before providing its response. Defense counsel here similarly failed to object, either to the trial court’s procedure or to the court’s responses to the jury.

By reading the notes verbatim into the record in the presence of counsel and the jury, the trial court complied with its core responsibility to give counsel meaningful notice of the jury’s notes (*see Alcide*, 21 NY3d at 694; *Williams*, 21 NY3d at 934-935; *Ramirez*, 15 NY3d at 825-826; *Starling*, 85 NY2d at 516). Thus, no mode of proceedings error occurred, and counsel was required to object in order to preserve a claim of error for appellate review. “Where, as here, defense counsel had notice

of a jury note and ‘failed to object . . . when the error could have been cured,’ lack of preservation bars the claim” (*Williams*, 21 NY3d at 935, quoting *Ramirez*, 15 NY3d at 826).*

To the extent defendant contends that these four cases are distinguishable because the jury notes at issue there merely required a ministerial response, we disagree. The *O’Rama* procedure is implicated whenever the court receives “a substantive written jury communication” (*O’Rama*, 78 NY2d at 277 [emphasis added]). Conversely, the *O’Rama* procedure is not implicated when the jury’s request is ministerial in nature and therefore requires only a ministerial response (see *People v Mays*, 20 NY3d 969, 971 [2012]; *People v Ochoa*, 14 NY3d 180, 188 [2010]). Nevertheless, we did not characterize the jury notes at issue in *Starling*, *Ramirez*, *Williams*, or *Alcide* as ministerial, and therefore our analysis did not turn on any distinction between substantive and ministerial jury requests. Indeed, in *Williams*, the jury requested “clarification of a legal term” (*Williams*, 21 NY3d at 934), a request that cannot be characterized as a ministerial inquiry for which the trial court had no obligation to comply with the *O’Rama* procedure.

Rather, the holding to be distilled from these four cases is that not every departure from the *O’Rama* procedure, even in the context of a substantive jury inquiry, is a mode of proceedings error. Where, as here, counsel has meaningful notice of a substantive jury note because the court has read the precise content of the note into the record in the presence of counsel, defendant, and the jury, the court’s failure to discuss the note

* The rule advocated by the dissent is that where the trial court’s impending response to a substantive jury note can be characterized as predictable, an objection is required to preserve any error for appellate review, inasmuch as counsel’s participation in the formulation of a predictable response is superfluous. Where, however, the court’s impending response cannot be characterized as predictable or obvious, the dissent would hold that this particular departure from the *O’Rama* procedure is a mode of proceedings error and no objection is required. This appears to be unworkable.

The dissent asserts that these four cases are distinguishable because, in each case, “counsel knew what the court’s response would be and it was objectively evident that, although the inquiries were substantive, the responsive options were so limited as to render counsel’s participation in addressing them minimally useful” (dissenting op at 167). While that characterization may be accurate in *Starling* and *Alcide*, we respectfully disagree that the predictability of the court’s response is the common thread in all four cases. Rather, as we read these four cases, the common thread is that “the court read[] the ‘entire content’ of the note verbatim in open court prior to responding to the jury,” and thus the departure from the *O’Rama* procedure was “subject to our rules of preservation” (*Walston*, 23 NY3d at 989).

with counsel before recalling the jury is not a mode of proceedings error. Counsel is required to object to the court's procedure to preserve any such error for appellate review. We note that our understanding of this line of cases as set forth herein is consistent with *Walston*, where we stated: "We have acknowledged that some departures from *O'Rama* procedures are subject to our rules of preservation, *such as where the court reads the entire content of the note verbatim in open court prior to responding to the jury*" (*Walston*, 23 NY3d at 989 [emphasis added and internal quotation marks omitted]).

IV.

Our jurisprudence seeks to ensure that all parties are on notice as to what the jury is asking. Without meaningful notice of the contents of a jury note, counsel cannot protect the interests of each party before the court. What to do with this knowledge is a decision for counsel to make.

In this and similar scenarios, counsel has knowledge of three key facts: (1) the precise content of the jury's note, which was read verbatim into the record in the presence of counsel and the jury; (2) that counsel has not had an opportunity to provide the court with input on its response to the jury's inquiry; and (3) the actual content of the court's response to the jury, which counsel is hearing in open court as the court provides its response to the jury. Counsel therefore has all the knowledge required to make an objection, either to the court's deviation from the *O'Rama* procedure or to the court's response to the jury, or both.

If we held this particular departure from *O'Rama* to be a mode of proceedings error, however, it would be unwise for counsel to object and seek correction of the error, inasmuch as in the absence of a correction of the error on the record, the defendant would automatically receive an appellate reversal and a new trial. Recognizing a mode of proceedings error in this situation would have precisely the opposite effect from what this Court intended in *O'Rama*: "to maximize participation by counsel" (*O'Rama*, 78 NY2d at 278).

We disagree with defendant that requiring counsel to object to this particular deviation from the *O'Rama* procedure imposes an unreasonable burden on counsel due to the pressures of the situation and the risk that counsel will draw the ire of the court or the jury. While we do not discount the difficulty of raising a timely objection while under the pressures

that a jury trial entails, the preservation rule requires no less (see *Alcide*, 21 NY3d at 696).

“[T]hough it hardly needs restating, we underscore the desirability of adherence to the procedures outlined in *O’Rama*” (*Kisoon*, 8 NY3d at 135). The *O’Rama* procedure was designed to “maximize participation by counsel at a time when counsel’s input is most meaningful, i.e., before the court gives its formal response” (*O’Rama*, 78 NY2d at 278). Indeed, if counsel here had objected to the court’s deviation from the *O’Rama* procedure or had sought an opportunity to provide input outside the presence of the jury, and the court had refused, the court’s refusal would be error (see *People v Cook*, 85 NY2d 928, 930-931 [1995]). We merely reiterate, consistent with our precedent, that this particular deviation from the *O’Rama* procedure is not part of the narrow class of mode of proceedings errors for which preservation is not required.

In light of our holding that no mode of proceedings error has occurred on the face of this record, we do not address the People’s alternative contention that the Appellate Division erred in refusing to consider the resettled record.

Accordingly, the order of the Appellate Division should be reversed and the case remitted to the Appellate Division for consideration of the facts and issues raised but not determined on the appeal to that Court.

Chief Judge LIPPMAN (dissenting). A deliberating jury’s request for supplemental instruction or information we have often observed may well mark a trial’s turning point (see e.g. *People v Kisoon*, 8 NY3d 129, 134-135 [2007]; *People v Ciaccio*, 47 NY2d 431, 436 [1979]). For this reason, the law, both statutory and judge-made, places upon trial courts in receipt of post-submission jury inquiries of a substantive sort special non-waivable responsibilities in default of which an ensuing conviction will in this state, without more, be rendered infirm: the court must respond to the jury meaningfully, and preparatory to doing so must take steps to assure that the response given is the product of a process in which the defendant has had a full opportunity to participate with the assistance of counsel (CPL 310.30; *People v O’Rama*, 78 NY2d 270, 279-280 [1991]; and see *People v Silva*, 24 NY3d 294, 299 [2014]; *People v Alcide*, 21 NY3d 687, 692 [2013]). This appeal asks what process is minimally adequate to satisfy the latter, constitutionally grounded (see *United States v Robinson*, 560 F2d 507 [1977

en banc], *cert denied* 435 US 905 [1978]; *People v Ciaccio*, 47 NY2d at 436) requirement.

The majority has responded, purportedly under the compulsion of this Court's precedents, that a court discharges its "core" obligation to afford a defendant and his or her attorney meaningful notice of a substantive jury inquiry simply by reading the note verbatim in open court with the parties, counsel and the jury present. And, it is true that there are cases in which we have held that that is enough. But we have never, until today, said that it is always enough. That development is, in my view, a major and imprudent step, not only uncompelled by, but significantly at odds with our jurisprudence, which has, at least since our 1991 decision in *People v O'Rama* (78 NY2d 270 [1991]), been rooted in the principle that the notice of a substantive jury inquiry mandated by CPL 310.30 must, even if not given in strict accordance with a prescribed protocol, be notice "*calculated to maximize participation by counsel at a time when counsel's input is most meaningful, i.e., before the court gives its formal response*" (*O'Rama*, 78 NY2d at 278 [emphasis supplied]).

The majority's assertion that the *O'Rama* "goal of maximizing counsel's participation" (*id.* at 279) will invariably be met by the trial court's reading of the note in open court just prior to delivering its response, since the defendant and his attorney will at the instant of audition have "all the knowledge required to make an objection" (majority op at 162), betrays a serious misconception of what maximal participation by counsel entails at this uniquely crucial juncture of a criminal trial. The core obligation recognized by *O'Rama* is not that of enabling an objection, but of enabling counsel's full substantive participation, and to that end *O'Rama* prescribed not a one, but a four-step protocol to assure, without the need for an objection in the presence of the jury, counsel's inclusion in the process of shaping a meaningful response to the jury's query.

The procedure generally required by *O'Rama* was not a random, overwrought product of judicial imagination run amok, but one that long experience had shown to be ordinarily essential to the honor of a defendant's basic rights of presence, participation and representation at material stages of the trial; the identical procedure had been prescribed a decade before in *United States v Ronder* (639 F2d 931, 934 [2d Cir 1981]) as the "proper practice" to satisfy settled law that "messages from a jury should be disclosed to counsel and that counsel should be

afforded an opportunity to be heard before the trial judge responds” (*id.*). Integral to that “proper practice” is compliance with the instruction that the initial disclosure to counsel of the jury’s inquiry should take place out of the jury’s presence, after which, and still without the presence of the jury, “counsel should be afforded a full opportunity to suggest appropriate responses” (*O’Rama*, 78 NY2d at 278). And, *O’Rama* is clear that ordinarily “a full opportunity to suggest appropriate responses” is not afforded unless “the trial court . . . apprise[s] counsel of the substance of the responsive instruction it intends to give so that counsel can seek whatever modifications are deemed appropriate *before* the jury is exposed to the potentially harmful information” (*id.*). There is nothing in *O’Rama* to suggest, as the majority now posits, that these parts of the prescribed procedure are generally inessential to the satisfaction of the trial court’s “core” notice obligation. Were they utterly dispensable to the satisfaction of that duty, the Court would not have troubled to prescribe them.

It is true that *O’Rama* recognized that strict adherence to its notice protocol might not always be practicable or advisable and accordingly that trial courts possessed discretion to employ modified procedures “equally conducive to participation by defense counsel” (*id.* at 278). But this dispensation was made available only where such a departure was supported by “unique articulable circumstances” (*id.*). The majority fails to identify any “unique articulable circumstances” to support the presently challenged departure, and it is obvious that the truncated procedure employed by the trial court was not “equally conducive to participation by defense counsel” as the one prescribed in *O’Rama*.

The majority defends its dramatic paring of *O’Rama*’s core notice obligation by positing that, of the steps in the notice protocol, only the reading of the note to counsel is essential to counsel’s participation, at least to the extent of lodging an objection. But if all that was required to discharge the notice obligation imposed by CPL 310.30 and *O’Rama* was objection-enabling disclosure, *O’Rama* itself would have been decided differently, as would *Kisoon* and its companion case *People v Martin* (8 NY3d 129 [2007]). In each of those cases, counsel knew that there was a jury note the full text of which had not been disclosed and could have objected to the nondisclosure of the note’s full content (*see O’Rama*, 78 NY2d at 275; *Kisoon*, 8 NY3d at 132; *Martin*, 8 NY3d at 133). What these cases tell us,

then, is that objection-enabling notice is not enough to meet the trial court's core notice obligation when presented with a post-submission substantive jury inquiry. While counsel may be better able to frame an objection once he or she has heard a jury note read aloud, if counsel hears the note for the first time when the note is read to the jury and directly before the court's intended response, as was the case here, realistically all counsel is being offered is the opportunity to object in front of the jury, not to participate fully and substantively. Contrary to what appears to be the majority's basic premise, the relevant core objective of *O'Rama* is not to assure that counsel will be able to object, practically on the spur of the moment, to a court's imminent delivery of a supplemental jury instruction, the content and wording of which are as yet undisclosed, but to obviate the need for such a blind objection—particularly one in front of the jury seeming to telegraph the defendant's view that what the court is about to say may well be unfavorable to his case—by affording defense counsel, as a matter of essential nonwaivable process, notice “calculated to maximize [his or her] participation” on the client's behalf at what may well be the tipping point of the trial. The pertinent question, then, in assessing whether there has been an *O'Rama* mode of proceedings violation is precisely *not* whether counsel has had the opportunity to object, but whether counsel, *without having had to object*, has been afforded notice of the jury query designed to maximize his opportunity to propose and advocate on the record for a responsive instruction at once appropriate and minimally if at all prejudicial to his client's prospects for a favorable verdict.

Conceptually, of course, whether an error is deemed to compromise the basic structure of a trial and thus to qualify as one affecting the mode of proceedings cannot depend upon whether it involves a deviation as to which an objection is capable of being made. Mode of proceedings errors are by reason of their fundamental incompatibility with essential process nonwaivable (*see People v Patterson*, 39 NY2d 288, 295 [1976]). Neither the gravity of such error nor the consequently primary judicial obligation to avoid its commission is logically diminished or relieved by reason of the circumstance that a defendant is able to, but does not contemporaneously, protest its occurrence.

None of the cases upon which the majority relies is properly cited for the broad contrary proposition that a trial court's core

CPL 310.30 mode of proceedings notice obligation is necessarily discharged simply by reading a jury note aloud so as to enable an objection. In *People v Starling* (85 NY2d 509 [1995]), we held that there was no mode of proceedings error where “defense counsel was given notice of the contents of the jury notes *and had knowledge of the substance of the court’s intended response*—a verbatim rereading of the intent charge previously given on several occasions” (*id.* at 516 [emphasis supplied]). In *People v Ramirez* (15 NY3d 824 [2010]) as well, the conclusion that there had been no mode of proceedings error rested upon the circumstance that “defense counsel had notice of the contents of the note *and the court’s response*” (*id.* at 825-826 [emphasis supplied]). Similarly, in *People v Williams* (21 NY3d 932 [2013]), because it was objectively evident that the court would respond to the jury’s note requesting clarification of a legal term by simply reading back the portion of the previously conferenced charge defining the term, the court’s single reading of the note, in open court, to defense counsel and the jury, while involving an elision of the procedure outlined in *O’Rama*, was deemed sufficient to satisfy the statutory notice requirement and thus to remove the departure from the mode of proceedings rubric. And, in the last of the cases upon which the majority primarily relies, *People v Alcide* (21 NY3d 687 [2013]), all that was requested by the jury were specified readbacks and, as we noted, “the judge explained exactly how he was going to conduct the readbacks” (*id.* at 694).

These cases presented situations in which counsel knew what the court’s response would be and it was objectively evident that, although the inquiries were substantive, the responsive options were so limited as to render counsel’s participation in addressing them minimally useful.* This case is different. It is not one in which the jury requested a simple readback of a clearly specified portion of the trial record or of a previously conferenced charge, or one in which it was otherwise obvious

* The majority insists that this sentence reflects a proposed “rule” which it then attempts to state with great specificity (majority op at 161 n). To the extent that any rule is adverted to, however, it is that stated in *O’Rama*, namely, that where there are articulable circumstances to justify a deviation from the prescribed protocol and the deviation does not under the circumstances operate to abridge counsel’s opportunity to participate maximally, the departure will not stand in the way of concluding that the court met its core notice obligation (78 NY2d at 278). There is nothing unworkable about this rule; it is the rule that the Court has, until today, applied.

in advance of the court's response what that response would be. Nor, more importantly, was it a case in which the court's response was so dictated in style and substance by the jury's inquiry as to render counsel's participation in its formulation practically superfluous. Here, the jury notes seeking, among other things, clarification of the difference between first- and second-degree robbery and of whether the degree of injury "count[ed] towards [first] or [second] degree" (the jury note did not specify whether this reference was to robbery or assault or both) necessarily involved the court in an ambiguously framed discussion of substantive law that might have been approached and accomplished in numerous ways, some more benign to defendant than others. Especially given the lack of clarity in the jury's request, counsel's participation in the process of honing a meaningful response was not evidently superfluous and likely would have resulted in an instruction less muddled, incorrect and potentially prejudicial than the one the trial court extemporized on its own. Because the court, without articulable justification, departed from the *O'Rama* notice protocol, and in so doing failed to employ a procedure equally conducive to maximizing counsel's opportunity to participate in the formulation of the supplemental jury instruction—relegating counsel instead to a fleeting Hobson's choice between not participating at all and lodging an open court objection to the giving of a yet undisclosed supplemental charge about which no substantive critique could then have been made—it is plain that *O'Rama*'s core mandate of meaningful notice was not met. Certainly, this was not notice "calculated to maximize participation by counsel" (*O'Rama*, 78 NY2d at 278).

The majority expresses trepidation that treating the present species of *O'Rama* departure as a mode of proceedings error would not in the end maximize, but create a disincentive to participation by defense counsel, since freed by the mode of proceedings doctrine from the need to object in order to preserve an *O'Rama* claim for appellate review, counsel could and would sit silently and allow the court to err so as to assure a reversal on appeal in the event of a conviction. But apart from the lack of any empirical basis for the prediction that defense counsel generally would elect not to zealously represent their clients at trial in order to bank an appellate reversal years down the line, the majority's concern demonstrates a confusion over whose conduct the mode of proceedings doctrine is intended to regulate. It is not counsel's conduct that is the

primary concern of the doctrine, but the court's. The doctrine recognizes that it is the court, not counsel, that is best situated to assure that the correct procedure is followed when a note requesting instruction issues from a deliberating jury, and that when the court discharges its core obligations there will be no opportunity for gamesmanship of the sort feared.

The most effective way of both eliminating gamesmanship from, and assuring the full participation of counsel in, the critical phase of the trial initiated by a substantive post-submission jury inquiry is for appellate courts generally to demand scrupulous adherence to the not overly complex mode of proceeding prescribed in *O'Rama*. To the extent that we narrow the application of the mode of proceeding doctrine in this context, experience teaches that the price will be the toleration of a very serious species of error typically situated at the crux of a criminal trial—error which will predictably flourish in the ample shade of the preservation and harmless error doctrines. As the Appellate Division evidently understood, a dominant concern of this Court for the last 25 years has been to avoid such a degradation of essential process. Today's decisions, resting on a fairly obvious overreading of four fact-sensitive decisions to express a severe limitation of appellate oversight of the process following from a trial court's receipt of a substantive jury inquiry, lose sight of, and break with that jurisprudential context. And although the result of doing so in these cases may seem satisfying, there is good reason to fear that longitudinally this modern approach will not enhance, but impair the quality of the adversary process and the reliability of its outcome. For these reasons I dissent and would affirm the order of the Appellate Division.

Judges PIGOTT, ABDUS-SALAAM and STEIN concur; Chief Judge LIPPMAN dissents and votes to affirm in an opinion in which Judge RIVERA concurs.

Order reversed and case remitted to the Appellate Division, Second Department, for consideration of the facts and issues raised but not determined on the appeal to that Court.

[42 NE3d 688, 21 NYS3d 191]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CHRISTOPHER E. WALKER, Appellant.

Argued September 17, 2015; decided October 27, 2015

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered February 7, 2014. The Appellate Division affirmed a judgment of the Supreme Court, Monroe County (Joseph D. Valentino, J.), which had convicted defendant, upon a jury verdict, of manslaughter in the first degree.

People v Walker, 114 AD3d 1134, reversed.

HEADNOTE

Crimes — Instructions — Justification Defense — Initial Aggressor Exception — Supplemental Instruction in Defense-of-Another Scenario

In a murder prosecution arising after defendant stabbed and killed the victim while defending his brother during a fight between the victim, defendant's brother and defendant's girlfriend that allegedly started at the victim's home in defendant's absence, while the portions of the standard criminal jury instruction that the trial court read to the jury regarding the "initial aggressor exception" to the justification defense were accurate in themselves, the charge, taken as a whole, was confusing and misleading under the circumstances. The court did not go on to explain the manner in which the initial aggressor rule applies when a defendant intervenes in an ongoing struggle to protect a third party who the defendant reasonably believes is being unlawfully beaten. The jury should have been charged that, in the context of the case, the initial aggressor rule meant—in sum and substance—that, if defendant, as the intervenor, somehow initiated or participated in the initiation of the original struggle or reasonably should have known that his brother, as the person being defended, initiated the original conflict, then justification was not a defense. If defendant had nothing to do with the original conflict and had no reason to know who initiated the first conflict, then the defense was available. The failure to give such a supplemental instruction was not harmless because the evidence did not overwhelmingly demonstrate that defendant was involved in the initiation of the physical confrontation, that he was the first to use deadly physical force or that he had reason to know who initiated the original conflict.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Trial §§ 952, 957, 963, 1062, 1064.

CARMODY-WAIT 2d, Charge and Instruction to Jury
§§ 200:13, 200:64, 200:65.

LAFAYE, ET AL., CRIMINAL PROCEDURE (3d ed) § 24.8.

NY JUR 2d, Criminal Law: Procedure §§ 2729, 2769, 2770.

ANNOTATION REFERENCE

See ALR Index under Instructions to Jury; Justification or Excuse.

FIND SIMILAR CASES ON WESTLAW®

Database: NY-ORCS

Query: instruction /p justification /s initial /2 aggressor

POINTS OF COUNSEL

Phillips Lytle LLP, Buffalo (*Timothy W. Hoover* and *Patrick A. Sheldon* of counsel), and *Timothy P. Donaher*, Public Defender (*James Eckert* of counsel), for appellant. Supreme Court erred in charging the standard initial aggressor instruction without relating the charge to the facts of the case involving Christopher E. Walker's defense of another, thus charging the jury with an instruction that was confusing, was misleading, was an inaccurate statement of law, and was totally incomprehensible as applied to the facts. (*People v Medina*, 18 NY3d 98; *People v Russell*, 266 NY 147; *People v Umali*, 10 NY3d 417; *People v Andujas*, 79 NY2d 113; *People v Drake*, 7 NY3d 28; *People v Young*, 11 NY2d 274; *People v Goetz*, 68 NY2d 96; *People v Melendez*, 155 Misc 2d 196; *People v Lauderdale*, 295 AD2d 539; *People v Emmick*, 136 AD2d 892.)

Sandra Doorley, District Attorney, Rochester (*Geoffrey Kaeuper* of counsel), for respondent. The initial aggressor instruction was correct and defendant did not request that the court further marshal the evidence as to the initial aggressor issues. (*People v Chessman*, 54 NY2d 1016; *People v McWilliams*, 48 AD3d 1266, 10 NY3d 961; *People v Culhane*, 45 NY2d 757; *People v Melendez*, 155 Misc 2d 196; *People v Saunders*, 64 NY2d 665.)

OPINION OF THE COURT

STEIN, J.

On this appeal, defendant argues that the standard criminal jury instruction on the "initial aggressor exception" to the justification defense misstates the applicable law where defendant claimed that he intervened in an ongoing fight that began in his absence in order to shield a third party from an unlawful attack. We agree and, therefore, reverse.

I.

Defendant was charged in an indictment with murder in the second degree after stabbing and killing the victim during a fight between the victim, defendant's brother and defendant's girlfriend that allegedly started at the victim's home, in defendant's absence.¹ Defendant testified that he was at his own home when his former wife notified him that someone was beating his brother with a hammer at a house down the street. Defendant grabbed a kitchen knife and went to help his brother, who he found on the victim's porch. Defendant averred that he ran onto the victim's porch, and tried to break up the fight after he saw the victim—who was high on cocaine and drunk—hitting his brother in the head with a hammer. Defendant claimed that, when the victim turned to hit him and drew back the hammer as if to strike him again, defendant threw up his arm to stop the blow and then swung his arm around, stabbing the victim in the chest. After the victim jumped or fell from the porch, defendant grabbed the hammer and walked home with the others. Defendant's brother later wrapped the knife and hammer in defendant's bloody shirt and placed them under the stairs leading to defendant's front porch, where the police found them.

Subsequent testing revealed the victim's DNA on the handle of the hammer. In addition, several eyewitnesses testified at trial that defendant's brother and girlfriend were arguing with the victim, that the three of them began physically fighting with each other, and that, shortly afterward, defendant ran onto the victim's porch, leading to a larger scuffle at the end of which the victim staggered and fell off his porch. According to these witnesses, after the three kicked the victim, defendant walked back to his house with blood on his shirt and a knife in his hand.

At the charge conference, Supreme Court indicated that it would, at defendant's request, give a charge on the justification defense. Defendant then specifically requested that the court read the standard criminal jury instruction on justification, but exclude the portion that addressed the initial aggressor rule, because defendant did not "stand in the shoes of anybody initially involved in the fight." Alternatively, defendant argued that, if an initial aggressor charge "were to be used at all[, it]

1. Defendant's brother and girlfriend were charged with manslaughter in the first degree.

should indicate the first person to use deadly force, not offensive force.” In contrast, the People asserted that there was “a fair view of the evidence to show that . . . defendant [was] acting in concert with” his brother and girlfriend, which “makes him accountable as an initial aggressor.”

The court reserved decision on the issue, eventually ruling at a subsequent charge conference that the initial aggressor charge, as then set forth in the criminal jury instructions, was proper because it was supported by a reasonable view of the evidence. The court stated, however, that it would add language, based upon *People v McWilliams* (48 AD3d 1266 [4th Dept 2008], *lv denied* 10 NY3d 961 [2008]), that where a “defendant initiated non-deadly force and [was] met with deadly physical force[,] the defendant may be justified in the use of deadly physical force. In that case the term initial aggressor would be properly defined as the first person in the encounter to use deadly physical force.” Defendant reiterated his request that any language regarding the initial aggressor rule be omitted entirely because he was “concerned as to whether or not there would be confusion as to which person . . . they need to look at in terms of being an initial aggressor”; the court again denied that request.

In summation, the prosecutor argued that the evidence demonstrated that defendant “brought this butcher knife . . . to a verbal argument that he had no business being a part of.” Although thereby acknowledging that defendant arrived after the argument had commenced, the prosecutor described the conflict in a manner that made it appear as though defendant was acting in concert with his brother and his girlfriend from the beginning, characterizing the “circumstances of this argument or confrontation” as “a three on one. Three people [20] years younger than [the victim] on his own porch accosting him.” The prosecutor repeatedly stated that “no matter how hard [the victim] tried, *they* just wouldn’t leave” (emphasis added), “[the victim] was just trying to get *them* to leave” (emphasis added), and that “[i]f the defendant would have just left the porch that night, [the victim] would have lived to see another day.” The prosecutor also argued that the evidence showed that defendant “and his accomplices” brought the hammer to the victim’s house, and asked the jury to consider “[h]ow was it that the defendant and his accomplices came on to [the victim’s] porch?”

Thereafter, the court charged the jury on defendant’s justification defense, explaining that “[u]nder the law a person

may use deadly physical force upon another individual when and to the extent that he reasonably believes it to be necessary to defend himself or someone else from . . . the use or imminent use of deadly physical force by such individual.” The court further charged the jury on the initial aggressor rule, stating, as relevant here,

“Notwithstanding those rules that I just explained, the defendant would not be justified in using deadly physical force . . . if he was the initial aggressor. Initial aggressor means the person who first attacks or threatens to attack . . . Where there is a reasonable view of the evidence that the defendant initiates non-deadly offensive force and is met with deadly physical force, the defendant may be justified in the use of defensive deadly physical force and . . . in such cases the term initial aggressor is properly defined as the first person in the encounter to use deadly physical force . . . A person who reasonably believes that another is about to use deadly physical force upon him need not wait until he is struck or wounded. He may in such circumstances be the first to use deadly physical force so long as he reasonably believed it was about to be used against him . . . Arguing, using abusive language, calling a person names or the like unaccompanied by physical threats or acts does not make a person an initial aggressor.”

The jury acquitted defendant of second-degree murder, but found him guilty of manslaughter in the first degree. Supreme Court subsequently sentenced defendant to 25 years in prison, to be followed by five years of postrelease supervision. The Appellate Division unanimously affirmed the judgment of conviction (114 AD3d 1134 [4th Dept 2014]), and a Judge of this Court granted leave to appeal (23 NY3d 1044 [2014]).

II.

It is well settled that, “[i]n evaluating a challenged jury instruction, we view the charge as a whole in order to determine whether a claimed deficiency in the jury charge requires reversal” (*People v Medina*, 18 NY3d 98, 104 [2011]; see *People v Umali*, 10 NY3d 417, 426-427 [2008], *cert denied* 556 US 1110 [2009]). Reversal is appropriate—even if the standard criminal jury instruction is given—when the charge,

“read . . . as a whole against the background of the evidence produced at the trial,” likely confused the jury regarding the correct rules to be applied in arriving at a decision (*People v Andujas*, 79 NY2d 113, 118 [1992]; see *Umali*, 10 NY3d at 427). When the defense of justification is raised in cases involving deadly force, “the People must demonstrate beyond a reasonable doubt that the defendant did not believe deadly force was necessary or that a reasonable person in the same situation would not have perceived that deadly force was necessary” (*Umali*, 10 NY3d at 425). As the trial court properly recognized, the justification defense is not available to an initial aggressor except in circumstances not present here (see Penal Law § 35.15 [1] [b]). However, while the portions of the charge that the court read to the jury regarding the initial aggressor rule were accurate in themselves, defendant correctly argues that the charge, taken as a whole, was confusing and misleading under the circumstances of this case because the court did not go on to explain the manner in which the initial aggressor rule applies when a defendant intervenes in an ongoing struggle to protect a third party who the defendant reasonably believes is being unlawfully beaten.

Traditionally, this Court applied an “alter ego rule” to such scenarios, holding that in cases of simple, third-degree assault, an intervenor stood in the shoes of the third party being assaulted and intervened at his own peril that he was acting under a mistaken belief of fact regarding the lawfulness of the beating (see *People v Young*, 11 NY2d 274, 275 [1962]). The Court reasoned that the right of a person to defend another was not greater than the right of the third party to defend himself or herself (see *id.*).² The Court’s decision in *Young* was criticized extensively. In particular, commentators argued that

“a rule of law that an intervenor acts at his own peril, especially if the decision is widely publicized, may well deter conduct that would actually assist the process of law enforcement because of the potential intervenor’s fear that he may be mistaken

2. The People’s argument for giving the initial aggressor charge here mirrored the traditional view of the law. They argued that the charge was required because the evidence showed that defendant was “acting in concert with” his brother and girlfriend, thereby “mak[ing] him accountable as an initial aggressor”—that is, that he stood in the shoes of the two others involved in the fight, even if he was not initially present, because he was acting in concert with them.

about the facts and therefore may subject himself to criminal liability” (see Recent Developments, *Intervenor Held Liable for Assault Despite Reasonable Belief That His Conduct Protected Another from Unlawful Harm*, 63 Colum L Rev 160, 168 [1963]).

Shortly after *Young* was decided, the Penal Law was revised. The Commentaries to Penal Law § 35.15—written by the executive director of the Commission on Revision of the Penal Law and Criminal Code and counsel to the Commission (see McKinney’s Cons Laws of NY, Book 39 at iii-iv [1967 ed])—indicate that the revisions legislatively overruled *Young*, stating that if the case “were to be litigated under the revised provision, a different result would be required” (Richard G. Denzer & Peter McQuillan, Practice Commentary, McKinney’s Cons Laws of NY, Book 39, Penal Law § 35.15 at 63 [1967 ed]). Indeed, as then-Justice Theodore T. Jones recognized in *People v Melendez* (155 Misc 2d 196, 201 [Sup Ct, Kings County 1992]), the Penal Law was further revised to permit a justification defense to be considered even if the defendant had operated under a mistake of fact regarding the innocence of the person being defended, providing that “[a] person is not relieved of criminal liability for conduct because he engages in such conduct under a mistaken belief of fact, unless . . . [s]uch factual mistake is of a kind that supports a defense of justification as defined in article [35] of this chapter” (Penal Law § 15.20 [1] [c] [emphasis added]).

The court in *Melendez* held that a charge on justification in the context of the defense of another that is “[t]otally lacking in . . . any guidelines as to the law where the person protected is a wrongdoer or initial aggressor . . . [is] confusing and misleading” (155 Misc 2d at 197-198). Regarding the potential confusion over the term “initial aggressor” in the context of defense of another, *Melendez* explained that

“[o]rdinarily, the ‘good samaritan’ intervenor would be the initiator of the contact between himself/herself and the person struggling with the person being defended. Thus, if ‘initial aggressor’ referred to the contact between [the] intervenor and the person struggling with the person being defended, the justification of another defense would rarely, if ever, be available.

“The only conclusion is that ‘initial aggressor’ refers to the initial conflict between the person being defended and the person with whom the third party is struggling” (*id.* at 201).

This potential confusion over the term “initial aggressor” is precisely the concern that defense counsel referenced when objecting to the charge here. We agree with the conclusion reached in *Melendez*, that the standard charge is misleading unless a supplemental charge is given on the meaning of “initial aggressor” in the defense-of-another scenario (*see id.* at 201-202). Thus, the jury should have been charged that, in the context of this case, the initial aggressor rule means—in sum and substance—that if defendant, as

“the intervenor[,] somehow initiated or participated in the initiation of the original struggle *or* reasonably should have known that [his brother, as] the person being defended[,] initiated the original conflict, then justification is not a defense . . . If [defendant] had nothing to do with [the] original conflict *and* had no reason to know who initiated the first conflict, then the defense is available” (*id.* at 201).

The failure to give such a supplemental instruction here was not harmless because the evidence does not overwhelmingly demonstrate that defendant was involved in the initiation of the physical confrontation, that he was the first to use deadly physical force, or that he had reason to know who initiated the original conflict (*cf. People v Petty*, 7 NY3d 277, 285-286 [2006]). In short, due to the omission of the supplemental instruction regarding the intervenor who innocently comes to the defense of another who he or she believes is being assaulted, “the instruction did not adequately convey the meaning of [‘initial aggressor’] to the jury and instead created a great likelihood of confusion such that the degree of precision required for a jury charge was not met” (*Medina*, 18 NY3d at 104).

Accordingly, the order of the Appellate Division should be reversed and the indictment dismissed, with leave to the People, if they be so advised, to resubmit the charge of manslaughter in the first degree to a new grand jury (*see People v Bradley*, 88 NY2d 901, 904 [1996]).

Chief Judge LIPPMAN and Judges PIGOTT, RIVERA, ABDUS-SALAAM and FAHEY concur.

Order reversed and indictment dismissed, with leave to the People, if they be so advised, to resubmit the charge of manslaughter in the first degree to a new grand jury.

[42 NE3d 676, 21 NYS3d 179]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RAYMOND DENSON, Appellant.

Argued September 9, 2015; decided October 27, 2015

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered February 18, 2014. The Appellate Division affirmed a judgment of the Supreme Court, New York County (James A. Yates, J.), which had convicted defendant, after a nonjury trial, of attempted kidnapping in the second degree and endangering the welfare of a child.

People v Denson, 114 AD3d 543, affirmed.

HEADNOTES

Crimes — Proof of Prior Convictions — Prior Sex Crime Probative of Intent in Attempted Kidnapping Prosecution

1. In a prosecution for attempted second-degree kidnapping (Penal Law §§ 110.00, 135.20) and a related crime premised upon defendant's interactions with a 10-year-old victim that culminated in an invitation to his apartment, it could not be said that the trial court abused its discretion as a matter of law in admitting evidence of defendant's prior sodomy conviction, arising from his sexual abuse of his stepdaughter, to prove his intent on the attempted kidnapping charge. The People met their initial burden to demonstrate that defendant's prior conviction was relevant to his intent through their expert witness, who testified at the hearing that defendant's behavior toward the victim closely resembled his pattern of behavior toward his stepdaughter and demonstrated that he was attempting to be alone with the victim and to groom her for a sexual relationship. The reason defendant invited the victim to his apartment was important in determining whether he intended to abduct her, that is, to prevent her liberation by secreting or holding her there (Penal Law §§ 135.00 [2] [a]; 135.20). Turning to the court's discretionary evaluation of whether the evidence's probative value exceeded its potential for prejudice, defendant's expert agreed that there were similarities between defendant's two victims and that his behavior demonstrated, among other things, the "possibility of repetition." Importantly, upon questioning by the court, defendant's expert testified that there were "differences between simple propensity and repetition per se" and that one could infer "the probability of what [defendant's] motivation is and the probability of what his goals are" from the repetition of his behavior.

Crimes — Kidnapping — Attempt — Legal Sufficiency of Evidence — Intent

2. In a prosecution for attempted second-degree kidnapping (Penal Law §§ 110.00, 135.20) and a related crime premised upon defendant's interactions with a 10-year-old victim that culminated in an invitation to his apartment, legally sufficient evidence existed that defendant had the requisite

intent to abduct the victim, that is, to prevent her liberation by secreting or holding her in a place where she was not likely to be found (Penal Law §§ 135.00 [2] [a]; 135.20). The victim's mother testified that she did not know defendant's name or where defendant's apartment was located until after she contacted the police, and defendant did not dispute that his apartment was a place where the victim was unlikely to be found. Moreover, defendant engaged in increasingly bizarre and frightening behavior toward the victim, and his prior sodomy conviction, arising from his sexual abuse of his stepdaughter, was probative of his intent in inviting the victim to his apartment. Finally, the People's expert opined at trial that, with his invitation, defendant was attempting to isolate the victim in order to groom her for a sexual encounter.

Crimes — Kidnapping — Attempt — Legal Sufficiency of Evidence — Actus Reus

3. In a prosecution for attempted second-degree kidnapping (Penal Law §§ 110.00, 135.20) and a related crime premised upon defendant's interactions with a 10-year-old victim that culminated in an invitation to his apartment, legally sufficient evidence existed that defendant came dangerously near to abducting the victim. Focusing on the steps defendant took to accomplish the kidnapping, rather than on the actions or disposition of the particular child victim, a rational factfinder could have concluded that, in attempting to complete the crime through the child victim's acquiescence (Penal Law §§ 135.00 [1] [b]; [2] [a]; 135.20), defendant had moved beyond mere preparation to the point that his conduct was potentially and immediately dangerous. The People presented evidence that defendant repeatedly tried to convince the victim to accompany him on various outings as she walked home alone from school. Defendant arrived at the victim's apartment unannounced and uninvited and asked if she was ready to go to the movies. He was dressed up for the occasion; he somehow had circumvented the buzzer system used to gain access to the apartments inside the building; and the hardware store where he worked, which was located in the building, was closed. Five days later, defendant approached the victim while she was alone in the building's stairwell, came within two or three feet of her and attempted to give her the keys to his apartment. When she refused, he asked her three times if she was sure, and then told her to meet him later if she changed her mind. Though the steps remaining to accomplish the kidnapping were within the victim's control, completion of a crime must not be solely within the power of the defendant for the evidence of an attempt to be legally sufficient.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

- AM JUR 2d, Abduction and Kidnapping §§ 22, 29, 49-51;
AM JUR 2d, Criminal Law §§ 154, 155; AM JUR 2d,
Evidence §§ 197, 348.
McKINNEY'S, Penal Law §§ 110.00, 135.00 (1) (b); (2) (a);
135.20.
NY JUR 2d, Criminal Law: Procedure §§ 2030, 2034; NY
JUR 2d, Criminal Law: Substantive Principles and Of-
fenses §§ 315, 742, 743, 747.

ANNOTATION REFERENCE

See ALR Index under Abduction and Kidnapping; Attempt to Commit Crime; Intent or Motive; Prior Offenses and Convictions.

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Database: NY-ORCS

Query: attempted /2 kidnap! /4 second & prior /2 conviction

POINTS OF COUNSEL

Richard M. Greenberg, Office of the Appellate Defender, New York City (Kerry S. Jamieson of counsel), for appellant. I. Because Raymond Denson's actions did not come "dangerously close" to completing kidnapping in the second degree, and the prosecution failed to present any proof that Mr. Denson intended to confine the complainant in his apartment, the evidence at trial was legally insufficient and Mr. Denson's conviction should be reversed. (*People v Contes*, 60 NY2d 620; *Jackson v Virginia*, 443 US 307; *People v Naradzay*, 11 NY3d 460; *People v Mahboubian*, 74 NY2d 174; *People v Bracey*, 41 NY2d 296; *People v Rizzo*, 246 NY 334; *People v Mills*, 178 NY 274; *People v Cruz*, 296 AD2d 22; *People v Sanoguet*, 157 Misc 2d 771; *People v Acosta*, 80 NY2d 665.) II. The trial court abused its discretion by allowing Raymond Denson's more than 20-year-old prior conviction into evidence, where the prior crime did not involve abduction and was therefore irrelevant to whether Mr. Denson intended to kidnap the complainant. (*People v Resek*, 3 NY3d 385; *People v Henson*, 33 NY2d 63; *People v Molineux*, 168 NY 264; *People v Ventimiglia*, 52 NY2d 350; *People v Alvino*, 71 NY2d 233; *People v Bradley*, 20 NY3d 128; *People v Cass*, 18 NY3d 553; *People v Allweiss*, 48 NY2d 40; *People v Geaslen*, 54 NY2d 510; *People v Cassidy*, 40 NY2d 763.) III. Where the prosecution alleged that Raymond Denson intended to have a sexual encounter with the complainant when he offered her the keys to his apartment, her confinement in the apartment would have been merely incidental to the sexual assault, and Mr. Denson's conviction for attempted kidnapping should be dismissed under the "merger doctrine." (*People v Levy*, 15 NY2d 159; *People v Lombardi*, 20 NY2d 266; *People v Cassidy*, 40 NY2d 763; *People v Bussey*, 19 NY3d 231; *People v Dolan*, 40 NY2d 763; *People v Usher*, 40 NY2d 763; *People v Cain*, 76 NY2d 119; *People v Blair*, 25 AD3d 1018;

People v James, 114 AD3d 1202; *People v Geaslen*, 54 NY2d 510.) IV. Raymond Denson's statements to police should have been suppressed where the police did not initially inform Mr. Denson of his *Miranda* rights, and continued to question him after he invoked his right to remain silent, rendering the later *Miranda* waiver invalid. (*Miranda v Arizona*, 384 US 436; *Michigan v Mosley*, 423 US 96; *People v Gary*, 31 NY2d 68; *People v Wander*, 47 NY2d 724; *People v Grant*, 45 NY2d 366; *People v Ferro*, 63 NY2d 316; *People v Kinnard*, 62 NY2d 910; *People v Dow*, 129 AD2d 535; *People v Jenkins*, 85 AD2d 265; *People v Logan*, 19 AD3d 939.)

Cyrus R. Vance, Jr., District Attorney, New York City (Christopher P. Marinelli and Martin J. Foncello of counsel), for respondent. I. Defendant's guilt of attempted kidnapping in the second degree was proved beyond a reasonable doubt by evidence that defendant, a pedophile with a fixation on the victim, tried to pressure the minor child to go to his apartment. (*People v Bleakley*, 69 NY2d 490; *People v Danielson*, 9 NY3d 342; *People v Ford*, 66 NY2d 428; *People v Ramos*, 19 NY3d 133; *People v Steinberg*, 170 AD2d 50, 79 NY2d 673; *People v Castillo*, 47 NY2d 270; *People v Jackson*, 65 NY2d 265; *People v Gerard*, 50 NY2d 392; *People v Naradzay*, 11 NY3d 460; *People v Mahboubian*, 74 NY2d 174.) II. The Appellate Division correctly ruled that the "merger doctrine" was inapplicable to the attempted kidnapping conviction. (*People v Gonzalez*, 80 NY2d 146; *People v Lombardi*, 20 NY2d 266; *People v Bussey*, 19 NY3d 231; *People v Rios*, 60 NY2d 764; *People v Perez*, 93 AD3d 1032; *People v Cruz*, 296 AD2d 22, 99 NY2d 534; *People v Grey*, 224 AD2d 318.) III. As the Appellate Division correctly ruled, admission of the evidence of defendant's prior sex offense was permissible given the unique circumstances of this case. (*People v Ingram*, 71 NY2d 474; *People v Alvino*, 71 NY2d 233; *People v Schwartzman*, 24 NY2d 241; *Matter of Brandon*, 55 NY2d 206; *People v Morris*, 21 NY3d 588; *People v Muhammad*, 17 NY3d 532; *People v Keindl*, 68 NY2d 410; *People v Moreno*, 70 NY2d 403; *People v Hernandez*, 27 AD3d 229; *People v Medina*, 93 AD3d 459.) IV. The hearing record supports the Appellate Division's ruling that defendant's post-*Miranda* statements were admissible. (*People v Cruz*, 90 NY2d 961; *People v Scott*, 86 NY2d 864; *People v Nunez*, 80 NY2d 858; *People v Huffman*, 41 NY2d 29; *People v Yukl*, 25 NY2d 585; *Stansbury v California*, 511 US 318; *Michigan v Mosley*, 423 US 96; *People v Kinnard*, 62 NY2d 910; *People v Gary*, 31 NY2d 68; *People v Pierre*, 309 AD2d 570.)

OPINION OF THE COURT

FAHEY, J.

Defendant was convicted after a nonjury trial of, *inter alia*, attempted kidnapping in the second degree. On this appeal, we are asked to decide, among other issues, whether the trial court erred in admitting evidence of defendant's prior conviction of a sex crime committed against a child, as relevant to his intent in the current offense. Defendant also challenges the legal sufficiency of the People's evidence. We hold that the trial court did not err in admitting evidence of defendant's prior conviction. We further hold that the evidence is legally sufficient to sustain the conviction of attempted kidnapping in the second degree.

I.

The victim of the offense was a 10-year-old girl who lived with her mother in an apartment located above the hardware store where defendant worked. The evidence at trial established that defendant often exchanged greetings with the victim and her mother as they entered or exited the building. When the victim began junior high school in 1998, her mother allowed her to walk alone to and from the school, which was close to their apartment building. During this time, defendant frequently approached the victim as she walked home from school, and he repeatedly offered to take her out for ice cream, or to take her ice skating or to the movies. The victim felt "bothered" by defendant's conduct and rejected his requests. The victim estimated that defendant made offers to take her out between 30 and 40 times.

On August 29, 1998, when the victim was standing outside the hardware store while her mother was trying to hail a taxi, defendant approached them. The victim and her mother testified that defendant said that the victim was upset with him because he had not taken her ice skating or to the movies. Defendant then stated that he wanted to take the victim to see a film.

On September 6, 1998, the victim heard a knock at the door to her apartment. Her mother was in the shower. She saw no one at the door when she looked through the peephole, but when she opened the door slightly, defendant was standing there. The victim testified that defendant was "dressed up" in a red, "[c]rushed velvet or felt" outfit with red shoes, a "beret hat and a black shirt." He asked the victim whether she was ready

to go to the movies. The victim said that she was not. Defendant asked her if she was busy that week, and the victim said that she was. She then closed the door. This incident took place on a Sunday, when the hardware store was closed. Furthermore, a buzzer access system prevented unauthorized entry to the apartment building, and defendant had not buzzed the victim's apartment to gain entry.

On September 11, 1998, the victim came home from school alone as usual, entered the apartment building, and began walking up the stairs. She then saw defendant exiting a door to the basement, which the hardware store used for storage. The victim said "hello" to defendant. Defendant, who was standing two to three feet away from the victim, said, "Here's the keys to my apartment," and he began to take the chain holding his keys from around his neck. The victim refused to take the keys, and defendant asked her three times if she was sure. When she repeated her refusals, defendant told her to meet him downstairs later that day if she changed her mind and promised he would get her some ice cream. The victim ran upstairs to her mother's apartment, feeling frightened. Later that day, she told her mother what had happened, and her mother contacted the police. A grand jury subsequently indicted defendant on charges of attempted kidnapping in the second degree (Penal Law §§ 110.00, 135.20) and endangering the welfare of a child (§ 260.10 [1]).

Before trial, the People sought to introduce evidence of defendant's 1978 sodomy conviction (*see* former Penal Law § 130.50), arising from his sexual abuse of his stepdaughter, as evidence of his intent with respect to the charge of attempted kidnapping in the second degree. Defendant opposed the People's application. The court held a lengthy *Ventimiglia* hearing (*see People v Ventimiglia*, 52 NY2d 350, 361-362 [1981]), during which it heard the testimony of an expert who testified on behalf of the People, as well as an expert who testified on behalf of defendant. After the hearing, the trial court held that the evidence of defendant's prior conviction was admissible to prove defendant's intent.

During the ensuing nonjury trial, the victim and her mother testified with respect to the foregoing facts leading to defendant's arrest. Defendant's estranged wife and her niece testified regarding defendant's sexual abuse of his stepdaughter. Defendant's estranged wife testified that defendant frequently took his stepdaughter on outings in which he would dress up

in a “dress suit” with a fur “round rim hat,” and he would require his stepdaughter to dress up as well. The same expert witnesses who testified at the *Ventimiglia* hearing also provided testimony at trial.

The court found defendant guilty as charged. A divided Appellate Division affirmed (*People v Denson*, 114 AD3d 543 [1st Dept 2014]), and one of the dissenting Justices granted defendant leave to appeal to this Court. We now affirm.

II.

[1] Defendant contends that the trial court erred in allowing the People to introduce evidence of his 1978 sodomy conviction as evidence of his intent in the present offense. We disagree.

“[T]he familiar *Molineux* rule states that evidence of a defendant’s uncharged crimes or prior misconduct is not admissible if it cannot logically be connected to some specific material issue in the case, and tends only to demonstrate the defendant’s propensity to commit the crime charged” (*People v Cass*, 18 NY3d 553, 559 [2012]). Where, however, “the proffered *Molineux* evidence is relevant to some material fact in the case, other than the defendant’s propensity to commit the crime charged, it is not to be excluded merely because it shows that the defendant had committed other crimes” (*id.* at 560). Although it is not an exhaustive list, evidence of a defendant’s prior bad acts may be admitted to prove the crime charged when the evidence tends to establish:

“(1) motive; (2) intent; (3) the absence of mistake or accident; (4) a common scheme or plan embracing the commission of two or more crimes so related to each other that proof of one tends to establish the others; and (5) the identity of the person charged with the commission of the crime on trial” (*id.*, citing *People v Molineux*, 168 NY 264, 293 [1901]).

Here, the People asserted that defendant’s prior conviction was relevant to establish his intent with respect to the charge of attempted kidnapping in the second degree. In assessing whether evidence of a defendant’s prior criminal acts should be admitted at trial, a trial court is required to engage in a two-step analysis. First, the trial court must determine whether the People have “identif[ied] some material issue, other than the defendant’s criminal propensity, to which the evidence is directly relevant” (*Cass*, 18 NY3d at 560). If the People have

met that burden, the trial court must then “weigh the evidence’s probative value against its potential for undue prejudice to the defendant” (*id.*; see *People v Alvino*, 71 NY2d 233, 242 [1987]). “If the evidence has substantial probative value and is directly relevant to the purpose—other than to show criminal propensity—for which it is offered, the probative value of the evidence outweighs the danger of prejudice and the court may admit the evidence” (*Cass*, 18 NY3d at 560).

Inasmuch as defendant was charged with attempted kidnapping in the second degree, the People were required to prove that he intended to “abduct” the victim, i.e., that he intended to prevent the victim’s liberation “by either (a) secreting or holding [her] in a place where [she was] not likely to be found, or (b) using or threatening to use deadly physical force” (Penal Law §§ 135.00 [2]; 135.20). The People proceeded on the theory that defendant intended to prevent the victim’s liberation by secreting or holding her in a place where she was not likely to be found (see § 135.00 [2] [a]). Thus, the only portion of Penal Law § 135.00 (2) that applies here is paragraph (a).

During the *Ventimiglia* hearing, the People’s expert witness testified that defendant’s behavior toward the victim in this case closely resembled his pattern of behavior toward his stepdaughter. The fact that defendant had frequently taken his stepdaughter out on “dates” akin to the outings defendant proposed to the victim here suggested to the People’s expert that defendant had groomed his stepdaughter for sexual abuse and that defendant viewed his relationship with his stepdaughter as similar to an appropriate romantic relationship with an adult. The People’s expert opined that defendant was reliving his relationship with his stepdaughter through his behavior toward the victim in this case, and that defendant’s behavior toward the victim demonstrated that he was attempting to be alone with her and to groom her for a sexual relationship. The People’s expert testified that defendant’s prior offense was “critical” in understanding his intent in the current offense.

The People met their initial burden to demonstrate that defendant’s prior conviction was relevant to his intent. Defendant’s actions of attempting to give the victim the keys to his apartment were equivocal, and this was therefore not a case where defendant’s intent could be easily inferred from his conduct (see *Alvino*, 71 NY2d at 242). Rather, the reason defendant invited the victim to his apartment was important in determining whether he had the requisite intent, i.e., whether

he intended to prevent the victim's liberation by secreting or holding her there (*see* Penal Law § 135.00 [2] [a]).

Where, as here, the People have demonstrated that they wish to introduce the *Molineux* evidence for “a proper nonpropensity purpose, the decision whether to admit evidence of defendant's prior bad acts rests upon the trial court's discretionary balancing of probative value and unfair prejudice” (*People v Dorm*, 12 NY3d 16, 19 [2009]; *see Cass*, 18 NY3d at 560; *Alvino*, 71 NY2d at 242).

During the *Ventimiglia* hearing, defendant's expert agreed that “repetition is a component featured to some perpetrators,” and that the features that suggest repetition with respect to sex offenders were, among others, “[s]imilarity in physical characteristics of victim type” and “similar predator behaviors.” Defendant's expert further agreed that there were similarities between defendant's two victims, and that his behavior demonstrated “some evidence of some ritualized aspect of his functioning” and the “possibility of repetition.” She also agreed with the People's expert that defendant displayed “high fixation.”

Importantly, upon questioning by the court during the *Ventimiglia* hearing about whether there were differences between the repetitious behavior of some sex offenders and a lay person's notion of propensity evidence, defendant's expert agreed that there were “differences between simple propensity and repetition per se.” Furthermore, when asked by the court whether one could “draw an inference of intent from the theory of repetition,” defendant's expert testified that one could infer “the probability of what [defendant's] motivation is and the probability of what his goals are” from the repetition of his behavior in the two offenses.

A trial court is “in the best position to evaluate the evidence” when determining whether, in the court's discretion, the probative value of the proffered *Molineux* evidence exceeds the potential for prejudice to the defendant (*People v Morris*, 21 NY3d 588, 597 [2013]). “[T]he trial court's decision to admit the evidence may not be disturbed simply because a contrary determination could have been made or would have been reasonable. Rather, it must constitute an abuse of discretion as a matter of law” (*id.*).

In its written decision and order, the trial court held that the evidence presented by the People demonstrated “more than

criminal propensity, but . . . an actual link between the two offenses.” The court noted that the victims of the two offenses “so closely resemble[d] each other . . . as to be virtual twins,” and that “[c]ertain distinctive patterns of behavior employed by the [d]efendant on each occasion match to an extraordinary degree.” Moreover, the court concluded that the expert testimony at the *Ventimiglia* hearing demonstrated that “[d]efendant was not merely re-offending, but in fact suffered from a fixated fantasy” and had “transferred his fixation and fantasy from victim number one to victim number two and [was] now re-living the previous sexual encounter.” Based on that expert testimony, the court concluded that “the [d]efendant’s fixation with the first victim is proof of his intent with regard to the second.” The court stated that it was aware of the potential for prejudice, but was “satisfied that, with careful limitations and adequate caution to the jury, some facts from the earlier case can be utilized to show a unique connection between the two offenses” and that expert testimony would help a jury “to understand what factors should be considered, or discounted, in assessing those facts and that connection.” Under the circumstances presented here, we cannot say that the trial court abused its discretion as a matter of law in admitting evidence of defendant’s prior conviction.

III.

[2, 3] Defendant further contends that his conviction of attempted kidnapping in the second degree is not supported by legally sufficient evidence because the People failed to prove that he had the requisite intent and that he came dangerously near to completing the crime. We disagree.

A verdict is legally sufficient when, viewing the facts in the light most favorable to the prosecution, “‘there is a valid line of reasoning and permissible inferences from which a rational jury could have found the elements of the crime proved beyond a reasonable doubt’ ” (*People v Danielson*, 9 NY3d 342, 349 [2007], quoting *People v Acosta*, 80 NY2d 665, 672 [1993]). A sufficiency review requires the Court to “marshal competent facts most favorable to the People and determine whether, as a matter of law, a jury could logically conclude that the People sustained its burden of proof” (*Danielson*, 9 NY3d at 349).

[2] With respect to proof of defendant’s intent, as noted, the People were required to prove that defendant intended to prevent the victim’s liberation by secreting or holding her in a

place where she was not likely to be found (*see* Penal Law §§ 135.00 [2] [a]; 135.20). Defendant's intent may be inferred from his actions and the surrounding circumstances (*see People v Bracey*, 41 NY2d 296, 301 [1977], *rearg denied* 41 NY2d 1010 [1977]). This Court has recognized that "circumstantial evidence of intent is often essential to prosecution for an attempted crime because . . . such evidence may be the only way of proving intent in the typical case of criminal attempt" (*People v Lamont*, 25 NY3d 315, 319 [2015] [internal quotation marks omitted]).

The victim's mother testified that she did not know defendant's name or where defendant's apartment was located until after she contacted the police, and defendant does not dispute that his apartment was a place where the victim was unlikely to be found. The remaining requirements to satisfy the intent element may be inferred from defendant's conduct (*see Bracey*, 41 NY2d at 301). Defendant engaged in increasingly bizarre and frightening behavior toward the 10-year-old victim, culminating in an invitation to his apartment, a nonpublic place. Moreover, defendant's prior conviction was probative of his intent in inviting the victim to his apartment. The People's expert opined at trial that with his invitation, defendant was attempting to isolate the victim in order to groom her for a sexual encounter. Viewing the facts in the light most favorable to the People, we conclude that there was a valid line of reasoning and permissible inferences from which a reasonable factfinder could have concluded that defendant had the requisite intent (*see Danielson*, 9 NY3d at 349).

[3] With respect to defendant's contention concerning the actus reus element of the crime, this Court has held that for a defendant to be guilty of an attempted crime, the defendant "must have engaged in conduct that came dangerously near commission of the completed crime" (*People v Naradzay*, 11 NY3d 460, 466 [2008] [internal quotation marks omitted], *rearg dismissed* 17 NY3d 840 [2011]). The defendant's conduct "must have passed the stage of mere intent or mere preparation to commit a crime," but the defendant need not have taken "the final step necessary" to accomplish the crime in order to be guilty of an attempted crime (*People v Mahboubian*, 74 NY2d 174, 189-190 [1989]; *see Naradzay*, 11 NY3d at 466).

The People were required to prove that defendant came dangerously near to abducting the victim (*see* Penal Law § 135.20). As we have acknowledged, the statutory definition of

“abduct” is complex (see *People v Leonard*, 19 NY3d 323, 326-327 [2012]). Penal Law § 135.00 (2) provides, as relevant here, that to “abduct” means “to restrain a person with intent to prevent [her] liberation by . . . secreting or holding [her] in a place where [she] is not likely to be found.” Section 135.00 (1) in turn provides that to “restrain” means

“to restrict a person’s movements intentionally and unlawfully in such manner as to interfere substantially with [her] liberty by moving [her] from one place to another, or by confining [her] either in the place where the restriction commences or in a place to which [she] has been moved, without consent and with knowledge that the restriction is unlawful.”

The statute further provides that a victim may be “so moved or confined ‘without consent’ when such is accomplished by,” as relevant here, “any means whatever, including acquiescence of the victim, if [she] is a child less than [16] years old . . . and the parent, guardian or other person or institution having lawful control or custody of [her] has not acquiesced in the movement or confinement” (§ 135.00 [1] [b]).

The victim’s mother testified at trial that she did not give defendant permission to take the victim anywhere. Defendant contends, however, that assuming he did not plan to accompany the victim to his apartment, there were multiple steps she would have had to take before she would have arrived there, such as learning his address and obtaining transportation to his apartment. Defendant therefore asserts that the People failed to prove that he was dangerously near to completing the crime. Defendant further contends that he did not come dangerously close to obtaining the victim’s acquiescence because the evidence demonstrated that she was “virtually impervious” to his repeated invitations and would never have agreed to go to his apartment.

These contentions amount to an assertion that where a defendant attempts to kidnap a child through that child’s acquiescence (and not through the use of force, intimidation, or deception), whether the defendant has come dangerously near to accomplishing the crime is dependent upon the sophistication, resistance, or other particular characteristics of the child victim. Our analysis with respect to whether a defendant has come dangerously near to completing a crime, however, has focused primarily on the conduct of the defendant, not his or

her intended victim (see e.g. *People v Clyde*, 18 NY3d 145, 155 [2011], *cert denied* 566 US —, 132 S Ct 1921 [2012]; *People v Cano*, 12 NY3d 876, 877 [2009], *rearg denied* 13 NY3d 766 [2009]; *Naradzay*, 11 NY3d at 467-468; *Mahboubian*, 74 NY2d at 191-192). The same principle applies here. Thus, in determining whether the People established by legally sufficient evidence that defendant came dangerously near to completing the kidnapping, we focus on the steps defendant took to accomplish the crime, rather than on the actions or disposition of the particular child victim, and whether defendant's conduct was "potentially and immediately dangerous" (*Mahboubian*, 74 NY2d at 191).

The People presented evidence that defendant repeatedly tried to convince the victim to accompany him on various outings, asking her 30 to 40 times as she walked home alone from school. Defendant arrived at the victim's apartment unannounced and uninvited and asked her if she was ready to go to the movies. He was dressed up for the occasion, and he somehow had circumvented the buzzer system used to gain access to the apartments inside the building. Moreover, on that occasion, defendant showed up at the victim's door on a Sunday, when the hardware store was closed. Five days later, defendant approached the victim while she was alone in the stairwell of the building, came within two or three feet of her, and attempted to give her the keys to his apartment. When she refused, he asked her three times if she was sure, and then told her to meet him later if she changed her mind and that he would give her ice cream. Viewing the evidence in the light most favorable to the People, a rational factfinder reasonably could conclude that defendant "crossed 'the boundary where preparation ripens into punishable conduct'" (*Naradzay*, 11 NY3d at 467, quoting *Mahboubian*, 74 NY2d at 190).

Defendant further contends that because the steps remaining to accomplish the crime were within the control of the victim, and not within his own control, the evidence is not legally sufficient to establish an attempt. Defendant relies on cases where this Court noted that the conduct of the defendants "had gone to the extent of placing it in their power to commit the offense unless interrupted" (*Mahboubian*, 74 NY2d at 191 [internal quotation marks omitted]; see *Naradzay*, 11 NY3d at 467; *Acosta*, 80 NY2d at 671). While that is a factor to consider in determining whether a defendant has come dangerously near to completing the crime, we have not held that for

evidence of an attempt to be legally sufficient, completion of the crime *must* be solely within the power of the defendant.

Indeed, under defendant's rationale, a defendant could not be guilty of an attempted crime where it was impossible for the defendant to complete the crime through actions within his or her own power. This is contrary to well-settled law (*see* Penal Law § 110.10). Applying defendant's rationale to an attempted kidnapping where, as here, the defendant attempts to complete the crime through the acquiescence of a child victim, a defendant could never be guilty of attempt because the crime could not be completed without the acquiescence of the victim. That is, although the victim could not legally consent (*see* Penal Law § 135.00 [1] [b]), defendant argues, in essence, that the People were required to prove that she would have consented in order to show that defendant attempted to kidnap her. We therefore reject defendant's rationale. Rather, under the circumstances of this case, a rational factfinder could conclude that defendant had moved beyond mere preparation to the point that his conduct was potentially and immediately dangerous (*see Naradzay*, 11 NY3d at 467; *Mahboubian*, 74 NY2d at 190-191). We therefore conclude that the evidence is legally sufficient to establish defendant's guilt of attempted kidnapping in the second degree.

IV.

Defendant's remaining contentions do not warrant reversal. Defendant was not charged with any other crime with which the kidnapping charge could have merged, and therefore his contention that his kidnapping conviction should be dismissed pursuant to the merger doctrine is without merit (*see People v Rios*, 60 NY2d 764, 766 [1983]). Defendant's further contention that the trial court should have granted his motion to suppress statements he made to law enforcement involves mixed questions of law and fact, and because there is record support for the determinations made below, those determinations are beyond the review power of this Court (*see People v Cruz*, 90 NY2d 961, 962 [1997]; *People v Harrison*, 82 NY2d 693, 694 [1993]; *People v Nunez*, 80 NY2d 858, 860 [1992]).

Accordingly, the order of the Appellate Division should be affirmed.

PIGOTT, J. (dissenting). Defendant here is in obvious need of psychological help; but, under the circumstances of this case,

he is not guilty of attempted kidnapping in the second degree (Penal Law § 135.20).

The incident that forms the basis of defendant's attempted kidnapping conviction is laid out in the majority's telling: on September 11, 1998, after offering the victim keys to his apartment and her refusal, he told her to meet him later that day if she changed her mind and he would buy her some ice cream—the latter being the same type of offer he had made to her some 30 to 40 times previously.

Tired of this conduct, her mother contacted the police. Three days later, a detective contacted the defendant's employer and advised him of the mother's complaint. Defendant's boss told the detective he would send defendant to the precinct when he came to work. Defendant willingly went to the precinct and spoke with police about the incidents. As a result, he was charged with endangering the welfare of a child (Penal Law § 260.10 [1]) and harassment (Penal Law § 240.26 [3]). The misdemeanor information recited the facts as described in the majority's opinion.

In September 1998, he was arraigned on those charges and pleaded not guilty, rejecting an offer to plead to the charges. Later, in an undated indictment in 1999, defendant's harassment charge became an attempted kidnapping in the second degree charge, with no change in the underlying facts. The only thing that had changed was that the People learned that, some 20 years earlier, defendant had been convicted of sexually abusing his eight-year-old stepdaughter.

Prior to defendant's trial, the People made a *Ventimiglia/Molineux* application to permit them to introduce evidence of that prior sex conviction. The court initially denied that application. Having failed to prevail on their original application, the People then made an in limine proffer, this time including an expert affidavit. The expert opined that defendant, a convicted child molester, was "trying to relive his sexual pattern" that he had engaged in with his stepdaughter, some 20 years earlier. The court, acknowledging the highly prejudicial value of this testimony, permitted the People's introduction of this testimony to demonstrate that the instant offense, as described by the expert, was "part of a fixation, a repetitive pattern . . . that results not from merely re-offending, but from actually re-living as a result of transference."

In my view, the court abused its discretion in allowing in evidence of the prior conviction. While, as the expert suggested,

it may have shown that defendant was a convicted child molester who was engaging in pattern behavior similar to that of his prior sex conviction, it was not relevant in a case where no sex crime was involved or charged. Nor can it be relevant to show that defendant intended to kidnap the child, as his prior conviction did not include any kidnapping.

Further, viewing the evidence in the light most favorable to the People, they failed to establish an attempted kidnapping beyond a reasonable doubt. “A person is guilty of kidnapping in the second degree when he abducts another person” (Penal Law § 135.20). As relevant here, “abduct,” as defined by Penal Law § 135.00 (2), “means to restrain a person with intent to prevent his liberation by . . . (a) secreting or holding him in a place where he is not likely to be found.” In turn, restrain means

“to restrict a person’s movements intentionally and unlawfully in such manner as to interfere substantially with his liberty by moving him from one place to another, or by confining him either in the place where the restriction commences or in a place to which he has been moved, without consent and with knowledge that the restriction is unlawful” (Penal Law § 135.00 [1]).

“A person is guilty of an attempt to commit a crime when, with intent to commit a crime, he engages in conduct which tends to effect the commission of such crime” (Penal Law § 110.00). Conduct does not rise to the level of attempt unless the defendant’s actions come “dangerously close” or “very near” to accomplishing the intended crime (*People v Mahboubian*, 74 NY2d 174, 190-191 [1989]; *People v Naradzay*, 11 NY3d 460, 466 [2008]).

The People here were required to prove that defendant came dangerously close to “abducting” the child. A simple offer of apartment keys clearly is not enough to show an intent to restrain a child.

In short, defendant offered the child his apartment keys, she did not accept them and she walked away. While defendant clearly engaged in alarming behavior with this child prior to and during this encounter, his actions, even viewing them in a light most favorable to the People, did not come “dangerously close” to an attempted kidnapping. The result—we had a person in need of psychological treatment in one of our prisons without it.

For these reasons, I dissent and would vote to reverse.

Chief Judge LIPPMAN and Judges RIVERA, ABDUS-SALAAM and
STEIN concur; Judge PIGOTT dissents in an opinion.

Order affirmed.

[42 NE3d 693, 21 NYS3d 196]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANTONIO MARTINEZ, Appellant.

Argued October 14, 2015; decided November 19, 2015

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered November 12, 2013. The Appellate Division affirmed a judgment, as amended upon resentencing, of the Supreme Court, Bronx County (Darcel D. Clark, J.), which had convicted defendant, upon a jury verdict, of rape in the first degree, sexual abuse in the first degree, sexual misconduct, and endangering the welfare of a child and sentenced him to an aggregate term of 10 to 20 years' imprisonment.

People v Martinez, 111 AD3d 430, affirmed.

HEADNOTE

Crimes — Sentence — Due Process — Imposition after Trial of Harsher Sentence than Rejected Plea Offer — Presumption of Vindictive Sentencing Inapplicable

A presumption of vindictive sentencing—applicable under the Due Process Clause of the New York State Constitution where a defendant successfully appeals an initial conviction and is re-tried, convicted and given a greater sentence than that imposed after the initial conviction—does not apply when a defendant rejects a plea offer, proceeds to trial for the first time and is given a harsher sentence than the plea offer. Thus, in a prosecution arising from defendant's sexual abuse of a six-year-old child, defendant's sentencing comported with due process where he rejected a plea offer of 10 years' probation for second-degree rape and, after being tried and convicted by a jury of first-degree rape and related crimes, was sentenced to 10 to 20 years' imprisonment. The policy concerns underlying the presumption—that criminal defendants should not be penalized for exercising their right to appeal—are not implicated in the rejected plea offer context. Given that the quid pro quo of the bargaining process will almost necessarily involve offers to moderate sentences that ordinarily would be greater, it is also to be anticipated that sentences handed out after trial may be more severe than those proposed in connection with a plea. Here, the court warned defendant before he rejected the plea offer that he would not receive as lenient a sentence should he be found guilty after trial, and the court imposed a lawful sentence based upon defendant's and the victim's sentencing statements and the heinous nature of the crimes. Additionally, the plea offer would have required defendant to plead guilty to a class D felony, whereas defendant was convicted after trial of a class B violent felony offense for which the court could not have legally imposed the probationary sentence offered with respect to the plea, and defendant's rejection of the plea offer required the victim to testify at trial.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Criminal Law §§ 371, 636-637, 644, 646, 790, 796, 806, 812, 818; AM JUR 2d, Federal Courts § 81.
CARMODY-WAIT 2d, Pleas and Plea Bargaining § 182:36; CARMODY-WAIT 2d, Exemption from Prosecution by Reason of Previous Prosecution § 185:55; CARMODY-WAIT 2d, Sentencing Procedures §§ 203:4, 203:9-203:10, 203:49, 203:82, 203:89, 203:212-203:13.
LAFAYE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 21.2, 21.5, 26.4, 26.8.
NY JUR 2d, Criminal Law: Procedure §§ 1497, 1513, 1528, 1960, 2893-2894, 2919, 2928, 3474, 3479-3480, 3591.

ANNOTATION REFERENCE

Propriety of sentencing judge's imposition of harsher sentence than offered in connection with plea bargain rejected or withdrawn plea by defendant—state cases. 11 ALR6th 237.

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POINTS OF COUNSEL

Robert S. Dean, Center for Appellate Litigation, New York City (David J. Klem of counsel), for appellant. By failing to provide a basis for the grossly disparate 20-year prison term imposed after trial, the sentencing court failed to overcome the presumption of vindictiveness that arose when the pretrial offer was probation. (*Bordenkircher v Hayes*, 434 US 357; *North Carolina v Pearce*, 395 US 711; *People v Miller*, 65 NY2d 502; *People v Granello*, 18 NY2d 823; *People v Picciotti*, 4 NY2d 340; *Wasman v United States*, 468 US 559; *United States v Jones*, 997 F2d 1475; *United States v Hutchings*, 757 F2d 11; *United States v Frost*, 914 F2d 756; *Hess v United States*, 496 F2d 936.)

Robert T. Johnson, District Attorney, Bronx (Jordan K. Hummel, Joseph N. Ferdenzi and Karen Swiger of counsel), for respondent. No presumption of vindictiveness applied to defendant's fair and proper sentence where he rejected a plea offer and was convicted after a jury trial; if any presumption did

apply, it was rebutted by the sentencing court's explanation of the sentence on the record. (*People v Van Pelt*, 76 NY2d 156; *North Carolina v Pearce*, 395 US 711; *People v Young*, 94 NY2d 171; *People v Miller*, 65 NY2d 502; *Alabama v Smith*, 490 US 794; *People v Angona*, 119 AD3d 1406; *People v Robinson*, 72 AD3d 1277, 15 NY3d 809; *People v Patterson*, 106 AD2d 520; *People v Pena*, 50 NY2d 400; *Williams v New York*, 337 US 241.)

OPINION OF THE COURT

Chief Judge LIPPMAN.

We are asked to decide whether a defendant's sentencing comports with due process where he rejects a plea offer of 10 years' probation for a single crime and, after being tried and convicted on multiple charges, is sentenced to 10 to 20 years' imprisonment. Because a presumption of vindictive sentencing does not apply to the circumstances presented here, we affirm the order of the Appellate Division.

Defendant was charged with rape in the first degree, course of sexual conduct against a child in the first degree, sexual abuse in the first degree, sexual misconduct, and endangering the welfare of a child for committing acts against his neighbor's six-year-old daughter multiple times between May 1998 and August 1999. After raping her, according to the victim, defendant told her, "if you tell anyone, I will kill your parents." In 2007, the victim revealed to her mother what defendant had done and defendant was arrested.

Before trial, the People offered defendant a plea to second-degree rape with a sentence of 10 years' probation. In cautioning defendant about rejecting the plea, the court emphasized that "these allegations are very, very serious . . . [Defendant] faces exposure to 25 years in prison . . . [and] he's not going to see the likes of [10 years' probation] from this [c]ourt if he's convicted." Stressing that the offer "should be given some careful, careful consideration," the court remarked that accepting the plea "would spare the witness or the victim to have to testify," and "[i]f you blow this trial, you are going to prison . . . [f]or how long . . . will be determined by what comes back, if the jury convicts you." Defendant rejected the plea offer and was found guilty of rape in the first degree, sexual abuse in the first degree, sexual misconduct, and endangering the welfare of a child.

At sentencing, the victim spoke about the abuse and described how defendant's actions had changed her life. When

asked if he wanted to say anything, defendant only stated that the victim was “acting like an actress and I would like proof submitted.”

Before imposing the sentence, the court noted that defendant’s statement “clearly doesn’t make me want to give him any leniency . . . I was the [c]ourt that presided over the trial, I heard the testimony and the evidence at the trial, and I am basing my sentence solely on what the evidence was and what I am legally allowed to do.” The court also acknowledged the numerous letters of support for defendant. Defendant was sentenced to an aggregate term of imprisonment of 10 to 20 years.

Under the Due Process Clause of the New York State Constitution, a presumption of vindictiveness applies where a defendant successfully appeals an initial conviction, and is re-tried, convicted, and given a greater sentence than that imposed after the initial conviction (*see People v Young*, 94 NY2d 171, 176 [1999]; *People v Van Pelt*, 76 NY2d 156, 160-161 [1990]; *People v Miller*, 65 NY2d 502, 508 [1985], *cert denied* 474 US 951 [1985]).

“[C]riminal defendants should not be penalized for exercising their right to appeal” (*Young*, 94 NY2d at 176). After a new trial, the sentencing court must give affirmative reasons “concerning identifiable conduct on the part of the defendant occurring after the time of the original sentencing proceeding” to justify a higher sentence (*Van Pelt*, 76 NY2d at 159 [emphasis omitted], quoting *North Carolina v Pearce*, 395 US 711, 726 [1969]).

In *Van Pelt*, the defendant successfully appealed his trial conviction and a different judge imposed a higher sentence after the defendant was convicted upon re-trial. This Court held that the enhanced sentence “offend[ed] State constitutional due process protections” because the judge offered no change in circumstances “occurring subsequent to the first sentencing, sufficient to overcome the presumption of institutional ‘vindictiveness’ ” (76 NY2d at 158).

In *Miller*, the defendant’s original lenient sentence, which was vacated after a successful appeal from his conviction after a guilty plea, was negotiated in exchange for sparing the victim from testifying—a “legitimate and reasoned basis” for granting leniency, and a benefit the defendant relinquished when he proceeded to trial after his appeal (*see* 65 NY2d at 508-509).

By contrast, the same policy concerns are not implicated when a defendant rejects a plea offer, proceeds to trial for the first time, and is given a harsher sentence than the plea offer. “Given that the *quid pro quo* of the bargaining process will almost necessarily involve offers to moderate sentences that ordinarily would be greater, it is also to be anticipated that sentences handed out after trial may be more severe than those proposed in connection with a plea” (*People v Pena*, 50 NY2d 400, 412 [1980] [citations omitted]). In *Pena*, this Court concluded that the defendant was not punished by the imposition of the lawful, but greater, sentence received after rejecting a lenient plea offer and proceeding to trial.

Here, after hearing the court’s warning that he would not receive such leniency should he be found guilty, defendant rejected the plea offer and proceeded to trial. Supreme Court imposed a lawful sentence, based upon defendant’s remorseless statement at the sentencing hearing, the heinous nature of the crimes, and the victim’s sentencing statement. Furthermore, the plea offer would have required defendant to plead guilty to a class D felony, whereas defendant was convicted after trial of a class B violent felony offense for which the court could not have legally imposed the probationary sentence offered with respect to the plea. Defendant’s rejection of the plea offer also required the victim to testify about the sexual abuse at trial, a factor this Court has recognized as a legitimate basis for the imposition of a more severe sentence after trial than that which the defendant would have received upon a plea of guilty (*see Miller*, 65 NY2d at 509). Had the presumption of vindictiveness applied to this case, these would constitute legitimate and reasoned bases for the more severe sentence imposed (*see Miller*, 65 NY2d at 508-509).

Accordingly, the order of the Appellate Division should be affirmed.

PIGOTT, J. (dissenting). In my view, an appearance of judicial vindictiveness arises when a trial judge is aware of an unsuccessful plea discussion and, after trial, the same judge sentences the defendant to a jail term that is significantly harsher than that offered in the plea. Regardless of how one feels about the plea offer or the ultimate sentence after trial, an explanation of the disparity is required. Without it, a conclusion that defendant is being punished for exercising his or her right to a trial is ineluctable and reflects badly on the court. Therefore, I dissent.

Defendant was charged with rape in the first degree, first-degree course of sexual conduct against a child and lesser charges relating to his criminal actions—serious charges indeed. However, during the two years that the case was awaiting trial, the prosecution repeatedly offered a disposition of no prison time. Indeed, the prosecutor put before the trial court an offer of probation in return for a plea of guilty to rape in the second degree. The court expressed no objection to such a resolution at that time. Defendant asked for time to consider the offer, but eventually rejected it.

Following conviction, and at the time of original sentencing, the victim made an impact statement and the prosecution asked that the maximum sentence be imposed by the court. Defendant was accompanied by numerous family and friends at sentencing, and presented over 40 letters of support detailing his life and accomplishments. He had no criminal history and the presentence report was noted by the court to be very favorable to him. Before imposing sentence, the court, stating that no sentence could “erase [the victim’s] pain” and hoping that she could “find comfort and closure,” imposed the maximum sentence of 20 years.

Following reversal of his sentence for reasons not germane to this discussion, defense counsel argued prior to resentencing that, given the plea offers of probation in this case, any sentence even close to the maximum term would be a gross disparity and call into question whether defendant was being punished for exercising his right to a trial. Nevertheless, the court imposed the most severe sentence permitted. It noted that it had originally imposed what it “felt was the appropriate sentence,” but did not comment on why a sentence of probation before trial became a maximum sentence of imprisonment afterwards.

It goes without saying that plea bargaining is part of our criminal justice system (*Bordenkircher v Hayes*, 434 US 357 [1978]). And we have said that during the bargaining process, the State may encourage a guilty plea by offering certain benefits, such as reduced exposure to the potential maximum sentence otherwise available, notwithstanding the fact that this has the effect of discouraging a defendant’s assertion of his right to a trial (see *People v Pena*, 50 NY2d 400 [1980]). It follows that the fact that a sentence imposed after trial is greater than that offered during a plea negotiation is no clear indication that the defendant is being punished for asserting

his right to proceed to trial. “Given that the quid pro quo of the bargaining process will almost necessarily involve offers to moderate sentences that ordinarily would be greater, it is also to be anticipated that sentences handed out after trial may be more severe than those proposed in connection with a plea” (*Pena*, 50 NY2d at 412 [emphasis and citations omitted]). However, it is equally true that if a defendant refuses to plead guilty and goes to trial, retaliation or vindictiveness may play no role in sentencing following a conviction (see *Corbitt v New Jersey*, 439 US 212 [1978]). The conventional concerns in sentencing, which include the considerations of deterrence, rehabilitation, retribution, and isolation, must be the factors weighed when sentence is imposed (see *People v Suitte*, 90 AD2d 80 [2d Dept 1982]).

The “presumption of vindictiveness” of a sentence arose out of the United States Supreme Court case *North Carolina v Pearce* (395 US 711 [1969]). There the defendant, Pearce, was convicted in a North Carolina court of assault with intent to rape and sentenced to serve 12 to 15 years in prison; in a companion case, the defendant, Rice, pleaded guilty to four charges of burglary and was sentenced in an Alabama court to serve a total of 10 years. After having served several years, Pearce was granted a new trial because a confession used against him was held to have been obtained in violation of his constitutional right not to be compelled to be a witness against himself; Rice’s conviction was set aside because, although he was indigent, he had not been provided with a court-appointed lawyer at the time he made his guilty plea. Both were re-tried and again convicted. Rice’s sentence was increased to 25 years, and no credit was given for time he had previously served; Pearce was sentenced to eight years which, when added to the time he had already served, amounted to a longer sentence than originally imposed. Because in neither case did the record contain any justification for the increased sentence, the United States Supreme Court reversed the sentences as being unconstitutionally vindictive.

This Court adopted the *Pearce* presumption in cases where a defendant is successful on appeal and after a retrial receives a much greater sentence than his original one (see *People v Van Pelt*, 76 NY2d 156 [1990]). The majority chooses to use the distinction between a retrial following a successful appeal and a mere offer followed by a trial to distinguish this case. But to me, this makes no sense. The issue is vindictiveness, not procedural routes.

New York appellate courts have routinely reduced sentences in cases in which the disparity between the plea offer and the imposed sentence was great. For example, in *People v Brown* (70 AD2d 505, 505-506 [1st Dept 1979]), the Court reduced a sentence where there was a disparity between the plea offer of $3\frac{1}{3}$ to 10 years and imposed sentence of 8 to 24 years. The Court found the sentence “create[d] the appearance that the defendant was being punished for proceeding to verdict, rather than receiving merely the sentence which his crime and record justified” (*id.*). In *People v Cosme* (203 AD2d 375 [2d Dept 1994]), the Court reduced a sentence to 15 years to life because of the disparity between plea offer of 8 years to life and imposed sentence of 25 years to life. While those Courts may have done so through their interest of justice jurisdiction, I suggest that this Court’s authority—as a matter of law—can, has and should be used to require an explanation in cases such as the one before us.

The difference between the sentences in this case is glaring. A court cannot claim to be surprised by testimony in a rape case that has been pending before it since the time of its indictment. There is no showing in this record that the sexual assault, serious as it was, merited a choice between letting the alleged perpetrator walk the streets following a sentence of probation or 20 years in jail. An explanation, hopefully a reasonable one, is necessary. Had the court indicated the basis for the increased sentence, this Court may have considered this information sufficient to render the sentence “non-vindictive.” With a ten to twentyfold increase in sentence, the sentencing court should “at a minimum state on the record the additional facts which emerged . . . that changed the court’s viewpoint on sentencing, and how those matters factored into the court’s decision” (*Longley v State*, 902 So 2d 925, 929 [Fla Dist Ct App 2005]).

For these reasons, I would reverse the imposition of the sentence and remit the matter to the trial court for resentencing, this time with an explanation for the disparity, if any.

Judges RIVERA, ABDUS-SALAAM, STEIN and FAHEY concur; Judge PIGOTT dissents in an opinion.

Order affirmed.

[42 NE3d 670, 21 NYS3d 173]

JOHN TIPALDO, Respondent, v CHRISTOPHER LYNN, as Commissioner of the Department of Transportation for the City of New York, et al., Appellants.

Argued September 16, 2015; decided October 22, 2015

SUMMARY

APPEAL, by permission of the Court of Appeals, from a judgment of the Supreme Court, New York County (Barbara Jaffe, J.), entered February 24, 2014. The Supreme Court, among other things, awarded plaintiff damages in back pay, with interest, and directed defendants to promote plaintiff to the Assistant Commissioner title at a specified annual salary. The appeal brings up for review two prior nonfinal orders of the Appellate Division of the Supreme Court in the First Judicial Department, entered February 28, 2008 and August 24, 2010. The February 2008 order (1) reversed, on the law, an order of that Supreme Court (Marilyn Shafer, J.; op 2006 NY Slip Op 30746[U] [2006]), which had granted defendants' motion for summary judgment dismissing the complaint, denied plaintiff's cross motion for partial summary judgment on the issue of liability and dismissed the complaint; (2) denied defendants' motion; (3) granted plaintiff's cross motion; and (4) remanded the matter to Supreme Court for a determination of damages. The August 2010 order modified, on the law, an order of that Supreme Court (Edward H. Lehner, J.), which had, after a nonjury trial, awarded plaintiff damages in back pay, without interest. The modification consisted of ordering defendants to reinstate plaintiff to the same position held by him before the retaliatory personnel action, or to an equivalent position, and remanding the matter to Supreme Court to recalculate the damages award in accordance with the Appellate Division's August 2010 order. The Appellate Division affirmed the order as modified.

Tipaldo v Lynn, 48 AD3d 361, affirmed.

Tipaldo v Lynn, 76 AD3d 477, affirmed.

HEADNOTES

Labor — Whistleblower Law — Good Faith Effort to Report to Appointing Authority

1. In an action commenced pursuant to Civil Service Law § 75-b, the state whistleblower statute, the court must use discretion in determining whether the overall actions of the plaintiff employee constituted a good faith effort to

first report the alleged misconduct to the “appointing authority” as required by section 75-b (2) (b), giving attention to the employee’s practical inability to do so in cases where the appointing authority is the one engaging in the alleged misconduct. Thus, in an action challenging retaliatory personnel action taken against plaintiff city employee after he reported that his defendant superiors—the “appointing authorities” under the statute—awarded a contract to an acquaintance in violation of the city’s public bidding rules, an overall view of plaintiff’s actions demonstrated good faith compliance with the statutory reporting requirement where he reported the misconduct to his immediate supervisors and thereafter to the Inspector General. Under the particular circumstances, strict compliance with the reporting requirement of section 75-b (2) (b) would not have served the purpose of the statute. Plaintiff believed that defendants were on notice of the alleged misconduct based on his and other employees’ expression of concern about the contract award and refusal to approve it, and after defendants’ subsequent solicitation of bids followed by the issuance of a backdated memorandum claiming that the process needed to be expedited. Additionally, in view of the requirement—set forth in a mayoral executive order and plaintiff’s employee handbook—that employees disclose misconduct to the Inspector General directly and without undue delay or face possible termination of employment, it could not be said that plaintiff lacked “good faith” in reporting to his immediate supervisors only one or two business days before reporting to the Inspector General.

**Interest — Prejudgment Interest — Retaliatory Personnel Action
Claim under Whistleblower Law**

2. Prejudgment interest is recoverable in actions commenced pursuant to Civil Service Law § 75-b, the state whistleblower statute, as an overall view of the comprehensive package of remedies listed in Labor Law § 740 (5), including undefined “compensation” and “remuneration,” demonstrates that the legislature sought to make whistleblowing plaintiffs whole, and awarding prejudgment interest would serve that purpose. Accordingly, in an action challenging retaliatory personnel action taken against plaintiff city employee after he reported that his defendant superiors engaged in misconduct, plaintiff was properly awarded back pay with interest. Under Labor Law § 740 (5), applicable to public employees not subject to an arbitration or collective bargaining agreement, the remedies available to employees who bring claims for retaliation include “the compensation for lost wages, benefits and other remuneration” (Labor Law § 740 [5] [d]). The remedies in Labor Law § 740 (5) are not as limited as in statutes where prejudgment interest has been deemed unavailable, and section 740 (5) provides courts with discretion to determine what is considered “compensation” and “remuneration.” Here, by demoting plaintiff rather than awarding him a planned promotion and significant raise, defendants deprived him of access to what would have been a higher salary for a period of over 10 years. Awarding back pay with interest would serve to make plaintiff whole.

RESEARCH REFERENCES

By the Publisher’s Editorial Staff

AM JUR 2d, Interest and Usury § 39; AM JUR 2d, Public Officers and Employees §§ 168, 190; AM JUR 2d, Wrongful Discharge §§ 112, 115, 116, 119, 121.
McKINNEY’S, Civil Service Law § 75-b (2) (b); Labor Law § 740 (5).

NY JUR 2d, Civil Servants and Other Public Officers and Employees §§ 534–536; NY JUR 2d, Damages § 118; NY JUR 2d, Employment Relations §§ 590–597.

ANNOTATION REFERENCE

What constitutes activity of employee protected under state whistleblower protection statute covering employee's "report," "disclosure," "notification," or the like of wrongdoing—sufficiency of report. 10 ALR6th 531.

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POINTS OF COUNSEL

Zachary W. Carter, Corporation Counsel, New York City (*Marta Ross, Richard Dearing and Larry A. Sonnenshein* of counsel), for appellants. I. John Tipaldo's Civil Service Law § 75-b (2) claim must be dismissed because he failed to satisfy the statute's mandatory internal reporting requirement. (*Matter of State of New York v John S.*, 23 NY3d 326; *State of New York v Patricia II.*, 6 NY3d 160; *Matter of Jewett v Luau-Nyack Corp.*, 31 NY2d 298; *Eaton v New York City Conciliation & Appeals Bd.*, 56 NY2d 340; *Matter of Pokoik v Department of Health Servs., County of Suffolk*, 72 NY2d 708; *Matter of Greenberg v New York City Tr. Auth.*, 7 NY3d 139; *Krohn v New York City Police Dept.*, 2 NY3d 329; *Sharapata v Town of Islip*, 56 NY2d 332; *Brohman v New York Convention Ctr. Operating Corp.*, 293 AD2d 299; *Hastie v State Univ. of N.Y. [SUNY] Coll. of Agric. & Tech. at Morrisville*, 74 AD3d 1547, 16 NY3d 701.) II. In the alternative, the award of predecision interest to John Tipaldo should be vacated, because Civil Service Law § 75-b does not authorize that relief. (*Scaduto v Restaurant Assoc. Indus.*, 180 AD2d 458; *Collette v St. Luke's Roosevelt Hosp.*, 132 F Supp 2d 256; *Matter of Aurecchione v New York State Div. of Human Rights*, 98 NY2d 21; *Matter of Bello v Roswell Park Cancer Inst.*, 5 NY3d 170; *Manufacturer's & Traders Trust Co. v Reliance Ins. Co.*, 8 NY3d 583; *Metwaly v International Bus. Machs. Corp.*, 97 AD3d 514; *Miller v Nassau County Civ. Serv. Commn.*, 85 AD3d 745, 18 NY3d 804; *Matter of Greenberg v New York City Tr. Auth.*, 7 NY3d 139.)

Pollack, Pollack, Isaac & DeCicco, LLP, New York City (*Lewis Rosenberg and Brian J. Isaac* of counsel), and *Ginarte O'Dwyer*

Gonzalez Gallardo & Winograd, LLP, for respondent. I. Plaintiff met the reporting requirements and had standing to bring this action; the Appellate Division properly interpreted the statute. (*O'Neill v New York Univ.*, 97 AD3d 199; *Weiner v McGraw-Hill, Inc.*, 57 NY2d 458; *Gilberg v Barbieri*, 53 NY2d 285; *Schwartz v Public Adm'r of County of Bronx*, 24 NY2d 65; *B. R. DeWitt, Inc. v Hall*, 19 NY2d 141; *Kaufman v Eli Lilly & Co.*, 65 NY2d 449; *Gramatan Home Invs. Corp. v Lopez*, 46 NY2d 481; *D'Arata v New York Cent. Mut. Fire Ins. Co.*, 76 NY2d 659; *Auqui v Seven Thirty One Ltd. Partnership*, 22 NY3d 246; *Ryan v New York Tel. Co.*, 62 NY2d 494.) II. The City of New York is estopped from claiming that John Tipaldo's adherence to its rules constitutes a failure to comply with a statute designed to protect him from retaliation. (*Bender v New York City Health & Hosps. Corp.*, 38 NY2d 662; *Matter of New York State Med. Transporters Assn. v Perales*, 77 NY2d 126; *Ceely v New York City Health & Hosps. Corp.*, 162 AD2d 492; *Andersen v Long Is. R. R.*, 88 AD2d 328; *Allen v Board of Educ. of Union Free School Dist. No. 20*, 168 AD2d 403; *Henry Boeckmann, Jr. & Assoc. v Board of Educ., Hempstead Union Free School Dist. No. 1*, 207 AD2d 773; *Brown v City of New York*, 264 AD2d 493; *Jeshurin v Liberty Lines Tr.*, 191 AD2d 412; *Arachy v State of New York*, 196 AD2d 625; *Vandermast v New York City Tr. Auth.*, 71 AD3d 1127.) III. John Tipaldo did comply with the terms of the statute. (*Simon v Mehryari*, 16 AD3d 664; *Damas v Valdes*, 84 AD3d 87.) IV. Predetermination interest was properly awarded. (*Matter of Aurecchione v New York State Div. of Human Rights*, 98 NY2d 21; *Loeffler v Frank*, 486 US 549; *Matter of Bello v Roswell Park Cancer Inst.*, 5 NY3d 170; *Scaduto v Restaurant Assoc. Indus.*, 180 AD2d 458; *Gierlinger v Gleason*, 160 F3d 858; *Matter of Greenberg v New York City Tr. Auth.*, 7 NY3d 139; *Matter of Lewis v Kelly*, 21 Misc 3d 1139[A], 2008 NY Slip Op 52423[U]; *Hoffman v Altana, Inc.*, 198 AD2d 210; *Kraus v New Rochelle Hosp. Med. Ctr.*, 216 AD2d 360.)

OPINION OF THE COURT

ABDUS-SALAAM, J.

In this whistleblower action, we are faced with two issues: First, whether plaintiff John Tipaldo made a good faith effort to comply with the reporting requirements of Civil Service Law § 75-b (2) (b); and second, whether prejudgment interest is available under Civil Service Law § 75-b and Labor Law § 740

(5). For the reasons that follow, we hold that plaintiff made a good faith effort to comply with the statute, and that prejudgment interest is available in actions of this kind.

I.

Plaintiff was employed by New York City's Department of Transportation (DOT) and served as the DOT's Acting Assistant Commissioner for Planning and Engineering. He was apparently promised that at some point that position would become permanent and be accompanied by a significant pay increase. While he held that position plaintiff supervised the Queensborough Bridge Project which involved procuring a variety of street signs, including "don't honk" signs to advise motorists of possible fines. Plaintiff discovered an alleged scheme by his superiors, defendants Christopher Lynn, then-Commissioner of the DOT, and Richard Malchow, then-First Deputy Commissioner of the DOT, to award a signage contract to Lynn's acquaintance in violation of the City's public bidding rules. The day after placing an order for the signs from Lynn's acquaintance on November 6, 1996, a meeting was held informing DOT employees, including Tipaldo, that the signs had been purchased. According to plaintiff, he and other employees questioned the legality of the process and the DOT employees whose signatures were required to authorize the purchase refused to sign the authorization. The following day, November 8, Lynn and Malchow then solicited bids from the public. Following the delivery and installment of the signs, the DOT received several lower bids compared to the \$6,000 paid to Lynn's acquaintance. Defendants thereafter allegedly created a backdated memorandum stating that the need for the signs was "urgent" and that the order must be placed immediately, rather than go through the bidding process.

Plaintiff informed his immediate supervisors about defendants' alleged misconduct. One or two business days later, plaintiff reported defendants' alleged actions to the Office of the Inspector General for the DOT and requested an investigation. Plaintiff claims that shortly after filing his report with the Inspector General, Lynn and Malchow retaliated against him by excluding him from meetings, removing him from supervising and managing several projects, and publicly making negative comments about him. Eventually, plaintiff was removed from his position and demoted.

Plaintiff then commenced this action in 1997 pursuant to Civil Service Law § 75-b. He alleged that he was retaliated

against for reporting improper governmental activity and sought a permanent injunction, reinstatement, all lost compensation, punitive damages, attorney's fees, and costs. Defendants moved for summary judgment dismissing the complaint, arguing that plaintiff failed to comply with Civil Service Law § 75-b by not reporting the allegedly wrongful actions to the appointing authority (which under these facts were defendants) before contacting the Inspector General's office. Plaintiff cross-moved for summary judgment on liability.*

Supreme Court granted defendants' motion for summary judgment, denied plaintiff's cross motion, and dismissed the complaint (2006 NY Slip Op 30746[U] [2006]). The court agreed with defendants that plaintiff failed to state a cause of action by not reporting the defendants' alleged misconduct to an appointing authority. On appeal, the Appellate Division reversed, and granted plaintiff's motion for summary judgment, stating, "[t]here is no dispute that retaliatory actions were taken against plaintiff, and although a cause of action pursuant to the subject statute requires plaintiff to have first reported the alleged violation to the internal [DOT] 'appointing authority,' here, that was defendants" (48 AD3d 361, 361-362 [1st Dept 2008] [citation omitted]). The Court determined that "plaintiff's good faith efforts in the manner and timing of his reporting, first informally to his immediate supervisors, and then soon thereafter to the [DOI], satisfactorily met the requirements of Civil Service Law § 75-b (2)" (*id.* at 362).

Thereafter, a bench trial on damages was conducted. Plaintiff's expert Dr. Anne Bynoe testified, concluding that if plaintiff had not been demoted, he would have been permanently appointed to Assistant Commissioner for Planning, receiving a \$25,000 raise, amounting to an \$81,000 salary at the time of demotion. Using the salary information of two comparators (DOT managers that Dr. Bynoe determined were similarly situated to plaintiff in experience and job responsibili-

* Meanwhile, following an investigation, the Inspector General issued his determination, concluding that plaintiff "suffered an adverse personnel action taken in retaliation for his having reported to the Department of Investigation [DOI] information concerning conduct which he knew or reasonably believed to involve an abuse of authority on the part of another City official." The report recommended that plaintiff be reinstated to his former position or a comparable position. Defendants initially declined to reinstate plaintiff, but later issued an order of compromise, pursuant to CPLR 3221, offering to reinstate him to a comparable position with back pay and benefits, which plaintiff rejected.

ties), Dr. Bynoe concluded that over the 10 years since plaintiff's demotion, plaintiff lost approximately \$388,243 in earnings, or \$662,721 with 9% statutory interest. Defendants did not present any evidence to refute Dr. Bynoe's conclusions.

Supreme Court then directed judgment to be entered in favor of plaintiff. However, the court denied plaintiff's claim for interest, stating that "neither C[ivil]S[ervice]L[aw] § 75-b nor Labor Law § 740 makes any provision for interest." The court directed that defendants pay plaintiff \$175,000, rather than the amount computed by Dr. Bynoe.

The Appellate Division modified the judgment and, as so modified, affirmed (76 AD3d 477 [1st Dept 2010]). The Court determined that Supreme Court failed to explain how it calculated the award and did not address plaintiff's requests for consequential damages or reinstatement to an equivalent position. The Court determined that the only expert opinion before it was plaintiff's, and it saw no reason to disturb Dr. Bynoe's conclusions on the back pay owed to plaintiff based upon the raise he was to receive with the anticipated promotion. The Court determined that Labor Law § 740 (5) allows whistleblower plaintiffs who sue under Civil Service Law § 75-b to seek prejudgment interest, because the purpose of Civil Service Law § 75-b is to "remediat[e] adverse employment actions which, if allowed, would undermine an important public policy, that is, encouraging public employees to expose fraud, waste and other squandering of the public fisc" (*id.* at 482). Additionally, the Court ordered defendants to reinstate plaintiff to the same or equivalent position he held before the retaliatory personnel action.

Supreme Court then entered a judgment awarding plaintiff \$388,243 in back pay, \$274,478 in interest, \$152,521.81 in attorney's fees, and \$985 in costs. The judgment also directed defendants to promote plaintiff to an Assistant Commissioner position, with a salary of \$157,000, effective August 24, 2010. This Court granted defendants' motion for leave to appeal from the judgment, bringing up for review the prior non-final 2008 and 2010 Appellate Division orders. We now affirm.

II.

The first issue is whether plaintiff complied with Civil Service Law § 75-b, the state whistleblower statute.

Civil Service Law § 75-b (2) (a) (ii) provides that adverse employment action may not be taken against a public employee

based upon his or her disclosure of information “which the employee reasonably believes to be true and reasonably believes constitutes an improper governmental action.” “Improper governmental action” is defined as:

“any action by a public employer or employee, or an agent of such employer or employee, which is undertaken in the performance of such agent’s official duties, whether or not such action is within the scope of his employment, and which is in violation of any federal, state or local law, rule or regulation” (Civil Service Law § 75-b [2] [a]).

Prior to reporting what may be “improper governmental action,” an employee is to make “a good faith effort to provide the appointing authority or his or her designee the information to be disclosed and shall provide the appointing authority or designee a reasonable time to take appropriate action unless there is imminent and serious danger to public health or safety” (Civil Service Law § 75-b [2] [b]). An “appointing authority” is the “officer, commission or body having the power of appointment to subordinate positions” (Civil Service Law § 2 [9]). Based upon the legislative history, the purpose of the reporting requirement was to allow the employer the opportunity to cease the violations by providing internal notice prior to disclosing misconduct to an outside agency (*see* Budget Report, Bill Jacket, L 1984, ch 660 at 7). Following the report of a complaint to the appointing authority, pursuant to a New York City mayoral executive order, it is the authority’s obligation to report the alleged improper governmental action to the Department of Investigation (*see* NY City Executive Order No. 16 of 1978 § 4 [d]). The executive order also requires an employee to immediately report misconduct or face disciplinary action, including possible termination.

Because plaintiff’s appointing authorities were Lynn and Malchow, he understandably did not report their alleged misconduct to them. The scheme in which Lynn and Malchow purportedly engaged was quite deliberate. After entering into a contract with Lynn’s acquaintance for the signs, they allegedly attempted to cover their tracks by publishing a notice seeking public bids and later releasing a memorandum stating that an immediate need for the signs required bypassing the normal bidding process. Thus, Lynn and Malchow would not likely have been receptive to plaintiff’s complaints or reported themselves to the Department of Investigation. Notably,

defendants concede that there was no duly designated individual to whom plaintiff could have reported his claims.

[1] Under these particular circumstances, strict compliance with the reporting requirements of Civil Service Law § 75-b would not serve the purpose of the statute. Rather, courts should use their discretion in determining whether the overall actions of the plaintiff constitute a good faith effort to report the misconduct. In cases such as this—where the appointing authority is the one engaging in the alleged misconduct—an employee’s good faith effort to report the misconduct should be evaluated with attention to the employee’s practical inability to report to the appointing authority. The “good faith” provision in the statute affords courts the discretion to determine whether a plaintiff has met its requirements and appears to adequately account for situations like the one presented here.

Here, we hold that plaintiff complied with the statutory reporting requirement by informing his immediate supervisors of the misconduct and thereafter reporting the misconduct to the DOT Inspector General. Whistleblowing is encouraged to prevent employer misconduct and provide appropriate remedies when it occurs. Employees in situations like plaintiff’s should not be required to report to the appointing authority where such a report would prove impractical and possibly impede prompt resolution of the matter. Notably, here, plaintiff believed the appointing authority was on notice of the alleged improper governmental action, based on plaintiff and other employees’ expression of concern after a DOT meeting, DOT employees’ refusal to approve the appointing authority’s purchase, and the appointing authority’s subsequent solicitation of bids followed by the issuance of a backdated memorandum claiming that the process needed to be expedited. Additionally, in view of the requirement, set forth in both Executive Order No. 16 and the DOT employee handbook, that employees such as plaintiff disclose misconduct to the DOT Inspector General directly and without undue delay or face possible termination of their employment, we cannot say that plaintiff lacked “good faith” in reporting to his immediate supervisors only one or two business days before he reported his allegations to the DOT Inspector General. Therefore, given the conditions plaintiff was facing, an overall view of his actions demonstrates good faith compliance with Civil Service Law § 75-b.

III.

The second issue is whether the 2010 Appellate Division order properly determined that plaintiff is entitled to prejudgment interest.

The Civil Service Law provides that a public employee not subject to an arbitration agreement or a collective bargaining agreement is entitled to commence his or her action “under the same terms and conditions as set forth in article twenty-C of the labor law” (Civil Service Law § 75-b [3] [c]). The “terms and conditions” in that section incorporate the remedies in Labor Law § 740 (5). That section states that the remedies available to employees who bring claims for retaliation include:

“(a) an injunction to restrain continued violation of this section;

“(b) the reinstatement of the employee to the same position held before the retaliatory personnel action, or to an equivalent position;

“(c) the reinstatement of full fringe benefits and seniority rights;

“(d) the compensation for lost wages, benefits and other remuneration; and

“(e) the payment by the employer of reasonable costs, disbursements, and attorney’s fees” (Labor Law § 740 [5]).

The terms “compensation” and “remuneration” are not defined by the statute (*see* Civil Service Law § 75-b).

This Court has held that where a statute does not specifically list interest as recoverable, interest may be available where a statute’s legislative intent is to make its victims whole and its language does not limit the recovery available. In *Matter of Aurecchione v New York State Div. of Human Rights*, we concluded that “[a]lthough the Human Rights Law, like title VII, makes no specific reference to pre-determination interest, a liberal reading of the statute is explicitly mandated to effectuate the statute’s intent” (98 NY2d 21, 26 [2002]). Thus, because the Human Rights Law permits individuals subject to employment discrimination to recover “compensatory damages,” we concluded that allowing for prejudgment interest was consistent with the “central concern” of the statute, which was “to make such victims ‘whole’ ” (*id.*). In *Matter of Greenberg v*

New York City Tr. Auth., we held that although Workers' Compensation Law § 120 did not provide for prejudgment interest, such interest was permissible because, like the Human Rights Law, section 120 was an antidiscrimination statute with an intent to fully compensate those discriminated against (*see* 7 NY3d 139, 142 [2006]). That section states that an employee "shall be compensated by his or her employer for any loss of compensation," which we concluded provided for a "general right to compensation," especially since its language that an employee is "to be restored to the position or privileges [he or she] would have had but for the discrimination" showed a "generalized intention to undo harm done" (*id.* at 142-143 [internal quotation marks omitted]).

Conversely, in *Matter of Bello v Roswell Park Cancer Inst.* we held that no prejudgment interest was available because Civil Service Law § 77 did not provide for a "general right to compensation" (5 NY3d 170, 173 [2005] [internal quotation marks omitted]). The section provided that an employee subject to unlawful removal:

"shall be entitled to receive . . . salary or compensation which he [or she] would have been entitled by law to have received in such position but for such unlawful removal, from the date of such unlawful removal to the date of such restoration, less the amount of any unemployment insurance benefits he [or she] may have received during such period" (*id.* at 172-173; *see also* Civil Service Law § 77).

This Court concluded that this language restricted recovery to salary or compensation and that, in this context, compensation "refers to bonuses or other nonsalary forms of payment" (*see id.* at 173). Additionally, we hesitated in reading prejudgment interest into the statute because Civil Service Law § 77, which allows for monetary recovery against the State or its civil divisions, "waives the State's sovereign immunity" and "[s]uch waivers are to be strictly construed, [with] 'waiver of immunity by inference being disfavored' " (*id.* at 173).

[2] Here, an overall view of the comprehensive package of remedies listed in Labor Law § 740 (5), including undefined "compensation" and "remuneration," demonstrates that the legislature sought to make a whistleblowing plaintiff whole, which would include an award of prejudgment interest. The remedies in Labor Law § 740 (5) are not as limited as Civil

Service Law § 77, the statute evaluated in *Matter of Bello*. There was no room under Civil Service Law § 77 to consider whether prejudgment interest may be included. In contrast, Labor Law § 740 (5) provides courts with discretion to determine what is considered “compensation” and “remuneration.” Further, the remedies listed in the statute appear to seek to make a whistleblowing plaintiff whole; awarding prejudgment interest would serve that purpose. By demoting plaintiff rather than awarding him a planned promotion and significant raise, defendants deprived plaintiff of access to what would have been a higher salary for a period of over 10 years. Awarding back pay with interest would serve to make plaintiff whole; thus, he is entitled to such a recovery.

With respect to the amount of prejudgment interest awarded, plaintiff’s expert Dr. Anne Bynoe testified during the damages trial and described the damages owed to plaintiff based upon his position and the promotion he was to receive using two comparators. Dr. Bynoe took into consideration inflation and interest when making her determination, and defendants failed to refute her conclusions. Therefore, as plaintiff is entitled to recover prejudgment interest and his expert’s testimony concerning the amount of back pay, consequential damages and interest he is owed was unrefuted, the denial of prejudgment interest was an abuse of discretion.

Additionally, because reinstatement to the same or equivalent position is a remedy specifically provided by Labor Law § 740 (5), the Appellate Division did not err in providing that remedy given the liability determination that plaintiff was retaliated against for reporting Lynn and Malchow’s misconduct.

IV.

Under the circumstances of this case, namely that plaintiff’s appointing authorities were the individuals whom he alleged engaged in misconduct, plaintiff’s overall conduct demonstrates good faith compliance with Civil Service Law § 75-b (2) (b). Additionally, because Labor Law § 740 (5) indicates an intention to make a whistleblowing plaintiff whole, prejudgment interest was properly awarded. Thus, the judgment appealed from and orders of the Appellate Division sought to be reviewed should be affirmed, with costs.

Judges PIGOTT, RIVERA, STEIN and FAHEY concur; Chief Judge LIPPMAN taking no part.

Judgment appealed from and orders of the Appellate Division sought to be reviewed affirmed, with costs.

[43 NE3d 350, 22 NYS3d 140]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RHIAN
TAYLOR, Appellant.

Argued September 10, 2015; decided October 27, 2015

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered August 28, 2014. The Appellate Division affirmed a judgment of the Supreme Court, Queens County (Robert C. McGann, J.), which had convicted defendant, upon a jury verdict, of murder in the second degree, assault in the second degree, criminal possession of a weapon in the second degree (two counts), and reckless endangerment in the first degree.

People v Taylor, 120 AD3d 842, reversed.

HEADNOTE

Crimes — Jurors — Jury Inquiry — Failure to Provide Substantial Portion of Requested Evidence

The trial court in defendant's murder prosecution abused its discretion in declining to provide, in response to a request from the deliberating jury "to see" the benefits offered to two key prosecution witnesses for their cooperation, a readback of testimony regarding benefits they had received outside the context of a written cooperation agreement between the People and one of the witnesses, and by suggesting that the written agreement was the only evidence relevant to the jury's inquiry. In determining whether a trial court abused its discretion and committed reversible error in fashioning an answer to the jury's inquiry, the factors to be evaluated are the form of the jury's question, which may have to be clarified before it can be answered; the particular issue of which inquiry is made; the information actually given and the presence or absence of prejudice to the defendant. The form of the jury's inquiry here reflected its desire to examine the evidence of benefits conferred upon both witnesses, and that evidence necessarily included both the written cooperation agreement and the witnesses' testimony about the advantages of their cooperation with the People. The jurors' expressed wish "to see" the pertinent evidence did not undermine the note's otherwise clear request for the entirety of the evidence of benefits conferred upon the witnesses. Since the issue about which the jury inquired was essential to its ability to judge the credibility of the sole witnesses to identify defendant as the shooter, the court abused its discretion by withholding a highly significant portion of what the jury had asked for regarding an essential issue at trial. Moreover, the combination of the court's failure to give the jury necessary information and its inaccurate follow-up remarks prejudiced the defense.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Appellate Review § 623; AM JUR 2d, Trial
§§ 944, 1149, 1341, 1464, 1591.

CARMODY-WAIT 2d, Jury Selection and Supervision § 191:99; CARMODY-WAIT 2d, Jury Conduct and Deliberation §§ 201:15–201:20, 201:24, 201:36.

NY JUR 2d, Criminal Law: Procedure §§ 2450, 2501, 2583, 2587, 2822–2824, 3465, 3469; NY JUR 2d, Trial § 432.

ANNOTATION REFERENCE

Right to have reporter's notes read to jury. 50 ALR2d 176.

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Database: NY-ORCS

Query: jur! /3 inq! & req! /3 evid! & witness! /s test!

POINTS OF COUNSEL

Law Offices of Joel B. Rudin, P.C., New York City (*Joel B. Rudin* and *Steven R. Aquino* of counsel), for appellant. I. A trial court has no “discretion” to unilaterally construe an inherently ambiguous jury note as “ministerial” without according the defendant his fundamental constitutional rights to notice, presence, and the opportunity to be heard. (*People v Walston*, 23 NY3d 986; *People v O’Rama*, 78 NY2d 270; *Rogers v United States*, 422 US 35; *Snyder v Massachusetts*, 291 US 97; *People v Kisoon*, 8 NY3d 129; *People v Harris*, 76 NY2d 810; *People v Ochoa*, 14 NY3d 180; *People v Lykes*, 81 NY2d 767.) II. By refusing to provide the jury with all of the evidence of the benefits the People’s witnesses received in exchange for their testimony, and instead incorrectly instructing the jury that only one witness’s written cooperation agreement was “in evidence,” the court violated Rhian Taylor’s fundamental right to a meaningful response to the jury note. (*People v Crimmins*, 36 NY2d 230; *People v Malloy*, 55 NY2d 296; *People v Gonzalez*, 293 NY 259; *Boyde v California*, 494 US 370; *People v Brown*, 87 NY2d 950; *People v Owens*, 69 NY2d 585; *People v Harrison*, 35 AD3d 52; *People v Lewis*, 160 AD2d 815; *People v Lourido*, 70 NY2d 428; *People v Novoa*, 70 NY2d 490.)

Richard A. Brown, District Attorney, Kew Gardens (*Sharon Y. Brodt*, *John M. Castellano* and *Laura T. Ross* of counsel), for respondent. I. Defendant’s claim that automatic reversal was required for the failure to provide adequate notice of the jury’s fourth note fails both because the note constituted a ministerial request not requiring notice and because the court in any event disclosed the entire contents of the note in time for any

error to be cured. (*People v O’Rama*, 78 NY2d 270; *People v Damiano*, 87 NY2d 477; *People v Ochoa*, 14 NY3d 180; *People v Lykes*, 81 NY2d 767; *People v Kadarko*, 14 NY3d 426; *People v Collins*, 99 NY2d 14; *People v Jackson*, 105 AD3d 607; *People v Green*, 82 AD3d 593; *People v Griffin*, 241 AD2d 501; *People v Davis*, 260 AD2d 726.) II. The court provided a meaningful response to the jury’s note. (*People v Liccione*, 50 NY2d 850; *People v Almodovar*, 62 NY2d 126; *People v Malloy*, 55 NY2d 296; *People v Steinberg*, 79 NY2d 673; *People v Chase*, 225 AD2d 789; *People v Ross*, 205 AD2d 646; *People v Rodriguez*, 228 AD2d 391; *People v Brown*, 87 NY2d 950; *People v Owens*, 69 NY2d 585; *People v Harrison*, 35 AD3d 52.)

OPINION OF THE COURT

ABDUS-SALAAM, J.

The dispositive issue on this appeal is whether a trial court abuses its discretion and commits reversible error when, in response to a request from a deliberating jury, it does not provide the jury with a substantial portion of requested evidence regarding the potential bias of key prosecution witnesses and then suggests to the jury that there is no other evidence relevant to its inquiry. Under the circumstances of this case, we hold that the trial court abused its discretion in taking such actions, necessitating reversal of defendant’s convictions.

I.

Based on his alleged shooting of Wayne Peacock and Darion Brown, which resulted in Brown’s death, defendant Rhian Taylor was indicted and tried on charges of murder in the second degree (*see* Penal Law § 125.25 [1]), attempted murder in the second degree (*see* Penal Law §§ 110.00; 125.25 [1]), assault in the first degree (*see* Penal Law § 120.10 [1]), assault in the second degree (*see* Penal Law § 120.05), reckless endangerment in the first degree (*see* Penal Law § 120.25) and two counts of criminal possession of a weapon in the second degree (*see* Penal Law § 265.03 [1] [b]; [3]). According to the People’s proof at trial, the shooting occurred during a dispute outside the location of a party in Queens.

Specifically, on the night of August 10, 2007, Brown drove Peacock, as well as their friends Seprel Turner and Anthony Hilton, to the site of the festivities. Upon their arrival and while they remained in the car, Brown tried to flirt with a

friend of Hilton's, despite Hilton's admonition not to do so. A man, whom Turner and Hilton later identified as defendant, purportedly took offense at Brown's actions and shot into the car, striking Brown repeatedly in the torso. One shot also hit Peacock, who immediately woke from a nap in the passenger seat and hence did not see the shooter's face. Brown frantically drove away but soon hit a nearby pole, and he was knocked unconscious. Peacock, Turner and Hilton scattered. Turner and Hilton then met up at Turner's house. About 10 minutes later, Hilton and Turner returned to the scene of the shooting, and although the police had already arrived, the men did not speak to the officers. The officers retrieved Brown from the car, and he was rushed to the hospital, where he died.

Within a couple of days, Peacock led the police to Turner, who was shown a photo array and identified defendant as the shooter. Acting on this identification, the police searched for defendant, who eventually surrendered. On August 14, Turner identified defendant in a lineup. Meanwhile, Hilton learned that the police were looking for him, and he decided to speak to them; in Hilton's telling, "[b]ecause they w[ere] riding around [the] neighborhood with [his] picture" and he was "going to court for a case," he "felt [he] needed to take care of it." Hilton informed the police of his observations of the crime, and he identified defendant in a photo array as the perpetrator.

Months later, in 2008, Hilton was arrested on unrelated charges. Because Hilton was already on probation in connection with another criminal matter, he was charged with violating his probation. When Hilton appeared in court to answer the specifications of a probation violation, the prosecutor who handled the instant case also attended that court appearance and requested that no bail be set in Hilton's case. In August 2009, Hilton pleaded guilty to the violation without any negotiated plea. The court returned Hilton to a five-year term of probation. While he continued serving his probation term, Hilton shoplifted a scarf from a store, leading to his arrest and eventual conviction on a charge of criminal possession of stolen property. Hilton also had prior convictions for menacing and disorderly conduct.

As for Turner, over a year after the shooting, in late 2009, he was arrested for unlawfully possessing a weapon. Thereafter, the People and Turner negotiated a plea agreement, under which Turner would plead guilty to criminal possession of a weapon in the second degree, a felony, and to criminal posses-

sion of a weapon in the fourth degree, a misdemeanor, and if he testified truthfully at defendant's trial, the felony charge would be dismissed and Turner could replead to the misdemeanor charge, resulting in a purely probationary sentence. On February 25, 2010, Turner pleaded guilty to the aforementioned charges and executed a written cooperation agreement memorializing the bargain.

At trial, Turner acknowledged that he would obtain other benefits as a natural consequence of the deal. For example, by receiving only a misdemeanor conviction, he could not be sentenced as a second felony offender on any future crime that he might commit. And, Turner, who was pursuing a career as a rap artist, would avoid incarceration, thereby ensuring that he would not jeopardize his recently signed contract with a record label due to imprisonment. As previously noted, Turner and Hilton were the only witnesses who identified defendant as the man who shot Brown and Peacock.

After the presentation of proof of the foregoing facts at trial, the parties presented their summation arguments. In his summation, defense counsel argued that Hilton and Turner had been motivated to testify falsely against defendant, and in addition to the People's written cooperation agreement with Turner, counsel cited Turner's testimony about the additional benefits he would naturally receive from his plea and Hilton's testimony about the People's intervention at his probation hearing as proof of the witnesses' bias in favor of the People. Counsel also argued that Hilton had a motive to kill Brown out of jealousy over Brown's flirtation with Hilton's friend, and counsel denounced Turner and Hilton as untrustworthy criminals whose testimony should be discounted. In her summation, the prosecutor countered that the only material benefits which Turner had received were those set forth in the cooperation agreement, and she insisted that the People's advocacy for Hilton's release without bail in his case did not give Hilton a motive to testify favorably to the People in this case.

Prior to the start of the jury's deliberations, the parties agreed that the court could submit any exhibits in evidence to the jury upon request without having to reconvene the parties and the jury in open court. The next day, the deliberations commenced, and before any proceedings occurred in open court, the jury issued three notes. The first note said, "We would like to see all the People's exhibits of the car inside, outside, and

the scene in evidence collected.” The second note said, “We would like to see two photo arrays. We would also like a sketch of the scene.” The third note stated, “We would like a readback of Anthony Hilton’s testimony and S. Turner’s testimony with regard to their stories about being in the car prior to and up to just after the shooting.” When proceedings resumed on the record, the court read the three notes to the parties and explained that the first two had already been “complied with pursuant to [the parties’] agreement.” With respect to the third note requesting a readback of Hilton’s and Turner’s testimony, the court announced that it was ready to respond with the readback. The parties did not object to the court’s responses to the notes, either as previously delivered or proposed, and the court had the testimony requested in the third note read to the jury.

The next day, prior to the start of proceedings on the record, the jury issued its fourth and fifth notes. The fourth note declared, “[W]e would like to see the benefits offered to Mr. Hilton and Mr. Turner, please.” The fifth note stated, “We would like to have definition of reasonable doubt.” In response to the fourth note asking to see the benefits offered to the witnesses, the court sent the jurors the written cooperation agreement between the People and Turner, without consulting the parties. Thereafter, on the record, the court allowed the parties to inspect the two notes, and it read the contents of the notes aloud.

Defense counsel objected to the court’s response to the fourth note. Counsel essentially asserted that the response was incomplete without a readback of Turner’s and Hilton’s testimony about the benefits they had received outside the context of the written cooperation agreement, such as the career-related and sentencing benefits to Turner and the pretrial release obtained by Hilton in his probation matter. The court replied that the jurors “didn’t ask for that” and had “gotten the agreement,” adding, “If they want anything more I’ll be there to listen.” When the court returned the jurors to the courtroom, it said, “I believe we sent in to you the cooperation agreement with Mr. Turner. That’s what is in evidence.” Next, the court proceeded to answer the fifth note, stated, “We will be here if you need anything,” and sent the jurors back to the jury room.

Outside the presence of the jury, the court told defense counsel that its comments had accurately indicated to the jurors that they had received only an agreement between the

People and Turner in response to their request and that they could ask for additional materials if they so desired. Referring to the court's statement to the jury about "what [was] in evidence," counsel responded by suggesting that this statement had been inaccurate because the written cooperation agreement did not represent the entirety of the evidence of the witnesses' benefits. Counsel reiterated his belief that the jurors had wanted to receive all evidence of benefits conferred upon both witnesses, including the testimony about the benefits not memorialized in the cooperation agreement. The court rejected counsel's arguments, deciding that the jurors' use of the term "see" in the fourth note revealed their desire to receive only evidence that could be visually inspected, i.e., the written cooperation agreement.

Following the contested fourth note, deliberations continued for just over two more days, and the jury issued, and the court answered, several more notes, including one stating that the jury was deadlocked. Finally, on the fifth day of deliberations, the jury rendered a verdict convicting defendant of second-degree murder, second-degree assault, two counts of second-degree weapons possession and first-degree reckless endangerment. After post-verdict proceedings not relevant to the disposition of this appeal, the court sentenced defendant to an aggregate prison term of 20 years to life, to be followed by five years of postrelease supervision, and defendant appealed.

The Appellate Division unanimously affirmed defendant's convictions (*see People v Taylor*, 120 AD3d 842, 842-843 [2d Dept 2014]). As relevant here, the Appellate Division rejected defendant's contention that the trial court had improperly responded to the fourth jury note by failing to read back Turner's and Hilton's testimony about the benefits they received in other cases based on their aid to the People in defendant's case (*see id.* at 842-843). Essentially adopting the trial court's reasoning, the Appellate Division declared,

"While it may have been preferable for the court to seek further clarification from the jury with respect to its request to 'see the benefits,' the wording of the subject jury note, particularly when read in conjunction with several other notes, demonstrated that the jury was requesting only the physical exhibit," and therefore the court's "response did not fall outside the acceptable bounds of its discretion,

and thus satisfied the requirement of CPL 310.30”
(*id.* [citations omitted]).

A Judge of this Court granted defendant leave to appeal, and we now reverse (24 NY3d 1089 [2014]).

II.

CPL 310.30 provides that, “[u]pon such a request” for evidence or legal instruction from a deliberating jury, “the court must direct that the jury be returned to the courtroom and, after notice to both the people and counsel for the defendant, and in the presence of the defendant, must give such requested information or instruction as the court deems proper.” Similarly, absent a withdrawal of the jury’s inquiry or similar circumstances, common-law principles of procedural fairness generally require the court to furnish the jury with information requested during its deliberations, and the court has significant discretion in determining the proper scope and nature of the response (*see People v Gonzalez*, 293 NY 259, 262-263 [1944] [“The general rule in the United States is that ‘the court may and ordinarily should give the jurors additional instructions on their request’ ”], quoting 23 CJS, Criminal Law § 1376 [c] at 1046 [1940]; *see also People v Malloy*, 55 NY2d 296, 302-303 [1982]). Thus, regardless of whether the issue is framed under CPL 310.30 or common-law rules governing jury deliberations, where, as here, the defendant has preserved for our review a specific objection to the contents of the trial court’s response to a jury note, we must determine whether the trial court acted within the bounds of its discretion in fashioning an answer to the jury’s inquiry (*see Malloy*, 55 NY2d at 302; *see also People v Cooke*, 292 NY 185, 188 [1944] [noting that, under a pre-CPL 310.30 statute, which reflected to some extent the common law, not every refusal to answer the jury in a particular manner constituted reversible error]). In determining whether the trial court abused its discretion and committed reversible error, “[t]he factors to be evaluated are the form of the jury’s question, which may have to be clarified before it can be answered, the particular issue of which inquiry is made, the [information] actually given and the presence or absence of prejudice to the defendant” (*Malloy*, 55 NY2d at 302; *see People v Steinberg*, 79 NY2d 673, 684 [1992]).

In this case, an evaluation of those factors demonstrates that the trial court abused its discretion by declining to provide the jurors with information that they plainly wanted and incor-

rectly characterizing the state of the evidence on the subject of their inquiry. In that regard, the form of the jury's request in the fourth note showed that the jury wished to review all evidence of the benefits which Hilton and Turner acquired as a result of their assistance in the prosecution of defendant. Because the jurors asked to see the benefits offered to "Mr. Hilton *and* Mr. Turner" (emphasis added), the form of their inquiry reflected their desire to examine the evidence of benefits conferred upon both witnesses, and that evidence necessarily included both the written cooperation agreement between the People and Turner and the witnesses' testimony about the advantages of their cooperation with the People.

Contrary to the trial court's supposition, the jury could not have desired exclusively to receive the written cooperation agreement, as that agreement did not provide any benefits to Hilton and simply memorialized a portion of the benefits received by Turner. Given the jury's entreaty for all proof of Turner's and Hilton's gains related to their assistance in the prosecution of defendant, the court should have supplied the jurors not only with the cooperation agreement, but also with: Turner's testimony that the cooperation agreement's provision for a non-prison sentence enabled him to keep a potentially lucrative recording deal; his testimony that his plea to a misdemeanor allowed him to avoid receiving a predicate felony offender adjudication on any future conviction; and Hilton's testimony that the trial prosecutor in defendant's case spared him from having to post bail in his probation proceeding.

Although, as the trial court noted, the jurors' expressed wish "to see" the pertinent evidence might have implied a desire solely to view an exhibit, this single phrase did not undermine the note's otherwise clear request for the entirety of the evidence of benefits conferred upon Turner and Hilton, especially in light of the context in which the note was issued. Notably, in their summations, both parties disputed the extent to which the written cooperation agreement *and* the witnesses' testimony on the subject of benefits reflected the witnesses' motives to testify in favor of the People, thereby drawing the jurors' attention to all of that evidence in a manner that would naturally prompt them to request that proof in its entirety. More importantly, prior to the issuance of the fourth note, the jurors had expressed their desire to visually inspect physical exhibits by specifically referring to particular physical objects, such as "photo arrays," "sketch[es]" or "exhibits," and therefore,

had the jurors wanted to receive only the written cooperation agreement in reply to their fourth note, they presumably would have asked to see “the agreement” or “the exhibit” setting forth the benefits to Turner. Instead, the jurors framed their request in terms of evidence of “the benefits” offered to the witnesses, period, without limiting the inquiry to an “exhibit” or physical object. Given the clear meaning of the note in context, the court improperly focused on the phrase “to see” in disregard of the remaining contents of the note and then proceeded to submit only the cooperation agreement to the jurors (*cf. People v Lykes*, 81 NY2d 767, 770 [1993] [approving the trial court’s handling of a jury note in part because the court “did not limit or channel the jury’s question”]). The court should have at least inquired as to whether the note in fact meant what its terms and the surrounding circumstances overwhelmingly suggested.

In addition, since the issue about which the jury inquired, namely the People’s favorable treatment of Turner and Hilton, was essential to the jury’s ability to judge the credibility of the sole witnesses to identify defendant as Brown’s killer and Peacock’s assailant, the court’s inadequate response to the jury’s query on that central issue further reflected the court’s abuse of its discretion. Given the lack of any other testimony or physical evidence that defendant was the shooter,* Hilton’s and Turner’s credibility became the key issue at trial, and in light of the witnesses’ respective criminal pasts, the truthfulness of their testimony was subject to serious dispute, calling for particular care in fashioning a fair and complete response to the jurors’ inquiry into the matter. In addition to the written cooperation agreement, the other evidence sought by the jurors had an especially strong bearing on the witnesses’ credibility. Indeed, because the requested testimony showed that the trial prosecutor had helped Hilton to win pretrial release in another case, this testimony suggested that Hilton had a motive to testify falsely in favor of the prosecution at defendant’s trial out of gratitude for the prosecutor’s aid. Likewise, Turner’s testimony that his cooperation with the People enabled him to avoid imprisonment, prevent future adverse sentencing adjudications and continue making a living showed that he

* Although defendant’s DNA was found on a cigarette filter near several shell casings at the scene of the shooting, this evidence showed that defendant was in close proximity to the shooting and not that he was necessarily the shooter.

had a motive to give false testimony against defendant in order to reap those rewards. That being so, the court abused its discretion by withholding a highly significant portion of what the jury had asked for regarding an essential issue at trial (*see generally People v Lourido*, 70 NY2d 428, 435 [1987]; *cf. People v Mercado*, 91 NY2d 960, 963 [1998]).

Moreover, after the court failed to supply the jurors with the full extent of the requested evidence, the court made comments suggesting that the remainder of the sought-after proof did not exist, and the combination of the court's failure to give the jury necessary information and its inaccurate follow-up remarks prejudiced the defense. Specifically, when the court told the jurors that the written cooperation agreement between the People and Turner was "what [was] in evidence" in relation to their note, the court incorrectly indicated that there was no evidence, other than the agreement, regarding benefits received by Hilton and Turner, even though testimony about such benefits did in fact exist. Based on this statement, the jurors may have erroneously believed that either their recollection of the existence of such evidence was faulty or the testimony they had sought was irrelevant, prompting them to cease their inquiry into this important evidence based on false assumptions. Since the People's proof of defendant's identity as the shooter was less than overwhelming and the court's response to the note seriously inadequate, the court abused its discretion as a matter of law, and reversal is required.

In reaching this conclusion, we do not signal any erosion of a trial court's discretion in answering jury notes. In acting within the bounds of discretion delineated by *People v Malloy* (55 NY2d 296) and similar cases, a trial court retains leeway to shape its response to the jurors' inquiry based on the record as a whole and the applicable law, and if the court entertains some doubt as to the meaning of a jury note, it can and should seek clarification from the jury (*see Lykes*, 81 NY2d at 769-770). Additionally, if some of the circumstances here were to arise in isolation in other cases, they might not support the conclusion that the trial court abused its discretion in answering a note, for no single factor is dispositive. Thus, we go no further than to hold that, under the totality of the circumstances in this case, the trial court abused its discretion as a matter of law by failing to adequately answer the jurors' fourth note and creating a false impression of the nature of the evidence.

III.

Because defendant's challenge to the substance of the trial court's response to the jury's fourth note mandates reversal of his convictions, we need not decide whether the court committed a mode of proceedings error by revealing the contents of the fourth note to the parties only after it had sent the cooperation agreement to the jury, and we express no opinion on that matter. For the same reason, we need not address defendant's remaining contentions. Accordingly, the order of the Appellate Division should be reversed and a new trial ordered.

RIVERA, J. (concurring). I concur in the result only, and agree with the majority that defendant's convictions must be reversed, but on different grounds. Moreover, because I find the majority's analysis an unnecessary and overly broad reading of our case law on the proper handling of jury requests, I decline to join its interpretation of the legal requirements set by this Court in this area.

In *People v O'Rama* (78 NY2d 270, 276-277 [1991]), this Court held that CPL 310.30 imposes on a court the duty to notify counsel of a substantive juror inquiry, and the duty to meaningfully respond to the jury. In accordance with our interpretation of CPL 310.30, an utter failure to respond cannot be termed "meaningful" in any sense of the word (*see People v Lourido*, 70 NY2d 428, 435 [1987]). Furthermore, we recently reaffirmed in *People v Walston* (23 NY3d 986, 989 [2014]) that fulfillment of these duties is a core responsibility of the trial court. Thus, the court's failure to fulfil these responsibilities constitutes a mode of proceedings error, which does not require preservation (*id.*; *People v Alcide*, 21 NY3d 687, 692 [2013] [a mode of proceedings error will result where a judge fails to afford meaningful response to the jury]). This error also requires reversal and a new trial (*People v Roberites*, 115 AD3d 1291, 1293 [2014] [court's failure to provide notice to counsel constituted a mode of proceedings error which requires reversal and a new trial]).

As the majority correctly describes, the jury note expressed the jurors' desire to review the evidence of the benefits accorded to Anthony Hilton and Seprel Turner, which obliged the court to provide evidence relating to both witnesses.* However, the court failed to provide any information at all regarding the

* The fact that the inquiries were included in one jury note is irrelevant for purposes of the analysis because a court's duty to provide a meaningful

(n. cont'd)

benefits granted to Hilton, notwithstanding the existence of testimony in the record readily available to address such a request. Thus, on the facts of this case, the court's response to the jury's request to review information relating to Hilton was no response at all, and as such constituted a mode of proceedings error under our *O'Rama* jurisprudence. That error requires reversal and, therefore, there is no need to consider, as the majority does, whether Supreme Court abused its discretion.

Judges PIGOTT, STEIN and FAHEY concur; Judge RIVERA concurs in result in a separate opinion in which Chief Judge LIPPMAN concurs.

Order reversed and a new trial ordered.

response for each request remains unchanged, and a complete failure to reply to any inquiry is error (*see People v Stocks*, 101 AD3d 1049, 1051 [2d Dept 2012] [finding *O'Rama* violation where court failed to provide defense counsel with notice of jury note, which contained, in part, a substantive request]; *see also People v Brown*, 125 AD3d 1550 [4th Dept 2015] [treating one note with multiple requests as separate inquiries and finding no *O'Rama* violation where defense counsel participated in the formulation of a response to the factual inquiries, and did not preserve for review the court's response to the part of the note concerning the readback of testimony]; *People v Jackson*, 105 AD3d 607 [1st Dept 2013] [finding no violation but analyzing different parts of one note separately]).

[43 NE3d 358, 22 NYS3d 148]

In the Matter of GEORGE TEXEIRA, Appellant, v BRIAN FISCHER,
Commissioner, New York State Department of Corrections
and Community Supervision, Respondent.

Argued September 16, 2015; decided October 27, 2015

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered March 27, 2014. The Appellate Division order, insofar as appealed from, affirmed that part of a judgment of the Supreme Court, Clinton County (Timothy J. Lawliss, J.), entered in a proceeding pursuant to CPLR article 78, which had remitted the matter to respondent for further proceedings.

Matter of Teixeira v Fischer, 115 AD3d 1137, affirmed.

HEADNOTE

**Prisons and Prisoners — Discipline of Inmates — Failure to Provide
Written Explanation of Decision on Inmate's Request to Call Wit-
ness**

Remittal for a rehearing, rather than expungement of respondent's determination finding petitioner inmate guilty of violating prison disciplinary rules, was an appropriate remedy for respondent's failure to provide petitioner with written notice of whether his request to call a witness had been denied and why, where the record was clear that respondent failed to comply with Department of Corrections and Community Supervision (DOCCS) regulations, but unclear as to whether respondent violated petitioner's constitutionally protected due process rights. Inmates are entitled to the minimum requirements for procedural due process under the Federal Due Process Clause, which include an inmate's right in a disciplinary proceeding to call witnesses in the inmate's defense, so long as permitting the inmate to do so will not be unduly hazardous to institutional safety or correctional goals. That right is codified in DOCCS regulations, which also require that DOCCS provide a written statement explaining the reasons for the denial of a witness (7 NYCRR 254.5 [a]). Refusal to provide a witness is not an automatic due process violation because DOCCS retains the right to deny any witnesses that would be unduly hazardous to institutional safety or correctional goals. Under these circumstances, where respondent clearly violated the regulation, but where the Court cannot determine if respondent violated the due process requirements recognized by the United States Supreme Court, no interplay between section 254.5 and the Federal Constitution mandated expungement.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Penal and Correctional Institutions §§ 123–
131, 143, 217.

CARMODY-WAIT 2d, Actions and Proceedings by and Against Convicts § 125:22; CARMODY-WAIT 2d, Proceeding Against a Body or Officer §§ 145:1586, 145:1599, 145:1602–145:1603, 145:1608, 145:1612, 145:1626–145:1630.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 11.1, 26.2.

McKINNEY'S, CPLR art 78.

7 NYCRR 254.5.

NY JUR 2d, Article 78 and Related Proceedings § 25; NY JUR 2d, Penal and Correctional Institutions §§ 160, 179, 185, 187, 190–199, 224, 228.

ANNOTATION REFERENCE

See ALR Index under Administrative Law; Prisons and Prisoners; Sentence and Punishment; Witnesses.

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Query: prison! inmate! /s disciplin! & call! /5 witness! & expla! & “due process”

POINTS OF COUNSEL

Karen L. Murtagh, Prisoners' Legal Services of New York, Plattsburgh (Michael E. Cassidy of counsel), for appellant. I. The violation of a prisoner's right to call witnesses at a prison disciplinary hearing mandates reversal and expungement not remittal for a new hearing. (*Matter of Alvarez v Goord*, 30 AD3d 118; *Matter of Barnes v LeFevre*, 69 NY2d 649; *Matter of Hartje v Coughlin*, 70 NY2d 866; *Matter of Allah v LeFevre*, 132 AD2d 293; *Wolff v McDonnell*, 418 US 539; *Matter of Laureano v Kuhlmann*, 75 NY2d 141; *Ponte v Real*, 471 US 491; *Matter of Coleman v Coombe*, 108 AD2d 1018, 65 NY2d 777.) II. Even under the Third Department's choice of remedy framework, the proper remedy in this case is still expungement and not remittal for a new hearing. (*Matter of Alvarez v Goord*, 30 AD3d 118; *Matter of Hill v Selsky*, 19 AD3d 64; *Matter of Barnes v LeFevre*, 69 NY2d 649; *Matter of Johnson v Goord*, 247 AD2d 801; *Matter of Williams v Coughlin*, 145 AD2d 771; *Matter of Moulton v Fischer*, 100 AD3d 1131; *Matter of Torres v Prack*, 95 AD3d 1518; *Matter of Buari v Fischer*, 70 AD3d 1147; *Matter of Morris-Hill v Fischer*, 104 AD3d 978; *Matter of Jamison v Fischer*, 78 AD3d 1466.)

Eric T. Schneiderman, Attorney General, Albany (Martin A. Hotvet, Barbara D. Underwood and Andrea Oser of counsel), for respondent. I. Remittal rather than expungement was proper here even assuming the Third Department's analytical framework is correct (*Matter of Barnes v LeFevre*, 69 NY2d 649; *Matter of Coleman v Coombe*, 65 NY2d 777; *Matter of Hartje v Coughlin*, 70 NY2d 866; *Matter of Alvarez v Goord*, 30 AD3d 118; *Matter of Allah v LeFevre*, 132 AD2d 293; *Matter of Cowart v Coughlin*, 193 AD2d 887; *Matter of Moustakos v Venettozzi*, 92 AD3d 992; *Wolff v McDonnell*, 418 US 539; *Matter of Laureano v Kuhlmann*, 75 NY2d 141; *Silva v Casey*, 992 F2d 20.) II. Even if the hearing officer's error violated petitioner's due process rights, remittal was nonetheless proper. (*Matter of Hartje v Coughlin*, 70 NY2d 866; *Wolff v McDonnell*, 418 US 539; *Matter of Laureano v Kuhlmann*, 75 NY2d 141; *Matter of Tolliver v Fischer*, 68 AD3d 884; *Matter of Cowart v Coughlin*, 193 AD2d 887; *Matter of Moustakos v Venettozzi*, 92 AD3d 992; *Eng v Coughlin*, 858 F2d 889; *Matter of Vaughn v Orlando*, 79 AD3d 1048; *Matter of Krall v Selsky*, 309 AD2d 1027; *People ex rel. Martinez v New York State Bd. of Parole*, 56 NY2d 588.)

OPINION OF THE COURT

RIVERA, J.

Petitioner George Texeira successfully challenged a prison disciplinary hearing determination on procedural grounds, based on the hearing officer's failure to obtain a witness as requested by petitioner. The sole issue on appeal is whether the proper remedy in this case is expungement of the disciplinary disposition from petitioner's prison records, as he contends, or, as held below, remittal for a new hearing. We agree with the Appellate Division, albeit for different reasons, that remittal for a rehearing was an appropriate remedy based on the specific facts of this case.

Petitioner was charged in a misbehavior report for violating prison disciplinary rules while an inmate at Attica Correctional Facility.¹ At the tier III disciplinary hearing, petitioner pleaded not guilty to all charges and requested several witnesses be called, including another inmate, T. However, T refused to testify, stating on his inmate witness refusal form that "I was

1. Specifically 100.10 (assault on an inmate), 114.10 (smuggling), 102.10 (threats), 111.10 (impersonation), 121.12 (phone program violation), 121.14 (exchanging PINs), and 180.11 (facility correspondence violation) (7 NYCRR 270.2 [B]).

never at [U]pstate^{2]} ever. I came here from [A]ttica!” Petitioner asked the hearing officer to recontact T because his response indicated that he was confused about the location of the incident, which had occurred at Attica. The hearing officer agreed to have T re-interviewed. However, when the hearing reconvened T did not testify and the hearing officer did not state whether T had been recontacted, and, if so, what he had said regarding the request to testify. The hearing officer, thereafter, found petitioner guilty of all charges, and respondent, the then Commissioner of the Department of Corrections and Community Supervision (DOCCS), administratively affirmed this disposition.

Petitioner commenced a CPLR article 78 proceeding, claiming that his constitutional right to call witnesses was violated for failure to make reasonable efforts to contact the witness, and requesting that the determination be expunged from his prison records. Supreme Court granted petitioner’s article 78 petition, annulled the determination, and remitted the matter for a new hearing.³ Petitioner appealed the denial of his request for expungement. The Appellate Division affirmed, concluding that annulment and remittal for a new hearing was the appropriate remedy (115 AD3d 1137 [3d Dept 2014]). According to the Court, because the hearing officer had made some effort to obtain the witness, and did not initially deny the witness outright without a stated good faith reason, respondent only violated petitioner’s regulatory right, thus warranting a new hearing.

Petitioner appeals, claiming that expungement is the exclusive remedy for violation of an inmate’s right to call a witness at a prison disciplinary hearing. For the reasons discussed below we need not reach that issue because under the facts of this case, a rehearing was appropriately ordered.

The United States Supreme Court in *Wolff v McDonnell* (418 US 539 [1974]) held that inmates retain rights under the Federal Due Process Clause and are entitled to the minimum requirements for procedural due process, although those rights are subject to restrictions due to the nature of incarceration

2. “Upstate” refers to the Upstate Correctional Facility in Malone, New York.

3. Petitioner never sought to stay a new hearing. Accordingly, during the pendency of his appeal a new hearing was held. At that hearing, T testified and petitioner was found guilty. Petitioner did not appeal the disposition of the rehearing.

(*id.* at 556-558). Those minimal due process requirements include an inmate's right in a disciplinary proceeding to call witnesses in the inmate's defense, so long as "permitting [the inmate] to do so will not be unduly hazardous to institutional safety or correctional goals" (*id.* at 566). While noting its usefulness, the Supreme Court did not require that prison officials "state [their] reason for refusing to call a witness, whether it be for irrelevance, lack of necessity, or the hazards presented in individual cases" (*id.*).

The right to call witnesses is codified in DOCCS regulations, which also provide additional protections above and beyond those minimum requirements for procedural due process recognized by the United States Supreme Court (*see* 7 NYCRR 254.5). For example, and as relevant to this appeal, section 254.5 (a) states that an inmate may call a witness if the testimony is

"material, is not redundant, and doing so does not jeopardize institutional safety or correctional goals. If permission to call a witness is denied, the hearing officer shall give the inmate a written statement stating the reasons for the denial, including the specific threat to institutional safety or correctional goals presented."

This requirement that DOCCS provide a written statement explaining the reasons for the denial, a demand not mandated by *Wolff*, makes it possible to satisfy *Wolff* and yet not comply with the regulations. It also allows for the possibility that the facts of a case will not easily reveal the nature of the alleged violation. We are faced with just such a situation in this case.

Under *Wolff*, refusal to provide a witness is not an automatic due process violation because DOCCS retains the right to deny any witnesses that would be "unduly hazardous to institutional safety or correctional goals" (*Wolff*, 418 US at 566). This Court has previously cured violations of inmates' rights through expungement (*see Matter of Barnes v LeFevre*, 69 NY2d 649, 650 [1986]). Here, the record is unclear as to whether respondent violated petitioner's constitutionally protected due process rights. However, the record is clear that respondent failed to comply with 7 NYCRR 254.5. In accordance with that provision, the hearing officer had an obligation to provide written notice of whether petitioner's request for a witness had been denied and why. No such written statement was provided.

We are mindful that in this case there is a possible convergence of the constitutional and regulatory commands, as well as the proper remedy, but under these circumstances, where respondent clearly violated the regulation, but where the Court cannot determine if respondent violated the due process requirements of *Wolff*, we are unpersuaded that any interplay between section 254.5 and the Federal Constitution mandates expungement. Accordingly, the order of the Appellate Division, insofar as appealed from, should be affirmed, without costs.

Chief Judge LIPPMAN and Judges PIGOTT, ABDUS-SALAAM and FAHEY concur; Judge STEIN taking no part.

Order, insofar as appealed from, affirmed, without costs.

[43 NE3d 728, 22 NYS3d 371]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DANIEL
ISRAEL, Appellant.

Argued October 21, 2015; decided November 18, 2015

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered November 7, 2013. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Michael J. Obus, J.), which had convicted defendant, upon a jury verdict, of murder in the second degree, attempted murder in the first degree, attempted assault in the first degree, assault in the first and second degrees, reckless endangerment in the first degree, and criminal possession of a weapon in the second degree (two counts).

People v Israel, 111 AD3d 413, affirmed.

HEADNOTES

Crimes — Appeal — Preservation of Issue for Review — Admission of Proof of Prior Bad Acts

1. In the prosecution of defendant for offenses arising from an incident in which he fired multiple gunshots at a group of men who were chasing and attempting to hit his friend, killing one person and injuring two others, wherein defendant pursued an extreme emotional disturbance defense claiming that he suffered from post-traumatic stress disorder due to an altercation in which he was stabbed eight times during a fight with two individuals, defendant's challenge to the admissibility of testimony concerning his assault of a restaurant worker at a time prior to when he was stabbed was unpreserved or waived at trial. The trial court offered to strike the testimony of the officer who arrested defendant for the assault after the testimony revealed that the officer lacked personal knowledge of the events preceding the physical altercation. However, defense counsel chose, instead, to cross-examine the officer and never moved for a mistrial on the ground that the prejudice caused by the evidence was incurable.

Crimes — Proof of Other Crimes — Extreme Emotional Disturbance Defense

2. In the prosecution of defendant for offenses arising from an incident in which he fired multiple gunshots at a group of men who were chasing and attempting to hit his friend, killing one person and injuring two others, wherein defendant pursued an extreme emotional disturbance defense claiming that he suffered from post-traumatic stress disorder (PTSD) due to a 2005 altercation in which he was stabbed eight times during a fight with two individuals, the trial court properly allowed the prosecutor to inquire, during cross-examination of defense witnesses, about a 2002 incident in which defendant reacted with violence to a verbal insult to his mother. Evidence of uncharged

criminal conduct or bad acts that are probative of a defendant's state of mind may be admissible if the defendant "opens the door" to such evidence by putting in issue his state of mind at the time of the commission of the charged crime. However, a defense such as extreme emotional disturbance opens the door to rebuttal evidence only to the extent that the proffered evidence has a natural tendency to disprove the defendant's specific claim. Here, the crux of the extreme emotional disturbance claim was that defendant, a previously nonviolent person, was suffering from PTSD as a result of the 2005 stabbing incident and that his actions in firing into the group were attributable to his PTSD. By raising this defense and presenting testimony regarding his personality and behavior before the stabbing, defendant put in issue some aspects of his character and personal history. The 2002 altercation had a logical and natural tendency to disprove defendant's specific claim that he was an otherwise peaceful person who reacted with violence only because his PTSD was triggered by the circumstances in which the shooting took place. Moreover, the court's decision to allow the incident to be explored on cross-examination rather than through rebuttal witnesses was not improper inasmuch as defendant's direct examinations of the relevant witnesses opened the door to questions about specific acts that undermined their testimony about defendant's character prior to the stabbing.

Crimes — Proof of Other Crimes — Extreme Emotional Disturbance Defense

3. In the prosecution of defendant for offenses arising from an incident in which he fired multiple gunshots at a group of men who were chasing and attempting to hit his friend, killing one person and injuring two others, wherein defendant pursued an extreme emotional disturbance defense claiming that he suffered from post-traumatic stress disorder (PTSD) due to a 2005 altercation in which he was stabbed eight times during a fight with two individuals, the trial court erred in allowing evidence of a 2010 incident in which defendant broke an inmate telephone and threatened a correction officer. Evidence of uncharged criminal conduct or bad acts that are probative of a defendant's state of mind may be admissible if the defendant "opens the door" to such evidence by putting in issue his state of mind at the time of the commission of the charged crime. However, a defense such as extreme emotional disturbance opens the door to rebuttal evidence only to the extent that the proffered evidence has a natural tendency to disprove the defendant's specific claim. The key dispute at trial was whether defendant was suffering from PTSD at the time of the shooting and whether, when he fired the weapon, he was acting under the influence of that disorder. While evidence of defendant's disproportionately violent reaction to mild provocation prior to the stabbing incident was directly relevant to an assessment of the effects of the stabbing on his state of mind, the same materiality did not apply to defendant's misbehavior three years after the shooting for which he was being tried. The evidence of the 2010 incident did not tend to prove or disprove that defendant was acting under the influence of PTSD when he fired his weapon. Nevertheless, the error was harmless in light of the trial court's limiting instructions, the overwhelming proof, and the fact that there was no significant probability that the jury would have acquitted defendant but for the admission of the testimony relating to the 2010 incident.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Appellate Review §§ 575, 618, 703; AM JUR
2d, Evidence §§ 409, 418, 421, 423, 425, 427, 439, 441,

443, 452, 456, 467; AM JUR 2d, Homicide §§ 296, 299; AM JUR 2d, Trial § 332.

CARMODY-WAIT 2d, Fundamentals of Criminal Evidence §§ 193:17-193:24, 193:26, 193:28, 193:31; CARMODY-WAIT 2d, Testimony of Witnesses §§ 195:60, 195:159; CARMODY-WAIT 2d, Appeals in Criminal Cases §§ 207:33, 207:117.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 5.3, 11.10, 24.7.

NY JUR 2d, Criminal Law: Procedure §§ 906, 1005, 1584, 2023, 2030, 2026-2028, 2035-2036, 2352, 2356, 2491, 2758, 3454, 3462, 3573.

ANNOTATION REFERENCE

Admissibility in criminal prosecution of evidence to prove other crime as affected by degree or sufficiency of the evidence. 63 ALR 602.

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Query: admiss! /3 test! & assault! & preserv! /5 app!

POINTS OF COUNSEL

Robert S. Dean, Center for Appellate Litigation, New York City (*Jan Hoth* of counsel), for appellant. The court erred in admitting rebuttal evidence of appellant's alleged prior and subsequent violent acts where that evidence had no direct or logical tendency to rebut his extreme emotional disturbance defense, had no probative value, and was highly prejudicial (US Const Amend XIV; NY Const, art I, § 6). (*People v Fiore*, 34 NY2d 81; *People v Dales*, 309 NY 97; *People v Molineux*, 168 NY 264; *People v Santarelli*, 49 NY2d 241; *People v Cass*, 18 NY3d 553; *People v Ingram*, 71 NY2d 474; *People v Rosen*, 81 NY2d 237; *People v Alvino*, 71 NY2d 233; *People v Milot*, 305 AD2d 729; *People v Van Gaasbeck*, 189 NY 408.)

Cyrus R. Vance, Jr., District Attorney, New York City (*Deborah L. Morse* and *Gina Mignola* of counsel), for respondent. A portion of defendant's complaint is unpreserved and therefore beyond the review powers of this Court. In any event, all three portions of challenged evidence were admissible because they naturally and logically refuted defendant's extreme emotional disturbance defense. (*People v Santarelli*, 49 NY2d 241; *People v Cass*, 18 NY3d 553; *People v Agina*, 18 NY3d 600; *People v Alvino*, 71 NY2d 233; *People v Molineux*, 168 NY 264; *People v Bradley*, 20 NY3d 128; *People v Hudy*, 73 NY2d 40; *People v McManus*, 67 NY2d 541; *People v Barber*, 74 NY2d 653; *People v Van Gaasbeck*, 189 NY 408.)

OPINION OF THE COURT

STEIN, J.

Late one evening in June 2007, defendant happened upon an altercation on a street in Manhattan and saw his friend being chased by several men. As one of those men attempted to hit defendant's friend, defendant—who was otherwise uninvolved in the events leading up to the dispute—fired a gun multiple times into the group, killing one person and injuring two others. Police officers arriving at the scene of the fight witnessed defendant begin shooting and, upon their approach, defendant fired in their direction before eventually surrendering after he was shot by their return fire. Defendant was subsequently charged with various crimes in connection with the shooting, including two counts of murder in the second degree (Penal Law § 125.25 [1], [2]) and two counts of attempted murder in the first degree (Penal Law §§ 110.00, 125.27 [1] [a] [i]).

Defendant did not contest his identity as the shooter. Rather, at trial, defendant pursued an extreme emotional disturbance defense in an effort to mitigate the degree of his criminal liability in connection with the homicide charges (*see* Penal Law §§ 125.25 [1] [a]; 125.27 [2] [a]).* Defendant attempted to establish that, at the time of the 2007 shooting, he suffered from post-traumatic stress disorder (PTSD) due to an altercation in October 2005 in which he was stabbed eight times in the back during a fight with two individuals. The defense theory was that defendant's PTSD was triggered by seeing his friend endangered by circumstances arguably similar to those in which defendant had been stabbed, thus causing him to react to the street fight by pulling out his firearm and shooting into the fray.

In support of this defense, Yshande Lucas—a former friend of defendant—testified that, before the 2005 stabbing, defend-

* A defendant who proves an affirmative defense of extreme emotional disturbance by a preponderance of the evidence may be convicted of manslaughter in the first degree, rather than murder, on the basis that “some homicides are worthy of mitigation because they result from an understandable human response deserving of mercy” (*People v Roche*, 98 NY2d 70, 75 [2002] [internal quotation marks omitted]; *see* Penal Law §§ 125.20 [2]; 125.25 [1] [a]; 125.27 [2] [a]). Extreme emotional disturbance is “a mental infirmity not rising to the level of insanity at the time of the homicide, typically manifested by a loss of self-control”; to succeed on that defense, a defendant must prove that he or she, subjectively, was acting under the influence of such a disturbance and that, objectively, there was a reasonable explanation or excuse for that disturbance (*Roche*, 98 NY2d at 75; *see People v Cass*, 18 NY3d 553, 561 [2012]; *People v Diaz*, 15 NY3d 40, 45 [2010]).

ant was a “[l]oving, caring, [and] gentle” person but, afterward, defendant’s behavior changed in that he started drinking alcohol excessively and became more aggressive. In addition, psychiatrist Stephen Bates Billick opined that the experience of being stabbed numerous times in October 2005 caused defendant to suffer from PTSD, which went untreated and, in Billick’s view, was triggered by the events leading up to the shooting such that defendant was reliving the experience of his stabbing and lacked the intent to commit murder. On cross-examination, Billick testified that defendant was “not a violent person by nature” and “did[not] have a . . . significant history of having done violent acts.”

The People sought to rebut defendant’s extreme emotional disturbance defense by demonstrating that his violent actions on the day of the shooting were unrelated to any PTSD diagnosis. To that end, the People sought to cross-examine defendant’s witnesses and introduce testimony regarding, as relevant here, three incidents in which defendant allegedly reacted with physical violence either unprovoked or in response to minor provocation. Through these incidents, the People intended to disprove the assertions of Billick and Lucas that defendant was a calm, peaceful person whose commission of the charged crimes was explainable only through the PTSD diagnosis, by demonstrating that—even before his stabbing in 2005—defendant had an explosive personality characterized by responding with disproportionate violence.

Specifically, during the cross-examination of Lucas, the prosecutor was allowed to inquire—after informing the court that there was a witness who observed the entire altercation and its precipitating events—whether Lucas had personal knowledge of an incident, in May 2005 (before the stabbing), during which defendant punched a fast-food restaurant employee in front of a police officer after the employee misunderstood his food order. Lucas denied having any personal knowledge of that altercation. The People were also permitted to ask Lucas whether he was aware that, on an occasion in 2002 (also before the stabbing), defendant had “punched” and “choked” a girl who had insulted his mother. Lucas testified that he had “heard” that the girl “said something” and defendant “pushed her” into a wall.

On Billick’s cross-examination, the prosecutor was similarly permitted to inquire whether Billick’s opinion that defendant’s conduct was prompted by PTSD would change if he learned of

these two instances of violence occurring before defendant was stabbed. Billick acknowledged that both the 2002 and 2005 altercations involved inappropriately violent reactions, but he testified that the occurrences did not change his stated opinion. He was also asked whether his conclusion that defendant was acting in a PTSD-induced haze at the time of the shooting would be affected if he were to learn that, three years after the shooting and while incarcerated, defendant had shattered an inmate telephone and threatened a correction officer. Billick maintained his opinion, remarking that he saw no “pervasive pattern of violence” in defendant’s actions.

On the People’s rebuttal case, neuropsychologist William Barr testified that there was “no evidence” that defendant was suffering from PTSD or that PTSD influenced his behavior at the time of the shooting. In addition, the People called two witnesses—a police officer and a correction officer—to testify about two of the incidents into which the prosecutor had inquired on cross-examination of defendant’s witnesses. The testimony of the police officer who arrested defendant following the May 2005 incident at the fast-food restaurant revealed that—contrary to the prosecutor’s prior assertion—he lacked personal knowledge of the events preceding that physical altercation; therefore, upon defendant’s objection, the trial court offered to strike the testimony (*see generally People v Santarelli*, 49 NY2d 241, 250-251 [1980]). Defense counsel chose, instead, to cross-examine the officer, and he elicited testimony establishing the officer’s lack of knowledge of provocation. The People’s next witness, a correction officer, testified that, in August 2010 (three years after the shooting), he observed defendant strike the receiver of an inmate telephone against its base and then throw the telephone to the floor because he “felt like it.” Defendant then cursed at and threatened the officer.

After the close of proof, the court instructed the jury that the testimony regarding defendant’s volatile behavior at times other than the shooting was admitted for a limited purpose, could not be considered as establishing a general criminal propensity, and was to be used only to evaluate the psychiatric testimony and the witnesses’ bases for their testimony as to defendant’s state of mind. Following deliberations, the jury acquitted defendant of one count of attempted murder in the first degree, but rejected his extreme emotional disturbance defense and found him guilty of intentional murder in the second degree and attempted intentional murder in the first

degree, as well as the remaining charged crimes. The Appellate Division affirmed (111 AD3d 413 [1st Dept 2013]), a Judge of this Court granted defendant leave to appeal (23 NY3d 1021 [2014]), and we now affirm.

[1] Defendant argues that he was deprived of a fair trial because the testimony elicited regarding the three uncharged bad acts—namely, the 2002, 2005, and 2010 incidents detailed above—should have been excluded. As the People contend, defendant’s challenge to the admissibility of testimony concerning his 2005 assault of a restaurant worker is unpreserved or was waived at trial because defendant rejected the court’s offer to strike the testimony, elected to cross-examine the police officer, and never moved for a mistrial on the ground that the prejudice caused by this evidence was incurable (*cf. People v Albert*, 85 NY2d 851, 852 [1995]; *People v Heide*, 84 NY2d 943, 944 [1994]). Therefore, such challenge is not properly before us.

With regard to the propriety of the testimony concerning the other two incidents, “evidence of a defendant’s uncharged crimes or prior misconduct is not admissible if it cannot logically be connected to some specific material issue in the case, and tends only to demonstrate the defendant’s propensity to commit the crime charged” (*People v Cass*, 18 NY3d 553, 559 [2012]; *see People v Alvino*, 71 NY2d 233, 241-242 [1987]; *People v Molineux*, 168 NY 264, 291-293 [1901]). Consequently, “[w]here . . . the evidence proves only criminal propensity and serves no other function in demonstrating defendant’s guilt of the crime charged, there is no legitimate basis for its admission. No degree of care, in assessing its value and possible prejudice and in giving cautionary instructions, can render it otherwise” (*Cass*, 18 NY3d at 559, quoting *Alvino*, 71 NY2d at 253). Where, however, evidence of a defendant’s bad acts or uncharged crimes is “relevant to some material fact in the case, other than the defendant’s propensity to commit the crime charged, it is not to be excluded merely because it shows that the defendant had committed other crimes” (*Cass*, 18 NY3d at 560).

Evidence of uncharged criminal conduct or bad acts that are probative of a defendant’s state of mind may be admissible if the defendant “opens the door” to such evidence by putting in issue his state of mind at the time of the commission of the charged crime by, for example, raising an extreme emotional disturbance or insanity defense (*Cass*, 18 NY3d at 563; *see*

Santarelli, 49 NY2d at 248-249; see also *People v Bradley*, 20 NY3d 128, 133 [2012]). Nevertheless, such a defense opens the door to the People's rebuttal evidence "only to the extent that [the proffered] evidence has a natural tendency to disprove [the defendant's] specific claim" (*Santarelli*, 49 NY2d at 249). That is, evidence of uncharged crimes or bad acts is admissible to rebut an extreme emotional disturbance defense where the evidence has "some 'logical relationship' to, and a 'direct bearing upon,' the People's effort to disprove" the defense, and the probative value of the evidence outweighs its prejudicial effect (*Cass*, 18 NY3d at 562, quoting *Santarelli*, 49 NY2d at 249, 252; see *Bradley*, 20 NY3d at 133). Although the balancing of probative value against potential prejudice is a matter that lies within the trial court's discretion (see *People v Morris*, 21 NY3d 588, 595 [2013]), "the threshold question of identifying a material issue to which the evidence is relevant poses a question of law" (*Cass*, 18 NY3d at 560 n 3).

[2] Applying the foregoing, we conclude that the trial court here properly allowed the prosecutor to inquire about the 2002 incident in which defendant reacted with violence to a verbal insult to his mother. The crux of the defense was that defendant, a previously nonviolent person, was suffering from PTSD as a result of the 2005 stabbing incident and that his actions in firing into the group on the street were attributable to his PTSD. By raising this defense and presenting the testimony of Lucas and Billick—both of whom testified regarding defendant's personality and behavior before the 2005 stabbing as compared with his behavior after that event—defendant "necessarily put[] in issue some aspects of his character and personal history" (*Santarelli*, 49 NY2d at 248). The prosecutor's inquiries pertaining to the 2002 incident were "directly relevant to the question of defendant's reaction patterns" because it was an instance in which "defendant had resorted to violence in the face of relatively mild provocation" before the 2005 stabbing occurred (*Santarelli*, 49 NY2d at 252). This altercation "ha[d] a logical and natural tendency to disprove [defendant's] specific claim" that he was an otherwise peaceful person who reacted with violence only because his PTSD was triggered by the circumstances in which the shooting took place (*Cass*, 18 NY3d at 563). In other words, it tended to refute the subjective element of defendant's defense, i.e., that he actually acted under the influence of PTSD. Moreover, the court's decision to allow this incident to be explored on cross-examination, rather than

through the testimony of a rebuttal witness, was not improper under the facts presented here. Defendant's direct examinations of Lucas and Billick opened the door to questions about specific acts that undermined their testimony about defendant's character prior to the 2005 stabbing (*see generally People v Kuss*, 32 NY2d 436, 443 [1973], *cert denied* 415 US 913 [1974]), and the People had a good faith basis for their knowledge of the 2002 incident and the provocation involved.

[3] We agree with defendant, however, that reference to the 2010 incident in which he broke an inmate telephone and threatened a correction officer should have been excluded. The key dispute at trial was whether defendant was suffering from PTSD *at the time of the shooting* and whether, when he fired his weapon, he was acting under the influence of that disorder. Although evidence of defendant's disproportionately violent reaction to mild provocation *prior* to the 2005 stabbing was directly relevant to an assessment of the effects of the stabbing on his state of mind and whether he acted out of extreme emotional disturbance when he committed the charged offenses less than two years later, we fail to see the materiality of defendant's misbehavior while incarcerated *three years after* the shooting for which he was being tried. This evidence was not probative as it neither tended to prove nor disprove that defendant was acting under the influence of PTSD when he fired his weapon, and it did not advance the People's efforts to rebut the affirmative defense. Rather, in our view, the testimony pertaining to this incident was relevant only insofar as it related to defendant's general criminal propensity and, therefore, it should have been excluded (*see Bradley*, 20 NY3d at 134; *Santarelli*, 49 NY2d at 251). Nonetheless, the error was harmless—particularly in light of the limiting instructions provided by the trial court—because the proof was overwhelming and there is no significant probability, on this record, that the jury would have acquitted defendant of murder and attempted murder but for the admission of the testimony relating to the 2010 incident (*see People v Arafet*, 13 NY3d 460, 467 [2009]; *People v Crimmins*, 36 NY2d 230, 242 [1975]). Accordingly, the order of the Appellate Division should be affirmed.

Chief Judge LIPPMAN and Judges PIGOTT, RIVERA, ABDUS-SALAAM and FAHEY concur.

Order affirmed.

[43 NE3d 734, 22 NYS3d 377]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v PETTIS
HARDY, Appellant.

Argued October 14, 2015; decided November 18, 2015

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered March 13, 2014. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Bruce Allen, J.), which had convicted defendant, upon a jury verdict, of grand larceny in the fourth degree (four counts) and petit larceny.

People v Hardy, 115 AD3d 511, affirmed.

HEADNOTES

Crimes — Instructions — Circumstantial Evidence Charge Not Required — Both Direct and Circumstantial Evidence of Guilt

1. The trial court in defendant's larceny prosecution was not required to provide a circumstantial evidence charge to the jury, as a surveillance video showing defendant rifling through and then walking off with the victim's purse constituted direct evidence of his guilt, and the proof against defendant therefore consisted of both direct and circumstantial evidence. A trial court must grant a defendant's request for a circumstantial evidence charge when the proof of the defendant's guilt rests solely on circumstantial evidence. Defendant's statement to a prosecution witness that he did not have the purse but could get it constituted circumstantial evidence, inasmuch as the statement merely included inculpatory facts from which the jury may or may not have inferred guilt. However, the surveillance video was direct evidence of the taking element of a larceny, inasmuch as it required no inference to conclude that defendant exercised dominion and control over the purse, however temporary, in a manner wholly inconsistent with the victim's continued rights as the owner. The fact that defendant offered the jury an alternative explanation of his behavior, one inconsistent with larcenous intent, did not change the character of the evidence from direct to circumstantial. A particular piece of evidence is not required to be wholly dispositive of guilt in order to constitute direct evidence, so long as it proves directly a disputed fact without requiring an inference to be made.

Crimes — Trial — Mistrial — Denial of Mistrial Motions

2. The trial court in defendant's larceny prosecution, having received notes from the deliberating jury on two occasions stating that they were unable to reach a unanimous verdict, did not abuse its discretion as a matter of law in refusing to grant defendant's requests for a mistrial and instead delivering charges pursuant to *Allen v United States* (164 US 492 [1896]). Although the trial was not lengthy, at each of the two junctures the circumstances indicated that further deliberations might be fruitful, and neither of the jury's notes was indicative of a hopeless deadlock. Moreover, the trial court's procedures

were not coercive. The court's *Allen* charges were appropriately balanced and informed the jurors that they did not have to reach a verdict and that none of them should surrender a conscientiously held position in order to reach a unanimous verdict.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Larceny §§ 135-136; AM JUR 2d, Trial §§ 924, 991, 1166-1168, 1170, 1172, 1174.
 CARMODY-WAIT 2d, Particular Types of Evidence §§ 194:30, 194:69; CARMODY-WAIT 2d, Charge and Instruction to Jury §§ 200:40-200:42; CARMODY-WAIT 2d, Appeals in Criminal Cases §§ 207:36, 207:118.
 LAFAYE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 24.6, 24.8.
 NY JUR 2d, Criminal Law: Procedure §§ 919, 1006, 2049, 2169, 2700, 2722, 2746, 3573, 3602; NY JUR 2d, Criminal Law: Substantive Principles and Offenses § 957.

ANNOTATION REFERENCE

Modern status of rule regarding necessity of instruction on circumstantial evidence in criminal trial—state cases. 36 ALR4th 1046.

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POINTS OF COUNSEL

Richard M. Greenberg, Office of the Appellate Defender, New York City (Eunice C. Lee of counsel), for appellant. I. Where the evidence of larceny against Pettis Hardy was wholly circumstantial, including his alleged statement that he could obtain the stolen property, the trial court erred in denying Mr. Hardy's request for the pattern circumstantial evidence instruction. (*People v Santiago*, 22 NY3d 990; *People v Silva*, 69 NY2d 858; *People v Ford*, 66 NY2d 428; *People v Daddona*, 81 NY2d 990; *People v Sanchez*, 61 NY2d 1022; *People v Burke*, 96 AD2d 971; *People v Tsotselashvili*, 135 AD2d 759; *Malave v Smith*, 559 F Supp 2d 264; *People v Hunter*, 17 NY3d 725; *People v Spencer*, 1 AD3d 709.) II. Where the trial was short and factually straightforward, the length of jury deliberations exceeded the time that evidence was elicited from the stand, and the court noted the frustration of the jurors with the

continued deliberations, the trial court's decision to issue two *Allen* charges, rather than declare a mistrial, was coercive and deprived Pettis Hardy of a fair trial. (*People v Pagan*, 45 NY2d 725; *People v Aponte*, 2 NY3d 304; *Allen v United States*, 164 US 492; *Matter of Plummer v Rothwax*, 63 NY2d 243; *People v Cheeseborough*, 158 AD2d 534; *People v Baptiste*, 72 NY2d 356; *People v Campbell*, 203 AD2d 127; *People v Reed*, 230 AD2d 866; *People v Sheldon*, 136 AD2d 761.)

Cyrus R. Vance, Jr., District Attorney, New York City (*Jared Wolkowitz*, *Manu K. Balachandran* and *Alan Gadlin* of counsel), for respondent. I. Defendant was not entitled to a circumstantial evidence charge. (*People v Daddona*, 81 NY2d 990; *People v Silva*, 69 NY2d 858; *People v Santiago*, 22 NY3d 990; *People v Barnes*, 50 NY2d 375; *People v Gerard*, 50 NY2d 392; *People v Von Werne*, 41 NY2d 584; *People v Roldan*, 211 AD2d 366, 88 NY2d 826; *People v Holmes*, 204 AD2d 243; *People v Rodriguez*, 17 NY3d 486; *People v Guidice*, 83 NY2d 630.) II. The court acted well within its discretion in declining to declare a mistrial in response to the jury's notes stating that they had not reached a unanimous verdict. (*People v Pagan*, 45 NY2d 725; *Allen v United States*, 164 US 492; *People v Aponte*, 2 NY3d 304; *People v Baptiste*, 72 NY2d 356; *Matter of Rivera v Firetog*, 11 NY3d 501; *Matter of Owen v Stroebel*, 65 NY2d 658; *Matter of Plummer v Rothwax*, 63 NY2d 243; *People v Stephens*, 63 AD3d 624; *People v Walker*, 83 NY2d 455.)

OPINION OF THE COURT

FAHEY, J.

The primary issue on this appeal is whether a surveillance video showing defendant rifling through and then walking off with the victim's purse constitutes direct evidence of his guilt of larceny, despite the fact that defendant offered an alternative explanation for his behavior. We hold that the surveillance video constituted direct evidence of defendant's guilt, and that no circumstantial evidence charge was required. A particular piece of evidence is not required to be dispositive of a defendant's guilt in order to constitute direct evidence.

I.

Defendant was employed as a security guard at a nightclub in Manhattan in February 2011. The victim was also at the club on the night in question, working as a stylist at a music video shoot hosted by the club. As the victim drove home, she

realized she did not have her purse with her. She called the club, but her bag was not located. In an attempt to locate the purse, the general manager of the club viewed surveillance video from that night.

That surveillance video shows that defendant sat down on a couch next to the victim, positioning himself between her and her purse. Defendant then picked up the purse from the couch and put it underneath him, out of view. When the victim and her friends had left that area of the nightclub, defendant picked up the purse again and began rifling through its contents. He looked through the bag for over a minute. The video then shows defendant walking out of that area of the club with the purse in his hand.

Another camera angle shows that defendant briefly exited the club a minute later. At that point, defendant did not appear to be holding the purse in his hand. The victim and her friends were standing a few feet away from the door, and upon exiting the club in close proximity to the victim and her friends, defendant immediately went back inside. A different camera angle shows that defendant then assisted in picking up trash inside the club, also without the purse in his hand.

Another employee of the security group for which defendant was working also viewed the surveillance video, and he testified at trial that he called defendant to confront him. At first, defendant denied any knowledge of the purse, but when the witness told defendant that he had seen the surveillance video, defendant responded, "I don't have it, but I can get it."

Defendant was charged with four counts of grand larceny in the fourth degree (Penal Law § 155.30 [4]) and one count of petit larceny (§ 155.25). During the ensuing jury trial, defendant requested that the trial court instruct the jury with the standard Criminal Jury Instructions charge on circumstantial evidence. The court refused, holding that the case was not "based entirely on circumstantial evidence."*

The jurors deliberated for some time and sent out two notes stating that they were unable to reach a unanimous verdict. On both occasions, defendant requested a mistrial. The court

* The court did instruct the jury with a modified circumstantial evidence charge, which the court stated it generally provided when the case was based on both direct and circumstantial evidence. Inasmuch as we hold that the court was not required to give any circumstantial evidence charge, the language of the modified charge is irrelevant on this appeal.

denied those requests, and instead delivered first a modified *Allen* charge and then a full *Allen* charge (see generally *Allen v United States*, 164 US 492, 501 [1896]). The jury found defendant guilty as charged.

A unanimous Appellate Division affirmed (115 AD3d 511 [1st Dept 2014]). The Appellate Division held that the trial court “properly declined to provide a circumstantial evidence charge, since there was both direct and circumstantial evidence of defendant’s guilt, notwithstanding that defendant’s intent was a matter to be inferred from the evidence” (*id.* at 512). The Court also rejected defendant’s contention that the trial court abused its discretion in denying his requests for a mistrial, noting that “[a]lthough the trial was relatively short and simple, at each of the two junctures the circumstances indicated that further deliberations might be fruitful” and that “neither of the jury’s notes was indicative of a hopeless deadlock” (*id.*).

A Judge of this Court granted defendant leave to appeal (23 NY3d 1037 [2014]). We now affirm.

II.

It is well settled that a trial court must grant a defendant’s request for a circumstantial evidence charge when the proof of the defendant’s guilt rests solely on circumstantial evidence (see *People v Santiago*, 22 NY3d 990, 991-992 [2013]; *People v Roldan*, 88 NY2d 826, 827 [1996]; *People v Brian*, 84 NY2d 887, 889 [1994]). By contrast, where there is both direct and circumstantial evidence of the defendant’s guilt, such a charge need not be given (see *Roldan*, 88 NY2d at 827; *People v Barnes*, 50 NY2d 375, 380 [1980]).

We agree with defendant that his statement to the prosecution witness that he did not have the purse but could get it was not direct evidence of his guilt. A defendant’s statement is direct evidence only “if it constitutes ‘a relevant admission of guilt’ ” (*People v Guidice*, 83 NY2d 630, 636 [1994], quoting *People v Rumble*, 45 NY2d 879, 880 [1978]; see *People v Licitra*, 47 NY2d 554, 558-559 [1979], *rearg denied* 53 NY2d 938 [1981]). For example, where the defendant was charged with assault under an accomplice liability theory, and the defendant’s statements consisted of admissions that “he ‘sent two guys to break [the victim’s] legs’ ” and “‘put [the victim] in the hospital,’ ” we held that the defendant’s statements constituted direct evidence of his guilt (*Guidice*, 83 NY2d at 636).

By contrast, where the defendant makes an admission that merely “includ[es] inculpatory acts from which a jury may or

may not infer guilt,” the statement is circumstantial and not direct evidence (*People v Burke*, 62 NY2d 860, 861 [1984] [internal quotation marks omitted]; see *People v Sanchez*, 61 NY2d 1022, 1023 [1984]). For example, where the defendant was accused of arson, and the defendant told a prosecution witness who asked whether the defendant had “covered his tracks” that “there was nothing to worry about, he had left nothing behind, [and] no one would find anything,” we held that the defendant’s statements were circumstantial evidence, inasmuch as they “still required an inference that [the] defendant had set the fire” (*Burke*, 62 NY2d at 861 [internal quotation marks omitted]).

[1] Here, defendant’s statement—that he did not have the purse but could get it—was not a direct admission of his guilt of larceny. Rather, defendant’s statement was also consistent with an inference that although he did not steal the purse, he knew where the purse was located and thought he could obtain it. Inasmuch as his statement merely included inculpatory facts from which the jury may or may not have inferred guilt, his statement was circumstantial rather than direct evidence (see *Burke*, 62 NY2d at 861).

We agree with the People, however, that the surveillance video constituted direct evidence of defendant’s guilt of larceny. The “taking” element of larceny “is satisfied by a showing that the thief exercised dominion and control over the property for a period of time, however temporary, in a manner wholly inconsistent with the owner’s continued rights” (*People v Jennings*, 69 NY2d 103, 118 [1986]; see *People v Olivo*, 52 NY2d 309, 318 [1981], *rearg denied* 53 NY2d 797 [1981]). “Thus, a shoplifter who exercises dominion and control over the goods wholly inconsistent with the continued rights of the owner can be guilty of larceny even if apprehended before leaving the store” (*People v Robinson*, 60 NY2d 982, 983-984 [1983], citing *Olivo*, 52 NY2d 309).

Here, the surveillance video shows defendant hiding the purse from the victim’s view, waiting until she and her friends had left the area to rummage through its contents, and then picking it up and walking out of the area while holding it in his hand. The video is therefore direct evidence of a taking, inasmuch as the video requires no inference to conclude that defendant exercised dominion and control over the purse, however temporary, in a manner that was wholly inconsistent with the victim’s continued rights as the owner (see *Jennings*, 69 NY2d at 118).

Defendant contends that because he presented evidence at trial that he had been authorized as part of his security duties to move purses and other items off of the back bar of the club, the video does not constitute direct evidence of a taking. Defendant's theory is that the jury could have also inferred from the video that he was merely moving the purse to another location inside the club, consistent with his job duties. We are unpersuaded.

This Court has described circumstantial evidence as evidence that “‘never proves directly the fact in question’” (*People v Bretagna*, 298 NY 323, 325 [1949], *cert denied* 336 US 919 [1949], *reh denied* 336 US 922 [1949], quoting *Pease v Smith*, 61 NY 477, 485 [1875]). By contrast, the surveillance video constitutes direct evidence because it requires no inference to establish the taking element of a larceny. The fact that defendant offered the jury an alternative explanation of his behavior, one that was inconsistent with larcenous intent, does not change the character of the evidence from direct to circumstantial. Furthermore, a particular piece of evidence is not required to be wholly dispositive of guilt in order to constitute direct evidence, so long as it proves directly a disputed fact without requiring an inference to be made. In other words, even if a particular item of evidence does not conclusively require a guilty verdict, so long as the evidence proves directly a fact in question, the evidence is direct evidence of guilt. Inasmuch as the proof against defendant consisted of both direct and circumstantial evidence, the trial court was not required to provide a circumstantial evidence charge to the jury (*see Roldan*, 88 NY2d at 827; *Barnes*, 50 NY2d at 380).

III.

Finally, we reject defendant's contentions that the trial court abused its discretion as a matter of law in refusing to grant his requests for a mistrial and that the trial court's procedure coerced the jury into delivering a verdict. “It is well settled that a trial judge's determination regarding the declaration of a mistrial on jury deadlock grounds involves the exercise of judicial discretion” (*Matter of Rivera v Firetog*, 11 NY3d 501, 507 [2008], *cert denied* 556 US 1193 [2009]; *see People v Baptiste*, 72 NY2d 356, 360 [1988]). Trial courts are “‘best situated to take all [the] circumstances into account and determine whether a mistrial is in fact required in a particular case’” (*Matter of Owen v Stroebel*, 65 NY2d 658, 660 [1985], *cert denied*

474 US 994 [1985], quoting *Matter of Plummer v Rothwax*, 63 NY2d 243, 250 [1984]). A trial court's decision as to whether to grant a mistrial is therefore entitled to "great deference" (*Rivera*, 11 NY3d at 507; *Baptiste*, 72 NY2d at 360; *Plummer*, 63 NY2d at 250).

[2] We cannot say that the trial court abused its discretion as a matter of law in refusing to grant defendant's mistrial requests. We agree with the Appellate Division that although the trial was not lengthy, "at each of the two junctures the circumstances indicated that further deliberations might be fruitful," and "neither of the jury's notes was indicative of a hopeless deadlock" (*Hardy*, 115 AD3d at 512). Moreover, the trial court's procedures were not coercive. The court's *Allen* charges were appropriately balanced and informed the jurors that they did not have to reach a verdict and that none of them should surrender a conscientiously held position in order to reach a unanimous verdict (*cf. People v Aponte*, 2 NY3d 304, 308-309 [2004]).

Accordingly, the order of the Appellate Division should be affirmed.

Chief Judge LIPPMAN and Judges PIGOTT, RIVERA, ABDUS-SALAAM and STEIN concur.

Order affirmed.

[43 NE3d 740, 22 NYS3d 383]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v SAMUEL
SMALL, Also Known as SAMUEL SMALLS, Appellant.

Argued October 22, 2015; decided November 19, 2015

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered December 18, 2013. The Appellate Division affirmed a judgment of the Supreme Court, Kings County (Sheryl L. Parker, J., Patricia M. DiMango, J., and Elizabeth A. Foley, J., on successive motions to dismiss; James P. Sullivan, J., at trial, predicate felony hearing and sentencing), which had convicted defendant, upon a jury verdict, of burglary in the second degree (two counts) and sentenced him as a second violent felony offender.

People v Small, 112 AD3d 857, modified.

HEADNOTES

Crimes — Arrest — Arraignment without Delay — Applicability of Statutory Arraignment Requirement

1. The requirement of CPL 120.90 (1) that, upon arresting a defendant for any offense pursuant to an arrest warrant, a police officer must without unnecessary delay bring the defendant before the local criminal court in which the warrant is returnable for arraignment does not, by the statute's plain terms, apply to a defendant who has not yet been arrested on the warrant. Thus, in a consolidated prosecution arising out of three different burglaries, the People were not subject to the statutory arraignment requirement relating to the second burglary where defendant, who was already in custody at the time a warrant issued for his arrest on the second burglary, was not arrested thereon. Only police officers may execute an arrest warrant (*see* CPL 120.10 [1]), and correction officers are peace officers, not police officers (*see* CPL 1.20 [33]; 2.10 [25]). Even accepting that correction officers informed defendant of his arrest and attempted to arrest him, they could not have legally done so.

Crimes — Arrest — Arraignment without Delay — Reasonableness of Prearraignment Delay

2. In a consolidated prosecution arising out of three different burglaries, it could not be said that a prearraignment delay relating to the second burglary was unreasonable under the circumstances where defendant, who was already in custody at the time a warrant issued for his arrest on the second burglary, was not arraigned thereon over a weekend. The People did not violate the requirement of CPL 120.90 (1) that the defendant be arraigned without "unnecessary delay" by failing to arraign him between Friday and Monday. No specific time span is universally considered reasonable or per se

unreasonable in bringing a defendant before the local criminal court. Moreover, because defendant was already detained on another charge, and his arrest on the second burglary was authorized by a warrant, any pre-arraignment delay did not implicate his constitutional rights. Defendant would have been in custody over the weekend regardless of whether he was arraigned on the second burglary as he was scheduled to appear in court on Monday for a grand jury proceeding on the third burglary.

Grand Jury — Right to Appear before Grand Jury — Applicability of Statutory Notice Requirement

3. The requirement of CPL 190.50 (5) (a) that the People give notice to a person of an upcoming grand jury proceeding against him or her and accord the person a reasonable time to exercise his or her right to appear as a witness does not, pursuant to the statute's plain language, apply where the person has not yet "been arraigned in a local criminal court" on the offense to be presented at the proceeding. Accordingly, in a consolidated prosecution arising out of three different burglaries, the People were not statutorily required to give defendant notice that they would be presenting evidence of the second burglary at a grand jury proceeding scheduled on the third burglary where defendant had not yet been arraigned on the felony complaint for the second burglary.

Crimes — Sentence — Second Violent Felony Offender — Extension of 10-Year Limitation on Predicate Violent Felony Offenses — Incarceration without Reason

4. Where a period of incarceration has been deemed unlawful and unsupported by evidence, notwithstanding that the conviction underlying the incarceration period has not been invalidated or vacated, the incarceration period does not extend the 10-year limitation on predicate violent felony offenses that governs second violent felony offender adjudications (*see* Penal Law § 70.04 [1] [b] [iv]) as it does not qualify as a period of time during which the defendant was incarcerated "for any reason" (Penal Law § 70.04 [1] [b] [v]). The statutory phrase "for any reason" means that a period of incarceration will not be excluded from the 10-year calculation if it was "without reason" or "patently unjustified." Thus, where a habeas court did not vacate defendant's conviction for a parole violation occurring between his prior violent felony offense and his current conviction but did grant his immediate release from confinement after determining that "the evidence did not support" his incarceration, the period of time defendant was incarcerated on the parole violation conviction could not be used to extend the 10-year limitation. That the habeas court granted defendant's immediate release based on a lack of evidence indicated that defendant was "imprisoned without reason."

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Arrest §§ 23, 24; AM JUR 2d, Criminal Law §§ 545, 548; AM JUR 2d, Grand Jury §§ 40, 51; AM JUR 2d, Habitual Criminals and Subsequent Offenders §§ 20-22.

CARMODY-WAIT 2d, Arrest or Other Detention; Post-Arrest Procedure §§ 177:128, 177:131, 177:148; CARMODY-WAIT

2d, Commencing the Prosecution; Grand Jury §§ 178:210, 178, 211; CARMODY-WAIT 2d, Sentencing Procedures §§ 203:140, 203:142.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 3.5, 15.6, 15.7, 26.6.

McKINNEY'S, CPL 120.90 (1); 190.50 (5) (a); Penal Law § 70.04 (1) (b) (iv), (v).

NY JUR 2d, Criminal Law: Procedure §§ 170, 181, 184, 1155-1158, 3238, 3274, 3284, 3285.

ANNOTATION REFERENCE

See ALR Index under Arraignment; Arrests; Grand Jury; Habitual Criminals and Subsequent Offenders; Sentence and Punishment.

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POINTS OF COUNSEL

Lynn W.L. Fahey, Appellate Advocates, New York City (David P. Greenberg and William A. Loeb of counsel), for appellant. I. By failing to produce appellant for arraignment on charges in the felony complaint, as directed by the arrest warrant, the People unlawfully thwarted the grand jury notice requirement and rendered themselves incapable of readiness for trial on those charges. (*People ex rel. Maxian v Brown*, 77 NY2d 422; *People v Evans*, 79 NY2d 407; *People v Golden*, 250 AD2d 622; *People v Smoke*, 43 AD3d 1332; *People v Maddox*, 31 AD3d 970; *People v Dahlbender*, 23 AD3d 493; *People v Brown*, 14 AD3d 356; *People v Jones*, 281 AD2d 185; *People v Perez-Tavares*, 238 AD2d 446; *People v Choi*, 210 AD2d 495.) II. Because a 1993 habeas corpus decision found that appellant's incarceration on a 1992 parole violation charge was unsupported by the evidence, that incarceration could not be used to extend the 10-year limitation on prior felonies so as to allow appellant's adjudication as a second felony offender. (*People v Dozier*, 78 NY2d 242; *People v Love*, 71 NY2d 711; *People v Cohen*, 50 NY2d 908.)

Kenneth P. Thompson, District Attorney, Brooklyn (Ann Bordley and Leonard Joblove of counsel), for respondent. I. The trial court properly denied defendant's motion to dismiss the indictment in the interest of justice and his motion to dismiss

the indictment on the basis of an alleged jurisdictional impediment to his conviction. (*People v Rickert*, 58 NY2d 122; *People v Belge*, 41 NY2d 60; *People v Herman L.*, 83 NY2d 958; *People ex rel. Matthews v New York State Div. of Parole*, 95 NY2d 640; *People ex rel. Maxian v Brown*, 77 NY2d 422; *County of Riverside v McLaughlin*, 500 US 44; *Gerstein v Pugh*, 420 US 103; *People v Ramos*, 99 NY2d 27; *People v Pressley*, 94 NY2d 935; *United States v Drake*, 655 F2d 1025.) II. Defendant's CPL 30.30 claim with respect to the Taitt burglary is meritless. (*People v Cortes*, 80 NY2d 201; *People v Farkas*, 16 NY3d 190; *People v Sinistaj*, 67 NY2d 236; *People v Sant*, 120 AD3d 517; *People v Dearstyne*, 230 AD2d 953; *People v Schaffer*, 200 AD2d 695; *People v Beasley*, 16 NY3d 289; *People v Goode*, 87 NY2d 1045; *People v Luperon*, 85 NY2d 71; *People v Henderson*, 120 AD3d 1258.) III. The trial court properly adjudicated defendant a second violent felony offender. In any event, even if defendant's adjudication was erroneous, defendant's sentences should not be disturbed. (*People v McEachern*, 275 AD2d 330; *People v Cagle*, 7 NY3d 647; *People v Meckwood*, 20 NY3d 69; *People v Love*, 71 NY2d 711; *People v Catalanotte*, 72 NY2d 641; *People v Dozier*, 78 NY2d 242; *People ex rel. Flores v Dalsheim*, 66 AD2d 381; *People v Huntley*, 43 NY2d 175; *People ex rel. McGee v Walters*, 62 NY2d 317; *People ex rel. Lord Organic Allah v New York State Bd. of Parole*, 158 AD2d 328.)

OPINION OF THE COURT

PIGOTT, J.

Defendant Samuel Small, also known as Samuel Smalls, was indicted on March 30, 2006 for various charges arising from a burglary that occurred January 11, 2005 in Brooklyn. He was arrested on April 4, 2006 for a different burglary that occurred earlier that day. At arraignment, the People served notice that they would be presenting the April 4 burglary to the grand jury on Monday, April 10, and defendant notified the People that he wished to testify.

Sometime between April 4 and April 7, the People learned that defendant was connected to yet another burglary that occurred February 23, 2006. On April 7, they filed a felony complaint against defendant for that crime and obtained a warrant for his arrest. Because defendant was already in custody for the April 4 burglary, however, he was never formally arrested or brought before a court on the new charges. According to defendant, prison officials merely informed him that he was being arrested for a different offense. When defendant ap-

peared in court on April 10 for the grand jury proceeding, the People notified him that they would also ask about the February 23 burglary. Defendant agreed to waive immunity and testify about both the February and April burglaries. The grand jury returned a true bill with respect to both incidents, charging defendant with two counts of burglary in the second degree (Penal Law § 140.25 [2]) and other related offenses.

Defendant unsuccessfully moved on three separate occasions to dismiss the indictment based on the People's noncompliance with the arrest warrant, their failure to provide adequate grand jury notice and their resulting inability to declare readiness for trial. After a jury trial on the consolidated indictments, defendant was found guilty of one count of burglary in the second degree relative to the January 2005 burglary and one count of burglary in the second degree relative to the February 23 burglary. (He was acquitted of all counts related to the April 4 burglary.)

The sentencing court adjudicated defendant a second violent felony offender based on a 1985 conviction for robbery in the second degree, concluding that the prior offense occurred within 10 years of defendant's January 2005 burglary, after excluding intervening periods of time during which defendant was incarcerated. Defendant objected, arguing that one of the periods of incarceration—442 days from August 1992 to October 1993 for a parole violation—should not have been used to extend the 10-year limit because a habeas court had ordered his release from confinement. In light of the evidence presented at the parole revocation hearing, the habeas court concluded that defendant had been unlawfully confined and ordered his immediate release.

The sentencing court rejected defendant's argument with respect to the parole violation, found the 1985 conviction to be a valid predicate felony and sentenced him to 15 years in prison followed by five years of postrelease supervision for the January 2005 burglary.

The Appellate Division affirmed the judgment of conviction and sentence (*People v Small*, 112 AD3d 857 [2d Dept 2013]), and a Judge of this Court granted defendant leave to appeal (23 NY3d 1067 [2014]).

We hold that the courts below properly denied defendant's motions to dismiss the grand jury indictment for the February 23 burglary. But we agree with defendant that he should not

have been sentenced as a second violent felony offender and therefore modify the order of the Appellate Division by remitting the case for resentencing.

I

Defendant seeks to vacate his conviction for the February 23 burglary based on two alleged violations of the Criminal Procedure Law: (1) failure to arraign him “without unnecessary delay” in violation of CPL 120.90 and (2) failure to give him notice of a grand jury proceeding in violation of CPL 190.50.

[1] CPL 120.90 provides that, “[u]pon arresting a defendant for any offense pursuant to a warrant of arrest . . . a police officer . . . must without unnecessary delay bring the defendant before the local criminal court in which such warrant is returnable” (CPL 120.90 [1]). Defendant claims he was arrested for the February 23 burglary on Friday, April 7, and that the failure to arraign him on those charges before Monday, April 10, constituted unnecessary delay. The courts below correctly concluded, however, that the People were not subject to the “unnecessary delay” requirement of CPL 120.90 because defendant was not arrested on April 7. Only police officers may execute an arrest warrant (*see* CPL 120.10 [1]), and correction officers are peace officers, not police officers (*see* CPL 1.20 [33]; 2.10 [25]). Even if we accept defendant’s assertions that correction officers informed him of his arrest and that they attempted to arrest him, they could not have legally done so. Therefore, section 120.90, by its plain terms, does not apply in this situation.

[2] Additionally, the People did not violate section 120.90 by failing to arraign defendant between Friday and Monday. “No specific time span is universally considered reasonable or per se unreasonable” in bringing a defendant before the local criminal court (Peter Preiser, Practice Commentaries, McKinney’s Cons Laws of NY, Book 11A, CPL 120.90 at 522 [2004]). Because defendant was already detained on another charge, and his arrest was authorized by a warrant, any pre-arraignment delay did not implicate defendant’s constitutional rights (*see id.* [distinguishing prearraignment delay following a warrantless arrest from prearraignment delay following an arrest authorized by a warrant, noting that the latter has already been subject to a judicial “determination of reasonable cause by a neutral, detached official”]; *cf. People ex rel. Maxian v*

Brown, 77 NY2d 422, 427 [1991] [finding 24-hour delay unreasonable when it followed a warrantless arrest]). Defendant would have been in custody until April 10 regardless of whether he was arraigned on the February 23 burglary, as he was scheduled to appear in court on that date for the grand jury proceeding. Under these circumstances, we cannot say the weekend delay was unreasonable.¹

Defendant also argues that the People violated CPL 190.50 (5) (a) by failing to give him notice that they would be presenting evidence of the February 23 burglary at the April 10 grand jury proceeding. That provision states that “[w]hen a criminal charge against a person is being or is about to be or has been submitted to a grand jury, such person has a right to appear before such grand jury as a witness in his own behalf” (CPL 190.50 [5] [a]). “The district attorney is not obliged to inform such a person” about the grand jury proceeding, however, “unless such person is a defendant *who has been arraigned in a local criminal court* upon a currently undisposed of felony complaint charging an offense which is a subject of the . . . proceeding” (*id.* [emphasis added]). In such a case, “the district attorney must notify the defendant or his attorney of the prospective or pending grand jury proceeding and accord the defendant a reasonable time to exercise his right to appear as a witness” (*id.*). If the People fail to comply with the statute’s notice requirement, the grand jury proceeding is defective and, upon a motion by the defendant, the resulting indictment must be dismissed (CPL 190.50 [5] [c]; 210.20 [1] [c]; 210.35 [4]).

[3] Just as the “unnecessary delay” provision in CPL 120.90 does not apply to a defendant who has not yet been arrested, the notice requirement in CPL 190.50 (5) (a) does not apply to a defendant who has not yet been arraigned. The statute’s plain language entitles a person to notice of an upcoming grand jury proceeding only if he has “been arraigned in a local criminal court” on the offense to be presented (*id.*). Because defendant had not yet been arraigned on the felony complaint for the February 23 burglary, the People were not statutorily

1. To the extent defendant argues that the police also violated CPL 120.90 (1) by failing to arrest him pursuant to the warrant, that claim is unpreserved.

required to notify him that they would also be presenting on those charges.²

II

Defendant further contends that he should not have been sentenced as a second violent felony offender for the January 2005 burglary because his 1985 conviction for second-degree robbery occurred more than 10 years earlier, and the intervening periods of incarceration did not close the gap.

A defendant who stands convicted of a violent felony may be adjudicated a second violent felony offender if he was previously convicted of a violent felony within 10 years of the current offense (*see* Penal Law § 70.04 [1] [b] [iv]). “[A]ny period of time during which the person was incarcerated for any reason between the time of commission of the previous felony and the time of commission of the present felony” is excluded from the 10-year calculation (Penal Law § 70.04 [1] [b] [v]).

Central to this appeal is the language “for any reason.” The legislative history “is silent” on the meaning of that phrase (*People v Love*, 71 NY2d 711, 716 [1988]), but we have construed it to mean that a period of incarceration will *not* be excluded if it was “without reason” or “patently unjustified” (*People v Dozier*, 78 NY2d 242, 249-250 [1991] [emphasis omitted], quoting *Love*, 71 NY2d at 716). Thus, in *Dozier* we found that a period of incarceration should not have been excluded where it was based on a conviction that was subsequently overturned due to newly discovered evidence. We reasoned that extending the 10-year limitation on prior violent felonies “for an unjustified period of incarceration resulting from a flawed conviction,” would amount to an absurd, unreasonable or unjust construction of the Penal Law (*id.* at 250).

[4] Although the habeas court did not vacate defendant’s conviction for a parole violation, it did grant his immediate release from confinement after determining that “the evidence did not support” defendant’s incarceration. A person “illegally imprisoned or otherwise restrained in his liberty . . . may petition without notice for a writ of habeas corpus to inquire into the cause of such detention and for deliverance” (CPLR 7002 [a]). If a judge considering the habeas petition determines that a person has been unlawfully detained, he “shall . . . is-

2. In light of this conclusion, we have no need to consider defendant’s CPL 30.30 claim.

sue a writ of habeas corpus for the relief of that person” (*id.*). That the habeas court in this case granted defendant’s immediate release based on a lack of evidence indicates that defendant was “imprisoned without reason” from 1992-1993. We decline to read section 70.04 (1) (b) (v), or our decisions in *Dozier* and *Love*, to include only those periods of incarceration that are based on subsequently invalidated or vacated convictions (*see Dozier*, 78 NY2d at 249 [rejecting a strict, literal reading of section 70.04 (1) (b) (v)]). Where, as here, a period of incarceration has been deemed unlawful and unsupported by evidence, it should not be used to extend the 10-year limitation on prior violent felony convictions.

Accordingly, the order of the Appellate Division should be modified by remitting the case to Supreme Court for resentencing in accordance with this opinion and, as so modified, affirmed.

Chief Judge LIPPMAN and Judges RIVERA, ABDUS-SALAAM, STEIN and FAHEY concur.

Order modified by remitting the case to Supreme Court, Kings County, for resentencing in accordance with the opinion herein and, as so modified, affirmed.

[43 NE3d 362, 22 NYS3d 152]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JULIO NEGRON, Appellant.

Argued October 21, 2015; decided November 23, 2015

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered December 11, 2013. The Appellate Division affirmed an order of the Supreme Court, Queens County (Gregory L. Lasak, J.), which had denied, without a hearing, defendant's motion pursuant to CPL 440.10 to vacate a judgment of that court which had convicted defendant, upon a jury verdict, of attempted murder in the second degree, assault in the first degree, reckless endangerment in the first degree, criminal possession of a weapon in the second degree, and criminal possession of a weapon in the third degree.

People v Negron, 112 AD3d 741, reversed.

HEADNOTES

Crimes — Right to Counsel — Effective Representation — Third-Party Culpability Evidentiary Standard

1. Defendant did not receive meaningful representation and his right to a fair trial was compromised because his trial attorney failed to object to the court's use of the incorrect "clear link" standard when evaluating defendant's request to offer evidence that a third party had committed the shooting for which defendant had been charged, as a determination that the evidence was admissible would have been permissible had the court conducted the proper analysis. Third-party culpability evidence should be evaluated in accordance with ordinary evidentiary principles—by balancing probative value against the potential for undue prejudice, delay and confusion. There was no evidence establishing that the third party actually committed the shooting. However, he did bear a general resemblance to the description of the perpetrator, lived in the same building and was arrested in close proximity to the time of the offense for possessing weapons and ammunition, including the type of ammunition used in the shooting, under circumstances evincing a consciousness of guilt. Such evidence could not be classified as remote or disconnected from the crime at issue. Moreover, trial counsel provided an affidavit stating that he had done no research on third-party culpability, was unaware of the correct legal standard and had no excuse or strategic explanation for the lapse in representation.

Crimes — Disclosure — Failure to Disclose Exculpatory Material

2. Defendant was deprived of his right to a fair trial for attempted murder by the prosecution's failure to disclose evidence supporting defendant's third-party culpability defense, as the evidence against defendant was far from

overwhelming and therefore there was a reasonable possibility that the verdict would have been different if the information had been disclosed. There was no physical evidence tying defendant to the shooting and only one out of the five eyewitnesses identified defendant as the perpetrator. The evidence that the third party was arrested in close proximity to the time of the offense for possessing weapons and ammunition, including the type of ammunition used in the shooting, was plainly favorable to the defense. Such information would have added a little more doubt to the jury's view of the evidence, and it was reasonably possible that a little more doubt would have been enough.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Criminal Law §§ 1137-1139, 1149, 1154; AM JUR 2d, Evidence § 598; AM JUR 2d, Habeas Corpus §§ 47-48, 55; AM JUR 2d, Homicide § 283; AM JUR 2d, Trial § 248.
CARMODY-WAIT 2d, Right to Counsel §§ 184:156, 184:160, 184:168, 184:230, 184:248, 184:264, 184:272; CARMODY-WAIT 2d, Fundamentals of Criminal Evidence § 193:11.
LAFAYE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 11.4, 11.6, 11.10, 21.3.
MCKINNEY'S, CPL 440.10.
NY JUR 2d, Criminal Law: Procedure §§ 859, 866-877, 878, 883, 895, 899, 906, 916, 2022-2024, 3433.

ANNOTATION REFERENCE

Admissibility of evidence of commission of similar crime by one other than accused. 22 ALR5th 1.

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POINTS OF COUNSEL

Law Offices of Joel B. Rudin, New York City (*Joel B. Rudin* of counsel), for appellant. I. Counsel's multiple inexcusable failures rendered his assistance constitutionally ineffective. (*Strickland v Washington*, 466 US 668; *People v Baldi*, 54 NY2d 137; *Murray v Carrier*, 477 US 478; *People v Caban*, 5 NY3d 143; *Espinal v Bennett*, 588 F Supp 2d 388; *Pavel v Hollins*, 261 F3d 210; *People v Brown*, 45 NY2d 852; *People v Oliveras*, 21 NY3d 339; *People v Droz*, 39 NY2d 457; *People v Bennett*, 29 NY2d 462.) II. The People violated their obligation under *Brady* and *Vilardi* to disclose evidence supportive of Julio Negron's

third-party culpability defense. (*Brady v Maryland*, 373 US 83; *Strickler v Greene*, 527 US 263; *United States v Bagley*, 473 US 667; *People v Vilardi*, 76 NY2d 67; *United States v Agurs*, 427 US 97; *People v Colon*, 13 NY3d 343; *Leka v Portuondo*, 257 F3d 89; *Miller v Angliker*, 848 F2d 1312; *People v Steadman*, 82 NY2d 1; *People v Novoa*, 70 NY2d 490.)

Richard A. Brown, District Attorney, Kew Gardens (*William H. Branigan*, *Laura T. Ross*, *Robert J. Masters* and *John M. Castellano* of counsel), for respondent. I. The Appellate Division correctly held that defendant failed to establish that he received ineffective assistance of counsel. (*People v Oathout*, 21 NY3d 127; *People v Benevento*, 91 NY2d 708; *People v Baldi*, 54 NY2d 137; *People v Baker*, 14 NY3d 266; *People v Satterfield*, 66 NY2d 796; *People v Borrell*, 12 NY3d 365; *People v Turner*, 5 NY3d 476; *People v Henry*, 95 NY2d 563; *People v Flores*, 84 NY2d 184; *People v Ryan*, 90 NY2d 822.) II. The People fully complied with their obligations under *Brady v Maryland*. (*Brady v Maryland*, 373 US 83; *People v Steadman*, 82 NY2d 1; *People v Bryce*, 88 NY2d 124; *People v Novoa*, 70 NY2d 490; *California v Trombetta*, 467 US 479; *Tate v Wood*, 963 F2d 20; *People v Pannell*, 3 AD3d 541; *People v Kaminski*, 156 AD2d 471; *People v Scattareggia*, 152 AD2d 679; *People v Garrett*, 23 NY3d 878.)

OPINION OF THE COURT

Chief Judge LIPPMAN.

Defendant has moved to vacate his conviction under CPL 440.10, based upon claims that he received ineffective assistance of counsel at trial and that the People failed to disclose evidence that would have supported a third-party culpability defense. We conclude that defendant's conviction should be vacated and a new trial ordered.

Defendant was identified as the man who shot another individual in the leg after a brief argument on Woodward Avenue in Queens, but the identification evidence was hardly overwhelming. The episode occurred at about 4:00 a.m. on February 6, 2005 after an apparent "road rage" incident. In addition to the victim and his passenger, there were three other witnesses who were sitting in a parked car on the street—all of whom left the scene immediately after the shooting. The witnesses returned to the scene shortly thereafter to speak with police and related that the shooter had entered a particular apartment building located on Woodward Avenue. One witness

described defendant as having facial hair. They also identified a 1999 Chevrolet Monte Carlo as having been driven by the perpetrator. The hood of the Monte Carlo was still warm to the touch when the police arrived. The police ascertained that the vehicle belonged to defendant, who resided in the apartment building to which the perpetrator had retreated.

Later that morning, defendant told detectives that he had driven his car the previous evening, that he was the only one who drove it and that he had returned home at about 2:00 a.m. He agreed to accompany the police to the precinct and consented to searches of his apartment and his vehicle. No evidence was found that linked him to the shooting.

None of the witnesses, save the victim, was able to identify defendant as the perpetrator.¹ Indeed, two of the witnesses identified fillers from the lineups they viewed—one selecting an individual with facial hair—and a third witness, who viewed defendant at a precinct showup, stated that defendant was not the shooter.

Prior to the close of the People's case, defense counsel sought to introduce evidence that a third party, Fernando Caban, had committed the shooting. Defense counsel represented that Caban closely matched the description of defendant, lived in the same building and was arrested the day after the incident for weapons possession. The People objected, disputing that there was any close resemblance between the two other than a shared ethnicity, and maintaining that it was irrelevant that Caban had been arrested the next day for possession of weapons which had not been used to commit this offense and which had been found on the roof of an adjacent building. The court rejected defendant's application, stating "[t]he case law is clear. You have to show a clear link between this person and the crime in question. You haven't shown that." No party objected to the court's use of the "clear link" standard.

Defendant testified in his own defense and stated that he had been clean-shaven at the time of the offense. The People then introduced defendant's driver's license photograph, which depicted him with a moustache and a goatee. However, defendant testified (without rebuttal) that the photograph had been taken eight years earlier.

1. The victim identified defendant at a lineup that was later suppressed as suggestive. After an independent source hearing, the victim was, however, permitted to identify defendant in court.

Defendant was convicted of attempted murder in the second degree, assault in the first degree, reckless endangerment in the first degree and criminal possession of a weapon in the second and third degrees. His conviction was affirmed on direct appeal (41 AD3d 865 [2d Dept 2007]) and a Judge of this Court denied his application for leave to appeal (9 NY3d 924 [2007]).

In December 2008, defendant made a pro se motion to vacate his judgment of conviction pursuant to CPL 440.10. In support of the motion, he raised several arguments, including that the prosecution had committed a violation of its obligations under *Brady v Maryland* (373 US 83 [1963]) by failing to disclose “that another man, Caban, was arrested in the building where all the witnesses say the perpetrator ran, with the weapon used in the shooting,” and that he had received ineffective assistance of counsel because his trial attorney failed to call or interview certain witnesses who would have testified that defendant did not have facial hair at the time of the offense. Defendant included letters from 11 witnesses stating that defendant had been clean-shaven.

Supreme Court denied the motion without a hearing. The court deemed defendant’s ineffective assistance claim meritless, stating that defendant had failed to demonstrate prejudice. In addition, the court rejected defendant’s *Brady* claim, observing that there had been an on-the-record discussion relating to Caban at defendant’s trial. Defendant moved multiple times pursuant to CPLR 2221 for reargument and renewal, but the court never rendered a decision on the motions.

Defendant then received a response to a prior Freedom of Information Law request which included an affirmation in opposition to Caban’s motion to dismiss his indictment, from the same trial assistant who had prosecuted defendant’s case. The document provided additional information about the circumstances of Caban’s arrest, including that Caban’s attempt to discard the weapons on the roof of a neighboring building had coincided with the arrival of the police to execute the search warrant on defendant’s apartment and that Caban had been in possession of .45 caliber ammunition.²

Defendant, now represented by counsel, made the instant motion pursuant to CPL 440.10 and CPLR 2221 to vacate his

2. This information was also submitted to Supreme Court in one of defendant’s renewal motions that the court failed to decide.

conviction in April 2012.³ He argued that the People had violated their *Brady* obligations by failing to disclose the information about the circumstances of Caban’s arrest and his possession of the .45 caliber ammunition, while actively misleading the court as to the potential merit of defendant’s third-party culpability defense. Defendant also argued that his trial counsel had been ineffective for failing to make even minimal investigation into the facts or law in support of the third-party culpability defense and for failing to investigate and introduce evidence that defendant did not match the description of the shooter. In particular, defendant asserted that counsel was ineffective in failing to object to the court’s use of the previously overruled “clear link” standard in rejecting his third-party culpability defense.

In support of the motion, defendant submitted an affidavit from his trial counsel who stated that, at the time of trial, he had known that Caban had been arrested and charged with possession of weapons and ammunition that had been found on the roof of a nearby building. Trial counsel represented, however, that he had not known that Caban had attempted to get rid of the contraband in response to the police arriving to execute the search warrant or that Caban had been in possession of .45 caliber ammunition. Counsel further affirmed that he did not object to the court’s use of the “clear link” standard in rejecting the third-party culpability defense because he was unaware that the standard had been overruled several years earlier—stating, “I did not research this issue at all. I have no explanation or excuse for this failure.” Trial counsel further represented that he had no strategic reason for failing to make use of photographs and potential witnesses that would have established that defendant had no facial hair at the time of the crime.

The court denied the motion without a hearing. The court concluded that the People had not suppressed *Brady* evidence because the information about the ammunition was neither material nor exculpatory. In addition, despite the People’s representation that they had not turned over the information about the ammunition, the court stated that it had found in its own file a reference to the .45 caliber ammunition in the *Rosa-*

3. Counsel represented that the evidence upon which the motion was based had not been available to pro se defendant at the time he made the 2008 motion.

rio materials the People had turned over to the defense. The court also concluded that, despite its use of the “clear link” language, it had actually conducted the proper general balancing analysis and it adhered to the determination that evidence of Caban’s arrest was not sufficiently probative to outweigh the potential for undue prejudice or jury confusion. Finally, the court rejected defendant’s ineffective assistance argument in its entirety.

The Appellate Division affirmed, holding that defendant failed to establish that he had received ineffective assistance of counsel under either the federal or state standards (112 AD3d 741 [2d Dept 2013]). The Court also determined that undisclosed material about Caban was not exculpatory and that “there is no reasonable probability that the failure to disclose the materials contributed to the verdict” (112 AD3d at 744). A Judge of this Court granted defendant leave to appeal (23 NY3d 1065 [2014]) and we now reverse.

Defendant maintains that he received ineffective assistance of counsel because his trial attorney failed to object to the court’s use of the incorrect standard when evaluating his request to offer third-party culpability evidence.⁴ Prior to being overruled by this Court in *People v Primo*, the “clear link” standard had required the defendant to “do more than raise a mere suspicion that another person committed the crime,” that is, to show “a clear link between the third party and the crime in question” (96 NY2d 351, 355 [2001] [emphasis, internal quotation marks and citations omitted]). Instead, we determined that third-party culpability evidence should be evaluated in accordance with ordinary evidentiary principles—by balancing probative value against the potential for “undue prejudice, delay and confusion” (*see* 96 NY2d at 356-357).

[1] Here, there is no evidence, in the form of a ballistics report or otherwise, establishing that Caban actually committed the shooting. However, Caban did bear a general resemblance to the description of the perpetrator, lived in the same building and was arrested in close proximity to the time of the offense for possessing weapons and ammunition (including the

4. Defendant also asserts that counsel was ineffective for failing to investigate his misidentification defense or to present evidence that he did not resemble the description of the perpetrator as having facial hair. However, we do not address the merits of this portion of his claim, as it was raised and rejected in defendant’s original CPL 440.10 motion (*see* CPL 440.10 [3] [b]; CPLR 2221 [e]).

type of ammunition used in the shooting) under circumstances evincing a consciousness of guilt. This evidence cannot be classified as “[r]emote” or “disconnected” from the crime at issue (*compare People v Schulz*, 4 NY3d 521, 529 [2005]).

Although the motion court concluded, in retrospect, that it had applied the proper balancing test, the face of the record simply does not support that conclusion. Had the court conducted the proper analysis, a determination that the third-party culpability evidence was admissible would have been permissible. More importantly, trial counsel provided an affidavit stating that he had done no research on third-party culpability, was unaware of the correct legal standard and had no excuse or strategic explanation for the lapse in representation. Under these circumstances, defendant did not receive meaningful representation and his right to a fair trial was compromised (*see People v Oliveras*, 21 NY3d 339, 348 [2013]).

Relatedly, defendant argues that the People failed to turn over *Brady* evidence that would have been supportive of his third-party culpability defense—in particular, information concerning the circumstances of Caban’s arrest and his possession of .45 caliber ammunition.⁵ The trial assistant (who was also prosecuting Caban and was quite familiar with the circumstances of his arrest) in addressing defendant’s third-party culpability application characterized Caban’s arrest as “irrelevant” and his connection with the shooting as “tenuous at best.” The prosecutor also attempted to portray defendant’s application as a mere attempt to pin the crime on another individual who lived in the same building and happened to be of the same ethnicity, all while aware that defense counsel was not fully familiar with the relevant information surrounding Caban’s arrest.

Under *Brady*, “the prosecution’s failure to disclose to the defense evidence in its possession both favorable and material to the defense entitles the defendant to a new trial” (*People v Vilardi*, 76 NY2d 67, 73 [1990]). “[W]here a defendant makes a specific request for a document, the materiality element is established provided there exists a reasonable possibility that

5. We are not bound by the motion court’s finding, even though affirmed by the Appellate Division, that the People actually had turned over evidence that Caban was arrested in possession of .45 caliber ammunition (*compare People v McBride*, 14 NY3d 440, 446 [2010]). There is no support in the record for that determination and the People concede that they have no record of ever providing the defense with such evidence.

it would have changed the result of the proceedings” (*People v Garrett*, 23 NY3d 878, 891-892 [2014] [internal quotation marks and citations omitted]).

[2] Here, where the evidence against defendant was far from overwhelming, there is a reasonable possibility that the verdict would have been different if the information about Caban had been disclosed. There was no physical evidence tying defendant to the shooting and only one out of the five eyewitnesses identified defendant as the perpetrator. The evidence of Caban’s .45 caliber ammunition was plainly favorable to the defense. In other words, this information “would have added a little more doubt to the jury’s view of the” evidence and it is reasonably possible “that a little more doubt would have been enough” (*People v Hunter*, 11 NY3d 1, 6 [2008]).

Under the circumstances presented, it cannot be said that defendant received a fair trial and it was error to deny the application to vacate his judgment of conviction. On this record, a new trial is required.

Accordingly, the order of the Appellate Division should be reversed, defendant’s motion pursuant to CPL 440.10 granted, defendant’s judgment of conviction and sentence vacated and a new trial ordered.

PIGOTT, J. (dissenting in part). Defendant moved pursuant to CPL 440.10 to vacate his judgment of conviction on two grounds. First, he claimed he was denied the effective assistance of counsel, because, among other things, his attorney did not object to the trial court’s use of an incorrect standard in deciding whether to allow in evidence the weapon possession arrest of defendant’s neighbor.

Second, defendant claimed that the People failed to turn over certain *Brady* material that pertained to the neighbor’s arrest. While I agree with the majority that the courts below erred in denying defendant’s motion on the papers without a hearing, I disagree that defendant is entitled to a new trial. Rather, questions of fact remain on the issues and, thus, I would remit to Supreme Court for a hearing (*see generally People v Caldavado*, 26 NY3d 1034 [2015]).

In support of his ineffective assistance of counsel claim, defendant provided an affidavit from his trial counsel stating that he had done no research on third-party culpability, was unaware of the correct legal standard and had no excuse or

strategic explanation for his failure to object. While this affidavit supports defendant's position, it is not necessarily determinative of the issue since its claims have not been subject to further inquiry or cross-examination. Therefore, the hearing court should determine, considering all of the circumstances surrounding this case, whether counsel's failure was so prejudicial to defendant's case as to deprive him of meaningful representation.

The second basis for defendant's motion pertains to the alleged failure by the People to turn over *Brady* material. Notably, the courts below concluded that the material at issue was, in fact, turned over to defense counsel. While, as the majority recognizes, we are not bound by that determination, it raises another question of fact that should be resolved in a hearing. Assuming that issue is resolved in defendant's favor, the issue then of whether there is a reasonable possibility that the verdict would have been different if the *Brady* information was turned over, would be another inquiry for the hearing court (see *People v Vilardi*, 76 NY2d 67, 73 [1990]). For these reasons, I dissent.

Judges RIVERA, STEIN and FAHEY concur; Judge PIGOTT dissents in part in an opinion in which Judge ABDUS-SALAAM concurs.

Order reversed and defendant's motion pursuant to CPL 440.10 granted, defendant's judgment of conviction and sentence vacated and a new trial ordered.

[44 NE3d 154, 23 NYS3d 79]

In the Matter of WALTER E. CARVER, Respondent, v STATE OF
NEW YORK et al., Appellants.

Argued September 16, 2015; decided November 19, 2015

SUMMARY

APPEAL, by permission of the Court of Appeals, from a stipulation and order of contingent settlement of the Supreme Court, Kings County (Sylvia G. Ash, J.), dated February 7, 2014. The stipulation ordered respondent New York State Office of Temporary and Disability Assistance (OTDA) to (1) pay petitioner's counsel \$100,000, in full satisfaction of any and all claims for attorney's fees, costs and expenses, and (2) pay petitioner \$5,000, the amount withheld from petitioner when he won a lottery prize in 2007. The appeal brings up for review a prior nonfinal order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered June 21, 2011. The Appellate Division order, insofar as sought to be reviewed, (1) modified, on the law, an order and judgment (one paper) of that Supreme Court (Martin Schneier, J.; op 24 Misc 3d 602 [2009]), which had, insofar as appealed from, (a) granted that branch of respondents' cross motion which was to dismiss the petition insofar as asserted against respondents OTDA and David A. Hansell, Commissioner of OTDA, seeking to annul a determination withholding one half of petitioner's lottery prize winnings; (b) denied the petition insofar as asserted against those respondents; and (c) dismissed the proceeding insofar as asserted against those respondents; (2) reinstated the fourth cause of action against those respondents; and (3) remitted the matter to the Supreme Court, Kings County, for further proceedings. The modification consisted of (1) deleting the provisions of the order and judgment granting that branch of respondents' cross motion which was to dismiss the fourth cause of action insofar as asserted against respondents OTDA and David A. Hansell, Commissioner of OTDA, and dismissing that cause of action against those respondents; and (2) substituting therefor a provision denying that branch of the cross motion.

Matter of Carver v State of New York, 87 AD3d 25, affirmed.

HEADNOTE

Social Services — Public Assistance — Reimbursement from Lottery Winnings — Work Experience Program Participant “Employee” under Federal Fair Labor Standards Act

In a CPLR article 78 proceeding challenging respondent’s retention of one half of petitioner’s lottery prize winnings as reimbursement for public assistance benefits he received in exchange for work performed for the City of New York through its Work Experience Program (WEP), petitioner was an employee of the City within the meaning of the Federal Fair Labor Standards Act (FLSA) entitled to the protection of its minimum wage provisions. To determine whether an individual qualifies as an employee under the FLSA, a court must look to the economic reality, not the technical concepts, of the relationship. Under the “economic reality” test, the relevant factors include whether the alleged employer had the power to hire and fire the employees, supervised and controlled employee work schedules or conditions of employment, determined the rate and method of payment, and maintained employment records. The City had the power to hire and fire WEP workers, and the City and its WEP agencies supervised and controlled the work schedule of the workers. Furthermore, the City and its agencies maintained the employment records of the WEP workers. While the Social Services Law, not the WEP agencies or the City, determined the rate and method of payment of WEP workers, that is one factor, and the economic reality test encompasses the totality of the circumstances. Petitioner’s work was no different from the janitorial services performed by salaried City employees at many offices and other locations. His benefits were compensation, given in exchange for his work—even if some of those benefits were not paid in cash—and he was entirely dependent on those benefits for years. Accordingly, petitioner was entitled to minimum wage for his hours worked as a participant in the WEP program, and respondent could not retroactively deprive him of a minimum wage by recouping the funds through petitioner’s lottery prize.

RESEARCH REFERENCES

By the Publisher’s Editorial Staff

AM JUR 2d, Welfare Laws §§ 92, 93.

NY JUR 2d, Public Welfare and Elder Assistance §§ 96, 399.

ANNOTATION REFERENCE

See ALR Index under Welfare Benefits.

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POINTS OF COUNSEL

Eric T. Schneiderman, Attorney General, New York City (Valerie Figueredo, Barbara D. Underwood and Anisha S. Dasgupta of counsel), for appellants. The Fair Labor Standards

Act's minimum wage requirements do not apply to the monetary grants the State of New York provides to public assistance recipients. (*Tony & Susan Alamo Foundation v Secretary of Labor*, 471 US 290; *Bruckman v Giuliani*, 94 NY2d 387; *Matter of Siwek v Mahoney*, 39 NY2d 159; *O'Connor v Davis*, 126 F3d 112; *Nationwide Mut. Ins. Co. v Darden*, 503 US 318; *Community for Creative Non-Violence v Reid*, 490 US 730; *Graves v Women's Professional Rodeo Assn., Inc.*, 907 F2d 71; *Bucci v Village of Port Chester*, 22 NY2d 195; *Matter of Hull-Hazard, Inc. v Roberts*, 72 NY2d 900.)

Empire Justice Center, Albany (Susan C. Antos and Saima A. Akhtar of counsel), and *Empire Justice Center*, Rochester (Peter O'Brian Dellinger and Bryan D. Hetherington of counsel), for respondent. I. The decision of the Appellate Division was correct: Mr. Walter Carver is entitled to the protection of the Fair Labor Standards Act. (*Nationwide Mut. Ins. Co. v Darden*, 503 US 318; *Rutherford Food Corp. v McComb*, 331 US 722; *Falk v Brennan*, 414 US 190; *United States v City of New York*, 359 F3d 83; *Frankel v Bally, Inc.*, 987 F2d 86; *Stone v McGowan*, 308 F Supp 2d 79; *O'Connor v Davis*, 126 F3d 112.) II. New York State has historically credited the value of workfare to reduce public assistance debt. (*Matter of Maiceo v City of Yonkers*, 263 App Div 914, 288 NY 689; *Matter of Walker v Shang*, 66 AD2d 6; *Barrentine v Arkansas-Best Freight System, Inc.*, 450 US 728; *Allen v City of New York*, 147 Misc 2d 62.) III. Work experience workers are employees under the Fair Labor Standards Act. (*Tennessee Coal, Iron & R. Co. v Muscoda Local No. 123*, 321 US 590; *Tony & Susan Alamo Foundation v Secretary of Labor*, 471 US 290; *Brooklyn Savings Bank v O'Neil*, 324 US 697; *Mitchell v Lublin, McGaughy & Associates*, 358 US 207; *Powell v United States Cartridge Co.*, 339 US 497; *United States v Rosenwasser*, 323 US 360; *Brock v Superior Care, Inc.*, 840 F2d 1054; *Bartels v Birmingham*, 332 US 126; *Zheng v Liberty Apparel Co. Inc.*, 355 F3d 61; *United States v Silk*, 331 US 704.)

National Center for Law and Economic Justice, New York City (Marc Cohan, J. Kelley Nevling, Jr., and Leah Lotto of counsel), for National Center for Law and Economic Justice and others, amici curiae. I. The plain language of the Fair Labor Standards Act (FLSA) makes it clear that work experience program (WEP) workers are covered by its minimum wage provisions. (*Goldberg v Whitaker House Cooperative, Inc.*, 366 US 28; *Nationwide Mut. Ins. Co. v Darden*, 503 US 318; *Fran-*

kel v Bally, Inc., 987 F2d 86; *United States v City of New York*, 359 F3d 83, 543 US 1146; *Walling v Portland Terminal Co.*, 330 US 148; *Rutherford Food Corp. v McComb*, 331 US 722; *United States v Rosenwasser*, 323 US 360; *Tony & Susan Alamo Foundation v Secretary of Labor*, 471 US 290; *Mitchell v Lublin, McGaughy & Associates*, 358 US 207; *Matter of Daimler-Chrysler Corp. v Spitzer*, 7 NY3d 653.) II. WEP workers are protected by the FLSA's minimum wage provisions under the Supreme Court's "economic reality" test. (*Tony & Susan Alamo Foundation v Secretary of Labor*, 471 US 290; *Goldberg v Whitaker House Cooperative, Inc.*, 366 US 28.) III. The Court below correctly reasoned that WEP workers are "employees." (*United States v City of New York*, 359 F3d 83; *Nationwide Mut. Ins. Co. v Darden*, 503 US 318; *Herman v RSR Sec. Servs. Ltd.*, 172 F3d 132; *Zheng v Liberty Apparel Co. Inc.*, 355 F3d 61; *Brock v Superior Care, Inc.*, 840 F2d 1054.) IV. Congress has ratified the United States Department of Labor's determination that public assistance workers are "employees" within the meaning of the FLSA. (*Tony & Susan Alamo Foundation v Secretary of Labor*, 471 US 290; *Sheet Metal Workers v EEOC*, 478 US 421; *Regents of Univ. of Cal. v Bakke*, 438 US 265; *North Haven Bd. of Ed. v Bell*, 456 US 512; *United States v Rutherford*, 442 US 544.) V. Appellants' arguments rely on factors and considerations that are not dispositive. (*Barfield v New York City Health & Hosps. Corp.*, 537 F3d 132; *Antenor v D & S Farms*, 88 F3d 925; *United States v City of New York*, 359 F3d 83; *State of N.Y. ex rel. Grupp v DHL Express [USA], Inc.*, 19 NY3d 278; *Matter of People v Applied Card Sys., Inc.*, 11 NY3d 105; *Helmer v Brandano*, 875 F2d 318; *Brock v Superior Care, Inc.*, 840 F2d 1054; *Zheng v Liberty Apparel Co. Inc.*, 355 F3d 61; *Matter of Maiceo v City of Yonkers*, 263 App Div 914, 288 NY 689; *Matter of Gianvecchio v NYS Newark State School*, 19 AD2d 760.) VI. The *Bruckhman v Giuliani* (94 NY2d 387 [2000]) and *Johns v Stewart* (57 F3d 1544 [10th Cir 1995]) cases relied on by the State of New York are not dispositive. (*Nationwide Mut. Ins. Co. v Darden*, 503 US 318; *United States v Rosenwasser*, 323 US 360; *Perrin v United States*, 444 US 37; *United States v City of New York*, 359 F3d 83; *Klaips v Bergland*, 715 F2d 477.) VII. This Court's decision will have ramifications beyond the narrow context of lottery winnings.

OPINION OF THE COURT

Chief Judge LIPPMAN.

We hold that petitioner, who performed work for the City of

New York in exchange for cash public assistance and food stamps, is protected by the federal minimum wage provisions of the Fair Labor Standards Act (FLSA).

Petitioner Carver is a 69-year-old Vietnam War veteran who received public assistance from the City of New York, through the State-funded Safety Net Assistance Program (*see* Social Services Law §§ 61, 62, 157 *et seq.*), beginning in 1993 and continuing until March 2000. During that time, the City required, in accordance with the Social Services Law (*see* Social Services Law §§ 335-b, 336-c), that he work 35 hours per week in the “Work Experience Program” (WEP) of the City’s Human Resources Administration (HRA) in order to receive public assistance benefits. HRA administers the State’s public assistance programs for New York City, with oversight from the New York State Office of Temporary and Disability Assistance (OTDA) (*see generally* Social Services Law § 61).

Carver was assigned to the mailroom of Coney Island Hospital where he sorted and delivered the mail. In 1995, he was reassigned to the Manhattan Terminal of the Staten Island Ferry, where he would sweep the floors, spread salt in the winter and pick up trash. In return for performing these services, Carver received \$176 every two weeks, along with food stamps. His cash compensation plus the food stamps equaled the minimum wage for the amount of hours that he worked. If he missed work, his assistance was reduced. Carver never received any training in how to perform these jobs, or participated in any vocational training classes during those years. He participated in only one week of classes, which concerned how to write a resume and look for a job at the end of the program.

In 2000, Carver was told that he would have to leave WEP, and on March 4, 2000, his benefits were terminated. On August 10, 2007, Carver won \$10,000 in the New York State Lottery. The New York State Division of Lottery and OTDA invoked Social Services Law § 131-r (1), which authorizes the State to appropriate half of any lottery prize over \$600 to “reimburse [itself] . . . for all . . . public assistance benefits paid to [the prizewinner] during the previous ten years.”

In a letter dated September 27, 2007, Carver requested a review of OTDA’s determination. On January 8, 2008, OTDA notified Carver that it would not refund any of the \$5,000. Carver then filed the underlying CPLR article 78 proceeding in April 2008 against OTDA, among others, alleging that the

interception of his lottery winnings violated his rights under the FLSA and the New York State Minimum Wage Act (Labor Law § 652). Specifically, Carver contended that the OTDA required him to work 35 hours per week in order to receive public assistance benefits, and that his biweekly cash benefits, plus the value of the food stamps he received, equaled no more than the federal or New York State minimum wage. Thus, were OTDA permitted to recoup a portion of the benefits paid to him through Social Services Law § 131-r, then Carver would be paid less than minimum wage, in violation of the FLSA. The respondents cross-moved, *inter alia*, to dismiss the petition pursuant to CPLR 3211 (a) (7).

Supreme Court granted the cross motion and dismissed the proceeding (*Carver v State of New York*, 24 Misc 3d 602 [Sup Ct, Kings County 2009]). As relevant here, the court noted that the issue of whether WEP workers are deprived of minimum wage standards by the implementation of Social Services Law § 131-r is an issue of first impression. The court stated that Carver implicitly agreed to “[t]he statutory requirement of recoupment of previous public assistance monies [he] had received” because by purchasing the lottery ticket he “was subject to all of the rules, regulations and statutes with respect to that lottery ticket” (*id.* at 608). The court then stated that Carver’s public assistance benefits were determined by “his household size, rent and other eligibility factors” under the Social Services Law, and not by the number of hours he worked per week in WEP (*id.*). Furthermore, the court determined that although the Social Services Law required Carver to engage in work activities “in return for [his public assistance] benefits,” he was not an employee who earned wages because no “employer-employee relationship” existed “as no income tax W-2 statement was furnished to [him] or deductions made for FICA or Medicare taxes” (*id.*). Finally, the court determined that Carver was “not a federally protected worker” as he was not an employee, and thus the federal minimum wage law does not apply to him (*id.* at 608-609).

The Appellate Division unanimously modified by reinstating the FLSA cause of action against OTDA and its Commissioner and, as so modified, affirmed. The Court stated that the State’s interception of Carver’s lottery prize winnings did not violate the state minimum wage law, which specifically exempts employees of “federal, state or municipal government or political subdivision thereof,” but that it did violate the FLSA (*Mat-*

ter of Carver v State of New York, 87 AD3d 25, 29 [2d Dept 2011]). Applying the “economic reality test,” the Court concluded that individuals like Carver, who receive public assistance benefits and participate in WEP, are employees under the FLSA.

On remand, Supreme Court granted Carver’s petition against OTDA and its Commissioner, and directed respondents to return his \$5,000. The parties then entered into a stipulation and order of contingent settlement which resolved all outstanding issues, including attorney’s fees.

This Court then granted OTDA leave to appeal from the stipulation and order of contingent settlement (*Matter of Carver v State of New York*, 23 NY3d 906 [2014]), bringing up for review the prior, nonfinal Appellate Division order. The sole issue on appeal is whether as a result of his participation in WEP as a condition of his receipt of public assistance benefits under Social Services Law § 336 (1) (d), Carver was entitled to minimum wages under the FLSA.

The FLSA was passed by Congress in 1938 “to lessen, so far as seemed then practicable, the distribution in commerce of goods produced under subnormal labor conditions” and to eliminate low wages and long hours in an effort to “free commerce from the interferences arising from production of goods under conditions that were detrimental to the health and well-being of workers” (*Rutherford Food Corp. v McComb*, 331 US 722, 727 [1947]). The FLSA was also enacted to prevent unfair competition through the use of underpaid labor (*see* 29 USC § 202 [a] [3]). The FLSA provides: “Every employer shall pay to each of his employees who in any workweek is engaged in commerce or in the production of goods for commerce, or is employed in an enterprise engaged in commerce or in the production of goods for commerce, wages at the” rates set forth in the statute (29 USC § 206 [a]). An “employee” is defined as “any individual employed by an employer” (29 USC § 203 [e] [1]). To “employ” is “to suffer or permit to work” (29 USC § 203 [g]). An employer includes “any person acting directly or indirectly in the interest of an employer in relation to an employee and includes a public agency” (29 USC § 203 [d]). Although the FLSA does explicitly exempt certain employees from its purview, neither workfare nor public assistance recipients are included among those exemptions (*see* 29 USC § 213; *Powell v United States Cartridge Co.*, 339 US 497, 517 [1950] [stating that FLSA’s exemptions are “narrow and

specific,” and indicating that “(s)uch specificity in stating exemptions strengthens the implication that employees not thus exempted . . . remain within the Act”).

To determine whether an individual qualifies as an employee under FLSA, we must look to the “economic reality,” not the “technical concepts,” of the relationship (*Goldberg v Whitaker House Cooperative, Inc.*, 366 US 28, 33 [1961]; *Tony & Susan Alamo Foundation v Secretary of Labor*, 471 US 290, 301 [1985]; see also *Bartels v Birmingham*, 332 US 126, 130 [1947]). More specifically,

“[b]ecause [the FLSA] defines employer in such broad terms, it offers little guidance on whether a given individual is or is not an employer. In answering that question, the overarching concern is whether the alleged employer possessed the power to control the workers in question, with an eye to the ‘economic reality’ presented by the facts of each case. Under the ‘economic reality’ test, the relevant factors include ‘whether the alleged employer (1) had the power to hire and fire the employees, (2) supervised and controlled employee work schedules or conditions of employment, (3) determined the rate and method of payment, and (4) maintained employment records’” (*Herman v RSR Sec. Servs. Ltd.*, 172 F3d 132, 139 [2d Cir 1999] [citations omitted], quoting *Bonnette v California Health & Welfare Agency*, 704 F2d 1465, 1470 [9th Cir 1983]; see *Goldberg*, 366 US at 33; *Johns v Stewart*, 57 F3d 1544, 1557 [10th Cir 1995] [stating that the economic reality test is the proper test to determine “the scope of employee coverage under” the FLSA]).

In *Johns v Stewart* (57 F3d 1544 [1995]), the Tenth Circuit, applying the economic reality test, determined that workers in Utah’s work force program were not employees within the meaning of the FLSA. However, two years later, the United States Department of Labor (DOL), the federal agency charged with enforcing the FLSA, issued a guidance letter entitled “How Workplace Laws Apply to Welfare Recipients,” in which it undertook to explain, in question-answer format, which federal worker-protection laws applied to public assistance workers. The letter states:

“Do federal employment laws apply to welfare recipients participating in work activities under the new welfare law in the same manner they apply to other workers?

“Yes. Federal employment laws, such as the Fair Labor Standards Act (FLSA), the Occupational Safety and Health Act (OSHA), Unemployment Insurance (UI), and anti-discrimination laws, apply to welfare recipients as they apply to other workers. The new welfare law does not exempt welfare recipients from these laws” (DOL Guidance Letter, brief for respondent at 40, exhibit B [emphasis omitted]).

According to the DOL, “[w]elfare recipients would probably be considered employees in many, if not most, of the work activities described in the [federal public assistance law]” (*id.*). The FLSA charges the DOL with the duty of administering and interpreting the FLSA. Accordingly, the DOL’s interpretation of the FLSA is “entitled to considerable weight in construing the Act” (*Tony & Susan Alamo Foundation v Secretary of Labor*, 471 US 290, 297 [1985]). A 1997 conference report (HR Rep 105-217, 105th Cong, 1st Sess at 934, reprinted in 1997 US Code Cong & Admin News at 176, 555) leaves no doubt the Congress was aware of and considered the DOL’s guidelines and accepted them, despite efforts to overturn DOL’s interpretation of the FLSA.¹

To that end, we must apply the economic reality test and, under that test, the City should be considered Carver’s employer. The City had the power to hire and fire WEP workers, in that it was the City’s responsibility to assign public assistance recipients to a WEP agency and the City could dismiss workers from WEP based upon their performance. Additionally, the City and its WEP agencies supervise and control the work schedule of the workers. Furthermore, the City and its agencies, such as HRA, maintain the employment records of the WEP workers. While the Social Services Law, not the WEP

1. The United States Department of Health and Human Services has also concluded that the FLSA applies to public assistance recipients under the Personal Responsibility and Work Opportunity Reconciliation Act (PRWORA), also known as the “Welfare Reform Act” (see 45 CFR 260.35 [b] [“Federal employment laws (such as the Fair Labor Standards Act [FLSA], the Occupational Safety and Health Act [OSHA] and unemployment insurance [UI]) and nondiscrimination laws . . . apply to (Temporary Assistance for Needy Families) beneficiaries in the same manner as they apply to other workers”]).

agencies or the City, determines the rate and method of payment of WEP workers, that is simply one factor. The economic reality test “encompasses the totality of [the] circumstances” (*Herman*, 172 F3d at 139).

For example, in *Alamo* (471 US 290), the United States Supreme Court applied the economic reality test to determine if certain individuals were “employees” under the FLSA. The Alamo Foundation was a not-for-profit organization founded to “‘establish, conduct and maintain an Evangelistic Church . . . and generally to do those things needful for the promotion of Christian faith, virtue, and charity.’” It supported itself by operating gas stations, stores and other businesses staffed by “associates.” Associates “receive[d] no cash salaries, but the Foundation provide[d] them with food, clothing, shelter, and other benefits” (471 US at 292).

Noting that it “has consistently construed the [FLSA] ‘liberally to apply to the furthest reaches consistent with congressional direction’” (*id.* at 296, quoting *Mitchell v Lublin, McGaughy & Associates*, 358 US 207, 211 [1959]), the Supreme Court found that the associates were “employees” (*Alamo*, 471 US at 301, citing *Goldberg*, 366 US at 33). The Court focused on three factors: (1) the associates received compensation, albeit “primarily in the form of benefits rather than cash,” a distinction deemed “immaterial”; (2) they were “entirely dependent upon the Foundation for long periods, in some cases . . . years”; and (3) any other result would have undermined the purposes of the FLSA by giving the Foundation a competitive advantage and “exert[ing] . . . downward pressure on wages in competing businesses” (*Alamo*, 471 US at 301, 302).

The economic reality test, as applied in *Alamo*, compels the conclusion that Carver was an “employee” of the City. The Staten Island Ferry is an enterprise similar to a privately owned ferry service or the gas stations and stores operated by the Foundation in *Alamo*. Carver’s work was no different from the janitorial services performed by salaried City employees at many offices and other locations. Like the associates in *Alamo*, Carver’s benefits were “compensation,” given in exchange for his work—even if some of those benefits were not paid in cash—and he was “entirely dependent” on those benefits for years.

Alamo also establishes that the employer’s purposes and objectives are not relevant in determining a worker’s status as an employee. The State argues that WEP workers are not

employees because its declared goal is to prepare WEP workers for gainful employment. However, this appears to be no different from the Foundation's goals of Christian ministry. Had Carver spent most of his hours receiving training, or education in how to obtain employment outside of the WEP program, we might have reached a different conclusion. As the DOL stated, "individuals engaged in activities such as vocational education, job search assistance, and secondary school attendance" are likely exempt from the FLSA "because these programs are not ordinarily considered employment under the FLSA" (DOL Guidance Letter, brief for respondent at 40, exhibit B). However, based on the record before us, Carver spent his full-time hours doing work for the City. The dissent's likening of Carver's 7-year, 35-hour-workweek engagement through WEP to perform services typical of any other non-WEP employee to that of a "student or trainee" patently ignores the economic reality of Carver's situation (*see* dissenting op at 293). Moreover, contrary to the dissent's contention, the policies supporting the passage of the FLSA do weigh in favor of finding coverage here. Were the City permitted to hire and engage WEP workers for less than minimum wage, it could effectively suppress the market and impede the FLSA's goal of eliminating unfair competition through the use of underpaid labor.

Furthermore, in *United States v City of New York* (359 F3d 83 [2d Cir 2004]), the Second Circuit determined that public assistance recipients obliged to participate in WEP are employees within the meaning of title VII of the Civil Rights Act of 1964, and were thus entitled to title VII's protection against sexual and racial harassment (*id.* at 86-87). The court determined that (1) the receipt of cash payments and food stamps, which equaled the minimum wage times the number of hours the WEP workers worked; and (2) the fact that a plaintiff who "refused to work would lose the portion of the family's grant attributable to her . . . results in the conclusion that [the plaintiffs] were employees" (*id.* at 92). Although the FLSA was not the focus of the case in *City of New York*, the Second Circuit distinguished *Johns* and stated that even with respect to the FLSA, "the [DOL], the agency charged with interpreting the FLSA, has rejected the *Johns* approach" (*id.* at 94).

Following *City of New York*, two New York federal district courts have applied the same reasoning to cases involving minimum wage violation claims by public assistance recipients

participating in WEP, holding that they were employees (*see Elwell v Weiss*, 2007 WL 2994308, 2006 US Dist LEXIS 96934 [WD NY, Sept. 29, 2006, No. 03-CV-6121]; *Stone v McGowan*, 308 F Supp 2d 79 [ND NY 2004]). Accordingly, as the law stands today, Carver is correct in asserting that he was an “employee” of the City under the FLSA when he participated in the WEP program.

It is true that, in *Brukhman v Giuliani* (94 NY2d 387 [2000]), this Court, holding that the plaintiffs did not qualify for a prevailing wage, stated that WEP workers “simply are not in the employ of anyone” (*id.* at 395-396 [internal quotation marks omitted]). This Court, however, expressly limited the opinion, stating “we decide no more than is before us” (*id.* at 397 [limiting its holding to apply to the requirements of the New York Constitution’s wage provision]). Here, the Appellate Division rejected the State’s reliance on *Brukhman* because this Court did not apply the economic reality test, which, under federal law, is the applicable test for determining who is an employer under the FLSA. Additionally, *Brukhman* is distinguishable from this case because the plaintiffs there argued that they should have been paid at the prevailing state wage for their participation in WEP, whereas Carver’s claim is under the FLSA’s minimum wage standards. Quite simply, we are now confronted with an issue of federal law.² The Supreme Court has made clear that the FLSA, which “defines the verb ‘employ’ expansively to mean ‘suffer or permit to work.’ 52 Stat. 1060, § 3, codified at 29 U. S. C. §§ 203(e), (g),” has “striking breadth” and “stretches the meaning of ‘employee’ to cover some parties who might not qualify as such under a strict application of traditional agency law principles” (*Nationwide Mut. Ins. Co. v Darden*, 503 US 318, 326 [1992]; *see Rutherford Food Corp.*, 331 US at 728-729). Thus, *Brukhman* is not controlling here.

The State contends that WEP workers cannot be employees because their assistance depends on “economic need,” measured by “specific household expenses,” and on “household size,” rather than on the type of work done or the workers’ skill. There is no reason, however, why the formula used to set a worker’s pay should affect whether or not he is an employee.

2. It is mystifying why, on a question of federal law, the dissent feels compelled to follow a Tenth Circuit decision predating the adoption of PRWORA and to amplify the import of *Brukhman*, while castigating the more recent teaching of the Second Circuit and the guidelines of the Labor Department (*see* dissenting op at 286, 297-298, 298-299 n 6).

As the United States Supreme Court stated in *Alamo*, what matters under the FLSA is that, like Carver, the associates expected to receive in-kind benefits in exchange for services and were dependent upon those benefits (471 US at 301).

The State also relies on language in the state laws and regulations and the City's Employment Process Manual stating that "the monetary grant . . . [for] participating in work-experience activities is not a wage for the performance of such activities" (internal quotation marks omitted; *and see* 18 NYCRR 385.9 [a] [4]). Such state law provisions, however, cannot override the FLSA. To the extent that any state or city laws come into conflict with governing provisions of the FLSA, they are preempted (*Matter of People v Applied Card Sys., Inc.*, 11 NY3d 105, 113 [2008]).

Finally, the State attempts to sidestep two key factors which indicate that WEP workers can be employees. First, the State contends that WEP workers' right to workers' compensation benefits "has little if any significance" because volunteers also have limited rights to such benefits. Carver, however, is no volunteer. He worked full-time in the WEP program because he had to if he wanted to receive his needed benefits. Second, the State argues that the work performed by Carver does not have true monetary value because a WEP worker cannot replace the job of an actual City employee. However, regardless of whether Carver's duties and responsibilities were identical to that of a non-WEP City worker, he qualifies as an employee under the economic reality test for FLSA purposes.

The gist of Carver's argument is that he is entitled to minimum wage for his hours worked as a participant in the WEP program, and that the State cannot retroactively deprive him of a minimum wage by recouping the funds through his lottery prize. Carver's request is actually consistent with the current practice. As mandated by Social Services Law § 336-c (2) (b),

"[t]he number of hours a participant in work experience activities authorized pursuant to this section shall be required to work in such assignment shall not exceed a number which equals the amount of assistance payable with respect to such individual (inclusive of the value of food stamps received by such individual, if any) divided by the higher of (a) the federal minimum wage provided that such

hours shall be limited as set forth in subdivision four of section three hundred thirty-six of this title, or (b) the state minimum wage.”

Carver’s particular situation compels the conclusion that he is entitled to minimum wage. While participating in the WEP program, Carver worked 35 hours per week, and the State concedes that this is not the norm. Additionally, the State’s actions here led to a particularly unfair result in that Carver was taxed on the full amount of his \$10,000 lottery winnings, while being forced to surrender half of those winnings to the State.

Accordingly, the judgment of the Supreme Court appealed from and the order of the Appellate Division insofar as sought to be reviewed should be affirmed, without costs.

ABDUS-SALAAM, J. (dissenting). The majority holds that petitioner Walter E. Carver, who received government assistance under the City of New York’s work experience program (WEP), was an “employee” of the City within the meaning of the federal Fair Labor Standards Act (FLSA) (*see* 29 USC § 201 *et seq.*), and that therefore the minimum wage provisions of that statute entitle him to withhold a portion of his lottery winnings that would otherwise be owed to the New York State Office of Temporary and Disability Assistance (OTDA) pursuant to Social Services Law § 131-r. Tellingly, the majority does not dispute that FLSA and the Personal Responsibility and Work Opportunity Reconciliation Act (PRWORA) (*see* Pub L 104-193, 110 US Stat 2105 [104th Cong, 2d Sess, Aug. 22, 1996]) do not expressly declare that public assistance recipients who must meet work requirements are employees of the government for FLSA purposes. Nor does the majority contend that the legislative history of those statutes reveals that Congress viewed petitioner and other such public assistance or “workfare” recipients as government “employees” who could obtain the benefits of FLSA. Rather, in the absence of clear textual or historical support for its conclusion that WEP participants are City “employees” within the meaning of FLSA, the majority maintains that an evaluation of petitioner’s relationship with the City under the “economic reality” test, which the United States Supreme Court has adopted to determine whether an individual is the type of “employee” that Congress meant to protect via FLSA (*see Goldberg v Whitaker House Cooperative, Inc.*, 366 US 28, 33 [1961]), reveals that he is protected by FLSA.

However, while courts should employ the economic reality test to ensure FLSA coverage for the broad class of individuals whom Congress truly meant to protect under the statute, the test cannot be used as a mere device to skip over the glaring lack of any legislative support for the extension of the statute's minimum wage provisions to public assistance or workfare recipients. Indeed, the economic reality test "does have its limits," and chief among them is the principle that the application of the test must be "consistent with congressional direction" (*Tony & Susan Alamo Foundation v Secretary of Labor*, 471 US 290, 295-296 [1985], quoting *Mitchell v Lublin, McGaughy & Associates*, 358 US 207, 211 [1959]). Consonant with that most important limitation, the United States Court of Appeals for the Tenth Circuit has concluded that Congress did not intend to confer the protections of FLSA upon public assistance recipients simply because those individuals must meet certain conditions and engage in work activities in order to continue receiving government benefits (see *Johns v Stewart*, 57 F3d 1544, 1558 [10th Cir 1995]). Thus, as the Tenth Circuit's analysis demonstrates, and as the text and history of the relevant statutes show, petitioner and other similarly situated individuals are not "employees" within the meaning of FLSA, but instead receive government benefits in exchange for performing tasks relevant to the goals of PRWORA. Because the majority's contrary holding runs afoul of that persuasive authority and does not comport with any sort of reality, economic or otherwise, I respectfully dissent.

I.

The text and history of FLSA and PRWORA refute the majority's conclusion that, in enacting those statutes, Congress placed local governments and beneficiaries of government assistance in an employer-employee relationship that falls within the scope of FLSA. Regarding FLSA, that statute establishes, among other things, a minimum wage and a maximum number of work hours for any covered "employee," and the statute unhelpfully defines that critical term as "any individual employed"—that is, "suffer[ed] or permit[ted] to work"—by "an employer" (29 USC §§ 203 [e] [1]; [g]; see 206 [a] [1]; 207 [a]). In adding context to the vague term "employee," the statute specifies that some people who perform work for the government are protected "employees," but, significantly, it does not list public assistance recipients among them; rather, the statute lists a variety of traditional government positions which would entitle their occupants to the protections of FLSA, and nothing

on that list mentions, applies to, or describes public assistance recipients in a manner that would qualify them as statutory “employees” (see 29 USC § 203 [e] [2] [A]-[C]). In fact, the statute does not refer to the recipients of government assistance at all, belying the majority’s contention that the statute sets the wages and working conditions of those to whom the government gives benefits in exchange for their satisfaction of work-related requirements.

Nor does it seem that Congress had recipients of government benefits in mind when it passed and then amended FLSA over the years, for Congress appears to have focused primarily on rooting out abusive labor practices in traditional employment relationships established by commercial enterprises and their nonprofit or governmental equivalents. In its official declaration of the policy behind FLSA and its amendments, Congress expressed concern that “*industries engaged in commerce or in the production of goods for commerce*” had established “labor conditions detrimental to the maintenance of the minimum standard of living necessary for health, efficiency, and general well-being of workers,” which conditions were harmful to, and spread via the abuse of, interstate commerce (29 USC § 202 [a] [emphases added]). As a result, FLSA made it the policy of the federal government “to correct and as rapidly as practicable to eliminate the conditions above referred to in *such industries* without substantially curtailing employment or earning power” (29 USC § 202 [b] [emphasis added]).

Upon the initial passage of FLSA in 1938, President Roosevelt likewise suggested that FLSA was intended to address the abuse of laborers who had been hired by commercial enterprises to produce goods in exchange for a wage, rather than assistance recipients, for he described FLSA as necessary legislation to combat “the evil of child labor” and “the exploitation of unorganized labor,” which were incompatible with “[e]nlightened business” and would allow “[g]oods produced under conditions which do not meet rudimentary standards of decency” to “pollute the channels of interstate trade” (HR Rep 93-913, 93rd Cong, 2d Sess, reprinted in 1974 US Code Cong & Admin News at 2811, 2818 [quoting the 1937 speech without attribution]). Subsequent amendments to FLSA also reflected Congress’s desire to protect traditional commercial workers, not public assistance recipients, as Congress increased the minimum wage and expanded FLSA’s coverage to student workers, retail workers and domestic service workers (see Pub L 93-259, 88 US

Stat 55 [93rd Cong, 2d Sess, Apr. 8, 1974]; HR Rep 93-913, 93rd Cong, 2d Sess, reprinted in 1974 US Code Cong & Admin News at 2811). Along those lines, upon debating the 1974 amendments to FLSA, Senators did not once mention public assistance recipients or similar individuals, instead focusing on the plight of child laborers on farms, domestic workers, firemen and the like (*see* 120 Cong Rec S4691-S4702 at 43-45 [daily ed Mar. 28, 1974]).

Even when congressional reports condemned those who sought to use misleading labels or hidden arrangements to disguise the type of employer-employee relationship to which FLSA would obviously apply, they did not make any reference to public assistance recipients, either in general or in the context of state programs that feature work-related requirements for the acquisition of assistance. Instead, Congress sought to remedy situations where commercial employers established labor arrangements with students and minors, who would otherwise be covered by the statute, and yet improperly tried to hide the true nature of those employer-employee relationships to avoid complying with the statute (*see* 120 Cong Rec S4691-S4702 at 37-42 [daily ed Mar. 28, 1974]). Therefore, the text and history of FLSA reveal that, in general, the statute covers only ordinary wage earners hired by private and public employers to send goods and provide services via the channels of interstate commerce, and that public assistance beneficiaries are not covered.

In the same vein, PRWORA does not apply the provisions of FLSA to participants in workfare programs administered under the statute. Although PRWORA does expressly grant the protections of some other federal statutes to participants in programs funded pursuant to that law, FLSA is not among them (*see* 42 USC § 608 [d], as added by Pub L 104-193, tit I, § 103 [a] [1], 110 US Stat 2105, enacting PRWORA of 1996, tit IV, § 408 [c], as amended), and consequently, PRWORA does not bring workfare recipients within the ambit of FLSA. In fact, PRWORA distinguishes between workfare participants and the sort of “employees” who might qualify for the protections of FLSA in several notable ways.

In that regard, while PRWORA compels individuals receiving temporary assistance for needy families to “participat[e] in work activities,” such as unsubsidized employment, subsidized

employment, job training or work experience (42 USC § 607 [c] [1] [A]; [d] [1]-[12], as added by Pub L 104-193, tit I, § 103 [a] [1], 110 US Stat 2105, enacting PRWORA of 1996, tit IV, § 407 [c] [1] [A]; [d] [1]-[12]), the act does not treat this “work activities” requirement as some form of public sector employment that might trigger the provisions of FLSA. PRWORA neither labels program participants as “employees” nor labels the state as their “employer,” and it contains measures crafted to place program participants in actual “employment” in the private sector, as distinct from the participants’ existing positions as the recipients of government benefits (*see e.g.* 42 USC §§ 604 [f] [allowing states to use PRWORA funds to pay for agencies that provide “employment placement services” to people who are not employees but rather are “individuals who receive assistance under the State program funded under this part”]; 608 [b] [2] [A] [i] [states may prepare individual responsibility plan that “sets forth an employment goal for the individual and a plan for moving the individual immediately into private sector employment”]; 607 [d] [4] [“work experience” in repairing public housing and similar roles qualifies as requisite “work activities” only “if sufficient private sector employment is not available”], as added by Pub L 104-193, tit I, § 103 [a] [1], 110 US Stat 2105, enacting PRWORA of 1996, tit IV, §§ 404 [f]; 408 [b] [2] [A] [i]; 407 [d] [4]). In addition, PRWORA refers to payments to program participants as “assistance” (*see* 42 USC §§ 604 [f]; 607 [e]) or “benefits” (42 USC § 601 [a] [2]) rather than wages paid to an employee, and in imposing a penalty upon any participant who fails to meet the mandatory work requirements, the statute declares that such a penalty “shall *not* be construed to be a reduction in any *wage* paid to the individual” (42 USC § 608 [c] [emphases added], as added by Pub L 105-33, tit V, subtit A, § 5001 [h] [1] [B], 111 US Stat 251, amending PRWORA of 1996, tit IV, § 408 [c]), thereby clarifying that participants are not employees who receive a wage from the government.

Moreover, the application of FLSA’s minimum wage, overtime and other provisions to workfare participants is incompatible with PRWORA’s primary goal of moving people off the public assistance rolls and into unsubsidized regular jobs, instead of making public assistance recipients state “employees” who are guaranteed a minimum wage subsidized by the federal govern-

ment.¹ As the act's official statement of purpose puts it, PRWORA is meant to "increase the flexibility of States in operating a program designed to . . . end the dependence of needy parents on government benefits by promoting job preparation, work, and marriage" (42 USC § 601 [a] [2], as added by Pub L 104-193, tit I, § 103 [a] [1], 110 US Stat 2105, enacting PRWORA of 1996, tit IV, § 401 [a] [2]), and thus, Congress could not have intended to limit states' flexibility in cutting benefits and incentivizing departure from the public assistance rolls by forcing the states to guarantee beneficiaries assistance in the amounts of the minimum wages specified by FLSA. Indeed, far from seeking to make a generous offer of state "employment" to workfare participants at a "wage" equivalent to FLSA's minimum wage, the House members who supported PRWORA bemoaned the fact that, prior to the act's passage, public assistance recipients were allegedly receiving benefits in excessive amounts far greater than the salary of many regularly employed individuals, and they wished to make the new workfare programs less generous, not more, than the sort of ordinary employment to which FLSA's minimum wage provisions would apply (*see* HR Rep 104-651, 104th Cong, 2d Sess at 4, reprinted in 1996 US Code Cong & Admin News at 2183, 2185). In short, the express terms of FLSA and PRWORA do not apply FLSA's protections to workfare recipients, and Congress plainly intended to establish the kind of arrangement between the government and workfare beneficiaries that would remove them from the ambit of FLSA.

II.

The majority does not seriously contest the clear evidence that Congress had no intention of turning participants in PRWORA programs into government "employees" covered by FLSA, but it insists that WEP participants qualify as government "employees" within the meaning of FLSA under the economic reality test (*see* majority op at 280-284). However, where, as here, Congress's intent to exempt a class of individuals from the reach of FLSA is plain from the text and history of relevant statutes, the judge-made economic reality test cannot

1. In passing similar legislation prior to PRWORA, the New York Legislature also expressed a desire to reduce the number of public assistance recipients in the state and encourage them to transition to genuine full-time employment in the private sector (*see generally* Bill Jacket, L 1990, ch 453; *see also* Bill Jacket, L 1997, ch 436).

serve to confer FLSA's protections upon those who Congress thought should not receive the statute's benefits because, as previously noted, a court must apply the test in a manner consistent with Congress's intent (*see Tony & Susan Alamo Foundation*, 471 US at 295-296; *cf. O'Connor v Davis*, 126 F3d 112, 115 [2d Cir 1997]). Indeed, as will be explained herein, when the economic reality test is properly applied in light of the legislative scheme, it leads to the inescapable conclusion that petitioner is not a City "employee" for FLSA purposes.

A.

The Supreme Court has not exhaustively defined the parameters of the economic reality test or set forth any particular list of factors to be considered in every case. However, the Court has indicated that one must look at "the circumstances of the whole activity" of the parties to discern the economic reality of a person's status under FLSA (*Rutherford Food Corp. v McComb*, 331 US 722, 730 [1947]). In conducting that practical and comprehensive analysis, the Supreme Court has focused on the individual's expectation of wages or in-kind remuneration beyond what one might expect as a trainee or student (*see Tony & Susan Alamo Foundation*, 471 US at 299-300; *Walling v Portland Terminal Co.*, 330 US 148, 150-153 [1947]), the employer's ability to "expel [workers] for substandard work or for failure to obey [workplace rules]" (*Goldberg*, 366 US at 33), and the employer's arrangement of its enterprise as a "device" which is "transparent[ly]" designed to evade FLSA's strictures (*id.*). Similarly, the United States Courts of Appeals have attempted to distill the Supreme Court's precedents and Department of Labor regulations regarding the economic reality test into a multifactor framework, concluding that "the relevant factors include 'whether the alleged employer (1) had the power to hire and fire the employees, (2) supervised and controlled employee work schedules or conditions of employment, (3) determined the rate and method of payment, and (4) maintained employment records'" (*Herman v RSR Sec. Servs. Ltd.*, 172 F3d 132, 139 [2d Cir 1999], quoting *Bonnette v California Health & Welfare Agency*, 704 F2d 1465, 1470 [9th Cir 1983]; *see also Hodgson v Griffin & Brand of McAllen, Inc.*, 471 F2d 235, 237-238 [5th Cir 1973]).

In *Johns v Stewart* (57 F3d at 1544), the Tenth Circuit concluded that, under the economic reality test, workfare par-

ticipants in Utah were not the State's "employees" for FLSA purposes (*see id.* at 1556-1559). The court determined that, because the workfare participants had to meet financial, training and other criteria beyond the performance of work in order to receive benefits, the participants were not receiving benefits as a form of wage solely in exchange for work, and in light of the unusual tax and payroll treatment of the participants' benefits payments, Utah had not established a typical employment relationship with those individuals (*see id.* at 1558-1559). While the court recognized that not every aspect of the workfare program differed from employment, the court eschewed reliance on such isolated factors or any rigid application of a multifactor test, instead following "the Supreme Court's direction to focus upon the circumstances of the whole activity and the economic reality of the relationship" (*id.* at 1559 and n 21). Thus, observing that "[t]he work component of [Utah's workfare programs] [wa]s just one requirement of the comprehensive assistance programs," the court concluded that, under the circumstances of the whole activity of the State and the beneficiaries, "[t]he overall nature of the relationship between [the workfare participants] and [the State] [wa]s assistance, not employment" (*id.* at 1558).

Johns persuasively shows that a workfare participant generally cannot avail him- or herself of FLSA's minimum wage specifications. As *Johns* recognizes, under most workfare programs, a state does not hire, fire and supervise employees or pay them a wage in a traditional sense, but instead makes public assistance beneficiaries meet many different criteria, such as financial, family-related and work requirements, to obtain government assistance and job training so that they can transition into actual employment in the public or private sector. In addition, *Johns* makes the commonsense point that "the circumstances of the whole activity" of workfare participants and the government are fundamentally different from those of employers and employees whose relationship is governed by FLSA, notwithstanding that the two arrangements may share some "isolated factors" in common (*Rutherford Food Corp.*, 331 US at 730).²

2. To be sure, *Johns* predates PRWORA, but that is of no moment because, as explained above, PRWORA actually strengthens the rationale of *Johns* by revealing Congress's intent to place workfare participants in a very different position than that of an "employee" under FLSA.

Under the rationale of *Johns* and the relevant considerations identified by the Supreme Court and the lower federal courts, petitioner here was not an “employee” of the City and hence was not entitled to collect a minimum wage under FLSA. In particular, the City did not have the power to “hire” petitioner to fill an existing position left vacant by layoffs or other circumstances, as the law specifically forbids the City to replace an actual City employee with a WEP participant (*see* Social Services Law § 336-c [2] [e]; 42 USC § 607 [f] [2]). And, although the City had the power to reduce petitioner’s benefits based on his complete failure to participate in work activities (*see* Social Services Law §§ 131 [5]; 336), the City could not “fire” him in the sense of “expelling” him from the program based solely on “substandard work or for failure to obey [workplace rules],” as opposed to a complete refusal to work (*Goldberg*, 366 US at 33).

Furthermore, petitioner could not have had any expectation of remuneration of the kind that would make him a City “employee,” as he was more akin to a student or trainee who trained for full-time employment in the ordinary work force by engaging in work activities as one of the conditions of receiving government assistance (*see Walling*, 330 US at 150-153). Indeed, both federal and New York law establish the clear expectation and reality that petitioner was not earning a wage in exchange for his work because the law declares that his benefits were not the equivalent of wages (*see* 42 USC § 608 [c]; 18 NYCRR 385.9 [a] [4]; *see also* 42 USC §§ 604 [f]; 607 [e]), and the amount of his benefits was not only based on the number of hours he worked, but also on his needs and family size, which were matters unrelated to his work activities (*see* Social Services Law §§ 131 [4]; 131-a).³ Moreover, the City did not structure the WEP program as a “device” to skirt FLSA’s requirements and flood the channels of interstate commerce with goods and services unfairly generated at below-market rates in substandard labor conditions (*Goldberg*, 366 US at 33). Instead, the City makes petitioner and other WEP participants perform job-related tasks in order to develop valuable skills for

3. In fact, unlike wages that can be freely spent by an employee and taxed by the government, state and federal law place significant restrictions on the taxation and expenditure of workfare benefits (*see* 42 USC § 608 [a] [12] [A]; 18 NYCRR 381.1; *see also* 20 CFR 416.1124 [c] [2]; Internal Revenue Service Publication No. 525: Taxable and Nontaxable Income [1995-2013 eds]).

their planned departure from the program and entry into genuine employment.

B.

The majority posits that, since petitioner did not learn any skills in a classroom or participate in a formal and systematic apprenticeship, the City used its professed desire to train and educate petitioner as a charade to disguise an ordinary employment situation subject to FLSA requirements (*see* majority op at 281-282). However, petitioner's work experience in a professional setting was no less educational than the process of obtaining job skills via classwork. By taking part in the WEP program, petitioner learned how to meet workplace expectations such as timely arrival at a job site, how to interact productively with colleagues, and how to complete his assignments properly—among the most essential and universal job skills. In fact, petitioner's hands-on training may have been more valuable to him than any academic discourse on professional development.

The majority also believes that, because the Social Services Law calculates a WEP participant's work hours by dividing the amount of his or her benefits by the minimum wage (*see* Social Services Law § 336-c [2] [b]), the statute deems a WEP participant's benefits to be wages, akin to the minimum wage, which must be paid as part of an employer-employee relationship covered by FLSA (*see* majority op at 284-285). But the New York statute's use of the minimum wage as a numerical factor to be considered in setting the work hours of WEP participants does not remotely indicate that WEP benefits are wages or that the legislature meant to give participants the minimum wage. To the contrary, the legislature may have simply sought to use the number of hours that a minimum wage earner might work in exchange for a particular amount of money as a convenient preexisting bench mark of a standard, fair number of working hours for WEP participants, who need to adjust to such conditions that prevail in the regular work force which they hope to enter. Surely, the legislature did not transform WEP participants into government employees by choosing the expedient of a maximum hours formula based on a familiar metric of appropriate working conditions, rather than inventing a new formula from scratch. Beyond that, as the majority concedes (*see* majority op at 280-281), this statutory formula weighs against a finding that petitioner was a City "employee" under FLSA because the statute, and not the

City, “determined the rate and method of payment” of petitioner’s benefits (*Herman*, 172 F3d at 139 [internal quotation marks omitted]).

The majority insists that WEP is akin to the thinly disguised commercial enterprise at issue in *Tony & Susan Alamo Foundation v Secretary of Labor* (471 US at 290), which enterprise was found by the Supreme Court to be subject to FLSA (*see id.* at 295-303). But, that case is readily distinguishable from the one before us. In *Tony & Susan Alamo Foundation*, a nonprofit organization with an avowed religious purpose operated a plethora of “commercial businesses, which include[d] service stations, retail clothing and grocery outlets, hog farms, roofing and electrical construction companies, a recordkeeping company, a motel, and companies engaged in the production and distribution of candy” (*id.* at 292). The workers at those businesses, called “associates,” were needy, homeless or drug-addicted individuals ostensibly aided and rehabilitated by the organization (*id.*). The organization gave the associates in-kind benefits, but not cash, in return for their labors (*see id.*). The Secretary of Labor commenced a regulatory action against the organization, asserting that, among other things, it “employed” the associates within the meaning of FLSA and yet had not complied with FLSA’s minimum wage and overtime provisions (*see id.* at 293). The organization countered that it was not an “enterprise engaged in commerce” to which FLSA applied; FLSA coverage would violate its rights under the Free Exercise Clause of the First Amendment; and it was exempt from FLSA’s strictures because the associates were “volunteers,” not “employees” within the meaning of FLSA (*id.* at 293-295).

The Supreme Court held that the organization had to comply with FLSA (*see id.* at 293-295, 299-303, 306). First, the Court concluded that, because the lower courts had appropriately found that the organization ran commercial enterprises in competition with other ordinary businesses, the organization was a “commercial enterprise” subject to FLSA (*see id.* at 295-299). Noting that it had “consistently construed the Act liberally to apply to the furthest reaches consistent with congressional direction,” the Court determined that neither the organization’s expressed religious purpose nor its offer of services and food to the associates removed it from the ambit of the statute because both formal Department of Labor regulations and federal judicial decisions had established that the religious or charitable nature of an otherwise commercial enterprise did not serve to remove it from the reach of the

statute (*id.* at 296-299 [internal quotation marks and citation omitted]). Importantly, the Court observed that “[t]he legislative history of the Act support[ed] this administrative and judicial gloss,” and the Court relied on extensive legislative history showing that Congress intended to regulate enterprises like the organization under FLSA (*id.* at 297-298).

Furthermore, in the Court’s view, the organization’s associates were “employees” under FLSA based on the overall economic reality of their relationship with the organization (*see id.* at 299-303). The Court noted that, unlike students or trainees, the associates “must have expected to receive in-kind benefits—and expected them in exchange for their services”—such that those benefits were “wages in another form” (*id.* at 301 [emphasis added]). In addition to that expectation of wages, the Court relied on a number of factors that supported its determination that the associates were statutory “employees,” including their many years of service and near-total dependency on the organization, their long work hours, their payment “on a ‘commission’ basis,” and their having been “‘fined’” severely “for poor job performance” (*id.* at 301 and n 22). Furthermore, the Court rejected the notion that the associates could opt out of the statute’s coverage, declaring that a supposedly voluntary waiver of the statute’s protections would undermine the statute’s goal by ultimately driving down “wages” in “competing businesses” (*id.* at 302). Finally, the Court rebuffed the organization’s First Amendment argument and held that the associates could receive the protections of FLSA (*see id.* at 303-306).

Unlike the enterprise at issue in *Tony & Susan Alamo Foundation*, WEP is not the sort of commercial enterprise that FLSA seeks to regulate, as WEP does not compete with other businesses in the production of goods or supply of services in the channels of interstate commerce. And, as discussed, WEP participants like petitioner are not employees of the City because, while they may expect to obtain government assistance upon meeting a combination of work-related and other criteria, they do not expect those benefits solely “in exchange for their services” (*id.* at 301), as did the associates in *Tony & Susan Alamo Foundation*. Furthermore, although the City may penalize WEP participants for failure to meet minimal requirements of attendance and hours at work, the City does not, unlike the organization in *Tony & Susan Alamo Foundation*, reward or punish participants based on the quality of their

work, as an ordinary commercial employer might, by giving them benefits on a “‘commission’ basis” or “‘fin[ing]’ [them] heavily for poor job performance” (*id.* at 301 n 22). More fundamentally, in *Tony & Susan Alamo Foundation*, the text and history of FLSA supported the conclusion that the entity in question had to comply with FLSA, whereas those authorities support the opposite conclusion here. It is not surprising, then, that the Tenth Circuit in *Johns* observed that *Tony & Susan Alamo Foundation* was fully consistent with the conclusion that workfare participants cannot obtain the protections of FLSA (*see Johns*, 57 F3d at 1557, citing *Tony & Susan Alamo Foundation*, 471 US at 295).

The majority’s reliance on a Department of Labor document expressing the view that workfare recipients are “employees” within the meaning of FLSA is equally misplaced (*see* majority op at 279-280). While the Department of Labor’s views are entitled to significant consideration based on its role as the agency charged with administering FLSA (*see Tony & Susan Alamo Foundation*, 471 US at 297), the deference owed to the agency’s interpretation of the statute depends primarily on its “power to persuade” (*Christensen v Harris County*, 529 US 576, 587 [2000]), and in this instance, the persuasive power of the Department’s document pales in comparison to the clear language, history and case law demonstrating that workfare participants are not government employees.⁴ So, too, administrative guidance carries considerably less weight where, as here, it comes in the form of a document that has not been issued as “a formal adjudication or notice-and-comment rule-making” (*id.*).⁵

4. Citing a congressional conference report on 1997 budget legislation, the majority claims that Congress “considered the DOL’s guidelines and accepted them” (majority op at 280). But, in the cited report, Congress merely mentioned the existence of the Department’s opinion on the subject of FLSA coverage for workfare participants, noted the House’s view that workfare participants were not entitled to wages or a salary in any traditional sense, and declined to pass any legislation addressing that specific issue (*see* HR Rep 105-217, 105th Cong, 1st Sess at 934, reprinted in 1997 US Code Cong & Admin News at 176, 555). Congress certainly did not agree to enact the Department’s guidance on this issue into law, and its failure to invalidate the Department’s document, unlike the failure to overrule a binding Supreme Court decision on the subject, is hardly a sign that the agency’s guidance has become the law of the land.

5. As the majority observes (*see* majority op at 280 n 1), the Department of Health and Human Services has issued a formal regulation indicating that

(n. cont’d)

United States v City of New York (359 F3d 83 [2d Cir 2004]), cited by the majority (*see* majority op at 282), is inapposite. There, the Second Circuit held that WEP participants are covered by title VII of the Civil Rights Act of 1964 (*see* 359 F3d at 86-87), and in dictum, the court signaled that it might endorse the Department of Labor's view that FLSA covers workfare participants (*see id.* at 94). Obviously, the dictum in *City of New York* does not supply binding authority on the issue at hand, nor is it even persuasive, as it merely restates the Department of Labor's informal guidance without supplying significant analysis of the text and history of FLSA and PRWORA relating to this issue. In addition, while title VII, like FLSA, is not among the statutes explicitly referenced by PRWORA, the Second Circuit's determination that title VII nonetheless applies to workfare participants does not compel a similar conclusion with respect to FLSA. After all, some provisions of PRWORA reflect Congress's desire to administer workfare programs on a nondiscriminatory basis (*see e.g.* 42 USC § 608 [d]), and as a result, the application of title VII protections to workfare participants would not offend against the legislative intent behind PRWORA in the same manner as the coverage of such individuals under FLSA. Indeed, given Congress's broad desire to ensure that all assistance recipients would receive the job skills they needed via work experience programs under PRWORA, it is hard to imagine that Congress wished to leave the states free to offer the benefits and responsibilities of PRWORA only to certain people on a piecemeal, discriminatory basis.⁶

participants in programs governed by PRWORA are protected by FLSA (*see* 45 CFR 260.35). But, the Department of Health and Human Services is charged with joint responsibility for interpreting PRWORA, not FLSA, and hence its opinion on the meaning of FLSA is entitled to even less respect than that of the Department of Labor. In any event, as previously noted, the views of administrative agencies simply cannot override the text, history and judicial interpretations of FLSA.

6. To the extent cases dealing with employment issues outside the FLSA context are relevant, we should follow the logic of our own decision in *Bruckman v Giuliani* (94 NY2d 387 [2000]) instead of the Second Circuit's decision in *City of New York*. In *Bruckman*, we decided that WEP participants are not government employees protected by the prevailing wage provision of the State Constitution (*see Bruckman*, 94 NY2d at 391-397). Although we were careful to limit our holding to the interpretation of that constitutional provision (*see id.* at 397), we reached the conclusion that WEP participants are not City "employees" under the Constitution based on many of the same factors which demonstrate that they are not City "employees" under FLSA,

(n. cont'd)

Finally, the majority's holding, in addition to lacking any legal basis, may raise serious practical problems. Under the majority's rationale for deeming WEP participants to be City employees, taxpayers may ultimately have to foot the bill for an array of new expenses, including overtime, annual leave and sick leave. Collective bargaining rules may soon apply to all workfare recipients, not just those who participate in a subsidized public employment program with an outside employer (*see* Social Services Law § 336-e), thereby stymieing the orderly administration of WEP. And, the city, state and federal governments may have to reconcile the ordinarily tax-exempt status of WEP participants' assistance payments with the implication of today's decision that WEP participants essentially earn those payments as the sort of "wages" that are generally taxed in a regular employment context. The majority may protest that its holding can be confined in one way or another, but given the majority's imaginative characterization of workfare and invocation of legal authorities from clearly distinguishable contexts, attempts to limit the impact of the majority's decision to this case and this minimum wage statute will prove difficult at best and futile at worst. I would avoid this mess and follow existing law.⁷

III.

In its effort to fit the square peg of assistance into the round hole of employment under FLSA, the majority defies the will of Congress, ignores the teachings of the Supreme Court and needlessly creates a split in authority between this Court and the Tenth Circuit. Because the majority's decision sows confusion in this important area of federal law, courts throughout New York and, potentially, the Nation must now struggle in vain to reconcile the majority's illogical holding with the relevant legislative scheme and common sense, and thus the majority's opinion will likely reverberate in unfortunate ways

including the lack of any salary paid to participants in direct exchange for their services and WEP's goal of moving participants from a government assistance program into genuine employment (*see id.* at 395-396). In light of those factors and the others listed above, petitioner and other WEP participants are not "employees" of the City within the meaning of FLSA.

7. It is unclear under the majority's decision whether the government would ever be able to recoup lottery winnings from a WEP participant, since the government does not recover wages that it pays to employees. Presumably, even if petitioner had won a multi-million dollar lottery prize, the majority would let him keep every penny.

throughout the legal system. Since the plain language of FLSA and PRWORA, as well as the legislative purpose behind those statutes, show that WEP participants are not City “employees” entitled to the protections of FLSA, I dissent and vote to reverse the order of the Appellate Division.

Judges RIVERA, STEIN and FAHEY concur; Judge ABDUS-SALAAM dissents in an opinion in which Judge PIGOTT concurs.

Supreme Court judgment appealed from and Appellate Division order insofar as sought to be reviewed affirmed, without costs.

[43 NE3d 745, 22 NYS3d 388]

In the Matter of SIERRA CLUB et al., Appellants, v VILLAGE OF
PAINTED POST et al., Respondents.

Argued October 13, 2015; decided November 19, 2015

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered March 28, 2014. The Appellate Division (1) reversed, on the law, a judgment (denominated order) of the Supreme Court, Steuben County (Kenneth R. Fisher, J.), entered in a proceeding pursuant to CPLR article 78, which, insofar as appealed from, had (a) denied in part the motion of respondents Village of Painted Post, Painted Post Development, LLC, and SWEPI, LP to dismiss the petition, and (b) granted petitioners summary judgment on the first cause of action; (2) granted respondents' motion in its entirety; and (3) dismissed the petition as against them.

Matter of Sierra Club v Village of Painted Post, 115 AD3d 1310, reversed.

HEADNOTE

Parties — Standing — Environmental Quality Review — Injury Different in Kind from Public at Large

In a proceeding challenging respondent Village's actions under the State Environmental Quality Review Act in entering into an agreement for the sale of water from the Village's drinking water supply and a lease agreement for construction of a water transloading facility for transportation of the water by train, the Appellate Division erred in determining that petitioner individual, who lived one-half block from the railroad line and a block and a half from the transloading facility, lacked standing. In land use matters, for standing purposes, a plaintiff must show that it would suffer direct harm, injury that is in some way different from that of the public at large. While the harm alleged must be specific to the individuals who allege it, it need not be unique. The number of people who are affected by the challenged action is not dispositive of standing, and standing rules should not be applied in an overly restrictive manner where the result would be to completely shield a particular action from judicial review. Here, the Appellate Division, in reasoning that because other residents also lived along the train line, petitioner did not suffer noise impacts different from his neighbors, applied an overly restrictive analysis of the requirement to show harm different from that of the public at large and effectively insulated the Village's actions from any review. Petitioner's allegation about noise caused by the increased train traffic keeping him up at night, even without any express differentiation between the train noise running along the tracks and the noise from the transloading facility, would be sufficient to confer standing. Moreover, based on his allegations and his proximity to the facility, it could be concluded that he was hearing noise both from the facility and the trains running along the tracks.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Parties § 31; AM JUR 2d, Pollution Control §§ 143, 144.

CARMODY-WAIT 2d, Parties §§ 19:9, 19:12.

NY JUR 2d, Environmental Rights and Remedies §§ 137, 139.

SIEGEL, NY PRAC § 136.

ANNOTATION REFERENCE

See ALR Index under Environmental Law; Parties.

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Query: SEQRA /p standing /s direct /2 harm

POINTS OF COUNSEL

Lippes & Lippes, Buffalo (*Richard J. Lippes* of counsel), and *Rachel Treichler*, Hammondsport, for appellants. I. Petitioner John Marvin has standing. (*Society of Plastics Indus. v County of Suffolk*, 77 NY2d 761; *Matter of McCartney v Dormitory Auth. of State of N.Y.*, 5 AD3d 1090; *Matter of Save Our Main St. Bldgs. v Greene County Legislature*, 293 AD2d 907, 98 NY2d 609; *Matter of Buerger v Town of Grafton*, 235 AD2d 984; *Matter of Long Is. Pine Barrens Socy. v Planning Bd. of Town of Brookhaven*, 213 AD2d 484; *Matter of Industrial Liaison Comm. of Niagara Falls Area Chamber of Commerce v Williams*, 131 AD2d 205, 72 NY2d 137; *Matter of Dairylea Coop. v Walkley*, 38 NY2d 6; *Matter of Douglaston Civic Assn. v Galvin*, 36 NY2d 1; *Matter of Sun-Brite Car Wash v Board of Zoning & Appeals of Town of N. Hempstead*, 69 NY2d 406; *Sierra Club v Morton*, 405 US 727.) II. There are merits issues presented by this case. (*Matter of City of Buffalo v New York State Dept. of Envtl. Conservation*, 184 Misc 2d 243; *Matter of Town of Henrietta v Department of Envtl. Conservation of State of N.Y.*, 76 AD2d 215; *H.O.M.E.S. v New York State Urban Dev. Corp.*, 69 AD2d 222; *Matter of Rye Town/King Civic Assn. v Town of Rye*, 82 AD2d 474; *Matter of Schenectady Chems. v Flacke*, 83 AD2d 460; *Matter of Coalition for Future of Stony Brook Vil. v Reilly*, 299 AD2d 481; *Matter of Tri-County Taxpayers Assn. v Town Bd. of Town of Queensbury*, 55 NY2d 41; *Akpan v Koch*, 75 NY2d 561; *Cross Westchester Dev. Corp. v Town Bd. of Town*

of Greenburgh, 141 AD2d 796; *Matter of City Council of City of Watervliet v Town Bd. of Town of Colonie*, 3 NY3d 508.)

Harris Beach PLLC, Pittsford (Joseph D. Picciotti, John A. Mancuso and A. Vincent Buzard of counsel), for respondents. I. Petitioner John Marvin's generalized complaint of train noise is insufficient to establish standing. (*Matter of Association for a Better Long Is., Inc. v New York State Dept. of Env'tl. Conservation*, 23 NY3d 1; *Society of Plastics Indus. v County of Suffolk*, 77 NY2d 761; *Matter of Save the Pine Bush, Inc. v Common Council of City of Albany*, 13 NY3d 297; *Matter of Oates v Village of Watkins Glen*, 290 AD2d 758; *Matter of Save Our Main St. Bldgs. v Greene County Legislature*, 293 AD2d 907; *Matter of Gallahan v Planning Bd. of City of Ithaca*, 307 AD2d 684; *Matter of Finger Lakes Zero Waste Coalition, Inc. v Martens*, 95 AD3d 1420; *Matter of Har Enters. v Town of Brookhaven*, 74 NY2d 524; *Matter of Sun-Brite Car Wash v Board of Zoning & Appeals of Town of N. Hempstead*, 69 NY2d 406.) II. The Basin Commission reviewed and approved the water withdrawals and the compact preempted the Village of Painted Post from undertaking an additional State Environmental Quality Review Act review of the withdrawals. (*Virginia v Maryland*, 540 US 56; *American Sugar Ref. Co. of N.Y. v Waterfront Commn. of N.Y. Harbor*, 55 NY2d 11; *People ex rel. Hal D. v Nine Mile Canal Co.*, 828 F Supp 823; *Alcorn v Wolfe*, 827 F Supp 47; *Balbuena v IDR Realty LLC*, 6 NY3d 338; *New York State Conference of Blue Cross & Blue Shield Plans v Travelers Ins. Co.*, 514 US 645; *Cipollone v Liggett Group, Inc.*, 505 US 504; *Ray v Atlantic Richfield Co.*, 435 US 151; *Mitskovski v Buffalo & Fort Erie Pub. Bridge Auth.*, 689 F Supp 2d 483; *Seattle Master Bldrs. Assn. v Pacific Northwest Elec. Power & Conservation Planning Council*, 786 F2d 1359.) III. This proceeding should be dismissed as moot and barred by the doctrine of laches. (*Matter of Citineighbors Coalition of Historic Carnegie Hill v New York City Landmarks Preserv. Commn.*, 2 NY3d 727; *Matter of Dreikausen v Zoning Bd. of Appeals of City of Long Beach*, 98 NY2d 165; *Matter of Weeks Woodlands Assn., Inc. v Dormitory Auth. of the State of N.Y.*, 95 AD3d 747; *Matter of Friends of Pine Bush v Planning Bd. of City of Albany*, 86 AD2d 246; *Nobu Next Door, LLC v Fine Arts Hous., Inc.*, 4 NY3d 839; *Matter of Save The Pine Bush v New York State Dept. of Env'tl. Conservation*, 289 AD2d 636; *Matter of Save the Pine Bush v City Engr. of City of Albany*, 220 AD2d 871; *Matter of Caprari v Town of Colesville*, 199 AD2d 705.) IV. The Village of Painted Post completed the necessary State Environmental

Quality Review Act review for the transloading facility and no additional review was required for the surplus water agreement. (*Matter of Riverkeeper, Inc. v Planning Bd. of Town of Southeast*, 9 NY3d 219; *Matter of Jackson v New York State Urban Dev. Corp.*, 67 NY2d 400; *Akpan v Koch*, 75 NY2d 561; *Matter of Eadie v Town Bd. of Town of N. Greenbush*, 7 NY3d 306; *Matter of Spitzer v Farrell*, 100 NY2d 186; *Borough of Morrisville v Delaware Riv. Basin Commn.*, 399 F Supp 469; *White v Westage Dev. Group*, 191 AD2d 687, 82 NY2d 706; *Matter of Niagara Mohawk Power Corp. v Public Serv. Commn. of State of N.Y.*, 137 Misc 2d 235, 138 AD2d 63, 73 NY2d 702; *Matter of DaimlerChrysler Corp. v Spitzer*, 7 NY3d 653; *Weingarten v Board of Trustees of N.Y. City Teachers' Retirement Sys.*, 98 NY2d 575.)

Harter Secrest & Emery LLP, Rochester (*John P. Bringewatt*, *Leslie M. Mauro* and *Jeffrey A. Wadsworth* of counsel), for Railroads of New York, amicus curiae. I. The Interstate Commerce Commission Termination Act of 1995 preempts any requirement under the State Environmental Quality Review Act that a municipality evaluate potential noise impacts resulting from a railroad transloading facility's construction and operation pursuant to a lease agreement between the municipality and railroad. (*CSX Transp., Inc. v Georgia Pub. Serv. Commn.*, 944 F Supp 1573; *City of Auburn v United States Govt.*, 154 F3d 1025; *Green Mtn. R.R. Corp. v Vermont*, 404 F3d 638; *Rushing v Kansas City S. Ry. Co.*, 194 F Supp 2d 493; *Guckenberger v Wisconsin Cent. Ltd.*, 178 F Supp 2d 954; *Matter of Power Auth. of State of N.Y. v Williams*, 60 NY2d 315; *Matter of Erie Blvd. Hydropower, L.P. v Stuyvesant Falls Hydro Corp.*, 30 AD3d 641; *Fourth Branch Assoc. v Department of Env'tl. Conservation*, 146 Misc 2d 334; *Norfolk S. Ry. Co. v City of Alexandria*, 608 F3d 150.) II. Petitioners lack standing because the Interstate Commerce Commission Termination Act of 1995 preempts state or local regulation of train noise, thereby eliminating train noise from the "zone of interests" protected by the State Environmental Quality Review Act. (*Society of Plastics Indus. v County of Suffolk*, 77 NY2d 761; *Matter of Brighton Residents Against Violence to Children v MW Props.*, 304 AD2d 53; *Matter of Save the Pine Bush, Inc. v Common Council of City of Albany*, 13 NY3d 297.)

Susan J. Kraham, *Columbia Environmental Law Clinic*, New York City, and *Daniel Raichel*, *Natural Resources Defense Counsel*, New York City, for Gas Free Seneca and others, amici

curiae. I. Citizen participation and review of government actions are fundamental to the operation of the State Environmental Quality Review Act. (*Matter of City Council of City of Watervliet v Town Bd. of Town of Colonie*, 3 NY3d 508; *Matter of WEOK Broadcasting Corp. v Planning Bd. of Town of Lloyd*, 79 NY2d 373; *Matter of Coca-Cola Bottling Co. of N.Y. v Board of Estimate of City of N.Y.*, 72 NY2d 674; *Matter of E.F.S. Ventures Corp. v Foster*, 71 NY2d 359; *Chinese Staff & Workers Assn. v City of New York*, 68 NY2d 359; *Society of Plastics Indus. v County of Suffolk*, 77 NY2d 761.) II. Requiring citizens to demonstrate a special harm to establish standing conflicts with the purpose and structure of the State Environmental Quality Review Act. (*Matter of Association for a Better Long Is., Inc. v New York State Dept. of Envtl. Conservation*, 23 NY3d 1; *Society of Plastics Indus. v County of Suffolk*, 77 NY2d 761; *Matter of Save the Pine Bush, Inc. v Common Council of City of Albany*, 13 NY3d 297; *Matter of Long Is. Pine Barrens Socy. v Town Bd. of Town of E. Hampton*, 293 AD2d 616; *Matter of Buerger v Town of Grafton*, 235 AD2d 984; *Matter of Long Is. Pine Barrens Socy. v Planning Bd. of Town of Brookhaven*, 213 AD2d 484; *Matter of Schulz v Warren County Bd. of Supervisors*, 206 AD2d 672; *Matter of Har Enters. v Town of Brookhaven*, 74 NY2d 524.) III. The special harm rule is not necessary to discourage or dispose of meritless State Environmental Quality Review Act litigation. (*Society of Plastics Indus. v County of Suffolk*, 77 NY2d 761; *Matter of Save the Pine Bush, Inc. v Common Council of City of Albany*, 13 NY3d 297; *Village of Euclid v Ambler Realty Co.*, 272 US 365; *Udell v Haas*, 21 NY2d 463; *Matter of Leone v Brewer*, 259 NY 386; *Whitridge v Park*, 100 Misc 367, 179 App Div 884; *Rice v Van Vranken*, 132 Misc 82.) IV. New York stands alone in imposing a special harm rule in the context of environmental review. (*Ocean Advocates v United States Army Corps of Engrs.*, 402 F3d 846; *Sierra Club v Morton*, 405 US 727; *Massachusetts v EPA*, 549 US 497; *United States v Students Challenging Regulatory Agency Procedures [SCRAP]*, 412 US 669; *Federal Election Comm'n v Akins*, 524 US 11; *Arcia v Florida Secretary of State*, 772 F3d 1335; *Tourgeman v Collins Fin. Servs., Inc.*, 755 F3d 1109; *Southern Utah Wilderness Alliance v Palma*, 707 F3d 1143; *Board of Educ. of Ottawa Twp. High School Dist. 140 v Spellings*, 517 F3d 922; *New World Radio, Inc. v Federal Communications Commn.*, 294 F3d 164.)

Wade Beltramo, General Counsel, New York State Conference of Mayors & Municipal Officials, Albany, for New York State

Conference of Mayors & Municipal Officials, amicus curiae. I. The nature of local government actions and determinations in general, and land use matters in particular, demands that the principle of standing be clearly articulated and narrowly defined to avoid overburdening local governments and the courts, while at the same protecting aggrieved parties. II. Because duplicative State Environmental Quality Review Act (SEQRA) reviews must be avoided, the trial court's decision to impose an additional, redundant SEQRA review must not be reinstated. (*Matter of City Council of City of Watervliet v Town Bd. of Town of Colonie*, 3 NY3d 508; *Cross Westchester Dev. Corp. v Town Bd. of Town of Greenburgh*, 141 AD2d 796; *Matter of Jackson v New York State Urban Dev. Corp.*, 67 NY2d 400.)

OPINION OF THE COURT

ABDUS-SALAAM, J.

In *Society of Plastics Indus. v County of Suffolk* (77 NY2d 761 [1991]), this Court examined the law of standing, and set forth a framework for deciding whether parties have standing to challenge governmental action in land use matters generally, and under the State Environmental Quality Review Act (ECL art 8 [SEQRA]), specifically. We held that “the plaintiff, for standing purposes, must show that it would suffer direct harm, injury that is in some way different from that of the public at large” (77 NY2d at 774). This appeal gives us the opportunity to elucidate and further address the “special injury” requirement of standing (*id.* at 778).

I.

The Village of Painted Post, in Steuben County, New York, is located at the confluence of the Cohocton, Tioga and Chemung Rivers. Underlying the confluence of these rivers is the Corning aquifer, which is the principal drinking water supply of several municipalities, including the Village. In February 2012, the Board of Trustees of the Village adopted a resolution to enter into a surplus water sale agreement with respondent SWEPI, LP, a subsidiary of Shell Oil Co., which operates gas wells in Tioga County, Pennsylvania. The surplus water sale agreement provided for the sale to SWEPI, LP of 314,000,000 gallons of water in increments of up to one million gallons per day from the Village water system with an option to increase the amount by an additional 500,000 gallons per day.

The Village determined that, pursuant to 6 NYCRR 617.5 (c) (25),¹ the sale of its water was a Type II action exempt from review under SEQRA. Another resolution approved a lease agreement with respondent Wellsboro & Corning Railroad (Wellsboro) for the construction of a water transloading facility on 11.8 acres of land, previously used for industrial purposes, to be used as a filling station upon which the water would be withdrawn, loaded, and transported via rail line to Wellsboro, Pennsylvania. The Village determined that the lease agreement was a Type I action under SEQRA² and issued a negative declaration, concluding that the lease will not result in any potentially significant adverse impact on the environment based on a review of a full environmental assessment form, a report prepared by engineering consultants to the Village, the site plan prepared for the railroad, and the 2005 deed to the site.

Construction of the water loading facility began in April 2012, and in June 2012, petitioners commenced this CPLR article 78 proceeding against the Village; Painted Post Development, LLC; SWEPI, LP; and Wellsboro seeking an order (1) annulling the Village's Type II determination for the water sale agreement; (2) annulling the Village's negative declaration for the lease of the rail loading facility; (3) annulling the Village's water sale agreement with SWEPI and the lease to Wellsboro; (4) requiring the Village to issue a positive declaration and complete an environmental impact statement for the totality of the plan rather than segmenting the water sale and the lease; (5) enjoining the Village from entering into the water sale and lease agreements until the Village complied with all federal and state laws; and (6) preliminarily enjoining any water ship-

1. 6 NYCRR 617.5 (c) (25) provides that actions for the "purchase or sale of furnishings, equipment or supplies, including surplus government property, other than the following: land, radioactive material, pesticides, herbicides, or other hazardous materials" are Type II actions that are not subject to review under SEQRA.

2. 6 NYCRR 617.4 sets forth a non-exhaustive list of Type I actions and provides that

"the fact that an action or project has been listed as a Type I action carries with it the presumption that it is likely to have a significant adverse impact on the environment and may require an [environmental impact statement]. For all individual actions which are Type I or Unlisted, the determination of significance must be made by comparing the impacts which may be reasonably expected to result from the proposed action with the criteria listed in section 617.7(c) of this Part" (6 NYCRR 617.4 [a] [1]).

ments or work at the rail loading facility site until the Village complied with all federal and state laws. Petitioners included the not-for-profit organizations the Sierra Club, People for a Healthy Environment, Inc., and Coalition to Protect New York, as well as various individual residents of the Village.

As relevant here, petitioners asserted that the Village failed to comply with the strict procedural mandates of SEQRA, particularly that it (1) failed to consider significant adverse environmental impacts of the water withdrawals, (2) improperly claimed a Type II exemption for the water sale agreement, and (3) impermissibly segmented its review of the water sale agreement and the lease agreement. With respect to petitioner John Marvin (appellant here), the petition alleged that he is a longtime resident of the Village and resides “less than a block from the proposed rail loading facility, which is visible from his doorstep” and that he and his wife would be “adversely affected by the significant rail traffic and the increased noise and air contamination caused by the project.” Respondents answered and subsequently moved to dismiss the petition pursuant to CPLR 3211 (a) (3) and (7), asserting that petitioners lacked standing and failed to state a cause of action, and alternatively, moved for summary judgment pursuant to CPLR 3212. Petitioners opposed the motions, submitting, among other things, an affidavit of petitioner Marvin,³ who stated that when the water trains began running, he “heard train noises frequently, sometimes every night” and that “[t]he noise was so loud it woke [him] up and kept [him] awake repeatedly.” Marvin further stated that the “noise was much louder than the noise from other trains that run through the [V]illage” and he was concerned that the “increased train noise will adversely impact [his] quality of life and home value.”

Supreme Court searched the record and, in pertinent part, (1) granted summary judgment to petitioners insofar as it annulled (a) the Village’s resolutions designating the surplus water agreement as a Type II action, (b) the negative declaration as to the lease agreement, and (c) the Village Board’s resolutions approving the surplus water agreement and the lease agreement; (2) granted petitioners an injunction enjoining further water withdrawals pursuant to the surplus water

3. While the petition alleged that Marvin lives less than a block from the rail loading facility, he clarified in his affidavit that he lives one-half block from the railroad line that crosses his street, and a block and one half from the rail loading facility.

agreement pending the Village's compliance with SEQRA; and (3) denied respondents' motion to dismiss for lack of standing. With respect to the standing of the organizations and individual petitioners, the court determined that none of the individual petitioners claimed that they were members of those organizations, that the organizations alleged only generalized environmental injuries that the public at large would suffer and that such generalized claims were insufficient to confer standing.

With respect to the individual petitioners, excepting Marvin, the court determined that they too alleged only general harm (i.e., disrupted traffic patterns, noise levels, and water quality) "no different than that experienced by the general public." However, regarding petitioner Marvin, the court noted that he could see the water loading facility from his front porch, and concluded that Marvin's allegation of "train noise newly introduced into his neighborhood . . . is different than the noise suffered by the public in general." The court reasoned that although Marvin did not "distinguish this noise from that of the previous train noises associated with the existing rail line or from the former industrial use of the area," nevertheless,

"Marvin's undifferentiated complaint of train noise, however, may be considered in the context of an industrial and rail facility which fell into disuse for a considerable period of time prior to construction of the subject project, and thus his complaint of rail noise is availing to show harm distinct from that suffered by the general public."

Because Marvin had standing, the court did not dismiss the proceeding brought by the other petitioners who did not have standing. On the merits of the petition, the court held that the Village's Type II designation of the water sale agreement was arbitrary and capricious and that the Village had improperly segmented the SEQRA review of the lease from the water sale agreement.

The Appellate Division (115 AD3d 1310 [2014]), unanimously (1) reversed the judgment on the law, (2) granted the Village's and SWEPI's motion, and (3) dismissed the petition as against them on the ground that Marvin lacked standing. The Court agreed with petitioners that "noise falls within the zone of interests sought to be protected by SEQRA" (115 AD3d at 1312). However, emphasizing that "Marvin raised no complaints concerning noise from the transloading facility itself" (115

AD3d at 1312), the Court, citing *Society of Plastics*, reasoned that “[i]nasmuch as we are dealing with the noise of a train that moves throughout the entire Village, as opposed to the stationary noise of the transloading facility, we conclude that Marvin will not suffer noise impacts ‘different in kind or degree from the public at large’ ” (115 AD3d at 1312-1313). Having dismissed the petition for lack of standing, the Appellate Division did not reach the merits of the SEQRA challenge.

II.

We held in *Society of Plastics* that “[i]n land use matters . . . the plaintiff, for standing purposes, must show that it would suffer direct harm, injury that is in some way different from that of the public at large” (77 NY2d at 774). Applying that test in *Matter of Save the Pine Bush, Inc. v Common Council of City of Albany* (13 NY3d 297 [2009]), this Court held that petitioners, who alleged “repeated, not rare or isolated use” of the Pine Bush recreation area, had demonstrated standing “by showing that the threatened harm of which petitioners complain will affect them differently from ‘the public at large’ ” (13 NY3d at 305).

The Appellate Division, in concluding that petitioner Marvin lacked standing, applied an overly restrictive analysis of the requirement to show harm “different from that of the public at large,” reasoning that because other Village residents also lived along the train line, Marvin did not suffer noise impacts different from his neighbors. We said in *Society of Plastics* that

“[t]he doctrine grew out of a recognition that, while directly impacting particular sites, governmental action affecting land use in another sense may aggrrieve a much broader community. The location of a gas station may, for example, directly affect its immediate neighbors but indirectly affect traffic patterns, noise levels, air quality and aesthetics throughout a wide area” (77 NY2d at 774-775).

This example is distinctly different from the situation here where more than one resident is *directly* impacted by the noise created from increased train traffic. That more than one person may be harmed does not defeat standing, as we found in *Save the Pine Bush* where we held that the nine individual petitioners who alleged that they lived near the site of the proposed project and “use[d] the Pine Bush for recreation and to study

and enjoy the unique habitat found there,” have standing (13 NY3d at 305; see generally *United States v Students Challenging Regulatory Agency Procedures [SCRAP]*, 412 US 669, 687-688 [1973] [(W)e have . . . made it clear that standing is not to be denied simply because many people suffer the same injury . . . To deny standing to persons who are in fact injured simply because many others are also injured, would mean that the most injurious and widespread Government actions could be questioned by nobody”). The harm that is alleged must be specific to the individuals who allege it, and must be “different in kind or degree from the public at large” (*Society of Plastics* at 778), but it need not be unique. Here, petitioner Marvin is not alleging an indirect, collateral effect from the increased train noise that will be experienced by the public at large, but rather a particularized harm that may also be inflicted upon others in the community who live near the tracks.

The number of people who are affected by the challenged action is not dispositive of standing. This Court recognized in *Matter of Association for a Better Long Is., Inc. v New York State Dept. of Env'tl. Conservation* (23 NY3d 1 [2014]) that standing rules should not be “heavy-handed,” and declared that we are “reluctant to apply [standing] principles in an overly restrictive manner where the result would be to completely shield a particular action from judicial review” (23 NY3d at 6 [citation omitted]). Applying the Appellate Division’s reasoning, because there are multiple residents who are directly impacted, *no* resident of the Village would have standing to challenge the actions of the Village, notwithstanding that the train noise fell within the zone of interest of SEQRA. That result would effectively insulate the Village’s actions from any review and thereby run afoul of our pronouncement that the standing rule should not be so restrictive as to avoid judicial review.

Here, as in *Save the Pine Bush*, Marvin alleges injuries that are “real and different from the injury most members of the public face” (13 NY3d at 306). Thus, his allegation about train noise caused by the increased train traffic keeping him awake at night, even without any express differentiation between the train noise running along the tracks and the noise from the transloading facility, would be sufficient to confer standing.⁴

4. Although Marvin’s affidavit sets forth a generalized complaint of train noise, we see no reason to conclude, as did the Appellate Division, that he is

(n. cont’d)

Accordingly, the order should be reversed, with costs, and the matter remitted to the Appellate Division, for consideration of issues raised but not determined on the appeal to that Court.

Chief Judge LIPPMAN and Judges PIGOTT, RIVERA, STEIN and FAHEY concur.

Order reversed, with costs, and matter remitted to the Appellate Division, Fourth Department, for consideration of issues raised but not determined on the appeal to that Court.

only claiming noise from trains running on the tracks, and not from the trains in the loading facility. Given his proximity to the facility and his allegations, we may conclude that he was hearing noise from the facility, as well as the noise from the trains running along the tracks. Additionally, the verified petition references an engineer's report issued prior to the construction of the facility that states that the loaded cars will be heavy, and that moving cars loaded with more than 96 tons of weight on and off sidings can be expected to result in significant noise from coupling and uncoupling cars, running the diesel engines required to move the railcars and squealing wheels. In sum, Marvin's allegations, read in the context of the petition, sufficiently set forth harm caused not only by the noise of trains running along the tracks, but the trains in the loading facility.

[43 NE3d 757, 22 NYS3d 400]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v NUGENE AMBERS, Appellant.

Argued October 15, 2015; decided November 23, 2015

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered March 5, 2014. The Appellate Division affirmed an amended judgment of the Supreme Court, Queens County (James P. Griffin, J.), which had convicted defendant, upon a jury verdict, of course of sexual conduct against a child in the first degree, course of sexual conduct against a child in the second degree, rape in the second degree, and endangering the welfare of a child (two counts).

People v Ambers, 115 AD3d 671, affirmed.

HEADNOTES

Crimes — Right to Counsel — Effective Representation — Failure to Seek Dismissal of Time-Barred Charges

1. In the prosecution of defendant for various sex offense charges arising from alleged incidents involving two children, defendant's trial counsel was not ineffective for failing to seek dismissal of the time-barred charges of endangering the welfare of a child. The failure to raise a defense as clear-cut and completely dispositive as a statute of limitations, in the absence of a reasonable explanation for it, is hard to reconcile with a defendant's constitutional right to the effective assistance of counsel. However, the possibility exists that counsel may have a reasonable explanation for the failure, such as where the time-barred charge is a lesser crime than the remaining counts in the accusatory instrument, allowing the jury to reach a compromise verdict. Here, while seeking dismissal of the endangering the welfare of a child counts would have eliminated those charges, defendant would have still faced remaining charges of rape and course of sexual conduct against a child. Defendant's counsel may have strategically decided to allow the lesser charges of endangering the welfare of a child to remain in order to allow the jury to convict defendant of that crime rather than the greater charges. Given that a conviction of some kind was not unlikely in the face of the children's account of events, counsel had a sound basis to give the jury an opportunity to convict defendant of a misdemeanor rather than a felony. Moreover, there was no indication that counsel did not want a lesser offense charged to the jury.

Crimes — Right to Counsel — Effective Representation — Failure to Object to Certain Prosecutor Summation Statements

2. In the prosecution of defendant for various sex offense charges arising from alleged incidents involving two children, defendant's trial counsel was

not ineffective for failing to object to certain comments made during the prosecutor's summation, in which the prosecutor mischaracterized expert testimony and stated, without supporting evidence, that defendant abused the children because he was drunk. Notwithstanding that many of the statements were objectionable, defense counsel lodged 30 objections during the prosecutor's summation, 15 of which were sustained. Moreover, the court's curative instructions ameliorated any potential prejudice to him.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Criminal Law §§ 1135-1139.

CARMODY-WAIT 2d, Right to Counsel §§ 184:162-184:167, 184:271.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 11.7, 11.10.

NY JUR 2d, Criminal Law: Procedure §§ 864-870, 878, 879, 918.

ANNOTATION REFERENCE

See ALR Index under Arguments of Counsel; Attorneys.

FIND SIMILAR CASES ON WESTLAW®

Database: NY-ORCS

Query: ineffective /3 counsel /p fail! /s time-barred & strateg!

POINTS OF COUNSEL

Lynn W.L. Fahey, Appellate Advocates, New York City (*Mark W. Vorkink* of counsel), for appellant. I. Appellant was denied his due process right to a fair trial when the prosecutor, in summation, (a) falsely stated that the People's medical expert found physical evidence corroborating the abuse allegations, and (b) insisted without record support that appellant abused the complainants while he was drunk. (*People v Riback*, 13 NY3d 416; *Donnelly v DeChristoforo*, 416 US 637; *People v Ashwal*, 39 NY2d 105; *People v Fisher*, 18 NY3d 964; *People v Stanard*, 32 NY2d 143; *People v Calabria*, 94 NY2d 519; *Miller v Pate*, 386 US 1; *People v Prado*, 4 NY3d 725; *People v Finch*, 23 NY3d 408.) II. Appellant was denied the effective assistance of counsel when his attorney (a) failed to object to the prosecutor calling appellant a "two-time felon," "drunk," and "predator" who had "stole[n]" the complainants' "innocence" and "scarred [them] for life"; saying the complainants "deserve[d]" an Oscar" if they lied and that there was "no evidence" why

they would lie; and misrepresenting the People's child sex abuse expert's testimony; and (b) failed to seek dismissal of two clearly time-barred counts. (*People v Turner*, 5 NY3d 476; *Strickland v Washington*, 466 US 668; *People v Fisher*, 18 NY3d 964; *People v Baldi*, 54 NY2d 137; *Hawthorne v Schneiderman*, 695 F3d 192; *People v Benevento*, 91 NY2d 708; *Murray v Carrier*, 477 US 478; *People v Evans*, 16 NY3d 571; *People v Hobot*, 84 NY2d 1021; *People v Oathout*, 21 NY3d 127.)

Richard A. Brown, District Attorney, Kew Gardens (Anastasia Spanakos, Ushir Pandit, Robert J. Masters, John M. Castellano and Nicoletta J. Caferra of counsel), for respondent. I. The Appellate Division correctly found that defendant received the effective assistance of trial counsel. Counsel's strategic decision not to seek dismissal of misdemeanor time-barred charges was legitimate. (*People v Turner*, 5 NY3d 476; *Strickland v Washington*, 466 US 668; *People v Oathout*, 21 NY3d 127; *People v Benevento*, 91 NY2d 708; *People v Baldi*, 54 NY2d 137; *People v Baker*, 14 NY3d 266; *People v Satterfield*, 66 NY2d 796; *People v Borrell*, 12 NY3d 365; *People v Henry*, 95 NY2d 563; *People v Flores*, 84 NY2d 184.) II. The prosecutor's summation comments were responsive to defendant's summation, and any possible prejudice was cured by the court's instructions. Moreover, counsel adequately protected defendant's rights during the summation through his more than 30 objections and repeated mistrial motions. (*People v Ashwal*, 39 NY2d 105; *Williams v Brooklyn El. R.R. Co.*, 126 NY 96; *People v Halm*, 81 NY2d 819; *People v Bailey*, 58 NY2d 272; *People v Galloway*, 54 NY2d 396; *People v Marks*, 6 NY2d 67; *People v Anthony*, 24 NY2d 696; *People v Draksin*, 145 AD2d 500; *People v Trinidad*, 59 NY2d 820; *People v Arce*, 42 NY2d 179.)

OPINION OF THE COURT

ABDUS-SALAAM, J.

On this appeal, we must decide whether defendant's trial counsel was ineffective for (1) failing to seek the dismissal of time-barred charges against defendant and (2) failing to object to certain statements by the prosecutor during her summation. For the following reasons, we hold that defendant's trial counsel was not ineffective and therefore the Appellate Division order should be affirmed.

I

Defendant Nugene Ambers was charged, in two felony complaints, with having committed various sex offenses against

two children. Specifically, as to the older child, defendant was charged with first- and second-degree course of sexual conduct against a child, second-degree rape, and endangering the welfare of a child. As to the younger child, he was charged with second-degree course of sexual conduct against a child and endangering the welfare of a child. During trial, both children testified, detailing their accounts of the sexual abuse they endured from defendant. The People called Dr. Jamie Hoffman-Rosenfeld, a child abuse pediatrician, who is an expert in the fields of pediatric medicine and child sexual abuse. She testified that she examined both children and in her medical opinion both girls “presented with a history of sexual abuse and [their] physical exam finding[s] . . . neither proved or disproved that history.” Defendant testified on his own behalf. He denied having any sexual contact with the children. Defendant admitted that he became an alcoholic after he returned from a prior prison sentence, and drank “six or seven 40 ounce[]” bottles “of beer right after work,” and had “many blackouts.”

During the People’s summation, the prosecutor stated that Dr. Hoffman-Rosenfeld concluded “that these children were sexually abused.” Defense counsel made an objection, the court sustained the objection and later gave a curative instruction to the jury stating “that Dr. Hoffman-Rosenfeld testified that she did not find any physical evidence to support the claim of sexual abuse in either [child]. She indicated that the lack of such physical evidence neither proves nor disproves that sexual abuse occurred.” The prosecutor also made a series of statements about defendant’s alcoholism and stated that defendant abused the children because he was drunk. A number of those statements were made without objection. Defense counsel, however, did make an objection to one such comment, and the court issued a curative instruction stating that “neither [child] testified that the defendant was under the influence of alcohol at the time of any of the alleged acts of sexual abuse in this case.” During the People’s summation, defendant twice moved for a mistrial; both of those requests were denied.

Defendant was convicted of course of sexual conduct against a child in the first degree, course of sexual conduct against a child in the second degree, rape in the second degree, and two counts of endangering the welfare of a child. On appeal, defendant argued that his trial counsel was ineffective. Specifically, defendant asserted that his trial counsel’s failure to seek the dismissal of the endangering the welfare of a child counts

against him, based upon the expiration of the statute of limitations, rendered his counsel ineffective. Additionally, defendant argued that certain comments made by the prosecutor during summation misrepresented testimony, utilized rhetorical flourishes to elicit sympathy for the victims and prejudiced the jury against him.

The Appellate Division affirmed, holding that defendant failed to preserve his argument regarding the prejudicial nature of certain statements made by the prosecutor and that he was not deprived of effective assistance of counsel, stating that defendant “failed to demonstrate the absence of strategic or other legitimate explanations for counsel’s alleged shortcoming” (*see People v Ambers*, 115 AD3d 671, 672 [2d Dept 2014] [internal quotation marks omitted]). A Judge of this Court granted defendant’s application for leave to appeal (*see People v Ambers*, 23 NY3d 1059 [2014]).

II

A defendant has the right to receive reasonably effective assistance of counsel under the United States Constitution (*see Strickland v Washington*, 466 US 668, 687-688 [1984]). Under New York law, the constitutional requirement of effective assistance of counsel is met when “‘the evidence, the law, and the circumstances of a particular case, viewed in totality and as of the time of the representation, reveal that the attorney provided meaningful representation” (*People v Benevento*, 91 NY2d 708, 712 [1998], quoting *People v Baldi*, 54 NY2d 137, 147 [1981]). “The core of the inquiry is whether defendant received meaningful representation” (*Benevento*, 91 NY2d at 712 [internal quotation marks omitted]). To demonstrate ineffective assistance of counsel, the defendant must show that he or she did not receive a fair trial because counsel’s conduct was “egregious and prejudicial” (*People v Oathout*, 21 NY3d 127, 131 [2013]). Additionally, the defendant must overcome the strong presumption that defense counsel rendered effective assistance (*see People v Barboni*, 21 NY3d 393, 406 [2013]). Therefore, defendant must “demonstrate the absence of strategic or other legitimate explanations for counsel’s failure” (*id.* at 405-406). “[I]n ineffective assistance cases, counsel’s subjective reasons for a decision are immaterial, so long as ‘viewed objectively, the transcript and the submissions reveal the existence of a trial strategy that might well have been pursued by a reasonably competent attorney’” (*People v Evans*,

16 NY3d 571, 575-576 [2011] [brackets and emphases omitted], quoting *People v Satterfield*, 66 NY2d 796, 799 [1985]).

Relying on *People v Turner* (5 NY3d 476, 480-481 [2005]), defendant argues that there was no strategic reason to support his trial counsel's failure to seek dismissal of undisputably time-barred endangering the welfare of a child charges,* and thus he was denied his right to effective assistance of counsel. The People assert that defense counsel had a strategic reason for not seeking dismissal of those charges, and otherwise provided overall meaningful representation.

In *People v Turner* (5 NY3d 476 [2005]), we held that counsel was ineffective for the single error of failing to raise a statute of limitations defense. In that case, the defendant was indicted for murder in the second degree 16 years after the crime occurred. During the trial, the prosecutor requested that the jury be instructed on the lesser included offense of first-degree manslaughter, which, unlike second-degree murder, carries a five-year statute of limitations (*see* CPL 30.10 [2] [b]). Although defense counsel objected to the lesser included offense, stating that the defendant “does not want to give a jury the chance to compromise,” counsel did not argue that first-degree manslaughter was time-barred (*id.* at 478). The defendant was acquitted of murder but convicted of manslaughter. This Court held that the defendant's appellate counsel was ineffective for failing to assert that the defendant's trial counsel was ineffective for not seeking dismissal of the time-barred first-degree manslaughter charge. In particular, the Court stated that “the failure to raise a defense as clear-cut and completely dispositive as a statute of limitations . . . in the absence of a reasonable explanation for it, is hard to reconcile with a defendant's constitutional right to the effective assistance of counsel” (*id.* at 481). There was no evident explanation in *Turner* where defense counsel had opposed having manslaughter charged to the jury, but did not assert the statute of limitations as a basis

* The statute of limitations as to the class A misdemeanor of endangering the welfare of a child is two years (*see* Penal Law § 260.10 [1]; CPL 30.10 [2] [c]). The complaint as to the older child states that the acts supporting the endangering the welfare of a child charge occurred between September 1, 2003 and August 30, 2006. Thus, the statute of limitations expired on August 30, 2008. The second complaint as to the younger child states that the acts occurred between April 7, 1999 and April 6, 2007. The statute of limitations as to that charge expired on April 6, 2009. Both complaints were filed on May 20, 2010. Accordingly, the endangering the welfare of a child charges were certainly time-barred.

for such opposition. In that context, the Court determined that the issue of “whether trial counsel was clearly ineffective” turns on “how strong defendant’s statute of limitations defense was” and concluded that in the defendant’s case, because the statute of limitations argument was a clear winner, “trial counsel could not reasonably have thought that the defense was not worth raising” (*id.*).

Turner did not create a blanket rule that failure to raise an available statute of limitations defense will always render counsel ineffective, but left open the possibility that counsel may have “a reasonable explanation for” the failure to seek dismissal of a time-barred charge that would not render his or her representation ineffective (*id.* at 481). One such reasonable explanation, where the time-barred charge is a lesser crime than the remaining counts in the accusatory instrument, might be a strategy to allow the jury to reach a compromise verdict.

Thus, in *People v Evans* (16 NY3d 571 [2011]), this Court examined whether it was a reasonable strategy for a defense attorney not to seek dismissal of a time-barred lesser charge in order to provide the jury an opportunity to render a compromise verdict where there was a multiple-count indictment. The Court concluded that trial counsel had a legitimate strategy for not seeking dismissal of the manslaughter count, because

“at the time of trial, [the] defendant was facing second-degree murder charges with an admission that he had fired the shot that caused the cab driver’s death. Therefore, had the manslaughter count been dismissed prior to verdict, the trier of fact would have been left with murder as the only choice if [the] defendant was to be found criminally responsible for the homicide. So allowing the trial court to consider the manslaughter count would be a legitimate strategy” (*id.* at 576).

[1] While seeking dismissal of the endangering the welfare of a child counts (class A misdemeanors) based upon the statute of limitations would have eliminated those charges, defendant still would have faced the remaining charges of second-degree rape as well as first- and second-degree course of sexual conduct against a child as to the older child and second-degree course of sexual conduct against a child as to the younger child—class B and D felonies (*see* Penal Law §§ 130.75, 130.80, 130.30). Thus, defendant’s counsel here, like the defense

counsel in *Evans*, may have strategically decided to allow the lesser charges of endangering the welfare of a child to remain in order to allow the jury to convict defendant of that crime rather than the greater charges of rape and course of sexual conduct against a child. Given that a conviction of some kind after trial was not unlikely in the face of the children's account of events, counsel had a sound basis to give the jury an opportunity to convict defendant of a misdemeanor rather than a felony. There was no indication that counsel did not want a lesser offense charged to the jury as was the case in *Turner*. Given the presence of a plausible and reasonable strategy that could explain defense counsel's actions, we cannot say on this record that defendant's trial counsel was ineffective for failing to seek dismissal of the time-barred charges. Defendant, therefore, failed to meet his burden of demonstrating the absence of a strategy (see *Barboni*, 21 NY3d at 405-406).

[2] Moreover, defendant's trial counsel was not ineffective for failing to object to certain comments made during the prosecutor's summation. Although many of the prosecutor's statements were objectionable, defense counsel's failure to object to certain comments did not render him ineffective. During the prosecutor's summation, defense counsel lodged 30 objections, 15 of which were sustained. Contrary to defendant's contention, the curative instructions the court issued ameliorated any potential prejudice to him (see *People v Tosca*, 98 NY2d 660, 661 [2002]; *People v Galloway*, 54 NY2d 396, 399 [1981] [trial judge's prompt response halted any prejudice]; *People v Arce*, 42 NY2d 179, 190-191 [1977] [same]). Overall, defendant's counsel provided meaningful representation and zealously advocated for defendant by vigorously cross-examining the prosecution witnesses, seeking to discredit the People's theory of the case, twice moving for a mistrial, and objecting to numerous statements made during the People's summation. His failure to make additional objections did not render him constitutionally ineffective.

Accordingly, the Appellate Division order should be affirmed.

Chief Judge LIPPMAN and Judges PIGOTT, RIVERA, STEIN and FAHEY concur.

Order affirmed.

[43 NE3d 750, 22 NYS3d 393]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DAVON
HARRIS, Appellant.

Argued October 15, 2015; decided November 23, 2015

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered March 19, 2014. The Appellate Division affirmed a judgment of the Supreme Court, Queens County (Joseph A. Zayas, J.), which had convicted defendant, upon a jury verdict, of burglary in the second degree and petit larceny.

People v Harris, 115 AD3d 872, modified.

HEADNOTES

Crimes — Jurors — Selection of Jury — Challenge for Cause Where Juror Offers Innocent Explanations for Untruthfulness

1. The trial court in a burglary prosecution did not err in denying defendant's for-cause challenge to a prospective juror who, during voir dire, offered innocent explanations for untruthfulness, where there was no showing of a substantial risk that any predispositions would affect the juror's ability to discharge his responsibilities. The prospective juror's natural willingness to entertain ethically benign explanations for untruthfulness did not bespeak utter credulity in the face of sworn averment; it did not reasonably raise a red flag that he possessed a state of mind that was likely to preclude him from rendering an impartial verdict. Nothing said by the prospective juror cast significant doubt on his ability to follow the standard jury instructions respecting a juror's obligation to judge whether a witness is telling the truth, and whether any falsehood is deliberate.

Crimes — Right to Counsel — Effective Representation — Failure to Raise Statute of Limitations Defense

2. In a prosecution in which defendant was charged with burglary and petit larceny 1½ years after expiration of the applicable statutory period for the petit larceny charge, defense counsel's failure to have the time-barred count dismissed deprived defendant of the effective assistance of counsel. There could have been no strategic purpose for failing to raise the statute of limitations as against the petit larceny charge. The charge's submission was objectively incapable of enabling any compromise verdict, much less the particular compromise verdict sought by trial counsel. In light of the DNA evidence proving the trespass component of the charged burglary, a finding of guilt on the petit larceny count would as a practical matter have dictated a finding of guilt on the burglary count as well. Accordingly, the defense strategy was not, and could not reasonably have been, to contend that defendant had merely committed petit larceny, but that he had done no more than trespass. It was completely inconsistent with this line of defense to allow the petit larceny count to remain in the indictment, since so doing oper-

ated to preclude the compromise verdict counsel sought convicting defendant only of trespass. An unreasonable omission to raise a clear-cut defense completely dispositive of a charge for which the defendant was ultimately convicted should not be subsumed within the “totality” of the representation for purposes of determining the availability of relief for ineffective assistance.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Criminal Law §§ 1135-1139; AM JUR 2d, Jury §§ 200-203, 228.

CARMODY-WAIT 2d, Right to Counsel §§ 184:162-184:167, 184:256, 184:257; CARMODY-WAIT 2d, Jury Selection and Supervision §§ 191:31, 191:41.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 11.7, 22.3.

NY JUR 2d, Criminal Law: Procedure §§ 864-870, 879, 2546, 2552.

ANNOTATION REFERENCE

See ALR Index under Attorneys; Challenges to Jury.

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POINTS OF COUNSEL

Lynn W.L. Fahey, Appellate Advocates, New York City (*Alexis A. Ascher* of counsel), for appellant. I. The trial court deprived appellant of his due process rights to a fair trial and an impartial jury when, without conducting its own inquiry, it denied defense counsel's for-cause challenge of a juror who showed an inability to accept that a witness could purposely lie under oath. (*People v Branch*, 46 NY2d 645; *People v Arnold*, 96 NY2d 358; *People v Bludson*, 97 NY2d 644; *People v Culhane*, 33 NY2d 90; *People v Santiago*, 13 AD3d 81; *People v Johnson*, 17 NY3d 752; *People v Johnson*, 94 NY2d 600; *People v Chambers*, 97 NY2d 417; *People v Casey*, 96 NY 115.) II. Appellant was denied the effective assistance of counsel when, without any strategic reason, counsel failed to make the “clear-cut,” “dispositive,” and “winning argument” that the misdemeanor charge of petit larceny should be dismissed as time-barred. (*People v Turner*, 5 NY3d 476; *Strickland v Washington*, 466 US 668; *People v Baldi*, 54 NY2d 137; *People v Caban*, 5

NY3d 143; *People v Benevento*, 91 NY2d 708; *People v Townsley*, 20 NY3d 294; *People v Satterfield*, 66 NY2d 796; *People v Thompson*, 21 NY3d 555; *People v Feliciano*, 17 NY3d 14; *People v Jackson*, 18 NY3d 738.)

Richard A. Brown, District Attorney, Kew Gardens, (*Christine DiSalvo*, *Daniel Bresnahan* and *John M. Castellano* of counsel), for respondent. I. The Appellate Division properly affirmed the trial court's denial of defendant's for-cause challenge of a prospective juror who had not expressed a state of mind that would likely preclude him from rendering an impartial verdict. (*People v Person*, 8 NY3d 973; *People v Gray*, 86 NY2d 10; *People v Fleming*, 70 NY2d 947; *People v LaValle*, 3 NY3d 88; *People v Burris*, 96 NY2d 884; *People v Laverpool*, 267 AD2d 93; *People v Hicks*, 6 NY3d 737; *People v Torres*, 80 NY2d 944; *People v Grimm*, 107 AD3d 1040; *People v Moon*, 256 AD2d 24.) II. The Appellate Division correctly found that defendant received the effective assistance of trial counsel. (*People v Turner*, 5 NY3d 476; *Strickland v Washington*, 466 US 668; *People v Benevento*, 91 NY2d 708; *People v Baldi*, 54 NY2d 137; *People v Baker*, 14 NY3d 266; *People v Satterfield*, 66 NY2d 796; *People v Borrell*, 12 NY3d 365; *People v Henry*, 95 NY2d 563; *People v Flores*, 84 NY2d 184; *People v McGee*, 20 NY3d 513.)

OPINION OF THE COURT

Chief Judge LIPPMAN.

On the night of August 4, 2002, the complainant awoke in the dwelling where she was passing the night, to the sight of a man standing over her. She screamed and the man fled, but, as it turned out, not without leaving markers of his intrusion. In December 2010, DNA recovered from the complainant's pajama shirt directly after the 2002 incident was matched to defendant's DNA profile, and that match was confirmed using a buccal swab obtained from defendant in 2011. On the strength of those findings and the complainant's report that a pair of earrings was missing from the apartment in the near aftermath of the 2002 intrusion, defendant was in February 2011 indicted for burglary in the second degree (Penal Law § 140.25) and petit larceny (Penal Law § 155.25). The former charge was timely interposed,¹ but the latter was not, the applicable statu-

1. Burglary in the second degree, a class C felony, is subject to a five-year statutory period, which can be tolled for up to five years (CPL 30.10 [2] [b]);

(n. cont'd)

tory period having run some 1½ years before the filing of the accusatory instrument.² This last circumstance notwithstanding, defendant’s trial counsel never obtained the time-barred count’s dismissal. The jury consequently considered the two counts in tandem; indeed, the case was prosecuted upon the theory that defendant entered the dwelling where the complainant was sleeping with the intent to commit a theft, namely, the charged petit larceny.

On his appeal from the judgment convicting him of both indicted offenses, defendant argued that the trial court’s denial of his for-cause challenge to a prospective juror, a gentleman referred to as Mr. O, operated to deprive him of his right to a fair and impartial jury, and that his trial counsel’s failure to have the time-barred petit larceny count dismissed constituted ineffective assistance. The Appellate Division, however, affirmed the judgment of conviction, characterizing defendant’s for-cause challenge to the empaneling of Mr. O as unfounded, and noting without elaboration that defendant had not “demonstrat[ed] the absence of strategic or other legitimate explanations for counsel’s alleged shortcoming” (115 AD3d 872, 872 [2d Dept 2014] [internal quotation marks and citation omitted]). A Judge of this Court granted defendant permission to appeal (23 NY3d 1062 [2014]), and we now modify to the extent of granting defendant relief upon his ineffective assistance claim.

[1] Defendant’s contention that the court erred in denying his for-cause challenge to Mr. O arises out of portions of the voir dire in which Mr. O advanced innocent explanations for untruthfulness—he offered that a witness might testify untruthfully by reason of forgetfulness or might simply be unintentionally mistaken. This prompted the court to inquire whether Mr. O agreed that “[s]ometimes people can lie knowing they are lying,” to which Mr. O responded “[r]ight.” Defendant’s argument, that Mr. O’s responses raised a substantial, unsatisfactorily resolved question as to whether he understood that a witness, even though under oath, could give knowingly false testimony, is, we think, premised on a strained interpreta-

[4] [a)]. Here, the burglary prosecution commenced some 8½ years after the charged offense was timely by reason of the applicability of the toll.

2. Petit larceny, a class A misdemeanor, is subject to a two-year statutory period (CPL 30.10 [2] [c]), so that even with the applicable five-year toll (CPL 30.10 [4] [a]), it was not, in 2011, timely charged based upon conduct dating back to 2002.

tion of Mr. O's responses that the court was not obliged to adopt. Mr. O's natural willingness to entertain ethically benign explanations for untruthfulness did not bespeak utter credulity in the face of sworn averment; it did not reasonably raise a red flag that he possessed "a state of mind that [was] likely to preclude him from rendering an impartial verdict" (CPL 270.20 [1] [b]). We have in this connection recognized that

"most if not all jurors bring some predispositions, of varying intensity, when they enter the jury box. It is only when it is shown that there is a substantial risk that such predispositions will affect the ability of the particular juror to discharge his responsibilities (a determination committed largely to judgment of the Trial Judge with his peculiar opportunities to make a fair evaluation) that his excuse is warranted" (*People v Williams*, 63 NY2d 882, 885 [1984]; accord *People v Johnson*, 94 NY2d 600, 613 [2000]).

It is plain that this "substantial risk" threshold was not crossed by Mr. O's statements. Nothing said by Mr. O cast significant doubt on his ability to follow the standard jury instructions respecting a juror's obligation to judge whether a witness is telling the truth, and whether any falsehood is deliberate.

Turning now to defendant's ineffective assistance claim, we have held in *People v Turner* (5 NY3d 476 [2005]) that such a claim may be premised on a singular omission by counsel to secure the dismissal of a time-barred count. Our conclusion that Turner had been deprived of effective assistance rested on the circumstance that the failure of his attorney to raise the statute of limitations to prevent the submission of manslaughter as a lesser included offense of murder could not be reconciled with the attorney's trial strategy; counsel had announced that he was pursuing an all-or-nothing defense of the murder count and had actively opposed the prosecutor's request to charge manslaughter as a lesser included offense because he did "not want to give a jury the chance to compromise" (*id.* at 478; cf. *People v Evans*, 16 NY3d 571, 576 [2011], *cert denied* 565 US —, 132 S Ct 325 [2011]; *People v Ambers*, 26 NY3d 313 [2015] [decided herewith]³). Counsel's failure to raise the statute of limitations—the most certainly efficacious means of

3. The possibility that Ambers's counsel chose to allow the jury to consider certain time-barred misdemeanors in order to permit a compromise verdict

(n. cont'd)

achieving his announced purpose of preventing a compromise manslaughter verdict—admitted of no rational explanation, and it was thus clear that counsel’s representation had not met the relevant standard of objective reasonableness set forth in *Strickland v Washington* (466 US 668, 688-689 [1984]) (see *Turner*, 5 NY3d at 479-480, 484 [(o)nce that decision (to gamble on an outright acquittal) was made, it could not have been rational for trial counsel to abandon a statute of limitations defense that would have prevented the (lesser) charge from being submitted”). It was also evident that Turner had in consequence of this representational lapse been prejudiced, having been saddled with a completely avoidable conviction.

[2] Here, there could have been no strategic purpose for failing to raise the statute of limitations as against the time-barred charge. This is evident not by reason of an announced election to seek an outright acquittal, as in *Turner*, but because the charge’s submission was in the context of this prosecution objectively incapable of enabling any compromise verdict, much less the particular compromise verdict sought by trial counsel. In light of the DNA evidence all but irrefutably proving the trespass component of the charged burglary, a finding of guilt on the petit larceny count would as a practical matter have dictated a finding of guilt on the burglary count as well. Accordingly, the defense strategy was not, and could not reasonably have been, to contend that defendant had merely committed petit larceny, but that he had done no more than trespass, and in that connection to point out that what he indisputably did within the residence, i.e., ejaculate on the complainant, was not in 2002 a crime. Counsel’s argument was that his client’s intent to engage in unsavory, but not at the time criminal conduct, could not be used to elevate his trespass to burglary. It was completely inconsistent with this line of defense to allow the petit larceny count to remain in the indictment, since, as noted, proof of the alleged petit larceny also

convicting defendant of the misdemeanors but not the factually related felonies with which his client had been timely charged, was not possible to discount on the basis of the trial record (see *People v Ambers*, 26 NY3d 313, 319-320 [2015]). While Ambers’s trial counsel urged the jury to acquit on all counts and did not affirmatively seek a compromise verdict, that did not demonstrate a defense strategy to avoid a compromise verdict, as in *Turner*, and accordingly did not prove the absence of a reasonable strategic rationale for permitting the submission of the misdemeanor counts.

proved the charged burglary and in so doing operated to preclude the compromise verdict counsel sought convicting defendant only of trespass.

The irreducible fact is that defendant was avoidably convicted of a crime by reason of his attorney's rationally inexplicable failure to have a time-barred count dismissed. It is true that counsel's lapse in not raising the time-bar defense was not "completely dispositive" of the case, but neither was it in *Turner*, where counsel's lapse was only completely dispositive of the time-barred manslaughter count; Turner was acquitted on the top, murder count—a circumstance certainly not traceable to the cited lapse, and not indicative of the sort of pervasive representational failure ordinarily necessary to support an ineffective assistance claim. We nonetheless granted relief on an ineffective assistance theory with respect to the representation on the manslaughter count because the error in failing to raise the statute of limitations was "clear-cut" and the unraised *defense* would have been "completely dispositive," albeit only of the manslaughter count (*Turner*, 5 NY3d at 481). Recognizing that this was a most unusual application of the ineffective assistance doctrine, we took care to

"reaffirm . . . that such errors as overlooking a useful piece of evidence, or failing to take maximum advantage of a *Rosario* violation, do not in themselves render counsel constitutionally ineffective where his or her overall performance is adequate. *But neither [of those failings] involve[s] the failure to raise a defense as clear-cut and completely dispositive as a statute of limitations. Such a failure, in the absence of a reasonable explanation for it, is hard to reconcile with a defendant's constitutional right to the effective assistance of counsel*" (*id.* at 480-481 [emphasis added and citations omitted]).

What we recognized in *Turner*, even if only implicitly, was that an unreasonable omission to raise a clear-cut defense completely dispositive of a charge for which the defendant was ultimately convicted should not be subsumed within the "totality" of the representation for purposes of determining the availability of relief for ineffective assistance. The reason for this is not difficult to discern—we would otherwise countenance time-barred prosecutions enabled solely by objectively unreasonable lapses on the part of defense counsel. This unseemly coinci-

dence, on the one hand of prosecutorial overreaching and the other of representational neglect, incompatible in its outcome with the legislatively expressed public policy against stale prosecutions (*see Toussie v United States*, 397 US 112, 114-115 [1970]; *People v Seda*, 93 NY2d 307, 311-312 [1999]), is not, when it results in an entirely gratuitous, strategically inexplicable conviction, one appropriately shielded from address under the ineffective assistance rubric by the competent balance of an attorney's representational effort, particularly where, as here, the only relief sought is from the time-barred conviction. Claims such as defendant's, presenting a clear-cut, objectively unreasonable failure by counsel to obtain the dismissal of a time-barred count, instance precisely the sort of breakdown in the adversary process understood in *Strickland* to be the quintessential ground for and target of an ineffective assistance claim (*Strickland v Washington*, 466 US at 696). And, under *Strickland*, it is irrelevant that the omission is not "completely dispositive" of the entire case. All a defendant must show is "that there is a reasonable probability that, but for counsel's unprofessional errors, the result of the proceeding would have been *different*" (*id.* at 694 [emphasis added]). It is obvious that this standard is met where an attorney unaccountably allows the submission of a time-barred count for which his client is convicted. *Turner*, of course, did not articulate a more demanding standard.

The freestanding claim we have recognized, predicated upon a single representational error, is, as we observed in *Turner*, by its nature extremely limited—solitary lapses as egregious and demonstrably prejudicial as an attorney's failure to avoid a conviction on a time-barred count are rare, and can be made rarer still by responsible charging practices. Our decisions today and in *Turner*, then, signal no broad departure from the ordinarily applicable rule that it is the entire representational effort that should be weighed in judging whether counsel provided constitutionally effective representation.

Accordingly, the order of the Appellate Division should be modified by vacating defendant's conviction on the charge of petit larceny and dismissing that charge in the indictment and, as so modified, affirmed.

ABDUS-SALAAM, J. (dissenting). This Court has made clear on numerous occasions that an attorney may not be found to have rendered ineffective assistance where a reasonable strategy ex-

ists to support his or her performance (see *People v Barboni*, 21 NY3d 393, 406 [2013]; *People v Evans*, 16 NY3d 571, 575-576 [2011]; *People v Satterfield*, 66 NY2d 796, 798-799 [1985]). A claim of ineffective assistance of counsel is not an opportunity for courts to “second-guess whether a course chosen by defendant’s counsel was the best trial strategy, or even a good one, so long as defendant was afforded meaningful representation” (*Satterfield*, 66 NY2d at 799-800). “[A] reviewing court must avoid confusing ‘true ineffectiveness with mere losing tactics and according undue significance to retrospective analysis’” (*People v Benevento*, 91 NY2d 708, 712 [1998], quoting *People v Baldi*, 54 NY2d 137, 146 [1981]). Thus, in view of the totality of defense counsel’s representation, the strategies he or she employs need only be reasonable or plausible; we do not require that the strategy be a winning approach. Because in my opinion defendant’s trial counsel had a reasonable strategy, I dissent.

In *People v Evans*, this Court determined that the defense counsel’s decision not to seek dismissal of a time-barred lesser charge in order to provide the jury an opportunity to make a compromise verdict was a reasonable strategy (see 16 NY3d at 576). The facts of this case also present a circumstance where defendant’s trial counsel may have strategically intended to give the jury an opportunity to compromise. Defendant was facing a misdemeanor charge of petit larceny (see Penal Law § 155.25) and a felony burglary charge (see Penal Law § 140.25 [2]). Seeking dismissal of the petit larceny charge would likely ensure that defendant, if he were to be convicted at all, would be convicted of a felony. Although the burglary charge was premised upon petit larceny, dismissal of the petit larceny charge would not have ensured that defendant would be acquitted of burglary because evidence of the predicate offense for the burglary, namely the theft, would have been admitted at trial (see *People v Ventimiglia*, 52 NY2d 350, 359 [1981]; see also *United States v Cook*, 84 US 168 [1872]). Surely, given the fact that defendant’s DNA was recovered at the crime scene, it is quite possible that he would have been convicted of a crime. Facing the significant possibility of defendant’s conviction, trial counsel attempted to give the jurors the opportunity to convict defendant of a misdemeanor rather than a felony, which would certainly be a more favorable outcome for defendant, and, thus, I disagree with the majority’s assessment that the submission of the petit larceny charge to the jury was “objectively incapable of enabling any compromise verdict, much less the particular compromise verdict sought by trial counsel” (majority op at

326).^{*} Furthermore, that counsel's strategy here was not successful should not render him ineffective, especially since he provided defendant with overall meaningful representation (see *Benevento*, 91 NY2d at 712-713).

Additionally, the majority's remedy undercuts the conclusion that defendant's counsel was ineffective. Where an attorney is held to have provided ineffective assistance, it is as if the defendant had no representation at all. Therefore, in cases where we have determined that counsel is ineffective, defendant's conviction has been reversed and a new trial ordered (see *People v Wright*, 25 NY3d 769 [2015]; *People v Oathout*, 21 NY3d 127 [2013]; *People v Oliveras*, 21 NY3d 339 [2013]; *People v Zabor-ski*, 59 NY2d 863 [1983]). This is so because counsel's performance must be viewed in its totality to determine whether he or she was ineffective (see *Baldi*, 54 NY2d at 147). Thus, counsel's effectiveness or ineffectiveness permeates throughout the entire proceeding and affects every charge against the defendant. It is, therefore, inconsistent to conclude that counsel here was ineffective in failing to seek dismissal of the petit larceny charge but nonetheless hold that defendant's conviction for burglary may stand, as such a conclusion indicates that, overall, counsel provided defendant meaningful representation. Contrary to the majority's contention, in *People v Turner* (5 NY3d 476 [2005]), this Court did not implicitly recognize such a charge by charge analysis and dismissal of the totality standard. *Turner* does not reject the application of our totality of the representation test to determine ineffective assistance of counsel, for in *Turner* we specifically stated that counsel's representation is "viewed in totality" (see *id.* at 480). *Turner* presents a rare expansion of our ineffective assistance of counsel jurisprudence to hold that a single error may support a determination that counsel's overall performance was ineffective. The majority has expanded *Turner* by reading into the decision a standard whereby counsel's ineffectiveness may be determined charge by charge, which is wholly inconsistent with our long-standing application of the totality test in these cases.

Despite the majority's implementation of such a peculiar remedy, I believe that on this record defendant was provided

^{*} I see little distinction between the possible strategy employed in *People v Ambers* (26 NY3d 313 [2015]) and the facts presented here. In both cases, the strategy employed provided the jury the opportunity to convict the defendant of a misdemeanor rather than a felony.

overall meaningful representation and there exists grounds to support a plausible and reasonable strategy for counsel's decision not to seek dismissal of the petit larceny charge. For these reasons, I cannot say that counsel was ineffective.

Judges RIVERA, STEIN and FAHEY concur; Judge ABDUS-SALAAM dissents in an opinion in which Judge PIGOTT concurs.

Order modified by vacating defendant's conviction on the charge of petit larceny and dismissing that charge in the indictment and, as so modified, affirmed.

[44 NE3d 149, 23 NYS3d 74]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v
MATTHEW P., Appellant.

Argued October 13, 2015; decided November 19, 2015

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Term of the Supreme Court in the First Judicial Department, entered October 15, 2013. The Appellate Term affirmed two judgments of the Criminal Court of the City of New York, New York County (Diana M. Boyar, J.), which had convicted defendant, upon his pleas of guilty, of petit larceny and theft of services.

People v Matthew P., 41 Misc 3d 128(A), 2013 NY Slip Op 51681(U), affirmed.

HEADNOTE**Crimes — Information — Jurisdictional Validity — Sufficiency of Factual Allegations**

The information charging defendant with petit larceny for his unauthorized use of an illegally-obtained key to allow undercover transit police officers to enter a subway station through an emergency exit gate in exchange for money, thereby depriving the New York City Transit Authority (NYCTA), as the owner, of its property, adequately alleged all the elements of a larceny and was therefore jurisdictionally valid. Penal Law § 155.00 (5) defines ownership broadly and codifies the common-law rule that ownership is not limited to the title owner of the property. Rather, it is enough that the person have a right to possession of the property superior to that of the thief. The NYCTA did not voluntarily transfer the key that defendant used to sell entrance to the subway system or receive a set price for it. The NYCTA was the rightful owner of the key because it had a right of possession of the key superior to that of defendant, who had no right of possession whatsoever. Nor did defendant have any possessory right or lawful expectation with respect to the business generated from the use of the key.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Indictments and Informations §§ 89, 105, 111, 116, 140; AM JUR 2d, Larceny §§ 2, 5, 44, 52, 102, 109–110, 114, 117–118, 120, 145, 148, 153.

CARMODY-WAIT 2d, Commencing the Prosecution; Grand Jury §§ 178:17–178:19, 178:27, 178:301–178:302.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 15.1, 15.4, 19.1–19.5, 24.8.

McKINNEY'S, Penal Law § 155.00 (5).

NY JUR 2d, Criminal Law: Procedure §§ 955–957, 961, 965; NY JUR 2d, Criminal Law: Substantive Principles and Offenses §§ 914, 919, 971, 976–977.

ANNOTATION REFERENCE

Power of court to pass on competency, legality, or sufficiency of evidence on which indictment is based. 31 ALR 1479.

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POINTS OF COUNSEL

Seymour W. James, Jr., The Legal Aid Society, New York City (*Amy Donner* of counsel), for appellant. I. The information for docket No. 2011NY046476 was jurisdictionally defective, as its allegations—that appellant let himself and two undercover police officers into a subway station emergency exit gate in exchange for \$2—failed to establish that appellant committed the crime of petit larceny, because the New York City Transit Authority was not the “owner” of any property allegedly taken as proscribed by the larceny statutes. (Penal Law §§ 155.00 [5]; 155.05 [1]; 155.25; CPL 100.15 [3]; 100.40 [4] [b]; *People v Hightower*, 18 NY3d 249 [2011].) (*People v Dumay*, 23 NY3d 518; *People v Dreyden*, 15 NY3d 100; *People v Case*, 42 NY2d 98; *People v Kalin*, 12 NY3d 225; *People v Jones*, 9 NY3d 259; *People v Alejandro*, 70 NY2d 133; *People v Casey*, 95 NY2d 354; *People v Henderson*, 92 NY2d 677; *People v Zinke*, 76 NY2d 8; *People v Nappo*, 94 NY2d 564.) II. The information for docket No. 2011CN005767, charging theft of services, was jurisdictionally defective, where it did not allege evidentiary facts to support its conclusory allegations that, when appellant allegedly entered a subway exit gate, he did not have authority or permission or pay the required fare. (CPL 100.15 [3]; 100.40 [4] [b]; Penal Law § 165.15 [3]; *People v Dreyden*, 15 NY3d 100 [2010]; *People v Kalin*, 12 NY3d 225, 228 [2009].) (*People v Alejandro*, 70 NY2d 133; *People v Dumay*, 23 NY3d 518; *People v Case*, 42 NY2d 98; *People v Jones*, 9 NY3d 259; *People v Henderson*, 92 NY2d 677; *People v Pin*, 41 Misc 3d 128[A], 2013 NY Slip Op 51681[U]; *People v Jackson*, 18 NY3d 738; *People v Rowland*, 8 NY3d 342; *People v Taylor*, 80 NY3d 1; *People v Boston*, 75 NY2d 585.)

Cyrus R. Vance, Jr., District Attorney, New York City (Ryan Gee and Alice Wiseman of counsel), for respondent. I. The accusatory instrument charging defendant with petit larceny was jurisdictionally sufficient. (*People v Hightower*, 18 NY3d 249; *People v Spatarella*, 34 NY2d 157; *People v Dumay*, 23 NY3d 518; *People v Kalin*, 12 NY3d 225; *People v Jackson*, 18 NY3d 738; *People v Konieczny*, 2 NY3d 569; *People v Alejandro*, 70 NY2d 133; *People v Dreyden*, 15 NY3d 100; *People v Casey*, 95 NY2d 354; *People v Jennings*, 69 NY2d 103.) II. The accusatory instrument charging defendant with theft of services was jurisdictionally sufficient. (*People v Konieczny*, 2 NY3d 569; *People v Dreyden*, 15 NY3d 100; *People v Hansen*, 95 NY2d 227; *People v Casey*, 95 NY2d 354; *People v Jackson*, 18 NY3d 738; *People v Henderson*, 92 NY2d 677; *People v Suber*, 19 NY3d 247; *People v Kalin*, 12 NY3d 225; *People v Allen*, 92 NY2d 378; *People v Davis*, 13 NY3d 17.)

OPINION OF THE COURT

STEIN, J.

In this appeal, we are asked to consider whether our decision in *People v Hightower* (18 NY3d 249 [2011]) precludes the larceny prosecution of a defendant who, in exchange for a fee, used a stolen New York City Transit Authority (hereinafter NYCTA) key to allow two individuals to enter the subway system through an emergency exit gate. Inasmuch as *Hightower* is distinguishable and does not bar prosecution under the circumstances of this case, the Appellate Term properly upheld defendant's conviction. We, therefore, affirm.

I.

In June 2011, defendant was charged, by misdemeanor information, with petit larceny, among other crimes. The factual portion of the information alleged that defendant approached two undercover transit police officers inside a subway station and said, "you have \$2, I will let you in." Upon defendant's receipt of payment, the officers saw him "take a key, open the emergency exit gate and allow [the officers] and defendant through said gate into the subway system, thereby depriving the [NYCTA] of revenue otherwise owed it by the defendant for access to the subway system." The deponent officer picked up the key from the ground where she saw defendant throw it; defendant then told the officer, "if I told the guy that taught me this he would laugh at me, I should have known you were both cops." Based upon her training and experience, the deponent

officer stated that only NYCTA employees have permission to possess such a key, and that defendant did not have permission or authority to take the key or use it.

Defendant pleaded guilty to petit larceny under the information; he also pleaded guilty to theft of services under a second information. As agreed, he received youthful offender treatment and an aggregate sentence of 15 days in jail. On his appeal, the Appellate Term affirmed, rejecting defendant's challenge to the information charging him with petit larceny as jurisdictionally defective (41 Misc 3d 128[A], 2013 NY Slip Op 51681[U] [App Term, 1st Dept 2013]). A Judge of this Court granted defendant leave to appeal (23 NY3d 1024 [2014]).

II.

It is well settled that “‘[a] valid and sufficient accusatory instrument is a nonwaivable jurisdictional prerequisite to a criminal prosecution’” (*People v Dreyden*, 15 NY3d 100, 103 [2010], quoting *People v Case*, 42 NY2d 98, 99 [1977]; see *People v Kalin*, 12 NY3d 225, 229 [2009]). To be legally sufficient, “the factual portion of a local criminal court information” must meet the requirements

“that it state ‘facts of an evidentiary character supporting or tending to support the charges’ (CPL 100.15 [3]; see, CPL 100.40 [1] [a]); that the ‘allegations of the factual part . . . together with those of any supporting depositions . . . provide reasonable cause to believe that the defendant committed the offense charged’ (CPL 100.40 [1] [b]); and that the ‘[n]on-hearsay allegations [of the information and supporting depositions] establish, if true, every element of the offense charged and the defendant’s commission thereof’ (CPL 100.40 [1] [c]; see, CPL 100.15 [3])” (*People v Casey*, 95 NY2d 354, 360 [2000]).

A failure to comply with either the reasonable cause requirement of section 100.40 (1) (b) or the prima facie case requirement of section 100.40 (1) (c) constitutes a jurisdictional defect (see *Hightower*, 18 NY3d at 254; *People v Jones*, 9 NY3d 259, 262-263 [2007]).*

Stated otherwise, “[a]n information is valid for jurisdictional purposes if it contains nonconclusory factual allegations that,

* We have referred to the requirement set forth in CPL 100.40 (1) (c) as “the prima facie case requirement” (*People v Dumay*, 23 NY3d 518, 522

(n. cont’d)

if assumed to be true, address each element of the crime charged, thereby affording reasonable cause to believe that defendant committed that offense” (*People v Jackson*, 18 NY3d 738, 741 [2012]). This standard is met when “the factual allegations of an information give an accused notice sufficient to prepare a defense and are adequately detailed to prevent a defendant from being tried twice for the same offense” (*Casey*, 95 NY2d at 360). Moreover, as we have repeatedly emphasized, if an accused has received fair notice and double jeopardy has been forestalled, the factual portion of the information “should be given a fair and not overly restrictive or technical reading” (*id.*; see *Jackson*, 18 NY3d at 746; *Dreyden*, 15 NY3d at 103; *Kalin*, 12 NY3d at 230).

Here, defendant argues that the allegations in the information—that he used a NYCTA key (that he did not have authorization to use) to let two undercover police officers through a subway station emergency exit gate in exchange for \$2—did not establish that he committed the crime of petit larceny because the NYCTA was not the “owner” of any property that was taken within the meaning of the larceny statutes. In charging defendant with larceny by information, the People were required to establish reasonable cause to believe that, “with intent to deprive another of property or to appropriate the same to himself or to a third person, [defendant] wrongfully t[ook], obtain[ed] or with[held] such property from an *owner* thereof” (Penal Law §§ 155.05 [1] [emphasis added]; see 155.25). “Property” includes “any money, personal property, . . . or thing of value” (Penal Law § 155.00 [1]). In regard to the challenged element here, an “owner” is defined as “any person who has a right to possession [of property] superior to that of the taker, obtainer or withholder” (Penal Law § 155.00 [5]). As reflected in its text, section 155.00 (5) “defines ownership broadly . . . [and] codifies the common-law rule, long recognized in this State, that ownership is not limited to the title owner of the property. Rather, it is enough that the person have a right to possession of the property superior to that of the thief” (*People v Wilson*, 93 NY2d 222, 225 [1999]

[2014] [internal quotation marks and citations omitted]). However, we have also clarified that CPL 100.40 (1) (c), in fact, has “two ‘prima facie’ requirements . . . that first, there must be factual allegations establishing every element of the offense and second, those allegations must be ‘non-hearsay’” (*Casey*, 95 NY2d 354, 362 [2000]). Only the first prima facie requirement—that the information state a crime by alleging all of the necessary elements—is jurisdictional and nonwaivable (see *id.* at 362-367).

[citations omitted]). Thus, as we have repeatedly explained, “the definition of ownership does not require that the owner have ‘an independent right of possession but only that he [or she has] a possessory right which, however limited or contingent, [is] superior to that of defendant’ ” (*id.* at 225-226, quoting *People v Hutchinson*, 56 NY2d 868, 869 [1982]).

Under circumstances that were similar to, but distinguishable from, those presented here, this Court previously concluded that an information did not provide reasonable cause to believe that the defendant committed the charged offense of petit larceny where the information alleged that he used an unlimited MetroCard to swipe another person through a subway turnstile in exchange for money (*see Hightower*, 18 NY3d at 254). We noted that the unlimited MetroCard at issue in *Hightower* was legally transferrable, although the person lending or giving away the card was not permitted to accept money in exchange (*see id.* at 252). Critically, while we acknowledged our prior holding in *People v Spatarella* (34 NY2d 157, 162 [1974]) that, as *Hightower* put it, “taking away a portion of a person[’s] or entity’s business” could constitute larceny under certain circumstances, we distinguished *Hightower* on the ground that “*the NYCTA voluntarily transferred [the] valid MetroCard in a manner consistent with its ordinary course of business by selling the card and receiving the price it set*” (18 NY3d at 255 [emphasis added]). That distinguishing factor is not present here. The NYCTA was not the owner of the unlimited MetroCard in *Hightower* or the “business” associated with it because, as compared with the defendant, who lawfully purchased the unlimited MetroCard, the NYCTA did not have a superior right of possession. That is, under the circumstances presented in *Hightower*, once the NYCTA sold the card to defendant, it could not reasonably expect to profit from the use of the card. Thus, the defendant did not commit petit larceny because “the unknown amount of money paid to defendant could have been due and owing to the NYCTA, but . . . [it] never acquired a sufficient interest in the money to become an ‘owner’ ” within the meaning of the statute (*Hightower*, 18 NY3d at 255).

In contrast, the Appellate Division, First Department, has concluded, albeit in dicta, that legally sufficient evidence supported a conviction of petit larceny where a defendant used a MetroCard with a bent magnetic strip to sell rides to other persons (*People v James*, 101 AD3d 447, 448 [1st Dept 2012], *lv*

denied 20 NY3d 1062 [2013]). Distinguishing *Hightower*—which involved a purchased, legally transferrable, unaltered MetroCard—the First Department concluded that the defendant was guilty of petit larceny because “he sold ‘swipes’ that rightfully belonged to the [NYCTA]” through unauthorized use of an altered MetroCard (*James*, 101 AD3d at 448). Similarly here, the NYCTA did not voluntarily transfer the key that defendant used to sell entrance to the subway system or receive a set price for it (*cf. Hightower*, 18 NY3d at 255). Unlike the MetroCard at issue in *Hightower*, the NYCTA was the rightful owner of the key because it “had a right of possession [of the key] superior to that of defendant, who had no right of possession whatsoever” (*People v Hutchinson*, 56 NY2d at 869). Nor did defendant have any possessory right or lawful expectation with respect to the business generated from the use of the key.

In short, the information adequately alleged all the elements of a larceny in setting forth defendant’s unauthorized use of the illegally-obtained key to allow the undercover officers to enter through the emergency exit gate in exchange for money, thereby depriving the NYCTA, as the owner, of its property. Accordingly, Appellate Term properly rejected defendant’s argument that the information was jurisdictionally defective and affirmed his conviction. Finally, we reject defendant’s remaining argument as lacking in merit.

Accordingly, the order of the Appellate Term should be affirmed.

Chief Judge LIPPMAN (dissenting). Defendant’s conduct was clearly illegal and is not to be condoned, but it does not amount to petit larceny. He could have, instead, properly been charged with theft of services (Penal Law § 165.15 [3]) or illegal access to Transit Authority services (21 NYCRR 1050.4 [c]), which apply directly to either obtaining or providing illegal access to the subway system. This case, however, where defendant sold access to the subway system, which he then provided by use of a key, is not meaningfully distinguishable from *People v Hightower* (18 NY3d 249 [2011]). I therefore dissent and would hold that the information was jurisdictionally defective because the New York City Transit Authority (NYCTA) was not the owner of property, either in the form of potential fares or the money paid to defendant, within the meaning of the larceny statute.

In *Hightower*, the defendant had used an unlimited MetroCard to allow other individuals access to the subway system in

exchange for a fee. There, we determined that the accusatory instrument was jurisdictionally defective as to the charge of petit larceny because it did not provide reasonable cause to believe that the defendant had taken property belonging to the NYCTA. We held that the NYCTA had not been “deprived of the unknown amount of money that defendant accepted from the subway rider because it never owned those funds” (*Hightower*, 18 NY3d at 255).

Analogizing the NYCTA’s lack of ownership of the potential fare to the State’s lack of ownership of uncollected taxes, we relied upon *People v Nappo* (94 NY2d 564 [2000]), where the defendants had been charged with larceny for failing to pay the required taxes on motor fuel that had been imported from New Jersey. There, we had held that, although the failure to remit applicable taxes was a violation of the Tax Law, the “defendants did not steal money that belonged to New York State,” as “[t]he taxes due were not the property of the State prior to their remittance” (*Nappo*, 94 NY2d at 566). Thus, in *Hightower*, we determined that “the unknown amount of money paid to [the] defendant could have been due and owing to the NYCTA, but . . . the NYCTA never acquired a sufficient interest in the money to become an ‘owner’ within the meaning of Penal Law § 155.00 (5)” (18 NY3d at 255). Similarly, here, the NYCTA was not the “owner” of the funds paid to defendant by the undercover officers.

The majority appears to view the NYCTA’s “ownership” of potential fares as dependent upon the mechanism an individual uses to gain access to the subway system. However, the NYCTA’s rightful ownership of the key used by defendant here bears no relationship to the issue of the NYCTA’s ownership of potential subway fares. *Hightower* does not stand for the proposition that the NYCTA had an ownership interest in potential fares that it somehow ceded to the defendant when he purchased a valid unlimited MetroCard. Rather, the NYCTA was “never” the owner of the potential fares arrogated by the defendant through use of the MetroCard (*see* 18 NY3d at 255).

Notably, in rejecting the argument that the defendant in *Hightower* had been guilty of petit larceny by depriving the NYCTA of a portion of its business, we distinguished the situation where a business is forced to give up an existing customer (18 NY3d at 255). We declined to extend the reasoning of *People v Spatarella* (34 NY2d 157 [1974]), where the defendant was guilty of larceny by extortion, to the situation where the

NYCTA had voluntarily sold a MetroCard to the defendant. In *Spatarella*, the defendant had disrupted an existing business relationship for refuse removal by threatening the former provider with bodily harm unless he gave up his customer. There, we concluded that intangible rights, such as a party's business, could be considered property, subject to larceny by extortion (*see* 34 NY2d at 162). However, in declining to apply the reasoning of *Spatarella* in *Hightower*, we distinguished the situation where an individual was forced to give up an *existing* business customer, from the more closely analogous case presented in *Nappo*, where the taxes were not yet in the State's possession or control. Here, the NYCTA's ownership of the unpaid fares is no less inchoate than that presented in *Hightower*.

Accordingly, because the NYCTA was not the owner of the potential fares or the money paid to defendant, I would modify the Appellate Term order to vacate the plea to petit larceny and dismiss that information.

Judges PIGOTT, RIVERA, ABDUS-SALAAM and FAHEY concur; Chief Judge LIPPMAN dissents in an opinion.

Order affirmed.

[44 NE3d 173, 23 NYS3d 98]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v EVERETT
M. DURANT, Appellant.

Argued October 20, 2015; decided November 23, 2015

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered December 27, 2013. The Appellate Division affirmed a judgment of the Monroe County Court (Alex R. Renzi, J.), which had convicted defendant, upon a jury verdict, of robbery in the second degree.

People v Durant, 112 AD3d 1366, affirmed.

HEADNOTE

Crimes — Instructions — Adverse Inference Charge — Police Failure to Electronically Record Custodial Interrogation

The common law does not require a court to issue an adverse inference instruction against the People at trial based solely on the police's failure to electronically record the custodial interrogation of a defendant. A permissive adverse inference instruction typically serves as either a penalty for the government's violation of its statutory and constitutional duties or its destruction of material evidence, or an explanation of logical inferences that may be drawn regarding the government's motives for failing to present certain evidence at trial. There exists no legal duty which may be breached by the failure to make an electronic recording of an interrogation. Moreover, where the police do not create an electronic recording of an interrogation in the first instance, they do not know the contents of the potential recording or whether those contents will be material at trial, and there is no deliberate destruction of potentially material evidence that would warrant the deterrent of an adverse inference instruction. Furthermore, the natural inference about a party's motives in declining to call a particular witness, which supports a missing witness instruction, is an inference that does not typically apply in cases where the police decline to record an interrogation. Defendant, whose interrogation was not recorded due to the lack of recording equipment at the police station where he was questioned, failed to demonstrate any unique factor in his case that might have permitted or compelled the court to issue an adverse instruction in the exercise of its discretion. As a result, the trial court did not abuse its discretion or otherwise err, as a matter of law, by refusing to deliver an adverse inference charge.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Evidence § 725; AM JUR 2d, Trial § 496.
CARMODY-WAIT 2d, Confessions; Privilege Against Self-

Incrimination § 176:1; CARMODY-WAIT 2d, Charge and Instruction to Jury § 200:37.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 6.1, 24.8.
NY JUR 2d, Criminal Law: Procedure §§ 575, 2754.

ANNOTATION REFERENCE

See ALR Index under Custodial Interrogation; Instructions to Jury; Presumptions and Burden of Proof.

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POINTS OF COUNSEL

Timothy P. Donaher, Public Defender, Rochester (Janet C. Somes of counsel), for appellant. The trial court's refusal to give an adverse inference instruction regarding Investigator Powell's failure to record Mr. Everett Durant's custodial interrogation is reversible error. (*Colorado v Connelly*, 479 US 157; *Miranda v Arizona*, 384 US 436; *Interstate Circuit, Inc. v United States*, 306 US 208; *People v Gonzalez*, 68 NY2d 424; *Gordon v People*, 33 NY 501; *People v Perino*, 19 NY3d 85; *People v McMillon*, 77 AD3d 1375; *People v Handy*, 20 NY3d 663; *People v Joseph*, 86 NY2d 565; *People v Crimmins*, 36 NY2d 230.)

Sandra Doorley, District Attorney, Rochester (Geoffrey Kaeuper of counsel), for respondent. The trial court did not abuse its discretion in denying defendant's request for an adverse inference charge based on police not recording his interrogation. (*People v Handy*, 20 NY3d 663; *People v Gonzalez*, 68 NY2d 424; *People v James*, 93 NY2d 620; *People v Saunders*, 64 NY2d 665; *People v Whalen*, 59 NY2d 273; *People v Knight*, 87 NY2d 873; *People v Reid*, 69 NY2d 469; *People v Vereen*, 45 NY2d 856; *People v Hayes*, 17 NY3d 46; *United States v Rose*, 104 F3d 1408.)

Weil Gotshal & Manges LLP, New York City (Steven A. Reiss and Melody E. Akhavan of counsel), and *Weil Gotshal & Manges, LLP, Washington, D.C. (David B. Hird, Daniel Riegel, James Sadler and Vanshika Vij of counsel)*, for The Innocence Project, amicus curiae. I. False confessions plague the criminal justice system and are a frequent cause of wrongful convictions. (*People v Thomas*, 22 NY3d 629; *People v Bedessie*, 19

NY3d 147; *Matter of Jimmy D.*, 15 NY3d 417.) II. Recording custodial interrogations mitigates the problem of false confessions. (*People v Mateo*, 2 NY3d 383; *People v Anderson*, 42 NY2d 35; *People v Oliveras*, 21 NY3d 339; *Hendricks v Swenson*, 456 F2d 503.) III. Where police fail to record a custodial interrogation despite having the opportunity to do so, the defense is entitled to an adverse inference instruction. (*People v Gonzalez*, 68 NY2d 424; *Gordon v People*, 33 NY 501; *DeVito v Feliciano*, 22 NY3d 159; *Matter of Nassau County Dept. of Social Servs. v Denise J.*, 87 NY2d 73; *People v Erts*, 73 NY2d 872; *Culombe v Connecticut*, 367 US 568; *People v De Vito*, 21 AD3d 696; *Miranda v Arizona*, 384 US 436; *People v Leyra*, 302 NY 353; *People v Thomas*, 22 NY3d 629.)

Gerald F. Mollen, District Attorneys Association of the State of New York, Binghamton, and New York Prosecutors Training Institute, Albany (Wendy Evans Lehmann and Hannah E.C. Moore of counsel), for District Attorneys Association of the State of New York, amicus curiae. I. An adverse inference charge such as the one requested in the present case would have been grossly unfair to the People, and a requirement that a trial court must give such a charge on request is unwarranted at this time. (*People v Baranov*, 121 AD3d 706; *People v Cefaro*, 23 NY2d 283; *Laffin v Ryan*, 4 AD2d 21; *People v Gonzalez*, 68 NY2d 424; *People v Handy*, 20 NY3d 663; *People v Falkenstein*, 288 AD2d 922; *People v Oglesby*, 15 AD3d 888; *People v Kunz*, 31 AD3d 1191; *People v Williams*, 39 AD3d 1200; *People v Carr*, 14 NY3d 808.) II. A legislatively fashioned rule establishing requirements for recordation of a defendant's custodial statements and any sanctions for violation of those requirements would be preferable to a judicially imposed rule. The case at bar does not provide an appropriate platform for judicial rulemaking, and law enforcement is moving forward in good faith toward ensuring that all New York jurisdictions will soon have the capability to record interrogations in accordance with whatever legislation is passed.

OPINION OF THE COURT

ABDUS-SALAAM, J.

The increasing availability of electronic recording technology raises many complex questions of law and policy in the realm of criminal justice, most of which we cannot and do not resolve in this case. Instead, we are confronted here with a single narrow question: does the common law invariably require a court

to issue an adverse inference instruction against the People at trial based solely on the police's failure to electronically record the custodial interrogation of a defendant? We answer this question in the negative. Leaving aside whether a trial court has the power to deliver such an instruction based on the unique facts of a particular case, the court does not necessarily abuse its discretion or otherwise commit legal error by declining to issue the charge in every case in which the police fail to record a custodial interrogation. Thus, although the better practice would be for the police to use the equipment at their disposal to record interrogations, their failure to take such action does not, as a matter of law, automatically compel a trial court to deliver an adverse inference charge to a deliberating jury.

I.

Defendant Everett M. Durant was arrested and tried on a single count of robbery in the second degree (*see* Penal Law § 160.10 [1]) based on his alleged robbery of Emmett Hunter. The People's evidence at trial showed that, on the night of November 28, 2008, Hunter walked past defendant and a group of other young men near a street corner on the east side of Rochester. Defendant placed Hunter in a choke hold, possibly rendering him briefly unconscious. Hunter then saw defendant holding his wallet. As the group started walking away, Hunter called the police on his cell phone to report the robbery. Upon observing Hunter making the call, defendant approached Hunter again and took his phone. Defendant and the other young men then started punching and kicking Hunter. After a struggle, Hunter broke away from the group and ran to a nearby fire station, where he pressed an emergency alarm button, causing his assailants to scatter. Soon thereafter, the police arrived, and they chased down and apprehended defendant.

The police transported defendant to the east side police station because, as Police Investigator Trevor Powell later explained at trial, it was "common practice when a crime occur[red] on the east side to go to the east side office," whereas "[i]f it [wa]s a homicide [one would] take the [suspect] back to the Public Safety Building." In that sense, Powell observed, "this crime required" the officers to transport defendant to the east side station. Significantly, Powell explained that the officers at the east side station "didn't have any access" to recording equipment; although the Public Safety Building, which

was roughly a 10-minute drive from the east side station, had video recording equipment, no recording equipment of any kind was kept at the east side station.*

At the east side station, defendant was placed in an interview room and handcuffed to a table. Powell entered the room and issued *Miranda* warnings to defendant (see *Miranda v Arizona*, 384 US 436 [1966]), and defendant agreed to speak to Powell and answer his questions. When Powell inquired about the reason for defendant's arrest, defendant initially stated that he and his sister had happened upon the scene of a fight in progress earlier that night, and that he had punched Hunter in order to break up the fight. At Powell's request, defendant provided Powell with his sister's phone number, but when Powell called the number, no one answered.

Next, Powell "told [defendant] that it [wa]s time to tell the truth and to man up." In response, defendant changed his narrative of the crime, saying that he had seen Hunter "being crowded by this guy Little C and his brothers" and had joined those individuals in assaulting Hunter. Defendant denied taking anything from Hunter. After defendant made this oral statement, Powell wrote out a version of that statement for defendant to sign, making a few changes to the written version at defendant's request before he signed it.

Due to the lack of a recording of the interrogation, the People's trial proof of the events that unfolded in the interview room consisted solely of Powell's testimony and written summary of defendant's statement. In response to the People's proof, defendant called his sister to the stand, and she testified consistently with his final statement to Powell, alleging that he had merely assaulted, but not robbed, Hunter.

Prior to summations, defense counsel requested that the court issue a permissive adverse inference charge against the People based on the police's failure to record defendant's interrogation. Counsel gave the court a written copy of his suggested instructions. In sum and substance, counsel proposed that the court tell the jurors that they could consider the police's failure to record the interrogation in determining the voluntariness of defendant's alleged statement to the police and the weight to be given to it; in the absence of a recording, they did not have reliable and complete evidence of the contents of defendant's alleged statement to the police or whether he

* The west side station had a tape recorder but no video recording devices.

had made the statement at all; they should weigh the evidence of the alleged statement with great caution; if the People did not prove beyond a reasonable doubt the existence and voluntariness of the statement, the jurors should disregard it entirely; and “[t]he absence of an electronic recording permits, but does not compel, [the jurors] to conclude that the prosecution has failed to prove that a statement was either actually or voluntarily made, or, if made, that it [was] accurately reported by the State’s witnesses.” Defense counsel did not request a standard jury instruction regarding the voluntariness of defendant’s statement in general, nor did he specifically ask the court to submit the issue of voluntariness to the jury (*see* CJI2d[NY] Statements [Admissions, Confessions]). The court denied defense counsel’s request for an adverse inference charge and related instructions on the jury’s consideration of the police’s failure to record defendant’s interrogation.

During summations, the court permitted defense counsel to argue that the jurors could not know what actually happened in the interrogation room because the police had failed to record the interrogation. After summations, the jurors deliberated and returned a verdict convicting defendant of second-degree robbery. At a subsequent sentencing proceeding, the court sentenced defendant, as a second felony offender, to a determinate five-year prison term, to be followed by five years of postrelease supervision. Defendant appealed.

The Appellate Division unanimously affirmed the judgment of conviction and sentence, rejecting defendant’s contention that the trial court had been legally required to issue an adverse inference instruction based on the police’s failure to generate an electronic recording of his interrogation (*see People v Durant*, 112 AD3d 1366, 1367 [4th Dept 2013]). A Judge of this Court granted defendant leave to appeal (23 NY3d 962 [2014]), and we now affirm.

II.

A

As noted previously, the issue before us is a narrow one. On this appeal, defendant does not contend that the police’s decision not to record his interrogation warranted the suppression of his statement on constitutional or other grounds, and therefore we do not opine on questions of suppression and admissibility which are not before us. Nor are we called upon

to define the boundaries of the trial court's power and discretion, if any, to provide the jury with an adverse inference instruction or other guidance on its consideration of the significance of the police's failure to record an interrogation on a case-by-case basis. Rather, this appeal presents only the issue of whether, in every case where the police could have made, but failed to make, an electronic recording of an interrogation, the trial court must, as a matter of law, invariably issue a permissive adverse inference charge.

To resolve that issue, we must examine the circumstances that have previously been held to warrant an adverse inference instruction in criminal cases. In that regard, the common law permits, and sometimes compels, a trial court to instruct the jurors that they may draw an inference unfavorable to the People based upon the government's failure to present, preserve or disclose certain evidence, and the court's decision to issue such a charge is reviewable in this Court for abuse of discretion as a matter of law (*see People v Martinez*, 22 NY3d 551, 567 [2014]; *People v Savinon*, 100 NY2d 192, 197 [2003]). A permissive adverse inference instruction typically serves as either: (1) a penalty for the government's violation of its statutory and constitutional duties or its destruction of material evidence; or (2) an explanation of logical inferences that may be drawn regarding the government's motives for failing to present certain evidence at trial (*see generally People v Handy*, 20 NY3d 663, 667-669 [2013]; *People v Martinez*, 71 NY2d 937, 940 [1988]). For example, the trial court typically must issue an adverse inference charge as a penalty where the State, through its agents, has destroyed existing material evidence in its possession, such as an existing video recording that has been requested by the defense (*see Handy*, 20 NY3d at 667-669). And, where the State violates its disclosure obligations, an adverse inference charge, and sometimes more severe penalties, are authorized (*see Martinez*, 22 NY3d at 560-565; *People v Haupt*, 71 NY2d 929, 931 [1988]).

In addition, as a matter of logic rather than punishment for the violation of a legal duty, the trial court must usually issue a permissive adverse inference instruction where the People fail to present the testimony of a witness and the following three conditions are met: "First, the witness's knowledge must be material to the trial. Second, the witness must be expected to give noncumulative testimony favorable to the party against whom the charge is sought. . . . Third, the witness must be

available to that party” (*Savinon*, 100 NY2d at 197; *see also People v Hall*, 18 NY3d 122, 131-132 [2011]). “This instruction, commonly referred to as a ‘missing witness charge’, derives from the commonsense notion that the nonproduction of evidence that would naturally have been produced by an honest and therefore fearless claimant permits the inference that *its tenor is unfavorable to the party’s cause*” (*People v Gonzalez*, 68 NY2d 424, 427 [1986] [some internal quotation marks and citation omitted]).

In describing the missing witness rule, the U.S. Supreme Court has analogized it in some respects to the best evidence rule. Specifically, the Court has explained that, under both rules, a party’s decision to present secondary or less reliable evidence at trial, despite the party’s “*possession or power*” over “greater” proof, logically suggests that “if the more perfect exposition had been given it would have laid open deficiencies and objections which the more obscure and uncertain testimony was *intended to conceal*” (*Clifton v United States*, 45 US 242, 247-248 [1846] [emphases added and citations omitted]). Accordingly, a missing witness charge describes the logical inference that a party who possesses and yet withholds superior evidence probably intends to conceal the fact that the superior evidence is unfavorable to it.

Here, as noted, because no existing case law or statute requires a trial court to instruct jurors that they may draw an adverse inference from the police’s decision not to record an interrogation, defendant was not entitled to his proposed adverse inference instruction on force of any established legal mandate, and thus the court had to grant his charging request only if the failure to record his interrogation gave rise to circumstances similar to those that have previously been held to necessitate an adverse inference charge. As will be explained, however, none of the traditional rationales for an adverse inference instruction compelled the trial court in this case to deliver such a charge based solely on the police’s failure to electronically record the interrogation of defendant.

B

To begin, no adverse inference instruction could lie in this case based on the government’s alleged dereliction of a legal duty, for generally there exists no legal duty which may be breached by the failure to make an electronic recording of an interrogation. No statute requires the police to generate a video

or audio recording of their interrogation of a suspect, and leaving aside any suppression matters, our case law has not recognized a constitutional duty to record interrogations. Thus, while our precedent does permit—and sometimes requires—a court to issue an adverse inference instruction as a penalty for the government’s failure to satisfy applicable legal duties, the rationale of that precedent does not support the issuance of an adverse inference instruction based on the police’s failure to satisfy a nonexistent duty to record an interrogation (*see People v Moore*, 112 AD3d 981, 982 [3d Dept 2013]; *see also United States v Meadows*, 571 F3d 131, 146-147 [1st Cir 2009]).

Additionally, this case does not present a situation, like the one in *People v Handy* (20 NY3d at 663), where the trial court had to, and failed to, give the jury an adverse inference charge in response to the police’s decision to destroy existing material evidence. In *Handy*, a police surveillance system created a series of images depicting a portion of the defendant’s alleged jailhouse assault on some sheriff’s deputies, and those images remained in the possession of the police (*see id.* at 666). After the defendant had been charged with the crime in a felony complaint, the defendant filed an omnibus motion, in which he demanded all evidence generated by electronic surveillance of the incident (*see id.* at 666). Despite the defendant’s demand for such evidence, the police destroyed the surveillance images sometime between the defendant’s arraignment on the complaint and the filing of the indictment (*see id.* at 666). At trial, the defendant requested an adverse inference instruction, and the court denied his request. Thereafter, the jury convicted the defendant of the assault (*see id.* at 667). On appeal, we concluded that the trial court had committed reversible error by denying the defendant’s request for an adverse inference instruction, and we held that “when a defendant in a criminal case, acting with due diligence, demands evidence that is reasonably likely to be of material importance, and that evidence has been destroyed by the State, the defendant is entitled to an adverse inference charge” (*id.* at 665). We pointed out that the trial court should have issued an adverse inference instruction because such an instruction “gives the State an incentive to avoid the destruction of evidence” and contains fair permissive language based on the failure to present existing evidence, just as a missing witness instruction does (*id.* at 669-670).

Thus, in *Handy*, the need for an adverse inference charge arose only after the police had finished their investigation, the

People had charged the defendant with a crime and the police had already acquired evidence which was likely to be material to the defendant's upcoming trial. In that context, the police's wrongful destruction of the evidence and the People's failure to preserve it, while not illegal per se, necessitated an adverse inference charge to, among other things, deter the authorities from affirmatively destroying evidence that they knew, at the time of the destruction, was reasonably likely to be material. However, where the police do not create an electronic recording of an interrogation in the first instance, much less destroy it, they do not know the contents of the potential recording or whether those contents will be material at trial, and there is no deliberate destruction of potentially material evidence that would warrant the deterrent of an adverse inference instruction. Therefore, here, the court was not required to deliver an adverse inference charge to penalize the People for the police's decision not to electronically record their interrogation of defendant.

C

Furthermore, the court did not, as a matter of law, have to provide the jury with an adverse inference instruction to explain the inferences which might logically flow from the evidence. Contrary to defendant's assertion, the rationale behind a missing witness instruction does not require a court to issue an adverse inference charge in this context because a missing witness instruction is supported by a natural inference about a party's motives in declining to call a particular witness, which is an inference that does not typically apply in cases where the police decline to record an interrogation.

As previously discussed, in cases where a missing witness charge is required, it has already been established at the time of trial that the witness in question: (1) has knowledge material to the trial; (2) would be expected to give noncumulative testimony favorable to the People; and (3) is available to the People (*see Hall*, 18 NY3d at 131-132). Given those conditions, it is clear that, if the People have chosen not to call the witness, they have made that choice with full awareness of what the witness knew and would be expected to say, and hence one may fairly conclude that, at the time the People decided to withhold the witness's testimony, they had learned that the testimony would not be as favorable as expected and suppressed it for that reason. Indeed, the People would seldom

have any other reason not to call such an important and readily available witness. Under those particular circumstances, then, the court usually must issue an adverse inference instruction based on “the commonsense notion that the nonproduction of evidence that would naturally have been produced by an honest and therefore fearless claimant permits the inference that its tenor is unfavorable to the party’s cause” (*Gonzalez*, 68 NY2d at 427 [internal quotation marks and emphasis omitted]).

By contrast, the police’s failure to record an interrogation does not necessarily suggest that they declined to make the recording because they wished to avoid supplying unfavorable proof at an eventual trial of the suspect. When the police fail to electronically record an interrogation, they do not yet know whether the defendant will speak to them at all, and they have no expectation that he or she will make a statement favorable to them or the People in a future prosecution, as the defendant might freely confess, might stay silent, or might deny the allegations of wrongdoing. In other words, unlike the People in the missing witness scenario, the police do not already know that the recording is more likely to be unfavorable than it is to be favorable. Rather, at the time the police decide whether to record the interrogation, the potential recording is just as likely to be favorable (a conclusive record of a voluntary confession) or neutral (a clear record of a refusal to speak to the police) as it is to be unfavorable (a clear record of either a denial of the charges or a confession blatantly coerced by the police).

Given this uncertainty, one cannot conclude that the police must have acted out of a specific desire to prevent the creation of an objective record of unfavorable facts, and the police’s choice is just as likely to stem from an innocent oversight or a legitimate adherence to a neutral departmental policy. Indeed, this case illustrates that very point; as Investigator Powell testified without contradiction, the police department policy which dictated the detention of defendant at a location that lacked recording equipment was based on the geographical location and severity of the offense, and not on any apparent desire to suppress statements that the police believed would be unfavorable in a future prosecution. Thus, unlike the People’s choice not to call a missing witness, the police’s decision not to record an interrogation raises a number of equally plausible inferences of the police’s intent, and the court need not issue a special instruction to the jurors informing them that such a

decision may indicate that the police wanted to withhold potentially unfavorable evidence.

It is for this reason that, contrary to defendant's suggestion, the U.S. Supreme Court's discourse on the missing witness rule in *Interstate Circuit, Inc. v United States* (306 US 208 [1939]) cannot afford him relief here. In that antitrust case, the Supreme Court decided that the factfinder could have drawn an adverse inference against the corporate defendants due to the corporations' decision to call low-level employees, rather than executives, to the stand to testify about the contested corporate policies that had been ordered by those executives (*see id.* at 215-220, 225-226). In describing the basis for the adverse inference, the Court stated that "[t]he production of weak evidence when strong is available can lead only to the conclusion that the strong would have been adverse" (*id.* at 226).

In context, the Supreme Court's statement that a factfinder may fault a party for the "production" (*id.*) at trial of weak evidence in lieu of strong evidence did not constitute a declaration that an adverse inference charge may stem from a party's failure to "produce," i.e., create or generate (*see* Black's Law Dictionary [10th ed 2014], produce ["produce" can mean "to create"]), a stronger form of evidence which did not exist before. Instead, the Court was commenting on the situation where: weak and strong evidence of a fact already exist; a party possesses both forms of evidence; and yet the party "produces" only the weak evidence, in the sense of presenting that weak proof at trial (*see* Black's Law Dictionary [10th ed 2014], produce ["produce" can mean "(t)o provide (a document, witness, etc.)"]). In that scenario, the Court reasoned, a party's decision to present the weaker of the two existing forms of evidence indicates that the party knows that the stronger proof is unfavorable to its case (*see Interstate Circuit, Inc.*, 306 US at 225-226). Here, unlike in *Interstate Circuit, Inc.*, the police did not possess a preexisting superior form of proof, nor did they suppress such proof in a manner suggestive of their intent to avoid the revelation of clearly unfavorable facts. Instead, the police simply failed to create a superior form of proof in the first place, and they did so at a time when they had no idea what that proof would show.

D

The foregoing discussion suffices to demonstrate that no existing legal principle or logical extension thereof requires a

trial court to issue an adverse inference charge whenever the police could, but failed to, electronically record an interrogation. Furthermore, defendant relies only on his proposed categorical mandate for an adverse inference charge, without pointing to any unique factor in his case that might have permitted or compelled the court to issue an adverse inference instruction in the exercise of its discretion. As a result, the trial court did not abuse its discretion or otherwise err, as a matter of law, by refusing to deliver an adverse inference charge to the jury.

We also note that, beyond the legal infirmity of defendant's position, the rationale behind his argument has the potential to create practical problems because, by logical extension, his rule would apply to numerous cases in which the police have the power to memorialize certain events in a more reliable way and fail to do so. In particular, defendant's central premise is that the police's failure to create strong objective evidence of a fact material to the defendant's guilt—in this case an electronic recording of defendant's statement about the crime—shows that the police determined that an objective record of the fact would be unfavorable to them. That premise would logically apply to any case where the police fail to memorialize the existence of some fact via some method other than the memory of the witnesses. Given the multitude of scenarios in which defendant's proposed rule would arguably apply, our acceptance of his position could entangle the courts in protracted litigation over the boundaries, if any, of defendant's rule, and the courts might frequently issue adverse inference instructions that may not be supported by law or logic.

E

Finally, while we do not adopt defendant's proposal to issue a judicial mandate for adverse inference instructions in all cases involving the failure to record interrogations, we recognize the broad consensus that electronic recording of interrogations has tremendous value, and we note the commendable efforts of the bar, the judiciary and the legislature to address the complexities of this relatively new frontier of the criminal justice system. Certainly, there is widespread agreement that electronic recording of custodial interrogations promotes the fair administration of justice. Because an electronic recording of a custodial interrogation yields a reliable, objective record of the police's interview with a defendant,

the recording ensures that the jury at the defendant's trial may evaluate every aspect of the defendant's demeanor, his or her statement and his or her treatment at the hands of the police, thereby enabling the jury to make a fully informed determination of the voluntariness and meaning of the defendant's statement. Importantly, according to experts and stakeholders in the field of criminal justice, recordings can reveal circumstances that may have prompted suspects to make false confessions, which are a leading cause of wrongful convictions (see Final Report of the New York State Bar Association's Task Force on Wrongful Convictions at 6 [Apr. 4, 2009], available at <https://www.nysba.org/WorkArea/DownloadAsset.aspx?id=26663> [accessed Nov. 4, 2015]; see also Steven A. Drizin & Marissa J. Reich, *Heeding the Lessons of History: The Need for Mandatory Recording of Police Interrogations to Accurately Assess the Reliability and Voluntariness of Confessions*, 52 Drake L Rev 619, 622-624 [2004]).

Fortunately, in recognition of those widely-acknowledged benefits of recording interrogations and the need for a legal framework governing this area, stakeholders in the criminal justice system and government have come together to begin addressing this critical issue. Many bar groups, district attorneys, defense lawyers, judicial task force members and legislators have already crafted worthy proposals to balance various policy interests and create what, in their judgment, is a fair, practical and enduring framework for electronic recording of interrogations (see e.g. New York State Justice Task Force, *Recommendations Regarding Electronic Recording of Custodial Interrogations* at 3-4 [Jan. 2012], available at <http://www.nyjusticetaskforce.com/ElectronicRecordingOfCustodialInterrogations.pdf> [accessed Nov. 4, 2015]; Steven Banks, *The Legal Aid Society, Testimony before the Council of the City of New York* Sponsored by: Committee on Governmental Operations at 7-10 [Feb. 12, 2013], available at <http://www.legal-aid.org/media/171367/2013.02.12.pdf> [accessed Nov. 4, 2015]; District Attorneys Association of the State of New York, *New York State Guidelines for Recording Custodial Interrogations of Suspects* at 1-8 [Dec. 8, 2010], available at <http://www.daasny.com/wp-content/uploads/2014/08/Video-Recording-Interrogation-Procedures-Custodial-FINAL-12-8-10.pdf> [accessed Nov. 4, 2015]). The legislature is currently considering the enactment of laws based on the important work of those stakeholders (see 2015 NY Senate Bill S2419; 2015 NY As-

sembly Bill A7063). By drawing policy-based lines that need not follow the open-ended logic of defendant in this case, the legislature can craft legal principles governing recording and adverse inference charges that realize all of the benefits, and none of the drawbacks, of defendant's proposed judicial rule-making. Consequently, in the absence of existing law compelling a trial court to issue an adverse inference charge in every case in which the police have failed to take available measures to record an interrogation, we leave it to the legislature to consider whether or not to change the law on this particular issue.

III.

Because defendant's proposed jury instruction was neither required as a penalty for governmental malfeasance nor akin to a missing witness charge, the Appellate Division properly determined that the trial court did not commit legal error or abuse its discretion as a matter of law by declining to deliver the charge to the jury. Since we agree with the lower courts' handling of defendant's sole contention on appeal to us, we need go no further to dispose of this appeal. Accordingly, the order of the Appellate Division should be affirmed.

Chief Judge LIPPMAN (concurring). I agree with the majority that the trial court did not abuse its discretion as a matter of law by denying defendant's request for an adverse inference instruction based on the failure of the police to electronically record his interrogation. I further agree that there is currently no requirement that such instructions need be given in all cases where a recording was not made. However, I write separately to emphasize that things have changed in many respects since defendant was questioned by the police in 2008. Technology has advanced and significant resources have been expended to equip law enforcement with the ability to video interrogations in the effort to increase transparency and prevent wrongful convictions. Indeed, the overwhelming national trend is toward requiring video recording of custodial interrogation of suspects, either as a matter of a state's duty of fairness or to protect the rights of defendants. Therefore, going forward, trial courts should give serious consideration as to whether adverse inference charges are indicated and, at least in cases involving serious felonies, it may well be that the grant of a defendant's request and the delivery of the charge is, as a matter of law, the only appropriate course.

The many benefits of recording custodial interrogations are essentially uncontested. The practice holds significant advantages for the entire criminal justice system. First and foremost, recording interrogations reduces the instances of false confessions and, by extension, wrongful convictions. A video recording of the entire proceeding can also obviate any claim that a suspect's confession has been obtained through improper police tactics. The jury's ability to see exactly what transpired during an interrogation will improve the accuracy of the fact-finding process and facilitate appellate review. The increased transparency will also promote public confidence in the administration of justice. As the majority observes, there is no dispute that the recording of interrogations is the better practice (*see* majority op at 344).

In accordance with the national trend, courts in other states have grappled with the absence of recorded statements and, in the face of legislative inaction, have drawn upon their supervisory authority to fashion remedies. For instance, New Jersey's high court established a committee to study and make recommendations on the electronic recording of interrogations (*see State v Cook*, 179 NJ 533, 847 A2d 530 [2004]) and ultimately adopted a rule, generally requiring electronic recording of interrogations that are conducted in police stations or other "places of detention," for individuals who are charged with serious felonies (*see* NJ Rules Crim Prac rule 3:17; *see also* Ind Rules Evid rule 617). The failure to record allows the trial court to consider whether the statement should be admissible and is a factor for the jury to consider in determining whether the statement was actually made and, if so, what weight it should be accorded (rule 3:17 [d]; *see also* Ark Rules Crim Pro rule 4.7). Where the statement was not recorded, the defendant is entitled to a cautionary instruction upon request (*see* rule 3:17 [e]).

The Massachusetts Supreme Judicial Court has similarly determined that a cautionary jury instruction is appropriate at a defendant's request, where the prosecution introduces evidence of an unrecorded custodial interrogation (*see Commonwealth v DiGiambattista*, 442 Mass 423, 447, 813 NE2d 516, 533 [2004]). The instruction advises the jury "that the State's highest court has expressed a preference that such interrogations be recorded whenever practicable, and caution[s] them] that, because of the absence of any recording of the interrogation in the case before them, they should weigh evidence of

the defendant's alleged statement with great caution and care" (442 Mass at 447-448, 813 NE2d at 533-534).

Other state high courts have determined, also in the exercise of their supervisory authority, that custodial interrogations must be recorded and that the failure to do so can result in the suppression of the statement at trial (*see State v Scales*, 518 NW2d 587, 592 [Minn 1994]; *In re Jerrell C.J.*, 283 Wis 2d 145, 172, 699 NW2d 110, 123 [Sup Ct 2005] [applicable only to juveniles, but the Wisconsin Legislature subsequently enacted separate legislation providing for a jury instruction for felony suspects (Wis Stat Ann §§ 968.073, 972.115)]). Finally, Alaska has held that it is a state due process violation for law enforcers to fail to record a custodial interrogation, where such recording is feasible (*see Stephan v State*, 711 P2d 1156, 1159 [Alaska 1985]).

Despite the availability of these types of remedies in states as diverse as Alaska and Arkansas, there is currently no such measure in place in New York. However, electronic recording only becomes easier all the time and there is no legitimate argument why this best practice should not become universal in the interest of a fair and impartial justice system. Looking ahead, then, when a law enforcement agency has the capability, but fails to create a video record of a custodial interrogation, a judicial response will be warranted.

Judges PIGOTT, RIVERA and STEIN concur; Chief Judge LIPPMAN concurs in result in a separate concurring opinion; Judge FAHEY taking no part.

Order affirmed.

[44 NE3d 185, 23 NYS3d 110]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ALLY
GOLO, Appellant.

Argued October 22, 2015; decided November 23, 2015

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered August 21, 2013. The Appellate Division affirmed an order of the Supreme Court, Queens County (Ira H. Margulis, J.), which had denied, without a hearing, defendant's motion for resentencing pursuant to CPL 440.46.

People v Golo, 109 AD3d 623, reversed.

HEADNOTES

Crimes — Sentence — Resentence — Drug Law Reform Act — Exclusion Offenses

1. Upon defendant's motion pursuant to the Drug Law Reform Act of 2009 (L 2009, ch 56 [codified in relevant part at CPL 440.46]) to be resentenced on a conviction for criminal sale of a controlled substance in the third degree, defendant's first-degree robbery convictions—crimes committed by defendant during the two-month period following his commission of the drug offense for which he sought resentencing—were not “exclusion offenses” under CPL 440.46 (5) (a) because the offenses underlying the robbery convictions occurred after, not prior to, the drug offense. CPL 440.46 (5) (a) defines an “exclusion offense” as “a crime for which the person was previously convicted within the preceding ten years, excluding any time during which the offender was incarcerated for any reason between the time of commission of the previous felony and the time of commission of the present felony.” Given the provision's references to a “previous” felony and the “present” felony, the wording of the statute indicates that exclusion offenses must have been committed before the drug offense for which resentencing is sought, notwithstanding the seeming anomaly that a violent felony committed days after the drug offense cannot count as an exclusion offense, while the same violent felony committed prior to the drug offense could be an exclusion offense.

Crimes — Sentence — Resentence — Drug Law Reform Act — Opportunity to be Heard

2. Upon defendant's motion pursuant to the Drug Law Reform Act of 2009 (L 2009, ch 56 [codified in relevant part at CPL 440.46]) to be resentenced on a conviction for criminal sale of a controlled substance in the third degree, the lower courts erred in deciding the resentencing motion without giving defendant an opportunity to be heard on the merits of the application. The Drug Law Reform Act of 2009 states that, on a defendant's application for resentencing, “[t]he court shall offer an opportunity for a hearing and bring the applicant before it” (L 2004, ch 738, § 23; CPL 440.46 [3]). That language is mandatory, contrasting with permissive statutory language authorizing a hearing on the issues of eligibility and sentencing.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Appellate Review §§ 738, 771, 780; AM JUR 2d, Criminal Law §§ 296, 746, 796–797, 820, 860.
CARMODY-WAIT 2d, Sentencing Procedures §§ 203:9, 203:95, 203:99, 203:102, 203:143, 203:215–203:216; CARMODY-WAIT 2d, Appeals in Criminal Cases §§ 207:56, 207:116, 207:136, 207:139, 207:214.
LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 21.1, 26.4–26.5.
MCKINNEY'S, CPL 440.46 (3), (5) (a).
NY JUR 2d, Criminal Law: Procedure §§ 2894, 2927, 3008, 3010, 3013, 3015, 3150, 3467, 3579, 3614, 3632; NY JUR 2d, Statutes § 246.

ANNOTATION REFERENCE

Review for excessiveness of sentence in narcotics case.
55 ALR3d 812.

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Query: resenten! /p (drug! /3 reform!) & exclu! /3 offense!

POINTS OF COUNSEL

Lynn W.L. Fahey, Appellate Advocates, New York City (David P. Greenberg of counsel), for appellant. After finding, contrary to the trial court, that appellant was eligible for resentencing under the Drug Law Reform Act of 2009, the Appellate Division was required to remand his case to the trial court for a hearing, rather than merely affirming that court's secondary ruling that appellant was not deserving of a sentence reduction. (*People v Paulin*, 17 NY3d 238; *People v Finch*, 23 NY3d 408; *People v Mills*, 11 NY3d 527; *People v Arroyo*, 99 AD3d 515; *People v Sosa*, 18 NY3d 436; *People v Santiago*, 17 NY3d 246; *People v Bautista*, 7 NY3d 838; *People v De Jesus*, 54 NY2d 447; *People v Colon*, 89 AD2d 552; *People v Jones*, 25 Misc 3d 1238[A], 2009 NY Slip Op 52483[U].)

Richard A. Brown, District Attorney, Kew Gardens (Danielle S. Fenn and John M. Castellano of counsel), for respondent. The Appellate Division correctly affirmed the trial court's denial of resentencing without a hearing. Defendant was ineligible for relief, his hearing claim is unpreserved, and he

has failed to identify any factual disputes that necessitated a hearing. (*People v Sosa*, 18 NY3d 436; *People v Backus*, 14 NY3d 876; *People v Carracedo*, 89 NY2d 1059; *People v Gamble*, 70 NY2d 885; *People v Carpenito*, 80 NY2d 65; *People v Acosta*, 80 NY2d 665; *People v Coleman*, 24 NY3d 114; *People v Davis*, 24 NY3d 1012; *People v Tyrell*, 22 NY3d 359; *People v Finch*, 23 NY3d 408.)

OPINION OF THE COURT

ABDUS-SALAAM, J.

In April 2004, defendant pleaded guilty to criminal sale of a controlled substance in the third degree, a class B felony, and he was sentenced in June 2004 to an indeterminate prison term of from 3¹/₃ to 10 years. Defendant had committed that crime in April 2003. Days after he was sentenced on this drug charge, defendant was sentenced, upon his guilty plea to two counts each of robbery in the first degree and of endangering the welfare of a child, in connection with robberies that had occurred in May and June 2003. For these crimes, he was sentenced to two determinate seven-year prison terms for the robbery counts to be served concurrently with each other and two one-year terms for the endangering counts.

Defendant was initially released to parole supervision in September 2009. However, his parole was revoked following his May 2010 arrest for possessing a gravity knife, and he was referred to a drug treatment program. After completing the drug treatment program, he was restored to parole supervision in November 2010. But less than three months later defendant was arrested for possessing cocaine and resisting arrest, and his parole was again revoked in September 2011. He pleaded guilty to a parole violation for resisting arrest and was sentenced to an 18-month parole hold.

In March 2012, defendant moved, pursuant to the Drug Law Reform Act of 2009 (L 2009, ch 56 [codified in relevant part at CPL 440.46] [hereinafter DLRA-3]), to be resentenced on his 2004 conviction for criminal sale of a controlled substance in the third degree. Supreme Court denied the motion for resentencing, holding that defendant was ineligible because he had been convicted of an “exclusion offense” (CPL 440.46 [5] [a]) within the 10-year period between his sentencing on his 2004 conviction for criminal sale of a controlled substance in the third degree and his application for resentencing. The court issued its decision without the parties being present, and

without offering defendant an opportunity to appear. The court found that it need not consider defendant's interest of justice arguments for resentencing, but that even if defendant were eligible for resentencing, the court would still deny his motion in the exercise of its discretion.

The Appellate Division affirmed (109 AD3d 623 [2d Dept 2013]). It disagreed with Supreme Court about defendant's eligibility to be resentenced, reasoning that defendant's robbery convictions did not constitute "exclusion offense[s]" within the meaning of CPL 440.46 (5) (a) because they were committed after the drug offense for which he sought resentencing. However, it held that Supreme Court providently exercised its discretion in concluding that considerations of substantial justice dictated the denial of the motion. A Judge of this Court granted leave to appeal (23 NY3d 1037 [2014]), and we now reverse and remit.

[1] As an initial matter, the People argue that Supreme Court properly found that defendant was ineligible for resentencing. We are able to review that argument notwithstanding defendant's assertion to the contrary (*see* CPL 470.35 [1]), and agree with the Appellate Division that the 2004 robbery convictions are not "exclusion offense[s]" under CPL 440.46 (5) (a) because defendant's convictions on the robbery charges occurred after, not prior to, the drug offense for which he seeks resentencing. An "exclusion offense" is defined as

"a crime for which the person was *previously convicted* within the preceding ten years, excluding any time during which the offender was incarcerated for any reason between the time of commission of the *previous felony* and the time of commission of the *present felony*, which was: (i) a violent felony offense as defined in section 70.02 of the penal law; or (ii) any other offense for which a merit time allowance is not available pursuant to [Correction Law § 803 (1) (d) (ii)]" (CPL 440.46 [5] [a] [emphasis added]).

"As the clearest indicator of legislative intent is the statutory text, the starting point in any case of interpretation must always be the language itself, giving effect to the plain meaning thereof" (*Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577, 583 [1998]). Given the provision's references to a "previous" felony and the "present" felony, the wording of the

statute indicates that exclusion offenses must have been committed before the drug offense for which resentencing is sought (see *People v Myles*, 90 AD3d 952, 953 [2d Dept 2011] [“The statutory language was not written in anticipation of a situation where the potential exclusion offense was committed after the drug conviction for which the defendant seeks resentencing”]). Our decision in *People v Sosa* (18 NY3d 436 [2012]) is not to the contrary, as it concerned the interpretation of the phrase “within the preceding ten years,” not the meaning of the term “previously convicted.”

Although we recognize the seeming anomaly that a violent felony committed days after the drug offense cannot count as an exclusion offense, while the same violent felony committed prior to the drug offense could be an exclusion offense, “it . . . remain[s] that the law, as it is written, countenances the disparity and is not properly rewritten to accord more perfectly with judicial or prosecutorial notions of consistency” (*People v Sosa*, 18 NY3d at 442). Here, as in *People v Paulin*, where we addressed a different provision of the DLRA-3, we are guided “[b]y the plain text of the statute” (17 NY3d 238, 244 [2011]). If the wording of the statute has caused an unintended consequence, it is up to the legislature to correct it.

Furthermore, as we noted in *Paulin*, if defendants have shown by their conduct that they do not deserve relief from their sentences, courts can deny their resentencing applications. “A provision of the 2004 DLRA, incorporated by reference into the 2009 DLRA (CPL 440.46 [3]), says that a resentencing application need not be granted if ‘substantial justice dictates that the application should be denied’ (L 2004, ch 738, § 23)” (*id.* at 244). Thus, while defendant’s conduct after his conviction for the drug offense cannot constitute an “exclusion offense,” it is properly considered by the court in deciding his resentencing application.

[2] We agree with defendant that it was error for the courts below to decide his resentencing motion without giving him an opportunity to be heard. The DLRA-3 states that on a defendant’s application for resentencing, “[t]he court shall offer an opportunity for a hearing and bring the applicant before it” (L 2004, ch 738, § 23; CPL 440.46 [3]). This language is mandatory. The statute also provides that “[t]he court may also conduct a hearing, if necessary, to determine whether such person qualifies to be resentenced or to determine any controverted issue of fact relevant to the issue of sentencing”

(*id.*). Thus, the permissive language authorizing a hearing on the issues of eligibility and sentencing contrasts with the unambiguous directive that the court offer a defendant an opportunity to be heard on the merits of the application. There should be a new determination of the defendant's motion, to be made after affording him an opportunity to appear before the court (*People v Bens*, 109 AD3d 664, 665 [2d Dept 2013]).

Accordingly, the order of the Appellate Division should be reversed, and the case remitted to Supreme Court for further proceedings in accordance with this opinion.

Chief Judge LIPPMAN and Judges PIGOTT, RIVERA, STEIN and FAHEY concur.

Order reversed and case remitted to Supreme Court, Queens County, for further proceedings in accordance with the opinion herein.

[44 NE3d 188, 23 NYS3d 113]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v FRANKIE
HATTON, Respondent.

Argued October 14, 2015; decided November 23, 2015

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Term of the Supreme Court in the Second Judicial Department, Second, Eleventh and Thirteenth Judicial Districts, decided February 7, 2014. The Appellate Term (1) reversed, on the law, a judgment of the Criminal Court of the City of New York, Kings County (Miriam Cyrulnik, J., at plea; Dena E. Douglas, J., at sentencing), which had convicted defendant, upon his plea of guilty, of forcible touching; and (2) dismissed the accusatory instrument.

People v Hatton, 42 Misc 3d 141(A), 2014 NY Slip Op 50213(U), reversed.

HEADNOTES

Crimes — Accusatory Instrument — Waiver of Right to Prosecution by Information

1. Defendant did not impliedly waive his right to prosecution by information when his counsel, outside defendant's presence, replied "Yes" in response to the court's question during an appearance on an unrelated matter of whether counsel waived "the reading of the rights and charges, but not the rights thereunder" for "all [of her] cases before the court" that day. A waiver of the mandated reading of the right does not by itself constitute a waiver of the procedural right to be tried on information. However, waiver and consent may be implied if the circumstances compel the conclusion that the defendant, competently represented by counsel, acquiesced in the prosecution of the charge against him or her on a misdemeanor complaint. Waiver of the right must be knowing and intelligent. Counsel's statement in open court that she waived only the reading of the rights, but not "the rights thereunder" could not serve as a waiver of defendant's procedural right to be tried on information, as it specifically preserved defendant's right to prosecution by information. Regardless, nothing in the record indicated that in the wake of counsel's statement defendant acted affirmatively to waive his right, or that he acquiesced in the prosecution on a misdemeanor complaint. Moreover, several days after arraignment the People filed superseding instruments and supporting depositions. Accordingly, by all appearances, defendant was prosecuted by information.

Crimes — Forcible Touching — Facial Sufficiency of Accusatory Instrument

2. The accusatory instrument charging defendant with forcible touching based on the allegation that he "approached the complainant and smacked her about the buttocks," which caused her "to become alarmed and annoyed,"

was facially sufficient. “A person is guilty of forcible touching when such person intentionally, and for no legitimate purpose, forcibly touches the sexual or other intimate parts of another person for the purpose of degrading or abusing such person; or for the purpose of gratifying the actor’s sexual desire,” without the victim’s consent (Penal Law § 130.52). When done with the relevant mens rea, any bodily contact involving the application of some level of pressure to the victim’s sexual or intimate parts qualifies as a forcible touch within the meaning of Penal Law § 130.52. Thus, the information’s assertion that defendant “smacked the buttocks” of the complainant adequately alleged that defendant applied the statutorily required pressure to effectuate contact with a part of the complainant’s body commonly accepted within society as sexual or intimate in nature. The reasonable inferences to be drawn from the allegations were that defendant initiated the conduct and took the complainant by surprise, and that she did not acquiesce to defendant’s actions. Moreover, defendant’s criminal purpose could be inferred from the complainant’s lack of consent and the intimate nature of the act. By ignoring the complainant’s right to be free from unwanted intimate contact, defendant disregarded the complainant’s autonomy and personhood. That he did so on a public street, in the presence of an eyewitness, suggested that he was unconcerned by the public display of his actions, and the humiliation evoked by such conduct.

RESEARCH REFERENCES

By the Publisher’s Editorial Staff

AM JUR 2d, Indictments and Informations §§ 16, 95, 99.
CARMODY-WAIT 2d, Commencing the Prosecution; Grand
Jury §§ 178:7, 178:18, 178:70, 178:71.
LAFAYE, ET AL., CRIMINAL PROCEDURE (3d ed) § 19.3.
MCKINNEY’S, Penal Law § 130.52 (1).
NY JUR 2d, Criminal Law: Procedure §§ 956, 983–985,
992, 993; NY JUR 2d, Criminal Law: Substantive Prin-
ciples and Offenses § 667.

ANNOTATION REFERENCE

See ALR Index under Criminal Procedure Rules; Indict-
ments and Informations.

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POINTS OF COUNSEL

Kenneth P. Thompson, District Attorney, Brooklyn (Leonard Joblove and Seth M. Lieberman of counsel), for appellant. The count of forcible touching to which the defendant entered a plea of guilty is facially sufficient. (*People v Dumay*, 23 NY3d 518; *People v Steinberg*, 79 NY2d 673; *People v Bueno*, 18 NY3d

160; *People v Guaman*, 22 NY3d 678; *People v Bishop*, 41 Misc 3d 144[A], 2013 NY Slip Op 52063[U]; *People v Stewart*, 57 AD3d 1312; *People v Rodriguez*, 1 Misc 3d 8; *People v Cass*, 18 NY3d 553; *People v Alvino*, 71 NY2d 233; *People v Deegan*, 69 NY2d 976.)

Seymour W. James, Jr., The Legal Aid Society, New York City (Arthur H. Hopkirk of counsel), for respondent. I. The Appellate Term correctly determined that the factual allegations in the information were facially insufficient to establish all of the elements of forcible touching. (*People v Casey*, 95 NY2d 354; *People v Alejandro*, 70 NY2d 133; *People v Jackson*, 18 NY3d 738; *People v Guaman*, 22 NY3d 678; *People v Steinberg*, 79 NY2d 673; *People v Dumay*, 23 NY3d 518.) II. The Appellate Term correctly concluded that respondent did not knowingly and intelligently waive his right to be prosecuted by information based on statements made by his attorney outside of respondent's presence during the arraignment in another case before respondent was arraigned. (*People v Weinberg*, 34 NY2d 429; *People v Jackson*, 18 NY3d 738; *People v Brown*, 90 NY2d 872; *People v Connor*, 63 NY2d 11; *People v Fernandez*, 20 NY3d 44.)

OPINION OF THE COURT

RIVERA, J.

The People appeal from an order of the Appellate Term reversing defendant Frankie Hatton's conviction of one count of forcible touching, and dismissing the accusatory instrument as jurisdictionally defective. We conclude the instrument sets forth sufficient factual allegations to establish the elements of the offense, and therefore reverse the order of the Appellate Term and reinstate defendant's conviction.

Defendant was originally arraigned on three accusatory instruments, each charging him with two counts of forcible touching (Penal Law § 130.52), sexual abuse in the third degree (Penal Law § 130.55) and harassment in the second degree (Penal Law § 240.26 [1]). The separate instruments contained almost identical factual allegations that defendant smacked the buttocks of two different women, for a total of six complainants, over the course of three weeks. The instruments differed only in the date, time and location of the incidents and the respective complainant's name. The People subsequently filed supporting depositions, and, upon motion, Criminal Court consolidated the three accusatory instruments.

Defendant thereafter pleaded guilty to one count of forcible touching, based upon an incident described by the accusatory instrument's factual allegations as follows,

"The deponent [police detective] is informed by [the complainant] that, [on June 30, 2009 at about 10:40 p.m. at the corner of Albany Avenue and Montgomery Street, County of Kings, State of New York], a male approached the [complainant] and smacked [her] about the buttocks.

"The deponent is further informed by the [complainant] that the above described actions caused [the complainant] to become alarmed and annoyed.

"The deponent is further informed by [an] eyewitness . . . that at the . . . above time and place, the [eyewitness] observed the defendant approach [the complainant] and the defendant smacked the buttocks of [the complainant].

"The deponent is further informed by the defendant's own statement that the defendant smacked the buttocks of [the complainant]."

Criminal Court sentenced defendant to a one-year jail sentence, which he has since then completed.

On appeal, the Appellate Term reversed the conviction and dismissed the accusatory instrument based on factual insufficiency grounds (42 Misc 3d 141[A], 2014 NY Slip Op 50213[U] [App Term, 2d Dept, 2d, 11th & 13th Jud Dists 2014]). A Judge of this Court granted leave to appeal (23 NY3d 1063 [2014]).

As an initial matter, we consider the People's contention that defendant impliedly waived his right to be prosecuted by information. Whether a defendant has waived a procedural right is a factual question which this Court may review only to determine if the record provides any support for the determination of a lower court (*People v Brown*, 90 NY2d 872, 874 [1997]; *People v Ferguson*, 67 NY2d 383, 389 [1986]).

The parties agree that on the day of his arraignment, defendant's counsel appeared on behalf of someone else, on a matter unrelated to defendant's case. Outside of defendant's presence, she then responded "Yes" in open court to the court officer's question, "Counsel, do you waive the reading of the rights and charges, but not the rights thereunder for this case and all other cases before the court?" Several months later, de-

fendant pleaded guilty, in satisfaction of the consolidated instruments. The People contend that the combination of this one-word statement by counsel and defendant's entry of a guilty plea effectuated an implied waiver of defendant's right to prosecution by information.

In *People v Connor* (63 NY2d 11 [1984]) this Court stated that a waiver of the mandated reading of the right does not "by itself constitute a waiver of the procedural right to be tried on information" (*id.* at 14 n; *People v Fernandez*, 20 NY3d 44, 55 n 1 [2012]). However, "waiver and consent may be implied if the circumstances . . . compel the conclusion that the defendant, competently represented by counsel, acquiesced in the prosecution of the charge against him on the misdemeanor complaint" (*Connor*, 63 NY2d at 14). In *People v Weinberg* (34 NY2d 429, 431 [1974]), the Court made clear that waiver of this right must be knowing and intelligent.

[1] Here, defendant's counsel stated in open court that she waived only the reading of the rights, but not "the rights thereunder." Therefore, under *Connor*, her statement cannot serve as a waiver of defendant's procedural right to be tried on information (*Connor*, 63 NY2d at 14 n). More to the point, counsel's statement specifically preserved his right to prosecution by information. Regardless, unlike the defendant in *Connor*, nothing in the record indicates that in the wake of counsel's statement defendant acted affirmatively to waive his right, or that he "acquiesced in the prosecution of the charge against him on [a] misdemeanor complaint" (*id.* at 14 [determining that defendant had acquiesced where defense counsel waived the reading of the right and defendant then made pretrial motions and proceeded to trial]).

Additionally, several days after arraignment the People filed two superseding instruments, six supporting depositions (one from each of the complainants) and a deposition by an eyewitness to the incident defendant eventually pleaded guilty to. Criminal Court recorded these filings as supporting depositions and superseding informations. By all appearances, defendant was, in fact, prosecuted by information. Under these circumstances, record support exists for the Appellate Term's conclusion that defendant did not impliedly waive his right to prosecution by information.

As a consequence, we assess the sufficiency of the accusatory instrument based on the standard applicable to an informa-

tion. Under that standard, the factual part of the instrument must establish reasonable cause to believe that the defendant committed the offense charged in the accusatory part of the information (CPL 100.40 [1] [b]), and must contain “nonhearsay allegations which, if true, establish every element of the offense charged and the defendant’s commission thereof” (*People v Dumay*, 23 NY3d 518, 522 [2014], citing *People v Kalin*, 12 NY3d 225 [2009]; CPL 100.40 [1] [c]). Where the information fails to meet this requirement it is jurisdictionally defective (*Kalin*, 12 NY3d at 228-229). As this Court stated in *People v Casey* (95 NY2d 354, 360 [2000] [citations omitted]), “[s]o long as the factual allegations of an information give an accused notice sufficient to prepare a defense and are adequately detailed to prevent a defendant from being tried twice for the same offense, they should be given a fair and not overly restrictive or technical reading.”

The People claim that the accusatory instrument is facially sufficient because the factual allegations and the reasonable inferences to be drawn from them establish all the elements of the offense of forcible touching. Under Penal Law § 130.52, “[a] person is guilty of forcible touching when such person intentionally, and for no legitimate purpose, forcibly touches the sexual or other intimate parts of another person for the purpose of degrading or abusing such person, or for the purpose of gratifying the actor’s sexual desire.” Furthermore, Penal Law § 130.05 requires that the act be committed without the victim’s consent, meaning that “the victim does not expressly or impliedly acquiesce in the actor’s conduct” (Penal Law § 130.05 [2] [c]; *see also* § 130.05 [1]).

[2] Here, the factual allegations easily satisfy the facial sufficiency standard for the *actus reus* elements of the offense. As this Court held in *People v Guaman* (22 NY3d 678, 684 [2014]), “when done with the relevant *mens rea*, any bodily contact involving the application of some level of pressure to the victim’s sexual or intimate parts qualifies as a forcible touch within the meaning of Penal Law § 130.52.” Thus, the information’s assertion that defendant “smacked the buttocks” of the complainant, more than adequately alleges that defendant applied the statutorily required pressure to effectuate contact with a part of complainant’s body commonly accepted within society as sexual or intimate in nature (*see id.* at 684; *People v Darryl M.*, 123 Misc 2d 723, 735 [Crim Ct, NY County 1984] [“the buttocks is an intimate part of the body within the meaning of subdivision 3 of section 130.00 of the Penal Law”]).

The factual allegations also sufficiently establish the complainant's lack of consent within the meaning of Penal Law § 130.05 (2) (c). The instrument asserts that defendant approached the complainant and smacked her buttocks on a public street intersection, late at night, which caused her "to become alarmed and annoyed." The reasonable inferences to be drawn from these allegations are that defendant initiated the conduct and took the complainant by surprise. Also, the allegation that defendant's actions "alarmed and annoyed" the complainant further supports the inference that she did not acquiesce to defendant's actions. Thus, the instrument sufficiently alleges the lack of consent element.

Whether the instrument contains sufficient factual allegations of the purpose elements is a more difficult question. As a general matter, "intent is rarely proved by an explicit expression of culpability by the perpetrator" (*People v Bueno*, 18 NY3d 160, 169 [2011] [internal quotation marks omitted]). In recognition of the inherent challenges to demonstrating an actor's mental state, this Court has accepted that "[i]ntent may be inferred from conduct as well as the surrounding circumstances" (*People v Steinberg*, 79 NY2d 673, 682 [1992]). Accordingly, in the context of assessing the sufficiency of an accusatory instrument, we have made clear that "intent may be inferred 'from the act itself' (*People v Bracey*, 41 NY2d 296, 301 [1977])" (*Dumay*, 23 NY3d at 525).

Giving "a fair and not overly restrictive or technical reading" to the instrument (*Casey*, 95 NY2d at 360), and considering the acts and circumstances described therein (*Dumay*, 23 NY3d at 525), we conclude that the information provides sufficient factual allegations leading to an inference that defendant forcibly touched the complainant "for no legitimate purpose" and "for the purpose of degrading" the complainant (Penal Law § 130.52).¹ Such inference about defendant's criminal purpose is appropriate based on the complainant's lack of consent and the intimate nature of the act, which is commonly considered to cross the line of propriety, absent a prior relationship or

1. Given that section 130.52 sets forth the purpose elements in the disjunctive, we need not determine whether the instrument is factually sufficient to establish an inference that the act was done "for the purpose of gratifying [defendant's] sexual desire" because we conclude that the instrument contains sufficient factual allegations to establish the alternative purpose that defendant's actions were done in order to "degrad[e] or abus[e]" the complainant.

experience suggesting the complainant and defendant had a mutual understanding that such conduct was acceptable. Furthermore, by ignoring her right to be free from unwanted intimate contact, defendant disregarded the complainant's autonomy and personhood. Defendant thus behaved in direct contravention of the complainant's right to privacy and security in her person. That he did so on a public street, in the presence of an eyewitness, suggests that he was unconcerned by the public display of his actions, and the humiliation evoked by such conduct. Therefore, the information sufficiently establishes the purpose elements of the crime of forcible touching.

Defendant's argument that a person may smack another on the buttocks for a legitimate purpose, such as in self-defense or in defense of another, does not persuade us that the information here is jurisdictionally deficient. The facts as alleged in no way imply that defendant was acting defensively in response to actions by the complainant. To the contrary, as we have explained, the information alleges that the defendant approached the complainant and it was he who alarmed her by slapping an intimate part of her body. We thus agree with the People that the factual allegations here are inconsistent with circumstances in which smacking another person would not constitute forcible touching.²

We caution that our decision in this case should not be broadly interpreted as a per se rule that the mere assertion

2. The dissent urges the speculative inference that at the time of the incident the complainant was a minor, and that defendant acted for the legitimate purpose of disciplining her in his role as the complainant's parent, guardian or custodian (dissenting op at 373). However, in assessing the sufficiency of an instrument the role of the court is not to base its decision on unfounded speculations, but to consider only those proper inferences to be drawn from the factual allegations contained in the information. Here, where the allegations state that defendant approached the complainant late at night on a public street and smacked her buttocks, causing her to be alarmed and annoyed, it is implausible to infer that defendant was acting as a disciplinarian and in response to an unruly minor. Not even the defendant goes so far as to suggest this inference. To the contrary, defendant describes the information as charging him with touching a woman.

Furthermore, although our dissenting colleague acknowledges "that an information need not negate all possible defenses" (dissenting op at 372, citing *Casey*, 95 NY2d at 360), the approach advocated by the dissent would require nothing less than assertions responsive to every interpretation of facts favorable to the defendant. As this Court's prior decisions make abundantly clear, the law does not impose such an onerous burden on the People and we see no reason to change course based on the instant appeal (*Casey*, 95 NY2d at 360; *Guaman*, 22 NY3d at 681-682).

that a defendant smacked the buttocks of another sufficiently alleges the purpose elements of the statute. The facial sufficiency of an accusatory instrument must be assessed on a case-by-case basis, upon review of the factual assertions contained therein (*see* CPL 100.40 [1] [b], [c]; 100.15 [3]). As we have said, intent is difficult to discern. Factors such as defendant's expressive conduct, the surrounding circumstances, the location of the incident and the existence of a prior relationship or a common understanding between the parties, may support or negate an inference that defendant harbored the statutory purpose.

For the reasons we have stated, here the factual portions of the information "provide reasonable cause to believe that the defendant committed the offense charged" (CPL 100.40 [1] [b]), and those factual allegations are of the kind that "give an accused notice sufficient to prepare a defense and are adequately detailed to prevent a defendant from being tried twice for the same offense" (*Casey*, 95 NY2d at 360 [citations omitted]).

Accordingly, the order of the Appellate Term should be reversed, and the judgment of Criminal Court of the City of New York reinstated.

STEIN, J. (dissenting). To be legally sufficient, the factual part of the information must establish reasonable cause to believe that defendant committed the charged offense (*see* CPL 100.40 [1] [b]), and contain "nonhearsay allegations which, if true, establish *every* element of the offense charged and the defendant's commission thereof" (*People v Kalin*, 12 NY3d 225, 228-229 [2009] [emphasis added, internal quotation marks and citation omitted]; *see People v Dumay*, 23 NY3d 518, 522 [2014]; *People v Alejandro*, 70 NY2d 133, 135-136 [1987]). As relevant here, the information factually alleged that, at about 10:40 p.m. at the corner of specified streets, defendant "approached the [complainant] and smacked the [complainant] about the buttocks," which she described as causing her "to become alarmed and annoyed." Because I cannot agree with the majority's conclusion that the information contains sufficient allegations concerning the element of the offense of forcible touching that defendant committed the act "for no legitimate purpose" (Penal Law § 130.52), I dissent.

While I recognize that an information need not negate all possible defenses (*see People v Casey*, 95 NY2d 354, 360 [2000]), the lack of a legitimate purpose does not merely pertain to a

defense; it is a distinct element of the crime of forcible touching that must be affirmatively established by the People. As with other elements relating to an offender's state of mind, that purpose element could be established through reasonable inferences drawn from defendant's actions and the surrounding circumstances (see *People v Steinberg*, 79 NY2d 673, 682 [1992]). However, in my view, even under a "fair and not overly restrictive or technical reading" (*Casey*, 95 NY2d at 360), the factual allegations here are simply too sparse to create or support any inferences establishing the "no legitimate purpose" element of the charged crime. The information is completely bereft of any facts or details about the ages of the involved parties or their relationship (or lack of relationship) to each other—a factor that even the majority recognizes as relevant (majority op at 370-371). Thus, it is reasonably possible that defendant could be the parent, guardian or custodian of the complainant—who may be a minor—smacking her buttocks as a method of discipline, which could have annoyed and alarmed her despite defendant's arguably legitimate purpose. Although some speculation may be required to conclude that defendant was so related to the complainant and had such a legitimate purpose, the point is that speculation is also required to reach the opposite conclusion, as the majority has apparently done—speculation that could have been avoided simply by including sufficient factual allegations in the information to support the charge.¹ For example, an allegation that defendant and the complainant were strangers to one another might have adequately added the necessary context.

Nor does the fact that the information charges defendant with another similar count against a different victim on a separate occasion support the element of lack of a legitimate purpose. Without any details about what occurred prior to the other incident, the relationship of defendant to that complainant, or their respective ages, we would have to engage in the same speculation as to whether defendant lacked a legitimate purpose with regard to his acts toward the other complainant, as well. Repetitions of the same or similar insufficient allegations do not render them sufficient. Likewise, we may not consider the other informations—alleging additional, similar

1. Contrary to the majority's assertion, it is not this writer's intent to urge any particular inference, but merely to highlight the inadequacy of the information's factual allegations.

incidents against different complainants—when determining the facial sufficiency of the information at issue.²

Inasmuch as the allegations in the one pertinent information fail to establish “every element of the offense charged and the defendant’s commission thereof” (CPL 100.40 [1] [c]), the information did not adequately charge defendant with forcible touching, rendering it jurisdictionally defective (*see People v Jackson*, 18 NY3d 738, 741 [2012]). Because the Appellate Term reached this same conclusion, I find no error in its decision to reverse defendant’s conviction and dismiss the accusatory instrument and would, therefore, affirm.

Chief Judge LIPPMAN and Judges PIGOTT, ABDUS-SALAAM and FAHEY concur; Judge STEIN dissents and votes to affirm in an opinion.

Order reversed and judgment of Criminal Court of the City of New York, Kings County, reinstated.

2. Similarly, despite the majority’s reference to facts known by defendant about the complainant (*see* majority op at 371 n 2), in ascertaining the sufficiency of the accusatory instrument, it is not appropriate for the Court to consider facts within defendant’s personal knowledge, which are not set forth in the instrument itself.

[44 NE3d 199, 23 NYS3d 124]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSEPH
CONCEICAO, Appellant.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v
FEDERICO PEREZ, Appellant.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v JAVIER
SANCHEZ, Respondent.

Argued October 20, 2015; decided November 24, 2015

SUMMARY

APPEAL, in the first above-entitled action, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Term of the Supreme Court in the First Judicial Department, entered October 26, 2011. The Appellate Term affirmed a judgment of the Criminal Court of the City of New York, Bronx County (John P. Collins, J.), which had convicted defendant, upon his plea of guilty, of criminal possession of a controlled substance in the seventh degree.

APPEAL, in the second above-entitled action, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered April 10, 2014. The Appellate Division affirmed a judgment of the Supreme Court, Bronx County (Michael A. Gross, J.), which had convicted defendant, upon his plea of guilty, of disorderly conduct.

APPEAL, in the third above-entitled action, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered March 12, 2015. The Appellate Division (1) reversed, on the law, a judgment of the Supreme Court, Bronx County (Edgar G. Walker, J.), which had convicted defendant, upon his plea of guilty, of operating a motor vehicle while under the influence of alcohol; (2) vacated the plea; and (3) remanded the matter for further proceedings.

People v Conceicao, 33 Misc 3d 132(A), 2011 NY Slip Op 51927(U), reversed.

People v Perez, 116 AD3d 511, affirmed.

People v Sanchez, 126 AD3d 482, reversed.

HEADNOTES**Crimes — Appeal — Matters Reviewable — Challenge to Sufficiency of Plea Allocution — Waiver of Constitutional Rights**

1. The preservation requirement applies to a challenge to the validity of a guilty plea, whether based on the court's failure to mention the constitutional rights waived by the defendant in entering the plea—the right to a trial by jury, the right to confront one's accusers and the privilege against self-incrimination—or some other alleged defect in the allocution, depending on the particular circumstances of the case. Though a defendant generally must move to withdraw a guilty plea or file a motion to vacate the judgment of conviction in order to preserve a claim that the plea is invalid, a narrow exception to the preservation requirement exists where the particular circumstances of a case reveal that the defendant had no actual or practical ability to object to an alleged error in the taking of the plea that was clear from the face of the record. Accordingly, in three separate prosecutions where defendants faced a practical inability to move to withdraw their pleas, their claims that the trial courts failed to mention the constitutional rights they were waiving were reviewable on direct appeal despite the fact that none of them moved to withdraw his plea or vacate the judgment of conviction.

Crimes — Plea of Guilty — Sufficiency of Allocution — Waiver of Constitutional Rights

2. The failure during a plea allocution to recite the constitutional rights waived by the defendant in entering the guilty plea—the right to a trial by jury, the right to confront one's accusers and the privilege against self-incrimination—does not automatically invalidate an otherwise voluntary and intelligent plea. Where the record as a whole affirmatively shows that the defendant intentionally relinquishes those rights, the plea will be upheld. Accordingly, searching the records in three separate prosecutions, where one defendant pleaded guilty to a non-criminal offense that carried no consequences other than a fine, his attorney actively litigated the case, the court adjourned the matter so that he could consider the plea and he stated on the record that he had enough time to discuss the plea with his attorney, the record as a whole established defendant's understanding and waiver of his constitutional rights. The record in another case similarly reflected a knowing and voluntary plea where, represented by the same attorney, defendant filed numerous pretrial motions and actively litigated the case, and the record confirmed that defendant was aware of his right to a trial and made the decision to plead guilty after consulting with counsel. Both defendants, through their attorney, also waived a more detailed allocution that might have entailed discussion of the waived constitutional rights. By contrast, where the totality of the circumstances revealed that the final defendant did not have an opportunity to discuss the plea with his attorney or consider its consequences, his plea was invalid. The record contained no discussion of any of the circumstances surrounding defendant's plea or the rights he waived, nor did it indicate whether defendant spoke with his attorney before entering the plea.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Appellate Review § 205; AM JUR 2d, Criminal Law §§ 621, 624, 687.

CARMODY-WAIT 2d, Pleas and Plea Bargaining §§ 182:27, 182:28, 182:40, 182:60, 182:64, 182:70.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 21.4, 21.6, 27.5.

NY JUR 2d, Criminal Law: Procedure §§ 1486, 1487, 1513, 1517.

ANNOTATION REFERENCE

See ALR Index under Appeal and Error; Guilty Pleas.

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/3 plea

POINTS OF COUNSEL

Seymour W. James, Jr., The Legal Aid Society, New York City (*Paul Wiener* of counsel), for appellant in the first above-entitled action. *People v Tyrell* (22 NY3d 359 [2013]) should apply retroactively because it did not create a new rule of law, and appellant's conviction should be reversed because his case is indistinguishable from *Tyrell*. (*Boykin v Alabama*, 395 US 238; *Griffith v Kentucky*, 479 US 314; *People v Favor*, 82 NY2d 254; *People v Harris*, 61 NY2d 9; *People v Fiumefreddo*, 82 NY2d 536; *Florida v Nixon*, 543 US 175; *People v Nixon*, 21 NY2d 338; *People v Lopez*, 71 NY2d 662; *People v Louree*, 8 NY3d 541; *People v Peque*, 22 NY3d 168.)

Robert T. Johnson, District Attorney, Bronx (*Eric C. Washer, Orrie A. Levy* and *Joseph N. Ferdenzi* of counsel), for respondent in the first above-entitled action. I. *People v Tyrell's* (22 NY3d 359 [2013]) requirement that courts advise defendants of certain *Boykin* rights on the record in order for a plea to be knowing, intelligent and voluntary, and its determination that the failure of a court to do so may be challenged on direct appeal, even in the absence of preservation, constitute new rules that should be applied prospectively. (*People v Mitchell*, 80 NY2d 519; *People v Favor*, 82 NY2d 254; *People v Martello*, 93 NY2d 645; *People v Bialostok*, 80 NY2d 738; *People v Pepper*, 53 NY2d 213; *People v Warren*, 47 NY2d 740; *People v Diaz*, 2 AD3d 300; *People v Ivery*, 18 AD3d 884; *People v Graham*, 35 AD3d 1039; *People v Spivey*, 9 AD3d 886.) II. Defendant's challenge to the sufficiency of his allocution should be rejected because it was not preserved by objection and is otherwise

without merit. (*People v Bell*, 47 NY2d 839; *People v Warren*, 47 NY2d 740; *People v Adams*, 46 NY2d 1047; *People v Pellegrino*, 60 NY2d 636; *People v Lopez*, 71 NY2d 662; *People v Serrano*, 15 NY2d 304; *People v Butler*, 200 AD2d 515; *People v Jackson*, 114 AD3d 807; *People v Nugent*, 109 AD3d 625.)

Seymour W. James, Jr., *The Legal Aid Society*, New York City (*Harold V. Ferguson, Jr.*, of counsel), for appellant in the second above-entitled action. The Appellate Division erred when it held that appellant's plea proceeding demonstrated that appellant had understandingly waived his constitutional rights notwithstanding the fact that there was no discussion of appellant's *Boykin* rights at this proceeding. (*People v Tyrell*, 22 NY3d 359; *Boykin v Alabama*, 395 US 238; *People v Lopez*, 71 NY2d 662; *People v Harris*, 61 NY2d 9; *Brady v United States*, 397 US 742; *Parke v Raley*, 506 US 20; *United States v Dominguez Benitez*, 542 US 74; *Bordenkircher v Hayes*, 434 US 357; *Hanson v Phillips*, 442 F3d 789; *People v Fiumefreddo*, 82 NY2d 536.)

Robert T. Johnson, *District Attorney*, Bronx (*Eric C. Washer* and *Joseph N. Ferdenzi* of counsel), for respondent in the second above-entitled action. Since defense counsel, whose performance defendant has never challenged, waived a formal plea allocution, review of the instant claim is foreclosed. In any case, *Boykin v Alabama* (395 US 238 [1969]) does not apply to plea proceedings where it has already been determined that the defendant will be convicted of a violation and his sentence will be non-incarceratory. Finally, the record demonstrates that defendant's plea was knowing, intelligent, and voluntary. (*North Carolina v Alford*, 400 US 25; *People v Tyrell*, 22 NY3d 359; *People v Mitchell*, 80 NY2d 519; *People v Garcia*, 298 AD2d 107; *People v Aezah*, 191 AD2d 312; *People v Patterson*, 39 NY2d 288; *People v Jones*, 81 AD2d 22; *People v Martin*, 50 NY2d 1029; *People v Peque*, 22 NY3d 168; *People v Ahmed*, 66 NY2d 307.)

Robert T. Johnson, *District Attorney*, Bronx (*Jordan K. Hummel* and *Joseph N. Ferdenzi* of counsel), for appellant in the third above-entitled action. Defendant's ability to challenge the sufficiency of his plea allocution was foreclosed when defense counsel waived formal allocution; in any event, his negotiated plea to an unclassified misdemeanor in exchange for a non-incarceratory sentence was knowing, intelligent, and voluntary. (*People v Ford*, 62 NY2d 275; *People v Tyrell*, 22 NY3d 359;

North Carolina v Alford, 400 US 25; *Boykin v Alabama*, 395 US 238; *People v Reyes*, 26 NY2d 97; *People v Lopez*, 71 NY2d 662; *People v Harris*, 61 NY2d 9; *People v Morgan*, 76 NY2d 493; *People v Thomas*, 68 NY2d 194; *People v Hardy*, 4 NY3d 192.)

Seymour W. James, Jr., The Legal Aid Society, New York City (*Kristina Schwarz* of counsel), for respondent in the third above-entitled action. The Appellate Division correctly concluded that respondent's plea must be vacated, as the record does not demonstrate that respondent was informed of the constitutionally guaranteed rights he was forgoing by entering into a guilty plea agreement. (*Boykin v Alabama*, 395 US 238; *People v Tyrell*, 22 NY3d 359; *People v Lopez*, 71 NY2d 662; *People v Harris*, 61 NY2d 9; *Brady v United States*, 397 US 742; *Parke v Raley*, 506 US 20; *United States v Dominguez Benitez*, 542 US 74; *Bordenkircher v Hayes*, 434 US 357; *Hanson v Phillips*, 442 F3d 789; *People v Fiumefreddo*, 82 NY2d 536.)

OPINION OF THE COURT

PIGOTT, J.

The primary issue in these appeals is whether defendants entered knowing, intelligent and voluntary guilty pleas when the trial courts failed to mention the constitutional rights defendants were waiving—the right to a trial by jury, the right to confront one's accusers and the privilege against self-incrimination (*see Boykin v Alabama*, 395 US 238, 243 [1969]). We hold that the failure to recite the *Boykin* rights does not automatically invalidate an otherwise voluntary and intelligent plea. Where the record as a whole affirmatively shows that the defendant intentionally relinquished those rights, the plea will be upheld. The records in *People v Perez* and *People v Sanchez* contain such a showing, and therefore defendants' pleas were valid. Defendant's plea in *People v Conceicao* must be vacated because the record fails to establish a knowing and intelligent waiver.

I.

People v Conceicao

On December 30, 2009, defendant Joseph Conceicao was arrested and charged with criminal possession of a controlled substance in the seventh degree, a class A misdemeanor (Penal

Law § 220.03). The next day at arraignment, the People recommended a plea to the charge in exchange for two days of community service. Defendant stated that he wished to plead guilty, and the court imposed the agreed-upon sentence.

Defendant appealed, arguing that his plea was not knowing and voluntary because he was never informed of his *Boykin* rights. The Appellate Term affirmed the judgment of conviction, holding that defendant's challenge to the adequacy of the plea allocution was unpreserved for appellate review and declining to review it in the interest of justice. Alternatively, the court found defendant's plea voluntary, knowing and intelligent (*People v Conceicao*, 33 Misc 3d 132[A], 2011 NY Slip Op 51927[U] [App Term, 1st Dept 2011]). A Judge of this Court granted defendant leave to appeal (23 NY3d 961 [2014]).

People v Perez

Defendant Federico Perez was initially charged with failure to disclose the origin of a recording (Penal Law § 275.35), criminal possession of marijuana in the fifth degree (Penal Law § 221.10 [1]) and unlawful possession of marijuana (Penal Law § 221.05). Two months after his arrest, defendant rejected an offer to plead guilty to disorderly conduct in exchange for a \$250 fine, and his attorney moved to suppress evidence and dismiss the first two counts of the accusatory instrument. After five months of litigation, the People offered a plea of disorderly conduct in exchange for a \$100 fine, and the court adjourned the case for an additional month so that defendant could consider the offer. Defendant accepted the offer, stated that he wished to plead guilty to a violation in satisfaction of the charges against him, and confirmed that he “had enough time to speak to [his attorney] about th[e] plea.”

Defendant then appealed, arguing his plea was invalid because the court failed to mention any of the *Boykin* rights. The Appellate Division affirmed the judgment of conviction, finding that “the particular circumstances of the case . . . establishe[d] defendant's understanding and waiver” (*People v Perez*, 116 AD3d 511, 511 [1st Dept 2014]). A Judge of this Court granted defendant leave to appeal (24 NY3d 1004 [2014]).

People v Sanchez

Defendant Javier Sanchez was arrested for operating a motor vehicle while under the influence of alcohol, an unclassified

misdemeanor (Vehicle and Traffic Law §§ 1192 [1], [2], [3]; 1193 [1] [b]). Six months later, on the day of defendant's scheduled trial, defense counsel alerted the court that defendant wanted to plead guilty to the charge in exchange for a \$500 fine, completion of a "drunk driver's program," installation and maintenance of an ignition lock and six-month revocation of his license. The prosecutor confirmed the conditions of the plea, and the defendant stated that he agreed to plead guilty. When asked by the court and with defendant at his side, defense counsel waived further allocution, prosecution by information and adjournment for sentence, and the court imposed the agreed-upon sentence.

Defendant appealed, arguing the plea was not voluntary, knowing and intelligent because the trial court did not mention any of the *Boykin* rights. The Appellate Division reversed the judgment of conviction, vacated the plea and remanded for further proceedings on the ground that the "record fail[ed] to demonstrate that defendant was informed of any of the constitutional rights that he was waiving . . . or that he consulted with counsel about the constitutional consequences of his guilty plea" (*People v Sanchez*, 126 AD3d 482, 482-483 [1st Dept 2015]). A Judge of this Court granted the People leave to appeal (25 NY3d 1077 [2015]).

II.

[1] As a threshold matter, we conclude that defendants' claims are reviewable on direct appeal despite the fact that none of the defendants moved to withdraw his plea or vacate the judgment of conviction.

"Generally, in order to preserve a claim that a guilty plea is invalid, a defendant must move to withdraw the plea . . . or else file a motion to vacate the judgment of conviction pursuant to CPL 440.10" (*People v Peque*, 22 NY3d 168, 182 [2013] [citations omitted]). We have recognized a narrow exception to the preservation requirement, however, where the particular circumstances of a case reveal that a defendant had no actual or practical ability to object to an alleged error in the taking of a plea that was clear from the face of the record (*People v Louree*, 8 NY3d 541, 546 [2007]). If a defendant has an opportunity to seek relief from the sentencing court, he must preserve his challenge to the plea (*see People v Crowder*, 24 NY3d 1134, 1136 [2015] [requiring defendant to preserve his challenge to the plea allocution where he "had three opportunities to

object”]; *People v Murray*, 15 NY3d 725, 727 [2010] [requiring defendant to preserve his challenge to the plea allocution where he “could have sought relief from the sentencing court in advance of the sentence’s imposition”]).

In *People v Tyrell* (22 NY3d 359 [2013]) we reviewed a defendant’s *Boykin* claims on direct appeal, notwithstanding the absence of a postallocution motion, where the defendant had no opportunity to withdraw the plea before imposition of the sentence (*id.* at 364, quoting *Louree*, 8 NY3d at 546, and *People v Lopez*, 71 NY2d 662, 666 [1988]). Although we suggested in dicta that a court’s failure to mention the *Boykin* rights may also be viewed as a mode of proceedings error, categorically exempt from the preservation rule, we make clear today that the preservation requirement still applies to *Boykin* claims depending upon the particular circumstances of a case. Thus, a challenge to the validity of a plea, whether based on the court’s failure to mention the *Boykin* rights or some other alleged defect in the allocution, must be preserved depending on the facts of a case. Because defendants in these appeals faced a practical inability to move to withdraw their pleas, we may review their unpreserved claims.

We further reject the People’s contention that *Tyrell* announced a “new” rule of preservation. *Tyrell* “merely applie[d] previously established principles in a new factual setting” (*People v Favor*, 82 NY2d 254, 263 [1993]), concluding that “[u]nder the particular circumstances of th[at] case[] . . . defendant’s *Boykin* claims [we]re reviewable on direct appeal” (*Tyrell*, 22 NY3d at 363). Because *Tyrell* did not announce a new rule, we have no occasion to consider the circumstances in which new rules apply retroactively (*see People v Pepper*, 53 NY2d 213 [1981]) and turn to the merits of defendants’ claims.

III.

Trial courts have “a vital responsibility” to ensure that a defendant who pleads guilty makes a knowing, voluntary and intelligent choice among alternative courses of action (*People v Harris*, 61 NY2d 9, 19 [1983]). They need not engage in any particular litany, however, as “we have repeatedly rejected a formalistic approach to guilty pleas and have steered clear of a uniform mandatory catechism of pleading defendants” (*Tyrell*, 22 NY3d at 365 [internal quotation marks omitted]). Instead, we have opted for a flexible rule that considers “all of the relevant circumstances surrounding” a plea (*Harris*, 61 NY2d

at 19 [emphasis omitted], quoting *Brady v United States*, 397 US 742, 749 [1970]). Among other factors, we evaluate “[t]he seriousness of the crime, the competency, experience and actual participation by counsel, the rationality of the ‘plea bargain’, . . . the pace of the proceedings in the particular criminal court” and whether the defendant consulted with his attorney about the constitutional consequences of the plea (*id.* at 16). So long as the record as a whole “affirmatively disclose[s] that a defendant who pleaded guilty entered his plea understandingly and voluntarily,” the plea will be upheld (*id.* at 19 [internal quotation marks omitted]).

Our recent decision in *Tyrell*

“signal[ed] no retreat from the principle that trial courts retain broad discretion in the taking of pleas and need not follow any kind of rigid catechism. We merely appl[ied] the well-settled proposition that the record as a whole must contain an affirmative demonstration of the defendant’s waiver of his fundamental constitutional rights” and concluded that the particular facts in that case did not establish such a waiver (*Tyrell*, 22 NY3d at 366).

Although we emphasized the plea court’s failure to discuss any of the *Boykin* rights on the record, we did not announce a rule that a discussion of those rights is invariably required where the record shows, or “an allegation and evidence” show, that an accused intelligently and understandingly rejected his constitutional rights (*id.* at 365-366). To the contrary, we based our decision, at least in part, on the absence in the record of any indication that “defendant spoke with his attorney” about the consequences of the plea, for which the court imposed a sentence of incarceration (*id.* at 366).

[2] Having searched the records in each of these appeals, we hold that defendants, with the exception of Conceicao, intelligently and understandingly waived their constitutional rights.

In *Perez*, defendant pleaded guilty to a non-criminal offense that carried no consequences other than the \$100 fine he paid. Defendant’s attorney actively litigated the case for seven months, demonstrating “the competency, experience and actual participation by counsel”—factors we weigh in determining whether there was a valid waiver (*Harris*, 61 NY2d at 16). Furthermore, the court adjourned the matter for an additional month just so defendant could consider the plea that he

ultimately accepted, and defendant stated on the record that he had enough time to discuss the plea with his attorney. In our view, the Appellate Division correctly concluded that the record as a whole “establishe[d] defendant’s understanding and waiver of his constitutional rights” (*Perez*, 116 AD3d at 511).

The record in *Sanchez* similarly reflects a knowing and voluntary plea. Represented by the same attorney that represented the defendant in *Perez*, defendant filed numerous pretrial motions and actively litigated the case for six months. Moreover, defendant was aware of his right to a trial, because his case was on for trial the very same day that defendant pleaded guilty. That his attorney announced at the start of the plea proceeding, without the need for any additional discussion with defendant or the prosecutor, that defendant had decided to plead guilty rather than proceed to the scheduled trial further confirms that defendant made the decision to plead guilty after consulting with counsel prior to the start of the proceeding. And as in *Perez*, defendant, through his attorney, waived a more detailed allocution that might have entailed discussion of the *Boykin* rights.

We recognize that a DWI is a serious offense that “affects a defendant’s driving privileges” and “can be the basis for elevating a subsequent similar charge to a felony” (*Sanchez*, 126 AD3d at 483). We are also aware that defendant did not affirmatively state on the record, as did the defendant in *Perez*, that he had enough time to speak with his attorney about the plea. Though the plea allocution in *Sanchez* could have been more robust, the record as a whole reveals a knowing and intelligent choice among alternative courses of action.

By contrast, the record in *Conceicao*, like the record in *Tyrell*, contains no discussion of any of the circumstances surrounding the plea or the rights defendant waived; nor does it indicate whether defendant spoke with his attorney before entering the plea. Defendant’s only interaction with the court was stating that he wished to plead guilty. Because the totality of the circumstances in *Conceicao* reveal that defendant did not have an opportunity to discuss the plea with his attorney or consider its consequences, his plea was invalid.

Accordingly, the order of the Appellate Term in *People v Conceicao* should be reversed, and the case remitted to Criminal

Court of the City of New York for further proceedings.* The order of the Appellate Division in *People v Perez* should be affirmed. The order of the Appellate Division in *People v Sanchez* should be reversed, and the judgment of Supreme Court reinstated.

Chief Judge LIPPMAN (concurring in *People v Conceicao* and dissenting in *People v Perez* and *People v Sanchez*). In *People v Tyrell* (22 NY3d 359 [2013]) we addressed a problematic practice, which although perhaps not as pervasive as the People claim in their *Conceicao* retroactivity argument, had become troublingly recurrent, particularly in criminal courts handling non-felony matters: guilty pleas were being elicited in a most perfunctory way, often leaving no affirmative record of the foundational waiver of constitutionally guaranteed trial rights—commonly referred to as the *Boykin* rights—essential to the validity of any plea-based conviction (see *Boykin v Alabama*, 395 US 238, 243 [1969]). *Tyrell* reaffirmed that the necessary waiver could not and would not be presumed from a “silent record” (22 NY3d at 365-366). The present appeals collectively ask whether a record that is not utterly silent as to the plausibility of a waiver, but contains no actual expression of a defendant’s waiver of trial rights, is sufficiently “audible” to support a criminal conviction. The majority says that it may be, and, indeed, that in two of the three appeals before us the records are. I believe that this is incorrect as a matter of law, perpetuates what has been in practice a standardless jurisprudence productive of inexplicably disparate outcomes in materially indistinguishable cases, and is demonstrably flawed as a matter of policy. It was precisely this approach to judging the adequacy of foundational trial-right waivers that allowed the emergence and spread of the plea practice we finally found it necessary to disapprove in *Tyrell*.

Boykin, of course, identified “three important federal rights” encompassed by the waiver necessarily incident to a conviction founded upon a plea—the privilege against compulsory self-

* Unlike the parties in *Tyrell*, the People do not agree that dismissal is the appropriate corrective action in this case (see *Tyrell*, 22 NY3d at 366). Under the circumstances, we find a “penological purpose[]” in sending the case back to Criminal Court (see *People v Allen*, 39 NY2d 916, 918 [1976]; *People v Mones*, 130 AD3d 1244, 1247 [3d Dept 2015] [remitting matter to County Court after vacating plea on the ground that defendant did not knowingly and voluntarily waive constitutional rights]; *People v Bacetty-Ortiz*, 49 Misc 3d 130[A], 2015 NY Slip Op 51420[U], *2 [App Term, 2d Dept, 2d, 11th & 13th Jud Dists 2015] [same]).

incrimination, the right to a jury trial, and the right of confrontation (395 US at 243). The waiver of these rights, said *Boykin*, could not be presumed from a “silent record” (*id.*). *Boykin*, however, did not stop there; it did not hold that a waiver could otherwise be presumed. Rather, quoting from *Carnley v Cochran* (369 US 506 [1962]), a case concerning the adequacy of a waiver of the right to counsel, *Boykin* made clear that the record of a plea was minimally required to document an actual, not a supposed, waiver; it was required to show “that an accused was offered [the fundamental trial rights just before identified in the opinion] but intelligently and understandingly rejected the offer” (*Boykin*, 395 US at 242 [internal quotation marks omitted]). “Anything less,” said the Court, “is not waiver” (*id.*). Nor did the Court leave a question as to where the responsibility for creating the record of the waiver lay: the obligation was judicial and when met by “the judge” left “a record adequate for any review that may be later sought” (*id.* at 244).

This State’s jurisprudence governing plea adequacy is rooted in cases preceding *Boykin*—cases whose principal focus was not, as was *Boykin*’s, the foundational waiver, but rather the sufficiency of the defendant’s factual admission of guilt. In *People v Nixon* (21 NY2d 338 [1967]), our leading pre-*Boykin* decision bearing on plea adequacy, the Court pointedly declined to require any uniform canvas in eliciting pleas, holding instead that pleas were to be judged individually, giving consideration to various factors, including the knowledge, experience and native intelligence of the defendant, “the seriousness of the crime, the competency and experience of counsel, the actual intensive participation by counsel, the nature of the crime as clearly understood by laymen, the rationality of the ‘plea bargain,’ and the speed or slowness of procedure in the particular criminal court” (21 NY2d at 353). Our post-*Boykin* decisions, most notably *People v Harris* (61 NY2d 9 [1983]), have carried forward *Nixon*’s rejection of plea “catechisms” and concomitantly have read *Boykin* not to require a “ritualistic” recitation of the trial rights waived incident to a guilty plea (*id.* at 19).

Reasonable minds might well differ as to this minimizing gloss of *Boykin*; *Boykin* does, after all, speak of “three important federal rights” that must be waived as a condition of a valid plea and, in turn, requires as a condition of a valid waiver a record showing that the accused was *offered* and “intelligently and understandingly” *rejected* those rights. If, as

Boykin emphasizes, “[a]nything less is not waiver,” it is exceedingly difficult to understand how a record that simply does not document an offer and a rejection of the core trial rights—and none of the records before us on these appeals does—can support a valid plea-based conviction. It may be that a defendant is intelligent and experienced, that he or she is represented by competent counsel, and that the proposed plea seems rational. But those are circumstances most often merely supposed at the time of a plea, and would not, even if more firmly grounded, singly or in combination overcome the strong presumption against the waiver of fundamental rights (*see Johnson v Zerbst*, 304 US 458, 464 [1938]) to establish that a plea rests, as it must to be a conviction, upon a knowing and intelligent relinquishment of trial rights. *Boykin* would seem to say quite clearly that only an actual record waiver, or direct evidence of one, is equal to that formidable task.

While it may seem a sign of judicial sophistication to eschew “litanies,” “catechisms,” “rituals,” “scripts” and “formulas” and to aspire instead to an exercise of discretion based on the “totality,” it is a stubborn, analytically unassailable truth that without a sound waiver of trial rights there can be no valid conviction premised on a plea. Establishing such a waiver may not necessitate a particular choice of words, but it is unavoidable that a certain canvas must in the end be conducted. Federal law requires such a canvas (Fed Rules Crim Pro rule 11 [b] [1]), and it is time to wean ourselves of the frankly provincial notion rooted in our pre-*Boykin* jurisprudence that one should not be employed in our state courts as well, at least for the purpose of establishing a knowing and intelligent waiver of the basic trial rights.

Clinging to the notion that record trial-right waivers, or their evidentiary equivalent, are unnecessary where it appears to a reviewing court that there are circumstances seeming to suggest that such a waiver would have been made is, as this recent crop of appeals demonstrates, a recipe for the toleration of slipshod practice and deficient pleas, particularly in busy courts handling non-felony cases where the temptation to shortcuts is understandably heightened. It is all too easy to suppose that a represented defendant will, as a matter of course, accept a plea offer to a relatively minor offense carrying a commensurately minor penalty, and, on the basis of that supposition, to fall into the habit of accepting pleas on a record that is silent as to the most direct consequence of the plea—the loss of the defend-

ant's trial rights. The implicit assumption, that those rights are valueless except as barter for the offered plea and thus not worthy of mention, is incompatible with the presumption of innocence and trivializes a pleading decision that may have most serious personal and economic consequences. It is an assumption ill-befitting our courts, heedless of basic principles governing the waiver of constitutional rights and, to the extent that it needlessly gives rise to marginal pleas inviting further litigation, profligately wasteful of judicial resources. It is time to end rather than encourage such pleas. *Tyrell*, I believe, attempted to accomplish the former purpose, albeit without signaling a discontinuity in our jurisprudence. The salutary consequence of that careful effort will be minimized by the majority's willingness to infer waivers never actually elicited by, or otherwise sufficiently proved before the plea court. This does not seem to me to be sound law or sound policy.

RIVERA, J. (concurring in part, dissenting in part in *People v Conceicao*, and dissenting in *People v Perez* and *People v Sanchez*). I join the Chief Judge's dissent in *People v Perez* and *People v Sanchez*, and share his concern regarding the majority's approach to resolving *Boykin* claims. I write separately to express my disagreement with the majority's decision to limit the grounds for review of unpreserved *Boykin* claims, and to dissent, in part, in *People v Conceicao* from the majority's failure to follow our established precedent of dismissing accusatory instruments where no penological purpose exists to remit.

In *People v Tyrell*, we reviewed defendant's direct appeal because preservation was not required based on either of two grounds: the so-called *Lopez/Louree* exception or a mode of proceedings error (*Tyrell*, 22 NY3d 359, 364 [2013]). We explicitly did not resolve which category applied because the defendant's *Boykin* claims were "clearly reviewable on direct appeal" (*id.*). The majority has now determined that *Boykin* claims must be preserved, like other alleged defects in an allocution, but that a court may, nevertheless, review unpreserved claims when a defendant does not have a practical opportunity to withdraw a plea before sentencing (majority op at 382). In so doing, the majority disregards the fact that the nature of *Boykin* claims as a general matter, and these claims in particular, necessarily "implicat[es] rights of a constitutional dimension directed to the heart of the proceedings" (*Tyrell*, 22

NY3d at 364). Therefore, unlike the majority, I would find defendants' claims in all three appeals reviewable because a *Boykin* violation constitutes a mode of proceedings error.

In *People v Conceicao*, the majority also departs from our precedent directing dismissal of the accusatory instrument where a plea is vacated after the defendant completes the sentence and no penological purpose is served by remitting the matter (*see e.g. Tyrell*, 22 NY3d at 366 [plea for marihuana sales vacated after sentence completed]; *People v Hightower*, 18 NY3d 249, 253 [2011] [accusatory instrument dismissed; defendant had served sentence]; *People v Dreyden*, 15 NY3d 100, 104 [2010] [complaint charging criminal possession of a weapon jurisdictionally defective; accusatory instrument dismissed because defendant was sentenced to time served]; *compare People v Allen*, 39 NY2d 916 [1976]; *see also People v Mones*, 130 AD3d 1244, 1244 [3d Dept 2015] [2012 plea, with sentence of aggregate prison term of 8½ years and five years' postrelease supervision, vacated and remitted]; *People v Bacetty-Ortiz*, 49 Misc 3d 130[A], 2015 NY Slip Op 51420[U], *1 [App Term, 2d Dept, 2d, 11th & 13th Jud Dists 2015] [plea of defendant, initially charged with grand larceny in the third degree, a class D felony, vacated and remitted, because a "penological purpose would be served by remitting the matter" as the charged offenses were "serious"])). Like the defendant in *Tyrell*, Conceicao has served his sentence, and no discernable difference between the two cases is obvious from the record. Therefore, I see no rational justification for dismissal of the accusatory instrument in one and not the other, and, in accordance with our precedent, I would dismiss the accusatory instrument in *People v Conceicao*.

In *People v Conceicao*: Order reversed, defendant's guilty plea vacated and case remitted to Criminal Court of the City of New York, Bronx County, for further proceedings on the accusatory instrument.

Opinion by Judge PIGOTT. Judges ABDUS-SALAAM, STEIN and FAHEY concur, Chief Judge LIPPMAN concurs in result in a separate concurring opinion, Judge RIVERA dissents in part in an opinion.

In *People v Perez*: Order affirmed.

Opinion by Judge PIGOTT. Judges ABDUS-SALAAM, STEIN and FAHEY concur, Chief Judge LIPPMAN dissents in an opinion in which Judge RIVERA concurs, Judge RIVERA in a separate dissenting opinion.

In *People v Sanchez*: Order reversed and judgment of Supreme Court, Bronx County, reinstated.

Opinion by Judge PIGOTT. Judges ABDUS-SALAAM, STEIN and FAHEY concur, Chief Judge LIPPMAN dissents in an opinion in which Judge RIVERA concurs, Judge RIVERA in a separate dissenting opinion.

[44 NE3d 212, 23 NYS3d 137]

RITA CUSIMANO, Individually and Derivatively as Shareholder, Officer, Partner and Member of BERITA REALTY CORP. and Others, and as Partner of STRIANESE FAMILY LIMITED PARTNERSHIP, et al., Respondents, v ANDREW V. SCHNURR, CPA, et al., Appellants, and BERNARD V. STRIANESE et al., Intervenor-Appellants.

Argued November 18, 2015; decided December 16, 2015

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered August 7, 2014. The Appellate Division (1) reversed, on the law, so much of a judgment of the Supreme Court, New York County (Charles E. Ramos, J.; op 40 Misc 3d 1208[A], 2013 NY Slip Op 51077[U] [2013]), as had (a) granted defendants' cross motion and intervenors' motions to stay the arbitration to the extent of staying the arbitration of all claims against defendant Andrew V. Schnurr on statute of limitations grounds and staying the arbitration of certain claims against intervenors and the remaining defendants on statute of limitations grounds, and (b) granted plaintiffs' motion to stay the action to the extent of directing the parties to arbitrate the non-time-barred claims; (2) denied defendants' cross motion and intervenors' motions; (3) granted plaintiffs' motion; and (4) stayed the action pending arbitration.

Cusimano v Schnurr, 120 AD3d 142, reversed.

HEADNOTES

Arbitration — Federal Arbitration Act — Agreements Involving Interstate Commerce — Commercial Real Estate

1. The Federal Arbitration Act (FAA), which provides that an arbitration provision in “a contract evidencing a transaction involving commerce . . . shall be valid, irrevocable, and enforceable” (9 USC § 2), applied to the three agreements underlying plaintiffs' malpractice action—each of which contained an arbitration provision—as the agreements concerned ownership of and investment in commercial properties. The term “involving commerce” was meant to be the functional equivalent of “affecting commerce,” which typically signals Congress's intent to invoke the full extent of its powers under the Commerce Clause. The ultimate purpose of the agreements was to authorize participation in the business of commercial real estate, and that was what the entities did. In determining whether the FAA applies, the emphasis is meant to be on whether the particular economic activity at issue affects interstate commerce.

Arbitration — Waiver of Right to Arbitrate — Participation in Litigation — Prejudice

2. Plaintiffs waived the right to arbitrate their claims arising under three commercial agreements governed by the Federal Arbitration Act, since plaintiffs did not move to compel arbitration until after they had vigorously pursued their litigation strategy for approximately one year, and defendants suffered prejudice as a result. A litigant may not compel arbitration when its use of the courts is clearly inconsistent with its later claim that the parties were obligated to settle their differences by arbitration. Generally, when addressing waiver, courts should consider the amount of litigation that has occurred, the length of time between the start of the litigation and the arbitration request, and whether prejudice has been established. The desire for arbitration only arose after Supreme Court made plain its view that plaintiffs' claims were vexatious and largely time-barred. Additionally, plaintiffs had expressly represented to Supreme Court that they did not want to go to arbitration. Plaintiffs' behavior was indicative of blatant forum-shopping and, under such circumstances, both substantive prejudice and prejudice due to excessive cost and time delay had been established.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Alternative Dispute Resolution §§ 17, 37, 105, 106.

CARMODY-WAIT 2d, Arbitration §§ 141:100, 141:146, 141:147.

NY JUR 2d, Arbitration and Award §§ 6, 69, 106.

9 USCA § 2.

ANNOTATION REFERENCE

See ALR Index under Arbitration.

FIND SIMILAR CASES ON WESTLAW®

Database: NY-ORCS

Query: federal /2 arb! /2 act & involving /2 commerce & commercial /2 property

POINTS OF COUNSEL

Garvey Schubert Barer, New York City (*Alan A. Heller* and *Benjamin Liebowitz* of counsel), for Andrew V. Schnurr and others, appellants, and Bernard V. Strianese, intervenor-appellant. I. The Federal Arbitration Act does not apply to the parties' underlying agreements; the timeliness issue is for the court to resolve. (*Citizens Bank v Alafabco, Inc.*, 539 US 52; *Allied-Bruce Terminix Cos. v Dobson*, 513 US 265; *Adams v Suozzi*, 433 F3d 220; *Matter of Diamond Waterproofing Sys., Inc. v 55 Liberty Owners Corp.*, 4 NY3d 247; *Matter of Laszlo*

N. Tauber & Assoc. I v American Mgt. Assn., 304 AD2d 413; *Schiffer v Slomin's, Inc.*, 40 Misc 3d 884; *Baronoff v Kean Dev. Co., Inc.*, 12 Misc 3d 627; *Matter of Paver & Wildfoerster [Catholic High School Assn.]*, 38 NY2d 669.) II. Respondents waived their right to have the American Arbitration Association determine the timeliness of their claims. (*Stark v Molod Spitz DeSantis & Stark, P.C.*, 9 NY3d 59; *De Sapio v Kohlmeyer*, 35 NY2d 402; *Sherrill v Grayco Bldrs.*, 99 AD2d 965, 64 NY2d 261; *Matter of County of Rockland v Rockland Assn. of Mgt.*, 69 AD3d 621; *Matter of Waldman v Mosdos Bobov, Inc.*, 72 AD3d 983; *Digitronics Inventionneering Corp. v Jameson*, 52 AD3d 1099; *Hart v Tri-State Consumer, Inc.*, 18 AD3d 610; *Commander Oil Corp. v Shapiro*, 245 AD2d 330; *Matter of Hawthorne Dev. Assoc. v Gribin*, 128 AD2d 874; *Petroleum Pipe Ams. Corp. v Jindal Saw, Ltd.*, 575 F3d 476.)

Campolo, Middleton & McCormick, LLP, Ronkonkoma (Patrick McCormick and Christine Malafi of counsel), and *Joseph, Terracciano & Lynam LLP*, Syosset (Peter J. Terracciano and Janine T. Lynam of counsel), for Bernadette Strianese, intervenor-appellant. I. The Appellate Division erred when it held that the Federal Arbitration Act applies to the underlying agreements and, as a result, that the statute of limitations issue was for the arbitrator to determine. (*Merrill Lynch, Pierce, Fenner & Smith v Benjamin*, 1 AD3d 39; *Matter of City of New York v Uniformed Fire Officers Assn., Local 854, IAFF, AFL-CIO*, 95 NY2d 273; *Madison Hill Corp. v Continental Baking Co.*, 21 AD2d 538; *Matter of Paver & Wildfoerster [Catholic High School Assn.]*, 38 NY2d 669; *Citizens Bank v Alafabco, Inc.*, 539 US 52; *Crespo v 160 W. End Ave. Owners Corp.*, 253 AD2d 28; *Allied-Bruce Terminix Cos. v Dobson*, 513 US 265; *Matter of Diamond Waterproofing Sys., Inc. v 55 Liberty Owners Corp.*, 4 NY3d 247; *Volt Information Sciences, Inc. v Board of Trustees of Leland Stanford Junior Univ.*, 489 US 468; *Prima Paint Corp. v Flood & Conklin Mfg. Co.*, 388 US 395.) II. The Appellate Division erred when it determined that the respondents did not waive their right to have the statute of limitations issue decided by the arbitrator. (*Stark v Molod Spitz DeSantis & Stark, P.C.*, 9 NY3d 59; *N.J.R. Assoc. v Tausend*, 19 NY3d 597; *Sherrill v Grayco Bldrs.*, 64 NY2d 261; *Flores v Lower E. Side Serv. Ctr., Inc.*, 4 NY3d 363; *Braun Equip. Co. v Borelli Assoc.*, 220 AD2d 311, 71 NY2d 807; *Jorge v Sutton*, 134 AD2d 573; *Matter of Waldman v Mosdos Bobov, Inc.*, 72 AD3d 983; *Hart v Tri-State Consumer, Inc.*, 18 AD3d 610; *Cotton v Slone*, 4 F3d 176; *Leadertex, Inc. v Morganton Dyeing & Finishing Corp.*, 67 F3d 20.)

Dewey Pegno & Kramarsky LLP, New York City (David S. Pegno, Tamara L. Bock and David C. Gartenberg of counsel), for respondents. I. All of the issues decided below are for the arbitrators. (*Matter of Nationwide Gen. Ins. Co. v Investors Ins. Co. of Am.*, 37 NY2d 91; *Stark v Molod Spitz DeSantis & Stark, P.C.*, 9 NY3d 59; *Matter of Smith Barney Shearson v Sacharow*, 91 NY2d 39; *Arciniaga v General Motors Corp.*, 460 F3d 231; *Moses H. Cone Memorial Hospital v Mercury Constr. Corp.*, 460 US 1; *Flanagan v Prudential-Bache Sec.*, 67 NY2d 500; *Life Receivables Trust v Goshawk Syndicate 102 at Lloyd's*, 66 AD3d 495, 14 NY3d 850; *Contec Corp. v Remote Solution, Co., Ltd.*, 398 F3d 205; *Gwathmey Siegel Kaufman & Assoc. Architects, LLC v Rales*, 898 F Supp 2d 610; *Matter of Diamond Waterproofing Sys., Inc. v 55 Liberty Owners Corp.*, 4 NY3d 247.) II. The Appellate Division correctly held that there was no waiver. (*Fletcher v Kidder, Peabody & Co.*, 81 NY2d 623; *In re Crysen/Montenay Energy Co.*, 226 F3d 160; *Moses H. Cone Memorial Hospital v Mercury Constr. Corp.*, 460 US 1; *Singer v Jefferies & Co.*, 78 NY2d 76; *Leadertex, Inc. v Morganton Dyeing & Finishing Corp.*, 67 F3d 20; *Doctor's Assoc., Inc. v Distajo*, 107 F3d 126; *Stark v Molod Spitz DeSantis & Stark, P.C.*, 9 NY3d 59; *N.J.R. Assoc. v Tausend*, 19 NY3d 597; *Matter of Civil Serv. Empls. Assn., Local 1000, AFSCME, AFL-CIO, Erie County White Collar Unit Local #815 [County of Erie]*, 303 AD2d 1050; *Rush v Oppenheimer & Co.*, 779 F2d 885.) III. The trial court's statute of limitations holdings were in error. (*Telaro v Telaro*, 25 NY2d 433; *Louisiana Stadium & Exposition Dist. v Merrill Lynch, Pierce, Fenner & Smith Inc.*, 626 F3d 156; *Matter of Corbo v Les Chateau Assoc.*, 127 AD2d 657; *Shah v Monpat Constr., Inc.*, 65 AD3d 541; *Matter of Prudential Sec. [Purello]*, 206 AD2d 713; *Westchester Religious Inst. v Kameran*, 262 AD2d 131; *196 Owners Corp. v Hampton Mgt. Co.*, 227 AD2d 296; *USA United Holdings, Inc. v Tse-Peo, Inc.*, 23 Misc 3d 1114[A], 2009 NY Slip Op 50775[U]; *Lavin v Kaufman, Greenhut, Lebowitz & Forman*, 226 AD2d 107.)

OPINION OF THE COURT

Chief Judge LIPPMAN.

The issues presented by this appeal are whether the Federal Arbitration Act (FAA) is applicable to disputes arising under the agreements at issue and, if so, whether plaintiffs Rita and Dominic Cusimano waived their right to arbitrate by pursuit of this litigation. We hold that the FAA does apply, but that plaintiffs waived their right to arbitrate.

This appeal concerns three commercial agreements entered into among family members regarding family-owned entities. Each agreement was executed by New York residents¹ and each contains a provision stating that disputes will be settled by arbitration pursuant to the rules of the American Arbitration Association (AAA).

The first agreement at issue is the partnership agreement relating to the Strianese Family Limited Partnership (FLIP), which was formed by Rita's father, intervenor Bernard Strianese, and mother, nonparty Carmella Strianese, in 1998. The FLIP maintains its office in New York. According to the partnership agreement, the FLIP was formed for the stated purposes of owning, acquiring and developing real property, as well as making other types of investments. The FLIP had owned commercial property in Deer Park, New York, but now owns property in Florida that it leases to a CVS drug store.

In 2010, Rita commenced a prior action in Nassau County Supreme Court seeking judicial dissolution of the FLIP. Bernard and Carmella intervened and successfully moved to compel arbitration of the proceeding. The court subsequently granted intervenors' motion to confirm the arbitration award that found them to be majority owners (*Matter of Cusimano v Strianese Family LP*, 2011 NY Slip Op 34206[U] [2011]), and the Appellate Division affirmed (*Matter of Cusimano v Strianese Family Ltd. Partnership*, 97 AD3d 744 [2d Dept 2012]).

The second agreement at issue is the operating agreement of Berita Realty, LLC, which was formed by Rita and her sister, intervenor Bernadette Strianese, in 2001. Its principal place of business is in Port Washington, New York. Berita owns a 19% interest in an entity called Greenbriar Associates, which, in turn, owns a Marriott hotel in Plainview, New York.

In 2010, Rita commenced a separate action in Nassau County Supreme Court seeking judicial dissolution of Berita and an accounting. Bernadette moved to compel arbitration and the court stayed the proceeding, directing arbitration of all issues (*Matter of Cusimano v Berita Realty LLC*, 2011 NY Slip Op 34207[U] [2011]). Upon Rita's appeal, the Appellate Division affirmed (*Matter of Cusimano v Berita Realty, LLC*, 103 AD3d 720 [2d Dept 2013]).

Also at issue is an agreement by which Rita sold her interest in one of the "Seaview Corporations"—60 Seaview—to Berna-

1. Rita Cusimano represents that she has since moved to the State of Florida.

dette. The Seaview Corporations were formed by Bernard, Rita and Bernadette, and own two commercial buildings in Port Washington, New York.

The instant action was commenced in August 2011 in New York County Supreme Court, alleging fraud and malpractice against the family's accountants (defendants Schnurr and Norman) for work they had performed between 1991 and 2009, including allegations that they had aided and abetted fraud and other misconduct on the part of Bernard and Bernadette, who were not named as defendants. Before defendants responded to the complaint, plaintiffs moved to disqualify defendants' counsel. Plaintiffs also sought discovery by serving three nonparty subpoenas, which defendants moved to quash. During oral argument on the motion to disqualify, defense counsel maintained that the matter "belongs in arbitration."

Defendants then moved to dismiss the complaint on several grounds, including that the claims were time-barred. Supreme Court dismissed the complaint, but gave plaintiffs 20 days to replead certain causes of action with specificity. The court, however, made clear that it viewed many of the claims as falling outside the statute of limitations. Moreover, while discussing why plaintiffs were seeking corporate documents from the defendant accountants, the court told plaintiffs' counsel:

"it would be logical if you need documents to go to the corporation that has the documents.

"[PLAINTIFFS' COUNSEL]: We discussed that, that was sent to arbitration.

"[DEFENSE COUNSEL]: Exactly, and that's where it belongs.

"THE COURT: So go to arbitration and you get the documents

"[PLAINTIFFS' COUNSEL]: We don't believe—

"THE COURT: You don't want to go to arbitration.

"[PLAINTIFFS' COUNSEL]: Correct, your Honor.

"[DEFENSE COUNSEL]: So what? They have been sent there so don't try to get it from you.

"[PLAINTIFFS' COUNSEL]: Your Honor, we have appellate rights. There certainly is no reason why

we should go to arbitration simply because [defense counsel] wants us to and—

“THE COURT: I’m getting a nasty feeling here that this is frivolous litigation.”

On the 20th day, plaintiffs filed a demand for arbitration and a statement of claim with AAA. The allegations were nearly identical, except that Bernard and Bernadette were included as respondents.

Plaintiffs then moved to dismiss the action they had commenced in Supreme Court or, in the alternative, for a stay pending arbitration. Defendant accountants cross-moved to dismiss the action with prejudice or, in the alternative, to permanently stay the claims asserted in the arbitration demand as time-barred. Bernard and Bernadette moved to intervene and for a permanent stay of the arbitration claims, as barred by the statute of limitations.

Concluding that the FAA was inapplicable because the totality of the economic activity at issue did not have an effect on interstate commerce, Supreme Court determined that it, rather than the arbitrator, was the appropriate forum to decide the statute of limitations issues (40 Misc 3d 1208[A], 2013 NY Slip Op 51077[U] [2013]). The court further opined that this was “a flagrant example of forum shopping” and that plaintiffs had waived the right to arbitration by their “resort to, and aggressive participation in this litigation” (2013 NY Slip Op 51077[U], *10). Supreme Court therefore granted the motions to intervene, granted the motions and cross motion to stay the arbitration to the extent of staying certain claims on statute of limitations grounds and granted the plaintiffs’ motion to the extent of directing that the parties arbitrate the remaining non-time-barred claims.

The Appellate Division, among other things, reversed the judgment insofar as appealed from, and denied the motions and cross motion to stay arbitration (120 AD3d 142 [1st Dept 2014]). The Court held that the FAA applied to the agreements because each “concern[ed] transactions that affect[ed] commerce” (120 AD3d at 148). In particular, the Court observed that the entities were involved in commercial real estate, holding interests in properties that were rented to an international hotel chain and a national drug store chain. The Court rejected the argument that plaintiffs had waived the right to arbitration, holding that they had not engaged in “protracted litigation.

tion” and there was no resulting prejudice to the other parties. This Court granted defendants and intervenors leave to appeal and we now reverse.

The FAA provides that

“[a] written provision in . . . a contract evidencing a transaction involving commerce to settle by arbitration a controversy thereafter arising out of such contract or transaction . . . shall be valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract” (9 USC § 2).

The United States Supreme Court has interpreted the reach of the FAA extremely broadly, characterizing the act’s basic purpose as “overcom[ing] courts’ refusals to enforce agreements to arbitrate” (*Allied-Bruce Terminix Cos. v Dobson*, 513 US 265, 270 [1995]). In *Allied-Bruce*, the Supreme Court held that the term “involving commerce” was meant to be the functional equivalent of “affecting commerce,” which typically signals Congress’s intent to invoke the full extent of its powers under the Commerce Clause (*see* 513 US at 273-274).

In particular, the Court addressed the scope of the statutory language, “evidencing a transaction involving commerce.” The Court observed that there were conflicting interpretations of the phrase—whether it meant that the parties had contemplated substantial interstate activity at the time they had entered the agreement, or whether the transaction at issue must have turned out, in fact, to have involved interstate commerce (*see* 513 US at 277). The Court concluded that the “commerce in fact” interpretation was more in keeping with the statute, pointing out that the “contemplation of the parties” test appeared contrary to congressional intent, as it would invite litigation about what the parties had been thinking when they executed the agreement (*see* 513 US at 278). “[W]e accept the ‘commerce in fact’ interpretation, reading the Act’s language as insisting that the ‘transaction’ in fact ‘involv[e]’ interstate commerce, even if the parties did not contemplate an interstate commerce connection” (513 US at 281).

More recently, the United States Supreme Court indicated that it was “perfectly clear that the FAA encompasses a wider range of transactions than those actually ‘in commerce’—that is, ‘within the flow of interstate commerce’” (*Citizens Bank v Alafabco, Inc.*, 539 US 52, 56 [2003]). The Court clarified that

it is not necessary for the individual transaction to have a substantial effect on interstate commerce, so long as the *type* of activity at issue has the requisite substantial effect (*see* 539 US at 56).

“Congress’ Commerce Clause power ‘may be exercised in individual cases without showing any specific effect upon interstate commerce’ if in the aggregate the economic activity in question would represent ‘a general practice . . . subject to federal control.’ Only that general practice need bear on interstate commerce in a substantial way” (539 US at 56-57 [citations omitted]).

Defendants and intervenors maintain that the FAA does not apply to the agreements at issue here because the agreements themselves do not evidence transactions that affect commerce. They assert that, to the contrary, these agreements are intra-family transactions executed by New York residents. In addition, they argue that the entities are “passive” and require “little or no active management.” As a result, they contend, there is no impact on interstate commerce.

[1] Here, the Berita and FLIP agreements concern ownership of and investment in commercial properties. Indeed, Berita leases its property to an international hotel chain and the FLIP owns property out-of-state that it leases to a national drug store chain. This activity, in the aggregate, plainly bears on interstate commerce. While the question is closer as to 60 Seaview Corp., that agreement likewise concerns commercial real estate and has the requisite substantial effect on interstate commerce.² Although certain courts have determined that single residential real estate transactions are intrastate in nature (*see e.g. Saneii v Robards*, 289 F Supp 2d 855, 858-859 [WD Ky 2003]), matters concerning commercial real estate have been treated as implicating interstate commerce (*see e.g. Hall Street Associates, L. L. C. v Mattel, Inc.*, 552 US 576, 590 [2008] [observing that there was no dispute that the commercial lease involved interstate commerce]; *A-1 A-Lectrician, Inc. v Commonwealth Reit*, 943 F Supp 2d 1073, 1078 [D Haw 2013]). Under these circumstances, we conclude that the FAA is applicable to these agreements.

Although this interpretation is undeniably broad, the Supreme Court has made it abundantly clear that the FAA’s

2. Notably, according to the complaint, one of the two Seaview Corp. buildings was sold for \$4.7 million.

reach is expansive. The idea that the intrafamilial nature of the agreements has some bearing on whether the FAA is applicable finds no support in the case law. Nor does the fact that these agreements do not themselves evidence the commercial transactions appear to be significant. The ultimate purpose of the agreements was to authorize participation in the business of commercial real estate and that is, in fact, what the entities did. In determining whether the FAA applies, the emphasis is meant to be on whether the particular economic activity at issue affects interstate commerce—and, here, it does.

Nonetheless, plaintiffs have waived their right to arbitrate this dispute. “[L]ike contract rights generally, a right to arbitration may be modified, waived or abandoned.” Accordingly, a litigant may not compel arbitration when its use of the courts is ‘clearly inconsistent with [its] later claim that the parties were obligated to settle their differences by arbitration’” (*Stark v Molod Spitz DeSantis & Stark, P.C.*, 9 NY3d 59, 66 [2007] [citations omitted]). While it is true that “[n]ot every foray into the courthouse effects a waiver of the right to arbitrate,” we are satisfied that the totality of plaintiffs’ conduct here establishes waiver (*Sherrill v Grayco Bldrs.*, 64 NY2d 261, 273 [1985]).

Plaintiffs emphasize the federal policy preference in favor of arbitration and observe that “any doubts concerning whether there has been a waiver are resolved in favor of arbitration” (*Leadertex, Inc. v Morganton Dyeing & Finishing Corp.*, 67 F3d 20, 25 [2d Cir 1995]). Generally, when addressing waiver, courts should consider the amount of litigation that has occurred, the length of time between the start of the litigation and the arbitration request, and whether prejudice has been established (*see Leadertex*, 67 F3d at 25). The majority of federal courts have taken the position that waiver cannot be established in the absence of prejudice (*compare Cabinetree of Wisconsin, Inc. v Kraftmaid Cabinetry, Inc.*, 50 F3d 388, 390 [7th Cir 1995] [holding that an election to proceed in court “is a presumptive waiver of the right to arbitrate”]).

This said, the present case is strikingly similar to *Louisiana Stadium & Exposition Dist. v Merrill Lynch, Pierce, Fenner & Smith Inc.* (626 F3d 156 [2d Cir 2010]). There, the plaintiff had initially commenced litigation but, after 11 months and substantial motion practice, moved to compel arbitration. Significantly, the defendants had sent a detailed letter identifying deficiencies in the plaintiff’s complaint and had begun the

process of filing a motion to dismiss on the pleadings. The court observed that there were “two types of prejudice: substantive prejudice and prejudice due to excessive cost and time delay,” and determined that both types had been established (626 F3d at 159).

As to substantive prejudice, the court pointed out that granting the motion to arbitrate would allow the plaintiff to avoid the motion to dismiss, the substance of which had been related in the deficiency letter (*see* 626 F3d at 160). As to the second type of prejudice, the court noted that it could consider “‘other surrounding circumstances’ beyond the burdens and expenses that would result from a grant of arbitration,” including judicial economy, and observed that the matter had been transferred to a particular district court so that it would be centralized with other similar cases (626 F3d at 160). Finally, the court attached significance to the fact that the plaintiff, who had commenced the litigation, was the party seeking arbitration. “Although we recognize that a plaintiff’s initiation of a lawsuit does not, by itself, result in a waiver of arbitration, we also note that by filing its lawsuit and litigating it at length, [the plaintiff] ‘acted inconsistently with its contractual right to arbitration’” (626 F3d at 160 [citation omitted]).

[2] Here, both types of prejudice have likewise been established. After vigorously pursuing their litigation strategy for approximately one year, plaintiffs moved to compel arbitration. Even more telling, the desire for arbitration only arose after Supreme Court made plain its view that plaintiffs’ claims were vexatious and largely time-barred. Indeed, plaintiffs had expressly represented to Supreme Court that they did not want to go to arbitration. Plaintiffs’ behavior is indicative of blatant forum-shopping and, under these circumstances, prejudice has clearly been established. Therefore, plaintiffs have waived the right to arbitration and the issue of timeliness should be determined by the court.³

3. Despite our previous statement, in dicta, that waiver is generally one of the issues that should be decided by the arbitrator (*see Matter of Diamond Waterproofing Sys., Inc. v 55 Liberty Owners Corp.*, 4 NY3d 247, 252 [2005]), courts have held that whether a party has waived arbitration by litigation-related conduct is an issue for the courts (*see In re Pharmacy Benefit Mgrs. Antitrust Litig.*, 700 F3d 109, 118 [3d Cir 2012]; *Joca-Roca Real Estate, LLC v Brennan*, 772 F3d 945, 948 [1st Cir 2014]; *Grigsby & Assoc., Inc. v M Sec. Inv.*, 664 F3d 1350, 1354 [11th Cir 2011]; *see also Radil v National Union*

(n. cont’d)

Accordingly, the order of the Appellate Division should be reversed, with costs, and the case remitted to that court for further proceedings in accordance with this opinion.

Judges PIGOTT, RIVERA, ABDUS-SALAAM, STEIN and FAHEY concur.

Order reversed, with costs, and case remitted to the Appellate Division, First Department, for further proceedings in accordance with the opinion herein.

Fire Ins. Co. of Pittsburg, PA, 233 P3d 688, 694 [Colo 2010]; *Perry Homes v Cull*, 258 SW3d 580, 588 [Tex 2008]).

[44 NE3d 898, 23 NYS3d 600]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v WILLIE
L. WRAGG, Appellant.

Argued October 13, 2015; decided November 19, 2015

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered March 28, 2014. The Appellate Division affirmed a judgment of the Monroe County Court (Alex R. Renzi, J.), which had convicted defendant, upon a jury verdict, of sexual abuse in the first degree.

People v Wragg, 115 AD3d 1281, affirmed.

HEADNOTES

Crimes — Right to Counsel — Effective Representation

1. Defendant did not establish that he did not receive effective assistance of counsel in his prosecution for sexually abusing a nine-year-old girl, where he failed to demonstrate the absence of strategic or other legitimate explanations for counsel's revelation to prospective jurors about the child's inadmissible, prior out-of-court identification of defendant; failure to object to police testimony regarding the identification; and failure to respond or object to multiple instances of prosecutorial misconduct. By questioning prospective jurors about their reactions to the child's identification of defendant some time after the assault rather than on the same day, counsel sought to ensure selection of jurors receptive to his mistaken identification defense and his arguments about the existence of reasonable doubt of defendant's guilt based on the child's error. Given that the defense hinged on the jurors' belief that the child was mistaken about defendant, and that the prospective jurors were inclined to believe the child, sight unseen, counsel did not fail to employ a legitimate trial strategy by putting in question the child's identification at the earliest possible opportunity. Similarly, a police investigator's testimony that the child identified defendant almost three weeks after the assault supported counsel's argument that the child made an honest, even understandable, mistake given the lapse of time. Moreover, the prosecutor's summation remarks were not so egregious that counsel's failure to object rendered his overall representation constitutionally defective and did not detract from the theory of the defense.

Crimes — Sentence — Second Child Sexual Assault Felony Offender — Filing Predicate Offender Statement after Commencement of Trial

2. Defendant was properly sentenced as a second child sexual assault felony offender pursuant to Penal Law § 70.07 on his conviction for sexually abusing a nine-year-old girl, even though the People filed their predicate offender statement required by CPL 400.19 (2), which provides that the "statement may be filed by the prosecutor at anytime before trial commences,"

after the commencement of trial and before sentencing. Penal Law § 70.07 contains no limiting language in its sentencing provisions. The explicit language in Penal Law § 70.07 (1) states that a person convicted of a felony offense for sexual assault against a child, who has a predicate felony conviction for child sexual assault, “must be sentenced” in accordance with Penal Law § 70.07 sentencing provisions. The applicable time for invoking the procedures contained in CPL 400.19 does not change the import of the mandatory language in Penal Law § 70.07, which subjects this category of offenders to legislatively promulgated enhanced sentences. Furthermore, the specific language in CPL 400.19 (2) permits filing of the statement before commencement of a trial. It does not prohibit filing afterwards, and before sentencing. Interpreting CPL 400.19 as giving prosecutors discretion to seek enhanced sentencing only when that discretion is exercised prior to trial would mandate enhanced sentencing for every sex offender except those whose victims are children. The legislature, concerned with public safety and punishment of repeat offenders, would not grant discretion to prosecutors to avoid higher sentences for perpetrators of sex crimes against a particularly vulnerable class of victims.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Criminal Law §§ 1135–1139; AM JUR 2d, Habitual Criminals and Subsequent Offenders §§ 29, 35, 48.

CARMODY-WAIT 2d, Right to Counsel §§ 184:162–184:167, 184:252; CARMODY-WAIT 2d, Sentencing Procedures §§ 203:118–203:120.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 11.7, 11.10, 26.6.

McKINNEY'S, CPL 400.19 (2); Penal Law § 70.07 (1).

NY JUR 2d, Criminal Law: Procedure §§ 814, 864–870, 899, 3228, 3237.

ANNOTATION REFERENCE

See ALR Index under Attorneys; Habitual Criminals and Subsequent Offenders; Jury Trials; Sentence and Punishment.

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Database: NY-ORCS

Query: counsel /s effective /2 assistance & absence /5 strateg! & “voir dire”

POINTS OF COUNSEL

Shirley A. Gorman, Brockport, for appellant. I. Defense counsel's performance in this trial was so lacking in important respects that he caused prejudice to his own client and failed

to provide meaningful representation. (*People v Barboni*, 21 NY3d 393; *People v Perkins*, 15 NY3d 200; *People v Oathout*, 21 NY3d 127; *People v Angelakos*, 70 NY2d 670; *People v Satterfield*, 66 NY2d 796; *People v Trowbridge*, 305 NY 471; *People v Lindsay*, 42 NY2d 9; *People v Griffin*, 29 NY2d 91; *People v Caserta*, 19 NY2d 18; *People v Huertas*, 75 NY2d 487.) II. The court below could not sentence Willie L. Wragg as a second child sexual assault felony offender because the People did not exercise their discretion to file the statement required by Criminal Procedure Law § 400.19 (2) before trial. (*People v Finnegan*, 85 NY2d 53; *People v Williams*, 19 NY3d 100; *Oyler v Boles*, 368 US 448; *Matter of Alonzo M. v New York City Dept. of Probation*, 72 NY2d 662; *Pajak v Pajak*, 56 NY2d 394; *People v Tychanski*, 78 NY2d 909; *People v Litto*, 8 NY3d 692; *BMW of North America, Inc. v Gore*, 517 US 559; *People v Vicaretti*, 54 AD2d 236, 70 NY2d 903; *People v Young*, 94 NY2d 171.)

Sandra Doorley, District Attorney, Rochester (*Geoffrey Kaeuper* of counsel), for respondent. I. Defendant received effective assistance of counsel. (*People v Taylor*, 1 NY3d 174; *People v Baldi*, 54 NY2d 137; *People v Satterfield*, 66 NY2d 796; *People v Benevento*, 91 NY2d 708; *People v Johnson*, 57 NY2d 969; *People v Brown*, 17 NY3d 742; *People v Fisher*, 18 NY3d 964; *People v Cahill*, 2 NY3d 14; *People v Galloway*, 54 NY2d 396; *People v LaValle*, 3 NY3d 88.) II. Defendant was properly sentenced as a second child sexual assault felony offender. (*People v Bouyea*, 64 NY2d 1140.)

OPINION OF THE COURT

RIVERA, J.

Defendant Willie L. Wragg seeks reversal of his conviction of sexual abuse in the first degree on the ground that he was denied meaningful representation due to his attorney's alleged deficient performance. In the alternative, defendant contends he should be resentenced because the trial court improperly treated him as a second child sexual assault felony offender, inasmuch as the People failed to file a predicate offender statement prior to the commencement of trial, as provided for under CPL 400.19 (2). We find both grounds without merit, and therefore affirm the Appellate Division.

Defendant was charged with one count of sexual abuse in the first degree for touching the vaginal area of a minor (Penal Law § 130.65 [3]). At defendant's January 2009 jury trial, the victim, nine-year-old MH, testified that on June 22, 2008 she

was walking from her friend's house when a stranger "came out of nowhere" and touched her "front private part" outside her clothing, with his hand. In court she identified the assailant as the defendant.

According to the testimony of two police officers who interviewed MH the day of the incident, she described for them what happened and the assailant, including what he wore. She then traveled with police to the site where she was assaulted, and although the police canvassed the neighborhood, at the time they did not come up with a suspect. Approximately 10 days later, a police investigator spoke with MH and again took a description from her. He then spoke to a daycare provider who lived near MH's home, and based on his description, the provider identified defendant. According to the investigator he met with MH again eight days later and she identified a suspect. Five days later the police arrested defendant.

Defendant presented a mistaken identity defense at trial. Counsel began to lay the groundwork for that defense during jury voir dire. While questioning prospective jurors about how counsel might establish that the child was mistaken, he asked whether they would be more or less likely to accept that the victim was honestly mistaken if she made an identification days after the initial assault. At one point, the following discussion was held.

"[DEFENSE COUNSEL]: Perjury is lying under oath. Does somebody have to be lying to be mistaken[?]"

"PROSPECTIVE JUROR 15: No.

"[DEFENSE COUNSEL]: There is a saying that honest people can be honestly mistaken and certain people can be certainly wrong. [Sir,] is it possible she just can be pointing at the wrong guy?"

"PROSPECTIVE JUROR 14: She could, in fact.

"[DEFENSE COUNSEL]: Do you think you would be more likely to accept that if you learned she didn't identify Mr. Wragg until three days later."¹

Then later, counsel directly asked how the child's mistake might influence the juror's determination of defendant's guilt.

1. In fact, as noted during the prosecutor's voir dire questions, MH did not identify the defendant until three weeks after she was attacked.

“[DEFENSE COUNSEL]: . . . But, if through the cross-examination of her you have a reasonable doubt as to accuracy of her identification, how would you vote?

“PROSPECTIVE JUROR 13: She didn’t actually think he did it?

“[DEFENSE COUNSEL]: If you don’t believe her, not just that you don’t believe her, but you believe she could be mistaken, when she points to Willie, how would you vote?”

Counsel built on this theory of the case during cross-examination of the People’s witnesses. Counsel first challenged MH, asking her questions suggesting her memory was flawed and that she had been coached. He then elicited testimony from the police who interviewed MH that she, in fact, did not provide a description on her own, but rather gave information in response to the officers’ directed questions about the height and weight of the assailant. Counsel also affirmed through testimony from MH’s friend that shortly after the incident she, MH, and others went to a house near where the incident occurred and MH identified someone in the house, not the defendant, as the assailant. This contradicted MH’s direct testimony that she did not identify the man in the house as the person who touched her.

Defendant also presented testimony from witnesses regarding his whereabouts around the time of the incident. His wife and one of her coworkers testified that they left work together midafternoon, picked up defendant and together went to two local stores. Along the way defendant purchased lottery tickets. Defendant sought to support this testimony by admitting into evidence lottery tickets time stamped at 5:20 p.m. These witnesses further testified that defendant and his wife returned home at 5:20, and his wife further claimed that they remained inside their home the rest of the evening.

The prosecutor attacked the credibility of these witnesses on cross-examination. First, she confronted defendant’s wife with a copy of her coworker’s timecard, which indicated that the coworker left more than an hour later than the witnesses had originally claimed. Second, the coworker claimed she did not remember exactly when she left, but acknowledged the hour indicated on the time stamp.

Defendant also presented testimony from a neighbor and self-described good friend and mother of his godchild, who

stated that on the day of the incident he came to her home at 5:00 a.m., and left several times throughout the day because he was cooking dinner. She too testified that he left with his wife and the coworker in the afternoon, and that she saw them return home later that evening. The prosecutor challenged the veracity of the witness by eliciting testimony suggesting that her memory of the day of the incident was uncannily certain, compared to her memory of other days and times that same week, and that she had been arrested for petit larceny.

During summation, the prosecutor, as relevant here, used sympathetic terms to describe MH; referenced getting “justice for what happened to her”; told the jury that “[MH’s] testimony standing alone is enough to convict Willie Wragg” and that there was “no reason not to believe [her]”; used the terms “bogus,” “bologna,” and “[p]oppycok” when describing the theory of the defense; that she “love[d]” certain witnesses as well as had a “favorite part” of a defense witness’s testimony; and explained that while she had previously told MH that “[they] were going to be called the jury . . . that is a far cry from coaching.” Defense counsel, for his part, argued on summation that this was a case of mistaken identity, which turned on MH’s sole eyewitness, split-second view of the assailant. He reminded the jury that there was testimony that MH initially identified someone else as the assailant. He contended that MH’s memory was weak, and that even if she did not lie, she was coached. He further suggested that the police testimony about the time of the incident was suspiciously similar, and that they had some motive in the case to make their testimony fit the facts. He also highlighted that no physical evidence established defendant’s guilt.

After deliberating approximately two hours, the jury returned a guilty verdict on the sole count. On the initial day of sentencing, the court stated on the record that defendant should be treated as a second child sexual assault felony offender, and adjourned to allow the People time to prepare the predicate felony offender papers. Thereafter, over defense counsel’s objection, the People filed the predicate offender statement, alleging defendant was previously convicted of first-degree rape for engaging in sexual intercourse with a female family member less than 11 years old, and that he was 18 years or older at the time of the commission of the offense. Following a hearing to establish the facts of the underlying predicate conviction, the court sentenced defendant as a second child

sexual assault felony offender to a determinate term of 15 years with five years of postrelease supervision, the maximum sentence allowed by law.

The Appellate Division affirmed (115 AD3d 1281 [4th Dept 2014]), and a Judge of this Court granted leave to appeal (23 NY3d 1070 [2014]). We now affirm.

Defendant claims he was denied a fair trial due to alleged critical mistakes by his trial counsel. These include counsel's revelation to prospective jurors about MH's inadmissible, prior out-of-court identification of defendant; his failure to object to improper bolstering by police regarding this identification; and his failure to respond or object to multiple instances of prosecutorial misconduct. The People respond that defendant's claims amount to no more than dissatisfaction with counsel's legitimate—albeit unsuccessful—trial tactics, and that counsel cannot be faulted for failing to object to alleged prosecutorial impropriety that was neither egregious nor prejudicial. We find defendant's arguments unpersuasive, and conclude that he has failed to point to the type of missteps by defense counsel that establish a performance so lacking in competence and strategic purpose that it fails to meet the constitutional minimum standard of professionalism recognized by this Court.

In determining whether counsel provided effective assistance, “[t]he core of the inquiry is whether defendant received meaningful representation” (*People v Benevento*, 91 NY2d 708, 712 [1998] [internal quotation marks omitted]). In making that assessment, the court must view counsel's performance in its totality (*see People v Baldi*, 54 NY2d 137, 147 [1981]). Defendant, of course, bears the burden of establishing his claim that counsel's performance is constitutionally deficient (*People v Barboni*, 21 NY3d 393, 406 [2013]). Thus, defendant must demonstrate the absence of strategic or other legitimate explanations for counsel's alleged failure (*People v Satterfield*, 66 NY2d 796, 799-800 [1985]). However, a reviewing court must be careful not to “second-guess” counsel, or assess counsel's performance “with the clarity of hindsight,” effectively substituting its own judgment of the best approach to a given case (*Benevento*, 91 NY2d at 712; *see also Satterfield*, 66 NY2d at 799-800 [“It is not for this court to second-guess whether a course chosen by defendant's counsel was the best trial strategy, or even a good one, so long as defendant was afforded meaningful representation”]).

Defendant argues that where the sole defense was the child's misidentification there is no tactical advantage to revealing that MH in fact recognized defendant before trial, or in permitting the prosecutor, in turn, and without objection, to remind the jury that MH previously identified defendant as the assailant. We disagree.

[1] As the record establishes, during the voir dire counsel asked questions to elicit whether prospective jurors were open to the possibility that the child made an honest mistake about who touched her. This was a critical line of inquiry because the prospective jurors initially appeared hesitant to accept that a child would lie about being sexually assaulted, but appeared open to the suggestion that MH could have innocently identified the wrong person as her assailant. By using the information to question prospective jurors about their reactions to the child's identification of defendant some time after the assault rather than on the same day, a fact repeated by the prosecutor without objection, counsel sought to ensure selection of jurors receptive to his mistaken identification defense and his arguments about the existence of reasonable doubt of defendant's guilt based on the child's error. Given that the defense hinged on the jurors' belief that the child was mistaken about defendant, and that the prospective jurors were inclined to believe the child, sight unseen, we cannot say that counsel failed to employ a legitimate trial strategy by putting in question MH's identification at the earliest possible opportunity.

Defendant also claims that counsel was ineffective for failing to object when one of the investigators testified that MH gave him a description of the assailant. According to defendant, this testimony inferentially bolstered MH's in-court identification. However, as with counsel's questions to the prospective jurors, the investigator's testimony that MH identified defendant almost three weeks after the assault supported counsel's argument that MH made an honest, even understandable, mistake given the lapse of time (*see People v Brown*, 17 NY3d 742, 744 [2011] [no error where counsel failed to object to remarks by prosecutor impugning defendant because they were consistent with counsel's theory of the case]). Moreover, the tactic benefited from testimony by MH's friend that MH identified someone other than the defendant within a short span of time after the incident. That the strategy ultimately failed does not make counsel's representation ineffective (*see People v Benn*, 68 NY2d 941, 942 [1986] [ineffective assistance of counsel "requires proof

of true ineffectiveness rather than mere disagreement with strategies and tactics that failed”]; *see also People v Lester*, 124 AD2d 1052, 1052 [4th Dept 1986] [counsel engaged in a reasonable strategy to “cast doubt upon the reliability of the eyewitnesses’ in-court identification” by “attempt(ing) to show that the in-court identification was influenced by an impermissibly suggestive photo array and lineup”)].

Defendant’s other complaint that counsel was ineffective for failing to object to a pattern of prosecutorial misconduct is similarly without merit. First, we note that this is not a case where defense counsel remained silent while the prosecutor exceeded the limits of acceptable argument. Counsel lodged several objections, which the court sustained. Second, while the People concede that some of the prosecutor’s summation remarks were inappropriate, they correctly argue that the remarks were not so egregious that counsel’s failure to object renders his overall representation constitutionally defective. Here, the prosecutor used terms of endearment for the child and argued that the jury should believe the child’s testimony that she was molested. Those comments, focused as they were on the attack rather than on the propriety of the child’s identification of defendant, did not detract from the theory of the defense that days and weeks after the event the child made the honest mistake of picking the wrong person as her attacker.

To the extent defendant complains about the prosecutor’s other remarks, we cannot say on this record that counsel’s failure to object exposed the jury to the type of prosecutorial abuse this Court has previously held to warrant reversal of the conviction. For example, the remarks are not similar to the prosecutor’s statements in *People v Wright* (25 NY3d 769 [2015]), *People v Fisher* (18 NY3d 964 [2012]), or *People v Ashwal* (39 NY2d 105 [1976]). In those cases the prosecutor, during summation, exceeded the bounds of proper conduct by making misleading representations about physical evidence, encouraging inferences of guilt based on facts not in evidence, and improperly conveying guilt in uncharged crimes (*see Wright*, 25 NY3d at 780-781 [prosecutor incorrectly stated in her summation that defendant had left DNA evidence at the crime scene, when a DNA analysis indicated there was no match]; *Fisher*, 18 NY3d at 966-967 [prosecutor’s summation was improper where she relied on facts not in evidence, her “less than frank” statement that a witness was not receiving a benefit for testifying, and an admonishment to jury that “their

acceptance of the testimony of the child witnesses was essential to the administration of justice”]; *Ashwal*, 39 NY2d at 110 [prosecutor improperly conveyed the impression that defendant had killed an informant to prevent him from testifying in defendant’s current trial for drug possession]). Here, the prosecutor’s summation rhetoric does not equate, as in the cases above, to the type of conduct that we have previously held denied the defendant a fair trial.

Defendant further contends that counsel was ineffective for failing to object when at various points the prosecutor injected her credibility into the trial, essentially serving as an unsworn witness for the People. However, the record fails to support this characterization of the prosecutor’s conduct and defendant’s other complaints about the prosecutor’s trial conduct are similarly unpersuasive.

Defendant’s final claim concerning counsel’s use of the alibi witnesses and his cross-examination of MH is groundless. First, counsel cannot be held ineffective because the People impeached the alibi witnesses when they were caught in a lie (see *People v Rose*, 57 NY2d 837, 839 [1982] [“Defense counsel’s reliance on the testimony of a witness whose credibility was subsequently impeached on cross-examination may have been an inadvisable trial tactic, but it did not constitute ineffective assistance”]). Second, defense counsel did not err by attempting to impeach the complainant and sole eyewitness by pointing to discrepancies between her trial and grand jury testimonies, even if counsel was unsuccessful in his efforts to do so (see *Benevento*, 91 NY2d at 712-713 [“As long as the defense reflects a reasonable and legitimate strategy under the circumstances and evidence presented, even if unsuccessful, it will not fall to the level of ineffective assistance”]).

Viewing counsel’s representation in its totality, defendant received effective assistance of counsel under our state standard (see *Baldi*, 54 NY2d at 147). Since “our state standard . . . offers greater protection than the federal test, we necessarily reject defendant’s federal constitutional challenge by determining that he was not denied meaningful representation under the State Constitution” (*People v Caban*, 5 NY3d 143, 156 [2005]).

Turning to defendant’s alternative request for relief, defendant argues that if his conviction stands, he should be resentenced because the People failed to file a predicate felony

conviction statement prior to the commencement of trial, as provided in CPL 400.19 (2). On this appeal, defendant does not dispute that he has a predicate felony conviction for a sexual assault against a child based on his January 2000 first-degree rape conviction. As such, this conviction makes him subject to sentencing enhancement under Penal Law § 70.07. Nor does he contend that the court imposed an incarceratory period outside the statutory sentencing range for his current conviction. Instead, he claims that the People exercised their discretion to avoid an enhanced sentence in his case. However, this argument relies on a misinterpretation of the applicable statutes, and is no basis to mandate that defendant be resentenced.

Penal Law § 70.07 (1) provides that “[a] person who stands convicted of a felony offense for a sexual assault against a child, having been subjected to a predicate felony conviction for a sexual assault against a child, must be sentenced in accordance with” a statutorily specified enhanced sentencing range. The governing procedures for determining whether a defendant is subject to a predicate felony conviction for purposes of Penal Law § 70.07 are specified in CPL 400.19 (*see* Penal Law § 70.07 [3]).² Pursuant to CPL 400.19 (2),

“[w]hen information available to the people prior to the trial of a felony offense for a sexual assault against a child indicates that the defendant may have previously been subjected to a predicate felony conviction for a sexual assault against a child, a statement may be filed by the prosecutor at any time before trial commences.”

The defendant must be given a copy of the statement and an opportunity to controvert allegations contained therein (CPL 400.19 [3]). Any allegations not controverted “shall be deemed to have been admitted by the defendant” (*id.*). Where the defendant controverts an allegation, the statute requires the court hold a hearing and make a finding as to whether the defendant has been subjected to a predicate felony conviction within the meaning of Penal Law § 70.07 (*see* CPL 400.19 [6]). These procedures ensure that a defendant has appropriate notice and opportunity to challenge allegations of the existence

2. We have no occasion to consider the CPL 400.19 procedures as they apply to the statutorily required determination of whether an offender was 18 years or older at the time of the commission of the predicate offense because defendant’s age, as it relates to the prior felony, is not at issue on this appeal.

of a sentence-enhancing predicate conviction (*cf. People v Bouyea*, 64 NY2d 1140, 1142 [1985] [the statutory purpose for filing a predicate statement in second felony offender cases, which contain procedures under CPL 400.21 that are sufficiently similar to the notice and hearing requirements in CPL 400.19, includes “providing defendant with reasonable notice and an opportunity to be heard”]).

It is apparent from the statutory text that convicted second child sexual assault felony offenders must be sentenced under Penal Law § 70.07. Nevertheless, defendant contends that because CPL 400.19 (2) states the People’s predicate “statement *may* be filed by the prosecutor at any time before trial commences” (emphasis added) the legislature intended to give the People discretion to avoid enhanced sentencing under Penal Law § 70.07 for this category of defendants. He argues that this interpretation of the statute follows logically, given that all the other predicate sentencing statutes, except for those applicable to persistent felony offenders, mandate enhanced sentences, and the CPL sections setting forth the corresponding procedures for determining predicate convictions under those statutes require that the prosecutor *must* file the statement before sentencing (*see* CPL 400.15 [“Procedure for determining whether defendant is a second violent felony offender”]; CPL 400.16 [“Procedure for determining whether defendant is a persistent violent felony offender”]; CPL 400.21 [“Procedure for determining whether defendant is a second felony offender or a second felony drug offender”]). According to defendant, the legislative choice to use “may” in CPL 400.19 was intended to give prosecutors discretion to seek enhanced sentencing only when the prosecutor exercised this discretion prior to trial.

[2] This interpretation ignores the text of Penal Law § 70.07 which contains no limiting language in its sentencing provisions. The explicit language in subdivision (1) states that a person convicted of a felony offense for sexual assault against a child, who has a predicate felony conviction for child sexual assault, “must be sentenced” in accordance with Penal Law § 70.07 sentencing provisions. The applicable time for invoking the procedures contained in CPL 400.19 does not change the import of the mandatory language in Penal Law § 70.07, which subjects this category of offenders to legislatively promulgated enhanced sentences. Furthermore, the specific language in CPL 400.19 (2) upon which defendant relies merely permits

filing of the statement before commencement of a trial. It does not prohibit filing afterwards, and before sentencing. As courts have concluded, “may” does not mean “must” (see *People v Armbruster*, 32 AD3d 1348 [4th Dept 2006]; *People v Spruill*, NYLJ, Feb. 15, 2002 at 9, col 1 [Sup Ct, Bronx County]). Notwithstanding defendant’s requests that we read the statute otherwise, this Court is without authority to read mandatory language into a statute where it is otherwise absent (McKinney’s Cons Laws of NY, Book 1, Statutes § 94; *Lederer v Wise Shoe Co.*, 276 NY 459, 465 [1938] [“We do not by implication read into a clause of a rule or statute a limitation for which we find no sound reason and which would render the clause futile”]).

We further note that because Penal Law § 70.07, on its face, applies to persons once convicted of a felony offense for a sexual assault against a child, CPL 400.19 (2) provides a mechanism for filing the statement before conviction. By allowing for filing at a time when any challenges to the underlying predicate offense can be resolved by the court before trial, this provision serves the additional purpose of facilitating plea negotiation by confirming defendant’s sentencing exposure should he be convicted. Furthermore, and as a consequence, this provision, similar to other statutes, has the added benefit of potentially sparing child victims the stress of reliving the sexual assault by the retelling of the events in a courtroom (see generally *Matter of Joanne P.*, 144 Misc 2d 754, 756 n 2 [Fam Ct, NY County 1989] [explaining that Family Ct Act art 10 proceedings were “designed to avoid the necessity of the child having to testify in court as to the abuse due to the obvious trauma that often accompanies such testimony”]).

This interpretation of Penal Law § 70.07 and CPL 400.19 is fully supported by the legislative history which establishes that the enhanced sentencing laws were intended to increase penalties against sex offenders to better protect the public, and to address recidivism (see Mem of St Dept of Health at 2, Bill Jacket, L 2000, ch 1 [to “(e)nact() a provision for repeat child molesters who commit particularly serious sexual assaults against children, and require() that they receive enhanced penalties, including mandatory sentences”]). Defendant’s interpretation, however, would mandate enhanced sentencing for every sex offender except those whose victims are children. Certainly the legislature, concerned with public safety and punishment of repeat offenders, would not grant discretion to prosecutors to avoid higher sentences for perpetrators of sex crimes against a particularly vulnerable class of victims.

Accordingly, the order of the Appellate Division should be affirmed.

Chief Judge LIPPMAN and Judges PIGOTT, ABDUS-SALAAM and STEIN concur; Judge FAHEY taking no part.

Order affirmed.

[44 NE3d 907, 23 NYS3d 609]

In the Matter of CRYSTAL HAWKINS, Appellant, v ELIZABETH BERLIN, as Executive Deputy Commissioner of the New York State Office of Temporary and Disability Assistance, et al., Respondents.

Argued October 22, 2015; decided November 23, 2015

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered June 12, 2014. The Appellate Division, with two Justices dissenting in part, affirmed a judgment of the Supreme Court, New York County (Donna M. Mills, J.; op 2012 NY Slip Op 32922[U] [2012]), entered in a proceeding pursuant to CPLR article 78, which had (1) denied the petition seeking, among other things, to annul respondents' determination that petitioner was not entitled to a distribution of certain child support payments collected by respondents; and (2) dismissed the proceeding.

Matter of Hawkins v Berlin, 118 AD3d 496, affirmed.

HEADNOTE

Social Services — Public Assistance — Assignment of Child Support Rights — Distribution of Excess Child Support Payments

The determination of respondent State and City public assistance administrators that petitioner was not entitled to distribution of child support payments collected by the City, pursuant to petitioner's assignment of her right thereto relating to her son (*see* Social Services Law § 158 [5]), after the son was deemed eligible to receive Supplemental Security Income (SSI) and thus ineligible for public assistance was not arbitrary, capricious or erroneous as a matter of law. Under any calculation proposed by petitioner, the City had not yet collected child support arrears accrued before the son was deemed ineligible for public assistance that exceeded the unreimbursed public assistance benefits that petitioner's family received. Though a recipient of public assistance must assign to the State and local social services district his or her right to child support (*see* Social Services Law § 158 [5]), he or she is entitled to any support payments that exceed the total amount of unreimbursed public assistance received (18 NYCRR 347.13 [f] [3]). The assignment terminates with respect to current support rights upon a determination by the social services district that the recipient is no longer eligible for public assistance, at which time the district may collect only those support payments that already accrued but have not yet been paid (*see* Social Services Law § 158 [5]). Here, that the Social Security Administration (SSA) made the son's SSI retroactive did not change the date of the City's determination that he was ineligible for public assistance—the date the statute defines as the operative time for terminating the assignment of current support. SSA also reimbursed the City for public assistance benefits it paid on behalf of the son during the period he was granted SSI retroactively, and respondents properly

credited SSA's reimbursement check towards the total public assistance provided to petitioner's family before the son was deemed ineligible therefor. Even with that credit, there was no excess.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Divorce and Separation §§ 916, 936, 948, 985, 1005, 1026; AM JUR 2d, Welfare Laws §§ 5, 13, 69, 84, 90-91, 93, 97, 104.
CARMODY-WAIT 2d, Courts and Their Jurisdiction § 2:152; CARMODY-WAIT 2d, Spousal Support, Counsel Fees, Child Support, and Property Distribution in Matrimonial Actions §§ 118:138, 118:311; CARMODY-WAIT 2d, Support Proceedings §§ 119:5-119:7, 119:26, 119:68, 119:186.
McKINNEY's, Social Services Law § 158 (5).
18 NYCRR 347.13 (f) (3).
NEW YORK FAMILY COURT PRACTICE 2d, §§ 2:48, 7:10, 7:13-7:14, 7:36, 7:39.
NY JUR 2d, Domestic Relations §§ 840, 964, 1117; NY JUR 2d, Public Welfare and Elder Assistance §§ 70, 78, 83, 133, 135, 139, 185, 244, 353, 384, 390, 392, 407, 450, 452.
NEW YORK MATRIMONIAL LAW AND PRACTICE §§ 7:33, 7:57, 7:62, 8:24, 8:44, 9:4, 9:14.

ANNOTATION REFERENCE

See ALR Index under Assignment; Child Support; Poor Persons.

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POINTS OF COUNSEL

Milbank, Tweed, Hadley & McCloy LLP, New York City (*Andrea Hood* and *Robert Hora* of counsel), and *Seymour W. James, Jr.*, *The Legal Aid Society*, New York City (*Elizabeth Hay* and *Kenneth Stephens* of counsel), for appellant. I. The second level review determination is irrational as it lacks statutory basis. (*Cittadino v Bellacosa*, 136 Misc 2d 999; *Matter of Windsor Place Corp. v State Div. of Hous. & Community Renewal, Off. of Rent Admin.*, 161 AD2d 279; *Kurcsics v Merchants Mut. Ins. Co.*, 49 NY2d 451; *Matter of Ovadia v*

Office of the Indus. Bd. of Appeals, 19 NY3d 138; *Matter of Madison-Oneida Bd. of Coop. Educ. Servs. v Mills*, 4 NY3d 51; *Matter of Rose v Kirk*, 303 AD2d 1047; *Matter of Melendez v Wing*, 8 NY3d 598; *Corrigan v Affleck*, 523 F Supp 498.) II. Appellant is entitled to all child support collections or arrears for the period between September 2005 and January 2007. (*Matter of Delmar v Blum*, 53 NY2d 105.) III. At a minimum, appellant is entitled to any child support arrears that exceed the amount of assistance paid prior to January 2007.

Eric T. Schneiderman, Attorney General, New York City (*Claude S. Platten, Barbara D. Underwood and David Lawrence III* of counsel), for Elizabeth Berlin, respondent. I. Respondents correctly concluded that Crystal Hawkins was not due a payment of excess child support. (*Society of Plastics Indus. v County of Suffolk*, 77 NY2d 761; *Community Bd. 7 of Borough of Manhattan v Schaffer*, 84 NY2d 148; *Herzog Bros. Trucking v State Tax Commn.*, 72 NY2d 720; *Matter of Golf v New York State Dept. of Social Servs.*, 91 NY2d 656; *Matter of Louis Harris & Assoc. v deLeon*, 84 NY2d 698; *Matter of John P. v Whalen*, 54 NY2d 89; *Bowen v Gilliard*, 483 US 587; *Matter of Howard v Wyman*, 28 NY2d 434; *Matter of Kaslow v City of New York*, 23 NY3d 78; *Matter of Melendez v Wing*, 8 NY3d 598.) II. Crystal Hawkins is not entitled to receive child support collected for her son, Michael, while his Supplemental Security Income application was pending. (*Matter of Delmar v Blum*, 53 NY2d 105.)

Zachary W. Carter, Corporation Counsel, New York City (*Scott Shorr, Richard Dearing and Francis F. Caputo* of counsel), for Robert Doar, respondent. Crystal Hawkins lacks any legal entitlement to (1) the amount of current child support payments the New York City Department of Social Services collected for her son, Michael, between September 2005 and January 2007; (2) any child support arrears the Department has collected on behalf of Michael that accrued between September 2005 and January 2007; and (3) any child support arrears the Department has collected on behalf of Michael that exceed the public assistance Crystal Hawkins' family received before January 2007; and her claims for the second and third amounts are nonjusticiable. (*Matter of Rose v Kirk*, 303 AD2d 1047; *Bachety v Kinsella*, 146 AD2d 725; *Matter of Altamore v Barrios-Paoli*, 90 NY2d 378; *Cuomo v Long Is. Light. Co.*, 71 NY2d 349.)

OPINION OF THE COURT

PIGOTT, J.

Under the Social Services Law, a recipient of public assistance must assign to the State and social services district his or her right to child support (*see* Social Services Law § 158 [5]). The recipient is entitled to any support payments that exceed the total amount of public assistance received (18 NYCRR 347.13 [f] [3]). Respondents determined that no such excess existed in this case, and because their determination was not arbitrary, capricious or erroneous as a matter of law, we affirm.

I.

Beginning in December 1989, petitioner Crystal Hawkins received public assistance from respondent New York City Department of Social Services, also known as the New York City Human Resources Administration (the City).¹ In May 1990, she gave birth to a son, Michael, who was added to her public assistance case. As a condition of receiving public assistance, petitioner assigned her right to child support for Michael, which the City then attempted to collect from Michael's father (*see* Social Services Law § 158 [5], [6] [i]).

In January 2007, the Social Security Administration (SSA) determined Michael was eligible to receive Supplemental Security Income (SSI), retroactive to September 2005. Michael's eligibility for SSI, however, made him ineligible for public assistance. The City removed him from petitioner's case in January 2007 and canceled the assignment of support rights going forward, though it continued to collect child support arrears that had accrued prior to January 2007.² SSA ultimately reimbursed the City \$1,232.50 for the public assistance benefits it paid on Michael's behalf while his SSI application was pending.

In June 2011, petitioner requested what is called a first-level desk review³ from the City to determine whether she was owed any excess child support payments. The City determined no payments were owed because it had not collected sufficient

1. As of 2001, petitioner received public assistance benefits under the State's Safety Net Assistance Program (*see* Social Services Law § 157 *et seq.*).

2. The record indicates that petitioner received approximately \$10,000 in child support payments directly from Michael's father after 2007.

3. A first-level desk review is "an accounting of the collections and disbursements made on behalf of a current or former recipient of public as-

(n. cont'd)

child support arrears to exceed the public assistance provided to petitioner's household. After learning of the City's determination, petitioner requested a so-called second-level desk review from respondent New York State Office of Temporary and Disability Assistance (the State). The State confirmed the City's initial determination.

Petitioner then commenced this CPLR article 78 proceeding challenging respondents' determinations as arbitrary, capricious and erroneous as a matter of law. Supreme Court denied the petition and dismissed the proceeding (2012 NY Slip Op 32922[U] [2012]), and a divided Appellate Division affirmed (118 AD3d 496 [1st Dept 2014]). The majority concluded that respondents rationally determined no payment was owed since the total amount of public assistance paid to petitioner and her family exceeded the amount of child support arrears and other reimbursement the City collected when her public assistance case closed in February 2007 (*id.* at 499-500). The dissenting Justices agreed with the majority that petitioner was not entitled to any child support collected on Michael's behalf from September 2005 through January 2007 (*id.* at 502 [Gische, J., dissenting]). They would have modified the City's determination, however, "to the extent of remanding the matter back for a recalculation of benefits paid for the family to exclude those periods of time after 2007 when Michael was not statutorily considered part of petitioner's family" (*id.* at 500).

Petitioner appealed as of right pursuant to CPLR 5601 (a).

II.

As a condition of receiving public assistance, a person must assign to the State and local social services district "any rights to support that accrue during the period that a family receives [benefits]" (Social Services Law § 158 [5]). The assignment "terminate[s] with respect to current support rights upon a determination by the social services district that such person is no longer eligible for" assistance (*id.*). The assignment does not terminate, however, with respect to "any unpaid support obligation that has accrued" (*id.*). Stated differently, when the City determines that a person is no longer eligible for public assistance, the assignment of current and future support rights ends and the City may collect only those support payments

stance . . . who is or was receiving child support enforcement services" (18 NYCRR 347.25 [a] [1]).

that already accrued but have not yet been paid, i.e., arrears. Once support payments are current, they flow directly to the person who is entitled to them. At any time during the assignment, the City may not collect arrears that “exceed the amount of unreimbursed past assistance” it has paid to the family (*see* 18 NYCRR 347.13 [f] [3]).

Petitioner contends that she is entitled to current child support payments the City collected from September 2005 to January 2007 as well as child support arrears the City collected after 2007. Respondents rationally determined that petitioner is entitled to neither of these sums.

With respect to the payments from 2005 to 2007, petitioner argues that the assignment of current support ended when Michael became eligible for SSI and therefore ineligible for public assistance. Because SSA declared Michael eligible for SSI retroactive to 2005, she claims his assignment terminated in 2005 and the City could not collect current support payments that became due after that date. Section 158 (5) of the Social Services Law plainly states, however, that the assignment of current support rights terminates “upon a determination by the social services district” that the recipient is no longer eligible for public assistance (Social Services Law § 158 [5]). The City did not render a determination that Michael was ineligible for public assistance until January 2007, when he received his first SSI check (*see* Social Services Law § 158 [2] [a person becomes ineligible for public assistance when he begins “receiving federal supplemental security income”]). That SSA made Michael’s SSI benefits retroactive to 2005 does not change the date of the City’s determination, which the statute defines as the operative time for terminating the assignment of current support.

Petitioner claims she is entitled to payments the City collected from September 2005 to January 2007 for the additional reason that SSA reimbursed the City for the benefits it paid on behalf of Michael during that time. According to petitioner, any child support payments the City collected from Michael’s father over the same period necessarily exceeded the amount of assistance it provided insofar as the assistance had already been reimbursed by SSA. Petitioner’s claim sounds appealing but ultimately fails. Respondents properly credited SSA’s reimbursement check towards the total public assistance provided to petitioner’s family before 2007, and even with that credit, there was no excess.

With respect to arrears collected after 2007, petitioner claims she is entitled to any payment that exceeded the total amount of public assistance her family received. Remember that, pursuant to the assignment, the City may collect support payments that have already accrued so long as those payments do not “exceed the amount of unreimbursed past assistance” the City has provided to petitioner’s family (18 NYCRR 347.13 [f] [3]). Respondents determined there was no excess. According to their calculations, the City had paid petitioner’s family \$112,588.83 in public assistance from 1989 until 2011 and recovered only \$57,524 in child support. Deducting the \$1,232.50 reimbursement check the City received from SSA, respondents determined the City must collect \$53,832.33 in child support arrears before petitioner will be entitled to an excess.⁴

Petitioner takes issue with respondents’ calculation of “unreimbursed past assistance” because it includes assistance paid to petitioner’s family after 2007 (until 2011), when Michael was statutorily excluded from her public assistance budget (*see* Social Services Law § 131-c [1] [individuals who are recipients of federal supplemental security income benefits are not “included in the household for purposes of determining eligibility and grant amounts”]). According to petitioner, the City’s right to collect child support arrears paid on Michael’s behalf is limited to the amount of unreimbursed past assistance paid to the household that included Michael. Allowing the City to apply support for Michael to public assistance benefits that excluded his needs, she contends, is directly contrary to the Social Services Law.

We need not decide whether respondents’ calculations are correct in order to conclude that their determinations were not arbitrary, capricious or erroneous as a matter of law, because even petitioner’s proposed calculation yielded no excess. From 1989 until 2007, the City paid petitioner’s family \$101,884.41 in benefits and has recouped only \$58,756.50. Thus, under any calculation petitioner proposes, the City has not yet collected child support arrears that exceed the unreimbursed benefits her family received.

Accordingly, the order of the Appellate Division should be affirmed, without costs.

4. Michael’s father owes \$46,172.71 in child support arrears.

RIVERA, J. (concurring and dissenting in part). In this appeal, petitioner Crystal Hawkins presents the Court with a question of statutory construction which the majority has ill-advisedly chosen to avoid. In my opinion, the posture of the case requires that we resolve her claim that respondents have misinterpreted the Social Services Law and, as a result, miscalculated her public assistance and child support arrears. To do otherwise places petitioner at risk of future erroneous determinations, even though her argument has merit and entitles her to relief. I, therefore, dissent from that portion of the majority opinion that disposes of petitioner's claims without resolving whether respondents have correctly interpreted and applied the law to petitioner's case.

As required by Social Services Law § 158 (5), petitioner, as a recipient of subsistence payments under the State's Safety Net Assistance program (SNA), on behalf of herself and Michael, assigned to respondent New York City Human Resources Administration (HRA) Michael's child support payments "that accrue during the period that [the] family receives" public assistance. At the age of 15, Michael was found eligible for federal Supplemental Security Income (SSI), making him statutorily ineligible for ongoing SNA payments under Social Services Law § 158 (2). Thereafter, as a direct result of his status as an SSI recipient, and as mandated by Social Services Law § 131-c (1), respondents excluded Michael from petitioner's household for purposes of calculating future SNA payments to the other members of petitioner's family (Social Services Law § 131-c [1] ["For the purposes of determining eligibility for and the amount of assistance payable . . . (t)he provisions of this subdivision shall not apply to individuals who are recipients of federal supplemental security income benefits"]). Moreover, pursuant to state regulation, petitioner's family was considered a separate household from Michael, even though Michael lived with petitioner. As provided for in 18 NYCRR 352.2 (b), "[f]or the purposes of such monthly grants and allowances to households under . . . Safety Net Assistance non-federally participating . . . children and adults residing with an SSI beneficiary must be considered a separate household from the SSI beneficiary with whom they live."

Petitioner's assignment of Michael's child support terminated by law once he was deemed ineligible for SNA because he was receiving SSI. Social Services Law § 158 (5) states expressly that assignment of a person's support payment "terminate[s] with respect to current support rights upon a determination . . . that such person is no longer eligible for [public] as-

sistance.” However, the assignment remains in effect “with respect to the amount of any unpaid support obligation that has accrued during the period that a family received . . . assistance” (Social Services Law § 158 [5]). In other words, once Michael was removed from petitioner’s household she was entitled to future support payments, but not payments for arrears that accrued during the period before Michael’s exclusion (*see* Social Services Law §§ 158 [5]; 131-c [1]).

As is her right, petitioner requested an accurate “accounting of the collections and disbursements made on [her] behalf” as a “former recipient of public assistance . . . who is or was receiving child support enforcement services” (18 NYCRR 347.25 [a] [1]). I agree with the majority that petitioner is not entitled to child support arrears HRA collected from January 2005 through September 2007. The applicable statutory and regulatory provisions establish that there is no legal impediment to HRA’s collection of child support payments assigned by petitioner under Social Services Law § 158 (5), so long as the amount collected does not exceed the remaining amount of unreimbursed public assistance (Social Services Law § 158 [5]; 18 NYCRR 347.13 [f] [3]). Here, the child support collected through January 2007 was credited against public assistance paid to petitioner’s family, and since, even under the calculation methodology advocated by petitioner, HRA has not received support payments in excess of public assistance payments actually provided to petitioner up to 2007, she has no claim to these support arrears.

However, her claim for a proper determination of the child support arrears has merit. As explained in the determination of New York State’s Division of Child Support Enforcement of the Office of Temporary and Disability Assistance (ODTA), for accounting purposes, excess support payments consist of the amount of child support recovered that is greater than the amount of total cash assistance (minus any other reimbursements) paid to petitioner for the entire period she was on public assistance. Thus, ODTA calculated petitioner’s benefits from 1989 to 2011, subtracted from that amount the child support actually recovered and the SSI reimbursement for Michael’s interim payment, and concluded that as of August 1, 2011, \$53,832.33 in public assistance remained unreimbursed. Petitioner contends that it was error to include in these calculations any payments for periods from 2007 forward, when Michael was not part of petitioner’s household or budget for public assistance purposes. She is correct.

Social Services Law § 158 (5) expressly terminated petitioner's assignment of Michael's support payments to HRA because he was no longer eligible for SNA payments. However, HRA retained rights under the assignment for any arrears for the period during which the family received SNA. The critical question, then, is whether Michael, as the person ineligible for SNA, is part of the public assistance "family" only during those periods when HRA actually provided Michael with SNA payments, or, is Michael also part of the "family" by the mere fact that he resides in petitioner's household, regardless of whether HRA provides for his needs through the SNA program.

Petitioner argues that "family" in Social Services Law § 158 (5) does not include Michael because Social Services Law § 131-c (1) removed him from the household for public assistance purposes, and the State's own regulations distinguish between an SSI recipient and the "family with which the individual resides" (18 NYCRR 353.2 [a] [6]). Respondents contend that Social Services Law § 158 (5) refers only to when the assignment of support begins and ends, not how to calculate how much public assistance has been paid to petitioner's family for the purpose of determining if the support payments exceeded the public assistance payments. They further argue that Social Services Law § 131-c (1) does not require that Michael be treated as separate from petitioner's household for all purposes, and should be limited in application to determinations of public assistance eligibility and budget amounts.

Respondents' construction of the statute cannot be squared with the State's statutory and regulatory framework, which treats Michael as a separate household for public assistance purposes (*see* Social Services Law § 131-c [1]; 18 NYCRR 353.2 [a] [6]). That separate treatment is a direct consequence of his ineligibility for ongoing SNA payments, meaning HRA did not provide for his needs through the SNA program. Also, to the extent HRA continued to provide for petitioner, by legal mandate it had to treat Michael as if he was no longer present in her household. As this Court stated in *Matter of Melendez v Wing* (8 NY3d 598, 604-605 [2007]), Social Services Law § 131-c (1) mandates exclusion of SSI recipients from the public assistance household wherein they reside. Thus, during the time Michael received SSI payments and resided with petitioner, he was not part of petitioner's public assistance "family." In other words, once he was excluded from petitioner's household, he was not part of a family receiving SNA and child support within

the meaning of Social Services Law § 158 (5). This may be a legal fiction, as respondents argue, but it is a legal fiction that grounds Michael's legal status, and it is this status that matters for purposes of construing the Social Services Law.

Furthermore, as the dissent below correctly noted, references to "family" and "families" in Social Services Law § 131 and part 347 of the state regulations are only meaningful if interpreted to include the person for whom child support payments are collected. Certainly, there would be no purpose to collect and credit child support against the public assistance provided to the family if the person receiving child support were not included in the family's grant determination and budget.

Respondents also contend that including Michael within the family for purposes of Social Services Law § 158 (5), regardless of his exclusion from the household for SNA-eligibility and grant allocation purposes, is consistent with federal public assistance legislation requiring assignment of child support by a member of a family receiving public assistance (42 USC § 608 [a] [3]).* However, the federal statutory language cited by respondents does not define "family," nor does it explicitly include as a member of the public assistance household any person found ineligible for assistance, but who is entitled to child support payments. Thus, the federal statute provides no additional interpretive guidance or support for respondents' construction of Social Services Law § 158 (5).

Aside from the statutory argument promoted by respondents, they assert two policy arguments in support of their determination that the excess child support calculation may include all public assistance provided to petitioner. First, they contend that their construction of Social Services Law § 158 (5) aligns

* 42 USC § 608 (a) (3) states,

"(3) No assistance for families not assigning certain support rights to the State

"A State to which a grant is made under section 603 of this title shall require, as a condition of paying assistance to a family under the State program funded under this part, that a member of the family assign to the State any right the family member may have (on behalf of the family member or of any other person for whom the family member has applied for or is receiving such assistance) to support from any other person, not exceeding the total amount of assistance so paid to the family, which accrues during the period that the family receives assistance under the program."

with the federal policy reflected in 42 USC § 608, that child support for one person should be used to offset public assistance to the entire family, on the assumption that families generally share their resources among all members. This Court previously explained this “filing-unit rule” “put[s] parents and minor siblings who lived together into a single group whose combined income, resources and needs were pooled for purposes of determining [public assistance] eligibility and benefit level” (*Matter of Melendez*, 8 NY3d at 604, citing former 42 USC § 602 [a] [38], as added by Deficit Reduction Act of 1984, Pub L 98-369, § 2640 [a] [3], 98 US Stat 494). Respondents’ second policy-based argument is that the application of their methodology for calculating excess child support maximizes distribution of limited governmental resources to needy families by adding funds to public assistance programs.

These arguments are unpersuasive. In *Matter of Melendez*, this Court held that our State Legislature specifically intended that Social Services Law § 131-c (1) exclude SSI recipients from application of the “filing-unit rule” (*Matter of Melendez*, 8 NY3d at 605). For the reasons I have already discussed, Social Services Law § 131-c (1) does not permit inclusion of an SSI recipient as part of a public assistance household for the sole purpose of offsetting that recipient’s child support payments against public assistance payments received by those with whom the child resides.

Furthermore, these policy arguments ignore the obvious inconsistency of respondents’ position. If the legislative intent of Social Services Law § 131-c (1) is to increase a family’s total resources by ignoring Michael’s SSI payments when determining a family’s public assistance eligibility and budget allocation, it would appear to undermine this laudable goal to permit HRA to withhold from petitioner and Michael any excess child support arrears—an obvious source of potential monetary assistance. Such result is particularly difficult to reconcile with the overall statutory purpose of SNA and other public assistance programs which provide a safety net for those members of our communities, like petitioner and Michael, who face dire financial circumstances (Social Services Law § 131 [1]).

The unfortunate truth is that Michael’s father may never pay the entirety of child support he owes, much less the pre-2007 arrears that cover the SNA payments actually provided for Michael. Nevertheless, under the law petitioner is currently

entitled to a correct accounting of her public assistance and child support. For that reason, I would remit for an appropriate recalculation, meaning one that permits respondents to offset the support payments HRA collected against the amount of public assistance provided to petitioner during the periods when HRA provided for Michael's needs through the SNA program.

Chief Judge LIPPMAN and Judges ABDUS-SALAAM and STEIN concur; Judge RIVERA dissents in part in an opinion in which Judge FAHEY concurs.

Order affirmed, without costs.

[44 NE3d 924, 23 NYS3d 626]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LUIS
ORTIZ, Appellant.

Argued November 18, 2015; decided December 16, 2015

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered February 4, 2014. The Appellate Division modified, on the law, a judgment of the Supreme Court, Bronx County (Troy K. Weber, J.), which had convicted defendant, upon a jury verdict, of burglary in the second degree, and sentenced defendant, as a persistent felony offender, to a term of 23 years to life. The modification consisted of vacating the sentence and remanding for resentencing. The Appellate Division affirmed the judgment as modified.

People v Ortiz, 114 AD3d 430, reversed.

HEADNOTES

Crimes — Collateral Estoppel — Evidence of Defendant's Use of Razor Blade — Prior Acquittal on First-Degree Robbery Charges

1. At defendant's second trial, in which he was tried only for second-degree burglary after having been acquitted of first-degree burglary charges involving the use or threatened use of a dangerous instrument at his first trial, the doctrine of collateral estoppel did not apply to bar the People from introducing evidence that defendant threatened one of the burglary victims with a razor blade. The doctrine of collateral estoppel applies in criminal prosecutions to bar relitigation of issues resolved in a defendant's favor at an earlier trial. However, the rigid application of collateral estoppel sometimes gives way to society's interest in ensuring the correctness of criminal prosecutions. If it becomes apparent that collateral estoppel cannot practicably be followed if a necessary witness is to give truthful testimony, then the doctrine should not be applied. Here, the practical difficulties of applying collateral estoppel outweighed the otherwise sound reasons for preventing repetitive litigation. The victims would have had to materially alter their testimony and mislead the jury in order to omit reference to the razor blade. If not permitted to mention the razor blade, the victims would have had to state that defendant pushed them into their apartment and threatened to hurt one of the victims simply by grabbing her from behind, without a weapon. That victim would not have been able to explain how defendant threatened her or what he threatened to do. That the victim did not tell the 911 operator about the razor blade did not mean she could omit it from her testimony as the 911 call was a hurried and frightened description of the emergency and, at the time of the call, defendant was not wielding a weapon because he had apparently been restrained by the other victim and his nephew.

Crimes — Right to Counsel — Advocate-Witness Rule

2. In the prosecution of defendant for second-degree burglary, the trial court erred when it permitted the People to introduce at trial a statement

made by defense counsel at arraignment that conflicted with defendant's trial testimony, but then denied counsel's request to withdraw. Pursuant to the advocate-witness rule, a lawyer must withdraw from representation when it becomes apparent that he or she must testify on behalf of her own client. Defendant testified that the alleged burglary victims had actually come after him with a kitchen knife. However, at arraignment, counsel had stated that the complainants had gone after defendant with a razor blade. After reviewing her notes from the arraignment, counsel realized that she had misspoken at the arraignment and that defendant had told her that the complainants had come after him with a knife rather than a razor blade. The trial court denied counsel's request to withdraw or for a mistrial, but agreed to allow counsel to introduce a stipulation as to what she would say if asked about the statement and read the stipulation aloud to the jury. However, the stipulation violated the advocate-witness rule and deprived defendant of his right to conflict-free counsel. The prosecutor sought to use the statement to attack defendant's credibility, and in doing so, caused defendant's advocate to become his adversary. Moreover, the only way for defense counsel to rehabilitate her client's credibility was to impugn her own, moments before she would argue for her client's innocence in summation. Thus, the trial court should have granted counsel's request to withdraw or declared a mistrial.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Attorneys at Law § 71; AM JUR 2d, Judgments §§ 487, 489, 499, 651, 652.

CARMODY-WAIT 2d, Officers of Court §§ 3:362, 3:363;
CARMODY-WAIT 2d, Judgments §§ 63:549, 63:555;
CARMODY-WAIT 2d, Exemption from Prosecution by
Reason of Previous Prosecution §§ 185:115, 185:121,
185:122.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) § 25.3.

NY JUR 2d, Attorneys at Law § 93; NY JUR 2d, Criminal
Law: Procedure §§ 749, 758, 1994, 1996–2002.

ANNOTATION REFERENCE

See ALR Index under Attorneys; Collateral Estoppel;
Criminal Procedure Rules.

FIND SIMILAR CASES ON WESTLAW®

Database: NY-ORCS

Query: collateral /2 estoppel /p bar! /s evidence /s acquit!

POINTS OF COUNSEL

Richard M. Greenberg, Office of the Appellate Defender, New York City (Anant Kumar and Joseph M. Nursery of counsel), and Jones Day, New York City (Jordan Cerruti of counsel), for

appellant. I. The doctrine of collateral estoppel barred the introduction of evidence of the use or threatened use of a “dangerous instrument.” (*People v O’Toole*, 22 NY3d 335; *People v Goodman*, 69 NY2d 32; *People v Acevedo*, 69 NY2d 478.) II. The mistaken statement made by defense counsel at arraignment should not have been submitted into evidence: defense counsel informed the court the statement was incorrect; its submission forced defense counsel to become a fact witness in violation of the advocate-witness rule; and the prosecutor materially misrepresented defense counsel’s testimony to the jury. (*People v Kallamni*, 14 AD3d 316; *People v Cassas*, 84 NY2d 718; *People v Berroa*, 99 NY2d 134; *Ellis v County of Broome*, 103 AD2d 861; *S & S Hotel Ventures Ltd. Partnership v 777 S. H. Corp.*, 69 NY2d 437; *People v Townsley*, 20 NY3d 294; *People v Hernandez*, 62 AD3d 401; *Williams v Brooklyn El. R.R. Co.*, 126 NY 96; *People v Ashwal*, 39 NY2d 105; *People v Calabria*, 94 NY2d 519.)

Robert T. Johnson, District Attorney, Bronx (Catherine M. Reno, Joseph N. Ferdenzi and Stanley P. Kaplan of counsel), for respondent. I. The trial court and the Appellate Division correctly determined that the doctrine of collateral estoppel did not require preclusion of testimony regarding the razor blade because defendant did not show that the jury at his first trial necessarily decided this factual issue in his favor and, in any event, the testimony as to the razor blade was essential to the complainants’ narrative and establishing an element of the crime on trial. (*People v Acevedo*, 69 NY2d 478; *People v Lewis*, 69 NY2d 321; *Ando v Woodberry*, 8 NY2d 165; *People v Aguilera*, 82 NY2d 23; *People v Berkowitz*, 50 NY2d 333; *People v Plevy*, 52 NY2d 58; *People v Goodman*, 69 NY2d 32; *Ashe v Swenson*, 397 US 436; *People v O’Toole*, 22 NY3d 335; *People v Brown*, 48 NY2d 388.) II. Defendant failed to preserve his challenges to the prosecutor’s summation. In any event, the trial court properly admitted the arraignment statement made by defense counsel as impeachment evidence, and the prosecutor did not improperly comment on the evidence at trial. (*People v Iannelli*, 69 NY2d 684; *People v Brown*, 98 NY2d 226; *People v Rivera*, 58 AD2d 147, 45 NY2d 989; *People v Boyd*, 58 NY2d 995; *People v McPherson*, 56 NY2d 696; *People v Cassas*, 84 NY2d 718; *People v Walker*, 83 NY2d 455; *People v Betts*, 70 NY2d 289; *People v Tice*, 131 NY 651; *People v Johnston*, 228 NY 332.)

OPINION OF THE COURT

PIGOTT, J.

This case presents two issues for our review. The first is whether the doctrine of collateral estoppel bars the People from introducing, at defendant's second trial, evidence that defendant threatened the victim of a burglary with a razor blade when the jury had acquitted defendant of charges involving the use or threatened use of a dangerous instrument at the first trial. The second issue is whether the trial court erred when it permitted the People to introduce a statement made by defense counsel at arraignment that was damaging to her client but then denied counsel's request to withdraw. We hold that collateral estoppel does not apply in this case but that the advocate-witness rule required the court to grant counsel's motion to withdraw or to declare a mistrial.

I

Defendant Luis Ortiz was charged with burglary in the first degree (Penal Law § 140.30 [3]), burglary in the second degree (Penal Law § 140.25) and related offenses in connection with an incident that occurred on July 20, 2006 in the Bronx. According to the People, Colpo Manuel Valenzuela was entering his apartment with his girlfriend, Para Nunez, around 1:00 in the afternoon when defendant approached them from behind. Defendant grabbed Nunez and, while holding a razor blade to her neck, pushed Valenzuela and Nunez through the door. He threatened to cut Nunez's throat if Valenzuela did not give him money or jewelry. Valenzuela struck defendant in the head, causing defendant to drop the razor blade and allowing Nunez to break free. While Valenzuela and defendant struggled, Nunez ran to get Valenzuela's nephew, Jose Henrique Colon, who had been sleeping in one of the bedrooms in the apartment. Together, Colon and Valenzuela restrained defendant on a bed and Nunez called 911. She told the operator that someone had broken in and that Valenzuela had cornered the intruder with a kitchen knife.

Valenzuela, Colon and Nunez all testified to that effect at trial. Defendant, however, told a different story. He testified that he and a female friend went to the apartment building looking for a room to rent and stopped at Valenzuela's apartment to ask for the superintendent. Valenzuela made inappropriate comments to defendant's friend and the two men engaged in a verbal altercation that escalated into a full-fledged

fight. At some point during the struggle, according to defendant, Valenzuela pulled defendant into the apartment. He testified that he was unarmed but that Valenzuela grabbed a kitchen knife and lunged at defendant, eventually restraining him on the bed.

The jury rejected defendant's rendition of events and found him guilty of burglary in the second degree. It acquitted him, however, of burglary in the first degree and robbery in the first degree. The Appellate Division reversed the conviction for reasons not relevant to this appeal (69 AD3d 490 [1st Dept 2010]), and defendant proceeded to a second trial on the sole charge of burglary in the second degree.

Before the second trial began, defense counsel moved to preclude the prosecution from presenting evidence of the razor blade at trial. Counsel argued that the jury in the first trial necessarily decided that defendant did not use a razor blade by acquitting him of first-degree burglary, which requires the People to prove that defendant used or threatened the use of a dangerous instrument (*see* Penal Law § 140.30). The trial court denied the motion and allowed the People's witnesses to testify about the use of the razor blade when giving their accounts.

Defendant testified on his own behalf, as he did at the first trial. On cross-examination, the People attempted to impeach defendant's testimony that Valenzuela came after him with a kitchen knife with the following statement made by his counsel at arraignment:

"Your Honor, my understanding of the events for [defendant] is vastly different [from the prosecution's]. I believe [defendant] was at this apartment looking to possibly rent a room there. An argument began between him and the landlord, and at which point the complaining witness came after him with a *razor blade*, which explains why it was recovered, and that it belongs to the people who lived there" (emphasis added).

The People sought to introduce this statement to show that defendant previously told his attorney that Valenzuela came after him with a razor blade, not a kitchen knife, as he testified. Defense counsel vigorously objected, arguing that she misspoke at arraignment and that introducing the statement would force her to become a witness. The court overruled defendant's objection and allowed the prosecutor to impeach defendant with counsel's prior statement.

After defense counsel had an opportunity to review her notes from the arraignment, she discovered that she had indeed mis-spoken. As it turned out, defendant had told her Valenzuela came after him with a knife, not a razor blade, consistent with his testimony during trial. The court reviewed her notes and confirmed that her statement at arraignment did not reflect what defendant had told her. In light of this revelation, defense counsel asked to withdraw as counsel and moved for a mistrial. She argued that her client's right to confront her about the statement would require her to take the stand and tell the jury that she misstated material facts moments before advocating for her client's innocence in summation.

The court denied counsel's requests but offered to have another attorney question her about the statement or to introduce a stipulation as to what counsel would say if asked about the statement. After renewing her objection and being overruled a second time, defense counsel agreed to the stipulation, which the court read aloud to the jury. It provided that if counsel were to testify, she would state that her remarks at arraignment were incorrect and that defendant did not tell her Valenzuela had come after him with a razor blade, but rather, defendant told her Valenzuela came after him with a kitchen knife. Following deliberations, the jury convicted defendant of burglary in the second degree.

Defendant moved to set aside the conviction pursuant to CPL 330.30 (1) on the grounds that the trial court erred in not precluding testimony about the razor blade and in denying defense counsel's motion to withdraw. Supreme Court denied the motion and sentenced defendant as a persistent felony offender to 23 years to life in prison.

The Appellate Division modified the judgment by vacating the sentence and remanding the case for resentencing, and as so modified, affirmed (114 AD3d 430 [1st Dept 2014]). A Judge of this Court granted defendant leave to appeal (24 NY3d 1087 [2014]), and we now reverse.

II

The doctrine of collateral estoppel originated in civil litigation as a means of ensuring the swift and peaceful resolution of disputes (*see People v Goodman*, 69 NY2d 32, 37 [1986]). It applies in criminal prosecutions to bar relitigation of issues resolved in a defendant's favor at an earlier trial (*see People v Acevedo*, 69 NY2d 478, 484 [1987]). We considered the doctrine

most recently in *People v O'Toole* (22 NY3d 335 [2013]) where we held that defendant's acquittal of first-degree robbery based on the alleged display of a firearm barred the People from introducing, at a later trial for second-degree robbery, evidence that a firearm was displayed (*id.* at 336).

The defendant in that case took a gold chain from a man named Horsey who managed a barber shop. He was charged with, among other things, robbery in the first degree based on the display of a firearm and robbery in the second degree for being aided by another person actually present (*id.* at 337). At defendant's first trial, Horsey testified that he owed the defendant money and that the defendant threatened to close his barber shop if Horsey didn't pay. About an hour after defendant made the threat, a large man walked into the shop, pointed a gun at Horsey and handed him a telephone with defendant's voice on the other end (*id.*). Horsey's young child was sitting nearby (*id.* at 342 [Pigott, J., dissenting]). Horsey followed the man out of the store, where the defendant was waiting for him, and gave the defendant a valuable gold chain (*id.* at 337). The jury acquitted the defendant of the first-degree charge but convicted him of second-degree robbery. We concluded that the jury could not have logically acquitted the defendant of first-degree robbery unless it necessarily decided that the People failed to prove beyond a reasonable doubt that the robbery involved the display of a firearm (*id.* at 338).

We also observed, however, that the rigid application of collateral estoppel sometimes gives way to society's interest in ensuring the correctness of criminal prosecutions (*see id.* at 339; *see also People v Berkowitz*, 50 NY2d 333, 345 [1980]). Thus, we said that if it becomes apparent, in a future case, that collateral estoppel "cannot practicably be followed if a necessary witness is to give truthful testimony, then [the doctrine] should not be applied" (*O'Toole*, 22 NY3d at 339). Collateral estoppel did not pose practical difficulties in *O'Toole* because the facts could be told in such a way, on retrial, that they did not call for testimony about the firearm: the second-degree robbery charge required the People to prove only that defendant forcibly stole property aided by another person actually present. Without mentioning the firearm, Horsey could have testified that a large man came into his shop, near Horsey's young child, handed him a phone with defendant on the other end and led Horsey outside to meet defendant, who ultimately stole Horsey's gold chain. That version of events

would not have required the complaining witness to materially alter his testimony or provide the jury with a misleading or untruthful account.

By contrast, the practical difficulties of applying collateral estoppel in this case “outweigh the otherwise sound reasons for preventing repetitive litigation” (*Berkowitz*, 50 NY2d at 344). Unlike the witness in *O’Toole*, Nunez and Valenzuela would have had to materially alter their testimony and mislead the jury in order to omit reference of the razor blade. They both testified that defendant threatened to cut Nunez’s throat if Valenzuela did not give him money or jewelry and that defendant made a slitting gesture with his hand when he uttered the threat. If not permitted to mention the razor blade, the complainants would have been required to eliminate this portion of their testimony or else state, misleadingly, that defendant pushed Nunez and Valenzuela into the apartment and threatened to hurt Nunez simply by grabbing her from behind, without a weapon. Nunez would not have been able to explain, however, how defendant threatened her or what he threatened to do. Nunez also would have been prevented from explaining why she put up no resistance to a man she had never seen before.

Contrary to defendant’s assertion, the fact that Nunez did not tell the 911 operator about the razor blade does not mean she could omit it from her testimony in court. The 911 call reflects Nunez’s hurried and frightened description of the emergency, not its inception, and it is likely that Nunez neglected to tell the operator every detail that would ultimately become part of her trial testimony. Moreover, at the time of the call, defendant was not wielding a weapon because Valenzuela and Colon had apparently restrained him on a bed.

[1] The material changes that these key witnesses would have had to make to their testimony in order to recount the incident without reference to the razor blade present the kind of “unreasonable difficulty” that, as we warned in *O’Toole*, jeopardizes the jury’s truth-seeking function and outweighs the need for collateral estoppel. Therefore, even if the jury necessarily decided that defendant did not use or threaten to use the razor blade, the Appellate Division correctly determined that the doctrine does not apply.

III

The second issue in this appeal concerns the advocate-witness rule. Pursuant to that rule, a lawyer must withdraw

from representation when it becomes apparent that she must testify on behalf of her own client (former Code of Professional Responsibility DR 5-102 [a] [22 NYCRR 1200.21 (a)]; Rules of Professional Conduct [22 NYCRR 1200.0] rule 3.7 [a] [current, similar provision]; see also *People v Berroa*, 99 NY2d 134, 140 [2002] [an attorney “should not continue to serve as an advocate when it is obvious that the lawyer will be called as a witness on behalf of the client”]). The rule seeks to avoid “the unseemly circumstance of placing an attorney in a position in which he must argue the credibility of his own testimony” (*Ellis v County of Broome*, 103 AD2d 861, 862 [3d Dept 1984]), which may “confuse the factfinder and impair the fairness of the trial” (*People v Townsley*, 20 NY3d 294, 299 [2012]).

In *Berroa*, we held that a stipulation by defense counsel violated the advocate-witness rule and deprived defendant of his right to conflict-free counsel where the stipulation transformed the defendant’s advocate into an adverse witness and pitted counsel’s credibility against other witnesses (99 NY2d at 138). Defendant’s trial counsel in *Berroa* was the only person who could impeach two key defense witnesses whose testimony deviated in substantial part from information they had provided to counsel before trial. Although the parties agreed to a stipulation in lieu of having counsel testify, we held that the stipulation exacerbated counsel’s conflict by “eviscerating the credibility of her client’s witnesses and his defense” (*id.* at 139).

Defendant’s counsel was placed in a similarly untenable position in this case when the People introduced counsel’s statement from arraignment. Anyone familiar with arraignment practices in New York City criminal courts understands the hurried nature of those proceedings and the likelihood, as occurred here, that defense counsel may appear on behalf of 30 defendants in one night. It is no surprise then that she mistakenly stated that defendant told her Valenzuela came after him with a razor blade instead of a knife. The prosecutor sought to use this statement to attack defendant’s credibility, and in doing so, caused defendant’s advocate to become his adversary. Indeed, defendant’s credibility was attacked by the one person in the courtroom whose job was to advocate for it.

[2] The situation went from bad to worse when it became clear that the only way for defense counsel to rehabilitate her client’s credibility was to impugn her own, moments before she would argue for her client’s innocence in summation. Any way

you look at it, defense counsel had no choice but to withdraw. In these unusual circumstances, we hold that the trial court should have granted counsel's request to withdraw or declared a mistrial.

The People's reliance on *People v Brown* (98 NY2d 226 [2002]) and *People v Rivera* (58 AD2d 147 [1st Dept 1977], *aff'd* 45 NY2d 989 [1978]) is misplaced. The statements admitted in those cases were made by defendants' *former* attorneys and therefore did not involve the issue of whether a defendant's current counsel must withdraw when her statements are inconsistent with the defendants' testimony at trial. Unlike defense counsel in this case, the defendants' trial attorneys in *Brown* and *Rivera* were not set up to attack their clients' credibility or, by stipulation, their own.

Accordingly, the order of the Appellate Division should be reversed and a new trial ordered.

Chief Judge LIPPMAN and Judges RIVERA, STEIN and FAHEY concur; Judge ABDUS-SALAAM taking no part.

Order reversed and a new trial ordered.

[44 NE3d 915, 23 NYS3d 617]

In the Matter of RICARDO SUAREZ et al., Appellants, v MELISSA WILLIAMS et al., Respondents.

Argued November 17, 2015; decided December 16, 2015

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered March 20, 2015. The Appellate Division (1) reversed, on the law, an order of the Family Court of Onondaga County (Michele Pirro Bailey, J.; op 50 Misc 3d 990 [2013]), which had, among other things, granted a petition to modify a prior custody order, entered on consent to grant respondents joint legal custody of the child, by awarding petitioners and respondent Ernesto Suarez joint legal custody of the child, with primary physical custody to petitioners subject to visitation by respondents; and (2) dismissed the petition.

Matter of Suarez v Williams, 128 AD3d 20, reversed.

HEADNOTES

Parent, Child and Family — Custody — Grandparents' Standing Based on Extended Disruption of Custody — Parent-Child Contact during Child's Residence with Grandparents

1. Grandparents may demonstrate standing to seek custody based on extraordinary circumstances where the child has lived with the grandparents for a prolonged period of time, even if the child had contact with, and spent time with, a parent while the child lived with the grandparents. Domestic Relations Law § 72 (2) does not create new rights for grandparents, but clarifies a method by which grandparents may exercise those rights, and defines an alternative type of extraordinary circumstance applicable only to grandparents—specifically, an extended disruption of custody—in view of their special status. There is no explicit statutory reference to contact or the lack thereof between the parent and child. Rather, the quality and quantity of contact are factors to be considered in the context of the totality of the circumstances when determining whether the parent voluntarily relinquished care and control of the child, and whether the child actually resided with the grandparents for the required “prolonged” period of time. To give meaning to the separate statutory avenue of establishing standing, Domestic Relations Law § 72 (2) must be available for a grandparent even if the parent has had some contact with the child during the requisite 24-month period. To hold otherwise would not only conflict with the legislature’s intent, but would also deter grandparents from promoting a relationship between the parent and the child while the child resides with them, contrary to this state’s public policy of encouraging and strengthening parent-child relationships.

**Parent, Child and Family — Custody — Grandparents' Standing
Based on Extraordinary Circumstances — Extended Disruption
of Mother's Custody**

2. Petitioner grandparents established their standing to seek custody of respondent mother's child, who began living with petitioners within days of his birth and for nearly 10 years thereafter, by demonstrating the extraordinary circumstance of an extended disruption of respondent's custody. Domestic Relations Law § 72 (2) sets forth three "elements" required to demonstrate the extraordinary circumstance of an "extended disruption of custody": a 24-month separation of the parent and child, which is identified as "prolonged"; the parent's voluntary relinquishment of care and control of the child during such period; and the residence of the child in the grandparents' household. In signing three documents, each giving petitioners permission to make decisions regarding the child, respondent freely signed over virtually all decision-making rights indefinitely—she did not limit the permission to times when she was unavailable—demonstrating her intent that petitioners permanently assume the parental responsibility of caring for the child. Respondent could have expressly revoked or limited her written permission, but she never did so. The evidence therefore supported Family Court's finding that respondent voluntarily relinquished care and control of the child for more than 24 months, even though she had regular contact and visitation with him. Respondent allowed petitioners to assume control over, and responsibility for the care of, the child while he resided with them for a prolonged period of years, during which she assumed the role of a noncustodial parent in virtually every way. As respondent effectively transferred custody of the child to petitioners for a prolonged period of time, the circumstances rose to the level of extraordinary.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Divorce and Separation §§ 213–214, 849, 861, 891, 895, 903, 908; AM JUR 2d, Guardian and Ward § 40; AM JUR 2d, Parent and Child §§ 13, 30, 32–38.

CARMODY-WAIT 2d, Child Custody and Visitation in Matrimonial Actions §§ 118A:6, 118A:44, 118A:102, 118A:110–118A:111; CARMODY-WAIT 2d, Proceedings Involving Abused or Neglected Children, Destitute Children, Juvenile Delinquents, and Persons in Need of Supervision §§ 119A:57, 119A:70; CARMODY-WAIT 2d, Habeas Corpus §§ 139:150–139:153, 139:162.

McKINNEY'S, Domestic Relations Law § 72 (2).

NEW YORK FAMILY COURT PRACTICE 2d, §§ 2:48, 5:4, 9:1–9:2, 9:4, 9:11, 9:15, 9:37.

NY JUR 2d, Domestic Relations §§ 365–367, 370, 377, 396–397, 399, 472, 728, 854.

NEW YORK MATRIMONIAL LAW AND PRACTICE §§ 21:2, 21:13–21:14.

ANNOTATION REFERENCE

Continuity of residence as factor in contest between par-

ent and nonparent for custody of child who has been residing with nonparent—modern status. 15 ALR5th 692.

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POINTS OF COUNSEL

Linda M. Campbell, Syracuse, for Ricardo Suarez and Laura Suarez, appellants. I. In custody cases between parent(s) and grandparent(s) when the child has resided with and been in the care and control of the grandparent(s) for 24 months or longer, section 72 (2) of the Domestic Relations Law provides a definition of “extraordinary circumstances” to enable grandparent(s) to establish standing. (*Matter of Bennett v Jeffreys*, 40 NY2d 543; *Matter of McGee v Korman*, 70 NY2d 225; *Matter of E.S. v P.D.*, 8 NY3d 150; *Matter of Troiano v Marotta*, 127 AD3d 877; *Matter of Richardson v Ludwig*, 126 AD3d 1546; *Matter of Diane T. v Lydia Tamelka T.*, 121 AD3d 463; *Commonwealth of the N. Mariana Is. v Canadian Imperial Bank of Commerce*, 21 NY3d 55; *Matter of Manouel v Board of Assessors*, 25 NY3d 46; *Matter of Wilson v McGlinchey*, 2 NY3d 375; *Matter of Fishburne v Teelucksingh*, 34 AD3d 804.) II. Once “an extended disruption of custody” is demonstrated, which satisfies the extraordinary circumstances standing requirement, no additional proof is required for Family Court to then consider the child’s best interests. (*Matter of Colon v Delgado*, 106 AD3d 414; *Matter of Ruiz v Travis*, 84 AD3d 1242; *Matter of DiBenedetto v DiBenedetto*, 108 AD3d 531; *Matter of Carton v Grimm*, 51 AD3d 1111; *Matter of Magana v Santos*, 70 AD3d 1208; *Matter of Curless v McLarney*, 125 AD3d 1193; *Matter of Battisti v Battisti*, 121 AD3d 1196; *Matter of Aida B. v Alfredo C.*, 114 AD3d 1046; *Matter of Bevins v Witherbee*, 20 AD3d 718; *Matter of Tucker v Martin*, 75 AD3d 1087.) III. Psychological trauma to the child resulting from a change in custody is a factor to be considered not in an “extraordinary circumstances” determination but rather in determining the best interest of the child. (*Matter of Bennett v Jeffreys*, 40 NY2d 543; *Debra H. v Janice R.*, 14 NY3d 576.)

Patrick J. Haber, Syracuse, Attorney for the Child. I. In custody cases between parent(s) and grandparent(s) when the child has resided with and been in the care and control of the grandparent(s) for 24 months or longer, section 72 (2) of the

Domestic Relations Law provides a definition of “extraordinary circumstances” to enable grandparent(s) to establish standing. (*Matter of Bennett v Jeffreys*, 40 NY2d 543; *Matter of McGee v Korman*, 70 NY2d 225; *Matter of E.S. v P.D.*, 8 NY3d 150; *Matter of Troiano v Marotta*, 127 AD3d 877; *Matter of Richardson v Ludwig*, 126 AD3d 1546; *Matter of Diane T. v Lydia Tamelka T.*, 121 AD3d 463; *Gawron v Town of Cheektowaga*, 117 AD3d 1410; *Matter of Fishburne v Teelucksingh*, 34 AD3d 804; *Matter of Bailey v Carr*, 125 AD3d 853; *Matter of Carton v Grimm*, 51 AD3d 1111.) II. Once “an extended disruption of custody” is demonstrated, the extraordinary circumstances standing requirement is satisfied; thus, no additional proof is required to consider the child’s best interests. (*Matter of Colon v Delgado*, 106 AD3d 414; *Matter of Ruiz v Travis*, 84 AD3d 1242; *Matter of DiBenedetto v DiBenedetto*, 108 AD3d 531; *Matter of Carton v Grimm*, 51 AD3d 1111; *Matter of Magana v Santos*, 70 AD3d 1208; *Matter of Curless v McLarney*, 125 AD3d 1193; *Matter of Battisti v Battisti*, 121 AD3d 1196; *Matter of Aida B. v Alfredo C.*, 114 AD3d 1046; *Matter of Bevins v Witherbee*, 20 AD3d 718; *Matter of Tucker v Martin*, 75 AD3d 1087.) III. Psychological trauma to the child resulting from a change in custody is a factor to be considered not in an “extraordinary circumstances” determination but rather in determining the best interest of the child. (*Matter of Bennett v Jeffreys*, 40 NY2d 543.)

Melvin & Melvin, PLLC, Syracuse (*Christopher M. Judge* and *Elizabeth A. Genung* of counsel), for Melissa Williams, respondent. I. The Appellate Division’s decision does not render section 72 of the Domestic Relations Law unconstitutional, nor does it diminish section 72 (2) to “mere guidance”; rather, it properly interpreted an “extended disruption of custody” in accordance with *Bennett v Jeffreys*. (*Matter of Bennett v Jeffreys*, 40 NY2d 543; *Stanley v Illinois*, 405 US 645; *Matter of Ferguson v Skelly*, 80 AD3d 903, 16 NY3d 710; *Matter of Male Infant L.*, 61 NY2d 420; *Matter of Howard v McLoughlin*, 64 AD3d 1147; *Matter of Hyde v King*, 47 AD3d 813; *Matter of Diane FF. v Faith GG.*, 291 AD2d 671; *Matter of Dickson v Lascaris*, 53 NY2d 204; *Matter of Tolbert v Scott*, 15 AD3d 493; *Tauza v Susquehanna Coal Co.*, 220 NY 259.) II. The Appellate Division did not abuse its discretion as a matter of law in holding that appellants had not proved the existence of extraordinary circumstances as there had not been a prolonged separation of parent and child, relinquishment of care and control, or gross misconduct evidencing utter indifference or irresponsibility.

(*Matter of Louise E.S. v W. Stephen S.*, 64 NY2d 946; *Matter of De Zimm v Connelie*, 64 NY2d 860; *Priebe v Priebe*, 55 NY2d 997; *Matter of Sullivan v Sullivan*, 58 NY2d 642; *Glenbriar Co. v Lipsman*, 5 NY3d 388; *Alpert v 28 Williams St. Corp.*, 63 NY2d 557; *Cahen v Boyland*, 1 NY2d 8; *Matter of Social Investigator Eligibles Assn. v Taylor*, 268 NY 233; *Matter of Albano v Kirby*, 36 NY2d 526; *Matter of Jenny L.S. v Nicole M.*, 39 AD3d 1215.) III. The decision does not conflict with section 72 (2) decisions in other Departments, and is, in fact, in accord with them. (*Matter of Fishburne v Teelucksingh*, 34 AD3d 804; *Matter of Bailey v Carr*, 125 AD3d 853; *Matter of Rush v Roscoe*, 99 AD3d 1053; *Matter of Carton v Grimm*, 51 AD3d 1111; *Matter of Traci M.S. v Darlene C.*, 37 AD3d 1083; *Matter of Gilchrest v Patterson*, 55 AD3d 833; *C.F.B. v T.B.*, 9 Misc 3d 1105[A], 2005 NY Slip Op 51412[U]; *Matter of Tucker v Martin*, 75 AD3d 1087; *Matter of Curless v McLarney*, 125 AD3d 1193.) IV. While psychological trauma grave enough to threaten the child's destruction may be considered an extraordinary circumstance, the Appellate Division did not hold that such is required to prove extraordinary circumstances. (*Matter of Jenny L.S. v Nicole M.*, 39 AD3d 1215; *Matter of Michael G.B. v Angela L.B.*, 219 AD2d 289; *Matter of Jody H. v Lynn M.*, 43 AD3d 1318; *Matter of Vincent A.B. v Karen T.*, 30 AD3d 1100, 7 NY3d 711; *Matter of Cote v Brown*, 299 AD2d 876; *Matter of Tucker v Martin*, 75 AD3d 1087; *Matter of Burghdurf v Rogers*, 233 AD2d 713; *Matter of Bailey v Carr*, 125 AD3d 853; *Matter of Black v Johnson*, 251 AD2d 825; *Matter of Lynda A.H. v Diane T.O.*, 243 AD2d 24, 92 NY2d 811.)

OPINION OF THE COURT

STEIN, J.

This custody dispute between a child's mother and paternal grandparents concerns the interpretation and application of Domestic Relations Law § 72 (2) and this Court's decision in *Matter of Bennett v Jeffreys* (40 NY2d 543 [1976]). We hold that grandparents may demonstrate standing to seek custody based on extraordinary circumstances where the child has lived with the grandparents for a prolonged period of time, even if the child had contact with, and spent time with, a parent while the child lived with the grandparents. Hence, we reverse and remit to the Appellate Division for consideration of issues raised, but not reached, by that Court.

I.

The child at issue here (born 2002) lived with his paternal grandparents, beginning when he was less than 10 days old and continuing until he was almost 10 years old. The child's father moved out of state in 2004 and has had visitation since then. The child's mother lived approximately 12 miles from the grandparents for the child's first few years, until the grandparents moved the mother (and her daughters from a previous relationship) into a trailer that the grandparents purchased and situated in a trailer park across the street from their residence, so she would be close to the child. In a 2006 proceeding in which the grandparents were not involved, the child's parents obtained a consent order awarding the parents joint legal custody, with primary physical custody to the mother. Nevertheless, the reality of the family's situation did not change; the child continued to reside with the grandparents. Also in 2006, the grandparents moved to an adjoining county. Due to the distance between their homes, the mother had less contact with the child until late 2008, when the grandparents again helped her move closer to them. The grandparents evidently kept the mother informed of the child's activities almost daily. In addition, the mother saw the child regularly including, at times, weekly overnight visits and vacations. In 2010, the mother began a relationship with a new boyfriend, and they gradually began making plans to live together. In 2012, after the father sought custody from the mother and a termination of his child support payments to her,¹ she refused to return the child to the grandparents after a visit, relying on the 2006 custody order granting her primary physical custody. At that time, the mother told the grandparents that they had had the child for many years, it was her "turn now," and they could no longer see him.

As a result, the grandparents commenced this proceeding seeking primary physical custody of the child.² Following a 10-day hearing, Family Court found that the mother was generally not credible and that "the grandparents' version of where the child lived since birth is the substantiated and more accurate representation of reality" (50 Misc 3d 990, 999 [2013]). The court found that there had been an extended disruption of

1. Although the father was regularly paying child support to the mother, she did not provide the grandparents with any money for the child's care.

2. The father withdrew his custody petition against the mother and supported the grandparents' petition.

custody between the mother and the child, and that the mother voluntarily relinquished care and control of him to the grandparents—through three written documents and through her behavior—and concluded that this amounted to extraordinary circumstances. The court then considered the child’s best interest and granted joint custody to the grandparents and the father, with primary physical custody to the grandparents and visitation to each parent.

The Appellate Division reversed and dismissed the grandparents’ petition (128 AD3d 20 [4th Dept 2015]). Specifically declining to disturb Family Court’s credibility determinations, the Appellate Division found the situation to be akin to joint custody, with the grandparents having primary physical custody and the mother having visitation. Nevertheless, the Court held that the grandparents failed to demonstrate extraordinary circumstances, in light of the mother’s presence in the child’s life, even though he was primarily living with the grandparents. Thus, the Court concluded that the grandparents lacked standing to seek custody and dismissed their petition. This Court granted the grandparents leave and a stay pending appeal (25 NY3d 1063 [2015]).

II.

In the seminal case of *Matter of Bennett v Jeffreys*, we created a two-prong inquiry for determining whether a nonparent may obtain custody as against a parent (*see* 40 NY2d at 546-548). First, the nonparent must prove the existence of “extraordinary circumstances” such as “surrender, abandonment, persisting neglect, unfitness, and unfortunate or involuntary disruption of custody over an extended period of time” (*id.* at 546), “or other like extraordinary circumstances” (*id.* at 544). If extraordinary circumstances are established such that the nonparent has standing to seek custody, the court must make an award of custody based on the best interest of the child (*see id.* at 548).

[1] Consistent with that case, Domestic Relations Law § 72 (2) contains a specific example of extraordinary circumstances. Originally, Domestic Relations Law § 72 addressed only grandparent visitation. However, in recognition of the important role of grandparents and the increasing number of grandparents raising their grandchildren, the legislature amended the statute in 2003 to include a second subdivision, pertaining to custody (*see* L 2003, ch 657, § 2; *Matter of Carton*

v Grimm, 51 AD3d 1111, 1112 n [3d Dept 2008], *lv denied* 10 NY3d 716 [2008]). That subdivision provides that “[w]here a grandparent . . . of a minor child . . . can demonstrate to the satisfaction of the court the existence of extraordinary circumstances, such grandparent . . . may apply to family court [for custody],” and the court “may make such directions as the best interests of the child may require, for custody rights for such grandparent . . . in respect to such child. *An extended disruption of custody, as such term is defined in this section, shall constitute an extraordinary circumstance*” (Domestic Relations Law § 72 [2] [a] [emphasis added]). The statute then defines “extended disruption of custody” to

“include, but not be limited to, a prolonged separation of the respondent parent and the child for at least [24] continuous months during which the parent voluntarily relinquished care and control of the child and the child resided in the household of the petitioner grandparent or grandparents, provided, however, that the court may find that extraordinary circumstances exist should the prolonged separation have lasted for less than [24] months” (Domestic Relations Law § 72 [2] [b]).

The legislative intent, as stated in the bill enacting this amendment, was “to provide guidance regarding the ability of grandparents to obtain standing in custody proceedings involving their grandchildren,” but was “in no way intended to limit the state of the law as it relates to the ability of any third party to obtain standing in custody proceedings” against a birth parent (L 2003, ch 657, § 1). The sponsors’ memoranda articulate the purpose of the bill as being “[t]o define an extraordinary circumstance with respect to the legal rights of certain grandparents who wish to petition the court for custody of their grandchildren” (Senate Introducer Mem in Support, 2003 NY Senate Bill S4224A; Assembly Sponsor’s Mem, 2003 NY Assembly Bill A8302B; see *Matter of Carton*, 51 AD3d at 1113). The sponsors emphasized that the bill specifically states that it is not intended to overrule existing case law relating to third parties obtaining standing in custody cases (see Senate Introducer Mem in Support, 2003 NY Senate Bill S4224A; Assembly Sponsor’s Mem, 2003 NY Assembly Bill A8302B). In addressing the law as it existed before the amendment, the sponsors stated that the “[c]urrent statute does not specifically grant grandparents standing to petition the court for custody

of their grandchildren[,] nor does [it] give specific guidance to the court in regard to extraordinary circumstances as they might apply to children who have resided with their grandparents” (Senate Introducer Mem in Support, 2003 NY Senate Bill S4224A; Assembly Sponsor’s Mem, 2003 NY Assembly Bill A8302B).

Although the mother contends otherwise, the statute is entirely consistent with *Matter of Bennett v Jeffreys*, in that it requires that grandparents prove the existence of extraordinary circumstances in order to demonstrate standing when seeking custody against a child’s parent. Indeed, the budget report on the bill indicates that it “simply clarifies in statute that grandparents specifically can petition for custody” (Budget Rep on Bills, Bill Jacket, L 2003, ch 657 at 5). Thus, the purpose of the statute is plain—it creates a clear path, or procedural mechanism, for grandparents to obtain standing when seeking custody (see *Matter of E.S. v P.D.*, 8 NY3d 150, 157 [2007]; *Matter of Wilson v McGlinchey*, 2 NY3d 375, 380 [2004]; see also *Debra H. v Janice R.*, 14 NY3d 576, 597 [2010]). The statute does not create new rights for grandparents, but merely clarifies a method by which grandparents may exercise those rights, and defines an alternative type of extraordinary circumstance applicable only to grandparents—specifically, an extended disruption of custody—in view of their special status (see *Matter of Tolbert v Scott*, 15 AD3d 493, 495-496 [2d Dept 2005]).³

III.

Domestic Relations Law § 72 (2) sets forth three “elements” required to demonstrate the extraordinary circumstance of an “extended disruption of custody,” specifically: (1) a 24-month separation of the parent and child, which is identified as “prolonged,” (2) the parent’s voluntary relinquishment of care and control of the child during such period, and (3) the residence of the child in the grandparents’ household. Regarding the third element, inasmuch as both Family Court and the Appellate Division found that the child primarily lived with

3. To the extent the grandparents and attorney for the child argue that the Appellate Division decision could be read as finding the statute to be unconstitutional, we note that the statute’s constitutionality was not challenged in either that Court or Family Court. Moreover, our reading of the Appellate Division decision leads us to conclude that the constitutional issue was not addressed therein. Thus, that issue is not before us.

the grandparents for almost 10 years, and that factual finding is supported by the record, we may not disturb it (*see Matter of E.S.*, 8 NY3d at 158; *Matter of Gabrielle HH.*, 1 NY3d 549, 550 [2003]). Consequently, only the first two elements are seriously in dispute here.

The mother argues that the separation of the parent and child must be nearly complete and that the parent must relinquish *all* care and control, with little or no contact between the parent and child, in order for the first two elements to be established. She contends that no prolonged separation occurred here because she had regular contact with the child. She also contends that she did not relinquish care and control because she cared for the child on regular visits, including overnights and vacations, and because the grandparents obtained, and acted with, her permission when making decisions about him.⁴

Contrary to the mother's contention, a lack of contact is not a separate element under the statute. Indeed, there is no explicit statutory reference to contact or the lack thereof. Rather, the quality and quantity of contact between the parent and child are simply factors to be considered in the context of the totality of the circumstances when determining whether the parent voluntarily relinquished care and control of the child, and whether the child actually resided with the grandparents for the required "prolonged" period of time. Indeed, some Appellate Division cases have identified a variety of factors for courts to consider in determining whether extraordinary circumstances exist, such as "the length of time the child has lived with the nonparent, the quality of that relationship and the length of time the biological parent allowed such custody to continue without trying to assume the primary parental role" (*Matter of Bevins v Witherbee*, 20 AD3d 718, 719 [3d Dept 2005];

4. The mother also erroneously argues that the standard for extraordinary circumstances requires the parent to engage in gross misconduct or utter irresponsibility. This Court has used such language, but we did so in a case decided almost 20 years before Domestic Relations Law § 72 (2) was enacted. That case involved a mother who had turned her child over to potential adoptive parents after agreeing to an adoption—which would have resulted in a permanent termination of all parental rights—and, soon thereafter, changed her mind and tried to regain care and control of her child (*see Matter of Male Infant L.*, 61 NY2d 420, 427 [1984]). The language requiring gross misconduct or utter irresponsibility should not be taken out of context to further heighten the standard for establishing standing in all nonparent custody cases, where the parents—although potentially being deprived of custody—otherwise retain their parental rights.

see *Matter of Curless v McLarney*, 125 AD3d 1193, 1195 [3d Dept 2015]; *Matter of Aida B. v Alfredo C.*, 114 AD3d 1046, 1048 [3d Dept 2014]; *Matter of Marcus CC. v Erica BB.*, 107 AD3d 1243, 1244 [3d Dept 2013], *appeal dismissed* 22 NY3d 911 [2013]; *Matter of Michael G.B. v Angela L.B.*, 219 AD2d 289, 294 [4th Dept 1996]). All of these factors are components of the totality of the circumstances for the court to consider, and also relate to the enumerated elements under the statute.

It would be illogical to construe the statute to mean that, in order to establish an extended disruption of custody, the grandparent must demonstrate that the parent had no contact with the child for 24 months. If that were the case, the statute would be superfluous or redundant of the extraordinary circumstances specifically enumerated in *Matter of Bennett v Jeffreys*. Indeed, the level of contact between the parent and child is relevant to several different categories of extraordinary circumstances under that case. For example, *Matter of Bennett v Jeffreys* refers to abandonment as an extraordinary circumstance (see 40 NY2d at 546). Pursuant to Social Services Law § 384-b (5), abandonment occurs—in the context of a complete termination of parental rights—when a parent evinces an intent to forgo parental rights and obligations as manifested by a failure to visit the child and communicate with the child or guardian. This Court has held that, for purposes of determining whether extraordinary circumstances exist to demonstrate standing to seek custody of a child, the definition of abandonment does not differ from the traditional definition (see *Matter of Dickson v Lascaris*, 53 NY2d 204, 209 [1981]). Similarly, *Matter of Bennett v Jeffreys* refers to persistent neglect as a variety of extraordinary circumstances (see 40 NY2d at 546). Persistent neglect requires proof that the parent “failed either to maintain *substantial*, repeated and continuous *contact* with a child or to plan for the child’s future” (*Matter of Ferguson v Skelly*, 80 AD3d 903, 905 [3d Dept 2011] [emphasis added], *lv denied* 16 NY3d 710 [2011]; see Social Services Law § 384-b [7]). Thus, where a parent has no significant contact with his or her child for 24 months, the avenues of persistent neglect or abandonment presumably would be available under *Matter of Bennett v Jeffreys*, even without the benefit of Domestic Relations Law § 72 (2).

In view of the foregoing, if we interpret the definition of “extended disruption of custody” under Domestic Relations Law § 72 (2) to mean that the parent must not have had any

contact, or at least any significant contact, with the child for at least 24 months, then this statutory ground of extraordinary circumstances would essentially be eviscerated, or at best redundant and unnecessary. This would contravene the legislative purpose, and would be contrary to the well-established rule that courts should not interpret a statute in a manner that would render it meaningless (*see Matter of Brown v Wing*, 93 NY2d 517, 523 [1999]; *Matter of Industrial Commr. of State of N.Y. v Five Corners Tavern*, 47 NY2d 639, 646-647 [1979]). Consequently, to give meaning to the separate statutory avenue of establishing standing, Domestic Relations Law § 72 (2) must be available for a grandparent even if the parent has had some contact with the child during the requisite 24-month period. To hold otherwise would not only conflict with the legislature's intent, but would also deter grandparents from promoting a relationship between the parent and the child while the child resides with them, contrary to this state's public policy of encouraging and strengthening parent-child relationships.⁵ While courts must determine on a case-by-case basis whether the level of contact between the parent and child precludes a finding of extraordinary circumstances, it is sufficient to show that the parent has permitted—as reflected in the statutory designation of the particular extraordinary circumstance at issue—an “extended disruption of custody” (Domestic Relations Law § 72 [2] [a] [emphasis added]).

For essentially the same reasons, a parent need not relinquish *all* care and control of the child. Even if the parent exercises some control over the child—for example during visitation—a parent may still, as a general matter, have voluntarily relinquished care and control of the child to the grandparent to the extent that the grandparent is, in essence, acting as a parent with primary physical custody. The key is whether the parent makes important decisions affecting the child's life, as opposed to merely providing routine care on visits.

[2] Here, the mother argues that the grandparents were only acting with her permission when making decisions regarding

5. Here, the grandparents called the mother nearly every day to keep her updated on the child's activities. They also brought the mother and her daughters on family vacations, invited them to family holiday gatherings, and relocated them twice. This conduct, primarily initiated by the grandparents, kept the mother in closer contact with the child. It would be incongruous to then deny the grandparents standing based on their efforts at facilitating that contact.

the child. She concedes that she signed three documents, each giving the grandparents permission to make such decisions, including medical and educational decisions, without any time limitation, but contends that the documents prove that she retained ultimate control over all decisions. Family Court concluded that the documents, and the mother's conduct, showed that she relinquished her authority and responsibility to make the decisions. The Appellate Division, on the other hand, concluded that the grandparents relied on the mother's permission (128 AD3d at 25). In our view, Family Court's interpretation of the documents, and their implications here, is more accurate. The grandparents obtained the documents because there was no custody order giving the grandparents the legal right to make such decisions, although the child was in their physical custody a majority of the time, and they needed to be prepared for all types of situations. Nevertheless, the mother freely signed over virtually all decision-making rights indefinitely—she did not limit the permission to times when she was unavailable—demonstrating her intent that the grandparents “permanently assume the parental responsibility” of caring for the child (*Matter of Michael G.B.*, 219 AD2d at 294).

As for the parties' conduct, the grandparents spoke with the mother almost daily about the child. The mother claims that they did so to seek her permission before making decisions about the child. However, the evidence is more consistent with Family Court's conclusion that the grandparents made all decisions about the child and merely kept the mother informed of the decisions that they had made or were about to make. For example, the mother and her boyfriend testified that, at least as early as 2011, she wanted to enroll the child in a school in the district where she lived, rather than the district of the grandparents' residence. The grandparents desired to keep the child in their district, where he had always attended school. The mother did not make any change in the child's school enrollment until the summer of 2012, after this proceeding had commenced. In addition, the mother could have expressly revoked her written permission, or specifically limited the authorization to making medical decisions in emergency situations, but she never did so. Instead, her conduct, and that of the grandparents, supports Family Court's finding that “in reality [the mother] relinquished her parental control and decisionmaking authority in writing and in practice to the

grandparents” (50 Misc 3d 990, 1006 [2013]).

Furthermore, while there arguably may have been a reason for the mother to refrain from seeking physical custody during the time that she was caring for her own ailing parents, that situation did not arise until 2006, several years after the child began living with the grandparents. Additionally, although one of the mother’s parents died and the other went into a nursing home in 2009, the mother allowed the grandparents to continue raising the child thereafter and she did not seek physical custody of him until 2012. No reasonable explanation was provided for her failure to attempt to gain physical custody after 2009 (*see Matter of Michaellica Lee W.*, 106 AD3d 639, 639-640 [1st Dept 2013]).⁶

In sum, the evidence more closely comports with Family Court’s finding that the mother voluntarily relinquished care and control of the child for more than 24 months, even though she had regular contact and visitation with him (*see Matter of Curless*, 125 AD3d at 1196; *Matter of Battisti v Battisti*, 121 AD3d 1196, 1197-1198 [3d Dept 2014]; *see also Matter of Marcus CC.*, 107 AD3d at 1244). The mother allowed the grandparents to assume control over, and responsibility for the care of, the child while he resided with them for a prolonged period of years, during which she assumed the role of a noncustodial parent in virtually every way (*see Matter of Traci M.S. v Darlene C.*, 37 AD3d 1083, 1084 [4th Dept 2007]). Where, as here, the mother has effectively transferred custody of the child to the grandparents for a prolonged period of time, the circumstances rise to the level of extraordinary, as required

6. For purposes of determining extraordinary circumstances, this situation can be distinguished from those in which a parent has a compelling reason to allow a nonparent to assume custody for a more limited and defined period of time. For example, no extraordinary circumstances were found where a father asked a grandfather to assume custody while the father “got [his] life together,” after which the father completed substance abuse treatment, anger management, and parenting classes and obtained steady employment—all while continuously attempting to maintain contact with the children—before he tried to regain custody (*see Matter of Ferguson v Skelly*, 80 AD3d 903, 904-905 [3d Dept 2011], *lv denied* 16 NY3d 710 [2011]). Similarly, it may be necessary for a single parent who is enlisted in the military to cede custody while deployed. In such situations, a parent can enter into an agreement memorializing a period of temporary custody, or can include limiting language in written authorizations—unlike the authorizations here, which explicitly stated that they were “open and ongoing” and had “no expiration date.”

under our law to confer standing upon the grandparents to petition the courts to formally obtain legal custody.

We reiterate that the conferral of standing, through the demonstration of extraordinary circumstances, is only the first step of the inquiry where a nonparent seeks custody against a parent. The second step addresses the best interest of the child. Here, Family Court found that it was in the child's best interest to remain in the primary physical custody of the grandparents. However, inasmuch as the Appellate Division did not reach that question, it must do so on remittal.

In conclusion, the grandparents established their standing to seek custody of the child by demonstrating extraordinary circumstances, namely an extended disruption of the mother's custody, in accordance with *Matter of Bennett v Jeffreys* and Domestic Relations Law § 72 (2). Accordingly, the Appellate Division order should be reversed, without costs, and the matter remitted to that court for further proceedings in accordance with this opinion.

Chief Judge LIPPMAN and Judges PIGOTT, RIVERA, ABDUS-SALAAM and FAHEY concur.

Order reversed, without costs, and matter remitted to the Appellate Division, Fourth Department, for further proceedings in accordance with the opinion herein.

[44 NE3d 930, 23 NYS3d 632]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v VICTOR SOTO, Respondent.

Argued November 16, 2015; decided December 17, 2015

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered December 10, 2013. The Appellate Division (1) reversed, on the law, a judgment of the Supreme Court, Bronx County (Megan Tallmer, J.), which had convicted defendant, upon a jury verdict, of aggravated driving while intoxicated and driving while intoxicated; and (2) remanded the matter for a new trial.

People v Soto, 113 AD3d 153, affirmed.

HEADNOTES

Crimes — Evidence — Declaration against Interest — Declarant's Awareness That Statement was against Penal Interest

1. In a prosecution for driving while intoxicated, the statement by an unavailable witness that she, not defendant, was driving the vehicle in question when it collided with a parked car and that she fled the scene should have been admitted into evidence as a declaration against interest, since the record demonstrated that the witness was aware that the statement was adverse to her penal interest at the time she made it. Seconds after she made the statement to the defense investigator, the witness asked if she could get into trouble and asked for an attorney. Moreover, the trial court failed to apply the proper standard when it ruled that the statement was not sufficiently against the witness's penal interest. Although leaving the scene of an accident that caused property damage constitutes a mere traffic violation, there is no requirement that a statement against penal interest involve a particularly serious crime. The record was replete with evidence regarding the witness's awareness of the potential criminality of her actions; she verbalized her concern that she would get in "trouble" as a result of her actions of driving the vehicle during the accident and fleeing the scene, and she repeatedly requested legal advice. That she also worried how her parents would react further demonstrated her understanding of the consequences, rather than exhibited her lack of comprehension.

Crimes — Evidence — Declaration against Interest That Exculpates Defendant — Supportive Evidence Establishing Reasonable Possibility of Trustworthiness

2. In a prosecution for driving while intoxicated, the statement by an unavailable witness that she, not defendant, was driving the vehicle in question when it collided with a parked car was sufficiently reliable to have been admitted into evidence as a declaration against interest, since the statement was corroborated by a trial witness's testimony that he saw a young woman driving defendant's car shortly before the accident occurred. Before a declara-

tion against interest is admissible, there must be some evidence, independent of the declaration itself, which fairly tends to support the facts asserted therein. Where a declaration exculpates the defendant, supportive evidence is sufficient if it establishes a reasonable possibility that the statement might be true. It is irrelevant whether the court believes the statement to be true; if the proponent of the statement is able to establish the possibility of trustworthiness, it is the function of the jury alone to determine whether the declaration is sufficient to create reasonable doubt of guilt. Accordingly, that defendant was seen driving the car at the time of the accident presented a credibility issue for the jury. Further, defendant and the unavailable witness had no previous relationship that would provide a motive to fabricate.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Automobiles and Highway Traffic § 982; AM JUR 2d, Evidence §§ 799, 803, 806, 807.

CARMODY-WAIT 2d, Particular Types of Evidence §§ 194:120–194:122, 194:124, 194:129.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) § 24.4.

NY JUR 2d, Evidence and Witnesses §§ 347–352.

ANNOTATION REFERENCE

See ALR Index under Against-Interest Declarations; Driving While Intoxicated; Evidence Rules.

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POINTS OF COUNSEL

Robert T. Johnson, District Attorney, Bronx (Melanie A. Sarver, Rebecca L. Johannesen, Joseph N. Ferdenzi and Stanley R. Kaplan of counsel), for appellant. Nisi prius correctly concluded that the out-of-court statement did not qualify as a declaration against penal interest because the declarant was not aware of her penal interests. (*People v Settles*, 46 NY2d 154; *Chambers v Mississippi*, 410 US 284; *People v Brensic*, 70 NY2d 9; *People v Brown*, 26 NY2d 88; *People v Thomas*, 68 NY2d 194; *People v Maerling*, 46 NY2d 289; *People v Shortridge*, 65 NY2d 309; *People v Smith*, 195 AD2d 112, 83 NY2d 876; *People v Robinson*, 267 AD2d 336; *Chapman v California*, 386 US 18.)

Robert S. Dean, Center for Appellate Litigation, New York City (Mark W. Zeno of counsel), for respondent. I. The Appel-

late Division correctly ruled that the unavailable witness's written statement to a defense investigator—that she was the driver at the time of the accident and fled the scene before notifying authorities because she feared she would “get into trouble”—should have been admitted as a declaration against interest, because her knowledge that the statement was against interest was adequately established and the statement was corroborated by independent proof of its truth; alternatively, even if the knowledge-of-adversity element of the declaration-against-interest exception was not met, the statement's exclusion deprived respondent of his constitutional rights to present a defense (US Const Amends V, XIV; NY Const, art I, § 6; *Chambers v Mississippi*, 410 US 284 [1973]). (*People v Maerling*, 46 NY2d 289; *People v Brensic*, 70 NY2d 9; *People v Settles*, 46 NY2d 154; *People v Shortridge*, 65 NY2d 309; *People v Shabazz*, 22 NY3d 896; *People v Darrisaw*, 206 AD2d 661; *People v Brown*, 26 NY2d 88; *Rosenberg v Majestic Limousine Corp.*, 298 AD2d 243; *Jamison v Walker*, 48 AD2d 320; *Smith v St. Lawrence County Natl. Bank*, 18 AD2d 1042.) II. The prosecutor's refusal to grant immunity to a witness who was prepared to offer testimony that she—not respondent—was driving the car and caused the accident was an abuse of discretion and deprived respondent of his due process right to a fair trial, where the witness's testimony was critical to the defense, the prosecutor would only have been immunizing the witness from prosecution for a traffic offense, and the prosecutor offered no other reason for his refusal (US Const Amends V, VI, XIV; NY Const, art I, § 6; CPL 50.30). (*People v Adams*, 53 NY2d 241; *People v Owens*, 63 NY2d 824; *People v Priester*, 98 AD2d 820; *People v Shapiro*, 50 NY2d 747; *People v Ballard*, 167 AD2d 895; *Delaware v Van Arsdall*, 475 US 673; *People v Allen*, 50 NY2d 898; *Chapman v California*, 386 US 18; *People v Crimmins*, 36 NY2d 230; *People v Schaeffer*, 56 NY2d 448.)

OPINION OF THE COURT

Chief Judge LIPPMAN.

The central issue in this case is whether an unavailable witness's statement to a defense investigator—that she, not defendant, was the driver at the time of the accident and that she fled the scene—should have been admitted as a declaration against interest. Because the witness was aware at the time she made the statement that it was against her interest, the four prongs of the test described in *People v Settles* (46 NY2d 154 [1978]) were met and the statement should have been admitted as a declaration against interest.

Around midnight on July 11, 2010, police officers were called to the scene of an automobile accident in the Bronx. A witness who lived down the street from where the accident took place stated that, while he was sitting on his front porch, he saw defendant driving at 15 miles per hour up and down the block before colliding with a parked vehicle. The witness saw no one else in the car with defendant and as the witness approached defendant's car, he found defendant in the driver's seat. When police arrived, they detected alcohol on defendant's breath, noticed his slurred speech, and arrested defendant for driving while intoxicated. A breath analysis test administered at the police station revealed defendant's blood alcohol level to be .22%. At the station, defendant stated, "I started drinking when I got lost. I f---- up. I couldn't drive for s---."

Lamar Larson, who worked with defendant as a New York City bus driver, testified at trial that he chanced upon defendant at the Pelham Bay Diner near the bus depot in the Bronx at 11:45 p.m. that same night. Larson went to the diner to pick up something to eat for his night shift when he saw defendant in his car with a young woman inside. The woman was in the driver's seat and defendant was in the passenger seat. During their brief conversation, Larson noticed that defendant was slurring his speech and was drunk. Larson leaned into the window and said to the young woman, "[m]ake sure he gets home, please," and the woman promised that she would. Larson saw the woman drive out of the parking lot with defendant beside her in the passenger seat.

Two weeks after the accident, a young woman by the name of Janny Hunt told defendant's investigator that she was the driver of the car at the time of the accident. Hunt was 19 years old at the time, had no criminal history, and possessed only a learner's permit. Hunt met defendant that day on the bus he drove and they planned to go out that night. Defendant picked up Hunt in his car and they went to the diner at which point Hunt agreed to drive so that defendant could have a few drinks. As they were leaving the diner, Hunt recounted meeting defendant's friend Larson in the parking lot and promising to drive defendant home safely. On the way home, Hunt took a turn "too fast" and hit the parked car. Defendant yelled and cursed at Hunt, who "got scared" because "[i]t was late" and her "parents didn't know [she] was [out] with [defendant]." Hunt "said to [defendant], 'I have to go, I'm sorry. I can't talk to you now.'" According to Hunt, "[defendant] was busy looking

at his car and he waved [her] to leave.” Hunt took a cab home. About a week later, Hunt ran across defendant on the bus and he told her that he had been arrested because they thought he had been driving the car. She agreed to assist him.

While Janny Hunt recounted the events leading up to the accident, the investigator took notes. After the conversation, the investigator asked Hunt if she would sign the notes as her own words.* Hunt then expressed concern that “she would potentially get in trouble for the things that she was saying” about the accident. She “was concerned about her parents . . . fin[d]ing out about the accident because she was in the car” and “wasn’t driving her own car.” According to the investigator, Hunt asked “again and again” if the investigator was a lawyer, and asked to be put in touch with a lawyer when the investigator could not answer Hunt’s questions. The investigator did not tell Hunt “anything about the specific trouble she might get into.” Despite her concerns, Hunt reviewed and signed the written statement.

When trial commenced, defense counsel indicated that he would call Hunt as a witness. Because her testimony could qualify as an admission to leaving the scene of an accident and traffic violations, the court appointed an attorney for Hunt. Defense counsel asked the People to grant Hunt immunity should she invoke her right to remain silent, a request the People refused. After the close of the People’s case, Hunt’s attorney invoked the Fifth Amendment on her behalf. After being refused immunity, defense counsel moved to dismiss the case. The court denied the motion.

Defense counsel then requested that Hunt’s statement be admitted as a declaration against interest. The court ordered a hearing outside the presence of the jury, at which the investigator who took Hunt’s statement testified. Following the hearing, the court remarked that whether a statement may be admitted as a declaration against interest “depends upon the assurance of reliability that comes from the person’s awareness that what they are saying could get them in trouble [with] the law.” The court “[did] not believe that [Hunt], either at the time she made it or even immediately following, assuming that that’s considered contemporaneous, was aware that her declarations could expose her to prosecution for a traffic offense.” Finding

* The majority of the Appellate Division so found, based upon the investigator’s direct testimony.

that the declarant did not give “any expression of that awareness until after the statement [was] given,” the court concluded that the statement was inadmissible as a declaration against interest. The court further held that “the interest which the declaration compromises must be one of sufficient magnitude or consequence to the declarant to all but rule out any motive to falsify,” relying on *People v Maerling* (46 NY2d 289, 298 [1978]), and determined that Hunt’s minor violation, in contravention of Vehicle and Traffic Law § 600, did not qualify.

The jury convicted defendant of aggravated driving while intoxicated and driving while intoxicated. The Appellate Division reversed and ordered a new trial, holding that the declarant’s

“expressions, at the time of or immediately after her statement, of apprehension that she could get in trouble for her conduct, including repeated inquiries about consulting with a lawyer, sufficed to satisfy the requirement that ‘the declarant must be aware at the time of its making that the statement was contrary to his [or her] penal interest’ ” (113 AD3d 153, 161 [2013]).

Other evidence assured the reliability of Hunt’s declaration inasmuch as Larson testified to seeing Hunt driving defendant home 15 minutes before the accident.

The dissenters would have affirmed the conviction on the basis that Hunt was not aware, at the time she made the declaration to the investigator, that her statement “was adverse to her penal interest” and “the statement was not sufficiently reliable” (113 AD3d at 162-163 [Clark, J., dissenting]). The dissenters also found the statement untrustworthy because “it involves the potential exposure to a minor traffic infraction and, unlike the situation where a defendant confesses to a violent crime, the penal consequences resulting from the statement are not obvious, especially to a 19 year old with no criminal history” (*id.* at 164-165). A dissenting Justice of the Appellate Division granted the People leave to appeal (2014 NY Slip Op 63495[U] [1st Dept 2014]).

The declaration-against-interest exception to the hearsay rule “flows from the fact that a person ordinarily does not reveal facts that are contrary to his own interest” unless those facts are true (*Maerling*, 46 NY2d at 295; *People v Brensic*, 70 NY2d 9, 14 [1987]). A statement qualifies as a declaration

against interest if four elements are met: (1) the declarant is unavailable to testify as a witness; (2) when the statement was made, the declarant was aware that it was adverse to his or her penal interest; (3) the declarant has competent knowledge of the facts underlying the statement; and (4) supporting circumstances independent of the statement itself attest to its trustworthiness and reliability (*People v Settles*, 46 NY2d at 167).

Here, the first and third factors are not in dispute. Hunt was unavailable to testify because she had invoked her Fifth Amendment right to remain silent, and the People refused to grant her immunity, despite defense requests. The third factor was met because Hunt would have had direct knowledge as to whether she was driving the vehicle at the time of the accident. The parties' arguments on appeal focus on the second and fourth elements for admissibility, namely, whether Hunt was aware that the statement was against her penal interest at the time she made it and whether the statement was sufficiently reliable.

[1] As the Appellate Division appropriately concluded, the second factor was satisfied. Seconds after she made the statement to the defense investigator, Hunt asked if she could get into trouble and asked for an attorney. Only the most constricted reading of the contemporaneity requirement could support excluding Hunt's statement.

The trial court failed to apply the proper standard when it ruled that the statement was not sufficiently against Hunt's penal interest. We have never held, as the trial court concluded, that the declaration-against-interest exception is limited to serious penal consequences. Rather, until 1970, when this Court decided *People v Brown* (26 NY2d 88 [1970]), the converse was true—only declarations against pecuniary or proprietary interests were admissible. Although leaving the scene of an accident that caused property damage constitutes a mere traffic violation, there is no requirement that a statement against penal interest involve a particularly serious crime (see *Basile v Huntington Util. Fuel Corp.*, 60 AD2d 616, 617 [2d Dept 1977] [admitting to reckless driving sufficient]). Moreover, the record here is replete with evidence regarding Hunt's awareness of the potential criminality of her actions; Hunt verbalized her concern that she would get in "trouble" as a result of her actions of driving the vehicle during the accident and fleeing the scene, and she repeatedly requested legal advice

(see *People v Fields*, 66 NY2d 876, 877 [1985]). That Hunt also worried how her parents would react further demonstrates her understanding of the consequences, rather than exhibits her lack of comprehension.

[2] The fourth factor was also satisfied because Lamar Larson's testimony corroborated Hunt's statement. In *Settles*, concerned with the possibility that someone might fabricate a declaration against interest, this Court held that, before a declaration against interest is admissible, "there must be some evidence, independent of the declaration itself, which fairly tends to support the facts asserted therein" (*Settles*, 46 NY2d at 168). Statements offered against the defendant are "subjected to even more exacting standards" and are admissible only when "the interest compromised is of sufficient magnitude or consequence to the declarant to all but rule out any motive to falsify" (*Brensic*, 70 NY2d at 14-15 [internal quotation marks and citation omitted]).

By contrast, declarations that exculpate the defendant, as here, are subject to a more lenient standard (*Brensic*, 70 NY2d at 15). In such circumstances, a defendant need not show that the penal consequences to the declarant were of such magnitude that they "all but rule out any motive to falsify" (*id.*; *Maerling*, 46 NY2d at 298). Rather, "[s]upportive evidence is sufficient if it establishes a reasonable possibility that the statement might be true" (*Settles* at 169-170). We explained that even "[c]ircumstances of seeming indifference" that "harmonize" the statement may be sufficient to "furnish the necessary link" (*id.* at 169). In addition, it is irrelevant whether the court believes the statement to be true: "[i]f the proponent of the statement is able to establish this possibility of trustworthiness, it is the function of the jury alone to determine whether the declaration is sufficient to create reasonable doubt of guilt" (*id.* at 170).

Larson said he saw a young woman driving defendant's car shortly before the accident occurred. That defendant was seen driving the car at the time of the accident presents a credibility issue for the jury, as this Court made clear in *Settles* (*id.*). Further, defendant and Hunt had no previous relationship that would provide Hunt with a motive to fabricate (see *Brensic*, 70 NY2d at 25). Under the circumstances presented here, the error was not harmless.

In light of the foregoing, we need not reach defendant-respondent's other contentions.

Accordingly, the order of the Appellate Division should be affirmed.

PIGOTT, J. (dissenting). Because there is record support for the trial court finding that declarant, Janny Hunt, was unaware that her statement was against her penal interest at the time it was made, I dissent and would reverse the order of the Appellate Division.

Defendant, who was employed as a city bus driver, was arrested and charged with four counts of driving while intoxicated after defendant's car struck a parked car. A witness at the scene called 911 and approached the car within seconds of the accident. At that point, the witness saw defendant "dancing" in the driver's seat with the radio turned up. Two weeks later, defendant encountered Hunt on a city bus and lamented that he had been arrested for driving while intoxicated. According to Hunt, defendant asked her if she could "help him out." Hunt agreed to do so by giving a statement to defendant's investigator. In that statement, Hunt claimed that it was she, and not defendant, who was driving defendant's car at the time of the accident.

Hunt refused to testify at trial, citing Fifth Amendment concerns. Defense counsel requested that Hunt's hearsay statement to the investigator be introduced in evidence as a declaration against penal interest. At the court's direction, defense counsel called the private investigator to authenticate Hunt's statement. The investigator testified that she did not apprise Hunt of the consequences of her statement because the investigator herself was unaware of what penal consequences, if any, Hunt faced as a result of her admissions. In her statement, Hunt claimed that she left the scene of the accident because she did not want her parents to know that she was with defendant. The statement indicates that Hunt was concerned only about what her parents would think. Significantly, as the investigator's hearing testimony bears out, it was not until *after* Hunt signed her statement that she asked whether she could get in trouble for leaving the scene of the accident and reiterated her concern about her parents finding out that she was driving defendant's car.

During cross-examination, the investigator testified that her conversation with Hunt followed this progression: (1) Hunt spoke generally about the accident; (2) the investigator asked if she could write it down; (3) Hunt signed the statement; and

(4) after Hunt signed the statement, Hunt had some questions about what could happen to her. The investigator specifically explained that “[w]e went over [the statement] together and she signed it. At the end, she asked me a couple of questions that I did not know how to answer. I said to her she could speak to a lawyer.”

On redirect examination, the investigator testified that “at the beginning of the statement, no she did not express any concerns. *They came out at the end*” (emphasis supplied).^{*} The investigator explained that Hunt “asked if she could get in trouble for the accident” and stated that “she was concerned about her parents . . . fin[d]ing out about the accident because she was in the car. . . . *And just generally like how much trouble [s]he can get into*” (emphasis supplied).

The trial court properly ruled that Hunt was not aware that the statement was against her penal interest at the time it was made. Our holding in *People v Settles* (46 NY2d 154 [1978]) concerning the “contemporaneous” requirement is dispositive: “when the statement [is] made the declarant *must* be aware that it [is] adverse to his [or her] penal interest” (*id.* at 167 [emphasis supplied]). This awareness is premised on the conclusion that any reasonable person would have known at the time the statement was made that it was against his or her penal interest (*see People v Thomas*, 68 NY2d 194, 199-200 [1986]).

Hunt admitted to committing a minor traffic infraction, i.e., leaving the scene of a property damage accident (*see* Vehicle and Traffic Law § 600 [1] [a]), while defendant, a city bus driver whose employment was in jeopardy, was facing four counts of driving while intoxicated. There is no indication from either the content of Hunt’s statement or the investigator’s testimony that Hunt was even remotely concerned about the penal consequences of her statement. It is this “contemporaneousness” factor that renders a declaration against penal interest reliable. The trial court deemed Hunt’s hearsay statement to be unreliable precisely because she was not aware of the penal consequences of her statement when it was made. In my view, there was no basis for the Appellate Division, which deemed this particular factor “more problematic” than the others (113

^{*} This is what the dissent at the Appellate Division determined (113 AD3d 153, 163 [1st Dept 2013, Clark, J., dissenting]), as do I. The majority at the Appellate Division—like the majority here—misread the transcript.

AD3d 153, 160 [1st Dept 2013]), to disturb the trial court's determination that Hunt's statement did not meet the contemporaneousness requirement.

Judges RIVERA, ABDUS-SALAAM, STEIN and FAHEY concur; Judge PIGOTT dissents in an opinion.

Order affirmed.

[45 NE3d 917, 25 NYS3d 21]

THE MINISTERS AND MISSIONARIES BENEFIT BOARD, Interpleader
Plaintiff, v LEON SNOW et al., Appellants. ESTATE OF CLARK
FLESHER et al., Respondents.

Argued September 10, 2015; decided December 15, 2015

SUMMARY

PROCEEDING, pursuant to NY Constitution, article VI, § 3 (b) (9) and Rules of the Court of Appeals (22 NYCRR) § 500.27, to review questions certified to the New York State Court of Appeals by the United States Court of Appeals for the Second Circuit. The following questions were certified by the United States Court of Appeals and accepted by the New York State Court of Appeals: “(1) Whether a governing-law provision that states that the contract will be governed by and construed in accordance with the laws of the State of New York, in a contract not consummated pursuant to New York General Obligations Law section 5-1401, requires the application of New York Estates, Powers & Trusts Law section 3-5.1(b)(2), a New York statute that may, in turn, require application of the law of another state? (2) If so, whether a person’s entitlement to proceeds under a death benefit or retirement plan, paid upon the death of the person making the designation, constitutes ‘personal property . . . not disposed of by will’ within the meaning of New York Estates, Powers & Trusts Law section 3-5.1(b)(2)?”

HEADNOTE

**Conflict of Laws — Law Governing Contract Actions — New York
Choice-of-Law Provision — New York Substantive Law Applies**

The rule that where parties include a New York choice-of-law clause in a contract, such a provision demonstrates the parties’ intent that courts not conduct a conflict-of-laws analysis (*see IRB-Brasil Resseguros, S.A. v Inepar Invs., S.A.*, 20 NY3d 310, 312 [2012]), extends to contracts that do not fall under General Obligations Law § 5-1401, and obviates the application of both common-law conflict-of-laws principles and statutory choice-of-law directives, unless the parties expressly indicate otherwise. Accordingly, the New York law to be applied in an action to dispose of proceeds from retirement and death benefit plans providing that they “shall be governed by and construed in accordance with the laws of . . . New York” should not include EPTL 3-5.1 (b) (2), which provides that “[t]he intrinsic validity, effect, revocation or alteration of a testamentary disposition of personal property, and the manner in which such property devolves when not disposed of by will, are determined by the law of the jurisdiction in which the decedent was domiciled at death.” The fact that the legislature may have made a substantive

decision to codify the rule, or had a substantive public policy reason for placing the former common-law rule within a statute, does not elevate or transform this conflict-of-laws directive into a statement of substantive law. Logic dictates that, by including a choice-of-law provision in their contracts, the parties intended for only New York substantive law to apply. Applying New York's statutory conflict-of-laws principles, even if doing so results in the application of the substantive law of another state, would contravene the primary purpose of including a choice-of-law provision in a contract. Such an interpretation would also interfere with, and ignore, the parties' intent, contrary to the basic tenets of contract interpretation.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Conflict of Laws §§ 78–82.

NY JUR 2d, Conflict of Laws §§ 32–35.

ANNOTATION REFERENCE

See ALR Index under Conflict of Laws; Contracts.

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POINTS OF COUNSEL

Preston & Wilkins, LLC, Levittown (*Jesse T. Wilkins* and *Gregory R. Preston* of counsel), for appellants. I. The governing law provisions in the Ministers and Missionaries Benefit Board plans do not require the application of Estates, Powers and Trusts Law § 3-5.1 (b) (2). (*State of New York v Home Indem. Co.*, 66 NY2d 669; *Matter of Covert*, 97 NY2d 68; *Hartol Prods. Corp. v Prudential Ins. Co.*, 290 NY 44; *Zasuly v Mutual Benefit Health & Acc. Assn.*, 19 NY2d 385; *Bank of New York v Yugo-import*, 745 F3d 599; *Koob v IDS Fin. Servs.*, 213 AD2d 26; *Welsbach Elec. Corp. v MasTec N. Am., Inc.*, 7 NY3d 624; *Reger v National Assn. of Bedding Mfrs. Group Ins. Trust Fund*, 83 Misc 2d 527; *Skandia Am. Reins. Corp. v Schenck*, 441 F Supp 715; *Matter of Thomas*, 63 AD3d 1081.) II. Leon Snow and LeAnn Yowell Snow have answered the first certified question in the negative. Should this Court, however, determine that Estates, Powers and Trusts Law § 3-5.1 (b) (2) is relevant to the Ministers and Missionaries Benefit Board plans, the benefits thereunder cannot be deemed “personal property of the decedent not disposed of by will.” (*Neto v Thorner*, 718 F Supp 1222; *Matter of King*, 196 Misc 2d 250.)

Carlton Fields Jordan Burt, P.A., New York City (Brian Rosner and Natalie A. Napierala of counsel), for respondents. I. The Ministers and Missionaries Benefit Board plans' governing law provision requires the application of Estates, Powers and Trusts Law § 3-5.1 (b) (2). (*Matter of Allstate Ins. Co. [Stolarz—New Jersey Mfrs. Ins. Co.]*, 81 NY2d 219.) II. The proceeds of the Ministers and Missionaries Benefit Board plans are "personal property . . . not disposed of by will" within the meaning of Estates, Powers and Trusts Law § 3-5.1 (b) (2). (*Matter of Lewis*, 25 NY3d 456; *Southeast Bank v Lawrence*, 66 NY2d 910; *Matter of Donahue*, 262 AD2d 840; *Matter of Thomas*, 63 AD3d 1081; *Matter of Walker*, 117 AD3d 838; *Kane v Union Mut. Life Ins. Co.*, 84 AD2d 148; *McCarthy v Aetna Life Ins. Co.*, 231 AD2d 211, 92 NY2d 436; *Neto v Thorner*, 718 F Supp 1222.)

OPINION OF THE COURT

STEIN, J.

In *IRB-Brasil Resseguros, S.A. v Inepar Invs., S.A.* (20 NY3d 310 [2012], *cert denied* 569 US —, 133 S Ct 2396 [2013]), this Court held that, where parties include a New York choice-of-law clause in a contract, such a provision demonstrates the parties' intent that courts not conduct a conflict-of-laws analysis (*see id.* at 312). We now extend that holding to contracts that do not fall under General Obligations Law § 5-1401, and clarify that this rule obviates the application of both common-law conflict-of-laws principles and statutory choice-of-law directives, unless the parties expressly indicate otherwise.

I.

Plaintiff Ministers and Missionaries Benefit Board (MMBB) is a New York not-for-profit corporation, based in New York County, that administers a retirement plan and a death benefit plan for certain ministers and missionaries. Decedent Clark Flesher was a minister enrolled in both plans. He named his then-wife, defendant LeAnn Snow, as his primary beneficiary and her father, defendant Leon Snow, as the contingent beneficiary. Both plans state that they "shall be governed by and construed in accordance with the laws of the State of New York."

Flesher and LeAnn Snow divorced in 2008. Flesher moved to Colorado in 2010 and died there in 2011. A Colorado court has apparently admitted his will to probate, naming his sister, de-

fendant Michele Arnoldy, as personal representative of the estate. Despite the divorce, Flesher never changed his beneficiary designations under the MMBB plans. Because MMBB was unsure to whom the plan benefits should be paid after Flesher's death, it commenced a federal interpleader action against Flesher's Estate, Arnoldy (individually and as personal representative of the Estate), LeAnn Snow and Leon Snow.¹

The United States District Court for the Southern District of New York (Griesa, J.) allowed MMBB to post a bond and be released from the case, with the obligation to pay the benefits as the court directs. Arnoldy and the Estate moved for summary judgment, and the Snows cross-moved for summary judgment. The District Court (Forrest, J.) denied the Snows' motion, granted the motion of Arnoldy and the Estate and directed MMBB to pay the disputed funds to Arnoldy, as representative of the Estate (2014 WL 1116846, 2014 US Dist LEXIS 37822 [SD NY, Mar. 18, 2014, No. 11 Civ 9495(KBF)]). In making that determination, the District Court reasoned that: (1) the parties agreed that the relevant choice-of-law rules are the rules of New York, as the forum state; (2) the disputed funds constitute personal property; (3) under EPTL 3-5.1 (b) (2), revocation of a disposition of personal property, where such property is not disposed of by a will, is determined by the law of the state where the decedent was domiciled at the time of death; (4) Flesher was domiciled in Colorado at the time of his death, so Colorado law applied; and (5) Colorado's revocation law terminated any claims to the plans by both Snows (i.e., the former spouse and her relatives) when Flesher and LeAnn Snow were divorced.

On the Snows' appeal, the Second Circuit Court of Appeals determined that there were important and unanswered questions of New York law and, therefore, certified two questions to this Court before deciding the appeal (780 F3d 150 [2d Cir 2015]). Those questions are:

“(1) Whether a governing-law provision that states that the contract will be governed by and construed in accordance with the laws of the State of New York, in a contract not consummated pursuant to

1. The complaint was filed in federal court based on diversity of the parties. MMBB is a New York corporation, the Estate is considered a resident of Colorado, Arnoldy resides in North Carolina, LeAnn Snow resides in California and Leon Snow resides in Minnesota.

New York General Obligations Law section 5-1401, requires the application of New York Estates, Powers & Trusts Law section 3-5.1(b)(2), a New York statute that may, in turn, require application of the law of another state?

“(2) If so, whether a person’s entitlement to proceeds under a death benefit or retirement plan, paid upon the death of the person making the designation, constitutes ‘personal property . . . not disposed of by will’ within the meaning of New York Estates, Powers & Trusts Law section 3-5.1(b)(2)?” (780 F3d at 155).

This Court accepted the certified questions (25 NY3d 935 [2015]). We now answer the first question in the negative and, accordingly, have no occasion to reach the second question.

II.

The retirement and death benefit plans here each state that they “shall be governed by and construed in accordance with the laws of the State of New York.” The first certified question essentially asks us how to interpret the phrase “laws of . . . New York” in those contractual provisions.

We begin with the basic premises that courts will generally enforce choice-of-law clauses and that contracts should be interpreted so as to effectuate the parties’ intent (*see Welsbach Elec. Corp. v MasTec N. Am., Inc.*, 7 NY3d 624, 629 [2006]). In a case based on New York law, the United States Supreme Court held that a choice-of-law provision in a contract “may reasonably be read as merely a substitute for the conflict-of-laws analysis that otherwise would determine what law to apply to disputes arising out of the contractual relationship” (*Mastrobuono v Shearson Lehman Hutton, Inc.*, 514 US 52, 59 [1995]). Thus, the parties here agree that, pursuant to the choice-of-law provisions in the MMBB plans, the contracts will be governed only by New York’s substantive law, not by New York’s common-law conflict-of-laws rules.

Nevertheless, we must decide whether the New York law to be applied includes a New York statutory choice-of-law directive, such as EPTL 3-5.1 (b) (2). That statute provides that “[t]he intrinsic validity, effect, revocation or alteration of a testamentary disposition of personal property, and the manner in which such property devolves when not disposed of by will,

are determined by the law of the jurisdiction in which the decedent was domiciled at death” (EPTL 3-5.1 [b] [2]).² The question is whether section 3-5.1 (b) (2) should be characterized as part of New York’s substantive or “local law,” which the contracting parties intended to apply, or whether it is simply a conflict-of-laws rule, which they did not intend to apply. The answer to this question is crucial here because the recipients of the MMBB plan benefits will be different depending on whether courts apply the law of New York or the law of Colorado.

As for indisputably substantive New York law, EPTL 5-1.4 (a) states that,

“[e]xcept as provided by the express terms of a governing instrument, a divorce . . . revokes any revocable (1) disposition or appointment of property made by a divorced individual to, or for the benefit of, the former spouse, including, but not limited to, a disposition or appointment by will, . . . by beneficiary designation in a life insurance policy or (to the extent permitted by law) in a pension or retirement benefits plan.”

The plans here fall under the definition of governing instruments (*see* EPTL 5-1.4 [f] [5]). Thus, under New York’s purely substantive law, Flesher’s designation of LeAnn Snow as a beneficiary of the plans was revoked upon their divorce in 2008, while the designation of Leon Snow as contingent beneficiary remained in effect (*see Matter of Lewis*, 25 NY3d 456, 459 [2015]).

In contrast, the relevant Colorado statute provides that a divorce acts to revoke any dispositions or appointments by the divorced person to his or her former spouse and to relatives of the former spouse (*see* Colo Rev Stat § 15-11-804 [2]). Colorado courts have confirmed that the term “governing instruments” in that state’s revocation statute includes designations of beneficiaries in life insurance policies (*see In re Estate of Johnson*, 304 P3d 614, 616 [Colo App 2012], *cert denied* 2013 WL 3321113, 2013 Colo LEXIS 457 [July 1, 2013, No. 13SC46]). Because Leon Snow, as the father of LeAnn Snow, falls within the definition of a “[r]elative of the divorced individual’s former

2. The District Court determined that Flesher was a Colorado domiciliary. While the Snows apparently continue to dispute Flesher’s domicile, that issue is not before us given the procedural posture of this case. Thus, for purposes of this appeal, we assume that Flesher was domiciled in Colorado at the time of his death.

spouse” in relation to Flesher (Colo Rev Stat § 15-11-804 [1] [e]), under Colorado law, the divorce revoked the designations of both LeAnn Snow and Leon Snow as beneficiaries of the MMBB plans.

The Second Circuit concluded that this case presented a close question based, in part, on this Court’s recent decision in *IRB-Brasil Resseguros, S.A.* (20 NY3d 310). There, we decided that the need for a conflict-of-laws analysis is obviated by a contract, made pursuant to General Obligations Law § 5-1401, that contains a New York choice-of-law clause (*see id.* at 312). Section 5-1401 embodies the legislature’s desire to encourage parties to choose the New York justice system to govern their contractual disputes (*see id.* at 314-315). In *IRB*, we concluded that, where a contract met the requirements of General Obligations Law § 5-1401—including that the transaction exceeded \$250,000 and the parties designated New York law as controlling—“New York substantive law must govern” and “[e]xpress contract language excluding New York’s conflict-of-laws principles is not necessary” (*id.* at 315). We reasoned that, “[t]o find . . . that courts must engage in a conflict-of-laws analysis despite the parties’ plainly expressed desire to apply New York law would frustrate the Legislature’s purpose of encouraging a predictable contractual choice of New York commercial law and, crucially, of eliminating uncertainty regarding the governing law” (*id.* at 316). Significantly, this Court noted that the Restatement (Second) of Conflict of Laws § 187 (3) supports the same result (*see IRB-Brasil Resseguros, S.A.*, 20 NY3d at 316). Section 187 (3) provides that, in the absence of an expressed contrary intention, references to the law of a state chosen by the parties means the “local law” of that state (*see IRB-Brasil Resseguros, S.A.*, 20 NY3d at 316), which is defined elsewhere in the Restatement as the chosen state’s “body of standards, principles and rules, *exclusive* of its rules of Conflict of Laws, which the courts of that state apply in the decision of controversies brought before them” (Restatement [Second] of Conflict of Laws § 4 [1] [emphasis added]).³

Referring to New York’s overarching principle of providing certainty and finality to contracting parties, the Court in *IRB* concluded by saying that

3. A state’s standards, principles and rules would be treated equally under that definition, regardless of whether they were expressed in the common law or in statutes.

“[i]t strains credulity that the parties would have chosen to leave the question of the applicable substantive law unanswered and would have desired a court to engage in a complicated conflict-of-laws analysis, delaying resolution of any dispute and increasing litigation expenses. We therefore conclude that parties are not required to expressly exclude New York conflict-of-laws principles in their choice-of-law provision in order to avail themselves of New York substantive law. Indeed, in the event parties wish to employ New York’s conflict-of-laws principles to determine the applicable substantive law, they can expressly so designate in their contract” (*IRB-Brasil Resseguros, S.A.*, 20 NY3d at 316).

Although *IRB* concerned only common-law conflict-of-laws principles, whereas EPTL 3-5.1 (b) (2) is a statutory choice-of-law directive, the latter is merely a codification of a long-standing common-law conflict-of-laws principle, eventually placed within the EPTL because it corresponds to that general area of law (see *Matter of Gifford*, 279 NY 470, 474-475 [1939]; *Chamberlain v Chamberlain*, 43 NY 424, 433 [1871]; *Parsons v Lyman*, 20 NY 103, 112 [1859]; *Holmes v Remsen*, 4 Johns Ch 460, 470 [NY 1820]; see also EPTL 3-5.1 [b], derived from former Decedent Estate Law § 47, derived from former Code of Civil Procedure § 2694; L 1966, ch 952). While the EPTL may have initially been created, at least in part, to revise the substance of New York estates law, the placement of section 3-5.1 (b) (2) within the EPTL primarily served another of its creators’ purposes, which was to organize the statutes addressing that area of the law and consolidate them into one source (see Governor’s Mem of Approval, Bill Jacket, L 1966, ch 952 at 91, 1966 NY Legis Ann at 363 [while noting that the bill enacting the EPTL and SCPA made numerous changes in substantive law, one of the “chief virtues” was the consolidation of statutes pertaining to estates law that were previously scattered throughout numerous other areas of law]; Mem of Temp Commn on Law of Estates, 1966 NY Legis Ann at 121 [the Commission made an effort to keep substantive changes to a minimum, worked to simplify the form of the statutes, and perhaps the most notable contribution the new EPTL makes is its format, compiling estates law in one source]). Although codification may be an indication that the legislature attaches

some importance to the rule, EPTL 3-5.1 (b) (2) nevertheless remains, in its essence, a conflict-of-laws rule, rather than a statement of substantive law. The fact that the legislature may have made a substantive decision to codify the rule, or had a substantive public policy reason for placing the former common-law rule within a statute, does not somehow elevate or transform this conflict-of-laws directive into a statement of substantive law.⁴

To be sure, our decision in *IRB* does not preclude a different result here. However, our conclusion in that case—that when parties include a choice-of-law provision in a contract, they intend application of only that state’s “substantive law” (*IRB-Brasil Resseguros, S.A.*, 20 NY3d at 315)—is equally applicable to the contracts now before us. If New York’s common-law conflict-of-laws principles should not apply when the parties have chosen New York law to govern their dispute—a point on which all parties to this appeal agree—and EPTL 3-5.1 (b) (2) simply represents a common-law conflicts principle that has been codified into statute, that provision should not be considered in resolving this dispute.⁵

Stated differently, New York courts should not engage in any conflicts analysis where the parties include a choice-of-law provision in their contract, even if the contract is one that does not fall within General Obligations Law § 5-1401. That provi-

4. Thus, the fact that EPTL 3-5.1 (b) (2) is contained within EPTL article 3, which is entitled “[s]ubstantive [l]aw of [w]ills,” is not determinative of its character. Due to the practicality of attempting to organize all of the statutory rules, by putting provisions that relate to one another together or in close proximity, portions of statutes may be placed in an article or section whose title—while correctly applying to that article or section in general—does not accurately reflect every individual provision therein. Nevertheless, a statutory provision that is, by its nature, procedural cannot be converted into substantive law by virtue of the title of the overall article including that particular provision (see *Squadrito v Griebsch*, 1 NY2d 471, 475 [1956] [text of statute takes precedence over title, which cannot alter or limit the language in the body of a statute itself]; McKinney’s Cons Laws of NY, Book 1, Statutes § 123 [a]).

5. The Restatement (Second) of Conflict of Laws § 6 (1) states that “[a] court, subject to constitutional restrictions, will follow a statutory directive of its own state on choice of law.” While that section articulates a general rule—a fairly basic and uncontroversial proposition—that courts must follow statutory directives, contracting parties are generally free to include provisions altering the application of certain state laws to disputes concerning their contract (see *Welsbach Elec. Corp.*, 7 NY3d at 629). Thus, that section of the Restatement does not suggest that courts should apply a statutory choice-of-law directive when interpreting a contract containing a choice-of-law provision.

sion applies only to contracts for transactions involving an aggregate of over \$250,000, but it specifically states that “[n]othing contained [herein] shall be construed to limit or deny the enforcement of any provision respecting choice of law in any other contract” (General Obligations Law § 5-1401 [2]).⁶ While *IRB* does not entirely answer the current question because that case does not address the applicability of a statutory choice-of-law directive, logic dictates that, by including a choice-of-law provision in their contracts, the parties intended for only New York substantive law to apply (*see IRB-Brasil Resseguros, S.A.*, 20 NY3d at 315-316; *see also Mastrobuono*, 514 US at 63-64 [harmonizing choice-of-law provision and arbitration provision by reading the phrase “laws of the State of New York” to include New York substantive principles that courts would apply, but not include special rules limiting arbitrators’ authority]). A contrary interpretation is conceivable. However, we should apply the most reasonable interpretation of the contract language that effectuates the parties’ intended and expressed choice of law (*see Welsbach Elec. Corp.*, 7 NY3d at 629). To do otherwise—by applying New York’s statutory conflict-of-laws principles, even if doing so results in the application of the substantive law of another state—would contravene the primary purpose of including a choice-of-law provision in a contract—namely, to avoid a conflict-of-laws analysis and its associated time and expense.⁷ Such an interpretation would also interfere with, and ignore, the parties’ intent, contrary to the basic tenets of contract interpretation.

Moreover, allowing the application of a statutory choice-of-law directive would mean that the contracts here could be interpreted differently for each plan member, depending on where the member was domiciled at the time of his or her

6. It is unclear from the current record whether the amount due under either individual MMBB plan is more than \$250,000. However, the combined benefits due under the two plans now exceed that amount. While the parties appear to acknowledge that General Obligations Law § 5-1401 does not apply to the MMBB plans, our decision here ensures that all contractual choice-of-law provisions are interpreted under the same rules, regardless of the amount at issue.

7. The dissent takes issue with our conclusion regarding the ability of parties to waive application of EPTL 3-5.1 (b) (2) (*see* dissenting op at 489-490). To be clear, our analysis is not primarily based on that statute’s origins in the common law. Further, our holding narrowly addresses waiver based only on the nature of the statute—namely, a choice-of-law directive—as a natural extension of our holding in *IRB*.

death. It seems unlikely that MMBB intended to have its contracts—a retirement plan and a death benefit plan—interpreted in many different ways based on the whim and movements of its plan members. The intention to provide for predictable results regarding the distribution of funds to beneficiaries is particularly apt for these plans, which are issued to ministers and missionaries, who presumably are more likely than the general population to move often and who may live in all parts of the world, not just in different states. Contractually planning for the application of New York substantive law regarding benefit distribution would provide stability, certainty, predictability and convenience (*see* Restatement [Second] of Conflict of Laws § 187, Comment *h*), so that MMBB could easily determine who should receive plan benefits.⁸

Conversely, if application of the statutory choice-of-law directive—EPTL 3-5.1 (b) (2)—was required, it would be necessary for MMBB to keep abreast of the laws of all other states and nations to ensure that it paid the proper beneficiaries, which would invite the very uncertainties that MMBB and the plan members presumably intended to avoid. While it might appear to be a simple task to determine a decedent's domicile at the time of his or her death, that will not always be the case. Therefore, we hold that, when parties include a choice-of-law provision in a contract, they intend that the law of the chosen state—and no other state—will be applied. In such a situation, the chosen state's substantive law—but not its common-law conflict-of-laws principles or statutory choice-of-law directives—is to be applied, unless the parties expressly indicate otherwise.

8. There is no reason to assume that the parties would expect that death benefits under the MMBB plans would be subject to the laws of the decedent's domicile state simply because a majority of states follow that rule. To the contrary, the parties here reasonably could have believed that courts would apply the substantive law of New York—without resorting to any conflict-of-laws rules or the laws of any other state—based on the choice-of-law provisions in the contracts at issue. It was not necessary for the parties to explicitly waive the application of the domicile-based rule, or EPTL 3-5.1 (b) (2) itself, in the contracts. As we held in *IRB*, parties are not required to expressly exclude New York common-law conflict-of-laws principles in a contractual choice-of-law provision (*see IRB-Brasil Resseguros, S.A.*, 20 NY3d at 316). That rule similarly applies to New York statutory choice-of-law directives.

Accordingly, the first certified question should be answered in the negative and the second certified question not answered as academic.

ABDUS-SALAAM, J. (dissenting). When is a duly enacted law of the State of New York not part of “the laws of the State of New York”? One would think that the answer is never. But the majority disagrees. In the majority’s estimation, a law passed by New York elected representatives is not part of the “laws of the State of New York” if those legislators modeled the statute on a common-law rule specifying a particular jurisdiction’s laws as controlling the disposition of a person’s property upon death. Thus, the majority holds that, where a governing-law clause in a death or retirement benefit plan declares that the “laws of the State of New York” are controlling, the clause waives the application of Estates, Powers and Trusts Law § 3-5.1 (b) (2), which is a properly enacted law of New York dealing with property dispositions upon death (*see* majority op at 468). In light of that holding, the majority answers in the negative the first question of law certified to us by the United States Court of Appeals for the Second Circuit, and it declines to answer the second question on the ground that no answer is necessary to the resolution of this appeal (*see* majority op at 470, 477).

In reaching the erroneous conclusion that the decedent Reverend Clark Flesher and the Ministers and Missionaries Benefit Board (MMBB) implicitly waived the provisions of EPTL 3-5.1 (b) (2) via the governing-law clauses of their death benefit and retirement plans, the majority relies on our decision in *IRB-Brasil Resseguros, S.A. v Inepar Invs., S.A.* (20 NY3d 310 [2012]). But, a close examination of that decision reveals that the majority is incorrect, for *IRB-Brasil Resseguros, S.A.* identifies New York substantive law, such as EPTL 3-5.1 (b) (2), as exactly the sort of New York law invoked by a governing-law clause of the kind at issue here. Consequently, I would answer the first certified question in the affirmative. Furthermore, because the plain language of EPTL 3-5.1 (b) (2) clearly demonstrates that the benefit plans at issue here are covered by that statute, the second certified question should be answered in the affirmative as well. Accordingly, I respectfully dissent from the majority’s decision to answer the first certified question in the negative and to decline to answer the second certified question.

I.A

The first certified question asks

“[w]hether a governing-law provision that states that the contract will be governed by and construed in accordance with the laws of the State of New York, in a contract not consummated pursuant to New York General Obligations Law section 5-1401, requires the application of New York Estates, Powers & Trusts Law section 3-5.1(b)(2), a New York statute that may, in turn, require application of the law of another state” (*see Ministers & Missionaries Benefit Bd. v Snow*, 780 F3d 150, 155 [2d Cir 2015]).

The statute at the heart of this question, EPTL 3-5.1 (b) (2), is part of the EPTL article setting forth the “[s]ubstantive [l]aw of [w]ills” (EPTL art 3); the statute states, “[t]he intrinsic validity, effect, revocation or alteration of a testamentary disposition of personal property, and the manner in which such property devolves when not disposed of by will, are determined by the law of the jurisdiction in which the decedent was domiciled at death.” Thus, under the statute, if the decedent is domiciled in New York at the time of death, the devolution of property not disposed of by will is determined by, among other provisions, EPTL 5-1.4, which declares in relevant part:

“[e]xcept as provided by the express terms of a governing instrument, a divorce . . . revokes any revocable (1) disposition or appointment of property made by a divorced individual to, or for the benefit of, the former spouse, including, but not limited to, a disposition or appointment by will, by security registration in beneficiary form (TOD), by beneficiary designation in a life insurance policy or (to the extent permitted by law) in a pension or retirement benefits plan” (EPTL 5-1.4 [a]).

Accordingly, when a person dies while domiciled in New York, his or her ex-spouse cannot recover any death or retirement benefits under the decedent’s relevant plans because the divorce prior to death serves as a revocation of the beneficiary designation by operation of law. However, since the statute does not cut off the ex-spouse’s family members, New York law would still appear to permit a resident decedent’s former in-

law named as a beneficiary of such plans to recover the benefits upon the death of the decedent, notwithstanding the divorce. By contrast, the former in-law's beneficiary designation would be revoked if the decedent perished while domiciled in another jurisdiction, such as Colorado, which has a statute automatically removing ex-spouses and their relatives as beneficiaries of the decedent's benefit policies upon death (*see* Colo Rev Stat § 15-11-804 [2]).

In addition to these statutory principles, we must look to the relevant rules for interpreting a benefit plan to discern the manner in which EPTL 3-5.1 (b) (2) impacts such plans. Because the MMBB policies at issue in this case are, in effect, contracts between Flesher and MMBB for the payment of death and retirement benefits, they are logically subject to the same rules of construction as a life insurance policy or similar contract. Under those rules, a court “bear[s] the responsibility of determining the rights or obligations of parties under insurance contracts based on the specific language of the policies,” and unambiguous provisions “must be given their plain and ordinary meaning” (*Sanabria v American Home Assur. Co.*, 68 NY2d 866, 868 [1986]). “Contracts of insurance, like other contracts, are to be construed according to the sense and meaning of the terms which the parties have used, and if they are clear and unambiguous the terms are to be taken and understood in their plain, ordinary and proper sense” (*Johnson v Travelers Ins. Co.*, 269 NY 401, 408 [1936]; *see Roman Catholic Diocese of Brooklyn v National Union Fire Ins. Co. of Pittsburgh, Pa.*, 21 NY3d 139, 148 [2013]). A contract's express choice-of-law clause takes precedence over any contrary common-law choice-of-law principles, provided that the contract has some reasonable relationship to New York and does not violate New York public policy (*see Reger v National Assn. of Bedding Mfrs. Group Ins. Trust Fund*, 83 Misc 2d 527, 540-541 [Sup Ct, Westchester County 1975]; *see also Bank of N.Y. v Yugoimport*, 745 F3d 599, 609 [2d Cir 2014]; *see generally Welsbach Elec. Corp. v MasTec N. Am., Inc.*, 7 NY3d 624, 629 [2006] [“Generally, courts will enforce a choice-of-law clause so long as the chosen law bears a reasonable relationship to the parties or the transaction,” unless the chosen law “violates some fundamental principle of justice, some prevalent conception of good morals, some deep-rooted tradition of the common weal” (internal quotation marks and citations omitted)]).

We reaffirmed this principle in *IRB-Brasil Resseguros, S.A. v Inepar Invs., S.A.* (20 NY3d 310), a case that did not involve

the disposition of property upon death. In *IRB-Brasil Resseguros, S.A.*, the plaintiff Brazilian corporation purchased a series of notes issued by the defendant Uruguayan corporation and guaranteed by the defendant Brazilian power company (*see id.* at 312-313). The guarantee contract under which the notes were issued stated that the agreement would be “governed by, and . . . be construed in accordance with, the laws of the State of New York” (*id.* at 313). Because the parties’ transaction involved the exchange of more than \$250,000, it fell within the ambit of General Obligations Law § 5-1401 (1), which states in relevant part,

“ [t]he parties to any contract . . . arising out of a transaction covering in the aggregate not less than two hundred fifty thousand dollars . . . may agree that the law of this state shall govern their rights and duties in whole or in part, whether or not such contract, agreement or undertaking bears a reasonable relation to this state’ ” (*id.* at 314, quoting General Obligations Law § 5-1401 [1]).

Eventually, the defendant corporation defaulted on its obligations under the notes, and the plaintiff corporation sued to recover damages under the guarantee contract (*see id.* at 313-314). The defendant power company opposed the suit in part on the ground that, under a New York common-law conflict-of-laws analysis, Brazilian substantive law should be applied in interpreting the contract (*see id.* at 313).

On appeal, we decided that New York substantive law, but not New York choice-of-law principles or Brazilian law, controlled the interpretation of the contract in accordance with the choice-of-law clause (*see id.* at 314-316). As a starting point for the analysis, we determined that the legislature had passed General Obligations Law § 5-1401 out of concern that parties to large contracts, which lacked sufficient contacts with New York, might be unable to effectively invoke New York substantive law, despite an express contractual provision designating New York law as the controlling legal framework, because courts might apply common-law choice-of-law principles and decide that the law of a jurisdiction with a greater connection to the transaction should control (*see id.* at 314). Hence, the statute was designed to allow parties to large contracts that were otherwise unconnected to New York to choose to have their contracts interpreted in accordance with New York law (*see id.* at 315).

“Applying General Obligations Law §§ 5-1401 and 5-1402 to the facts of the present case,” we “conclude[d] that New York substantive law must govern, since the parties designated New York in their choice-of-law provision in the Guarantee and the transaction exceeded \$250,000” (*id.* at 315). We also rejected the defendant corporation’s argument that the entirety of New York common law, including New York’s common-law choice-of-law principles, should control the interpretation of the contract because the guarantee contract used the unlimited phrase “governed by . . . the laws of the State of New York,” without explicitly excluding New York choice-of-law rules (*id.* at 315). We explained:

“Express contract language excluding New York’s conflict-of-laws principles is not necessary. The plain language of General Obligations Law § 5-1401 dictates that New York substantive law applies when parties include an ordinary New York choice-of-law provision, such as appears in the Guarantee, in their contracts. The goal of General Obligations Law § 5-1401 was to promote and preserve New York’s status as a commercial center and to maintain predictability for the parties. To find here that courts must engage in a conflict-of-laws analysis despite the parties’ plainly expressed desire to apply New York law would frustrate the Legislature’s purpose of encouraging a predictable contractual choice of New York commercial law and, crucially, of eliminating uncertainty regarding the governing law.” (*id.* at 315-316).

We also observed that the Restatement (Second) of Conflict of Laws supported the conclusion that the contractual choice-of-law clause was intended to apply only New York substantive law because that treatise said, “[i]n the absence of a contrary indication of intention, the reference [to the law of the state chosen by the parties] is to the local law of the state of the chosen law” (*id.* at 316, quoting Restatement [Second] of Conflict of Laws § 187 [3]). Importantly, we continued, “[l]ocal law’ is defined as ‘the body of standards, principles and rules, *exclusive* of its rules of Conflict of Laws’” (*id.*, quoting Restatement [Second] of Conflict of Laws § 4 [1]). Thus, we said, “[u]nder the Restatement (Second), the parties’ decision to apply New York law to their contract results in the application of New York substantive law, not New York’s conflicts principles,”

and we added, “[i]t strains credulity that the parties would have chosen to leave the question of the applicable substantive law unanswered and would have desired a court to engage in a complicated conflict-of-laws analysis, delaying resolution of any dispute and increasing litigation expenses” (*id.* at 316). Accordingly, *IRB-Brasil Resseguros, S.A.* holds that a contract which both is subject to General Obligations Law § 5-1401 and designates New York law as controlling must be interpreted in accordance with New York substantive law, and the decision supports the more general proposition that, in most instances, a contractual provision stating that New York law governs must be read to invoke only New York substantive law, rather than common-law choice-of-law principles.

The principle that a contractual governing-law provision generally precludes a common-law choice-of-law analysis has never been extended to eliminate the application of a statutory choice-of-law directive, which otherwise would be the applicable local and substantive law of the State (*see* Restatement [Second] of Conflict of Laws § 4 [1]). In fact, as we explained in *IRB-Brasil Resseguros, S.A.*, the parties’ choice of New York law does not remove a contract from the ambit of “‘[l]ocal law,’” and because such local law includes New York’s substantive “‘body of standards, principles and rules,’” New York statutory standards, principles and rules logically govern a contract that deems the State’s law to be controlling (*IRB-Brasil Resseguros, S.A.*, 20 NY3d at 316, quoting Restatement [Second] of Conflict of Laws § 4 [1]).

In that vein, there is ample authority demonstrating that a New York statute embodies the State’s substantive policy, which we cannot readily presume to have been cast aside by a contractual governing-law provision. New York courts have held that where a conflict arises between the provisions of a statute and the terms of a contract, the statute typically controls because it is the binding substantive policy determination of the legislature (*see e.g. Fred Schutzman Co. v Park Slope Advanced Med., PLLC*, 128 AD3d 1007, 1008 [2d Dept 2015]; *Liberty Mut. Ins. Co. v Aetna Cas. & Sur. Co.*, 168 AD2d 121, 131 [2d Dept 1991]), though a statutory right may be waived expressly or by unequivocal and necessary implication (*see John J. Kassner & Co. v City of New York*, 46 NY2d 544, 551 [1979]; *O’Brien v Lodi*, 246 NY 46, 50 [1927]). Additional authority for a statute’s role as the substantive local law of a state can be found in the Restatement (Second) of Conflict of

Laws, which declares that “[a] court, subject to constitutional restrictions, *will follow* a statutory directive of its own state on choice of law” (Restatement [Second] of Conflict of Laws § 6 [1] [emphasis added]). Thus, unlike the common-law conflict rules at issue in *IRB-Brasil Resseguros, S.A.* and similar cases, statutory rules make up the substantive law of the state and cannot be easily or presumptively dispensed with by contrary provisions of a contract; indeed, in some instances, it is impossible for contracting parties to avoid the application of a state statute, even where they clearly and expressly agree to do so (see *Matter of Consolidated Rail Corp. v Hudacs*, 223 AD2d 289, 293 [3d Dept 1996], *affd* 90 NY2d 958 [1997]; cf. *Estro Chem. Co. v Falk*, 303 NY 83, 87 [1951]). It follows that, where, as here, the parties have agreed to apply the substantive law of New York, they presumably have agreed to eliminate common-law choice-of-law rules that are inconsistent with their definitive choice of law under the contract (see *IRB-Brasil Resseguros, S.A.*, 20 NY3d at 316), but they have not clearly manifested an intent to waive application of statutory choice-of-law directives such as EPTL 3-5.1 (b) (2), which form part of the very substantive law that the parties have opted to apply.

B

Nonetheless, the majority insists that EPTL 3-5.1 (b) (2) is a choice-of-law rule that stands on equal footing with the common-law choice-of-law principles discussed in *IRB-Brasil Resseguros, S.A.*, such that a contractual choice-of-law clause necessarily forecloses application of the statute in the same manner as it does the common-law rules (see majority op at 473-474). In this respect, the majority’s argument appears to rest on two false premises: (1) a statute that directs the application of another state’s testamentary laws is no different from the common law’s contacts-based choice-of-law framework and hence can never be a substantive law (see majority op at 473-474); and (2) the enforcement of a statute that is based on a common-law rule may be easily waived in the same manner as the common-law rule that inspired it (see majority op at 474). As will be shown, however, the first premise is unfounded in this case because it is contrary to the basic character and history of EPTL 3-5.1 (b) (2) (not to mention the authorities discussed above), and the second premise is not supported by any legal authority.

In adopting the first premise set forth above, the majority misapprehends the nature of EPTL 3-5.1 (b) (2). While EPTL

3-5.1 (b) (2) does direct the choice of a particular state's law on the handling of a certain type of property upon a person's death, it does not codify the sort of complex decisional choice-of-law analysis which parties presumably seek to avoid in agreeing that the law of New York will govern a contract. Unlike that common-law analysis, which requires the parties to any type of contract to determine on a case-by-case basis whether they and the transaction have sufficient contacts with a particular state to trigger the application of that state's substantive law (*see Zurich Ins. Co. v Shearson Lehman Hutton*, 84 NY2d 309, 317-320 [1994]), the statute here provides clearer guidance for a narrower subset of contracts by specifying that the law of the decedent's domicile at death will invariably apply to a testamentary or similar disposition of personal property. In this sense, EPTL 3-5.1 (b) (2) is just as much a substantive determination of the most reasonable means to dispose of personal property as it is a choice-of-law measure, and as a result, it does not set forth simply another extremely broad and complex conflict analysis that may be presumptively discarded by a contractual governing-law clause.

Indeed, the legislature plainly considered EPTL 3-5.1 (b) (2) to be a significant part of the State's substantive policy regarding the distribution of personal property upon death, distinguishing it from conflict principles that arose purely from decisional law and are not protected by legislation. The legislature enacted the predecessor statutes to EPTL 3-5.1 (b) (2) to enshrine in New York statutory law the common-law rule that the law of the state where a decedent is domiciled at the time of death should govern the disposition of personal property upon death (*see* Revisers' Notes, McKinney's Cons Laws of NY, EPTL 3-5.1; *see also Matter of Gifford*, 279 NY 470, 474-475 [1939]). In taking this step, the legislature evidently made a substantive decision that the aforementioned rule was so important that it should not be disturbed in this state by any subsequent change in the common law via judicial decision-making.

In addition, the legislature enacted substantive changes to the scope of this rule over time, making conscious policy choices to chart the course of this aspect of estates law. When the rule first appeared in statutory form in 1880, the statute stated,

“[e]xcept where special provision is otherwise made by law, the validity and effect of a testamentary disposition of any other property [besides realty] situated within the State, and the ownership and

disposition of such property, where it is not disposed of by will, are regulated by the laws of the state or country, of which the decedent was a resident, at the time of his death” (Code Civ Pro § 2694).

In 1911, when the legislature amended Decedent Estate Law § 47, it set forth the same rule but gave individuals some flexibility to choose the law of disposition for all of their personal property in the express provisions of a will—not other means of disposition—by adding,

“[w]henever a decedent, being a citizen of the United States, wherever resident, shall have declared in his will and testament that he elects that such testamentary dispositions shall be construed and regulated by the laws of this state, the validity and effect of such dispositions shall be determined by such laws” (L 1911, ch 244, § 1).

Furthermore, the incorporation of Decedent Estate Law § 47 into the EPTL via section 3-5.1 (b) (2) was no less substantive than the previous legislation. In that regard, the legislature passed EPTL 3-5.1 (b) (2) as part of a legislative package meant to overhaul the substance of New York’s estates law. As stated by a member of the Temporary Commission on Estates, which drafted the EPTL, the legislation was a provision “for the substantive law” and designed “to collect into one volume all the substantive law relating to estates” (Letter of Hon. John M. Keane, Bill Jacket, L 1966, ch 952 at 76). In approving the legislation, the Governor noted that it “ma[de] numerous substantive changes in existing law” and wisely consolidated previous enactments in this field (Governor’s Mem of Approval, Bill Jacket, L 1966, ch 952 at 91, 1966 NY Legis Ann at 363). Indeed, article 3 of the EPTL, which contains EPTL 3-5.1 (b) (2), is entitled “Substantive Law of Wills” (EPTL art 3), underscoring that its provisions, such as EPTL 3-5.1 (b) (2), are exactly the sort of substantive expression of New York public policy that contracting parties adopt when they agree to have their agreement governed by New York law.¹

As for EPTL 3-5.1 more particularly, the legislature passed that statute in response to substantive policy concerns. One

1. The majority observes that the title of article 3 “is not determinative” because the “text of [a] statute takes precedence over title, which cannot alter or limit the language in the body of a statute itself” (majority op at 474 n 4). That is true, and I do not suggest otherwise. But it is equally true that the title of article 3 is in accord with the plain meaning of the text and history of EPTL 3-5.1 (b) (2), all of which support the conclusion that EPTL

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scholar has described the development of the statute and the driving policy considerations behind it as follows:

“Recognizing ‘the need for a fresh approach to the legal problems presented by multi-jurisdictional transactions and for a release from the traditional bind of antiquated and moribund rules,’ the Bennett Commission undertook to design ‘substantive rules to govern the testamentary and intestate distribution of multi-jurisdictional estates.’ The resulting comprehensive set of rules for the regulation of wills and estates that are related to a jurisdiction other than New York is set forth in EPTL 3-5.1 and makes New York ‘a pathfinder in this area of estate law.’” (Joseph T. Arenson, *An Analysis of Certain Provisions of the Estates, Powers and Trusts Law*, 33 Brook L Rev 425, 445 [1967]).

And while this new “pathfind[ing]” law “codified” the “settled rule that the intestate distribution of the personal property of a decedent be determined by the law of his domicile at the time of his death,” it did so in the context of a statutory framework that had been “clarified and *expanded*” by EPTL 3-5.1 as a whole (*id.* at 445-448 [emphasis added]). In other words, EPTL 3-5.1 is not a reflexive or inconsequential repetition of a common-law conflict principle that might be readily waived sub silentio by parties to a contract, but instead represents the legislature’s considered judgment to keep some aspects of the common law constant while simultaneously modifying others. As a result, EPTL 3-5.1 (b) (2) works in tandem with the other provisions of the EPTL to create a body of local substantive standards for the disposition of personal property upon a person’s death, and contracting parties’ choice of New York law invokes, and does not waive, the enforcement of the statute.

This legislative policy choice casts the contracts here in a different light than the one in *IRB-Brasil Resseguros, S.A.* In that case, because the contract fell within the ambit of General Obligations Law § 5-1401, we interpreted the contract in light of the policy behind that statute (*see IRB-Brasil Resseguros, S.A.*, 20 NY3d at 313-315). Given that General Obligations

3-5.1 (b) (2) is part of the substantive law of New York (*see D’Amico v Christie*, 71 NY2d 76, 84 [1987] [where statutory text and history suggest a certain interpretation, the title of the statute reinforces that interpretation because the law’s meaning “is made plain even by its title”]).

Law § 5-1401 reflected the legislature's desire to make it easier for parties to large contracts to avoid a common-law choice-of-law analysis, we harmonized that policy with the language of the contract to infer that the parties' generalized invocation of New York law reflected their intent to waive the application of common-law conflict rules in a manner consistent with—indeed, buttressed by—the legislative scheme, and in that context, we concluded that it would have made little sense to draw a contrary inference regarding the parties' wishes (*see id.* at 315-316). By contrast, here, any inference that the parties intended to eliminate the application of EPTL 3-5.1 (b) (2) would be in tension with the legislature's desire to ensure that, in most cases, personal property not disposed of by will shall pass in accordance with the laws of the decedent's last domicile, and hence we must reject the view that the parties implicitly signaled an intent to abandon that legislative directive and instead interpret the contract consistently with the substantive policy embodied in EPTL 3-5.1 (b) (2), just as we did in *IRB-Brasil Resseguros, S.A.*

Moreover, even if it can be assumed that the parties to a contract usually mean to escape the reach of certain state statutes solely by declaring that the contract will be “governed by the laws of New York,” it would make little sense to make that assumption with respect to the particular statute at issue here. After all, the parties to a death benefit contract would ordinarily expect that, regardless of which state's law they choose, they will be subject to the rule that the law of the state of domicile determines the recipients of personal property upon the owner's death. That is so because a clear majority of states follow that rule (*see Hoglan v Moore*, 219 Ala 497, 501, 122 So 824, 828 [1929]; *Vansickle v Hazeltine*, 29 Idaho 228, 233-234, 158 P 326, 327 [1916]; *Gibson v Dowell*, 42 Ark 164, 166 [1883]; *In re Moore's Estate*, 190 Cal App 2d 833, 841-843, 12 Cal Rptr 436, 440-441 [4th Dist 1961]; *In re Madril's Estate*, 71 Colo 123, 126, 204 P 483, 484 [1922]; *Oehler v Olson*, 2005 WL 758038, *2, 2005 Conn Super LEXIS 574, *5-6 [Feb. 28, 2005, No. CV030083327]; *PNC Bank, Delaware v New Jersey State Socy. for Prevention of Cruelty to Animals*, 2008 WL 2891150, *2 n 3, 2008 Del Ch LEXIS 288, *5 n 3 [July 14, 2008]; *Cockrell v Lewis*, 389 So 2d 307, 308 [Fla Dist Ct App, 5th Dist 1980]; *In re Estate of Grant*, 34 Haw 559, 564 [1938]; *Davis v Upson*, 209 Ill 206, 212-213, 70 NE 602, 604 [1904]; *Thieband v Sebastian*, 10 Ind 454, 456 [1858]; *Lincoln's Estate v Briggs*,

199 NW2d 337, 338 [Iowa 1972]; *Matter of Estate of Rivas*, 233 Kan 898, 901, 666 P2d 691, 693 [1983]; *Radford v Fidelity & Columbia Trust Co.*, 185 Ky 453, 459, 215 SW 285, 288 [1919]; *Williams v Pope Mfg. Co.*, 52 La Ann 1417, 1438-1439, 27 So 851, 860 [1900]; *Smith v Howard*, 86 Me 203, 205-206, 29 A 1008, 1009 [1894]; *Harding v Schapiro*, 120 Md 541, 548, 87 A 951, 954 [1913]; *Blake v Williams*, 23 Mass 286, 314 [1828]; *In re Sewart's Estate*, 342 Mich 491, 499-501, 70 NW2d 732, 736-737 [1955]; *Lane v St. Louis Union Trust Co.*, 356 Mo 76, 82, 201 SW2d 288, 291 [1947]; *In re Smith's Estate*, 126 Mont 558, 563, 255 P2d 687, 690 [1953]; *In re Forney's Estate*, 43 Nev 227, 232, 184 P 206, 206 [1919]; *Cade v Davis*, 96 NC 139, 147, 2 SE 225, 228 [1887]; *In re Coleman's Estate*, 98 NW2d 784, 789 [ND 1959]; *In re Estate of Luoma*, 2011-Ohio-4701, ¶ 28 [Ct App 2011], <https://supremecourt.ohio.gov/rod/docs/pdf/11/2011/2011-Ohio-4701.pdf>; *In re Revard's Estate*, 178 Okla 524, 526, 63 P2d 973, 976 [1936]; *Pickering v Pickering*, 64 RI 112, 117-120, 10 A2d 721, 723-724 [1940]; *cf. Smith v Normart*, 51 Ariz 134, 138, 75 P2d 38, 40 [1938]; *but see Neblett v Neblett*, 112 Miss 550, 559, 73 So 575, 576 [1916]; *State by Van Riper v American Sugar Ref. Co.*, 20 NJ 286, 301-302, 119 A2d 767, 775-776 [1956]). Therefore, although the parties here presumably wished that New York contract interpretation rules would determine the decedent's rights during life and some other aspects of the contract, it would have been odd for them to have sought the application of an outlier rule for choosing the law regarding the disposition of the property upon death.

By the same token, the commonplace nature of the rule set forth in EPTL 3-5.1 (b) (2) belies the majority's suggestion that Flesher and MMBB could not have anticipated that their benefit contracts would trigger the law of the state where Flesher would be domiciled at death (*see* majority op at 476; *id.* at 476 n 8).² Certainly, MMBB, which has as one of its central purposes the administration of property distributions upon a

2. In discussing the expectations of the parties to the contracts here, the majority seems to focus primarily on MMBB's expectations and lack of desire to transfer the benefits of the plans in accordance with EPTL 3-5.1 (b) (2) (*see* majority op at 475-476). To an extent, this approach is understandable because MMBB drafted the plans at issue here and had more control over their terms. But a focus on MMBB's presumed wish to avoid the purported burdens imposed by EPTL 3-5.1 (b) (2)—a wish not directly expressed in the benefit plans—overlooks the fact that Flesher presumably expected that his property would devolve in accordance with the entirety of New York's substantive statutory law, i.e., that all of his personalty would pass under

(n. cont'd)

plan member's death, had good reason to learn of the widespread domicile-based rule and to explicitly waive application of that principle if it saw fit to do so. Instead, MMBB agreed to contracts containing only a generic invocation of New York law, without addressing either EPTL 3-5.1 (b) (2) in particular or the routinely-followed doctrine it embodies more generally.

The majority also claims that, absent a finding that a generalized governing-law clause presumptively waives statutory choice-of-law directives such as EPTL 3-5.1 (b) (2), benefit plan administrators will face the intolerable burden of familiarizing themselves with the revocation laws of every state where plan members might die because they cannot know in advance the state of domicile at death (*see* majority op at 475-476). Initially, though, there is no proof in the record of the extent of this alleged burden, and nothing suggests that organizations like MMBB are unable to have their attorneys perform the necessary research without extreme expense or delay. More to the point, plan administrators can eliminate this burden by adding an extra sentence to each benefit contract expressly precluding the application of the chosen jurisdiction's statutory choice-of-law directives.

All of the foregoing discussion belies the majority's evident belief that EPTL 3-5.1 (b) (2) is no different than, and creates the same practical difficulties as, the common-law conflicts analysis discussed in *IRB-Brasil Resseguros, S.A.*

As for the second major premise underlying the majority's opinion—that a statute based on the common law may be waived by a generalized governing-law clause because such a clause may waive certain common-law rules—it is simply unprecedented. The majority does not cite any authority for the novel proposition that a statute inspired by the common law may be more readily evaded by a governing-law clause than a statute designed to depart from the common law, and

the laws of the state where he chose to live out his final days. Indeed, while the majority assumes that Flesher wanted to give up the protections which that state's law might confer upon his property, such as the automatic elimination of the inheritance rights of his ex-spouse LeAnn Snow and her family, there is no basis for that assumption, especially since there is no indication that Flesher willingly waived the potential benefits of EPTL 3-5.1 (b) (2) in exchange for some particular valuable consideration (*cf. Welsbach Elec. Corp.*, 7 NY3d at 630-631 [(n)o good reason can be suggested why a contractor cannot, *for a valuable consideration*, waive the provisions of the statute giving him the right to file a notice of lien" (emphasis added, internal quotation marks, punctuation and citations omitted)]).

there is no logical support for that notion. Regardless of whether the legislature adopts or disavows a common-law principle in passing a law, the statute retains its force as a binding substantive policy choice of the State, compelling the adherence of contracting parties absent a clear waiver of its application. Indeed, if anything, the legislature's decision to incorporate a common-law rule into a statute shows its desire to elevate the rule's stature above its prior position as an ordinary common-law rule that might have been more easily waived.

In sum, a contract section that specifies that the contract must be "governed by and construed in accordance with the laws of the State of New York" should be interpreted to incorporate the entire body of New York's substantive statutory law (*see* Restatement [Second] of Conflict of Laws § 187 [1], [3]), including EPTL 3-5.1 (b) (2). Thus, I would answer the first certified question in the affirmative.

II.

Because I would answer the first certified question in the affirmative, I find it necessary to answer the second certified question to resolve this case. The second question asks "whether a person's entitlement to proceeds under a death benefit or retirement plan, paid upon the death of the person making the designation, constitutes 'personal property . . . not disposed of by will' within the meaning of New York Estates, Powers & Trusts Law section 3-5.1(b)(2)" (*Ministers & Missionaries Benefit Bd.*, 780 F3d at 155). As noted in this question, EPTL 3-5.1 (b) (2) applies to, among other things, a decedent's "personal property . . . not disposed of by will," and it incorporates a related statutory subdivision's definition of "personal property" as "any property other than real property, including tangible and intangible things" (EPTL 3-5.1 [a] [2]). The parties agree that, in general, a benefit plan and the rights thereunder are "personal property," as those contractual rights are "intangible things" which do not create or transfer an interest in real property.

The Snows nevertheless assert that the plan and any payments thereunder were not *Flesher's* personal property, and hence are not his estate's property, because MMBB must transfer all benefits under the plans to the Snows immediately upon death in accordance with the beneficiary designation forms. But a member of a benefit plan, such as *Flesher*, person-

ally controls the entitlement to the proceeds of the plan, holding an intangible property right that is “personal” to the member and subject to his or her disposition “not . . . by will” via the governing contract (EPTL 3-5.1 [b] [2]). In that regard, like the holder of a life insurance policy, a member of a benefit plan essentially owns the benefits of the plan while he or she is alive because he or she can control the transfer of those funds by choosing a beneficiary. It is for this reason that, under the common law of this State, a life insurance policy has traditionally been regarded as a chose in action, which is the personal property of the holder (*see Olmsted v Keyes*, 85 NY 593, 598-601 [1881]). Thus, a benefit plan and its attendant rights are the “personal property” of the plan member during his or her life within the meaning of EPTL 3-5.1 (b) (2), and until the validity of a beneficiary designation can be conclusively established in a probate proceeding, these property rights become inextricably linked with the plan member’s estate and the proceedings thereon following his or her death.

Additionally, a death benefit plan and a retirement benefit plan confer property rights that are “not disposed of by will” within the meaning of EPTL 3-5.1 (b) (2). It is true, as the Snows observe, that the phrase “not disposed of by will,” read in isolation, could be construed as a reference to the transfer of property in accordance to the rules of intestate succession rather than by a written instrument like a benefit plan. However, in the context of the remaining terms of EPTL 3-5.1 (b) (2), the disputed phrase applies to benefit plans. Notably, the statute is broadly worded to apply to virtually all dispositions of personal property upon death, including both “testamentary disposition[s]” of property and the “devol[ution]” of property “not disposed of by will,” and given this wide-ranging language, it makes sense to interpret the phrase “not disposed of by will” to cover both property that passes by rules of intestate succession and property, such as entitlements under a benefit plan, that devolves via a beneficiary designation not included in a formal will. Accordingly, because a benefit plan, which belongs to the plan member in life and transfers funds upon death, resembles a substitute testamentary instrument such as a trust with lifetime benefits (*see e.g. Matter of Reynolds*, 87 NY2d 633, 636 [1996] [trust as testamentary instrument]; *Matter of Riefberg*, 58 NY2d 134, 138-139 [1983] [stockholders’ agreement]; *see also* 38 NY Jur 2d, Decedents’ Estates § 260) and yet is not technically a will or controlled

thereby, it qualifies as personal property of the decedent which is “not disposed of by will” under EPTL 3-5.1 (b) (2).

The Snows maintain that it would be illogical to hold that EPTL 3-5.1 (b) (2) governs death and retirement benefit plans because another statute, EPTL 13-3.2 (a), expressly preserves plan beneficiary designations that EPTL 3-5.1 (b) (2) might otherwise disrupt if it applied to such benefit plans. However, this contention runs afoul of the modest intended scope of EPTL 13-3.2 (a). That statute says,

“[i]f a person is entitled to receive . . . payment in money, securities or other property under a pension, retirement, death benefit, stock bonus or profit-sharing plan . . . the rights of persons so entitled or designated and the ownership of money, securities or other property thereby received shall not be impaired or defeated by any statute or rule of law governing the transfer of property by will, gift or intestacy.”

At first glance, because my reading of EPTL 3-5.1 (b) (2) would make it a statute that governs a vast array of transfers of personal property upon the death of the owner, including transfer by will or intestacy, EPTL 13-3.2 (a) arguably seems to preserve beneficiary designations in benefit plans, even where EPTL 3-5.1 (b) (2) threatens to undo those designations. But the legislative history of the statute clarifies that this provision was never intended to create the sort of perplexing conflict with EPTL 3-5.1 (b) (2) that the Snows envision.

As observed by the Appellate Division in *Kane v Union Mut. Life Ins. Co.* (84 AD2d 148 [2d Dept 1981]), the legislative history of EPTL 13-3.2 (a) reveals that it was primarily intended to recodify a provision of the Personal Property Law that had prevented courts and estate representatives from invalidating beneficiary designations on the ground that the designation forms did not bear the same formalities as a will. The Appellate Division explained:

“Generally stated, the law of this State is that the designation of a beneficiary to a pension, retirement annuity or other insurance contract is not a testamentary act which must comply with the Statute of Wills (see Study: Braucher, Unification of the Rules Governing Payment of Funds by Institutional Debtors on Death of the Person

Entitled and Designations of Beneficiaries to Receive Payment of Such Funds, 1951 Report of NY Law Rev Comm, pp 609, 618). Former section 24-a of the Personal Property Law, the predecessor of EPTL 13-3.2, was recommended by the Law Revision Commission simply to remove 'any doubt as to the validity and effectiveness of beneficiary designations' of pension, annuity and insurance contracts and to indicate that such designations were not required to be executed with the formality required by the Statute of Wills (see 1952 Report of NY Law Rev Comm, p 177). Accordingly, the statute provides that the rights of such beneficiaries 'shall not be impaired or defeated by any statute or rule of law governing the transfer of property by will, gift or intestacy' (EPTL 13-3.2, subd [a]), provided that the designation is made in writing, is signed by the person making it, and is, so far as here relevant, made in accordance with the rules prescribed for the pension plan or is agreed to by the insurer (EPTL 13-3.2, subd [d], pars [1], [2]). Thus, the statute relied upon by the Kane sons merely provides that such designations of beneficiaries are *not invalid* if accomplished by a document not executed with the formalities required by the Statute of Wills, but it does not answer the question raised here, the converse of that proposition, namely, whether a provision in a will changing the beneficiaries of an insurance contract *is valid*" (*id.* at 151).

Clearly, then, the statute was intended to overcome a technicality regarding the formalities required by the Statute of Wills, not to prevent the application of EPTL 3-5.1 (b) (2) and similar laws to benefit plans. That being so, EPTL 13-3.2 (a) does not cast doubt on my proposed application of EPTL 3-5.1 (b) (2) to benefit plans. In light of my conclusion that the latter statute encompasses death benefit and retirement plans, I would answer the second certified question in the affirmative.

III.

In relation to contracts, choice-of-law issues are often vexing and complex, routinely dividing courts over the conclusion that a certain state's law applies and the proper method by which such a conclusion should be reached. But, the vagaries of this

area of law should not cause us to lose sight of the vital substantive policies established by the legislature, and where it is possible to reconcile those policies with the terms of the parties' contract, it behooves us to do so. Here, because the substantive policy of New York requires the application of EPTL 3-5.1 (b) (2) to retirement and death benefit plans, I conclude that, absent an unequivocal waiver of the statute's application, benefit plans of the kind at issue here should be interpreted to trigger EPTL 3-5.1 (b) (2). Accordingly, I would answer the first and second certified questions in the affirmative, and I dissent from the majority's contrary decision.

Chief Judge LIPPMAN and Judges PIGOTT and FAHEY concur; Judge ABDUS-SALAAM dissents and votes to answer the certified questions in the affirmative in an opinion in which Judge RIVERA concurs.

Following certification of questions by the United States Court of Appeals for the Second Circuit and acceptance of the questions by this Court pursuant to section 500.27 of this Court's Rules of Practice, first certified question answered in the negative and second certified question not answered as academic.

[45 NE3d 954, 25 NYS3d 58]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v KAITY
MARSHALL, Appellant.

Argued November 17, 2015; decided December 17, 2015

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Term of the Supreme Court in the Second Judicial Department, Second, Eleventh and Thirteenth Judicial Districts, decided February 7, 2014. The Appellate Term affirmed a judgment of the Criminal Court of the City of New York, Kings County (Shari Ruth Michels, J., at pretrial hearing; Geraldine Pickett, J., at trial and sentence), which had convicted defendant, after a nonjury trial, of attempted assault in the third degree, attempted criminal possession of a weapon in the fourth degree, menacing in the third degree and harassment in the second degree.

People v Marshall, 42 Misc 3d 141(A), 2014 NY Slip Op 50215(U), affirmed.

HEADNOTES

Crimes — Identification of Defendant — Display of Defendant's Photograph during Trial Preparation

1. The trial-preparation exception recognized in *People v Herner* (85 NY2d 877 [1995]), where the Court of Appeals held that a pretrial display of a photograph of the lineup at which the identifying witness had identified the defendant constituted trial preparation and not an identification procedure subject to the notification requirement of CPL 710.30, and the procedural mechanism designed to determine its application to a particular case, are inconsistent with New York's approach to judicial scrutiny of potentially unconstitutionally suggestive pretrial identifications. There is no reason to encumber the courts with an additional pre-*Wade* hearing. Instead, upon a defendant's motion, a court must hold a formal pretrial hearing to determine whether the police or prosecutor conducted an out-of-court identification procedure that exposed the witness to the defendant's identity in an unduly suggestive manner. The People bear the initial burden to establish a lack of any undue suggestiveness, but the defendant bears the ultimate burden of proving that the procedure was unduly suggestive. If the court finds no undue suggestiveness, the motion is denied and the People may admit the identification at trial. If the court finds the procedure to have been unduly suggestive, and the People have failed to establish by clear and convincing evidence the existence of an independent source for the identification, the motion is granted. In that case, the pretrial identification is suppressed and an in-court identification tainted by the prior identification procedure precluded.

Crimes — Harmless and Prejudicial Error — *Wade* Hearing Denied — Independent Source for In-Court Identification of Defendant

2. In the prosecution of defendant for assaulting the complainant on a city bus, the trial court's error in denying defendant's requests for a *Wade* hearing to determine the suggestiveness of the prosecutor's pretrial display to the complainant of defendant's arrest photograph was harmless, as there was record support for the court's alternative finding of an independent source for the complainant's in-court identification of defendant. The complainant testified that, two months after the incident, she saw defendant at a hospital by chance and recognized her as the assailant. She then called the police, and, when they arrived, she pointed out defendant as the woman who previously attacked her on the bus. She further testified that viewing the photograph did not affect her memory of the assailant.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Appellate Review §§ 654, 659, 703; AM JUR 2d, Evidence §§ 573, 574, 640.

CARMODY-WAIT 2d, Pretrial Motions §§ 189:279–189:281; CARMODY-WAIT 2d, Appeals in Criminal Cases § 207:117.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 10.1, 10.5, 27.6.

NY JUR 2d, Criminal Law: Procedure §§ 1620, 1621, 1624–1626, 3569, 3570.

ANNOTATION REFERENCE

See ALR Index under Description and Identification; Evidence Rules; Harmless and Prejudicial Error.

FIND SIMILAR CASES ON WESTLAW®

Database: NY-ORCS

Query: Wade /2 hearing & display /s photo! /p trial /2 prep!

POINTS OF COUNSEL

Seymour W. James, Jr., The Legal Aid Society, New York City (*Richard Joselson* of counsel), for appellant. The court violated appellant's right to due process when it declined to conduct a *Wade* hearing to assess the suggestiveness of the assistant district attorney's display, some 16 months after the incident, of appellant's lone NYPD prisoner movement slip photograph to the complainant on the erroneous ground that the display constituted permissible "trial preparation" that could not taint the identification. At the very least, the defense

should have been permitted to call the prosecutor who conducted the procedure as a witness at the *pre-Wade Herner* hearing (US Const Amend XIV; NY Const, art I, § 6). (*People v Adams*, 53 NY2d 241; *Manson v Brathwaite*, 432 US 98; *People v Chipp*, 75 NY2d 327; *People v Boyer*, 6 NY3d 427; *People v Dixon*, 85 NY2d 218; *People v Rodriguez*, 79 NY2d 445; *People v Bulgin*, 29 Misc 3d 286; *People v Jerold*, 278 AD2d 804; *People v Williams*, 8 AD3d 74; *People v Randolph*, 232 AD2d 327.)

Kenneth P. Thompson, District Attorney, Brooklyn (*Camille O'Hara Gillespie*, *Diane R. Eisner* and *Leonard Joblove* of counsel), for respondent. I. The prosecutor's brief display of a photograph of defendant to the complainant during trial preparation was not an identification procedure. In any event, the display of defendant's photograph did not taint the complainant's in-court identification of defendant. Furthermore, any error in admitting that in-court identification was harmless. (*People v Herner*, 85 NY2d 877; *People v Trammel*, 84 NY2d 584; *People v Thomas*, 60 AD3d 1341; *People v Pagan*, 248 AD2d 325, 93 NY2d 891; *People v Holton*, 225 AD2d 1021; *People v Muhammad*, 217 AD2d 773; *People v Trottie*, 167 AD2d 438; *People v Monroig*, 111 AD2d 935; *People v Gee*, 99 NY2d 158; *Matter of Dashawn R.*, 120 AD3d 1250.) II. The hearing court did not err in denying defendant's request to call the prosecutor as a witness at the pretrial hearing. In any event, any error in that ruling was harmless. (*People v Chipp*, 75 NY2d 327; *People v Witherspoon*, 66 NY2d 973; *People v Petralia*, 62 NY2d 47; *People v Herner*, 85 NY2d 877; *People v Abrew*, 95 NY2d 806; *People v Peterkin*, 75 NY2d 985; *People v Whaul*, 63 AD3d 1182; *People v Morrison*, 244 AD2d 168; *People v Sanchez*, 230 AD2d 634; *People v Ocasio*, 134 AD2d 293.)

Kramer Levin Naftalis & Frankel LLP, New York City (*David S. Frankel* and *Sarah C. White* of counsel), and *The Innocence Project, Inc.*, New York City (*Barry C. Scheck* and *Karen A. Newirth* of counsel), for Innocence Project, Inc., amicus curiae. I. A robust body of scientific research concerning eyewitness memory and perception makes clear that both of the identifications in this case were the product of unduly suggestive procedures. (*Manson v Brathwaite*, 432 US 98; *People v Adams*, 53 NY2d 241; *People v Santiago*, 17 NY3d 661; *People v Abney*, 13 NY3d 251; *People v LeGrand*, 8 NY3d 449.) II. The *Herner* trial preparation exception should be eliminated. (*United States v Wade*, 388 US 218; *People v Adams*, 53 NY2d 241; *Young v Conway*, 698 F3d 69; *People v Johnson*, 81 NY2d

828; *Matter of James H.*, 34 NY2d 814; *Manson v Brathwaite*, 432 US 98; *Dunnigan v Keane*, 137 F3d 117; *People v Hughes*, 59 NY2d 523.) III. First time in-court identifications should be excluded absent a showing of “good reason.” (*People v Santiago*, 17 NY3d 661; *People v Adams*, 53 NY3d 241; *People v Rodriguez*, 79 NY2d 445; *People v Duuvon*, 77 NY2d 541; *People v Gissendanner*, 48 NY2d 543; *United States v Rogers*, 126 F3d 655; *United States v Archibald*, 734 F2d 938; *Kampshoff v Smith*, 698 F2d 581; *United States v Williams*, 436 F2d 1166; *People v Johnson*, 81 NY2d 828.)

OPINION OF THE COURT

RIVERA, J.

Defendant claims that the trial court, relying on *People v Herner* (85 NY2d 877 [1995]), and affirmed by the Appellate Term, improperly denied her request for a *Wade* hearing to determine the suggestiveness of a prosecutor’s pretrial display to complainant of defendant’s arrest photograph, on the ground that the display was trial preparation, and not an identification procedure. Defendant further argues that we should repudiate a practice that has developed post-*Herner* into an exception to Criminal Procedure Law § 710.30.

Upon consideration of the applicable statutory mandates and case law, as well as the concerns over mistaken identification and the potential risk of wrongful convictions based on eyewitness error, we conclude that the trial-preparation exception and the procedural mechanism designed to determine its application to any particular case, the so-called *Herner* hearing, serve as an obstacle to judicial scrutiny of potentially unconstitutionally suggestive identification procedures. The *Herner* procedure is, furthermore, unnecessary, because a *Wade* hearing adequately ensures against the admission of an unreliable identification.

We further conclude that the trial court here improperly denied defendant’s requests for a *Wade* hearing, but such error was harmless as there is record support for the trial court’s alternative finding of an independent source for complainant’s in-court identification of defendant. Therefore, Appellate Term should be affirmed.

I.

The People charged defendant Kaity Marshall with several offenses arising from an assault of a passenger on a New York

City bus. Initially, the police were unable to locate a suspect, despite descriptions of the assailant from the complainant and the bus driver. Then, two months after the incident, complainant was at a hospital pharmacy when, by mere happenstance, she saw defendant and recognized her. Complainant immediately called the police, and identified defendant as the assailant. Defendant was arrested at the hospital and later charged with assault in the third degree (Penal Law § 120.00 [1]), criminal possession of a weapon in the fourth degree (Penal Law § 265.01 [2]), menacing in the second degree and third degree (Penal Law §§ 120.14, 120.15), and harassment in the second degree (Penal Law § 240.26 [1]).

Eighteen months after the bus incident, and the day before a scheduled court appearance on defendant's criminal case, the prosecutor met with complainant and showed her a photograph of defendant taken on the day of her arrest. In court the following day, the prosecutor informed the judge and defense counsel that as part of trial preparation he had shown complainant the photograph in order to aid him in understanding her description of defendant's hairstyles on the day of the attack and when she was arrested.

As part of defendant's omnibus motion, and in response to the prosecutor's disclosure, defense counsel requested a hearing pursuant to *Herner* (85 NY2d at 879) to establish that the photograph display constituted an identification procedure under CPL 710.30, necessitating a *Wade* hearing to determine whether the display was unduly suggestive. In support of the motion, counsel argued that the photograph display likely tainted complainant's anticipated in-court identification, "thus transforming [complainant's] initial identification into one that is now certain based on a suggestive identification procedure," which therefore required preclusion of the identification made at the hospital. Counsel also requested to call as a witness the Assistant District Attorney (ADA) who displayed the photograph to complainant.

The court granted the hearing but denied the request to call the ADA. Instead, the sole witness at the hearing was complainant, who testified not only about the meeting with the ADA, but also about the attack, the assailant's appearance and her identification of defendant at the hospital. In recounting the incident, complainant asserted that she took a good look at the assailant so that she would recognize her if she ever saw her again. She described the assailant as a black woman, between

20 and 40 years of age, who, as compared to herself, had a straighter face, a slightly larger nose and a much darker complexion. Complainant further testified that the next time she saw the assailant was by chance, at a hospital, two months after the incident. She stated that she had no doubt that this woman was the same person who had attacked her on the bus.

In response to questions about her meeting with the ADA, complainant testified that he showed her a photograph and asked her if she knew the picture, that the photograph was blurry and that she had only glanced at it. She also stated that the photograph did not change her mind about her memory of the attacker. The People did not submit the photograph into evidence. On cross-examination, complainant stated that she had not seen a photograph of the woman who was arrested, had not previously seen the photograph shown to her at the meeting with the ADA, and that she did not remember the ADA asking about defendant's hairstyle, or for a description of the assailant.

In her post-hearing submission, defense counsel again argued that the photograph display was a suggestive identification procedure that should be tested further in a *Wade* hearing, and that defendant should be permitted to call as a witness the ADA who interviewed complainant. The People responded that the display was trial preparation, and, regardless, they did not intend to offer the photograph into evidence because complainant's pre-arrest hospital identification of defendant served as an untainted basis for an in-court identification.

The court rejected defendant's arguments and determined that the photograph display was part of trial preparation. The court also concluded that, given complainant's prior identification of defendant at the hospital, her "brief viewing of the blurry photo [would] not taint an in-court identification of Defendant."

II.

At defendant's nonjury trial, the People relied heavily on eyewitness testimony from complainant and the bus driver. Complainant repeated much of the testimony from the pretrial hearing. She again recounted that one afternoon she was seated riding a city bus in Brooklyn with her daughter when another female passenger, whom complainant had never seen before, stood in front of her to look out the window and stepped on her foot. After the woman sat down, complainant remarked

to her that she had failed to apologize. The woman then stood up and punched complainant repeatedly in the face, nose and head, giving complainant a bloody nose and injuring her left eye. During the physical altercation, complainant attempted to defend herself, but the woman pulled out a knife and threatened to kill her. Several passengers were screaming, causing the bus driver to look in the rearview mirror where he saw the woman, who was unknown to him, and complainant, whom he recognized as a previous passenger. He again briefly saw the assailant, now wearing sunglasses, as she exited the bus when it reached the next stop.

Complainant made an in-court identification of defendant as her assailant. Complainant also testified as to her out-of-court, spontaneous identification of defendant at the hospital. Complainant made no reference to any other pretrial identification and did not testify about the photograph display. The People did not submit the photograph into evidence.

The People's other eyewitness was the bus driver, who made an in-court identification of defendant as the woman he observed punch complainant in the face. He testified that during the altercation he took a good look at defendant's face, and described for the court the attacker's race, approximate age, weight and clothing.

Defendant testified that she was with her mother at a laundromat at the time of the attack. She submitted into evidence her cellular telephone records, which showed that calls were made and text messages were sent from her phone at the approximate time of the incident. The records indicated that two of these text messages were sent to her mother's phone number, which defendant claimed were unintentional. Defendant further testified that on the day of her arrest she heard complainant tell the officers that she was not sure defendant was the attacker, and asked to call her daughter to verify, and that later, at the precinct, defendant saw complainant with a younger woman, who she overheard say "[M]om, that's not her."

Defendant's mother also testified, and corroborated that her daughter was with her at a laundromat and that defendant was texting on her phone at the time of the incident. On cross-examination, defendant's mother admitted that she had not previously informed defense counsel, the prosecutor or the police that defendant was with her on the day of the attack.

On rebuttal, the People presented testimony from the two arresting officers who stated that complainant told them she was 100% sure defendant was the attacker and that she never wavered.

The court found defendant guilty of attempted assault in the third degree (Penal Law §§ 110.00, 120.00 [1]), attempted criminal possession of a weapon in the fourth degree (Penal Law §§ 110.00, 265.01 [2]), menacing in the third degree (Penal Law § 120.15), and harassment in the second degree (Penal Law § 240.26 [1]). The Appellate Term affirmed, concluding as relevant here, that the pretrial photograph display was permissible trial preparation and, since complainant identified defendant upon her arrest, the display did not taint complainant's in-court identification. The court also rejected defendant's claim that the ADA should have been called at the hearing (42 Misc 3d 141[A], 2014 NY Slip Op 50215[U] [App Term, 2d Dept, 2d, 11th & 13th Jud Dists 2014]). A Judge of this Court granted defendant leave to appeal (23 NY3d 1039 [2014]). We now affirm.

III.

Wrongful convictions based on mistaken eyewitness identifications pose a serious danger to defendants and the integrity of our justice system (*United States v Wade*, 388 US 218, 228 [1967] ["The vagaries of eyewitness identification are well-known; the annals of criminal law are rife with instances of mistaken identification"]; *People v Santiago*, 17 NY3d 661, 669 [2011] ["mistaken eyewitness identifications play a significant role in many wrongful convictions"]; *People v Riley*, 70 NY2d 523, 531 [1987] ["The complex psychological interplay and dependency of erroneously induced identification . . . must be vigilantly guarded against because (it) drives right into the heart of the adjudicative guilt or innocence process affecting the person accused and identified"]; *People v Caserta*, 19 NY2d 18, 21 [1966] ["One of the most stubborn problems in the administration of the criminal law is to establish identity by the testimony of witnesses to whom an accused was previously unknown, from quick observation under stress or when . . . there was no particular reason to note the person's identity"]).

Apart from the uncertainty of human memory, suggestive identification procedures "increase the dangers inhering in eyewitness identification" (*Wade*, 388 US at 229). A pretrial identification procedure that unduly suggests a defendant's

guilt of the charged offense increases the risk of misidentification by improperly influencing the witness. As the Supreme Court has recognized,

“[p]ersons who conduct the identification procedure may suggest, intentionally or unintentionally, that they expect the witness to identify the accused. Such a suggestion, coming from a police officer or prosecutor, can lead a witness to make a mistaken identification. The witness then will be predisposed to adhere to this identification in subsequent testimony at trial” (*Moore v Illinois*, 434 US 220, 224-225 [1977]).

Furthermore, even employing “the most correct photographic identification procedures,” displays conducted by the police contain “some danger that the witness may make an incorrect identification” (*Simmons v United States*, 390 US 377, 383 [1968]). “Regardless of how the initial misidentification comes about, the witness thereafter is apt to retain in . . . memory the image of the photograph rather than of the person actually seen, reducing the trustworthiness of subsequent lineup or courtroom identification” (*id.* at 383-384). It is inescapable that “[a] major factor contributing to the high incidence of miscarriage of justice from mistaken identification has been the degree of suggestion inherent in the manner in which the prosecution presents the suspect to witnesses for pretrial identification” (*Wade*, 388 US at 228).

The unfairness to the defendant and the unreliability of such procedures adversely impact the truth-finding process. Therefore, a pretrial identification procedure that is unduly suggestive violates a defendant’s due process rights and is “not admissible to determine the guilt or innocence of an accused” (*People v Chipp*, 75 NY2d 327, 335 [1990], citing *Wade*, 388 US 218, *People v Blake*, 35 NY2d 331 [1974], *Riley*, 70 NY2d 523, *People v Adams*, 53 NY2d 241 [1981]).

A defendant may generally challenge suggestive procedures pursuant to CPL 710.30, which New York’s legislature enacted in “response to the problem of suggestive and misleading pretrial identification procedures” (*People v Gissendanner*, 48 NY2d 543, 552 [1979]), and in “recognition of the importance of testing the reliability of identification testimony before trial” (*People v Rodriguez*, 79 NY2d 445, 449 [1992]). This Court has explained that “[t]he statutory scheme ensures that the identifications are not the product of undue suggestiveness,

and lessens the possibility of misidentification” (*People v Boyer*, 6 NY3d 427, 431 [2006], citing *Rodriguez*, 79 NY2d at 449, *People v Newball*, 76 NY2d 587, 590-591 [1990]). As the Court stated in *Boyer*, “[t]he statutory mandate is plain and the procedure simple: the People serve notice, the defendant moves to suppress and the court holds a *Wade* hearing to consider the suppression motion” (6 NY3d at 431). Although a court may summarily deny a request to suppress evidence where the defendant fails to allege a legal basis for the motion (CPL 710.60 [3]), “so long as the motion alleges undue suggestiveness, the defendant is generally entitled to a *Wade* hearing” (*Boyer*, 6 NY3d at 431).

Furthermore, if “the pretrial identification procedure is shown to be impermissible and improper, any in-court identifications, though not per se excludable, are not to be received in evidence ‘without first determining that they were not tainted by the illegal [procedure] but were of independent origin’ ” (*People v Ballott*, 20 NY2d 600, 606 [1967], quoting *Gilbert v California*, 388 US 263, 272 [1967]; see also *People v Logan*, 25 NY2d 184 [1969]; *People v Rahming*, 26 NY2d 411, 416 [1970]). In other words, an in-court identification is admissible only if the People establish by clear and convincing evidence that it “was neither the product of, nor affected by, the improper pretrial” procedure (*Rahming*, 26 NY2d at 416, citing *Logan*, 25 NY2d at 191, *Ballott*, 20 NY2d at 606-607).

Here, rather than focus the hearing directly on whether the photograph display was unduly suggestive, the court proceeded to consider whether, as the People argued, the display was trial preparation and thus fell outside the ambit of CPL 710.30, or, as the defendant maintained, the display constituted an identification procedure and thus a proper subject of a *Wade* hearing. The court, defendant and the People interpreted this Court’s memorandum decision in *Herner* as approving what is essentially a pre-*Wade* hearing designed to assess the need for a judicial determination on suggestiveness.

In *Herner* (85 NY2d at 878), during the course of preparing the identifying witness to testify at trial, the prosecutor showed her a picture of the lineup at which she had identified the defendant. The prosecutor asked if she remembered the lineup, and the witness answered affirmatively (*id.*). The witness was also shown the picture a second time the morning before she testified (*id.*). This Court agreed with the courts below that the pretrial display of the photograph was trial preparation and

not an identification procedure subject to the notification requirement of CPL 710.30. Lower courts have construed *Herner* as establishing a so-called trial-preparation exception to a *Wade* hearing (see e.g. *People v Bulgin*, 29 Misc 3d 286, 304 [Sup Ct, Bronx County 2010] [identification of defendant in photograph arrays approximately 16 months after the showup and original photograph identification was trial preparation]; *People v Jackson*, 43 AD3d 488, 489 [3d Dept 2007] [review of tape recordings of meetings between a confidential informant and the defendant just before the confidential informant's testimony at trial were trial preparation and not identification procedures and therefore did not require notice under CPL 710.30]; *People v Hopkins*, 284 AD2d 223, 223 [1st Dept 2001] [witness's viewing of arrest photographs of defendant and codefendant prior to the witness's testimony to review the roles of each in the robbery was trial preparation and not an identification procedure and therefore the *Wade* hearing was unnecessary]; *People v Jerold*, 278 AD2d 804, 804 [4th Dept 2000] [as the witness had already identified the defendant, her viewing, before testifying, of a photograph array and another photograph of the defendant was trial preparation and did not taint her subsequent in-court identification of the defendant]; *People v Randolph*, 232 AD2d 327, 327 [1st Dept 1996] [witness's viewing of photographs of the defendant and two other people arrested in connection with the case, in order to help the witness, who was not fluent in English, to explain the roles of each person in the robbery was not an identification procedure, and therefore was not subject to the requirements of CPL 710.30]).

[1] Defendant claims that the trial-preparation exception recognized in *Herner* is inconsistent with New York's approach to suggestive pretrial identifications. We agree. By employing this truncated hearing protocol, the court failed to reach the essential question whether the photograph display was unduly suggestive, and, if so, whether it tainted complainant's identification of defendant. When a defendant challenges the suggestiveness of an out-of-court viewing of defendant's likeness, the central issue presented for judicial consideration is whether the pretrial display is conducted under circumstances bearing the earmarks of improper influence and unreliability, which create the risk of mistaken identification and thus infect the truth-seeking process.

The concern that a pretrial identification will result in witness error is the same regardless of the People's motive.

Whether the procedure is intended to refresh or anchor the identification of defendant in the witness's memory before trial, or intended to assist the ADA in preparing the case, the relevant inquiry remains the same: was the observation of defendant unduly suggestive, rendering the subsequent identification unreliable.

Indeed, this Court has previously recognized that showing one photograph of a defendant—the procedure at issue in defendant's case—carries the risk of undue suggestiveness and entitles defendant to a *Wade* hearing (*Rodriguez*, 79 NY2d at 453 [“Defendant was presumptively entitled to the *Wade* hearing on alleging that the police display of a single photo to (the identifying witness) was suggestive”]; *Matter of James H.*, 34 NY2d 814, 816 [1974] [“The danger is increased when a single photograph is exhibited which tends to emphasize the person portrayed as the person sought”]). We can find no basis to maintain a distinction between viewings of a defendant's image in preparation for trial and any other out-of-court identifications. Both expose a witness to defendant's likeness, with the potential risk for undue suggestiveness.

We therefore see no reason to encumber our courts with an additional pre-*Wade* hearing. Instead, upon defendant's motion, a court must hold a formal pretrial hearing to determine whether the police or prosecutor conducted an out-of-court identification procedure that exposed the witness to defendant's identity in an unduly suggestive manner (*Boyer*, 6 NY3d at 431). The People bear the initial burden to establish a lack of any undue suggestiveness, but the defendant “bears the ultimate burden of proving that the procedure was unduly suggestive” (*Chipp*, 75 NY2d at 335). If the court finds no undue suggestiveness, the motion is denied and the People may admit the identification at trial. If the court finds the procedure to have been unduly suggestive, and the People have failed to establish by clear and convincing evidence the existence of an independent source for the identification, the motion is granted (*Rahming*, 26 NY2d at 417). In that case, the pretrial identification is suppressed and an in-court identification tainted by the prior identification procedure precluded (*Chipp*, 75 NY2d at 335). We recognize that absent a showing of suggestiveness the People bear no burden to come forward with evidence of an independent source (*id.*). However, we repeat our previous

observation that to avoid unnecessary additional proceedings, the hearing should fully address whether there is some basis for inclusion at trial of the challenged identification (see *People v Wilson*, 5 NY3d 778, 780 [2005] [“in light of the ‘risk for completely renewed proceedings’ whenever a pretrial identification is challenged, the People are generally well-advised to come forward with any independent source evidence at a *Wade* hearing so that the suppression court may, where appropriate, rule in the alternative”], quoting *People v Burts*, 78 NY2d 20, 25 [1991]).

[2] Here, the People maintain defendant is not entitled to a *Wade* hearing because the ADA showed defendant’s arrest photograph to complainant in order for complainant to explain defendant’s appearance on the separate occasions of the attack and her arrest, and not for purposes of an identification.¹ However, complainant had to determine whether the person in the picture was the person she remembered as the assailant. Defendant correctly argues she was entitled to a *Wade* hearing

1. The People alternatively argue that no *Wade* hearing is required because complainant failed to identify defendant during the display of the photograph, as in the case of *People v Trammel* (84 NY2d 584 [1994]). However, because complainant’s lack of identification is disputed, and the record is subject to conflicting interpretations on this question, we find *Trammel* inapplicable under the unique circumstances of this case. Here, because the People failed to introduce the photograph at the hearing, and the complainant’s testimony was unclear and appeared to contradict the ADA’s description of the meeting, defendant was entitled to explore the circumstances of complainant’s viewing of the photograph. Thus, while a hearing is generally unnecessary where the record reveals no substantial basis to dispute the lack of a pretrial identification, here such a substantial basis exists, removing this case from *Trammel*’s ambit. Moreover, if, as the People contend, complainant failed to recognize the person in the picture as the assailant, defendant may have been entitled to this material under *Brady v Maryland* (373 US 83, 87 [1963] [“suppression by the prosecution of evidence favorable to an accused upon request violates due process where the evidence is material either to guilt or to punishment”]).

The People also claim that the court was not required to determine the suggestiveness of the photograph display because the People did not intend to, and, in fact, did not, introduce the photograph as part of the prosecution’s case-in-chief. While true, this does not alter our analysis because the complainant made an in-court identification during the prosecutor’s direct examination, and our case law is clear that before an in-court identification may be admitted the People must establish that it was not tainted by a suggestive and improper prior identification procedure (see *Rahming*, 26 NY2d at 416). Thus, at a minimum, defendant was entitled to a *Wade* hearing on the suggestiveness of the photograph display as it pertains to complainant’s in-court identification of defendant as the assailant.

to determine if the display was unduly suggestive, and, therefore, tainted an in-court identification.²

However, on the facts of this case, this error was harmless. As is clear under the law, the People are entitled to establish that there is an independent source for an in-court identification (*Wade*, 388 US at 241; *Chipp*, 75 NY2d at 335; *Adams*, 53 NY2d at 248). Here, the trial court relied on complainant's identification of defendant at the hospital for its finding that there was no substantial likelihood that complainant misidentified defendant and thus concluded that the photo did not taint the in-court identification of defendant. In essence, the court found an independent source and the Appellate Term affirmed.³ Such determination resolved an issue of fact and therefore is beyond our review if supported by the record, unless the determination is erroneous as a matter of law (*People v Young*, 7 NY3d 40, 44 [2006], citing *People v Malloy*, 55 NY2d 296, 300 [1982]; *People v Dickerson*, 50 NY2d 937, 938 [1980]).

On the record before us we cannot say there is no support for the court's finding. The complainant testified at the hearing that she saw defendant at the hospital by chance and recognized her as the assailant. She then called the police, and, when they arrived, she pointed out defendant as the woman who previously attacked her on the bus. She further testified that viewing the photograph did not affect her memory of the assailant. This was sufficient to establish an independent source for the complainant's in-court identification.⁴

2. Defendant did not challenge the bus driver's in-court identification; therefore we have no occasion on this appeal to consider any potential suggestiveness and admissibility of first-time, in-court identifications, as urged by amicus.

3. The dissent argues that there was no independent source finding because the trial court's reference to the blurry photo was merely "an effort to lend additional support to its conclusion that the display did not qualify as an identification procedure at all" (dissenting op at 511 n 1). This selective reading of the opinion is contradicted by the trial court's conclusion that the hospital viewing and the photo display would not taint an in-court identification.

4. Our opinion in no way retreats from our recognition in *People v Santiago* (17 NY3d 661, 670 [2011]) and *People v LeGrand* (8 NY3d 449, 458 [2007]) that post-event information affects the accuracy of subsequent identifications. However, we disagree with the dissent's apparent assertion that on the strength of the statements in those prior cases defendant is entitled to another hearing (dissenting op at 513). Nor did defendant fully develop below, and thus preserve for our consideration, her argument that an independent source identification may be subject to the same dangers of

(n. cont'd)

Nevertheless, defendant claims that she did not have an opportunity to address the independent source issue because the court, the People and defense counsel understood the hearing to be limited to the trial preparation/identification procedure question. While there is some support in the hearing transcripts for defendant's argument that the hearing was circumscribed, the record also establishes that defense counsel did, in fact, cross-examine complainant about the hospital identification. She asked complainant why she was at the hospital pharmacy, how much time passed before she recognized defendant, how she came to notice the defendant, what the defendant was wearing and doing when complainant saw her, and the circumstances leading to complainant calling the police. Such questions were wholly unnecessary if, as defendant contends, she understood the hearing to focus solely on the suggestiveness of the photograph display.

Furthermore, defendant cannot argue that she was unaware of the proposed alternative ground for the in-court identification, or, as the dissent suggests, that the People limited their argument to whether the display was trial preparation or an identification procedure. The People consistently took the position in their opposition papers to defendant's request for a hearing and in their post-hearing memorandum that the prior hospital identification was an independent source. Indeed, in anticipation of the People's argument on this ground, defendant asserted in her post-hearing submission that whether prior viewings of defendant provided the basis for an independent in-court identification should be resolved in a *Wade* hearing or in an independent source hearing. Moreover, defendant's request for another hearing, even though record evidence of an independent source exists, encourages the unnecessary expenditure of judicial resources and is at odds with the procedure sanctioned in *People v Burts* (78 NY2d at 24-25) and *People v Wilson* (5 NY3d at 780). In those cases, this Court recommended that the People present evidence of the independent source at the pretrial hearing, so as to avoid the need for renewed hearings should the trial court's non-suggestiveness determination be reversed on appeal.

eye-witness misidentification as those associated with law-enforcement orchestrated pretrial identifications procedures. Therefore, we provide no opinion on whether the developing data and case law on memory and eye-witness identification puts in question the continuing viability of independent source identifications.

Given our decision we have no occasion to address defendant's claim that the court erred in denying her request to call the ADA as a witness at the hearing.

Accordingly, the order of the Appellate Term should be affirmed.

Chief Judge LIPPMAN (dissenting). Although I agree with the majority that the *Herner* dichotomy, between trial preparation on the one hand and identification procedures on the other (see *People v Herner*, 85 NY2d 877, 879 [1995]), is not conceptually valid and should not be used to shield from *Wade* scrutiny pretrial prosecutorial photo displays to an identifying witness, I cannot agree that defendant was afforded the *Wade* hearing to which she was decidedly entitled, much less that the People at the hearing held met their initial *Wade* burden to demonstrate the nonsuggestiveness of the subject photo display. Nor do I find it possible to conclude that the presumption of suggestiveness arising from the prosecutor's display of a single arrest photograph of defendant to the complainant was otherwise overcome by what the majority retrospectively dubs "independent source" evidence.

It is, first of all, plain that defendant was never afforded a full *Wade* hearing and that this was by design, since the announced purpose of the so-called "*Herner*" hearing was to determine whether a *Wade* hearing would be needed; indeed, the premise upon which the *Herner* proceeding was conducted was that if the photo display lent itself to description as "trial preparation," no *Wade* hearing would be necessary. And, while there was some inquiry at the hearing as to the circumstances attending the complainant's observation of her assailant and her two-month removed identification of defendant in a hospital waiting area, the scope of that inquiry was curtailed in accordance with what the court and the parties understood to be the narrow focus of the hearing. This shared understanding was expressly confirmed at the hearing's conclusion:

"THE COURT: What is the issue?

"[PROSECUTOR]: *The issue is if it [was] permissible trial prep or an identification procedure.* If it was an identification procedure under the Penal Law th[en] it was --

"THE COURT: Then it is a *Wade* hearing.

"[PROSECUTOR]: Right. *We are not at the point --*

"THE COURT: But as the first step both agree if it is ID procedure.

“[DEFENSE COUNSEL]: *That is our position as well, if this hearing is for the sole purpose of determining whether or not if the identification procedure, our [sic] trial preparation, if it is deemed to be ID procedure then this gets sent to the Wade hearing.*

“[PROSECUTOR]: Yes.

“THE COURT: All right and I will need you both parties to clarify what your positions are on what fact[s] the Court should determine or consider *in determining whether it is an ID procedure*” (emphasis added).

Consistent with this understanding, defendant’s attorney in her posthearing submission reiterated “[t]he *Herner* hearing is for the sole purpose of determining whether the state action constituted an ID process,” and the prosecutor argued not that there was an independent source for an in-court identification, but rather that because the photo display did not result in an identification—the image having according to the complainant been too “blurry” for that purpose—there had been no identification procedure that could have affected the basis for plaintiff’s prospective, i.e. in-court, identification. This argument did not invite a finding that there was an independent source for complainant’s in-court identification, i.e., one sufficient to overcome an intervening suggestive identification procedure, only that there had not been anything that could qualify as an intervening identification procedure.

The issue of independent source, then, never having been actually litigated in the context of what was by record agreement a hearing limited to the question of whether or not there had been an identification procedure, there is no preserved argument as to independent source before us, much less anything that could qualify as a competent finding of independent source to support the majority’s harmless error gloss.¹ Indeed, even if this Court were empowered to make a de novo

1. Contrary to the majority’s characterization, the motion court did not purport to base its decision of the motion on a finding of independent source. The motion court quite plainly found that the display of the photo was shielded from *Wade* scrutiny under what it understood to be the *Herner* trial preparation doctrine. Its observation that the display of the assertedly unrecognizably “blurry” photo would not taint complainant’s in-court identification, viewed in context, was simply an effort to lend additional support to its conclusion that the display did not qualify as an identification procedure at all, a conclusion that this Court is now unanimous in rejecting.

independent source finding, which it is not, there is no record to support one.

Had there been a *Wade* hearing as there should have, since, as the majority correctly notes, there is “no basis to maintain a distinction between viewings of a defendant’s image in preparation for trial and any other out-of-court identifications [since] [b]oth expose a witness to defendant’s likeness, with the potential risk for undue suggestiveness” (majority op at 506), the prosecution would have had the burden of going forward to demonstrate that the photo display was not unduly suggestive (see *People v Chipp*, 75 NY2d 327, 335 [1990], *cert denied* 498 US 833 [1990]). And, where a display of photographs is concerned, that burden cannot be met without either the production of the photograph(s) or testimony detailing the procedures employed to guard against undue suggestiveness (see *People v Holley*, 26 NY3d 514, 521-524 [2015] [decided herewith]). Here, the arrest photograph shown complainant was never produced and the only proof that its display was nonsuggestive was the complainant’s testimony that the image was too blurred to recognize. Of course, in the absence of the photo or testimony by the prosecutor who displayed it to complainant, there was no way to judge, or for defendant to challenge the truth of, complainant’s facially improbable claim that the arrest photograph, evidently created for the purpose of identifying defendant while she was in custody and purportedly shown to her to enable her verification of defendant’s hairstyle at the time of her arrest, was in fact of such poor quality as to be useless for those purposes. This proof, such as it was, was altogether inadequate to meet the burden that would have been the People’s had this been a *Wade* proceeding, to show that the pretrial display by the prosecutor of a single arrest photograph of the defendant to the complaining witness some 16 months subsequent to that arrest and 18 months after the incident upon which the arrest identification was premised was not unduly suggestive. Since the People manifestly did not meet their initial *Wade* burden, they would as a condition of having complainant identify defendant in court have been required to demonstrate, by clear and convincing evidence, that there was an independent basis for complainant’s in-court identification (see *Chipp*, 75 NY2d at 335). But, plainly, without any means of judging the potency of the intervening presumably suggestive photo display, any conclusion that complainant’s temporally distant observations of her assailant would

independently inform her in-court identification could have been based on no more than supposition.

We have recognized the principle, generally accepted among social scientists and cognitive psychologists,² that postevent information affects identification accuracy (see *People v Santiago*, 17 NY3d 661, 670 [2011]; *People v LeGrand*, 8 NY3d 449, 458 [2007]). It is not consistent with that recognition to simply assume that a display as potentially suggestive as the prosecutor's was to complainant could have had no distorting effect on her remotely formed memory of her assailant and her trial account of the bus altercation. Certainly, there is not clear and convincing evidence to support that conclusion. In this connection, it should be noted that complainant never identified her assailant out of a pretrial lineup or photo array, much less out of one nonsuggestively composed. Her memory of her assailant, then, was never objectively tested or fixed during the long interval between the incident and defendant's trial, and, as related in her trial testimony, was thus to an unascertainable degree an amalgam of layers of recollection increasingly malleable and susceptible to suggestion with the passage of time. Whether, under these circumstances, the display of the photograph raised a substantial likelihood of irreparable misidentification was, in accordance with the requisites of constitutionally mandated due process, a matter to be fully explored at a pretrial *Wade* hearing. Inasmuch as such a hearing never took place, and the record created at the *Herner* proceeding designedly was not a functional *Wade* equivalent, the order of the Appellate Term should be reversed and the matter remitted for a new trial, to be preceded by an actual, properly noticed *Wade* hearing (see *People v Burts*, 78 NY2d 20, 25 [1991]).

Judges PIGOTT, ABDUS-SALAAM and FAHEY concur; Chief Judge LIPPMAN dissents in an opinion in which Judge STEIN concurs.

Order affirmed.

2. The majority chides defendant for not "fully develop[ing]" this line of argument below, but apart from the circumstance that the argument rests on principles we have already recognized, the criticism is particularly inapt in the context of an opinion resting upon a post hoc appellate construction of a *Wade* hearing.

[45 NE3d 936, 25 NYS3d 40]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TODD HOLLEY, Appellant.

Argued November 17, 2015; decided December 17, 2015

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered April 3, 2014. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Ruth Pickholz, J., at suppression hearing; Juan M. Merchan, J., at jury trial and sentencing), which had convicted defendant, upon a jury verdict, of attempted robbery in the third degree and assault in the third degree (two counts).

People v Holley, 116 AD3d 442, affirmed.

HEADNOTES

Crimes — Identification of Defendant — Photographic Array — Failure to Preserve Record of Photographs Shown — Presumption of Suggestiveness

1. The failure of police to preserve a photographic array shown to an identifying witness gives rise to a rebuttable presumption that the array was suggestive, i.e., that the People have failed to meet their initial burden of going forward to establish the lack of any undue suggestiveness in a pretrial identification procedure. The People may rebut the presumption by means of testimony detailing the procedure used to safeguard against suggestiveness.

Crimes — Identification of Defendant — Photographic Array — Requirement to Preserve Record of Photographs Shown

2. The requirement that police preserve a photographic array shown to an identifying witness applies to both photo books and computer-generated photo arrays. A detective who shows an identifying witness a book of photographs must preserve the photographs that were shown, together with their arrangement in the book, and must keep some record of the order in which the pages were displayed. Similarly, a detective who shows a witness photographs on a computer-assisted system must carry out whatever steps are necessary to ensure that he or she can recreate in some way during a suppression hearing the display of the photographs in the precise arrangement and order in which they were shown to the witness. This requirement falls within the category of preserving evidence as required by the law protecting the defendant's right to a fair trial.

Crimes — Identification of Defendant — Photographic Array — Failure to Preserve Record of Photographs Shown Using Computer-Generated Array — Rebuttable Presumption of Suggestiveness

3. In the prosecution of defendant, who was arrested on charges of attempted robbery and assault after he was identified by an eyewitness who

viewed a photo array generated by a computer photo manager system based on criteria entered by the detective, the People rebutted the presumption that the photo array was unduly suggestive based on the fact that the police did not preserve the photographic array that was shown to the witness. The failure of police to preserve a photographic array shown to an identifying witness gives rise to a rebuttable presumption that the array was suggestive, i.e., that the People have failed to meet their initial burden of going forward to establish the lack of any undue suggestiveness in a pretrial identification procedure. The People may rebut the presumption by means of testimony detailing the procedure used to safeguard against suggestiveness. Here, the detective who generated the photo array and showed it to the eyewitness testified that he did not consider defendant a suspect before showing the photograph, and that the eyewitness viewed about 100 photographs and consistently identified only defendant. While the detective did not include any weight range into the system, despite being told by the victims that the man was “skinny,” there was support in the record for the finding that the detective entered enough information about the perpetrator’s physical features to ensure that the photo manager system would generate a fair selection of photos rather than an array in which defendant’s image would stand out as markedly different.

Crimes — Identification of Defendant — Lineup

4. In the prosecution of defendant for attempted robbery and assault, there was record support for the Appellate Division decision upholding the lineup in which the fillers ranged in age from 10 years younger than defendant to 25 years older and weighed 20 to 90 pounds more than defendant. The Appellate Division found that any differences between defendant and the other participants, including an age disparity not fully reflected in the participants’ actual appearances, and a weight disparity that was minimized by having the participants seated, was not so noticeable as to single defendant out. A numerical age difference existing between a defendant and the fillers in a lineup, without more, is not sufficient to create a substantial likelihood that the defendant would be singled out. Moreover, there was record support for the determination that the disparity in weight was minimized.

Crimes — Identification of Defendant — Improper Bolstering of Identification Evidence

5. In the prosecution of defendant for attempted robbery and assault, the testimony of the police detective at trial that, after getting descriptions of the perpetrator from the witnesses, he carried out further investigation with information beyond the descriptions, which generated one suspect, namely defendant, did not state or imply that anyone made an identification. Thus, the testimony did not violate the evidentiary rule that, in the context of eyewitness identification, the testimony of a third party to the effect that the witness identified a defendant as the perpetrator on some prior occasion is generally inadmissible.

RESEARCH REFERENCES

By the Publisher’s Editorial Staff

AM JUR 2d, Criminal Law §§ 923–924; AM JUR 2d, Depositions and Discovery § 280; AM JUR 2d, Evidence §§ 571, 575, 636–640, 688, 975, 985–986.
CARMODY-WAIT 2d, Eyewitness Identification Procedures

§§ 174:20, 174:46, 174:49, 174:51–174:59, 174:64–174:66; CARMODY-WAIT 2d, Discovery § 187:97; CARMODY-WAIT 2d, Particular Types of Evidence §§ 194:225–194:226, 194:231.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 7.3–7.5, 24.3.

NY JUR 2d, Criminal Law: Procedure §§ 665, 674, 695–697, 702–704, 1625, 2067, 2072, 2203.

ANNOTATION REFERENCE

Failure of state prosecutor to disclose exculpatory photographic evidence as violating due process. 93 ALR5th 527.

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POINTS OF COUNSEL

Seymour W. James, Jr., The Legal Aid Society, New York City (*Andrew C. Fine* and *Lawrence T. Hausman* of counsel), and *Boies, Schiller & Flexner LLP*, New York City (*Stephen Kyriacou, Jr.*, of counsel), for appellant. I. Appellant was subjected to unduly suggestive pretrial identification procedures because, first, the People failed to preserve the computer-generated photo array used to identify him as the assailant prior to his arrest, thereby giving rise to a presumption of undue suggestiveness, and then failed to meet their burden to rebut or overcome that presumption, and, second, in the lineup used to identify him after his arrest, appellant was the only one out of the six lineup participants who matched the description of the assailant provided to police by witnesses. Appellant was therefore deprived of due process by the hearing court's failure to order the suppression at trial of the lineup identifications and by the absence of an independent source hearing for the lineup witnesses' subsequent in-court identifications. (*United States v Wade*, 388 US 218; *People v Rodriguez*, 79 NY2d 445; *People v Adams*, 53 NY2d 241; *People v Riley*, 70 NY2d 523; *People v Ballott*, 20 NY2d 600; *People v Chipp*, 75 NY2d 327; *People v McRae*, 195 AD2d 180; *Raheem v Kelly*, 257 F3d 122; *People v Velez*, 169 AD2d 661; *People v Rudan*, 112 AD2d 255.) II. Appellant was deprived of his due process right to a fair trial where, over defense counsel's repeated objec-

tions, the People communicated to the jury that the police possessed independent, uncontrovertible evidence indicating that appellant had committed the charged crimes and encouraged the jury to speculate on the nature of that phantom evidence by the elicitation of testimony pertaining to an unspecified “investigation” that gave police “information beyond” that to which witnesses specifically testified at trial and which led to appellant’s identification and arrest. (*United States v Reyes*, 18 F3d 65; *Ryan v Miller*, 303 F3d 231; *People v Rivera*, 96 NY2d 749; *United States v Forrester*, 60 F3d 52; *Mason v Scully*, 16 F3d 38; *United States v Silva*, 380 F3d 1018; *People v Milligan*, 309 AD2d 950; *People v Tufano*, 69 AD2d 826; *People v Clark*, 28 AD3d 785; *People v LaPorte*, 306 AD2d 93.)

Cyrus R. Vance, Jr., District Attorney, New York City (Joshua L. Haber and Alan Gadlin of counsel), for respondent. I. The record amply supports the lower courts’ findings that the photo identification procedure and the lineup were fair and not unduly suggestive. (*People v Galletti*, 239 AD2d 598; *People v McBride*, 14 NY3d 440; *People v Sanchez*, 21 NY3d 216; *People v Jackson*, 98 NY2d 555; *People v Chipp*, 75 NY2d 327; *People v Adams*, 53 NY2d 241; *United States v Wade*, 388 US 218; *People v Gee*, 99 NY2d 158; *People v Lee*, 207 AD2d 953; *People v Perkins*, 124 AD3d 915.) II. The brief and generalized references to the police “investigation” in Detective Mazuroski’s testimony and the People’s summation were entirely proper. (*People v Resek*, 3 NY3d 385; *People v Romero*, 7 NY3d 911; *Crawford v Washington*, 541 US 36; *People v Eastman*, 85 NY2d 265; *People v Pealer*, 20 NY3d 447; *Michigan v Bryant*, 562 US 344; *United States v Reyes*, 18 F3d 65; *United States v Silva*, 380 F3d 1018; *Ryan v Miller*, 303 F3d 231; *Mason v Scully*, 16 F3d 38.)

OPINION OF THE COURT

FAHEY, J.

When using a photo array as an identification procedure, the People should preserve a record of what was viewed. Failure to do so gives rise to a rebuttable presumption that the array was unduly suggestive. The obligation to preserve is not diminished by the type of system used. Computer screen or mug shots book, the People’s obligation is the same. Here, the People failed to preserve a computer-generated array of photographs shown to an identifying witness, giving rise to a rebuttable presumption that the array was unduly suggestive. Neverthe-

less, in the present case, the People overcame that presumption through testimony at the suppression hearing.

I.

On May 30, 2010, two young women, Ju Eun Lee and Yoori Han, were on a subway platform in Manhattan when a man attempted to lift the strap of Lee's purse from her shoulder. Lee clung to the bag, while Han seized the strap, engaging in a brief tug-of-war with the would-be robber. Both women saw the man's face at close range on a well-lit platform. The man let go of the purse and left the scene. A bystander, Sylvie Lee, was one of several people who came to the assistance of the two women and escorted them as they went to report the incident to a Metropolitan Transportation Authority employee. Meanwhile, the same man reentered the subway station, and, after making eye contact with Han, charged at the women. He repeatedly punched and kicked Han and punched Sylvie Lee, before fleeing.

Detective Greg Mazuroski of the New York City Police Department's Manhattan Transit Robbery Squad was assigned to the case. The detective interviewed the women. Han and Ju Eun Lee described the perpetrator as a "skinny" black man, around 30 to 40 years old, about six feet to six feet, two inches tall, and weighing between 160 and 180 pounds. Sylvie Lee described the man similarly.*

On June 2, 2010, Detective Mazuroski invited Sylvie Lee to view a series of photograph arrays generated by the Police Department's photo manager system, a computer database that contains the photographs of individuals who have previously been arrested. The system generates arrays of six photographs at a time, based on criteria entered into the computer by the detective or officer, including the physical appearance of the suspect. The photographs are displayed on a computer screen.

In accordance with the witnesses' descriptions, Detective Mazuroski ran a search for black men, 30 to 40 years old, six feet to six feet, four inches, who had been arrested in Manhattan from 2007 to 2010. The search generated a large number of photographs, but Lee identified defendant Todd Holley as the attacker on the second "page" or photo array. She was then

* It is not clear from the record at the suppression hearing whether Sylvie Lee described him as thin.

shown more pages—at least 12 and perhaps as many as 20 more—over the course of an hour or so. Lee also identified defendant as the perpetrator in two additional, different photographs, included on pages 13 and 14. She did not identify anyone else.

The police located defendant and arrested him on June 8. He was an African-American man, 32 years old, about six feet, one inch to six feet, two inches tall, and approximately 160 pounds in weight. That day, Han and Sylvie Lee separately viewed a lineup, comprising defendant and five other black men. The fillers, according to their self-descriptions, ranged from 22 to 57 years of age, from five feet, nine inches to six feet, two inches, and from 180 to 250 pounds. They wore identical baseball caps, turned backwards. The men were seated. Following a request by Han, the men stood up momentarily to show their profiles. Both women identified defendant as the assailant.

II.

Defendant was charged with one count of attempted robbery in the third degree and two counts of assault in the third degree. At a suppression hearing, Detective Mazuroski described the procedures he had followed with the photo manager system as well as the lineup. Detective Mazuroski testified that at the time he showed Sylvie Lee the photo arrays, he did not have a suspect in mind. Cross-examination disclosed that the detective had not included a weight range when he entered criteria in the photo manager system, even though it would have been possible to enter a weight. Significantly, the police had not preserved the photo arrays that were shown to Sylvie Lee for the hearing court to review. Photographs of the lineup were entered into evidence.

Defendant moved to suppress all identification testimony. He contended that the People's failure to preserve the photo arrays entitled him to a presumption of suggestiveness, and that, in any case, the procedure using the photo manager system was unduly suggestive, insofar as the detective did not enter the perpetrator's estimated weight. He also challenged the lineup as unduly suggestive. Supreme Court, crediting the detective's testimony and finding neither pretrial identification procedure unduly suggestive, denied the motion.

Prior to defendant's trial, the parties discussed with the court whether testimony should be elicited from Detective Mazuroski

concerning how the police came to arrest defendant. Supreme Court ruled that the People could elicit from the detective only that an investigation based on information beyond the witnesses' descriptions had led him to suspect defendant. The defense objected, primarily on the ground that such testimony would constitute improper bolstering of the eyewitness identifications.

At trial, Ju Eun Lee, Han, and Sylvie Lee identified defendant in court as the assailant, and the lineup identifications were described in detail. There was no testimony regarding the display of the photo arrays, but the detective testified that, after getting descriptions of the perpetrator from the witnesses, he had carried out "further investigation with information beyond the descriptions," which "generated one suspect," namely Holley. Defendant did not testify.

In summation, the prosecutor alluded to Detective Mazuroski's "further investigation," and told the jury that the detective "didn't go out and just grab the man off the street that he thought looked like what [the witnesses'] description was. He went after his investigation and went and found Mr. Holley." No objection was made to these remarks.

The jury found defendant guilty on all counts. Defendant appealed from the judgment of conviction and sentence, challenging Supreme Court's ruling on the suppression motion, as well as the admission of the testimony regarding the detective's investigation and the prosecutor's remarks concerning the investigation in summation.

The Appellate Division affirmed, holding that the use of the photo manager system procedure was not unduly suggestive.

"The detective's testimony about how the computerized procedure operates sufficiently established its fairness. The fact that the police failed to preserve the arrays viewed by the witness does not warrant a different conclusion. We also conclude that the detective entered sufficient information about the description of the perpetrator to ensure that the computer generated a fair selection of photos." (116 AD3d 442, 442 [1st Dept 2014] [citations omitted].)

The Appellate Division also upheld the lineup, noting that "[a]ny differences between defendant and the other participants, including an age disparity not fully reflected in the participants' actual appearances, and a weight disparity that

was minimized by having the participants seated, was not so noticeable as to single defendant out” (*id.* at 442-443 [citations omitted]). The Court rejected defendant’s remaining arguments.

A Judge of this Court granted defendant leave to appeal (23 NY3d 1037 [2014]). We now affirm.

III.

The New York City Police Department’s photo manager system, described above, is today’s computer-generated equivalent of a long-established police procedure: showing a compilation of photographs of previous arrestees, in the form of a “mug book” (*People v Burts*, 78 NY2d 20, 22 [1991]) or a “drawer[] of photographs” (*People v Hernandez*, 70 NY2d 833, 834 [1987]), to people who witnessed a crime, in order to establish a suspect. The primary question on this appeal is what the consequence should be when the police use such a computer-generated photo array, and fail to preserve a record of the particular photographs shown to the witness.

Review of whether a pretrial identification procedure is unduly suggestive is subject to a well-established burden-shifting mechanism. Initially, the People have the burden of producing evidence in support of the fairness of the identification procedure. If this burden is not sustained, a peremptory ruling against the People is justified. If the People meet their burden of production, the burden shifts to the defendant to persuade the hearing court that the procedure was improper. In other words, “[w]hile the People have the initial burden of going forward to establish . . . the lack of any undue suggestiveness in a pretrial identification procedure, it is the defendant who bears the ultimate burden of proving that the procedure was unduly suggestive” (*People v Chipp*, 75 NY2d 327, 335 [1990], *cert denied* 498 US 833 [1990]; *see also People v Jones*, 2 NY3d 235, 244 [2004]; *People v Ortiz*, 90 NY2d 533, 537 [1997]).

[1] Under Appellate Division case law, “the failure of the police to preserve a photographic array [shown to an identifying witness] gives rise to a rebuttable presumption that the array was suggestive” (*People v Quinones*, 228 AD2d 796, 796-797 [3d Dept 1996]; *see also e.g. People v Reaves*, 112 AD3d 746, 747 [2d Dept 2013], *lv denied* 22 NY3d 1202 [2014]; *People v Green*, 188 AD2d 385, 386 [1st Dept 1992], *lv denied* 81 NY2d 840 [1993]; *People v Simmons*, 158 AD2d 950, 950 [4th Dept

1990], *lv denied* 76 NY2d 743 [1990]). The rebuttable presumption fits within the burden-shifting mechanism in the following manner. Failure to preserve a photo array creates a rebuttable presumption that the People have failed “to meet their burden of going forward to establish the lack of suggestiveness” (*People v Patterson*, 306 AD2d 14, 14-15 [1st Dept 2003], *lv denied* 1 NY3d 541 [2003]; see *Chipp*, 75 NY2d at 335). To the extent the People are silent about the nature of the photo array, they have not met their burden of production. On the other hand, the People may rebut the presumption by means of testimony “detailing the procedures used to safeguard against suggestiveness” (*People v Campos*, 197 AD2d 366, 367 [1st Dept 1993], *lv denied* 82 NY2d 892 [1993]), in which case they have met their burden, and the burden shifts to the defendant. Although we have not expressly adopted this presumption of suggestiveness before, we endorse it now.

Recently, the presumption of suggestiveness has been applied to photo arrays displayed to witnesses via the New York City Police Department’s photo manager system. In *People v Dobbins* (112 AD3d 735 [2d Dept 2013]), the Appellate Division applied the presumption to the prosecution’s failure to preserve a printout or other record of an array generated by the photo manager system. The Appellate Division held that the evidence presented by the People did not overcome the presumption that the array was suggestive where,

“[a]t the suppression hearing, a detective testified that he did not memorialize and could not recall the specific information that he entered into the photo manager system which generated the photographic array, did not memorialize and could not recall how many photographs the complainant viewed, and did not memorialize and could not recall for how long the complainant was viewing photographs” (*id.* at 736).

Similarly, in *People v Robinson* (123 AD3d 1062 [2d Dept 2014]), the Appellate Division applied the presumption of suggestiveness, in light of the People’s failure to preserve photographs, shown to two robbery victims on “the police department’s photo manager system, which generated screens of six photographs at a time based on criteria entered into the computer by the detective” (*id.* at 1062). The *Robinson* court held that the People failed to rebut the presumption in that “[t]he detective gave inconsistent testimony regarding what

age criteria he entered in the computer system to generate each photo array,” and “did not recall how many screens either complainant viewed before each of them recognized the defendant, or how long it took each to make an identification” (*id.* at 1063).

Citing such cases, defendant argues that the denial of his suppression motion was reversible error and seeks a new trial, to be preceded by an independent source hearing. He contends that it is proper to extend the presumption of suggestiveness to the People’s failure to preserve a record of photo arrays displayed to a witness by means of the photo manager system or a similar system, and that the People failed to rebut the presumption in his case. We agree with defendant on the first point but not the second.

IV.

[2] The law requiring that the prosecution preserve a photo array shown to an identifying witness was first applied to physical books and drawers of photographs, but there is nothing about the requirement that would limit it to that context. A detective who shows an identifying witness a book of photographs must preserve the photographs that were shown, together with their arrangement in the book, and must keep some record of the order in which the pages were displayed. Similarly, a detective who shows a witness photographs on the photo manager system or via a similar computer-assisted process must carry out whatever steps are necessary to ensure that he or she can recreate in some way during a suppression hearing the display of the photographs in the precise arrangement and order in which they were shown to the witness.

The People argue that the requirement of preservation, when applied to computer-generated photo arrays, amounts to the creation of an obligation on the part of the police to produce evidence in the first place. While it is true that “[t]here is a difference between preserving evidence already within the possession of the prosecution and the entirely distinct obligation of affirmatively obtaining evidence for the benefit of a criminal defendant” (*People v Hayes*, 17 NY3d 46, 51 [2011], *cert denied* 565 US —, 132 S Ct 844 [2011]), the preservation of a photo array, whether physical or computer-generated, falls squarely within the first category. A detective who shows a book or drawer of mug shots to an identifying witness must not only preserve the photographs but also create some record that will

enable him or her to testify about the arrangement and order in which the photographs were shown to the witness. Similarly, a detective who shows a witness photographs on a computer screen must keep some record of the arrays and the order in which they were displayed. This is not creating evidence for the benefit of the defendant, but preserving evidence as required by the law protecting the defendant's right to a fair trial.

The People suggest that "if a witness viewed hundreds of photos before making an identification, all of the photos would surely have to be saved and printed. No matter what system would be involved, imposing such a requirement would surely be burdensome." Defendant, by contrast, contends that computer-generated photo arrays are easily stored and printed. We do not decide, on this appeal, whether preserving photo arrays shown to a witness on a computer screen by means of the photo manager system or the like would require printing the arrays. That would depend on whether technology exists to allow, in some other way, the accurate recreation, at a hearing, of the display of photographs on a computer screen. We are not persuaded that the advent of the photo manager system makes it more difficult, rather than less, to manage and reproduce photo arrays. Consequently, we extend the presumption of suggestiveness to computer-generated photo arrays.

V.

[3] In the present case, however, the People have rebutted the presumption of suggestiveness. At the outset, we note that whether a photo array is unduly suggestive is a mixed question of law and fact and our review is limited to whether there is support in the record for the finding (*see People v Sanchez*, 21 NY3d 216, 225 [2013]).

Appellate Division cases have found that the People overcame the presumption when the detective's testimony detailed "the sheer volume of the photographs viewed, as well as the fact that the police had not yet focused upon defendant as a particular suspect" (*Campos*, 197 AD2d at 367 [internal quotation marks omitted]; *see also People v Mason*, 138 AD2d 411, 412 [2d Dept 1988], *lv denied* 72 NY2d 863 [1988]; *People v Jerome*, 111 AD2d 874 [2d Dept 1985], *lv denied* 66 NY2d 764 [1985]). In *People v Jerome*, for example, the witness "was shown approximately 1,000 photographs over a period of two days, resulting in his identification of defendant," and this oc-

curred “at a point in the investigation where the police had not yet focused upon any particular suspect” (*Jerome*, 111 AD2d at 874). Here, Detective Mazuroski testified that he did not consider defendant a suspect before showing Sylvie Lee the photographs from the photo manager system. Moreover, Lee viewed about 100 photographs, and identified defendant, and only defendant, consistently. We conclude that there is support in the record for the finding that the People met their initial burden of producing evidence of the lack of any undue suggestiveness.

We also conclude that there is record support for the finding that defendant did not meet his ultimate burden of proving that the procedure was unduly suggestive. In particular, there is support for the Appellate Division’s finding that Detective Mazuroski entered enough information about the perpetrator’s physical features to ensure that the photo manager system would generate “a fair selection of photos” (116 AD3d at 442), rather than an array in which defendant’s image would stand out as markedly different.

VI.

[4] With respect to the lineup, defendant argues that he was the only person in the lineup who met the age and weight description given by the witnesses. Whether or not a lineup is unduly suggestive is a mixed question of law and fact (*see People v McBride*, 14 NY3d 440, 448 [2010], *cert denied* 562 US 931 [2010]; *People v Jackson*, 98 NY2d 555, 559 [2002]). Here, there is support in the record for the Appellate Division’s determination that the disparity in age was not so apparent as to draw attention to defendant. “[A] numerical age difference” existing “between a defendant and the fillers in a lineup, without more, is not sufficient to create a substantial likelihood that the defendant would be singled out for identification” (*Jackson*, 98 NY2d at 558-559 [internal quotation marks omitted]; *see generally Chipp*, 75 NY2d at 336). There is also record support for the Appellate Division’s determination that the disparity in weight was minimized (*see generally McBride*, 14 NY3d at 448; *People v Cook*, 254 AD2d 92, 92 [1st Dept 1998], *lv denied* 93 NY2d 851 [1999]).

[5] Defendant’s remaining contentions lack merit or are unpreserved. In particular, the detective’s testimony regarding the conduct of his investigation after he obtained descriptions from the witnesses “did not state or imply that anyone made

an identification” (*People v Tucker*, 25 AD3d 419, 420 [1st Dept 2006], *lv denied* 6 NY3d 839 [2006]; *cf. People v Holt*, 67 NY2d 819, 821 [1986]). The testimony therefore did not violate the evidentiary rule that “in the context of eyewitness identification, the testimony of a third party (typically, a police officer) to the effect that the witness identified a defendant as the perpetrator on some prior occasion is generally inadmissible” (*People v Buie*, 86 NY2d 501, 510 [1995], citing *People v Trowbridge*, 305 NY 471 [1953]). Defendant’s similar challenge to the prosecutor’s summation is unpreserved (*see generally People v Romero*, 7 NY3d 911, 912 [2006]).

Accordingly, the order of the Appellate Division should be affirmed.

ABDUS-SALAAM, J. (concurring). I agree with the majority that the People carried their burden of production at the *Wade* hearing in this case and that defendant failed to meet his burden to demonstrate that the police-arranged photo identification procedure was unduly suggestive (*see* majority op at 525; *see also People v Chipp*, 75 NY2d 327, 335 [1990]). Furthermore, I concur in the majority’s rejection of defendant’s challenges to the *nisi prius* court’s admission into evidence of the lineup identification, the in-court identification testimony and Detective Mazuroski’s brief testimony about his investigation in this case (*see* majority op at 525-526). Nonetheless, I write separately to explain my disagreement with the majority’s adoption of a “presumption of suggestiveness” that allegedly arises whenever the People fail to present at a *Wade* hearing a physical copy of a photo array that has previously been shown to an identifying witness (*see* majority op at 517-518, 521-524). In my view, the presumption lacks a solid legal foundation and risks creating unnecessary confusion about the proper application of existing legal standards governing a suppression hearing.

As the majority recognizes, we have never previously held that, where the People fail to produce a copy of a photo array at a *Wade* hearing, they must overcome a rebuttable presumption that the disputed photo array identification procedure was unduly suggestive (*see* majority op at 522). Rather, under our existing precedent, the People must meet only their “initial burden of going forward to establish the reasonableness of the police conduct and the lack of any undue suggestiveness” (*Chipp*, 75 NY2d at 335), which is a “minimal” burden of “production” (*People v Ortiz*, 90 NY2d 533, 538 [1997]), and

once that requirement is satisfied, the burden shifts to the defendant to “prov[e] that the procedure was unduly suggestive” (*Chipp*, 75 NY2d at 335). Because this framework sets forth a commonsense decisional process without any presumptions, it promotes clarity and fairness by employing two distinct and balanced burdens with a single shifting point between them.

By contrast, the presumption of suggestiveness, which the majority derives from certain Appellate Division decisions, undermines the clarity of our existing suppression framework. As envisioned by the majority, the presumption does not alter the burden of production per se, but instead adds a turning point within the People’s efforts to meet that burden by requiring them to overcome the presumption with testimony about the composition of the photo array and the circumstances surrounding the identification procedure (*see* majority op at 522). Thus, the presumption seems to require a court to take an additional analytical step, evaluating first whether the People’s proof overcomes the presumption, then whether the evidence satisfies the burden of production and finally whether the defendant has demonstrated the unlawfulness of the contested photo array identification procedure.

In the vast majority of cases, a balanced application of this three-step process presumably would yield the same result as the more straightforward two-step process which exists now. Indeed, under the existing suppression framework, the People can meet their burden of production using sufficiently detailed testimony about the photo array identification procedure without producing a physical copy of the array at the hearing (*see People v Hernandez*, 70 NY2d 833, 835 [1987]), and the majority’s decision indicates that they can similarly overcome the presumption of suggestiveness and simultaneously meet their burden of production by presenting that same type of testimony (*see* majority op at 524-525). But by adding an extra layer to the analysis, the presumption may cause some courts in practice to lose sight of the basic point that the People’s burden remains a minimal one geared toward production rather than ultimate persuasion and conclusive proof.

Even if the presumption did not engender confusion or result in any significant practical alteration of our traditional suppression analysis, I would not endorse it because of its dubious legal roots. Significantly, the Appellate Division case law adopting the presumption relies on earlier decisions that do not mention a presumption of suggestiveness at all, instead merely

encouraging the production of photo arrays at *Wade* hearings and explaining that the lack of such production, coupled with the absence of additional evidence, prevents the People from meeting their burden (see *People v Barber*, 96 AD2d 1112, 1112-1113 [3d Dept 1983]; *People v Nelson*, 79 AD2d 171, 173-174 [4th Dept 1981]; *People v Foti*, 83 AD2d 641, 641-642 [2d Dept 1981]; *People v Putman*, 55 AD2d 608, 608-609 [2d Dept 1976]). Unfortunately, in later cases, the Appellate Division cited those decisions for a novel proposition that they did not support, namely that a rebuttable “inference of suggestiveness” arises from the People’s failure to produce the photo array at the suppression hearing (see *People v Johnson*, 106 AD2d 469, 469 [2d Dept 1984]). Indeed, the initial Appellate Division case law adopting the presumption of suggestiveness did so with little, if any, explanation of the rationale for such a presumption (see *id.*; see also *People v Simmons*, 158 AD2d 950, 950 [4th Dept 1990]).

Furthermore, until recently, the Appellate Division had concluded that the presumption of suggestiveness simply does not apply to a voluminous canvassing array of the kind at issue here, and that hence the People need not rebut any such presumption in canvassing array cases (see *People v Stokes*, 139 AD2d 785, 785 [2d Dept 1988]; cf. *People v Ludwigsen*, 128 AD2d 810, 810 [2d Dept 1987]). Thus, the Appellate Division’s relatively recent acceptance of the presumption in the canvassing array context, based on a line of prior cases that does not support such an approach (see e.g. *People v Robinson*, 123 AD3d 1062, 1062-1063 [2d Dept 2014]; *People v Dobbins*, 112 AD3d 735, 736 [2d Dept 2013]), was without a sound legal foundation and should not be approved by this Court. Accordingly, I cannot join the part of the majority’s opinion adopting the presumption in this case.

Chief Judge LIPPMAN and Judges RIVERA and STEIN concur; Judge ABDUS-SALAAM concurs in result in a separate opinion in which Judge PIGOTT concurs.

Order affirmed.

[45 NE3d 945, 25 NYS3d 49]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v NATANAEL
SAGASTUMEAL VARENGA, Respondent.

Argued November 16, 2015; decided December 17, 2015

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered March 5, 2014. The Appellate Division (1) reversed, on the law, an order of the Supreme Court, Suffolk County (C. Randall Hinrichs, J.), which had denied, without a hearing, defendant's motion pursuant to CPL 440.10 to vacate a judgment of that court that convicted him, upon his plea of guilty, of assault in the second degree; and (2) remitted the matter to Supreme Court for an evidentiary hearing on, and a new determination of, defendant's motion.

People v Varenga, 115 AD3d 684, reversed.

HEADNOTE

Crimes — Vacatur of Judgment of Conviction — Retroactive Application of New Rule of Federal Constitutional Criminal Procedure — Finality of Judgment

Where a defendant does not take a timely direct appeal from a judgment of conviction, and does not move for leave to file a late notice of appeal pursuant to CPL 460.30 (1), the judgment becomes final 30 days after sentencing—the last day that he or she has an inviolable right to file a notice of appeal pursuant to CPL 460.10 (1) (a)—for purposes of determining whether a new rule of federal constitutional criminal procedure applies retroactively in a state postconviction collateral review proceeding. Accordingly, upon defendant's CPL 440.10 challenge to a judgment convicting him of felony assault on the ground that his attorney failed to inform him of the deportation consequences of his guilty plea under the new rule of federal constitutional criminal procedure announced in *Padilla v Kentucky* (559 US 356 [2010]), the judgment became final 30 days after defendant was sentenced—and before *Padilla* was decided—as he neither filed a timely notice of appeal nor moved pursuant to CPL 460.30 (1) for leave to file a late notice of appeal. Inasmuch as *Padilla* does not apply retroactively in state postconviction collateral review proceedings to judgments that became final before it was decided, defendant's *Padilla* claim was not cognizable on his CPL 440.10 motion to vacate the judgment. To extend the date of finality of judgments by CPL 460.30 (1)'s one-year grace period would in practice be to provide broader retroactive application to the *Padilla* rule than provided by the United States Supreme Court; it would also result in uncertainty in the finality of judgments in many procedural situations.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Appellate Review §§ 252, 279; AM JUR 2d, Criminal Law § 738.
CARMODY-WAIT 2d, Appeals in Criminal Cases §§ 207:1, 207:67, 207:68, 207:90.
LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) § 27.4.
MCKINNEY'S, CPL 460.10 (1) (a); 460.30 (1).
NY JUR 2d, Criminal Law: Procedure §§ 3397, 3522, 3535–3537, 3581.

ANNOTATION REFERENCE

See ALR Index under Appeal and Error; Criminal Procedure Rules.

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POINTS OF COUNSEL

Thomas J. Spota, District Attorney, Riverhead (Thomas C. Costello of counsel), for appellant. The Appellate Division, Second Department erroneously determined that a conviction is not “final” until one year and 30 days after the imposition of sentence. (*People v Andrews*, 108 AD3d 727, 22 NY3d 1038; *People v Bent*, 30 Misc 3d 1240[A], 2011 NY Slip Op 50409[U], 108 AD3d 882; *Padilla v Kentucky*, 559 US 356; *People v Ekinici*, 191 Misc 2d 510; *People v Caceras*, 40 Misc 3d 1217[A], 2013 NY Slip Op 51216[U]; *People v Garcia*, 42 Misc 3d 1205[A], 2013 NY Slip Op 52218[U]; *People v Moran*, 44 Misc 3d 1205[A], 2014 NY Slip Op 51018[U]; *People v Duggan*, 69 NY2d 931; *People v Cabrera*, 44 Misc 3d 1220[A], 2014 NY Slip Op 51211[U]; *Teague v Lane*, 489 US 288.)

Solages & Associates, Hauppauge (Phil Solages and Jonathan S. Fishbein of counsel), for respondent. The Second Department correctly applied Criminal Procedure Law § 460.30 when it held that for *Padilla* purposes defendant's conviction was not “final” until one year and 30 days after sentencing. (*People v Bent*, 108 AD3d 882; *People v Ekinici*, 191 Misc 2d 510; *People v Caceras*, 40 Misc 3d 1217[A], 2013 NY Slip Op 51216[U]; *People v Garcia*, 42 Misc 3d 1205[A], 2013 NY Slip Op 52218[U]; *People v Moran*, 44 Misc 3d 1205[A], 2014 NY Slip

Op 51018[U]; *People v Peque*, 22 NY3d 168; *People v Hobson*, 39 NY2d 479; *People v Andrews*, 108 AD3d 727; *People v Ellis*, 45 Misc 3d 716; *People v Kabre*, 29 Misc 3d 307.)

Dawn M. Seibert, Immigrant Defense Project, New York City, and *Center for Appellate Litigation*, New York City (*Leticia Olivera* and *Claudia Trupp* of counsel), for Randy Hertz and others, amici curiae. I. For the purposes of application of new federal constitutional rules in federal habeas proceedings, if a defendant does not seek direct review, a conviction becomes final when the time for seeking review has expired, including any discretionary review period. (*Teague v Lane*, 489 US 288; *Caspari v Bohlen*, 510 US 383; *Policano v Herbert*, 7 NY3d 588; *People v Baret*, 23 NY3d 777; *Danforth v Minnesota*, 552 US 264; *People v Pepper*, 53 NY2d 213; *Smith v Gonzales*, 468 F3d 272.) II. Under New York's statutory scheme, a defendant may seek direct review until the expiration of the deadline for filing an appeal pursuant to CPL 460.30. (*People v Syville*, 15 NY3d 391; *People v Thomas*, 47 NY2d 37; *People v Callaway*, 24 NY2d 127; *People v Montgomery*, 24 NY2d 130; *People v Corso*, 40 NY2d 578.) III. A bright-line rule that a New York criminal case becomes final upon the expiration of the filing deadline in CPL 460.30 is consistent with finality analysis in other federal criminal contexts. (*Smith v Gonzales*, 468 F3d 272; *Clay v United States*, 537 US 522; *Jimenez v Quarterman*, 555 US 113; *Bethea v Girdich*, 293 F3d 577; *Carey v Saffold*, 536 US 214; *Bossett v Walker*, 41 F3d 825.)

OPINION OF THE COURT

FAHEY, J.

On this appeal, we are asked to decide when a defendant's judgment of conviction and sentence becomes final for purposes of applying a new rule of federal constitutional criminal procedure, when the defendant does not take a direct appeal to the Appellate Division. Defendant asks us to hold that the judgment did not become final until one year and 30 days after he was sentenced, inasmuch as that was the last day that he could have sought an extension from the Appellate Division to file a late notice of appeal pursuant to CPL 460.30 (1).

The Appellate Division never granted defendant such relief. No motion pursuant to CPL 460.30 (1) for leave to file a late notice of appeal was ever made. Defendant asks us to extend the finality of the judgment by the one-year grace period of CPL 460.30 (1) simply because that grace period is available,

and not because he has demonstrated entitlement to its relief. In light of the uncertainty in the finality of judgments that would result if we adopted defendant's definition of finality, we reject that definition. We hold that where a defendant does not take a timely direct appeal from the judgment, and does not move for leave to file a late notice of appeal pursuant to CPL 460.30 (1), the judgment becomes final 30 days after sentencing, on the last day that a defendant has an inviolable right to file a notice of appeal pursuant to CPL 460.10 (1) (a).

I.

Defendant is a native of Honduras who was granted Temporary Protected Status by United States immigration authorities in 1999. In 2008, defendant was charged with assault in the second degree, a class D felony (*see* Penal Law § 120.05). On March 19, 2009, defendant pleaded guilty to the charge in exchange for a negotiated sentence of five years' probation. On May 14, 2009, defendant was sentenced as promised. During the sentencing proceeding, defendant was informed on the record of his right to appeal the judgment of conviction and sentence. Defendant nevertheless did not file a notice of appeal.

Defendant subsequently was notified that his Temporary Protected Status would not be renewed due to his felony conviction, and he was placed in removal proceedings. In April 2011, defendant filed a CPL 440.10 motion seeking to vacate the 2009 judgment. Defendant's primary claim was based on the United States Supreme Court's 2010 decision in *Padilla v Kentucky* (559 US 356 [2010]). In *Padilla*, the Supreme Court held that the Sixth Amendment of the Federal Constitution requires criminal defense counsel to inform a noncitizen client whether his or her guilty plea "carries a risk of deportation" (*id.* at 374). At the time defendant filed his CPL 440.10 motion, neither the United States Supreme Court nor this Court had determined whether *Padilla* should be applied retroactively. Defendant therefore asserted in his motion papers that *Padilla* should apply retroactively.

Supreme Court denied defendant's CPL 440.10 motion without a hearing. The court concluded that *Padilla* should not be applied retroactively to judgments such as defendant's that became final before *Padilla* was decided.

A Justice of the Appellate Division granted defendant's application for leave to appeal from Supreme Court's order (2012

NY Slip Op 68845[U] [2d Dept 2012]; *see* CPL 460.15). While that appeal was pending, the United States Supreme Court decided *Chaidez v United States* (568 US —, 133 S Ct 1103 [2013]). In *Chaidez*, the Supreme Court applied the retroactivity principles set forth in *Teague v Lane* (489 US 288 [1989], *reh denied* 490 US 1031 [1989]) and held that *Padilla* announced a “new rule” that would not be applied retroactively to any conviction that became final before *Padilla* was decided on March 31, 2010 (*see Chaidez*, 568 US at —, 133 S Ct at 1113).¹

After *Chaidez* was decided, the Appellate Division invited the parties to comment on whether defendant’s 2009 judgment of conviction and sentence became final before or after *Padilla* was decided. Defendant contended that the judgment did not become final until June 13, 2010, a year and 30 days after he was sentenced on May 14, 2009. Defendant’s reasoning was that because CPL 460.10 (1) (a) granted him 30 days from the imposition of sentence to file a notice of appeal, and CPL 460.30 (1) granted him an additional year to obtain an extension to file a late notice of appeal, he had not exhausted the availability of an appeal until the last date on which he could have filed a notice of appeal. The People responded, as relevant here, that the judgment became final 30 days after sentencing, inasmuch as that was the last date upon which defendant had the automatic right to file a notice of appeal pursuant to CPL 460.10 (1) (a). The People argued that defendant was not entitled to extend the date of finality of the judgment by relying on the one-year grace period of CPL 460.30 (1), inasmuch as defendant never sought an extension to file a late notice of appeal pursuant to that statute.

The Appellate Division rejected defendant’s contention that it should give broader retroactive effect to *Padilla* than the United States Supreme Court gave to *Padilla* in *Chaidez*, and therefore held that *Padilla* should not be applied retroactively to judgments that became final before *Padilla* was decided (*see* 115 AD3d 684, 685 [2d Dept 2014]). The Appellate Division’s decision therefore was consistent with this Court’s subsequent decision in *People v Baret* (23 NY3d 777 [2014], *cert denied* 574 US —, 135 S Ct 961 [2015]), decided a few months later.

1. Although the Supreme Court discussed the finality of the defendant’s “conviction” in *Chaidez*, and we discuss here the finality of defendant’s “judgment” due to our own state’s terminology (*see* CPL 1.20 [15]), we are referring to the same legal principle.

Nevertheless, the Appellate Division reasoned that defendant could benefit from the *Padilla* rule on his CPL 440.10 motion because “defendant’s conviction . . . did not become final until June 14, 2010, the last date on which he would have been permitted to seek leave to file a late notice of appeal” (115 AD3d at 685). The Court cited CPL 460.30 (1), as well as its prior decision in *People v Andrews* (108 AD3d 727 [2d Dept 2013], *lv denied* 22 NY3d 1038 [2013], *denied reconsideration* 23 NY3d 1018 [2014]) (*see* 115 AD3d at 685).

In *Andrews*, the Appellate Division noted that the defendant in that case could not benefit from *Padilla* because “his conviction became final, *at the latest*, on October 5, 2009, the last date on which he would have been permitted to seek leave to file a late notice of appeal” (*Andrews*, 108 AD3d at 728 [emphasis added]). Thus, in *Andrews*, the Appellate Division did not conclusively decide the issue of finality where a defendant does not take a direct appeal. This Court did not sanction *Andrews*’s inconclusive statement (*see generally People v Rodriguez*, 91 NY2d 912, 912 [1998]). In this case, by contrast, the Appellate Division decided the issue of finality where the defendant does not take a direct appeal by applying the CPL 460.30 (1) grace period (*see* 115 AD3d at 685). The Court held that because the judgment did not become final until after *Padilla* was decided on March 31, 2010, defendant could raise a *Padilla* claim on his CPL 440.10 motion (*see* 115 AD3d at 685-686). The Appellate Division remitted the matter to Supreme Court for an evidentiary hearing on defendant’s motion (*see id.* at 686-687).

A Judge of this Court granted the People leave to appeal (23 NY3d 1068 [2014]). We now reverse.

II.

Initially, we note that there are certain questions of law that are not at issue on this appeal. First, the retroactive application of *Padilla* is not at issue. As noted above, in *Chaidez*, the United States Supreme Court held that *Padilla* announced a new rule and that pursuant to federal retroactivity principles, that new rule would not apply to convictions that became final before *Padilla* was decided (*see Chaidez*, 568 US at —, 133 S Ct at 1113). Last year, in *Baret*, this Court rejected the defendant’s contentions that we should interpret *Padilla* more broadly than the Supreme Court did in *Chaidez*, or that *Padilla* should be applied retroactively pursuant to state retroactivity

principles (*see Baret*, 23 NY3d at 795-800). We therefore held that *Padilla* would not be applied retroactively in state post-conviction collateral review proceedings to judgments that became final before *Padilla* was decided (*see id.* at 782-783).

Second, for purposes of assessing whether a new rule of federal constitutional criminal procedure applies on collateral review, the date of finality of a judgment where a defendant *does* take a direct appeal is not at issue here. When a defendant takes a direct appeal, the judgment becomes final for federal collateral review purposes when the defendant's applications for discretionary review from higher appellate courts have been denied, or the time for seeking such discretionary appellate review has expired (*see Gonzalez v Thaler*, 565 US —, —, 132 S Ct 641, 653-654 [2012]; *Clay v United States*, 537 US 522, 527 [2003]; *Griffith v Kentucky*, 479 US 314, 321 n 6 [1987]). This Court has applied that rule of finality where the defendant takes a direct appeal (*see Policano v Herbert*, 7 NY3d 588, 593 [2006]; *People v Pepper*, 53 NY2d 213, 221-222 [1981], *cert denied* 454 US 967 [1981], and *cert denied sub nom. New York v Utter*, 454 US 1162 [1982]).

Here, however, defendant did not take a direct appeal. Thus, the only question of law presented for our review is when a judgment of conviction and sentence becomes final where the defendant does not take a direct appeal, for purposes of determining whether a new rule of federal constitutional criminal procedure will apply in a state postconviction collateral review proceeding.

III.

Relying on the general federal standard of finality (*see e.g. Griffith*, 479 US at 321 n 6), defendant asserts that the availability of an appeal cannot be truly “exhausted” until one year and 30 days after sentencing, inasmuch as within that time period, he could have asked the Appellate Division to grant him an extension to file a notice of appeal pursuant to CPL 460.30 (1). As defendant acknowledges, however, the United States Court of Appeals for the Second Circuit has specifically rejected the proposition that the one-year grace period of CPL 460.30 (1) extends the date of finality of a judgment for federal habeas corpus purposes.

The Antiterrorism and Effective Death Penalty Act of 1996 (AEDPA) provides that a federal habeas corpus petitioner generally must file the petition within one year of the date that

a state court judgment becomes final, either “by the conclusion of direct review or the expiration of the time for seeking such review” (28 USC § 2244 [d] [1] [A]). In *Bethea v Girdich* (293 F3d 577 [2d Cir 2002]), the Second Circuit held that the petitioner’s motion for an extension of time to file a notice of appeal, which the Appellate Division denied, did not extend the date of finality of the petitioner’s judgment and therefore did not “restart” the one-year AEDPA limitations period (see *Bethea*, 293 F3d at 578-579). The Second Circuit wrote:

“As we stated in holding that state-court applications for collateral relief do not ‘restart’ the AEDPA limitations period, ‘[i]f the one-year period began anew when the state court denied collateral relief, then state prisoners could extend or manipulate the deadline for federal habeas review by filing additional petitions in state court,’ thus defeating the goal of the AEDPA to prevent undue delays in federal habeas review. This reasoning applies at least as strongly to motions to extend the time to appeal, which ‘can be sought at any time, even many years after conviction.’ Accordingly, we hold that the filing of a motion to extend the time to appeal or to file a late notice of appeal does not ‘restart’ the AEDPA limitation period” (*Bethea*, 293 F3d at 578-579 [citations omitted]).

The Second Circuit therefore concluded that the petitioner’s judgment became final 30 days after sentencing, “when [his] time for filing a notice of appeal from his judgment of conviction expired” pursuant to CPL 460.10 (1) (*id.* at 578; see also *Villegas v Hunt*, 2008 WL 4724296, *2, 2008 US Dist LEXIS 86130, *4-5 [WD NY, Oct. 24, 2008, No. 07-CV-6552 (VEB)]; *McDermott v Rock*, 2008 WL 346371, *1-2, 2008 US Dist LEXIS 8781, *3-5 [ND NY, Feb. 6, 2008, No. 9:07-CV-0932 (GLS) (GJD)]).

We agree with defendant and the amici curiae who have submitted a brief in support of his position that *Bethea* is not dispositive of the question before us (see generally *Danforth v Minnesota*, 552 US 264, 278-281 [2008]). Nevertheless, *Bethea* is instructive. This Court had an opportunity in *Baret* to depart from the *Teague* standard and provide broader retroactive application to the *Padilla* rule than the Supreme Court provided to that rule in *Chaidez*. This Court declined to do so (see *Baret*, 23 NY3d at 795-800). If we were to adopt defendant’s definition

of finality here, we would in practice be providing broader retroactive application to the *Padilla* rule, by extending the date of finality of judgments beyond the date that the federal courts in New York apply in federal postconviction collateral review proceedings.

More crucial to our analysis, however, is the uncertainty that would result in the finality of judgments if we adopted defendant's definition of finality. The Appellate Division did not grant defendant an extension to file a notice of appeal pursuant to CPL 460.30 (1) because defendant never sought such relief. Defendant asks us to extend the date of finality of the judgment by the one-year grace period of CPL 460.30 (1) simply because that grace period exists. Contrary to defendant's implication, that grace period is not available to any defendant who asks for an extension.

Rather, a defendant seeking to file a late notice of appeal pursuant to CPL 460.30 (1) must demonstrate that he or she was prevented from timely filing a notice of appeal due to the "improper conduct of a public servant or improper conduct, death or disability of the defendant's attorney," or the "inability of the defendant and his attorney to have communicated . . . concerning whether an appeal should be taken" (CPL 460.30 [1] [a], [b]). Defendant did not make any such showing because he did not request leave from the Appellate Division to file a late notice of appeal pursuant to CPL 460.30 (1).² Defendant's contention, essentially, is that because he *could* have made a motion for leave to file a late notice of appeal pursuant to CPL 460.30 (1), we should grant him the benefit of that one-year period to extend the date that the judgment became final, without requiring him to demonstrate his entitlement to relief under the statute.

We decline to do so. Adopting defendant's reasoning would result in uncertainty in the finality of judgments in many procedural situations. For example, a defendant who takes a direct appeal to the Appellate Division but does not seek leave

2. Contrary to the dissent's suggestion (*see* dissenting op at 540-541), we express no opinion on the date of finality of a judgment where the defendant makes an unsuccessful CPL 460.30 motion for leave to file a late notice of appeal. Defendant here made no such motion, and we therefore have no occasion to consider whether the finality of the judgment would be extended by the mere making of a CPL 460.30 motion, or whether the motion must be granted by the Appellate Division to warrant a departure from the rule we set forth here. To decide that question would amount to an improper advisory opinion.

to appeal to this Court in a timely fashion could argue that the judgment was not final until one year and 30 days after the Appellate Division affirmance, inasmuch as the defendant *could* have sought leave from this Court to file a belated application for discretionary review pursuant to CPL 460.30 (1). Or, a defendant who has filed a notice of appeal with the Appellate Division but has had the appeal dismissed due to failure to perfect could argue that the judgment is not yet final, inasmuch as the defendant *could* ask the Appellate Division to vacate the dismissal of the appeal.

Indeed, if we adopt defendant's logic, other defendants who did not take a direct appeal conceivably could argue that their judgments were never final, inasmuch as they could seek to file a late notice of appeal even after the one-year grace period of CPL 460.30 has expired by moving for a writ of error coram nobis (*see generally People v Syville*, 15 NY3d 391, 397-401 [2010]). A motion for coram nobis relief in that context has no time limitation, and the relief granted is precisely the same as the relief granted on a successful CPL 460.30 application: the defendant is allowed to file a late notice of appeal and take a direct appeal to the Appellate Division (*see id.* at 402). Although a defendant seeking leave to file a late notice of appeal by way of a writ of error coram nobis generally must satisfy a higher evidentiary burden than a defendant seeking CPL 460.30 relief (*see People v Andrews*, 23 NY3d 605, 611 [2014], *rearg denied* 24 NY3d 937 [2014], citing *Syville*, 15 NY3d at 400 n 2), under defendant's reasoning here, a defendant seeking coram nobis relief would not be required to demonstrate entitlement to that relief in order to extend the finality of the judgment. Rather, the defendant would be entitled to extend the finality of the judgment simply because coram nobis relief is available, and not because the defendant has demonstrated entitlement to it.

We have recognized society's interest in the finality of judgments as "formidable" (*People v Jackson*, 78 NY2d 638, 647 [1991]). Defendant's definition of finality would wreak havoc on that formidable interest by requiring any court determining the date of finality of a judgment to analyze what *could* have happened rather than what *did* happen. We therefore reject defendant's proposed definition of finality. We hold that where, as here, a defendant does not take a direct appeal from the judgment of conviction and sentence, the judgment becomes final 30 days after sentencing, when the defendant's automatic right to seek direct appellate review of the judgment expires pursuant to CPL 460.10 (1) (a).

Defendant was sentenced on May 14, 2009. Defendant's judgment of conviction and sentence therefore became final before *Padilla* was decided on March 31, 2010. Supreme Court did not err in holding that defendant's *Padilla* claim was not cognizable on his CPL 440.10 motion to vacate the judgment, and the court properly denied defendant's motion without a hearing.

Accordingly, the order of the Appellate Division should be reversed and the order of Supreme Court reinstated.

RIVERA, J. (dissenting). The question presented on this appeal is when does a judgment become final for purposes of a new rule announced during CPL 460.30's one-year grace period for filing a notice of appeal. The majority needlessly addresses a much broader question and concludes that, in the case of a defendant who fails to seek an extension pursuant to 460.30, a judgment is final 30 days from when the defendant was sentenced, pursuant to CPL 460.10 (1) (a). I dissent, and rather than rely on federal habeas concerns not relevant to the state issues presented in this appeal or unsupported prudential concerns about a potential impact on finality of judgments, I ground my analysis on the unique facts of this case and the need for a legally sound and fair approach to the predicament faced by defendants when a new rule is issued after sentencing but before the time under 460.30 expires.

Defendant was sentenced upon his guilty plea on May 14, 2009, and under CPL 460.30 had until June 14, 2010, to seek leave to file a notice of appeal. Approximately 10 weeks before the end of this one-year period, the United States Supreme Court issued its decision in *Padilla v Kentucky* (559 US 356 [2010]), holding that defense counsel must inform their client of the immigration consequences of a guilty plea. Defendant filed a motion pursuant to CPL 440.10, seeking to vacate his judgment on the grounds that his attorney failed to advise him of the adverse immigration consequences of his plea. The Appellate Division concluded that defendant's 440.10 motion was timely filed because the new rule announced in *Padilla* was decided before defendant's judgment became final on June 14, 2010, the last day for defendant to file a notice of appeal under CPL 460.30.

The majority reverses, relying, in part, on *Bethea v Girdich* (293 F3d 577 [2d Cir 2002]). However, as the majority acknowledges, *Bethea* is not dispositive (majority op at 536), but I would add that it is also not persuasive or, as the majority concludes,

“instructive.” The Second Circuit in *Bethea* sought to minimize undue delays in federal habeas review by avoiding what it considered to be a state prisoner’s ability to extend or manipulate the deadline for federal habeas by filing applications for collateral relief. Therefore, the court refused to restart the Antiterrorism and Effective Death Penalty Act limitations period anew with the filing of a motion to extend the time to appeal or to file a late notice of appeal (*Bethea*, 293 F3d at 578-579). The concerns cited by the Second Circuit in *Bethea* are of no moment where the defendant’s claim is one that results from a new rule issued after the initial 30 days have passed from his sentencing. Here, there is no attempt by defendant to manipulate the system. Rather, defendant seeks judicial review of a legally cognizable claim, fully available to a defendant whose conviction was not final before *Padilla* was decided.

Turning the focus to this limited class of defendants whose claims arise after the expiration of the initial 30 days for filing a notice of appeal as of right, the majority’s approach results in an illogical distinction between similarly situated defendants, and potentially shields illegal convictions from meritorious claims by foreclosing avenues of collateral and habeas review.¹

By way of example, compare the situation where two defendants sentenced on the same day, in accordance with their guilty pleas, do not file a notice of appeal within the 30-day period provided for in CPL 460.10. Ten months later, our Court pronounces a new rule, which ostensibly provides an appellate issue for both defendants. One defendant files a motion for an extension under CPL 460.30, which the Appellate Division denies, and defendant does not seek review from our Court, or alternatively we deny the leave to appeal. The other defendant does not seek an extension. Under the majority’s holding, the defendant who unsuccessfully filed for an extension has a viable argument that the judgment is final when this Court denies leave, or when the time for discretionary review of the denial of the 460.30 motion has expired. In contrast, the judgment of the defendant who did not file for an extension is final 30 days after sentencing—months before the appellate claim was viable. Yet, these two defendants are similar in all respects: both failed to file a notice of appeal within the 30 days provided

1. Notwithstanding the majority’s statements to the contrary, my disagreements are based on the ineluctable conclusions to be drawn from the majority’s analysis, and not on what the majority claims it did not decide (*see* majority op at 537 n 2).

for in CPL 460.10 (1) (a), neither one had been granted an extension to file a late notice of appeal, nor will they have an opportunity to challenge their judgments on direct appeal. Nevertheless, only the defendant who files an unsuccessful motion under 460.30 (1) may seek collateral relief from the judgment. There is no logical reason for such distinction.

Or consider the example where we announce a new rule on the last day of the one-year extension period. Even the most diligent defendant, including one not incarcerated, is unlikely to seek leave to appeal before the 460.30 time period runs out. A rule foreclosing such a defendant from an opportunity to collaterally challenge the judgment of conviction and sentence is unjustifiably harsh and unfair, and does nothing to further the goals of our state laws (*see e.g. People v Syville*, 15 NY3d 391, 399-400 [2010] [discussing the purpose of CPL 460.30]).

The majority's "[m]ore crucial" basis for its holding is what it considers to be "the uncertainty that would result in the finality of judgments if [the Court] adopted defendant's definition of finality" (majority op at 537). However, the majority's prudential concerns regarding the finality of appeals are unjustified. The fact is that CPL 460.30 has a defined one-year deadline (*see Syville*, 15 NY3d at 399 [describing the deadline as "a significant restriction"]). Furthermore, defendants already have at their disposal statutory and common-law mechanisms to challenge a judgment, years after the time to appeal has expired (*see* CPL 440.10, 460.30; *Syville*, 15 NY3d at 400-401 [granting coram nobis relief]). These statutes evince the legislative interest in ensuring that judgments are reviewed for error. Therefore, I see no reason to interpret CPL 460.30 narrowly to limit the application of CPL 440.10, thereby foreclosing consideration of a claim where the defendant has not even had the benefit of appellate review of the judgment. Moreover, as the above examples illustrate, the finality of the judgments is uncertain until at least the expiration of the one-year extension period, because until that time the People cannot know if a defendant will choose to seek leave to appeal pursuant to CPL 460.30 (1). Finality under our criminal justice system is no more certain under the majority's analysis.²

2. We should also not turn a blind eye to the fact that, within the Appellate Division, the Departments grant extensions under this provision at different rates, and that, as a result, the majority's holding unfairly penalizes defendants based on differences beyond their control. (*See* Joanne Macri,

(n. cont'd)

Judges PIGOTT, ABDUS-SALAAM and STEIN concur; Judge RIVERA dissents in an opinion in which Chief Judge LIPPMAN concurs.

Order of the Appellate Division reversed and order of Supreme Court, Suffolk County, reinstated.

Missed Deadlines for Filing a Notice of Appeal: Criminal Procedure Law § 460.30 to the Rescue, New York State Defenders Association Practice Advisory [2009], cached at <http://nycourts.gov/reporter/webdocs/MissingDeadlines.pdf>, formerly available at <http://www.nysda.org/docs/PDFs/09Missed%20Deadlines%20for%20Filing%20a%20Notice%20of%20Appeal%20CPL%20sec%20460.30%20to%20the%20Rescue.pdf> [accessed Dec. 9, 2015].)

Here, the Second Department rendered its decision on defendant's case fully aware of its practice regarding motions under 460.30, and in my opinion there is no compelling legal basis to reverse in this case.

[46 NE3d 601, 26 NYS3d 218]

PEGASUS AVIATION I, INC., et al., Appellants, v VARIG LOGISTICA S.A., Defendant, and MATLINPATTERSON GLOBAL ADVISERS, LLC, et al., Respondents.

Argued October 13, 2015; decided December 15, 2015

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered June 5, 2014. The Appellate Division (1) reversed, on the law and the facts, an order of the Supreme Court, New York County (Barbara R. Kapnick, J.), which, insofar as appealed from, had granted that portion of plaintiffs' motion which was for a trial adverse inference instruction against defendants MatlinPatterson Global Advisers, LLC, MatlinPatterson Global Opportunities Partners II LP, MatlinPatterson Global Opportunities Partners (Cayman) II LP, Os-kars Investments Ltd., Volo Logistics LLC and Volo do Brasil, S.A. as a sanction for spoliation of electronic evidence; and (2) denied that portion of the motion. The following question was certified by the Appellate Division: "Was the order of this Court, which reversed the order of Supreme Court, properly made?"

Pegasus Aviation I, Inc. v Varig Logistica S.A., 118 AD3d 428, reversed.

HEADNOTES

Evidence — Loss or Destruction of Evidence — Spoliation Sanctions — Standard for Imposing Spoliation Sanctions

1. A party that seeks sanctions for spoliation of evidence must show that the party having control over the evidence possessed an obligation to preserve it at the time of its destruction, that the evidence was destroyed with a culpable state of mind and that the destroyed evidence was relevant to the moving party's claim or defense such that the trier of fact could find that the evidence would support that claim or defense. Where the evidence is determined to have been intentionally or wilfully destroyed, its relevancy is presumed. If the evidence is determined to have been negligently destroyed, however, the party seeking spoliation sanctions must establish that the destroyed evidence was relevant to the party's claim or defense.

Evidence — Loss or Destruction of Evidence — Spoliation Sanctions — Culpable State of Mind — Negligence

2. Upon an appeal to the Court of Appeals from an Appellate Division order reversing the trial court's grant of plaintiff lessors' motion for the imposition of a trial adverse inference instruction as a spoliation sanction against defendants, related entities that had purchased lessee, for their failure to preserve certain electronically stored information (ESI) in lessee's

possession, the record evidence comported more with the factual determination of the Appellate Division that defendants' culpable state of mind in failing to preserve the ESI constituted ordinary negligence. The failure of defendants to institute a "litigation hold" relating to the ESI did not amount to gross negligence per se, as the trial court held, and the Appellate Division properly considered a number of factors in reaching its ultimate holding that defendants' conduct was not grossly negligent. Plaintiffs did not adduce evidence that any steps were taken to defeat the lessee's computer backup system in the months leading up to the computer crashes that resulted in the loss of much of the ESI, nor did plaintiffs claim that defendants themselves caused the crashes. Moreover, lessee was represented by its own counsel when defendants were brought into the litigation, and there was no evidence that defendants had reason to believe that lessee's counsel was not providing lessee adequate advice concerning ESI preservation. Defendants adequately responded to all of plaintiffs' discovery demands directed at them, thus negating any inference that defendants were reckless relating thereto. Finally, notwithstanding the fact that defendants had exercised practical control over lessee, the record evidence indicated that lessee and defendants were separate entities, with each possessing their own offices, staff, operations and computer systems.

Evidence — Loss or Destruction of Evidence — Spoliation Sanctions — Relevance

3. Upon an appeal from a trial court order granting plaintiff lessors' motion for the imposition of a trial adverse inference instruction as a spoliation sanction against defendants, related entities that purchased lessee out of a foreign bankruptcy, for their failure to preserve certain electronically stored information (ESI) in lessee's possession that was the subject of discovery demands in an action arising from lessee's default on the parties' leases, the Appellate Division erred in determining that plaintiffs had not attempted to make a showing that the ESI was relevant to plaintiffs' claims against defendants and in choosing to conduct its own analysis of the relevance issue without taking into account plaintiffs' arguments in that regard, which were contained in their appellate brief. Although the Appellate Division possesses the authority to make findings of fact that is as broad as the trial court, where it all but ignored plaintiffs' arguments concerning the relevance of the evidence, the matter was remitted to the trial court for a determination as to whether the negligently destroyed ESI was relevant to plaintiffs' claims against defendants and, if so, what sanction, if any, was warranted.

Evidence — Loss or Destruction of Evidence — Spoliation Sanctions — Trial Adverse Inference Instruction

4. Upon an appeal from a trial court order granting plaintiff lessors' motion for the imposition of a trial adverse inference instruction as a spoliation sanction against defendants, related entities that purchased lessee out of a foreign bankruptcy, for their failure to preserve certain electronically stored information in lessee's possession that was the subject of discovery demands in an action arising from lessee's default on the parties' leases, the Appellate Division erroneously stated that the imposition of a trial adverse inference charge would be "tantamount to granting plaintiffs summary judgment" against defendants where plaintiffs sought to hold defendants liable for lessee's conduct on an alter ego theory. Adverse inference charges have been found to be appropriate even in situations where, as here, the evidence was negligently destroyed, and a trial adverse inference instruction sanction would not be akin to granting summary judgment to plaintiffs on their alter

ego claim since such a charge is permissive and can be appropriately tailored by the trial court.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Evidence § 256; AM JUR 2d, Trial § 1100.
CARMODY-WAIT 2d, Disclosure §§ 42:633, 42:638;
CARMODY-WAIT 2d, Charge to Jury § 57:34.
NY JUR 2d, Disclosure §§ 427, 428; NY JUR 2d, Evidence
and Witnesses § 129; NY JUR 2d, Trial § 419.

ANNOTATION REFERENCE

See ALR Index under Disclosure; Instructions to Jury;
Negligence; Spoliation of Evidence.

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POINTS OF COUNSEL

Coblentz Patch Duffy & Bass LLP, San Francisco, California (*Richard R. Patch*, of the California bar, admitted pro hac vice, of counsel), and *Skarzynski Black LLC*, New York City (*James T. Sandnes* and *Aron M. Zimmerman* of counsel), for appellants. I. Legal standards: (1) it is well established that parties to litigation are required to implement comprehensive “litigation holds” preserving all documents that may be relevant to the claims and defenses in the case, and (2) this court should clarify that spoliation standards do not vary based on the nature of the destroyed evidence. (*Pension Comm. of Univ. of Montreal Pension Plan v Banc of Am. Sec.*, 685 F Supp 2d 456; *VOOM HD Holdings LLC v EchoStar Satellite L.L.C.*, 93 AD3d 33; *Roberts v Corwin*, 41 Misc 3d 1210[A], 2013 NY Slip Op 51637[U], 118 AD3d 571; *Johnson v Edwards*, 41 Misc 3d 756; *Mangione v Jacobs*, 37 Misc 3d 711, 121 AD3d 953; *Hameroff & Sons, LLC v Plank, LLC*, 36 Misc 3d 1229[A], 2012 NY Slip Op 51553[U], 108 AD3d 908; *Ortega v City of New York*, 9 NY3d 69; *Biniachvili v Yeshivat Shaare Torah, Inc.*, 120 AD3d 605; *Strong v City of New York*, 112 AD3d 15; *Enstrom v Garden Place Hotel*, 27 AD3d 1084.) II. Both Supreme Court and the Appellate Division found that respondents had control of Varig Logistica S.A.’s documents and therefore a duty to preserve

them. (*VOOM HD Holdings LLC v EchoStar Satellite L.L.C.*, 93 AD3d 33; *Keane v Keane*, 8 NY3d 115; *Glenbriar Co. v Lipsman*, 5 NY3d 388; *Pension Comm. of Univ. of Montreal Pension Plan v Banc of Am. Sec.*, 685 F Supp 2d 456.) III. Respondents' failure to preserve documents in their control was at least grossly negligent. (*VOOM HD Holdings LLC v EchoStar Satellite L.L.C.*, 93 AD3d 33; *Ahroner v Israel Discount Bank of N.Y.*, 79 AD3d 481; *Pension Comm. of Univ. of Montreal Pension Plan v Banc of Am. Sec.*, 685 F Supp 2d 456; *Harry Weiss, Inc. v Moskowitz*, 106 AD3d 668; *County of Erie v Abbott Labs., Inc.*, 30 Misc 3d 837; *915 Broadway Assoc. LLC v Paul, Hastings, Janofsky & Walker, LLP*, 34 Misc 3d 1229[A], 2012 NY Slip Op 50285[U]; *Sekisui Am. Corp. v Hart*, 945 F Supp 2d 494; *Hartford Ins. Co. v Holmes Protection Group*, 250 AD2d 526; *Campaign for Fiscal Equity v State of New York*, 100 NY2d 893.) IV. Appellants have satisfied any modest burden they might have to prove the relevance of the vast, unknown quantity of documents they were prevented from accessing as a result of respondents' failure to preserve them. (*VOOM HD Holdings LLC v EchoStar Satellite L.L.C.*, 93 AD3d 33; *Residential Funding Corp. v DeGeorge Fin. Corp.*, 306 F3d 99; *Ahroner v Israel Discount Bank of N.Y.*, 79 AD3d 481; *Sage Realty Corp. v Proskauer Rose*, 275 AD2d 11; *Santana v Castillo*, 114 AD3d 621; *Alleva v United Parcel Serv., Inc.*, 112 AD3d 543; *New York City Hous. Auth. v Pro Quest Sec., Inc.*, 108 AD3d 471; *Kronisch v United States*, 150 F3d 112; *Byrnie v Town of Cromwell, Bd. of Educ.*, 243 F3d 93.) V. The Appellate Division's holding must be reversed because it misconstrued how the adverse-inference charge would affect the jury's consideration of the merits and, in so doing, it effectively ruled that adverse inferences are unavailable, as a matter of law, to plaintiffs in alter-ego cases. (*Matter of Morris v New York State Dept. of Taxation & Fin.*, 82 NY2d 135.)

Simpson Thacher & Bartlett LLP, New York City (*Thomas C. Rice*, *Roy L. Reardon* and *Isaac M. Rethy* of counsel), and *Bracewell & Giuliani LLP*, New York City (*Michael C. Hefter*, *Kelly Koscuishka* and *David A. Shargel* of counsel), for respondents.

I. Legal standards: (a) the order of the Appellate Division is reviewed by the Court of Appeals for abuse of discretion, except to the extent it is premised on errors of law, in which case the Court of Appeals does not defer to it, and (b) under *VOOM HD Holdings LLC v EchoStar Satellite L.L.C.* (93 AD3d 33) a party seeking spoliation sanctions must prove (i) control and a duty to preserve; (ii) culpability; and (iii) relevance. (*Andon v 302-*

304 Mott St. Assoc., 94 NY2d 740; *Merrill Lynch, Pierce, Fenner & Smith, Inc. v Global Strat Inc.*, 22 NY3d 877; *Mashreqbank PSC v Ahmed Hamad Al Gosaibi & Bros. Co.*, 23 NY3d 129; *Ortega v City of New York*, 9 NY3d 69; *Residential Funding Corp. v DeGeorge Fin. Corp.*, 306 F3d 99.) II. The First Department correctly concluded that respondents were not grossly negligent. (*Hartford Ins. Co. v Holmes Protection Group*, 250 AD2d 526; *Colnaghi, U.S.A. v Jewelers Protection Servs.*, 81 NY2d 821; *Kalisch-Jarcho, Inc. v City of New York*, 58 NY2d 377; *Goldstein v Carnell Assoc., Inc.*, 74 AD3d 745; *Pension Comm. of Univ. of Montreal Pension Plan v Banc of Am. Sec.*, 685 F Supp 2d 456; *Merrill Lynch, Pierce, Fenner & Smith, Inc. v Global Strat Inc.*, 22 NY3d 877; *Ortega v City of New York*, 9 NY3d 69; *Morris v Union Pac. R.R.*, 373 F3d 896; *Those Certain Underwriters at Lloyds, London v Occidental Gems, Inc.*, 11 NY3d 843; *Chin v Port Auth. of N.Y. & N.J.*, 685 F3d 135.) III. The Appellate Division correctly determined that appellants have not established prejudice. (*Kavanagh v Ogden Allied Maintenance Corp.*, 92 NY2d 952; *Hamilton v Miller*, 23 NY3d 592; *Pension Comm. of Univ. of Montreal Pension Plan v Banc of Am. Sec.*, 685 F Supp 2d 456; *VOOM HD Holdings LLC v EchoStar Satellite L.L.C.*, 93 AD3d 33; *Residential Funding Corp. v DeGeorge Fin. Corp.*, 306 F3d 99; *Strong v City of New York*, 112 AD3d 15; *New York City Hous. Auth. v Pro Quest Sec., Inc.*, 108 AD3d 471; *Alleva v United Parcel Serv., Inc.*, 112 AD3d 543; *Sage Realty Corp. v Proskauer Rose*, 275 AD2d 11; *Santana v Castillo*, 114 AD3d 621.)

OPINION OF THE COURT

FIGOTT, J.

[1] A party that seeks sanctions for spoliation of evidence must show that the party having control over the evidence possessed an obligation to preserve it at the time of its destruction, that the evidence was destroyed with a “culpable state of mind,” and “that the destroyed evidence was relevant to the party’s claim or defense such that the trier of fact could find that the evidence would support that claim or defense” (*VOOM HD Holdings LLC v EchoStar Satellite L.L.C.*, 93 AD3d 33, 45 [1st Dept 2012], quoting *Zubulake v UBS Warburg LLC*, 220 FRD 212, 220 [SD NY 2003]). Where the evidence is determined to have been intentionally or wilfully destroyed, the relevancy of the destroyed documents is presumed (*see Zubulake*, 220 FRD at 220). On the other hand, if the evidence is determined to have been negligently destroyed, the party seeking spolia-

tion sanctions must establish that the destroyed documents were relevant to the party's claim or defense (*see id.*).

On this appeal, we are asked to decide whether the Appellate Division erred in reversing an order of Supreme Court that imposed a spoliation sanction on the defendants. We hold that it did, and remand the matter to the trial court for a determination as to whether the evidence, which the Appellate Division found to be negligently destroyed, was relevant to the claims asserted against defendants and for the imposition of an appropriate sanction, should the trial court deem, in its discretion, that a sanction is warranted.

I.

In 2005 and 2006, plaintiffs Pegasus Aviation I, Inc., Pegasus Aviation IV, Inc. and Pegasus Aviation V, Inc. (collectively, Pegasus) leased cargo planes to defendant Varig Logistica S.A. (VarigLog), a Brazilian air cargo company. Shortly thereafter, the MP defendants¹ purchased VarigLog out of a Brazilian bankruptcy. In early 2007, a dispute arose between one of the MP defendants (MP Volo) and its Brazilian shareholders concerning the distribution of proceeds from the sale of one of VarigLog's wholly-owned subsidiaries. In July 2007, the Brazilian shareholders denied the MP defendants access to VarigLog's offices, and shareholder litigation ensued. The end result was that the MP defendants were, in effect, "frozen out" of VarigLog's affairs from July 2007 until April 1, 2008, when a Brazilian court removed the three Brazilian shareholders and appointed MP Volo to "take over the administration and management" of VarigLog under the supervision of a judicial oversight committee.

During the shareholder litigation, and while the MP defendants were "frozen out" of VarigLog, VarigLog defaulted on its

1. For purposes of background, the MP defendants consist of a group of commonly controlled New York-based firms and entities under their control. Defendants MatlinPatterson Global Advisers, LLC, MatlinPatterson Global Opportunities Partners II LP, and MatlinPatterson Global Opportunities Partners (Cayman) II LP formed defendant Volo Logistics LLC (MP Volo), a Delaware company that is a wholly-owned subsidiary of defendant Oskars Investments Ltd. MP Volo and three Brazilian shareholders/co-investors formed Volo do Brasil, S.A. (VdB), a Brazilian corporation, which purchased VarigLog out of a Brazilian bankruptcy proceeding in 2006. Brazilian aviation law requires that Brazilian citizens or entities must control at least 80% of the voting interest in a Brazilian airline and, as a result, the Brazilian shareholders controlled 80% of the voting interest in VdB while MP Volo owned the remaining 20%.

leases with Pegasus. In February 2008, Pegasus commenced litigation against only VarigLog in Florida state court for, among other things, breach of the lease agreements. Later, Pegasus voluntarily discontinued the Florida action and filed suit against both VarigLog and the MP defendants in New York County Supreme Court in October 2008. As relevant here, Pegasus sued VarigLog for breach of contract and conversion, and sought to hold the MP defendants liable for VarigLog's conduct on an alter ego theory. In March 2009, VarigLog filed for bankruptcy. At all relevant times, VarigLog and the MP defendants were represented by separate counsel.

Pegasus served a notice to produce documents pursuant to CPLR 3120 that, as relevant here, sought electronically stored information (ESI) concerning Pegasus's claims and VarigLog's relationship with the MP defendants. VarigLog produced some documents in response, but that production was unsatisfactory to Pegasus, particularly with regard to the ESI.

Supreme Court appointed a discovery referee to assist Pegasus and VarigLog in resolving the dispute. During the first conference, which occurred in January 2010, counsel for VarigLog reported that VarigLog had experienced one or more computer "crashes" that impaired its ability to provide the requested ESI. VarigLog's counsel later explained that between 2000 and 2008, VarigLog did not have a system of preserving emails, that emails were routinely stored on the computers of individual employees and that employee computers were returned empty when an employee left the company. Counsel also explained that beginning in March 2008, VarigLog had established a system whereby VarigLog's ESI was backed up on a daily, weekly and monthly basis, but that computer crashes that occurred in February and March 2009 resulted in the loss of much of the ESI, and that data recovery efforts had proven unsuccessful.

Pegasus then moved for the imposition of sanctions against VarigLog and the MP defendants. It sought an order holding VarigLog in contempt for failing to comply with court orders, striking VarigLog's answer, and imposing a trial adverse inference against the MP defendants for their failure to properly preserve electronic and paper records relevant to the action and within their control, albeit in the possession of their subsidiary, VarigLog. Pegasus argued that the MP defendants controlled VarigLog and therefore had a duty to impose a "litigation hold" to preserve certain VarigLog paper documents but failed to do so.

Supreme Court granted Pegasus’s motion, holding that VarigLog’s failure to issue a “litigation hold” amounted to gross negligence as a matter of law, such that the relevance of the missing ESI was presumed.² Supreme Court also found that the MP defendants, having been charged by the Brazilian court with the duty to “manage” and “administer” VarigLog, were in “control” of VarigLog for purposes of putting a “litigation hold” into place to preserve the ESI, and their failure to do so amounted to gross negligence. The court therefore struck the answer of VarigLog and imposed a trial adverse inference sanction against the MP defendants with regard to ESI and paper records relevant to the action and within the MP defendants’ control. The MP defendants appealed the order of Supreme Court to the Appellate Division insofar as it granted Pegasus’s motion for a trial adverse inference instruction.

A divided Appellate Division reversed insofar as appealed from on the law and the facts and denied Pegasus’s motion for a trial adverse inference instruction (118 AD3d 428, 428 [1st Dept 2014]). The majority held that the record supported Supreme Court’s finding that the MP defendants had sufficient control over VarigLog so as to trigger a duty on their part to preserve the ESI, but that it could not be said that their “failure to discharge this duty was so egregious as to rise to the level of gross negligence” (*id.* at 432). It rejected Supreme Court’s holding that the MP defendants’ failure to institute a litigation hold amounted to gross negligence per se, and held that the facts of the case supported, at most, a finding of simple negligence (*see id.* at 432-434). Further, according to the majority, because Pegasus failed to prove that the lost ESI would have supported Pegasus’s claims, a trial adverse inference sanction could not stand (*see id.* at 435).

Justice Andrias concurred with the majority on the issue of the MP defendants’ control over VarigLog and their duty to preserve the ESI, and also agreed “that upon a contextual assessment of all pertinent facts” the MP defendants’ “failure to discharge [their] duty did not rise to the level of gross negligence” (*id.* at 436). However, in his view, because Supreme Court possessed the discretion to impose a spoliation sanction for negligent destruction of evidence, the matter should have been remanded to Supreme Court “for a determination as to

2. VarigLog did not appeal Supreme Court’s order and is not a party to this appeal.

the extent to which [Pegasus has] been prejudiced by the loss of the evidence, and the sanction, if any, that should be imposed” (*id.* at 436-437 [Andrias, J., concurring in part and dissenting in part]).

Justice Richter dissented in full, arguing that the MP defendants’ “failure to take any meaningful steps to preserve evidence constitute[d] gross negligence” and that the adverse inference sanction should be affirmed (*id.* at 438 [Richter, J., dissenting]). She based her determination not only on the fact that the MP defendants failed to initiate a litigation hold, but also “on a close review of the specific facts of th[e] case” (*id.* at 440).

The Appellate Division granted Pegasus’s motion for leave to appeal, and, in its certified question, asks this Court to determine whether the Appellate Division’s order, which reversed Supreme Court, was properly made (2014 NY Slip Op 90118[U] [1st Dept 2014]).³ We answer that question in the negative.

II.

Our state trial courts possess broad discretion to provide proportionate relief to a party deprived of lost or destroyed evidence, including the preclusion of proof favorable to the spoliator to restore balance to the litigation, requiring the spoliator to pay costs to the injured party associated with the development of replacement evidence, or employing an adverse inference instruction at the trial of the action (*see Ortega v City of New York*, 9 NY3d 69, 76 [2007] [citations omitted]; CPLR 3126 [if a trial court determines that a party has destroyed evidence that “ought to have been disclosed . . . the court may make such orders with regard to the failure or refusal as are just”]).

Here, the order of the Appellate Division reversed the order of Supreme Court “on the law and the facts” (118 AD3d at 428). In its certified question to this Court, the Appellate Division certified that the “determination was made as a matter of law and not in the exercise of discretion.” However, we are not bound by the Appellate Division’s characterization in its certification order, and instead “look to see whether the Appel-

3. Because the Appellate Division focused solely on the destruction of ESI and did not address the issue concerning the paper records, our analysis is similarly limited to the ESI evidence.

late Division's decision, regardless of its characterization, nonetheless reflects a discretionary balancing of interests" (*Andon v 302-304 Mott St. Assoc.*, 94 NY2d 740, 745 [2000] [citations omitted]).

The trial court (which had presided over and supervised the discovery in the case for several years) and the Appellate Division reached different conclusions concerning the MP defendants' level of negligence in failing to preserve the ESI. The trial court conducted a review of the facts, determined that the MP defendants exercised sufficient control over VarigLog,⁴ and held that the failure of the MP defendants to institute a litigation hold amounted to gross negligence. On appeal, all five Appellate Division Justices agreed with Supreme Court's assessment that the MP defendants possessed "control" over VarigLog such that it had a duty to preserve the ESI, but the three-Justice majority found that "[t]he facts of this case" did not support a "finding of gross negligence" (118 AD3d at 432). A fourth Justice made a "contextual assessment of all pertinent facts" and reached the same conclusion (*id.* at 436 [Andrias, J., concurring in part and dissenting in part]). The dissenting Justice's conclusion that the MP defendants were grossly negligent was "based on the unique facts of [the] case and the significant control [the MP defendants] had over VarigLog at the time this action was commenced" (*id.* at 440 [Richter, J., dissenting]). Thus, whether the MP defendants' "culpable mental state" rose to the level of gross negligence, as opposed to ordinary negligence, constituted differing factual determinations by the trial court and the Appellate Division.

[2] Where the Appellate Division reaches a factual conclusion different from that reached by the trial court, "the scope of our review is limited to determining whether the evidence of record . . . more nearly comports with the trial court's findings or with those of the Appellate Division" (*Friedman v State of New York*, 67 NY2d 271, 284-285 [1986]). In our view, the record evidence comports more with the Appellate Division majority's findings.

The trial court found that it was the lack of a litigation hold, and not the computer crashes themselves, that resulted in the

4. Our utilization of the word "control" for purposes of this opinion is solely in reference to the issue of whether the MP defendants possessed sufficient control over VarigLog so as to trigger a duty on the MP defendants' part to see to it that VarigLog was preserving the ESI. At the trial of this action, Pegasus will still be required to meet all of the elements of its alter ego cause of action against the MP defendants.

destruction of the requested documents. However, the trial court incorrectly stated that the MP defendants were part of the Florida litigation, and that once they were, they were required to ensure that a litigation hold was in place, pointing to the fact that because the MP defendants were ordered by the Brazilian court to “manage and administer” VarigLog, the MP defendants were running VarigLog and therefore had the means of implementing a litigation hold. However, in this instance, the failure to institute a litigation hold did not amount to gross negligence per se, as the trial court held. Rather, a party’s failure to institute a litigation hold is but one factor that a trial court can consider in making a determination as to the alleged spoliator’s culpable state of mind.

In contrast to the trial court’s reasoning, the Appellate Division majority noted that Pegasus did not adduce evidence that any steps were taken to defeat the computer backup system in the months leading up to the crashes, nor did Pegasus claim that the MP defendants themselves caused the crashes. The Appellate Division majority considered a number of factors in reaching its ultimate holding that the MP defendants’ conduct in failing to preserve the ESI was not grossly negligent. Pertinent to that finding was the fact that VarigLog was represented by its own counsel when the MP defendants were brought into the litigation in April 2008, and there was no evidence that the MP defendants had reason to believe that VarigLog’s counsel was not providing VarigLog adequate advice concerning ESI preservation. Another factor relied on by the majority was that the MP defendants adequately responded to all of Pegasus’s discovery demands directed at them, thus negating any inference that the MP defendants were reckless concerning Pegasus’s demands made on them. Finally, the majority found that notwithstanding the fact that the MP defendants had exercised practical control over VarigLog, the record evidence indicated that VarigLog and the MP defendants were separate entities, with each possessing their own offices, staff, operations and computer systems.

These aforementioned facts substantiated the Appellate Division’s ultimate conclusion that, at most, the MP defendants’ failures amounted to “a finding of simple negligence” (118 AD3d at 432-433). The evidence in the record adequately comports with the Appellate Division majority’s holding.

[3] On this record, we see no reason to disturb the unanimous finding of the lower courts that the MP defendants had suf-

ficient control over VarigLog to trigger a duty on its part to preserve the ESI. Nor is there any basis to disturb the findings of fact by the Appellate Division that the MP defendants were negligent in failing to discharge that duty. The Appellate Division majority erred, however, to the extent that it determined that Pegasus had not attempted to make a showing of relevance (118 AD3d at 433 n 7) and chose to conduct its own analysis of the relevance issue without taking into account Pegasus's arguments in that regard, which were contained in its appellate brief.⁵ Thus, although the Appellate Division possesses the authority to make findings of fact that is as broad as the trial court, in this instance, where it all but ignored Pegasus's arguments concerning the relevance of the documents, we conclude that the prudent course of action is to remit the matter to Supreme Court for a determination as to whether the negligently destroyed ESI was relevant to Pegasus's claims against the MP defendants and, if so, what sanction, if any, is warranted.

[4] Finally, the Appellate Division erroneously stated that a trial adverse inference charge in an alter ego case such as this one would be "tantamount to granting [Pegasus] summary judgment" (118 AD3d at 436). Such adverse inference charges have been found to be appropriate even in situations where the evidence has been found to have been negligently destroyed (*see e.g. Strong v City of New York*, 112 AD3d 15, 22-24 [1st Dept 2013] [stating that adverse inference charge at trial "may be . . . appropriate" where the evidence was negligently destroyed]; *Marotta v Hoy*, 55 AD3d 1194, 1197 [3d Dept 2008] [holding that Supreme Court did not abuse its discretion in determining that the plaintiff was entitled to an adverse inference instruction as a sanction for negligent spoliation]; *Tomasello v 64 Franklin, Inc.*, 45 AD3d 1287, 1288 [4th Dept 2007] [adverse inference charge appropriate sanction for negligent spoliation]). Contrary to the Appellate Division majority's contention, a trial adverse inference sanction would not be akin to granting summary judgment to Pegasus on its alter ego claim, since such a charge is permissive and can be appropriately tailored by the trial court (*see* PJI 1:77; *see also Gogos v Modell's Sporting Goods, Inc.*, 87 AD3d 248, 255 [1st Dept 2011]).

5. Indeed, Pegasus made a motion to reargue addressing this error, and, rather than granting that motion, the Appellate Division granted Pegasus leave to appeal to this Court (2014 NY Slip Op 90118[U] [1st Dept 2014]).

Accordingly, the order of the Appellate Division should be reversed, with costs, and the case remitted to Supreme Court for further proceedings in accordance with this opinion and the certified question is answered in the negative.

STEIN, J. (dissenting). I respectfully dissent. The majority properly relies upon *VOOM HD Holdings LLC v EchoStar Satellite L.L.C.* (93 AD3d 33, 45 [1st Dept 2012]) for the proposition that a party seeking sanctions for spoliation of evidence must establish three facts: (1) that the party with control over the destroyed evidence had the obligation to preserve it; (2) that the evidence was destroyed with a culpable state of mind; and (3) that the evidence was relevant to—or, in other words, would have supported—the party’s claim. Like the majority, I conclude that the courts below correctly determined that the MatlinPatterson (MP) defendant firms and entities had sufficient control over Varig Logistica S.A. (VarigLog) to trigger a duty to preserve electronically stored information (ESI) and the computer hardware on which it was stored. However, I part ways with the majority over its determination that the MP defendants’ “culpable state of mind” amounted to, at most, simple negligence. I would hold that defendants acted with gross negligence in failing to preserve the ESI.

I further disagree with the majority’s view that relevance is not to be presumed because the evidence was not intentionally or wilfully destroyed. The majority endorses the conclusion of the First Department in *VOOM* and the case upon which it relies—*Zubulake v UBS Warburg LLC* (220 FRD 212, 220 [SD NY 2003])—that, “[w]here the evidence is determined to have been intentionally or wilfully destroyed, the relevancy of the destroyed documents is presumed” (majority op at 547). However, the majority neglects to mention that *VOOM* further held that “destruction that is the result of gross negligence” also “is sufficient to presume relevance” (*VOOM*, 93 AD3d at 45). Inasmuch as, under *VOOM*, the MP defendants’ gross negligence gives rise to a presumption of relevancy, I would remit to the Appellate Division for consideration of whether, in its discretion, a sanction is warranted.

I.

The basic facts are largely undisputed and reflected in the record as described by the majority. The MP defendants were “frozen out” of VarigLog’s affairs by Brazilian shareholders

with whom they shared ownership of VarigLog's parent corporation, Volo do Brasil, S.A. (VdB); during that time frame, VarigLog breached its aircraft lease agreements with plaintiffs, leading to the commencement of a now-discontinued Florida action and then this action. Prior to the commencement of this action, one of the MP defendants was granted authority over the "administration and management" of VarigLog by a Brazilian court. Thereafter, VarigLog suffered two computer crashes resulting in the loss of much of the ESI that plaintiffs sought in discovery. After the loss was disclosed, plaintiffs sought sanctions.

Supreme Court—which, as the majority notes, "had presided over and supervised the discovery in the case for several years" (majority op at 552)—determined that the MP defendants' culpable state of mind amounted to gross negligence, warranting an adverse inference charge at trial. In contrast, the Appellate Division concluded that the record supported only a finding of ordinary negligence and not gross negligence (118 AD3d 428, 432-433 [1st Dept 2014]). Because the Appellate Division reversed the trial court's factual determination in this regard, our review is limited to a consideration of "which court's determination more closely comports with the evidence" (*Glenbriar Co. v Lipsman*, 5 NY3d 388, 392 [2005]). In my view, Supreme Court's determination does so here.

While I concur with the majority's basic outline of the underlying facts, I note that the following facts—which were omitted from the majority's highly selective version—are also relevant to an analysis of which of the determinations below more closely comports with the record. Although the Brazilian shareholders nominally owned 80% of the voting stock in VdB, a Brazilian court concluded that they did not make any financial contribution and "were inserted into the company by [Volo Logistics LLC, an MP defendant (MP Volo)] . . . to circumvent" Brazilian aviation law. The MP defendants not only owned an equity stake in VarigLog, but they also advanced capital to VarigLog in the form of loans. The dispute that led to the MP defendants being "frozen out" of VarigLog's affairs in July 2007 arose when the Brazilian shareholders refused to authorize repayment of the MP defendants' loans and instead transferred cash to bank accounts owned by VarigLog and located in Switzerland. MP Volo then sued VarigLog for breach of its obligations under the relevant loan agreement in New York, Switzerland and Brazil (see *Volo Logistics LLC v Varig*

Logistica S.A., 51 AD3d 554 [1st Dept 2008]). The parties do not contest that it was as a result of this dispute that the Brazilian shareholders denied the MP defendants access to VarigLog's offices and systems and prohibited the MP defendants from involvement in VarigLog's business affairs from July 2007 until April 2008. In litigation commenced in Brazil by the Brazilian shareholders seeking invalidation of the shareholder agreement with the MP defendants, the Brazilian court found that the shareholders had used VarigLog funds during that time for their personal benefit, rather than for the company's maintenance. It was also during that time frame that VarigLog began to breach its lease agreements with plaintiffs.

Ultimately, the Brazilian court excluded the Brazilian shareholders from having any role in the management and operations of VarigLog, and vested "administration and management" in MP Volo beginning April 1, 2008. MP Volo remained subject to judicial oversight until December 9, 2008, when the judicial administrators were relieved of any further duty to supervise and control MP Volo's management and administration of VarigLog.¹ Despite the judicial oversight, the Appellate Division, in affirming Supreme Court's finding of the requisite control, stated that "it cannot be ignored that the MP defendants, as the sole shareholders of VarigLog at this time, selected VarigLog's directors, and the record establishes that, during the period in question, employees and consultants of the MP defendants were *closely monitoring VarigLog's operations*" (118 AD3d at 431 [emphasis added]).

Indeed, during the relevant time frame, Peter Miller, a former principal of defendant MatlinPatterson Global Advisers, LLC, was first president and then a member of VarigLog's Board of Directors. Chan Lup Wai Ohira, the sister of an MP Volo director, Lap Chan, became president of VarigLog's Board of Directors immediately after Miller and, from November 24, 2008 through at least October 19, 2011, she was the CEO of VarigLog. Miller was directly involved in the negotiations over the aircraft leases that are in dispute. In fact, he testified at his examination before trial that he told plaintiffs that their planes would be returned once the past-due amounts that VarigLog owed plaintiffs were settled—that is, Miller informed plaintiffs that reaching an agreement on any outstanding

1. Approximately three months after judicial oversight terminated, VarigLog filed for bankruptcy.

amounts that VarigLog owed plaintiffs under the leases was a prerequisite to the physical return of plaintiffs' planes. Regarding the MP defendants' day-to-day management of VarigLog, Miller also testified that Lap Chan led a team of MP defendant employees and consultants who worked at VarigLog, including an information technology (IT) consultant. Notably, although VarigLog maintained a separate computer system from the MP defendants, the IT consultant recommended that VarigLog's IT operating costs be reduced by 60% within three to four months of MP Volo being imbued with authority over the management and administration of VarigLog. To be sure, as the majority states, VarigLog and the MP defendants were represented by separate counsel. However, it is undisputed that, once the MP defendants became responsible for the administration and management of VarigLog, they replaced VarigLog's counsel, including in the prior New York action (*Volo Logistics LLC v Varig Logistica S.A.*, 51 AD3d 554 [2008], *supra*).²

Significantly, the computer crashes that resulted in the loss of the ESI at issue occurred on February 15, 2009 and March 24, 2009—approximately 10 to 11 months *after* the MP defendants obtained control of VarigLog pursuant to the Brazilian court order, four to five months after this action commenced, several months after judicial oversight terminated, and shortly after plaintiff served VarigLog with its first set of requests for the production of documents. As noted by the dissenting Justice at the Appellate Division, it is undisputed that, even “after the first crash occurred, MP . . . took no additional action to ensure the preservation of data going forward” (118 AD3d at 439 [Richter, J., dissenting]). Rather, it hired a company that unsuccessfully attempted to recover the data, and then waited more than 10 months to disclose the fact that the crashes had occurred. Critically, while the MP defendants were “closely monitoring VarigLog's operations” (118 AD3d at 431), VarigLog failed to maintain the affected disks and applications following the crashes. That is, this case involves not only a failure to preserve electronic data but, even more importantly, the failure

2. Although the majority concludes that “there was no evidence that the MP defendants had reason to believe that VarigLog's counsel”—hired by the MP defendants—“was not providing VarigLog adequate advice concerning ESI preservation” (majority op at 553), any inquiry in that regard may have revealed cause for concern, given that counsel later conceded that he “did not discuss backing up existing electronic data that was being preserved . . . , nor did the possibility of a computer crash that might eradicate such data enter [his] thinking.”

to preserve the affected disks and applications involved in the crashes that plaintiffs could have had examined to determine if the ESI could be restored.

II.

As noted above, my primary disagreement with the majority centers on its analysis of the record evidence regarding the MP defendants' culpable state of mind—i.e., the extent of their negligence. In concluding that the Appellate Division's finding that defendant's conduct constituted ordinary negligence, rather than gross negligence, more closely comports with the record, the majority fails to articulate what it actually means by the phrase "gross negligence."³ In accordance with this Court's traditional definition of gross negligence, the proper standard is "the failure to exercise even slight care," and whether a party's conduct amounts to gross negligence generally presents a factual question (*Food Pageant v Consolidated Edison Co.*, 54 NY2d 167, 172 [1981]; see also *Dalton v Hamilton Hotel Operating Co.*, 242 NY 481, 487 [1926]). Upon a complete review of the entire record before us, I conclude that the evidence more closely comports with a finding that the MP defendants failed to use even slight care—i.e., that they were grossly negligent.⁴

While VarigLog's obligations to preserve evidence may have arisen prior to the time the MP defendants acquired control of that company, the data losses in question occurred long after the MP defendants assumed management and administration of VarigLog. Moreover, once the MP defendants' close monitor-

3. In determining the MP defendants' culpable state of mind, the Appellate Division defined "gross negligence" as "'conduct that evinces a reckless disregard for the rights of others or smacks of intentional wrongdoing'" (118 AD3d at 433, quoting *Hartford Ins. Co. v Holmes Protection Group*, 250 AD2d 526, 527 [1st Dept 1998]). As plaintiffs argue, that definition was inapt because it was drawn from an unrelated context involving the rule that contractual waiver of liability for gross negligence is forbidden as a matter of public policy (see *Hartford Ins. Co.*, 250 AD2d at 527; see also *Abacus Fed. Sav. Bank v ADT Sec. Servs., Inc.*, 18 NY3d 675, 683 [2012]).

4. Although I believe that the majority has overlooked significant facts in the record that evince the MP defendants' gross negligence, I agree that the trial court erred in concluding that the failure to institute a litigation hold amounts to gross negligence per se. Rather, "the failure to adopt good preservation practices [is but] one factor [to be considered] in the determination of whether discovery sanctions should issue" (*Chin v Port Auth. of N.Y. & N.J.*, 685 F3d 135, 162 [2012] [internal quotation marks, brackets and citation omitted]).

ing of VarigLog's operations commenced, Miller—an employee of the MP defendants—was directly involved in the unsuccessful negotiations between VarigLog and plaintiffs over the leases at issue. Nevertheless, although the MP defendants should have anticipated litigation with plaintiffs at that point, they failed to institute any litigation hold, as the majority concedes.

Furthermore, VarigLog may have had its own, separate computer systems and counsel, but once the MP defendants were authorized to manage VarigLog, their consultant sought to downsize VarigLog's IT department and the MP defendants replaced VarigLog's counsel with attorneys of their own choosing, one of whom admittedly failed to consider the possibility of a computer crash. The computer crashes occurred well after this action commenced, after discovery requests were made, and after judicial oversight of VarigLog had terminated. Thus, at the time of the first crash, the MP defendants were administering VarigLog without oversight, yet they took no steps thereafter to ensure the preservation of the remaining data that survived the first crash, despite the fact that litigation was ongoing. Most troubling of all, the hardware and software—the affected “disks and applications”—involved in the crashes were discarded after the second crash without any notice to plaintiffs, thereby “depriv[ing] [plaintiffs] of the opportunity to have their own expert examine the computer to determine if the deleted files could be restored” (*Harry Weiss, Inc. v Moskowitz*, 106 AD3d 668, 670 [1st Dept 2013]).

Regardless of whether the MP defendants responded to the discovery demands directed at them, the foregoing evidence more closely comports with the trial court's finding that they were grossly negligent in their oversight of VarigLog's discovery obligations (*see id.* at 669-670; *see also AJ Holdings Group, LLC v IP Holdings, LLC*, 129 AD3d 504, 505 [1st Dept 2015]; *Ahroner v Israel Discount Bank of N.Y.*, 79 AD3d 481, 482 [1st Dept 2010]; *see generally Dorchester Fin. Holdings Corp. v Banco BRJ S.A.*, 304 FRD 178, 182-184 [SD NY 2014]). Therefore, I would reverse the Appellate Division's finding of ordinary negligence and reinstate the trial court's finding regarding the level of negligence displayed. The MP defendants' grossly negligent conduct gives rise to a rebuttable presumption that the spoliated evidence was relevant (*see AJ Holdings*, 129 AD3d at 505; *VOOM*, 93 AD3d at 45). Accordingly, inasmuch as the Appellate Division placed the burden on

plaintiffs to demonstrate relevance when it should have placed the burden on the MP defendants to disprove it, I would remit to that Court for a determination of whether the MP defendants rebutted the presumption of relevance and, if not, for a discretionary determination of what sanction, if any, is warranted.

Although the issue of relevance should be revisited, I emphasize that it should be considered by the Appellate Division, rather than the trial court. I further take this opportunity to express my disagreement with the majority's characterization of the Appellate Division's analysis of relevance as having been performed "without taking into account [plaintiffs'] arguments in that regard, which were contained in [their] appellate brief" (majority op at 554). In my view, the Appellate Division properly considered plaintiffs' arguments and concluded that plaintiffs incorrectly asserted that "the motion court found that the evidence established that the lost documents . . . were relevant" (118 AD3d at 435 n 9 [internal quotation marks omitted]). Although the Appellate Division correctly concluded that plaintiffs did not attempt to show relevance in the first instance—which would be their burden if the MP defendants' conduct amounted only to ordinary negligence (*see VOOM*, 93 AD3d at 45)—plaintiffs argued in their appellate brief that the MP defendants failed to successfully *rebut* the presumption of relevance of several enumerated categories of documents, by showing how those documents were relevant. The Appellate Division expressly addressed and rejected plaintiffs' arguments concerning the documents, performing a detailed analysis of the relevance of all of the enumerated categories of documents set forth in plaintiffs' brief (118 AD3d at 433-434). Thus, I disagree with the majority's claim—made in an apparent attempt to provide a rationale for remitting this case to the trial court, rather than the Appellate Division—that the Appellate Division "all but ignored [plaintiffs'] arguments" (majority op at 554). However, even if the Appellate Division did overlook plaintiffs' arguments concerning relevance—which it plainly did not—the correct remedy would be a remittal to that Court, not to the trial court, for consideration of those arguments.

Chief Judge LIPPMAN and Judges ABDUS-SALAAM and FAHEY concur; Judge STEIN dissents in an opinion in which Judge RIVERA concurs.

Order reversed, with costs, case remitted to Supreme Court, New York County, for further proceedings in accordance with the opinion herein and certified question answered in the negative.

[46 NE3d 614, 26 NYS3d 231]

EDWIN DAVIS et al., Appellants, v SOUTH NASSAU COMMUNITIES
HOSPITAL et al., Respondents.

Argued October 15, 2015; decided December 16, 2015

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered July 2, 2014. The Appellate Division affirmed a judgment of the Supreme Court, Nassau County (Denise Sher, J.), which had dismissed the complaint. The judgment was entered upon an order of that court (op 2012 NY Slip Op 31969[U] [2012]), which had (1) granted the separate motions of defendant South Nassau Communities Hospital and defendants Regina E. Hammock, Christine DeLuca and Island Medical Physicians, P.C., pursuant to CPLR 3211 (a) (7) to dismiss the complaint insofar as asserted against each of them; (2) denied that branch of plaintiffs' cross motion which was for leave to amend the complaint; and (3) denied, in effect, as academic, that branch of plaintiffs' cross motion which was to consolidate this action with two related actions pending in the Supreme Court, Nassau County.

Davis v South Nassau Communities Hosp., 119 AD3d 512, modified.

HEADNOTES

Physicians and Surgeons — Malpractice — Duty Owed to Third Parties to Warn Patient of Medication Impairing Ability to Safely Operate Motor Vehicle

1. Where a medical provider has administered to a patient medication that impairs or could impair the patient's ability to safely operate an automobile, the medical provider has a duty to third parties to warn the patient of that danger. Consequently, in plaintiffs' action to recover damages for injuries sustained in a motor vehicle accident that occurred minutes after the nonparty driver of the other vehicle was discharged from defendant hospital, where she was administered an opioid narcotic pain-killer and a benzodiazepine drug intravenously by defendant medical professionals, defendants owed a duty to plaintiffs to warn the driver that such medication either impaired or could impair her ability to safely operate an automobile. A critical consideration in determining whether a duty exists is whether the defendant's relationship with either the tortfeasor or the plaintiff places the defendant in the best position to protect against the risk of harm. The responsibility of care is assigned to the person or entity that can most effectively fulfill that obligation at the lowest cost. To take the affirmative step of administering the medication at issue without warning the driver about the disorienting effect of those drugs was to create a peril affecting every

motorist in her vicinity. Defendants were the only ones who could have provided a proper warning of the effects of that medication.

Pleading — Amendment — Merit of Proposed Additional Claim

2. In plaintiffs' action to recover damages for injuries sustained in a motor vehicle accident that occurred after defendant medical professionals administered medication to the nonparty driver of the other vehicle without warning her that such medication either impaired or could impair her ability to safely operate an automobile, Supreme Court properly denied plaintiffs' request to serve an amended complaint asserting a claim that defendants negligently caused the driver to become "medically intoxicated and cognitively impaired," and that she caused the accident because of that impairment. Leave to amend a pleading should be freely granted in the absence of prejudice to the nonmoving party where the amendment is not patently lacking in merit. A complaint sounds in medical malpractice rather than ordinary negligence where the challenged conduct constitutes medical treatment or bears a substantial relationship to the rendition of medical treatment by a licensed physician to a particular patient. Inasmuch as the "medical intoxication" of which plaintiffs complained in the proposed new cause of action bore a substantial relationship to the medical treatment administered by defendants, plaintiffs' claims against defendants sounded in medical malpractice, rather than in negligence. Thus, the proposed cause of action lacked merit.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Negligence §§ 94, 114, 123; AM JUR 2d, Physicians, Surgeons, and Other Healers § 235; AM JUR 2d, Pleading §§ 731, 734.

CARMODY-WAIT 2d, Amendment of Pleadings §§ 34:23, 34:26–34:39, 34:39, 34:44, 34:46.

DOBBS LAW OF TORTS § 283.

NY JUR 2d, Malpractice §§ 103–105, 133, 166, 190, 199;
NY JUR 2d, Negligence §§ 20, 113; NY JUR 2d, Pleading
§§ 239, 241, 242.

NEW YORK LAW OF TORTS §§ 13:5, 13:14, 13:20.

SIEGEL, NY PRAC § 237.

ANNOTATION REFERENCE

See ALR Index under Amendment of Pleadings; Hospitals; Medical Malpractice; Negligence; Side Effects.

FIND SIMILAR CASES ON WESTLAW®

Database: NY-ORCS

Query: drug /5 patient & impair! /s vehicle & duty /s
warn

POINTS OF COUNSEL

Dell & Dean, PLLC, Garden City (*Joseph G. Dell, Christopher R. Dean* and *Jay J. Massaro* of counsel), for appellants. I. When

physicians or hospitals injure non-patient third parties, the claims sound in negligence. (*Landon v Kroll Lab. Specialists, Inc.*, 91 AD3d 79, 22 NY3d 1; *Bazakos v Lewis*, 56 AD3d 15, 12 NY3d 631; *Chase Scientific Research v NIA Group*, 96 NY2d 20; *Board of Mgrs. of Yardarm Beach Condominium v Vector Yardarm Corp.*, 109 AD2d 684; *Fleet Factors Corp. v Werblin*, 114 AD2d 996; *Santiago v 1370 Broadway Assoc.*, 264 AD2d 624, 96 NY2d 765; *905 5th Assoc., Inc. v Weintraub*, 85 AD3d 667; *Scalisi v New York Univ. Med. Ctr.*, 24 AD3d 145; *Calhoun v Gale*, 29 AD2d 766, 23 NY2d 756; *Pulka v Edelman*, 40 NY2d 781.) II. A special relationship exists in this case that required respondents to “control” Ms. Lorraine Walsh. (*Holdampf v A.C. & S., Inc.*, 5 NY3d 486; *Hamilton v Beretta U.S.A. Corp.*, 96 NY2d 222; *Kowalski v St. Francis Hosp. & Health Ctrs.*, 21 NY3d 480; *Tenuto v Lederle Labs., Div. of Am. Cyanamid Co.*, 90 NY2d 606; *Mandarin Trading Ltd. v Wildenstein*, 16 NY3d 173; *Kimmell v Schaefer*, 89 NY2d 257; *Aufrichtig v Lowell*, 85 NY2d 540; *EBC I, Inc. v Goldman, Sachs & Co.*, 5 NY3d 11; *Padilla v Verczky-Porter*, 66 AD3d 1481; *Matter of Small Smiles Litig.*, 109 AD3d 1212.) III. A duty should exist because respondents created a risk of harm by violating professional duties and hospital protocols after they created a cognitive impairment in a patient by the affirmative acts of providing treatment and administering narcotic medications. (*Church v Callanan Indus.*, 99 NY2d 104; *Landon v Kroll Lab. Specialists, Inc.*, 22 NY3d 1; *Cohen v Cabrini Med. Ctr.*, 94 NY2d 639; *Sommer v Federal Signal Corp.*, 79 NY2d 540; *Eiseman v State of New York*, 70 NY2d 175; *Church v Callanan Indus.*, 99 NY2d 104; *McNulty v City of New York*, 100 NY2d 227; *Spina v Jack D. Weiler Hosp. of Albert Einstein Coll. of Medicine*, 28 AD3d 311; *Klein v Bialer*, 72 AD3d 744; *Candelario v Teperman*, 15 AD3d 204.) IV. A duty should exist because respondents provided “comprehensive services” to Ms. Walsh displacing her ability to determine if she should drive. (*McNulty v City of New York*, 100 NY2d 227; *Church v Callanan Indus.*, 99 NY2d 104; *Freeman v St. Clare’s Hosp. & Health Ctr.*, 156 AD2d 300; *Killeen v State of New York*, 66 NY2d 850; *Horton v Niagara Falls Mem. Med. Ctr.*, 51 AD2d 152; *Nelson v New York City Health & Hosps. Corp.*, 237 AD2d 189; *Clinton v City of New York*, 140 AD2d 404; *Carpenter v Blake*, 75 NY 12.) V. A duty should exist because Ms. Walsh detrimentally relied on the fiduciaries in a fiduciary relationship. (*Heard v City of New York*, 82 NY2d 66; *Kimmell v Schaefer*, 89 NY2d 257; *Lauer v City of New York*, 95 NY2d 95; *Eiseman v State of New York*, 70

NY2d 175; *Nallan v Helmsley-Spear, Inc.*, 50 NY2d 507; *McNulty v City of New York*, 295 AD2d 42, 100 NY2d 227; *Tenuto v Lederle Labs., Div. of Am. Cyanamid Co.*, 90 NY2d 606; *Palka v Servicemaster Mgt. Servs. Corp.*, 83 NY2d 579.) VI. The Court should hold that *Tenuto v Lederle Labs., Div. of Am. Cyanamid Co.* (90 NY2d 606 [1997]) did not create an algebraic formula that requires a victim prove that a medical tortfeasor violated Restatement (Second) of Torts § 324A (a), (b) and (c). (*Espinal v Melville Snow Contrs.*, 98 NY2d 136.) VII. The Court should reject an analysis that a personal injury negligence duty has an intended beneficiary restriction. (*Cohen v Cabrini Med. Ctr.*, 94 NY2d 639; *Strauss v Belle Realty Co.*, 65 NY2d 399; *Espinal v Melville Snow Contrs.*, 98 NY2d 136; *Palka v Servicemaster Mgt. Servs. Corp.*, 83 NY2d 579; *MacPherson v Buick Motor Co.*, 217 NY 382; *Dunn v State of New York*, 29 NY2d 313; *Januszko v State of New York*, 47 NY2d 774; *Williams v State of New York*, 18 NY3d 981; *Fox v Marshall*, 88 AD3d 131; *Rattray v State of New York*, 223 AD2d 356.) VIII. A duty should exist because the class size of “actual victims” is only one. (*Strauss v Belle Realty Co.*, 65 NY2d 399; *Milliken & Co. v Consolidated Edison Co. of N.Y.*, 84 NY2d 469; *McNulty v City of New York*, 100 NY2d 227; *Di Ponzio v Riordan*, 89 NY2d 578; *Fox v Marshall*, 88 AD3d 131; *Palka v Servicemaster Mgt. Servs. Corp.*, 83 NY2d 579.) IX. A finding of a duty advances significant state policies and interests. (*Crosland v New York City Tr. Auth.*, 68 NY2d 165; *Lauer v City of New York*, 95 NY2d 95; *Medtronic, Inc. v Lohr*, 518 US 470; *Ash v New York Univ. Dental Ctr.*, 164 AD2d 366; *Alami v Volkswagen of Am.*, 97 NY2d 281; *People v Kelley*, 141 AD2d 764; *Tenuto v Lederle Labs., Div. of Am. Cyanamid Co.*, 90 NY2d 606.) X. High courts of sister states have found a duty under similar facts when medications are administered. (*Hoehn v United States*, 217 F Supp 2d 39; *Purdy v Public Adm’r of County of Westchester*, 72 NY2d 1.) XI. Based on the totality of the circumstances a third-party duty should exist. XII. Appellant’s amended complaint was not required to contain the exact magical words that respondents “possessed sufficient authority and ability to control Ms. Walsh’s conduct.” (*Guggenheimer v Ginzburg*, 43 NY2d 268; *East Hampton Union Free School Dist. v Sandpebble Bldrs., Inc.*, 66 AD3d 122.) XIII. The within action should be consolidated with the two related actions.

James W. Tuffin, Islandia and *Santangelo, Benvenuto & Slatery*, Roslyn, for Regina E. Hammock, D.O., and others, respondents. I. A physician’s duty is properly limited to her patient

or, in extraordinary circumstances not presented here, immediate family or household members. (*Tenuto v Lederle Labs., Div. of Am. Cyanamid Co.*, 90 NY2d 606; *Purdy v Public Adm'r of County of Westchester*, 72 NY2d 1; *Conboy v Mogeloff*, 172 AD2d 912; *Rebollal v Payne*, 145 AD2d 617; *McNulty v City of New York*, 100 NY2d 227; *Cohen v Cabrini Med. Ctr.*, 94 NY2d 639; *Hamilton v Beretta U.S.A. Corp.*, 96 NY2d 222; *Palka v Servicemaster Mgt. Servs. Corp.*, 83 NY2d 579; *Lauer v City of New York*, 95 NY2d 95; *Tobin v Grossman*, 24 NY2d 609.) II. The emergency room team did not undertake a duty to the general public by control of the patient. (*Hamilton v Beretta U.S.A. Corp.*, 96 NY2d 222; *Chainani v Board of Educ. of City of N.Y.*, 87 NY2d 370; *Riviello v Waldron*, 47 NY2d 297; *Jones v Weigand*, 134 App Div 644; *Matter of New York City Asbestos Litig.*, 5 NY3d 486; *Rios v Smith*, 95 NY2d 647; *Rivers v Murray*, 29 AD3d 884; *Green Bus Lines, Inc. v Ocean Acc. & Guar. Corp.*, 287 NY 309; *Chase Scientific Research v NIA Group*, 96 NY2d 20; *Aufrichtig v Lowell*, 85 NY2d 540.) III. Duty to the general public was not established by creation of a hazard, displacement of duty, or detrimental reliance. (*Espinal v Melville Snow Contrs.*, 98 NY2d 136; *Church v Callanan Indus.*, 99 NY2d 104; *Cubito v Kreisberg*, 69 AD2d 738, 51 NY2d 900; *Lauer v City of New York*, 95 NY2d 95; *De Angelis v Lutheran Med. Ctr.*, 58 NY2d 1053; *Tenuto v Lederle Labs., Div. of Am. Cyanamid Co.*, 90 NY2d 606; *McNulty v City of New York*, 100 NY2d 227; *Cohen v Cabrini Med. Ctr.*, 94 NY2d 639; *Eiseman v State of New York*, 70 NY2d 175; *Palka v Servicemaster Mgt. Servs. Corp.*, 83 NY2d 579.) IV. Creation of a new cause of action will not advance public policy. (*Strauss v Belle Realty Co.*, 65 NY2d 399; *Bovsun v Sanperi*, 61 NY2d 219; *Trombetta v Conkling*, 82 NY2d 549; *Eberle v Hughes*, 77 AD3d 1398; *Matter of Morfesis v Sobol*, 172 AD2d 897.) V. New York should avoid the inconsistency and confusion found in other states. (*Marchione v State of New York*, 194 AD2d 851; *Cartier v Long Is. Coll. Hosp.*, 111 AD2d 894; *Ellis v Peter*, 211 AD2d 353; *Purdy v Public Adm'r of County of Westchester*, 127 AD2d 285, 72 NY2d 1.)

Bartlett, McDonough & Monaghan, LLP, Mineola (Robert G. Vizza of counsel), for South Nassau Communities Hospital, respondent. I. A physician does not owe a duty to unidentified members of the public at large in the absence of a special relationship. (*Pike v Honsinger*, 155 NY 201; *Tenuto v Lederle Labs., Div. of Am. Cyanamid Co.*, 90 NY2d 606; *Baker v Inamdar*, 99 AD3d 742; *Klein v Bialer*, 72 AD3d 744; *Cohen v Cabrini*

Med. Ctr., 94 NY2d 639; *McNulty v City of New York*, 100 NY2d 227; *Purdy v Public Adm'r of County of Westchester*, 72 NY2d 1; *Schrempf v State of New York*, 66 NY2d 289; *Rhodes v Liberty Mut. Ins. Co.*, 67 AD3d 881; *Fox v Marshall*, 88 AD3d 131.) II. Amendment of the complaint would have been futile because re-labeling a malpractice claim as one for general negligence does not avoid dismissal for lack of duty, which is an element of any tort. (*Alaggia v North Shore Univ. Hosp.*, 92 AD2d 532; *Matter of Barresi v State of New York*, 232 AD2d 962; *Scott v Uljanov*, 74 NY2d 673; *Bleiler v Bodnar*, 65 NY2d 65; *Papa v Brunswick Gen. Hosp.*, 132 AD2d 601; *Borrillo v Beekman Downtown Hosp.*, 146 AD2d 734; *Amadon v State of New York*, 149 Misc 2d 383; *Collins v New York Hosp.*, 49 NY2d 965; *Pacio v Franklin Hosp.*, 63 AD3d 1130; *Tighe v Ginsberg*, 146 AD2d 268.)

Kern Augustine Conroy & Schoppmann, P.C., Westbury (*Donald R. Moy* of counsel), for The Medical Society of the State of New York and another, amici curiae. I. There was no cause of action for medical malpractice. (*Fox v Marshall*, 88 AD3d 131; *Pike v Honsinger*, 155 NY 201.) II. The Appellate Division, Second Department correctly applied the Court's decision in *Purdy v Public Adm'r of County of Westchester* (72 NY2d 1 [1988]). III. A finding of duty of care owed to indeterminate members of the community would cause profound hazards to society. (*Eiseman v State of New York*, 70 NY2d 175; *Pulka v Edelman*, 40 NY2d 781; *De Angelis v Lutheran Med. Ctr.*, 58 NY2d 1053.) IV. While the Court has under very rare and limited circumstances extended a physician's duty of care to a specific non-patient, usually an immediate family member, the physician's duty of care has never been extended to the general public. (*Tenuto v Lederle Labs., Div. of Am. Cyanamid Co.*, 90 NY2d 606; *McNulty v City of New York*, 100 NY2d 227; *Cohen v Cabrini Med. Ctr.*, 94 NY2d 639; *Miller v Rivard*, 180 AD2d 331; *Weintraub v Brown*, 98 AD2d 339; *Sorkin v Lee*, 78 AD2d 180; *Conboy v Mogeloff*, 172 AD2d 912, 78 NY2d 862; *Ellis v Peter*, 211 AD2d 353, 86 NY2d 885.) V. Public policy considerations support an affirmance of the Appellate Division ruling. (*Ellis v Peter*, 211 AD2d 353.)

Wilson Elser Moskowitz Edelman & Dicker LLP, Albany (*James A. Shannon* of counsel), for Healthcare Association of New York State, Inc., amicus curiae. I. Plaintiffs' duty of care test is both contrary to existing precedent and improvident. (*Purdy v Public Adm'r of County of Westchester*, 72 NY2d 1;

Schloendorff v Society of N.Y. Hosp., 211 NY 125; *Grace Plaza of Great Neck v Elbaum*, 82 NY2d 10; *Wood v Strong Mem. Hosp. of Univ. of Rochester*, 273 AD2d 929; *Kowalski v St. Francis Hosp. & Health Ctrs.*, 95 AD3d 834; *Malave v Lakeside Manor Homes for Adults, Inc.*, 105 AD3d 914.) II. Imposing a duty on the health care providers to the general public would undermine important public policy considerations. (*Eiseman v State of New York*, 70 NY2d 175; *Waters v New York City Hous. Auth.*, 69 NY2d 225; *Tobin v Grossman*, 24 NY2d 609; *Trombetta v Conkling*, 82 NY2d 549; *Lauer v City of New York*, 95 NY2d 95; *Megally v LaPorta*, 253 AD2d 35.)

OPINION OF THE COURT

FAHEY, J.

This action arises from a motor vehicle accident that occurred after nonparty Lorraine A. Walsh was treated at defendant South Nassau Communities Hospital by defendants Regina E. Hammock, DO and Christine DeLuca, RPA-C, that is, medical professionals employed by defendant Island Medical Physicians, P.C. (collectively, Island Medical defendants). As a part of that treatment, defendants intravenously administered to Walsh an opioid narcotic pain-killer and a benzodiazepine drug without warning her that such medication either impaired or could impair her ability to safely operate an automobile. Shortly thereafter, Walsh drove herself from the Hospital and, while allegedly impaired by the medication administered to her at that facility, she was involved in an accident. The automobile she operated crossed a double yellow line and struck a bus driven by Edwin Davis (plaintiff).

Here we are confronted with the question whether third-party liability can attach when a hospital administered drugs to a patient and then released her, in an impaired state, without any warning that the drugs affected or could have affected her ability to safely operate a motor vehicle. Stated differently, the main question is whether defendants owed a duty to plaintiff and his wife, Dianna,¹ to warn Walsh that the medication defendants gave to Walsh either impaired or could have impaired her ability to safely operate a motor vehicle following her departure from the Hospital.

[1] We are mindful that in addressing the modification of a legal duty, its reach must be limited by what is foreseeable.

1. Dianna Davis was not involved in the accident, but she has asserted a derivative cause of action for loss of consortium.

Any expansion of duty is a power to be exercised cautiously, but it is a power that must be used if the changing needs of society are to be met. It was succinctly stated by Judge Cardozo that “[t]he principle that the danger must be imminent does not change, but the things subject to the principle do change. They are whatever the needs of life in a developing civilization require them to be” (*MacPherson v Buick Motor Co.*, 217 NY 382, 391 [1916]). For the reasons that follow, we conclude that where a medical provider has administered to a patient medication that impairs or could impair the patient’s ability to safely operate an automobile, the medical provider has a duty to third parties to warn the patient of that danger.

I.

On March 4, 2009, Walsh sought treatment at the Hospital’s emergency room. According to plaintiffs, Walsh’s medical records indicate that she drove herself to the Hospital, where she was intravenously administered Dilaudid, an opioid narcotic pain-killer, and Ativan, a benzodiazepine drug, at 11:00 a.m.

The record reflects that “[c]ommon side effects [of Ativan] include sedation, dizziness, weakness, unsteadiness, and disorientation.” Plaintiffs’ expert averred that such drug has a “sedative/hypnotic” effect. Plaintiffs’ expert also explained that “Dilaudid has two to eight times the painkilling effect of morphine,” that the half-life of intravenously-administered Dilaudid is two to four hours, and that the Dilaudid package label and package insert contain various cautionary instructions pertinent to this matter. For example, plaintiffs’ expert noted that “the package label for Dilaudid states that it ‘may impair mental and/or physical ability needed to perform potentially hazardous activities such as driving a car or operating machinery.’” The same expert further noted that the section of the package insert for Dilaudid “titled *Use In Ambulatory Patients* . . . states that the drug ‘may impair mental and/or physical ability required for the performance of potentially hazardous tasks (e.g., driving, operating machinery). Patients should be cautioned accordingly.’” In the words of that expert, the “insert also states that the most common adverse effects of [Dilaudid] are ‘more prominent in[, inter alia,] ambulatory patients.’”

Walsh was discharged from the Hospital at 12:30 p.m. on the date in question. She drove herself away from that facility. Nineteen minutes after that discharge, Walsh was involved in

a motor vehicle accident in which the vehicle she was driving crossed a double yellow line and struck a bus operated by plaintiff. According to plaintiffs, the accident occurred while Walsh was in “a state of disorientation” and “under the influence of the aforementioned drugs.”

Plaintiffs subsequently commenced this action against the Island Medical defendants and the Hospital. The complaint alleges, in relevant part, that Walsh sought the professional care of defendants on the date in question; that defendants rendered medical care to Walsh at that time; that, in the course of rendering such care to Walsh, defendants administered to Walsh the medication at issue; that defendants did not warn Walsh of the effects of such medication; and that the accident occurred while Walsh was affected by such medication. Based on those allegations, plaintiffs seek damages for injuries they sustained as the result of defendants’ alleged medical malpractice in treating Walsh.

After issue was joined, the Island Medical defendants moved to dismiss the complaint for failure to state a cause of action (*see* CPLR 3211 [a] [7]), essentially contending that they did not owe plaintiffs a duty of care inasmuch as plaintiffs were third parties to the treatment rendered to Walsh. The Hospital cross-moved for the same relief, while plaintiffs cross-moved for an order both granting leave to serve an amended complaint asserting a cause of action for negligence and consolidating this action with two other actions arising from the subject accident. Supreme Court granted the motion of the Island Medical defendants and the cross motion of the Hospital seeking dismissal of the complaint while concomitantly denying plaintiffs’ cross motion (2012 NY Slip Op 31969[U] [Sup Ct, Nassau County 2012]). On appeal, the Appellate Division affirmed, reasoning that because “only Walsh . . . had a physician-patient relationship with the defendants[,] . . . the allegations did not support a duty of care owed by the defendants to the injured plaintiff” (119 AD3d 512, 514 [2d Dept 2014]). We granted plaintiffs leave to appeal (24 NY3d 905 [2014]).

II.

Under these facts, defendants owed to plaintiffs a duty to warn Walsh that the medication administered to her either impaired or could have impaired her ability to safely operate an automobile. We begin our discussion of that issue with reference to the principles of law that inform our review.

In the context of a motion to dismiss pursuant to CPLR 3211, we “determine only whether the facts as alleged fit within any cognizable legal theory” (*Leon v Martinez*, 84 NY2d 83, 87-88 [1994]). “[T]he criterion is whether the proponent of the pleading has a cause of action, not whether he [or she] has stated one” (*id.* at 88 [internal quotation marks omitted]). We “may freely consider affidavits submitted by the plaintiff to remedy any defects in the complaint” (*id.*).

Similarly germane is our jurisprudence with respect to the recognition of a duty of care. “The threshold question in any negligence action is . . . [whether the] defendant owe[s] a legally recognized duty of care to [the] plaintiff” (*Hamilton v Beretta U.S.A. Corp.*, 96 NY2d 222, 232 [2001]). “The question of whether a member or group of society owes a duty of care to reasonably avoid injury to another is [one] of law for the courts” (*Purdy v Public Adm’r of County of Westchester*, 72 NY2d 1, 8 [1988], *rearg denied* 72 NY2d 953 [1988]). “Courts resolve legal duty questions by resort to common concepts of morality, logic and consideration of the social consequences of imposing the duty” (*Tenuto v Lederle Labs., Div. of Am. Cyanamid Co.*, 90 NY2d 606, 612 [1997]; see *Palka v Servicemaster Mgt. Servs. Corp.*, 83 NY2d 579, 586 [1994]). A critical consideration in determining whether a duty exists is whether “the defendant’s relationship with either the tortfeasor or the plaintiff places the defendant in the best position to protect against the risk of harm” (*Hamilton*, 96 NY2d at 233).

Said another way, our calculus is such that we assign the responsibility of care to the person or entity that can most effectively fulfill that obligation at the lowest cost. It is against that backdrop that we conclude that, under the facts alleged, defendants owed plaintiffs a duty to warn Walsh that the medication defendants administered to Walsh impaired her ability to safely operate a motor vehicle.

A.

In evaluating duty questions we have historically proceeded carefully and with reluctance to expand an existing duty of care. In a series of cases including *Eiseman v State of New York* (70 NY2d 175 [1987]), *Purdy* (72 NY2d 1), *Tenuto* (90 NY2d 606), and *McNulty v City of New York* (100 NY2d 227 [2003]), we declined to impose a broad duty of care extending from physicians past their patients “to members of the . . . community individually” (*Eiseman*, 70 NY2d at 188). That is,

we declined to recognize a duty to an indeterminate, faceless, and ultimately prohibitively large class of plaintiffs, as opposed to “a known and identifiable group” (*Palka*, 83 NY2d at 589; see *McNulty*, 100 NY2d at 232; *Eiseman*, 70 NY2d at 187).

Specifically, in *Eiseman* we considered circumstances in which “an ex-felon with a history of drug abuse and criminal conduct” was released from incarceration and “accepted into a special State college program for the disadvantaged” (*id.* at 180). Following his acceptance into that program, the ex-felon raped and murdered a fellow student (see *id.*). The administrator of the decedent’s estate sought recovery from the State on the ground that a prison physician negligently ignored the ex-felon’s emotional instability and history of mental disorder in completing an examination report. The report was submitted in conjunction with that convict’s admission into the college program (see *id.* at 182-183). Although we concluded that “the physician plainly owed a duty of care to his patient and to persons he knew or reasonably should have known were relying on him for this service to his patient,” we maintained that “[t]he physician did not . . . undertake a duty to the community at large,” and more specifically that the physician did not owe a duty of care to “members of the . . . community individually” (*id.* at 188). Consequently, we determined that the State, as the employer of the physician, had no duty to inform the victim of the convict’s medical history (see *id.* at 188-189).

About a year after deciding *Eiseman*, we determined *Purdy* (72 NY2d 1). In that case the plaintiff was struck and injured by a speeding car while he patronized a gas station. The offending vehicle was operated by a resident of the defendant nursing home, who had “a medical condition that left her susceptible to fainting spells and blackouts” (*id.* at 6). We considered the question whether the nursing home and the defendant physician, who was merely the admitting physician at the nursing home, “owed to [the] plaintiff—an unidentified member of the public—a duty either to prevent [the resident] from driving or to warn her of the dangers of driving given her medical condition” (*id.*). In doing so, we acknowledged that “there exist special circumstances in which there is sufficient authority and ability to control the conduct of third persons that [have given rise to] a duty to do so” (*id.* at 8). More particularly, we indicated that those circumstances exist where there is a special relationship, which we described as, inter

alia, “a relationship between [the] defendant and a third person whose actions expose [the] plaintiff to harm such as would require the defendant to attempt to control the third person’s conduct” (*id.*).

Nevertheless, on those facts we determined that there was no “special relationship between [the] defendants and [the resident] such as would require [the defendants] to control [the resident’s] conduct for the benefit of [the] plaintiff” (*id.*). We specifically “conclude[d] . . . that neither [the nursing home] nor [the physician] had the necessary authority or ability to exercise such control over [the resident’s] conduct so as to give rise to a duty on their part to protect [the] plaintiff—a member of the general public” (*id.* at 8-9).

After *Purdy* we heard *Tenuto* (90 NY2d 606), wherein we concluded that, under the circumstances of that case, a physician had a duty of reasonable care to the parents of a five month old to whom he administered an oral polio vaccine. The physician allegedly did not advise the parents of their risk of exposure to the polio virus following the administration of that vaccine, and the plaintiff father was subsequently afflicted with that disease. Relying on both foreign authorities and *Eiseman* (70 NY2d at 188), we indicated that members of a patient’s immediate family or household who may suffer harm as a result of the medical care a physician renders to that patient benefit from a duty of care running to them from the physician (see *Tenuto*, 90 NY2d at 610-614). In so concluding, we noted that there the

“existence of a special relationship sufficient to supply the predicate for extending the duty to warn and advise [the] plaintiffs of their peril . . . [was] especially pointed [inasmuch as] the physician [was] a pediatrician engaged by the parents to provide medical services to their infant, and whose services, by necessity, require[d] advising the patient’s parents” (*id.* at 614).

Tenuto was arguably constrained by our decision in *McNulty* (100 NY2d 227).² There we were called upon to decide whether the defendant physicians owed a duty of care to the plaintiff,

2. After deciding *Tenuto* but before hearing *McNulty* we determined *Cohen v Cabrini Med. Ctr.* (94 NY2d 639 [2000]), wherein we refused to recognize a duty of care running from the physician of the plaintiff’s husband to the plaintiff to prevent the personal injuries complained of there, namely,

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who was a friend of a woman they had treated for infectious meningitis and who subsequently contracted that disease herself. In that case the physicians allegedly answered in the negative the plaintiff's question whether she needed treatment after being in close contact with her infected friend (*id.* at 229). Significantly, we stated there was "no allegation that [the] plaintiff's injury arose from the [physicians'] treatment of [the patient]." We concluded that an extension of the duty physicians owe their patients so as to cover the plaintiff would have been unprecedented (*McNulty*, 100 NY2d at 234).³

B.

We left open the possibility of the recognition of a duty in a case such as this through *McNulty* and *Purdy*. In *McNulty*, we observed that, "[i]n the limited circumstances where we have expanded the duty [of care of a treating physician so as to include a third party], the third party's injury resulted from

the unwitting diminishment of the ability of the plaintiff's husband to impregnate the plaintiff. We reasoned that a contrary holding "would be an unwarranted extension of our narrowly drawn jurisprudence with respect to malpractice liability to a patient's family member" (*id.* at 643).

3. Here we have specifically discussed the existence and scope of duty in the context of the administration of medical services. We note, however, that our caution in setting the parameters of duty in that context is also evident in other circumstances.

For example, in *D'Amico v Christie* (71 NY2d 76 [1987]) we reiterated the rule that landowners "have a duty to control the conduct of third persons on their premises when they have the opportunity to control such persons and are reasonably aware of the need for such control" (*id.* at 85). Through that opinion we decided two appeals—*D'Amico* and *Henry v Vann*—and the second of those appeals arose from circumstances in which an employer detected an intoxicated employee, fired the employee, and told the employee to leave the employer's premises, whereupon the dismissed employee drove approximately one-half mile away before colliding with an oncoming vehicle (*Henry*, 71 NY2d at 82). On those facts we concluded that the employer had no legal duty to control the terminated employee's conduct (*id.* at 89).

Similarly, in *Martino v Stolzman* (18 NY3d 905 [2012]), we applied the foregoing principles of *D'Amico* to social hosts, ruling that such hosts owe no duty to protect third persons from a guest who becomes intoxicated on and then drives from a premises controlled by the hosts (*id.* at 908). Careful, too, was our approach in *Stiver v Good & Fair Carting & Moving, Inc.* (9 NY3d 253 [2007]), in which we concluded that the inspector of a motor vehicle involved in an accident attributable to the mechanical failure of that vehicle has no duty to third parties to properly inspect that automobile (*see id.* at 255-257). We were likewise circumspect in *Hamilton* (96 NY2d 222), wherein we concluded that the defendant handgun manufacturers did not owe "a duty [to the plaintiffs, who were relatives of people killed by handguns,] to exercise reasonable care in the marketing and distribution of the handguns they manufacture" (*id.* at 230-231).

the physician's performance of the duty of care owed to the patient" (*McNulty*, 100 NY2d at 233). More importantly, in *Purdy*, in addition to determining that neither the defendant nursing home nor the defendant physician owed a duty to the public to warn the resident of the adverse effects of the medication that had been prescribed to her, we acknowledged the plaintiff's citations to foreign authorities imposing a duty on a treating physician in favor of unidentified members of the public to warn a patient of the adverse effects of prescribed medication on the safe operation of an automobile (*see Purdy*, 72 NY2d at 9-10). In concluding there that the defendant physician bore no duty to the general public to warn the resident of the dangers of driving given her medical condition, we noted that such doctor

"was not [the resident's] treating physician, and therefore was under no legal obligation to warn [the resident] of possible dangers involved in activities in which she chose to engage off the premises of the facility. Nor[, we added,] ha[d] [the] plaintiff demonstrated that [the resident's] impaired driving ability was attributable to any medication prescribed to her by [the physician] without appropriate warnings" (*id.* at 10).

Our failure in *Purdy* to foreclose the prospect that a treating physician who does not warn a patient of the dangers of operating a motor vehicle in the face of a certain medical condition could be held accountable for that omission by a member of the general public logically left open the possibility that we could one day recognize such a duty.

This is an instance in which defendants' "relationship with . . . the tortfeasor . . . place[d] [them] in the best position to protect against the risk of harm" (*Hamilton*, 96 NY2d at 233), and the balancing of factors such as the expectations of the parties and society in general, the proliferation of claims, and public policies affecting the duty proposed herein (*see id.* at 232) tilts in favor of establishing a duty running from defendants to plaintiffs under the facts alleged in this case.

In formulating duty,

"[v]arious factors . . . have been given conscious or unconscious weight, including convenience of administration, capacity of the parties to bear the loss, a policy of preventing future injuries, [and]

the moral blame attached to the wrongdoer
 Changing social conditions lead constantly to the
 recognition of new duties[, and] [n]o better general
 statement can be made than that the courts will
 find a duty where, in general, reasonable persons
 would recognize it and agree that it exists” (Prosser
 & Keeton, Torts § 53 at 359 [5th ed 1984] [footnotes
 omitted]).

Here, put simply, to take the affirmative step of administering the medication at issue without warning Walsh about the disorienting effect of those drugs was to create a peril affecting every motorist in Walsh’s vicinity. Defendants are the only ones who could have provided a proper warning of the effects of that medication. Consequently, on the facts alleged, we conclude that defendants had a duty to plaintiffs to warn Walsh that the drugs administered to her impaired her ability to safely operate an automobile.⁴

4. There is support for our conclusion in other jurisdictions. In *Taylor v Smith* (892 So 2d 887 [Ala 2004]), the Supreme Court of Alabama collected cases from seven jurisdictions imposing a duty on physicians for the benefit of nonpatient members of the driving public in support of its conclusion that “the duty of care owed by the director of a methadone-treatment center to his patient extends to third-party motorists who are injured in a foreseeable automobile accident with the patient that results from the director’s administration of methadone” (*id.* at 897; *see id.* at 893-894, citing *McKenzie v Hawai’i Permanente Med. Group, Inc.*, 98 Haw 296, 309, 47 P3d 1209, 1222 [2002] [ruling that a physician “owes a duty to non-patient third parties” to warn patients of possible adverse effects of prescribed medication on their ability to safely operate a motor vehicle, “where the circumstances are such that the reasonable patient could not have been expected to be aware of the risk without the physician’s warning”], *Joy v Eastern Maine Med. Ctr.*, 529 A2d 1364, 1365-1366 [Me 1987] [concluding that a physician who treated a patient by placing a patch over one of the patient’s eyes owed a duty to motorists to warn the patient against driving while wearing the patch], *Welke v Kuzilla*, 144 Mich App 245, 252, 375 NW2d 403, 406 [1985] [determining that a physician who injected a patient with an “unknown substance” owed a duty to a third-party motorist “within the scope of foreseeable risk, by virtue of (the physician’s) special relationship with (the patient)”], *Wilschinsky v Medina*, 108 NM 511, 514-515, 775 P2d 713, 716-717 [1989] [concluding that physicians who inject a patient “with drugs known to affect judgment and driving ability” have “a duty to the driving public”], *Zavalas v State Dept. of Corr.*, 124 Or App 166, 171, 861 P2d 1026, 1028 [1993] [rejecting the contention “that a physician has no duty to third parties . . . who claim that the physician’s negligent treatment of a patient was the foreseeable cause of their harm”], *review denied* 319 Or 150, 877 P2d 86 [1994], *Gooden v Tips*, 651 SW2d 364, 369 [Tex App 1983] [“under proper facts, a physician can owe a duty to use reasonable care to protect the driving public where the

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physician's negligence in diagnosis or treatment of his patient contributes to plaintiff's injuries"], and *Schuster v Altenberg*, 144 Wis 2d 223, 239-240, 424 NW2d 159, 166 [1988] [rejecting the contention "that a psychotherapist (has no) duty to warn third parties"). The *Taylor* court also relied on a case from an eighth jurisdiction, which distinguished "a mere failure to warn" from an affirmative act of failing to take proper precautions where the physician has "'administer[ed] a drug which, when combined with other drugs or alcohol, may severely impair the patient'" (*id.* at 894-895, quoting *Cheeks v Dorsey*, 846 So 2d 1169, 1173 [Fla Dist Ct App, 4th Dist 2003], *review denied* 859 So 2d 513 [Fla 2003] [emphases removed]). Similarly, here, we have recognized a duty of care running from a physician to third parties where the physician fails to warn his or her patient of potential physical impairments caused by a drug the physician has *administered*, rather than *merely prescribed*, to the patient.

Moreover, our own canvas has revealed that at least eight other jurisdictions appear to have recognized a duty running from a physician past his or her patient to the general public to warn the patient of the possible adverse effects of medication administered or treatment rendered to the patient by the physician (*see Medina v Hochberg*, 465 Mass 102, 107-108, 987 NE2d 1206, 1211 [2013] [acknowledging that the Supreme Judicial Court of Massachusetts had previously "concluded that a physician may be liable to a third party for failing to warn his or her patient of the known side effects of medication prescribed by the physician that might affect the patient's ability to drive a motor vehicle"]; *Hardee v Bio-Medical Applications of South Carolina, Inc.*, 370 SC 511, 516, 636 SE2d 629, 631-632 [2006] ["a medical provider who provides treatment which it knows may have detrimental effects on a patient's capacities and abilities owes a duty to prevent harm to patients and to reasonably foreseeable third parties by warning the patient of the attendant risks and effects before administering the treatment"]; *Burroughs v Magee*, 118 SW3d 323, 333 [Tenn 2003] [holding, under the facts of that case, that the defendant physician "owed a duty of care (to third-party motorists) to warn (a patient of the physician) of the possible adverse effect of . . . two prescribed drugs on (the patient's) ability to safely operate a motor vehicle"]; *Hoehn v United States*, 217 F Supp 2d 39, 41, 48-49 [D DC 2002] [deeming viable a claim that "a hospital or physician owe(s) a duty to the general public . . . to (warn) a heavily medicated patient . . . about the danger of driving"]; *Osborne v United States*, 211 W Va 667, 669, 567 SE2d 677, 679 [2002] [recognizing that West Virginia law permits a third party to bring a cause of action against a health care provider for foreseeable injuries that were proximately caused by the health care provider's negligent treatment of a tortfeasor patient]; *Cram v Howell*, 680 NE2d 1096, 1097-1098 [Ind 1997] [concluding the defendant physician had "a duty of care to take reasonable precautions in monitoring, releasing, and warning his patient for the protection of unknown third persons potentially jeopardized by the patient's driving upon leaving the physician's office" where the physician allegedly administered to the patient certain immunizations or vaccinations that caused the patient to experience "episodes of loss of consciousness"]; *Myers v Quesenberry*, 144 Cal App 3d 888, 890, 894, 193 Cal Rptr 733, 733, 736 [4th Dist 1983] [observing, in the context of concluding that "liability may be imposed against two physicians for negligently failing to warn their patient of the foreseeable and dangerous consequences of engaging in certain conduct

(n. cont'd)

C.

Our conclusion with respect to the duty owed in this case is accompanied by three observations. First, the “cost” of the duty imposed upon physicians and hospitals should be a small one: where a medical provider administers to a patient medication that impairs or could impair the patient’s ability to safely operate an automobile, the medical provider need do no more than simply warn that patient of those dangers. It is already the function of a physician to advise the patient of the risks and possible side effects of prescribed medication (*see Wolfgruber v Upjohn Co.*, 52 NY2d 768, 770 [1980], *affg* 72 AD2d 59, 61 [4th Dept 1979] [“Since nonmedical consumers are legally precluded from ‘self-prescribing’ prescription drugs, the physician’s function is to evaluate a patient’s needs, assess the risks and benefits of available drugs and then prescribe a drug, advising the patient of its risks and possible side effects”]; *see also Martin v Hacker*, 83 NY2d 1, 9 [1993] [discussing the duty of a prescription drug manufacturer to caution against a drug’s side effects by giving adequate warning to the prescribing physician, who “acts as an ‘informed intermediary’ . . . between the manufacturer and the patient”]). Our decision herein imposes no additional obligation on a physician who administers prescribed medication.⁵ Rather, we merely extend the scope of persons to whom the physician may be responsible for failing to fulfill that responsibility.

Second, much as we are empowered to identify the duty articulated herein, it is within our authority to clarify how that

which proximately caused injuries to (the) plaintiff, a third person,” that “(w)hen a physician furnishes medicine causing drowsiness, he should warn his patient not to drive or engage in other activities which are likely to cause injury”]; *Kaiser v Suburban Transp. Sys.*, 65 Wash 2d 461, 464, 398 P2d 14, 16 [1965] [concluding that the question whether the defendant doctor was negligent in failing to warn the patient bus driver that a prescribed drug could cause drowsiness was for a trier of fact], *mod on other grounds* 65 Wash 2d 461, 401 P2d 350 [1965]). We note, however, that our decision herein is not grounded in those foreign authorities inasmuch as our result is the product not of “vote counting” but of our independent balancing of factors including the expectations of the parties and of society, the proliferation of claims, and public policies affecting the duty we now recognize (*see Hamilton*, 96 NY2d at 232).

5. With respect to the minimal “cost” arising from the duty imposed herein, we note that warnings that prescribed medication impairs or could impair the patient’s ability to safely operate an automobile are commonly administered when filling a prescription at a pharmacy, and there is no reason why a medical provider cannot take a similar, simple prophylactic measure.

obligation may be met. In that vein we reiterate that defendants and those similarly situated may comply with the duty recognized herein merely by advising one to whom such medication is administered of the dangers of that medication. Indeed, this case is not about *preventing Walsh from leaving the Hospital*, but about ensuring that *when Walsh left the Hospital*, she was properly warned about the effects of the medication administered to her.

Third, our decision herein should not be construed as an erosion of the prevailing principle that courts should proceed cautiously and carefully in recognizing a duty of care. We have previously noted that, “[w]hile the temptation is always great to provide a form of relief to one who has suffered, . . . the law cannot provide a remedy for every injury incurred” (*Albala v City of New York*, 54 NY2d 269, 274 [1981]). In other words, we have said that “[n]ot all mistakes . . . result in liability” (*McNulty*, 100 NY2d at 232). This decision does not reflect a retreat from those principles.

III.

We now turn to the remaining issue on appeal, which pertains to the part of plaintiffs’ cross motion seeking leave to serve an amended complaint. That request was based on plaintiffs’ desire to add a cause of action for negligence against defendants based on plaintiffs’ theory that defendants negligently caused Walsh to become “medically intoxicated and cognitively impaired,” and that Walsh caused the accident because of that impairment.

[2] As a general rule, “leave to amend a pleading should be freely granted in the absence of prejudice to the nonmoving party where the amendment is not patently lacking in merit . . . , and the decision whether to grant leave to amend a complaint is committed to the sound discretion of the court” (*Pink v Ricci*, 100 AD3d 1446, 1448 [4th Dept 2012] [internal quotation marks omitted]; see CPLR 3025 [b]; *Edenwald Contr. Co. v City of New York*, 60 NY2d 957, 959 [1983]). “A complaint sounds in medical malpractice rather than ordinary negligence where the challenged conduct constitutes medical treatment or bears a substantial relationship to the rendition of medical treatment by a licensed physician to a particular patient” (1B NY PJI3d 2:150 at 47 [2015]; see *Weiner v Lenox Hill Hosp.*, 88 NY2d 784, 788 [1996] [(“A) claim sounds in medical malpractice when the challenged conduct constitutes medical treatment or

bears a substantial relationship to the rendition of medical treatment by a licensed physician. By contrast, when the gravamen of the complaint is not negligence in furnishing medical treatment to a patient, but the hospital's failure in fulfilling a different duty, the claim sounds in negligence" (internal quotation marks and citation omitted)). Inasmuch as the "medical intoxication" of which plaintiffs complain in the proposed new cause of action bears a substantial relationship to the medical treatment administered by defendants, we conclude that plaintiffs' claims against defendants sound in medical malpractice, rather than in negligence. Consequently, the part of the cross motion seeking leave to serve an amended complaint asserting a cause of action sounding in negligence was properly denied inasmuch as that proposed cause of action lacks merit.⁶

Accordingly, the order of the Appellate Division should be modified, without costs, by denying the motions of the Island Medical defendants and the Hospital to dismiss the complaint and, as so modified, affirmed.

STEIN, J. (dissenting). The majority precipitously holds that medical professionals working in a hospital emergency room owe a duty of care to a non-patient member of the general public, requiring medical professionals who administer medication that may affect a patient's driving ability to warn the patient—for the benefit of a third-party motorist—that he or she should not operate a motor vehicle upon discharge. Because I vehemently disagree that a duty running from a physician to a non-patient should be recognized under the circumstances presented here, I would reaffirm our long-standing precedent holding that a physician's duty of care does not extend beyond the patient to the community at large, a result that is, I believe, mandated by any considered weighing of the societal interests involved. I, therefore, dissent.

I.

I will begin with a recitation of the facts giving rise to this action as recounted in the complaint—which must be accepted

6. We make a brief procedural point here. Plaintiffs appeal to this Court from an Appellate Division order that affirmed a Supreme Court judgment dismissing the complaint. This Court may review the propriety of the denial of plaintiffs' cross motion seeking leave to serve an amended complaint (see *Oakes v Patel*, 20 NY3d 633, 644-645 [2013]). However, we do not address the motion for consolidation, which was denied as academic below. This Court is reinstating the complaint, so the request for consolidation is no longer academic and may be raised again at Supreme Court.

as true on this CPLR 3211 motion (see *Leon v Martinez*, 84 NY2d 83, 87-88 [1994])—and as supplemented by plaintiffs’ documentary submissions to the trial court. One morning in March 2009, nonparty Lorraine Walsh visited the emergency room of defendant South Nassau Communities Hospital, complaining of severe internal pain. During intake, Walsh informed emergency room staff that she had arrived at the Hospital by car, but she did not specify whether she was the driver of the vehicle. Thereafter, Walsh was examined by defendants Dr. Regina E. Hammock and Christine DeLuca (a physician’s assistant), both of whom were employed by defendant Island Medical Physicians, P.C. Because Walsh informed the medical care providers that she was allergic to morphine, she was administered Dilaudid and Ativan, intravenously, a few minutes after 11:07 a.m. According to plaintiffs’ expert, Dr. Alan Schechter, Dilaudid is an opioid narcotic pain-killer and Ativan is a benzodiazepine drug used, among other things, as a muscle relaxant, as a sedative, and to treat anxiety. In Dr. Schechter’s opinion, any emergency room physician administering these narcotic medications should be aware that they can impair a patient’s ability to drive, and the standard of care in the medical community requires that physicians warn their patients accordingly.

Walsh was discharged, and she left the Hospital at 12:30 p.m., over one hour after the administration of Dilaudid and Ativan. Shortly thereafter, Walsh crossed a double yellow line while operating her vehicle, striking an oncoming bus driven by plaintiff Edwin Davis. In a subsequent action commenced by Walsh against defendants Hammock, DeLuca, and the Hospital, Walsh claimed that the medications she was administered rendered her “unconscious for a period of time” and caused or contributed to the accident.

Thereafter, Davis—and his wife, derivatively—commenced the instant action to recover damages for Davis’s personal injuries, asserting causes of action sounding in medical malpractice and negligent hiring and training of medical personnel against Hammock, DeLuca, and Island Medical Physicians, P.C. (collectively the Island Medical defendants), as well as the Hospital. Plaintiffs alleged that defendants committed medical malpractice by releasing Walsh from the Hospital “in severe pain, [in] a state of disorientation, under the influence of the [administered drugs]” and without providing proper instructions or “arranging her a safe method of travel home.”

After joinder of issue, the Hospital and the Island Medical defendants moved to dismiss the complaint, asserting that plaintiffs had failed to state a cause of action for medical malpractice because the complaint did not plead the existence of a cognizable duty of care inasmuch as there was no allegation of a physician-patient relationship between Davis and defendants. Plaintiffs opposed the motions to dismiss and cross-moved for, among other things, leave to amend the complaint to add a cause of action sounding in simple negligence, arguing that defendants owed Davis a duty of care based on their administration of medication to Walsh and their allegedly negligent discharge of her from the Hospital.

Supreme Court, as relevant here, granted defendants' motions to dismiss the complaint for failure to state a cause of action, and denied that branch of plaintiffs' cross motion that sought leave to amend the complaint to add a negligence claim (2012 NY Slip Op 31969[U] [Sup Ct, Nassau County 2012]). The court concluded that there was no basis for the proposed amendment because there was no duty running from defendants to non-patient Davis. The Appellate Division affirmed (119 AD3d 512, 513 [2d Dept 2014]), and we subsequently granted plaintiffs leave to appeal (24 NY3d 905 [2014]).

II.

As the majority recognizes, the threshold issue in any negligence or malpractice action is whether the defendant owed the plaintiff a legally recognized duty of care (*see McNulty v City of New York*, 100 NY2d 227, 232 [2003]; *Hamilton v Beretta U.S.A. Corp.*, 96 NY2d 222, 232-233 [2001]). The question of whether and to whom a duty is owed "is a legal one for the courts to resolve, taking into account 'common concepts of morality, logic and consideration of the social consequences of imposing the duty'" (*McNulty*, 100 NY2d at 232, quoting *Tenuto v Lederle Labs., Div. of Am. Cyanamid Co.*, 90 NY2d 606, 612 [1997]). When conducting this analysis, "[d]espite often sympathetic facts in a particular case before them, courts must be mindful of the precedential, and consequential, future effects of their rulings, and 'limit the legal consequences of wrongs to a controllable degree'" (*Lauer v City of New York*, 95 NY2d 95, 100 [2000], quoting *Tobin v Grossman*, 24 NY2d 609, 619 [1969]).

We have repeatedly emphasized that the "foreseeability of harm does not define duty" (532 *Madison Ave. Gourmet Foods*

v Finlandia Ctr., 96 NY2d 280, 289 [2001]; see *Eiseman v State of New York*, 70 NY2d 175, 187 [1987]; *Pulka v Edelman*, 40 NY2d 781, 785 [1976]); rather it “merely determines the scope of the duty once it is determined to exist” (*Hamilton*, 96 NY2d at 232). Consequently, “[a]bsent a duty running directly to the injured person there can be no liability in damages, however careless the conduct or foreseeable the harm” (532 *Madison Ave. Gourmet Foods*, 96 NY2d at 289). “This restriction is necessary to avoid exposing defendants to unlimited liability to an indeterminate class of persons conceivably injured by any negligence in a defendant’s act” (*id.*; see *Hamilton*, 96 NY2d at 232; *Eiseman*, 70 NY2d at 187). Thus, the foreseeability of Walsh experiencing side effects from the medications administered to her by defendants and causing an accident with her motor vehicle does not resolve the question of whether defendants may be held liable to plaintiffs in this case.

III.

Plaintiffs assert, and the majority concludes, that recognition of a duty under the circumstances here is merely an extension of our existing precedent concerning the scope of a physician’s duty. I disagree. To the contrary, our case law compels the conclusion that defendants owed Davis no duty of care to warn Walsh against, or prevent her from, driving because Davis was an unidentified and unknown stranger to defendants’ physician-patient relationship with Walsh.

In *Eiseman v State of New York*, a prison physician completed a health form required for an inmate to be admitted into a college program upon his release from incarceration (70 NY2d at 187). The physician failed to note that the inmate had a history of addiction and mental illness and, after acceptance and enrollment at the college, the inmate committed heinous crimes against several of his peers (see *id.* at 180-183). In the subsequent negligence action, we acknowledged that, although the relevant form did not require the physician to disclose the inmate’s history, in completing the form, the physician nevertheless “owed a duty of care to his patient and to persons he knew or reasonably should have known were relying on him for this service to his patient”—i.e., the college (*id.* at 188 [emphasis added]). Yet, in recognizing the possibility that a limited duty might be owed by a physician to a non-patient, we held that the physician did *not* “undertake a duty to the community at large,” and we were careful to limit the object of

such a potential duty to a specific *identified* individual or entity who the physician knew was relying on his or her services to the patient (*id.*).

The following year, in *Purdy v Public Adm'r of County of Westchester*, this Court was presented with the question of whether defendants, a health-related living facility and its admitting physician, owed a duty to a member of the public requiring them to prevent a resident—73-year-old Emily Shaw, who had a medical condition that made her susceptible to fainting and blackouts—from, or warn her against, driving (72 NY2d 1, 6 [1988]). We recognized in *Purdy* that “there exist special circumstances in which there is sufficient authority and ability to control the conduct of third persons that we have identified a duty to do so,” such as where there is a “relationship between [the] defendant and a third person whose actions expose [the] plaintiff to harm such as would require the defendant to attempt to control the third person’s conduct; or a relationship between the defendant and plaintiff requiring [the] defendant to protect the plaintiff from the conduct of others” (*id.* at 8). However, we held that the defendants in *Purdy* had no duty to the plaintiff third party to prevent Shaw from driving because the facility and physician lacked “the necessary authority or ability to exercise . . . control over Shaw’s conduct so as to give rise to a duty on their part to protect [the] plaintiff—a member of the general public” (*id.* at 8-9). With respect to the plaintiff’s duty to warn theory, we acknowledged that other jurisdictions have held that a treating physician’s relationship to a patient could be sufficient to impose a duty running to members of the public to warn the patient of the adverse effects of medication on the ability to drive. However, we noted that, in New York, “[a] physician’s duty of care is ordinarily one owed to his or her patient” and not to the community at large (*id.* at 9-10). In any event, because the defendant physician was not Shaw’s treating physician and there was no evidence that any medication prescribed by the physician contributed to the accident, we held that no duty was established.¹

By contrast, in *Tenuto v Lederle Labs., Div. of Am. Cyanamid Co.*, we concluded that a special relationship existed

1. Although we noted the existence of pertinent out-of-state case law cited by plaintiff in support of a duty in *Purdy v Public Adm'r of County of Westchester*, we did not implicitly or explicitly approve of it (72 NY2d 1, 9-10 [1988]). Indeed, because we found that case law to be inapplicable to the facts as presented there, we had no occasion to determine whether it was

(n. cont'd)

between the non-patient parents of an infant and the infant's physician such that a duty was owed by the physician to the parents (90 NY2d at 611-612). There, the plaintiff parents presented their infant to her physician for the second dose of an oral poliomyelitis vaccine and, although it was known to the medical community that such vaccine presented a risk of transmittal to the parents, the physician did not warn the parents of that risk or explain how to avoid it (*see id.* at 610-611). The infant's father contracted the poliomyelitis virus and commenced an action against the physician. We held that the parents' complaint sufficiently alleged that the physician owed them a duty of care to warn of the risk, noting that

“[t]he relation of a physician to *his patient and the immediate family* is one of the highest trust. On account of his scientific knowledge and his peculiar relation, an attending physician is, in a certain sense, in custody of a patient afflicted with infectious or contagious disease. And he owes a duty to those who are ignorant of such disease, and *who by reason of family ties, or otherwise*, are liable to be brought in contact with the patient, to instruct and advise . . . them as to the character of the disease” (*id.* at 613 [some emphasis added] [internal quotation marks, some emphasis, and citations omitted]).

We also explained that a duty was cognizable under those circumstances because the physician's treatment “necessarily implicate[d] protection of household members or other *identified* persons foreseeably at risk because of a relationship with the patient, whom the doctor [knew] or should [have] know[n] may [have] suffer[ed] harm by relying on prudent performance of that medical service” (*id.* [emphasis added]). In other words, we recognized a duty in *Tenuto* only because the plaintiffs there were “within a *determinate* and *identified* class—immediate family members—whose relationships to the person acted upon have traditionally been recognized as a means of extending and yet limiting the scope of liability for injuries caused by a party's negligent acts or omissions” (*id.* at 614 [emphasis added]). Because there was a special relationship “triangulated” between the plaintiffs, the physician, and the patient in light

consistent with governing principles of tort law in New York (*see id.*). Furthermore, as the majority concedes, out-of-state authority does not govern the disposition of this appeal or our determination of whether a duty exists under these circumstances (*see* majority op at 577-579 n 4).

of the fact that “the physician [was] a pediatrician *engaged by the parents* to provide medical services to their infant, and whose services, by necessity, require[d] advising the patient’s parents,” our extension of a physician’s duty to a non-patient was careful and circumscribed (*id.* [emphasis added]).

To the extent, if any, that our decision in *Tenuto* could be read to permit the expansion of a physician’s duty to a member of the general public, we clarified the limits of our holding a few years later, in *McNulty v City of New York* (100 NY2d at 227). In *McNulty*, the Court refused to extend a physician’s duty to the friend of a patient being treated for contagious meningitis, even though the friend accompanied the patient to the hospital and directly inquired of two physicians whether she was at risk and should be treated in light of her close contact with the patient. In so holding, we clarified—again—that our holding in *Tenuto* was a very narrow one that relied on the special relationship between the parties and the physician’s awareness of the parents’ reliance on his services to the infant patient, *combined* with the fact that the physician’s treatment created the risk of harm (*see id.* at 233). We cautioned that, in the absence of such a convergence of factors, New York courts should be “reluctant to expand a doctor’s duty of care to a patient to encompass nonpatients,” in part due to the “critical concern . . . that a recognition of a duty would render doctors liable to a prohibitive number of possible plaintiffs” (*id.* at 232).

The rule of law that emerges from this line of cases is easily discerned. In New York, a physician’s duty to a patient, and the corresponding liability, may be extended beyond the patient only to someone who is both a readily identifiable third party of a definable class, usually a family member, *and* a person who the physician knew or should have known could be injured by the physician’s affirmative creation of a risk of harm through his or her treatment of the patient (*see McNulty*, 100 NY2d at 233-234; *Cohen v Cabrini Med. Ctr.*, 94 NY2d 639, 642-644 [2000]; *Eiseman*, 70 NY2d at 188). I am not aware of anything—and the majority makes no attempt to identify anything—indicating that this clear rule has become so unworkable that the significant redefinition of the scope of a physician’s duty adopted by the majority is warranted. Under a reasoned application of our precedent to the facts of this case, it is evident that defendants owed no legal duty to *Davis*—or any other member of the public who may have come

into contact with, and been harmed by, Walsh after her discharge—to warn Walsh against, or prevent her from, driving (see *McNulty*, 100 NY2d at 233-234; *Cohen*, 94 NY2d at 642-644; *Eiseman*, 70 NY2d at 188; *Rebollal v Payne*, 145 AD2d 617, 617-618 [2d Dept 1988]).

The majority's contrary conclusion and imposition of a duty to warn Walsh for the benefit of Davis and other motorists is inimical to the principles enunciated in *Purdy*, *Eiseman*, *Tenuto*, and *McNulty* because, while defendants arguably created a risk of harm by affirmatively giving Walsh medications that impaired her ability to drive, Davis is not a member of an identifiable and readily limited class.² Inexplicably, the majority acknowledges that we have consistently “declined to recognize a duty to an indeterminate, faceless, and ultimately prohibitively large class of plaintiffs” (majority op at 573), but then proceeds to recognize just such a duty in this case without articulating any clearly defined class to which this new duty runs. Under the Court's decision in this case, the class of potential plaintiffs cannot be logically restricted or identified.

Ultimately, by imposing liability here, the majority eviscerates the precept that a physician generally owes a duty of care only to the patient, not to the community at large. The majority justifies its otherwise unsupportable position by pointing out that the harm to Davis here was foreseeable (which, as set forth above, is not dispositive) and by asserting that “our calculus is such that we assign the responsibility of care to the person or entity that can most effectively fulfill that obligation at the lowest cost” (majority op at 572). While it is true that we have stated in other contexts that a “key” consideration criti-

2. To the extent plaintiffs claim that defendants had a duty to actually prevent Walsh from leaving the Hospital—as opposed to merely issuing a warning against driving—defendants did not have “sufficient authority and ability to control” Walsh's conduct to give rise to such a duty (*Purdy*, 72 NY2d at 8-9; see *Kowalski v St. Francis Hosp. & Health Ctrs.*, 21 NY3d 480, 486 [2013]; *D'Amico v Christie*, 71 NY2d 76, 88 [1987]; *Conboy v Mogeloff*, 172 AD2d 912, 913 [3d Dept 1991], *lv denied* 78 NY2d 862 [1991]; *Wagshall v Wagshall*, 148 AD2d 445, 447 [2d Dept 1989], *appeal dismissed and lv denied* 74 NY2d 781 [1989]; *Cartier v Long Is. Coll. Hosp.*, 111 AD2d 894, 895 [2d Dept 1985]). Moreover, there is clearly no relationship between defendants and Davis—who were completely unknown to one another prior to the accident—that required defendants to protect Davis from Walsh's conduct or to consider the effects of their treatment of Walsh on him (compare *Tenuto v Lederle Labs., Div. of Am. Cyanamid Co.*, 90 NY2d 606, 614 [1997]). The majority recognizes the absence of sufficient control here by limiting their holding to a duty to warn.

cal to the existence of a duty . . . is ‘that the defendant’s relationship with either the tortfeasor or the plaintiff places the defendant in the best position to protect against the risk of harm,’” we have also recognized in the next breath that, even where the defendant is best positioned to prevent harm, a duty should be imposed only where “‘the specter of limitless liability is not present because the class of potential plaintiffs to whom the duty is owed is circumscribed by the relationship’” (*Matter of New York City Asbestos Litig.*, 5 NY3d 486, 494 [2005], quoting *Hamilton*, 96 NY2d at 233). “The law demands that the equation be balanced; that the damaged plaintiff be able to point the finger of responsibility at a defendant owing, not a general duty to society, but a specific duty to [the plaintiff]” (*Johnson v Jamaica Hosp.*, 62 NY2d 523, 527 [1984]). The majority blatantly disregards this well-settled and crucial limitation on the recognition of a duty. Indeed, the duty it now adopts is not specific to Davis or based on any relationship he had with defendants or Walsh; rather, the duty imposed by the majority upon defendants here extends to any motorist, pedestrian, bicyclist, or other injured member of the public who comes into contact with any of defendants’ innumerable patients. However, our jurisprudence, both in general and in the specific context of physician-owed duties, has repeatedly rejected the imposition of a duty that will have such far-reaching and unmanageable consequences (*see e.g. McNulty*, 100 NY2d at 232; *Hamilton*, 96 NY2d at 234; *Strauss v Belle Realty Co.*, 65 NY2d 399, 402 [1985] [it is the responsibility of the courts when fixing duty “to protect against crushing exposure to liability”]). The majority’s claim that it is not retreating from our heretofore cautious approach to recognizing new scopes of duties rings hollow in the face of its analysis and holding demonstrating otherwise.

IV.

Even if I were able to accept the premise that a logically defined duty could be extended to a non-patient third party under our prior decisions, this Court is obligated to balance certain relevant factors before making such a determination. These factors include “the reasonable expectations of parties and society generally, the proliferation of claims, the likelihood of unlimited or insurer-like liability, disproportionate risk and reparation allocation, and public policies affecting the expansion or limitation of new channels of liability” (*Palka v Service-*

master Mgt. Servs. Corp., 83 NY2d 579, 586 [1994]; see *Hamilton*, 96 NY2d at 232-233). A thorough and careful consideration of these factors—an analysis that is conspicuously absent from the majority’s decision—compels me to conclude that the societal costs of imposing upon physicians a duty to non-patient members of the general public greatly outweigh the potential benefits of permitting such individuals to recover against physicians for their injuries (see *Matter of New York City Asbestos Litig.*, 5 NY3d at 493 [“any extension of the scope of duty must be tailored to reflect accurately the extent that its social benefits outweigh its costs”]; *Hamilton*, 96 NY2d at 232).

(A)

First, the extension of a duty under the circumstances presented here does not conform with the expectations of the parties or of society in general. Until now, it was unlikely that physicians would have expected to be held accountable to members of the community at large for decisions arising out of their treatment of an individual patient. This is because the duty of care owed to a patient arises out of the personal, private, and individualized relationship between the two parties. By contrast, physicians have no relationship with unidentified members of the public and cannot foresee or predict with whom their patients will come into contact. In addition, while patients certainly expect their medical providers to properly advise them of the risks and side effects associated with medications that are administered to them, patients have no reason to expect that their doctor’s advice to them could give rise to a cause of action against the physician in favor of a person with whom neither the physician nor the patient had prior contact. Thus, this factor of the duty analysis militates against the finding of a duty.

(B)

Second, it is indisputable that a medical professional who administers medication that is likely to impair a patient’s ability to drive owes a duty of care *to the patient* that may require the medical professional to warn the patient of potential risks and side effects of the medication, including advice regarding whether it is safe for the patient to operate a motor vehicle (see generally *Nestorowich v Ricotta*, 97 NY2d 393, 398 [2002]; *Wolfgruber v Upjohn Co.*, 72 AD2d 59, 61 [4th Dept 1979], *affd* 52 NY2d 768 [1980]). It is precisely because the physician already

has a duty to undertake the action that plaintiffs claim will prevent future harm—i.e., to warn the patient—that the majority’s expansion of the scope of a physician’s liability to every member of the public will not create any additional social benefit at all. Nor will the imposition of a duty in favor of third parties render it more or less likely that the *patient*—with whom the ultimate decision to drive rests—will heed a medical provider’s warning not to operate a motor vehicle. That is, the extension of a duty under these circumstances will have little or no deterrent effect on the conduct which actually results in the harm—i.e., the operation of a motor vehicle by a person under the influence of medication—and there is little preventative benefit to be gained by the majority’s expansion of liability (see *Matter of New York City Asbestos Litig.*, 5 NY3d at 495).

(C)

Third, while the majority’s departure from our precedent yields no appreciable benefit, the extension of a physician’s duty to warn a patient to a third party comes at a heavy cost, both financially and socially. As for the latter, in my view, it is readily foreseeable that the imposition of a duty and the corresponding expansion of liability to include non-patients will adversely interfere with the physician-patient relationship. It can hardly be disputed that, as this Court has previously stated, the relationship between a physician and patient “operates and flourishes in an atmosphere of transcendent trust and confidence and is infused with fiduciary obligations” (*Aufrichtig v Lowell*, 85 NY2d 540, 546 [1995]). As a fiduciary, a physician generally owes a duty of undivided loyalty to the patient, and the paramount consideration in a physician’s course of treatment must, therefore, be the patient’s health and well-being. Although a physician has a duty, generally, to warn patients of the potential for a medication to, among other things, interfere with driving ability, the physician’s decision in specific situations regarding which side effects to explain or warnings to give with particular medications is, undoubtedly, one that is made in the exercise of professional judgment, based on the physician’s weighing of the likelihood of danger or quantum of risk and a determination of the individual patient’s interests. Extending a physician’s duty beyond the patient to a boundless pool of potential plaintiffs creates a very real risk that a physician will be conflicted when deciding whether, and to what extent, medication should be administered and under what circumstances specific warnings should be issued. In my view,

“[t]he consequences of this conflict for decisions regarding patient care are not insignificant. A physician whose attention is diverted from the patient to the effects of his advice on unknown persons who could be harmed by the patient’s future conduct ‘may, understandably, become less concerned about the particular requirements of any given patient, and more concerned with protecting himself or herself from lawsuits by the potentially vast number of person[s] who will interact with and may fall victim to that patient’s conduct outside of the treatment setting’” (*Jarmie v Troncale*, 306 Conn 578, 611-612, 50 A3d 802, 821 [2012], quoting *Coombes v Florio*, 450 Mass 182, 211, 877 NE2d 567, 587 [2007, Cordy, J., dissenting]).

For example, a physician may become overly cautious in prescribing necessary medications so as to avoid potential liability. Similarly, instead of giving only those warnings a physician truly believes to be warranted in a particular case, the physician may inundate a patient with excessive detail about potential, but unlikely, risks associated with a medication in order to insulate him- or herself from liability, thus distracting the patient from the most significant risks and side effects. Worse yet, these warnings may devolve into a general practice of physicians handing out pro forma lists of potential side effects that patients will cursorily sign prior to the administration of medications, ultimately resulting in fewer educated patients and less informed consent. While a physician may be ethically bound to refrain from allowing considerations of liability to influence his or her treatment decisions, it is naive, at best, to assume that the immeasurable liability that will result from the imposition of a duty owing to countless non-patients will have no impact upon a physician’s exercise of professional judgment.

The duty adopted by the majority also implicates concerns regarding physician-patient confidentiality (*see* CPLR 4504; Education Law § 6530) and, in my view, is unworkable on a practical level. For instance, where a patient who was administered medication without a warning against driving defaults in a legal action brought by an injured third party, or decides not to shift blame to the physician, the physician-patient privilege would bar disclosure to the injured party of the patient’s medi-

cal records and communications with the physician (*see Arons v Jutkowitz*, 9 NY3d 393, 409 [2007]; *Dillenbeck v Hess*, 73 NY2d 278, 287-288 [1989]). An injured third party will, therefore, be unable to obtain the information necessary to establish or obtain a remedy for a breach of the physician's purported duty to that party. Conversely, where an injured third party manages to state a claim despite a lack of cooperation from the patient, a physician's inability to disclose privileged information concerning the patient may hamstring the physician's ability to defend against the claim. Significantly, the majority does not address the rationality of imposing a duty upon a physician where a breach of that duty cannot be proved or disproved—absent a patient's cooperation—without encouraging violations of the physician-patient privilege or requiring courts to delve into whether intrusion into the privilege and a patient's privacy is warranted. In that regard, the likelihood of interference with the physician-patient relationship weighs heavily against extending a physician's duty to a non-patient in this context.

(D)

Fourth, the expansion of a physician's liability to include all members of the public injured by a patient's operation of a motor vehicle while under the influence of medication will likely have a substantial financial impact on the medical profession and the availability of competent medical care throughout the state. Where, as here, "recognition of a duty would render doctors liable to a prohibitive number of possible plaintiffs" (*McNulty*, 100 NY2d at 232), such a duty will assuredly affect the cost and availability of medical care, as physicians will face an influx of litigation and rising malpractice insurance premiums. Injured non-patients will have every incentive to pursue litigation against physicians due to the availability of insurance coverage and, even if the majority of physicians successfully defeat such claims by demonstrating compliance with their already-existing duty to warn a patient where such a warning is warranted, the added cost of entering into litigation of these claims, either through summary judgment motions or trial, will take its toll.

Moreover, scenarios implicating a physician's duty of care owed to members of the general public regarding his or her treatment of patients are endless, and the majority's finding of a duty here presents a slippery slope, at the bottom of which a

physician's ultimate liability could be staggering due to both the countless number of potential plaintiffs, as well as the myriad of ways in which liability may arise. Following the majority's holding to its logical conclusion, a physician can arguably now be held liable, not just where a medication impairs driving ability due to its impact on a patient's state of wakefulness, but also where a medication causes any other physical malady, for example, a severe stomach ache that distracts a driver or a rash of itchiness that causes a driver to release the steering wheel and lose control. The public as a whole gains little benefit from imposing upon physicians a scope of liability as vast as the one the majority now endorses. The societal cost, on the other hand, is significant.

(E)

Finally, plaintiffs lament that it is unfair to allow Walsh to recover against defendants for her own injuries if they failed to warn her not to drive, while concomitantly precluding Davis from obtaining the same recovery for his injuries. However, there is nothing inconsistent about allowing a patient, but not a stranger, to recover against a medical professional for a negligent failure to warn the patient. "Any conclusion regarding inconsistent outcomes must involve a comparison between two parties that stand in the same relationship to another party, and patients and injured third persons do not stand in the same relationship to health care providers" (*Jarmie*, 306 Conn at 600-601, 50 A3d at 815 [emphasis omitted]). Moreover, in almost all instances in which courts are asked to establish a duty, the courts must draw the line somewhere. As former Chief Judge Kaye eloquently stated,

"[t]his sort of line-drawing—a policy-laden determination reflecting a balance of competing concerns—is invariably difficult not only because it looks in part to an unknowable future but also because it is in a sense arbitrary, hard to explain to the person just on the other side of the line, especially when grievous injury is alleged. Human compassion and rigorous logic resist the exercise. If this person can recover, why not the next? Yet line-drawing is necessary because, in determining responsibility for negligent acts, common-law courts also must look beyond the immediate facts and take into account the larger principles at stake"

(*McNulty*, 100 NY2d at 234-235 [Kaye, Ch. J., concurring]).

Although I am sympathetic to plaintiffs and “it may seem that there should be a remedy for every wrong, this is an ideal limited perforce by the realities of this world” (*Tobin v Grossman*, 24 NY2d at 619; see *Albala v City of New York*, 54 NY2d 269, 274 [1981]). For, “[a] line must be drawn between the competing policy considerations of providing a remedy to everyone who is injured and of extending exposure to tort liability almost without limit” (*De Angelis v Lutheran Med. Ctr.*, 58 NY2d 1053, 1055 [1983]). To extend the duty here is to subject physicians to potentially crushing liability attenuated from the common expectations of all involved.

In addition, in many cases, motorists who are injured as a result of a physician’s negligent failure to warn a patient of the possible side effects from the administration of medication are not entirely without recompense because they may be covered by their own motor vehicle or health insurance, or can pursue recovery against the patient/driver who directly caused the injury. While an injured party may occasionally be deprived of compensation by the absence of a duty in scenarios like the one here, I cannot agree with the majority that the possible benefits to be gained by creating a liability owing from physicians to every person who might potentially be injured by a patient—benefits which are not identified by the majority—outweigh the costs.

V.

For all these reasons, I would decline to extend a physician’s duty to warn a patient about the effects of medication on his or her driving ability, beyond the duty already owed to the patient, to the community at large. My conclusion is consistent with, and compelled by, our precedent cautioning against the expansion of a physician’s scope of liability, which confines a physician’s duty to patients and specifically-identified persons who the doctor knows or has reason to know are relying upon the patient’s treatment and who are harmed by the physician’s affirmative creation of a risk. Adherence to this rule and our prior case law is necessary to avoid the imposition of a duty in cases like this, where the absence of a definable class of potential plaintiffs opens the door to limitless liability that will unduly interfere with the physician-patient relationship and increase the costs of medical care throughout the state, all

while producing minimal societal benefit. It is, therefore, my hope that the legislature—which has long expressed its concern regarding the impact of the costs of medical malpractice insurance and litigation on the affordability and availability of medical care—will carefully consider whether the majority's holding is consistent with New York's statutory medical malpractice schemes and the aims of tort recovery in New York.

Chief Judge LIPPMAN and Judges PIGOTT and RIVERA concur; Judge STEIN dissents and votes to affirm in an opinion in which Judge ABDUS-SALAAM concurs.

Order modified, without costs, by denying the motions of the Island Medical Physicians, P.C. defendants and of defendant South Nassau Communities Hospital to dismiss the complaint and, as so modified, affirmed.

[46 NE3d 1043, 26 NYS3d 490]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LUCIANO ROSARIO, Appellant.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MARCOS LLIBRE, Appellant.

Argued November 16, 2015; decided December 16, 2015

SUMMARY

APPEAL, in the first above-entitled action, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered March 13, 2014. The Appellate Division denied defendant's application for a writ of error coram nobis seeking leave to file a late notice of appeal from judgments of the Supreme Court, Bronx County (Troy K. Weber, J.), which had convicted him, upon his pleas of guilty, of harassment in the second degree and attempted criminal contempt in the second degree.

APPEAL, in the second above-entitled action, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered June 3, 2014. The Appellate Division denied defendant's application for a writ of error coram nobis seeking leave to file a late notice of appeal from a judgment of the Supreme Court, New York County (Bonnie G. Wittner, J.), which had convicted him, upon his plea of guilty, of criminal possession of a controlled substance in the fourth degree.

People v Rosario, 2014 NY Slip Op 66337(U), affirmed.

People v Llibre, 2014 NY Slip Op 73663(U), affirmed.

HEADNOTE

Crimes — Appeal — Extension of Time for Taking Appeal — Coram Nobis Relief Beyond One-Year Statutory Grace Period

Defendants' applications in separate prosecutions for writs of error coram nobis seeking leave to file late notices of appeal beyond the one-year grace period provided in CPL 460.30 were correctly denied where defendants failed to show that their attorneys were unconstitutionally ineffective for neglecting to advise them of their right to appeal from their convictions entered upon guilty pleas. Though an appellate court is not categorically barred by the time limit imposed in CPL 460.30 from considering a coram nobis application to pursue an untimely appeal where defense counsel has failed to comply with a timely request to file a notice of appeal and the defendant

demonstrates that the omission could not reasonably have been discovered within the one-year statutory grace period, granting such relief to defendants here would broaden the rule to apply to any case where a notice of appeal had not been filed within one year and 30 days of conviction, thereby abrogating CPL 460.30. Significantly, neither defendant claimed that he requested that his attorney file a notice of appeal and that his attorney failed to comply with that request, and the only evidence proffered in support of defendants' contention that they were not apprised of their appellate rights was self-serving affidavits. The records as a whole revealed that defendants knew about their right to appeal. Nor did defendants make any showing that they took steps toward discovering the omission or explain why years passed before they sought coram nobis relief. The records supported the conclusion that defendants had no intention of appealing, and their desire to quickly dispose of the matters at the time of their guilty pleas was consistent with their highly favorable pleas.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Appellate Review §§ 280, 281, 284, 290; AM JUR 2d, Criminal Law §§ 1135–1139; AM JUR 2d, Habeas Corpus and Postconviction Remedies §§ 194, 217.
CARMODY-WAIT 2d, Right to Counsel § 184:287; CARMODY-WAIT 2d, Postjudgment Motions § 205:6; CARMODY-WAIT 2d, Appeals in Criminal Cases §§ 207:90–207:93.
LAFAYE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 11.7, 27.4.
MCKINNEY'S, CPL 460.30.
NY JUR 2d, Criminal Law: Procedure §§ 864, 878, 3535–3539.

ANNOTATION REFERENCE

See ALR Index under Appeal and Error; Attorneys; Coram Nobis.

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POINTS OF COUNSEL

Robert S. Dean, Center for Appellate Litigation, New York City (Robin Nichinsky of counsel), for appellant in the first above-entitled action. The Court should grant the petition for a writ of error coram nobis where defense counsel's failure to inform appellant about his right to appeal or to file a notice of appeal on his behalf constituted ineffective assistance of

counsel that resulted in the denial of his fundamental right to appeal. (US Const Amends VI, XIV; NY Const, art I, § 6.) (*Roe v Flores-Ortega*, 528 US 470; *People v Syville*, 15 NY3d 391; *Evitts v Lucey*, 469 US 387; *People v Bachert*, 69 NY2d 593; *People v West*, 100 NY2d 23; *Campusano v United States*, 442 F3d 770; *Strickland v Washington*, 466 US 668; *People v Caban*, 5 NY3d 143; *People v Settles*, 46 NY2d 154; *People v Pride*, 3 NY2d 545.)

Robert T. Johnson, District Attorney, Bronx (*David P. Johnson, Joseph N. Ferdenzi and Stanley R. Kaplan* of counsel), for respondent in the first above-entitled action. I. There should not be an exception to the statutory time period for taking an appeal unless defendants credibly show that they were unjustifiably deprived of the right to appeal. (*People v Montgomery*, 24 NY2d 130; *People v Lynn*, 28 NY2d 196; *People v Ali*, 35 AD2d 435; *People v Corso*, 40 NY2d 578; *People v Thomas*, 47 NY2d 37; *People v Jackson*, 78 NY2d 638; *People v Perez*, 23 NY3d 89; *People v Syville*, 15 NY3d 391; *People v Andrews*, 23 NY3d 605; *Roe v Flores-Ortega*, 528 US 470.) II. The coram nobis application was properly denied as unsubstantiated and meritless. (*People v Nixon*, 21 NY2d 338; *People v Tyrell*, 22 NY3d 359; *Hanson v Phillips*, 442 F3d 789; *Willbright v Smith*, 745 F2d 779; *Kercheval v United States*, 274 US 220; *People v Spitaleri*, 9 NY2d 168; *People v Lynn*, 28 NY2d 196; *People v Peque*, 22 NY3d 168; *People v Andrews*, 23 NY3d 605; *People v Oddo*, 283 App Div 497.)

Robert S. Dean, Center for Appellate Litigation, New York City (*Robin Nichinsky* of counsel), for appellant in the second above-entitled action. The Court should grant the petition for a writ of error coram nobis where defense counsel's failure to inform appellant about his right to appeal or to file a notice of appeal on his behalf constituted ineffective assistance of counsel that resulted in the denial of his fundamental right to counsel. (US Const Amends V, VI, XIV; NY Const, art I, § 6.) (*Roe v Flores-Ortega*, 528 US 470; *People v Syville*, 15 NY3d 391; *Evitts v Lucey*, 469 US 387; *People v Bachert*, 69 NY2d 593; *People v West*, 100 NY2d 23; *Jones v Barnes*, 463 US 745; *People v Pride*, 3 NY2d 545; *People v Crimmins*, 36 NY2d 230; *People v Montgomery*, 24 NY2d 130; *People v Ventura*, 17 NY3d 675.)

Cyrus R. Vance, Jr., District Attorney, New York City (*Hope Korenstein and Patrick J. Hynes* of counsel), for respondent in

the second above-entitled action. The Appellate Division properly concluded that defendant did not factually show that his failure to appeal resulted from ineffective assistance of counsel. (*People v Syville*, 15 NY3d 391; *People v Howard*, 22 NY3d 388; *People v Harrison*, 57 NY2d 470; *People v McRay*, 51 NY2d 594; *People v Ennis*, 11 NY3d 403; *People v Sanders*, 25 NY3d 337; *People v Andrews*, 23 NY3d 605; *People v Noriega*, 34 Misc 3d 1242[A], 2012 NY Slip Op 50514[U]; *People v Quing Lin Zeng*, 33 Misc 3d 1213[A], 2011 NY Slip Op 51916[U]; *People v Cristache*, 29 Misc 3d 720.)

OPINION OF THE COURT

PIGOTT, J.

In *People v Syville* (15 NY3d 391 [2010]), we held that a defendant who learns, after the expiration of the one-year grace period provided in CPL 460.30, that a notice of appeal was not timely filed on his behalf due to the ineffective assistance of his counsel may, under very limited circumstances, have recourse by way of a coram nobis application. Defendants in these appeals claim they are entitled to such relief. We disagree, and therefore affirm in both appeals.

People v Rosario

In 2008, Luciano Rosario was arrested and charged with various misdemeanor counts of stalking and harassment. A temporary order of protection was issued directing him to stay away from the complainant. Rosario violated that protection order and was charged with four counts of criminal contempt in the second degree.

He appeared with his counsel and was offered a plea to second-degree harassment and second-degree attempted criminal contempt with definite concurrent sentences, the greatest of which was 30 days. When Rosario indicated he did not understand all of the consequences resulting from the plea, the court declined to accept Rosario's plea and adjourned the matter to a later date.

Several weeks later, Rosario again appeared with counsel and accepted the People's offer and pleaded guilty. The court asked if Rosario waived "formal allocution, prosecution by information, and waive[d] the right to appeal," to which counsel responded, "Yes." Rosario was immediately sentenced consistent with his plea. No notice of appeal was filed.

Nearly five years later, Rosario, through new counsel, filed this application for a writ of error coram nobis claiming that

his plea counsel did not speak with him about his right to appeal. He claimed that had he been so informed, he would have exercised it. Specifically, he contends that he lost his job and is now subject to deportation due to his convictions, which he claimed rested on pleas that were not knowing, intelligent, and voluntary when made.

In addition to his own affidavit, Rosario submitted an affirmation from his current counsel who stated that Rosario's former counsel, speaking through her organization's counsel, had stated that she had no specific recollection of what transpired in the case. However, it was her general practice to advise clients about the right to appeal and to provide them a written statement to that effect. He argued that coram nobis relief should be granted due to counsel's failure to advise him of his appeal rights and that he should be provided an opportunity to file a notice of appeal.

In opposition, the People argued that Rosario's claim that his plea counsel did not apprise him of the right to appeal was unsupported and, in any event, Rosario had no viable issues to appeal. The People submitted a letter from U.S. Immigration and Customs Enforcement which revealed that a search of the Department's records failed to show that Rosario had ever been in immigration proceedings. Further, the letter states that it did not appear that Rosario would be subject to deportation based on these criminal convictions. Furthermore, the People argued, Rosario failed to exercise due diligence with respect to any potential appellate claims.

The Appellate Division denied Rosario's writ of error coram nobis without opinion (2014 NY Slip Op 66337[U] [1st Dept 2014]). A Judge of this Court granted Rosario leave to appeal (24 NY3d 964 [2014]).

People v Llibre

In June 2006, Marcos Llibre was indicted on charges of criminal possession of a controlled substance in the third and fourth degrees and attempted criminal sale of a controlled substance in the third degree. In April 2007, Llibre accepted a plea to fourth-degree criminal possession of a controlled substance with a promise of five years' probation.

At the plea proceeding, the court confirmed with Llibre that he discussed the case and the decision to plead guilty with counsel. The court informed Llibre of the rights that he was

giving up by pleading guilty. The court also specifically asked Llibre whether he understood that he was waiving his right to appeal, to which Llibre answered in the affirmative. Llibre executed a written waiver of appeal and was sentenced as promised in the plea agreement.

In December 2013, some six years after his time to file a notice of appeal had expired, Llibre petitioned for a writ of error coram nobis. He alleged that counsel at his plea hearing was constitutionally ineffective because he had failed to advise him of his right to appeal, to ascertain if he wished to appeal, or to file a notice of appeal on his behalf. The Appellate Division denied Llibre's writ of error coram nobis (2014 NY Slip Op 73663[U] [1st Dept 2014]). A Judge of this Court granted Llibre leave to appeal (24 NY3d 1121 [2014]).

Analysis

The procedure for taking an appeal from a judgment of conviction or sentence in a criminal matter is relatively straightforward. A defendant who wishes to take an appeal must generally do so within 30 days after imposition of sentence (*see* CPL 460.10 [1] [a]). CPL 460.30 allows an appellate court to grant an extension of time to file a notice of appeal if defendant makes a motion, with due diligence, after the 30 days has expired but in no event more than one year thereafter. "The one-year grace period is strictly enforced 'since the time limits within which appeals must be taken are jurisdictional in nature and courts lack inherent power to modify or extend them' " (*People v Andrews*, 23 NY3d 605, 611 [2014] [citation omitted]).

In *People v Syville* (15 NY3d 391 [2010]), this Court considered whether defendants may be afforded an opportunity to file a notice of appeal, even beyond the one year and 30 days permitted under the CPL. In *Syville*, the defendants had made timely requests to their attorneys to file a notice of appeal on their behalf but their attorneys failed to comply. We held that when an attorney has failed to comply with a timely request for the filing of a notice of appeal and the defendant demonstrates that the omission could not reasonably have been discovered within the one-year period, the time limit imposed in CPL 460.30 should not categorically bar an appellate court from considering a coram nobis application to pursue an untimely appeal. Thus, coram nobis relief is not just another stop on a continuum of opportunities for a defendant to seek

appellate relief. Rather, it is extraordinary relief only to be provided in “rare case[s]” when “a right to appeal was extinguished ‘due solely to the unconstitutionally deficient performance of counsel’ ” (*Andrews*, 23 NY3d at 611, citing *People v Syville*, 15 NY3d 391, 398 [2010]).

We recently considered the *Syville* rule in *People v Andrews* (23 NY3d 605 [2014]), where the defendant pleaded guilty to selling narcotics and executed a written waiver of his right to appeal in conjunction with an agreement that he enter a drug treatment program. He was sentenced to time served and released from custody that day. Andrews did not file a notice of appeal.

He later moved, beyond the one-year-and-30-day time period afforded under the CPL, for coram nobis relief under *Syville*, claiming that his lawyer had been ineffective for not filing a notice of appeal. We held that Andrews failed to establish that his attorney had been ineffective, finding that defendant made only “perfunctory claims” that he had asked his lawyer to file a timely notice of appeal and had not shown that it was impossible to discover the omission with reasonable diligence (*id.* at 615). Andrew’s former attorney stated that she had discussions regarding the possibility of an appeal with Andrews (as she did with every client) and he had decided not to pursue that route because he wanted to accept a sentence of time served and end his case (*id.*). We noted that those statements were consistent with Andrews’ execution of a written waiver of his right to appeal before the court, which “presumptively demonstrated a desire not to seek appellate review” (*id.*, citing *People v Parris*, 4 NY3d 41, 50 [2004]).

The cases before us now do not resemble *Syville* or *Andrews*. Significantly, neither defendant claims that he requested that his attorney file a notice of appeal and that his attorney failed to comply with that request. Rather, they claim that counsel did not advise them of the right to appeal and had defendants known about their right to appeal, they would have requested one. However, in both appeals, the only evidence proffered in support of the contention that defendants were not apprised of their appellate rights is self-serving affidavits. The records as a whole reveal that defendants knew about their right to appeal. Thus, to grant defendants relief here would be to broaden the *Syville* rule to apply to any case where a notice of appeal had not been filed within one year and 30 days of conviction. Such a rule would abrogate CPL 460.30. Simply put, defendants

here failed to show that their attorneys were unconstitutionally ineffective and therefore they are not entitled to the relief they seek.

In *Rosario*, at the first court proceeding, plea counsel stated that she had discussed the “collateral consequences of a conviction” including “possible immigration and other consequences” with defendant, and that he wanted to dispose of the matter. The court adjourned the matter, which permitted Rosario additional time to consider the plea and the rights he would be forfeiting and to discuss those matters with his attorney. Some three weeks later, the court specifically asked plea counsel if Rosario waived his right to appeal, to which she answered affirmatively. Further, plea counsel stated that while she could not recall the specifics of Rosario’s case—understandably as it was some four years later—it was her routine to inform defendants of their appellate rights.

The record in *Llibre* is even more conclusive. Llibre acknowledged to the court at the plea proceeding that he understood that he was waiving his right to appeal. He also executed a written waiver before the court. Both the oral and written waivers in these cases are contrary to defendants’ claims that they were unaware of their right to appeal.

Nor did defendants make any showing that they took steps toward discovering the omission or explain why years passed before they sought coram nobis relief. In order to obtain exceptional relief beyond the time permitted under CPL 460.30, a defendant must show that he exercised due diligence. The records in both appeals support the conclusion that defendants had no intention of appealing, as both waited years before seeking relief. Their desire to quickly dispose of the matters at the time of their pleas is consistent with their highly favorable pleas; Rosario was sentenced to time served and released that same day and Llibre was sentenced to probation.

Under these circumstances, defendants failed to meet their burden on their coram nobis applications. Accordingly, the orders of the Appellate Division should be affirmed.

Chief Judge LIPPMAN (concurring in *People v Llibre*; dissenting in *People v Rosario*). I agree with the majority that in *People v Llibre* the record conclusively demonstrates that defendant Llibre was advised of his right to appeal and waived that right both orally and in writing after stating that he discussed his right to appeal with defense counsel. The majority concedes

that the record in *People v Rosario* is less clear, and because the record in *Rosario* does not show that defense counsel consulted with defendant regarding his right to appeal, when consultation was necessary, I would reverse and grant a hearing on Rosario's petition.

As the United States Supreme Court held in *Roe v Flores-Ortega*,

“counsel has a constitutionally imposed duty to consult with the defendant about an appeal when there is reason to think either (1) that a rational defendant would want to appeal (for example, because there are nonfrivolous grounds for appeal), or (2) that this particular defendant reasonably demonstrated to counsel that he was interested in appealing” (528 US 470, 480 [2000]).

To “consult” means “advising the defendant about the advantages and disadvantages of taking an appeal, and making a reasonable effort to discover the defendant's wishes” (*id.* at 478). The “better practice” in all cases is for defense counsel to consult with defendant (*see id.* at 479). In *Flores-Ortega*, defense counsel failed to file an appeal after the defendant specifically requested it (*id.* at 474) while the defendant's file indicated that defense counsel consulted with the defendant regarding his right to appeal. The Supreme Court did not go so far as to hold that counsel must in all cases “file a notice of appeal” or “discuss the possibility of an appeal with the defendant” (*id.* at 478), but where the defendant may be interested in appealing, consultation is required.

The Rules of the Appellate Division and the ABA Standards for Criminal Justice reaffirm the consultation requirements laid out in *Flores-Ortega*. According to the rules promulgated by each Appellate Division, defense counsel must “immediately after the pronouncement of sentence” advise a defendant in writing of the right to appeal and the time limitations involved (*see* Rules of App Div, 1st Dept [22 NYCRR] § 606.5 [b] [1]; Rules of App Div, 2d Dept [22 NYCRR] § 671.3 [a], [b]; Rules of App Div, 3d Dept [22 NYCRR] § 821.2 [a]; Rules of App Div, 4th Dept [22 NYCRR] § 1022.11 [a]). Similarly, under the ABA Standards for Criminal Justice, defense counsel should explain the right to appeal, give his or her professional judgment on the merits of an appeal, and “explain to the client the advantages and disadvantages of an appeal”; “[t]he ultimate decision whether to appeal should be the client's” (ABA

Standards for Criminal Justice, standard 4-9.1: Preparing to Appeal [4th ed 2015]).

Where, as in *Rosario*, it is abundantly clear that defendant was confused about his rights at the first sentencing proceeding, it was incumbent upon defense counsel to ensure that defendant understood his right to appeal. The record provides no evidence that this conversation ever took place and defendant asserts that it did not. Defense counsel, with personal knowledge of the facts, did not submit an affidavit. The majority simply ignores the glaring omissions in the record and, for the sake of convenience, denies a hearing by characterizing defendant's assertions as "self-serving," and thus, in its view, worthless.

In *People v Rosario*: Order affirmed.

Opinion by Judge PIGOTT. Judges ABDUS-SALAAM, STEIN and FAHEY concur. Chief Judge LIPPMAN dissents in an opinion in which Judge RIVERA concurs.

In *People v Llibre*: Order affirmed.

Opinion by Judge PIGOTT. Judges ABDUS-SALAAM, STEIN and FAHEY concur. Chief Judge LIPPMAN concurs in a separate opinion in which Judge RIVERA concurs.

[46 NE3d 1048, 26 NYS3d 495]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MARK
JURGINS, Appellant.

Argued October 22, 2015; decided December 17, 2015

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered June 25, 2013. The Appellate Division (1) modified, as a matter of discretion in the interest of justice, a judgment of the Supreme Court, Bronx County (Colleen D. Duffy, J.), which had convicted defendant, upon his plea of guilty, of robbery in the first degree and sentenced defendant, as a second felony offender, to a term of imprisonment of 25 years; and (2) affirmed an order of that Supreme Court (op 34 Misc 3d 1217[A], 2012 NY Slip Op 50127[U] [2012]), which had denied defendant's CPL 440.20 motion to set aside the sentence. The modification consisted of reducing the sentence of imprisonment to a term of 15 years. The Appellate Division affirmed the judgment as modified.

People v Jurgins, 107 AD3d 595, reversed.

HEADNOTES

Crimes — Sentence — Challenge to Legality — Waiver

1. In a criminal prosecution in which defendant agreed to a plea deal which included treating him as a second felony offender based on a prior out-of-state conviction, defendant did not waive his argument that the prior conviction was not equivalent to a New York felony, notwithstanding that he did not challenge the predicate felony after the plea colloquy during which he was advised only that he could challenge it on the grounds that he was either not the person named or that the conviction was unconstitutionally obtained. Waiver cannot be accomplished through silence. Thus, defendant's statements that he was not challenging the predicate felony information on the two grounds delineated by the court clerk did not constitute waiver of other, unmentioned grounds.

Crimes — Appeal — Preservation of Issue for Review — Challenge to Legality of Second Felony Offender Determination

2. In a criminal prosecution in which defendant agreed to a plea deal which included treating him as a second felony offender based on a prior out-of-state conviction, defendant failed to preserve his argument that the prior conviction was not equivalent to any New York felony on his direct appeal from the judgment of conviction. Defendant failed to argue at or before sentencing that the out-of-state conviction could not qualify as a predicate felony.

Crimes — Appeal — Preservation of Issue for Review — Challenge to Legality of Second Felony Offender Determination

3. In a criminal prosecution in which defendant agreed to a plea deal which included treating him as a second felony offender based on a prior out-

of-state conviction, defendant's argument that the prior conviction was not equivalent to any New York felony was preserved for review inasmuch as it was raised in his CPL 440.20 motion to set aside his sentence. A CPL 440.20 motion is the proper vehicle for raising a challenge to a sentence as unauthorized, illegally imposed or otherwise invalid as a matter of law, and a determination of second felony offender status is an aspect of the sentence. Raising the predicate felony sentencing issue in a CPL 440.20 motion serves the goals and purposes of the preservation rule by permitting the parties to present their arguments on the issue in the trial court, creating a record for appellate review, and allowing the trial court the first opportunity to correct any error.

Crimes — Sentence — Second Felony Offender — Prior Out-of-State Conviction

4. In a criminal prosecution in which defendant pleaded guilty to first-degree robbery and was sentenced as a second felony offender based on a prior Washington, D.C. conviction for attempt to commit robbery, the prior out-of-state conviction was not a proper basis for the predicate felony offender adjudication. A prior out-of-state conviction qualifies as a predicate felony conviction if it involved an offense which is the equivalent of a New York felony (Penal Law § 70.06 [1] [b] [i]). Courts generally should consider only the statutes defining the relevant crimes, but courts must consider the underlying allegations when the foreign statute renders criminal several different acts, some of which would constitute felonies and others of which would constitute only misdemeanors or no crime if committed in New York. The analysis requires the court to distinguish between the specific criminal acts required by the penal statute and the various ways in which the statutory crime may be committed. Here, the Washington, D.C. statute provided that, "[w]hoever by force or violence, whether against resistance or by sudden or stealthy seizure or snatching, or by putting in fear, shall take from the person or immediate actual possession of another anything of value, is guilty of robbery" (DC Code § 22-2801). A taking "by sudden or stealthy seizure or snatching" would not be considered a robbery or other felony in New York. The Washington, D.C. crime can be committed in different ways and the phrase "sudden or stealthy seizure or snatching" does not describe separate criminal acts required by the statute in addition to the use of "force or violence." Thus, the statute indicates that a person can be convicted of the foreign crime without committing an act that would qualify as a felony in New York.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Appellate Review §§ 581–582, 618; AM JUR 2d, Criminal Law §§ 743, 809, 811; AM JUR 2d, Habitual Criminals and Subsequent Offenders §§ 14, 18, 20, 25, 27–31, 35, 43–44.
CARMODY-WAIT 2d, Pleas and Plea Bargaining § 182:31; CARMODY-WAIT 2d, Right to Counsel § 184:277; CARMODY-WAIT 2d, Sentencing Procedures §§ 203:95, 203:97, 203:99–203:106, 203:109, 203:142, 203:149–203:154; CARMODY-WAIT 2d, Appeals in Criminal Cases §§ 207:14, 207:48.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 26.4, 26.6.
MCKINNEY'S, CPL 440.20; Penal Law § 70.06 (1) (b) (i).
NY JUR 2d, Criminal Law: Procedure §§ 923, 1486, 1513, 2927, 3010, 3220, 3227, 3229, 3236, 3246, 3282, 3294, 3408, 3474, 3481, 3632.

ANNOTATION REFERENCE

Determination of character of former crime as a felony, so as to warrant punishment of an accused as a second offender. 19 ALR2d 227.

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POINTS OF COUNSEL

Robert S. Dean, Center for Appellate Litigation, New York City (Lisa A. Packard of counsel), for appellant. Mark Jurgins's second felony offender sentence is unlawful because the alleged out-of-state predicate is not a New York felony equivalent under the Penal Law. (People v Ramos, 19 NY3d 417; People v Muniz, 74 NY2d 464; Matter of North v Board of Examiners of Sex Offenders of State of N.Y., 8 NY3d 745; People v Gonzalez, 61 NY2d 586; People v Olah, 300 NY 96; People v Yusuf, 19 NY3d 314; Jackson v United States, 359 F2d 260; United States v Mathis, 963 F2d 399; People v Thomas, 36 NY2d 514; People v Samms, 95 NY2d 52.)

Robert T. Johnson, District Attorney, Bronx (Catherine M. Reno, Joseph N. Ferdenzi and Stanley R. Kaplan of counsel), for respondent. I. Defendant was properly adjudicated a second felony offender, and his attorney provided effective assistance. (People v Yusuf, 19 NY3d 314; People v Gonzalez, 61 NY2d 586; People v Muniz, 74 NY2d 464; People v Olah, 300 NY 96; People ex rel. Goldman v Denno, 9 NY2d 138; People ex rel. Gold v Jackson, 5 NY2d 243; People v Yancy, 86 NY2d 239; People ex rel. Newman v Foster, 297 NY 27; Matter of Schwimmer, 8 Misc 2d 550; Foote v People, 56 NY 321.) II. Defendant's claim that he was improperly adjudicated a second felony offender is procedurally barred. (People v Samms, 95 NY2d 52; People v Smith, 73 NY2d 961; People v Kelly, 65 AD3d 886; People v Fuller, 57 NY2d 152; People v Drummond, 40 NY2d 990; People

v Nieves, 2 NY3d 310; *People v Santiago*, 22 NY3d 900; *People v Lopez*, 28 NY2d 148; *People v Laureano*, 87 NY2d 640; *People v Fuller*, 57 NY2d 152.)

OPINION OF THE COURT

STEIN, J.

Defendant contends that his prior Washington, D.C. conviction for attempt to commit robbery is not equivalent to any New York felony and, therefore, did not provide a proper basis for his second felony offender adjudication. Because we agree that defendant was erroneously sentenced as a predicate felon based on that conviction, we reverse and remit for further proceedings.

I.

In satisfaction of a 12-count indictment, defendant pleaded guilty to the top count of robbery in the first degree. Pursuant to the plea offer, defendant's guilty plea was in exchange for a promised sentence of 11 years in prison, plus five years of post-release supervision, assuming that defendant complied with certain conditions. The plea included treating defendant as a second felony offender. During the plea colloquy, the court clerk read a second felony information based on a 2000 Washington, D.C. conviction (the D.C. conviction) for attempt to commit robbery, and advised defendant that he could challenge it on two grounds: that he was not the person named, or that the conviction was unconstitutionally obtained. Defendant did not challenge the prior conviction on either of those grounds, and Supreme Court thereafter adjudicated him a second felony offender. At sentencing, the court found that defendant had violated a condition of the plea. In accordance with its earlier warning regarding such a violation, the court sentenced defendant to 25 years in prison, plus five years of postrelease supervision.

Defendant thereafter moved pursuant to CPL 440.20 to set aside his sentence on the grounds that he was denied the effective assistance of counsel at sentencing and was unlawfully sentenced as a second felony offender. In his motion, defendant asserted that he had agreed to the plea on the mistaken assumption that he was a second felony offender, as there was no discussion of how or whether the D.C. conviction was equivalent to a felony in New York. Supreme Court denied defendant's motion. (34 Misc 3d 1217[A], 2012 NY Slip Op 50127[U] [2012].)

Upon defendant's consolidated appeals from the judgment of conviction and the denial of his CPL 440.20 motion, the Appellate Division held that defendant's argument that his predicate felony was not equivalent to a New York felony was unpreserved and, alternatively, without merit (107 AD3d 595 [1st Dept 2013]). The Court also rejected his argument alleging ineffective assistance of counsel. However, the Court found the sentence to be excessive and, therefore, modified the judgment in the interest of justice by reducing the prison term from 25 years to 15 years. A Judge of this Court granted defendant leave to appeal (23 NY3d 1021 [2014]).

II.

[1] Contrary to the People's contention, defendant did not waive his current argument as to the legality of his sentence. Waiver cannot be accomplished through silence (*see People v Dickinson*, 18 NY3d 835, 836 [2011]). Thus, defendant's statements that he was not challenging the predicate felony information on the two grounds delineated by the court clerk did not constitute a waiver of other, unmentioned grounds.¹ We, therefore, conclude that defendant did not affirmatively and knowingly relinquish his rights to challenge whether the foreign conviction qualified as a predicate felony and to be properly sentenced (*see People v Samms*, 95 NY2d 52, 55 [2000]; *compare People v Ross*, 7 NY3d 905, 906 [2006]).

[2] Apart from the distinct question of waiver—which the dissent conflates with the issue of preservation—we also disagree, at least partially, with the People's assertion that we cannot reach defendant's challenge to the legality of the second felony offender determination because that challenge is unpreserved. This challenge reaches us in two separate ways in this consolidated appeal—defendant's appeal is from both the judgment of conviction and from the denial of his subsequent mo-

1. The dissent asserts that defendant waived his claim based on the language of CPL 400.21 (3) that allegations in the predicate felony statement are deemed admitted if not controverted. However, for that rule to apply, the court must ask the defendant if he or she "wishes to controvert any allegation made" in the predicate felony statement (CPL 400.21 [3]). Here, the court asked defendant whether he had out-of-state convictions and stated that they could be considered as felonies if committed in New York. However, this colloquy did not occur in connection with the discussion of the predicate felony statement, nor was it addressed to any particular conviction, let alone the one that formed the basis of the predicate felony finding. As the court did not adhere to the statutory requirement, there was no waiver.

tion to set aside the sentence pursuant to CPL 440.20. As for the direct appeal, we agree that defendant did not preserve his current argument because he failed to argue at or before sentencing that the D.C. conviction could not qualify as a predicate felony (see *People v Smith*, 73 NY2d 961, 962-963 [1989]; *People v Parker*, 121 AD3d 1190, 1190 [3d Dept 2014]).

[3] However, defendant's challenge to his sentence is preserved for our review insofar as it was raised in his CPL 440.20 motion.² A CPL 440.20 motion is the proper vehicle for raising a challenge to a sentence as "unauthorized, illegally imposed or otherwise invalid as a matter of law" (CPL 440.20 [1]), and a determination of second felony offender status is an aspect of the sentence (see Penal Law § 70.06 [included in Penal Law article 70, addressing sentences of imprisonment]). One of the legal defects that can be challenged in a CPL 440.20 motion is an alleged error in sentencing a defendant as a second or third felony offender, including the decision to consider certain prior convictions as predicates. Raising the predicate felony sentencing issue in a CPL 440.20 motion serves the goals and purposes of the preservation rule by permitting the parties to present their arguments on the issue in the trial court, creating a record for appellate review, and allowing the trial court the first opportunity to correct any error.³ Thus, we may address defendant's current challenge—that the sentence was illegal because the D.C. conviction did not render him a

2. Notably,

"[a] motion [pursuant to CPL 440.20] to set aside [a] sentence may be brought even though the illegality upon which it is grounded presently is appealable or could with due diligence have been appealed. The rationale for the distinction [in this regard between motions pursuant to CPL 440.10 and 440.20] is that an illegal sentence should be subject to challenge and rectification in the trial court without compelling the defendant to pursue the more lengthy and cumbersome appellate procedure" (Peter Preiser, Practice Commentaries, McKinney's Cons Laws of NY, Book 11A, CPL 440.20 at 11 [2005 ed]).

3. The dissent complains that the purpose of preservation is not achieved here because this case requires reliance on materials outside the record, specifically the D.C. statute and D.C. case law. We acknowledge that defendant did not include the foreign statute in his CPL 440.20 motion papers, where he raised his legal arguments concerning that statute. However, the applicable law is unlike factual information that must be included in a record. Courts routinely consult New York statutes and case law to ensure lawful sentencing, but we do not require the law, itself, to be placed in the record. The result should be no different where it is necessary for a court to refer to the law of another state; under such circumstances, we can take judicial notice of the law of the foreign jurisdiction.

second felony offender—on the appeal of the denial of his CPL 440.20 motion to set aside the sentence.

On the merits, the only element of the second felony offender statute at issue is whether the D.C. conviction is the equivalent of a New York felony, a matter which the People bore the burden of establishing (*see People v Yancy*, 86 NY2d 239, 247 [1995]). As relevant here, a prior out-of-state conviction qualifies as a predicate felony conviction if it involved “an offense for which a sentence to a term of imprisonment in excess of one year . . . was authorized and is authorized in this state” (Penal Law § 70.06 [1] [b] [i]). Because New York authorizes a prison sentence of more than one year only for felonies, we must determine whether defendant’s foreign conviction is equivalent to a New York felony (*see People v Ramos*, 19 NY3d 417, 419 [2012]; *People v Muniz*, 74 NY2d 464, 467 [1989]; *People v Gonzalez*, 61 NY2d 586, 592 [1984]).

The general rule limits this inquiry “to a comparison of the crimes’ elements as they are respectively defined in the foreign and New York penal statutes” (*Muniz*, 74 NY2d at 467-468; *see People v Yusuf*, 19 NY3d 314, 321 [2012]). In this regard, courts generally should consider only the statutes defining the relevant crimes, and may not consider the allegations contained in the accusatory instrument underlying the foreign conviction (*see People v Olah*, 300 NY 96, 98 [1949]). However, under a narrow exception to the *Olah* rule, the underlying allegations must be considered when “the foreign statute under which the defendant was convicted renders criminal several different acts, some of which would constitute felonies and others of which would constitute only misdemeanors [or no crime] if committed in New York” (*Muniz*, 74 NY2d at 468; *see Gonzalez*, 61 NY2d at 590; *People ex rel. Goldman v Denno*, 9 NY2d 138, 140 [1961]; *People ex rel. Gold v Jackson*, 5 NY2d 243, 245-246 [1959]). In those circumstances, the allegations will be considered in an effort to “isolate and identify” the crime of which the defendant was accused, by establishing “which of those discrete, mutually exclusive acts formed the basis of the charged crime” (*Muniz*, 74 NY2d at 468-469). The analysis requires us to

“distinguish between the specific criminal *acts* required by a penal statute and the various *ways* in which the statutory crime may be committed. The former concerns the crime’s statutory elements

and is relevant to the Penal Law § 70.06 (1) (b) (i) inquiry; the latter concerns the underlying facts and . . . is not relevant to that inquiry” (*id.* at 471).

The D.C. statute underlying defendant’s prior conviction provides that, “[w]hoever by force or violence, whether against resistance or by sudden or stealthy seizure or snatching, or by putting in fear, shall take from the person or immediate actual possession of another anything of value, is guilty of robbery” (DC Code §§ 22-2801; *see* 22-2802 [attempt to commit robbery]). In New York, robbery is defined as “forcible stealing. A person forcibly steals property and commits robbery when, in the course of committing a larceny, he [or she] uses or threatens the immediate use of physical force upon another person” to prevent resistance to the taking or to compel the owner to deliver up the property (Penal Law §§ 160.00; *see* 110.00 [defining attempt to commit a crime]).

The parties agree that a taking “by sudden or stealthy seizure or snatching” would not be considered a robbery or other felony in New York, inasmuch as it is akin to pickpocketing, or the crime of jostling, which is a misdemeanor in this state (*see* Penal Law § 165.25). However, the parties dispute whether the D.C. statute describes different *ways* to commit the crime of robbery or specific criminal *acts* that are required under the statute. We interpret the dependent clause between the first two commas in the D.C. statute as modifying the first phrase, “by force or violence.” That is, a taking “by force or violence” can be committed in several different ways, including “by sudden or stealthy seizure or snatching.” Our reading of the statute is consistent with that of the D.C. courts that have interpreted its language (*see United States v Mathis*, 963 F2d 399, 408 [DC Cir 1992] [noting that this same statute can be violated by pickpocketing]; *Jackson v United States*, 359 F2d 260, 262-263 [DC Cir 1966]; *see also Williams v United States*, 113 A3d 554, 560 [DC 2015]).

[4] Thus, as relevant here, under the D.C. statute the taking can occur (1) by force or violence, or (2) by putting in fear.⁴ The force or violence element can be accomplished (1) against resistance, or (2) by sudden or stealthy seizure, or (3) by snatching (*see Mathis*, 963 F2d at 408). Stated another way, “the statute must be interpreted to include ‘stealthy seizure’ as a form of ‘force or violence’ ” (*id.*). The statutory language means

4. The alternative element of “putting in fear” is not at issue here.

that the crime can be committed in different *ways*, and the phrase “sudden or stealthy seizure or snatching” does not describe separate criminal acts required by the statute in addition to the use of “force or violence” (*see Jackson*, 359 F2d at 262-263). Consequently, we do not look at the underlying accusatory instrument to determine if the crime is equivalent to a New York felony (*see Yusuf*, 19 NY3d at 321). Because the statute, itself, indicates that a person can be convicted of the D.C. crime without committing an act that would qualify as a felony in New York (i.e., by pickpocketing), defendant’s D.C. conviction for attempt to commit robbery was not a proper basis for a predicate felony offender adjudication (*see Ramos*, 19 NY3d at 420).

The illegal determination that defendant is a second felony offender must, therefore, be vacated and the matter remitted for further proceedings pursuant to CPL 440.20. Upon remittal, the People may allege a different prior felony conviction—if one exists—as a basis for a predicate felony adjudication (*see People v Marrero*, 3 NY3d 762, 763 [2004]; *People v Hunt*, 162 AD2d 782, 783-784 [3d Dept 1990], *affd* 78 NY2d 932 [1991], *cert denied* 502 US 964 [1991]). Based on this determination, we need not reach defendant’s argument regarding ineffective assistance of counsel.

Accordingly, the order of the Appellate Division should be reversed, and the matter remitted to Supreme Court for further proceedings in accordance with this opinion.

PIGOTT, J. (dissenting). The majority’s decision today exempts defendant’s post-conviction motion from the same rules of preservation that bar his direct appeal. Because this distinction has no basis in law or in logic and runs afoul of our long-standing preservation jurisprudence, I dissent and would affirm the order of the Appellate Division.

As the majority correctly recognizes, a challenge to the equivalency of a foreign felony conviction must be preserved by timely objection in the sentencing court (*see People v Smith*, 73 NY2d 961, 962-963 [1989]). This is so because determining whether a particular out-of-state conviction is the equivalent of a New York felony may involve the production and examination of foreign accusatory instruments and, conceivably, the resolution of evidentiary disputes, all in the context of comparisons with the law of other jurisdictions (*see People v Samms*, 95 NY2d 52, 57 [2000]).

Timely objection is also required by statute. Section 400.21 of the Criminal Procedure Law governs the procedure to be used when the People seek an enhanced sentence based on a defendant's prior conviction. It requires the People to provide the defendant with a predicate felony statement, setting forth the date and place of the prior conviction and alleging that the prior conviction is a valid "predicate" within the meaning of Penal Law § 70.06 (CPL 400.21 [2]). The court must provide the defendant an opportunity to object to or controvert the allegations in the People's statement (CPL 400.21 [3]). Any "[u]ncontroverted allegations . . . shall be deemed to have been admitted" (*id.*).

The People complied with CPL 400.21 in this case by providing defendant with a predicate felony statement containing the date and place of his prior attempted robbery conviction. It clearly stated that his D.C. conviction for attempted robbery constituted "a predicate felony, as defined in [Penal Law § 70.06 (1) (b)]." The court explained to defendant that he had out-of-state convictions that would be the equivalent of felonies if they had occurred in New York, and the court asked if defendant understood that the convictions would be recognized as felonies. Defendant stated that he understood and that he still wished to plead guilty. Therefore, the allegations in the statement, including the allegation that defendant's D.C. conviction is a valid predicate felony, were deemed admitted (*see* CPL 400.21 [3], [8]).

The fact that the court's colloquy did not specifically address the D.C. conviction does not excuse defendant from his statutory obligation to object (*see* majority op at 611 n 1). We have previously held that the "statutory purposes for filing a predicate statement (CPL 400.21) [are] satisfied" when a defendant is provided "with reasonable notice and an opportunity to be heard" (*People v Bouyea*, 64 NY2d 1140, 1142 [1985]). Here, although he was given a copy of the predicate felony statement and admitted to the existence of the prior conviction, defendant "raised no challenge to the court's consideration of the prior conviction" and "made no objection to being sentenced as a predicate felon" (*id.*). Therefore, defendant's claim has been statutorily waived (*see People v Hummel*, 127 AD3d 1506, 1507 [3d Dept 2015] [rejecting defendant's challenge to his second felony offender status based on the court's failure to comply with CPL 400.21 (3) because defendant failed to object at sentencing and because "there was substantial compliance with CPL 400.21"]).

It is difficult to overstate how consistently the courts of this state have relied on CPL 400.21 and our holding in *Smith* to reject claims like the one defendant raises here. The Appellate Divisions uniformly find challenges to the equivalency of a foreign felony conviction unpreserved or waived where defendants fail to raise the issue at sentencing (see *People v De Aga*, 74 AD3d 552, 552 [1st Dept 2010] [finding defendant's challenge to the equivalency of his foreign felony conviction unpreserved based on *Smith* but reaching the issue in the interest of justice]; *People v Kelly*, 65 AD3d 886, 887 [1st Dept 2009], *lv denied* 13 NY3d 860 [2009] [finding defendant's claim unpreserved based on *Smith*]; *People v Delston*, 62 AD3d 1023, 1023 [2d Dept 2009], *lv denied* 13 NY3d 835 [2009] [citing to *Smith*]; *People v Crippa*, 245 AD2d 811, 812 [3d Dept 1997] [citing to CPL 400.21]; *People v Gonzalez*, 61 AD3d 1428, 1429 [4th Dept 2009] [citing to CPL 400.21]; see also *Delston v New York*, 2010 WL 3004591, *6-7, 2010 US Dist LEXIS 76701, *17-18 [ED NY 2010] [finding defendant's claim that he was improperly sentenced as a second felony offender procedurally barred from habeas review because he failed to controvert the equivalency of the foreign conviction at sentencing]).

Notably, each of the defendants in the aforementioned cases raised his claim in a CPL 440.20 motion to set aside the sentence. Unlike the majority, those courts draw no distinction between a direct appeal and a post-conviction motion for purposes of preservation. And rightly so. Nothing in the Criminal Procedure Law or our decisions interpreting it allows us to review unpreserved claims simply because they are raised in a CPL 440.20 motion. Rather, the purpose of CPL 400.21 (3) and our contemporaneous-objection rule is to promote finality and prevent further litigation over belated claims like the one defendant raises here, which could have been resolved with a specific and timely objection (see CPL 470.05 [2]; *People v Lopez*, 71 NY2d 662, 665 [1988]).* The majority's decision today burdens appellate courts with an issue that can and should be litigated in the first instance. In the process, it has allowed this defendant to achieve an end-run around our preservation rules that I suspect future litigants will repeat.

* To be sure, defendant had every incentive not to object to the foreign felony conviction. The agreement he negotiated allowed him to plead guilty to one count of robbery in the first degree in satisfaction of the 12 charges for which he was indicted.

Although I would not reach the merits of defendant's unreserved claim, since the majority has, I will express my disagreement on that front as well.

The majority holds that the courts below erred in looking beyond the elements of the D.C. and New York robbery statutes because District of Columbia Code § 22-2801 does not criminalize different *acts* of robbery but merely different *ways* of committing a robbery, one of which would not be a felony if committed in New York (majority op at 614). This is a hyper-technical reading of the D.C. statute and of our decisions regarding the equivalency of foreign felony convictions.

As originally conceived, the *Olah* rule (*see* majority op at 613) did not require courts to abstain altogether from considering the factual allegations of a charge. It merely acknowledged that indictments often contain nonessential facts that go beyond what the statute requires (*see People v Olah*, 300 NY 96, 101 [1949]). And if we considered only the indictment in determining whether a defendant was convicted of a crime in another jurisdiction that would be a felony if committed in New York, we would run the danger of extending or enlarging the crime of which he was actually convicted (*id.*).

The facts in *Olah* provide the perfect example. The defendant in that case was accused of having stolen a wallet, in New Jersey, that contained \$200. Although it was a felony in New York to steal more than \$100, the defendant in *Olah* pleaded guilty to a New Jersey offense that made it a crime to steal \$20 or more. By looking at the facts of the indictment rather than the statutory elements, the lower court said that defendant's New Jersey conviction was equivalent to a felony in New York because, as the indictment alleged, he stole more than \$100. We reversed, stating it did not matter whether the defendant *in fact* stole more than \$100, because he pleaded guilty only to stealing \$20 (*id.* at 100). Similarly, if the defendant had gone to trial in New Jersey and been found "guilty," the verdict would have reflected only that he stole money that amounted to at least \$20 because the prosecution never would have had to prove beyond a reasonable doubt that defendant stole more than \$100, as New York requires.

Thus, the "intent and spirit of the *Olah* rule require that the courts of New York abstain from considering the *surplusage* contained in the indictment or information" (*People ex rel. Gold v Jackson*, 5 NY2d 243, 245 [1959] [emphasis added]; *see also*

People v Muniz, 74 NY2d 464, 470 [1989] [finding it improper to look to the factual allegations in an accusatory instrument only where the controversy does not turn upon them]). It does not prohibit us from considering the accusatory instrument in order to clarify or identify the particular crime of which defendant was convicted (*People v Gonzalez*, 61 NY2d 586, 591 [1984]; *Muniz*, 74 NY2d at 468).

A practical reading of the D.C. statute at issue shows that it criminalizes multiple acts, all of which would be felonies in New York (acts of violence and force and by putting in fear) except one, which would be a misdemeanor (taking property by sudden or stealthy seizure or snatching) (*see* DC Code § 22-2801). In order to ascertain the particular crime of which defendant was convicted, it was appropriate for the courts below to consider the facts alleged in the accusatory instrument. When they did, it became clear that defendant was convicted of attempted robbery for using force or violence against resistance and for putting the victim in fear, both of which would be felonies if committed in New York. If the opposite had been true—if defendant indeed had been a pickpocket—those facts too could be considered by the sentencing court and the predicate felony statement rejected. Thus, the importance of preservation.

Chief Judge LIPPMAN and Judges RIVERA, ABDUS-SALAAM and FAHEY concur; Judge PIGOTT dissents and votes to affirm in an opinion.

Order reversed and case remitted to Supreme Court, Bronx County, for further proceedings in accordance with the opinion herein.

[46 NE3d 1057, 26 NYS3d 504]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v LAWRENCE
WATSON, Respondent.

Argued January 14, 2016; decided February 11, 2016

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered December 2, 2014. The Appellate Division (1) reversed, on the law, a judgment of the Supreme Court, New York County (Richard D. Carruthers, J., at substitution of counsel ruling; Juan M. Merchan, J., at trial and sentencing), which had convicted defendant, upon a jury verdict, of criminal possession of a weapon in the second degree (two counts) and resisting arrest; and (2) remanded the matter for a new trial.

People v Watson, 124 AD3d 95, reversed.

HEADNOTE

Crimes — Right to Counsel — Disqualification — Conflict of Interest — Representation by Public Defense Organization of Defendant and Potential Witness

Where defendant and a possible witness against him were in separate prosecutions arising from a single incident represented by different attorneys from the same public defense organization, the Appellate Division erred in holding that the trial court abused its discretion by relieving defendant's assigned counsel due to the potential conflict of interest. The trial court appropriately balanced defendant's countervailing rights to counsel of his choosing and to effective assistance of counsel, based on the information it had at the time, and reasonably concluded that counsel could not effectively represent defendant due to the organization's representation of the witness and the duty of loyalty counsel's supervisors asserted toward that former client. Prior to defendant's trial, counsel's supervisors determined that there was a potential or actual conflict that prevented counsel from investigating the witness, attempting to locate him, calling him as a witness at trial or cross-examining him if he was called by the People. Even if the institutional representation of the witness did not, in and of itself, present a conflict because knowledge of a large public defense organization's current and former clients is typically not imputed to each attorney employed thereby, the conflict was created by the conditions imposed by counsel's supervisors. Though defendant indicated his willingness to waive the conflict under those conditions, almost immediately thereafter he said that he wanted the witness to be called as a witness at trial. Those competing statements did not clearly demonstrate a knowing waiver, and the trial court could properly decide that it would not accept a waiver under the circumstances.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Attorneys at Law §§ 188–190, 192, 195; AM JUR 2d, Criminal Law §§ 1101, 1102.
CARMODY-WAIT 2d, Officers of Court §§ 3:398, 3:399; CARMODY-WAIT 2d, Right to Counsel §§ 184:105, 184:204.
NY JUR 2d, Attorneys at Law §§ 97–99; NY JUR 2d, Criminal Law: Procedure § 938.

ANNOTATION REFERENCE

See ALR Index under Attorneys; Conflicts of Interest.

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POINTS OF COUNSEL

Cyrus R. Vance, Jr., District Attorney, New York City (Dana Poole and Susan Gliner of counsel), for appellant. The trial judge did not abuse his discretion when, acting upon the report by defendant's attorney and his public defense agency of a conflict of interest created by the agency's dual representation in related cases of defendant and a potential witness at his trial, he relieved counsel and appointed a conflict-free attorney to represent defendant. (People v Payton, 22 NY3d 1011; People v Harris, 99 NY2d 202; People v Arroyave, 49 NY2d 264; People v Gomborg, 38 NY2d 307; People v Carncross, 59 AD3d 1112, 14 NY3d 319; People v Gordon, 272 AD2d 133; People v Robinson, 121 AD3d 1179; People v Lawson, 65 AD3d 1380; Wheat v United States, 486 US 153; People v Tineo, 64 NY2d 531.)

Olshan Frome Wolosky LLP, New York City (Renee M. Zaytsev of counsel), and Richard M. Greenberg, Office of the Appellate Defender, New York City, for respondent. I. The Court should dismiss this appeal, as appellant has not identified any determinative legal question to be reviewed. (People v Giles, 73 NY2d 666; People v Albrow, 52 NY2d 619; People v Bay, 54 NY2d 808; People v Konstantinides, 14 NY3d 1; People v Polhill, 24 NY3d 995; People v Holland, 18 NY3d 840; People v Omowale, 18 NY3d 825; People v Hinton, 81 NY2d 867; People v Amill,

58 NY2d 967; *Strickland v Washington*, 466 US 668.) II. The Court should affirm the Appellate Division's reversal of Lawrence Watson's conviction because Mr. Watson was denied his Sixth Amendment right to counsel when the lower court disqualified his attorney over a nonexistent conflict of interest. (*People v Arroyave*, 49 NY2d 264; *Matter of Abrams [John Anonymous]*, 62 NY2d 183; *People v Griffin*, 92 AD3d 1, 20 NY3d 626; *People v Chambers*, 133 Misc 2d 868; *United States v Lech*, 895 F Supp 586; *United States v Kliti*, 156 F3d 150; *People v Wilkins*, 28 NY2d 53; *People v Griffin*, 249 AD2d 244; *People v Gomez*, 13 NY3d 6.) III. The Court should affirm the Appellate Division's reversal of Lawrence Watson's conviction even if it finds that there was a potential conflict because any conflict was too remote to warrant disqualification and, in any event, Mr. Watson was willing to waive it. (*Prodell v State of New York*, 125 AD2d 805; *Holloway v Arkansas*, 435 US 475; *Wheat v United States*, 486 US 153; *United States v Camisa*, 969 F2d 1428; *United States v Sullivan*, 381 F Supp 2d 120; *Rowe v De Jesus*, 106 AD2d 284; *People v Glinton*, 72 AD3d 618; *People v Doe*, 98 Misc 2d 805; *People v Salcedo*, 68 NY2d 130; *United States v Perez*, 325 F3d 115.)

OPINION OF THE COURT

STEIN, J.

Notwithstanding the general rule that, for the purposes of conflict of interest analysis, knowledge of a large public defense organization's current and former clients is typically not imputed to each attorney employed by the organization, conflicts may nevertheless arise in certain circumstances involving multiple representations within such organizations. In this case, Supreme Court was placed in the difficult position of having to either relieve defense counsel—thereby depriving defendant of the counsel of his choosing—or permit counsel to continue his representation despite a potential conflict of interest, thereby impinging on defendant's right to the effective assistance of counsel. Under the circumstances presented here, the court did not abuse its discretion by relieving defendant's assigned counsel and appointing conflict-free counsel to represent him. Therefore, we reverse.

I.

Defendant showed a friend a gun in his waistband and threatened to use it against another person. He then went to a park, where he was seen near Toi Stephens. When police ar-

rived, defendant and Stephens fled separately. Witnesses saw defendant throw a gun during the chase, and a gun was subsequently found in the identified location. Cocaine and marijuana were also found on the ground, and Stephens admitted that the drugs belonged to him. Defendant was charged with criminal possession of a weapon in the second degree (two counts) and resisting arrest. Stephens was charged with drug possession.

Robert Fisher, an attorney employed by New York County Defender Services (NYCDS), was assigned to represent defendant. Eight months later, the People turned over *Rosario* material that revealed that a different attorney from NYCDS had represented Stephens on his criminal charge arising from the same incident. Fisher immediately brought this to the attention of Supreme Court. Fisher stated that he had been looking for Stephens as a possible witness for defendant before becoming aware of the potential conflict of interest. Even though defendant wanted Fisher to continue as his attorney, Fisher was not sure it would be appropriate to do so. The court granted an adjournment to determine whether the situation could be resolved.

At an appearance a few days later, Fisher advised the court that Stephens had entered a guilty plea shortly after his arraignment, and NYCDS no longer represented him. However, because Stephens had not waived confidentiality, Fisher's supervisors at NYCDS prohibited him from searching for Stephens, calling Stephens as a witness, or conducting any cross-examination if the People called him to testify. Fisher advised defendant that he could not continue to represent defendant unless defendant agreed to waive even the attempt to call Stephens as a witness. Fisher also asked the court to prohibit the People from calling Stephens, because his supervisors had determined that Fisher could represent defendant only under those conditions.

The court stated that it could not prevent the People from calling a relevant witness, and explained to defendant the potential conflict and the difficult position confronting Fisher. Defendant responded that he wanted to keep Fisher as his attorney and waive the conflict, but also that he wanted Stephens to testify. After hearing these statements that were incompatible with an unequivocal waiver, the court relieved Fisher of his assignment and assigned a new attorney, who represented defendant at trial. The jury convicted defendant of all charges.

The Appellate Division, with one Justice dissenting, reversed the judgment on the ground that the trial court had abused its discretion in relieving Fisher (124 AD3d 95 [1st Dept 2014]). The majority concluded that, because Fisher did not represent Stephens and was not privy to any of his confidential information, the relationship between NYCDS and Stephens did not constitute a conflict (*see id.* at 102-104). The dissent would have held that, at the very least, a potential conflict existed, and the trial court properly acted within its discretion in disqualifying counsel (*see id.* at 107-108 [Tom, J.P., dissenting]). The dissenting Justice granted the People leave to appeal to this Court (2015 NY Slip Op 63184[U] [1st Dept 2015]).

II.

A determination to substitute or disqualify counsel falls within the trial court's discretion (*see People v Carncross*, 14 NY3d 319, 330 [2010]; *People v Tineo*, 64 NY2d 531, 536 [1985]). "That discretion is especially broad when the defendant's actions with respect to counsel place the court in the dilemma of having to choose between undesirable alternatives, either one of which would theoretically provide the defendant with a basis for appellate review" (*Tineo*, 64 NY2d at 536; *see Carncross*, 14 NY3d at 330; *People v Robinson*, 121 AD3d 1179, 1180 [3d Dept 2014]). Criminal courts faced with counsel who allegedly suffer from a conflict of interest must balance two conflicting constitutional rights: the defendant's right to effective assistance of counsel; and the defendant's right to be represented by counsel of his or her own choosing (*see* US Const 6th Amend; *Carncross*, 14 NY3d at 327; *People v Gombert*, 38 NY2d 307, 312-313 [1975]). Thus, a court confronted with an attorney or firm that represents or has represented multiple clients with potentially conflicting interests faces the prospect of having its decision challenged no matter how it rules—if the court permits the attorney to continue and counsel's advocacy is impaired, the defendant may claim ineffective assistance due to counsel's conflict; whereas, if the court relieves counsel, the defendant may claim that he or she was deprived of counsel of his or her own choosing (*see Wheat v United States*, 486 US 153, 161 [1988]; *Carncross*, 14 NY3d at 330).

Courts "should not arbitrarily interfere with the attorney-client relationship," but must protect the defendant's right to effective assistance of counsel (*Gombert*, 38 NY2d at 313; *see Carncross*, 14 NY3d at 327; *see also Wheat*, 486 US at 159-

160). Thus, the court must satisfy itself that the defendant has made an informed decision to continue with counsel despite the possible conflict, yet avoid pursuing its inquiry too far so as not to intrude into confidential attorney-client communications or discussions of possible defenses (*see Gomberg*, 38 NY2d at 313; *see also Holloway v Arkansas*, 435 US 475, 487 [1978]).

Particularly relevant here, the presumption in favor of a client being represented by counsel of his or her choosing may be overcome by demonstration of an actual conflict or a serious potential for conflict (*see Wheat*, 486 US at 164). The court may appropriately place great weight upon counsel's representations regarding the presence or absence of a conflict (*see Gomberg*, 38 NY2d at 314), because the attorney is generally in the best position to determine when a conflict of interest exists or is likely to develop during trial (*see Holloway*, 435 US at 485). Depending on when a potential conflict becomes evident, the court may not be aware of the details and ramifications of any conflict, or of the evidence, strategies or defenses that will emerge at trial (*see People v Lloyd*, 51 NY2d 107, 111 [1980]; *Gomberg*, 38 NY2d at 314; *see also Wheat*, 486 US at 162-163 [court must decide whether to allow waiver of conflict "not with the wisdom of hindsight after the trial has taken place, but in the murkier pretrial context" where conflicts are hard to predict]; *Carncross*, 14 NY3d at 328-329 [same]). However, if the court waits until trial—to ascertain what witnesses testify or what strategy or defenses are employed—it runs a serious risk of a mistrial based on the conflict (*see Carncross*, 14 NY3d at 329-330).

Where there have been successive representations of individuals with different goals or strategies, a concern arises that counsel's loyalties may be divided because a lawyer has continuing professional obligations to former clients. Those obligations include a duty to maintain the former client's confidences and secrets (*see* Rules of Professional Conduct [22 NYCRR 1200.0] rule 1.9), " 'which may potentially create a conflict between the former client and a present client' " (*People v Prescott*, 21 NY3d 925, 928 [2013], quoting *People v Ortiz*, 76 NY2d 652, 656 [1990]; *see* Rules of Professional Conduct [22 NYCRR 1200.0] rule 1.7). Here, prior to defendant's trial, Fisher's NYCDS supervisors noted the institutional duty of loyalty to its former client, Stephens. Those supervisors—who presumably were familiar with Stephens's file—determined that there was a potential or actual conflict that prevented

Fisher from investigating Stephens, attempting to locate him, calling him as a witness, or cross-examining him if he was called by the People. Under these circumstances, the trial court did not err in concluding that defendant's statements were insufficient to waive the conflict.

Our decision in *People v Wilkins* (28 NY2d 53 [1971]) does not compel a contrary result. In that case, this Court found that no conflict of interest existed merely because a defendant was represented by the Legal Aid Society and a different staff attorney from that same organization had previously represented—in an unrelated criminal proceeding—the person who was now the complaining witness against Wilkins. There, the purported conflict was not discovered until after Wilkins's trial, and his counsel had no prior knowledge of the separate case involving charges against the complaining witness. Thus, the prior representation could not have affected the representation of Wilkins. We held that, unlike private law firms where knowledge of one member of the firm is imputed to all, large public defense organizations are not subject to such imputation, so there was no inferred or presumed conflict (*see id.* at 56; *compare* Rules of Professional Conduct [22 NYCRR 1200.0] rule 1.10 [addressing imputation of conflict to firm]).

The current case is distinguishable from *Wilkins*, and we do not disturb the general rule against imputation of knowledge created there. In both cases, counsel worked for a large public defense organization and was initially unaware of another staff attorney's representation of a potential witness in the client's case, because there was apparently no free flow of information among staff attorneys. However, unlike counsel in *Wilkins*, defense counsel here became aware before defendant's trial of NYCDS's prior representation of Stephens, and the organization's representation of Stephens arose from the same incident that led to defendant's arrest. Additionally, Fisher's supervisors expressly prohibited him from attempting to locate Stephens (apparently even by searching in publicly-available sources) or questioning him. This directly impinged on Fisher's representation of defendant. Not only did the supervisors instruct Fisher to refrain from investigating Stephens, they also directed that he could not cross-examine Stephens if he was called by the People. Therefore, even if the institutional representation of Stephens did not, in and of itself, present a conflict, such a conflict was created by the conditions imposed by Fisher's supervisors, which hampered his ability to zeal-

ously and single-mindedly represent defendant. Although the court could have inquired as to why NYCDS took the position of forbidding any investigation into or questioning of Stephens, the court was in a precarious situation because such an inquiry might have intruded into confidential attorney-client information. Thus, the court did not abuse its discretion by relieving counsel once those restrictions were announced.

Defendant's assertion that he was never given the opportunity to waive the conflict is unavailing. Although defendant indicated that he would be willing to waive the conflict, almost immediately thereafter he said that he wanted Stephens to be called as a witness at trial. These competing statements did not clearly demonstrate a knowing waiver, or that defendant would knowingly waive Fisher's conflict. Moreover, had he attempted to do so, it would have been within the court's authority to decline to accept such a waiver (*see Carncross*, 14 NY3d at 327-328). A trial

“court must be allowed substantial latitude in refusing waivers of conflicts of interest not only in those rare cases where an actual conflict may be demonstrated before trial, but in the more common cases where a potential for conflict exists which may or may not burgeon into an actual conflict as the trial progresses” (*Wheat*, 486 US at 163).

Further, while defendant might have agreed to allow counsel to refrain from calling Stephens, the People indicated the possibility that they would call him as a witness, depending on the defense that was raised—including the potential assertion that someone other than defendant possessed and dropped the gun—which would not be known until trial. Although a waiver of the conflict by defendant would have permitted counsel to refrain from cross-examining Stephens if he was called, that would be a tactic based on loyalty to Stephens as a former NYCDS client, not a strategy employed in the best interest of defendant. Additionally, if the court had waited until trial and the People had decided to call Stephens, a mistrial could have resulted (*see Carncross*, 14 NY3d at 329-330). Thus, the court could properly decide that it would not accept a waiver in these circumstances, instead choosing to protect defendant's right to the effective assistance of counsel in order to ensure a fair trial (*see Carncross*, 14 NY3d at 327-328; *see also Wheat*, 486 US at 162-163).

In sum, the Appellate Division erred in holding that the trial court abused its discretion. Supreme Court appropriately balanced defendant's countervailing rights, based on the information it had at the time, and reasonably concluded that Fisher could not effectively represent defendant due to NYCDS's representation of Stephens and the duty of loyalty Fisher's supervisors were asserting toward that former client. Accordingly, the Appellate Division order should be reversed and the case remitted to that Court for consideration of the facts and issues raised, but not determined, on the appeal to that Court.

Judges PIGOTT, RIVERA, ABDUS-SALAAM and FAHEY concur; Chief Judge DiFIORE and Judge GARCIA taking no part.

Order reversed and case remitted to the Appellate Division, First Department, for consideration of the facts and issues raised but not determined on the appeal to that Court.

[47 NE3d 56, 26 NYS3d 728]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANTHONY V. PAVONE, Appellant.

Argued November 18, 2015; decided December 17, 2015

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered May 29, 2014. The Appellate Division affirmed a judgment of the Clinton County Court (Patrick R. McGill, J.), which had convicted defendant, upon a jury verdict, of murder in the first degree (two counts) and criminal possession of a weapon in the second degree.

People v Pavone, 117 AD3d 1329, affirmed.

HEADNOTES

Crimes — Right to Remain Silent — Due Process Violation — Use of Defendant's Post-Arrest Silence to Impeach Extreme Emotional Disturbance Defense

1. In a prosecution arising after defendant shot and killed his former longtime lover and her romantic partner, in which defendant's post-arrest silence was used to challenge his credibility regarding possible fabrication of his extreme emotional disturbance, an Appellate Division order affirming defendant's conviction of murder in the first degree and criminal possession of a weapon in the second degree was affirmed.

Crimes — Right to Counsel — Effective Representation

2. In a murder prosecution arising after defendant shot and killed his former longtime lover and her romantic partner, defendant did not sustain his burden to establish that his attorney failed to provide meaningful representation, notwithstanding that counsel did not object to references at trial to defendant's post-arrest silence or provide certain audio recordings to defendant's expert witness for trial preparation. Counsel was not ineffective for failing to object to the references during the testimony and prosecutor's summation to defendant's silence, which the People used to challenge defendant's credibility regarding possible fabrication of his extreme emotional disturbance (EED) defense, given that the evidence was overwhelming that defendant did not labor under an EED at the time of the murders. Moreover, it could not be said on the record that defense counsel lacked a strategic reason for permitting the testimony of defendant's silence without objection. The testimony in part supported defendant's EED defense as the police officers testified that defendant discussed his suicidal intentions after the killings. Likewise, the representation was not rendered ineffective by counsel's failure to provide to defendant's expert the audio recordings of the 911 call made by defendant's former lover and the voice messages that defendant left on the victims' cellular telephones close in time to the shootings. Counsel provided the expert with the transcripts of those recordings and then made a strategic choice to proceed with the expert's favorable opinion based on those transcripts.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Appellate Review §§ 659, 703, 715; AM JUR 2d, Criminal Law §§ 1135–1139; AM JUR 2d, Evidence §§ 816–818; AM JUR 2d, Witnesses § 868.
CARMODY-WAIT 2d, Right to Counsel §§ 184:162–184:167, 184:254; CARMODY-WAIT 2d, Particular Types of Evidence § 194:250; CARMODY-WAIT 2d, Appeals in Criminal Cases §§ 207:117, 207:119.
LAFAYE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 11.7, 24.4, 24.5.
NY JUR 2d, Criminal Law: Procedure §§ 864–870, 878, 879, 906, 2370, 2371, 2373, 3569, 3570, 3572, 3573.

ANNOTATION REFERENCE

See ALR Index under Attorneys; Harmless and Prejudicial Error; Impeachment of Witness; Silence.

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POINTS OF COUNSEL

Paul J. Connolly, Delmar, for appellant. I. The prosecutor's elicitation of evidence of appellant's post-*Miranda* exercise of his constitutional right to remain silent, his comments on that silence in his summation, and the absence of any limiting instruction, deprived appellant of his constitutional rights to remain silent, to a fair trial, and to due process of law, and require reversal. (*People v Conyers*, 49 NY2d 174; *People v Rutigliano*, 261 NY 103; *People v De George*, 73 NY2d 614; *People v Pressley*, 93 AD2d 665; *People v Basora*, 75 NY2d 992; *People v Rothschild*, 35 NY2d 355; *Doyle v Ohio*, 426 US 610; *People v Isaacson*, 44 NY2d 511, 45 NY2d 776; *People v Tucker*, 87 AD3d 1077; *People v Spinelli*, 214 AD2d 135.) II. Even absent defense objection, the prosecutor's elicitation of evidence of appellant's pretrial exercise of his right to remain silent, and his comments on that evidence in his summation, present issues of law that require reversal. (*People v McLucas*, 15 NY2d 167; *People v Autry*, 75 NY2d 836; *People v Bowen*, 65 AD2d 364; *People v Cavallerio*, 71 AD2d 338.) III. Appellant was denied his right to the effective assistance of counsel under the State

Constitution and Federal Constitution. (*People v Baldi*, 54 NY2d 137; *People v Harris*, 99 NY2d 202; *People v Abar*, 99 NY2d 406; *People v Henry*, 95 NY2d 563; *People v Hull*, 71 AD3d 1336; *People v Miller*, 63 AD3d 1186; *People v Turner*, 5 NY3d 476; *Strickland v Washington*, 466 US 668; *People v Stultz*, 2 NY3d 277; *People v McArthur*, 101 AD3d 752.)

Andrew J. Wylie, District Attorney, Plattsburgh (Nicholas J. Evanovich, III of counsel), for respondent. I. The majority of defendant's complaints are unpreserved. Defendant's only objection was properly decided by the trial court. Ultimately any error is harmless by overwhelming guilt. (*People v Robinson*, 36 NY2d 224; *People v Knowles*, 88 NY2d 763; *People v McLucas*, 15 NY2d 167; *People v Friola*, 11 NY2d 157; *People v Howard*, 12 NY2d 65; *People v De Renzzio*, 19 NY2d 45; *People v McLean*, 15 NY3d 117; *People v Kelly*, 5 NY3d 116; *People v Becoats*, 17 NY3d 643; *People v Toliver*, 89 NY2d 843.) II. The defendant received the meaningful assistance of counsel. (*Strickland v Washington*, 466 US 668; *People v Rivera*, 71 NY2d 705; *People v Benevento*, 91 NY2d 708; *People v Ellis*, 81 NY2d 854; *People v Pinchback*, 82 NY2d 857; *People v Echarria*, 53 AD3d 859; *People v Tonge*, 93 NY2d 838; *People v Cass*, 18 NY3d 553; *People v Turner*, 5 NY3d 476; *People v Taylor*, 1 NY3d 174.)

OPINION OF THE COURT

RIVERA, J.

[1] Defendant Anthony Pavone challenges his conviction on two counts of first-degree murder, and one count of criminal possession of a weapon in the second degree. It is undisputed that defendant killed two people. The sole issue at trial was whether at the time of the murders he labored under an extreme emotional disturbance (EED). On appeal, defendant asserts two errors of constitutional dimension: first, that the People violated his right to remain silent, and second, that he was denied a fair trial due to defense counsel's ineffectiveness. A new trial is not warranted on either ground, and we therefore affirm the Appellate Division.

I.

Defendant shot to death his former longtime lover, Patricia Howard, and her romantic partner, Timothy Carter. Much of the evidence is uncontested, but the question of defendant's emotional state at the time of the killings is disputed. Defend-

ant admitted the shootings but presented an EED defense based on his contention that at the time he was depressed and, in a state of anguish, lost rational control of his behavior. In support, he testified on his own behalf and presented medical expert testimony of his emotional condition.

The People contested defendant's interpretation of the evidence and argued that he was fabricating an EED defense. According to the People, defendant stalked and sought to control Howard, and acted out of jealousy and anger when he shot them. Since there were no eyewitnesses to the murders, the People relied on forensic evidence to reconstruct the shootings and testimony from witnesses about defendant's actions, as well as his emotional and physical condition in the hours surrounding the murder, to show that he acted calmly and rationally, including testimony from an expert on EED. The People also played for the jury several recorded voice messages that defendant left on the victims' cellular telephones close in time to the murders, which the People claimed evinced that his emotional state was one of frustration and anger.

Defendant and Howard were romantically involved for 10 years, including while he was married to Howard's sister-in-law, and after they divorced their respective spouses. The relationship was tumultuous, and included several breakups. According to Howard's daughter, Howard considered the relationship over in the weeks before the murders.

Defendant discovered that Howard had started a relationship with Carter, and in the days and hours before shooting the victims, defendant left several voice messages on Howard's phone, declaring his love, and begging her to take him back and rekindle their romantic relationship. In some of his messages he would refer to Carter and question whether they were out together. He found Carter's phone and address through the Internet and left messages for him as well, including one in which he said he loved Howard and that if Carter did not return his call he would look for him and find him, and, if necessary, he would sit in front of his home. When neither Howard nor Carter called back, defendant would leave more messages demanding that they return his calls.

Hours before the murders, defendant left another message for Howard in which he said he had previously left a message for Carter and that "one of you, if you're together, one of you has got to call me." He further stated that "this is wrong. . . .

I'm not ready to give up on you yet." He said he would drive up to Carter's home, and that he "need[ed] another chance with [Howard] . . . And then if it doesn't work out, [Carter] can have you . . . [b]ecause it would have been my fault again." In a statement that would prove prescient, he ended the message with, "God I hope you're not up at his house."

Defendant cited his growing frustration as he continued to leave messages for Howard. In defendant's last message to Howard, less than four hours before her death, he stated, "I'm not going to go away. . . . I'm really starting to get frustrated tonight." About an hour later, he left a message for Carter, declaring he was looking for his girlfriend, complaining again that Carter did not return his calls, and reiterated that he was getting frustrated.

Approximately two hours after this call, defendant arrived at Carter's home in Clinton County armed with a .357 magnum revolver, which he testified he carried because he was allegedly afraid of a former tenant whom he had evicted. To find Carter's apartment, defendant used a ruse in which he knocked on the doors of the two nearby tenants and pretended to be a fellow neighbor looking for Carter. One of the tenants who responded to defendant would testify at trial that about 20 to 25 minutes after defendant left, she heard two people screaming, then a statement from a man and another from a woman, followed by two gunshots less than a minute apart.

The People played a recording of a 911 call placed by Howard just before the shootings during which she stated that defendant was knocking on the door and she wanted him to leave. On the 911 tape that was played for the jury, Howard can be heard saying, "What Tony? What are you doing here? You're not getting a hug." The State Trooper who received the call testified at trial that the caller's voice was calm and that he could hear a male voice in the background.

Physical evidence from the forensic investigation indicated that defendant fired two shots through the front door, went inside, and shot Howard twice from an upward angle, which suggested that he stood over her as she was bent over or kneeling. He then shot Carter in the shoulder and fired a second, fatal shot at close range. He reloaded his gun and left the spent casings on a coffee table. Blood imprints indicated that he stepped on Howard's back as he made his way past her body.

Defendant fled the scene and the county. Five days later, the police located him at a hotel, registered under a false name.

Defendant eventually surrendered to police after speaking with a negotiator for several hours. A recording of that conversation was submitted into evidence. When he was arrested defendant had \$400 in cash on his person, and a gun, ski mask, and several survival supplies in his possession, including emergency blankets, hand warmers and a pocket knife. He had also removed the battery from his cell phone, which he claimed was to avoid phone calls, but which also ensured that he could not be tracked by the phone's GPS.

After his arrest, defendant was immediately read his *Miranda* rights. Defendant was then transported to the State Police station in Binghamton. During his transport he did not say anything to the police. He was later reread his rights before being transported to the airport for a flight back to Clinton County. At some point he mumbled that he should have shot himself in the head when he had the chance, and during the flight defendant broke down and cried. At trial, without objection, the prosecutor elicited testimony that defendant said nothing else while being transported.

In support of his EED defense, defendant took the stand and generally testified as to his background, and his physical and emotional condition at the time of the shooting. Defendant stated that he was a former marine before becoming a correction officer. He left the corrections department after he was assaulted by an inmate. During the assault he suffered a concussion, and his forehead and eye socket fractured in five places. Afterwards, the defendant saw numerous physicians and psychiatrists, and was prescribed medicine such as Zoloft, an antidepressant and anti-anxiety drug, Xanax, another anti-anxiety drug, and Adderall, used to treat inertia and lack of energy.

At trial, defendant also presented his version of the events, which was jumbled and difficult to follow during the course of his testimony. According to defendant, his relationship with Howard was on and off for years, and there was nothing unusual happening between them at the time of her death. He testified that he was not certain if Howard was with Carter and that she had visited him on her birthday, just two days before the shootings, and they had oral sex. He acknowledged leaving the phone messages, but stated that he was confused and that he and Howard were calling each other. He claimed that the day before the shootings, he was physically and mentally "fried." Defendant denied intending to kill the victims,

and said, “I just needed her that night. I just needed somebody that night.”

In describing the events at Carter’s apartment, he testified that when he knocked on Carter’s door Howard, dressed only in a bathrobe, answered. He asked her what she was doing there. He told her that he needed her and asked to let him sleep inside the door. It was around this time that Howard called 911.

According to defendant, Howard said something like, “what’s the matter with you. You don’t get it. What do I have to do, what do I have to do” then she asked whether she had to have sex with Carter in front of defendant. Defendant testified he felt distraught at what she said and threw himself at the door, and fired two shots through the glass. He thought Carter said he had a gun on him. Defendant claimed he then stuck the gun through the window and fired it because he thought Carter had fired at him. He claimed he had been crying on and off the entire time, that he was not perceiving things, and that he was delusional. He further claimed that he did not remember much of what occurred and struggled to recall the killings. In describing his state of mind he said he “wasn’t there for a lot of it.”

He also testified that he had contemplated suicide months before the killings, and that afterwards he considered suicide and while sitting in his truck he wrote a will. He said he told the police when he was in custody that he wished he had killed himself when he had the chance.

On cross-examination, the court permitted the prosecutor, over defense counsel’s objection, to ask defendant if, while in custody, he had told the police what happened the night of the shootings. Defendant answered he could not because he did not remember it all. In response to the prosecutor’s questions about when he discovered that he had suffered from EED, defendant explained that he first learned of EED when his daughter sent him information about this and other defenses.

He also claimed that when he first spoke with Howard she told him to go home, and that he then walked back to his truck and drove away, but after traveling less than 200 feet, he turned around. In response to the prosecutor’s questioning as to why he could not let Howard go, he responded because he did not know how long she had been seeing Carter and because she should have told him. He further admitted that he was jealous of Howard, and that he was eager to speak with Carter

to find out if he knew about defendant and how much he loved Howard.

With respect to the shooting, he insisted that the gun went off accidentally the first time, and after two shots he immediately entered the apartment and ran towards Carter, expecting to be shot. Some of his answers were contradictory in the same breath. For example, he said Carter grabbed him, then said maybe he didn't. He said Carter hit him, then immediately said that he did not hit him. Several times he stated that he could not fully remember the events. On re-cross, he testified that when he killed the victims he felt hurt and distraught, but was not angry or jealous.

Defendant presented expert testimony provided by a forensic psychiatrist, who opined that when defendant shot the victims he suffered an emotional break constituting EED. The expert based his opinion on two interviews with defendant, his medical records, and transcripts of the 911 call, defendant's phone messages and the hotel negotiation. The expert also referenced New York's law and various articles on EED, including one by the People's expert. He explained that someone suffering from EED can still act intentionally or make premeditated plans. Thus, even if defendant purposefully went to Carter's home with the intention to kill the victims, those actions did not preclude a finding of EED. While he admitted on cross-examination that he did not have access to the audio recordings of the 911 tape or voice messages, and that it would have been "quite useful and important" to listen to the messages, he nevertheless testified that he did not need to hear these recordings in order to render an opinion.

The defense expert also testified as to defendant's medical condition. He explained that defendant had been suffering from post-traumatic stress disorder (PTSD) since the inmate assault, and his PTSD exacerbated a preexisting major depressive disorder. He explained that these factors, combined with the current stress he was facing, indicated that defendant suffered from EED while searching for Howard, and her comment to him regarding sex with Carter provided a breaking point where he lost control of his actions. The expert further stated that based on his conversations with defendant and his reading of the transcript of the negotiation at the hotel, in his opinion, defendant was entertaining suicidal thoughts during the negotiation.

In rebuttal, the People submitted testimony from a forensic psychologist, who was lead author on a major scholarly article on EED. The People's expert opined that defendant had not been suffering under EED when he killed Howard and Carter. He based his opinion on an interview with defendant and the audio recordings between defendant and Howard, as well as the recording between defendant and the negotiator. He highlighted that he, unlike defendant's expert, had listened to the audio recordings of the 911 calls and voice mails, which he believed were important to discerning defendant's true mental state. In his opinion, defendant demonstrated a need to control Howard and that his actions, both preceding and immediately after the murders, indicated that he was not suffering from PTSD or EED.

The expert stated that defendant placed himself in this stressful situation and avoided taking any steps to alleviate his stress, such as engaging in an in-depth conversation with his psychiatrist, whom he met with for 10 minutes the day before the murders. Importantly, he explained that the defendant acted rationally immediately prior to the murders—quickly locating Carter's address on the Internet, calmly speaking to Carter's neighbors, creating a cover story for why he was there at 3:00 a.m., and discerning Carter's exact apartment. The defendant also drove away from Carter's house only to immediately return, and he entered the house, rather than leaving as someone who suffers from PTSD would do, when the gun went off. Overall, he described defendant's actions as "more consistent with what stalkers do" rather than someone suffering from EED.

As relevant here, on summation, defense counsel sought to address what appeared to be a weakness in the defense expert's testimony. Counsel explained for the jury that he received the CD with audio recordings of the phone messages and 911 tapes at the last minute and as a result chose not to provide his expert with those audio recordings because it would delay the trial a week. Instead, he provided him with the transcripts, which he argued was enough. During the People's summation, and without objection, the prosecutor emphasized defendant's failure to report the killings to the police and to inform the police about his EED defense when he was taken into custody.

The jury deliberated for approximately three hours before returning guilty verdicts on all charges. The court thereafter sentenced defendant to concurrent terms of life imprisonment

without parole on each murder count and 10 years' imprisonment, followed by five years' postrelease supervision, on the weapons possession count.

The Appellate Division affirmed, with one Justice dissenting (117 AD3d 1329 [3d Dept 2014]). The Court concluded that the admission of testimony regarding defendant's post-*Miranda* silence was harmless error because there was overwhelming evidence of guilt beyond a reasonable doubt and defendant failed to establish his EED defense. The dissent would have reversed because the evidence against the EED defense was not so overwhelming to support a conclusion that there was no reasonable possibility that use of defendant's silence affected the jury's rejection of the defense (*id.* at 1337 [Garry, J., dissenting]). A Judge of this Court granted defendant leave to appeal (24 NY3d 963 [2014]).

II.

On appeal, defendant claims that the People improperly used defendant's silence, in the immediate aftermath of his arrest, against him, violating his constitutional rights and requiring reversal of his conviction and a new trial. In addition, defendant argues that he was denied effective assistance of counsel and a fair trial due to trial counsel's failure to object to other instances where defendant's silence was used against him at trial, and for not providing the defense expert with audio recordings. The People respond that any complaint with regard to defendant's silence is unpreserved or was properly addressed by the trial court, and that, regardless, any error would be harmless. Further, the People contend that defendant did receive meaningful assistance of counsel.

A. Defendant's Silence

We agree with the Appellate Division that defendant's challenges to the People's use of his silence are generally unpreserved (117 AD3d at 1330; *see also People v Alvarez*, 20 NY3d 75, 81 [2012] ["errors of constitutional dimension . . . must be preserved"]; *People v McLean*, 15 NY3d 117, 120-121 [2010]). However, to the extent the challenge is preserved, we now turn to whether the People violated defendant's constitutional rights.

[1] Under both the Federal and New York State Constitutions a defendant has the right to remain silent at the time of defendant's arrest (NY Const, art I, § 6; US Const 5th Amend;

see also People v Basora, 75 NY2d 992, 993 [1990]). Therefore, a defendant's silence after arrest cannot be used by the People in their direct case (*see e.g. Basora*, 75 NY2d at 993; *People v Conyers*, 52 NY2d 454, 459 [1981] [*Conyers II*]; *People v Von Werne*, 41 NY2d 584, 587 [1977]). The issue presented in this appeal is whether the People may use defendant's post-arrest silence to challenge defendant's credibility regarding possible fabrication of his EED defense. In *Conyers II*, this Court left open the question of whether evidence of silence for impeachment purposes violates the Due Process Clause of our State Constitution (52 NY2d at 457; *see also People v Williams*, 25 NY3d 185, 194 [2015] [Court did not address whether the "People's use of (defendant's) selective silence also violated the State and Federal Constitutions"]). We now conclude that use of defendant's silence for such purpose violates state due process guarantees.

This Court has previously, and repeatedly, "applied the State Constitution . . . to define a broader scope of protection than that accorded by the Federal Constitution in cases concerning individual rights and liberties" (*People v Baret*, 23 NY3d 777, 804 [2014], *cert denied* 574 US —, 135 S Ct 961 [2015], quoting *People v P.J. Video*, 68 NY2d 296, 303 [1986]; *see e.g. People v Claudio*, 83 NY2d 76, 84 [1993] ["the New York State right to counsel has always been deemed to be broader than its Federal counterpart"]; *Immuno AG. v Moor-Jankowski*, 77 NY2d 235, 249 [1991] [the protection afforded by the guarantees of free press and speech in the New York Constitution is often broader than the minimum required by the Federal Constitution]; *Rivers v Katz*, 67 NY2d 485 [1986] [right of involuntarily committed mental patients to refuse antipsychotic medication]; *People v Isaacson*, 44 NY2d 511 [1978] [due process limits on police conduct]). Thus, our analysis of defendant's claim is grounded in our recognition of the greater expanse of our State Constitution.

It is well established that this Court has never "adopt[ed] any rigid method of analysis which would, except in unusual circumstances, require us to interpret provisions of the State Constitution in 'Lockstep' with the Supreme Court's interpretations of similarly worded provisions of the Federal Constitution" (*People v Scott*, 79 NY2d 474, 490 [1992]). Instead, the test is "whether under established New York law and traditions some greater degree of protection must be given" (*id.* at 491). New York law has long maintained that evidence of

silence at the time of a defendant's arrest may not be used against that person. In *People v Rutigliano* (261 NY 103, 107 [1933]), this Court explicitly held that a defendant is "under no duty to speak and [defendant's] silence should not be counted as giving assent to what [defendant] hears. If [defendant] had counsel, [defendant] would doubtless be advised not to talk. If [defendant] had not, [defendant] should not be prejudiced thereby." Thus, well before the advent of *Miranda*, New York State recognized and protected a defendant's right to remain silent by limiting the use of that silence against him.

This Court has also recognized that *Miranda* warnings contain an implied promise that a defendant's silence will not be used against the defendant (*Doyle v Ohio*, 426 US 610, 619 [1976]). In this Court's first *Conyers* decision, the Court held that protection of a defendant's right to remain silent was, in part, derived from the state constitutional privilege against self-incrimination, and the People could not use defendant's post-arrest silence against the defendant, even absent *Miranda* warnings (*People v Conyers*, 49 NY2d 174, 179 [1980] [*Conyers I*], citing NY Const, art I, § 6, *vacated* 449 US 809 [1980]; see *People v Savage*, 50 NY2d 673, 682 [1980, Cooke, Ch. J., concurring] [highlighting that *Conyers I* "was founded on the State's implied promise not to use against a defendant the constitutionally guaranteed right to remain silent" (emphasis added)]). The Court explained that the right to remain silent was a "fundamental right" under our State Constitution, long protected and recognized under New York law (*Conyers I*, 49 NY2d at 180).

While the Supreme Court vacated and remanded *Conyers I* for further consideration in light of *Jenkins v Anderson* (447 US 231 [1980]), which upheld the use of pre-arrest silence for impeachment purposes under the United States Constitution, *Jenkins*, and the Supreme Court's remand of *Conyers I*, did not implicate our state constitutional due process rights analysis (see *Conyers II*, 52 NY2d at 456-457; see also *Savage*, 50 NY2d at 682). Rather, the Supreme Court specifically allowed state courts to develop evidentiary rules to address the probative and prejudicial aspects of the use of a defendant's silence. This Court then relied on state evidentiary rules in *Conyers II*, and again precluded use of the defendant's pretrial silence for impeachment purposes.

We, therefore, find the analysis of the state constitutional protections in *Conyers I* instructive, and continue to agree with the conclusion in *Conyers I* that "[h]aving made that promise,

the State may not, consistent with any concept of fundamental fairness and due process, subsequently renege on that promise by utilizing [such] silence against [the defendant]” (49 NY2d at 179). As explained more fully in *Conyers I*, a defendant’s fundamental right to remain silent is represented in the due process protection of the New York Constitution (NY Const, art I, § 6). This right, as explained above, has a long history in New York State, irrespective and independent of any federal constitutional protections such as *Miranda* (see *Rutigliano*, 261 NY at 107).

We also rely on concerns as identified in our prior analysis about the inherent unfairness attendant to the use of a defendant’s pretrial silence, and the proper balance between the probative value of a defendant’s silence and the potential risk of prejudice to the defendant inherent in the use of such evidence (see *People v De George*, 73 NY2d 614, 619 [1989]; *Conyers II*, 52 NY2d at 458; *Conyers I*, 49 NY2d at 181). Those concerns are the same regardless of whether the People use defendant’s silence as part of the case-in-chief or for impeachment purposes. As this Court has stated, the reasons for a defendant’s silence when confronted by law enforcement are many, and include “awareness that [defendant] is under no obligation to speak or to the natural caution that arises from [the] knowledge that anything [said] might later be used against [defendant] at trial” (*Conyers II*, 52 NY2d at 458, citing *Rutigliano*, 261 NY at 107; accord *United States v Hale*, 422 US 171, 176-177 [1975]), and a belief that defendant’s effort to exonerate oneself would be futile (*Conyers II*, 52 NY2d at 458, citing *People v Dawson*, 50 NY2d 311, 322 [1980]). While a defendant’s silence is ambiguous and lacks probative value, “[j]urors, who may not be sensitive to the wide variety of alternative explanations for a defendant’s pretrial silence, may assign much more weight to it than is warranted and thus the evidence may create a substantial risk of prejudice” (*De George*, 73 NY2d at 619; see also *Hale*, 422 US at 180).

Here, because an EED defense has an objective element, there is even more cause for concern that the prejudice to defendant outweighs some measure of value to be gleaned from defendant’s silence. An EED defense requires proof “of a reasonable explanation or excuse for the emotional disturbance” based on events as “the defendant perceived them to be at the time” (*People v Harris*, 95 NY2d 316, 319 [2000]). That defendant may have failed to inform the police that he was affected

by EED is irrelevant to whether he was or was not suffering from EED at that time. Defendant's assertions, or lack of assertions, of his emotional state, are not relevant in order to determine whether there was a reasonable explanation or excuse for his actions (*De George*, 73 NY2d at 620 [Court barred use of defendant's pre-arrest silence due to the lack of probative value]).

The People respond that evidence of defendant's silence should be allowed to be used for impeachment in this case because defendant opened the door by testifying that he had a limited recollection of the murders. According to the People, the prosecutor was entitled to ask questions to ascertain details concerning defendant's memory. We agree as a general matter, but here defendant did not open the door but merely stated that his memory was affected by the trauma of the events and that with the passage of time he remembered some parts of the events. That is not an example, as the People suggest, of defendant contradicting a prior statement about what he remembered. We are furthermore unpersuaded as to how the prosecutor's question, focused on what the defendant did *not* say to the police officers about the events, would further the People's alleged interest in eliciting the defendant's memory.

The People's argument in the alternative, that the prosecutor's question referred to defendant's conversation with police negotiator Detective Sergeant Ellis before defendant was arrested, and thus pre-*Miranda*, is presented for the first time on appeal, and therefore not properly before us (*People v Samms*, 95 NY2d 52, 55-56 [2000], citing CPL 470.05). Even if preserved, the argument is meritless. Read in context, the prosecutor's question is properly understood to refer to defendant's statements made when he was in custody after his removal from the hotel, meaning after defendant was Mirandized.

Regardless, we reject the People's artificial distinction between defendants who are arrested and remain silent before *Miranda* warnings have been provided, and those who remain silent afterwards. Indeed this Court has even held that pre-arrest silence cannot be used against a defendant in the People's case-in-chief (see *De George*, 73 NY2d at 620-621). Once a defendant is arrested, the defendant is confronted by law enforcement and the reasons for the defendant's silence are no less ambiguous. Thus, the concern associated with the

lack of probative value and the risk of prejudice to the defendant applies with equal force once defendant is arrested, even if there is a slight period of delay before a defendant is Mirandized. However, we consider the post-arrest, pre-*Miranda* situation to be the rarest of events given that *Miranda* warnings are customarily and by law provided upon arrest.

B. Harmless Error

For the reasons we have discussed, the People's use of defendant's silence constituted a violation of his state constitutional rights, and as such he is entitled to a new trial unless "there is no reasonable possibility that the error might have contributed to defendant's conviction and that it was thus harmless beyond a reasonable doubt" (*People v Crimmins*, 36 NY2d 230, 237 [1975]). Here, because defendant admitted his guilt but sought to mitigate the penalty based on an EED defense, the question is whether there was overwhelming evidence that defendant failed to establish that defense (*People v Best*, 19 NY3d 739, 744 [2012] ["A constitutional error may be harmless where evidence of guilt is overwhelming and there is no reasonable possibility that it affected the outcome of the trial"]).

Under our law, EED is an affirmative defense that reduces defendant's criminal culpability from murder to first-degree manslaughter (*Harris*, 95 NY2d at 318-319; Penal Law §§ 125.25, 125.20 [2]). It does not negate intent, but instead allows the trier of fact to afford lenience to an emotionally disturbed defendant who is "deserving of mercy" (*People v Cassa*, 49 NY2d 668, 680-681 [1980], *cert denied* 449 US 842 [1980]).

A defendant must prove the EED defense by a preponderance of the evidence (*Harris*, 95 NY2d at 319, citing *People v Moya*, 66 NY2d 887, 889 [1985]; *People v Diaz*, 15 NY3d 40, 45 [2010]). As this Court explained in *Harris*, evidence in support of an EED defense

"requires proof of both subjective and objective elements. The subjective element focuses on the defendant's state of mind at the time of the crime and requires sufficient evidence that the defendant's conduct was actually influenced by an extreme emotional disturbance. This element is generally associated with a loss of self-control.

“The objective element requires proof of a reasonable explanation or excuse for the emotional disturbance . . . by viewing the subjective mental condition of the defendant and the external circumstances as the defendant perceived them to be at the time, however inaccurate that perception may have been, and assessing from that standpoint whether the explanation or excuse for [the] emotional disturbance was reasonable” (95 NY2d at 319 [citations and internal quotation marks omitted]).

The EED defense is broader than the former “heat of passion” doctrine (*Casassa*, 49 NY2d at 675-676). An EED defense does not require that a defendant establish spontaneous conduct, or an immediate reaction to some provocation (*id.* at 676). The “significant mental trauma” may very well have “affected a defendant’s mind for a substantial period of time, simmering in the unknowing subconscious and then inexplicably coming to the fore” (*id.*).

Here, defendant stalked Howard and Carter. It is undisputed that his acts, including multiple phone messages where he declared his love for Howard, referred to her birthday, and discussed their time together, were calculated to manipulate her and to prey on her emotions. Furthermore, defendant knowingly placed himself in a position where, while armed, and, according to his own testimony, suffering from depression as well as feeling physically and mentally exhausted, he sought out Howard and her new lover. He made a choice to find them, using the Internet to locate Carter’s address, and once there, going so far as to lie to strangers in an effort to locate Carter’s apartment. In addition, multiple witnesses described defendant as calm and composed in the hours and minutes before the shootings.

When Howard answered Carter’s door, she was dressed only in a bathrobe. Defendant testified that this put to rest any previous doubts about the nature of her relationship with Carter. According to his own account, defendant then drove away, but made a conscious decision to return. These are not the actions of someone who finds himself without time to think or deliberate (*see People v Roldan*, 222 AD2d 132 [1st Dept 1996]). Rather, overwhelming evidence exists that defendant made choices—albeit bad ones, but choices nonetheless. As the People’s expert explained, defendant’s ability to act rationally, especially by calmly speaking to Carter’s neighbors to discern

Carter's apartment and then leaving and returning to the apartment once he realized that Howard was romantically involved with Carter, significantly undercut defendant's EED defense, and to the mind of the expert, established that defendant was not affected by EED when he killed Howard and Carter.

Evidence existed that defendant shot both victims twice, the second shot fired at each from an overhead position, while the victim was on the ground. In addition, the evidence demonstrated that defendant stepped on Howard's back after the shooting. Furthermore, five of the casings were found on a coffee table, and defendant wiped his hands afterwards on a towel. This is evidence of an intentional actor, not one who has suffered a break from reality. Moreover, while EED must be determined based on the moments before and during the murder, that defendant fled and had the presence of mind to obtain survival supplies is evidence of planned, rather than spontaneous, murders.

That defendant's expert opined defendant suffered from EED at the time of the shootings does not negate the overwhelming proof that defendant failed to establish his EED defense by a preponderance of the evidence. The evidence unquestionably demonstrated that the People's expert had a greater familiarity with EED and was better prepared. Defendant's expert had only testified one other time regarding EED, as opposed to the People's expert who had testified dozens of times about this issue. Further, the People's expert had written articles on the subject of EED, articles which defendant's expert admitted he had read for background. In addition, only the People's expert listened to the recordings, and he testified that hearing the tone of defendant's voice helped shape his understanding of defendant's mental state and whether defendant suffered from an emotional condition consistent with EED when he killed the victims. Thus, the People's expert contradicted the evidentiary basis for the opinion of defendant's expert, undermining the defendant's expert, and provided additional evidence against defendant's defense of EED.

Furthermore, there is no reasonable possibility that the inclusion of testimony about defendant's silence "contributed to defendant's conviction" (*Crimmins*, 36 NY2d at 237). There were two other instances of similar testimony admitted at trial. Thus, information about defendant's post-arrest silence, and the implication by the People that defendant fabricated the

EED defense, were before the jury. In light of the evidence presented against defendant there is no indication, nor any reason for us to conclude, that defendant's testimony as to his silence had any effect on the verdict. On this record the credentials and testimony of the dueling experts was far more relevant to the jury, including that the People's expert had greater experience and knowledge of EED, and had concluded that defendant's actions were those of a stalker.

Unlike our dissenting colleague (dissenting op at 648), we are unable to say that under these facts the violation of defendant's constitutional right to remain silent requires a new trial. There was overwhelming proof that defendant did not suffer under an extreme emotional disturbance and no reasonable possibility that the inclusion of testimony about defendant's silence contributed to his conviction (*see People v Maher*, 89 NY2d 456, 462-463 [1997] [defendant's "emotional disturbance (as) a thwarted lover" did not indicate he suffered from EED when his actions could have been construed as a "plan," which included a pattern of escalating threats, and did not appear "reasonable"]]). Therefore the constitutional violation of defendant's right to remain silent was harmless error.

C. Ineffective Assistance of Counsel

[2] Defendant's other claim, that his counsel failed to represent him in accordance with both the federal and state constitutional standards for effective assistance, is without merit. This claim concerns defense counsel's failure to object to references to defendant's silence during the testimony and prosecutor's summation, and the failure of counsel to provide the audio recordings to defendant's expert witness for trial preparation. We conclude, based on the facts of this case, that defense counsel's failures do not constitute ineffective representation.

In determining whether counsel provided effective assistance, "[t]he core of the inquiry is whether defendant received meaningful representation" (*People v Benevento*, 91 NY2d 708, 712 [1998] [internal quotation marks omitted]). In making that assessment, the Court must view counsel's performance in its totality (*see People v Baldi*, 54 NY2d 137, 147 [1981]). Defendant, of course, bears the burden of establishing his claim that counsel's performance is constitutionally deficient (*People v Barboni*, 21 NY3d 393, 406 [2013]). Thus, defendant must demonstrate the absence of strategic or other legitimate explanations for counsel's alleged failure (*People v*

Satterfield, 66 NY2d 796, 799-800 [1985]). However, a reviewing court must be careful not to “second-guess” counsel, or assess counsel’s performance “with the clarity of hindsight,” effectively substituting its own judgment of the best approach to a given case (*Benevento*, 91 NY2d at 712). The test is “reasonable competence, not perfect representation” (*People v Modica*, 64 NY2d 828, 829 [1985] [internal quotation marks omitted]).

For the reasons we have discussed, counsel was not ineffective for failing to object, given that the evidence was overwhelming that defendant did not labor under EED at the time of the murders. Moreover, the testimony of the officers in part supported defendant’s EED defense because they testified that defendant discussed his suicidal intentions after the killings. We cannot say on this record that defense counsel lacked a strategic reason for permitting the testimony without objection (*Satterfield*, 66 NY2d at 799-800 [“It is not for this court to second-guess whether a course chosen by defendant’s counsel was the best trial strategy, or even a good one, so long as defendant was afforded meaningful representation”]).

Likewise, defense counsel’s failure to provide the audio recordings to their expert did not render counsel’s representation of defendant ineffective. This is not the case where counsel wholly fails to provide an expert without any basis upon which to develop an opinion, or provides an expert with incorrect information. Rather, defense counsel provided the expert with information about defendant’s statements through the transcripts, and then made a strategic choice to proceed with his expert’s favorable opinion based on those transcripts. On this record, without more to suggest defense counsel’s decision is irreconcilable with the medical testimony as he understood it at the time of the trial, we cannot say that defense counsel’s strategy renders his representation ineffective.

Defendant failed to sustain his burden to establish that his attorney “failed to provide meaningful representation” that compromised his “right to a fair trial” (*People v Caban*, 5 NY3d 143, 152 [2005]). Since “our state standard . . . offers greater protection than the federal test, we necessarily reject defendant’s federal constitutional challenge by determining that he was not denied meaningful representation under the State Constitution” (*id.* at 156). We therefore reject his ineffective assistance of counsel claim.

III.

For the reasons discussed in this opinion the Appellate Division order should be affirmed.

STEIN, J. (concurring). I agree with the plurality's conclusion that defendant received the effective assistance of counsel at trial. However, with respect to the issue of whether defendant's right to remain silent was violated, I respectfully concur in result only. In my view, defendant failed to preserve any of his challenges to the People's use of his silence (*see People v Williams*, 25 NY3d 185, 190 [2015]). Therefore, we cannot consider whether there was error and, if so, whether the error was harmless.

PIGOTT, J. (dissenting). I dissent for reasons stated in the dissenting opinion of Justice Garry at the Appellate Division.

Chief Judge LIPPMAN and Judge FAHEY concur; Judge STEIN concurs in result in an opinion in which Judge ABDUS-SALAAM concurs; Judge PIGOTT dissents in an opinion.

Order affirmed.

[47 NE3d 458, 27 NYS3d 92]

SELECTIVE INSURANCE COMPANY OF AMERICA et al., Respondents-Appellants, v COUNTY OF RENSSELAER, Appellant-Respondent.

Argued January 4, 2016; decided February 11, 2016

SUMMARY

CROSS APPEALS, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered January 23, 2014. The Appellate Division affirmed an order of the Supreme Court, Rensselaer County (Patrick J. McGrath, J.; op 51 Misc 3d 255 [2011]), which had (1) granted plaintiffs' cross motion for partial summary judgment to the extent that the court determined that defendant owed a separate deductible for each underlying plaintiff class member; (2) granted summary judgment to defendant to the extent that the court determined that counsel fees should be allocated to the named underlying plaintiff class member; and (3) dismissed plaintiffs' complaint to the extent it sought an amount inconsistent with the court's determinations.

Selective Ins. Co. of Am. v County of Rensselaer, 113 AD3d 974, affirmed.

HEADNOTES

Insurance — Liability Insurance — Construction of Policy — Meaning of “Occurrence” in Determining Deductible Owed

1. In an action commenced by plaintiff insurer against defendant county insured after plaintiff defended and settled on defendant's behalf an underlying civil rights class action challenging defendant's policy to strip-search all arrestees admitted into its jail regardless of the type of crime committed, defendant owed a separate deductible to plaintiff for each of the underlying plaintiff arrestee class members as the plain language of the parties' insurance policies—providing coverage for personal injury arising out of defendant's law enforcement activities—indicated that each allegedly improper strip search constituted a separate and distinct “occurrence” subject to a single deductible payment. The policies' definition of “occurrence”—“an event, including continuous or repeated exposure to substantially the same general harmful conditions, which results in . . . ‘personal injury’ . . . by any person or organization and arising out of the insured's law enforcement duties”—was not ambiguous. The policies' language made clear that they covered personal injuries to an individual person as a result of a harmful condition. The definition did not permit the grouping of multiple individuals who were harmed by the same condition, unless that group was an organization, which was not the case here where the harm each underlying plaintiff arrestee

class member experienced was as an individual. Though the policies' definition of "occurrence" specifically described four large-scale events that might constitute a single occurrence, none of the listed circumstances encompassed a civil class action suit based upon a common policy.

Insurance — Duty to Defend and Indemnify — Bad Faith

2. In an action commenced by plaintiff insurer against defendant county insured after plaintiff defended and settled on defendant's behalf an underlying civil rights class action challenging defendant's policy to strip-search all arrestees admitted into its jail regardless of the type of crime committed, defendant failed to meet the high burden of demonstrating that plaintiff acted in bad faith by not challenging the underlying class certification and reaching a settlement that made defendant liable—through individual deductible payments—for all the damages recovered by the underlying plaintiff arrestee class members. Under the terms of the parties' insurance policies—providing coverage for personal injury arising out of defendant's law enforcement activities—plaintiff had discretion to investigate and settle any claim or suit commenced against defendant, and there was no indication from the record that plaintiff's conduct constituted a gross disregard of defendant's interests. Plaintiff hired competent attorneys to defend defendant in the underlying action and played an active role in the settlement negotiation.

Insurance — Liability Insurance — Construction of Policy — Allocation of Counsel Fees

3. In an action commenced by plaintiff insurer against defendant county insured after plaintiff defended and settled on defendant's behalf an underlying civil rights class action challenging defendant's policy to strip-search all arrestees admitted into its jail regardless of the type of crime committed, counsel fees arising from the underlying action were properly charged only to the named underlying plaintiff arrestee class member. It was undisputed that the parties' insurance policies—providing coverage for personal injury arising out of defendant's law enforcement activities—were silent as to how counsel fees would be allocated in class actions. The policies were therefore ambiguous as to whether such fees should be allocated ratably among the deductibles owed for each underlying plaintiff arrestee class member because each allegedly improper strip search constituted a separate and distinct "occurrence" or whether the fees should be attributed only to the named underlying plaintiff arrestee class member because there was one defense team for all class members. Because both interpretations were reasonable, the courts below correctly interpreted the policies' language in favor of defendant—the insured.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Insurance §§ 679, 1396, 1397, 1534, 1536.

COUCH ON INSURANCE (3d ed) §§ 126:29, 172:62–172:65, 206:5.

NY JUR 2d, Insurance §§ 1625, 2067–2071, 2215, 2221, 2579.

ANNOTATION REFERENCE

Liability insurance: what is "claim" under deductibility-per-claim clause. 60 ALR4th 983.

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POINTS OF COUNSEL

Burke, Scolamiero, Mortati & Hurd, LLP, Albany (Melissa J. Smallacombe and Mark G. Mitchell of counsel), for appellant-respondent. I. Selective Insurance Company of America is entitled to only one deductible, in the amount of \$10,000. (*United States Fid. & Guar. Co. v Annunziata*, 67 NY2d 229; *Cragg v Allstate Indem. Corp.*, 17 NY3d 118; *Beal Sav. Bank v Sommer*, 8 NY3d 318; *Roman Catholic Diocese of Brooklyn v National Union Fire Ins. Co. of Pittsburgh, Pa.*, 21 NY3d 139; *Consolidated Edison Co. of N.Y. v Allstate Ins. Co.*, 98 NY2d 208; *Aguirre v City of New York*, 214 AD2d 692; *Appalachian Ins. Co. v General Elec. Co.*, 8 NY3d 162; *Arthur A. Johnson Corp. v Indemnity Ins. Co. of N. Am.*, 7 NY2d 222; *Hiraldo v Allstate Ins. Co.*, 5 NY3d 508; *Kronos, Inc. v AVX Corp.*, 81 NY2d 90.) II. Even assuming arguendo that each claimant's injury requires a separate deductible, the courts below properly determined that all counsel fees should be allocated to the named claimant, Nathaniel Bruce. (*Ace Wire & Cable Co. v Aetna Cas. & Sur. Co.*, 60 NY2d 390; *Reiss v Financial Performance Corp.*, 97 NY2d 195; *Consolidated Edison Co. of N.Y. v Allstate Ins. Co.*, 98 NY2d 208; *Roman Catholic Diocese of Brooklyn v National Union Fire Ins. Co. of Pittsburgh, Pa.*, 21 NY3d 139; *Matter of Mostow v State Farm Ins. Cos.*, 88 NY2d 321; *Boggs v Commercial Mut. Ins. Co.*, 220 AD2d 973.) III. The insurer, Selective Insurance Company of America, exhibited bad faith in its defense and settlement of the underlying litigation. (*Pavia v State Farm Mut. Auto. Ins. Co.*, 82 NY2d 445; *Liberty Mut. Ins. Co. v Thalle Const. Co., Inc.*, 116 F Supp 2d 495; *Vermont Commr. of Banking & Ins. v Welbilt Corp.*, 133 AD2d 396; *Commerce & Indus. Ins. Co. v North Shore Towers Mgt.*, 162 Misc 2d 778; *Vega v Restani Constr. Corp.*, 18 NY3d 499; *Marisol A. v Giuliani*, 126 F3d 372; *Korwek v Hunt*, 827 F2d 874; *American Pipe & Constr. Co. v Utah*, 414 US 538; *Griffin v Singletary*, 17 F3d 356; *Andrews v Orr*, 851 F2d 146.) IV. Selective Insurance Company of America must reimburse the County of Rensselaer for its attorneys' fees incurred in defending against the present action brought by Selective. (*U.S.*

Underwriters Ins. Co. v City Club Hotel, LLC, 3 NY3d 592; *National Grange Mut. Ins. Co. v T.C. Concrete Constr., Inc.*, 43 AD3d 1321; *United States Fid. & Guar. Co. v New York, Susquehanna & W. Ry. Corp.*, 277 AD2d 1026.)

Galbo & Associates, Buffalo (Richard A. Galbo and Leo C. Kellett of counsel), for respondents-appellants. I. A separate deductible applies to each class action claimant. (*Capitol Indem. Corp. v Miles*, 978 F2d 437; *Vargas v Hudson County Bd. of Elections*, 949 F2d 665; *Western Heritage Ins. Co. v Love*, 24 F Supp 3d 866; *Roman Catholic Diocese of Brooklyn v National Union Fire Ins. Co. of Pittsburgh, Pa.*, 21 NY3d 139; *Federal Ins. Co. v International Bus. Machs. Corp.*, 18 NY3d 642; *Bethpage Water Dist. v Zara & Sons Contr. Co.*, 154 AD2d 637; *Arthur A. Johnson Corp. v Indemnity Ins. Co. of N. Am.*, 7 NY2d 222; *Hartford Acc. & Indem. Co. v Wesolowski*, 33 NY2d 169; *Appalachian Ins. Co. v General Elec. Co.*, 8 NY3d 162; *In re Prudential Lines Inc.*, 158 F3d 65.) II. Defense costs and the class action claimants' litigation costs should be allocated pro rata among the deductibles applicable to all of the class action claimants. (*Consolidated Edison Co. of N.Y. v Allstate Ins. Co.*, 98 NY2d 208; *Roman Catholic Diocese of Brooklyn v National Union Fire Ins. Co. of Pittsburgh, Pa.*, 21 NY3d 139; *Hooper Assoc. v AGS Computers*, 74 NY2d 487; *Federal Ins. Co. v International Bus. Machs. Corp.*, 18 NY3d 642; *State of New York v Home Indem. Co.*, 66 NY2d 669.) III. Selective Insurance Company of America did not act in bad faith when settling the underlying action. (*Pavia v State Farm Mut. Auto. Ins. Co.*, 82 NY2d 445; *Appalachian Ins. Co. v General Elec. Co.*, 8 NY3d 162; *Uniroyal, Inc. v Home Ins. Co.*, 707 F Supp 1368; *American Pipe & Constr. Co. v Utah*, 414 US 538; *Korwek v Hunt*, 827 F2d 874; *Griffin v Singletary*, 17 F3d 356; *Andrews v Orr*, 851 F2d 146; *Robbin v Fluor Corp.*, 835 F2d 213; *Salazar-Calderon v Presidio Val. Farmers Assn.*, 765 F2d 1334; *Crown, Cork & Seal Co. v Parker*, 462 US 345.) IV. The County of Rensselaer is not entitled to recover its attorneys' fees. (*Mighty Midgets v Centennial Ins. Co.*, 47 NY2d 12; *U.S. Underwriters Ins. Co. v City Club Hotel, LLC*, 3 NY3d 592.)

OPINION OF THE COURT

ABDUS-SALAAM, J.

We conclude that the underlying class action civil rights suit at issue does not constitute one occurrence under the relevant policies' definition of "occurrence" and that the attorney's fees

generated in defending that suit were properly allocated to the named plaintiff. Therefore, we affirm the order of the Appellate Division.

I.

The County of Rensselaer implemented a policy of strip-searching all people who were admitted into its jail, regardless of the type of crime the person was alleged to have committed. At that time, the Second Circuit's precedent suggested that such a policy was unconstitutional (*see Weber v Dell*, 804 F2d 796 [1986] [holding that strip-searching an arrestee is unconstitutional when he or she is alleged to have committed a misdemeanor and jail authorities have no reasonable suspicion that the arrestee is concealing weapons or other contraband]). Believing the County's strip-search policy to be unconstitutional, Nathaniel Bruce and other named arrestees commenced a proposed class action suit in 2002 against the County in federal court. Seeking to defend itself against the suit, the County invoked plaintiff Selective Insurance Company's duty to provide a defense under the policies that the company sold to the County.

In 1999, the County obtained year-long liability insurance coverage from Selective for, among other things, personal injury arising out of the conduct of its law enforcement activities. As relevant here, the County renewed the policy in 2000, 2001, and 2002. Each policy defines personal injury as including "injury . . . arising out of one or more of the following offenses: . . . [h]umiliation or mental anguish [or] . . . [v]iolation of civil rights protected under 42 USC [§] 1981." Where the County is sued based on a covered personal injury, each policy provides that Selective's "obligation . . . to pay damages on behalf of the insured applies only to the amount of damages in excess of any deductible amount stated in the [d]eclarations." The deductible was \$10,000 per claim under the 1999, 2000, and 2001 policies and \$15,000 under the 2002 policy. The deductible applied to all covered damages "sustained by one person or organization as the result of any one 'occurrence.'" Additionally, the County's deductible amount applied to each "occurrence" and "include[d] loss payments and adjustment, investigative and legal fees and costs, whether or not loss payment [wa]s involved." An "occurrence" was defined as follows:

" 'Occurrence' means an event, including continuous or repeated exposure to substantially the same

general harmful conditions, which results in . . . 'personal injury' . . . by any person or organization and arising out of the insured's law enforcement duties.

"All claims arising out of (a) a riot or insurrection, (b) a civil disturbance resulting in an official proclamation of a state of emergency, (c) a temporary curfew, or (d) martial law are agreed to constitute one 'occurrence'."

Selective agreed to defend the County in the action, subject to the insurance policy limits and the deductible, for personal injury damages that resulted from the suit. Selective retained counsel to represent the County, who purportedly were experts in class action suits. Ultimately, during negotiations, the County and Selective's counsel agreed to settle the case instead of challenging class certification, as Selective's counsel informed the County that there were no viable defenses. Selective's counsel began settlement negotiations with the *Bruce* plaintiffs. The plaintiffs, however, missed several filing deadlines, and eventually their case was dismissed on those procedural grounds. The *Bruce* plaintiffs appealed and their counsel filed a second, similar class action soon thereafter, the *Kahler* action.

Selective's counsel and the County agreed to settle both actions for \$1,000 per plaintiff, later determined to be slightly over 800 individuals in total, with additional attorney's fees also being recoverable. Thereafter, the *Bruce* and *Kahler* actions were consolidated and the federal district court, in accordance with the terms of the negotiated settlement, certified the class, approved a \$5,000 payment to the named plaintiff, Nathaniel Bruce, and a \$1,000 payment to all other class members. The settlement also set the members' attorney's fees at \$442,701.74. Selective abided by the terms of the settlement. The County then refused to pay Selective anything more than a single deductible payment.

In turn, Selective commenced this action for money damages, arguing that each class member was subject to a separate deductible. The County moved to dismiss the action, arguing that the \$10,000 deductible it paid was the only amount due and that even if the court determined that a new deductible applied to each class member, the legal fees generated in that

action should be allocated to only one policy. Selective cross-moved for partial summary judgment on its claims, seeking a declaratory judgment that the County owes it a separate deductible for each class member, and that both the class members' and Selective's attorney's fees should be calculated by allocating the settled amount of fees ratably to each occurrence. The County opposed Selective's cross motion, raising its prior arguments and also asserted that Selective exercised bad faith by settling the underlying action without challenging class certification and then contending that because the harm to each class member is a separate occurrence, the County is responsible for a deductible payment for each class member.

Supreme Court determined that a separate deductible payment applied to each class member and that all legal fees should be allocated to one policy (51 Misc 3d 255 [2011]). The Appellate Division affirmed (*see* 113 AD3d 974 [3d Dept 2014]). This Court granted leave to appeal to both parties.

II.

"In determining a dispute over insurance coverage, we first look to the language of the policy" (*Consolidated Edison Co. of N.Y. v Allstate Ins. Co.*, 98 NY2d 208, 221 [2002], citing *Breed v Insurance Co. of N. Am.*, 46 NY2d 351, 354 [1978]). "[U]nambiguous provisions of an insurance contract must be given their plain and ordinary meaning" (*White v Continental Cas. Co.*, 9 NY3d 264, 267 [2007]). "A contract is unambiguous if the language it uses has 'a definite and precise meaning, unattended by danger of misconception in the purport of the [agreement] itself, and concerning which there is no reasonable basis for a difference of opinion'" (*Greenfield v Philles Records*, 98 NY2d 562, 569 [2002]). Therefore, if a contract "on its face is reasonably susceptible of only one meaning, a court is not free to alter the contract to reflect its personal notions of fairness and equity" (*Greenfield*, 98 NY2d at 569-570 [citations omitted]).

Insurance policies must be "construe[d] . . . in a way that 'affords a fair meaning to all of the language employed by the parties in the contract and leaves no provision without force and effect'" (*Consolidated Edison*, 98 NY2d at 221-222, quoting *Hooper Assoc. v AGS Computers*, 74 NY2d 487, 493 [1989]). Consistent with that view, "[a] reviewing court must [then] decide whether . . . there is a reasonable basis for a difference

of opinion as to the meaning of the policy. If this is the case, the language at issue would be deemed to be ambiguous and thus interpreted in favor of the insured” (*Federal Ins. Co. v International Bus. Machs. Corp.*, 18 NY3d 642, 646 [2012] [citations and internal quotation marks omitted]; see *White*, 9 NY3d at 267; *Breed v Insurance Co. of N. Am.*, 46 NY2d 351, 353 [1978]).

[1] The plain language of the insurance policies indicates that the improper strip searches of the arrestees over a four-year period constitute separate occurrences under the policies at issue. Contrary to the County’s argument, the definition of “occurrence” in the policies is not ambiguous. The policies define “occurrence” as “an event, including continuous or repeated exposure to substantially the same general harmful conditions, which results in . . . ‘personal injury’ . . . by any person or organization and arising out of the insured’s law enforcement duties” (emphasis added). Thus, the language of the insurance policies makes clear that they cover personal injuries to an individual person as a result of a harmful condition. The definition does not permit the grouping of multiple individuals who were harmed by the same condition, unless that group is an organization, which is clearly not the case here. The harm each experienced was as an individual, and each of the strip searches constitutes a single occurrence.*

Moreover, the policies’ definition of “occurrence” specifically describes four large-scale events that may constitute a single occurrence: (1) a riot or insurrection, (2) a civil disturbance resulting in an official proclamation of a state of emergency, (3) a temporary curfew, or (4) martial law. None of these listed circumstances encompasses a civil class action suit based upon a common policy. Thus, under the plain language of the insurance policies, each strip search of the class members is a separate and distinct occurrence subject to a single deductible payment.

The County also asserts that Selective exhibited bad faith by not challenging the class certification in the underlying action and reaching a settlement that made the County liable for all the damages recovered by the class members. This Court has

* While this Court has rejected the one-accident/occurrence-per-person approach in the absence of policy language dictating such an approach (see *Apalachian Ins. Co. v General Elec. Co.*, 8 NY3d 162, 173 [2007]), we have also noted that the parties to an insurance contract remain free to define “occurrence” based on that approach if they so wish (see *id.* at 173).

stated that “an insurer may be held liable for the breach of its duty of ‘good faith’ in defending and settling claims over which it exercises exclusive control on behalf of its insured” (*Pavia v State Farm Mut. Auto. Ins. Co.*, 82 NY2d 445, 452 [1993]).

“[T]o establish a prima facie case of bad faith, the [insured] must establish that the insurer’s conduct constituted a ‘gross disregard’ of the insured’s interests—that is, a deliberate or reckless failure to place on equal footing the interests of its insured with its own interests when considering a settlement offer” (*id.* at 453).

[2] Under the terms of the policies, Selective had discretion to investigate and settle any claim or suit commenced against the County. The County, however, has failed to meet the high burden of demonstrating that Selective acted in bad faith in negotiating the underlying settlement here. There is no indication from the record that Selective’s conduct constituted a gross disregard of the County’s interests. Selective hired competent attorneys to defend the County in the underlying action and played an active role in the negotiation. Thus, the County’s bad faith argument lacks merit.

[3] With respect to attorney’s fees, Selective argues that the courts below erred in allocating the attorney’s fees to the named plaintiff only, rather than allocating the fees ratably amongst the class, while the County contends that the lower courts’ rulings were correct. We agree with the County.

Based on the policies’ definition of occurrence, the injuries sustained by the class members do not constitute one occurrence but multiple occurrences. Selective thus asserts that as a result of these multiple occurrences the attorney’s fees should be allocated ratably among the deductibles. Equally reasonable is the County’s assertion that given that there was one defense team for all class members, the fee should be attributed only to the named plaintiff, Bruce. It is undisputed that the policies are silent as to how attorney’s fees would be allocated in class actions and therefore ambiguous on this point. Where the language of the policy at issue is ambiguous, and both parties’ interpretation of the language is reasonable, the policy language should be interpreted in favor of the insured (*see Federal Ins. Co.*, 18 NY3d at 646; *see also Breed*, 46 NY2d at 353). Here the policies’ silence on how to allocate attorney’s fees in a class action creates ambiguity as both Selective’s and

the County's contentions are reasonable. Consequently, the courts below correctly interpreted the policies in favor of the insured—the County—and the attorney's fees were properly charged to the named plaintiff, Bruce.

III.

We have considered the parties' remaining arguments and conclude that they raise no issue warranting modification of the Appellate Division order. Accordingly, the order of that Court should be affirmed, without costs.

Judges PIGOTT, RIVERA, STEIN and FAHEY concur; Chief Judge DiFIORE and Judge GARCIA taking no part.

Order affirmed, without costs.

[47 NE3d 463, 27 NYS3d 97]

In the Matter of MONARCH CONSULTING, INC., et al., Respondents, v NATIONAL UNION FIRE INSURANCE COMPANY OF PITTSBURGH, PA, Appellant.

In the Matter of NATIONAL UNION FIRE INSURANCE COMPANY OF PITTSBURGH, PA, Appellant, v PRIORITY BUSINESS SERVICES, INC., Formerly Known as INLAND VALLEY STAFFING SERVICES and Another, Doing Business as PRIORITY STAFFING, Respondent.

In the Matter of NATIONAL UNION FIRE INSURANCE COMPANY OF PITTSBURGH, PA, Appellant, v SOURCE ONE STAFFING, LLC, Respondent.

Argued January 7, 2016; decided February 18, 2016

SUMMARY

APPEAL, in the first above-entitled proceeding, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered September 11, 2014. The Appellate Division, with two Justices dissenting, (1) reversed, on the law, an order and judgment (denominated order) of the Supreme Court, New York County (Jeffrey K. Oing, J.), entered in a proceeding pursuant to CPLR article 75, which had (a) denied the petition to stay arbitration, and (b) granted the cross petition by respondent to compel arbitration; (2) granted the petition; and (3) denied the cross petition.

APPEAL, in the second above-entitled proceeding, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered September 11, 2014. The Appellate Division, with two Justices dissenting, (1) reversed, on the law, an order and judgment (one paper) of the Supreme Court, New York County (Shirley Werner Kornreich, J.; op 2012 NY Slip Op 33827[U] [2012]), entered in a proceeding pursuant to CPLR article 75, which had, insofar as appealed from as limited by the briefs, granted the petition to compel arbitration; and (2) denied the petition.

APPEAL, in the third above-entitled proceeding, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered September 11, 2014. The Appellate Division, with two Justices dissenting, (1) affirmed an order of the Supreme Court, New York County (Eileen Branstetter, J.; op 36 Misc 3d 1224[A], 2012 NY Slip Op 51462[U]

[2012]), entered July 30, 2012 in a proceeding pursuant to CPLR article 75, which had, insofar as appealed from as limited by the briefs, denied the amended petition to compel arbitration; and (2) dismissed as academic the appeal from an order of that Supreme Court, entered August 1, 2011, which had denied the original petition to compel arbitration with leave to replead.

Matter of Monarch Consulting, Inc. v National Union Fire Ins. Co. of Pittsburgh, PA, 123 AD3d 51, reversed.

Matter of National Union Fire Ins. Co. of Pittsburgh, PA v Priority Bus. Servs., Inc., 123 AD3d 51, reversed.

Matter of National Union Fire Ins. Co. of Pittsburgh, PA v Source One Staffing, LLC, 123 AD3d 51, reversed.

HEADNOTES

Insurance — Regulation of Insurers — McCarran-Ferguson Act — Application of Federal Arbitration Act to Workers' Compensation Insurance Payment Agreements Not Reverse Preempted

1. The McCarran-Ferguson Act (15 USC § 1011 *et seq.*), which limits congressional preemption of state laws in the regulation of the business of insurance, did not reverse preempt the Federal Arbitration Act (FAA) (9 USC § 1 *et seq.*) with respect to workers' compensation insurance Payment Agreements, which were entered into between appellant insurer and three California-based employers and contained clauses requiring that disputes arising thereunder be submitted to arbitration, in light of a California statute requiring workers' compensation insurers to file copies of their policies, endorsements and forms with the California regulating authorities. The McCarran-Ferguson Act applies if the federal statute in question does not specifically relate to insurance, the state law at issue was enacted to regulate the business of insurance, and the federal statute at issue would invalidate, impair, or supersede the state law (*see* 15 USC § 1012 [b]). Here, as the first two tests of the prong were satisfied, the application of the McCarran-Ferguson Act turned on whether application of the FAA would "invalidate, impair, or supersede" the California statute. Although the term "impair" broadens the reach of the McCarran-Ferguson Act beyond federal statutes that directly conflict with a state law regulating insurance, when application of the federal law would not frustrate any declared state policy or interfere with a State's administrative regime, the McCarran-Ferguson Act does not preclude its application. At the time the Payment Agreements were executed, California law did not prohibit, limit, or regulate the use or form of arbitration clauses in workers' compensation insurance contracts. The purpose of California's filing rule was to ensure that the insurance documents complied with the California Insurance Code and accompanying regulations, none of which pertained to the use or form of arbitration provisions. Nor would application of the FAA interfere with the State's administrative regime. The arbitrators could competently determine whether the Payment Agreements and their arbitration provisions are enforceable under California law despite the fact that they were not filed with the state. Moreover, the California regulating authorities could pursue an enforcement action against the insurer based on its failure to comply with the filing statute.

Arbitration — Matters Arbitrable — Enforceability of Workers' Compensation Insurance Payment Agreements and Arbitration Clauses Contained Therein

2. The enforceability of workers' compensation insurance Payment Agreements entered into between appellant insurer and three California-based employers, and the arbitration clauses contained therein, were required to be submitted to arbitration. Attacks on the validity of a contract as a whole, as distinct from attacks on the validity of the arbitration clause itself, are to be resolved by the arbitrator in the first instance, not by a federal or state court. Where the parties, through delegation clauses, agree to arbitrate gateway questions of arbitrability, such clauses are enforceable where there is clear and unmistakable evidence that the parties intended to arbitrate arbitrability issues. Courts treat an arbitration clause as severable from the contract in which it appears and enforce it according to its terms unless the party resisting arbitration specifically challenges the enforceability of the arbitration clause itself. This rule of severability extends to delegation clauses, which are severable from larger arbitration provisions. Thus, where a contract contains a valid delegation to the arbitrator of the power to determine arbitrability, such clause will be enforced absent a specific challenge to the delegation clause. Here, the Payment Agreements contained arbitration clauses requiring that disputes arising out of the Agreements, if not resolved internally, be submitted to arbitration before a panel of arbitrators with experience in the insurance industry. The parties agreed that the arbitrators would "have exclusive jurisdiction over the entire matter in dispute, including any question as to its arbitrability." The crux of the insureds' challenge to the arbitration provisions was that the insurer's failure to file the Payment Agreements in accordance with the California Insurance Code rendered unenforceable the Payment Agreements and, only by extension, the arbitration provisions. The insureds did not specifically direct any challenge to the delegation clauses, which were valid as the parties clearly and unmistakably agreed to arbitrate arbitrability.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Alternative Dispute Resolution §§ 17, 36, 61, 91, 100; AM JUR 2d, Insurance § 26.
CARMODY-WAIT 2d, Arbitration §§ 141:2, 141:100, 141:124, 141:126.
NY JUR 2d, Arbitration and Award §§ 69, 89.
9 USCA § 1 *et seq.*; 15 USCA § 1011 *et seq.*

ANNOTATION REFERENCE

See ALR Index under Arbitration; Insurance; McCarran-Ferguson Act.

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POINTS OF COUNSEL

Sidley Austin LLP, Washington, D.C. (*Peter D. Keisler*, of the District of Columbia bar, admitted pro hac vice, and *Paul J. Zidlicky*, of the District of Columbia bar, admitted pro hac vice, of counsel), and *Sidley Austin LLP*, New York City (*Andrew W. Stern*, *Nicholas P. Crowell*, *Eamon P. Joyce* and *Benjamin F. Burry* of counsel), for appellant in the first, second and third above-entitled proceedings. I. Respondents' basis for challenging arbitration affects the formation of the entire contract, and therefore must be decided by the arbitrators. (*United States Fire Ins. Co. v National Gypsum Co.*, 101 F3d 813; *Matter of Diamond Waterproofing Sys., Inc. v 55 Liberty Owners Corp.*, 4 NY3d 247; *Preston v Ferrer*, 552 US 346; *Buckeye Check Cashing, Inc. v Cardegna*, 546 US 440; *Rent-A-Center, West, Inc. v Jackson*, 561 US 63; *AT&T Technologies, Inc. v Communications Workers*, 475 US 643; *First Options of Chicago, Inc. v Kaplan*, 514 US 938.) II. The McCarran-Ferguson Act does not "reverse-preempt" the Federal Arbitration Act in this case. (*Humana Inc. v Forsyth*, 525 US 299; *Ojo v Farmers Group, Inc.*, 565 F3d 1175; *Hamilton Life Ins. Co. of N.Y. v Republic Natl. Life Ins. Co.*, 408 F2d 606; *In re Arbitration Between National Union Fire Ins. Co. of Pittsburgh, P.A. v Personnel Plus, Inc.*, 954 F Supp 2d 239; *Preston v Ferrer*, 552 US 346; *Mitsubishi Motors Corp. v Soler Chrysler-Plymouth, Inc.*, 473 US 614; *St. Paul Fire & Mar. Ins. Co. v Courtney Enters., Inc.*, 270 F3d 621; *Kong v Allied Professional Ins. Co.*, 750 F3d 1295; *Miller v National Fid. Life Ins. Co.*, 588 F2d 185.) III. There are substantial grounds for the arbitrators to conclude that section 11658 of the California Insurance Code does not invalidate the agreements to arbitrate. (*AT&T Technologies, Inc. v Communications Workers*, 475 US 643; *Mitsubishi Motors Corp. v Soler Chrysler-Plymouth, Inc.*, 473 US 614; *Commonwealth Coatings Corp. v Continental Casualty Co.*, 393 US 145.)

Anderson Kill, P.C., New York City (*Jeffrey E. Glen*, *Edward J. Stein* and *Rene F. Hertzog* of counsel), *Roxborough, Pomerance, Nye & Adreani, LLP*, Woodland Hills, California (*Nicholas Roxborough*, of the California bar, admitted pro hac vice, of counsel), *Pillsbury Winthrop Shaw Pittman LLP*, New York City (*Alexander D. Hardiman* of counsel), and *Bond, Schoeneck & King PLLC*, Syracuse (*Clifford G. Tsan* and *Suzanne M. Messer* of counsel), for respondents in the first, second and third above-entitled proceedings. I. California insurance law

and regulation requires filing and pre-approval of arbitration provisions in workers' compensation insurance agreements. (*Cap Gemini Ernst & Young, U.S., L.L.C. v Nackel*, 346 F3d 360; *Beatie & Osborn LLP v Patriot Scientific Corp.*, 431 F Supp 2d 367; *Matter of Allstate Ins. Co. [Stolarz—New Jersey Mfrs. Ins. Co.]*, 81 NY2d 219; *Matter of New York City Council v City of New York*, 4 AD3d 85; *Humana Inc. v Forsyth*, 525 US 299; *In re Arbitration Between National Union Fire Ins. Co. of Pittsburgh, P.A. v Personnel Plus, Inc.*, 954 F Supp 2d 239; *Hubbard v SoBreck, LLC*, 554 F3d 742; *St. Paul Fire & Mar. Ins. Co. v Courtney Enters., Inc.*, 270 F3d 621.) II. The McCarran-Ferguson Act preserves California's regulatory scheme from Federal Arbitration Act preemption including California regulations that render unenforceable arbitration requirements contained in unfiled and unapproved insurance agreements. (*SEC v National Securities, Inc.*, 393 US 453; *Humana Inc. v Forsyth*, 525 US 299; *Stolt-Nielsen S. A. v Animal-Feeds Int'l Corp.*, 559 US 662; *Preston v Ferrer*, 552 US 346; *Buckeye Check Cashing, Inc. v Cardegna*, 546 US 440; *Prima Paint Corp. v Flood & Conklin Mfg. Co.*, 388 US 395; *Matter of Diamond Waterproofing Sys., Inc. v 55 Liberty Owners Corp.*, 4 NY3d 247; *United States v South-Eastern Underwriters Assn.*, 322 US 533; *Department of Treasury v Fabe*, 508 US 491; *Stephens v American Intl. Ins. Co.*, 66 F3d 41.) III. Even were the Federal Arbitration Act applicable here, the determination of whether the arbitration provisions of the Payment Agreements are enforceable would be for the court, and not the arbitrators, to decide. (*First Options of Chicago, Inc. v Kaplan*, 514 US 938; *Matter of Smith Barney Shearson v Sacharow*, 91 NY2d 39; *AT&T Technologies, Inc. v Communications Workers*, 475 US 643; *Howsam v Dean Witter Reynolds, Inc.*, 537 US 79; *Prima Paint Corp. v Flood & Conklin Mfg. Co.*, 388 US 395; *Buckeye Check Cashing, Inc. v Cardegna*, 546 US 440.) IV. Alternatively, California's strong public policy establishing the California Department of Insurance as the gateway agency for any use of arbitration in workers' compensation policies is preserved under the savings clause of section 2 of the Federal Arbitration Act.

Amy R. Bach, of the California bar, admitted pro hac vice, and Whiteman Osterman & Hanna LLP, Albany (Jean F. Gerbini of counsel), for United Policyholders, amicus curiae. The insurers' Payment Agreements are illegal under California insurance law and void as a matter of public policy. (*Matter of New York Pub. Interest Research Group v New York State Dept.*

of *Ins.*, 66 NY2d 444; *California Automobile Assn. Inter-Insurance Bureau v Maloney*, 341 US 105; *Prudential Ins. Co. v Benjamin*, 328 US 408; *Osborn v Ozlin*, 310 US 53; *O’Gorman & Young, Inc. v Hartford Fire Ins. Co.*, 282 US 251.)

Kamala D. Harris, Attorney General, Los Angeles, California (*Stephen Lew, Edward C. DuMont, Kathleen A. Kenealy, Paul D. Gifford and Joshua A. Klein* of counsel), for Dave Jones, amicus curiae. I. Because the Payment Agreements modified the parties’ policy obligations, National Union Fire Insurance Company of Pittsburgh, PA could not issue the Agreements in California without satisfying the prefiling requirements of California law. (*Matter of New York City Council v City of New York*, 4 AD3d 85; *Employers Ins. of Wausau v Granite State Ins. Co.*, 330 F3d 1214; *Washington v California City Corr. Ctr.*, 871 F Supp 2d 1010.) II. The McCarran-Ferguson Act requires general arbitration principles to give way in favor of the state’s special, congressionally recognized power to regulate insurance. (*Autry v Northwest Premium Servs., Inc.*, 144 F3d 1037; *SEC v National Securities, Inc.*, 393 US 453; *Merchants Home Delivery Serv., Inc. v Frank B. Hall & Co., Inc.*, 50 F3d 1486; *Stephens v American Intl. Ins. Co.*, 66 F3d 41; *Washburn v Corcoran*, 643 F Supp 554; *Group Life & Health Ins. Co. v Royal Drug Co.*, 440 US 205; *Humana Inc. v Forsyth*, 525 US 299; *Mutual Reins. Bur. v Great Plains Mut. Ins. Co., Inc.*, 969 F2d 931; *In re Arbitration Between National Union Fire Ins. Co. of Pittsburgh, P.A. v Personnel Plus, Inc.*, 954 F Supp 2d 239; *St. Paul Fire & Mar. Ins. Co. v Courtney Enters., Inc.*, 270 F3d 621.)

OPINION OF THE COURT

STEIN, J.

In order to resolve whether the parties’ disputes pertaining to certain workers’ compensation insurance Payment Agreements should be submitted to arbitration, we must make a threshold determination of whether the McCarran-Ferguson Act (15 USC § 1011 *et seq.*) precludes application of the Federal Arbitration Act (9 USC § 1 *et seq.* [FAA]) in relation to California Insurance Code § 11658. We conclude that, because application of the FAA does not “invalidate, impair, or supersede” (15 USC § 1012 [b]) section 11658, the McCarran-Ferguson Act is not implicated, and the FAA applies to the parties’ Payment Agreements. Further, under FAA rules of severability, the question of the enforceability of the Payment

Agreements and the arbitration clauses contained therein should be submitted to arbitration. We, therefore, reverse the Appellate Division order.

I.

Three statutes are at the crux of this dispute—the FAA, the McCarran-Ferguson Act, and California Insurance Code § 11658.

The Federal Arbitration Act

The FAA was enacted by Congress “in response to widespread judicial hostility to arbitration” (*American Express Co. v Italian Colors Restaurant*, 570 US —, —, 133 S Ct 2304, 2308-2309 [2013]), and it aims to “ensure judicial enforcement of privately made agreements to arbitrate” (*Dean Witter Reynolds Inc. v Byrd*, 470 US 213, 219 [1985]). Under the FAA, an arbitration provision contained in any contract involved in interstate commerce “shall be valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract” (9 USC § 2). “This text reflects the overarching principle that arbitration is a matter of contract” and, “consistent with that text, courts must ‘rigorously enforce’ arbitration agreements according to their terms” (*American Express Co.*, 570 US at —, 133 S Ct at 2309, quoting *Dean Witter Reynolds Inc.*, 470 US at 221; see *Rent-A-Center, West, Inc. v Jackson*, 561 US 63, 67 [2010]). Typically, “the FAA pre[e]mpts state laws [that] ‘require a judicial forum for the resolution of claims which the contracting parties agreed to resolve by arbitration’ ” (*Volt Information Sciences, Inc. v Board of Trustees of Leland Stanford Junior Univ.*, 489 US 468, 478-479 [1989], quoting *Southland Corp. v Keating*, 465 US 1, 10 [1984]; see *Preston v Ferrer*, 552 US 346, 349-350 [2008]; *Allied-Bruce Terminix Cos. v Dobson*, 513 US 265, 272 [1995]).

The McCarran-Ferguson Act

In certain circumstances, however, the McCarran-Ferguson Act exempts state laws from FAA preemption (see 15 USC § 1012 [b]; see generally *CompuCredit Corp. v Greenwood*, 565 US —, —, 132 S Ct 665, 669 [2012]). In 1944, the United States Supreme Court held that the federal government has the power, under the Commerce Clause, to regulate the insurance industry (see *United States v South-Eastern Underwriters Assn.*, 322 US 533, 553 [1944]). Prompted by concern that the

Supreme Court's ruling in *South-Eastern Underwriters* would interfere with state regulation of the business of insurance, Congress enacted the McCarran-Ferguson Act to limit congressional preemption in that arena (see *Humana Inc. v Forsyth*, 525 US 299, 306 [1999]; *Department of Treasury v Fabe*, 508 US 491, 500 [1993]). The McCarran-Ferguson Act declared that "the continued regulation and taxation by the several States of the business of insurance is in the public interest, and . . . silence on the part of the Congress shall not be construed to impose any barrier to the regulation or taxation of such business by the several States" (15 USC § 1011). Thus, under the McCarran-Ferguson Act, "[n]o Act of Congress shall be construed to invalidate, impair, or supersede any law enacted by any State for the purpose of regulating the business of insurance . . . unless such Act specifically relates to the business of insurance" (15 USC § 1012 [b]). Stated otherwise, "when Congress enacts a law specifically relating to the business of insurance, that law controls," but the McCarran-Ferguson Act precludes application of—or, in other words, reverse preempts—a federal law in the face of a state law regulating the business of insurance where "the federal measure does not 'specifically relat[e] to the business of insurance,' and would 'invalidate, impair, or supersede' the State's law" (*Humana Inc.*, 525 US at 306, 307, quoting *Department of Treasury*, 508 US at 501; see 15 USC § 1012 [b]).

California Insurance Code § 11658

California law requires most employers to maintain workers' compensation insurance (see Cal Lab Code § 3700). The insurers that provide workers' compensation coverage to employers are regulated by the California Department of Insurance (the Department), its Commissioner, and the Workers' Compensation Insurance Rating Bureau of California (WCIRB) (see Cal Ins Code §§ 11750.3, 11751, 12921). The WCIRB, among other things, provides statistics and rating information, formulates rules and regulations in connection with insurance rates, and "examine[s] policies, daily reports, endorsements or other evidences of insurance for the purpose of ascertaining whether they comply with the provisions of law and . . . make[s] reasonable rules governing their submission" (Cal Ins Code § 11750.3 [e]; see [a]-[d]).

Of particular relevance here, under California Insurance Code § 11658 (a),

“[a] workers’ compensation insurance policy or endorsement shall not be issued by an insurer to any person in [California] unless the insurer files a copy of the form or endorsement with the rating organization [WCIRB] . . . and 30 days have expired from the date the form or endorsement is received by the commissioner from the rating organization without notice from the commissioner.”

In other words, workers’ compensation insurers must file copies of their policies, endorsements, and forms with the WCIRB prior to issuing the policies; after performing an initial review, the WCIRB sends the policies to the Department for the Commissioner’s review (*see* Cal Ins Code § 11750.3 [e]; Cal Code Regs tit 10, §§ 2218, 2509.30; *see also* Cal Ins Code § 11735). If, within 30 days, the Commissioner rejects a policy, form, or endorsement as failing to comply with the requirements of the Insurance Law, “it is unlawful for the insurer to issue any policy or endorsement in that form” (Cal Ins Code § 11658 [b]). California regulations also provide that “[n]o collateral agreements modifying the obligation of either the insured or the insurer shall be made unless attached to and made a part of the policy” (Cal Code Regs tit 10, § 2268).

Sometime before 2011, the Department became aware that workers’ compensation insurers were entering into agreements with their insureds after the initial policy agreements, and that these subsequent agreements were not being filed with the WCIRB or the Department. As reflected in a February 2011 letter written by a Department staff attorney to the president of the WCIRB, the Department took the position that these agreements were required by law to be filed with the State. The Department also expressed its view that arbitration provisions contained in unfiled agreements may be considered unenforceable absent proof that the insured expressly agreed to arbitration when it initially entered into the policy agreement.

In apparent accordance with that view, in 2011, the California Legislature enacted California Insurance Code § 11658.5 (*see* 2011 Cal Stat, ch 566, § 2 [Senate Bill 684]). That statute provides that arbitration provisions in workers’ compensation policies or endorsements must be disclosed to each potential insured contemporaneously with any quote for insurance coverage, together with a notice that choice of law or venue and

forum-selection clauses in the policies may dictate a jurisdiction other than California, and that such terms are negotiable (*see* Cal Ins Code § 11658.5 [a] [1]). If the insurer fails to comply with the disclosure requirements, the remedy is “a default to California as the choice of law and forum for resolution of disputes arising in California” (Cal Ins Code § 11658.5 [c]). Critically, however, this section applies only to insurance policies “issued or renewed on or after July 1, 2012” (Cal Ins Code § 11658.5 [e]). Prior to the enactment of section 11658.5, and during all times relevant to this appeal, the California Insurance Code and regulations were silent with respect to arbitration provisions in workers’ compensation insurance policies and endorsements.

II.

Turning to the facts of the appeal before us, National Union Fire Insurance Company of Pittsburgh, PA, is an insurance company licensed in Pennsylvania, with its principal place of business in New York. At various times between 2003 and 2010, National Union issued workers’ compensation policies to three different California-based employers—Monarch Consulting, Inc.,¹ Priority Business Services, Inc., and Source One Staffing, LLC. After the execution of the policies—which were filed with the WCIRB and the Commissioner of Insurance without objection—National Union and the insureds, respectively, entered into various “Payment Agreements.” In accordance with the Agreements, National Union would extend credit to the insureds by deferring payments due under the policies in return for the provision of collateral on behalf of the insureds. The Payment Agreements set forth the particulars of that arrangement and what would occur in the event of a default. National Union concedes that these Payment Agreements were never filed with the State of California. Nevertheless, the parties operated under the Agreements for several years.

Central to this dispute, the Payment Agreements contained arbitration clauses requiring that disputes arising out of the Agreements, if not resolved internally, be submitted to arbitration before a panel of three arbitrators with certain qualifications and experience in the insurance industry. Significantly,

1. Monarch Consulting Inc., as referenced herein, includes Elite Management, Inc., Brentwood Television Funnies, Inc., Professional Employer Options, Inc., Recurrent Software Solutions, Ahill, Inc., The Accounting Group, LLC, and PES Payroll, IA, Inc.

the parties agreed that the arbitrators would “have exclusive jurisdiction over the entire matter in dispute, including any question as to its arbitrability.” The Payment Agreements and addenda required that court proceedings concerning arbitration be commenced in New York.²

By early 2011, disputes arose between National Union and each of the insureds under the Payment Agreements. Ultimately, three separate proceedings were initiated in Supreme Court, involving a petition or cross petition by National Union to compel arbitration in each case, and a petition by Monarch Consulting to stay arbitration. In the Monarch Consulting and Priority Business proceedings, Supreme Court granted National Union’s petitions to compel arbitration and denied Monarch Consulting’s petition to stay arbitration. In the Source One matter, Supreme Court denied National Union’s petition to compel arbitration, and held that the Payment Agreements were unenforceable.

National Union, Monarch Consulting, and Priority Business appealed their respective adverse orders. Consolidating the appeals, the Appellate Division, with two Justices dissenting, reversed the orders compelling Monarch Consulting and Priority Business to arbitrate, and affirmed the order denying arbitration in the Source One matter (123 AD3d 51, 54 [1st Dept 2014]). The Appellate Division majority determined that, under California law, National Union was required to file the Payment Agreements with the State and that the appropriate penalty for its failure to do so was to decline to enforce the arbitration provisions. In the majority’s view, this result did not contravene the FAA because the McCarran-Ferguson Act precluded its application inasmuch as requiring arbitration would impair and undermine the goals of California Insurance Code § 11658.

The dissenting Justices would have compelled arbitration in each case. The dissent posited that the McCarran-Ferguson Act did not reverse preempt the FAA because the California Insurance Code did not regulate the use of arbitration clauses in workers’ compensation insurance policies and endorsements and, consequently, application of the FAA would not “impair” California law (*id.* at 79 [Gische, J., dissenting]). In addition, the dissent would have held that, under the FAA, the arbitra-

2. No party to this appeal raises any challenge to the jurisdiction of New York courts.

tors, not the court, should determine whether the Payment Agreements were required to be filed—and any consequences for National Union’s failure to do so—because the insureds challenged the arbitration clauses on a ground that would invalidate the Payment Agreements in their entirety.

National Union now appeals to this Court as of right (*see* CPLR 5601 [a]). Echoing the views of the dissent below, National Union argues that the McCarran-Ferguson Act does not reverse preempt the FAA—which National Union contends would mandate arbitration—because application of the FAA does not interfere with, or undermine, California Insurance Code § 11658. Assuming we agree, National Union further asserts that the insureds’ challenge to the enforceability of the Payment Agreements is premised upon the validity of those Agreements as a whole and, therefore, must be determined by arbitration.

In response, the insureds—joined by the California Commissioner of Insurance as *amicus curiae*—argue that the Payment Agreements and the arbitration clauses are illegal and unenforceable because National Union failed to file them in accordance with California Insurance Code § 11658. The insureds contend that compelling arbitration pursuant to an arbitration clause in an unfiled insurance agreement would undermine the California filing statute and, consequently, the McCarran-Ferguson Act reverse preempts the FAA. Thus, the insureds argue, the courts may decline to enforce the arbitration provisions in the Payment Agreements. The insureds also claim that, even if the FAA applies, the question of whether the arbitration provisions are enforceable is one for the courts, not arbitrators, to decide.

III.

To resolve the parties’ contentions, we must first determine whether the McCarran-Ferguson Act reverse preempts the FAA. The relevant analysis is a three-part test, pursuant to which the McCarran-Ferguson Act applies if: (1) the federal statute in question does not specifically relate to insurance; (2) the state law at issue was enacted to regulate the business of insurance; and (3) the federal statute at issue would invalidate, impair, or supersede the state law (*see* 15 USC § 1012 [b]; *Humana Inc.*, 525 US at 307). Here, the first two prongs of this test are satisfied—namely, the FAA does not specifically relate to insurance (*see Kong v Allied Professional Ins. Co.*, 750 F3d

1295, 1303 [11th Cir 2014]; *Munich Am. Reins. Co. v Crawford*, 141 F3d 585, 590 [5th Cir 1998]; *Stephens v American Intl. Ins. Co.*, 66 F3d 41, 44 [2d Cir 1995]) and California Insurance Code § 11658 was enacted to regulate the business of insurance (see generally *Rush Prudential HMO, Inc. v Moran*, 536 US 355, 373 [2002]; *Union Labor Life Ins. Co. v Pireno*, 458 US 119, 129 [1982]). Thus, whether the McCarran-Ferguson Act applies turns on whether application of the FAA—assuming that it would mandate arbitration here—would “invalidate, impair, or supersede” California Insurance Code § 11658 (15 USC § 1012 [b]).

As the Supreme Court explained in *Humana Inc.*, “[t]he term ‘invalidate’ ordinarily means ‘to render ineffective, generally without providing a replacement rule or law’ ” and “the term ‘supersede’ ordinarily means ‘to displace (and thus render ineffective) while providing a substitute rule’ ” (525 US at 307 [citations omitted]). The Supreme Court has interpreted the term “impair” more broadly to mean “ ‘[t]o weaken, to make worse, to lessen in power, diminish, or relax, or otherwise affect in an injurious manner’ ” (*id.* at 309-310, quoting Black’s Law Dictionary 752 [6th ed 1990]). Although the term “impair” broadens the reach of the McCarran-Ferguson Act beyond federal statutes that directly conflict with a state law regulating insurance, “when application of the federal law would not frustrate any declared state policy or interfere with a State’s administrative regime, the McCarran-Ferguson Act does not preclude its application” (*id.* at 310).

[1] Applying the above definitions here, the McCarran-Ferguson Act does not reverse preempt the FAA with respect to California Insurance Code § 11658. This is so because neither section 11658—nor any other California law which has been brought to our attention—would be invalidated, superseded or impaired by application of the FAA inasmuch as California law did not, at the relevant times, prohibit, limit, or regulate the use or form of arbitration clauses in insurance contracts. The clearest example of a scenario in which reverse preemption occurs is where state law expressly prohibits arbitration of insurance related disputes (see e.g. *McKnight v Chicago Tit. Ins. Co., Inc.*, 358 F3d 854, 857-859 [11th Cir 2004]; *Standard Sec. Life Ins. Co. of N.Y. v West*, 267 F3d 821, 823 [8th Cir 2001]; *Mutual Reins. Bur. v Great Plains Mut. Ins. Co., Inc.*, 969 F2d 931, 934-935 [10th Cir 1992]; see also *Stephens*, 66 F3d at 42). As noted previously, at the times in question here, California law

did not—and still does not—prohibit arbitration in the insurance context. Nor have the parties alerted us to any California statutes or regulations granting that state’s courts or administrative agencies exclusive jurisdiction over insurance disputes (*compare State of Wash., Dept. of Transp. v James Riv. Ins. Co.*, 176 Wash 2d 390, 400, 292 P3d 118, 123 [2013]; *Washburn v Corcoran*, 643 F Supp 554, 556 [SD NY 1986]).

As the insureds point out, California courts have consistently found the FAA to be reverse preempted by the McCarran-Ferguson Act with respect to arbitration agreements in health care service plans (*see Zolezzi v PacifiCare of California*, 105 Cal App 4th 573, 588 n 11, 129 Cal Rptr 2d 526, 539 n 11 [2003]; *Imbler v PacifiCare of California, Inc.*, 103 Cal App 4th 567, 573, 126 Cal Rptr 2d 715, 719-720, 723 [2002]; *Smith v PacifiCare Behavioral Health of California, Inc.*, 93 Cal App 4th 139, 143, 113 Cal Rptr 2d 140, 142 [2001]). However, the result in those cases was compelled by the existence of a California statute mandating that certain disclosures be contained in arbitration provisions in health care plans (*see* Cal Health & Safety Code § 1363.1). Thus, in those cases, application of the FAA would have “absolutely preclude[d]” enforcement of the statute “to regulate the wording and organization of . . . arbitration clauses” (*Imbler*, 103 Cal App 4th at 573, 126 Cal Rptr 2d at 719-720; *see* Cal Health & Safety Code § 1363.1; *Smith*, 93 Cal App 4th at 143, 113 Cal Rptr 2d at 142). By contrast, in the workers’ compensation insurance context, California insurance law did not mandate a specific form or content of arbitration clauses, or otherwise restrict their use.³

Moreover, although California Insurance Code § 11658 may have required the filing of the Payment Agreements, the purpose of the filing rule is to ensure that the insurance documents comply with the Insurance Code and accompanying regulations—none of which pertained to the use or form of arbitration provisions. Neither the goal of the statute nor its administrative scheme is undermined by applying the FAA. Should the FAA mandate arbitration, the arbitrators can competently determine the question of whether the Payment Agreements, generally, and the arbitration provisions, specifi-

3. We express no opinion as to whether a different result would be compelled in a case implicating the later-enacted California Insurance Code § 11658.5.

cally, are enforceable under California law despite the fact that they were not filed with the State.

We disagree with the insureds' assertion that application of the FAA would undercut the Department's authority to review insurance agreements and incentivize violations of the filing requirement. Significantly, the determination of whether California Insurance Code § 11658 applies to the Payment Agreements—and, if so, the consequences of the failure to file them—will be made pursuant to California law regardless of whether arbitration is compelled. Further, whether this issue is resolved by a court or by arbitrators, the question of whether the failure to file invalidates the Payment Agreements will not be determined by the Department, itself. However, should it be so inclined, the Department may pursue an enforcement action against National Union. Thus, permitting arbitration will not undermine the authority of the WCIRB or the Commissioner (*cf. Preston*, 552 US at 358 [rejecting argument that arbitration of private dispute would undermine role of agency in enforcing statute]).⁴ Rather, the insureds' contention that permitting arbitration would somehow frustrate the filing requirement or allow National Union to escape the consequences of its failure to comply with section 11658 is based on nothing more than their apparent hostility to arbitration.

Our conclusion that the McCarran-Ferguson Act does not reverse preempt the FAA is supported by the weight of the relevant precedent. At least two courts in California have held that the McCarran-Ferguson Act is not triggered by the interaction between the FAA and California Insurance Code § 11658 with respect to arbitration agreements in unfiled insurance documents because the California Insurance Code “does not address the topic of arbitration or provide a procedural framework for resolution of disputes” (*Grove Lbr. & Bldg. Supply, Inc. v Argonaut Ins. Co.*, 2008 WL 2705169, *7, 2008 US Dist LEXIS 51752, *17 [CD Cal, July 7, 2008, No. SA CV 07-

4. Indeed, the California Department of Insurance instituted an enforcement action against Zurich American Insurance Company and Zurich American Insurance Company of Illinois alleging similar violations of California Insurance Code § 11658 by Zurich's failure to file certain “Deductible Agreements.” That action was settled in 2013 with no penalties or admissions of wrongdoing. Zurich agreed to submit future deductible agreements to the Department of Insurance and allow insureds a one-time opt out of the arbitration provisions in the agreements for certain disputes. The settlement agreement did not, however, prohibit the use of arbitration clauses in filed agreements in the future.

1396 AHS(RNBx)]; see *Adir Intl. LLC v Travelers Indem. Co. of Connecticut*, Cal Super Ct, Los Angeles County, Aug. 21, 2015, Wiley, J., No. BC575513). Likewise, the District Court of the Southern District of New York has held that the McCarran-Ferguson Act does not reverse preempt the FAA in relation to California Insurance Code § 11658 because the state law and the FAA “address completely different matters” (*In re Arbitration Between National Union Fire Ins. Co. of Pittsburgh, P.A. v Personnel Plus, Inc.*, 954 F Supp 2d 239, 248 [SD NY 2013]). The Eighth Circuit reached a similar conclusion in a dispute involving a filing requirement contained in Texas insurance laws, holding that the enforceability of the unfilled agreement was a question of the underlying merits and the Texas insurance laws were not impaired by enforcement of the agreement to arbitrate (see *St. Paul Fire & Mar. Ins. Co. v Courtney Enters., Inc.*, 270 F3d 621, 625 [8th Cir 2001]; see also *American Heritage Life Ins. Co. v Orr*, 294 F3d 702, 709 [5th Cir 2002]). We find these cases to be persuasive, and the insureds’ reliance to the contrary on the unpublished decision in *Ceradyne, Inc. v Argonaut Ins. Co.* to be unavailing in light of that court’s focus on the merits of the parties’ substantive arguments and its failure to address the applicability of the McCarran-Ferguson Act (2009 WL 1526071, *11, 2009 Cal Unpub LEXIS 4375, *31-33 [Cal Ct App, June 2, 2009, No. G039873]; see also *American Zurich Ins. Co. v Country Villa Serv. Corp.*, 2015 WL 4163008, *16, 2015 US Dist LEXIS 89452, *44-46 [CD Cal, July 9, 2015, No. 2:14-cv-03779-RSWL-AS]).

Accordingly, we hold that the McCarran-Ferguson Act does not prevent application of the FAA to the Payment Agreements at issue in this case.

IV.

We must next address whether, under the FAA, the enforceability of the Payment Agreements and their arbitration clauses is a question that should be resolved by arbitrators, or by the court.

“‘[A]rbitration is a matter of contract and a party cannot be required to submit to arbitration any dispute which he [or she] has not agreed so to submit’” (*AT&T Technologies, Inc. v Communications Workers*, 475 US 643, 648 [1986], quoting *Steelworkers v Warrior & Gulf Nav. Co.*, 363 US 574, 582 [1960]; see *First Options of Chicago, Inc. v Kaplan*, 514 US 938, 943 [1995]). As the United States Supreme Court has stated,

“[c]hallenges to the validity of arbitration agreements . . . can be divided into two types,” namely, “challenges specifically [to] the validity of the agreement to arbitrate” and “challenges [to] the contract as a whole, either on a ground that directly affects the entire agreement (e.g., the agreement was fraudulently induced), or on the ground that the illegality of one of the contract’s provisions renders the whole contract invalid” (*Buckeye Check Cashing, Inc. v Cardegna*, 546 US 440, 444 [2006]). “[A]ttacks on the validity of the contract, as distinct from attacks on the validity of the arbitration clause[,] itself, are to be resolved ‘by the arbitrator in the first instance, not by a federal or state court’ ” (*Nitro-Lift Technologies, L.L.C. v Howard*, 568 US —, —, 133 S Ct 500, 503 [2012], quoting *Preston*, 552 US at 349; see *Buckeye Check Cashing, Inc.*, 546 US at 444; *Prima Paint Corp. v Flood & Conklin Mfg. Co.*, 388 US 395, 403-404 [1967]).

The Supreme Court has also held that arbitration agreements must be enforced according to their terms, and that “parties can agree to arbitrate ‘gateway’ questions of ‘arbitrability’ ” (*Rent-A-Center, West, Inc.*, 561 US at 68-69; see *Nitro-Lift Technologies, L.L.C.*, 568 US at —, 133 S Ct at 503; *Buckeye Check Cashing, Inc.*, 546 US at 445). Such “delegation clauses” are enforceable where “there is ‘clea[r] and unmistakabl[e]’ evidence” that the parties intended to arbitrate arbitrability issues (*First Options of Chicago, Inc.*, 514 US at 944, quoting *AT&T Technologies, Inc.*, 475 US at 649). “When deciding whether the parties agreed to arbitrate a certain matter (including arbitrability), courts generally . . . should apply ordinary state-law principles that govern the formation of contracts” (*First Options of Chicago, Inc.*, 514 US at 944).

Further, “courts treat an arbitration clause as severable from the contract in which it appears and enforce it according to its terms unless the party resisting arbitration specifically challenges the enforceability of the arbitration clause itself” (*Granite Rock Co. v Teamsters*, 561 US 287, 301 [2010]; see *Nitro-Lift Technologies, L.L.C.*, 568 US at —, 133 S Ct at 503; *Rent-A-Center, West, Inc.*, 561 US at 71; *Buckeye Check Cashing, Inc.*, 546 US at 445). This rule of severability extends to delegation clauses, which are severable from larger arbitration provisions (see *Rent-A-Center, West, Inc.*, 561 US at 71-72; *Parnell v Cash-Call, Inc.*, 804 F3d 1142, 1146 [11th Cir 2015]; *Brennan v Opus Bank*, 796 F3d 1125, 1133 [9th Cir 2015]). Thus, where a contract contains a valid delegation to the arbitrator of the

power to determine arbitrability, such a clause will be enforced absent a specific challenge to the delegation clause by the party resisting arbitration (*see Rent-A-Center, West, Inc.*, 561 US at 71-72).

[2] Here, the crux of the insureds' challenge to the arbitration provisions is that National Union's failure to file the Payment Agreements in accordance with California Insurance Code § 11658 renders unenforceable the Payment Agreements and, only by extension, the arbitration provisions. National Union argues that this is, at its core, a challenge to the Payment Agreements, not to the arbitration provisions, and, therefore, is a matter for the arbitrator to decide. Regardless of whether the insureds sufficiently directed their attack to the arbitration provisions, a review of the record reveals that they did not specifically direct any challenge to the delegation clauses empowering the arbitrators to determine gateway questions of arbitrability (*see Rent-A-Center, West, Inc.*, 561 US at 71-72). Those delegation provisions, which state that the arbitrators "have exclusive jurisdiction over the entire matter in dispute, including any question as to its arbitrability," are valid because the parties "clearly and unmistakably" agreed to arbitrate arbitrability (*AT&T Technologies, Inc.*, 475 US at 649; *see First Options of Chicago, Inc.*, 514 US at 944; *Malone v Superior Ct.*, 226 Cal App 4th 1551, 1560, 173 Cal Rptr 3d 241, 247 [2014]; *Gilbert St. Devs., LLC v La Quinta Homes, LLC*, 174 Cal App 4th 1185, 1192, 94 Cal Rptr 3d 918, 922-923 [2009]). As the delegation clauses are severable from the remainder of the agreements to arbitrate, we must enforce them according to their terms and, under these circumstances, the question of arbitrability is one for the arbitrators (*see Rent-A-Center, West, Inc.*, 561 US at 71-72).

V.

In sum, we hold that the FAA applies to the Payment Agreements because it does not "invalidate, impair, or supersede" the California Insurance Code or any insurance regulations and, consequently, the McCarran-Ferguson Act is not triggered (15 USC § 1012 [b]). Further, because the parties clearly and unmistakably delegated the question of arbitrability and enforceability of the arbitration clauses to the arbitrators—in provisions that were not specifically challenged by the insureds—the FAA mandates that the arbitration provisions be enforced as written. We, therefore, express no view on whether

National Union's failure to file the Payment Agreements rendered the arbitration clauses unenforceable, because that question should be determined by the arbitrators pursuant to the FAA and the parties' agreements to arbitrate arbitrability (see *AT&T Technologies, Inc.*, 475 US at 649).

The insureds' remaining arguments are unpersuasive. Accordingly, the order of the Appellate Division should be reversed, with costs. In the first captioned proceeding, Monarch Consulting's petition to stay arbitration should be denied and National Union's cross petition to compel arbitration should be granted. In the second and third captioned proceedings, National Union's petitions to compel arbitration should be granted.

Judges PIGOTT, RIVERA, ABDUS-SALAAM and FAHEY concur; Chief Judge DiFIORE and Judge GARCIA taking no part.

Order reversed, with costs, and (1) in *Matter of Monarch Consulting, Inc. v National Union Fire Insurance Company of Pittsburgh, PA*, petition to stay arbitration denied and cross petition to compel arbitration granted; (2) in *Matter of National Union Fire Insurance Company of Pittsburgh, PA v Priority Business Services, Inc.*, petition to compel arbitration granted; and (3) in *Matter of National Union Fire Insurance Company of Pittsburgh, PA v Source One Staffing, LLC*, petition to compel arbitration granted.

[47 NE3d 704, 27 NYS3d 425]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v FRED-
DIE THOMPSON, Appellant.

Argued January 13, 2016; decided February 11, 2016

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered June 11, 2014. The Appellate Division order, insofar as appealed from, upon its modification, in the interests of justice, to reduce the term of imprisonment imposed on two counts, otherwise affirmed a resentence of the Supreme Court, Richmond County (Stephen J. Rooney, J.), which was based upon defendant's adjudication as a second violent felony offender.

People v Thompson, 118 AD3d 822, reversed.

HEADNOTES

Appeal — Matters Reviewable — Order Adverse to Appellant — Modified Resentence

1. The Court of Appeals did not lack jurisdiction under CPL 450.90 (1) to hear defendant's appeal challenging his adjudication as a second violent felony offender from an Appellate Division order which modified the trial court's resentence only to the extent of reducing the terms of imprisonment as a matter of discretion in the interest of justice and otherwise affirmed the resentence. CPL 450.90 (1) provides that "[a]n order of an intermediate appellate court is adverse to the party who was the appellant in such court when it affirms the judgment, sentence or order appealed from An appellate court order which modifies a judgment or order appealed from is partially adverse to each party." Here, the Appellate Division order modified the resentence, but otherwise affirmed the resentence, including the adjudication of defendant as a second violent felony offender. That affirmance created adversity.

Appeal — Academic and Moot Questions — Practical Impact on Defendant

2. In a criminal prosecution wherein the trial court resentenced defendant to adjudicate him a second violent felony offender but reimposed its initial punishment, and the Appellate Division modified the resentence only to the extent of reducing the terms of imprisonment as a matter of discretion in the interest of justice and otherwise affirmed the resentence, defendant's appeal challenging the second violent felony offender adjudication was not moot notwithstanding that the sentence he received would be legal even if he was sentenced as a second felony offender rather than a second violent felony offender. If defendant's second violent felony offender adjudication remained based on the lower courts' interpretation of the statutes, he could theoreti-

cally be adjudicated a persistent violent felony offender based on that prior adjudication should he quickly recidivate upon his release from his current incarceration. Thus, even though the trial court did not change the period of incarceration upon the second violent felony offender adjudication, a practical impact flowed therefrom.

Appeal — Court of Appeals — Matters Reviewable — Challenge to Resentence as Second Violent Felony Offender

3. In a criminal prosecution wherein the trial court resentenced defendant to adjudicate him a second violent felony offender but reimposed its initial punishment, and the Appellate Division modified the resentence only to the extent of reducing the terms of imprisonment as a matter of discretion in the interest of justice and otherwise affirmed the resentence, defendant's appeal challenging the second violent felony offender adjudication based on the lower courts' use of the resentencing date for his prior conviction, rather than the original sentencing date, as controlling for purposes of the sentencing statute's 10-year look-back period was reviewable by the Court of Appeals. The issue whether defendant was properly resentenced as a second violent felony offender turned on the interpretation of Penal Law §§ 70.04 and 60.01, which was a question of law (*see* CPL 470.35 [1]).

Crimes — Sentence — Second Violent Felony Offender — Predicate Conviction — 10-Year Look-Back Period — Controlling Sentencing Date

4. In a criminal prosecution in which defendant was resentenced as a second violent felony offender based on a prior conviction for which his original sentencing date was more than 10 years prior to the commission of current felonies but his resentencing date for that conviction was within those 10 years, the lower courts erred in determining that the controlling date of sentence for the prior conviction was the date of resentence. A second violent felony offender adjudication can only be predicated on a previous violent felony conviction for which sentence was imposed not more than 10 years before commission of the present felony (Penal Law § 70.04 [1] [b] [iii], [iv]). Upon his prior conviction of a class B violent felony, defendant was originally sentenced to a period of probation. After violating that probation, he was resentenced to a prison term. The period of probation was imposed as part of a revocable sentence, which is a tentative punishment in that it may be altered or revoked (Penal Law § 60.01 [2] [a], [b]). For all other purposes, however, a revocable sentence "shall be deemed to be a final judgment of conviction," and where "the part of the sentence that provides for probation is revoked, the court must sentence [a defendant] to imprisonment or to [a] sentence of imprisonment and probation" (§ 60.01 [2] [b]; [4]). The reference to the "part" of the sentence suggests that the substitution of a different punishment does not constitute a new sentence, but rather a replacement of the original, conditional penalty reflected in the sentence. Thus, to revoke a penalty of probation does not equate to annulling a sentence. Moreover, notwithstanding the use of the verb "sentence," the punishment imposed upon the revocation of a period of probation has been characterized as a resentence, which is not defined as a sentence for the purpose of calculating the 10-year look-back period. Where, as here, two constructions of Penal Law §§ 70.04 and 60.01 are plausible, the one more favorable to defendant should be adopted.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Appellate Review §§ 106, 110, 201, 252, 267,

621, 626, 716, 738, 769–771, 777, 786, 804, 806; AM JUR 2d, Criminal Law § 796, 861, 864.

CARMODY-WAIT 2d, Appeals in Criminal Cases §§ 207:9, 207:18, 207:56, 207:67, 207:111, 207:116, 207:136, 207:139, 207:159, 207:171, 207:217–207:222, 207:226, 207:233.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 26.3, 26.7, 27.2, 27.6.

McKINNEY'S, CPL 450.90 (1); 470.35 (1); Penal Law §§ 60.01 (2), (4); 70.04 (1) (b).

NY JUR 2d, Criminal Law: Procedure §§ 2927, 3455, 3508, 3522, 3573, 3584, 3591, 3614, 3650.

ANNOTATION REFERENCE

Reduction by appellate court of punishment imposed by trial court. 89 ALR 295.

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Query: matters reviewable on criminal appeal order adverse to appellant modified resentence matter of discretion scope of review

POINTS OF COUNSEL

Lynn W.L. Fahey, Appellate Advocates, New York City (A. Alexander Donn of counsel), for appellant. When a defendant who was initially sentenced to probation for a violent felony is resentenced to a prison term after violating probation, the date of the original sentencing, rather than the resentencing, determines whether the conviction falls within the 10-year look-back period set forth in Penal Law § 70.04 (1) (b) (iv) for predicate sentencing purposes in a subsequent case. (*People v Boyer*, 22 NY3d 15; *People v Kisina*, 14 NY3d 153; *Matter of Tall Trees Constr. Corp. v Zoning Bd. of Appeals of Town of Huntington*, 97 NY2d 86; *People v Sosa*, 18 NY3d 436; *People v Garcia*, 84 NY2d 336; *People v Walker*, 81 NY2d 661; *Matter of Chemical Specialties Mfrs. Assn. v Jorling*, 85 NY2d 382; *Matter of Darwin M. v Jacobs*, 69 NY2d 957; *People v Sparber*, 10 NY3d 457; *People v Acevedo*, 17 NY3d 297.)

Daniel M. Donovan, Jr., District Attorney, Staten Island (Anne Grady and Morrie I. Kleinbart of counsel), for respondent. I. The appeal from the order modifying resentence must

be dismissed. (*People v Samms*, 95 NY2d 52; *People v Morse*, 62 NY2d 205; *People v Edwards*, 96 NY2d 445; *People v Capers*, 177 AD2d 992; *People v Foust*, 278 AD2d 242; *People v Benton*, 196 AD2d 755; *People v Olah*, 300 NY 96; *People v Jones*, 25 NY3d 57; *People v Crawford*, 204 AD2d 203; *People v Herrar*, 120 AD2d 614.) II. Defendant is a second violent felony offender (answering defendant's argument). (*People v Jones*, 25 NY3d 57; *Matter of Albano v Kirby*, 36 NY2d 526; *People v Morse*, 62 NY2d 205; *People v Leight*, 90 Misc 2d 233; *People v Davis*, 93 AD3d 524; *People v Newton*, 91 AD3d 1281; *People v Bell*, 73 NY2d 153; *People v Notey*, 72 AD2d 279; *People v Jackson*, 174 Misc 2d 105.)

OPINION OF THE COURT

FAHEY, J.

This appeal turns on our conclusion that to *revoke* a penalty of probation does not equate to *annulling* a sentence under Penal Law § 60.01. In November 2010, defendant was convicted of, inter alia, two counts of the class B violent felony of robbery in the first degree (Penal Law § 160.15 [4]) (generally, instant conviction). Our primary interest in this case, however, lies not with those crimes, but with one of defendant's prior convictions—specifically, his June 1994 conviction of the class B violent felony of assault in the first degree (Penal Law § 120.10 [1]) (generally, prior conviction)—and the question whether that conviction qualifies as a predicate violent felony offense (*see* Penal Law § 70.04 [1] [b] [second violent felony offender statute]) for the purpose of sentencing him as a second violent felony offender with respect to the instant conviction.

Defendant was originally sentenced to probation with respect to the prior conviction on June 8, 1994 (generally, original sentence). After violating that probation, however, defendant was resentenced on December 21, 1995 to a prison term with respect to that crime (generally, resentence).

The principal question before us is whether the date of the original sentence, rather than the date of the resentence, determines whether the prior conviction comes within the 10-year look-back period in the second violent felony offender statute for the purpose of imposing sentence on the instant conviction (*see* Penal Law § 70.04 [1] [b] [iv] [providing, subject to an exception immaterial here, that “sentence must have been imposed not more than (10) years before commission of the felony of which the defendant presently stands convicted”

for the prior conviction to constitute a predicate violent felony conviction]). Based on our determination that the revocation of probation under Penal Law § 60.01 is not the analogue of the annulment of a sentence, we conclude that the original sentence controls for the purposes of determining eligibility under the look-back period in Penal Law § 70.04. We further conclude that, on these facts, defendant should not have been resentenced as a second violent felony offender with respect to the instant conviction.

I.

The instant robberies were committed on February 18 and February 25, 2010 and, in December 2010, Supreme Court sentenced defendant, as a second felony offender, to concurrent terms of 20 years' incarceration to be followed by five years' postrelease supervision (PRS) with respect to that conviction. Defendant was adjudicated a second felony offender based on a prior drug conviction.

Approximately two months later, the People "recommended" that the court treat defendant as a second *violent* felony offender based on the prior conviction, that is, the June 8, 1994 conviction of assault in the first degree. As noted, with respect to that conviction defendant initially was sentenced to five years' probation. That probation, however, was later revoked and, in place of the original sentence of probation, defendant was resentenced to a term of 2 to 6 years' incarceration on December 21, 1995.

In view of what they characterized as the December 21, 1995 "re-sentence date" with respect to the prior conviction, the People submitted to the sentencing court papers "in support of treating defendant as a second violent felony offender" with respect to the instant conviction. There, the People contended that, to the extent the "re-sentence date of December 21, 1995" controls as the date on which sentence was imposed upon the prior conviction, that conviction would qualify as a predicate violent felony pursuant to Penal Law § 70.04 (1) (b) (iv), thereby rendering defendant eligible to be sentenced as a second violent felony offender with respect to the instant conviction. There is no dispute that, to the extent the re-sentence date is the controlling date of sentence with respect to the prior conviction, that conviction would constitute a predicate violent felony and thus subject defendant to sentencing as a second violent felony offender with respect to the

instant conviction. It is also undisputed that, to the extent the date of the original sentence controls for determining when “sentence [was] imposed” (§ 70.04 [1] [b] [iv]) with respect to the prior conviction, defendant cannot now be adjudicated a second violent felony offender on the basis of that crime.

Supreme Court agreed with the People that the date of the resentencing, not the date of the original sentence, is the controlling date for the calculation of the look-back period, and it adjudicated defendant a second violent felony offender for the purpose of imposing sentence upon the instant conviction. In resentencing defendant with respect to those robbery crimes, the court reimposed its initial punishment, that is, it ordered concurrent determinate terms of 20 years’ incarceration to be followed by five years’ PRS.

Defendant subsequently appealed from both the judgment of conviction and sentence, and the resentencing. The Appellate Division dismissed the appeal from so much of the judgment as imposed the sentence, and it rejected defendant’s challenges to the balance of the judgment, which were based on grounds not at issue here (118 AD3d 822, 822-823 [2d Dept 2014]). The Appellate Division modified the resentencing as a matter of discretion in the interest of justice by reducing the determinate terms of imprisonment imposed upon the instant conviction from 20 years to 15 years, and, as so modified, it affirmed the resentencing (*see id.*). In doing so, that Court concluded that Supreme Court did not err in resentencing defendant as a second violent felony offender inasmuch as the controlling date of the imposition of sentence for the prior conviction is the date of the resentencing, not the date of the original sentence (*see id.* at 823). A Judge of this Court granted defendant leave to appeal (24 NY3d 1089 [2014]), and we now reverse the order of the Appellate Division insofar as appealed from.¹

II.

Before addressing the main issue before us, we consider the preliminary question whether this Court may hear this appeal. The People contend that this Court is powerless to address the merits of this case for three main reasons. None of those points has merit.

1. Defendant challenges only the part of the Appellate Division order that affirmed the adjudication of defendant as a second violent felony offender on the resentencing.

First, the People contend that CPL 450.90 (1), which governs an appeal to this Court from an order of an intermediate appellate court, does not vest this Court with jurisdiction to hear this appeal. That section provides, in relevant part, that “[a]n order of an intermediate appellate court is adverse to the party who was the appellant in such court when it affirms the judgment, sentence or order appealed from An appellate court order which modifies a judgment or order appealed from is partially adverse to each party” (*id.*).

[1] According to the People, the Appellate Division merely modified the resentence here, and because the last sentence of CPL 450.90 (1) provides that an Appellate Division order that modifies a *judgment* or *order* appealed from is partially adverse to each party, but does not say that an Appellate Division order that modifies a *resentence* creates adversity, this Court has no authority to hear this appeal. We disagree. The Appellate Division order modified the resentence to the extent of reducing defendant’s period of incarceration from 20 to 15 years, but it otherwise *affirmed* the resentence (*see* 118 AD3d at 822-823; *see also* CPL 450.30 [3] [equating a resentence with a sentence for the purpose of specifying the instances in which a defendant may appeal to an intermediate appellate court]). That affirmation unquestionably creates adversity here, and it defeats the People’s contention that we lack jurisdiction under CPL 450.90 (1) to hear this appeal.

[2] Second, the People contend that we should not consider the merits of this appeal because “the Appellate Division’s rejection of defendant’s claim to have been improperly adjudicated a [second] violent felony offender . . . has no practical impact on . . . defendant.” The People appear to suggest that this appeal is moot because defendant’s 15-year period of incarceration would be legal even if defendant had been sentenced as a second felony offender, rather than as a second violent felony offender (*see Coleman v Daines*, 19 NY3d 1087, 1090 [2012] [“an appeal is moot unless an adjudication of the merits will result in immediate and practical consequences to the parties”]). In so contending the People ignore Penal Law § 70.08, which sets criteria for a sentence of imprisonment for a persistent violent felony offender. Pursuant to that statute, the test for whether a prior violent felony constitutes a predicate violent felony for the purpose of adjudicating a defendant a persistent violent felony offender is the same as the test for determining whether a prior felony is a predicate one

for the purpose of adjudicating a defendant a second violent felony offender (*see* Penal Law § 70.08 [1] [b]). Consequently, to the extent the date of the resentencing on the prior conviction controls for the purpose of determining whether defendant is a second violent felony offender with respect to the instant conviction, defendant theoretically could be adjudicated a persistent violent felony offender based on the prior conviction should he quickly recidivate upon his release from his current incarceration. To that end, even though the trial court did not change defendant's period of incarceration upon resentencing him as a second violent felony offender relative to the instant conviction, the People are wrong to the extent they contend that no practical impact flows from defendant's adjudication as a second violent felony offender.

[3] Third, the People contend that this appeal is beyond our review because defendant's challenge to his resentence as a second violent felony offender in this case is based on facts, rather than on the law (*see* CPL 470.35 [1]). We reject that contention inasmuch as the issue whether defendant was properly resentenced as a second violent felony offender turns on our interpretation of Penal Law §§ 70.04 and 60.01, which is a question of law (*see generally Bragg v Genesee County Agric. Socy.*, 84 NY2d 544, 552 [1994]).²

III.

Turning to the merits, “[i]n matters of statutory interpretation, our primary consideration is to discern and give effect to the Legislature’s intention” (*Matter of Albany Law School v New York State Off. of Mental Retardation & Dev. Disabilities*, 19 NY3d 106, 120 [2012]). “To that end, . . . we must look first to the statutory text, which is ‘the clearest indicator of legislative intent’ ” (*Matter of New York County Lawyers’ Assn. v Bloomberg*, 19 NY3d 712, 721 [2012], *rearg denied* 20 NY3d 983 [2012], quoting *Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577, 583 [1998]; *see Matter of Wallach v Town of Dryden*, 23 NY3d 728, 744 [2014], *rearg denied* 24 NY3d 981 [2014] [describing a three-part statutory interpretation analysis involving review of (1) the plain language of the statute; (2) the statutory scheme as a whole; and (3) the relevant legislative history]).

2. Finally, under the circumstances of this case, we reject the People’s alternative contention with respect to appealability.

[4] Guided by those principles, we conclude that the lower courts erred in determining that the controlling date of sentence for the prior conviction is the date of the resentence, not the date on which the original sentence was imposed with respect to that crime. Penal Law § 70.04 is entitled “[s]entence of imprisonment for second violent felony offender,” and it essentially provides that a person is a second violent felony offender when he or she stands convicted of a violent felony (Penal Law § 70.04 [1] [a]) and was previously convicted of a violent felony for which “[s]entence . . . [was] imposed [not only] before commission of the present felony” (Penal Law § 70.04 [1] [b] [ii] [emphasis added]), but also within “[10] years before commission of the [present] felony” (Penal Law §§ 70.04 [1] [b] [iv]; see 70.04 [1] [b] [v] [containing a tolling exception relative to the 10-year look-back period that is immaterial here]). As noted, there is no dispute that if the date of the original sentence (June 8, 1994) is controlling for the purpose of the second violent felony offender analysis, defendant does not qualify as a second violent felony offender pursuant to section 70.04 (1) (b). Similarly, if the date of the resentence (Dec. 21, 1995) controls for the purpose of that analysis, then defendant qualifies as a second violent felony offender under that statute.

The People would have us believe that sentence was imposed with respect to the prior conviction *twice*—once in 1994, when defendant was subject to a period of probation through the original sentence, and again in 1995, when defendant was subject to a period of incarceration through the resentence. To be sure, the period of probation was imposed as part of a *revocable* sentence (Penal Law § 60.01 [2] [a] [i]), which is a “tentative [punishment in] that it may be altered or revoked” (Penal Law § 60.01 [2] [b]). For all other purposes, however, a revocable sentence “shall be deemed to be a final judgment of conviction” (*id.*), and where “*the part of the sentence* that provides for probation is revoked, the court must sentence [a defendant] to imprisonment or to [a] sentence of imprisonment and probation” (Penal Law § 60.01 [4] [emphasis added]). The legislature’s reference to the revocation of the *part* of the sentence imposing probation suggests that the substitution of a different punishment—such as incarceration—for the probation a defendant has violated does not constitute a *new* sentence, but rather a replacement of the original, conditional penalty reflected in the sentence.

Put differently, to revoke a penalty of probation does not equate to annulling a sentence. That the legislature said that “the court must *sentence* [the defendant] to imprisonment or to [a] sentence of imprisonment and probation” (Penal Law § 60.01 [4] [emphasis added]) upon the revocation of probation does not support a contrary conclusion. In that context, the legislature used the emphasized form of “sentence” as a transitive verb and provided merely that, where probation is revoked, a court must impose a harsher punishment to include imprisonment (see *Samiento v World Yacht Inc.*, 10 NY3d 70, 77-78 [2008] [“The language of a statute is generally construed according to its natural and most obvious sense . . . in accordance with its ordinary and accepted meaning, unless the Legislature by definition or from the rest of the context of the statute provides a special meaning” (internal quotation marks omitted)]; see also Webster’s Third New International Dictionary 2068 [2002] [defining “sentence” as, among other things, a transitive verb meaning “to prescribe the penalty or punishment of”]). Indeed, we have characterized the punishment imposed upon the revocation of a period of probation as a resentence (see *People v Feliciano*, 17 NY3d 14, 19 [2011], *rearg denied* 17 NY3d 848 [2011]), and—unlike a “sentence of probation”—a “resentence” is not defined as a “sentence” under Penal Law § 70.04 (1) (b) (iii) for the purpose of calculating the 10-year look-back period. In addition, section 70.04 (1) (b) (iv) specifically states that a “*sentence* [with respect to a prior felony, not a *resentence*,] must have been imposed not more than [10] years before commission of the [present] felony” for the prior felony to constitute a predicate crime (*id.* [emphasis added]; see generally *People v Boyer*, 22 NY3d 15, 25 [2013] [“irrespective of any resentence . . . , the original (s)entence for (a) prior conviction remains valid” (internal quotation marks omitted)]).

Finally, to the extent this is an instance in which a reasonable mind could conclude that the period of incarceration imposed on December 21, 1995 with respect to the prior conviction constitutes a sentence and, for the purpose of this case, thus brings that conviction within the look-back period in the second violent felony offender statute, the result would not change. At worst (or best, depending on one’s perspective) this is an instance in which two constructions of Penal Law §§ 70.04 and 60.01 are plausible, and to that end “the one more favorable to the defendant should be adopted in accordance with the

rule of lenity” (*People v Golb*, 23 NY3d 455, 468 [2014], *reargued* denied 24 NY3d 932 [2014], *cert denied* 574 US —, 135 S Ct 1009 [2015] [internal quotation marks omitted]).

Accordingly, the order of the Appellate Division insofar as appealed from should be reversed, the second violent felony offender adjudication vacated and the case remitted to Supreme Court for resentencing.

Judges PIGOTT, RIVERA, ABDUS-SALAAM and STEIN concur; Chief Judge DiFIORE and Judge GARCIA taking no part.

Order insofar as appealed from reversed, second violent felony offender adjudication vacated, and case remitted to Supreme Court, Richmond County, for resentencing.

[47 NE3d 738, 27 NYS3d 459]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v GORDON
GROSS, Appellant.

Argued January 12, 2016; decided February 18, 2016

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Fourth Judicial Department, from an order of that Court, entered June 20, 2014. The Appellate Division affirmed an order of the Wayne County Court (John B. Nesbitt, J.), which had denied defendant's motion pursuant to CPL 440.10 to vacate a judgment of that court which had convicted defendant, upon a jury verdict, of course of sexual conduct against a child in the first degree and endangering the welfare of a child.

People v Gross, 118 AD3d 1383, affirmed.

HEADNOTES

Crimes — Right to Counsel — Effective Representation — Failure to Call Expert Witness

1. Defendant was not deprived of the effective assistance of counsel in his sexual abuse prosecution by his trial counsel's failure to call an expert witness to testify regarding the absence of physical evidence supporting the victim's allegations of painful anal rape and that the alleged conduct should have resulted in lasting physical trauma which could be detected years later. Defendant failed to provide a proper foundation for the courts to consider the studies allegedly supporting his argument, as he did not include an affidavit by a medical expert explaining the conclusions of the studies or how those conclusions supported his contentions. Moreover, defendant's trial counsel articulated reasons for not calling an expert witness, and those reasons were arguably legitimate.

Crimes — Right to Counsel — Effective Representation — Admission of Victim's Prior Consistent Statements

2. Defendant was not deprived of the effective assistance of counsel in his sexual abuse prosecution by his trial counsel's failure to oppose as improper bolstering the admission of the victim's statements of prior disclosures of the abuse to various individuals, as such testimony was properly admitted into evidence as background information to complete the narrative of how defendant came to be investigated. The testimony of the victim's mother, sister and principal and two police officers included nonspecific statements that the victim had made a disclosure and described what steps they took after hearing the disclosure. Nonspecific testimony about a child-victim's reports of sexual abuse does not constitute improper bolstering when offered for the relevant, nonhearsay purpose of explaining the investigative process and assisting in the completion of the narrative of events which led to the defendant's arrest. The testimony of the witnesses fulfilled these legitimate non-hearsay purposes, and defense counsel's objections ensured that the witnesses

did not specifically repeat what the victim told them. The testimony of the People's expert witness as to the victim's specific allegations of sexual abuse explained why the victim was examined by the witness and why the normal results of the physical examination did not indicate that the victim had not been subjected to sexual abuse. Moreover, defense counsel was not ineffective for failing to object to the prosecutor's summation comments referencing the testimony of the witnesses to whom the victim had disclosed. Defense counsel may have made a strategic choice not to object during summation given that the witnesses were not able to testify to the specifics of the victim's allegations. She may have felt that such an objection would not be worthwhile given the limited testimony elicited from the witnesses.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Criminal Law §§ 1135–1139.
CARMODY-WAIT 2d, Right to Counsel §§ 184:162–184:165,
184:169, 184:174, 184:175, 184:254, 184:264.
LAFAYE, ET AL., CRIMINAL PROCEDURE (3d ed) § 11.7.
NY JUR 2d, Criminal Law: Procedure §§ 864–870, 878.

ANNOTATION REFERENCE

See ALR Index under Attorneys; Expert and Opinion Evidence.

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Materials
Query: ineffective counsel fail call expert witness rape

POINTS OF COUNSEL

Easton Thompson Kasperek Shiffrin LLP, Rochester (Brian Shiffrin of counsel), for appellant. The courts below erred in rejecting, without a hearing, Gordon Gross's motion to vacate his conviction based on claims that he was denied his right to the effective assistance of counsel as a result of trial counsel's failures (1) to consult with and/or present the testimony of a qualified, independent medical expert; and/or (2) to oppose the admission and use of prior consistent statements which bolstered the complainant's credibility. (*People v Turner*, 5 NY3d 476; *People v Baldi*, 54 NY2d 137; *Strickland v Washington*, 466 US 668; *Gersten v Senkowski*, 426 F3d 588; *Eze v Senkowski*, 321 F3d 110; *Pavel v Hollins*, 261 F3d 210; *Lindstadt v Keane*, 239 F3d 191; *People v Felder*, 47 NY2d 287; *People v Benevento*, 91 NY2d 708; *People v Claudio*, 83 NY2d 76.)

Richard M. Healy, District Attorney, Pittsford (Melvin Bressler of counsel), for respondent. I. Defense counsel properly and adequately represented appellant; in addition, the questioned testimony by the prosecutor's medical expert was necessary and appropriate and was allowed over defense counsel's objection. There is no question of law for the Court's review. II. Certain testimony objected to as "bolstering" was neither hearsay nor offered for its truth, but rather as background information for the jury's understanding. Other testimony even if hearsay based does not support a motion for a hearing, nor negate the decisions below. (*People v Baldi*, 54 NY2d 137.) III. Appellant did not present evidence to support the need for a medical expert to assist the defense, and, in any event such decision does not rise to the level of ineffective assistance of counsel.

OPINION OF THE COURT

ABDUS-SALAAM, J.

In this appeal, we are asked to determine whether defendant's trial counsel was ineffective. Because counsel's alleged failures were insufficient to overshadow her overall meaningful representation of defendant, we hold that defendant received effective assistance of counsel.

I.

Defendant Gordon Gross was accused of child sexual abuse, which resulted in him being indicted for course of sexual conduct against a child in the first degree (*see* Penal Law § 130.75 [1] [b]) and endangering the welfare of a child (*see* Penal Law § 260.10 [1]). During trial, the child victim testified that defendant subjected her to sexual abuse over a number of years, including anal penetration. She testified that she disclosed the sexual abuse to a number of individuals, including her mother, sister and school principal, and two police officers assigned to investigate her allegations. After this testimony, defendant's counsel did not request a limiting instruction that the child's statements of prior disclosures should not be considered in determining the truth of the child's allegations.

The People called as witnesses the child's mother, sister and school principal, and the two officers. During each witness's testimony, defense counsel successfully objected when the witness was asked a question intended to elicit an answer regarding the specific statements of abuse the child disclosed to that

witness. The People also called Dr. Danielle Thomas-Taylor, a child sex abuse expert, who examined the child at the People's request approximately three years after her last allegation of sexual abuse. Over defense counsel's objection, Dr. Thomas-Taylor was permitted to testify that the child told her that defendant sexually abused her by anal penetration. Dr. Thomas-Taylor also described her physical examination, stating that the child "had a generally normal physical examination." Despite that conclusion, Dr. Thomas-Taylor opined that the normal results of the child's physical examination did not negate the possibility that the child was anally penetrated some time before. Specifically, she stated she would not expect to see scarring after some years because the anus "heals very quickly, within a day or two."

During the People's summation, the prosecutor argued that the key to determining that the child was telling the truth was her prior consistent statements, referencing all the prosecution witnesses who testified that the child had disclosed to them her allegations of sexual abuse. Following deliberations, the jury found defendant guilty of course of sexual conduct against a child in the first degree and endangering the welfare of a child. Defendant was sentenced to a determinate term of 25 years in prison with 10 years of postrelease supervision. The judgment was affirmed by the Appellate Division (*see People v Gross*, 79 AD3d 1660 [4th Dept 2010]) and his criminal leave application on his direct appeal was denied by a Judge of this Court (*see People v Gross*, 16 NY3d 895 [2011]).

Defendant moved for post-conviction relief pursuant to CPL 440.10 (1) (h). Defendant argued that his state and federal constitutional rights to effective assistance of counsel were violated by his trial counsel's failure to oppose the admission and use of the prior consistent statements of the child which bolstered her credibility. Additionally, defendant argued that his trial counsel was ineffective for failing to consult or present testimony from a qualified independent medical expert to support his contention that no sexual abuse occurred. In an affirmation from defendant's current attorney accompanying the motion, the attorney indicates that he spoke with defendant's trial counsel who stated that "she did not consult with nor call an expert because she had not anticipated that the People would be permitted to have Dr. Thomas Taylor testify as to what [the child] told her or that the doctor would testify that the medical finding had no significance."

County Court denied the motion, holding that the failure of defendant's trial counsel to object to the admission of the child's prior disclosures did not render her ineffective. Additionally, the court found that defendant's trial counsel was not ineffective for failing to call an expert witness, noting that defendant did not offer an expert opinion that some indicia of sex abuse would have been likely. Thus, based on the record alone the court rejected defendant's arguments and denied his motion. The Appellate Division, with two Justices dissenting, affirmed, concluding that the testimony regarding the child's prior disclosures did not constitute improper bolstering because it was not admitted for its truth but rather to demonstrate how the child disclosed the abuse, thereby commencing the investigation into her allegations (*see People v Gross*, 118 AD3d 1383, 1384 [4th Dept 2014]). Further, the Court concluded that defendant received meaningful representation despite his trial counsel's failure to object to the prosecutor's summation comments or to call a medical expert to testify on defendant's behalf. Therefore, the Court concluded that trial counsel was not ineffective. The dissenting Justices voted to reverse. In their view, defendant's trial counsel's failure to object to inadmissible testimony regarding the child's prior consistent statements deprived him of his right to effective assistance of counsel (*see id.* at 1386).

II.

On a CPL 440.10 motion pursuant to subdivision (1) (h), the burden is on the defendant to demonstrate that "[t]he judgment was obtained in violation of a right of the defendant under the constitution of this state or of the United States" (CPL 440.10 [1] [h]), here his right to effective assistance of counsel. On an ineffective assistance of counsel claim under the Sixth Amendment to the United States Constitution, a defendant must demonstrate that (1) his or her attorney committed errors so egregious that he or she did not function as counsel within the meaning of the United States Constitution, and (2) that counsel's deficient performance actually prejudiced the defendant (*see Strickland v Washington*, 466 US 668, 687-688 [1984]). New York's constitutional requirement of effective assistance of counsel is met when "the evidence, the law, and the circumstances of a particular case, viewed in totality and as of the time of the representation, reveal that the attorney provided meaningful representation" (*People v Benevento*, 91 NY2d 708, 712 [1998]).

[1] Defendant argues that his trial counsel was ineffective for failing to call an expert witness who could testify that the absence of physical evidence here could indicate that the victim was never anally raped by defendant. He asserts that trial counsel should have called an expert witness who could have testified that the victim's allegations of painful anal rape should have resulted in lasting physical trauma which could be detected some years after the last allegation of anal penetration. As support, he points to three studies. Defendant, however, failed to provide a proper foundation for the courts to consider these studies, as he did not include an affidavit by a medical expert explaining the conclusions of the studies or how those conclusions support his contentions. He thus has failed to meet his burden of demonstrating that his trial counsel was ineffective for failing to call an expert under either the federal or state standard.

We have held on numerous occasions that counsel will not be found ineffective where he or she had a strategic reason for the failure complained of by defendant (*see People v Barboni*, 21 NY3d 393, 405-406 [2013]). Defendant's trial counsel articulated reasons for not calling an expert witness, and those reasons were arguably legitimate. Therefore, defense counsel was not ineffective.

III.

The testimony of each of the prosecution witnesses here was properly admitted into evidence as background information, completing the narrative of how defendant came to be investigated for sexually abusing the child. Thus, the courts below properly held that the statements did not constitute improper bolstering.

"The term 'bolstering' is used to describe the presentation in evidence of a prior consistent statement" (*People v Smith*, 22 NY3d 462, 465 [2013]). This Court has repeatedly held that it is generally improper to introduce testimony that the witness had previously made prior consistent statements, when there is no claim of either prompt outcry or recent fabrication (*see People v Rosario*, 17 NY3d 501 [2011]; *see also People v Fisher*, 18 NY3d 964, 966 [2012]; *People v McClean*, 69 NY2d 426 [1987]). In *People v Smith*, we recognized that such evidence "may, by simple force of repetition, give to a jury an exaggerated idea of the probative force of a party's case" (*Smith*, 22 NY3d at 466). A prior consistent statement may be admissible

when it is offered not for its truth, but for some other relevant purpose, for example to assist in “explaining the investigative process and completing the narrative of events leading to the defendant’s arrest” (*People v Ludwig*, 24 NY3d 221, 231 [2014]).

[2] Our decision in *People v Ludwig* similarly concerned allegations by the defendant that trial testimony improperly bolstered the child victim’s claims of sexual abuse. In that case, the child victim’s brother testified that one day while he and his sister—the child victim—were playing in the backyard, the child victim stated that the backyard smelled like something that happened with her dad. After being questioned by her brother as to the meaning of her statement, the child victim stated that the backyard smelled like penis. The brother made the child victim go inside and tell their mother what she had just said. The brother was allowed to testify to those statements over the defendant’s objection. This Court determined that the brother’s testimony was admissible as background information that assisted with the investigative process. So too here, the testimony of the child’s mother, sister and principal and the two officers was admissible as necessary background information to demonstrate what ultimately led to defendant’s arrest. The testimony of those witnesses included nonspecific statements that the child had made a disclosure and described what steps they took after hearing the disclosure.

In *Ludwig*, we acknowledged that “New York courts have routinely recognized that ‘nonspecific testimony about [a] child-victim’s reports of sexual abuse [does] not constitute improper bolstering [when] offered for the relevant, nonhearsay purpose of explaining the investigative process’” and assisting in the completion of the narrative of events which led to the defendant’s arrest (*id.* at 231, quoting *People v Rosario*, 100 AD3d 660, 661 [2d Dept 2012]). Here, the testimony of the child’s mother, sister and principal and the two officers fulfilled these legitimate nonhearsay purposes, and defense counsel’s objections to the testimony of the witnesses ensured that the witnesses did not specifically repeat what the child told them.

The majority of Dr. Thomas-Taylor’s testimony as to the child’s specific allegations of sexual abuse was admissible under *People v Spicola* (16 NY3d 441 [2011]). In *Spicola*, we held that testimony of a nurse-practitioner concerning the child’s history of sexual abuse was permissible testimony because the child’s statements to the nurse-practitioner “were germane to diagnosis and treatment” and therefore “were properly admit-

ted as an exception to the hearsay rule” (16 NY3d at 451). Applying *Spicola* here, the trial court properly admitted Dr. Thomas-Taylor’s testimony. The testimony explained why the child was being examined by Dr. Thomas-Taylor and why the normal results of the physical examination did not indicate that the child had not been subjected to sexual abuse. This background information completed the narrative and was properly permitted under the exception to the hearsay rule. Moreover, defense counsel lodged an objection to Dr. Thomas-Taylor’s testimony concerning the child’s history; however, that objection was overruled. Defense counsel can hardly be deemed ineffective on this score.

Trial counsel’s failure to request that a limiting instruction be given to the jury that the child’s testimony concerning the disclosures she made to other individuals should not be accepted for the truth of her allegations, does not render her ineffective in light of the totality of her representation of defendant (see *People v Benevento*, 91 NY2d 708, 712 [1998] [requiring examination of the totality of counsel’s performance to evaluate effectiveness]; *People v Baldi*, 54 NY2d 137, 147 [1981]). Moreover, defense counsel was not ineffective for failing to object to the prosecutor’s summation comments referencing the testimony of the witnesses to whom the victim had disclosed. Despite the dissent’s argument to the contrary, the failure to object to the prosecutor’s statement on summation does not negate the overall meaningful representation provided to defendant by his counsel. Defense counsel zealously advocated for defendant, making multiple successful objections which limited the testimony of several prosecution witnesses. Additionally, defense counsel may have made a strategic choice not to object during summation given that the witnesses were not able to testify to the specifics of the child’s allegations (see *People v Barboni*, 21 NY3d 393, 405-406 [2013]). She may have felt that such an objection would not be worthwhile given the limited testimony elicited from the witnesses. Such a strategic decision does not support a finding of ineffectiveness (see *People v Barboni*, 21 NY3d 393, 405-406 [2013]).

IV.

It is within the trial court’s discretion to determine whether a hearing on a CPL 440.10 motion should be ordered (see *People v Jones*, 24 NY3d 623, 635 [2014]; *People v Satterfield*, 66 NY2d 796, 799 [1985]). This Court, however, may review that

determination for an abuse of discretion (*see Jones*, 24 NY3d at 635). No abuse occurred in this case, as the record clearly indicates that defendant's trial counsel was not ineffective.

Accordingly, the Appellate Division order should be affirmed.

RIVERA, J. (dissenting). On constraint of *People v Ludwig* (24 NY3d 221 [2014]), I agree that defense counsel may not be considered ineffective for failing to object during the People's case-in-chief to testimony about the victim's disclosure of defendant's sexual abuse. However, the rule adopted in *Ludwig* is a narrow one, justified on the theoretical assumption that such testimony is admitted to assist the jury in understanding the events leading to a defendant's arrest (*id.* at 231), and not for its truth about the victim's allegations (*id.*, citing *People v Gregory*, 78 AD3d 1246 [3d Dept 2010]). Accordingly, while the prosecutor here could elicit the testimony, he exceeded the bounds of permissible summation by advocating that the victim's disclosure was proof of the abuse.

The prosecutor's exhortation to the jury was an invitation to misuse the testimony, and was especially prejudicial to the defense because the People lacked corroborating physical evidence of the abuse, the victim was the sole witness to defendant's actions, and the ultimate determination of guilt turned on the victim's credibility. Under such circumstances, defense counsel's failure to timely object and request an instruction directing the jury to ignore the prosecutor's argument constitutes ineffective assistance, mandating reversal and a new trial. Therefore, I dissent.

The premise of *Ludwig* is that testimony from a witness that the victim disclosed abuse is admissible for the "legitimate nonhearsay purposes" of "explaining the investigative process and completing the narrative of events leading to the defendant's arrest" (*id.* at 231-232). According to this reasoning, the testimony is admissible solely "to depict for the jury the circumstances attendant to the disclosure that triggered the investigation" (*id.* at 232). However, I continue to believe that *Ludwig* was wrongly decided because, as the dissent in that case explained, the majority's approach "eviscerates the hearsay rule and allows wholesale circumvention of the prompt outcry rule by countenancing the admission of prior consistent statements that provide a 'narrative' or 'investigative purpose' even where the investigative purpose is not in issue" (*Ludwig*, 24 NY3d at 235 [Lippman, Ch. J., dissenting]). Notwithstanding the *Ludwig* majority's determination to the contrary, "these

statements are obviously introduced to bolster the complainant's credibility and establish the truth of the accusation" (*id.* at 236 [Lippman, Ch. J., dissenting]), and do little to ensure the reliability of the victim's testimony (*id.* at 237).

The analytic error of *Ludwig* is compounded by that majority Court's failure to set appreciable limits on "narrative" testimony. The instant appeal is a prime example of the foreseeable evidentiary excesses made possible by the holding, and why *Ludwig* is a dangerous precedent that should be discarded. According to the record, after the victim recounted that she disclosed the abuse, the child's mother, sister and school principal, and two police officers also testified that the victim disclosed the abuse to each of them. Yet, there is no discernable explanation as to why five reaffirmations of the victim's disclosure were necessary background information about the investigation. Nor is there a plausible reason for three witnesses to testify similarly about the same-day disclosure to the police when disclosure is unchallenged. As this case illustrates, the potential for evidence to cross the line from "an explanation of the narrative" to improper bolstering of the victim's testimony is increased by the sheer numerosity of witnesses who testify that the victim disclosed. Defendant does not directly challenge the judge's evidentiary rulings, therefore given the posture of the appeal I agree that counsel is not ineffective for limiting her objections to the specific details of the abuse rather than the type of serial testimony presented in this case.

Counsel's failure to object and request curative instruction for the prosecutor's use of the testimony during summation is a different matter. The record establishes that the prosecutor made the testimony of non-victim witnesses the central theme of his argument that the victim's claims of abuse should be treated as fact. Even within the confines of *Ludwig*, the prosecutor's actions were improper because he relied on the testimony for the impermissible purpose of establishing that the defendant committed the acts as described by the victim.

The prosecutor argued to the jury that the case turned on whether the victim was telling the truth, and if the jurors believed the victim, they had to return a guilty verdict. He asked rhetorically, why would the victim "tell strangers, tell the police, me, you, [sic] grand jury" about the sexual abuse. The prosecutor implored the jurors to consider "why would [the victim] do this if it didn't happen, if it wasn't the truth." To

persuade the jury that the abuse occurred, the prosecutor emphasized that the victim repeatedly disclosed the abuse to several different people, including in formal legal settings. The prosecutor declared that

“[t]his is about the fifth time she’s talked about this. . . . According to her testimony, first time was June 25th to the police Then the next time, month later when she came to see me and then testified before the grand jury. And then she had again talked about this to the doctors. So again that, that will be about five times when she came here and told you what happened . . . [S]he’s told the story or she’s told, given this, these facts a number of times.”

Again, near the end of his summation, the prosecutor asked the jury to consider why the victim would “go through all this, lie to all these people if this didn’t happen?”

These excerpts leave no doubt that the prosecutor sought to bolster the credibility of the victim and establish the fact of the abuse through the victim’s repeated disclosure of her allegations. By arguing to the jury that it could base its credibility determination on the fact that the victim disclosed the abuse on several occasions to different people, and by characterizing the victim’s disclosures as statements of fact, the prosecutor re-purposed the testimony and mischaracterized its meaning. In a case that hinged on the credibility of the victim, defense counsel could only address the devastating impact of this summation argument by objecting and requesting the judge instruct the jurors that they could not rely upon the testimony in the manner advocated by the prosecutor.

Under these circumstances, counsel’s failure to act constituted egregious error that cannot be excused, as the majority argues, as part of a reasonable defense strategy (majority op at 696). The majority speculates that counsel discounted the impact of summation because the non-victim testimony did not include details of the abuse. However, the prosecutor’s focus on the victim’s repeated disclosure was the basis for arguing that the abuse occurred. The fact that the non-victim witness testimony lacked details of the victim’s allegations was irrelevant to the prosecutor’s point. Thus, to counteract the persuasive effect of the prosecutor’s argument, defense counsel had to lodge an objection and request that the judge instruct the jury on the proper consideration to be accorded the

testimony. Counsel did not take these necessary minimal steps, and as a consequence her representation was ineffective, and denied defendant a fair trial (*People v Baldi*, 54 NY2d 137 [1981]).

Judges PIGOTT, STEIN and FAHEY concur; Judge RIVERA dissents in an opinion; Chief Judge DiFIORE and Judge GARCIA taking no part.

Order affirmed.

[47 NE3d 718, 27 NYS3d 439]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JIN
CHENG LIN, Appellant.

Argued January 12, 2016; decided February 18, 2016

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Second Judicial Department, from an order of that Court, entered April 3, 2013. The Appellate Division modified, on the law, a judgment of the Supreme Court, Queens County (Gregory L. Lasak, J.), which had convicted defendant, upon a jury verdict, of murder in the first degree (six counts), murder in the second degree (six counts), burglary in the first degree and attempted robbery in the first degree. The modification consisted of vacating the second-degree murder convictions and dismissing those counts of the indictment. The Appellate Division affirmed the judgment as modified. The appeal to the Appellate Division brought up for review a prior order of that Supreme Court (Randall T. Eng, J.), which had denied, after a hearing, that branch of defendant's omnibus motion seeking to suppress his statements to law enforcement officials.

People v Jin Cheng Lin, 105 AD3d 761, affirmed.

HEADNOTES

Crimes — Confession — Voluntariness of Confession — Prearrestment Delay

1. In a murder prosecution arising from defendant's confession—made following his arrest for a lesser but related crime and after several hours of questioning across three days—to brutally killing his former girlfriend and her brother, a compelling case existed that the police were intentionally dilatory in delaying defendant's arraignment by more than 28 hours in violation of CPL 140.20 (1), but it could not be said, based on the totality of the circumstances and as a matter of law, that his confession was involuntary. Nor was the record devoid of support for the Appellate Division's determination of the underlying factual questions regarding defendant's detainment and interrogation in favor of upholding the hearing court's denial of his suppression motion. As there is no per se "ongoing investigation" exception to the clear statutory mandate that a person subject to a warrantless arrest be arraigned without unnecessary delay, delay for investigatory purposes is one factor to consider in assessing the voluntariness of a confession. Here, given the inordinate length of time between defendant's arrest and arraignment and the unsupported claims of an investigatory need to continue the questioning following his arrest, the record lacked support for a finding that the delay was necessary. Nevertheless, defendant was not subjected to the type of deprivations and psychological pressure characteristic of cases where a

coercive environment impacted the voluntariness of a confession. Though defendant spent most of the time in a windowless room, his basic human needs were provided for; the interrogations were intermittent with breaks; and he was informed of his rights early during the interrogation process.

Crimes — Confession — Voluntariness of Confession — Understanding of *Miranda* Rights

2. In a murder prosecution arising from defendant's confession—made following his arrest for a lesser but related crime and after several hours of questioning across three days—to brutally killing his former girlfriend and her brother, there was record support for the lower courts' determinations that defendant, while not totally fluent in English, understood the import of his *Miranda* rights, provided only in English, and knowingly waived them, and the fact that the opposite conclusion was just as plausible did not provide a basis for concluding that the lower courts erred as a matter of law. Defendant's confession thus could not be deemed involuntary on that ground. The detectives who interrogated defendant testified that they spoke to him in English and he responded in kind, that he had no difficulty communicating in English and that he never "articulated an inability to comprehend the nature or substance of what was being said." One of the detectives testified that he read defendant his rights in English from a preprinted *Miranda* warning sheet and that defendant did not request clarification or express any misunderstanding of the rights. Moreover, some of defendant's statements were written by his own hand in English, albeit with not insignificant grammatical errors. Finally, the People presented evidence that defendant went to school in the United States for seven years, that during a prior arrest on an unrelated matter he was provided *Miranda* warnings in both English and Cantonese and that he spoke English with an intake agent after his arraignment and with a correction officer during his subsequent detainment.

Crimes — Evidence — Hearsay — Videotaped Interview of Defendant

3. In a murder prosecution arising from defendant's confession—made following his arrest for a lesser but related crime and after several hours of questioning across three days—to brutally killing his former girlfriend and her brother, the trial court did not abuse its discretion by refusing to admit into evidence at trial a videotape of the failed attempt by an Assistant District Attorney to interview defendant following his confession. Notwithstanding that evidence concerning the voluntariness of defendant's confession was relevant as the confession was a key piece of the People's evidence establishing his guilt, it was undisputed that the videotape was hearsay and thus inadmissible unless it came within one of the hearsay exceptions. Though defense counsel represented to the court that he intended to introduce the videotape for the nonhearsay purpose of establishing defendant's appearance after the interrogation in response to the People's admission of his booking photograph, defense counsel declined the court's offer to admit a still photograph from the videotape, which would have served defendant's purpose of presenting the jury with evidence of his physical appearance and also avoided any potential confusion or misdirection created by the jury's consideration of defendant's linguistic skills based on the audio component of the video.

Crimes — Evidence — Hearsay — Defendant's Handwritten Notes

4. In a murder prosecution arising from defendant's confession—made following his arrest for a lesser but related crime and after several hours of

questioning across three days—to brutally killing his former girlfriend and her brother, the trial court did not abuse its discretion by refusing to admit into evidence at trial excerpts from handwritten notes prepared by defendant during the first day of questioning at the precinct. To the extent the excerpts where defendant claimed he was “imprisoned for the whole day” and that is how “American police do” were offered for their truth—to establish his confinement—the statements were inadmissible hearsay, and they did not contain complaints to anyone within the meaning of the prompt complaint exception. Even as evidence of defendant’s state of mind, the statements were of limited probative value because they were written based on defendant’s experience the first day of the interrogation, when he was not a suspect and before he was permitted to go home, saw his family and rested. The statements did not shed light on how defendant was treated when he returned to the precinct the next day or provide information about his state of mind at the time of his confession and other inculpatory statements.

RESEARCH REFERENCES

By the Publisher’s Editorial Staff

AM JUR 2d, Criminal Law § 914; AM JUR 2d, Evidence §§ 671, 674, 719–721, 723, 725, 726, 731, 733–735.

CARMODY-WAIT 2d, Confessions; Privilege Against Self-Incrimination §§ 176:20, 176:40, 176:82, 176:83, 176:94, 176:96, 176:131; CARMODY-WAIT 2d, Arrest or Other Detention; Post-Arrest Procedure § 177:132; CARMODY-WAIT 2d, Particular Types of Evidence §§ 194:71, 194:73, 194:75.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 6.2, 6.5, 6.8, 24.4.

McKINNEY’S, CPL 140.20 (1).

NY JUR 2d, Criminal Law: Procedure §§ 148, 564, 572, 621, 2050, 2054, 2055, 2087, 2090.

ANNOTATION REFERENCE

See ALR Index under Confessions and Admissions; Exclusion of Evidence; *Miranda* Warnings.

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Query: voluntariness defendant statement questioning dilatory

POINTS OF COUNSEL

Lynn W.L. Fahey, Appellate Advocates, New York City (De Nice Powell of counsel), for appellant. I. The People failed to

carry their heavy burden of proving that appellant's statements were voluntary and that he waived his *Miranda* rights when the police interrogated him in a small windowless room for days until he broke down and confessed, unlawfully delayed arraignment for two days during that extended interrogation, and never gave him adequate *Miranda* warnings. (*Rogers v Richmond*, 365 US 534; *Ashcraft v Tennessee*, 322 US 143; *Culombe v Connecticut*, 367 US 568; *People v Thomas*, 22 NY3d 629; *People v Anderson*, 42 NY2d 35; *People v Huntley*, 15 NY2d 72; *People v Guilford*, 21 NY3d 205; *Dickerson v United States*, 530 US 428; *Blackburn v Alabama*, 361 US 199; *Watts v Indiana*, 338 US 49.) II. The court denied appellant his due process rights to a fair trial and to present a defense by precluding evidence relevant to the key issue of whether appellant's confession was voluntary. (*People v Scarola*, 71 NY2d 769; *Taylor v Illinois*, 484 US 400; *Chambers v Mississippi*, 410 US 284; *People v Mateo*, 2 NY3d 383; *Crane v Kentucky*, 476 US 683; *People v Carroll*, 95 NY2d 375; *People v Blakeney*, 88 NY2d 1011; *Jackson v Denno*, 378 US 368; *Rogers v Richmond*, 365 US 534; *People v Huntley*, 15 NY2d 72.) III. By resubmitting only four counts of the original verdict for the jury's reconsideration and incorrectly explaining the verdict's "defect" to the jurors, the court denied appellant his right to a jury verdict uninfluenced by the court's view of the evidence. (*People v Salemmo*, 38 NY2d 357; *People v Tucker*, 55 NY2d 1; *People v Muhammad*, 17 NY3d 532; *People v Trappier*, 87 NY2d 55; *People v Loughlin*, 76 NY2d 804; *People v Miller*, 6 NY3d 295; *People v Cahill*, 2 NY3d 14; *People v Jamerson*, 99 AD2d 816; *People v Faulkner*, 77 AD2d 573; *Lau v Goord*, 540 F Supp 2d 399.)

Richard A. Brown, District Attorney, Kew Gardens (*Anastasia Spanakos*, *Robert J. Masters* and *John M. Castellano* of counsel), for respondent. I. The Appellate Division's determination that defendant's confession was voluntary is amply supported by the record and, as a mixed question of law and fact, is beyond further review. Moreover, the overwhelming independent forensic evidence rendered any possible error in admission of the challenged statements harmless. (*Matter of Jimmy D.*, 15 NY3d 417; *People v Scott*, 86 NY2d 864; *People v Porter*, 9 NY3d 966; *People v Shabazz*, 99 NY2d 634; *People v Oden*, 36 NY2d 382; *People v Harrison*, 57 NY2d 470; *People v Morales*, 42 NY2d 129; *People v McRay*, 51 NY2d 594; *People v Damiano*, 87 NY2d 477; *People v Gilford*, 16 NY3d 864.) II. The court did not abuse its discretion or violate defendant's right to present

a defense when it precluded hearsay evidence in the form of the videotape of his poststatement request for a lawyer and his unsolicited handwritten scribbles jotted down on the first day of questioning. (*People v Scarola*, 71 NY2d 769; *People v Alvin*, 71 NY2d 233; *Ando v Woodberry*, 8 NY2d 165; *People v Primo*, 96 NY2d 351; *People v Davis*, 43 NY2d 17; *People v Petty*, 7 NY3d 277; *People v Acevedo*, 40 NY2d 701; *People v Ventimiglia*, 52 NY2d 350; *People v Feldman*, 299 NY 153; *Crane v Kentucky*, 476 US 683.) III. Defendant's challenge to the court's response to the initial verdict is largely unpreserved for appellate review and wholly without merit. (*People v Gurley*, 42 NY2d 1086; *People v Bryant*, 31 NY2d 744; *People v Gray*, 86 NY2d 10; *People v Vidal*, 26 NY2d 249; *People v Liccione*, 50 NY2d 850; *People v Satloff*, 56 NY2d 745; *People v Cona*, 49 NY2d 26; *People v Muhammad*, 17 NY3d 532; *People v Carter*, 7 NY3d 875; *People v Morris*, 68 NY2d 799.)

OPINION OF THE COURT

RIVERA, J.

Defendant challenges his conviction on grounds that his confession was an involuntary product of untoward psychological pressure by police, and consequent fatigue induced during a prolonged interrogation, extended, in part, by unnecessary prearrest delay, manufactured for the sole purpose of procuring inculpatory statements. He also contends that due to his limited English language proficiency he did not understand the import of the *Miranda* warnings given to him, and, therefore, did not knowingly and voluntarily waive his rights to counsel or to remain silent, further establishing the involuntariness of his statements to the police.

Upon our careful review of defendant's case, we conclude that the record supports the court's ultimate determination that defendant sufficiently understood his rights and that his statements were voluntarily made. Defendant's additional grounds for reversal are either unpreserved or without merit. Therefore, the order of the Appellate Division should be affirmed.

I. Background

A. The Double Homicide

Defendant Jin Cheng Lin challenges his conviction for murder, burglary and attempted robbery arising from events leading to the deaths of Cho Man Ng and her brother Sek Man

Ng. Defendant knew both victims and had previously been romantically involved with Cho. Initially, defendant was not a suspect in the murders, but during the course of their investigation, detectives grew suspicious of his role in the crimes after they identified various inconsistencies in his statements to the police. After several hours of questioning across three days, and after having implicated two others in the crimes, defendant confessed to brutally killing Cho and Sek.

At the time of their deaths, Cho was 21 years old and worked at a telephone store, and Sek was 18 and a college student. Their parents had moved to Hong Kong and Cho and Sek lived together in an apartment in Queens. Defendant was two years older than Cho and they started dating when they were teenagers. At some point, Cho also dated Kevin Lee, who knew defendant from work. Cho and Lee eventually broke up, but approximately a year before her murder she restarted her relationship with Lee and broke up with defendant.

On the day of the murders, May 12, 2005, Sek was home while Cho was out with Lee. At approximately 9:00 p.m., Lee drove Cho to her apartment. Once back at his own home, Lee called Cho several times until she finally answered the telephone at approximately 9:25 p.m. According to Lee, Cho sounded weak and told him she was dizzy and that someone was in the house. He did not call 911, but immediately went to Cho's apartment. At about 9:30 p.m., while at work, Wailap Tsang received a call from Cho, and he also heard her say that someone was in her apartment. She told him that there was a lot of blood and asked him to call 911. Tsang drove to Cho's apartment instead.

When Lee arrived, he entered through the open, outside door and went to Cho's second floor apartment, and also found that door open. He could see a light from Sek's bedroom and noticed that his door was open. Lee saw a hand from under a blanket on the floor, and noticed that there was blood on the floor and walls. When he looked at Cho's bedroom door he saw that it was closed, but noticed blood on the door and doorknob. He then went outside and also called 911.

While Lee waited, Tsang arrived and called 911. The two men then stood outside the building until the police arrived. The police went up to the apartment and found Sek lying next to his bed, unconscious, in a pool of blood and partially covered with a blanket, his legs bound together. The officers then heard

a moan from Cho's bedroom and kicked in the locked door. They found Cho on the blood-covered floor, semi-conscious, with her stomach cut open. She was barely able to speak. The emergency medical technician pronounced Sek dead at the scene. Cho died at about 10:30 p.m. at the hospital.

B. The Investigation

In the hours following the discovery of the victims, detectives and other personnel arrived at the apartment and took pictures of the crime scene and Sek's body, dusted for fingerprints and collected other evidence. They found a flashlight, a piece of duct tape and a duct tape roll in Sek's room. They also collected a roll of masking tape and some masking tape with blood in Cho's room. In the bathroom, the detectives found a knife with the blade pointed up and the handle submerged in the toilet. The knife matched the brand of knives in a block on the kitchen counter. The officers observed blood on the walls, floor and bed in Sek's bedroom.

Throughout the course of their investigation, the police interviewed several individuals at the precinct about the murders, including Lee and Tsang. Most if not all were Asian, some were the victims' family and friends. Several police officers participated in the questioning at the precinct, including members from Queens Homicide and the Organized Crime Investigation Unit. Some officers spoke to interviewees in Cantonese as well as English.

Defendant was also one of the several people initially investigated, although at first he was not a suspect. After several hours of questioning, defendant confessed to the murders. He was charged with six counts of murder in the first degree, six counts of murder in the second degree, one count of assault in the first degree, three counts of burglary in the first degree, three counts of attempted robbery in the first degree, and criminal possession of a weapon in the fourth degree.

II. Defendant's Interrogation and the Suppression Hearing

Defendant moved to suppress his statements to the police. At the suppression hearing, the People submitted testimony from various detectives describing the investigation and defendant's interrogation, as well as testimonial and documentary evidence that defendant was sufficiently fluent in English to understand the surrounding events and his constitutional rights.

According to this evidence, on May 13th, the morning after the bodies were discovered and several hours into the investiga-

tion, between 7:00 and 8:00 a.m., Detectives Marshall and Schindlar went to defendant's home and asked him to come to the precinct to discuss the deaths of Cho and Sek. Defendant agreed, went to get his jacket and shoes, and left, uncuffed, with the detectives in a police car. While he was waiting for defendant, Marshall asked him about a scratch he observed on defendant's forehead. Defendant responded that he hit his head on a kitchen table in his home. Detective Marshall testified that he and defendant conversed in English during this time.

At the precinct, the detectives placed defendant in a 12-by-12-foot, windowless room that contained a desk and chairs. Marshall asked defendant if he wanted any food or drink and brought him some water. He did not discuss the crime or investigation with defendant at this time. Around 9:00 a.m., Marshall left defendant alone in the room while he went to attend the victims' autopsies.

Approximately two hours later, at 11:00 a.m., Detective Wong entered the room to speak with defendant. Defendant was not handcuffed and not under arrest. Wong had known defendant for seven to eight years, from when he was involved in defendant's prior arrest in 1998. Defendant had also assisted Wong in the past, by serving as a filler in lineups arranged by Wong.

Wong had been called to the precinct to assist with witness interviews. His discussion with defendant the morning of May 13th would be the first of approximately six to seven conversations between them on that day. According to Wong, he would enter the room and talk to defendant for no more than 15 minutes at a time, then leave to interview other persons who were being questioned at the precinct as part of the investigation into the murders. To Wong's knowledge defendant was alone in the room after Wong left.

Defendant and Wong spoke to each other in English and Cantonese, defendant's native language. During these conversations Wong did not consider defendant a suspect, nor did he advise defendant of his *Miranda* rights. Wong testified that he asked about defendant's relationship to Cho, and defendant told Wong that he knew her for approximately seven years and dated her for five of those years. Defendant and Cho had broken up approximately a year prior, when he discovered she was cheating on him with Kevin Lee. Defendant had come back from China two months before the murders, and he had seen

Cho twice since his return, both times at his home. On May 12th he went to Cho's apartment at about 4:15 p.m., and Sek let him in. Defendant gave Sek two animal figurines made from seashells for Cho and then, after approximately a half hour, he returned home, where he remained the rest of the night. His brother was with him all night, and his mother returned from work after 9:00 p.m. In response to questions from Wong, defendant stated three reasons why he went to Cho's apartment that day: to get contact information for Cho's parents, who were living in Hong Kong; to engage in sexual relations with Cho; and because he "didn't want anyone to think [she] was promiscuous." Wong reduced to writing the information he got from defendant during these conversations and read his notes into the record at the hearing. Wong further testified that he advised other detectives about what defendant had told him.

Around 10:00 p.m., Wong returned to the room where he, along with Detectives Hui and Shim, questioned defendant. Hui and Shim also assisted with interviews of others at the precinct that same day. During the conversation with these three officers, defendant spoke in both English and Cantonese to Wong and Hui, and in English to Shim.

Approximately five minutes after Hui entered the room, defendant asked to speak with him privately. After the other detectives left, defendant told Hui he was more comfortable speaking in Chinese. Hui spoke to defendant in Cantonese and told him not to waste his time. Defendant asked what would happen if he stuck it out to the end or if he talked. Hui then told him that a lot of suspects get away, as in leave the country, and if defendant knew who did it he should tell them. According to Hui, defendant then "guaranteed that the guy is not going to leave." He then said to Hui, "what if I left and two minutes later rang the doorbell again. [Sek] wouldn't come back down to check who it was." Defendant asked if they could work out a deal and Hui told him he was not the officer on the case, but would get someone to talk to him. As Hui left the room, defendant asked to use the bathroom and said that he did not want to "squat" in jail until he was 60 or 40 years old. Hui informed the other detectives about the conversation and defendant's interest in making a deal.

Prior to leaving defendant and Hui to speak alone, Wong observed that defendant was doodling in Chinese on a piece of paper. Wong took the paper and gave it to Detective Marshall.

The translated version of these writings admitted into evidence at the hearing, states, in relevant part:

“I was imprisoned for the whole day

“For the whole day, that is how American police do,

“Freedom . . . have not but say have

“Yes but say no, no but say yes,

“He who is involved, laughs so loudly, but he

“Who not involved is harassed. . . .

“Everyone say it is I,

“Do I look like a murderer?

“Will anyone help me,

“Heaven and earth help” (Internal quotation marks omitted.)

After Lieutenant Belluchi decided to let defendant go and continue the questioning the next day, Marshall and Schindlar drove defendant home between midnight and 1:00 a.m. on May 14th. Defendant was not handcuffed, and Marshall asked him if he would return to the precinct the following day. Defendant responded that Marshall could call and pick him up, and that it was “no problem.”

At 11:00 a.m. the following morning, Marshall and Schindlar met defendant at his home, and Marshall drove him back to the precinct where the detectives again placed him in the same room from the prior night. At 11:40 a.m., Marshall read defendant his *Miranda* rights in English from a form. Defendant wrote “yes” after each question regarding whether he understood the particular right mentioned, including his right to remain silent, to consult with an attorney before speaking with the police, and to have the attorney present during the questioning. Marshall then asked whether defendant was willing to answer questions, and defendant indicated that he was. Defendant, Marshall and Schindlar signed this form, and it was admitted into evidence.

Marshall and Schindlar proceeded to interview defendant for the next 1½ to 2 hours. They discussed his relationship with Cho and Sek, and defendant again explained that he went to the apartment between 3:00 and 4:00 p.m. in order to give Cho the figurines and that he returned home at about 5:00 p.m.

After talking to defendant, Marshall and Schindlar left defendant alone to go speak to witnesses at the precinct about the figurines. Upon learning from one person that Cho had the figurines in her apartment for several weeks before her death, Marshall returned to the room and confronted defendant with this information.

He told defendant they knew he had not told the truth, but defendant stuck to his story. Marshall then spoke with him for an hour before again leaving him alone. About an hour later, at 7:00 p.m., the detectives returned and questioned him until about 8:30 p.m. during which time he changed his story and said that he went to Cho and Sek's apartment on May 12th to facilitate a robbery. Defendant described how since his return from China he had been working for a Chinese bakery and restaurant in Connecticut. At the restaurant, he met a man named Gong, who told him about a plan to rob a house in New Hampshire, and asked defendant if he knew where Gong could get money for guns and a car. Defendant told Gong that there was money at Cho and Sek's home. Defendant claimed he did not want to participate in the robbery, and gave Gong the address and described Cho's car.

Defendant claimed that Gong called him at the end of April and during the first week of May and asked about how he could get into the apartment. Defendant told Gong that he would go to the apartment on the afternoon of May 12th, and let Gong in. In exchange, Gong told defendant that he would give him money from the planned New Hampshire robbery. Then, as planned, he went to the apartment on May 12th at 4:00 p.m. Sek let him in and they talked for about 30 minutes. As defendant left the apartment, he passed a Fukienese man standing next to the front door talking on a cell phone. As he walked away, defendant watched the man enter the building. Defendant went home. Gong never called. Defendant wrote out this story in English, signed and dated the document, and noted 9:00 p.m. next to his signature. Marshall also signed the document, which was read and admitted into evidence at the suppression hearing.

After defendant completed the document, Marshall informed him that he was under arrest for assisting in the robbery. Marshall left the room and prepared an online arrest form for defendant at approximately 9:30 p.m.

The detectives then proceeded to follow-up on defendant's version of the events and tried to locate Gong and the Fuk-

ienese man. They contacted police in New Haven, Connecticut and an FBI agent. Between 9:30 p.m. on May 14th and 1:00 a.m. on May 15th, they showed defendant photographs of people named Gong but he did not identify anyone from these pictures.

Around 1:00 a.m. Detective Warner entered the room and spoke with defendant in English to get more information about Gong. During this 90-minute questioning, defendant gave names of others who he claimed worked with Gong, and further elaborated on his story. He claimed that he met Gong two or three times at a food corporation in Connecticut, and that Gong told him he had robbed a bookie in New Hampshire. Defendant told Gong that Cho's apartment would be a good place to rob, and provided Gong with information about the physical area around the apartment and specific directions to the residence.

Then at around 5:00 a.m. defendant knocked on the door of the interrogation room, as he had in the past when he wanted to go to the bathroom or drink water. According to Marshall, defendant had been resting on the chairs and when he went in defendant said he wanted to talk. Defendant added again to his story and said that he told Gong and the Fukienese man that Cho stored money in small boxes. Defendant indicated that he helped with the robbery because Gong promised to give him money from their next job. Defendant explained that he thought the men would have guns, but he did not know that Gong and the Fukienese man would hurt Cho and Sek. Defendant told Marshall that he had lied during his first interview because he was scared when he learned that Cho and Sek had been killed. Defendant wrote out a statement in English commemorating this version of his story. He signed and dated it May 15th with a time of 5:00 a.m. This document was also read and admitted into evidence.

At 11:00 a.m. Marshall and Detective Schmittgall entered the room and questioned defendant in English for the next three hours. Schmittgall first informed defendant that the prior *Miranda* warnings still applied, including the right to a lawyer, and asked if he wished to talk to them. Schmittgall testified that

"I did not read the [*Miranda*] card . . . I did not read him any questions [from the card] and ask him to respond to them. I asked him if he was still willing to speak to us and he knows the same rights

apply as to [a] lawyer and everything. He said I'm willing to speak."

Defendant said he was willing to speak to the detectives and then proceeded to give them a more detailed description of Gong. At the conclusion of this questioning the detectives got defendant food and then they left for the crime scene.

Upon their return to the precinct around 6:00 p.m., they learned from another detective that Sek maintained an online diary and that on the day of the murders Sek made an entry about defendant. The entry stated that defendant had arrived at Sek's apartment asking for fishing poles. Sek had asked defendant to remain downstairs, but defendant entered the apartment and stayed for about an hour, walking around the apartment and smoking cigarettes.

Marshall and Schmittgall decided to confront defendant with a story that Sek survived and had told them that defendant had gone to the apartment looking for the fishing poles. At 9:00 p.m. on May 15th, they entered the room and interrogated defendant for approximately the next four hours. They proceeded along the lines they had planned, and told defendant a fabricated story that Sek was in critical condition at the hospital, but was able to tell them that defendant went to the apartment looking for something. They asked defendant what he went to get. Defendant repeated his prior story that he went looking for Cho and he also talked about the figurines. Schmittgall wrote "fishing pole" on a piece of paper and turned it facedown. He told defendant that he wrote on that paper what defendant went looking for in the apartment. In response to Schmittgall's questions about whether anyone else was in the room and was Cho present, defendant said he and Sek were alone. Schmittgall then passed the paper to defendant who turned it over. Defendant's face flushed. Schmittgall said no one else could have told him about the poles because defendant admitted no one else was in the apartment. Schmittgall then told defendant that he knew the intention was not murder and that it was not black and white, that there was more to it and that they needed defendant to explain.

Defendant broke down and cried for approximately 15 to 20 minutes. The detectives gave him tissues, water and cigarettes. Once defendant composed himself they told him it was time to explain what happened. Defendant told them that he went to the apartment to ask for the fishing poles. Once inside, he was walking around in the apartment and grabbed a knife from the

kitchen. He went into Sek's room, held the knife to Sek's throat, and forced him to bind his legs and ankles with tape. He searched the apartment for money but found nothing. When Cho came home, he turned out the lights, got behind her, put the knife to her neck and forced her to tie herself up. Sek then "went crazy," and started breaking free, so defendant stabbed him. Then, Cho started "going crazy," so defendant stabbed her in the stomach. The detectives asked defendant to tell them something about the incident that no one else would know. Defendant indicated that Cho's door was locked and that he had put the knife in the toilet. The detectives asked defendant to put his statement in writing, which he did, in English, and then signed and dated it with a time of 12:55 a.m., May 16th.

The detectives briefly left the room. Upon their return Marshall wrote down a series of questions about specific details of the murder scene and victims that he posed to defendant, to which defendant responded in writing. Defendant signed the paper at 1:30 a.m., and the detectives again left the room. They returned a short time later and repeated the process, eliciting answers that defendant arrived in the United States at age 14, and attended U.S. schools. Defendant signed this document at 2:00 a.m. on May 16th.

At 11:02 a.m. on May 16th, an Assistant District Attorney (ADA) attempted to interview defendant on videotape. During the several attempts to explain defendant's right to consult with an attorney before speaking with the police, defendant eventually indicated that he wanted to speak to a lawyer.

As the testimony revealed, defendant spent most of the interrogation in the room, and exited only when he left on May 13th to go home, and on May 15th and 16th to go to the bathroom or the lunchroom. At various times he was removed from the room either for a bathroom break, or because the police needed the room to question someone. If they needed the room, defendant was placed in a cell. Throughout this process he was provided with water, food and cigarettes. Once he was arrested he was not permitted to leave the room alone. According to Marshall, during breaks in the questioning defendant would lay back on one of the chairs and put his feet up on another, and then doze off.

The People presented additional evidence to establish defendant's English language skill and understanding of his rights. The People submitted a report from the New York City

Criminal Justice Agency (CJA),¹ prepared at his arraignment, that indicated his age, address, and that he had completed the 11th grade. A CJA representative testified that the interview must have been conducted in English because the form indicated that defendant was interviewed at Central Booking, and interviews in other languages are conducted at the courtroom, with an interpreter, prior to arraignment. The People presented testimony from a correction officer who spoke with defendant seven to eight times in English during his incarceration in Rikers Island, in May and June of 2006, three to four months before the *Huntley* hearing. The People also presented testimony about defendant's understanding of *Miranda* rights. Detective Chin testified that defendant had been arrested seven years prior, on an unrelated matter. At that time, Chin and Wong advised defendant of his *Miranda* rights in both English and Chinese, and also provided those rights, in writing, in both languages. Chin stated that he spoke with defendant in English and that he referred both to "lawyer" and "attorney" when reading defendant his rights, and that defendant wrote the word "yes" next to each right and signed the form. Wong then repeated the warnings in Chinese and defendant responded "yes" in Chinese.

The court denied defendant's motion to suppress, concluding that his statements were voluntary. The court found that the defendant was not in custody on May 13th, voluntarily returned on May 14th, at which time he was informed of his *Miranda* rights, and was not in custody until approximately 9:00 to 9:30 p.m. on the 14th, when he gave statements regarding his involvement in a plot to rob the victims. The court further concluded that, while defendant "was not totally fluent in English," the evidence of defendant's school attendance in the United States, the testimony from detectives who questioned defendant about the murders and the unrelated prior arrest that they had communicated with him in English without difficulty, and the fact that defendant did not articulate an "inability to comprehend the nature or substance of what was being said to him," established that he "was able fully to understand the 'immediate import of the warnings' read to him."

1. As relevant here, the CJA conducts "pre-arraignment interview[s] and makes a release recommendation assessing defendants' likelihood of returning to court" and "notifies released defendants of upcoming court dates to reduce the rate of non-appearance" (New York City Criminal Justice Agency, <http://www.nycja.org/>).

III. Defendant's Conviction and Appeal to the Appellate
Division

At trial, several of the officers essentially repeated their testimony from the suppression hearing. In addition, all of defendant's written statements, including his confession, were admitted into evidence, as was testimony about Sek's online diary entry post on the day of the murders.

There was medical and forensic evidence that Sek and Cho suffered multiple knife wounds and died as a result of sharp force injuries. Sek was bound with duct tape on the lower shins and calves and a band of masking tape. Adhesive residue was found on Sek's wrist and neck. He suffered a five-inch-deep stab wound to the neck, and died from loss of blood as a result. Cho suffered multiple stab and incised wounds of varying depths to her face, neck and torso, including an eight-inch torso wound that perforated her left abdominal wall. Cho died from the sharp force injuries to her upper body. Although the knife recovered from the apartment could not be tested because the handle had been submerged in the toilet water, according to the People's expert, the knife could have caused the victims' wounds.

Physical proof of defendant's involvement in the crimes consisted of DNA and fingerprint evidence. The DNA under Cho's fingernails was a mixture of her DNA and a male contributor's genetic material. Based on a comparison of the partial profile that was able to be developed of the male contributor's DNA and defendant's DNA, the People's expert concluded that defendant's DNA profile was consistent with the male DNA found under Cho's fingernails. Defendant's left palm print matched prints taken from above Sek's bed. Prints from the middle and pinky fingers of defendant's right hand matched two prints on the core of the duct tape roll found in Sek's bedroom, and two prints on the duct tape on Sek's leg matched defendant's left thumb. The print on the flashlight battery found in Sek's bedroom also matched defendant's left thumb.

Defendant sought to enter into evidence excerpts from the notes he wrote on May 13th while he was at the precinct, as well as the videotape of his May 16th meeting with the ADA when he invoked his right to counsel. Defendant claimed that both were relevant to establish that he was subjected to a coercive environment and that his confession was involuntary.

The trial court denied both requests, but said it would permit defendant to admit a still photograph from the videotape. Defendant declined this offer.

The trial court submitted 14 counts to the jury: six counts of murder in the first degree, six counts of murder in the second degree, burglary in the first degree, and attempted robbery in the first degree. The jury returned an initial verdict finding defendant not guilty of counts two (murder in the first degree during the course of a burglary in the first degree as to Sek), four (murder in the first degree during the course of an attempted robbery as to Sek), and five (murder in the first degree as to Sek and Cho), and guilty of all of the remaining counts, including count eight (intentional murder in the second degree of Sek).

Outside of the jury's presence, the court informed counsel that it would instruct the jury that counts two, four, five, and eight were inconsistent, and "direct them to go back and continue their deliberations and reconsider their verdict as to those four counts only." Defense counsel objected to "sending them back to redeliberate on counts two, four, five and eight only," arguing that "the jury has obviously had some misunderstandings about the law and how it's applying the facts to the law. We believe they should go back and redeliberate on all of the 14 counts and come out with an appropriate verdict." The court noted the objection, but adhered to its ruling, and resubmitted the four counts to the jury, with the following instructions,

"I cannot accept those verdicts because they are inconsistent. They are inconsistent. That's counts two, four, five, in which you found the defendant not guilty, and count eight in which you found the defendant guilty of murder two which is the intentional killing of Sek Man Ng. I'm going to direct you to go back into the jury room because I can't accept the verdicts on those four counts only.

"I direct you to deliberate on those four counts only and reconsider your verdict on those four counts only. If you should need any further instruction on the law on those four counts, I will be glad to give it to you. Just have a note prepared and signed by your foreperson."

After further deliberation, the jury returned guilty verdicts on the resubmitted counts.

The Appellate Division, in a 3-1 decision, modified the judgment by vacating the convictions and sentences on the second-degree murder counts, and, as modified, affirmed. The Appellate Division concluded that the hearing court properly denied defendant's motion to suppress his statements to law enforcement officials, and rejected defendant's other claims that the trial court made erroneous and prejudicial evidentiary rulings in violation of his due process rights, and had mishandled the jury verdict in violation of his right to a fair trial (105 AD3d 761, 762 [2d Dept 2013]).

The dissenting justice opined that the confession should have been suppressed, and the videotape and notes admitted as evidence of the involuntariness of defendant's confession (105 AD3d at 763 [Hall, J.]). The dissenter granted defendant leave to appeal (21 NY3d 1012 [2013]). We now affirm.

IV.

On appeal, defendant asserts that the judgment should be reversed and a new trial ordered on the grounds that the People failed to establish that his statements to the police were voluntary and that he knowingly and intelligently waived his *Miranda* rights. Defendant further argues that reversal is required because the trial court denied his right to present a defense by precluding evidence in support of his claim that his confession was involuntary, and that the judge mishandled the jury's original repugnant verdict.

The People respond that the record establishes defendant understood his rights, notwithstanding his lack of English fluency, and that his statements were not coerced by the police, but instead made voluntarily by defendant during the investigatory process. The People also argue that the trial court properly exercised its discretion in precluding defendant's proposed hearsay evidence of his appearance on the videotape and defendant's handwritten notes from his first day of questioning.

A. Voluntariness of Defendant's Statements

[1] We are well aware of the potential damaging effect on our justice system associated with claims of unlawfully procured inculpatory statements, as well as the need to ensure that our laws, and the rights and guarantees thereunder, apply fairly, regardless of the English language skills of persons entering our courts (*see People v Williams*, 62 NY2d 285, 289

[1984]). Therefore, we have assiduously scrutinized allegations, like those asserted here, that a defendant was not apprised of the rights applicable to those in custody or had little capacity to fully comprehend rights afforded under our laws, or that a defendant succumbed to pressures associated with a coercive environment (see e.g. *People v Guilford*, 21 NY3d 205 [2013]; *People v Anderson*, 42 NY2d 35, 38 [1977]). While defendant makes a compelling case that the police were intentionally dilatory in delaying his arraignment and thus prolonged his detention, we cannot say, based on the totality of the circumstances and as a matter of law, that his statements were involuntary.

It is the People's "heavy burden" (*People v Holland*, 48 NY2d 861, 862 [1979]) "to prove beyond a reasonable doubt that statements of a defendant they intend to rely upon at trial are voluntary" (*People v Thomas*, 22 NY3d 629, 641 [2014]). In order to assess the voluntariness of defendant's statements, a court must consider the totality of the circumstances because "[a] series of circumstances may each alone be insufficient to cause a confession to be deemed involuntary, but yet in combination they may have that qualitative or quantitative effect" (*Anderson*, 42 NY2d at 38, citing *People v Leyra*, 302 NY 353, 363 [1951]). Statements must not be "products of coercion, either physical or psychological" (*Thomas*, 22 NY3d at 641), meaning that they must be the "result of a 'free and unconstrained choice by [their] maker'" (*id.*, quoting *Culombe v Connecticut*, 367 US 568, 602 [1961]). A court's determination that a defendant's confession is voluntary is a mixed question of law and fact (see *Matter of Jimmy D.*, 15 NY3d 417, 423 [2010]; *People v Scott*, 86 NY2d 864, 865 [1995]). Our review is limited to whether record support exists for the court's resolution of factual questions underlying the court's totality of the circumstances assessment, including any reasonable inferences drawn therefrom (*id.*; see *People v McRay*, 51 NY2d 594, 601 [1980]), unless we determine, as a matter of law, that "the proof [does not meet] the reasonable doubt standard at all" (*Anderson*, 42 NY2d at 39).

Defendant argues that the voluntariness of his statements must be considered in light of the confinement conditions he was exposed to during his lengthy detention and the unjustified prearraignment delay following his arrest. This Court has stated that "an undue delay in arraignment should properly be considered in assessing the voluntariness of a defendant's

confession” (*People v Ramos*, 99 NY2d 27, 35 [2002]), and may serve as “a significant reason why [a] defendant’s confession could not be considered voluntary” (*id.* at 35, citing *Anderson*, 42 NY2d at 39; *Holland*, 48 NY2d at 862-863 [delay in arraignment is “one factor to be considered in assessing the voluntariness of a confession”]). To be clear, the overriding concern is not with the mere fact that a delay has transpired, but rather with the effect of an unnecessary time lag between arrest and arraignment on a defendant’s ability to decide whether to speak and how to respond to questioning. Thus, while unwarranted prearrest delay is a “suspect circumstance,” (*Holland*, 48 NY2d at 862), the Court has acknowledged that “except in cases of involuntariness, a delay in arraignment, even if prompted by a desire for further police questioning, does not warrant suppression” (*Ramos*, 99 NY2d at 35, citing *People v Dairsaw*, 46 NY2d 739, 740 [1978]; *Anderson*, 42 NY2d at 39; *People v Johnson*, 40 NY2d 882, 883 [1976]; *People v Alex*, 265 NY 192, 194 [1934]; *People v Malinski*, 292 NY 360, 371 [1944]; *People v Elmore*, 277 NY 397, 404 [1938]; *Holland*, 48 NY2d at 862-863). Thus, a court must give careful consideration to a delay that impacts a defendant’s resistance by extending exposure to the pressures of interrogation to the point where a defendant’s will bends to the desires of the interrogators, or during which a defendant is led to believe that the only way to end interrogation is by bargaining away legal rights.

Here, defendant claims that the 28-hour delay in his arraignment was unnecessary, and intended to keep defendant for further interrogation in order to extract a confession and other inculpatory statements. He contends that this unjustified prolonged delay is further proof that his confession was involuntary, and must be suppressed. Defendant relies on CPL 140.20 (1) in support of his argument that police must take immediate steps to assure prompt arraignment, and that they failed to do so in his case.

That section provides, in relevant part, that

“[u]pon arresting a person without a warrant, a police officer, after performing without unnecessary delay all recording, fingerprinting and other preliminary police duties required in the particular case, must . . . without unnecessary delay bring the arrested person or cause him to be brought before a local criminal court and file therewith an

appropriate accusatory instrument charging him with the offense or offenses in question” (CPL 140.20 [1]).

Although “[t]he Legislature did not set rigid temporal limits in enacting CPL 140.20 (1)[,] nor do we in construing it[,] . . . the statute requires that a prearrestment detention not be prolonged beyond a time reasonably necessary to accomplish the tasks required to bring an arrestee to arraignment” (*People ex rel. Maxian v Brown*, 77 NY2d 422, 427 [1991]). The Court has recognized that suppression is but one appropriate remedy for a violation of this statute, where the delay is unrelated to facilitating arraignment and “affect[s] the voluntariness of a confession” (*Ramos*, 99 NY2d at 36, citing *Holland*, 48 NY2d at 862-863).

The People argue, as they did before the suppression court and the Appellate Division, that the delay here was for a valid investigative purpose. The People assert that the police needed defendant’s assistance because he was the only person who could identify Gong and the Fukienese man. Therefore, any delay in arraignment was necessary and appropriate.

As a threshold matter, we reject any suggestion that the statute provides a per se “ongoing investigation” exception to its clear mandate that a person subject to a warrantless arrest be arraigned without unnecessary delay. The statutory text lends no support for such a sweeping and unlimited exemption. Significantly, there is no reference to investigations in the list of categorized exclusions to the prompt arraignment requirement set forth in CPL 140.20 (1) (CPL 140.20 [2], [3]). In fact, the only reference to ongoing investigations is found in CPL 140.20 (7), which states that

“[u]pon arresting a person . . . without a warrant, a police officer shall, upon the arrested person’s request, permit [such person] to communicate by telephone . . . for the purposes of obtaining counsel and informing a relative or friend that [the person] has been arrested, unless granting the call will compromise an ongoing investigation or the prosecution of the defendant.”

As this subdivision illustrates, the legislature knew to include language so as not to imperil an ongoing investigation or prosecution of a defendant. The absence of similar language in CPL 140.20 (1) suggests that an investigation cannot serve as an automatic excuse for open-ended questioning solely intended

to undermine the very rights protected by the statute (*see* McKinney's Cons Laws of NY, Book 1, Statutes § 240, Comment at 412-413 ["where a statute creates provisos or exceptions as to certain matters the inclusion of such provisos or exceptions is generally considered to deny the existence of others not mentioned"]). As this Court has stated, section 140.20 "is designed to protect against unlawful confinement and assure that persons accused are advised of their rights and given notice of the crime or crimes charged" (*Ramos*, 99 NY2d at 36). A per se rule that a delay associated with an investigation can never be unnecessary, regardless of the circumstances, would undermine the salutary goals of CPL 140.20 (1).

Instead, a delay for investigatory purposes is treated the same as any other prearrest delay: "one factor . . . in assessing the voluntariness of a confession" (*Holland*, 48 NY2d at 863). That is not to say that a delay under the guise of an investigation, which yields no more than a defendant's inculpatory statements, and was intended solely to prolong detention just long enough to secure a confession, should be considered the equivalent to a delay caused by purely ministerial or administrative tasks. For where the intent is to overbear the will of an individual, and the results prove successful, prearrest delay cannot be tolerated.

Given the inordinate length of time between defendant's arrest and arraignment and the unsupported claims of an investigatory need to continue the questioning following his arrest, we have no difficulty concluding that the record lacks support for a finding that the delay was necessary. Here, defendant was arrested at 9:00 p.m. on May 14th, after 10 hours of intermittent questioning at the precinct. Over 24 hours later, he made an oral confession, at approximately 9:30 p.m. on May 15th, and completed a signed written confession 4½ hours later, at 2:00 a.m. He was then arraigned more than 28 hours after his arrest, in excess of the 24-hour delay this Court determined to be presumptively unnecessary in *People ex rel. Maxian*.

Although the People claim that the police held over defendant because they needed his help in apprehending Gong and the Fukienese man, they fail to explain why the police continued to detain and question defendant without arraignment after he provided a description of the men and where he met Gong, discussed his conversations with Gong, described the plans for the out-of-state crime, and reviewed all the police

photographs collected as a result of the police investigation. The People do not state what other information the police hoped to obtain that would have aided their search for these two men or in their efforts to prevent a future crime. We are particularly concerned about the undefined outer limits of this investigation. Taken to its logical conclusion, the People's argument would permit the police to detain defendant incognito, for as long as it takes to locate the two men. A delay without end in sight, of course, is exactly what our cases and CPL 140.20 (1) do not permit (*see Holland*, 48 NY2d 861; *Dairsaw*, 46 NY2d 739; CPL 140.20 [1] [(u)pon arresting a person without a warrant, a police officer . . . must . . . without unnecessary delay bring the arrested person . . . before a local criminal court]).

Even if we accepted the People's argument that some delay for the investigation into Gong and the Fukienese man was appropriate, we would still conclude that there was unnecessary prearrest delay. According to the People, the police began actively searching for these two men after defendant told his story inculcating them in the murders during his interrogation between May 14th at 9:30 p.m. and 1:00 a.m. on May 15th. When Detectives Marshall and Schmittgall learned of Sek's blog at 6:00 p.m. on May 15th, they turned their focus to defendant as a suspect in the murders and developed a plan to extricate information from him. At that point, the detectives continued defendant's confinement and interrogation until he signed his confession at 2:00 a.m. According to the record, by then all the police had done was complete an online booking form, hardly the type of efforts intended to ensure the prompt prearrest delay required by CPL 140.20.

We now consider whether, given this undue delay, the People have established the voluntariness of defendant's statements. Although the cumulative length of defendant's detention and the undue prearrest delay are troubling, we cannot say, as a matter of law, that the People failed to meet their burden of proving beyond a reasonable doubt that defendant's confession was voluntary. Nor, on this mixed question of law and fact, is the record devoid of support for the Appellate Division's determination of the underlying factual questions regarding defendant's detention and interrogation.

Defendant claims his statements were the product of exhaustion and psychological pressures that made him feel helpless, and that his only hope for relief was to confess. He points to the fact that he was intermittently interrogated at the precinct

by several officers over the course of four days, in a small, windowless room with no bed, where he was confined and held for over 24 hours after his arrest until he broke down and confessed to the double murder. Despite defendant's advocacy that his confession was involuntary, we are unpersuaded that his case shares the characteristics common to those in which this Court has determined that a coercive environment impacted on the voluntariness of a defendant's statements. Those cases typically involved deprivation of food, water, and sleep during the course of a prolonged interrogation, with defendants confined and isolated from all but law enforcement personnel, and on occasion they were led to believe that they had to bargain for their right to counsel. As a consequence, defendants in those cases often demonstrate emotional and physical breakdowns.

For example, in *People v Holland*, the defendant's prearrest detention lasted 48 hours, over three different days, during which he was subjected to what the Court characterized as "prolonged and vigorous interrogation," and the defendant languished in a cell between periods of questioning (48 NY2d at 863). Moreover, defendant was induced to make inculpatory statements because he "was led to believe that if he confessed he would not be incarcerated, nor be returned to Louisiana on an outstanding fugitive warrant, but rather would be assigned to a mental facility" (*id.*). The Assistant District Attorney in fact dissuaded defendant from exercising his right to counsel. In *People v Anderson* (42 NY2d 35 [1977]), a 19-hour interrogation was conducted "in relays" by a total of eight or nine officers operating in teams. The detention was continuous, and the defendant was confined, incommunicado, to a windowless interview room, without food, and deprived of sleep, with the officers actively waking him when he dozed. He was not apprised of his right to counsel for over 13 hours (*id.* at 39-41). In *Guilford*, the defendant was detained for 49½ hours, often in a 10 by 10 windowless room, without a clock (21 NY3d 205). He was under observation the entire time, and the interrogations were conducted by various officers, in rotation. There was no direct evidence that he had slept or eaten. The officers described the defendant on the second day of interrogation as appearing defeated and that he had "given up" (*id.* at 210). The defendant confessed in exchange for a lawyer, who finally met with him after three days. At that time, the lawyer described defendant as emotional and distraught (*id.* at 211).

Defendant here was not subjected to the type of deprivations and psychological pressure described in *Holland*, *Anderson* and *Guilford*. Although defendant was detained for over 24 hours, and spent most of the time in a windowless room, his basic human needs were provided for because he was able to eat, drink, and take bathroom breaks. He was even allowed to smoke cigarettes. Unlike the tactics used in *Anderson* and *Guilford*, the interrogations were not done in continuous rotations, but rather were intermittent, and provided breaks during which defendant was able to rest and sleep, as well as remain silent and consider his situation. Defendant was not placed in the untenable position of bargaining his rights as in *Holland* and *Guilford*, as he was neither induced to confess in order to speak with a lawyer, nor dissuaded from exercising his rights to counsel or to remain silent. Instead, as the detectives testified and the *Miranda* form indicates, defendant was informed of his rights early during the interrogation process. The record establishes defendant confessed only once he was faced with evidence of his guilt, not because he was exhausted and desperate to escape his interrogators. Thus, the totality of the circumstances here does not “bespeak such a serious disregard of defendant’s rights, and [was not] so conducive to unreliable and involuntary statements, that the prosecutor has not demonstrated beyond a reasonable doubt that the defendant’s will was not overborne” (*Holland*, 48 NY2d at 863).

Defendant further contends that his statements cannot be considered voluntary because the People failed to establish that he knowingly waived his *Miranda* rights, in light of his lack of English language fluency. Defendant argues that he is a Chinese immigrant with severely limited English language skills. As a consequence, he claims he was unable to understand the meaning of his rights because they were provided only in English, a fact obvious from the videotaped interview illustrating his ignorance of the meaning of the word “attorney” and the concept of the “right to remain silent,” as well as his overall difficulty in speaking with the ADA.

[2] A defendant’s waiver of his *Miranda* rights must be knowing, voluntary, and intelligent (*Miranda v Arizona*, 384 US 436, 444 [1966]; *People v Dunbar*, 24 NY3d 304, 314 [2014]). Defendant is correct that if his English language comprehension was so deficient that he could not understand the import of his rights, his confession could not have been voluntary (see *Williams*, 62 NY2d at 289). However, whether defendant’s

waiver was knowing and intelligent is “essentially a factual issue that must be determined according to the circumstances of each case” (*id.* at 288). The People must establish that the defendant “grasped that he or she did not have to speak to the interrogator; that any statement might be used to the subject’s disadvantage; and that an attorney’s assistance would be provided upon request, at any time, and before questioning is continued” (*id.* at 289). “[W]here the facts are disputed, where credibility is at issue or where reasonable minds may differ as to the inference to be drawn from the established facts, this court, absent an error of law, will not disturb the findings of the Appellate Division and the suppression court” (*People v McRay*, 51 NY2d 594, 601 [1980]). Here, there is record support for the lower courts’ determinations that defendant understood the import of his *Miranda* rights.

At the suppression hearing Detectives Wong, Marshall, and Schmittgall testified that they spoke to defendant in English and he responded in kind, that he had no difficulty communicating in English, and never “articulated an inability to comprehend the nature or substance of what was being said.” Detective Marshall testified that he read defendant his rights in English from a preprinted *Miranda* warning sheet, and that defendant did not request clarification or express any misunderstanding of the rights. Defendant’s statements—concerning Gong and his confession—are written by his own hand in English, albeit with not insignificant grammatical errors. The People also presented evidence that defendant went to school in the United States for seven years; during a prior arrest on an unrelated matter he was provided *Miranda* warnings in both English and Cantonese; and he spoke in English after his arraignment with an intake agent from the CJA. He also spoke in English with a correction officer during his detainment at Rikers Island after his arrest for Cho and Sek’s murders. This evidence provides record support for the hearing court’s finding, affirmed by the Appellate Division, that defendant, while not totally fluent in English, was able to understand the import of the *Miranda* warnings.

The fact that the opposite conclusion was just as plausible, based on defendant’s limited schooling and presence in the United States and his apparent inability to fully appreciate the ADA’s questions, as well as his lack of understanding of how and whether to invoke specific *Miranda* rights to remain silent and speak with a lawyer, involves inferences based on the

factual questions regarding his limited language fluency, and does not provide a basis for us to conclude that the lower courts erred as a matter of law. Defendant's attempt to portray his case as an example of unlawful police interrogation tactics deployed to take advantage of his limited understanding of English is simply not borne out on this record.

B. Evidentiary Rulings on Videotape and Notes

Defendant argues that the trial court erroneously precluded admission of the videotape of defendant's meeting with the ADA and excerpts from his May 14th notes, in violation of defendant's due process rights to a fair trial and to present a defense. Defendant argues that the videotape and notes establish his physical and emotional state during the interrogation.

The well-established rule is that "all relevant evidence is admissible unless its admission violates some exclusionary rule" (*People v Scarola*, 71 NY2d 769, 777 [1988]). Evidence is relevant if "it tends to prove the existence or non-existence of a material fact, i.e., a fact directly at issue in the case" (*People v Primo*, 96 NY2d 351, 355 [2001]; *Scarola*, 71 NY2d at 777). A court, in its discretion, may exclude relevant evidence if "its probative value is substantially outweighed by the potential for prejudice" (*People v Mateo*, 2 NY3d 383, 424-425 [2004]), trial delay, or the potential to mislead or confuse the jury (*Primo*, 96 NY2d at 355). However, a "court's discretion in evidentiary rulings is circumscribed by the rules of evidence and the defendant's constitutional right to present a defense" (*People v Carroll*, 95 NY2d 375, 385 [2000]). Nevertheless, "[t]he right to present a defense does not give criminal defendants carte blanche to circumvent the rules of evidence" (*People v Hayes*, 17 NY3d 46, 53 [2011] [citation and internal quotation marks omitted], quoting *United States v Almonte*, 956 F2d 27, 30 [2d Cir 1992]).

[3] Evidence concerning the voluntariness of the confession was relevant as the confession was a key piece of the People's evidence establishing his guilt. However, it is undisputed that the videotape was hearsay and thus inadmissible unless it came within one of the hearsay exceptions. Defense counsel represented to the court that he intended to introduce the videotape for the nonhearsay purpose of establishing defendant's appearance after the interrogation during the morning of May 16th, as a response to the People's admission of defend-

ant's May 16th booking photograph. Notwithstanding defense counsel's assertions regarding his intended use of the videotape, he declined an offer to admit a still photograph from the videotape. Under these circumstances, we cannot say that the court abused its discretion in denying admission of the videotape, given that a still photograph would have served defendant's purpose of presenting the jury with evidence of his physical appearance on May 16th, and also avoided any potential confusion or misdirection created by the jury's consideration of defendant's linguistic skills based on the audio component of the video. This would be a different case if counsel offered the videotape to show defendant's lack of English proficiency and inability to appreciate the English language version of the *Miranda* warnings given by the ADA (see *Williams*, 62 NY2d at 289). However, defense counsel explicitly and repeatedly said that was not his intended purpose.

[4] We also reject defendant's argument that the court erred in excluding excerpts from his handwritten notes, prepared by the defendant during the first day of questioning at the precinct, and proffered as evidence of his state of mind and the coercive environment that led to his involuntary confession. To the extent the excerpts where defendant claims he was "imprisoned for the whole day" and that is how "American police do" were offered for their truth, to establish his confinement, these statements are inadmissible hearsay. Contrary to defendant's arguments, they do not contain complaints to anyone within the meaning of the prompt complaint exception (see *People v Alex*, 260 NY 425, 428 [1933] ["evidence that the defendant made (a) complaint (of abuse) when arraigned should have been" admitted]). Alternatively, even as evidence of defendant's state of mind, the statements were of limited probative value because they were written based on defendant's experience the first day, when he was not a suspect and before he went home, saw his family, and rested. They do not shed light on how he was treated after he returned to the precinct on May 14th. Nor do they provide information about his state of mind at the time he confessed to the murders or made inculpatory statements about his role in the robbery. Therefore, the court did not abuse its discretion by precluding this small number of excerpts, while recognizing defendant would have the opportunity to cross-examine the police in support of his claim that the defendant was subject to a coercive environment.

C. Repugnant Verdict

Defendant argues that the initial verdict was repugnant and required that the court resubmit to the jury all of the counts rather than a selected few. Defendant's general statement at trial that all the counts should go back to the jury because the jury "had some misunderstandings about the law and how it's applying the facts to the law" did not preserve any specific challenge to the verdict that he now asserts on appeal (see *People v Carter*, 7 NY3d 875, 876 [2006] [counsel failed to challenge the verdict as repugnant]; *People v Robinson*, 88 NY2d 1001, 1002 [1996] [to "preserve a question of law reviewable by this Court, an objection or exception must be made with sufficient specificity at the trial"]). Defendant's alternative argument that the court impermissibly communicated its view of the evidence is essentially a challenge to the court's instructions to the jury. However, defense counsel did not object to that instruction, and therefore the argument is unpreserved.²

Accordingly, the Appellate Division order should be affirmed.

Judges PIGOTT, ABDUS-SALAAM, STEIN and FAHEY concur; Chief Judge DiFIORE and Judge GARCIA taking no part.

Order affirmed.

2. Defendant has not preserved the argument, and we do not reach the question, whether CPL 310.50 mandates resubmission of all counts, including those deemed not inconsistent, upon the finding of any defect.

[47 NE3d 710, 27 NYS3d 431]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANTHONY JONES, Appellant.

Argued January 4, 2016; decided February 18, 2016

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered March 11, 2014. The Appellate Division affirmed judgments of the Supreme Court, New York County (Charles H. Solomon, J.), which had (1) convicted defendant, upon his pleas of guilty, of criminal possession of a controlled substance in the third degree and criminal sale of a controlled substance in the third degree; (2) sentenced defendant to concurrent terms of six months; and (3) imposed surcharges.

People v Jones, 115 AD3d 490, affirmed.

HEADNOTE

Crimes — Sentence — Mandatory Surcharge — Resentencing Motion Required for Court to Defer Payment

In a criminal prosecution in which defendant was sentenced to a term of incarceration longer than 60 days, defendant could seek relief from the mandatory surcharge imposed under Penal Law § 60.35 by way of a motion to resentence pursuant to CPL 420.10 (5), as the court lacked authority at sentencing to consider defendant's request to defer payment of the surcharge. The relevant statutes prohibit judicial waiver of a mandatory surcharge, require collection of any unpaid amounts from an inmate's funds as of the moment of confinement and throughout the period of incarceration, and provide for deferral under limited circumstances, namely an inability to pay that is not solely due to incarceration. CPL 420.30 (3) provides that "[i]n no event shall a mandatory surcharge . . . be remitted." Thus, the legislature was clear in communicating its intent to restrain the judiciary from discharging a person's obligation to pay the statutorily imposed amount. CPL 420.40 "governs the deferral of the obligation to pay . . . and financial hardship hearings relating to mandatory surcharges" (CPL 420.40 [1]). The procedural mechanism of CPL 420.40 does not provide for a time frame in which a person may seek to defer the mandatory surcharge. However, a person subject to a mandatory surcharge, which includes those persons sentenced to confinement in excess of 60 days, and who is unable to pay the surcharge may apply for resentencing, pursuant to CPL 420.10 (5), at any time after the initial sentence has been imposed. The resentencing provision further states that a court "shall not determine that the defendant is unable to pay . . . solely because of such defendant's incarceration" (CPL 420.10 [5]). Thus, CPL 420.40 and 420.10 together permit any person with an unpaid mandatory surcharge to request a deferral by moving at any time for resentencing pursuant to CPL 420.10 (5), even during a period of incarceration.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Costs §§ 100, 103; AM JUR 2d, Criminal Law § 858.
CARMODY-WAIT 2d, Sentencing Procedures §§ 203:209, 203:210.
McKINNEY'S, CPL 420.10 (5); 420.30 (3); 420.40; Penal Law § 60.35.
NY JUR 2d, Criminal Law: Procedure §§ 3348, 3355, 3356, 3360.

ANNOTATION REFERENCE

See ALR Index under Fines, Penalties, and Forfeitures; Sentence and Punishment.

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Materials

Query: mandatory surcharge request defer resentence

POINTS OF COUNSEL

Seymour W. James, Jr., The Legal Aid Society, New York City (Kristina Schwarz of counsel), for appellant. Where the court erroneously believed that there was no statutory authority to defer imposition of a mandatory surcharge and failed to entertain appellant's motion for hardship deferral, appellant's right to due process at sentencing was violated. (*People v Farrar*, 52 NY2d 302; *People v Hernandez*, 93 NY2d 261; *Matter of DaimlerChrysler Corp. v Spitzer*, 7 NY3d 653; *People v Waring*, 126 AD3d 621.)

Cyrus R. Vance, Jr., District Attorney, New York City (Sheila L. Bautista and Alan Gadlin of counsel), for respondent. As the lower courts recognized, the plain language and legislative history of the statutes governing the mandatory surcharge demonstrate that a sentencing court has no discretion at sentencing to defer payment of the surcharge. (*People v Williams*, 19 NY3d 100; *People v Quinones*, 95 NY2d 349; *People v Farrar*, 52 NY2d 302; *People v Guerrero*, 12 NY3d 45; *People v Thompson*, 83 NY2d 477; *Chapman v United States*, 500 US 453; *People v Larose*, 120 AD3d 1442; *People v Johnson*, 60 AD3d 1496; *People v Mustafa*, 178 AD2d 616; *People v Snell*, 161 AD2d 1125.)

OPINION OF THE COURT

RIVERA, J.

Defendant claims that his due process rights were violated when the sentencing court refused to consider his request to defer payment of a mandatory surcharge imposed upon him pursuant to Penal Law § 60.35. We conclude that the applicable statutory scheme provides no such discretion to the sentencing court, and therefore we affirm the Appellate Division.

I.

Defendant pleaded guilty to criminal possession of a controlled substance in the third degree (Penal Law § 220.16 [1]) and criminal sale of a controlled substance in the third degree (Penal Law § 220.39 [1]). At sentencing, Supreme Court imposed two concurrent six-month terms of imprisonment, and a \$300 mandatory surcharge for each conviction pursuant to Penal Law § 60.35. The court rejected defendant's request to defer the surcharge, concluding that it lacked authority to do so. The Appellate Division affirmed and, as relevant here, held that because defendant was sentenced to a term of incarceration longer than 60 days he could seek relief from the surcharge only in postsentencing proceedings, by way of a motion to resentence, pursuant to CPL 420.10 (5) (115 AD3d 490, 490-491 [1st Dept 2014]). A Judge of this Court granted defendant leave to appeal (23 NY3d 1038 [2014]).

Defendant claims that CPL 420.40 establishes the procedure for deferral of mandatory surcharges, and because that section does not limit when a person may seek such relief, the sentencing court had authority to consider his request for a deferral. The People counter that a request to defer may only be considered after sentencing by way of a motion to resentence, and in defendant's case, only at the end of his incarceration. We agree that a court lacks authority at sentencing to consider a request to defer the mandatory surcharge, but find no statutory support for the People's position that defendant may only seek such relief upon release from confinement.

As discussed more fully below, the relevant statutes prohibit judicial waiver of a mandatory surcharge, require collection of any unpaid amounts from an inmate's funds as of the moment of confinement and throughout the period of incarceration, and provide for deferral under limited circumstances, namely an inability to pay that is not solely due to incarceration. A person

subject to a mandatory surcharge may seek to defer payment at any time after sentencing, by way of a motion to resentence under CPL 420.10 (5). In addition, persons sentenced to confinement of 60 days or less may avoid filing such motion, and instead present information in support of a request to defer on the appearance date set forth on a summons issued pursuant to Penal Law § 60.35 (8). Under either procedural mechanism, if the court grants a deferral it must place its reasons on the record (CPL 420.40 [4]; 420.10 [5]), and issue a written order, which shall be treated as a civil judgment in accordance with CPLR 5016 (CPL 420.40 [5]; 420.10 [6] [a]). This statutory scheme is structured to further the legislative goals of raising revenue and ensuring payment of the mandatory surcharge by persons convicted of crimes.

II.

Mandatory surcharges are referenced throughout the Penal Law and the Criminal Procedure Law, which require close and careful reading to harmonize the various interconnected and cross-referenced provisions. Indeed, the statutes governing mandatory surcharges have been characterized as “poorly drafted and difficult to follow” (Preiser, Practice Commentaries, McKinney’s Cons Laws of NY, Book 11A, CPL 420.40). We now turn to these statutes, cognizant that “our primary consideration is to ascertain and give effect to the intention of the Legislature” (*People v Ballman*, 15 NY3d 68, 72 [2010], quoting *Matter of DaimlerChrysler Corp. v Spitzer*, 7 NY3d 653, 660 [2006] [internal quotation marks and citation omitted]), and that “when the statutory language is clear and unambiguous, it should be construed so as to give effect to the plain meaning of the words used” (*People v Williams*, 19 NY3d 100, 103 [2012]).

Penal Law § 60.35 (1) (a) states, with exceptions not relevant to this appeal, that for anyone convicted of a felony, misdemeanor or violation “there shall be levied at sentencing a mandatory surcharge . . . in addition to any sentence required or permitted by law, in accordance with the . . . schedule” set forth in this provision. The statute further provides that

“[w]hen a person who is convicted of a crime or violation and sentenced to a term of imprisonment has failed to pay the mandatory surcharge . . . the clerk of the court . . . shall notify the superinten-

dent or the municipal official of the facility where the person is confined. The superintendent or the municipal official shall cause any amount owing to be collected from such person during [the person's] term of imprisonment from moneys to the credit of an inmates' fund or such moneys as may be earned by a person in a work release program [as provided for under the Correction Law]" (*see* Penal Law § 60.35 [5] [a]).

In the case of a person sentenced to confinement for 60 days or less,

"at the time that the mandatory surcharge . . . is imposed a town or village court may, and all other courts shall, issue and cause to be served upon the person required to pay the mandatory surcharge . . . a summons directing that such person appear before the court regarding the payment of the mandatory surcharge . . . if after sixty days from the date it was imposed it remains unpaid" (Penal Law § 60.35 [8]).

The summons must set an appearance date for the first day court is in session after the sixtieth day. The statute specifically prohibits issuance of such summons "to a person who is being sentenced to a term of confinement in excess of sixty days," and instead provides that "[t]he mandatory surcharges . . . for those persons shall be governed by the provisions of section 60.30" of the Penal Law (Penal Law § 60.35 [8]). That section states,

"This article does not deprive the court of any authority conferred by law to decree a forfeiture of property, suspend or cancel a license, remove a person from office, or impose any other civil penalty and any appropriate order exercising such authority may be included as part of the judgment of conviction" (Penal Law § 60.30).

Initially, courts had authority to waive the surcharges, but in 1992, in response to apparent judicial laxity in granting such waivers, and in order "to limit what ha[d] become perceived as the routine remission and waiver in some cases of surcharges . . . intended to be mandatory" (Governor's Approval Mem, Bill Jacket, L 1992, ch 794 at 14, 1992 Legis Ann at 503 [1992 NY Senate Bill S9031]), the legislature amended CPL 420.35 and included language that courts be "mindful"

that the surcharge was mandatory, and of “the important criminal justice and victim services” sustained by the surcharge and other fees (Mem of Div of Budget, Bill Jacket, L 1992, ch 794 at 8, 1992 Legis Ann at 502). Thereafter, with the enactment of the Sentencing Reform Act of 1995, the legislature greatly cabined judicial authority to waive and remit the mandatory surcharge (*see* L 1995, ch 3). As amended, CPL 420.35 (2) reads that “[u]nder no circumstances shall the mandatory surcharge . . . be waived,” except in cases involving a statutorily defined, albeit discrete, category of defendants, not relevant here. (*See* CPL 420.35 [2], as renum and amended by L 1995, ch 3, §§ 67-68 [eff July 1, 1995].)* In the same vein, the relevant language in 420.30 (3) provides that “[i]n no event shall a mandatory surcharge . . . be remitted.” Thus, the legislature could not be clearer in communicating its intent to restrain the judiciary from discharging a person’s obligation to pay the statutorily imposed amount.

As part of the same 1995 legislative reform package, the legislature enacted CPL 420.40, titled “[d]eferral of a mandatory surcharge; financial hardship hearings,” which governs, *inter alia*, deferral of mandatory surcharges imposed pursuant to Penal Law § 60.35 (1) (*see* CPL 420.40, as added by L 1995, ch 3, § 70 [eff July 1, 1995]). This section in no way signaled a legislative retreat from its commitment to securing payment of these surcharges and its interest in directing the exercise of judicial authority. Quite to the contrary. For example, CPL 420.40 includes explicit language similar to that previously contained in CPL 420.35 and 420.30, that when assessing a request to defer payment “the superior court shall be mindful of the mandatory nature of the surcharge . . . and the important criminal justice and victim services sustained by such fees” (CPL 420.40 [3]; *see* L 1995, ch 3, §§ 67-70).

By its terms, CPL 420.40 “governs the deferral of the obligation to pay all or part of a mandatory surcharge . . . imposed

* The court “shall” waive the mandatory surcharge when:

“(i) the defendant is convicted of loitering for the purpose of engaging in prostitution [Penal Law § 240.37] . . . ; (ii) the defendant is convicted of prostitution [Penal Law § 230.00]; (iii) the defendant is convicted of a violation . . . in lieu of a plea to or conviction for loitering for the purpose of engaging in prostitution [Penal Law § 240.37] . . . or prostitution [Penal Law § 230.00]; or (iv) the court finds that a defendant is a victim of sex trafficking under [Penal Law § 230.34] or a victim of trafficking in persons under the trafficking victims protection act (United States Code, Title 22, Chapter 78)” (CPL 420.35 [2]).

pursuant to subdivision one of section 60.35 . . . and financial hardship hearings relating to mandatory surcharges” (CPL 420.40 [1]). According to the statute’s procedural requirements, in those cases “[w]here a court determines that it will defer part or all of a mandatory surcharge,” the court’s “statement of such finding and of the facts upon which it is based shall be made part of the record” (CPL 420.40 [4]). Furthermore, a court may only defer the mandatory surcharge by written order, and “[s]uch order shall not excuse the person from the obligation to pay the surcharge” (CPL 420.40 [5]). The order shall be filed and entered as a civil judgment, in accordance with CPLR 5016, and subject to collection “in the same manner as a civil judgment” (CPL 420.40 [5]).

CPL 420.40 makes special provision for a person issued a summons under Penal Law § 60.35 (8). In those cases, CPL 420.40 (2) requires that on the appearance date set forth in the summons, such person

“shall have an opportunity to present on the record credible and verifiable information establishing that the mandatory surcharge . . . should be deferred, in whole or in part, because, due to the indigence of such person the payment of [the] surcharge . . . would work an unreasonable hardship on the person or [the person’s] immediate family.”

The procedural mechanism of CPL 420.40 does not otherwise provide for a time frame in which a person may seek to defer the mandatory surcharge. However, CPL 420.35 (1) provides that “[t]he provisions of section 420.10 . . . governing the collection of fines . . . shall be applicable to a mandatory surcharge . . . imposed pursuant to subdivision one of section 60.35 of the penal law.” Thus, a person subject to a mandatory surcharge, which includes those persons, like defendant, sentenced to confinement in excess of 60 days and who is unable to pay the surcharge, may apply for resentencing, pursuant to 420.10 (5), at any time after the initial sentence has been imposed. Under that provision, “[i]n any case where the defendant is unable to pay . . . [the person] may at any time apply to the court for resentence. In such case, if the court is satisfied that the defendant is unable to pay” the court may “[a]djust the terms of payment” (CPL 420.10 [5] [a]). The power to change the terms necessarily encompasses the power to defer, that is to delay, payment.

Here too, the legislature has been careful to limit judicial discretion to defer payment for those persons who are incarcerated. The resentencing provision states that a court

“shall not determine that the defendant is unable to pay . . . solely because of such defendant’s incarceration but shall consider all the defendant’s sources of income including, but not limited to, moneys in the possession of an inmate at the time of . . . admission into such facility, funds earned by [an inmate] in a work release program . . . , funds earned by [an inmate as compensation for work performed while incarcerated] and any other funds received by [an inmate] or on [the inmate’s] behalf and deposited with [personnel] of the facility where the person is confined” (CPL 420.10 [5]).

Thus, CPL 420.40 and 420.10 together permit any person with an unpaid mandatory surcharge to request a deferral by moving at any time for resentencing pursuant to CPL 420.10 (5), even during a period of incarceration. If the movant satisfies the burden of establishing an inability to pay, and a court determines it is appropriate to defer part or all of the mandatory surcharge, the court must place on the record its findings and facts in support thereof and issue a written order in accordance with CPL 420.40 (4) and (5). An individual subject to a summons under Penal Law § 60.35 (8) may similarly request a deferral by motion to resentence or, alternatively, may seek this relief at the scheduled summons appearance date, in accordance with the specific procedure set forth in CPL 420.40 (2). If the court decides to grant a deferral, that decision is also subject to the requirements of CPL 420.40 (4) and (5).

This construction of the statutory framework is supported by the various amendments intended to limit judicial discretion, and to increase the collection of surcharges from persons during periods of confinement and upon release from incarceration. As this Court has previously stated, the fees imposed under Penal Law § 60.35 are related to the “State’s legitimate interest in raising revenues” (*People v Barnes*, 62 NY2d 702, 703 [1984]), and the mandatory surcharge “is paid to the State to shift costs of providing services to victims of crime from ‘law abiding taxpayers and toward those who commit crimes’ ” (*People v Quinones*, 95 NY2d 349, 352 [2000], quoting Mem of St Executive Dept, 1983 McKinney’s Session Laws of NY at 2356, and citing Penal Law § 60.35 [3], State Finance Law

§ 97-bb, *Barnes*, 62 NY2d 702). That goal is facilitated by ensuring that collection will be attempted even during periods of confinement.

III.

The People contend that CPL 420.40 is limited to persons sentenced to confinement for 60 days or less, thus excluding defendant, who was sentenced to an incarceration period in excess of 60 days. We reject this interpretation because it is contrary to the express language of CPL 420.40 (1), which states, without limitation, that CPL 420.40 governs deferrals imposed pursuant to Penal Law § 60.35 (1). Nevertheless, the People point to CPL 420.40 (2) as the proper basis to discern the coverage of the statute. That subdivision applies to persons subject to a summons issued pursuant to Penal Law § 60.35 (8), meaning any person with an unpaid mandatory surcharge who was sentenced to incarceration for 60 days or less and issued a summons to appear on the first court date after the sixtieth day. Rather than serving to establish, *a fortiori*, that the entirety of the procedures set forth in CPL 420.40 are unavailable to defendant and those similarly situated, CPL 420.40 (2) merely affords persons at liberty the opportunity upon their appearance date to request a deferral of the mandatory surcharge, thus avoiding further penalties, possible incarceration for nonpayment, and civil liability (*see* CPL 420.35 [1] [permitting incarceration for failure to pay the mandatory surcharge]; 420.40 [5] [providing that the unpaid balance of the mandatory surcharge “may be collected in the same manner as a civil judgment”]). Nor is it proper to treat 420.40 (1) as a single, aberrational reference given that CPL 420.35, titled “Mandatory surcharge and crime victim assistance fee; applicability to sentences mandating payment of fines,” states that the provisions of CPL 420.40 “shall be applicable to a mandatory surcharge” (CPL 420.35 [1]). These provisions clearly demonstrate the legislative intent to make the procedure set forth in CPL 420.40 applicable to all deferral requests.

Apart from these text-based reasons for rejecting the People’s reading of CPL 420.40, the People’s interpretation of the statute would contravene the legislative goals by relieving a court in certain cases from compliance with the procedures and guidance contained in CPL 420.40, based on no more than the incarceratory period of the sentence imposed. It would make

little sense for the legislature to enact a statute that exhorts judicial restraint (CPL 420.40 [3]), imposes procedural requirements that mandate creation of a record and issuance of a written order of deferral (CPL 420.40 [4], [5]), further provides that deferral does not excuse the person from the obligation to pay the surcharge, and ensures payment by directing the filing and entry of a civil judgment, but then decline to apply these requirements to all deferral requests. There is no logical basis for this anomalous result when the overall statutory scheme is structured to secure payments, regardless of the period of time a person is confined.

The People also argue, again relying on CPL 420.40 (2) and its application to persons who appear after the end of their confinement, that a court is without discretion to consider a request to defer until the end of a defendant's incarceration. This argument fares no better textually. Neither CPL 420.40 nor 420.10 contain such limitation, and 420.10 (5) states explicitly that persons may apply for resentencing "at any time." Moreover, the language of CPL 420.10 (5) demonstrates that the legislature anticipated that a defendant would make an application during confinement and chose to set forth the appropriate standard in such cases. Thus, under CPL 420.10 (5), "[a] court shall not determine" a person's inability to pay based solely on the fact of incarceration.

While we are persuaded that the statutes do not foreclose deferral prior to release from incarceration, defendant's argument that the sentencing court had authority pursuant to Penal Law § 60.30 to defer the mandatory surcharge is unpersuasive. That section, titled "Civil penalties," makes no reference to deferral of mandatory surcharges, and instead provides, in relevant part, that the court retains "any authority conferred by law to . . . impose any other civil penalty" and that such order "may be included as part of the judgment of conviction" (Penal Law § 60.30). The import of this language is to permit a court to exercise its preexisting authority to impose a civil penalty otherwise permitted under the law. Of course, the mandatory surcharge is already authorized under Penal Law § 60.35, and a judicial deferral of that surcharge is not the equivalent of imposing another civil penalty.

In further support of his argument that he may seek a deferral at the time of sentencing, defendant contends that Penal Law § 60.35 provides for a 60-day "grace period," during which no payment is required, for persons issued a subpoena under

section 60.35 (8), and therefore those sentenced to confinement in excess of 60 days should similarly be able to defer payment into the future. However, as is clear from our discussion, such interpretation does not follow from the text or the legislative history of the mandatory surcharge statutory scheme. Instead, defendant's interpretation would allow those persons incarcerated for 60 days or less to avoid payment during confinement, undermining the legislative goal to collect mandatory surcharges during the term of incarceration as a means to assist with the funding of victims' services (*see Quinones*, 95 NY2d at 352, quoting Mem of St Executive Dept, 1983 McKinney's Session Laws of NY at 2356; *see* State Finance Law § 97-bb [criminal justice improvement account]).

The different treatment of these two groups furthers the ends of collection by ensuring that those persons released within 60 days will return to court under the mandates of the subpoena issued pursuant to Penal Law § 60.35 (8). Defendant's interpretation, in contrast, does nothing to further the collection of the surcharge, and has the potential to defer payment for years in cases of persons sentenced to lengthy periods of incarceration, depriving the State of necessary funds for victims' services.

While the legislature has provided for deferral of the mandatory surcharge, the statutory scheme contemplates that granting such request is neither routine nor common, certainly not for persons in confinement. As we read the statutes, they are intended to ensure what defendant now seeks to avoid, namely the payment of the surcharge during a defendant's confinement, except in the most unusual and exceptional of circumstances where a defendant's sources of income support a judicial finding of inability to pay any portion of the surcharge.

Defendant urges us to consider that the People's interpretation is bad policy because reliance on CPL 420.10 would be a waste of judicial resources, as it requires defendants who could have sought deferrals at sentencing to proceed through an additional proceeding, likely with assigned counsel. However, this is also the case for defendants issued a summons pursuant to Penal Law § 60.35 and subject to the procedure set forth in CPL 420.40 (2). They too must appear at a separate hearing, and may very well be entitled to assigned counsel to avoid incarceration for failure to pay (*see People v Smith*, 18 NY3d 588, 592 [2012], citing *People v Medina*, 44 NY2d 199 [1978], and *People v Koch*, 299 NY 378, 381 [1949]; *see* CPL 420.35 [1]

[permitting incarceration for failure to pay the mandatory surcharge]). Furthermore, those persons who do not have a credible basis for deferral while incarcerated may have a credible argument for deferral upon release from prison, when they and perhaps others are dependent on such person's financial resources.

Notably, there is no assurance that even under defendant's interpretation judicial resources would not also be expended in cases where a defendant with an order of deferral is subsequently financially able to pay, and an appropriate official seeks access to newly acquired funds to satisfy the defendant's surcharge obligations. These policy determinations are beyond our authority and instead best left for the legislature (*see Matter of Manouel v Board of Assessors*, 25 NY3d 46, 54-55 [2015] [rejecting argument because it would "risk judicial encroachment on the legislature's lawmaking role," in light of the statutory text and its legislative history]).

Accordingly, the order of the Appellate Division should be affirmed.

Judges PIGOTT, ABDUS-SALAAM, STEIN and FAHEY concur; Chief Judge DiFiore and Judge Garcia taking no part.

Order affirmed.

[47 NE3d 747, 27 NYS3d 468]

MARIA DE LOURDES TORRES, Appellant, v POLICE OFFICER JONES et al., Defendants, and CITY OF NEW YORK, Respondent. (Action No. 1.)

MARIA DE LOURDES TORRES, Appellant, v NEW YORK CITY POLICE DEPARTMENT et al., Respondents, et al., Defendants. (Action No. 2.)

Argued January 14, 2016; decided February 23, 2016

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered August 13, 2014. The Appellate Division (1) affirmed an order of the Supreme Court, Queens County (Kevin J. Kerrigan, J.; op 2012 NY Slip Op 32286[U] [2012]), which, to the extent appealed from as limited by the briefs, had granted the motion of defendant City of New York for summary judgment dismissing the complaint in action No. 1 insofar as asserted against it; (2) dismissed an appeal from so much of an order of that court (op 36 Misc 3d 1238[A], 2012 NY Slip Op 51739[U] [2012]) as had granted the motion of defendants New York City Police Department, Irma Santiago, Denitor Guerra and Erik Hendricks for summary judgment dismissing the complaint in action No. 2 insofar as asserted against them; and (3) affirmed a judgment of that court, entered upon the order in action No. 2, which was in favor of defendants New York City Police Department, Irma Santiago, Denitor Guerra and Erik Hendricks dismissing the complaint insofar as asserted against them.

De Lourdes Torres v Jones, 120 AD3d 572, modified.

HEADNOTES

Torts — False Imprisonment — False Arrest — Probable Cause

1. Defendants were not entitled to summary judgment dismissing plaintiff's false arrest and imprisonment claim stemming from her arrest for murder and the subsequent dismissal of the criminal proceeding, since triable questions of fact existed regarding whether plaintiff was unlawfully arrested without probable cause. To prevail on such a cause of action, a plaintiff must demonstrate that the defendant intended to confine the plaintiff, that the plaintiff was conscious of the confinement, that the plaintiff did not consent to the confinement and that the confinement was not privileged. An act of confinement is privileged if it stems from a lawful arrest supported by probable cause. The information known to the detectives prior to plaintiff's arrest, excluding her alleged confession, did not conclusively demonstrate that

the detectives had probable cause to arrest plaintiff as a matter of law. The assessment of plaintiff's performance during the polygraph examination did not eliminate any possible factual dispute regarding whether the test results raised the detectives' suspicion to the level of probable cause, as the "[i]nconclusive" preliminary results at most exhibited her willingness to lie to the police in general and not her concealment of her commission of the murder. Moreover, when viewed in the light most favorable to plaintiff, the inconsistencies between the crime scene evidence and plaintiff's confession, as well as plaintiff's account of defendant detectives' invention of the confession, revealed that the detectives knew that the confession was false and that therefore it could not have reasonably contributed to their suspicion of plaintiff.

Torts — Malicious Prosecution — Probable Cause

2. Defendants were not entitled to summary judgment dismissing plaintiff's malicious prosecution claim arising out of her arrest and indictment for murder and the subsequent dismissal of the criminal proceeding, as there existed triable questions of fact regarding whether defendant detectives improperly commenced the prosecution against plaintiff and participated in the prosecution out of malice. Because it was undisputed that the detectives who participated in the alleged creation of plaintiff's confession also had it sent to the District Attorney's Office, those detectives knew or should have known that their submission of plaintiff's unequivocal admission to killing the victim would cause prosecutors to bring a criminal proceeding against plaintiff, and consequently, the detectives' role in commencing the prosecution, coupled with plaintiff's testimony about the falsity of the confession, yielded a triable issue of fact on the commencement element of her malicious prosecution claim. Additionally, because evidence that a police officer lacked probable cause to believe that the plaintiff committed a crime and provided a falsified confession to prosecutors can rebut the presumption of probable cause arising from an indictment, the evidence that the detectives did not have probable cause to believe that plaintiff had killed the victim, made a fake confession, attributed the confession to plaintiff and gave it to prosecutors could, if credited, overcome the presumption of probable cause arising from plaintiff's indictment. And, since evidence of bad faith conduct in an infirm prosecution can also support an inference of malice, that evidence further generated a triable issue of fact as to whether the detectives maliciously commenced the criminal proceedings against plaintiff.

Civil Rights — Federal Civil Rights Claim — Municipal Defendants — Governmental Policy or Custom Causing Violation of Constitutional Rights

3. In an action arising out of plaintiff's arrest for murder and the subsequent dismissal of the criminal proceeding, the lower courts properly granted defendant municipality and its police department summary judgment dismissing plaintiff's federal civil rights claims under 42 USC § 1983. A plaintiff can proceed to trial against governmental defendants on claims under 42 USC § 1983 only if the record discloses a triable issue of fact as to whether an official policy or custom of the government itself caused a violation of the plaintiff's constitutional rights. The evidence did not support an inference that defendants had a widespread custom of arresting people in violation of their constitutional rights, nor was there any proof that such a policy caused the allegedly wrongful arrest and prosecution of plaintiff. The police department's practice of incentivizing arrests via a multifactor evaluation did not in itself amount to a practice of promoting arrests without prob-

able cause. Moreover, even if plaintiff had established the existence of a municipal practice of promoting arrests without probable cause in homicide cases, no facts were alleged establishing that any particular policy in effect at the time of plaintiff's arrest was the cause of the detectives' decision to arrest her.

Torts — Malicious Prosecution — Detectives' Suppression Hearing Testimony as Basis for Liability

4. Defendant detectives' suppression hearing testimony that plaintiff's allegedly false confession to murder was voluntary, as opposed to their transmission of the confession to prosecutors, could not on its own result in liability for the commencement or continuation of the murder prosecution for purposes of her malicious prosecution claim. As a matter of historically-rooted public policy, a witness cannot be liable for malicious prosecution based on his or her false testimony at a trial or pretrial proceeding. This rule has been extended to eliminate liability arising from a police officer's false testimony at a suppression hearing. However, while the defendant detectives' suppression hearing testimony could not serve as a separate act of commencement or continuation, it was relevant evidence that they had a malicious state of mind in creating and transmitting plaintiff's falsified confession. The test is whether the plaintiff can make out the elements of his or her claim without resorting to the testimony. If the claim exists independently of the testimony, it is not "based on" that testimony; conversely, if the claim requires the testimony, the defendant enjoys absolute immunity. Given the strong public policy against liability based on testimony in judicial proceedings, defendants could not, based on the record, be subjected to potential liability for their testimony at the suppression hearing alone. But because plaintiff relied on evidence independent of the suppression hearing testimony, defendants could not invoke absolute immunity.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Civil Rights §§ 65, 69, 87, 93, 94, 160; AM JUR 2d, False Imprisonment §§ 1–4, 9, 24; AM JUR 2d, Malicious Prosecution §§ 1–4, 18, 23, 24, 36, 45, 71, 72, 76.

DOBBS LAW OF TORTS §§ 41, 44, 586–590, 597.

NY JUR 2d, False Imprisonment and Malicious Prosecution §§ 1–3, 6, 9, 13, 14, 52, 53, 55, 69, 74–79, 95, 102, 112, 124, 125.

NEW YORK LAW OF TORTS §§ 1:22, 1:31, 1:32, 1:77, 1:80–1:82.

42 USCA § 1983.

ANNOTATION REFERENCE

See ALR Index under Civil Rights and Discrimination; False Imprisonment and Arrest; Malicious Prosecution; Police and Law Enforcement Officers; Probable Cause.

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POINTS OF COUNSEL

The Perecman Firm, PLLC, New York City (*David H. Perecman, Zachary S. Perecman and Peter D. Rigelhaupt* of counsel), for appellant. I. Defendants are not entitled to summary judgment on plaintiff's false arrest claim under either state law or 42 USC § 1983 because there are substantial questions of fact as to whether there was probable cause to arrest considering the lack of crime scene evidence and the defendants' coercion and fabrication of the false confession. (*Broughton v State of New York*, 37 NY2d 451; *People v Bigelow*, 66 NY2d 417; *Parkin v Cornell Univ.*, 78 NY2d 523; *United States v Scheffer*, 523 US 303; *People v Angelo*, 88 NY2d 217; *People v Shedrick*, 66 NY2d 1015; *Pereira v Pereira*, 35 NY2d 301; *People v Leone*, 25 NY2d 511; *People v Bedessie*, 19 NY3d 147; *Zahrey v Coffey*, 221 F3d 342.) II. Defendants are not entitled to summary judgment on plaintiff's malicious prosecution claim under state law or 42 USC § 1983 because plaintiff has rebutted the presumption of probable cause raised by the indictment and the lack of probable cause creates an inference of malice. (*Smith-Hunter v Harvey*, 95 NY2d 191; *Broughton v State of New York*, 37 NY2d 451; *Jocks v Tavernier*, 316 F3d 128; *Lee v City of Mount Vernon*, 49 NY2d 1041; *Colon v City of New York*, 60 NY2d 78; *Ricciuti v N.Y.C. Tr. Auth.*, 124 F3d 123; *Deskovic v City of Peekskill*, 894 F Supp 2d 443; *Boyd v City of New York*, 336 F3d 72; *Matthews v City of New York*, 889 F Supp 2d 418; *Manganiello v City of New York*, 612 F3d 149.) III. The City of New York may be held liable for the state law claims under respondeat superior doctrine and liable under 42 USC § 1983 pursuant to *Monell v New York City Dept. of Social Servs.* (436 US 658 [1978]) for their policy and/or custom of assessing officers' performance by the number of cases closed by arrest. (*Lepore v Town of Greenburgh*, 120 AD3d 1202; *Eckardt v City of White Plains*, 87 AD3d 1049; *Lauer v City of New York*, 95 NY2d 95; *Wray v City of New York*, 490 F3d 189; *Cash v County of Erie*, 654 F3d 324; *Amnesty Am. v Town of W. Hartford*, 361 F3d 113; *Walker v City of New York*, 974 F2d 293.) IV. Defendant Daniel Corey has appeared in this action for all purposes. (*Urena v NYNEX, Inc.*, 223 AD2d 442; *Bank of N.Y. v Triangle Meat & Provisions Corp.*, 83 AD2d 873; *Rubino v City of New York*, 145 AD2d 285; *Gilmore v Gilmore*, 286 AD2d 416.)

Zachary W. Carter, Corporation Counsel, New York City (*Devin Slack, Richard Dearing and Cecelia Chang* of counsel), for respondents. I. Maria De Lourdes Torres's false arrest claims fail because there was probable cause for her arrest. (*Broughton v State of New York*, 37 NY2d 451; *Caldarola v Calabrese*, 298 F3d 156; *People v Mercado*, 68 NY2d 874; *Colon v City of New York*, 60 NY2d 78; *Smith v County of Nassau*, 34 NY2d 18; *Brinegar v United States*, 338 US 160; *Krause v Bennett*, 887 F2d 362; *Branzburg v Hayes*, 408 US 665; *Stansbury v Wertman*, 721 F3d 84; *Al-Adahi v Obama*, 613 F3d 1102.) II. Maria De Lourdes Torres failed to establish a triable issue that defendants initiated or continued her prosecution, and did so without probable cause. (*Broughton v State of New York*, 37 NY2d 451; *Swartz v Insogna*, 704 F3d 105; *Colon v City of New York*, 60 NY2d 78; *Brown v City of New York*, 60 NY2d 893; *Caldarola v Calabrese*, 298 F3d 156; *Grucci v Grucci*, 20 NY3d 893; *Smith-Hunter v Harvey*, 95 NY2d 191; *Ferguson v Arnow*, 142 NY 580; *Baez v Hennessy*, 853 F2d 73; *Williams v CVS Pharmacy, Inc.*, 126 AD3d 890.) III. Maria De Lourdes Torres failed to show that a municipal policy or custom caused her arrest and prosecution. (*Canton v Harris*, 489 US 378; *Los Angeles County v Humphries*, 562 US 29; *Pangburn v Buick Motor Co.*, 211 NY 228; *Board of Comm'rs of Bryan Cty. v Brown*, 520 US 397; *Monell v New York City Dept. of Social Servs.*, 436 US 658; *People v Hawkins*, 11 NY3d 484; *People v Grasso*, 54 AD3d 180; *Jenkins v City of New York*, 478 F3d 76.)

Evan Goldberg, New York State Trial Lawyers Association, New York City, for New York State Trial Lawyers Association, amicus curiae. The presumption of probable cause that attaches to an indictment should be equally rebuttable in both the state and federal courts of New York. (*Ricciuti v N.Y.C. Tr. Auth.*, 124 F3d 123; *Deskovic v City of Peekskill*, 894 F Supp 2d 443.)

OPINION OF THE COURT

ABDUS-SALAAM, J.

In a false arrest action under federal and state law, evidence that the defendant police officers arrested the plaintiff without probable cause, after inventing a patently false confession, may establish the officers' liability for detaining the plaintiff without any lawful privilege. Evidence that the officers forwarded the false confession to prosecutors can satisfy the commencement element of a malicious prosecution cause of ac-

tion, and the proof of the absence of probable cause for the prosecution and the police's transmission of the fabricated evidence can overcome the presumption of probable cause arising from a grand jury's indictment of the plaintiff. The same proof can support an inference that the police acted with actual malice in commencing the prosecution. Applying these principles to the consolidated appeals now before us, we hold that the courts below improperly granted summary judgment to the individual defendants on plaintiff's false arrest and malicious prosecution claims under New York common law and 42 USC § 1983. We further conclude that, although plaintiff maintains triable state law claims against defendants the City of New York and the New York City Police Department, the lower courts properly granted summary judgment to those governmental entities on plaintiff's claims under 42 USC § 1983 in accordance with *Monell v New York City Dept. of Social Servs.* (436 US 658 [1978]) and its progeny.

I.

A

On the night of September 24, 2002, Einstein Romeo Acuna's son found Acuna's dead body in front of the doorway to the apartment that they shared in Queens. Acuna's son called the police and reported the death. As later recounted by the individual defendants in their depositions in the instant civil actions, defendants Detective Michael McEntee and Detective Daniel Corey responded to the scene. There, the detectives saw Acuna's naked corpse in a pool of blood in the hallway in front of Acuna's apartment. Evidently, Acuna had been stabbed repeatedly.¹ The detectives went inside the apartment, in which there were no signs of forced entry. As the detectives examined the apartment, they observed some blood stains on the walls of the interior hallway, dining area and kitchen. However, the majority of the blood at the scene had pooled near the entrance to the apartment. Additionally, the police found some blood in a nearby stairwell.

1. On the day after the crime, the Office of the Chief Medical Examiner (OCME) completed an autopsy report, in which the medical examiner determined that Acuna had over 20 stab wounds, including some that were between five and seven inches deep. With the exception of Detective Corey's deposition testimony, the record does not indicate whether or when the detectives learned of the autopsy results. At his deposition in the eventual civil action here, Detective Corey revealed that he had become aware of the autopsy results at some unspecified point in time.

Detective Corey, defendant Detective Erik Hendricks and other officers canvassed the building for suspects, but found none. Corey and Hendricks interviewed Acuna's neighbors about the crime, and some of the neighbors reported that they had heard screaming and someone falling to the floor in the hallway.² Meanwhile, another detective assigned to the case, defendant Irma Santiago, contacted Acuna's sister-in-law, who stated that she had spoken to Acuna via telephone at about 7:30 p.m. on the night of his death. This information placed Acuna's time of death at approximately 8:00 p.m.

On a return trip to the apartment on or shortly after the date of the crime, Detective McEntee discovered a woman's crucifix necklace on the nightstand in Acuna's bedroom. When interviewed by the police, however, Acuna's relatives essentially stated that, to their knowledge, Acuna did not have a girlfriend. Additionally, Acuna's family and neighbors did not identify anyone who had a motive to murder Acuna.

B

According to the police witnesses' testimony at a suppression hearing in the criminal prosecution that led to the instant lawsuit, developments following the police's initial investigation led them to contact plaintiff Maria De Lourdes Torres. Specifically, Detectives Santiago and McEntee eventually learned that Acuna's telephone records showed that, on the day of the murder, someone had called Acuna's cellular telephone from a telephone located at plaintiff's residence. The records further reflected that Acuna had repeatedly received calls from that telephone on various occasions.

On October 11, 2002, Detective McEntee went to the apartment. There, McEntee met the couple who owned the apartment, and in response to his inquiries, they said that they did not know Acuna and had not called him. The couple further explained that, besides themselves, only plaintiff, who rented a room from them, could have accessed the telephone in the apartment. Soon thereafter, McEntee spoke to plaintiff in the presence of the apartment owners. Displaying a photograph of Acuna, McEntee asked plaintiff whether she knew the man in the photograph, and she claimed that she did not know him.

2. In opposition to defendants' summary judgment motion in the instant civil actions, plaintiff submitted a police report indicating that a neighbor had told the detectives that, on the night of the crime, the neighbor had heard footsteps on the roof.

The police did not find plaintiff's denials convincing, and so on the night of October 25, 2002, Detectives Hendricks and Santiago went to plaintiff's apartment. Santiago asked plaintiff whether she knew Acuna, and plaintiff denied that she knew him. When Santiago told plaintiff that telephone records showed that someone had called Acuna from her apartment, plaintiff claimed that she had not called him. Given that this interview occurred in the presence of the owners of the apartment, Santiago became concerned that plaintiff was reluctant to give candid answers to her questions in front of them. Accordingly, Santiago asked plaintiff if she would come to the local police precinct, and plaintiff agreed to accompany Santiago there.

At the precinct, Santiago and Hendricks asked plaintiff again whether she knew Acuna and had telephoned him on the day of the murder. About 15 minutes into this conversation, Santiago showed Acuna's telephone records to plaintiff, at which point she acknowledged that she knew Acuna. Plaintiff stated that she had previously lied about calling Acuna on the day of the crime because she had used the telephone in her apartment to make the calls, which the owners had forbidden her to do, and she did not want to admit her unauthorized use of the telephone in their presence. After receiving this explanation, Santiago permitted plaintiff to leave.

In early November 2002, the police contacted plaintiff and asked her whether she would submit to a polygraph examination, and she replied that she would. At about 7:00 a.m. on November 8, 2002, Detective Santiago and defendant Detective Denitor Guerra picked up plaintiff at her home and transported her to the precinct, where they arrived at about 7:30 a.m. Plaintiff waited in a room with the detectives for almost two hours, during which time the detectives did not question her. Detectives Santiago, Guerra and Hendricks then took plaintiff to the District Attorney's Office. There, at about 9:30 a.m., plaintiff signed a consent form and agreed to take the polygraph test, and the detectives sat with her while they waited for a few hours for the polygraph device to be available and ready for use. At about 12:30 p.m., defendant Lieutenant Velardi, the Deputy Chief Investigator at the District Attorney's Office, administered the polygraph examination, and Santiago and Velardi asked plaintiff questions relating to Acuna's murder, repeating each question multiple times and in Spanish. The examination lasted about 40 minutes.

After the examination, the detectives took plaintiff out for lunch. At about 4:30 or 5:00 p.m., they brought plaintiff back to the precinct and placed her in an interview room, and Santiago and Guerra periodically stayed in the room with plaintiff. At about 11:30 p.m., Santiago read *Miranda* warnings to plaintiff in Spanish, and on a form, plaintiff indicated that she understood each *Miranda* right. Santiago questioned plaintiff about Acuna's murder, and Detective Corey periodically entered the room, though he did not participate in the questioning of plaintiff. From approximately 1:00 a.m. to 1:45 a.m., plaintiff confessed to murdering Acuna in self-defense. Plaintiff asked Santiago to write down her confession, and Santiago complied, generating a three-page written version of plaintiff's statement in Spanish. Plaintiff signed the statement.

Next, the detectives requested permission to search plaintiff's room, and plaintiff signed a consent form authorizing the search. Later that morning, Detective Corey searched the room. Corey recovered the clothes that, according to plaintiff's statement, she had worn during the murder. Corey also found a knife in the room. The police arrested Torres for Acuna's murder.

C

The District Attorney's Office convened a grand jury in this case, and in January 2003, the grand jury returned an indictment charging plaintiff with two counts of murder in the second degree (*see* Penal Law § 125.25 [1], [2]) and one count of criminal possession of a weapon in the fourth degree (*see* Penal Law § 265.01 [2]). Subsequently, plaintiff filed an omnibus motion for, among other things, dismissal of the indictment and suppression of her statement to the police and of the evidence recovered from her room.

In February 2003, while plaintiff's omnibus motion was pending, OCME completed preliminary forensic testing on the blood found in Acuna's apartment. The test results indicated that the blood belonged to Acuna and two unknown males. At that time, OCME had not compared plaintiff's DNA to the DNA present in the blood in Acuna's apartment. The record does not reveal whether the investigating detectives learned of the preliminary DNA test results during the criminal proceedings against plaintiff.

At a *Huntley/Mapp* hearing following an in camera inspection of the grand jury minutes, in summer 2003, prosecutors

presented the testimony of Detectives Santiago, Corey and McEntee, as well as the testimony of Lieutenant Velardi. Those witnesses described their interactions with plaintiff on October 11, October 25, November 8 and November 9, 2002 in essentially the manner set forth above. At the close of the hearing, Supreme Court denied plaintiff's suppression motion.

Meanwhile, in January 2004, OCME completed its comparison of plaintiff's DNA to the DNA in the blood samples taken from Acuna's apartment, and the results showed that plaintiff's DNA was not present in the blood samples. The record does not indicate whether the detectives learned about these test results during the criminal proceedings against plaintiff.

After Supreme Court denied plaintiff's suppression motion, plaintiff moved to reopen the suppression hearing and call Detectives Guerra and Hendricks to testify at the reopened hearing. Supreme Court granted plaintiff's application to reopen the suppression hearing, and at the reopened hearing, Detectives Guerra and Hendricks testified to their roles in the investigation as recounted above. Crediting their testimony, Supreme Court again denied plaintiff's suppression motion.

In January 2007, the District Attorney's Office moved to dismiss the charges against plaintiff, and the court granted the motion.

D

In September 2007, plaintiff commenced the first of the instant civil rights actions by filing a complaint in Supreme Court against the City of New York and several police officers involved in the investigation of Acuna's murder, including Lieutenant Velardi and Detectives Santiago, Guerra, Hendricks, Corey and McEntee. In the complaint, plaintiff asserted a cause of action against the City and the individual defendants for violation of 42 USC § 1983, a cause of action against the City for negligent supervision and a cause of action against the individual defendants for wanton, wilful and reckless conduct. Plaintiff maintained, *inter alia*, that the City had negligently failed to supervise the officers who wrongfully suspected her of killing Acuna and had negligently furthered her wrongful arrest and prosecution. Only the City answered in the first action. Plaintiff did not serve any of the other defendants and unsuccessfully sought an extension of time in which to do so.

Thereafter, plaintiff commenced the second lawsuit by filing a complaint against the New York City Police Department

(NYPD), Lieutenant Velardi and Detectives Santiago, Guerra, Hendricks and Corey. In that complaint, plaintiff asserted causes of action for: defendants' denial of plaintiff's constitutional rights to due process and equal protection in violation of 42 USC § 1981; the individual defendants' unlawful detention of her in violation of 42 USC § 1983; the NYPD's pattern of practice of improper treatment of arrestees in violation of 42 USC § 1983; the NYPD's failure to supervise the individual defendants who improperly arrested plaintiff in violation of 42 USC § 1983; defendants' unlawful malicious prosecution of plaintiff under the common law; defendants' unlawful false arrest and imprisonment of plaintiff under the common law; and defendants' improper conduct warranting punitive damages. Plaintiff successfully served the City and Detectives Santiago, Guerra and Hendricks with the summons and complaint in the second action; consequently, the City's attorney appeared and answered on behalf of the NYPD and those detectives in that action.

E

Detectives McEntee, Santiago, Corey and Hendricks were deposed in these actions.³

At their depositions, the detectives gave an account of the disputed events that was mostly consistent with the prosecution witnesses' testimony at the suppression hearing. However, while the detectives' suppression hearing testimony covered primarily their interactions with plaintiff, their deposition testimony recounted their investigation at the crime scene and the other developments in the investigation summarized above. And, the detectives provided new details about their discussions with plaintiff on November 8 and November 9, 2002.

According to their deposition testimony, just prior to the polygraph examination on November 8, 2002, Detective McEntee showed plaintiff a crime scene photograph of Acuna and asked her to confirm that she knew Acuna. Upon seeing the picture, plaintiff cried out, but she immediately returned to a state of calm in a manner that struck McEntee as "[c]old blooded." Following the polygraph examination, Lieutenant Velardi informed Santiago that the results were "[i]nconsistent,

3. Immediately prior to the start of Corey's deposition, counsel for the City acknowledged on the record that he represented Corey and appeared on Corey's behalf "without any jurisdictional defenses or anything like that or statute of limitations."

that it was like she was lying.” Velardi told Detective Corey, however, that the results were “[i]nconclusive.”

After the polygraph examination and a lunch break, at about 11:30 p.m., the detectives interrogated plaintiff as described at the suppression hearing. At some point during the interrogation, the interviewing detectives told Detective Corey that defendant was crying and claiming that she had accidentally killed Acuna. At around that time, plaintiff orally confessed to her interrogators that she had killed Acuna in self-defense, and Santiago wrote versions of that statement in English and Spanish. According to her paperwork, Santiago finished writing the statement at about 4:45 a.m., not at 1:45 a.m. as she had suggested in her hearing testimony.

The English-language version of the statement declared that plaintiff had met Acuna two years before the murder. According to the statement, they started a friendship that later became a sexual relationship. One day during the week prior to the date of the murder, plaintiff was having sex with Acuna, and he demanded that she remove her crucifix necklace while they were engaging in this intimate activity. She complied and left the necklace in his bedroom. Later that week, plaintiff called Acuna to ask him to return the necklace, and although they made various plans for its return later that week, those plans fell through.

Regarding the day of the murder, plaintiff’s written statement said:

“The following day, Tuesday, I called him again it was around 12:30 or 1:00 in the afternoon and he asked me if I liked the way he made love to me. We talked a little bit, and he told me it was okay to visit him because his son was working and he was going to be home alone. I bath[ed], dressed and fixed myself up so I could go and visit him. When I arrived at his house he asked me why it took so long. Immediately I went to his bedroom, and he removed my clothing and I didn’t resist. He made love to me . . . I was laying on his bed and *he immediately asked me to pass him a condom*, and he commence[d] to remove his shorts . . . After we had sex, he grabbed my clothes and threw them at me, and he stated[,] ‘Get dress[ed]’, and [he] told me I had to leave.” (Emphasis added.)

Following this explanation of the origin of the confrontation between plaintiff and Acuna, the statement continued:

“I didn’t want to leave, but he insisted that I leave, and he continued pulling me and I resisted. He pulled me all the way from the bedroom to the front door. I tried to resist him, but he grabbed me by my hair and clothing and pushed me out. I pushed the door again and reentered. . . . I asked him what’s happening, and he said there were people coming to paint and he didn’t want them to see me there. . . . I asked him are they going to be males or females, why is there so much rush for me to leave. He smirked like he was making fun of me, and he repeated again ‘leave now.’ He then began pulling me harder and he slapped me and began grabbing me by my clothing and pulled me to the area by the dining area. He was grabbing me very hard by the hair, and grabbed it and *slammed my head against the wall*, and continued slapping me on the face. I wasn’t defending myself, but he kept hitting me and I defended myself. . . . He dragged me to the kitchen, and at this point I was looking to defend myself. I had to defend my life, he was hitting very hard. I was losing my mind and saw everything dark . . . At this moment I couldn’t see anything. I don’t know where I grabbed the knife from, I only knew that I had to defend myself. I had the knife in my hand, I thought he would get scared, but he didn’t. He continued to grab my hair, pulling my head forward. I went forward towards him, and I had the knife in my hand and I stabbed him I don’t know how many times. Possibly more than two times. I at this moment, I lost sense of time. I saw blood coming from his chest. I was seeing everything dark and my head was dizzy. I didn’t see if he fell to the floor. I ran towards the front door and left. *I got on the elevator*, and the elevator stopped on the third floor. *A white female got onto the elevator, and I had my hair loose and I tried to hide my face with my hair*. I don’t know what I did with the knife, I can’t remember where I got rid of it. At no moment did I want to do him any harm or hurt him, but he hurt me so hard that I had to defend myself.” (Emphases added.)

After making this statement, plaintiff consented to a search of her room. The detectives arrested plaintiff.

The police found a knife and some clothes in plaintiff's room, but there was no blood on those items or anywhere in her residence. At some point after plaintiff's statement and arrest, because plaintiff had claimed in her oral statement that she believed some Sheetrock had been broken when Acuna slammed her head into the kitchen wall of his apartment, a detective went back to the apartment to check the kitchen wall for signs of damage. The detective found no dents in the wall and reported as much to Detective Corey. The police also asked some of Acuna's neighbors whether they had seen plaintiff in the elevator on the night of the crime, and none of them had.

"Years later," the District Attorney's Office told Corey that the DNA of one male other than Acuna had been found in the blood samples recovered from the scene of the crime. Otherwise, Corey never saw any lab reports or DNA test results. At their depositions, Detectives McEntee and Corey were questioned about whether NYPD supervisors encouraged swift arrests in homicide cases. McEntee testified that the NYPD considered the number of cases closed by arrest as one factor among many in a detective's performance evaluation. Corey testified that his superiors did not pressure him in any way to resolve the investigation of Acuna's murder.

F

At her deposition, plaintiff described her own background, explaining that she was an undocumented Mexican immigrant who sold flowers on Roosevelt Avenue in Queens, that she spoke some English but was far more fluent in Spanish and that she had only an elementary school education. About a year before Acuna's death, plaintiff met him while she was selling flowers, and she started a friendship with him which, after a couple of weeks, became a sexual relationship.

According to plaintiff, when the detectives interviewed her on October 11, 2002, she told Detective McEntee that she did not know Acuna. Plaintiff hid her relationship with Acuna because she was afraid to reveal that, in the course of that relationship, she had called him from her apartment in violation of her landlords' directive not to use the telephone there. Additionally, plaintiff had difficulty recognizing Acuna in the photograph displayed by McEntee because Acuna did not have a beard in that photograph, as he did for the entire period in which they had known each other.

On October 25, 2002, plaintiff initially concealed from Detectives Santiago and Hendricks her familiarity with Acuna and

her phone calls to him, but she did so only because she spoke to those detectives in the presence of the couple from whom she rented a room and did not want to divulge her unauthorized use of their telephone. Following that initial conversation, plaintiff willingly accompanied the detectives to the precinct, and she acknowledged her connection to Acuna. After her arrival at the precinct, the detectives took plaintiff to an interview room, and they placed Acuna's bloody clothes and photographs of the grisly scene of his murder on a table in the room. The detectives asked plaintiff whether she was afraid, and she answered that she was scared because she had "never seen anything like that." The detectives asserted that plaintiff was scared because she had committed the murder, but she denied this. The detectives told her that her "conscience would not leave [her] alone afterwards," and they left her alone in the interview room with the clothes and crime scene photographs, causing her to cringe in the corner of the room for the next hour. The detectives then returned to the room and told plaintiff that she could leave, but that she should not depart the country because they would contact her again. Plaintiff left the precinct.

On November 8, 2002, plaintiff agreed to take a polygraph examination, and Detectives Santiago, Guerra and Hendricks drove her to the precinct. There, the detectives interrogated her for three to five hours, again displaying the bloody clothes and the photographs. Santiago told her that she "had to" claim that she had killed Acuna in self-defense. Santiago directed plaintiff to claim that Acuna had grabbed her by the hair and thrown her against the wall. Santiago also accused plaintiff of killing Acuna out of jealousy, saying that "if [she] had done it to accept it" so that Santiago would help her. Santiago reiterated that Santiago would tell plaintiff what to say so that Santiago could help her, but plaintiff continued to deny that she had killed Acuna. The detectives left plaintiff alone in the room, and she started to cry.

Later that day, Santiago returned to the interview room and started writing something on a piece of paper. Santiago told plaintiff to write that she had committed the crime, but plaintiff refused and insisted on her innocence. Santiago next told plaintiff to "say that it was in self-defense." Santiago presented plaintiff with a written statement to this effect, but plaintiff refused to sign it. Santiago asserted that signing the statement was "for [plaintiff's] good" and that Santiago "would

let [her] go” if she signed it. Subsequently, raising her voice, Santiago told plaintiff that it was her fault that Santiago “didn’t go to sleep with her son,” adding that Santiago would soon make “a definite decision.”

At that point, another detective entered the room. This detective offered plaintiff food and soothingly informed her that if she signed the statement, that would help her. The detective pointed out that the statement would indicate that she had acted “in self-defense and that is what many women did.” The detectives repeated that plaintiff could leave if she signed the statement, and she finally signed it in the early hours of November 9 because Detective Santiago “made [her] sign that paper.” At some point, Santiago sought to videotape her interview with plaintiff, but plaintiff refused to be taped.

After plaintiff signed the confession drafted by Detective Santiago, the detectives placed her in a holding cell. Santiago offered plaintiff her business card and said that plaintiff should call her if plaintiff wanted the advice of a mother. Thereafter, the police took plaintiff to the jail at Rikers Island, where she remained for the duration of the criminal proceedings against her.

G

After discovery, defendants moved for summary judgment dismissing the complaints in both actions. In support of the motion, defendants asserted, inter alia, that the detectives’ deposition testimony and other evidence established that they had lawfully arrested plaintiff based on her suspicious conduct, including her voluntary confession that she had murdered Acuna. Defendants also argued that they had demonstrated their entitlement to judgment as a matter of law on the probable cause and malice elements of plaintiff’s false arrest and malicious prosecution claims. And, defendants maintained that plaintiff had neither pleaded nor proved that the City had a custom or practice of committing constitutional violations that could render it liable under 42 USC § 1983. Additionally, defendants argued that plaintiff had abandoned her claims against the individual defendants on whose behalf the City had not interposed an answer because she had failed to seek entry of a default judgment against them within one year.

Plaintiff opposed defendants’ motion, asserting that the detectives’ testimony did not conclusively establish that they had probable cause to arrest her and that her testimony cre-

ated a triable issue of fact as to whether they had improperly relied on her false confession to justify the arrest. In opposition to the City's claim that no City policy or practice had caused any violation of plaintiff's constitutional rights, plaintiff submitted an affidavit from an expert witness, Evrard Williams, a former NYPD homicide detective who last served in 1985. Williams opined that the detectives had coerced plaintiff into confessing by promising that they would release her for doing so, and he maintained that the detectives must have taken such action "because of a strong policy that was pervasive throughout the police department to quickly investigate and close out investigations so that statistically it would appear that the police department was quickly solving crimes, particularly homicides." In support of plaintiff's claim that the City and the NYPD had a policy of pressuring police officers to make arrests without probable cause, she also cited Detective McEntee's testimony that police officials evaluated each detective's performance based in part on the number of cases the detective has closed via arrest.

In a short form order filed in the first action on August 10, 2012, Supreme Court dismissed plaintiff's claims against all of the individual defendants as abandoned, and it dismissed the complaint against the City on the merits (2012 NY Slip Op 32286[U] [Sup Ct, Queens County 2012]). Plaintiff appealed the August 10 order to the Appellate Division. Evidently, judgment was never entered in the first action.

In a short form order filed in the second action on August 9, 2012, Supreme Court dismissed plaintiff's claims against Lieutenant Velardi and Detective Corey as abandoned, and it dismissed her claims for malicious prosecution, false arrest, violations of 42 USC § 1981 and violations of 42 USC § 1983 on the merits (36 Misc 3d 1238[A], 2012 NY Slip Op 51739[U] [Sup Ct, Queens County 2012]). On November 30, 2012, Supreme Court, relying on the August 9 order, entered judgment dismissing the complaint against defendants in the second action. Plaintiff appealed from both the August 9 order and the November 30 judgment. The Appellate Division consolidated plaintiff's appeals in both actions (2013 NY Slip Op 60957[U] [2d Dept 2013]).

The Appellate Division unanimously affirmed the August 10 order and the November 30 judgment dismissing the complaints in both actions, and it dismissed the appeal from the August 9 order in the second action on the ground that the issues raised

in that appeal had been brought up for review and considered on the appeal from the November 30 judgment (*see De Lourdes Torres v Jones*, 120 AD3d 572, 572-575 [2d Dept 2014]). On the merits, the Appellate Division held that defendants had made a prima facie showing of entitlement to summary judgment on all of plaintiff's claims, and it ruled that plaintiff had failed to rebut defendants' showing with proof sufficient to demonstrate the existence of any triable issue of fact (*see id.* at 574-575). We granted plaintiff leave to appeal (24 NY3d 913 [2015]), and we now modify the Appellate Division's order.

II.

A

Under the common law, a plaintiff may bring suit for false arrest and imprisonment against one who has unlawfully robbed the plaintiff of his or her "freedom from restraint of movement" (*Broughton v State of New York*, 37 NY2d 451, 456 [1975], *cert denied sub nom. Schanbarger v Kellogg*, 423 US 929 [1975]; *see* Dan B. Dobbs et al., *Torts* § 41 [2d ed 2011]). To prevail on such a cause of action, the plaintiff must demonstrate that the defendant intended to confine the plaintiff, that the plaintiff was conscious of the confinement, that the plaintiff did not consent to the confinement and that the confinement was not privileged (*see Donald v State of New York*, 17 NY3d 389, 394-395 [2011]; *Martinez v City of Schenectady*, 97 NY2d 78, 85 [2001]; *Parvi v City of Kingston*, 41 NY2d 553, 556 [1977]). For purposes of the privilege element of a false arrest and imprisonment claim, an act of confinement is privileged if it stems from a lawful arrest supported by probable cause (*see Gisondi v Town of Harrison*, 72 NY2d 280, 283 [1988]; *Broughton*, 37 NY2d at 458; *see also Fortunato v City of New York*, 63 AD3d 880, 880 [2d Dept 2009]). "Probable cause consists of such facts and circumstances as would lead a reasonably prudent person in like circumstances to believe plaintiff guilty" (*Colon v City of New York*, 60 NY2d 78, 82 [1983]). "Probable cause does not require proof sufficient to warrant a conviction beyond a reasonable doubt but merely information sufficient to support a reasonable belief that an offense has been or is being committed" by the suspected individual, and probable cause must be judged under the totality of the circumstances (*People v Bigelow*, 66 NY2d 417, 423 [1985]).

The common law also recognizes a cause of action for the separate tort of malicious prosecution, which protects the plaintiff's distinct "interest of freedom from unjustifiable litigation" (*Broughton*, 37 NY2d at 457). "The elements of the tort of malicious prosecution are: (1) the commencement or continuation of a criminal proceeding by the defendant against the plaintiff, (2) the termination of the proceeding in favor of the accused, (3) the absence of probable cause for the criminal proceeding and (4) actual malice" (*id.* at 457; *see Smith-Hunter v Harvey*, 95 NY2d 191, 195 [2000]; *Martinez*, 97 NY2d at 84; *Thaule v Krekeler*, 81 NY 428, 433 [1880]). Thus, while false arrest and malicious prosecution are "kindred actions" insofar as they often aim to provide recompense for illegal law enforcement activities, each action "protects a different personal interest and is composed of different elements" (*Broughton*, 37 NY2d at 456; *see Marks v Townsend*, 97 NY 590, 597-598 [1885]). And, the unique elements of malicious prosecution typically present a greater obstacle to recovery than the elements of false arrest; as we have said, "The law . . . places a heavy burden on malicious prosecution plaintiffs" (*Smith-Hunter*, 95 NY2d at 195; *see Munoz v City of New York*, 18 NY2d 6, 9 [1966]).

We have "never elaborated on how a plaintiff in a malicious prosecution case demonstrates that the defendant commenced or continued the underlying criminal proceeding" (*Grucci v Grucci*, 20 NY3d 893, 896 n [2012]). But, by suggesting that a defendant other than a public prosecutor may be liable for supplying false information to the prosecutor in substantial furtherance of a criminal action against the plaintiff, we have implicitly recognized that such conduct may, depending on the circumstances, constitute the commencement or continuation of the prosecution (*see Colon*, 60 NY2d at 82 [noting that proof establishing "that the police witnesses" have falsified evidence may create liability for malicious prosecution]; *see also Hopkinson v Lehigh Val. R.R. Co.*, 249 NY 296, 300-301 [1928] [noting that the falsification of evidence and presentation of that evidence to the prosecutor can constitute commencement of a prosecution]). Relevant Appellate Division decisions are to the same effect (*see Ramos v City of New York*, 285 AD2d 284, 298-299 [1st Dept 2001]; *cf. DeFilippo v County of Nassau*, 183 AD2d 695, 696 [2d Dept 1992]). Similarly, in other jurisdictions, the rule is that the defendant commences the prosecution of the plaintiff if the defendant demands in bad faith that

the public prosecutor initiate the criminal action or supplies the prosecutor with falsified evidence that the defendant knows or should know will cause the prosecutor to prosecute the plaintiff (see *Zenik v O'Brien*, 137 Conn 592, 596, 79 A2d 769, 771 [1951]; *Szczesniak v CJC Auto Parts, Inc.*, 21 NE3d 486, 491 [Ill App Ct 2014]; *MacIntosh v Interface Group Massachusetts-Com., Inc.*, 9 Mass L Rptr 408 [Super Ct 1999]; *Lester v Buchanen*, 112 Nev 1426, 1429, 929 P2d 910, 913 [1996]; *Bradley v General Acc. Ins. Co.*, 778 A2d 707, 710-711, 2001 PA Super 172, ¶ 8 [2001]).

Just as in the false arrest context, the plaintiff in a malicious prosecution action must also establish at trial the absence of probable cause to believe that he or she committed the charged crimes, but this element operates differently in the malicious prosecution context because “[o]nce a suspect has been indicted, . . . the law holds that the Grand Jury action creates a presumption of probable cause” (*Colon*, 60 NY2d at 82; see *Grucci*, 20 NY3d at 898; *Lee v City of Mount Vernon*, 49 NY2d 1041, 1043 [1980]). Generally, the plaintiff cannot rebut the presumption of probable cause with evidence merely indicating that the authorities acquired information that, depending on the inferences one might choose to draw, might have fallen somewhat shy of establishing probable cause (see *Colon*, 60 NY2d at 83). And, even if the plaintiff shows a sufficiently serious lack of cause for the prosecution and rebuts the presumption at trial, he or she still must prove to the satisfaction of the jury that the defendant acted with malice, i.e., that the defendant “must have commenced the prior criminal proceeding due to a wrong or improper motive, something other than a desire to see the ends of justice served” (*Nardelli v Stamberg*, 44 NY2d 500, 503 [1978]).

Although burdensome, these barriers to a malicious prosecution plaintiff’s recovery are not insurmountable, and in some instances, the plaintiff can simultaneously rebut the presumption of probable cause and satisfy the malice element by demonstrating that the evidence of guilt relied upon by the defendant was so scant that the prosecution was entirely baseless and maliciously instituted. In that sense, “[w]hile lack of probable cause to institute a criminal proceeding and proof of actual malice are independent and indispensable elements of a malicious prosecution action, the absence of probable cause does bear on the malice issue,” and “probable cause to initiate a criminal proceeding may be so totally lacking as to reason-

ably permit an inference that the proceeding was maliciously instituted” (*Martin v City of Albany*, 42 NY2d 13, 17 [1977]; see *Thaule*, 81 NY at 434). Moreover, in the alternative, the plaintiff may show malice and overcome the presumption of probable cause with proof that the defendant falsified evidence in bad faith and that, without the falsified evidence, the authorities’ suspicion of the plaintiff would not have fully ripened into probable cause (see *Hopkinson*, 249 NY at 300; cf. *Gisondi*, 72 NY2d at 284-285). Thus, we have observed that, in the context of a malicious prosecution suit against the police, the presumption may be overcome “by evidence establishing that the police witnesses have not made a complete and full statement of facts . . . to the District Attorney, that they have misrepresented or falsified evidence, that they have withheld evidence or otherwise acted in bad faith” (*Colon*, 60 NY2d at 82-83).

The foregoing elements and considerations also impact a plaintiff’s parallel claims under 42 USC § 1983, which authorizes the plaintiff to sue government agents for unlawful arrest and malicious prosecution in violation of the laws and Constitution of the United States (see 42 USC § 1983; *Albright v Oliver*, 510 US 266, 270-275 [1994] [op of Rehnquist, Ch. J.]; *Lennon v Miller*, 66 F3d 416, 423-425 [2d Cir 1995]; cf. *Rehberg v Paulk*, 566 US —, —, 132 S Ct 1497, 1507-1508 [2012]). Indeed, the elements of those causes of action under the federal statute are substantially the same as the elements of the comparable state common-law claims, and they are evaluated in much the same way (see *Simpson v City of New York*, 793 F3d 259, 265 [2d Cir 2015]; *Weyant v Okst*, 101 F3d 845, 852 [2d Cir 1996]; *Manganiello v City of New York*, 612 F3d 149, 160-161 [2d Cir 2010]; see also *Paulos v City of New York*, 122 AD3d 815, 817 [2d Dept 2014]). However, as will be discussed in detail hereinafter, the government itself cannot be liable for false arrest or malicious prosecution under 42 USC § 1983 unless an official government policy, custom or widespread practice caused the violation of the plaintiff’s constitutional rights (*Monell*, 436 US at 694, 701; *Canton v Harris*, 489 US 378, 385 [1989]).

Considering the aforementioned law in the context of a summary judgment motion, the defendant moving for summary judgment must establish a defense to the plaintiff’s malicious prosecution and false arrest claims as a matter of law by submitting sufficient evidence to eliminate any material issues

of fact (see CPLR 3212 [b]; *Nomura Asset Capital Corp. v Cadwalader, Wickersham & Taft LLP*, 26 NY3d 40, 49 [2015]; *Jacobsen v New York City Health & Hosps. Corp.*, 22 NY3d 824, 833 [2014]; see also *MacDonald v Town of Greenburgh*, 112 AD3d 586, 586-587 [2d Dept 2013]). On such a motion, the facts must be viewed in the light most favorable to the plaintiff, and every available inference must be drawn in the plaintiff's favor (see *Jacobsen*, 22 NY3d at 833; *William J. Jenack Estate Appraisers & Auctioneers, Inc. v Rabizadeh*, 22 NY3d 470, 475 [2013]). "Once [the movant's prima facie] showing has been made, however, the burden shifts to the party opposing the motion for summary judgment to produce evidentiary proof in admissible form sufficient to establish the existence of material issues of fact which require a trial of the action" (*Alvarez v Prospect Hosp.*, 68 NY2d 320, 324 [1986]; see *Vega v Restani Constr. Corp.*, 18 NY3d 499, 503 [2012]). Under this summary judgment standard, even if the jury at a trial could, or likely would, decline to draw inferences favorable to the plaintiff on issues of probable cause and malice, the court on a summary judgment motion must indulge all available inferences of the absence of probable cause and the existence of malice.

B

The law outlined above reveals that the lower courts here improperly granted summary judgment to defendants on plaintiff's common-law false arrest and malicious prosecution claims, and it forecloses judgment as a matter of law in favor of the individual defendants on plaintiff's claims under 42 USC § 1983.⁴ When viewed in combination with other evidence and in the light most favorable to her, plaintiff's deposition testimony raised triable questions of fact regarding whether the detectives unlawfully arrested her for Acuna's murder without probable cause, improperly commenced the prosecution against her and participated in the prosecution out of malice.

4. In this context, the individual defendants are Detectives Corey, Guerra, Hendricks and Santiago, as the instant lawsuits were dismissed against the remaining named individual defendants on procedural grounds. Additionally, while the nisi prius court removed Corey from the case based on plaintiff's failure to enter a default judgment against him, the court's decision in that respect was erroneous for reasons that will be discussed later in this opinion. Thus, plaintiff's claims against the detectives remain viable only against Corey, Guerra, Hendricks and Santiago.

[1] With respect to plaintiff's false arrest claims, the evidence of the information known to the detectives prior to her arrest, excluding her alleged confession on November 9, 2002, did not conclusively demonstrate that the detectives had probable cause to arrest her as a matter of law. To be sure, based on the detectives' discovery of plaintiff's necklace in Acuna's bedroom, her phone calls to him, and her admission on October 25, 2002 that she knew him, the detectives had ample reason to believe that she and Acuna were acquaintances or friends. Additionally, since Acuna's corpse was unclothed, the detectives may have had some reason to believe that he had died shortly after having sex with or undressing in the presence of such an acquaintance, as opposed to a stranger. Plaintiff also initially lied to the detectives by claiming that she had neither known nor called Acuna, which naturally engendered some suspicion that she was covering up her relationship with him because she felt it might make her an object of suspicion. But, while the detectives might have had reasonable cause to believe that plaintiff had an amicable relationship with Acuna and that he might have died under intimate conditions, those circumstances did not give them a reasonable belief that she, as opposed to some other friend or acquaintance of Acuna, was his sexual partner and had killed him (*see generally People v Anderson*, 46 AD2d 150, 151-153 [4th Dept 1974] [police illegally arrested defendant simply because he was a member of a group of the victim's friends and acquaintances]).⁵

The proof of Lieutenant Velardi's assessment of plaintiff's performance during the polygraph examination, as formed at the time of plaintiff's interrogation and conveyed to Detective Santiago, did not eliminate any possible factual dispute regarding whether the test results raised the detectives' suspicion to the level of probable cause. As far as the record shows, Velardi merely told Detective Santiago that plaintiff had lied about

5. Based on plaintiff's counsel's questioning of Detective Santiago at her deposition, it appears that Santiago testified before the grand jury that, on October 25, 2002, plaintiff had admitted to her that plaintiff and Acuna had a sexual relationship. However, at the deposition, Santiago's recollection of that grand jury testimony was not refreshed. Furthermore, defendants did not cite this portion of Santiago's grand jury testimony, or even the excerpt of the deposition in which she was asked about it, in support of their summary judgment motion, nor did they argue that Santiago had been aware of plaintiff's sexual relationship with Acuna prior to her confession. As a result, defendants' current argument to that effect is unpreserved (*see generally Toure v Avis Rent A Car Sys.*, 98 NY2d 345, 351 n 3 [2002]).

unspecified matters, and he told Detective Corey that the polygraph test results were “[i]nconclusive.” Therefore, when viewed in the light most favorable to plaintiff, the evidence of the preliminary results of the polygraph examination at most exhibited plaintiff’s willingness to lie to the police in general and not her concealment of her commission of the murder (*cf. Livers v Schenck*, 700 F3d 340, 358 [8th Cir 2012] [“a reasonable officer who knew of the polygraph examination’s flaws would not reasonably have thought he had probable cause to arrest” the suspect]).⁶

Crediting plaintiff’s testimony for purposes of summary judgment, a triable issue of fact exists as to whether the confession increased the detectives’ suspicion to the level of probable cause, for by her account, they invented a false confession and forced her to sign it. In that regard, plaintiff testified that, on November 8 and into November 9, Detectives Guerra and Santiago wore down her resistance to their demands that she confess to the murder over an extended period of time. In fact, if a jury were to credit all of plaintiff’s testimony and part of the detectives’ testimony, the jurors could find that the detectives questioned her for around 21 hours and that, during at least 11 of those hours, plaintiff did not feel free to leave. Throughout that period, Santiago told plaintiff that she “had to” confess to killing Acuna, positing alternative theories of plaintiff’s motive by suggesting that she had killed him in self-defense or out of jealousy. From the early stages of the interview, Santiago insinuated details of the crime that ended up in the confession, including the written confession’s allegation that plaintiff had stabbed Acuna after he slammed her head into a wall. As Santiago continued to insist that plaintiff admit her guilt throughout the interview at the police precinct, Santiago also declared that Santiago would tell plaintiff what she should say so that Santiago could help her. Implicitly threatening to make an imminent “definite decision” to arrest her, Santiago made plaintiff fear that she would soon be imprisoned if she did not confess.

In the later stages of the interrogation, Santiago alone wrote out the confession, without plaintiff’s input, and then urged

6. In this respect, Lieutenant Velardi’s more specific report about the polygraph results, which was drafted days after plaintiff’s arrest and cited by defendants in their summary judgment motion, does not eliminate all triable issues of fact regarding the conclusions reached by Velardi and the detectives at the time of the arrest, rather than thereafter.

plaintiff to sign it, saying it was for her own good. Eventually, Santiago and Guerra took turns requesting and demanding that plaintiff sign the statement. Finally, after the detectives repeatedly promised plaintiff that they would let her go if she signed the statement, she relented and signed it.⁷ Clearly, this account of the detectives' interview with plaintiff, which must be credited on a summary judgment motion, established that plaintiff's confession was false, for Detective Santiago allegedly invented the entire contents of the confession herself, drafted the confession and then used a combination of deceptive assurances and implicit threats to pressure plaintiff into signing the statement.⁸

Beyond the tactics described by plaintiff, the detectives' own familiarity with the evidence in the case should have given them pause about the reliability of the statement they purportedly drafted for plaintiff to sign. The confession claimed that plaintiff had sex with Acuna using a condom, that she had stabbed Acuna in the kitchen and that she had run out of the apartment to the elevator. But the detectives never found a condom or wrapper in the apartment, there was not much blood in the kitchen and the blood trail from the apartment suggested that the killer had fled down the stairs rather than into the elevator. Accordingly, when viewed in the light most favorable to plaintiff, the inconsistencies between the crime scene evidence and the confession, as well as plaintiff's account of the detectives' invention of the confession, revealed that the detectives knew that the confession was false and that therefore it could not have reasonably contributed to their

7. Whether certain interrogation practices are legally permissible is to be decided on a case-by-case basis. All we decide here is that plaintiff's account of the impact of the detectives' interrogation techniques on her decision to sign the confession contributed to triable issues of fact in connection with her false arrest and malicious prosecution claims.

8. In relying on plaintiff's testimony that she signed the confession only in response to the detectives' lengthy interrogation of her and their commanding and cajoling her to confess, we do not decide on summary judgment that the evidence is legally insufficient to support a factfinder's conclusion that the police had probable cause to arrest plaintiff based upon the confession, nor do we opine that the confession was involuntarily made as a matter of law. Indeed, as we explain later in this opinion, plaintiff, like defendants, has not established entitlement to judgment as a matter of law. At bottom, our decision here is grounded on the long-established principle that "where it is demonstrated that there is a dispute about . . . the inferences to be drawn by a reasonable person from the facts which led to the [arrest or] prosecution, the uniform rule has been to require there be a factual resolution at a trial" (*Munoz*, 18 NY2d at 11).

suspicion of plaintiff at all. Thus, the evidence gave rise to a triable issue of fact as to whether the detectives falsified plaintiff's confession and brazenly arrested her without even arguable probable cause, and defendants were not entitled to summary judgment on her false arrest claim (*cf. Warney v State of New York*, 16 NY3d 428, 435-436 [2011] [where plaintiff alleged in a suit under the Court of Claims Act that the police used threats and coercive tactics to prompt him to falsely confess to a crime and include a few true details in the confession, dismissal of his claim that the police's misconduct in eliciting the false confession and causing his wrongful conviction was improper]).⁹

[2] Turning to plaintiff's malicious prosecution claims, the evidence that the detectives falsified plaintiff's confession and provided the confession to the District Attorney's Office for use in the prosecution of plaintiff created a triable issue of fact on the commencement element of malicious prosecution. Because it is undisputed that the detectives who participated in the creation of the confession also had it sent to the District Attorney's Office, those detectives knew or should have known that their submission of the plaintiff's unequivocal admission to killing Acuna would cause prosecutors to bring a criminal proceeding against plaintiff, and consequently, the detectives' role in commencing the prosecution, coupled with plaintiff's testimony about the falsity of the confession, yielded a triable issue of fact on the commencement element of her malicious prosecution claim.

Additionally, the proof recounted above, from which the falsification of evidence and the absence of probable cause could be inferred, produced a triable issue of fact regarding whether probable cause supported plaintiff's prosecution. Because evidence that a police officer lacked probable cause to believe that the plaintiff committed a crime and provided a falsified confession to prosecutors can rebut the presumption of probable cause arising from an indictment (*see Colon*, 60 NY2d at 82-83), the evidence here that the detectives did not have probable cause to believe that plaintiff had killed Acuna, made a

9. Aside from an oblique reference to the issue in their brief, defendants do not directly assert that the suppression court's ruling on the voluntariness of plaintiff's confession should entirely estop plaintiff from asserting that her confession was involuntary and false. And, defendants did not preserve such a claim below. Under these circumstances, we decline to address any collateral estoppel issues in this case.

fake confession, attributed the confession to plaintiff and gave it to prosecutors could, if credited, overcome the presumption of probable cause arising from plaintiff's indictment. And, since evidence of bad faith conduct in an infirm prosecution can also support an inference of malice (*see Hopkins*, 249 NY at 300), this evidence further generated a triable issue of fact as to whether the detectives maliciously commenced the criminal proceedings against plaintiff. Thus, for the foregoing reasons, we hold that the courts below erred in granting summary judgment to all defendants on plaintiff's state law claims and to the individual defendants on her claims under 42 USC § 1983.

C

While plaintiff maintains triable claims against the individual defendants under federal law, the same is not true of her federal civil rights claims against the City and the NYPD. As previously noted, plaintiff can proceed to trial against the governmental defendants on her claims under 42 USC § 1983 only if the record discloses a triable issue of fact as to whether an official policy or custom of the City government itself caused the detectives to violate her constitutional rights. Under *Monell v New York City Dept. of Social Servs.* (436 US 658 [1978]) and its progeny, "[o]fficial municipal policy includes the decisions of a government's lawmakers, the acts of its policymaking officials, and practices so persistent and widespread as to practically have the force of law" (*Connick v Thompson*, 563 US 51, 61 [2011]; *see Simpson v New York City Tr. Auth.*, 112 AD2d 89, 91 [1st Dept 1985], *affd* 66 NY2d 1010 [1985]). Stated differently, the existence of such a policy may be shown by proof that the municipality had a custom or practice that was both widespread and reflected a deliberate indifference to its citizens' constitutional rights (*see id.* at 60-62; *Board of Comm'rs of Bryan Cty. v Brown*, 520 US 397, 403-407 [1997]; *Oklahoma City v Tuttle*, 471 US 808, 819-823 [1985]; *Jones v Town of E. Haven*, 691 F3d 72, 80 [2d Cir 2012]). Furthermore, to render the City liable under section 1983, the City's custom or practice had to be the "moving force" behind plaintiff's constitutional injury (*Brown*, 520 US at 404; *see Surprenant v Rivas*, 424 F3d 5, 19 n 6 [1st Cir 2005]).

[3] Here, the evidence does not support an inference that the City and the NYPD had a widespread custom of arresting people in violation of their constitutional rights, nor is there any proof that such a policy caused the allegedly wrongful ar-

rest and prosecution of plaintiff. On this subject, plaintiff points to only two pieces of evidence that purportedly expose the existence of a municipal policy or practice of making unfounded arrests: (1) the testimony of her expert witness, Evrard Williams, who last served on the police force in the 1980s, that he believed that police officials regularly pressured detectives to quickly close homicide cases by making arrests, even without probable cause; and (2) Detective McEntee's testimony that, as part of the NYPD performance evaluation process, the Department considered a detective's record of closing cases with arrests. But those pieces of evidence fail to create a triable issue of fact on the official policy element of plaintiff's federal claims against the City.

Notably, plaintiff's expert offered no factual support, beyond his recitation of plaintiff's account of her arrest, for his belief that the NYPD had a policy of pressuring police officers to quickly arrest homicide suspects, nor could his familiarity with NYPD policy during the 1980s have supplied an adequate basis for his unsubstantiated opinion about any policy in effect at the time of plaintiff's arrest decades later. In addition, although Detective McEntee testified that NYPD supervisors generally took a detective's case closure rate into account in analyzing his or her performance, the NYPD's practice of incentivizing arrests via a multifactor evaluation does not in itself amount to a practice of promoting arrests without probable cause. Moreover, even if plaintiff had established the existence of a municipal practice of promoting arrests without probable cause in homicide cases, neither Williams nor McEntee alleged facts establishing that any particular policy in effect at the time of plaintiff's arrest was the cause of the detectives' decision to arrest her. Therefore, on this record, there is no triable issue of fact as to whether an official City policy caused the police to unlawfully arrest plaintiff, and the lower courts properly granted summary judgment to the City and the NYPD on plaintiff's claims under 42 USC § 1983.

D

On a final note, while we agree with plaintiff that the courts below improperly granted summary judgment to the individual defendants on her claims, we reject her argument that the detectives' suppression hearing testimony that her confession was voluntary, as opposed to their transmission of the sham confession to the prosecutors in the first instance, may on its

own result in liability for the commencement or continuation of the prosecution for purposes of her malicious prosecution claims. As a matter of historically-rooted public policy, a witness cannot be liable for malicious prosecution based on his or her false testimony at a trial or pretrial proceeding, such as a grand jury proceeding (see *Rehberg*, 566 US at —, 132 S Ct at 1510; *Briscoe v LaHue*, 460 US 325, 329-336 [1983]; see also Dan B. Dobbs et al., Torts § 587 [2d ed 2011]), and courts have extended this rule to eliminate liability arising from a police officer's false testimony at a suppression hearing (see *Curtis v Bembenek*, 48 F3d 281, 284 [7th Cir 1995]; *Daloia v Rose*, 849 F2d 74, 76 [2d Cir 1988]; *Holt v Castaneda*, 832 F2d 123, 124-125 [9th Cir 1987]). Drawing on the same underlying body of common law, we have recognized the need to shield grand jury witnesses from liability for defamation based on their testimony, and we have generally observed that public officials would be unduly deterred from the full and frank discharge of their duties were their false statements, made in the course of their official functions or in judicial proceedings, to become the source of civil liability (see *Toker v Pollak*, 44 NY2d 211, 219-220 [1978]; see also *Pecue v West*, 233 NY 316, 319-320 [1922]). On the other hand, there may well be cases in which a witness's improper act of testifying in itself is such an appalling betrayal of justice, and such an abuse of the immunity that ordinarily attaches to testimony, that the immunity must yield.

[4] However, here, while the testimony may not serve as a separate act of commencement or continuation, it is relevant evidence that the officers had a malicious state of mind in creating and transmitting the falsified confession. The test is “whether the plaintiff can make out the elements of his [or her] § 1983 claim without resorting to the . . . testimony. If the claim exists independently of the . . . testimony, it is not ‘based on’ that testimony . . . [c]onversely, if the claim requires the . . . testimony, the defendant enjoys absolute immunity” (*Coggins v Buonora*, 776 F3d 108, 113 [2d Cir 2015], *cert denied* 575 US —, 135 S Ct 2335 [2015]). Given the strong public policy against liability based on testimony in judicial proceedings, the detectives here should not, at least on this record, be subjected to potential liability for their testimony at the suppression hearing alone. But because plaintiff relies on evidence independent of the suppression hearing testimony, the detec-

tives may not invoke absolute immunity.¹⁰

In addition, our decision to vitiate the grant of summary judgment to defendants does not imply that plaintiff is entitled to summary judgment or should necessarily win at trial on her claims. The evidence simply discloses triable issues of fact that must be resolved by the jury rather than by the court as a matter of law (see *Munoz*, 18 NY2d at 11; see also *Hyman v New York Cent. R.R. Co.*, 240 NY 137, 143 [1925]). At trial, the jury remains free to infer the presence or absence of the elements of false arrest and malicious prosecution from this evidence as it sees fit, and it can reach different conclusions regarding distinct elements based on the same body of evidence.

Further, our decision does not signal that every allegation of the falsification of material evidence is a talisman shielding a plaintiff from summary judgment. It remains the law that a plaintiff's vague and conclusory assertions that the police fabricated evidence are insufficient to enable false arrest and malicious prosecution claims to survive a summary judgment motion (see *Phillips v City of Syracuse*, 84 AD2d 957, 957 [4th Dept 1981], *affd* 57 NY2d 996 [1982]). But, where, as here, the plaintiff provides detailed sworn testimony about the police's creation and dissemination of critical fabricated evidence and the remaining proof does not eliminate all questions as to probable cause, the defendant officers cannot win summary judgment.

Lastly, as defendants do not dispute, Supreme Court erroneously dismissed plaintiff's claims against Detective Corey on the ground that she failed to timely request a default judgment against Corey based on his failure to answer in these actions.

10. In *Colon v City of New York* (60 NY2d 78 [1983]), we suggested that a police officer might be liable for hiding material exculpatory evidence from, or providing false evidence to, "either . . . the Grand Jury or . . . the District Attorney" (*id.* at 82-83 [emphasis added]). But, in making this observation, we did not rule that a police officer's testimony per se, as distinct from his or her provision of fabricated evidence to the prosecuting authority in a manner designed to commence the prosecution in the first instance, is generally an appropriate basis in itself for liability for malicious prosecution. Rather, our comment was consistent with the rule of immunity applicable to a "complaining witness" under the common law. Indeed, as the Supreme Court of the United States recently explained, the common law has long regarded a person who instigates a prosecution as the "complaining witness" and hence permits a suit against that person based on his or her non-testimonial conduct in commencing the prosecution, but common-law principles nonetheless cloak a witness in the grand jury, including a law enforcement agent who acts as a "complaining witness," with immunity in connection with his or her testimony (see *Rehberg*, 566 US at —, 132 S Ct at 1502-1510).

At the start of Corey's deposition, counsel for the City stated that he represented Corey in the actions and waived all jurisdictional defenses on the detective's behalf. As a practical matter, then, Corey appeared in this action and, in any event, unequivocally waived any right to dismissal that he might have had, including his right to dismissal upon plaintiff's failure to timely seek a default judgment under CPLR 3215 (c). In light of counsel's declarations, plaintiff's evident desire to continue the actions against all defendants and the City's inability to identify any reason to strictly enforce the statute against plaintiff, Supreme Court improperly dismissed plaintiff's claims against Corey, which should be reinstated (*see generally HSBC Bank USA v Lugo*, 127 AD3d 502, 503 [1st Dept 2015]; *Myers v Slutsky*, 139 AD2d 709, 710 [2d Dept 1988]; *cf. Perricone v City of New York*, 62 NY2d 661, 663 [1984]).

III.

The evidence in this case raises triable issues of fact regarding plaintiff's common-law false arrest and malicious prosecution causes of action against only Detectives Corey, Santiago, Guerra and Hendricks, as well as the governmental defendants, thereby enabling her to proceed to trial on those claims. Likewise, the record reveals the existence of triable issues of fact on plaintiff's federal civil rights claims against the aforementioned detectives. Thus, defendants' motion for summary judgment on those claims should have been denied. However, since the record is devoid of proof that an official City policy resulted in the allegedly wrongful arrest and prosecution of plaintiff, the courts below properly granted summary judgment to the governmental defendants on plaintiff's claims under 42 USC § 1983. Finally, beyond the dismissal of plaintiff's 42 USC § 1983 claims against the City on *Monell* grounds, it is undisputed that the lower courts properly dismissed plaintiff's other claims in the first action, and hence the Appellate Division's affirmance of Supreme Court's August 10, 2012 order should not be disturbed. Accordingly, the order of the Appellate Division should be modified, without costs, in accordance with this opinion, and as so modified, affirmed.

Judges PIGOTT, RIVERA, STEIN and FAHEY concur; Chief Judge DiFIORE and Judge GARCIA taking no part.

Order modified, without costs, in accordance with the opinion herein and, as so modified, affirmed.

[47 NE3d 770, 27 NYS3d 491]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v OSCAR SANDERS, Appellant.

Argued January 5, 2016; decided February 23, 2016

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered July 23, 2014. The Appellate Division affirmed a judgment of the Supreme Court, Queens County (Barry Kron, J.), which had convicted defendant, upon a jury verdict, of criminal possession of a weapon in the second and third degrees. The appeal to the Appellate Division brought up for review the denial by that Supreme Court, after a hearing, of that branch of defendant's omnibus motion which was to suppress physical evidence.

People v Sanders, 119 AD3d 878, reversed.

HEADNOTE

Crimes — Unlawful Search and Seizure — Clothing Openly Visible on Floor of Hospital Room in Clear Plastic Bag

A police officer's warrantless seizure of a clear plastic bag containing defendant's clothes, which was resting on the floor of a hospital room a short distance away from the hallway where defendant was on a stretcher being treated for a gunshot wound, was unconstitutional and the clothes were improperly admitted at defendant's trial for criminal possession of a weapon. Under the plain view exception to the Fourth Amendment's warrant requirement, if the sight of an object gives the police probable cause to believe that it is the instrumentality of a crime, the object may be seized without a warrant if three conditions are met: the police are lawfully in the position from which the object is viewed; the police have lawful access to the object; and the object's incriminating nature is immediately apparent. Here, the evidence adduced at the suppression hearing showed that the officer who seized the clothes knew defendant to have been shot, and that defendant awaited treatment at the hospital in clothes different from those he wore at the time of the shooting. However, the evidence did not show that, before the seizure, the officer knew that entry and exit wounds were located on an area of defendant's body that would have been covered by the clothes defendant wore at the time of the shooting. Nor was there any other indicium that could have given rise to a reasonable belief that the shooting had affected defendant's clothes. Thus, there was no record support for the lower courts' conclusion that the investigating officer had probable cause to believe that defendant's clothes were the instrumentality of a crime.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Searches and Seizures §§ 1, 53, 125–127, 241, 243.

CARMODY-WAIT 2d, Search and Seizure §§ 173:1, 173:2, 173:4, 173:78–173:84.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 3.1–3.3.

NY JUR 2d, Criminal Law: Procedure §§ 214–217, 278–282.

US Const 4th Amend.

ANNOTATION REFERENCE

Hospital as within constitutional provision forbidding unreasonable searches and seizures. 28 ALR6th 245.

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Query: seizure defendant clothing hospital bag suppress

POINTS OF COUNSEL

Lynn W.L. Fahey, Appellate Advocates, New York City (Rahshanda Sibley of counsel), for appellant. I. Appellant's constitutional rights to be free from unreasonable search and seizure were violated when the police searched his clothing, which had been placed in a bag for safekeeping while he was being treated at a hospital, without his consent, a warrant, or a recognized exception to the warrant requirement and probable cause. (*Mapp v Ohio*, 367 US 643; *Vernonia School Dist. 47J v Acton*, 515 US 646; *Mincey v Arizona*, 437 US 385; *People v Pettinato*, 69 NY2d 653; *Weeks v United States*, 232 US 383; *Warden, Md. Penitentiary v Hayden*, 387 US 294; *Terry v Ohio*, 392 US 1; *United States v Mendenhall*, 446 US 544; *People v Cosme*, 48 NY2d 286.) II. Appellant was deprived of his right to be present at all material stages of his trial when the court conducted an off-the-record *Sandoval* hearing with counsel outside of appellant's presence, and then merely placed its ruling—which was not wholly favorable to appellant—on the record. (*People v Cruz*, 81 NY2d 738; *People v Spotford*, 85 NY2d 593; *People v Morales*, 80 NY2d 450; *People v Dokes*, 79 NY2d 656; *People v Favor*, 82 NY2d 254; *People v Monclavo*, 87 NY2d 1029; *People v Velasquez*, 1 NY3d 44; *People v Richetti*, 302 NY 290; *People v Robinson*, 191 AD2d 523; *People v Odiat*, 82 NY2d 872.)

Richard A. Brown, District Attorney, Kew Gardens (William H. Branigan, Robert J. Masters and John M. Castellano of counsel), for respondent. I. The officer properly searched and

seized defendant's clothing, found in open view on the floor of the trauma room, because it was immediately apparent that it was evidence of a crime. (*Texas v Brown*, 460 US 730; *People v Brown*, 96 NY2d 80; *Coolidge v New Hampshire*, 403 US 443; *Arizona v Hicks*, 480 US 321; *People v Diaz*, 81 NY2d 106; *United States v Conlan*, 786 F3d 380; *Harman v Pollock*, 586 F3d 1254; *Payton v New York*, 445 US 573; *People v Campbell*, 87 NY2d 855; *People v McRay*, 51 NY2d 594.) II. Defendant has failed to overcome the presumption that he was present during the *Sandoval* hearing. (*People v Sandoval*, 34 NY2d 371; *People v Dokes*, 79 NY2d 656; *People v Monclavo*, 87 NY2d 1029; *People v Robinson*, 191 AD2d 523; *People v Velasquez*, 1 NY3d 44; *People v Walker*, 78 AD3d 1671; *People v Favor*, 82 NY2d 254; *People v Michalek*, 82 NY2d 906; *People v Brown*, 268 AD2d 439; *People v Evans*, 211 AD2d 810.)

OPINION OF THE COURT

FAHEY, J.

The primary issue on this appeal is whether defendant's constitutional right to be free from unreasonable searches and seizures was violated when police took defendant's clothing, which had been placed in a clear hospital bag, without either a warrant or his consent. Under the circumstances of this case, we conclude that the seizure was unconstitutional, and that the part of defendant's motion seeking to suppress that physical evidence should have been granted.

On August 11, 2010, defendant "walked in" to Jamaica Hospital in Queens seeking treatment for a gunshot wound. Pursuant to its protocol, and as required by law (Penal Law § 265.25), the hospital reported the shooting to the police. Defendant told a police officer who responded to the hospital that defendant "was shot in [a nearby] [p]ark." By the time he spoke to that officer, defendant was "wearing hospital clothing."

After "dealing with . . . defendant" for "[a] little over an hour," the officer was directed to clothing defendant "wore when he came to [the] [h]ospital." Those clothes were in a clear plastic bag that rested on the floor of a trauma room a short distance away from the stretcher on which defendant was situated in a hospital hallway. In the bag the officer observed the "jeans that [defendant] was wearing that night, boxers, and his sneakers," and there is no dispute that the officer seized that bag. Likewise, there is no dispute that, as he vouchered the clothing, the officer inspected each garment. Based at least in

part on observations the officer made with respect to the condition of those items during the inventory process, authorities believed that defendant had accidentally shot himself with a gun he carried in his waistband.

Defendant was subsequently charged with, among other things, criminal possession of a weapon in the second degree (Penal Law § 265.03 [3]) and criminal possession of a weapon in the third degree (§ 265.02 [1]). Before trial, defendant sought suppression of the clothes based on what defense counsel characterized as the unlawful warrantless seizure of those items. The People opposed the motion on the ground that “police can seize evidence . . . where the items are in open view and the officer[] observe[s] [them] from a lawful vantage point.” After a hearing at which the investigating officer testified essentially to the facts noted at the outset of this opinion, Supreme Court denied suppression. According to the hearing court, “the clothing in [the] clear bag . . . potentially was evidence of a crime,” and “there [was] no violation of any [F]ourth [A]mendment rights . . . when th[at] clothing was recovered to be examined to see if it had relevance to the investigation of a crime of someone being shot.”

Defendant was eventually convicted of the aforementioned crimes following a jury trial at which the People supported their contention that defendant criminally possessed a loaded firearm outside of his home or place of business through, among other things, the admission into evidence of the clothing seized at the hospital.¹ On appeal, the Appellate Division affirmed the judgment and rejected defendant’s challenge to the suppression ruling (119 AD3d 878 [2d Dept 2014]). In doing so, the Appellate Division reasoned that “[s]ince the defendant’s clothing was lying on the floor of a hospital room in a clear plastic bag, the clothing was openly visible,” and that “the police had probable cause to seize the . . . clothing as evidence of a crime of which they believed the defendant had been a victim” (*id.* at 878). A Judge of this Court granted defendant leave to appeal (24 NY3d 1088 [2014]), and we now reverse the Appellate Division order.

Our analysis begins with the fundamental precept “that warrantless searches and seizures are per se unreasonable unless they fall within one of the acknowledged exceptions to the Fourth Amendment’s warrant requirement” (*People v Diaz*, 81

1. The gun central to this case was never recovered.

NY2d 106, 109 [1993], *abrogated on other grounds by Minnesota v Dickerson*, 508 US 366 [1993]). “Where a warrant has not been obtained, it is the People who have the burden of overcoming th[e] presumption” of unreasonableness (*People v Hodge*, 44 NY2d 553, 557 [1978]).

Of the “‘jealously and carefully drawn’ exceptions to the warrant-preference rule” (*Matter of Caruso v Ward*, 72 NY2d 432, 443 [1988, Kaye and Titone, JJ., dissenting], quoting *Jones v United States*, 357 US 493, 499 [1958]), at issue here is the exclusion in which probable cause exists for the seizure of an object or objects in plain view.

“Under the plain view doctrine, if the sight of an object gives the police probable cause to believe that it is the instrumentality of a crime, the object may be seized without a warrant if three conditions are met: (1) the police are lawfully in the position from which the object is viewed; (2) the police have lawful access to the object; and (3) the object’s incriminating nature is immediately apparent” (*Diaz*, 81 NY2d at 110; see *People v Brown*, 96 NY2d 80, 89 [2001]).

Against this backdrop we conclude that the hearing court erred in denying defendant’s motion to suppress the clothes seized by police.² There was evidence adduced at the suppression hearing that the officer who seized the clothes knew defendant to have been shot, and that defendant awaited treatment at the hospital while dressed in clothes different from those he wore at the time of the shooting. More important, however, is what the evidence presented at the suppression hearing does *not* establish. That evidence does not show that, before the seizure, the testifying officer knew that entry and exit wounds were located on an area of defendant’s body that would have been covered by the clothes defendant wore at the time of the shooting. Similarly, the record of that proceeding contains no other indicium that could have given rise to a reasonable belief that the shooting had affected defendant’s clothes. To that end, there is no record support for the lower

2. Defendant also contends that the Appellate Division’s ruling that the search was permissible under the plain view doctrine violates *People v La-Fontaine* (92 NY2d 470, 474 [1998]) inasmuch as the plain view exception was not at issue before the hearing court. Here, however, the People invoked the plain view doctrine before the hearing court, and the issue was decided adversely to defendant when that court denied suppression.

courts' conclusion that the investigating officer had probable cause to believe that defendant's clothes were the instrumentality of a crime (*see generally People v Cook*, 85 NY2d 928, 931 [1995]; *cf. generally People v Salvodon*, 127 AD3d 1239, 1240-1241 [2d Dept 2015]).

Consequently, for the foregoing reasons we conclude that the seizure was illegal and the items seized were improperly admitted into evidence at trial. In view of our determination that defendant's motion to suppress the physical evidence should have been granted, we do not address defendant's remaining contentions.³

Accordingly, the order of the Appellate Division should be reversed, defendant's motion insofar as it sought to suppress the physical evidence granted, the judgment vacated, and the case remitted to Supreme Court for further proceedings in accordance with this opinion.

Judges PIGOTT, RIVERA, ABDUS-SALAAM and STEIN concur; Chief Judge DiFIORE and Judge GARCIA taking no part.

Order reversed, defendant's motion insofar as it sought to suppress the physical evidence granted, judgment vacated and case remitted to Supreme Court, Queens County, for further proceedings in accordance with the opinion herein.

3. Specifically, we note that, given our conclusion that the seizure is unconstitutional, we have no occasion to consider defendant's contention with respect to the validity of the search.

[48 NE3d 58, 28 NYS3d 1]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MARCUS
D. HOGAN, Appellant.

Argued January 13, 2016; decided February 18, 2016

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered June 13, 2014. The Appellate Division affirmed a judgment of the Supreme Court, Monroe County (Joseph D. Valentino, J.), which had convicted defendant, after a nonjury trial, of criminal possession of a controlled substance in the third degree and criminal possession of a controlled substance in the fifth degree.

People v Hogan, 118 AD3d 1263, affirmed.

HEADNOTES

Crimes — Controlled Substances — Drug Factory Presumption of Knowing Possession

1. The trial court in defendant's prosecution for criminally possessing cocaine properly granted the People's request at defendant's nonjury trial that it consider the drug factory presumption contained in Penal Law § 220.25 (2), where the evidence of packaged and loose drugs, paraphernalia and a razor blade in plain view was sufficient to establish that drugs were being "package[d] or otherwise prepare[d] for sale," permitting the conclusion that defendant, who was in close proximity to the drugs, knowingly possessed them. The presumption was intended to address the issue of proof of knowing possession by those who were supervising or participating in the preparation of drugs for resale but who did not have personal physical possession of the drugs when the police lawfully entered the premises. A specific intent on the part of the defendant to "unlawfully mix, compound, package or otherwise prepare for sale" a controlled substance need not be shown; all that is required is that the "circumstances evinc[e]" such an intent (Penal Law § 220.25 [2]). When police entered the apartment of defendant's former girlfriend to execute a search warrant, defendant was observed running to the bathroom from the kitchen, where packaged and loose cocaine, baggies, and a razor blade were found in open view directly across from the entrance door. Defendant's former girlfriend admitted that the items were in plain view, and that she was in the process of "moving" the cocaine that she was "[p]robably" going to sell. While there was not a vast quantity of cocaine found, the evidence presented at trial supported an inference of more than mere intent to use or sell.

Crimes — Right to Counsel — Effective Representation — Failure to Facilitate Defendant's Appearance before Grand Jury

2. The decision regarding whether a criminal defendant will testify before the grand jury is a strategic one requiring the expert judgment of counsel,

and the refusal to timely facilitate a defendant's appearance before the grand jury does not, per se, amount to ineffective assistance of counsel. Accordingly, defense counsel's failure to consult with defendant before advising the district attorney's office that he would not have defendant testify because he "didn't see the benefit to it, only the harm" did not deprive defendant of the effective assistance of counsel. A prospective defendant has no constitutional right to testify before the grand jury; rather, the right to testify before the grand jury is a limited statutory right. Whether to exercise that right is a decision that requires the expert judgment of counsel because it involves weighing the possibility of a dismissal, which, in counsel's judgment may be remote, against the potential disadvantages of providing the prosecution with discovery and impeachment material, making damaging admissions, and prematurely narrowing the scope of possible defenses—quintessential matters of strategy. The various risks and benefits that must be considered render the decision an appropriate one for the lawyer, not the client. Counsel stated his strategy on the record and, even if counsel had not done so, defendant had shown no prejudice.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Criminal Law §§ 1117, 1124, 1135–1140; AM JUR 2d, Drugs and Controlled Substances § 167.
CARMODY-WAIT 2d, Right to Counsel §§ 184:52, 184:162–184:167, 184:174, 184:175; CARMODY-WAIT 2d, Particular Types of Evidence § 194:14.
LAFAYE, ET AL., CRIMINAL PROCEDURE (3d ed) § 11.7.
MCKINNEY'S, Penal Law § 220.25 (2).
NY JUR 2d, Criminal Law: Procedure §§ 864–870, 878, 881; NY JUR 2d, Criminal Law: Substantive Principles and Offenses §§ 1649, 1650.

ANNOTATION REFERENCE

See ALR Index under Attorneys; Drugs and Narcotics; Grand Jury; Presumptions and Burden of Proof.

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Query: drug factory presumption knowing possess

POINTS OF COUNSEL

Shirley A. Gorman, Brockport, for appellant. I. Mr. Hogan was deprived of the effective assistance of counsel when his assigned attorney failed to discuss his right to testify before the grand jury with him and then did not timely move to dismiss

the indictment for insufficient notice of the grand jury proceeding. (*People v Smith*, 87 NY2d 715; *People v Corrigan*, 80 NY2d 326; *People v Brumfield*, 24 NY3d 1126; *People v Colville*, 20 NY3d 20; *People v Evans*, 79 NY2d 407; *People v Ferguson*, 67 NY2d 383; *People v Petrovich*, 87 NY2d 961; *People v Helm*, 51 NY2d 853; *People v Wiggins*, 89 NY2d 872; *People v Simmons*, 10 NY3d 946.) II. The drug factory presumption should not have been employed to convict Mr. Hogan of possessing cocaine because none of the qualifying circumstances were present. (*People v Williams*, 19 NY3d 100; *People v Kims*, 24 NY3d 422; *People v Staley*, 123 AD2d 407, 68 NY2d 1004; *People v James*, 266 AD2d 236; *People v Galindo*, 23 NY3d 719.)

Sandra Doorley, District Attorney, Rochester (*Robert J. Shoemaker* of counsel), for respondent. I. Defendant received meaningful representation. (*People v Frazier*, 63 AD3d 1633, 12 NY3d 925; *People v Lasher*, 74 AD3d 1474, 15 NY3d 894; *People v Smith*, 87 NY2d 715; *People v Wiggins*, 89 NY2d 872; *People v Helm*, 51 NY2d 853; *People v Colon*, 90 NY2d 824; *People v Colville*, 20 NY3d 20; *People v Washington*, 19 AD3d 1180, 5 NY3d 833; *People v Henriquez*, 3 NY3d 210.) II. The trial court properly granted the People's request for a drug factory presumption charge. (*People v Kims*, 96 AD3d 1595, 24 NY3d 422; *People v Riddick*, 159 AD2d 596; *People v Pressley*, 294 AD2d 886; *People v Rodriguez*, 194 AD2d 634; *People v Snow*, 225 AD2d 1031; *People v Tirado*, 38 NY2d 955; *People v Daniels*, 37 NY2d 624; *People v Tejeda*, 73 NY2d 958; *People v Galindo*, 23 NY3d 719; *People v Bailey*, 13 NY3d 67.)

OPINION OF THE COURT

STEIN, J.

Under the circumstances of this case, we conclude that the drug factory presumption of Penal Law § 220.25 was properly considered by the factfinder. In addition, defendant argues that the decision regarding whether to testify before the grand jury is fundamental and, therefore, reserved to defendants, rather than a matter of strategy that rests with defense counsel. We reject that argument and hold that the decision is a strategic one, requiring the expert judgment of counsel. Thus, we adhere to our prior decisions establishing that the refusal to timely facilitate defendant's appearance before the grand jury does not, per se, amount to ineffective assistance of counsel.

Defendant was arrested on felony drug possession charges after police executing a search warrant at his former girlfriend's

apartment observed him running to the bathroom from the kitchen, where packaged and loose cocaine, baggies, and a razor blade were found in open view directly across from the entrance door. At approximately 4:00 p.m. on the Friday before a long holiday weekend, the People sent notice to defense counsel, by fax, indicating that the case would be presented to a grand jury on the next business day, a Tuesday, at 1:45 p.m. Defense counsel had already left the office and did not receive the notice until Tuesday morning. He then contacted the district attorney's office and indicated that he would not have defendant testify because he "didn't see the benefit to it, only the harm." It is undisputed that counsel did not speak with defendant about testifying before the grand jury, which ultimately voted to indict defendant, charging him with, among other things, criminal possession of a controlled substance in the third and fifth degrees. Defendant later moved to dismiss the indictment on the ground that he was denied an opportunity to testify before the grand jury due to insufficient notice. Supreme Court denied the motion as untimely.

At the ensuing nonjury trial, police officers testified that, upon entering the apartment, they found six "dime bags" of packaged crack cocaine and 50 unused baggies in plain view on the kitchen counter. There was also testimony that the baggies were of the sort that "are commonly used for the unlawful packaging, sale and distribution of illegal narcotics such as crack cocaine"—i.e., sale-related items associated with the drug trade. They also found loose cocaine and a razor blade on the floor, a few feet in front of the counter. One of the officers testified that defendant was initially observed "a couple of feet" away from the cocaine. Defendant's former girlfriend, who pleaded guilty to attempted criminal possession of a controlled substance in the third degree, testified that she had purchased the cocaine and was "in the process of moving it" when the police arrived, but it "flew everywhere" out of her hands when she heard the police banging on the door. She admitted that the cocaine—including the loose cocaine that had been in her hands—and the unused baggies were in plain view when the police entered. She further testified that she was not sure what she was going to do with the drugs, but acknowledged that she would "[p]robably sell some."

Defendant was convicted of criminal possession of a controlled substance in the third and fifth degrees. In handing down its verdict, the court indicated that there was insufficient

proof under a constructive possession theory without the presumption set forth in Penal Law § 220.25 (2), commonly known as the drug factory presumption. Defendant was sentenced, as a second felony offender, to an aggregate term of nine years in prison, to be followed by three years of post-release supervision. His subsequent motion to set aside the verdict was denied.

Upon defendant's appeal, the Appellate Division unanimously affirmed, rejecting his arguments that the drug factory presumption did not apply and that he was denied the effective assistance of counsel (118 AD3d 1263, 1263-1264 [4th Dept 2014]). A Judge of this Court granted defendant leave to appeal (24 NY3d 1219 [2015]).

II.

Initially, we reject defendant's argument that the drug factory presumption contained in Penal Law § 220.25 (2) was inapplicable because, he maintains, there was evidence only of possession with intent to sell, but no evidence of intent to package or otherwise prepare drugs for sale. As relevant here, section 220.25 (2) provides:

"The presence of a narcotic drug . . . in open view in a room, other than a public place, *under circumstances evincing an intent to unlawfully mix, compound, package or otherwise prepare for sale* such controlled substance is presumptive evidence of knowing possession thereof by each and every person in close proximity to such controlled substance at the time such controlled substance was found" (emphasis added).

This Court recently addressed this provision in *People v Kims*, explaining that the statute allows the court to charge the factfinder "with a permissible presumption, under which the [factfinder] may assume the requisite criminal possession simply because the defendant, while not in actual physical possession, is within a proximate degree of closeness to drugs found in plain view, under circumstances that evince the existence of a drug sale operation" (24 NY3d 422, 432 [2014]).

The intention of Penal Law § 220.25 (2) is "to allow police in the field to identify potentially culpable individuals involved in a drug business, under circumstances that demonstrate those individuals' participation in a drug operation" (24 NY3d at 432-433, citing Mem of St Commn of Investigation, Bill Jacket, L 1971, ch 1044). That is,

“[t]he presumption was intended to address the issue of proof of knowing possession by those who were supervising or *participating in the preparation of drugs for resale* but who did not have personal physical possession of the drugs when the police lawfully entered the premises[;] . . .

“a ‘dealership quantity’ of the drug is not a requirement,” however (William C. Donnino, Practice Commentary, McKinney’s Cons Laws of NY, Book 39, Penal Law § 220.25 [emphasis added]).

In accordance with the statutory purpose—and as is evident from the language of the statute—“a specific intent on the part of the defendant to ‘unlawfully mix, compound, package or otherwise prepare for sale’ a controlled substance [need not] be shown[;] [a]ll that is required is that the ‘circumstances evinc[e]’ such an intent” (*People v Nelson*, 147 AD2d 774, 776 [3d Dept 1989], *lv denied* 74 NY2d 794 [1989] [citation omitted], quoting Penal Law § 220.25 [2]).

This Court has found circumstances present evincing the existence of a drug factory for purposes of the presumption where cocaine was found in a bathrobe that was under a pile of clothes, along with, “in plain view, . . . recognized adulterants and drug paraphernalia” (*People v Tirado*, 47 AD2d 193, 195-196 [1st Dept 1975], *affd on op below* 38 NY2d 955 [1976]). Similarly, we concluded that the presumption was properly applied where an “apartment contain[ed] a large cache of drugs, money and weapons in plain view” (*People v Bundy*, 90 NY2d 918, 920 [1997]), as well as where police found a small residue of cocaine on a dish, grains of rice on the floor, a plastic bag containing over one-half ounce of cocaine in a closed drawer, and 10 ounces of cocaine hidden in a bag of rice in a refrigerator (*see People v Tejada*, 73 NY2d 958, 960 [1989]). In contrast, there was insufficient evidence to charge the presumption where, upon entering an apartment in which an undercover officer had recently made a controlled buy, police found only “a tinfoil packet of cocaine on the floor in the four-to-five-inch space between a couch and the wall,” as well as a large amount of cash (*People v Martinez*, 83 NY2d 26, 30, 34 n 3 [1993], *cert denied* 511 US 1137 [1994]).

[1] Under the circumstances here, the court properly granted the People’s request that it consider the presumption. Defendant’s former girlfriend admitted that the bagged crack, loose cocaine and baggies were in plain view, and that she was in

the process of “moving” the cocaine that she was “[p]robably” going to sell.¹ The police further testified that defendant was found in close proximity to the cocaine and that the drugs, baggies and razor blade were in open view. Despite the fact that the loose cocaine was in the carpet—where it fell from the former girlfriend’s hands when she was startled by the police battering ram—it was in the open and not concealed by any furniture or other object (*cf. Martinez*, 83 NY2d at 36-37). While there was not a vast quantity of cocaine found, the evidence presented at trial supported an inference of more than mere intent to use or sell. Specifically, the evidence of packaged and loose drugs, paraphernalia and a razor blade in plain view was sufficient to establish that drugs were being “package[d] or otherwise prepare[d] for sale” in the apartment, permitting the conclusion that defendant, who was in close proximity to the drugs, knowingly possessed them (Penal Law § 220.25 [2]; *see People v Elhadi*, 304 AD2d 982, 982-984 [3d Dept 2003], *lv denied* 100 NY2d 580 [2003]; *People v Jiminez*, 292 AD2d 196, 197 [1st Dept 2002], *lv denied* 98 NY2d 698 [2002]; *People v James*, 266 AD2d 236 [2d Dept 1999]; *People v Westbrook*, 177 AD2d 1039 [4th Dept 1991], *lv denied* 79 NY2d 866 [1992]).

III.

Defendant’s claim that he was deprived of the effective assistance of counsel is also meritless. Specifically, defendant faults his counsel for both deciding that defendant would not testify before the grand jury without consulting him and failing to timely move to dismiss the indictment for insufficient notice of the grand jury proceeding. A defendant advancing an ineffective assistance claim must “demonstrate the absence of strategic or other legitimate explanations for counsel’s alleged shortcomings” (*People v Benevento*, 91 NY2d 708, 712 [1998] [internal quotation marks and citation omitted]), and defendant cannot do so here because counsel stated “his thinking in plain language on the record” (*People v Nesbitt*, 20 NY3d 1080, 1082 [2013]) regarding why, as a matter of strategy, he decided that defendant would not testify before the grand jury. In an attempt to overcome this hurdle, defendant argues that counsel had no authority to decide whether he would testify before the grand jury because that choice is fundamental and, therefore, reserved exclusively for defendants. We disagree.

1. Contrary to the dissent’s contention, the former girlfriend’s indecisiveness over “possibly” consuming some of the drugs, herself, does not defeat the sufficiency of the evidence in support of charging the presumption.

“It is well established that a defendant, having accepted the assistance of counsel, retains authority only over certain fundamental decisions regarding the case” (*People v Colon*, 90 NY2d 824, 825 [1997] [internal quotation marks omitted]; see *People v Colville*, 20 NY3d 20, 28 [2012]; *People v Ferguson*, 67 NY2d 383, 390 [1986]). Fundamental decisions belonging to a defendant are those “such as whether to plead guilty, waive a jury trial, testify in his or her own behalf or take an appeal” (*Colon*, 90 NY2d at 825-826 [internal quotation marks and citation omitted]). In contrast, strategic decisions regarding the conduct of trial, which remain in the purview of counsel, include those such as whether to seek a jury charge on lesser-included offenses (see *Colville*, 20 NY3d at 32), the selection of particular jurors (see *Colon*, 90 NY2d at 826), and whether to consent to a mistrial (see *Ferguson*, 67 NY2d at 390). If defense counsel solely defers to a defendant, without exercising his or her professional judgment, on a decision that is “for the attorney, not the accused, to make” because it is not fundamental, the defendant is deprived of “the expert judgment of counsel to which the Sixth Amendment entitles him” or her (*Colville*, 20 NY3d at 32).

While the right to testify before a grand jury is significant and “must be scrupulously protected” (*People v Brumfield*, 24 NY3d 1126, 1128 [2015] [internal quotation marks and citations omitted]), “a prospective defendant has *no constitutional right* to testify before the [g]rand [j]ury” (*People v Smith*, 87 NY2d 715, 719 [1996] [emphasis added]). In contrast to the “constitutional nature of the right to testify at trial” (*id.* at 720), the right to testify before the grand jury is a limited statutory right (see CPL 190.50 [5]; *Smith*, 87 NY2d at 719). Whether to exercise that right is a decision that requires “the expert judgment of counsel” (*Colville*, 20 NY3d at 32) because it “involves weighing the possibility of a dismissal, which, in counsel’s judgment, may be remote, against the potential disadvantages of providing the prosecution with discovery and impeachment material, making damaging admissions, and prematurely narrowing the scope of possible defenses”—quintessential matters of strategy (*People v Brown*, 116 AD3d 568, 569 [1st Dept 2014], *lv denied* 24 NY3d 1001 [2014]). The various risks and benefits that must be considered render the decision of whether to exercise this statutory right “an appropriate one for the lawyer, not the client” (*Ferguson*, 67 NY2d at 390; see *Brown*, 116 AD3d at 569; *People v Lasher*, 74 AD3d 1474, 1476 [3d Dept 2010], *lv denied* 15 NY3d 894 [2010]).

In any event, this Court has repeatedly and consistently held that—even when it is due to attorney error—a “[d]efense counsel’s failure to timely facilitate defendant’s intention to testify before the [g]rand [j]ury does not, per se, amount to a denial of effective assistance of counsel” (*People v Wiggins*, 89 NY2d 872, 873 [1996]; see *People v Simmons*, 10 NY3d 946, 949 [2008]; *People v Helm*, 51 NY2d 853, 854-855 [1980]). That is, even where no strategy is involved, a defendant must show prejudice—for example, that if he or she “had . . . testified in the grand jury, the outcome would have been different”—in order to succeed on an ineffective assistance of counsel claim in this regard (*Simmons*, 10 NY3d at 949).² We see no reason to overrule our long-standing precedent in this regard. Here, defendant’s claim that the result would have been different if he and his former girlfriend had testified before the grand jury is not convincing. Indeed, they did testify at trial and he was nevertheless found guilty.

[2] In short, the decision of whether to have a defendant testify before a grand jury is a strategic decision within counsel’s authority to make. Here, counsel stated his strategy on the record and, even if counsel had not done so, defendant has shown no prejudice. Therefore, while the better practice may be for counsel to consult with his or her client, defendant cannot establish ineffective assistance of counsel based on counsel’s decision that defendant would not testify before the grand jury. Regarding the untimely motion for dismissal of the indictment based upon inadequate notice, we need only note that ineffective assistance is not established by a defendant’s allegations that counsel failed to make a meritless motion (see *People v Stultz*, 2 NY3d 277, 287 [2004]).

Accordingly, the order of the Appellate Division should be affirmed.

2. As noted by one Court, our holdings that a defendant must show prejudice in order to prevail on an ineffective assistance of counsel claim when he or she has lost the right to testify before the grand jury based upon an attorney’s calendaring mistake (see *People v Simmons*, 10 NY3d 946, 949 [2008]; *People v Wiggins*, 89 NY2d 872, 873 [1996]) “strongly support[] the conclusion that . . . [the] strategic and tactical decision[] [of] testifying before the grand jury . . . [is] deemed to repose” in defense counsel (*People v Lasher*, 74 AD3d 1474, 1476 [3d Dept 2010], *lv denied* 15 NY3d 894 [2010] [internal quotation marks and citations omitted]; see also Peter Preiser, Practice Commentaries, McKinney’s Cons Laws of NY, Book 11A, CPL 190.50 [noting the general rule that the target of a grand jury investigation is not entitled to notice of the proceeding against him or her and that federal defendants have no right to testify before a grand jury]).

RIVERA, J. (dissenting). The statutory presumption contained in Penal Law § 220.25 (2) was appropriately dubbed the “drug factory presumption,” because it “was intended to allow police in the field to identify potentially culpable individuals involved in a drug business, under circumstances that demonstrate those individuals’ participation in a drug operation” (*People v Kims*, 24 NY3d 422, 432-433 [2014], citing Mem of St Commn of Investigation, Bill Jacket, L 1971, ch 1044). Recognizing the “fairly common situation” where “[t]he occupants of such ‘factories,’ who moments before were diluting or packaging the drugs, usually proclaim their innocence and disclaim ownership of, or any connection with, the materials spread before them” (*id.* at 433, citing Mem of St Commn of Investigation, Bill Jacket, L 1971, ch 1044 at 4), “the drafters of the statute also sought to address the difficulty of prosecuting persons other than the owner or lessee of the premises,” by equating an individual’s close proximity to drugs in a drug sale operation with that person’s actual possession of a controlled substance (*id.*). Nevertheless, the majority ignores the intention of Penal Law § 220.25 (2) and construes the statute broadly to apply where the evidence of a drug business is tenuous and defendant’s participation in a drug sale operation is lacking.

“We have long recognized that statutory presumptions are without validity unless the probabilities based on experience and proof justify them” (*Kims*, 24 NY3d at 435 [internal quotation marks and citations omitted]). Where facts “lead to a conclusion counterintuitive to the probabilities to be drawn from common experience, the [drug factory] presumption has no place” (*id.* [internal quotation marks and citation omitted]). According to the statute, the presumption applies if there exist “circumstances evincing an intent to unlawfully mix, compound, package or otherwise prepare [that substance] for sale” (Penal Law § 220.25 [2]). Those circumstances are lacking here.

When the police entered the apartment they failed to discover sale-related items associated with the drug trade. Unlike other cases where the drug factory presumption has been applied, here, for example, there were no guns or other weapons, no cache of money, no drug mixing agents, and no scale to weigh drugs for packaging, typical of a drug sale enterprise (see *People v Faulk*, 126 AD3d 564, 564 [1st Dept 2015], *lv denied* 25 NY3d 1071 [2015] [drug factory presumption applied where defendant had close proximity to “cocaine, crack pipes and a scale with cocaine residue”]; *People v Hyde*, 302 AD2d 101, 105 [1st Dept 2003], *lv denied* 99 NY2d 655

[2003] [drug factory presumption applied where there were drugs, drug paraphernalia and “a loaded gun in an open bag”]; *People v Bundy*, 235 AD2d 334, 337 [1st Dept 1997] [drug factory presumption applied where defendant was in close proximity to a “loaded Glock gun, the 20 clear bags containing 1,968 crack-filled vials, the brown bag containing a rock of crack and 59 vials with crack in them, the plastic bags containing empty vials and vial tops, and a scale used to weigh narcotics”], *aff’d* 90 NY2d 918 [1997]; *People v James*, 151 AD2d 606, 606-607 [2d Dept 1989] [drug factory presumption applied where there were “scales, two heat sealers, numerous empty vials and a large amount of cash”]).

The items the police found in this case—six dime bags of crack cocaine and 50 unused empty ziplock baggies on the kitchen counter, and a razor blade and loose cocaine on the floor—are insufficient to support the conclusion that the defendant was a participant in a drug sale enterprise because the items found may also be evidence of personal drug use. In fact, the apartment tenant and defendant’s former companion testified at defendant’s trial that the drugs were hers alone, she was hiding them from defendant, and, at the time the police entered, she was “undecisive” about what she would do with the drugs in the future, but that she would possibly consume some of the cocaine. This is not to say that a claim of personal use forecloses the People’s reliance on the drug factory presumption, because where “probabilities based on experience and proof justify” the presumption, the presumption applies (*Kims*, 24 NY3d at 435).

However, this Court may not expand the reach of the drug factory presumption beyond its intended legislative purpose (see McKinney’s Cons Laws of NY, Book 1, Statutes § 94, Comment [“A statute should not be extended by construction beyond its express terms or reasonable implications of its language”]). To ensure proper adherence to the statutory goal, there should be a sufficient nexus between the legislatively identified problem and those persons subjected to the statutory presumption. No such nexus exists on the facts presented here where the common indicia of a drug factory operation is lacking, and where the facts do not discount intended personal use of the drugs. Thus, the People were required to carry their usual burden of establishing beyond a reasonable doubt that the defendant was in possession of the contraband. They failed to do so and, therefore, the trial court should not have relied on the statutory presumption.

Defendant also presents a meritorious claim of ineffective assistance of counsel. In my opinion the majority's rejection of this claim is based on a flawed analysis for two reasons. First, the majority relies on an overly burdensome standard in assessing whether counsel was ineffective. Under our State Constitution a defendant must demonstrate that counsel failed to provide meaningful representation based on the totality of the representation (*People v Baldi*, 54 NY2d 137, 147 [1981]). A defendant does not have to establish prejudice, as is required under the federal standard (see *People v Caban*, 5 NY3d 143, 155 [2005] ["Our state standard of meaningful representation, by contrast, does not require a defendant to fully satisfy the prejudice test of *Strickland*" (internal quotation marks omitted)]). Therefore, the proper standard in deciding defendant's case is not whether he was prejudiced by the failure to testify before the grand jury, as the majority asserts (majority op at 787), but rather did defense counsel's failure to facilitate defendant's intention to testify constitute less than meaningful representation.

The majority applies prior cases of this Court which impose a prejudice requirement on an ineffectiveness claim involving a defendant's right to testify before a grand jury (majority op at 787). However, there is no legal or practical basis to reject our well-established ineffectiveness standard for one class of deficient representation claims. There is nothing insignificant about these claims that warrants differential, and more burdensome, treatment than any other ineffective assistance of counsel claim. This Court has stated repeatedly that the right to testify before a grand jury is critical to the defendant. Although not a constitutional right, we have explained that the defendant, via statute, still has the right "to appear at this critical accusatory stage to offer testimony that may affect the Grand Jury's consideration of the otherwise exclusive, ex parte presentment of evidence by the prosecution" (*People v Evans*, 79 NY2d 407, 413-414 [1992]). A defendant's ability to testify at a grand jury proceeding is that individual's "singular incursion on the prosecutor's otherwise exclusive stronghold" (*id.* at 414). Recently the Court has reaffirmed the significance of a defendant's opportunity to testify at grand jury proceedings and held that this right "must be scrupulously protected" (*People v Brumfield*, 24 NY3d 1126, 1128 [2015], quoting *People v Smith*, 87 NY2d 715, 721 [1996]). Apparently, according to the majority such protection does not extend to one's own lawyer.

Given these considerations we should not follow cases that deviate from our constitutional standard. Stare decisis is not meant to fit the Court like a straightjacket and to prevent mistakes from being rectified. While “a court should be slow to overrule its precedents, there is little reason to avoid doing so when persuaded by the ‘lessons of experience and the force of better reasoning’ ” (*People v Bing*, 76 NY2d 331, 338 [1990], quoting *Burnet v Coronado Oil & Gas Co.*, 285 US 393, 407-408 [1932, Brandeis, J., dissenting]). A defendant’s grand jury claim should be subject to the same standard as other ineffective assistance of counsel claims, such as those based on a lawyer’s failure to investigate and adequately prepare a defense (*People v Oliveras*, 21 NY3d 339, 348 [2013]), failure to object to prosecutorial misconduct and inflammatory summation remarks (*People v Wright*, 25 NY3d 769 [2015]), failure to assert a statute of limitations defense to a charge (*People v Turner*, 5 NY3d 476 [2005]), failure to consider proper criminal procedure and evidentiary law (*People v Oathout*, 21 NY3d 127 [2013]), or failure to ensure that in counsel’s absence defendant had adequate, and non-conflicted, representation (*People v Allah*, 80 NY2d 396 [1992]).

The second reason that the majority’s analysis fails is that, assuming, arguendo, a determination whether to have a defendant testify before the grand jury is a matter solely within the professional discretion of a defense attorney, here defendant’s lawyer never discussed the matter with defendant. Thus, counsel could not have made an informed choice regarding this critical question. Indeed, counsel cannot define a strategy regarding whether a defendant should testify without reviewing the potential testimony with the client (*cf. Oliveras*, 21 NY3d at 348 [“This is not simply a case of a failed trial strategy. Rather, this is a case of a lawyer’s failure to pursue the minimal investigation required under the circumstances” (citations omitted)]). Without such minimal effort defendant’s counsel could not consider, or even know, the facts and risks associated with defendant’s testimony, nor fully assess the advantages and disadvantages of whether it was in defendant’s interest to appear before the grand jury. Under these circumstances counsel did not provide meaningful representation.

For the reasons stated above, I dissent.

Judges PIGOTT, ABDUS-SALAAM and FAHEY concur; Judge RIVERA dissents in an opinion; Chief Judge DiFIORE and Judge GARCIA taking no part.

Order affirmed.

[48 NE3d 933, 28 NYS3d 652]

YOUSUFU SANGARAY, Appellant, v WEST RIVER ASSOCIATES, LLC,
Respondent, et al., Defendants. (And a Third-Party Ac-
tion.)

Argued January 5, 2016; decided February 11, 2016

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered October 30, 2014. The Appellate Division affirmed an order of the Supreme Court, New York County (Doris Ling-Cohan, J.; op 2013 NY Slip Op 30834[U] [2013]), entered April 23, 2013, which had granted the motion of defendant West River Associates, LLC for summary judgment dismissing the complaint and all cross claims as against it.

Sangaray v West Riv. Assoc., LLC, 121 AD3d 602, reversed.

HEADNOTES

Negligence — Sidewalks — Liability of Abutting Landowner

1. To the extent that *Montalbano v 136 W. 80 St. CP* (84 AD3d 600 [1st Dept 2011]) and other cases interpreting Administrative Code of the City of New York § 7-210 can be interpreted as holding that only the landowner whose property abuts the defect in the sidewalk upon which the plaintiff trips may be held liable, they should no longer be followed for that premise. Section 7-210 (b), by its plain language, does not restrict a landowner's liability for accidents that occur on its own abutting sidewalk where the landowner's failure to comply with its duty to maintain its sidewalk in a reasonably safe condition constitutes a proximate cause of a plaintiff's injuries.

Negligence — Sidewalks — Liability of Abutting Landowner

2. In an action to recover damages for injuries plaintiff sustained when he tripped on an expansion joint that abutted the individual defendants' property as he traversed along a sunken sidewalk flag, the majority of which abutted the neighboring property owned by the moving defendant, summary judgment should not have been granted to the moving defendant as there were factual questions as to whether it breached its duty to maintain the sidewalk flag abutting its property and, if so, whether that breach was a proximate cause of plaintiff's injuries. Although the moving defendant did not have a duty to remedy any defects in front of the individual defendants' property, Administrative Code of the City of New York § 7-210 (a) imposed a duty on the moving defendant to maintain the sidewalk abutting its premises in a reasonably safe condition. Moreover, the plain language of section 7-210 (b) provides that the moving defendant may be held liable for injuries where its failure to maintain its sidewalk was a proximate cause of those injuries. Most of the sunken sidewalk flag that plaintiff traversed abutted the moving

defendant's property, and plaintiff claimed that the moving defendant's sidewalk flag had sunk lower than the expansion joint upon which plaintiff allegedly tripped. Thus, the moving defendant failed to meet its burden of demonstrating entitlement to judgment as a matter of law.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Premises Liability §§ 32, 33, 613.

DOBBS LAW OF TORTS § 272.

NY JUR 2d, Premises Liability §§ 81, 347, 349.

NEW YORK LAW OF TORTS § 12:9.

ANNOTATION REFERENCE

See ALR Index under Adjoining Landowners; Premises Liability; Sidewalks.

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Materials

Query: sidewalk abut own trip defect

POINTS OF COUNSEL

Kelner & Kelner, New York City (*Joshua D. Kelner* of counsel), for appellant. I. The plain language and legislative history of section 7-210 of the Administrative Code of the City of New York, along with the common-law backdrop against which it was enacted, uniformly establish that a landowner can be held liable if its failure to maintain the sidewalk abutting its property "proximately causes" an accident, regardless of where the accident takes place. (*Patrolmen's Benevolent Assn. of City of N.Y. v City of New York*, 41 NY2d 205; *Commonwealth of the N. Mariana Is. v Canadian Imperial Bank of Commerce*, 21 NY3d 55; *Matter of World Trade Ctr. Bombing Litig.*, 17 NY3d 428; *Becker v Schwartz*, 46 NY2d 401; *Matter of Moran Towing & Transp. Co. v New York State Tax Commn.*, 72 NY2d 166; *Matter of New York Constr. Materials Assn., Inc. v New York State Dept. of Envtl. Conservation*, 83 AD3d 1323; *Matter of Yellow Book of N.Y., Inc. v Commissioner of Taxation & Fin.*, 75 AD3d 931; *Derdiarian v Felix Contr. Corp.*, 51 NY2d 308; *Nallan v Helmsley-Spear, Inc.*, 50 NY2d 507; *McIntosh v Village of Freeport*, 95 AD3d 965.) II. Defendant failed to argue, much less to demonstrate, that its negligence in maintaining the sidewalk in front of its own property was not a proximate

cause of the accident. (*Nancy Ann O. v Poughkeepsie City School Dist.*, 95 AD3d 972; *Lau v Wan*, 93 AD3d 763; *Morreale v 105 Page Homeowners Assn., Inc.*, 78 AD3d 1026; *Ruiz v 30 Real Estate Corp.*, 47 AD3d 432; *Winegrad v New York Univ. Med. Ctr.*, 64 NY2d 851; *Carson v Dudley*, 25 AD3d 983; *White v Diaz*, 49 AD3d 134.)

Rebore, Thorpe & Pisarello, P.C., Farmingdale (Timothy J. Dunn, III, and Michelle S. Russo of counsel), for respondent. The Appellate Division correctly affirmed the lower court's granting of dismissal to the owner of property that did not abut the sidewalk where the accident occurred. (*Vucetovic v Epsom Downs, Inc.*, 10 NY3d 517; *Blue Cross & Blue Shield of N.J., Inc. v Philip Morris USA Inc.*, 3 NY3d 200; *Matter of Brown v Wing*, 93 NY2d 517; *Desiderio v Ochs*, 100 NY2d 159; *Montalbano v 136 W. 80 St. CP*, 84 AD3d 600; *Thompson v 793-97 Garden St. Hous. Dev. Fund Corp.*, 101 AD3d 642; *Lorenzo v Ortiz Funeral Home Corp.*, 113 AD3d 528; *Byron v City of New York*, 119 AD3d 625; *Mitchell v Icolari*, 108 AD3d 600; *Camacho v City of New York*, 96 AD3d 795.)

OPINION OF THE COURT

FIGOTT, J.

Plaintiff alleges that he tripped and fell when his right toe came into contact with a raised portion of a New York City public sidewalk. The sidewalk flag that plaintiff was traversing ran from the front of a property owned by defendant West River Associates, LLC to a neighboring premises owned by defendants Sandy and Rhina Mercado. A photograph contained in the record depicts the sidewalk flag sloping and descending lower than a level flagstone that is in front of the Mercado property. The expansion joint that plaintiff's toe contacted abutted solely the Mercado property.

Plaintiff commenced this common-law negligence action against West River and the Mercados. After defendants served their respective answers, plaintiff responded to West River's demand for a verified bill of particulars by alleging, among other things, that West River violated section 7-210 of the Administrative Code of the City of New York. That provision, which was enacted for the purposes of transferring tort liability from the City to certain adjoining property owners as a cost-saving measure (*see Vucetovic v Epsom Downs, Inc.*, 10 NY3d 517, 521 [2008]), provides, as relevant here:

“a. It shall be the duty of the owner of real property abutting any sidewalk, including, but not limited to, the intersection quadrant for corner property, to maintain such sidewalk in a reasonably safe condition.

“b. Notwithstanding any other provision of law, the owner of real property abutting any sidewalk, including, but not limited to, the intersection quadrant for corner property, shall be liable for any . . . personal injury, including death, proximately caused by the failure of such owner to maintain such sidewalk in a reasonably safe condition. Failure to maintain such sidewalk in a reasonably safe condition shall include, but not be limited to, the negligent failure to . . . repair or replace defective sidewalk flags.”

West River moved, among other things, for summary judgment dismissing plaintiff's complaint, asserting that because the area of the sidewalk upon which plaintiff tripped was located entirely in front of the Mercado property, the “defect” did not abut the West River premises, and, therefore, West River could not be held liable for failing to maintain its sidewalk. In support of its motion, West River submitted an affidavit from a land surveyor who conducted a boundary survey of the sidewalk in front of the West River and Mercado properties. The surveyor determined that the expansion joint upon which plaintiff claimed he tripped was wholly in front of the Mercado property, as evidenced by the survey map that was attached to the surveyor's affidavit.

Plaintiff countered that West River breached its statutory duty by allowing its sidewalk flag to fall into disrepair, and, in any event, failed to demonstrate its entitlement to summary judgment because it did not show that it maintained its sidewalk in a reasonably safe condition.

The Mercados also opposed West River's motion, arguing that, based on their own survey and an affidavit submitted by a licensed professional engineer, approximately 92% to 94% of the defective flag (which had settled due to subsidence of the underlying soil) was in front of the West River property, and 6% to 8% of the defective flag fronted the Mercado property.

Supreme Court granted West River's motion for summary judgment and dismissed plaintiff's complaint and the Mercados' cross claim upon constraint of the Appellate Division, First

Department's holding in *Montalbano v 136 W. 80 St. CP* (84 AD3d 600 [1st Dept 2011]), which it interpreted as holding that a landowner's duty to maintain the sidewalk is implicated only where the defect upon which the plaintiff falls abuts the landowner's property (2013 NY Slip Op 30834[U] [Sup Ct, NY County 2013]). The court concluded that because plaintiff and the Mercados failed to dispute the evidence submitted by West River that the defect was in front of the Mercado property, plaintiff and the Mercados failed to raise a question of fact as to whether West River breached a duty owing to plaintiff.

On plaintiff's appeal, the Appellate Division affirmed, holding that because the record demonstrated that "West River did not own the property that abutted the sidewalk where plaintiff tripped and fell[, it] was therefore not responsible for maintaining the sidewalk in a reasonably safe condition" (121 AD3d 602, 603 [1st Dept 2014], citing Administrative Code of City of NY § 7-210, *Thompson v 793-97 Garden St. Hous. Dev. Fund Corp.*, 101 AD3d 642 [1st Dept 2012], and *Montalbano*, 84 AD3d at 602). Two Justices concurred with the majority's interpretation of section 7-210, but asserted that the provision, as written, allowed West River to avoid liability for the consequences of its failure to maintain its sidewalk in a reasonably safe condition (*see id.* at 605 [Saxe, J., concurring]). This Court granted plaintiff leave to appeal (24 NY3d 916 [2015]) and we now reverse.

Section 7-210 unambiguously imposes a duty upon owners of certain real property to maintain the sidewalk abutting their property in a reasonably safe condition, and provides that said owners are liable for personal injury that is proximately caused by such failure. The First and Second Departments have seemingly engrafted onto section 7-210 a "location requirement," such that if the defect upon which a person trips abuts a particular property, then the owner of that property is deemed liable, without conducting any inquiry as to whether a neighboring owner's failure to comply with its statutory duties may have also been a proximate cause of the accident (*see e.g. Byron v City of New York*, 119 AD3d 625 [2d Dept 2014] [holding that defendant made a prima facie showing of entitlement to summary judgment by demonstrating that the plaintiff's fall was caused by an alleged defect that was present in a portion of a sidewalk abutting the premises owned by the code defendant]; *Lorenzo v Ortiz Funeral Home Corp.*, 113 AD3d 528 [1st Dept 2014] [granting codefendants summary judgment because

the sidewalk defect that caused the accident was located in front of the neighboring defendants' property, and, therefore, the codefendants did not have any obligation to repair it]; *Camacho v City of New York*, 96 AD3d 795 [2d Dept 2012] [defendant property owners met their prima facie burden by demonstrating, through the use of a land survey, that the portion of the sidewalk containing the alleged defect did not abut their property]; *Montalbano*, 84 AD3d 600 [defendant met his burden by submitting uncontroverted evidence that his property did not abut the portion of the sidewalk where the plaintiff fell and therefore established that he did not have a duty to maintain the portion of the sidewalk where the plaintiff fell in a reasonably safe condition]).

The case upon which West River primarily relies, and which both the lower courts found controlling, is *Montalbano*. Contrary to West River's contention, *Montalbano* is distinguishable from this case. In *Montalbano*, the plaintiff claimed that he tripped on a sidewalk flag that was raised on one side at the expansion joint (84 AD3d at 600). There was initially a dispute concerning whether the sidewalk flag abutted the property of defendant 80th Street Owners Corp. or defendant James Callanan, but as the litigation progressed, it became clear by way of a survey that the area where the plaintiff claimed he tripped abutted the Owners Corp. property (*see id.* at 601). The plaintiff and Owners Corp. argued, among other things, that because the majority of the flag abutted Callanan's property, Callanan was liable to the plaintiff, but the Court disagreed, holding that the plaintiff did not fall on a portion of the sidewalk abutting Callanan's property (*see id.* at 602). The Court further rejected the argument by the plaintiff and Owners Corp. that Callanan's replacement of the defective sidewalk flag after the accident made Callanan liable to the plaintiff, holding that it was irrelevant whether Callanan had exercised control over that part of the sidewalk because section 7-210 "does not make persons who exercise control over the sidewalk liable—it refers only to owners of real property" (*id.* at 602).

[1] Unlike the plaintiff in *Montalbano*, who did not argue that Callanan failed to maintain the sidewalk flag abutting his property in a reasonably safe condition, plaintiff here argues that West River failed to comply with its own statutory duty to maintain the sidewalk abutting its premises in a reasonably safe condition, and that such failure was a proximate cause of his injury. To be sure, the location of the alleged defect and

whether it abuts a particular property is significant concerning that particular property owner's *duty* to maintain the sidewalk in a reasonably safe condition. That does not, however, foreclose the possibility that a neighboring property owner may also be subject to liability for failing to maintain its own abutting sidewalk in a reasonably safe condition where it appears that such failure constituted a proximate cause of the injury sustained. Thus, to the extent that *Montalbano* and other cases interpreting section 7-210 can be interpreted as holding that only the landowner whose property abuts the *defect* upon which the plaintiff trips may be held liable, they should no longer be followed for that premise. Simply put, section 7-210 (b), by its plain language, does not restrict a landowner's liability for accidents that occur on its own abutting sidewalk where the landowner's failure to comply with its duty to maintain its sidewalk in a reasonably safe condition constitutes a proximate cause of a plaintiff's injuries. Furthermore, our interpretation of section 7-210 as tying liability to the breach of that duty when it is a cause of the injury is consistent with the purpose underlying the enactment of that provision, namely, to incentivize the maintenance of sidewalks by abutting landowners in order to create safer sidewalks for pedestrians and to place liability on those who are in the best situation to remedy sidewalk defects.

As part of its *prima facie* showing of entitlement to summary judgment, West River was required to do more than simply demonstrate that the alleged defect was on another landowner's property. Here, West River focused solely on the location of the actual defect upon which plaintiff allegedly tripped, and ignored its burden of demonstrating that it complied with its own duty to maintain the sidewalk abutting its property in a reasonably safe condition and/or that it was not a proximate cause of plaintiff's injuries (*see e.g. James v Blackmon*, 58 AD3d 808, 809 [2d Dept 2009]).

[2] Plaintiff tripped on an expansion joint that abutted the Mercados' property. That does not end the inquiry, nor does the fact that the defect upon which plaintiff tripped was in front of the Mercado property necessarily absolve West River of liability. Although West River did not have a duty to remedy any defects in front of the Mercado property, section 7-210 (a) imposed a duty on West River to maintain the sidewalk abutting its premises in a reasonably safe condition. Moreover, the plain language of section 7-210 (b) provides that West River

may be held liable for injuries where its failure to maintain its sidewalk is a proximate cause of those injuries. Here, most of the sunken sidewalk flag that plaintiff traversed abutted West River's property, and plaintiff claims that West River's sidewalk flag had sunk lower than the expansion joint upon which plaintiff allegedly tripped. Thus, West River failed to meet its burden of demonstrating entitlement to judgment as a matter of law, leaving factual questions as to whether West River breached its duty to maintain the sidewalk flag abutting its property and, if so, whether that breach was a proximate cause of plaintiff's injuries. Under the circumstances of this case, summary judgment should have been denied.

Accordingly, the order of the Appellate Division should be reversed, with costs, and West River Associates, LLC's motion insofar as it sought summary judgment dismissing the complaint denied.

Judges RIVERA, ABDUS-SALAAM, STEIN and FAHEY concur; Chief Judge DiFIORE and Judge GARCIA taking no part.

Order reversed, with costs, and defendant West River Associates, LLC's motion insofar as it sought summary judgment dismissing the complaint denied.

[48 NE3d 937, 28 NYS3d 656]

SEAN R., an Infant, by His Mother and Natural Guardian,
DEBRA R., Appellant, v BMW OF NORTH AMERICA, LLC, et
al., Respondents.

Argued January 4, 2016; decided February 11, 2016

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered March 6, 2014. The Appellate Division (1) affirmed so much of an order of the Supreme Court, New York County (Louis B. York, J.; op 39 Misc 3d 1234[A], 2013 NY Slip Op 50874[U] [2013]), entered May 15, 2013, which was deemed (a) to have granted plaintiff's motion to reargue a prior order of that Supreme Court (op 2012 NY Slip Op 33030[U] [2012]), entered December 21, 2012, granting defendants' motion to preclude the testimony of two of plaintiff's expert witnesses; and (b) upon reargument, to have adhered to the prior order; and (2) dismissed, as subsumed in the appeal from the order entered May 15, 2013, the appeal from the order entered December 21, 2012. The following question was certified by the Appellate Division: "Was the order of the Supreme Court, as affirmed by . . . this Court, properly made?"

Sean R. v BMW of N. Am., LLC, 115 AD3d 432, affirmed.

HEADNOTE

Evidence — Scientific Evidence — Failure to Use Generally Accepted Principles and Methodologies — Causation of Plaintiff's Injuries by *In Utero* Exposure to Unleaded Gasoline Vapor

In a personal injury action in which plaintiff, who was born with severe mental and physical disabilities, claimed that his injuries were caused by his *in utero* exposure to unleaded gasoline vapor caused by a defective fuel hose in his mother's vehicle, the courts below properly precluded two of plaintiff's expert witnesses from testifying at trial as to causation inasmuch as they did not rely on generally accepted principles and methodologies in concluding that plaintiff was exposed to a sufficient concentration of gasoline vapor to cause his injuries. In toxic tort cases, it is necessary for a causation expert to establish that the plaintiff was exposed to sufficient levels of a toxin to have caused his or her injuries, and to do so through methods found to be generally accepted as reliable in the scientific community. One of plaintiff's experts was prepared to testify that plaintiff's mother inhaled 1,000 parts per million (ppm) of gasoline vapor based on the fact that she experienced symptoms of acute toxicity during exposure, and that in controlled studies, at least a 1,000 ppm concentration was required for such symptoms to occur immediately. While controlled studies are scientifically valid and can be used to measure symptoms in response to a given exposure, the studies cited here

did not support the inverse approach employed by plaintiff's expert in this case—working backwards from reported symptoms to divine an otherwise unknown concentration of gasoline vapor. And the expert did not identify any study, report, article or opinion that admitted or employed such a methodology. Moreover, the expert's methodology was fundamentally different from the true odor threshold analysis that has been admitted in other toxic tort cases. Had the expert applied the true odor threshold methodology, the only conclusion she could have reached was that plaintiff was exposed to at least one ppm of unleaded gasoline. Plaintiff failed to show that a "symptom-threshold" methodology, unlike the odor threshold methodology, has been generally accepted in the scientific community.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Expert and Opinion Evidence §§ 24–26; AM JUR 2d, Prenatal Injuries; Wrongful Life, Birth, or Conception §§ 11, 13.

CARMODY-WAIT 2d, Presentation of the Evidence §§ 56:138, 56:145.

NY JUR 2d, Evidence and Witnesses §§ 641, 732–734; NY JUR 2d, Infants and Other Persons Under Legal Disability § 589.

ANNOTATION REFERENCE

See ALR Index under Expert and Opinion Evidence; Hazardous Substances and Waste; Prenatal Injuries.

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Query: preclude expert accepted principle utero exposure

POINTS OF COUNSEL

Phillips & Paolicelli LLP, New York City (*Steven J. Phillips*, *Danielle George* and *Victoria E. Phillips* of counsel), for appellant. I. The rulings below misapplied *Frye*, improperly credited false testimony from BMW's causation expert, and deprived plaintiff of his constitutional right to present qualified, competent, and credible causation proofs to a jury. (*People v Drake*, 7 NY3d 28; *Andersen v Bee Line, Inc.*, 1 NY2d 169; *Commercial Cas. Ins. Co. v Roman*, 269 NY 451; *Cokeng v Ogden Cap Props., LLC*, 104 AD3d 550; *People v LeGrand*, 8 NY3d 449; *LaRose v Corrao*, 105 AD3d 1009, 22 NY3d 857; *Cornell v 360 W. 51st St. Realty, LLC*, 22 NY3d 762; *Sadek v*

Wesley, 117 AD3d 193; *Lugo v New York City Health & Hosps. Corp.*, 89 AD3d 42; *Frye v United States*, 293 F 1013.) II. The *Frye* ruling concerning exposure overlooked case law confirming the propriety of Dr. Frazier's methods, and wrongly adopted the conclusions of defense expert Peter Lees, despite gaps in his expertise and errors in his analysis. (*People v LeGrand*, 8 NY3d 449; *Matter of Bethany F. [Michael F.]*, 85 AD3d 1588; *Magistrini v One Hour Martinizing Dry Cleaning*, 180 F Supp 2d 584.) III. The rulings below rest on a misunderstanding of *Parker v Mobil Oil Corp.* (7 NY3d 434 [2006]), whose requirements are clearly satisfied in this case. (*People v Wesley*, 83 NY2d 417; *Cornell v 360 W. 51st St. Realty, LLC*, 22 NY3d 762.) IV. The procedural improprieties of defendants' motions independently warrant reversal. (*Reeps v BMW of N. Am., LLC*, 94 AD3d 475; *Brill v City of New York*, 2 NY3d 648; *Downtown Art Co. v Zimmerman*, 232 AD2d 270; *Charter Sch. for Applied Tech. v Board of Educ. for City Sch. Dist. of City of Buffalo*, 105 AD3d 1460; *Ofman v Ginsberg*, 89 AD3d 908; *West Broadway Funding Assoc. v Friedman*, 74 AD3d 798; *Parker v Mobil Oil Corp.*, 7 NY3d 434; *Ronbet 366 LLC v Tobias*, 19 AD3d 102; *Sharp v Stavisky*, 242 AD2d 447; *Rubeo v National Grange Mut. Ins. Co.*, 93 NY2d 750.) V. At a minimum, the trial court should have conducted a hearing. (*People v Middleton*, 54 NY2d 42; *People v Abney*, 13 NY3d 251; *Abramson v Pick Quick Foods, Inc.*, 56 AD3d 702; *Mitchell v Brown*, 43 AD3d 1009; *People v Santiago*, 17 NY3d 661.)

Biedermann Hoenig Semprevivo, P.C., New York City (*Philip C. Semprevivo, Jr.*, *Peter Hoenig*, *Peter W. Beadle* and *Justin A. Guilfoyle* of counsel), for BMW of North America, LLC and others, respondents. I. The Appellate Division, First Department, relying on this Court's decision in *Parker v Mobil Oil Corp.* (7 NY3d 434 [2006]), properly affirmed the Supreme Court's order precluding two of appellant's general causation experts from testifying at trial. (*Cornell v 360 W. 51st St. Realty, LLC*, 22 NY3d 762.) II. The Supreme Court properly applied *Frye v United States* (293 F 1013 [DC Cir 1923]) in precluding two of appellant's causation experts from testifying at trial. (*Parker v Mobil Oil Corp.*, 7 NY3d 434; *People v Wesley*, 83 NY2d 417; *Del Maestro v Grecco*, 16 AD3d 364; *Saulpaugh v Krafte*, 5 AD3d 934; *Fraser v 301-52 Townhouse Corp.*, 57 AD3d 416; *People v Wesley*, 83 NY2d 417; *Zito v Zabarsky*, 28 AD3d 42; *Cornell v 360 W. 51st St. Realty, LLC*, 22 NY3d 762.) III. There were no procedural improprieties warranting reversal. IV. The Supreme Court properly heard respondents BMW's *Frye* mo-

tion on the evidence submitted by appellant and respondents BMW. (*Selig v Pfizer, Inc.*, 185 Misc 2d 600, 290 AD2d 319, 98 NY2d 603; *Oppenheim v United Charities of N.Y.*, 266 AD2d 116.)

Lawrence, Worden, Rainis & Bard, P.C., Melville (*Leslie McHugh* of counsel), for Martin Motor Sales, Inc., respondent. I. The testimony of Drs. Frazier and Kramer was properly precluded by the court below because they did not utilize causation methodologies or present conclusions generally accepted in the scientific community. (*Frye v United States*, 293 F 1013; *People v Wesley*, 83 NY2d 417; *Cameron v Knapp*, 137 Misc 2d 373; *Selig v Pfizer, Inc.*, 185 Misc 2d 600; *Lewin v County of Suffolk*, 293 AD2d 453; *Oppenheim v United Charities of N.Y.*, 266 AD2d 116; *Gushue v Estate of Levy*, 118 AD3d 415; *Cornell v 360 W. 51st St. Realty, LLC*, 95 AD3d 50, 22 NY3d 762; *Parker v Mobil Oil Corp.*, 7 NY3d 434; *Buchholz v Trump 767 Fifth Ave., LLC*, 5 NY3d 1.) II. Plaintiff failed to present competent proof which is generally accepted in the medical and scientific communities that unleaded gasoline can cause the medical conditions from which Sean R. suffers. (*Heckstall v Pincus*, 19 AD3d 203; *Ratner v McNeil-PPC, Inc.*, 91 AD3d 63; *Rodriguez v Ford Motor Co.*, 17 AD3d 159; *Cumberbatch v Blanchette*, 35 AD3d 341; *Perry v Novartis Pharms. Corp.*, 564 F Supp 2d 452; *Schudel v General Elec. Co.*, 120 F3d 991; *Henricksen v Conoco-Phillips Co.*, 605 F Supp 2d 1142; *Doe v Ortho-Clinical Diagnostics, Inc.*, 440 F Supp 2d 465; *Whiting v Boston Edison Co.*, 891 F Supp 12; *Glastetter v Novartis Pharms. Corp.*, 252 F3d 986.) III. Plaintiff failed to demonstrate any scientifically reliable proof of specific causation. (*Cleghorne v City of New York*, 99 AD3d 443; *Fraser v 301-52 Townhouse Corp.*, 57 AD3d 416; *Todman v Yoshida*, 63 AD3d 606; *Wright v Willamette Indus., Inc.*, 91 F3d 1105; *Johnson v Arkema, Inc.*, 685 F3d 452; *Hall v Baxter Healthcare Corp.*, 947 F Supp 1387; *Ruggiero v Warner-Lambert Co.*, 424 F3d 249; *Magistrini v One Hour Martinizing Dry Cleaning*, 180 F Supp 2d 584.) IV. There was no procedural impropriety by the IAS court entertaining the defendants' *Frye* motions. (*Frye v Montefiore Med. Ctr.*, 100 AD3d 28.) V. Plaintiff did not request a *Frye* hearing and one was not required to resolve the issues raised on the motions. (*Oppenheim v United Charities of N.Y.*, 266 AD2d 116; *Selig v Pfizer, Inc.*, 185 Misc 2d 600.)

Brill & Associates, P.C., New York City (*Haydn J. Brill* of counsel), for Hassel Motors, Inc., respondent. I. The motion

court and the First Department correctly interpreted *Frye* and precluded Drs. Frazier and Kramer from testifying at trial. (*Frye v United States*, 293 F 1013; *People v Wesley*, 83 NY2d 417; *Parker v Mobil Oil Corp.*, 7 NY3d 434; *Cameron v Knapp*, 137 Misc 2d 373; *Collins v Welch*, 178 Misc 2d 107; *People v Middleton*, 54 NY2d 42; *Cornell v 360 W. 51st St. Realty, LLC*, 22 NY3d 762; *General Electric Co. v Joiner*, 522 US 136; *Lewin v County of Suffolk*, 293 AD2d 453; *Oppenheim v United Charities of N.Y.*, 266 AD2d 116.) II. Defendants' *Frye* motions were proper motions in limine, as they sought evidentiary rulings as to the admissibility of plaintiff's experts. (*State of New York v Metz*, 241 AD2d 192; *Marsh v Smyth*, 12 AD3d 307; *Matter of PCK Dev. Co., LLC v Assessor of Town of Ulster*, 43 AD3d 539; *Frye v Montefiore Med. Ctr.*, 100 AD3d 28.) III. The trial court did not abuse its discretion in deciding the motions without live testimony. (*Selig v Pfizer, Inc.*, 290 AD2d 319; *General Elec. Co. v Joiner*, 522 US 136.)

Robert S. Peck, Center for Constitutional Litigation, Washington, D.C. (Jeffrey R. White of counsel), for American Association for Justice, amicus curiae. I. The preclusion of causation testimony by plaintiff's experts is inconsistent with the weight of reasoned authority. (*Parker v Mobil Oil Corp.*, 7 NY3d 434; *DeLuca by DeLuca v Merrell Dow Pharms., Inc.*, 911 F2d 941; *Ethyl Corp. v Environmental Protection Agency*, 541 F2d 1; *Globetti v Sandoz Pharms., Corp.*, 111 F Supp 2d 1174; *Benedi v McNeil-P.P.C., Inc.*, 66 F3d 1378; *Kennedy v Collagen Corp.*, 161 F3d 1226; *Frye v United States*, 293 F 1013; *Daubert v Merrell Dow Pharmaceuticals, Inc.*, 509 US 579; *Norris v Baxter Healthcare Corp.*, 397 F3d 878; *LaRose v Corrao*, 105 AD3d 1009.) II. Unwarranted restrictions on the admissibility of expert testimony undermine the constitutional right to trial by jury. (*Kaminsky v Kahn*, 20 NY2d 573; *Granfinanciera, S. A. v Nordberg*, 492 US 33; *Parker v Mobil Oil Corp.*, 7 NY3d 434; *Daubert v Merrell Dow Pharmaceuticals, Inc.*, 509 US 579; *Barefoot v Estelle*, 463 US 880.)

OPINION OF THE COURT

PIGOTT, J.

Plaintiff Sean R. was born with severe mental and physical disabilities, which he attributes to *in utero* exposure to unleaded gasoline vapor caused by a defective fuel hose in his mother's BMW. The question on this appeal is whether the courts below properly precluded two of plaintiff's expert wit-

nesses from testifying at trial as to causation. Because the experts did not rely on generally accepted principles and methodologies in concluding that plaintiff was exposed to a sufficient concentration of gasoline vapor to cause his injuries, we affirm.

I.

In May 1989, plaintiff's father, Guy R., purchased a new BMW 525i for his wife, Debra. She was the only person to drive the car and used it primarily for running local errands.

In the spring of 1991, Debra began to notice a smell of gasoline in the vehicle. She stated the odor "came and went" and that it would often dissipate as she drove. Debra said she could tolerate the smell in the summer when she was able to drive with the windows down, but that at other times it was so strong it caused her headaches, dizziness and throat irritation. Debra's family members also noticed the odor when they rode in the vehicle, and Debra's mother said it made her nauseous and dizzy. Eventually, the couple began to smell the odor in their home from the attached garage where they parked the car at night.

That March, Debra took the car to Hassel Motors complaining of the gasoline odor. Hassel could not identify any problem with the vehicle, however, and made no repairs. Debra continued driving the vehicle, despite the persistent odor of gasoline, when she became pregnant with plaintiff in July or August of 1991. Her husband took the vehicle back to Hassel in November, at which time Hassel discovered a fuel leakage into the engine compartment caused by a split fuel hose. In total, Debra had driven 6,458 miles in the eight months that she smelled gasoline in the vehicle.

Plaintiff was born without difficulty on May 13, 1992. Although his initial Apgar scores were 9 and 10 at one and five minutes after birth, respectively, subsequent testing revealed that plaintiff suffered from severe mental and physical disabilities. He was diagnosed with, among other things, spastic quadriplegia (a form of cerebral palsy), developmental delays, ventricular asymmetry, delayed myelination, microcephaly, aortic stenosis, malformed bicuspid valve, tracheomalacia and impaired visual function.

Two years later, BMW of North America, LLC issued a recall of all 525i vehicles made between 1989 and 1991, due to defects in the feed fuel hoses. It described the defective hoses as being

able to “harden and ‘set’ over time due to engine compartment temperatures,” making it “possible that seepage between the hose and [the] fitting could result because the clamp cannot provide sufficient sealing force to compensate for the hardening of the hose.” The recall report noted that customers had associated the defect with a “conspicuous fuel odor.”

Plaintiff commenced this personal injury action in January 2008 against defendants BMW of North America, LLC, BMW of North America, Inc., BMW (US) Holding Corp. (collectively, BMW), Martin Motor Sales, Inc. and Hassel. He alleged that the vehicle’s defective fuel hose, and Hassel’s failure to timely discover and fix the defective hose, caused his injuries by exposing him *in utero* to toxic gasoline vapor.

In furtherance of his claims, plaintiff served notice of his intent to rely on the testimony of 10 expert witnesses at trial, including Linda Frazier, M.D., M.P.H. and Shira Kramer, M.H.S., Ph.D. As plaintiff’s primary causation experts, Dr. Frazier and Dr. Kramer were prepared to testify that plaintiff’s *in utero* exposure to gasoline vapor proximately caused his birth defects. For her part, Dr. Frazier concluded that plaintiff’s mother inhaled 1,000 parts per million (ppm) of gasoline vapor based on the fact that “she and others experienced symptoms of acute toxicity during exposure, such as headache, nausea and irritation of the throat and mucous membranes. In controlled studies, for symptoms such as these to occur immediately, a gasoline vapor concentration of at least 1000 ppm . . . is required.” Dr. Frazier then utilized the “Bradford Hill criteria” to conclude that unleaded gasoline vapor is capable of causing the types of birth defects plaintiff suffered based on the link between exposure to the constituent chemicals of gasoline and adverse birth outcomes. Finally, after ruling out other possible causes, Dr. Frazier concluded that Debra’s “high peak exposure[]” to gasoline vapor during the first trimester of her pregnancy was the most likely cause of plaintiff’s injuries.

Dr. Kramer reached similar conclusions with respect to causation. Using a “weight of the evidence” analysis, she explained that “gasoline vapor and/or [the] specific chemical constituents of gasoline vapor”—specifically toluene and benzene—are “causally related to an elevated risk of birth defects.” Based on the symptoms that plaintiff’s mother said she experienced and Dr. Frazier’s estimate that plaintiff was exposed to 1,000 ppm of gasoline vapor, Dr. Kramer further concluded that plaintiff’s exposure to unleaded gasoline vapor was a substantial causative factor in plaintiff’s birth defects.

BMW and Hassel moved for summary judgment in November 2010, alleging, as relevant here, that the opinions of plaintiff's causation experts lacked a proper foundation. Supreme Court denied summary judgment, holding that plaintiff's experts provided a foundation for their opinions (2011 NY Slip Op 32006[U] [2011]). The Appellate Division modified on grounds not pertinent to this appeal, and otherwise affirmed (94 AD3d 475, 475 [1st Dept 2012]).

Defendants then moved to preclude plaintiff's causation experts from testifying at trial or, alternatively, to hold a hearing in accordance with *Frye v United States* (293 F 1013 [DC Cir 1923]). In support of their motions, defendants included the expert affidavits of Anthony Scialli, M.D. and Peter Lees, Ph.D., which challenged the opinions of Dr. Frazier and Dr. Kramer for reaching novel conclusions and not using generally accepted principles and methodologies.

After reviewing lengthy submissions and a number of supplemental expert reports, Supreme Court granted defendants' motion to the extent that it precluded the testimony of Drs. Frazier and Kramer. As relevant here, the court determined that those experts did not rely on generally accepted methodologies in concluding that *in utero* exposure to unleaded gasoline vapor caused plaintiff's injuries (2012 NY Slip Op 33030[U] [2012]). After granting plaintiff's motion for reargument, Supreme Court adhered to its original decision (39 Misc 3d 1234[A], 2013 NY Slip Op 50874[U] [2013]).

The Appellate Division unanimously affirmed (115 AD3d 432 [1st Dept 2014]) and certified the following question to this Court: "Was the order of the Supreme Court, as affirmed by . . . this Court, properly made?" (2014 NY Slip Op 77833[U] [1st Dept 2014]).

II.

In toxic tort cases, an expert opinion on causation must set forth (1) a plaintiff's exposure to a toxin, (2) that the toxin is capable of causing the particular injuries plaintiff suffered (general causation) and (3) that the plaintiff was exposed to sufficient levels of the toxin to cause such injuries (specific causation) (see *Parker v Mobil Oil Corp.*, 7 NY3d 434, 448 [2006]). Although it is "not always necessary for a plaintiff to quantify exposure levels precisely" (*id.*), we have never "dispensed with a plaintiff's burden to establish sufficient exposure to a substance to cause the claimed adverse health ef-

fect” (*Cornell v 360 W. 51st St. Realty, LLC*, 22 NY3d 762, 784 [2014]). “At a minimum, . . . there must be evidence from which the factfinder can conclude that the plaintiff was exposed to levels of th[e] agent that are known to cause the kind of harm that the plaintiff claims to have suffered” (*id.*, quoting *Wright v Willamette Indus., Inc.*, 91 F3d 1105, 1107 [8th Cir 1996]).

Not only is it necessary for a causation expert to establish that the plaintiff was exposed to sufficient levels of a toxin to have caused his injuries, but the expert also must do so through methods “found to be generally accepted as reliable in the scientific community” (*Parker*, 7 NY3d at 449). This “general acceptance” requirement, also known as the *Frye* test, governs the admissibility of expert testimony in New York. It asks “whether the accepted techniques, when properly performed, generate results accepted as reliable within the scientific community generally” (*People v Wesley*, 83 NY2d 417, 422 [1994]). Although unanimity is not required, the proponent must show “consensus in the scientific community as to [the methodology’s] reliability” (*id.* at 439 [Kaye, Ch. J., concurring]).

Plaintiff and his experts have failed to make that showing in this case. Dr. Frazier and Dr. Kramer concluded that plaintiff was exposed to a sufficient amount of gasoline vapor to have caused his injuries based on the reports by plaintiff’s mother and grandmother that the smell of gasoline occasionally caused them nausea, dizziness, headaches and throat irritation. Plaintiff and his experts have not identified any text, scholarly article or scientific study, however, that approves of or applies this type of methodology, let alone a “consensus” as to its reliability. Therefore, the courts below properly granted defendants’ motion to preclude their testimony at trial.¹

Dr. Frazier claims that it is accepted practice in occupational medicine to use standardized studies of symptoms as a guide when assessing exposures retrospectively. For support, she cites to the documentation report for gasoline by the American Conference of Governmental Industrial Hygienists (ACGIH), which synthesizes the results of controlled studies and states that the threshold for immediate, mild toxic effect is ap-

1. Due to the procedural posture of this case, our analysis and holding are limited to the *Frye* inquiry of whether the experts’ techniques are generally accepted in the scientific community. We express no opinion on the “separate and distinct” question of whether there was a proper foundation for their opinions (*Parker*, 7 NY3d at 447).

proximately 1,000 ppm. She also cites to a 1991 study in which subjects exposed to known quantities of toluene and ethanol experienced an increase in headaches as their exposure level increased, as well as a 2008 report on the safety of n-Butyl alcohol in cosmetic products.

None of those sources, however, establish that Dr. Frazier's methodology, "when properly performed, generate[s] results accepted as reliable within the scientific community generally" (*Wesley*, 83 NY2d at 422). They merely support her *conclusion* that there is a dose-response relationship between exposure to the chemical constituents of gasoline and symptoms of toxicity. In Dr. Frazier's own words, the ACGIH report lists the known "exposure levels which cause people to report symptoms such as nausea and headache because, on the whole, controlled exposure studies are reliable." We don't disagree with the scientific validity of controlled studies or their ability to measure symptoms in response to a given exposure. But those controlled studies do not support the inverse approach Dr. Frazier employed in this case—working backwards from reported symptoms to divine an otherwise unknown concentration of gasoline vapor. Dr. Frazier has not identified on this record any study, report, article or opinion that admits or employs such a methodology.

Dr. Frazier's methodology is also fundamentally different from the true "odor threshold" analysis that has been admitted in other toxic tort cases. The odor threshold of a substance is the level at which the substance is capable of olfactory detection (*Manuel v Shell Oil Co.*, 664 So 2d 470, 477 [La Ct App, 5th Cir 1995]). Concentrations below the odor threshold are, by definition, not detectable by human smell (*see Dickens v Oxy Vinyls, LP*, 631 F Supp 2d 859, 863 [WD Ky 2009]). Causation experts have used odor thresholds to determine, for example, that a plaintiff was occupationally exposed to 60 ppm of hexane where hexane cannot be detected below that concentration and the plaintiff testified that he smelled hexane while working (*see Beckner v Bayer Cropscience, LP*, 2011 WL 805788, *6 n 8, 2011 US Dist LEXIS 21501, *18 n 8 [SD W Va, Mar. 2, 2011, No. 2:05-0530]). Similarly, the expert in *Magistrini v One Hour Martinizing Dry Cleaning* (180 F Supp 2d 584 [D NJ 2002], *affd* 68 Fed Appx 356 [3d Cir 2003]) calculated a plaintiff's occupational exposure to perchloroethylene based on the chemical's odor threshold, coupled with other employment information, the cubic footage of the workspace and industrial literature (*id.* at 613-614).

Odor thresholds can be particularly helpful in occupational exposure cases, where the odor threshold of a substance exceeds permissible workplace safety standards (*see Beckner*, 2011 WL 805788, *6 n 8, 2011 US Dist LEXIS 21501, *18 n 8 [noting that if “one detects the odor of hexane, there is necessarily an exposure exceeding the limit set by the National Institute for Occupational Safety and Health . . . of 50 ppm”]). In some cases, however, the odor threshold of a substance is far below toxicity. Indeed, as one of plaintiff’s sources explains:

“Smelling organic solvents is not indicative of a significant exposure, as the olfactory nerve can detect levels as low as several parts per million, which is not necessarily associated with toxicity. As an example, the odor threshold of toluene is 0.8 parts per million, whereas the [threshold limit value] is 100 parts per million.” (Kristen I. McMartin et al., *Pregnancy Outcome Following Maternal Organic Solvent Exposure: A Meta-Analysis of Epidemiologic Studies*, 34 Am J Indus Med 288, 289 [1998].)

Defendants state, and plaintiff does not dispute, that unleaded gasoline in the early 1990s had a very low odor threshold of between 0.50 and 0.76 ppm. Assuming that is correct, a person would have been able to detect the odor of unleaded gasoline vapor at less than one ppm. Had Dr. Frazier applied a true odor threshold methodology in this case, like the experts in *Beckner* and *Magistrini*, the only conclusion she could have reached was that plaintiff was exposed to at least one ppm of unleaded gasoline—the minimum level at which gasoline is detectable by human smell. Instead, Dr. Frazier averred that there is a minimum threshold of gasoline vapor beneath which individuals do not experience headache, nausea or dizziness. And because Debra experienced headaches, nausea and dizziness, Dr. Frazier concluded she must have been exposed to at least that concentration. Plaintiff has not shown that such a “symptom-threshold” methodology, unlike the odor threshold methodology admitted in other cases, has been generally accepted in the scientific community.²

2. Plaintiff’s reliance on *Allen v Martin Surfacing* (263 FRD 47 [D Mass 2009]) is similarly misplaced. The expert in that case “did not rely *alone* on [the plaintiff’s] symptom accounts in forming his opinion” about plaintiff’s exposure to toluene (*id.* at 56 [emphasis added]). The expert also considered

(n. cont’d)

Although it is sometimes difficult, if not impossible, to quantify a plaintiff's past exposure to a substance, we have not dispensed with the requirement that a causation expert in a toxic tort case show, through generally accepted methodologies, that a plaintiff was exposed to a sufficient amount of a toxin to have caused his injuries (*see* Joseph V. Rodricks, Reference Guide on Exposure Science, in Federal Judicial Center, Reference Manual on Scientific Evidence at 539 [3d ed 2011] ["The methodological tools necessary to 'reconstruct' the plaintiff's past exposure are identical to those used to estimate current exposures, but the availability of the data necessary to apply those methods may be limited or, in some cases, nonexistent"]). It was plaintiff's burden to show that the methodology his experts employed was generally accepted in the scientific community. Having failed to meet that burden, the courts below properly precluded Dr. Frazier's and Dr. Kramer's testimony that plaintiff's exposure to gasoline vapor caused his injuries.

Accordingly, the order of the Appellate Division should be affirmed, with costs, and the certified question answered in the affirmative.

Judges RIVERA, ABDUS-SALAAM, STEIN and FAHEY concur; Chief Judge DiFIORE and Judge GARCIA taking no part.

Order affirmed, with costs, and certified question answered in the affirmative.

the *known* amount of volatile organic compounds that were used in the resurfacing process, the manner in which those compounds would have dissipated in the gymnasium—including the weather at the time the solvents were used—and the pathways of exposure in concluding that plaintiff's exposure approached the threshold limit value for toluene (*id.* at 55-56). Moreover, the defendant in *Allen* did not challenge the general acceptance of the expert's methodology, as defendants do here.

[48 NE3d 944, 28 NYS3d 663]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CHRISTOPHER A. NICHOLSON, Also Known as JOHN DOE, Appellant.

Argued January 13, 2016; decided February 18, 2016

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Fourth Judicial Department, from an order of that Court, entered June 20, 2014. The Appellate Division affirmed a judgment of the Supreme Court, Monroe County (Francis A. Affronti, J.), which had convicted defendant, upon a jury verdict, of course of sexual conduct against a child in the first degree.

People v Nicholson, 118 AD3d 1423, affirmed.

HEADNOTES

Crimes — Appeal — Appellate Division Review Power — Reliance on Record to Discern Predicate for Trial Court's Evidentiary Ruling

1. The Appellate Division did not exceed its authority under CPL 470.15 (1) in relying on the trial court's proffer colloquy with counsel to understand the context of the court's ruling admitting rebuttal testimony intended to establish that a defense witness lied and had a motive to fabricate. CPL 470.15 (1) is a legislative restriction on the Appellate Division's power to review issues either decided in an appellant's favor, or not ruled upon, by the trial court. Thus, the statute bars the Appellate Division from affirming a judgment, sentence or order on a ground not decided adversely to the appellant by the trial court. The trial court determined that testimony in contravention of the defense witness's statement that she was defendant's friend was admissible as "proper rebuttal." Defendant's challenge to that ruling required the Appellate Division to consider whether the People's articulated purpose—to establish the lack of a friendship relationship—was permissible given the defense witness's testimony. Thus, the Appellate Division had to determine whether the purported lie had a particular meaning given the defense witness's testimony on direct and cross-examination. Where a trial court does not identify the predicate for its ruling, the Appellate Division acts appropriately in considering the import of the trial judge's stated reasoning. Unlike the case where the Appellate Division renders a decision on grounds explicitly different from those of the trial court, or on grounds that were clearly resolved in a defendant's favor, the Appellate Division here affirmed the evidentiary ruling on the ground relied on by the trial court, namely to establish the defense witness lied that she and defendant were merely friends, as well as the unspoken, record-supported inferences that could be drawn from that testimony.

Crimes — Witnesses — Rebuttal Testimony Demonstrating Witness's Bias and Motive to Fabricate

2. In a criminal prosecution in which the People introduced rebuttal testimony intended to demonstrate a romantic relationship between defend-

ant and a defense witness, who testified that she and defendant were friends “but that’s it,” the Appellate Division’s conclusion that such testimony was proper rebuttal permitting the inference that the witness was biased and had a motive to fabricate was supported by the record. On cross-examination, the prosecutor elicited testimony from the witness that while defendant was in jail she visited him almost once a week, and initially spoke with him daily by telephone. She also admitted that she spoke with him about the case, and knew about the charges against him, and admitted that she cared for him. This testimony suggested that her interest in defendant was more than platonic and that they had a close and intimate relationship. The prosecutor’s pointed question about whether the witness reentered defendant’s life upon his divorce eventually led to her testimony that she was friends with defendant all along, even when he was married, and that they were friends at the time of trial. The People’s proffer in support of the rebuttal testimony that she was not a friend thus aligned with the prosecutor’s cross-examination that sought to demonstrate that the defense witness and defendant were romantically involved. Moreover, the People had much to gain by presenting evidence that permitted an inference of a romantic relationship between defendant and the witness. By demonstrating that the witness was intentionally mischaracterizing her relationship with defendant, the prosecutor could argue that she harbored a bias more significant than a friendship, and one that would lead to fabrication of testimony under oath.

Crimes — Witnesses — Expert Witness — Child Sexual Abuse Accommodation Syndrome — Testimony Concerning Delayed Reporting

3. The trial court in defendant’s prosecution for sexually abusing his daughter properly admitted expert testimony on Child Sexual Abuse Accommodation Syndrome (CSAAS) for the legitimate purpose of countering the inference that the victim was not credible because she disclosed the abuse 10 years after the first sexual assault. CSAAS expert testimony is appropriate to assist the jury in assessing a victim’s credibility by explaining victims’ behavior that the factfinder might not understand, such as why victims may accommodate abusers and why they wait before disclosing the abuse. Defendant failed to demonstrate that the members of the empaneled jury held an appropriate understanding of CSAAS. During voir dire, not every prospective juror affirmatively responded to questions regarding behavior associated with CSAAS, and there was no consistent juror viewpoint discernable from voir dire, since those who responded to questioning provided a variety of reasons for why they would not be shocked or surprised by a child’s delay in disclosure. Even if the responses from certain prospective jurors reflected a basic appreciation of some of the behaviors described by CSAAS, that did not translate into a high level of comprehension of the dynamics of sexually and physically abusive relationships within a family which are generally not as familiar to the lay juror. Thus, the expert’s testimony, grounded in his professional knowledge and training, provided relevant information outside the ken of the jurors.

Crimes — Appeal — Preservation of Issue for Review — Testimony Regarding Prior Bad Acts — No Request for Limiting Instruction

4. Defendant’s claim that the trial court in his sexual abuse prosecution committed reversible error by failing to provide a limiting instruction to the jury regarding evidence of his prior violent actions, which was relevant to explain the victim’s delayed disclosure of the abuse and was limited to her

personal observations and experiences, was unpreserved for review because defendant failed to make a specific request for such an instruction. Where the trial court reserves decision on a defendant's motion to dismiss, the preservation rules do not bar review of a defendant's claim. Here, the court did not admit the testimony contingent on its instruction to the jury, nor did the court otherwise state at any point that it would give a limiting instruction. Instead, the Judge ruled that he was allowing the victim's testimony on the prior bad acts to explain her delayed disclosure, and "if necessary" he could provide an appropriate limiting instruction. Since counsel never asked for such instruction, there was no request for the trial court to reserve judgment on, no claim of trial error for the court to review, and no opportunity for the court to grant the relief sought.

Crimes — Right to Counsel — Effective Representation

5. Defendant was not deprived of the effective assistance of counsel in his prosecution for sexually abusing his daughter, as none of counsel's alleged failures, considered independently or in combination, supported a conclusion that he was ineffective based on the totality of the representation under the New York State Constitution or that his performance was deficient and prejudiced defendant under the federal standard. Although the testimony of the victim's mother regarding defendant's prior bad acts arguably exceeded the court's ruling permitting such testimony solely from the victim, the jury heard from the victim about the specific incidents, and the mother's testimony about the events did not relate to the sexual abuse. Moreover, during defense counsel's summation, he sought to use the mother's testimony to defendant's advantage to support his argument that the victim lied. Thus, defendant failed to demonstrate that counsel lacked a strategic use for the testimony. Additionally, because the Court of Appeals has held that Child Sexual Abuse Accommodation Syndrome (CSAAS) is recognized within the scientific community and the expert testified generally about CSAAS, and not about its application to the victim or her specific allegations of sexual abuse, there was no apparent failure in defense counsel's choice not to call his own expert to rebut the People's expert witness.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Appellate Review §§ 575, 618, 619; AM JUR 2d, Criminal Law §§ 1135–1139; AM JUR 2d, Evidence § 301; AM JUR 2d, Expert and Opinion Evidence §§ 21–28, 149; AM JUR 2d, Witnesses §§ 782, 792.

CARMODY-WAIT 2d, Right to Counsel §§ 184:153–184:167, 184:273; CARMODY-WAIT 2d, Particular Types of Evidence §§ 194:175, 194:197; CARMODY-WAIT 2d, Testimony of Witnesses §§ 195:118, 195:119; CARMODY-WAIT 2d, Appeals in Criminal Cases §§ 207:18, 207:19, 207:36, 207:111, 207:112.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 11.7, 27.5.

McKINNEY'S, CPL 470.15 (1).

NY JUR 2d, Criminal Law: Procedure §§ 864–867, 878, 2023, 2188, 2211, 2313, 2730, 3465, 3584–3587.

ANNOTATION REFERENCE

Admissibility of expert testimony on child sexual abuse accommodation syndrome (CSAAS) in criminal case. 85 ALR5th 595.

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predicate decision

POINTS OF COUNSEL

Davison Law Office PLLC, Canandaigua (*Mary P. Davison* of counsel), for appellant. I. The decision of the Appellate Division majority to affirm despite reversible error that occurred when the trial court permitted rebuttal testimony on a collateral matter was an act outside its authority under the Criminal Procedure Law, had no record basis, and was an abuse of discretion as a matter of law. (*People v Concepcion*, 17 NY3d 192; *People v LaFontaine*, 92 NY2d 470; *People v Oden*, 36 NY2d 382; *People v Pavao*, 59 NY2d 282; *People v Harris*, 57 NY2d 335; *People v McLaughlin*, 291 NY 480; *People v Hanley*, 5 NY3d 108; *People v Zabrocky*, 26 NY2d 530; *People v Jenkins*, 24 NY3d 62; *People v Kims*, 24 NY3d 422.) II. The trial court abused its discretion as a matter of law or failed to exercise discretion by permitting a social worker to testify about Child Sexual Abuse Accommodation Syndrome, after the jurors' answers during voir dire demonstrated that the topic was not outside their ken. (*People v Carroll*, 95 NY2d 375; *People v Donk*, 259 AD2d 1018, 93 NY2d 924; *People v DeLong*, 206 AD2d 914; *People v Spicola*, 16 NY3d 441; *People v Williams*, 20 NY3d 579; *People v Diaz*, 20 NY3d 569; *De Long v County of Erie*, 60 NY2d 296; *People v Ciaccio*, 47 NY2d 431.) III. The trial court erred by admitting prejudicial evidence of prior bad acts at trial without issuing a limiting instruction to the jury. (*People v Bassett*, 55 AD3d 1434; *People v Stanard*, 32 NY2d 143; *People v Scarola*, 71 NY2d 769; *People v Molineux*, 168 NY 264; *People v Alvino*, 71 NY2d 233; *People v Resek*, 3 NY3d 385; *People v Hudy*, 73 NY2d 40; *People v Santarelli*, 49 NY2d 241; *People v Ventimiglia*, 52 NY2d 350; *People v Wlasiuk*, 32 AD3d 674.) IV. Mr. Christopher Nicholson was denied a fair trial based on lack of effective assistance of trial counsel. (*United States v Cronin*, 466 US 648; *People v Claudio*, 83 NY2d

76; *People v Benevento*, 91 NY2d 708; *Strickland v Washington*, 466 US 668; *Hill v Lockhart*, 474 US 52; *Murray v Carrier*, 477 US 478; *People v Ennis*, 11 NY3d 403; *People v Baldi*, 54 NY2d 137; *Rosario v Ercole*, 601 F3d 118; *People v Turner*, 5 NY3d 476.)

Sandra Doorley, District Attorney, Rochester (Geoffrey A. Kaeuper of counsel), for respondent. I. The trial court properly allowed defendant's ex-wife to testify in rebuttal as to the relationship between defendant and defense witness Jill Marinic. (*People v Anonymous*, 96 NY2d 839; *People v LaFontaine*, 92 NY2d 470; *People v Concepcion*, 17 NY3d 192; *People v Howard*, 22 NY3d 388; *People v Vandover*, 20 NY3d 235; *People v Guay*, 18 NY3d 16; *People v Harris*, 98 NY2d 452; *People v Lam*, 21 NY3d 958.) II. The court did not abuse its discretion in allowing the People to present expert testimony about Child Sexual Abuse Accommodation Syndrome. (*People v Cronin*, 60 NY2d 430; *People v Williams*, 20 NY3d 579; *People v Spicola*, 16 NY3d 441; *People v Carroll*, 95 NY2d 375; *People v Keindl*, 68 NY2d 410.) III. The trial court's *Molineux* ruling was a proper exercise of discretion, and defendant's claim as to a limiting instruction is not preserved for review. (*People v Allweiss*, 48 NY2d 40; *People v Morris*, 21 NY3d 588; *People v Bennett*, 52 AD3d 1185, 11 NY3d 734; *People v Watson*, 281 AD2d 691, 96 NY2d 925; *People v Cook*, 93 NY2d 840; *People v Bayne*, 82 NY2d 673; *People v Payne*, 3 NY3d 266; *People v Hines*, 97 NY2d 56.) IV. Defendant received meaningful representation of counsel. (*People v Baldi*, 54 NY2d 137; *People v McGee*, 20 NY3d 513; *People v Santiago*, 22 NY3d 740; *People v Howard*, 22 NY3d 388; *People v Turner*, 5 NY3d 476; *People v Ford*, 46 NY2d 1021; *People v Benevento*, 91 NY2d 708; *People v Henry*, 95 NY2d 563.)

OPINION OF THE COURT

RIVERA, J.

In this appeal we clarify that the Appellate Division does not exceed its statutory authority or run afoul of our decisions in *People v LaFontaine* (92 NY2d 470 [1998]) and *People v Concepcion* (17 NY3d 192 [2011]) when it relies on the record to discern the unarticulated predicate for the trial court's evidentiary ruling. On the merits, we reject defendant's claim that the trial court committed reversible error by admitting rebuttal testimony intended to provide evidence of defendant's sole witness's bias or motive to fabricate. We further reject his

challenges to several other trial court evidentiary rulings, as well as his assertion that his trial counsel was ineffective. Therefore, the Appellate Division order should be affirmed.

I.

Defendant, Christopher Nicholson, challenges his conviction, after a jury trial, on one count of course of sexual conduct against a child in the first degree (Penal Law § 130.75 [1]), arising from his sexual abuse of his daughter, D.N. The evidence at trial demonstrated that defendant and his first wife have two children, D.N. and a son, who is 18 months' D.N.'s senior. After defendant and his wife separated in 1995, D.N.'s mother had physical custody of the children and defendant had regular visitation at his home. D.N., who was 16 years old at the time of trial, testified that commencing in 1998 when she was six years old, and until she turned eight, her father repeatedly raped her.

Over defense counsel's objection the court permitted D.N. to testify about defendant's violent nonsexual conduct towards her and her brother, ostensibly for purposes of explaining why D.N. delayed reporting the sexual abuse. The court also permitted D.N.'s mother to testify about certain aspects of these incidents. According to this testimony, in 1998, D.N. was in kindergarten and defendant would often pick up the children from a school they attended near his residence. One day in April, defendant arrived at the children's school enraged over some confusion regarding who would pick them up that day. Defendant entered the principal's office where the children were waiting, grabbed the children by the neck and pulled them out of the school. During the drive back to his home defendant smacked D.N. across the face and punched her brother. D.N. testified that she felt afraid because she thought that defendant's rage "would become so bad that maybe one day he would kill us."

Mother testified that after learning about this incident, she called the police and got a temporary no-contact order against defendant from Family Court. However, she eventually permitted the children to resume visitation with defendant.

D.N. and her mother both testified to another violent incident involving defendant's son on October 1, 1998. D.N. stated that on that day defendant threw her brother and his clothes out of defendant's home, and left him waiting in the rain for mother to pick him up. Describing what precipitated the ejection from

defendant's residence, D.N. testified that defendant beat and hit her brother before throwing him out because he stood up for his mother against defendant's verbal negative statements about her. Following this incident, D.N.'s brother never again visited defendant's home.

However, D.N. continued to visit defendant and, at his request, on occasion stayed overnight. While she did not generally remember details of the several sexual assaults, she testified to two in particular, including the first, which occurred on Halloween of 1998 when she was in the first grade. On that day defendant forbade D.N. to go trick-or-treating with the family, and told her to stay home and help with a party he was planning. D.N. acquiesced because she was afraid of defendant. After D.N. finished helping with the party setup she went to her room upstairs and read until she fell asleep. After the party ended, D.N. woke up to defendant yelling for her. She went downstairs and found herself alone with defendant. He then started hitting her in the face and pulling her by her arms. D.N. testified that defendant was incoherent and very angry, and she felt "very fearful" after he hit her because she "didn't know what was going to happen next."

Defendant slammed D.N. onto the living room floor and proceeded to rape her. Afterwards, D.N. was in extreme pain and when defendant stopped she ran back to her room and hid under the bed, where she fell asleep until the following day when she went back to her mother's home. D.N. testified that at the time she did not tell her mother about the first rape because she was afraid defendant would hurt or sexually abuse her, or fulfill threats he made to kill her mother.

D.N. described another rape which she remembered because it occurred on New Year's Eve 1999. On that night, defendant left D.N. alone while he went to a bar with friends. When he returned he called for her, and she came downstairs. She was frightened by the look in his eyes, and believed he was going to hurt her so she tried to run away, but he caught up with her, grabbed her and tackled her as she entered the living room. Defendant then proceeded to rape her, and afterwards left her on the floor and went upstairs. D.N. did not call her mother because she "was told not to." She further testified that she did not tell anyone about the rape the next day "because I figured it would keep continuing and there was nothing that I could do about it" and because she wanted to make sure her mother would not get hurt. In response to the prosecutor's question as

to why D.N. did not tell her mother about what was going on in general, D.N. answered that she stayed silent because she believed defendant when he “continuously threatened me and said that he would kill my mother and make me watch.” She further testified that she “felt like [she] could never overcome” the fear he had instilled in her.

Defendant continued to rape D.N. throughout her first, second and third grade years, and up until a few weeks before her eighth birthday. At trial she testified that she told her mother at that time “that I didn’t want anything to do with my father anymore because I was tired of him hitting me and being mean to me and I just wanted to be home with mommy and my brother.” Although D.N. wanted no contact with defendant, he called constantly wanting to know why she no longer visited him.

In 2008, when D.N. was in the 11th grade, she disclosed the sexual abuse to her school counselor. She testified that she waited to reveal the abuse even after she lived with her mother, and no longer saw defendant, because she was afraid he would come after her and her other family. D.N. explained that she eventually decided to come forward because she wanted to protect her younger sister from defendant doing the same to her, because she “wanted people to know the truth . . . so that he can’t go and do it to someone else,” and because she wanted someone to help her keep from killing herself.

Prior to this disclosure, D.N. was extremely depressed and suicidal. Unable to deal with the pain inside and the lies she told about how no one ever hurt her, she began to medicate and self mutilate by cutting herself with razors and knives. After she told the counselor, D.N. received psychiatric inpatient services.

The People also presented expert testimony from a social worker on Child Sexual Abuse Accommodation Syndrome (CSAAS). The expert testified that it is very common for child victims of sexual abuse to delay disclosure because they believe that they are to blame for the abuse, or that their silence protects other individuals from the consequences of the disclosure. He also testified that children who have been abused can have difficulty remembering specific details due to disassociation, where the child attempts to “not remember” the traumatic event.

After the People rested, defendant called as his sole witness his former girlfriend, Jill Marincic. She testified that they were

romantically involved from 1995 until around 2003 or 2004, and that they lived together in a house her father helped them purchase in 1998. This was the house where D.N. stayed when she visited defendant. Marincic further testified that from 1998 to 2000 she never witnessed or heard any violence against D.N. during her stays at the house.

On cross-examination, Marincic claimed that since her breakup with defendant she had not been romantically involved with him. She admitted that she visited him in jail up to four times a month, that he called her from jail at least once a week, and that he discussed the trial with her. She further admitted that she has a friend relationship with defendant, cares about him, and did not want him to go to jail. In addition, she acknowledged that although she knew about the charges, she did not go to the police and tell them she was present in the house at the times the sexual abuse allegedly occurred. She also stated that she and defendant broke up because she cheated on him and that after their breakup he began a relationship with his future second wife, who at the time of trial he had recently divorced.

The prosecutor then elicited the following testimony:

“[Prosecutor:] And that’s when you came back into the Defendant’s life, correct?”

“[Witness:] No. I had always been friends with him all along, even when he was married with her. We are still friends, but that’s it.”

“[Prosecutor:] And you are friends of the nature where you go and visit him in jail; isn’t that correct?”

“[Witness:] Yes, I’ll visit him.”

Afterwards, the prosecutor sought to call defendant’s second ex-wife as a rebuttal witness. The court permitted the witness over defense counsel’s objection based on the following colloquy:

“[Court]: [Prosecutor], what is the expectation regarding the testimony?”

“[Prosecutor]: The witness testified specifically she has been friends with the Defendant the entire time, including the time after she broke up with him, and he was with [rebuttal witness] up to the

present date. I am calling the [rebuttal] witness to rebut that statement that they were friends this entire time, because that's not correct.

"[Court]: That is the limited purpose, that they were or were not friends during that period; is that what you are saying?

"[Prosecutor]: That's right.

"[Defense Counsel]: So we are clear, she is not asking whether this witness and [defendant] were friends.

"[Court]: I understand.

"[Defense Counsel]: She is trying to rebut the assertion by Ms. Marincic that [defendant] and Ms. Marincic were friends.

"[Court]: That's correct. If this witness has information regarding that limited testimony, it is proper rebuttal.

"[Defense Counsel]: Except it is not relevant. Again, it is a collateral matter. Whether or not they [were] friends after 2003 is collateral to the issues that we have at hand here. It becomes irrelevant and distracting at this point. If that's the sole purpose of calling a witness to say that in her opinion they weren't still friends, these other two people weren't still friends, how is that relevant to the testimony we just heard? That is the one and only purpose they are calling her for, and the Court is allowing it for what purpose?

"[Court]: During what period of time?

"[Defense Counsel]: That would have to be from 2003 on.

"[Court]: Why?

"[Defense Counsel]: Which is almost three years after any allegations that are before this jury to consider.

"[Court]: Does the testimony postdate the time period involved?

“[Prosecutor]: Yes, [Y]our Honor, but I was asking this witness about her present relationship with the Defendant, and she indicated that she has been friends with him since that time period to [the] present date.

“[Court]: And the rebuttal witness will controvert; that is what you are saying?

“[Prosecutor]: Yes, [Y]our Honor.

“[Court]: Supposedly.

“[Prosecutor]: Yes.

“[Court]: Then it is proper rebuttal. This is brought out on the Defendant’s case. It is proper rebuttal, again, limited to that narrow scope of testimony. Is that the sole purpose of the witness?

“[Prosecutor]: Yes, [Y]our Honor.

“[Court]: All right. I understand your argument, [defense counsel], but I don’t agree with it so long as that is the offer of proof regarding the proposed testimony. Have the jury enter.”

The People’s rebuttal witness testified that she was previously married to defendant, but they were now divorced, and she had met defendant after he broke up with Marincic. She further testified that Marincic and defendant spoke at the beginning of her own relationship with defendant but, to the best of her knowledge, such contact ceased when she expressed her displeasure to defendant. The rebuttal witness also attempted to testify that Marincic had sought to “get back” with defendant, but those questions were objected to and the answers stricken from the record.

The jury returned a guilty verdict on the sole count of course of sexual conduct against a child in the first degree. The court originally sentenced defendant to an indeterminate term of 11 to 22 years’ incarceration, but upon resentencing reduced the term to a determinate 16 years followed by five years of post-release supervision.

The Appellate Division affirmed in a 3-2 decision (118 AD3d 1423 [4th Dept 2014]).* The Court rejected defendant's claims that the trial court should have precluded evidence of prior bad acts, that testimony regarding CSAAS was irrelevant and unnecessary, and that his trial counsel was ineffective. A majority of the Court also concluded that the trial court properly granted the People's request to present evidence that the defense witness lied about her friendship with defendant because such proof was relevant to her bias or motive to fabricate. The dissenting Justices would have reversed and granted a new trial based on the trial court's error in allowing the People to call a witness to testify solely about collateral matters (*id.* at 1426-1427). A Justice of the Appellate Division granted defendant leave to appeal. We now affirm.

II.

Defendant raises the same claims of trial court error that he asserted unsuccessfully before the Appellate Division. For the reasons discussed below we hold these claims, to the extent preserved, to be without merit.

A. Appellate Division Authority under CPL 470.15

Defendant contends that the Appellate Division exceeded its authority under CPL 470.15 (1), and violated the rule set forth in this Court's holdings in *LaFontaine* and *Concepcion*, because the Court based its decision that the People's rebuttal witness testimony was admissible on a ground different from that of the trial court. According to defendant, the trial court's sole basis for permitting the rebuttal testimony was for the limited purpose of establishing that Marincic lied when she testified that she was friends with defendant during the time he was married to his second wife, up until the time of trial. He complains that the Appellate Division affirmed on the wholly separate ground that the rebuttal testimony permitted an inference of Marincic's bias or motive to fabricate. The People respond that the rule in *LaFontaine* and *Concepcion* is not implicated here because the Appellate Division did not render its decision on an "entirely distinct alternative ground" from the trial court. Rather, both courts rejected defense counsel's argument that the rebuttal evidence was collateral.

* The Appellate Division, in defendant's separate appeals, affirmed his original conviction and affirmed as modified the resentence. The current appeal is from the affirmed judgment on his conviction.

Under CPL 470.15 (1), “[u]pon an appeal to an intermediate appellate court from a judgment, sentence or order of a criminal court, such intermediate appellate court may consider and determine any question of law or issue of fact involving error or defect in the criminal court proceedings which may have adversely affected the appellant.” This provision is “a legislative restriction on the Appellate Division’s power to review issues either decided in an appellant’s favor, or not ruled upon, by the trial court” (*LaFontaine*, 92 NY2d at 474 [citations omitted]). Thus, CPL 470.15 (1) “bars [the Appellate Division] from affirming a judgment, sentence or order on a ground not decided *adversely* to the appellant by the trial court” (*Conception*, 17 NY3d at 195). Such a restriction applies in equal force to this Court which itself has “no broader review powers” (*id.*, citing CPL 470.35 [1]).

[1] Defendant relies on a flawed and overly narrow construction of the statutory limits of 470.15 (1) as applied to the Appellate Division’s review of the trial court’s evidentiary ruling. The record indicates the trial court determined that testimony in contravention of the defense witness’s statement that she was defendant’s friend was admissible as “proper rebuttal.” Defendant’s challenge to that ruling required the Appellate Division to consider whether the People’s articulated purpose—to establish the lack of a friendship relationship—was permissible given the defense witness’s testimony. Defendant argues that the People sought only to demonstrate that the defense witness lied, which constituted a collateral matter. Defendant is, of course, correct that the People sought to present evidence that the defense witness was not telling the truth about her relationship with defendant. However, the Appellate Division’s review of defendant’s challenge required that it do more than recognize the obvious. The Appellate Division had to determine whether the purported lie had a particular meaning given the defense witness’s testimony on direct and cross-examination.

Where a trial court does not identify the predicate for its ruling, the Appellate Division acts appropriately in considering the import of the trial judge’s stated reasoning. Moreover, nothing in the language of CPL 470.15 (1), or this Court’s construction of that provision as discussed in *LaFontaine* and *Conception*, prohibits an appellate court from considering the record and the proffer colloquy with counsel to understand the context of the trial court’s ultimate determination, as it did in defendant’s case. Unlike the case where the Appellate Division

renders a decision on grounds explicitly different from those of the trial court, or on grounds that were clearly resolved in a defendant's favor—the type of appellate overreaching prohibited by CPL 470.15 (1) (*see Concepcion*, 17 NY3d at 195)—the Appellate Division here affirmed the evidentiary ruling on the ground relied on by the trial court, namely to establish the defense witness lied that she and defendant were merely friends, as well as the unspoken, record-supported inferences that can be drawn from that testimony. We therefore conclude that the Appellate Division acted within its statutory appellate review power.

Any other interpretation of CPL 470.15 (1) would require a trial judge to state every analytic step underlying a determination to admit or deny evidence, no matter how obvious the reasoning from the record. This approach demands a heretofore unexpected level of descriptive technical exactitude. It would require the judiciary to participate in a laborious exercise, without obvious commensurate benefit to the parties or our system of justice. We do not mean that a trial court's evidentiary rulings may go unexplained, that the Appellate Division may hypothesize the basis for a judge's determination where a record is wholly devoid of reason, or that an appellate court may comb through the entirety of a record solely to cobble together some theory for the trial court's conclusion. There must be sufficient articulation of a "reviewable predicate" (*cf. Concepcion*, 17 NY3d at 195, citing *LaFontaine*, 92 NY2d at 472 [Appellate Division may consider "only reviewable predicates" for the lower court's decision]). Thus, where the trial court's decision is fully articulated the Appellate Division's review is limited to those grounds, but where the trial court gives a reason and there is record support for inferences to be drawn from that reason, the Appellate Division does not act beyond the parameters legislatively set forth in CPL 470.15 (1) when it considers those inferences.

[2] Defendant argues, in the alternative, that even if the Appellate Division acted within the proper scope of its authority, there is no basis for the inference that the rebuttal testimony was intended to demonstrate Marincic's romantic involvement with defendant. On cross-examination, the prosecutor elicited testimony from Marincic that while defendant was in jail she visited him almost once a week, and initially spoke with him daily by telephone, although she claimed that over time the conversations became less frequent and occurred weekly. She

also admitted that she spoke with him about the case, and knew about the charges against him, and admitted that she cared for him. This testimony suggested that her interest in defendant was more than platonic and that they had a close and intimate relationship. Nevertheless, the prosecutor's pointed question about whether Marincic reentered defendant's life upon his divorce eventually led to her testimony that she was friends with defendant all along, even when he was married, and that they were friends at the time of trial "but that's it." The People's proffer in support of the rebuttal testimony that she was not a friend thus aligned with the prosecutor's cross-examination that sought to demonstrate that defense witness and defendant were romantically involved.

Moreover, apart from the potential bias suggested by Marincic's admission that she was defendant's friend and that she cared for him, the People had much to gain by presenting evidence that permitted an inference of a romantic relationship between defendant and Marincic. In other words, by demonstrating that Marincic was intentionally mischaracterizing her relationship with defendant, the prosecutor could argue that she harbored a bias more significant than a friendship, and one that would lead to fabrication of testimony under oath.

The Appellate Division's conclusion that this inference was appropriate and based on testimony that was "proper rebuttal" has record support. We therefore have no basis to disturb this determination.

B. Expert Testimony on Child Sexual Abuse Accommodation Syndrome

Defendant claims that the trial court abused its discretion when it permitted testimony from the People's expert on CSAAS. Defendant's claim is quite limited. He does not challenge the admissibility of expert testimony on CSAAS as a general matter, that a determination on the admission and scope of such testimony is ultimately within the discretion of the trial court, or the expert qualifications of the People's witness. Instead, defendant's sole contention is that expert testimony on CSAAS was unnecessary and irrelevant once voir dire demonstrated that the prospective jurors in his case understood the reasons for a child sexual assault victim's delayed disclosure of the perpetrator's acts. The People argue that the expert testimony admitted in this case is wholly permissible under our case law and nothing in the voir dire indicates otherwise.

Admission of expert testimony is left to the sound discretion of the trial court and “dependent on whether the expert testimony ‘would help to clarify an issue calling for professional or technical knowledge, possessed by the expert and beyond the ken of the typical juror’” (*People v Williams*, 20 NY3d 579, 583-584 [2013], quoting *De Long v County of Erie*, 60 NY2d 296, 307 [1983]). We have previously held that expert testimony on CSAAS is admissible, like other psychological syndromes, because it helps to explain victim behavior that might be puzzling to the jury (*id.* at 583-584; *People v Spicola*, 16 NY3d 441, 465 [2011]). The expert educates the jury on a scientifically-recognized “pattern of secrecy, helplessness, entrapment [and] accommodation” experienced by the child victim (*Spicola*, 16 NY3d at 453 [internal quotation marks omitted]). This includes assisting the jury to understand “why a child may wait a long time before reporting the alleged abuse” (*Williams*, 20 NY3d at 584, citing *Spicola*, 16 NY3d at 466-467), fail to report at all, and deny or recant claims of sexual assault (*Spicola*, 16 NY3d at 453-454). As we recognized in *Spicola*, the testimony is properly admitted for the legitimate purpose to counter an inference that the victim is not credible (*id.* at 465).

[3] As the record demonstrates, D.N. disclosed the sexual assaults 10 years after defendant first raped her in the living room of his home. Under our case law, CSAAS expert testimony was appropriate to assist the jury in assessing D.N.’s credibility by “explaining victims’ subsequent behavior that the factfinder might not understand, such as why victims may accommodate abusers and why they wait before disclosing the abuse” (*Williams*, 20 NY3d at 584). Nevertheless, defendant argues that the voir dire responses demonstrate that the jury did not require expert testimony on the reasons for delayed reporting because a child victim’s behavior was apparently within the ken of the jurors in his case. We reject this claim on multiple grounds.

First, defendant has failed to demonstrate that the members of the empaneled jury actually held an appropriate understanding of this syndrome since not every prospective juror affirmatively responded to questions regarding behavior associated with CSAAS. Second, there is no consistent juror viewpoint discernable from voir dire. Those who responded to questioning said that they would not be shocked or surprised by a child’s delay in disclosure, and provided a variety of reasons for why

they felt this way. For example, in response to counsel's question, one prospective juror explained delayed disclosure as attributable to a very traumatic experience, another said the victim could have been frightened and embarrassed, and yet another asserted that people express feelings differently. Given the range of answers, the Judge did not abuse his discretion in determining that expert testimony describing a pattern of complex psychological behaviors would provide useful information upon which to judge D.N.'s testimony.

Third, even if responses from certain prospective jurors appear to reflect a basic appreciation of some of the behaviors described by CSAAS, that does not translate into a high level of comprehension of "the dynamics of sexually and physically abusive relationships within a family" at issue in this case and which are generally not as familiar to the lay juror (*People v Taylor*, 75 NY2d 277, 288 [1990]). Here, the expert described the five categories of CSAAS and explained why a child victim might delay disclosure of her father's sexual abuse, as well as what might eventually motivate a victim to reveal the abuser's conduct. Furthermore, the expert testified about matters not explored during voir dire, such as "disassociation," whereby the victim disassociates the mind from the experience, which ultimately affects a child victim's recollection of events. Thus, the expert's testimony, grounded in his professional knowledge and training, provided relevant information outside the ken of the jurors and was properly admitted.

C. Evidence of Prior Bad Acts

Defendant claims that the trial court erred by admitting, without a limiting instruction, evidence of the defendant's prior bad acts, specifically violent actions observed or experienced by the victim, which the prosecutor argued would explain that she delayed reporting out of fear of defendant's potential violent reaction towards her, her mother, and her brother. Generally, "all relevant evidence is admissible unless its admission violates some exclusionary rule" (*People v Scarola*, 71 NY2d 769, 777 [1988]). Evidence is considered relevant "if it has any tendency in reason to prove the existence of any material fact" (*id.*). However, even relevant evidence is not admissible if "its probative value is substantially outweighed by the potential for prejudice" (*People v Harris*, 26 NY3d 1, 5 [2015], quoting *People v Mateo*, 2 NY3d 383, 424-425 [2004]).

The record demonstrates that the testimony was relevant to explain the victim's delayed disclosure, and was limited to her

personal observations and experiences. Given the trial court's careful balancing of the probative value of the testimony against its potential for prejudice, we hold that there was no abuse of discretion in admitting this evidence.

[4] Defendant's additional claim that the court's failure to provide a limiting instruction to the jury constitutes reversible error is unpreserved because defendant failed to make a specific request for such instruction (*People v Becoats*, 17 NY3d 643, 650 [2011] ["this Court does not consider claims of error not preserved by appropriate objection in the court of first instance"]). Defendant claims, however, that under *People v Payne* (3 NY3d 266, 273 [2004]), the issue is properly before us because the trial court had an opportunity to review the issue and understood the need for a curative instruction. Defendant's reliance on *Payne* is misplaced because in that case the Court held that where the trial court reserves decision on a defendant's motion to dismiss, the preservation rules do not bar review of defendant's claim. Here, the court did not admit the testimony contingent on its instruction to the jury. Nor did the court otherwise state at any point that it *would* give a limiting instruction. Instead, the Judge ruled that he was allowing D.N.'s testimony on the prior bad acts to explain her delayed disclosure, and "if necessary" he could provide an appropriate limiting instruction. Since counsel never asked for such instruction, there was no request for the trial court to reserve judgment on, no claim of trial error for the court to review, and no opportunity for the court to grant the relief sought. Defendant's failure renders his present claims unpreserved.

III.

Defendant asserts numerous complaints about his defense counsel's representation in support of his claim that he was denied a fair trial, under both the Federal and State Constitutions, due to his lawyer's mistakes. The People assert that no errors establish the level of ineffectiveness warranting reversal of defendant's conviction. We agree.

Under the federal standard ineffective assistance of counsel requires both that "counsel's performance was deficient" and that the "deficient performance prejudiced the [defendant]" (*Strickland v Washington*, 466 US 668, 687 [1984]). However, under our State Constitution "[t]he core of the inquiry is whether defendant received meaningful representation" (*People v Benevento*, 91 NY2d 708, 712 [1998] [internal quotation

marks omitted]). In making that assessment, the Court must view counsel's performance in its totality (*see People v Baldi*, 54 NY2d 137, 147 [1981]). Defendant, of course, bears the burden of establishing his claim that counsel's performance is constitutionally deficient (*People v Barboni*, 21 NY3d 393, 406 [2013]). Thus, defendant must demonstrate the absence of strategic or other legitimate explanations for counsel's alleged failure (*People v Satterfield*, 66 NY2d 796, 799-800 [1985]). However, a reviewing court must be careful not to "second-guess" counsel, or assess counsel's performance "with the clarity of hindsight," effectively substituting its own judgment of the best approach to a given case (*Benevento*, 91 NY2d at 712). The test is "reasonable competence, not perfect representation" (*People v Modica*, 64 NY2d 828, 829 [1985] [citation and internal quotation marks omitted]).

[5] Turning to defendant's specific complaints, defendant alleges that counsel was ineffective for failing to object to evidence of defendant's prior bad acts elicited from the victim's mother, in violation of the court's ruling permitting such testimony solely from the victim. Defendant complains that the mother testified about the school incident in April and defendant's ouster of their son from his residence in October. Although the mother's testimony on these matters arguably exceeded the court's ruling, this does not warrant a finding of ineffectiveness given that the jury heard from D.N. about these two incidents, and the mother's testimony about events on these dates did not relate to the sexual abuse.

Moreover, during defense counsel's summation, he sought to use the mother's testimony to defendant's advantage to support his argument that D.N. lied. Specifically, counsel reminded the jury that the victim immediately complained to her mother about the April incident, that her mother went to the police about defendant, and that as a consequence D.N. did not have to see defendant for quite some time. He argued that because D.N. had no difficulty complaining in April and had observed her mother's handling of defendant's conduct at that time, it was not believable that D.N. would feel incapable or fearful of reporting the physical and sexual abuse until years after the fact. Defendant's related complaint that counsel should have requested limiting instructions similarly fails because he has not demonstrated that counsel lacked a strategic use for the testimony. Thus, these two grounds are insufficient bases to conclude defendant was deprived of meaningful representation (*Benevento*, 91 NY2d at 712).

Defendant next complains that counsel failed to object to the prosecutor's summation comments which he contends amounted to vouching for the victim's credibility and prosecutorial misconduct. We reject this claim because although the comments were arguably inappropriate, they were not sufficiently egregious to warrant reversal for ineffectiveness (*see People v Wragg*, 26 NY3d 403, 411-412 [2015] [summarizing cases where the prosecutor committed reversible error during summation by "making misleading representations about physical evidence, encouraging inferences of guilt based on facts not in evidence, and improperly conveying guilt in uncharged crimes"]).

Defendant also claims that counsel failed to investigate or call an expert to rebut the People's expert witness. According to defendant, counsel should have called a witness to "debunk" the People's expert's theory. However, because this Court has held that CSAAS is recognized within the scientific community and the expert here testified generally about CSAAS, and not about its application to D.N. or her specific allegations of sexual abuse, there is no apparent failure in defense counsel's choice not to call his own expert. To the extent defendant argues CSAAS lacks scientific validity and that counsel should have presented evidence to that effect through a rebuttal expert, or during cross-examination of the People's expert, defendant's challenges to counsel's preparedness depend on matters dehors the record and are not reviewable on direct appeal (*People v Cass*, 18 NY3d 553, 556 [2012]).

Defendant's remaining claims are similarly unreviewable on the record before us. His assertion that counsel failed to properly investigate the case, including failing to subpoena medical records—which the People claim do not exist—relies on extraneous facts. Furthermore, defendant's final contention that counsel failed to impeach the victim about the inconsistencies between her trial and her grand jury testimonies is not without some significance, but requires consideration of matters outside the record to determine whether this was trial strategy. For example, counsel could have determined that the jury would treat D.N.'s inconsistencies as an example of understandable memory lapses given the years between the abuse and her testimony, or as an example of the effects of the abuse on her memory and recollection.

In summary, whether considered independently or in combination, none of these complaints about defense counsel's

representation support a conclusion that he was ineffective based on the totality of the representation under the State Constitution (*Baldi*, 54 NY2d at 147). As a consequence, he also fails to meet the higher threshold for ineffectiveness under the federal standard (*People v Caban*, 5 NY3d 143, 156 [2005]).

Accordingly, the Appellate Division order should be affirmed.

Judges PIGOTT, ABDUS-SALAAM, STEIN and FAHEY concur; Chief Judge DiFIORE and Judge GARCIA taking no part.

Order affirmed.

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